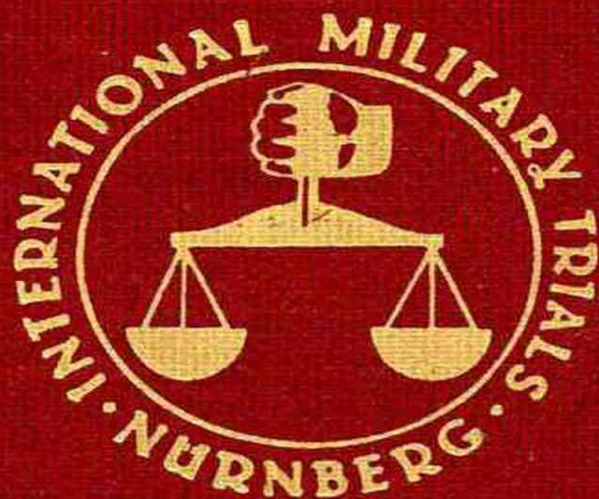
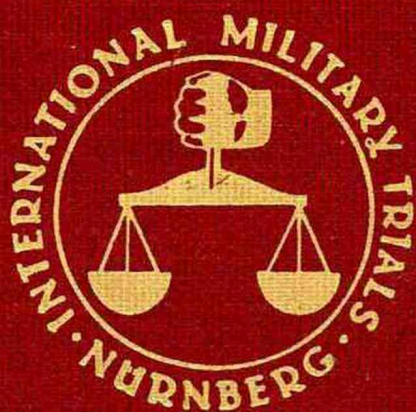






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Title: Nazi conspiracy and aggression, Volume 04 (of 11)

Author: United States. Office of Chief of Counsel for the
Prosecution of Axis Criminality

Release date: March 7, 2026 [eBook #78130]

Language: English

Original publication: Washington D.C.: United States Government
Printing Office, 1946

Other information and formats: www.gutenberg.org/ebooks/78130

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*** START OF THE PROJECT GUTENBERG EBOOK NAZI
CONSPIRACY AND AGGRESSION, VOLUME 04 (OF 11) ***

NAZI CONSPIRACY AND AGGRESSION

VOLUME IV

*Office of United States
Chief of Counsel For Prosecution
of Axis Criminality*



UNITED STATES GOVERNMENT PRINTING OFFICE
WASHINGTON • 1946

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A collection of Documentary Evidence and Guide Materials Prepared by the American and British Prosecuting Staffs for Presentation before the International Military Tribunal at Nurnberg, Germany, in the case of

THE UNITED STATES OF AMERICA, THE FRENCH REPUBLIC, THE UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND, and THE UNION OF SOVIET SOCIALIST REPUBLICS

—against—

HERMANN WILHELM GOERING, RUDOLF HESS, JOACHIM von RIBBENTROP, ROBERT LEY, WILHELM KEITEL, ERNST KALTENBRUNNER, ALFRED ROSENBERG, HANS FRANK, WILHELM FRICK, JULIUS STREICHER, WALTER FUNK, HJALMAR SCHACHT, GUSTAV KRUPP von BOHLEN and HALBACH, KARL DOENITZ, ERICH RAEDER, BALDUR von SCHIRACH, FRITZ SAUCKEL, ALFRED JODL, MARTIN BORMANN, FRANZ von PAPEN, ARTHUR SEYSS-INQUART, ALBERT SPEER, CONSTANTIN von NEURATH, and HANS FRITZSCHE, Individually and as Members of Any of the Following Groups or Organizations to which They Respectively Belonged, Namely: DIE REICHSREGIERUNG (REICH CABINET); DAS KORPS DER POLITISCHEN LEITER DER NATIONALSOZIALISTISCHEN DEUTSCHEN ARBEITERPARTEI (LEADERSHIP CORPS OF THE NAZI PARTY); DIE SCHUTZSTAFFELN DER NATIONALSOZIALISTISCHEN DEUTSCHEN ARBEITERPARTEI (commonly known as the “SS”) and including DIE SICHERHEITSDIENST (commonly known as the “SD”); DIE GEHEIME STAATSPOLIZEI (SECRET STATE POLICE, commonly known as the “GESTAPO”); DIE STURMABTEILUNGEN DER N.S.D.A.P. (commonly known as the “SA”) and the GENERAL STAFF and HIGH COMMAND of the GERMAN ARMED FORCES are as defined in Appendix B of the Indictment,

Defendants.

TRANSLATION OF DOCUMENT 1409-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1709

Order concerning the Utilization of Jewish Property of 3 December 1938

On the basis of Article 1 of the Second Regulation by the Administrator for the Four Year Plan based on the Decree of November 24, 1938 for the Reporting of Jewish-owned Property (RGBl I, 1668), the following is decreed in cooperation with the competent Reich Ministers:

Chapter I *Industrial Enterprises*

Article 1

The owner of a Jewish industrial enterprise (Third Regulation under the Reich Citizenship Law of 14 June 1938, RGBl I 627) may be ordered to sell or liquidate the enterprise within a definite time. Certain conditions may be stipulated in the order.

Article 2

1. A trustee may be appointed for Jewish industrial enterprises, the owners of which have been ordered to sell or liquidate (Article 1), for the temporary continuation of the enterprise and for the completion of the sale or liquidation, especially if the owner of the enterprise has not complied with the order within the definite period and his application for an extension of time has been rejected.

2. The trustee is empowered to undertake all judicial and extrajudicial actions and legal measures, which the business of the enterprise, its liquidation or sale require. His authority replaces any legally required power of attorney.

3. The trustee must exercise the care of a responsible businessman and is subject to State control.

4. The owner of the enterprise is to pay the expenses of the trustee in connection with his work.

Article 3

1. The owner of the Jewish industrial enterprise is to be notified of the instructions specified in Articles 1 and 2.
2. In case of absence of the person affected, notification may take place through publication in the *Deutsche Reichsanzeiger* and *Preussische Staatsanzeiger*. In these cases the day of publication is to be considered the day of notification.

Article 4

As soon as the owner of the enterprise is notified of the order through which a trustee is appointed according to Article 2, he loses the right to dispose of the property for the administration of which the trustee has been appointed. He regains this right only if the appointment of the trustee expires.

Article 5

The consent for the sale according to Article 1 of the Decree based on the Decree of April 26, 1938, for the Reporting of Jewish-owned Property (RGBl I, 415) is necessary also in such cases in which the sale has been ordered; this also applies to the sale by a trustee.

Chapter II *Land and Forest Enterprises Real Estate and other Property*

Article 6

A Jew (Article 5 of the First Regulation under the Reich Citizenship Law of November 14, 1935) (RGBl I, 1333), may be ordered to sell wholly or partly his land or forest enterprise, his other land or forest properties, his other real estate or other properties within a definite time. Certain conditions may be stipulated in the order. The regulations of Article 2 to 4 are to be applied accordingly.

Article 7

1. Jews cannot legally acquire real estate and mortgages.
2. The regulations of Article 2, 4, 5 and 6 of the Decrees based on the Decree of 26 April 1938, for the Reporting of Jewish-owned Property (RGBl I, 415) are to be applied accordingly.
3. At the foreclosure of real estate, the court ordering such sale must reject bids if there is reason to suspect that the bidder is a Jew.

4. The rejection according to Paragraph 3 loses its force if the bidder protests against it immediately (Article 72, Paragraph 2 of the Law Regarding Foreclosure) and if he proves that he is not a Jew.

5. If, as is provided in (4) the bidder protests the rejection of an offer, the decision on the public adjudication must not be made before two weeks after the conclusion of the auction.

Article 8

1. Jews require authorization to dispose of real estate and mortgages. They require authorization to dispose of other property if the sale has been ordered according to Section 6 of this decree. This also applies in the case of a trustee disposing of said property.

2. The regulations of (1) also apply to contracts in which an obligation to sell is assumed.

3. The regulations of Article 1 (2) and Article 2 of the Regulation under the Decree of 26 April 1938 for the Reporting of Jewish-owned Property (RGBl I, 415) are to be applied accordingly. In disposing of immovable property, the regulations of Articles 4, 5 and 6 of said Decree are also to be applied accordingly.

4. In case of foreclosure of a piece of land, the bidder requires authorization for his bid; a bid for which the necessary authorization is not proven immediately is to be rejected. Where the Reich Law regarding Foreclosure and Forced Administration is in force, in cases of Article 81, (2) of said law, public adjudication to a person other than the highest bidder is permissible only if the person can prove that consent was given for this deal.

Article 9

1. The authorization according to Article 8 replaces those authorizations required according to the Regulation regarding Traffic in Real Estate of 26 January 1937 (RGBl I, 35), the Settlements (RGBl I, 659), the First Decree for the Execution of the Law of 17 August 1937, Regarding the Protection of the Reich Frontiers and Reprisals (RGBl I, 905) as well as according to price fixing regulations.

2. At the sale of land or forest enterprises or the granting of usufruct in such enterprises, the authorization according to Article 8 replaces the

authorization according to Article 1 of the decree based on the Decree of 26 April 1938 for the Reporting of Jewish-owned Property.

Article 10

1. If a Jew sells a piece of land which is situated within the confines of Berlin, the Reich Capital Berlin has a right of preemption for the purpose of carrying out the measures of the General Building Inspector for the rebuilding of the City.
2. Articles 12 and 13 of the Decree of 5 November 1937 Regarding the Reconstruction of the Reich Capital Berlin (RGBl I, 1162) are to be applied accordingly.
3. The right of preemption does not exist if the Reich, one of the German States, or the National Socialist Party is involved in the legal transaction as a buyer.

Chapter III *Compulsory Deposit of Securities*

Article 11

1. Within a week after this decree goes into effect, Jews must deposit all their stocks, shares in mines, bonds, and similar securities at a foreign exchange bank. New securities must be deposited within a week after their acquisition. The holder of securities belonging to a Jew may not deliver them to anyone but a foreign exchange bank for the account of the Jew.
2. Insofar as securities are already deposited at a foreign exchange bank on behalf of Jews or titles registered or coupons deposited with an administrative authority for which preferred annuities will be granted, the Jews must immediately notify the said bank, the Administration of Public Loans or the administrative authority by a written declaration of the fact that they are Jews. In case of (1) Sentence 3, this declaration must be made to the said holder.
3. The deposits and the registered titles are to be marked as Jewish.

Article 12

The disposing of securities deposited as Jewish, as well as the release of such securities require the consent of the Reich Minister of economics or an authority named by him.

Article 13

The provisions of Articles 11 and 12 do not apply to foreign Jews.

Chapter IV *Jewels, Gems and Objects of Art*

Article 14

1. Jews are forbidden to acquire, pawn or sell objects of gold, platinum or silver as well as precious stones and pearls. Such objects, except in the case of existence of attachments on behalf of a non-Jewish creditor at the time when this decree goes into effect may only be acquired by public purchasing offices, established by the Reich. The same applies to other jewels and objects of art insofar as the price of the individual objects exceeds one thousand Reichsmarks.

2. The provisions of (1) does not apply to foreign Jews.

Chapter V *General Regulations*

Article 15

1. The authorization for the sale of Jewish enterprises, Jewish real estate, or other Jewish property can be given under conditions that may consist in the payment of money by the buyer on behalf of the Reich.

2. Authorizations of the kind mentioned in Paragraph 1 may also be granted with the proviso that the Jewish seller is to receive obligations of the German Reich or registered titles against the German Reich instead of the total or partial consideration as provided for in the sales contract.

Article 16

The regulations specified for Jews in Article II also apply to industrial enterprises as well as organizations, foundations, institutions, and other enterprises which are not industrial, insofar as they are to be considered Jewish according to the Third Regulation under the Reich Citizenship Law of 14 June 1938 (RGBl I, 627).

Article 17

1. The higher administrative authorities are qualified to issue instructions based on the regulations of Article I and II insofar as the special provisions

of Paragraphs 3 and 4 are not to be applied. The higher administrative authorities are also to supervise the appointed trustees.

2. Section 6 of the Decree of 26 April 1938 determines which authorities are higher administrative authorities within the meaning of this Decree Regarding the Registration of Jewish Property (Reichsgesetzblatt I, p. 414) with the proviso that the following authorities are qualified:

In Anhalt—the Anhalt State Ministry, Department of Economics;

In Baden—the Baden Minister of Finance and Economics;

In Wuerttemberg—the Wuerttemberg Minister of Economics;

In Austria—the Reich Commissar for the Reunion of Austria with the German Reich or the authorities named by him;

In the Sudeten German territories—the Government Presidents.

3. Insofar as it is a question of agricultural property, the Oberpraesident in Prussia (Agricultural Department) and the Higher Settlement Authorities in the non-Prussian States take the place of the higher administrative authorities. Insofar as it is a question of forest property, the Higher Forest Authorities take the place of the higher administrative authorities.

* * * * *

[Articles 18 to 23 are not necessary for understanding of law]

Article 24

This decree goes into effect on the day of publication.

Berlin, 3 December 1938

Reich Minister of Economic Affairs
Walter Funk

Reich Minister of Interior
Frick

TRANSLATION OF DOCUMENT 1412-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1579

Decree relating to the payment of a fine by the Jews of German nationality
of 12 Nov. 1938.

The hostile attitude of the Jewry towards the German people and Reich, which does not even shrink back from committing cowardly murder, makes a decisive defense and a harsh punishment (expiation) necessary. I order, therefore, by virtue of the decree concerning the execution of the 4-year Plan of 18 Oct. 1936 (RGBl I, page 887) as follows:

Section 1

On the Jews of German nationality as a whole has been imposed the payment of a contribution of 1,000,000,000 Reichsmark to the German Reich.

Section 2

Provisions for the implementation are issued by the Reich-Minister of Finance in agreement with the Reich-Ministers concerned.

Berlin, 12 November 1938.

The Commissioner for the Four Year Plan
Goering
General Field-Marshal.

TRANSLATION OF DOCUMENT 1415-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1676

Police Regulation of the Appearance of Jews in Public of 28 November
1938

On the basis of the Decree of 14 November 1938 Regarding the Police Decrees of the Reich Ministers (Reichsgesetzblatt I, P. 1582), the following is decreed:

ARTICLE 1

The Government Presidents in Prussia, Bavaria, and the Sudeten German areas, the proper authorities in the remaining provinces of the old Reich, the district captains (the Mayor in Vienna) in Austria and the Reich Commissar of the Saar district may impose upon Jews, both subjects of the German State and stateless Jews (Article 5 of the First Decree of 14 November

1935, Regarding the Reich Citizen Law, Reichsgesetzblatt I, p. 1333), restrictions as to place and time to the effect that they may not enter certain districts or may not appear in public at certain times.

ARTICLE 2

Whoever wilfully or negligently violates the regulations of Article I is to be fined up to 150 Reichsmarks or punished with imprisonment up to six weeks.

ARTICLE 3

This police decree goes into effect the day after its promulgation.

Berlin, 28 November 1938

The Reich Minister of Interior

By order:

Heydrich.

TRANSLATION OF DOCUMENT 1416-PS

1935 REICHSGESETZBLATT, PART 1, PAGE 1146

The Reich Citizenship Law of 15 Sept 1935

The Reichstag has adopted unanimously, the following law, which is herewith promulgated.

Article 1

1. A subject of the State is a person, who belongs to the protective union of the German Reich, and who, therefore, has particular obligations towards the Reich.
2. The status of the subject is acquired in accordance with the provisions of the Reich- and State Law of Citizenship.

Article 2

1. A citizen of the Reich is only that subject, who is of German- or kindred blood and who, through his conduct, shows that he is both desirous and fit to serve faithfully the German people and Reich.

2. The right to citizenship is acquired by the granting of Reich citizenship papers.

3. Only the citizen of the Reich enjoys full political rights in accordance with the provision of the laws.

Article 3

The Reich Minister of the Interior in conjunction with the Deputy of the Fuehrer will issue the necessary legal and administrative decrees for the carrying out and supplementing of this law.

Nurnberg, 15 Sept 1935 at the Reichsparteitag of Liberty

The Fuehrer and Reichs Chancellor
Adolf Hitler

The Reichs Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 1417-PS

1935 REICHSGESETZBLATT, PART 1, PAGE 1333

First Regulation to the Reichs Citizenship Law of 14 Nov. 1935

On the basis of Article 3, Reichs Citizenship Law, of 15 Sept. 1935 (RGBl I, page 146) the following is ordered:

Article 1

1. Until further issue of regulations regarding citizenship papers, all subjects of German or kindred blood, who possessed the right to vote in the Reichstag elections, at the time the Citizenship Law came into effect, shall, for the time being, possess the rights of Reich citizens. The same shall be true of those whom the Reich Minister of the Interior, in conjunction with the Deputy of the Fuehrer, has given the preliminary citizenship.

2. The Reich Minister of the Interior, in conjunction with the Deputy of the Fuehrer, can withdraw the preliminary citizenship.

Article 2

1. The regulations in Article 1 are also valid for Reichs subjects of mixed, Jewish blood.

2. An individual of mixed Jewish blood, is one who descended from one or two grandparents who were racially full Jews, insofar as does not count as a Jew according to Article 5, paragraph 2. One grandparent shall be considered as full-blooded if he or she belonged to the Jewish religious community.

Article 3

Only the Reich citizen, as bearer of full political rights, exercises the right to vote in political affairs, and can hold a public office. The Reich Minister of the Interior, or any agency empowered by him, can make exceptions during the transition period, with regard to occupying public offices. The affairs of religious organizations will not be touched upon.

Article 4

1. A Jew cannot be a citizen of the Reich. He has no right to vote in political affairs, he cannot occupy a public office.

2. Jewish officials will retire as of 31 December 1935. If these officials served at the front in the World War, either for Germany or her allies, they will receive in full, until they reach the age limit, the pension to which they were entitled according to last received wages; they will, however, not advance in seniority. After reaching the age limit, their pension will be calculated anew, according to the last received salary, on the basis of which their pension was computed.

3. The affairs of religious organizations will not be touched upon.

4. The conditions of service of teachers in Jewish public schools remain unchanged, until new regulations of the Jewish school systems are issued.

Article 5

1. A Jew is anyone who descended from at least three grandparents who were racially full Jews. Article 2, par. 2, second sentence will apply.

2. A Jew is also one who descended from two full Jewish parents, if: (a) he belonged to the Jewish religious community at the time this law was issued, or who joined the community later; (b) he was married to a Jewish person,

at the time the law was issued, or married one subsequently; (c) he is the offspring from a marriage with a Jew, in the sense of Section 1, which was contracted after the Law for the protection of German blood and German honor became effective (RGBl I, page 1146 of 15 Sept 1935); (d) he is the offspring of an extramarital relationship, with a Jew, according to Section 1, and will be born out of wedlock after July 31, 1936.

Article 6

1. As far as demands are concerned for the pureness of blood as laid down in Reichs law or in orders of the NSDAP and its echelons—not covered in Article 5—they will not be touched upon.

2. Any other demands on pureness of blood, not covered in Article 5, can only be made with permission from the Reich Minister of the Interior and the Deputy of the Fuehrer. If any such demands have been made, they will be void as of 1 Jan 1936, if they have not been requested from the Reich Minister of the Interior in agreement with the Deputy of the Fuehrer. These requests must be made from the Reich Minister of the Interior.

Article 7

The Fuehrer and Reichs Chancellor can grant exemptions from the regulations laid down in the law.

Berlin, 14 November 1935

The Fuehrer and Reichs Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

The Deputy of the Fuehrer
R. Hess
(Reich Minister without Portfolio)

TRANSLATION OF DOCUMENT 1419-PS

1939 REICHSGESETZBLATT, PART I, PAGE 864

Law concerning Jewish Tenants of 30 April 1939

The Reich Government has enacted the following law which is hereby promulgated:

Article 1 Abatement of the Tenancy Protection Provisions

A Jew cannot invoke the protection of the tenancy laws where the landlord in giving notice to vacate the premises can furnish him with a certificate from the communal authorities that his shelter is assured for the time subsequent to the expiration of the tenancy. This does not apply where the landlord is also a Jew.

Article 2 Premature Dissolution of Lease

A lease may be dissolved, where only one of the parties to it is a Jew, by the other party at any time within the legal term of giving notice, notwithstanding that the lease is signed for a specified time, or that the stipulated time of giving notice is longer than that fixed by law. The landlord, however, may not give notice for vacating the premises earlier than the term agreed upon, where he does not furnish certificate from the communal authorities that the shelter of the tenant has been assured elsewhere subsequent to the vacating of the premises.

Article 3 Sub-Leases

Sub-leases may be concluded only between Jews and Jews. Permission to sublet is not necessary where the house owner is also a Jew.

Article 4 Billetting

1. Where the communal authority so requires, a Jew shall be required to receive Jews as tenants or as sub-tenants in premises which he occupies as owner or on the basis of a tenancy, or has rented from another Jew. Where he refuses to make an appropriate agreement with the new tenant, the communal authority may fix the terms of such an agreement with binding force on both parties. The amount of the rental and the compensation to the owner for the sub-lease shall be determined by the communal authority, and where it is not the controlling rent authority, in concurrence with the competent rent control authority.
2. The commune is entitled to receive fees for establishing agreements and sub-leases.

3. A tenancy, or sub-lease entered into under (1) may be dissolved by the owner or the sub-tenant only with the consent of the communal authority.

Article 5 New Tenancies

Jews may rent to others new or vacant premises only upon the consent of the communal authority. The provisions of Article 4 shall apply to such premises respectively.

Article 6 Application to Cases of Limited Ownership

Where the application of Articles 1-5 depends on the premise that the lessor is a Jew, the owner of the parcel of land, or the person entitled to its use shall be considered the lessor, notwithstanding he cannot sign a lease, or has not signed the lease because of limitations upon his power over such property.

Article 7 Mixed Marriages

Where the application of this law depends on the premise that the lessor or the lessee is a Jew, the following shall apply in cases of a mixed marriage of a lessee or a lessor:

1. Where the wife is a Jew, and where there are offsprings from the marriage, even where the marriage is no longer valid, the provisions of the law do not apply.
2. Where the husband is a Jew and there are no offspring, the provisions shall apply, no matter where the wife or the husband is the tenant or the lessor.
3. This does not apply to offsprings who are considered as Jews.

Article 8 Right of Disposal [Verfuegungsrecht]

1. Where the right of disposal of a parcel of land (property or right to use) [Nutzungsrecht] is transferred by a Jew to a non-Jew, after the effective date of this law, the provisions of this law shall apply as before the transfer, though a giving of notice to vacate before the time fixed is not permissible. This applies also to further transfers of the right of disposal.
2. The provision of (1) shall not apply to premises which the beneficial owner shall desire to occupy himself, or to premises which shall not be claimed for use of Jewish tenants by the communal authority. A certificate

from the communal authority is sufficient proof that claim to these premises has been relinquished.

Article 9 Term of Vacating Premises

1. Where a Jew is forced to vacate premises under the provisions of this law, an extension of the time limit for vacating may be granted to him only where he can furnish a certificate from the communal authorities that other shelter cannot be found for him, owing to obstacles, or where the immediate vacating of the premises cannot be undertaken without serious danger to the health of one of the persons affected. The term fixed may be extended in accordance with the same premises stated above.

2. The provision of (1) shall respectively apply insofar as the person forced to vacate has not terminated the lease, where the obligation to vacate has not been pronounced in a judgment, or where the premises for the granting of a time extension do not occur until after the judgment has been pronounced. The local court having jurisdiction over matters of vacating shall render a decision on the extension of time on the application of the person required to vacate. Where a time extension is granted and no judgment to vacate has been rendered so far, the decision shall contain also the statement that after the expiration of such extension the premises shall be vacated; this decision shall be the equivalent of an executable order of dispossession.

3. An immediate appeal against a decision refusing to grant an extension of time is permissible, even in such cases where only a decision against time extension is being protested by the tenant.

4. Until the premises are vacated, both parties to the renting agreement shall be held to observe the same rules and regulations as before the termination of the agreement.

5. The procedure under (2) shall be subject to the same court costs and lawyer's fees as the procedure for temporary stay of distraint. For the estimate of costs Article 10 (1) shall apply correspondingly.

Article 10 Order of Definition

1. Who shall be considered a Jew, shall be determined by the definition given in Article 5 of the First Regulation under the Reich Citizenship Law of 14 November 1935 (RGBl I, 1333).

2. The definition of Jewish enterprises under Article 1 of the Third Regulation under the Reich Citizenship Law of 14 June 1938 (RGBl I, 627) shall be followed except insofar as Article 9 applies. A change in the ownership of a Jewish enterprise shall be considered as a change of the right of disposal in the sense of Article 8.

Article 11 Treatment of Pending Legal Actions affecting Leases

1. Where a legal action against a Jew or the marriage partner of a Jew is pending when this law takes effect, the court may stay the proceedings on the application of the plaintiff, in order to make it possible for him to give the notice required under the provisions of this law. Where the plaintiff has given notice to terminate the lease, he may petition for the reopening of the case and change the plea from termination to dispossession. Where the legal action is terminated by the quitting of the tenant, or his acknowledgment of the obligation to vacate, the court costs shall be voided; the costs out of court shall be borne by the tenant.

2. Where the tenant retracts the legal action for lease termination, the court costs shall be voided and the costs out of court shall be borne by each of the contending parties for himself.

Article 12 General Reporting Requirement

1. The communal authority may issue orders for reports on premises rented to Jews, or on premises which may be used for the shelter of Jews in accordance with the provisions of this law.

2. Whoever shall not, either wilfully or through negligence make such obligatory report, shall be punishable by a fine up to 150 Reichsmarks or by custody.

Article 13 Claims for Indemnity

No claims shall be made for indemnity against orders issued by the communal authority in accordance with the provisions of this law.

Article 14 Exceptions; Authorization

1. The effectiveness of this law in the Ostmark and in the Sudeten German Territories shall be reserved to a later date.

2. The Reich Minister of Justice and the Reich Minister of Labor with the concurrence of the Reich Minister of the Interior shall be authorized to issue instructions for the administration and the enforcement of this law, as well as introduce the appropriate provisions in Austria and in the Sudeten German Territories.

Berlin, 30 April 1939

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reich Minister of Justice
Dr Guertner

The Reich Minister of Labor
His Deputy: Dr Krohn

The Deputy of the Fuehrer
R. Hess

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 1422-PS

1943 REICHSGESETZBLATT, PART I, PAGE 372

Thirteenth Regulation under the Reich Citizenship Law of 1 July 1943

Under Article 3 of the Reich Citizenship Law of September 15, 1935 (RGBl I, 1146) the following is ordered:

Article 1

1. Criminal actions committed by Jews shall be punished by the police.
2. The provision of the Polish penal laws of 4 December 1941 (RGBl I, 759) shall no longer apply to Jews.

Article 2

1. The property of a Jew shall be confiscated by the Reich after his death.

2. The Reich may, however, grant compensation to the non-Jewish legal heirs and persons entitled to sustenance who have their domicile in Germany.

3. This compensation may be granted in the form of a lump sum, not to exceed the ceiling price of the property which has passed into possession [Verfuegungsgewalt] of the German Reich.

4. Compensation may be granted by the transfer of titles and assets from the confiscated property. No costs shall be imposed for the legal processes necessary for such transfer.

Article 3

The Reich Minister of the Interior with the concurrence of the participating higher authorities of the Reich shall issue the legal and administrative provisions for the administration and enforcement of this regulation. In doing so he shall determine to what extent the provisions shall apply to Jewish nationals of foreign countries.

Article 4

This regulation shall take effect on the seventh day of its promulgation. In the Protectorate Bohemia and Moravia it shall apply where German administration and German courts have jurisdiction; Article 2 shall also apply to Jews who are citizens of the Protectorate.

Berlin, 1 July 1943

The Reich Minister of the Interior
Frick

Chief of the Party Chancellery
M. Bormann

Reich Minister of Finance
Count Schwerin von Krosigk

Reich Minister of Justice
Dr. Thierack

PARTIAL TRANSLATION OF DOCUMENT 1430-PS

[Excerpt of Volume 222 issued by the Reichsfuehrer of the Chief of the
Reichs Security Main Office—RSHA]

SECRET

SEIZURE OF LEADING MEN OF THE SYSTEM ERA.

[Nazi expression for the 14 years of the Weimar Republic]

June 1939

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INDEX AND STATISTICS OF ALL PERSONS SEIZED

In all the following were seized: 553 Persons

Divided thus:

Group 1. Marxists—Communists	192 Persons
Group 2. Liberalists—Pacifists	82 Persons
Group 3. Confessional Parties	76 Persons
Group 4. Right Opposition [Rechtsoppositienen]	73 Persons
Group 5. Prominent Austrians of the System Era	48 Persons
Group 6. Scientists	17 Persons
Group 7. Artists	18 Persons
Group 8. Writers—Journalists	47 Persons

STATISTICS

Of all the people seized the following are:

Jews

58—
(10%)

Free Masons	45— (9%)
Temporarily, or at the present time still in protective custody, prison or penitentiary	102— (19%)
I. In the country there are:	349— (63%)
1. Remaining in their old professions or returned to them. (Mainly State or official positions)	61— (11%)
2. People receiving pensions	109— (20%)
II. Living Abroad	204— (37%)
1. Politically prominent people working on emigration	138— (25%)
2. Distribution in the various countries:	
France	61
Switzerland	26
England	19
The States	17

PARTIAL TRANSLATION OF DOCUMENT 1435-PS

Speech of Min. Speer on 24 Febr. 1942 to the Gauleiter meeting. From Vol.
38—1

* * * * *

Gauleiter meeting 24 Febr. 1942. Munich

[Page 4]

I am grateful to fact that, also Party member Dr. Todt, in January, personally ordered the complete stoppage of work on his Reichsautobahnen as well as

released all specialists and German Workers for the railroad construction in the East and his PWs for the armament industry.

[Page 8]

I therefore proposed to the Fuehrer at the end of December that *all* my labor force, including specialists, be released for mass employment in the East.

Subsequently the remaining PW's about 10,000, were put at disposal of the armaments industry by me.

TRANSLATION OF DOCUMENT 1437-PS

1938 REICHSGESETZBLATT, PART I, PAGE 262

Second Order
supplementary to the law concerning the re-uniting of Austria
with the German Reich
Dated 18 March 1938

The following order is issued by virtue of Article III of the law concerning the re-uniting of Austria with the German Reich, dated 13 March 1938 (RGBl I, page 237).

Article 1

The Reichsfuehrer SS and Chief of German Police in the Reich Ministry of the Interior can take measures necessary for the maintenance of security and order, even beyond the legal limits otherwise set on such measures.

Article 2

The Reichsfuehrer SS and Chief of German Police in the Reich Ministry of the Interior can delegate his powers to other departments.

Article 3

The order comes into force on the date of publication. Berlin, March 18th, 1938

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 1438-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1453.

3rd. Order

supplementary to the decree of the Fuehrer and Reich Chancellor
concerning the administration of the Sudeten-German territory

Dated 22nd October 1938

The following order is issued by virtue of Section 9 of the decree of the Fuehrer and Reich Chancellor concerning the administration of the Sudeten-German territory, dated 1st. October 1938 (Reich Law Gazette, Page 1331):

Article 1

The Reichsfuehrer SS and Chief of the German Police in the Reich Ministry of the Interior can take the administrative measures necessary for the maintenance of security and order, even beyond the legal limits otherwise set on such measures.

Article 2

The Reichsfuehrer SS and Chief of German Police in the Reich Ministry of the Interior can delegate his powers to other departments.

Article 3

The order comes into force on the date of publication.

Berlin, 22nd. October 1938.

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 1439-PS

TREATY OF PROTECTION CONCLUDED BETWEEN THE GERMAN
REICH AND THE STATE OF SLOVAKIA,

March 23, 1939

[From 1939 REICHSGESETZBLATT, PART II, PAGE 606.]

Between the German Government and the Slovak Government, a treaty was signed on 18 March 1939 in Vienna and on 23 March 1939 in Berlin extending protection by the German Reich to the State of Slovakia.

The treaty became effective on March 23, 1939; its text is published hereinafter.

Berlin, March 24, 1939.

VON RIBBENTROP
Reich Minister of Foreign Affairs

*Treaty of Protection to be extended by the German Reich to the State of
Slovakia*

The German Government and the Slovak Government have agreed, after the Slovak State has placed itself under the protection of the German Reich, to regulate by treaty the consequences resulting from this fact. For this purpose the undersigned representatives of the two governments have agreed on the following provisions.

ARTICLE 1. The German Reich undertakes to protect the political independence of the State of Slovakia and the integrity of its territory.

ARTICLE 2. For the purpose of making effective the protection undertaken by the German Reich, the German armed forces shall have the right, at all times, to construct military installations and to keep them garrisoned in the strength they deem necessary, in an area delimited on its western side by the frontiers of the State of Slovakia, and on its eastern side by a line formed by the eastern rims of the Lower Carpathians, the White Carpathians and the Javornik Mountains.

The Government of Slovakia will take the necessary steps to assure that the land required for these installations shall be conveyed to the German armed forces. Furthermore, the Government of Slovakia will agree to grant exemption from custom duties for imports from the Reich for the maintenance of the German troops and the supply of military installations.

Military sovereignty will be assumed by the German armed forces in the zone described in the first paragraph of this Article.

German citizens who, on the basis of private employment contracts, are engaged in the construction of military installations in the designated zone

shall be subject to German jurisdiction.

ARTICLE 3. The Government of Slovakia will organize its military forces in close agreement with the German armed forces.

ARTICLE 4. In accordance with the relationship of protection agreed upon, the Government of Slovakia will at all times conduct its foreign affairs in close agreement with the German Government.

ARTICLE 5. This treaty shall become effective as of the date of its signature and shall be valid for a period of twenty-five years. The two governments will reach an understanding on the extension of this treaty in due time before the expiration of that period.

In witness whereof the representatives of the two parties have signed the above treaty in duplicate.

Vienna, March 18, 1939. Berlin, March 23, 1939.

For the German Government:
VON RIBBENTROP

For the Slovak Government:
DR. JOZEF TISO
DR. VOJTECH TUKA
DR. F. DURCANSKY

[Cf. Document 2793-PS, which is the secret protocol to this treaty.]

TRANSLATION OF DOCUMENT 1445-PS

Berlin, 15 June 1940.

Minutes about the Conference at the Reich Ministry of Economics on 14
June 1940, 1600 hours

Represented:

Ministry for Foreign Affairs (Ambassador Clodius)

Representative for the Four Year Plan (Director of Ministry
Gramsch)

Reichsfuehrer S.S.

Foreign Exchange Department

Clearing Institute

Reich Ministry for Economics (various representatives)

O.K.W., Wi Rue Amt (I a M3)

Subject of the Conference:

Utilization of the Belgian Dutch capital investments in South
East European corporations.

Result:

After a discussion of several hours the following regulations were considered as necessary:

a. Immediate order by the Reichskommissar for the Netherlands and the Military Commander for Belgium. Issue of a regulation for prohibition of the disposal, destruction or transfer of securities held in these countries, furthermore a compulsory registration of the owners and trustees, an embargo on bank deposits, finally the cancellation of regulations about securities which contain change of locations of firms. (Compare paragraph A of document I a M3 of 23 May 1940.)

b. In addition to this, after thorough consideration, shall be issued a legal regulation corresponding to the German law for foreign exchange regarding the disposal of foreign securities. In this law it shall be made possible to void with retroactive power change of locations of firms which took place since the beginning of the war. Provisions shall be made also for the appointment of Commissars to corporations and holding companies where after expiration of the registration date securities are hidden.

c. In addition to this it shall be put into effect in the South-East states by the Mission chiefs that, where a permit is already required for the transfer of shares, no permit of any kind shall be granted and that in regions where no permit for the sale of shares is necessary, a law for these permits shall be established, but as a matter of principle these permits shall not be granted.

d. Finally the attempt shall be made to gain an influence through the Dutch holding companies over their owned subsidiaries in view of the German

economic warfare. (Compare with paragraph B of notice I a M3 of 23 May 1940.)

e. A confiscation of securities shall be disregarded because this would be against international law.

f. The regulation drafts shall be completed by the Reich Ministry of Economics (R.W.M.) with assistance of the Labor Board of the Reich Ministry of Finance (A.A. des R.F.M.) and the Army High Command—Economy Armament Division (O.K.W. Wi Rue Amt.)

PARTIAL TRANSLATION OF DOCUMENT 1456-PS

Berlin, 20 June 1941

Chief of Agency for
Armament Economy
[Chef Wi-Rue Amt]
Colonel Jansen

MEMORANDUM

Following is the new conception of the Fuehrer, which Minister Todt has explained to me and which has been confirmed later on by Field Marshal Keitel:

Par. I

The course of the war shows that we went too far in our autarchical endeavors. It is impossible, to try and manufacture everything we lack, by synthetic procedures or other measures. For instance, it is impossible, to develop our motor fuel economy to a point where we can entirely depend on it. All these autarchical endeavors ask for a tremendous amount of manpower, and it is simply impossible to provide it. One has to choose another way. What one does not have, but needs, one must conquer. The commitment of men which is necessary one single time, will not be as great as the one that is currently needed for the running of the synthetic factories in question. The aim must also be to secure all territories, which are of special interest to us for the war economy, by conquering them.

At the time the 4-year-plan was established, I issued the statement where I made it clear that a completely autarchical economy is impossible for us,

because the need of men will be too great. Nevertheless, my solution was always to provide the necessary reserves for missing stocks resp. to secure the delivery in wartime through economic alliances.

Par. II

In a conference between Todt—Pleiger—Thomas, it was determined:

Matter: “Detailed orders to the mining industries”.

Par. III

Todt suggests the construction of heavy special machinery at Krupp’s and Skoda’s.

[Signed] THOMAS

PARTIAL TRANSLATION OF DOCUMENT 1458-PS

“THE HITLER YOUTH”

by Baldur von Schirach

Published by Koehler und Amelang, Leipzig 1934.

In place of a foreword.

My Fuehrer! It is five years now since you gave me the mission to take over leadership of the National Socialist youth. At that time you explained to my collaborators and to me the idea of this youth organization. What you preached to us at that time as aim and demand, my Fuehrer, has taken on shape here before you. You asked at that time from me and my collaborators that we should create a community of youth in which no other law should be binding for the process of reconstruction but the law of achievement.

Here, among the leaders of the Hitler youth are the sons of the poorest who exercise command over hundreds of thousands. What do the conceptions of poverty and richness mean in face of the reality of this community? In future days only those will be called poor who did not belong in their youth to this community. And further, my Fuehrer, you demanded from my collaborators and from me that we should not only unite the youth in enthusiasm, but also by discipline and order. We fought for years laboriously for this end, but today even this demand is fulfilled and proudly

we feel ourselves as a worthy part of your great National Socialist Movement.

But we were powerless regarding one of your demands. You told us then it would appear as a great success to you if we succeeded to hold together in one organization of the German one hundred thousand German youth. My Fuehrer, you forgot, that you had given this organization your name.

You asked for one hundred thousand, and it was all who came. There is one thing which is stronger than you, my Fuehrer, that is the love of the young Germany for you.

There are many gay hours in the year of the youth. This one, however, is in every year our happiest. Because more than other people, my Fuehrer, we feel to be chained to your person by our name. Your name is the happiness of the youth, your name, my Fuehrer, is our immortality.

Baldur von Schirach to the Fuehrer at the occasion of the inspection of the Hitler Youth at the Reichs party day 1936.

Chapter 1

From Union [Bund] to Nation [pp. 13-19]

That which was formerly called the German youth movement [Jugendbewegung] is dead. This statement has nothing to do with ill will.

No youth leader of our time will deny the merits of the scout [Wandervogel] Karl Fischers in his work with the German youth movement. That youth movement was as right for its own time as the Hitler Youth is right for the present. Without any doubt, many ideas and the form of life [Lebensform] of the Youth Movement helped to create the prerequisites on which the H J is building: The idea of self-leadership on the part of the youth, the declaration to fight against the standards of bourgeois society, the will to folkdom, homeland, or comradeship and many others, are akin to the feelings of the H. J. And yet: The first step into public life, the meeting which took place on 11 and 12 October 1913 on the "Hohen Meissner", remained only an impulse. The best thing about the speech on the "Hohen Meissner" were the people who listened to it [p. 14]. What today's youth is looking for in this, for the youth movement so important meeting, is the sincere will to form, to create.

We, today, see clearer than the generation of that time that the value of their youth movement was in their silent work. The greater German idea and the really valuable return to folkdom and simplicity are achievements of the youth movement which seem to us more significant than the numerous manifestoes which were handed down to us. They had the courage to let themselves be ridiculed, a courage which the National Socialist Fighter of a decade later also had to have. And we must, if we want to do justice to this youth movement, look less to the picture of their actual appearance but more to the determination with which they followed their ideals. The political reality of youth was their cleanness, their decent behaviour, their political change [Umbruch]. The Youth movement was one of the few pleasant phenomena of the Wilhelmian era and it is characteristic for that time that youth was so delightful because it declared war on its time. Few leagues [Buende] of the postwar time have a right to refer to the former youth movement. They were a true copy of its weaknesses without its virtues. They ignored the lesson of the great war. They forgot that the time of a free and easy youth movement had undergone a break by the death of two million, which imposed on them the duties of unity and masculine constraint [Gebundenheit und maennliche Zucht—p. 15]. What was right up to 1 August 1914 was wrong after 9 November 1918.

Some attempts were made to create a synthesis of youth and a militant movement [Wehrbewegung], attempts which started from the right principles. These attempts failed because their leaders were either representatives of pure militarism or at best of some lesser political ideas. Therefore, it was reserved to Adolf Hitler, the creator and supporter of an ideology [Weltanschauung], to determine the road of German youth. From the former youth movement the Hitler youth took over this or that form, out of the front of the World War it was given its content by Adolf Hitler. Its organization also has its prerequisite in the great war; its bearing is military, as was the bearing of those who came from the youth movement and who died in their gray coats in Flanders.

Just as the youth of the “Hohen Meissner” felt, the front as the more important, so do we. Between the summer of 1914 and the spring of today lies a long dreary time through which we all passed consciously or unconsciously. Even those of us who had not been born at that time know it,

every German knows it. As long as the German people will live, this time will live in their minds [p. 16].

That at that time a whole nation stood in arms, Catholics and Protestants, beggars and millionaires, peasants and clerks, merchants and laborers, and that they all obeyed one will and were only Germans, nothing but Germans, that also started us on the march. No title, no privilege of birth, not a lot of money nor anything special of any kind made a difference then.

We also want the same thing. The black years of war have passed, the spirit of the warrior remains. Again youth in Germany does not want profits, nor personal gain, but renders service and sacrifices to the community. That is the idea of the HJ: A comradeship of those Germans who do not want anything for themselves. Because they do not want anything for themselves they can do everything for their great nation. Not a youth with new rights—a generation of strict fulfillment of duty.

The postwar period showed a sad picture of party-bound youth. “Whoever controls youth, controls the future” was the slogan, given the German National club to the Communist thieves’ den. Every lobby was dealing in youth. And they were successful. Young Germany took everything for gospel truth, sold itself today to this one, tomorrow to that one till finally, disappointed and disgusted, it turned its back on all these activities. Then came the time of exclusive sports, of exclusive indulging in entertainments and living to the fullest, the time of exclusive study, [p. 17]. “Politics is nonsense,” was the reply given to party functionaries.

When Adolf Hitler began to speak this attitude was shaken. But now the satisfied citizen used the same argument which youth had found against him. He called for peace, for self-possession, for order. “Youth should not mix in politics,” because the defensive slogan of all the bourgeois parties which began to lose their young people to the Fuehrer. Anyone who at that time, 1924-25, among youth stood up for Adolf Hitler might have found that even youth leaders anxiously tried to avoid the alleged danger of influencing youth politically in the direction of National Socialism. Many comrades and I myself had to leave a militant organization [Wehrorganisation] to which I had become quite attached, because I had made a speech for Adolf Hitler there. At that time, many, like myself drew a dividing line between themselves and their friends and relatives and

exchanged fight for the new ideal for the quiet life of a well protected home.

We were not yet able to account for our conception in detail, we simply believed. And when Hitler's book, "Mein Kampf" was published it was our bible which we almost learned by heart in order to be able to answer the questions of the doubters and superior critics. Almost every one who today is leading youth in a responsible position joined us during those years [p. 18].

Again Youth was divided by politics but this time the problem was different. It was no longer a matter of national parties, of liberal and democratic ideas, it was this: Germany or Marxism, Germany or reaction. But youth also had been slightly infected with party ideas. Youth did not want to be convinced, it wanted to be overruled. Not the accuracy of the idea was questioned, but an attempt was made to prove that with such a small following it could not be successful. The National Socialist movement was regarded as a fractional party, the honest but, because of its pettiness, hopeless attempt of a man of whom it was not known if he had the necessary knowledge, the essential education. A bricklayer from Vienna, a man without college education, a self-taught person should liberate Germany? That was at best very doubtful.

As there are old people who are young, there are also among the youth some who are old. I have met them in the universities, in the youth movement, everywhere. The people who are old in their hearts are like a pestilence to a healthy people. They represent the tenacious and embittered resistance against every new idea. But youth is an attitude. The paralyzed Chamberlain whose lips are forming words which only his wife can read and transcribe represents eternal youth as much as the old Goethe in his last days. His Faust, the Ninth Symphony and the will of Adolf Hitler are eternal youth and know neither time nor death [p. 19].

Yet there are men who are born old and are living their lives as if they were 70 years old. During the years of our fight we overcame those people and we fight them again and again. They are the living dead. Their coldness kills every slight stir of a new life. Only the collective force of passionate youth is able to destroy them.

Let us do away with the old! Only eternal youth shall have its home *in our Germany*.

Chapter 2

The development of the Hitler Youth movement [p. 20, par. 1].

The idea for the foundation of a National Socialist youth organization came from the Fuehrer himself, while the name Hitler Youth was originated by Julius Streicher, who also named the Brown House. The name of the man who deserves the credit for having set up the first groups of the H. J. is Kurt Gruber.

At the time of the beginning of the H. J. Kurt Gruber had just graduated from Law School. He devoted himself with great energy to his new task. From a small cellar in Plenen which served as Reichs office, we first organized a number of Saxonian H J groups, energetically assisted by the present Reich Governor in Saxony, Martin Mutschinanon.

* * * * *

Here I would also like to mention that since 1928, Alfred Rosenberg also took a special interest in the National Socialist Youth. At that time we were trying to come to an understanding with the leagues. Alfred Rosenberg negotiated with the Eagles and Falcons, the “bensen”, and other leagues without fundamental results. I realized at that time that an understanding with the leaders of the leagues would never be possible [p. 23] and devoted myself to the principle of the totality of the Hitler Youth, which in the year 1933 cost all those leagues their independent existence.

When, in 1930, the Fuehrer himself took over the high command of the SA [Storm Troops] and Ernst Roehm started his new office as Chief of Staff, the National Socialist Youth organizations were centralized in the SA. Kurt Gruber resigned. His nervous state was such that he was physically unable to continue his work. On 30 October 1931, the Fuehrer appointed me as Reichs youth leader of the NSDAP with the rank of a Lt. General [Gruppenfuehrer] in the SA. My old comrade, Dr. von Reuteln was given the leadership of the students’ league and also the leadership of the HJ, under my command. Now the organization of the HJ was thoroughly overhanded, which was necessary because Kurt Gruber had not been able to fully devote himself to his tasks as a leader especially during the last

months of his activities. Dr. von Reuteln continued his work as a consultant for economic questions in the Executive Office [Reichsleitung] of the NSDAP but still found time for official trips and for night work at his desk to which the HJ owes the tightening of the threads of its organization which had become rather loose. At that time I had to go temporarily to Kufstein where I stayed with friends in a little mountain inn in order to avoid a prison term of three months [p. 24]. The previous year I had spoken against the Versailles dictate from the steps of Cologne University, violating a government order and, to begin with, was locked up in the Cologne prison, the so-called “Klingelpuetz”, which then often housed Dr. Robert Ley, at that time regional leader of Koeln-Aachen and another leading party comrade, Tom Winkelkemper. There I stayed for 8 days till my case came up in court and was then sentenced to 3 months in prison without a time of probation according to the emergency decree by the Reichs President. I was very lucky to be set free after the sentence was passed. With great joy I still think of the dear Cologne party comrades who, headed by Dr. Ley stood in a mass before the gates of the prison when I was released. It was high time, I flew to Munich. The following day I took the train to Graz and was able to give to the Graz Student meeting the directive which was needed by the Fuehrer. The National Socialist Student League [Studentenbund] won its decisive victory. A National Socialist was unanimously elected leader of the German student body [Studentenschaft].

Since that time around 12 months had gone by and I had reason to fear that I would be torn away any day now from my organizational work with the National Socialist Youth. My co-workers came to Kufstein for the most important conferences and I frequently crossed the border at night, raced through [p. 25] Germany in our “Nurnberg”, announced a meeting in Chemnitz while I made a speech in Berlin, and thus I escaped my well-deserved “vacation” in Cologne. Then came the time of Groener. One evening the Fuehrer came to my apartment in Munich and informed me that he intended to appoint me Reichsleader of the NSDAP the following day, and to take the National Socialist Youth organizations out of the SA. Since prohibition of the SA was threatening we might have avoided the simultaneous prohibition of the HJ. The Fuehrer bases the necessity of such a measure on the principle for which he stood from the beginning, and which I have used in this book as a motto: “Youth must be led by Youth”.

By some accident the prompt announcement of my appointment was held up. Soon after this conversation the SA and with it the HJ were forbidden by Mr. Groener. Through Reuteln I raised some half-hearted objections with Groener, referring to the fact that at the time of prohibition I was no longer a member of the SA, but, of course, without results. There was no other way out but to continue work underground. Thus originated the National Socialist Youth movement, the NSJB [NS Jugendbewegung] without uniform, without insignia. At that time we traveled through Germany dressed like bandits. Blue sailor caps, white shirts [p. 26] and a brown sweater or some kind of civilian coat. But we recognized each other everywhere. At this time the HJ gained its best human material. Whoever came to us during this illegal time, boy or girl, risked everything. Thousands upon thousands were thrown out of their schools or became unemployed—but they clung the more tenaciously to our flag. It was a great time and as strange as it might seem we were never happier than at that time when we lived in constant danger. With pistols in our pockets we drove through the Ruhr district while stones came flying after us. We jumped every time we heard a bell ring because we lived in constant fear of arrests and expected our houses to be searched. I have hardly one piece of furniture in my possession that was not attached.

One day even my “Nurnberg” was confiscated. That was going too far. They could have all the wardrobes and chests as far as I was concerned, but the car to us meant freedom, mobility, our work. The Fuehrer was then at Obersalzberg. I called him up and out of his own pocket he gave me the money to pay the printer who had the car attached. I breathed freely again, we were able to continue our work.

At about this time I had a conference with Dr. von Reuteln, as a result of which I also took over the leadership of the Students’ League and the HJ as [p. 27] such. This came about in the most friendly manner. Reuteln wanted to get free anyhow to devote himself to his great tasks in the economic-political field, I myself wanted to exchange my somewhat formal responsibility for the HJ into a real one. We parted as the comrades which we still are today. Between us never existed any fundamental difference on essential points and The National Socialist Youth owes a deep gratitude to the man who outlined their road in a severe and straightforward manner.

The membership of the National Socialist Youth organisation had grown to about 35,000. The number of applications was mounting day by day. We requested more office space from Reichs Treasurer Schwarz and he created generous working possibilities for us by putting at our disposal the entire top floor of the hotel “Der Reichsadler” in Munich. For the time being we had some space.

With the moving into the hotel “Reichsadler” an unpleasant tension began to make itself felt which existed between the youth and Gregor Strasser, who had installed the offices of the organizational department in the same building. In my apartment on Koenigenstrasse I was lucky enough to be able to express my apprehensions about Strasser to the Fuehrer. Otherwise I never discussed these things with anybody, with the exception of Julius Streicher. But I received [p. 28] reports from all parts of the Reich through the youth organization. I knew what course Strasser was taking, who, at that time, was at the heights of his power. I knew of his connections and, from the beginning on, I was instinctively convinced of his unreliability in regard to his character. Gregor Strasser was an enemy of the National Socialist Youth out of the same instinct. It was, after all, a Hitler-Youth and not a Strasser Youth.

The greatest worry of the years of struggle of 1930/31 was the lack of money. Very often we did not have the few gallons of gasoline which we needed for traveling. Another drawback was that none of us was, at that time, a member of the Reichstag and, therefore, had no free transportation. The reason was that we had not reached the necessary age of 25. Our compensation for expenses was just sufficient to cover our bare living expenses. By writing and lecturing I was able to make enough money to pay my own fare. Despite all the difficulties we were able to make all the necessary trips. The success of my staff was based on its mobility. Good leadership is not characterized by answering letters on time but by its contact with the fighting community. Thus the Fuehrer had brought us up and he preached again and again not to lose myself in paper work—one of the greatest and wisest teachings which I received from him.

* * * * *

The HJ [Hitler Youth] used the winter of 1932/33 for many demonstrations [p. 31]. We drove through all of Germany and called the youth to the HJ. I

will never forget a Fuehrer appeal in the beginning of January in Berlin, at the start of which I was searched for weapons by the police. Twenty days later we were in power. The most magnificent success was the conquest of the formerly Marxist industrial workers youth of the German West. Here my co-worker Hartmann Lauterbacher achieved great things.

I will never forget the hour when we were sitting in the office of the district Ruhr-Niederrhein during an intermission between demonstrations on 30 January and received the news of Adolf Hitler's appointment to the post of Reichs Chancellor. That same night I spoke in Herford in Westphalia. We all felt saved. The policemen [Schupos] who, on the previous day, were still persecuting us, greeted us with raised hands. It was one great fraternization. I spoke in two meetings, and going from one to the other I caught such a cold that shivering with fever I had [p. 32] to go home the next day, but in all my fever phantasies one thing remained vivid, that which we had won on that day: Hitler in power, Hitler in power. As soon as I had recovered I went to Berlin via Wuerzburg, Nurnberg where we had 2 demonstrations. Now the problem was to apply the victory of the movement to the entire youth. Our cabinet ministers were overburdened with their new tasks and were working day and night. We could not wait till they would find time to solve the youth question by their own initiative. Therefore, we had to act ourselves. My co-workers met in my Munich apartment and advised me to occupy the Reichs committee [Reichsausschuss] of the German Youth Leagues. I commissioned General [Obergebietsfuehrer] Nabersberg with 50 members of the Berlin HJ to make a surprise raid on the Reichs Committee in the Alsenstrasse early the next morning. This was done and at noon the press had the report that the HJ had taken over the leadership of the Reichs Committee. The Reichs Committee was headed by an excellent man, General Vogt. As much as a surprise the turn of events was to him at first as quickly did this Prussian officer adjust himself to the new situation. I took his job away from him but he understood that this was a necessity and that only from the HJ the great unification of German Youth would be possible, on which, after all, he had worked all his life. General Vogt did not step aside [p. 33] and was not offended, but remained intensely and truly interested in the objectives of the HJ and its aims. His book, "The German Boy-Service" [Der deutsche Jungendienst] is one of the most valuable books of German youth literature. And we are all proud of the fact that

General Vogt today belongs to the Reichs Youth leadership and wears the Gold Honor insignia of the HJ.

In the Reichs Committee [Reichsausschuss] we got a tremendous amount of material. All at once we were able to determine the strength of all the German youth leagues and to summon the influential personalities in these youth leagues. From this point I recognized the necessity of coming to grips with the Greater German Union. I appointed my co-worker Karl Nabersberg as my representative on the Reichs Committee and traveled through Germany in order to take a stand against The Greater German Union in many demonstrations. In the meantime I gained control over the Reichs league for German youth hostels [Reichsverband fuer deutsche Jugendherbergen] in a manner similar to the one employed with the Reichs Committee; with its leadership I commissioned a young merchant from Hamburg and bearer of the Golden Honor Insignia [Goldenes Ehrenzerchen] of the NSDAP, Johannes Rodatz.

The Greater German Youth League [Grossdeutscher Jugendbund] was a combination of various leagues and organizations which came under the leadership of the deserving chief of staff of the fleet, Admiral von Trotha. This admirable man, who had served our Fatherland in war and peace with unselfish [p. 34] devotion fundamentally had the same ideas and plans for the Greater German League as I had for the Hitler Youth. That the Greater German League [Grossdeutscher Bund] could not fulfill these tasks was not the fault of the "Admiral", as he was respectfully called by his Youth, the difficulties lay in the period itself. The Greater German League was not a political union, that is, leagues which partly were opposed to National Socialism were to be found in the Greater German League as well as organizations which ideologically were in agreement with the NSDAP, without, however, drawing any conclusions from it. The unification of youth could never be achieved by the external centralization of partly opposed leagues, but only by a philosophy of life which had to be accepted by the young generation as a new law for life. Only the Hitler Youth represented this idea.

The differences between the Greater German League and the HJ grew from day to day. Friction, even frequently actual fighting, were day-by-day occurrences. This state of affairs could not be settled by compromise. We could not be satisfied with incorporation of the Greater German League as,

always the incorporation of a youth league into the HJ for us was not even discussed. As all of us once, and that during difficult times, gave our unconditional pledge to Adolf Hitler, especially today every young German must be able to do so [p. 35]. The so-called and often praised individual life [“Eigenleben”] of such leagues is, in the last analysis, nothing but another form of “joiner tendency”. “Either all or nothing” is the principle of National Socialism.

The position which I gave to the HJ was not strong enough to overcome the last quaint introspection [Eigenbroetelei] within the youth. Nobody saw that as clearly as the Fuehrer who was convinced of the necessity of giving to the leader of the HJ that backing by the state which he needed for his work. When we discussed these things I asked the Fuehrer to refrain from attachment to one specific ministry, a wish which was readily recognized by the Fuehrer. The Fuehrer himself stated that a ministry cannot exist without bureaucracy, but bureaucracy is death to youth. He intended to create an agency which in its freedom should have the possibility to work. Thus, in the Reichs Chancellory, in the middle of June 1933, he appointed me Youth leader of the German Reich [Jugend fuehrer des deutschen Reiches] by clasp hands. Reich Minister Dr. Frick, as their competent minister for youth questions, drew up the respective document. I was given authority to appoint representatives of the states [Landesbeauftragte] to carry out my instructions and I appointed the district leaders to these positions in all the states in execution of my right.

The first thing I did was to dissolve the Great German league. Since I headed all [p. 36] German youth organizations and I had the right to decide on their leadership, I did not hesitate for a moment to take this step, which was for the HJ the elimination of an unbearable state of affairs. The leader of the Great German Bund, Admiral von Trotha, set an example of rare human greatness to German youth when he, after the incorporation of all leagues and organizations had been completed, one day made an end to all the fights and quarrels of the past years and, after his appointment to Honorary Leader [Ehrenfuehrer] of the Navy Hitler Youth, devoted himself unconditionally to the service in Adolf Hitler’s youth movement. Only to great personalities it is given to put youth to shame and at the same time obligate by a noble example. At that time many a German boy will have asked himself if he would be able to act in the same way in a similar

situation and honestly answered with a “no”. From an educational point of view it was the most important deed that the Admiral, after his organization had been smashed, again adjusted himself to the tasks of the new generation out of his military sense of duty and his love for youth. When, today, the blue columns of our Navy Hitler Youth pass by their honorary leader, their eyes are not only shining with enthusiasm for the Admiral who once at a grave hour won eternal honor for the German Reich, but they also know in their hearts that this man is part of [p. 37] themselves. Following the incorporation of the “Stahlhelm” into the SA we were able to carry out the incorporation of the “Scharnhorst”, the youth organization of the “Stahlhelm”. But the “Scharnhorst” had to give up it’s individual existence when it joined the HJ. The individual “Scharnhorst” boys were detailed to the local branches of the HJ. This step would never have been possible without the initiative of Reichs Minister Saldte who was completely convinced of the necessity to create a large youth organization, which, also according to his opinion, could only be the HJ. That the many small and unimportant groups and leagues were incorporated goes without saying and took place without any resistance. The Marxist youth as well as all political youth organization I prohibited after the occupation of the Reichs Committee. The one million members of the HJ which we had on 30 January 1933 had now grown to a round three million. Only the two large confessional groups, the Protestant and the Catholic youth, were opposed to us. They already had lost a great number of their members to us but they still remained powerful factors in the life of German youth. Again and again I called together the district leaders [Gebietsfuehrer] of the HJ in order to discuss this subject. Again and again these true and tenacious fighters announced: We won’t stop now. From the last boy to the Reichs Youth leader we agreed that the HJ never should and would give in as regards this question.

Chapter 3

Hitler Youth and Confessional Youth [p. 38]

Towards the end of 1933 discussion about the eventual incorporation of the evangelical youth took place between the newly appointed Reichs Bishop Ludwig Mueller and myself. With great satisfaction we from the HJ could ascertain that the Reichs Bishop was fundamentally ready to lead the members of the evangelical youth leagues into the HJ, a point of view

which differed somewhat from that of the chairman of the Young Men's Protestant Work [Evangelisches Jungmaennerwerk], Dr. Stange. Dr. Stange actually tried to interfere with this new development against the will of the majority of his followers, but without success. And in December 1933 the Reichs Bishop and myself were able to inform the Fuehrer that incorporation of the protestant youth into the HJ had become a reality.

Through the agreement with the Reichs Bishop the HJ believes to have shown the way by which a later understanding with the Catholic Youth Leagues also would be possible. By this agreement evangelical youth organizations in the old sense, that is leagues, which overlap the activities of the HJ are no longer in existence. As spiritual communities the Protestant [p. 39] groups continue to live in their innate field, namely that of the Protestant creed. The HJ guarantees their protestant members a certain evening each week for their confessional, religious activities. The agreement with the Reichs Bishop follows verbatim:

1. The Protestant Youth Work [Evangelisches Jugendwerk] recognizes the unified state political education of German youth by the National Socialist State and the HJ [Hitler Youth] as representatives of the philosophy of the State.

The youth of the Protestant Youth Work below 18 years of age is to be incorporated into the Hitler Youth and its subordinated branches. Anyone within this age group who does not become a member of the HJ, from now on shall not be a member of the Protestant Youth Work.

2. Education in regard to open air sports (including gymnastics and sports) and in regard to state politics, up to 18 years of age, shall take place only within the HJ.

3. All members of the Protestant Youth Work shall wear the official uniform of the Hitler Youth according to their membership in the HJ.

According to this agreement the Protestant youth was incorporated into the Hitler Youth. With very few exceptions the young followers of the Reichs Bishop were glad to be freed from the inner struggle of the past months [p. 40]. The Reichs Bishop acted like a true spiritual advisor of this young community when he, by this agreement, opened for them the doors to the HJ and thus the doors to the people and the State.

The confessional youth league [Konfessioneller Jugendbund] has no right of existence in our time. While the young German in the period of National Socialism is drawn to the community and thereby the attitude and way of living of the HJ, sometimes some dark pang of conscience holds him back to give in to this urge, to follow really his innermost thoughts. Particularly the catholic youth societies led their members into moral conflicts for which an educator of the youth cannot account. By promises for a life beyond they tried to hold the youth back from the disinterested surrender to the state. As if the all powerful would condemn this service on the people and could see anything objectionable in it. Because the youth does not make any difference between poor and rich, Protestant and Catholic, I am accused of being a "heathen" who does not believe in anything and instills the seed of the antichrist in the hearts of the unsuspecting youth. And yet, considering the confessional composition of our people, a real community of our youth can only exist if confessional questions are not discussed in this community, special confessional leagues are not tolerated. The Christian doctrine is attacked in the HJ as little as any [p. 41] other doctrine; the HJ does not care for class or confession but only for the Germanism. In this sense my slogan is to be understood; "The HJ is neither Protestant nor Catholic, it is German".

The church proclaims its right for a religious education. An uncontested and uncontestable right. The state, on the other side, demands through the HJ to exercise the ideological, political education and here the state has a claim which is as valid as that of the church. In fact a number of Catholic youth leaders are not concerned with this religious education. They occupy their youth organizations with tasks, accomplishment of which falls into the domain of the HJ. Home evenings (social gatherings), hikes, camps, games, sports, and training do not need a confessionally directed leadership, and yet it is exercised stubbornly by a certain circle of catholic youth leaders. Instead of bringing the German youth together where it can be united and should be united, these so called educators and youth leaders try to present even the cooking on hikes as a religious matter and think the young boy's soul could be harmed if he saw that outside of the Catholic youth organization other people lived. The fact that since National Socialism seized the power, about 1½ millions of youths from the camp of the Catholic youth organizations joined the HJ manifests that the spirit of the

followers is better than that of the leadership and shows how in the long run confessional, bourgeois thinking must capitulate before German socialism.

A short while after the National Socialist revolution the beaten political parties undertook another feeble attempt to keep at least the youth somehow. The attempt failed; the youth of the bourgeois parties pledged itself to the socialism of Adolf Hitler. The youth leagues followed this example. Even the Protestant youth recognized the demand of the time and followed in faithful fulfillment of their duties the voice of their conscience. But on the spot where once the proud Zentrum stood that we could see work hand in hand with the Marxist traitors of the people in the Reichstag, there stands today a group of the Catholic youth organizations and opposes the “We” of our community with the “I” of their societies.

Who wants Germany without compromise is an arch-enemy of any confessional principle in a state organization. Who would retreat here a hand's width and be he a minister of the new Germany, would betray the tragic fight of the German people for its freedom. May the German people recognize the lesson of the last thousand years and for the first time proclaim an unconditional negation of all separating forces.

There is no reason why there should not be found a solution in the question of the youth education to the satisfaction of the church as well as of the HJ, so much the more as the HJ does not restrict in any way the religious activities of its members. Neither attendance at the Sunday services nor participation in other church gatherings is being made difficult for the Catholic Hitler boys on the part of the leadership of the HJ. If, on the occasion of some big youth demonstrations which don't take place too often, it was occasionally difficult for technical reasons to make it possible for the young people to attend church services it is by no means an indication of a sometimes alleged “anti-religious” attitude of the HJ. I even am of the opinion that religious meetings and arrangements in particular religious youth leagues are not at all in contradiction to the totalitarian claim of the HJ. Every effort which aims to deepen and intensify religious life must not only be welcomed by a responsible youth leadership but also be furthered. I believe to have shown by the treaty with the Reich bishop of the Protestant church that the HJ is willing to concede necessary space to the religious youth education. However, it must be demanded that under the cover-name of religious education the youth should in no way be influenced

politically. The experiences of the past taught us that the confessional youth organizations do not occupy themselves exclusively with religious questions. The National Socialist movement as pillar of the state cannot be blamed if by reason of past experiences it makes security arrangements which should ban all dangers for the future.

If the church visits of the youths do not correspond the expectations of the churches, it is not the fault of the youth. The real cause of this attitude of the youth is to be looked for in the want of comprehension with which some catholic youth leaders and unfortunately too many priests oppose the education of the HJ. They believe not to be able to part with the sport education of the catholic youth and overlook that the religious education itself suffers by the fight over the competences.

Many Catholic Germans look with disgust at the mean fight which certain catholic youth leaders lead today for their existence and hundreds of thousands of catholic Hitler boys don't have any appreciation of it that there should exist outside the HJ sport a catholic sport and catholic calisthenics. As faithful Catholics they stick to the church but they cannot see why this church demands all of a sudden territory which has nothing to do with religious education.

No reasonable man in Germany can give a reason for the necessity of the existence of catholic youth organizations in their present form (catholic boys scouts, "German Jugendkraft", etc.) and many important leaders of the catholic church have long been of the opinion that these organizations have no right of existence in the National Socialist state. The catholic youth itself—this I maintain by reason of the continuous going over, even of whole groups to the HJ—wants to cooperate in the National Socialist state. And not as confessional specialist league but as HJ.

Catholics and Protestants have the same rights in Germany. This is not only valid for their relationship to the state but especially for their relationship to the National Socialist movement. If, however, the catholic youth is advised not to join the HJ, then this part of the German youth is deprived of a right which today every other young member of the community possesses. "Give to the emperor what is the emperor's and to God what is God's". This profound wisdom of Christ shows us even today the possibility to terminate the tension between HJ and confessional youth organization. If the HJ

leader works exclusively according to the instructions given to him and only cares for the ideological (that is to say the physical, mental and moral) education of the youth in his charge in Adolf Hitler's sense and the priest just as exclusively for the religious, moral education within direction of the church and is nothing but a German servant of God, all prerequisites of a peaceful and confident work are given.

For the solution of the catholic youth question in Germany there is but one way, which is agreeable to both parties; The Catholic youth organization restricts itself to the spiritual realm and gives up the expensive and unnecessary administration and leadership apparatus of the general presidents and secretaries [General praesidenten und sekretaere]. If the priest of every locality cares spiritually for the youth as part of his community, the church has sufficient occasion to exercise its religious education. The thought, to appoint Protestant and Catholic so called field chaplains or HJ chaplain is against our comradeship and therefore cannot be accepted. If a celebration of the National Socialist youth is held by a catholic and protestant clergyman, every boy and every girl feels the difference of the confession as a wall between them. Where a short while ago two young Germans marched shoulder to shoulder goes then a Catholic and a Protestant and with them the sorrow of the German history.

Unity and community then becomes disunity and cleavage. Then the two millions of the great war would really have died in vain and so would the dead of the Feldherrnhalle [p. 47]. And those twenty one who as pioneers of the new unity were hunted to death by the Marxists and "Zentrum" leaders won't belong to us any more.

But we are spirit of their spirit. The idea for which they died is also the idea of our life. Their fight is our destiny [pp. 64-65].

Self-leadership of youth is not to be understood from the bureaucratic point of view that every one at the age of 30 must resign from leadership. The principle: "Youth must be led by youth" is to be understood according to its meaning and not literally. Therefore, I principally do not apply any age limit. All set patterns are deadening.

Germany is the country of the youth movement. Youth movement and youth self-leadership of youth are inseparable. It is not the purpose of the youth movement to give to young people a possibility to satisfy any power

instincts. On the contrary, youth leadership means to be more severe with oneself than with the following. The HJ is a school for leaders. A leader in the true sense of the word is always the creative, the disciplined one.

Therefore, the way to leadership shall be made difficult for a boy. If he is destined for it he will overcome the difficulties. But never shall there be another key to the gate of leadership than achievement. It is a matter of indifference who holds the key, the son of a worker, the son of a peasant or the son of a scientist. Only one thing is decisive: He must be of the aristocracy of achievement, of the only aristocracy which is known to the new youth [pp. 68-69].

A single will leads the HJ. The power of authority of the HJ leaders, that of the smallest as well as of the largest unit is absolute, i.e., he has the unlimited right to give orders because he bears the unlimited responsibility. He knows that the responsibility of the higher one comes before that of the lower ones. Therefore, he submits silently to the instructions of his leaders even if they are directed against him personally. To him as well as to all young Germany the history of the HJ is proof of the fact that a youth community also can only be successful if it unconditionally recognized the authority of leadership. The success of National Socialism is a success of discipline. The structure of National Socialist Youth is built on the foundation of discipline and obedience. The teachings of the time of persecution apply even more to the period of victory and power. The small boy [Jungvolkjunge] who joins the movement of Adolf Hitler at the age of ten learns to subordinate his own little will to the laws which, strictly followed, are building states and making nations happy but which, when violated, result in the loss of freedom, in the collapse of folkdom. In the course of the following years he learns that discipline and subordination are not inventions of despotism that they have not been created by a few with a lust for power in order to secure their personal positions but that they are the prerequisites for the life of the nation and thereby for his own life.

The great value of the organization for the youth lies in the following. In the circle of boys of his own age he gains, partly while playing, a knowledge which must be employed, especially to the life of the adult. And while he is being trained for discipline in a manner corresponding to his emotional life and his capacity to learn, he will see that his blind obedience affords the

possibility of success to his group [Gefogenschaft]. What is acquired in young years in the struggle with small tasks later serves the state in its big tasks.

Chapter 4

Work Abroad [pp. 154-162]

The Reich Youth leadership does not pursue foreign politics.

The Fuehrer created the Office of Foreign Affairs for the foreign activities of the National Socialism. What is done within the Foreign Department of the Reich Youth leadership never means an overcrossing of Party offices and State offices. The HJ deals with the youth and not with big politics. And even where the youth contacts the youth of other nations to exchange young people for study trips or camps, contact is made outside the political sphere. It is the purely human agreement of youth among themselves which in this way the Reich Youth leadership attempts to achieve.

During the last year the most important meetings between German and foreign youth were:

- The visit of the HJ in Hungary.

- The counter visit of the Levente youth in Germany.

- The German-English Youth Camp near Hamburg.

- The trip of Department Leader Nabersberg to England and Turkey.

- A lecture of Karl Nabersberg in Paris on the occasion of a meeting of the "Sohlbergkreis".

- The visit of a Finnish Study Group [Studiengesellschaft].

Also on the occasion of the visits of foreign youth leaders (i.e. Greek, Chinese and Japanese) to the Reich Youth leadership, contacts were made with foreign youth organizations.

Every nation has the interest that its youth has a political outlook reaching as far as possible. Especially the National Socialist Germany is strongly interested that her youth knows and respects other nations as early as possible. The better the youth of Europe understands each other, the nicer for the future. A basic principle of the youth exchange is: no propaganda.

Hitler boys who go abroad do not travel as propagandists of National Socialism; their task is not to teach, but to learn. They should see the beauty of the foreign landscape and explore the national characteristic of the host-country. I believe in a cooperation of the European youth at the basis of an agreement; its only program point should be: to know each other. It would be an utopian idea to believe that such a cooperation would improve the world. Probably the world would not improve but the people could become juster. In this connection we welcome the international exchange of pupils and only desire that it might be extended beyond the circle of pupils to the youth of all professions. The activity of the Foreign Department of the Reich Youth leadership is not only concerned with the relationship of the HJ to the youth of other nations, although this field is most clearly in evidence. It cares, in close cooperation with the League for Germanism Abroad [Volksbund für das Deutschtum im Ausland], for the youth of the German settlements abroad, in Europe and South America, and awakens in the Reich German Youth the understanding for the brothers and sisters abroad.

In a special main branch, the Central Office for Volksdeutsche Youth Work [Mittelstelle für Volksdeutsche Jugendarbeit], which took over the main tasks of the Central Office of German Youth in Europe, which in 1933 was attached to the organization of the Reich Youth leadership, the following fields are being worked on:

1. Borderland trips and trips abroad of the entire German youth.
2. "Volksdeutscher" labor service.
3. Schooling in the Reich of German youths living abroad.

The borderland trips and trips abroad offer the possibility to give the young Germans abroad the contact with the new Germany by Reich German Youth hiking groups in form of performances (folk songs, folk dances and plays performed by laymen). At the same time, a selection by these youth hiking groups should be made in the German settlements abroad among those who appear suitable as youth leaders and therefore are to be called to the Reich for schooling.

All borderland trips and trips abroad of youth hiking groups and individual youth hikers have to be authorized by the hike office of the central office. Thereby the hikes of the "wild hikers" should finally be prevented which

were not always to the good of the German reputation abroad. On the other side the hikes should be arranged according to a certain plan, so that they can be directed into certain sections where a visit seems really appropriate.

A special task of the central office is the so-called Volksdeutsche Labor Service which has the task of a systematic schooling of German Youth leaders living abroad. In four specially suited labor camps the sense of the labor service is clearly demonstrated to the Germans living abroad by special schooling methods, in order that they can apply what they learned in their home organization.

Another branch of the Foreign Department has the task to combine the Reich German boys and girls inasmuch as is possible in youth groups in which National Socialist ideas are conveyed to them. To this effect the groups receive books and youth literature free of charge and especially such which establish the spiritual contact with the Reich German HJ. The work program provides the establishment of schooling camps of several weeks duration for German youths from abroad who above all should convey to the future leaders the experience of the present fatherland. Through our own press service, the Foreign Department tries to protect the rights of the German youth abroad in the Reich German Press. The daily appearing press service "Space of the East" [Ostraum] brings short news about the movement of the German youth organizations abroad and the German school abroad for Lithuania, Letland, Esthonia, Poland, Czechoslovakia, Austria, Rumania, and Yugoslavia. Another paper "The School Review for Germans Abroad" [Die Auslandsdeutsche Schulschau] is delivered to a great number of German schools of higher learning. Furthermore the branch participates in the youth periodicals published by the Reich Youth leadership or in cooperation with it, and furnishes the German daily newspapers with articles of a principle nature about questions of the youth abroad, as well as the German newspapers abroad with news from the Reich and the German groups beyond the frontier. The branch "Press" in the Foreign Department is thereby the rallying point for the news on the movement of the German Youth abroad and the schools in the Reich for the Germans abroad.

The branch "School" of the Foreign Department is of special importance. Its task is essentially to communicate to the HJ sufficient knowledge about the Germandom of the borders abroad and of foreign politics. To carry

through the schooling in the units, borderland and foreign lecturers were appointed who on central instruction of the chief lecturer had to carry out the schooling in the individual units. The first instruction week for lecturers abroad on a systematic execution of the training program, was held from 4 to 10 December 1933 in Potsdam. The training program uses the following aides:

1. A regularly appearing schooling-letter with a publication of 65,000
2. Literature on the subject in general which is distributed to the lecturers abroad
3. The periodical "People and Reich"
4. Contributions in newspapers and periodicals

The training of the co-workers staff is to be extended by a number of additional training weeks and by supply of training material and establishment of competent libraries in the Oberbanne. Furthermore, special attention for the localities less than 100 km from the frontier is intended.

The colonial branch keeps awake the memory of the cultural, scientific, economic and military achievements in the former German colonial territory within the organizations under the order of the Reich Youth leadership. Beyond this, the German youth shall be informed about the importance of colonial possession for the supply of the home economy with colonial products and raw materials. It will be taken into consideration concerning this schooling that the guiding line of the German population policy which aims at the utilization of the space in the East will not be violated. In the historical schooling the "colonial-guilt-lie" and the thereby intended defamation of the German people—also in regard before the colored nations—will be emphasized and it will be pointed out that equal terms for the German people are only obtained when these parts of the Versailles shame dictate are also rectified.

Special colonial lecturers who are assigned to the headquarters of the HJ and BDM down to the Bann and Unterbann will attend to the carrying out of these tasks. These lecturers also will be prepared for the solution of their tasks in courses in the Reich Leader School in Potsdam and within the districts and subdistricts. The literature at present on hand about colonial questions which, however, is only for limited use for the schooling within

the HJ since it was written under different political conditions, will be put at the disposal as work material. New material, in accordance with timely requirements, is in preparation and will serve in the future as basis for all work. The youth should be informed every three months by a “schooling-letter” about everything worth while in the field of the colonial question which should come down to the sub-leaders of the whole HJ and BDM. In this direction, friendly cooperation with the biggest society, the German Colonial Society, takes place; material is exchanged. As much as the promised shipping space is available, members of the HJ (colonial lecturers) should be sent to the former German colonial territories so that they can learn at the spot the present-day conditions and give the Germans there a sign of our attachment. Supported by what they have seen and lived, they should after their return work here to enlighten the HJ in the country.

It would lead us astray to go into the details of the activities of the Foreign Department. Generalobergebietsfuehrer Karl Nabersberg devoted much energy to these duties and gave up even the leadership of the staff of the Reich Youth leadership with which he was charged for a time in favor of this task which had his particular interest. The thought that every Hitler boy and every BDM girl regardless in which part of the world they are, form a great comradeship and march together in spite of local separation in one direction and live and work in the same spirit was realized by the Foreign Department of the Reich Youth leadership.

TRANSLATION OF DOCUMENT 1462-PS

1939 REICHSGESETZBLATT, PART I, PAGE 709

First execution order to the law for the HITLER YOUTH (General Regulation) of 25 March 1939

Based on Article 4 of the law for the Hitler Youth of 1 December 1936 (Reichsgesetzblatt I, page 993), I Order:

Article 1

1. The youth leader of the German Reich is solely competent for all missions of the physical, ideological and moral education of the entire German youth of the Reich area outside of the house of the parents and the school. The competence of the Reichminister for science, education and

public orientation remains unaffected as far as private education and social education are concerned.

2. The following problems are transferred from the sphere of action of the Reich and Prussian Minister for science, education and public orientation to the sphere of action of the youth leader of the German Reich:

All affairs of youth care, the youth hostel system as well as of the accident and liability insurance in the interest of youth care.

The question of competence for the year's service on farms [LandJahr] is left to a special regulation.

3. The youth leader of the German Reich with the Hitler youth is subordinated to the Financial authority of the NSDAP.

Article 2

1. The Cadre Hitler Youth [Stamm HJ] exists within the Hitler Youth.

2. Whoever was a member of the Hitler Youth since 20 April 1938, is a member of the Cadre Hitler Youth.

3. Juveniles, who have had at least one year of good conduct in the Hitler Youth, and fulfill the conditions of ancestry for the acceptance into the NSDAP, may be accepted into the Cadre Hitler Youth. More specific regulations will be issued by the Reich Youth leader of the NSDAP in agreement with the Fuehrer's deputy.

4. The acceptance into the Cadre Hitler Youth of persons over 18 years of age, who are to be used in the leadership and administration of the Hitler Youth, can take place immediately.

5. Only the Cadre Hitler Youth is an affiliate of the NSDAP.

6. Membership in the Cadre Hitler Youth is voluntary.

Article 3

The Reichminister of the Interior will appoint the national agencies, subordinated to the youth leader of the German Reich, in agreement with Fuehrer's deputy and the Reichminister of Finance.

Article 4

The members of the Hitler Youth are entitled, and are obliged, if ordered, to wear the prescribed uniform.

Berlin, 25 March 1939

The Fuehrer and Reichs Chancellor
Adolf Hitler

The Deputy of the Fuehrer
R. Hess

The Reichsminister and Chief of Reich Chancellery
Dr. Lammers

TRANSLATION OF DOCUMENT 1463-PS

Diary of the Navy 1944

The Commander in Chief of the German Navy, Admiral Doenitz.

“This war is a naval war and it will be decided on the High Seas.”—
Admiral Doenitz.

Admiral Karl Doenitz was born in Berlin-Gruenau on 16 September 1891, the son of an Engineer. He attended school in Berlin, Jena and Weimar. He entered the Imperial German Navy as a cadet on 1 April 1910 and was promoted to Lieutenant on 27 September 1913. As an ensign he was ordered to the light cruiser “Breslau”. There he witnessed the outbreak of the first world war when he was in the Mediterranean sea. His experiences while on this cruiser which later became the “Midilli” of the Turkish Navy he described in a little book published during the last war while he was a lieutenant (jg). The title of the book was “The cruises of the ‘Breslau’ in the Black Sea”. Doenitz who served as watch officer and adjutant received the Iron Cross 2nd class on 7 January 1915. For a time he was air observer near the Dardanelles and subsequently in charge of a naval aviation squadron near San Stefano. On 5 May 1916 he received the Iron Cross first class and in the fall of that year returned to Germany.

For a long time it had been the young officer’s burning desire to become an officer on a submarine. This wish of the young lieutenant (jg) was fulfilled when he was ordered to submarine school 2 December 1916. This proved

decisive in the life of this officer who indefatigably worked for the development of his weapon. Doenitz became at first watch officer on the Submarine "U-39" whose commanding officer, Lt (sg) Forstmann was one of the most successful submarine officers of the last war. Inspired with great daring, Forstmann was an officer who knew how to train aggressive and responsible commanders. Doenitz always remembers with special gratitude the decisive influence of his former teacher. After an artillery course Doenitz on 1 March 1918 became Commander of "UC-25" and later "UB-68". With these boats he carried on successful warfare against merchant shipping in the Atlantic and the Mediterranean.

Lt. (jg) Doenitz placed himself at the disposal of the German Navy, dishonorably mutilated by the Versailles dictate, and aided in its reconstruction. He became a staff officer; he took over, during the attempted coup d'état of Kaff, the command of the torpedo boat V5 which was usable but without a commander. For three years then he was commander of a torpedo boat, and became afterwards officer in charge of torpedo inspection and for another three years filled a responsible position with the Naval High Command. After one year's sea duty as navigation officer on the light cruiser "Nympe" Doenitz became chief of the first squadron of Torpedo boats newly built for the German Navy. In the fall of 1928 Doenitz was promoted to lieutenant commander. While Doenitz already earlier was making plans for the reconstruction of the German U-boat fleet his new position for the first time, gave him the opportunity to put down his experiences and suggestions in the form of memoranda written for his superiors and other influential personalities. During this time, the organizational plans and other prerequisites were already formulated which made possible the subsequent rapid construction of new German U-boats. This was followed by another period during which he attended service schools and undertook sea duty. On one of his trips he went to India for several months. In 1934, he became Commanding officer of the Light cruiser "Emden" which at that time undertook a cruise in the Indian Ocean.

When in 1935 Doenitz returned from this trip the Commander in Chief of the German Navy during a tour of inspection in Wilhelmshaven told him to his surprise that he was appointed Chief of the "Weddigen" U-boat flotilla. From this date, 27 September 1935, started the ceaseless construction of the new U-boats. At first two 250-ton boats were built. Doenitz lately promoted

to Commander, devoted himself to his new duties with passionate zeal and after untiring day and night work he was able in a very short time to present an extensive plan for the reorganization of U-boat warfare. Again Doenitz donned his working clothes to drill and train his young officers, personally and with pitiless pace. He succeeded in closing a gap of 17 years, during which no training took place, with a few months of tireless work. Day after day, night after night, week after week he stood on the bridge of one of his U-boats indoctrinating the men in his charge, by hard thorough training, with the spirit of the men who manned the submarines during World War I. At the same time he collected new technical experience and new improvements in the development of different submarine types. Doenitz knew no let-down for himself. Regardless of weather, season or time of day he went with the boats, instructed and trained their crews, and led them through thousands of miles in the Baltic and North Sea * * *

One must recall, that after World War I a skillfully directed British propaganda campaign created a world-wide general impression that the submarine as a naval weapon was a thing of the past since superior defensive measures had been instituted, namely the convoy system, and that in future naval engagements, submarines would be of only secondary importance. Commander Doenitz' opinion was diametrically opposite; "The massing of boats in convoy must be answered by massing of U-boats to attack the convoy." This maxim became the basis of his whole training program. The wolf pack tactics which later became so famous were originated and tested at a time of complete peace. The cruises in the Baltic and North Sea were followed by the first Atlantic maneuvers * * * Doenitz surrendered personal command over the U-Boat only after the number of flotillas increased, in order to devote himself to higher tasks of leadership. After the outbreak of the war, about 4 years after the first U-boats were commissioned, the new weapon was in excellent condition and carried the stamp of a personality which was our ideal combination between commander and front-line officer. Doenitz on 28 January 1939 was promoted Commodore of U-boats and entered the war with but 40 of his elite boats. They attacked immediately within the first day. And at once this new weapon was a brilliant success. On 18 September 1939, Doenitz received a cluster to the Iron Cross 1st class, for his success in the Baltic during the Polish campaign. When the position of "leader of U-boats" was changed into that of "Commander" Doenitz was promoted to Rear Admiral

on 1 October 1939. * * * Prien went to Scapa Flow. There was a fighter. He knew it and said over and over: "I was only the paw of the Big Lion. What I did, I could do because I was his disciple." All the "old guard" thought the same way and so did the commanding officers who returned to their bases with flags of victory flying. The crew likewise was inspired by the old man. With unparalleled enthusiasm and matter of factness, they undertook every dangerous mission against the life-line of the enemy who controlled the sea, a control which they undermined, and brought again the terror of the U-boats to the Seven Seas to the surprise of the whole world. In an endless chain, the U-boat Commanders reported success after success to their chief. In spite of the fact that his duties took on unmeasurable proportions since the beginning of the huge U-boat construction program the Chief was what he always was and always will be, leader and inspiration to all the forces under him. A clear regard for the essential and the decisive, power to act and aggressiveness are his main characteristics. In spite of all his duties he never lost touch with his men and he showed a masterly understanding in adjusting himself to the changing fortunes of war.

Doenitz was in charge of the Naval operations Command Post situated on land. It is one of the strange and difficult characteristics of this form of Naval warfare that the Commander cannot be with his men, cannot make decisions on the spot but is forced to study the situation and give orders thousands of miles away from the actual location. The very strong ties between Doenitz and his men proved themselves in this case. They never felt, and that was said many times in mess halls and on enemy missions, that they had to make any of their difficult decisions alone. Tiny, brief answers following rendered radio reports proved that the Chief day and night was monitoring painstakingly their reports just as if he was with them, as if he stood on the bridge beside them * * *

On 21 April 1940 Doenitz received the Knight's Cross to the Iron Cross, a reward of the Fuehrer, which put the unique accomplishments of this battle-tested officer in its true light. On September 1940, he was promoted to Vice Admiral, a year and a half later on 14 March 1942 he was promoted to Admiral, a reward for the heavy damages inflicted on the new enemy, the U.S.A. On 30 January 1943 Doenitz received the Supreme Command of the Germany Navy from the Fuehrer and concurrently was promoted to Gross Admiral.

For the huge successes of the U-boats Doenitz received on 7 April 1943 in recognition of his unique achievements in U-boat warfare from the Fuehrer personally as the 223rd Soldier of the Wehrmacht, the Oak Wreath to the Knights Cross of the Iron Cross.

Even though the field of activity of the C in C of the German Navy has experienced a tremendous extent on his personal leadership in U-boat warfare and the personal care for his submarines, sailors, and for all units of the German Navy will also in the future remain the supreme law of all his action. Confidence merits confidence. The navy of Greater Germany will prove that it is worthy of its C in C.

TRANSLATION OF DOCUMENT 1472-PS

[CABLE]

Date 16 December 1942

URGENT—SECRET

TEXT:

In accordance with the increased recruitment of manpower into the concentration camps, which was ordered by 30 January 1943, the following may be applied in the Jewish sector.

1. Total amount: 45,000 Jews.
2. Start of transportation 11 January 1943.
3. Completion of transportation 31 January 1943.

The Reichsbahn [German State owned railway] cannot make available special trains for the evacuation during the period 15 December 1942/10 January 1943 on account of the increased leave traffic of the Armed Forces.

4. Breakdown: The 45,000 Jews consist of 30,000 Jews from the Bialystock district, 10,000 Jews from the Theresienstadt Ghetto. Among those are 5,000 able-bodied Jews who, so far, have been utilized in the Ghetto for necessary minor jobs, and 5,000 Jews who are generally incapacitated; also Jews over sixty years of age, in order to reduce in the interest of the extension of the Ghetto the excessive number of inmates to slightly below 48,000. I request special permission for this. As heretofore, only the Jews

who have no special connections and relations, and who have no important decorations, have been earmarked for deportation; 3,000 Jews from the occupied areas in the Netherlands, 2,000 Jews from Berlin which equals 45,000. In the total of 45,000 are included physically handicapped [underlined] and others (old Jews and children). In making a distribution for this purpose, at least 10,000 to 15,000 laborers [underlined], will be available when the Jews arriving at Auschwitz are assigned.

The Chief of the security police and the SD
Dept. IV, Div. B, Sec. 4, a-2093/42 g (391)

By Order of

MUELLER

SS Gruppenfuehrer

TRANSLATION OF DOCUMENT 1481-PS

3.2.28 [in pencil], Fi 6/25 1.

Secret State Police
Munich State Police District Office
B. No. 52401/37 11 B.

Munich, 20 January, 1938.

Decree

By virtue of par. 1 of the Reich President's order for the protection of people and state of the 28.2.33 (RGBl 1 p. 83) the following decree is issued:

The Guild of the Virgin Mary [die Marianische Jungfrauenkongregation] of the Bavarian diocese, including the diocese of Speyer, together with its branches and associations and the Societies of Our Lady [Jungfrauenvereinen] attached to it, is by police order to be dissolved and forbidden with immediate effect.

The property belonging to the dissolved Guild is to be confiscated by the police. Not only is property in cash to be confiscated, but also any stock on hand and other objects of value. All further activity is forbidden the dissolved Guilds, particularly the foundation of any organization intended as a successor or as a cover. Incorporation as a body into other women's

societies is also to be looked on as a forbidden continuation of activity. Infringement against the above prohibition will be punished according to para. 4 of the order of 28.2.1933.

Reasons

In a parish in Nurnberg the Guild of the Virgin Mary, going outside the sphere of the work proper to it, has occupied itself for years, to a most far reaching degree, with arrangements of a worldly and popular sporting character. Furthermore the president of the society has continuously supplied the Guild of the Virgin Mary, from its committee-members down to the women in charge of its groups, with seditious material, which served for seditious discussions. Furthermore the Guild of the Virgin Mary, particularly its leading circles, were trained and mobilized for purely political and seditious tasks.

The whole behaviour of the Guild of the Virgin Mary had therefore to be objected to from various points of view. It could be repeatedly observed that the Guild engaged in purely worldly affairs, such as community games, and then in the holding of "Social Evenings".

This proves incontestably that the Guild of the Virgin Mary was active to a very great degree in a manner uneclesiastical and therefore worldly. By so doing it has left the sphere of its proper religious task and entered a sphere of activity to which it has no statutory right. The organization has therefore to be dissolved and forbidden.

Signed. Beutel.

certified copy—[signature illegible]

TRANSLATION OF DOCUMENT 1482-PS

Berlin, 20 July 1935

The Reich and Prussian Minister of the Interior
III P 3701/5

Secret
Special Delivery Letter!

[Stamp]
The Reich Governor in Bavaria 22 July 1935—one
enclosure

Sign: Fi 6 July 22
[apparently signature, illegible]

SUBJECT: Confessional youth organizations.

A direct endangering of public security and order has resulted from the recently observed intensive activity of confessional, particularly Catholic youth organizations, which have in numerous cases considerably overstepped the limits imposed on them by political development and therefore in many places led to clashes with the organizations which stand behind the government, particularly the Hitler youth.

I therefore respectfully request that, on the basis of paragraph 1 of the decree of 28 February 1933, the confessional youth organizations be forbidden to wear uniforms or uniform-like clothing and to assemble publicly with pennants and flags and that the wearing of insignia and the wearing of uniform costume as a substitute for uniforms as well as any outdoor sport activity be prohibited.

I respectfully request that I be immediately informed of your disposition (of the matter).

Signed: Dr. FRICK
certified: [signature illegible]
Ministerial Chancellery Secretary
[stamp] settled 1 August

To the provincial governments (for Prussia: to the deputy chief and inspector of the Prussian secret state police)

Munich M

[signature illegible]

Copies

To Reich Minister Kerrl, Reich Minister for Science, Education, and Public Training, and the Reich governors with a request for cognizance.

TRANSLATION OF DOCUMENT 1498-PS

The Reich and Prussian Minister of the Interior, VI 7770/3014

Berlin NW 40, Koenigsplatz 6, 6 Nov. 1934
[telephone numbers, cable address]

[Stamp]

Reich Governor of Bavaria 7 Nov 1934——enclosures
GG 1/7 .m.

SPECIAL DELIVERY LETTER

To the State Governments for Prussia:

- a. The Prime Minister—office of Secret State Police.
- b. The Minister of Science, Art and Public Education.
- c. The provincial Presidents and District Presidents.

For Information

To The State Secretary and Head of the Praesidium Chancellery.

The State Secretary and Head of the Reich Chancellery.

The Minister of Popular Enlightenment and Propaganda.

Reich Governors (of the States).

Executive Board of the NSDAP, Division for the Cultural peace
in Berlin.

The Reich Bishop in *Berlin-Charlottenburg*.

Subject: Evangelical Church Controversy.

Lately there is an increase in cases in which ill-timed reports regarding the Evangelical Church reach the public. I therefore forbid—till further notice—all publications in the daily newspapers, in pamphlets or handbills, which are concerned with questions of the Evangelical Church, except only official announcements of the Church Government of the Reich. My edicts of 17 August 1934—III 3033/3014—and of 1 November 1934—III 7570/3014—are to that extent abrogated.

[signed] FRICK

TRANSLATION OF DOCUMENT 1514-PS

Command of Mil. District VI

Dept. of Prisoners of War V Az. K 3 Nr. 1417/44 secret.

Soest, Westphalia, 27 July 1944

Phone: 1455/140.

SECRET

Reference:

1. OKW Az. 2f 24. 19b Chief of PW/general (Id) Nr. 1998/44 secret of 16.7.44
2. OKW Az. 2f 24. 19b AWA/PW general I (VIb) Nr. 2339/42 secret of 27.8.42
3. Mil. District VI, dept PW's Az. K 8/a Nr. 751/42 secret of 4.9.42
4. Mil. District VI, dept PW's V Az. K 18/VI Nr. 1948/44 of 11.7.44
5. OKW Az. 2f 24. 11 Chief of PW/general (VIa) Nr. 979/43 secret of 19.4.43—reported by decree Mil. District VI, dept PW's Nr. 1015/43 secret.
6. Mil. District VI, dept PW's Az. K 8 R Nr. 314/42 secret of 7.4.42
7. Mil. District VI, dept PW's V, Az. K 11 Nr. 1125/44 secret of 11.7.44

Subject: Delivery of prisoners of war to the secret state police.

Enclosed is the decree I referred to.

The following, summarizing ruling is issued with respect to the delivery to the secret state police:

1. *a.* According to the decrees 2 and 3, the commander of the camp has to deliver Soviet prisoners of war in case of punishable offenses to the secret state police and to dismiss them from imprisonment of war, if he does not

believe that his disciplinary functions suffice to prescribe punishment for violations committed. Report of the facts is not necessary.

b. Recaptured Soviet prisoners of war have to be delivered first to the nearest police office in order to ascertain whether punishable offenses have been committed during the escape. The dismissal from imprisonment of war takes place upon suggestion of the police office, Section A 6 of the decree referred to in No. 4 regarding the contraction of all regulations on the Arbeitseinsatz prisoners of war who have been recaptured and refuse to work.

c. Recaptured Soviet officers who are prisoners of war, have to be delivered to the *Gestapo* and to be dismissed from imprisonment of war. (Section C 1 of the decree referred to under 4 and under 5).

d. Soviet officer prisoners of war, who refuse to work and those who distinguish themselves as agitators and have an unfavorable influence upon the willingness to work of the other prisoners of war have to be delivered by the responsible Stalag to the nearest state police office and to be dismissed from imprisonment of war. (Section C 1 of the decree referred to under 4 and 5).

e. Soviet enlisted prisoners of war, refusing to work who are ringleaders and those who distinguish themselves as agitators and therefore have an unfavorable influence upon the willingness to work of the other prisoners of war, have to be delivered to the nearest state police office and to be dismissed from imprisonment of war. (Section C 2 of the decree, referred to in 4).

f. Soviet prisoners of war (enlisted men and officers), who with respect to their political attitude have been sifted out by the special purpose command [Einsatzkommando] of the security police and the security service, have to be delivered upon request by the camp commander to the special purpose command and to be dismissed from imprisonment of war. (Decree referred to in 6).

g. Polish prisoners of war have to be delivered if acts of sabotage are proven, to the nearest state police office and to be dismissed from imprisonment of war. The decision rests with the camp commander. Report of the deed is not necessary. (Decree referred to under 7).

2. A report on the delivery and dismissal from imprisonment of war in the cases mentioned under #1 of this decree, to the Mil. District Command VI, dept of prisoners of war, is not necessary.

3. Prisoners of war from all nations have to be delivered to the secret state police and to be dismissed from imprisonment of war, if a special order of the OKW or of the Mil. District Command VI, department for Prisoners of War, is issued.

4. Prisoners of war under suspicion of participating in illegal organizations and resistance movements have to be left upon request to the Gestapo for the purpose of interrogation. They remain prisoners of war and have to be treated as such. The delivery to the Gestapo and their dismissal from imprisonment of war has to take place only by order of the OKW or of the Mil. District Command VI, dept of prisoners of war.

In case of French and Belgian prisoners of war and interned Italian military personnel, approval of Mil. District command VI, dept. of prisoners of war, has to be obtained—if necessary by phone—before delivery to the Gestapo for the purposes of interrogation.

By order of the Mil. District Commander

The commander of prisoners of war

The deputy

[signed] FLEMM

1 enclosure.

Distribution:

Oflag VI/A, B, C, D.6,

Stalag VI/A, C, D, F, G, J.326 (VI/K)

Construction work battalion of PW (BAB) 6, 7, 12, 17, 18, 26,
35, 39, 45, 46, 106.

PW Roof repair battalion VI, XVI

PW Glass installation Battalion VI, XVI

District commander rear area of PW/Z.V. Staff/Counter
intelligence officer

TRANSLATION OF DOCUMENT 1517-PS

TOP SECRET

MEMORANDUM

About Discussions [of Rosenberg] with the Fuehrer on 14 December 1941

To begin with, I [Rosenberg] asked the Fuehrer about my speech in the Sportpalast and referred to several points which seemed to call for further discussion. The Fuehrer was of the opinion that the speech was given prior to the declaration of war by Japan and therefore under different suppositions, but in view of this, still desires to think over several points. It probably would not be appropriate if I were to officially say that the provinces in the East were to remain under Germany. I said thereupon that I, too, had considered this point, that one can probably only say that the Eastern Provinces [Ostland] will remain under German protection. The Fuehrer was of the opinion, only to go so far that the provinces never would come under communism and now from the German side appear as secured.

I remarked on the Jewish question that the comments about the New York Jews must perhaps be changed somewhat after the conclusion (of matters in the East). I took the standpoint, not to speak of the extermination [Ausrottung] of the Jews. The Fuehrer affirmed this and said that they had burdened the war upon us and that they had brought the destruction; it is no wonder if the results would strike them first.

The Fuehrer further said that he did not deem it necessary to order forth the other nations to contribute as yet, since they can produce therein a legal claim for later. He does that from time to time in single negotiations. I told him that I, too, had written that down as a question. I would comply with these instructions to edit more carefully the corresponding paragraphs in my speech. The Fuehrer agreed throughout that I had touched upon the Asiatic conflict.

Following, I laid before the Fuehrer the outline of a religious tolerance decree, to which the Fuehrer consented after careful consideration.

Then I came to talk about the lecture of Professor Schuessler, to whom Dr. Dietrich had given instructions to evaluate the political testament of Peter the Great in an address. Dr. Dietrich had not previously informed me thereon. Upon my indication that this testament is a forgery out of the 18th Century, the Fuehrer thought that the authenticity was contradicted by a German scholar in the 19th Century. Thereupon I pointed out that this so-called testament was written in Polish circles and that it then was converted and changed by Napoleon in the political strife. However, I would make an accurate check. I asked the Fuehrer for a general rule that if the Fuehrer had specific desires over the press to have Dr. Dietrich inform me of these to insure a regulated working arrangement.

The Fuehrer replied to the question by the military commanders in the occupied Eastern territories about the marriage of persons belonging to the Armed Forces with inhabitants of these territories that no marriages will be permitted during this war. After the war a relaxation could be introduced to agree with the political limits and blood relationship.

I then spoke about the relation with Reich Commissioner Koch and told the Fuehrer that Koch had, through various declarations, created the impression among the officers of the High Command of the Armed Forces (OKW) as if he dealt directly with the Fuehrer and otherwise decided to rule without Berlin. Similar utterances that he made the law were made to collaborators and he also told me once that he regarded himself as coordinated. I made it clear to him that here exists a distinct official relation. I spoke with him regarding the above and I hope that clarification over the cooperation will result. I have only the wish that the Fuehrer no longer will receive Koch alone but only in my presence. The Fuehrer agreed immediately.

Then I told the Fuehrer of the visit by General Kitzinger, who said that he was assigned with the thrashing of the harvest. For this purpose he was promised several divisions which have not yet arrived. Moreover, they took from him other units. The Fuehrer said that he would see to it that a change will be enforced and that divisions will be given him. On the conditions of the captured prisoners Kitzinger remarked that because of malnutrition [Entkraeftung] in the camps in his territory, some 2500 prisoners die daily. Anyhow, they are already unable to consume good food and one must count on it that not very many will remain. Aside from that, the manpower in the country is large enough—the land even partly over-populated.

I further asked the Fuehrer if he had scrutinized the memoir on the establishment of Turkish legions. What I surmise, since the High Command of the Armed Forces (OKW) issued an order, is that beside the Turkish-Aserbeidschander Legion, other Caucasian legions will be set up also. The Fuehrer affirmed the question, and I once more referred to the danger of a Panturanian movement. I reported further about the petition of the Crimean tartars from Constantinople and the request to visit the prison camps and to inspect the countrymen. I told the Fuehrer that I had denied this request which he absolutely affirmed. The only thing one could do would be to segregate the 250 captured Crimean tartars with respect to Turkey, and to handle them accordingly. In conclusion, the Fuehrer once more emphasized that he later wished to have the Crimea cleaned out. I told him that I, too, had given much consideration to the renaming of the towns and thought to rename Simferopol to Gotenburg and Sevastopol to Theodorichhafen—this according to the instructions of the Fuehrer himself.

Then I suggested a boundary settlement between Nikolajew and Transnistria to the Fuehrer, because the way things are, the Rumanians can look into all the shipbuilding installations; just an insignificant regulation will prevent this. I had also made this suggestion to General Field Marshal Keitel. The Fuehrer looked at the map and agreed to such a boundary regulation.

Finally, I told the Fuehrer that I had in mind to go to Riga in January and to visit other territories during the next year. I begged the Fuehrer to allow me to obtain several coaches for a special train. I have already started dealings over the procurement of such coaches in Holland. The Fuehrer thought this all right and agreed with my wish.

Thereupon I gave the Fuehrer an aforementioned letter of a Japanese scholar over the Japanese and National Socialistic Philosophy of Life as related to Christianity, over which we talked for a long time. The Fuehrer took the memoir with him, which immediately engrossed him.

Berlin, 16 December 1941

R/H

TRANSLATION OF DOCUMENT 1519-PS

The National Socialist German Workers Party Party Chancellery

Fuehrer Headquarters
30.9.1941

The Director of the Party Chancellery
[Stamp]
Gau Training Office, Franken
No. 2131
Received 8 Oct. 41
Sent

CONFIDENTIAL

Circular No. 21/41 Confidential
(not for publication)

Subject: Treatment of Soviet Prisoners of War

For your information please find enclosed a regulation of the Supreme Command of the Armed Forces, dated 8.9.1941 on the treatment of Soviet prisoners of War. This regulation is *confidential*!

Heil Hitler!
sgd. Bormann

One appendix overleaf

Certified:

Distribution:

Gauleiters
Kreisleiters

Supreme Command of the Armed Forces
Az. 2f 24.11 General Armed Forces Dept./P.W. (I)
No. 3058 41 Confidential

Berlin—Schoeneberg, 8.9.1941

CONFIDENTIAL

Subject: Regulation for the treatment of Soviet prisoners of war.

Reference:

1. OKW/P.W. 26/41 Most Secret dated 16.6.1941 (only for the P.W. commandants in Service Command I and the General Government).
2. OKW/P.W. 2144/41 Secret dated 26.6.1941.
3. OKW/P.W. 2401/41 Secret dated 17.7.1941.
4. OKW/P.W. 15 No. 5015/41 dated 2.8.1941

Appended is a collation of and/or additions to the orders already issued in various directives on the treatment of Soviet prisoners of war. The directives, already issued by Supreme Command General Headquarters for the operational areas, have been considered. By this order any orders on this subject become invalid so long as no direct reference is made to them in the appendix.

Chief of the Supreme Command of the Armed Forces

By order of

Reinecke

Appendix to Diary—No. 3058/41
Confidential dated 8.9.1941.

CONFIDENTIAL

Regulation for the treatment of Soviet PWs in all prisoner of war camps.

I. Treatment of Soviet PWs in general.

Bolshevism is the deadly enemy of Nazi Germany. For the first time, the German soldier is encountering not only a military opponent, but one, at the

same time, steeped in the ideas of Bolshevism so pernicious to the people. The fight against National-Socialism has become part of his system. He conducts it by every means in his power: Sabotage, seditious propaganda, incendiarism, murder. The bolshevist soldier has therefore lost all claim to treatment as an honourable opponent in accordance with the Geneva Convention.

It is therefore in keeping with the respect and honour of the German Armed Forces, that *every German soldier* should hold himself severely aloof when dealing with Soviet prisoners of war. Treatment must be cool but correct. Any indulgence or even friendly disposition is to be punished very severely. The feeling of pride and superiority of the German soldier ordered to guard Soviet PWs, must at all times be visible even in public.

The order for ruthless and energetic action must be given at the slightest indication of insubordination, especially in the case of Bolshevist fanatics. Insubordination, active or passive resistance must *immediately* be broken completely by force of arms (bayonets, butts and firearms). The regulations on the use of arms in the Armed Forces can be applied only to a limited extent as these regulations apply under the assumption that *conditions will be generally peaceful*. With Soviet PWs it is already necessary for reasons of discipline, that the use of arms should be severe. Anyone carrying out an order, who does not use his weapons or does so with insufficient energy, is punishable.

PWs attempting to escape are to be fired on without previous challenge. No warning shot must ever be fired. The regulations already made, in particular H. Dv. 38/11, page 13, etc., are invalid with regard to that point. On the other hand, no arbitrary action is permitted. PWs who are obedient and willing to work are to be treated correctly. However, caution and mistrust must never lapse when dealing with PWs. The use of arms against PWs is, as a rule, legal.

Any contact between PWs and the civilian population must be prevented. This applies particularly to the occupied area. The segregation of higher-ranking PWs (Officers and NCOs), which has already been effected by the field forces, must be strictly maintained in the area of the Armed Forces Commanders and within the Reich. Any communication between higher-ranking personnel and the men, even by signs, must be rendered impossible.

Camp-police must be formed from suitable Soviet PWs in the camp and in the larger fatigue details to be employed in carrying out the orders and upholding the discipline of the commandant. Within the wire fence, the camp police may be armed with sticks, whips or other similar weapons to enable them to carry out their duties effectively. The use of this kind of weapon by *German soldiers* is absolutely forbidden. With the offer of better food, treatment and accommodation, an executive body should be created in the camp; this would decrease the work of the German guard personnel.

II. Treatment of members of racial groups.

In accordance with orders issued to date, PWs have already been divided up, according to their race, in the “Home Organisation” [heimatorganisation] (General Government and Service Command I) as well as in the camps within the Reich. The following racial groups are concerned:

Racial Germans
Ukrainians
White Russians
Poles
Lithuanians
Latvians
Esthonians
Rumanians
Finns
Georgians.

In so far as it has been impossible for special reasons to carry out this separation, it must now be done at once. This applies, in particular, to PWs newly captured in the Area of the Armed Forces Commanders.

Members of the following racial groups must be speedily sent home:

Racial Germans
Ukrainians, White Ruthenians
Latvians
Esthonians
Rumanians

Finns

Lithuanians

Special orders will be issued on the manner in which this release is to be effected.

Should the attitude of individual members of these racial groups arouse the suspicion that they could be detrimental or dangerous to the German people or to National-Socialism, they are to be debarred from release and will be dealt with in accordance with section III.

III. *Segregation of civilians and politically undesirable PWs taken during the Eastern campaign.*

1. *Intentions.* The Armed Forces must rid themselves of all those elements among the PWs which must be considered as the driving forces of bolshevism. The special conditions of the Eastern Campaign demand *special measures* which can be carried out on their own responsibility, free from bureaucratic and administrative influences.

2. *The way to reach the appointed goal.* A. Apart from directing PWs into camps according to their nationality (see section II) PWs (also members of racial groups) and any civilians in the camps are to be divided as follows:

- a. those politically undesirable
- b. those politically harmless
- c. those especially reliable in the political sense (who could be employed in the reconstruction work in the occupied areas).

B. Whereas the work of separation according to nationality, rank, etc., is undertaken by the camp organisation itself, the Reichsfuehrer-SS has assigned *Special purpose units of the Security Police and the Security Service* for the work of classifying PWs according to their political opinions. They are immediately subordinate to the Chief of the Security Police and the SD, have received special training for their special duties and carry out the measures and inquiries, within the framework of the camp organisation, according to regulations which they have already received from the Chief of Security Police and the SD.

There must be the closest cooperation between the commandants, especially their defense officers, and the special purpose units.

3. *Further treatment of groups segregated in accordance with No. 2. A. Military personnel.* The special purpose unit of the Security Police and SD decides what persons are to be segregated as “politically undesirable elements”. Should individuals, considered as suspicious, later prove themselves to be *unsuspicious*, they should be sent back to the camp with the other PWs. Requests made by the special purpose units for other persons to be handed over, must be complied with. Officers will very often be liable for segregation as “political undesirables”. Even soldiers captured in civilian clothes, count as military personnel.

B. *Civilians.* If they are harmless, efforts must be made to send them back quickly to the occupied area. The competent Armed Forces Commander (and/or the commander in the army area to the rear) decides the time this is to be brought about, with the approval of the competent office of the Chief of the Security Police and SD. The condition for this return is the assurance of employment in some work in their hometown or in specially created Labour-formations. The Armed Forces Commander (and/or the commander in the army area to the rear) is responsible for guarding them on the return journey. If possible, the camp will provide an escort unit. Politically undesirable civilians are to be treated as under A.

C. *Reliable persons* are to be separated from politically undesirable persons and directed into some other work of camp administration.

(Special attention must be paid to racial Germans: it is, however quite possible that, even among these, there may be elements that must be considered as “politically undesirable”.)

Should the reliable persons seem especially suited for employment in the reconstruction work in the occupied area, a request for release made by the special purpose unit of the Security Police and SD can be opposed only if there is an interest in any specific individual from the point of view of defense.

IV. *Employment of Soviet PWs.*

1. *General.* Soviet PWs may be employed only in squads completely separate from civilians and PWs of other nationalities. (Employment in

groups). The only places of work which can be considered are these where the PWs can work under the *constant* supervision of the guard personnel. The separation from civilians and PWs of other nationalities must be enforced, not only in the billets, but also at the place of work. It must be stressed, in this connection, that the guard personnel must not be prevented from immediate use of their weapons out of consideration for a third person.

2. *Special regulations for employment within the Reich.* The main principle for the employment of Soviet PWs within the Reich, is the assured security of German life and German property.

The Armed Forces authorities in charge of employment have the sole responsibility for the orderly employment of Soviet PWs.

Therefore, employment, first and foremost, must be taken up in work connected with the Armed Forces. In the case of employment in the civil sector, the local employment authorities can make suggestions, but the decision, contrary to the regulations on the employment of other PWs, rests with the Armed Forces authorities. In cases where all the conditions for constant supervision and complete separation from the civilian population cannot be complied with by a civilian place of work employment cannot be approved. Should one of these conditions lapse later on, the fatigue detail is to be withdrawn forthwith.

In addition, the instructions OKW/PW (15) No. 5015/41, dated 2.8.41 is to be followed in detail. Anyone breaking it will be severely punished.

3. *Guard duties.* The best possible trained energetic and prudent guard personnel are to be chosen to guard the Soviet PWs and constantly instructed by the Training Officer of the Military base camp [A. O. des M. Stammlagers].

At least one guard must be assigned to each 10 PWs. There must, however, never be one guard alone on duty. Should a fatigue detail consist of *no more than* 10 men, 2 guards must be employed to guard them. Guards should be equipped with hand grenades if possible. Those guarding larger squads must also be issued with machine guns or sub-machine guns.

Places of work must be frequently examined by officers or experienced NCOs. They are responsible for seeing that the orders given are carried out

to the letter.

The notes, attached as an appendix, are to be made available for thorough and detailed perusal.

The billets of Soviet PWs on fatigue details are to be under constant guard, even at night, and are to be inspected from time to time by the supervising authorities.

V. Final remarks.

PW-commandants are to be made personally responsible that under all circumstances the above regulations are strictly observed by subordinate units. This duty may in no case cease or be influenced by a change in offices. Therefore all offices and units newly concerned and employed in this sphere must be made thoroughly acquainted with the content of the regulations.

Appendix to the Order of OKW/Gen. Armed Forces Dept. PW section No. 3058/41 Secret dated 8.9.1941 (for free distribution!)

Notes on the guarding of Soviet Prisoners of War.

Bolshevism is the deadly enemy of Nazi Germany

For the first time in this war, the German soldier is encountering not only a military opponent, but one, at the same time, politically educated, who sees in communism his ideal and in National-Socialism, his most provocative enemy. In the fight against National-Socialism, every method is, to him, legal: sniping, guerrilla warfare, sabotage, incendiarism, seditious propaganda, murder. Even a Soviet soldier in captivity, however harmless he may appear on the surface, will snatch any opportunity to show his hatred of everything German. It is quite possible that the PWs received corresponding instructions on how to act in captivity. It is essential, therefore, to treat them with the utmost vigilance, the greatest caution and complete mistrust.

The principles to be followed by guard personnel are:

1. Ruthless action at the slightest indication of insubordination or disobedience. Weapons are to be used unsparingly to put down resistance. PWs attempting to escape are to be fired on immediately (without a challenge) with the firm intention of hitting them.
2. Any *conversation*—even on the march to and from the place of work—unless it concerns absolutely necessary official instructions, is *utterly forbidden*. No smoking at all is allowed on the march to and from the places of work—as well as during work. In the same way, all conversation between PWs and *civilians* is to be prevented, if necessary by force of arms—even against the civilians.
3. At the place of work also, a constant and careful supervision by German guard personnel is required. Each guard must always *keep a sufficient distance* from the PWs to enable him, at any time, to use his weapons *without delay*. Never turn your back on a PW.
4. Slackness is out of place even with a *PW who is obedient and willing to work*. He interprets it as weakness and draws his own conclusions.
5. When German soldiers are ruthlessly carrying out given orders with all severity and harshness, any arbitrary action, maltreatment and, above all, the use of clubs and whips is forbidden. This would be out of keeping with the honour of German soldiers as armed men.
6. The appearance of seeming harmless on the part of bolshevist PWs must never lead to the slackening of the above instructions.

TRANSLATION OF DOCUMENT 1520-PS

Notes about a discussion with the Fuehrer at the Fuehrer Headquarters on the 8th of May 1942.

Present at first Reich Minister Dr. Lammers [also Bormann and Rosenberg, the author of the notes].

I began with reporting to the Fuehrer about the results of the 1941/42 collection of the NSDAP of books for the German Armed Forces resulting in more than 9 million books, from which 46,000 libraries were formed.

Then I dealt with certain reproaches raised against the Ministry East. The article in the “information service” of the Ministry for Propaganda

concerning construction and aims of the Ministry East appeared without any knowledge whatsoever on my part. I had, as a matter of principle, agreed with the Ministry for Propaganda that no publications whatsoever regarding the occupied Eastern Territories should be published without my express consent. This became essential because even ministers talked about the “*Policy of Colonisation*” in the East.—Then it was also said that I had declared 650 men as unfit for war service and thus deprived the armed forces of them, and that I also left 90 officers without work as an advance command in Taganrog. I want to state that, because of the newly reinforced decree, the Ministry East has handed over 650 men; however, up to a few weeks ago only 240 men have been called away. As concerns the 90 men in Taganrog, this is not a measure taken by me but by the Economic Staff East and the armed forces armament staff, resp. Therefore, this matter was none of my affair. Furthermore, this advance commando has been dissolved.

As regards the resettlement of the Germans from Lithuania, the Fuehrer said that he was under the impression that people who had already settled here would have to be resettled again. I told the Fuehrer that it was not so, this was a matter concerning more than 30,000 settlers capable of resettlement who were still detained in camps and who were worn down by the prolonged camp life.

At last I referred to the new Molotov memorandum regarding supposed horrors and our economic measures, which, as a matter of fact, refers to some statements in the so-called “Green Folder” of the economic staff East of the 4-year Plan. Presumably such statements had been discovered on the body of a shot agrarian leader; a year ago I had already expressed my concern about the too-clearly expressed tendencies of those statements. A number of agrarian leaders already had been killed, also three territorial commissioners already have been killed fighting the partisans.

Thereafter I described to the Fuehrer the considerations which caused me to grant *self-administration* to the Baltic countries. First of all this was not proclaimed by Law, but it was only my *decree* to the Reich Commissioner with the corresponding directives. In practice it meant nothing beyond a confirmation of an already existing state of affairs and the abolition of a certain uncertainty. We were very short of officials and were thus forced to be most economical with human material. However, frequently efforts were noticeable to meddle with the trivialities of life which necessitates new

demands and withdraws too many soldiers from the armed forces. It left the doors open for some people to escape army service. Furthermore, self-administration was connected with an increased willingness to work. After all there were enough safety clauses whereby the self-administration could not undertake anything without the sanction of the Commissioner General. In order to eliminate any possible political danger, an exception has been made with *Riga*. Riga has 10-12,000 officials and was to receive a German mayor who is not subordinated to the Lithuanian self-administration. Thereby a personal political policy of the Lithuanian Directorate would be avoided. By this measure Riga would be an experiment for annexed administration.

We also created an historical alibi and had demonstrated that we were meeting the Baltic nations more than half way. If at a later date this would not be acknowledged, we had every justification to proceed more drastically. The Fuehrer kept all decrees and regulations in order to examine them. Yet during the whole of the report he made no comments.

Afterwards the Fuehrer asked how all those economical measures were looked upon by the part of the Germans, whereupon I replied that, of course, the entire economical management was in German hands, and that this fact had produced a deterioration of the morale. Generally speaking the monopolistic companies and the ZHO [ZentralhandelsGes. Ost—Eastern Central Trade], are fundamentally necessary, only they have to be supervised. Dr. Lammers interjected that private profits had to be throttled in order to avoid too strong a group of profiteers. I once more referred to the question of monopolies and wished to ascertain whether the Fuehrer intended an absolute tobacco monopoly for here, whereupon he declared that he was particularly interested in the retail monopoly. The question of arranging for the producers could still be settled at a later date. I replied that the economic leaders have not yet agreed upon the question of the producers. The opinion is frequently prevalent, that the production itself need not necessarily be a direct state monopoly. I told the Fuehrer that I shall have the whole question examined once again.

Then the problem of *religious freedom* for the occupied Eastern territories was discussed. The Fuehrer consulted Reichsleiter Bormann, who already had gathered much experience by the preparations for the Wartheland and for Austria. I explained the situations in the East was that various large

ecclesiastical groups being formed, but that one should not allow such development to take place without supervision, but that one ought to direct same and that the intended decrees, respectively orders, were for the purpose of protecting us from unanticipated surprises. Bormann entirely agreed with this attitude, he merely questioned if the Reichminister East, who also had some standing in Germany, would not produce too close a dependency by a law which might have repercussions inside the Reich. What was to be understood under "religious freedom" was to be interpreted *by the Churches*, and he could anticipate, that such a law would produce hundreds of new letters and complaints on the part of the churches within the Reich. The Fuehrer considered a number of twists and forms which would eliminate such a danger, and after discussing its suitability the Fuehrer read the decree and gave his consent. Finally it was agreed that the whole question was not to be settled *by myself* in the form of a law, but that the Reich Commissioners take the existing religious freedom so to speak for granted and would decree the necessary executive orders. I was then to watch the development continuously and retain the executive control. It is easily possible that the leaders of the churches in the Ukraine would combine in order to elect a patriarch. I pointed out that this was already the case for all practical purposes and that a steering of the matter is necessary. The Fuehrer asked me if I really thought that all the Ukrainians were faithful adherents of the church. I replied that with the older generation and the women it was certainly the case, the youth were already somewhat unaccustomed to church. Furthermore I had transported from Kiev to Berlin the "Atheist Museum". In this the writings of the national writer of the Ukraine, Schewiszenko, are quoted and may be possible to publish them in the Ukrainian language in a sense which in truth was not for the church. Also such freedom of expression of opinion has also to be guaranteed. Moreover the Fuehrer emphasized that after the war he would proceed against the churches with the fitting measures; he believed that he was still able to do something because of his authority which at a later date would be difficult for anybody else. He would not forget the attitude of the church during the war. I told the Fuehrer that I carried out church political lectures in a small circle in my lecture house in Dahlem, in which the whole problem was thoroughly examined, so that in the future the necessary ideological fight would also be carried out with the necessary knowledge and on the necessary scale.

Then the treatment of the countries which were Germany's wards was discussed. I pointed out that some representatives interpreted the point of view of the master race, by travelling up and down the country with the whip. It is true, formerly one used to say of the Slavs that they liked to be thrashed. But this had changed radically. Now the situation was that the public thrashing meant the same as for the Orientals "the losing of face." Even the Bolsheviks mistreated the prisoners abominably behind the walls, but never in public view. A number of incidents had occurred caused by thoughtless talk. It is necessary that our foreign representatives also know how to *keep silent*. The Fuehrer read the draft of my decree for the Reich Commissioner Ukraine and gave his consent to it.

I then described to the Fuehrer the reception of the *three delegations of farmers* in grateful acknowledgment of our agrarian legislation and produced all our propaganda, such as circulars, pamphlets, posters, translations of German writings, etc. The difficulty here, too, was that it had taken a long time until the 18 waggons could be transported. A part had remained in the Government General. The whole action was very successful. I then submitted to the Fuehrer photographs of Ukrainian men and women who were working in the Heinkel works. The Fuehrer expressed his surprise at the extraordinary good looks and even beauty of the people.

I then dealt with the *employment of foreign workers* in the occupied Eastern territories. I had appointed a special delegate for this who had been very active lately to cultivate all those existing connections and to institute new ones. At first the Danish minister Larsen had travelled the Eastland with the General-Director Junker who was the chief of the Danish committee for employment in the East. This journey already had produced tangible, practical results: in Port Kunda a large cement works was being rebuilt, the machinery would be delivered within a few weeks. After an initial starting time about 75,000 tons of cement will be produced annually. Further erections of cement works would be possible. The completion of peat works could now be prepared in order to benefit from it in the following year. Two experts had to be sent there, and within a few weeks one could start with the installations. The same applies to large plaster factory, to the completion of concrete and wooden shoe factories. Since it will probably become impossible in the future to continue to provide the population with leather

shoes. The factory will be capable of a daily output of 10,000 shoes. Furthermore, a number of other business plans are also being considered. Especially the oil factory at Libau is ready to be taken over, also creameries, shipbuilding plants, etc. All those works thus promise a considerable increase in production for the coming years. Negotiations had taken place also with the Dutch, and Reich Commissioner Seyss Inquart had just now submitted a first draft regarding the employment of Dutch people in the region of Libau. It is planned to hand over to the Dutch people 500,000 ha of land to be cultivated under stipulation that after delivery of all that is claimed by the German administration, they are permitted to export the surplus to Holland. Some of the details had still to be settled. The Fuehrer thought one could as a matter of principle admit Dutchmen to the East, because if there were not more than 1000 people, then they would be absorbed. He did not wish large colonies. The matter was left undecided, to be thoroughly investigated. Moreover the DAF German Workers Front had bought a wharf at Varna in order to tackle the building of concrete ships.

I then reported to the Fuehrer the planning of central office for planning in the East, and I gave him the names on the committee for the general policy, economics, etc. The supreme authorities of the Reich had sent their emissaries. Naturally nothing would be done at this stage in which might somehow hamper the war production.

Then the discussion turned to Caucasia and *the policy of the AA* [Foreign Ministry] towards the Eastern territories. I reported to the Fuehrer that, for some time, we had picked out the best of the prisoners by commissions of the Ministry East. The OKW had now established the Turkestan Legion through direct collaboration with us. According to my information received from the manager of chief section "Policy", the camp is in perfect condition, the Commander has learned the Turkestan language, and the Turkestans have accepted German military terms and have an anti-Bolshevist attitude. The legions of the Caucasians would be modeled on similar lines. If one had not in the beginning on the part of the SD, called all those peoples "Asiatics", had them shot or left to their fate, there would be more troops at the disposal of the German Reich today. A new flag was created for the Turkestan legion, the half moon was done away with and in its place put bow and arrow. I showed the Fuehrer the individual symbols for the designs for flags for the Georgians, Armenians, Aserbeidschanians,

Cubancossacks, and Kalmucks. The Fuehrer had no objections against these designs, however, he asked my opinion about the Armenians. I stated that Armenia was the best bolt between Turkey and Aserbeidschan, and thus could stop a Panturanian movement towards the East. Generally speaking the Armenian people themselves are stationary, a people of farmers who had considerable industrial skill.

I then described to the Fuehrer our relationship with the Foreign Ministry. The Reich Minister for Foreign Affairs claimed the political handling of the Eastern territories, in as far as it has not been taken over directly within our administration. I said that the Reich Foreign Minister had formed a large Eastern committee and had despite our protests convoked in increasing measure the most varied emigrants. I read to the Fuehrer a list of emigrants from Turkey, from Paris, from Switzerland, all of whom were staying at the Adlon Hotel in Berlin. Two of them, according to our information, were well-known espionage agents. I thought it extremely risky to assemble here these emigrants from all parts of the world. The Fuehrer listened in surprise. I said that we prepared years ago already for the Eastern question. In this connection we had made possible the studies of Dr. Benzing and assigned him upon request for a certain period to the AA. The AA then created for him a separate department for planning and appointed him to be a Regierungsrat [Advisor of the Government].

It subsequently refused to return him to us. The same applies in the case of the Turkestanian Kayum. The questions had long been discussed with him. We had merely loaned him to the AA for the purpose of broadcasting propaganda. Now the AA was sending him to Paris, in order to collect emigrants. The Fuehrer gave the strictest instructions to the Reich Minister Dr. Lammers, to inform the AA officially that it had to discontinue its activities in the East instantly. It was also to release the retained personalities to the Ministry East, and he did not wish any further inquiries. I further explained that I had talked to State Secretary v. Weizsaecker a few weeks ago and requested him to inform the Reich Foreign Minister that I was looking forward to speaking to him personally. Weizsaecker said that the two points of view differed. When Weizsaecker was asked about it after some time, he said that he did not understand from this talk that *he* was to arrange the meeting between Ribbentrop and myself. We have interpreted this remark that the matter was to be put off until after the Congress of

emigrants had been convoked in Berlin. Some days ago we were informed by a liaison man of the AA that they did not at all consider the attitude which I had reported to the Fuehrer in regard to the Caucasian people, as binding for them but that it was of a purely private character. The Fuehrer once more emphasized his point of view.

I then reported to the Fuehrer on the work of the preparatory reconstruction staffs. With the exception of a few personalities whom the Fuehrer preferred not to have employed or preferred to be used in Germany the Fuehrer accepted the proposed list of personalities. The tasks of Reich Minister Speer and his relationship with me were then thoroughly discussed. The Fuehrer said that he, for example, had made the worst experiences in regard to the matters of railroad traffic by the fact that the Government General had its own railroad administration between the front lines and the Reich. Because of these circumstances a lot of misunderstandings and frictions were caused. The separate administrations did not function and interfered with the uniform technical direction so that very nearly catastrophic conditions resulted, if the *entire* administration of railroad traffic had not been transferred to the Reich Ministry of Communication. Only by these means had it become gradually possible to increase the daily number of trains from 125 to 220. For the construction of main thoroughfares and armament works it is also necessary that a central office has control, and Speer already proved at the beginning of his official duties that he knew how to tackle a job well. He succeeded to solve many a technical task in very short time, which normally would have taken months, and he, the Fuehrer, was most satisfied with this choice. I told the Fuehrer that I had promised my utmost support to Speer from the very beginning and that I had accepted in principle his first drafts for an arrangement, with the only exception of two points, that is this arrangement should remain in force beyond the duration of the war and secondly, that the department Chief of the O.T. [Organisation Todt], who should have a rank of about Oberregierungsrat, should be able to pass a decision against the Reich Commissioners.

The Fuehrer thereupon stated repeatedly that the Reich Ministry Speer would be dissolved on the very day peace was declared and all his present tasks would be split up. The management of the artery roads through the East, however, had still technically to be centrally conducted. They are,

therefore, tasks for the immediate war effort. Speer also neither has the intention nor the commission to start building houses now, but he must be empowered to prevent the building anywhere of large administrative palaces or similar buildings, which are not war essential. Dr. Lammers suggested to include by way of agreement or decree of the Fuehrer, that this decree was only for the duration of the war. I then described to the Fuehrer the present general situation, according to which new plenipotentiaries-in-chief endeavoured to carry out direct actions in the occupied Eastern territories, overlooking those dignitaries who were appointed by the Fuehrer himself. At the moment the problem of the employment of labor was under discussion. In those places where the commissioners-in-chief had been informed in good time and had the possibility to enlighten the populations concerned, it was possible to achieve a considerable voluntary readiness for work. In many other instances one adopted measures of enforcement immediately, without taking any consideration of the commissioner-in-chief, with the result that in certain towns a flight into the woods took place, in order that they would not be—to use their own phrase—deported. Those men would decidedly increase the number of partisans and thus endanger our lines of supply. Other forced laborers had left the trains going into the Reich during the night, with the result that they arrived half empty at the frontier of the Government General. They, too, would constitute a danger. As a result at places which were included in the Four Year Plan themselves, the very Four Year Plan had withdrawn workers who were partially lost, and thus the opposite result was achieved, that is a noticeable deterioration of the situation and ill feeling of the population. I already received a number of reports from the Ukraine and from Latvia which confirm this state of affairs. If now medium or lower technicians proceeded similarly without regard of the commissioners-in-chief, these conditions would deteriorate considerably without thereby achieving the technical effects. I point out that development. If Reich Minister Speer would retain his authority in its old form, I would be forced to decline the responsibility for conditions in the future and, in any case, could not be subjected to criticism if the political situation would worsen very decisively thereby. The Fuehrer listened to the report most attentively, as was my impression, and then he said that, in any case, the arterial roads had to be secured by technical means in order to supply the frontier with guns and ammunition. The matter was then discussed once more. I pointed out what great effort it took me to

restrain the supreme Reich authorities from interfering with the occupied Eastern territories; the arguments, however, were so convincing, that one realized to a large extent that the direction of the East could only be carried out centrally. If this painfully achieved position was now to be broken by such a far-reaching decree for Speer, the tendency would revive everywhere to interfere with the occupied Eastern territories disregarding the Ministry East. The Fuehrer said that under no circumstances should that happen, and he instructed Dr. Lammers, that he was to reject such demands on the Fuehrer's orders.

Dr. Lammers was ordered to draft a formulation of the tasks of Reich Minister Speer in the occupied Eastern territories in relationship to myself for the duration of the war.

In the course of the discussion a number of other matters were also dealt with. The Fuehrer approved the final version regarding uniforms of the occupied territories. I reported to him the results of the exhibition in Agram, Bruxelles and of the work progress of the exhibition "Fight for Europe".

The question of the awarding the iron cross to the Estonians, Lithuanians, and Latvians to a problem of the OKW. The Armed Forces are in favor of such awards. However, there are some political objections. The Fuehrer believes to see a danger in it, that in case of future complications the bearer of the EK [iron cross] might have to be subjected to disciplinary punishment. I explained that soldiers of the Baltic nations—according to many utterances—looked upon an award as a guarantee for Reich citizenship. Thereby the political effect of a Germanisation and on the other hand the skimming of nationalistic forces would become possible. The matter was to be examined once again.

I informed the Fuehrer of my intention to start my first official journey into the Eastland on the 14th May. The Fuehrer authorized me to extend his greetings to the appointed administrative corps.

I then reported to the Fuehrer the results of metal collection in the Eastland which produced 2,500 tons. By collecting those metals still available in the economy, the figure would be raised to 3,500 tons. The collection of wools too had reached the average of the Reich.

I handed the Fuehrer a file note regarding the development of rubber plantations, which has been fostered by the foreign policy office of the NSDAP since 1936. Despite all the official refusals the plants were at first cultivated in Athens, later on the Reich Food Minister granted a few acres of land in Germany. Now it is cultivated in the Wartheland and in the Government General, and later on in the Ukraine where from 1943 on more than 100,000 ha will be worked. The harvest will then provide enough to fill the gap which is still open from synthetic rubber production.

During the report I turned the conversation toward the planning departments of the ministry. I said that after nearly one year no high official had yet been appointed because of the many discussions with the competent Reich departments. I mentioned the case of party member Cranz who was supposed to be my immediately subordinated chief of press in the East, but whom the ministry of finance did not want to grant to me as a Ministerialdirektor. Dr. Lammers was of the opinion that one could not start right away with the highest ranks. If Cranz was now appointed Ministerialrat then he could be promoted within a year. I said that Cranz was already a year in the Ministry. Nor was it a question of appointing the *major* Cranz, but of the journalist who had followed this profession for nearly 20 years. I said that the ministry also had to be on an equal footing in its negotiations with the Reich Commissar. This was not an ordinary Special department ministry [Ressortministerium], but it had other, far more extended tasks. The Fuehrer agreed with this point of view and asked about how large the Reich Commissioners Offices were. After mentioning the number of rooms I added that a Reich Commissioner was in reality like a minister president, who was governing a large country. Here, too, the Fuehrer agreed, and he said that to begin with he was not much in favor to create a ministry for the East Commission. I was surprised, because Dr. Lammers had made out to me that just the creation of a ministry was the wish of the Fuehrer. I told the Fuehrer that at that time I had made special propositions. I then requested Dr. Lammers to give me his support in this matter.

Signed: R.

Berlin, 13th May 1942.
R/H.

TRANSLATION OF DOCUMENT 1521-PS

BAVARIAN POLITICAL POLICE

Copy

Munich, Briennerstr. 50, August 24th, 1934

Telephone 28341-46

Reg. No. 33668 I 1 Nh must be quoted in further correspondence. To the Bureau of Secret State Police—Central Office

Berlin S.W. 11
Prinz Albrecht St. 8.

Reference

National mourning on the occasion of the death of Reich President and Generalfeldmarschall von Hindenburg; here—the carrying out of para. III of the decree of the Reich Government dated 2.8.34.

Enclosure

1 Copy

Several telephone reports which reached here as early as the evening of the 2nd of August, 1934, from offices of the Party and regional [Bezirk] authorities, concerning refusal to sound the funeral knell ordered by the Reich Government, and also numerous written reports, caused the Bavarian Political Police to come to the decision, a copy of which is enclosed, and which has already been submitted to your office.

The result was as follows: In more than 70 parishes bells were not tolled on the 2nd of August, in 20 parishes on the 2nd and 3rd of August, and in 4 parishes on the 2nd, 3rd and 4th of August. The reason given in about 56 cases was that no definite order had been issued from the responsible diocesan office, or dean's office. Of the clergy involved, 32 in all are politically tainted—two of them read holy mass on the 26th of July for the deceased Chancellor of the Austrian Confederation Dollfuss, or remembered him in a sermon and had prayers said for him. It appears that no special order of the senior church authorities was necessary for this. In one case the sacristan was interrupted in ringing the knell by the priest.

When asked for an explanation by enraged fellow Germans and fellow party members, every possible excuse was used—let us only call attention to the following ones, to show what type they were:

Alleged disturbance of the religious service.

Nothing is done on orders from lay authorities.

Absence, either accidental, or alleged to be by reason of duty.

Alleged state of decay of the belfry.

Alleged defectiveness of the bells.

Alleged ignorance of the decree of the Reich Government.

Hindenburg was a Protestant; by a decree of the Bavarian Ministry of Public Worship and Education (Resolution of the State Minister for Education and Public Worship, dated 29.6.34, No. I 19763) the vicar was only pledged to obey the order of the church authorities with respect to the ringing of church bells.

Alleged incompetency.

Bells had only been rung in the morning on the occasion of the 20th anniversary of the outbreak of war.

On his own authority, the bishop of Wuerzburg, Matthias Ehrenfried, a *sufficiently well-known* cleric, fixed the ringing of bells for the morning, between 11-0 and 12-0 o'clock. [pencil note referring to underling] How so?

Another minister had the incredible lack of taste to point out that the enforced ringing of church bells when Kurt Eisner was shot, had been the occasion of the order that this should in future only be done by order of the church authorities. The mentioning of the name of the immortal President of the Reich von Hindenburg in the same breath as an incident connected with Eisner, the traitor and Jew, is the most despicable feature [Gemeinheit] of the affair.

From the foregoing it is not difficult to see that the Catholic clergy in their intolerance, have done their utmost to disturb the peace between laymen and clergy. There is no doubt that the obstructive attitude of the clergy is due, on the one hand, to that fact that the deceased Reichpresident was a

Protestant, and on the other, to the fact that the Catholic Church was to obey a suggestion made by the National-Socialist Reich Government. The conduct shown in this case provides once more a clear evidence of the international attitude and lack of German feeling and perception in Catholic clerical circles.

In three cases the taking into protective custody, in order to guarantee them personal safety, of refractory clergy could not be avoided, in the interests of the maintenance of public security and order, and on account of the anger of the people.

The following clergy are in question:

The Parish priest, Father Johann Quinger of Altenkunstadt BA., Lichtenfels. He was taken into protective custody on 3.8 on the express order of the State Ministry of the Interior, because he assaulted SA leaders and SA men who were ringing the bells against his wishes. He was released from custody on 10.8.34.

The Parish priest, Father Ludwig Obholzer of Kiefersfelden BA Rosenheim. For his personal safety he was in police custody from 2400 hours on the 2.8.34, till 1000 hours on 3.8.34. On 5.8.34, he said sarcastically in his sermon, referring to the SA men who had carried out the ringing of the funeral knell on their own account, "Lord forgive them, for they know not what they do!"

The Parish priest, Father Johann Nepomuk Kleber of Wiefelsdorf, BA., Burglengenfeld, refused to ring the church bells on the 2nd and 3rd. He is badly tainted politically and had to be taken into protective custody from the 5th to the 8th of August 34 in the interests of his own safety.

The behaviour of the diocesan office of the *archbishopric of Munich and Freising*, [underlined in red pencil], which is in accordance with the principle "Attack is the best defence" deserves special note. In two letters of the 10th and 11th of August 1934 a touching complaint is lodged about the behaviour of members of the SA and the Party on ringing the church bells without authorization, and also about the fact that the clergymen named above were restricted in their personal liberty. In this connection it should be stressed that the clergy concerned were treated with extreme leniency. We could refer here to the case of Quinger, where the SA men, in spite of

the injuries which the clergyman inflicted on them, with exemplary discipline did not return the assaults. The State authorities did everything to ensure the continuance of worship undisturbed. Moreover, the length of imprisonment was confined in all cases to the minimum.

It must again be pointed out, most emphatically, that the unspeakable behaviour of the clergy concerned in this matter leads us to deduce the existence of a very special frame of mind, and spotlights the true internal attitude of the Catholic clergy to the National-Socialist State. It is not to be wondered at if here and there, in face of the incredible behaviour of the clergy and the threadbare excuses they used, the people and the SA resorted to an act of self-defense which was not perhaps in conformity with strict law, but was very understandable. Narrow-minded jurisprudence, as the elders of the church choose to practice it, is not in place here, and is not understood by the mass of the people, as events have shown.

Since the diocesan office of the archbishopric of Munich and Freising has announced that it will also “report” the incidents to the Reich Ministry of the Interior, it is absolutely necessary to acquaint the above office with the contents of the present report.

By order

signed Brunner
[Stamp]

Reich Governor of Bavaria
28 Aug. 1934 1/1
enclosures
Mark Ge 2/28.8

(Above) *Copy* to the Reich Governor of Bavaria, for the attention of State Secretary Hofmann, Munich, requesting that it should be noted.

By order

Jenner [?]

Copy checked 24.9.34.

[Several illegible initials]

TRANSLATION OF DOCUMENT 1526-PS

Copy

Prof. Dr. Wolodymyr Kubijowytsch,
Chairman of the Ukrainian Main Committee.

Cracow, February 1943.

To the Governor General, Reich Minister Dr. Frank.

Your Excellency:

Complying with your wish I send you this letter, in which I should like to state critical conditions and the painful happenings, which create especially grave conditions for the Ukrainian population within the General-Government. As to the German-Ukrainian relations and the general situation of the Ukrainian people, I have included all that in my letter, known as well to you, which I addressed to the Secretary of State Dr. Buehler as far back as December 1942. In that letter I stressed mainly the alarm of the Ukrainian population in regard to the uncertainty about their national future within the New Europe. Here I would like to quote some real happenings and add my reflections on them.

The center of these is the question: Shall the Ukrainians work successfully in favor of final victory; they must be granted the security which, while absolutely necessary to them, unfortunately does not exist. For under the present conditions the Ukrainians are neither sure of their possessions nor of their lives. The matter of re-privatisation has not yet been settled. Inhuman treatment, severe pressure to forced labor, unfounded arrests, and lastly the shootings of great numbers are happenings not too infrequent these days.

I. Question of Re-privatisation.

Of primary importance for the further shaping of German-Ukrainian relations is the problem of re-privatisation. The whole Ukrainian people have connected with the German victory in the East their hope that now all remainders of the Bolshevist Regime shall be extinguished finally.

The views of the Ukrainian people are basically those of private property and economy. The Ukrainian peasant is prepared to undergo the greatest privations and sacrifices in favor of the State, if only he be allowed to work in tranquility; this feeling of inner tranquility he can but gain in the

knowledge that the soil on which he and his ancestors have toiled, will remain his property in the future. The Ukrainian population received with gratitude the proclamation of your Excellency of 1 August 1941 in which, you Sir, have solved this problem at its roots and have stated re-privatisation to be the general rule for the economy of the State. Now, however, the attitude of some authorities looks as if the re-privatisation would be questioned still and as if in the new social order there was no place for private property. This situation is very cleverly made use of by the hostile whispering propaganda. Especially widely has the rumor been spread that private property has not yet been reintroduced for the reason that a large action of resettlement of the Ukrainians from Galicia to the East is to be expected.

Actions, such as measures of adjusting real property at the expense of peasant property (in the districts of Tarnopol, Rawa, Ruska, Kalusch, etc.), survey of real property of peasants (in the district of Czortkow) and imposing of fees for the use of land (Czortkow, Zloczow, etc.) give such rumors the appearance of probability (enclosure 1).

It is clear that for this reason there appears a great alarm and nervousness amongst the rural population which must badly influence the inclination for work and the output of agricultural production.

The uncertainty as well as all the consciously false interpretations of such measures through the whispering propaganda, could only be ended by a definite carrying out of the principle of the Proclamation mentioned.

II. Measures for finding labor.

The general nervousness is still more enhanced by the wrong methods of finding labor which have been used more and more frequently in recent months. The wild and ruthless man-hunt as exercised everywhere in towns and country, in streets, squares, stations, even in churches, at night in houses, has badly shaken the feeling of security of the inhabitants. Everybody is exposed to the danger, to be seized anywhere and at any time by members of the police, suddenly and unexpectedly, and to be brought into an assembly camp. None of his relatives knows what has happened to him only months later one or the other gives news of his fate by a postcard.

I beg to mention some instances with their respective proofs:

- a. During such an action a pupil in Sokol lost his life and another one was wounded (enclosure 2).
- b. 19 Ukrainian workers from Galicia, all provided with identity cards, were assigned in Cracow to a transport of "Russian prisoners-of-war" and delivered into a punitive camp in Graz (enclosure 3).
- c. 95 Ukrainians from Galicia, recruited for work in Germany by the labor offices in the middle of January, were sent to Pskow in Russia, via Eastern Prussia, where most of them died under distress (enclosure 4).
- d. Seizure of workers under pretext of military recruitment (Zaleszczyki); kidnapping schoolboys during school time (Biala Podloaska, Wlodawa, Hrubieschow) (enclosure 5).

III. Question of Personal Security.

Treatment of human beings.

Already the kind of treatment meted out to our compatriots by the lower instruments of the German authority, adds much to make the general situation more grave. The Ukrainians expected the treatment of members of those nations who fought against Germany, because they belong to a people who have never done anything against the Germans and their interests. Now every Ukrainian cannot fail to become convinced that most of the Germans do not make any distinction, and that they are accustomed to treat all peoples of the East similarly, whether friend or foe. Too often the Ukrainian is exposed to the danger, when dealing with the lower authorities, to be personally insulted, to be slandered, even to be ill-treated. Innumerable instances could be mentioned proving this sort of treatment. In the enclosure I give only a small selection of especially grave cases (enclosure 6).

Wholesale shootings.

Of much worse character are the wholesale shootings of absolutely innocent persons, such as happened in Lubycza Koroliwska and then in Lwow and Czortkow.

In Lubycza Koroliwska, district of Rawa Ruska, 46 peasants, including 31 Ukrainians, were shot without trial (4 October 1942) (enclosure 7).

During the second half of November 1943, 28 Ukrainians were shot in Lwow, 56 in Czortkow, also without trial. (enclosure 8).

Arrests in December 1942.

In December 1942 the police undertook a cleansing action among the so-called disturbing elements, leading very soon, however, to wholesale arrests of innocent, quiet citizens. They are under arrest and in danger to lose their good health for certain, if not their life. (enclosure 9).

How acute and well founded this fear is, is proved by what happened to 6 Ukrainian girls from Kolomea, who were arrested in February 1942 and who disappeared without leaving any trace. (enclosure 10).

Revision in the St. George Cathedral, Lwow.

In connection with the cleansing action mentioned above a raid was carried out even in the St. George's cathedral in Lwow. The fact itself, especially because of the behavior of the police at this place which is sacred to the Ukrainians, produced a deep resentment and bad feelings amongst the population. This was used by hostile propaganda at once. Generally, it is pointed out that not even during the Bolshevist occupation raids took place on the hill of St. George, and that several visits by Bolshevist professors and students were always undertaken with great respect for the place and the person of the Metropolitan.

Special action against the asocial elements.

Since 15 January a special action began against the so-called asocial elements in Galicia. In the whole area about 5,000 persons were arrested. The purpose of this action was said to be the removal of those elements, who did not wish to work, were active in the black market and by so doing made the work of the authorities more difficult. This action however, did not obtain the right result, and the victims were leading personalities of the Ukrainian cultural and economic life as well as employees of several state authorities and members of the Ukrainian Aid Committee.

These wholesale arrests raised an extraordinary nervousness and anxiety among the delegates of our committee and in large spheres of the Ukrainian

population.

IV. Irregular conditions and Partisan nuisance in the District of Lublin.

[This chapter deals with partisan activity and the risks to which the loyal Ukrainian population is exposed thereby. Irrelevant].

V. Collective responsibility.

General remarks.

The Ukrainian people consider as particularly painful the application of methods of collective responsibility. The large masses of the people generally have no understanding for the principle of collective responsibility; they take it as absence of justice to be punished for a deed one has neither done nor approved of. Generally, the principle of collective responsibility may be considered as justified if applied to a racial community which is homogenous. The partisan nuisance, however, is particularly spread out in the mixed Polish-Ukrainian areas, and the Ukrainian community can by no means bear any responsibility for misdeeds done by Poles. But even in areas with the almost homogenous population, as e.g. in Galicia, the Ukrainian people could only be held responsible if they were possessed of some means of executive power towards those members. Today they have no such means. For the reasons stated, the application of the principle of collective responsibility against the Ukrainian people is unjust and inexpedient in its present state of organization and especially in the mixed areas. The collective responsibility often hits the leading circles in town and country whose feelings are pro-German, but who are powerless against both the Polish dissenters and against their own irresponsible hot-heads and despairing persons.

Thus it happens that the collective responsibility which has the purpose of exterminating anti-German elements quite to the contrary annihilates or weakens positively pro-German elements and creates bad feelings and bitterness. Thus in the district of Lublin about 400 such Ukrainians perished.

We mention but some of the most convincing instances:

Wholesale shootings.

On 25 December 1942 the military police surrounded the village of Przewale, in the district of Zamose, area of Lublin, herded together a large number of Ukrainians and Poles. When the manager of the estate declared he needed the Poles for work, the Poles were set free, the Ukrainians, however, numbering 16, were shot dead; among the persons shot was a 15 years old girl, Eugenie Tybyczuk (encl. 15).

In the village of Nodosow (district of Lubin) 8 pro-German Ukrainians who had been persecuted by the Poles because of their patriotic views in pre-war time, were shot on 30 October 1942.

On 29 January 1943 in the village of Sumyn (collective community of Tarnowatka, district of Lublin) 45 Ukrainians, including 18 children between the ages of 3 and 15 were shot, and on 2 February 1943 in the villages of Pankow and Scharowola (collective community of Tarnowatka) 19 Ukrainians were shot, including 8 children, aged 1 to 13 years (encl. 16).

The greatest bitterness is created by the killing of innocent children, because the population is unable to understand that the German authorities could consent to or order such deeds.

The tragic events in Lubycza Koroliwska and Kubycza Kniazi (districts of Rawa Ruska, area of Lublin) have been mentioned above (encl. 7).

Conclusion.

The happenings in Galicia mentioned in this report have been submitted to Governor Dr. Waechter and the Department Head Dr. Bauer in writing and verbally. We repeat them herein, in order to complete the picture of the General Government.

* * * * *

Cracow, 25 February 1943.

Table of Enclosures.

1. The surveying measures in the area of Czortkow.

2. The events at Sokal.
3. The behavior of the Polish employees of the labor office.
4. Minutes (fate of the Ukrainian workers in Pskow).
5. Memorandum for the files (false recruiting of workers to the Reich).
6. Memorandum for the files (ill-treatment of Ukrainians).
7. Shooting of 46 peasants in Lubycza Koroliwska, district of Rawa Ruska.
8. Shootings in Lwow and Czortkow in November 1942.
9. Arrests in Galicia in December 1942.
10. Uncertain fate of arrested Ukrainian women students from Kolomea.
11. List of some well-known Ukrainian citizens, arrested in January 1943 in the area of Kolomea, Stryj, and Kamionka Strumilowa.
12. Arrests and shootings of persons unfit for work in the district of Sanok.
13. Anti-Ukrainian activities of persons unfit for work in the district Biljoraj.
14. Activities of partisans in the district of Biala Podlasko during the second half of the year 1942.
15. Shooting of 16 Ukrainians in the village of Przewale.
16. List of the Ukrainians shot in the village of Sumin, community of Tarnowatka on 29 January 1943.

Enclosure 1.

The Surveying Measures in the District of Czortkow.

In September of last year the Chief Inspectorate of agricultural land [Hauptlandinspektion] in Czortkow was formed under the management of the former District Surveyor [Kreislandinspektor].

Employed were the engineers-surveyor Jwanenko, a Russian, and the draughtsman Sach, a Pole; further the land-surveyors from Brzezany and Tarnaopol and some other German employees who were brought to Czortkow. Travelling in the district of Czortkow they drew maps showing the position of the communities with special regard to all farms and marking the better farms. About the middle of December the activities of this institution ceased, probably up till the end of April 1943. Rumor has it that German peasants to the number of 50,000 who are to be transferred from Germany into this district should be settled on these better farms.

Enclosure 2.

The Events at Sokal.

On 24 October 1942 between 13 and 14 hours, when the school boys went home from school, they were stopped by detachments of military police on the street and together with other people were formed into one unit. There was a panic as nobody knew what was going to happen to these people. People began to flee from the streets. The school boy Jaroslau Meda who was just passing with his father, the secretary of the collective community of Parchacz also started to run. The father tried to calm him and called him back as there was no danger. A military policeman, however, saw him fleeing and shot at him wounding him fatally, so that he died in the local hospital half an hour later.

At the same time two military policemen went into the Ukrainian hostel for schoolboys and took away some boys. The others were at lunch in the dining-room and therefore remained unnoticed. In front of the schoolboys' hostel the schoolboy Wassyl Krawtschuk was caught by a military policeman and wounded so seriously in the thigh by a bayonet that he had to be taken to hospital.

The student of theology Osyyp Karawan was severely beaten until he fainted.

The public school teacher Michael Duliba was beaten publicly.

It is to be stressed that nobody knew that this action of collecting people was to procure workers to load carrots at the station. When the headmaster of the public school informed the manager of the local labor office by phone and asked for his help, the latter replied he had no time to spare for this matter at the moment. Thereafter, the headmasters of the Ukrainian schools informed the manager of the local labor office that they would put their boys at the disposal of the authorities in every case there was unforeseen and undelayable work to be done in town after having received fair warning provided no other labor was available.

Enclosure 3.

Copy

Zborow, 6 Oct. 1942

Ukrainian Aid Committee, Branch Zborow.
To the Ukrainian Main Committee in Lwow.
Department for food.

Subject: The behavior of the Polish employees of the labor office in Cracow towards our laborers.

We present the minutes prepared by our office together with Mr. Procyk Lukas on 28 September 1942 who returned from Germany.

He reports:

Ukrainian laborers coming to Cracow, though provided with certificates and identification papers, are being transferred by the Polish employees of the labor office together with the transports of Russian civilian and brought to punitive camps.

Many Ukrainians fell victim to such Polish provocations. The situation of these people is all the more tragic, as they do not know the German language and their certificates and identification papers were destroyed by the above mentioned Polish employees.

Below we give a list of the Ukrainian laborers who are in the punitive camp in Graz as Russians and refugees:

[Follows a list of 19 names].

The situation of the above named is tragic. I was lucky to escape. With complete confidence in me and tears in their eyes they asked me to report their condition to the Committee.

[signed] Procyk Lukas.

Enclosure 4.

Minutes.

Michaljllo Kost, Bohdan Janiw, Iwan Baran (son of Iwan), Iwan Baran (son of Mykola) and Olexa Chimjak, all from Koniuschky, Koroliwiski, district of Komarow, were sent by the labor office for work to Germany on 12 January 1942.

They came to Pwzemysk, where they stayed for a whole week awaiting medical inspection. After the medical inspection they were joined to the transport which was to go to Germany. However, they were driven via Warsaw, East Prussia to Russia and were brought to the town of Pskow. With them were 95 Ukrainian lads from Galicia, including 18 lads from the village of Koniuschky, Koroliwiski. They were accompanied by a military escort. On 28 January 1942 they arrived in Pskow. At first, they worked in the woods felling trees, later building a bath-house.

In the beginning they received half a loaf of bread as daily ration, and later one loaf for seven persons daily, black coffee at breakfast and supper and soup at dinner time.

They never had a day off, they had to work even on Sundays. Terrible frost persisted throughout—to 58 centigrades (below zero), but the lads got no warm clothes, they worked in the clothes they had brought with them. After arriving in Pskow the workers lived in unheated huts without beds. The huts were made from wood and it was very cold there; only after two weeks were they billeted in a hall with beds, but they were unable to get warm with the blankets they had brought with them. Many of them fell ill from hunger and cold, 18 had to be taken to hospital (there was no room for several persons) where they remained for 2 to 3 weeks. The sick were refused bread, because they were said to be simulants. In the hospital the sick received 50 grammes of bread and some warm water and some soup and potatoes at about 16 hours.

Anyone unfit for work was sent away forcibly. Many escaped from the huts during the winter, one died. 13 lads from the village of Koniuschky, Koroliwiski escaped, three were arrested, and we know nothing about the others; they certainly did not return home.

5 of the above mentioned lads were declared unfit for work by a military commission and sent to Lwow and then home where they arrived completely exhausted. Of the 95 persons in the hutments in Pskow up to April, only 14 remained, 8 from the district of Jarowiw and 1 from Grodek. Those 14 persons, hungry and weak, were released to go home.

These workers received no pay.

Komarow, 22 April 1942.

Confirmed by signature: Mychajlo Kost,
Bohdan Janiw,
Iwan Baran.

Enclosure 5.

Memorandum for the files.

In November of last year an inspection of all males of the age groups 1910 to 1920 was ordered in the area of Zaleschozyki (district of Czortkow). After the men had appeared for inspection, all those who were chosen were arrested at once, loaded into trains and sent to the Reich. Such recruiting of laborers for the Reich also took place in other areas of this district. Following some interventions the action was then stopped.

The labor office in Biala Podlaska carried out the recruiting for work of the students at the commercial college. When the officials recruited more students than ordered, the main doors and doors to the class-rooms were locked; consequently a panic amongst the students broke out, and even some students fled through the windows.

Similar events occurred in Wlodawa and Hrubieschow in consequence of which the schools were closed for some time.

Enclosure 6.

Memo for the files.

Re: Ill-treatment of Ukrainians.

a. On 11 November 1942 Irene Malaschtschuk, a public school girl working in a German food store in Czortkow, was, whilst working (attending to German customers) hit in the face several times by a Security Policeman without any reason whatsoever. When questioned why he did it, she received the answer: because you did not pay any special attention to me.

b. In September 1942 a meeting took place in Chodorow in the presence of the District Farmer of Stryj, the District Agricultural Expert, the Chairman of the Ukrainian Aid Committee, the Land Commissioner, the District Farmer, the Chairman of the Delegation in Chodorow, and mayors and bailiffs of the district of Chodorow concerning the delivery quotas. During the discussion of the quota action the District Farmer said that the communities of Hranky, Kutu, and Bortnyky had not delivered their ordered quota of vegetables, then he ordered the Mayor of Hranky, Kutu to come up and hit him in the face in front of the assembly.

c. The chief of the price control office in Zloczow, H. Mok, who personally controls the delivery of foodstuffs into the town, stopped a woman on the way who was carrying a few kilos of carrots. Mr. Mok ordered his interpreter, a Jew, to search the woman; the Jew did it in such a manner as to offend the dignity of a human being and of the woman.

d. The District Farmer Benzin in Biala Polaska shot at innocent Ukrainian peasants from the villages of Polenow and Nosow, whilst on duty on 30 July 1942, two of whom died. Benzin was arrested, but the event caused great indignation in the whole area.

e. On 9 August 1942 the Ukrainian student Iwan Wowtschyschyn was beaten without any reason whatsoever by a Polish railroad policeman on the station in Przemysl; when the student tried to defend himself, he was fatally wounded with the bayonet.

Generally, there are strong complaints all over the country about the way Polish members of the railroad police treated Ukrainians.

Enclosure 7.

Shooting of 46 peasants in Lubycza, district of Rawa Ruska.

In the early morning on Sunday, 4 October 1942, some groups of the Special Service detachments, stationed near Belsez, came to the village of Lubycza Koroliwska and Kubysca Kniazi and called out all male villagers.

The men were convinced that it was a matter of some urgent work for the village and obligingly hurried to the place of assembly. There they were formed in rank and file and requested to name 2 saboteurs within two minutes otherwise every fifth man would be shot. As, however, no acts of sabotage had been committed in the village, no saboteurs could be named. Then, 45 men and 1 woman were chosen from the crowd and shot dead in two groups in the presence of their relatives, viz. in Lubycza, Koroliwska and Kubycza, Kniazi.

Amongst the 46 shot were 31 Ukrainians.

The pretence for these tragic mass-shootings was a fire which occurred in the stables of the said Special Service detachments near Belsez during the night of 3-4 October, when 3 horses were said to have perished. Probably this fire was set alight by the carelessness of the stable-boys and was extinguished at once.

The community of Lubycza, Koroliwska has been known as one of the most loyal of the whole district. The very same day (4 October 1942) the Governor of the province of Galicia, during a celebration in Lwow, especially mentioned the community as one conscious of their duties regarding the delivery of their quotas; this was officially published (Lwiwski Wisti) (Lemberger Nachrichten 6 October 1942).

The village Kubycza is 8 km. away from the place where the fire took place. The above mentioned stable is not within the village boundaries of Lubycza, Koroliwska.

It should be noted here that in spite of repeated assurances given by the District Captain [Kreishauptmann] the injured families in Lubycza, Koroliwska have so far not received any compensation.

Enclosure 8.

As a reprisal for the shooting of a member of the German police in Lwow who was killed by an unknown perpetrator in the second half of November 1942, 28 Ukrainians were shot in Lwow, and 56 in Czortkow who were at the time in prison in these towns. Nobody was told the reason for the shooting, and the shootings in Czortkow were carried out in broad day-light before the eyes of the frightened population. Among the persons shot were

many suffering from typhoid who were taken from the hospital whilst unconscious, loaded on to trucks, and taken to the place of execution.

These shootings were to be considered as reprisals against the so-called "Bandera" group. Among the persons shot were elderly citizens who had no connection whatever with the activities of this group, as for instance Dr. Olexa Kossak, lawyer from Kolomea, engineer Andrij Pjaseckyj, head-gamekeeper in Janiw near Lwow all of whom had been vouched for not only by myself and Dr. Kost Pankiskyj, but by Reich Germans as well.

Enclosure 9.

Arrests in Galicia in December 1942.

In December 1942 the police made arrests among the so-called restless elements.

In the whole province of Galicia arrests were made, especially among the young people among whom followers of the partisans were looked for. On this occasion a number of elderly citizens were arrested, who were but vaguely connected with the suspects. Thus, for instance, the owners of houses where the suspect lived as a lodger were arrested as well as guests present in the house at the time of arrest. On interventions by the representatives of the Ukrainian Main Committee in Lwow the police answered in order to release the persons arrested by mistake. Since then 2½ months have passed and the persons arrested by mistake are still in prison. They are treated there as criminals and are not certain of their lives.

A typical example of this is the fact that 50 Ukrainians died of misery and hunger in the prison in Czortkow. The Ukrainian Aid Committee in Czortkow tried to obtain a permit to send food to the prisoners, but without success; although the commander of the police agreed, the prison-commander insisted that the command of the Lwow police had to grant permission.

Enclosure 10.

Uncertain fate of arrested Ukrainian women students.

On 5 February 1942, 6 Ukrainian women students and school girls from Kolomea were arrested and in the spring sent on to Czortkow. Since then their relatives are unable to obtain any news about their fate.

The personal data of the arrested:

[follow 6 names together with names of respective parents and date and place of birth].

Enclosure 11.

List of some well-known Ukrainian citizens, members of the Ukrainian Aid Committee and employees of the State Administration, the Self-Government and the Economic Authorities, also of the old men and students who were arrested in January 1943 in the districts of Kolomea, Stryj, and Komionka, Strumilowa:

[follows names by localities.]

Enclosure 12.

Arrests and shootings of persons unfit for work in the District of Sanok.

During the period from 18 to 24 January 1943 about 300 persons were arrested in the neighborhood of Sanok in accordance with lists compiled some time before by the local mayors on orders of the authorities. Some of them were soon set free, but the fate of the rest is unknown to us and their families. The shootings which are daily taking place on the Jewish cemetery promise no good.

On 17 and 18 January 1943 many persons from the districts Sanok and Jaslo were arrested in the station in Tarnow whilst riding in the direction of Cracow; so far their families have no news about their fate. Thus, for instance 4 persons were arrested from the village of Losie, district Jaslo, viz.:

[follow 4 names and addresses.]

One of them went to see a doctor in Cracow, the others were on business trips to Warsaw.

On 18 January 1943, 14 persons who were unfit for work were shot together with 80 Jews in Ustrzyki Dolne; they were buried together in a ditch. Among these 14 were old men and invalids, for instance from Lutswyska; Iwan Lesky, 68-70 years old, invalid of the Austrian Army who worked as a tiler, Jurko Schkrabak and his wife, both about 70 years of age, and 3 other unknown persons, a female beggar from Ustrzky called

“Haramsymka”. We do not know the names of the other people shot. It should be pointed out that the Ukrainians celebrated a second Christmas evening on that day called “Schtschedryj Wetschir”.

As this holiday is celebrated by the Ukrainians with great piety, the shootings of these innocent people on this holy day caused great indignance and embitterment. These events depress the Ukrainian population. The view is current that now the shootings of the Jews come to an end those of the Ukrainians begin. The case of Ustrzyki is commented upon as follows: The Germans do not care about any non-German sanctity and holidays, they even shoot Ukrainians on the Ukrainian “Schtschedryj Wetschir” (the case in Ustrzyki).

The Ukrainian population is suspicious of all orders given by the German authority and even keep away from the soup kitchens, for fear that those in need may be considered as beggars and shot.

Enclosure 13.

Anti-Ukrainian activities of partisans in the District of Bilgoraj.

* * * * *

Enclosure 14.

Activities of partisans in the district of Biala Podlaska during the second half of 1942.

* * * * *

Enclosure 15.

Shooting of 16 Ukrainians in Przewala.

On 17 December 1942 the population of Zubowice, district of Tyschowce was moved away and racial Germans were settled in their place. The Polish population of Zubowice, warned the day before by a certain Kolesche of the coming evacuation fled, but the Ukrainians stayed and were evacuated to the little town of Tyszowce and its suburbs, with the help of the representatives of the Ukrainian Aid Committee. This evacuation affected 128 Ukrainian families, 486 persons in all.

Some days later a few farms in Zubowice and the surrounding country as far as the village of Przewale were burnt down. It is obvious that these fires

were started by escaped Poles who hid in the forests or the neighboring Polish villages, for all farms burnt down belonged to Poles prior to the evacuation; the Ukrainians who were evacuated in an organized manner and went willingly to destinations far off, viz. Zamlynie and Dubyna, were certainly not interested in burning down farms in Zubowice, particularly not their own farms.

As reprisal the arrests in Zamlynie and the shooting of persons in the village Przewale, near Zubowice, were carried out on 24 December 1942. This village is inhabited by 337 Poles and only 122 Ukrainians. On intervention by the Local Farm Administrator Poles have been separated and released from amongst the people arrested at random, the remaining Ukrainians, however, among them the 58 years old Ukrainian teacher and trustee of the Aid Committee in Zamosc, Banda Onofer, and his 75 years old mother-in-law Marie Rewus were shot. The names of the other Ukrainians who were shot are: (follows a list of 10 names including one of a person aged 80 years).

Enclosure 16.

List of the Ukrainians shot on 29 January 1943 in the village of Sumin community of Taranwatka.

[Follows a list of 45 names, giving family state, age, and remarks. Remarks to No. 16: Wounded, in hospital, to No. 19: Village Mayor, to No. 31: Wounded, in hospital, No's: 39 & 45: wounded, in hospital.]

Total 8 men, 19 women, 18 children.

The delegate: Pastor Matwijtschuk.

List of Ukrainians shot 2 February 1943 in the villages of Pankow and Scharowola.

[Follows a list of 19 names, giving family state, age and remarks. Remarks to No's: 4, 14, 15, 16, 17: Wounded].

Total 4 men, 7 women, 8 children. In the village Pankow 5 Poles have been shot. In the village Scharowola 6 Poles have been shot.

Delegation Ukrainian Aid Committee Tomascho Lubelsko.
Delegate: Matwijtschuk.

TRANSLATION OF DOCUMENT 1531-PS

I.

Reich Security Head Office Amt IV
Bk. No. 409/39 Top Secret

Berlin, 26 October 1939

Top Secret

- a. To all State Police District Offices.
- b. To the Gestapo office (according to restricted distribution C.)

For information

- a. To all inspectors of the Security police and the SD.
- b. To the Inspector-General of the reinforced SS-Death's Head Units (with 8 copies for the camps).

Subject: Execution of protective custody.

By order of the Reichsfuehrer SS and Chief of the German Police, all prisoners under protective custody due for transference to a concentration camp will, during the war, be assigned to a special penal section. The only exceptions will be prisoners under protective custody, who are assigned to a camp as a preventative police measure, (particularly those under index A), or those who are expressly exempt on the nominal role.

* * * * *

In order to achieve a further deterrent effect, the following must, in future, be observed in each individual case.

* * * * *

3. *The length of the period of custody must in no case be made known, even if the Reichsfuehrer SS and Chief of the German Police or the Chief of the Security Police and the SD has already fixed it.*

The term of a commitment to a concentration camp is to be openly announced as “until further notice.”

In serious cases, there is no objection to the increasing of the deterrent effect by the spreading of a cleverly carried out *rumor propaganda*, more or less to the effect that, according to hearsay, in view of the seriousness of his case, the arrested man will not be released for 2 or 3 years.

4. In certain cases, the Reichsfuehrer SS and Chief of the German Police will order flogging in addition to detention in a concentration camp. Orders of this kind will, in future, also be transmitted to the State Police District Office concerned. In this case too, there is no objection to spreading the rumour of this increased punishment as laid down in Section 3, paragraph 3, in so far as this appears suitable, to add to the deterrent effect.

5. Naturally, particularly suitable and reliable people are to be chosen for the spreading of such news.

* * * * *

By Order

(signed) Mueller
Authenticated: (signed) Bleeck
Chancellery employee

II
Chief of the Security Police and the SD
Bk. No. IV—226/42 Top Secret

Berlin, 12th June 1942
120 Copies 110th Copy

TOP SECRET

As Top Secret

to all Chiefs of the Security Police and the SD

to all Directors of Groups IV A, IV B, IV C, and IV E of the
Reich Security Head Office

to all Commanding Officers of the Security Police and the SD
to all Heads of the State Police District Offices

For Information

to the Inspectors of the Security Police and the SD

Subject: Third degree

Enclosure: 1 receipt

In order to simplify things the Decree of the Chief of the Security police and the SD of 1.7.37 Bk. No. 28 (II) 301/37 Secret (to be destroyed according to sealed orders) will be superseded by the following new ruling, with immediate effect:

1. Third degree may only be applied if it is clear from preliminary investigation that the prisoner can give information on important facts, as social or subversive to the State and to the Reich, but will not disclose what he knows, and the information cannot be obtained by investigation.
2. Third degree may, under this supposition, only be employed against Communists, Marxists, Jehovah's Witnesses, saboteurs, terrorists, members of resistance movements, parachute agents, anti-social elements, Polish or Soviet-Russian loafers or tramps. In all other cases, my permission must first be obtained.
3. Third degree may not be used to extort confessions of a prisoner's own crimes. Also this method may not be employed against persons who are temporarily detained by law for further investigations.

My previous permission is also necessary in exceptional cases.

4. Third degree can, according to the circumstances, consist, among other methods, of very simple diet (water and bread), hard bunk, dark cell, deprivation of sleep, exhaustion drill, but also in the administration of flogging (for more than 20 strokes a doctor must be consulted).

I. V.

(signed) Mueller

Authenticated: (signed) Nellmuth

Registered Secretary (Female)

TRANSLATION OF DOCUMENT 1534-PS

Berlin, W.8., Wilhelm Street 79, 30 January 37

My Fuehrer:

I thank you for the confidence which you have placed into me during the four years of your leadership and for the honour you do me in offering to admit me to the party. My conscience forbids me however to accept this offer. I believe in the principles of positive christianity and must remain faithful to my Lord and to myself. Party membership however would mean that I should have to face without contradiction the steadily aggravating attacks by party offices on the Christian confessions and those who want to remain faithful to their religious convictions.

This decision has been infinitely difficult for me. For never in my life I have performed my duty with greater joy and satisfaction than under your wise state leadership.

I ask to be permitted to resign.

With German Greetings!
Your very obedient,
(signed) Baron v. Eltz.

TRANSLATION OF DOCUMENT 1536-PS

TOP SECRET

Reich Minister for Air and C-in-C Air Force [initials written in ink]

12 August 1938

Draft

General Officers only
2 copies 2nd Copy
Access only through officer

General Staff 5.Division No. 21/38. Top Secret General Officers only (Ic)

Re: Freudenthal Affair

Ref: Abwehr II No. 42/38. Top Secret General Officers only.

A. As Appendix 1 please find enclosed a translation by Major d.G. Moericke on which the following comment is made:

1. The report from the Abwehrstelle Breslau still does not prove that the real circumstances are known to the two Sudeten Germans or even widely in Sudeten German circles. Nevertheless, there is still no need for Czech authorities to have any knowledge of them.

If the worst comes to the worst it is a question, in eventual remarks made by Macholdt to Pilz, of suppositions which are nevertheless very near to the truth of the matter.

2. For the time being there is no reason for stopping preparations for the Fr. operation.

3. Punishable behaviour on the part of Major Moericke cannot be deduced purely from the Abwehrstelle report. Rather, as far as can be seen from here, has Major Moericke carried out the task allotted to him skilfully and provided good evidence.

B. In the course of further preparations, the following measures are recommended:

1. Not a single word on the matter will be mentioned to informers [V-Leute].

2. The fields will not be purchased through middlemen. Neither will any influence be brought to bear on the owners in order to effect any change in the cultivation of the land according to local custom and the time of the year.

3. In the event of the suspected endangering of our plans, as a result of treachery, then it will be a question of sham reconnoitring of landing grounds in other areas and spreading of rumors as a camouflage.

4. It is worth considering whether Macholdt and Pilz cannot be called back to Germany on some pretext and retained here temporarily.

C. Further to the preparations which have already been carried out, the following proposals have been made by the Luftwaffe:

1. Continual supervision of the state of the agricultural cultivation of the landing grounds in question, in accordance with Appendices 2, 3, 4.

2. Continual supervision of the area around Freudenthal with regard to whether Czech defence measures against their intended employment are being undertaken.

Reconnoitring of further landing grounds, if possible by 10 September, in the following areas:

- a. Freudenthal—Spachendorf—Hof—Braunseifen—Freudenthal.
- b. Around Sternberg (up to a radius of 5 km).
- c. Around Olmuetz (up to a radius of 10 km).

As landing grounds are considered flat open stretches, above all dry meadows and clay strips with a surface area of approximately 500×500 m. and larger.

If possible it is requested that photographs similar to Appendices 3 and 4 are brought along.

By order of

Schmidt

Distribution:

Abwehr II, 1st Copy received with 4 appendices

General Staff 5th Division (Ic), 2nd Copy 13/8

[signature illegible]

Appendix 1 to Reich Minister for Air and C-in-C Air Force. General Staff 5th Division. No. 21/38. Top Secret General Officers only dated 12.8.38.

TOP SECRET

Berlin 4.8.1938

General Officers only

Access through Officer only

Transaction

Major of the General Staff Moericke, Air Attaché at the German Legation, Prague, states:

I was ordered by the General Staff of the Air Force to reconnoitre the land in the region Freudenthal/Freihermersdorf for landing possibilities.

For this purpose I obtained private lodgings in Freudenthal with the manufacturer Macholdt, through one of my trusted men in Prague.

I had specifically ordered this man to give no details about me to M, particularly about my official position.

I used my official car [Dienst Pkw] for the journey to Fr. taking precautions against being observed.

The manufacturer M. is head of the Sudeten German Glider Pilots in Fr. and said to be absolutely reliable by my trusted man. My personal impression fully confirmed this judgment. No hint of my identity was made to him, although I had the impression that M. knew who I was.

At my request, with which he complied without any question, M. travelled with me over the country in question. We used M's private car for the trip.

As M. did not know the country around Beneschau sufficiently well, he took with him the local leader of the F.S., a Czech reservist of the Sudeten German Racial Group, at the time on leave. He was in uniform. For reasons of camouflage I was entirely in agreement with this—without actually saying so.

As M., during the course of the drive, observed that I photographed large open spaces out of the car, he said “Aha, so you're looking for airfields!” I answered that we supposed that, in the case of any serious trouble, the Czechs would put their airfields immediately behind the line of fortifications. I had the intention of looking over the country from that point of view.

To my question as to when the farmers in this part were generally in the habit of ploughing up the fields he answered: “Always immediately after the harvest.”

I thought that in this way he wanted to express the fact that the Czechs would no longer be able to use the fields as airfields even shortly after harvest.

Before leaving Fr. I bound M. to absolute secrecy as regards what he had seen.

From the conversation between M. and the Leader of the F.S. in Beneschau, whose name I do not know, I noticed that they knew several of the Abwehr informers [V-Leute] in Freudenthal and Beneschau. Both M. and the 2nd companion are minor informers [V-Leute].

As I have at the moment no incentive to believe that M. has not kept his promise, I can only presume that Pilz is the same person as the leader of the F. S. in Beneschau, who, accompanied us at the time, and a subordinate informer [V-Mann] to the informer [V-Mann] in the Security Office [Abwehrstelle] at Breslau.

I believe it to be out of the question that the real purpose of my reconnaissance be known.

Should measures be invoked against Macholdt or Pilz on the grounds of the report from the Security Office at Breslau, I urgently request a hearing beforehand.

Moericke, Major d. G.H.

g. w. o.

Schmidt, Maj. d. G.

Appendix 2 to Reich Minister for Air and C-in-C of the Air Force, General Staff 5th Division.

No. 21/38. Top Secret General Officers only dated 12.8.38.

[Section of map]

General Officers only

Access through Officer only

Appendix 3 to Reich Minister for Air, etc.

[photograph]

Landing-ground south of Freudenthal; taken from southern edge of Freudenthal looking west.

Appendix 4, Sectional picture of airfields *a* and *b* [4 photographs].

TRANSLATION OF DOCUMENT 1538-PS

SECRET

Office Foreign Intelligence Dept Foreign Affairs Nr 173/41 (g.K.Chefs III org)

May 24, 1941

[Stamp] Air-Corps-Operational, 7 copies

Staff I a, 2 copies

May 24, 41

No. 279.

[Stamp] TOP SECRET

(to be forwarded) By Officer only

To be presented to the Chief of the Armed Forces High Command.

[Marginal note:]

The Military Attaché Tokio reports with No. T 47 signed May 23.

In interview with Akita on handling of relations between Japan and USA in the press, desire was expressed to hear Okamoto on the form in which Japan would start hostilities in case of a war between USA and Germany. Instead of a reception by Okamoto visit with Akita who explained:

[Marginal note:]

To be presented to the Chief of the Office Foreign Intelligence (simultaneously for ZL).

1. In case USA enters war, Japan acknowledges treaty obligations at once. However, would not open hostilities immediately. Preparations for attack on Singapore and Manila stand.

2. Possible war Russia-Germany causes USA entry into war. Japanese action as mentioned under 1 plus preparation of possible attacks (on) Vladivostok and Blagowesqensk.

[Marginal note:]

(To be presented to the) Operational Staff of the Air-Forces I. C.

3. Conclusion of conflict with China important before new tasks for Japanese Armed Forces. I am stressing first that Japanese recognition of obligations under treaty needs confirmation by immediate opening of hostilities.

Signature: Bueckner

U R Ia

Schmid [in crayon]

May 24

Copy to:

L.

3 Skl

Sonderstb H.H.K.

TRANSLATION OF DOCUMENT 1541-PS

TOP MILITARY SECRET

The Supreme Commander of the Armed Forces High Command/armed forces.

Command Staff/armed forces, Section L Nr. 33 406/40

TOP SECRET

Matter of Chief

Direction Number 20

Fuehrer #9

Only through Officer

Operation Marita

13 December 1940

[illegible notations]

1. The result of the battles in

12 Copies, 9th Copy

Albania is not yet decisive. Because of a dangerous situation in Albania it is doubly necessary that the British endeavor be foiled to create airbases under the protection of a Balkan front, which would be dangerous above all to Italy as well as to the Rumanian oil fields.

2. My plan therefore is (a) to form a slowly increasing task force in Southern Rumania within the next months.

(b) After the setting in of favorable weather, probably in March, to send this task force for the occupation of the Aegean North coast by way of Bulgaria, and if necessary to occupy the entire Greek mainland (Operation Marita). The support of Bulgaria is to be expected.

3. For the *concentration of the task force* in Rumania are necessary:

(a) The 16th Panzer Division which arrives in December on an army mission, and whose task remains unchanged.

(b) Following will be a task force of about seven divisions (final wave) to be dispatched to Southern Rumania. Engineers in the required strength for the preparation of the Danube crossing can conveniently be attached for transport to the 16th Panzer Division (as instructional troops). The field commander of the army will await my decision for the proper moment for them to be employed on the Danube.

(c) Preparations are to be made for further transport to take in the calculated maximum for the operation Marita (total of 24 divisions).

(d) It is the mission of the Air Force to give air protection to the concentration, as well as preparing the necessary primary and reserve installations on Rumanian soil.

4. The *Operation Marita* itself is to be prepared on the following basis:

(a) The primary mission of the operation is the occupation of the Aegean coast, and the Bay of Saloniki. It may be necessary to continue the attack across Larissa and the Isthmus of Corinth.

(b) Flank protection against Turkey will be the task of the Bulgarian forces, although it is to be secured and strengthened through the alerting of German Forces.

(c) It is not certain whether the Bulgarian forces will take part in the attack. Likewise the Yugoslavs position cannot yet be clearly determined.

(d) It will be the mission of the *Air Force* to support the drive of the army in all phases, to liquidate the opposing air force, and, as far as possible, to occupy British strongpoints on the Greek Islands through airborne landings.

(e) The question in which fashion the Operation Marita is to be supported by the Italian forces, and how coordination of the operations is to take place, awaits a later decision.

5. The military preparations which will produce exceptional political results in the Balkans demands the exact control of all the necessary measures by the General Staff.

The transport through Hungary and the arrival in Rumania will be reported step by step by the General Staff of the armed forces and are to be explained at first as a strengthening of the Germany Army mission in Rumania.

Consultations with the Rumanians or the Bulgarians which may point to our intentions as well as notification of the Italians are each subject to my consent; also the sending of scouting missions and advanced parties.

6. After the completion of the Operation Marita it is contemplated to use the access of the forces used therein for a *new undertaking*.

7. I anticipate reports from the Chiefs concerning their plans, which has already taken place as regards the Army. I want to be presented with exact timetables for the planned preparations, as well as for the necessary recallings from the armament industry (reconstruction of Furlough Divisions).

Signed: Adolf Hitler

Witnessed: [signature illegible] Captain in the General Staff

Distribution:

Commander of the Armies (Operational Section), 1st Copy

Commander of the Navy (Sea War Direction), 2nd Copy

Commander of the Air Force (Air Force General Staff), 3rd Copy

Chief of the German Army Mission to Rumania, 4th Copy

Supreme Command of the Armed Forces:

Command Staff, 5th Copy

Section L, 6-9 Copies

UNV, 10th Copy

Chief of Army Transport Forces, 11th Copy

Foreign Counter Intelligence Office, 12th Copy

TRANSLATION OF DOCUMENT 1544-PS

File Memorandum

on my parting visit with the Chancellor

After an exchange of irrelevant courtesies, the conversation turned to the speech of the Chancellor [Bundeskanzler]. I said to him that though he had used very cordial expressions on the German mission of Austria his dramatic advocacy of her independence which he apparently considered threatened had drowned out this testimony to a large extent, to say nothing about some unnecessary pinpricks against Germany. To his assertion that he had reestablished his authority in the country by this speech I added that this speech also had provoked a debate yesterday in the French Chamber. In my opinion it was greatly to be regretted that the Austrian question had again become the center of European discussions. For Germany an Austrian independence supported by French and Czech crutches was intolerable, for it would lead to arguments which might easily endanger the peace concluded recently.

The Chancellor admitted this without qualifications and requested me to inform the Reich Foreign Minister as soon as possible that neither he nor any other political agency in Austria had instigated this debate in the French Chamber, and that he shared my opinion on its extraordinarily disrupting effects. On my request he stated his willingness to publish Sunday morning

an article in the official paper “Wiener Zeitung” (Viennese Newspaper) in which he would clearly detach the problem of Austrian independence from French interests. And he had instructed the Austrian press to carry only meagre excerpts of the debate in the Chamber.

I then introduced into the conversation the widespread opinion that he had acted under “brutal pressure” in Berchtesgaden. I myself had been present and been able to state that he had always and at every point had complete freedom of decision. The Chancellor replied he had actually been under considerable moral pressure, he could not deny that. He had made notes on the talk which bore that out. I reminded him that despite this talk he had not seen his way clear to make any concessions, and I asked him whether without the pressure he would have been ready to make the concessions he made late in the evening. He answered: “To be honest, no!” It appears to me of importance to record this statement.

In parting I asked the Chancellor never to deceive himself that Austria could ever maintain her status with the help of Non-German, European combinations. This question would be decided only according to the interests of the German people. He asserted that he held the same conviction and would act accordingly.

Vienna, 26 Feb 1938

/s/ Papen

PARTIAL TRANSLATION OF DOCUMENT 1546-PS

N. THE OCCUPATION OF NORWAY ON 9 APRIL 1940.

[RAEDER MEMORANDUM]

In the beginning of October 1939, I had a discussion on the Norwegian question with the Commander of Naval Group East, Admiral Carls, with whose opinions I completely agreed. After that I gave the Fuehrer an oral report on the dangers of an occupation of Norwegian bases by the British and on the possibilities to forestall such a move. The Fuehrer to whom I submitted a short memorandum promised to think it over. About at the beginning of December, the Fuehrer received reports on the activity of the National Samling movement in Norway under the leadership of Quisling and its successes. The incorporation of Norway into a Germanic empire

under German leadership and with elimination of English influence was the aim of this movement. These matters were obviously carried to the Fuehrer by Rosenberg. Around the 12 Dec. 1939 the Fuehrer commanded the OKW to effect the preparations for the occupation of Norwegian bases in the coming spring. As it was a question of an operation of *all three branches of the Armed Forces* it had to be worked out by the Armed Forces High Command in which the special Naval adviser took the chief part and took the lead in working it out in accordance with a memorandum prepared by the Sea Warfare Command and in close cooperation with the Sea Warfare Command.

I had left the *Danish Question* open in my report to the Fuehrer supposing that after the occupation of the Norwegian coast the English influence in Denmark could be completely eliminated in such wise that the intelligence service there could not cause any more harm and the Danish Government would comply with the demands of the German High Command without function. However, the Fuehrer decided to occupy Denmark at the same time.

The Navy made the decision to transport the *first group* of the occupation troops with their equipment on warships and to land them under their immediate protection. Even though the combat-readiness of the warships was impaired by loading them with troops, by this method the possibility of a punctual landing at the ordered time was best provided for. Further groups with munition and supplies were to be loaded on steamships which were to arrive simultaneously or soon after the warships. The difficulty was that at that time the divisions of the army still demanded to be transported with all equipment and “rear echelon service” while a considerable limitation of their equipment would have been necessary and possible. Considerable demands of transport space were made by the Air Forces for their ground organization for which no experience existed at all up till then. The Navy had already in peacetime an organization of “Naval Service Offices” in all large German ports which worked in close touch with the Merchant Marine and were at all times exactly informed of the location and the readiness for sailing of the German merchant ships of their area. Material for the rebuilding of these ships for transport purposes was at their disposal, plans for such rebuilding were ready in their hands. In January these offices received directives to have the necessary transport space ready in spring. A

transport in a westerly direction was given as the reason for camouflage purposes. The Air Force did not join this organization that also was very favourable for secrecy, but gave the order for their extensive transports to a certain firm with which it had already cooperated at the time of the transports to Spain. This included certain dangers for secrecy and eliminated the experience of the Navy. Moreover, the command of the Air Force did not approach with particular enthusiasm this task in the work of which not the Air Force, but the not so well liked Navy, had the leading part. In the Navy the impression existed that some things could have been better done with regard to the reconnaissance of airfields in Norway and to the preparations for the improvement and the building of airfields.

The preparations for the enterprise were rendered more difficult by the long and very cold winter of 1939/40 which delayed quite a bit the bringing up of the steamers involved in the transport from the eastern part of the Baltic Sea and their loading. With all the effort to forestall the English in the occupation—their unneutral action against the German supply ship in Flekkefjord in 1940 made the apprehension of the German Command appear only too well founded—the date for the landing was fixed by the Fuehrer not earlier than on April 9, 1940 in which regard it could not be helped that according to the latest information received the English planned an enterprise in Norwegian waters for April 8—it remained open whether mine-laying on occupation of air bases. My request to fix the landing on April 7 was unfortunately not granted by the Fuehrer.

The general order for the execution of the landing was signed by the Fuehrer; detailed directives valid for all armed forces were given by the High Command in which, as already mentioned, the special Navy adviser took the lead. The ports of embarkation were distributed from Wesermünde to Stettin-Swinemünde along the coast. The transportation of the troops to the ports was undertaken only in the last hours before departure without their knowing where they were being transported. It was particularly difficult for the keeping of the secret that for the enterprise in Northern Norway some units of Southern German mountain troops were destined whose appearance in Northern Germany was already conscious enough by itself. But we succeeded in keeping them uncertain about the destination until to their complete surprise, they were embarked on the destroyers in Wesermünde in the night of April 7. The number of the

Army and air units I cannot state anymore from memory at present. Also, the composition of the landing troops I can give only in general terms.

TRANSLATION OF DOCUMENT 1551-PS

1936 REICHS MINISTERIALBLATT i.V., PAGES 946-948

Assignment and Channels of the Chief of German Police within the
Ministry of the Interior of 26 June 1936

(1) For your information, I publish in the enclosures my edicts, concerning the appointment of a chief of regular police and that of a chief of security police (enclosure (1)), and concerning the administrative divisions within the realm of the German police (enclosure (2)), effective today.

(2) Official communications in regards to police matters with Reich and Prussian Ministry of the Interior are to be handled as follows:

(a) Letters and communications for me personally, as well as letters and communications of fundamental importance, are to be addressed:

To the

Reichsleiter SS and Chief of German Police in the Reich
Ministry of the Interior

Berlin SW 11
Prinz-Albrecht Str. 8

(b) Letters and communications, which refer to matters to be handled by the headquarters of the regular police according to my edict about the administrative divisions within the realm of the Chief of German Police, are to be addressed:

To the

Reichsleiter SS and the Chief of German Police in the Reich
Ministry of the Interior (Chief of Regular Police)

Berlin NW 7
Unter den Linden 74

(c) Letters and communications, which refer to matters to be handled by the headquarters of the Security Police according to my edict about the

administrative divisions within the realm of the Chief of German Police, are to be addressed:

To the

Reichsleiter SS and the Chief of German Police in the Reich
Ministry of the Interior (Chief of Security Police)

Berlin SW 11
Prinz-Albrecht Str. 8

Phone # Chief of German Police: A2 (Flora) 0040

Phone # Chief of Regular Police: A2 (Flora) 0034

Phone # Chief of Security Police: A2 (Flora) 0040

To the lower agencies, the communities and community organizations as well as bodies of public law.

To the highest Reich officials, the Prussian Prime Minister, the Prussian Minister of Finance, the General Manager of the German Railroad, the Directorate of the Reichsbank by copy.

Berlin, 26 June 1936

Inclosure #1

The Reichsleiter SS and Chief of the German Police in the Reich Ministry of the Interior

Appointment of a Chief of Regular Police and a Chief of Security Police

(1) On the basis of the execution edict of the Reich Minister of the Interior to the edict of the Fuehrer and Reich Chancellor, in reference to the appointment of a Chief of German Police, I herewith appoint General of Police Kurt Dalwege as chief of the regular police and SS Gruppenfuehrer Reinhard Heydrich as Chief of the Security Police.

(2) From the entire police force [Vollzugspolizei] the following come under:

The Chief of Regular Police:

Safety Police [Schutzpolizei]
Rural Police [Gendarmerie]
Local Police [Gemeindepolizei]

The Chief of Security Police:

The Political Police
The Criminal Police

(3) The authority over fields of action of the Chief of German Police, not mentioned here, is explained in the plan of administrative division (Inclosure #2)

To the (a) General of Police Daluge, (b) SS Gruppenfuehrer Heydrich.

Inclosure #2

Berlin 26 June 1936

The Reichleiter SS and Chief of the German Police in the Reich Ministry of the Interior O/S No 2/36

Administrative division within the realm of the Chief of German Police

On the basis of #1 of the edict of the Reich and Prussian Minister of the Interior of 25 June 1936 (not published), for the execution of the edict of the Fuehrer and Reich Chancellor regarding the appointment of a Chief of German Police, I therefore order (with permission of the Reich- and Prussian Minister of the Interior):

1. The functioning of the branches, under the jurisdiction of the Chief of German Police, will be handled by two (2) headquarters:

a. The regular police, which will include the following branches:

Household, pay, welfare, economy and police law.

General administrative affairs of the state police, as far as they concern the regular police.

Safety police.

Traffic police.

Rural police [Gendarmerie], local police [Gemeindepolizei],
civil service legal affairs.

Medical and veterinary affairs.

National defense and army matters, as far as they have been put
under the jurisdiction of the regular police.

Personnel affairs of officials of the regular police.

(The security police is to participate in all actions, which affect the security
police).

The headquarters “Regular Police” is entrusted with the functioning of the
following branches in conjunction with the headquarters “security police” if
the latter are concerned:

Administrative police; and

Personnel affairs of police presidents and police directors.

b. The security police, which will include the following branches:

Political police,

Lodge affairs, freemasonry, fraternity affairs, criminal police,

Disciplinary affairs within the criminal police,

General administrative affairs of the state police, as far as the
security police is concerned,

Press law,

Weapons law and traffic with arms,

Passports affairs:

General cases.

Special cases.

Agreements with foreign states about the free passage
of the border [kleinen Grenzverkehr].

Foreign legionnaires (passport matters).

Immigration of Jews from the East.

National defense and army matters, as far as they have been put under the jurisdiction of the security police.

Alien affairs:

General cases.

Police regulations for foreigners.

Special cases.

Fugitives [refractaere], deserters.

Deportations.

Reimbursement.

Foreign workers.

Border disputes.

Extradition of foreigners.

Registration of foreigners.

Statistics of foreigners.

Border disputes; Foreign Legion.

Personnel affairs of all officials of the security police.

Personnel affairs of all officials of the political and criminal police.

(The regular police is to participate in all actions, which affect the regular police).

2. I confer the leadership of the headquarters Regular Police upon General of Police Daluge. I confer the leadership of the headquarters Security Police upon SS Gruppenfuehrer Heydrich.

3. The chiefs of the headquarters Regular Police and Security Police will sign:

For the Chief of the German Police
“acting for”

For the Reich and Prussian Minister of the Interior
“by order”

The chiefs of the headquarters Regular Police and Security Police in their
offices, in which cases their department heads and assistants are to sign:

“by order”

* * * * *

To

- a. General of Police Daluge
- b. SS Gruppenfuehrer Heydrich

Communication to _____

Report on Sterilization in Germany and occupied countries to be sent to the
members of Committee I Submitted by Dr. B. Ecer ANNEX B

Detailed Statement on the murdering of ill and aged people in Germany

1. The murdering can be traced back to a secret law which was released
sometime in Summer 1940.

2. Besides the Chief Physician of the Reich Dr. L. Conti, the Reichsfuehrer
SS Himmler, the Reichs Minister of the Interior Dr. Frick as well as other
men, the following participate on the introduction of this secret law:

a. The Councillor of the Ministry Dr. Herbert Linden of the Reich's
Ministry of the Interior.

b. Dr. Staehle-Nagold, the Chief Physician of Wuerttemberg.

c. Councillor of Medicine /Obermedizinalrat/ Dr. Hermann Pfannmueller,
Director of the Sanatorium and Nursing Institution Eglfing-Haar near
Munich.

d. Professor Dr. Werner Heyde, Director of the Psychiatric and Neurological
Clinic in Wuerzburg.

* * * * *

3. As I have already stated, there were / after careful calculation / at least
200,000 mainly mentally deficient, imbeciles, besides neurological cases

and medically unfit people /these were not only incurable cases/, and at least 75,000 aged people.

4. The murders were mainly accomplished in Muensingen/Wuerttemberg and Linz o/Danube; several gas-chambers with cremation chambers directly attached were constructed there. As the gas-chambers are next to the training grounds of the troops in Muensingen, it is believed that the mentally deficient who were murdered there, were used for experimenting with new poison-gases.

5. The transport from the institutions to the gas-chambers is carried out by SS Kommandos. These call themselves "Gemeinnuetzige Transport A. G., Berlin, Luetzowufer." This Limited Company also stores the individual medical case histories of the murdered inmates of the institutions.

6. The inmates of the many smaller and middle-sized institutions were murdered almost without exception. The larger institutions are partly—to keep up the pretence to the outside world—still at hand, but they now only have a fraction of the original number of their inmates; for example there are now only some 500 inmates instead of 2500 in Berlin-Buch; in Stadtroda/Thuringen only about 150 instead of 600; in Kaufbeuren/Bayern only 200 instead of 1000, etc. Of the larger Sanatoriums and Nursing Institutions the following were already closed down completely some time ago; Illenau/Baden 800 inmates; Berlin/Herzberge 2500 inmates; Kreutzburg/Oberschlesien 1500 inmates; Sonnenstein/Sachsen 800 inmates; Werneck/Unterfranken-Bayern 111 inmates; Steinhof/Wien 3000 inmates, and others, most probably now also Schleswig with 1000 beds. Guenzburg with 400 etc. etc.

* * * * *

Written in December 1941,
/sgd/ Dr. T. Lang

This is to certify, that the above report by Dr. T. Lang dated Dec. 1941 is part of the original report of the Czechoslovak War Crimes Commission.

Nurnberg 8. Dec. 1945

for Col. Dr. Ecer

Capt. Dr. Hochwald

TRANSLATION OF DOCUMENT 1573-PS

SECRET

Copy

The chief of the Security Police and the Security Service. IV D
3-3 B/41 g.Rs.-

Berlin, 18 Jun. 1941

TOP SECRET

Express letter

To all state police Administrative office

(To the State Police, attention SS Stubaf. RR. Nosske or representative at
Aachen)

Subject: Measures to be taken against Emigrants and civilian workers who
came from the great Russian areas and against Foreign workers.

Reference: None

To prevent the unauthorized and arbitrary return of Russian, Ukrainian, White Ruthenians, Cossack and Caucasian emigrants and civilian workers from the territory of the Reich to the East and to prevent attempts at disorder by foreign workers in the German production, I decide as follows:

1. The managers of the branch offices [Stuetzpunkt] of the Russian, Ukrainian, White Ruthenian and Caucasians trustee office [Vertrauensstellen] as well as the relief committee and the leading members of the Russian, Ukrainian, White Ruthenian, Cossack and Caucasian emigration organisations are to be notified immediately that they are not allowed to leave their domicile without permission of the security police until further notice. Also they are to be told to apply the same measures to the members who are under their care. Their attention is to be called to the fact that they will be arrested because of unauthorized leaving of the place

of work and domicile. I request you to have a check up of the attendance of branch office leaders if possible by daily requests in these concerns.

2. Emigrants and foreign workers are to be arrested if it seems necessary in the situation if there is no doubt of their guilt and if they are under the suspicion of having been active for the U.S.S.R. in transmitting news. The measure is to be in readiness, however, it should not be executed before the pass word "Fremdvoelker" has been transmitted by means of Urgent telegram.

3. In case of refusals to work or in making propaganda for the enemy or suspicion of sabotage among all foreign laborers arrests and protective custody should be applied most strictly.

4. Persons who violate issued decrees or who try to provoke disturbances in factories or meetings by inflammatory speeches to the emigrants or foreign workers are also to be arrested.

5. It is an absolute necessity for the maintenance of German production to its capacity that emigrants and foreign workers remain at their places of work. In case, conditions in certain communities require that special measures be taken to reach this objective. I ask for appropriate action and report.

The RSHA to be kept posted how these measures are carried out. The decree also is to be applied to emigrants who came from the Baltic states—Lithuanians, Latvians and Estonians.

By order

/s/ MUELLER

Certified correct: /s/ Signature

(L.S.)

Chancellery clerk.

Aachen, 3 July 1941

Note: The original decree can be found under IIIc under File No. 20/41 top secret

Koernert
Krim-Assistent

SECRET

Secret State Police, State Police Bldg.-Aachen
II E br.-No. 6/41 top Secret

Aachen, 22 Jan. 1942

1. The written record of these proceedings was worked out and sent through as a secret matter under II E under No. 303/41.

2. R II deliver taken care of 22. Jan.

3. To the Top Secret File

By order

[illegible] Koer

TRANSLATION OF DOCUMENT 1574-PS

SECRET STATE POLICE [Gestapo]

Secret Police Office, Reich Security Head Office. IV C 2—5719/ 4540/43 g

Berlin SW 11 Prinz Albrecht Strasse 8. 19 January 1944 Warrant for
“Protective Custody”

Christian Name & Surname: *James, Cook Steele.*

Date and Place of birth: 29.20.1918 at Malseta, S. Rhodesia

Occupation: Warrant Officer

M or S: Married

Nationality: British Subject

Race (to be stated in case of non-Aryans)

Address: Gresham Farm Marandellas, S. Rhodesia

is being taken in protective custody.

Reasons

It has been established by the State Police that he/she endangers the existence and the security of the people and the state by his/her conduct, in

that he/she has been proved to be guilty of activities to the detriment of the German Reich and there is reason to suspect that he would, if released, commit acts prejudicial to the interests of the Reich.

received 23.1.44. 1400 hrs

[initials]

(Sgd) Dr. Kaltenbrunner
Certified correct: (sgd) Kriminalrat

Steele should not know of the existence of this warrant [written in pencil; illegible initials follow].

TRANSLATION OF DOCUMENT 1582-PS

Bra/V

SS-Untersturmfuhrer Dr. med. Sigmund RASCHER
MUNICH, Trogerstr. 56

Dear Dr. Rascher:

Shortly before flying to Oslo, the Reichsfuehrer SS gave me your letter of 15 May, 1941, for partial reply.

I can inform you that prisoners will of course be gladly made available for the high-flight researches. I have informed the Chief of the Security Police of this agreement of the Reichsfuehrer SS, and requested that the competent official be instructed to get in touch with you.

I want to use the opportunity to extend my cordial wishes to you on the birth of your son.

I shall refer as soon as possible to the second part of your letter.

Heil Hitler
By order [initials] R Br
SS-Sturmabfuhrer

TRANSLATION OF DOCUMENT 1583-PS

SECRET

Reichsfuehrer SS.
RG/V

Field Command Post 16 November 1942
Personal Headquarters, Reichsfuehrer SS

1. To SS Lt. Gen OHL, BERLIN

Dear OHL,

The following struck me during my visit to Dachau on the 13 Nov 1942 regarding the experiments conducted there for the saving of people whose lives are endangered through exposure [Unterkuehlung] in ice, snow or water and who are to be saved by the employment of every method or means:

I had ordered that suitable women are to be set aside from the Concentration Camp for these experiments for the warming of those who were exposed. Four girls were set aside who were in the Concentration Camp due to loose living, and being prostitutes, they formulate a danger of contagion. Among those four was a 21 year old girl named Ursula Kraus, who naturally was not to be set aside for this. Kraus was a person under the care of the State [Fuersorgezoebling] and has already been sick twice with venereal disease. Nevertheless she belongs to that type of girl upon whom the attempt must be made in order to save her for the German people and for her own later life.

In addition, I found during this opportunity that some madmen in the women's Concentration Camp had told the feminine prisoners at the time of selection of prostitutes for the Camp brothel, that those who volunteered would be released after a half year.

I order:

1. Only such prostitutes are to be selected for the Camp brothel who from the beginning can be taken for granted as not being able to be saved for a later regulated life, judging from their previous living and bearing. Also, that we are not guilty of spoiling a person who could still be saved for the German people. Such women can only be released from the Concentration Camp if they according to their age, do not constitute a destruction to the youth, to health (by contagion), or to the public welfare and security. The money which they earn in the camp brothel shall be an old-age security for them.

2. Fundamentally, all youths who can still be saved are to be segregated from the older prostitutes in living quarters and work. A difference must be made between those who cannot be reformed,—who must remain isolated in the camps, and those who came into the camp to be reformed and can eventually be saved. The best and most ideologically inclined custodians are to be employed for the latter.

In addition, I refer to the fact that the whipping penalty as a whole but especially for women, is to be the last measure, it is only to be used

a. if all other punishment such as arrest, solitary confinement, diet of bread and water, hard labor, were of no avail.

b. in individual cases of desertion or in actual attacks, which must be inflicted for intimidating and especially exemplary reasons. The whipping penalty is no instrument for responsible commanders or supervising custodians who are too lazy or incompetent to reeducate. In all cases in which food was stolen, the guilty one is to be placed on bread and water from 3 to 5 days as punishment for first offense. The whipping penalty is only then to be inflicted upon repeated offenses.

I ask you to personally check the conditions in the women's concentration camps. Otherwise we must feel guilty since girls who could still be saved will be ruined for always through false treatment and repeated bad company in which we placed them (exactly as is the case in the prisons and reform schools of the law).

Heil Hitler!

Your

(signed) H. Himmler

2. Inspector of the Concentration Camps, Oranienburg

Carbon copy with request for acknowledgment.

SS Lt. Col.

PARTIAL TRANSLATION OF DOCUMENT 1584-I-PS

Teletype Goering to Himmler, dated 14 February 1944

TOP SECRET

CHIEF REICH SECURITY OFFICE

Teletype Section

URGENT

Transmitted by [Initials]

Received

<i>Hour</i>	<i>Day</i>	<i>Month</i>	<i>Year</i>	<i>from</i>	<i>by</i>
240	15	2	44	E2	[Initials]

FS—No. 24411

t-KR-RM Asien Nr. 0170 14/2 2030—QEM—GKDOL—to Reichsfuehrer-SS Reichs Minister Himmler, Berlin SW 11-Reference: Letter Journal No. 72/44.-

Subject: Formation of the 7th Airforce group squadron for special purposes 7 (Z.B.V.7)

I received your request to form another squadron of airforce group for special purposes 7 (Z.B.V.7) and ordered examination by the air force operational staff [Luftwaffenfuehrungsstab]. At the same time I ask you to put at my disposal as great a number of Concentration Camp [K Z] convicts as possible for air armament, as this kind of manpower proved to be very useful according to previous experience. The situation of the air war makes subterranean transfer of industry necessary. For work of this kind Concentration Camp [KZ] convicts can be especially well concentrated at work and in the camp. Such installations are necessary in order to secure production of the now fully developed most modern airplanes. The Fuehrer upon his visit in Insterbrug has attached great value to these airplanes. Intermediate negotiations have already been held between my and your departments. I would be especially grateful for your support in carrying out this task.

Heil Hitler—Yours Goering, Reich Marshal of Greater Germany. ADF 391/44 GKDOS.

TRANSLATION OF DOCUMENT 1584-III-PS

TOP SECRET

The Reichsfuehrer-SS
Personal Staff

Field Command Post.
10 March 1944

Diary No.

Subject: Use of Prisoners in the air craft industry-M.
To the SS-Brigadefuehrer FEGELEIN
Fuehrer Headquarters

Dear Hermann!

Enclosed I am sending you copy of a letter for your information. It was given to the Reich marshal on 9 March 1944 by the Reichsfuehrer-SS.

Heil Hitler!
(initialled) DR

1 enclosure

9 March 1944

1879/44 secret

Field-command office

Subject: Employment of prisoners in the aviation industry.
Reference: Teletype of 14 February 1944.

Top Reich Secret

Most honored Reichsmarshal

Following my teletype letter of the 18 Feb. 44 I herewith transmit a survey on the employment of prisoners in the aviation industry.

This survey indicates that at the present time about *36000 prisoners* are employed for the purposes of the air force. An increase to a total of *90,000 prisoners* is contemplated.

The production is being discussed, established and executed between the Reich ministry of aviation and the chief of my economic-administrative

main office, SS-Obergruppenfuehrer and General of the Waffen-SS, Pohl respectively.

We assist with all forces at our disposal.

The task of my economic-administrative main office, however, is not solely fulfilled with the delivery of the prisoners to the aviation industry as SS-Obergruppenfuehrer Pohl and his assistants take care of the required working speed thru constant control and supervision of the workgroups [Kommandos] and therefore have some influence on the results of production. In this respect I may suggest consideration of the fact that in enlarging our responsibility thru a speeding up of the total work, better results can definitely be expected.

We also have for some time adjusted our own stone-quarries to production for the airforce. For instance in Flossenbuerg near Weiden the prisoners employed previously in the quarry are working now in the fighter plane program for the Messerschmitt corporation, Regensburg, which saw in the availability of our stone-mason shops and labor forces after the attack on Regensburg at that time a favorable opportunity for the immediate partial transfer of their production. Altogether 4000 prisoners will work there after the expansion. We produce now with 2000 men 900 sets of engine cowlings and radiator covers as well as 120,000 single parts of various kinds for the fighter ME 109.

In Oranienburg we are employing 6000 prisoners at the Heinkel works now for construction of the HE 177. With that we have supplied 60% of the total crew of the plant.

The prisoners are working without fault. Up till now 200 suggestions regarding the improvement of work have been handed in at Heinkel from the ranks of the prisoners, which were used and were rewarded with premiums. We are increasing this employment to 8000 prisoners.

We also have employed female prisoners in the aviation industry. For instance at the mechanical workshops in Neubrandenburg 2500 women are working now in the manufacture of devices for dropping bombs and rudder control. The plant has adjusted the total serial production to employ prisoners. In the month of January 30,000 devices as well as 500 rudder

controls and altitude regulators have been manufactured. We are increasing employment to 4000 women. The performance of the women is excellent.

In our own plant in Butschowitz near Bruenn [Brno] we produce also for the air force, there however with civilian workers. This plant supplies 14,000 wooden-built rear control apparatus for ME 109 to the Messerschmitt corporation, Augsburg.

The movement of manufacturing plants of the aviation industry to subterranean locations requires *further* employment of about 100,000 prisoners. The plans for this employment on the basis of your letter of 14 Feb 1944 are already under way.

I shall keep you, most honored Reichsmarshal, currently informed on this subject.

Heil Hitler
(initialed) HH

Use of Prisoners for the Aircraft Industry.

<i>Camp & Plant</i>	<i>Number of Prisoners</i>		<i>Man-Hrs</i>	<i>Production</i>
	<i>planned</i>	<i>used</i>	<i>January</i>	
<i>Auschwitz:</i>				
AA fortification staff, Auschwitz	250	191	48,788	Construction of AA positions.
Ost-Maschinenbau GmbH, (Factory), Schwientochlowitz	1,500	730	196,067	AA gun production: <i>prod. result Jan:</i> 105 guns.
Siemens & Schuckert, Auschwitz	1,500	90	19,240	at first completion of plant, later switch and control instruments for night fighters.
<i>Buchenwald:</i>				

Erla-Maschinenwerk GmbH., Leipzig	2,800	1,550	176,105	air plane parts production <i>prod.</i> <i>result Jan:</i> 360 wings for BF 109 290 fuselages BF 109 304 tail assemblies
Junkers-Flug-& Motorenwerke AG., Schoenebeck	2,000	1,310	362,619	air plane parts production finishing of AA cartridge cases;
Polte, Arnstadt	100	87	24,112	<i>prod. result Jan:</i> 181,000 AA cartridge cases.
Leichtmetallwerke Rautenbach Wernigerode	1,200	772	189,832	production of cylinder blocks for airplane motors
<i>Dachau:</i>				
High frequency research	15	15	3,290	high frequency development
BMW, Munich-Allach	12,000	3,434	908,606	air plane motor production— construction & subterranean building
Dornier Works GmbH., Neuaußing	3,000	60	9,527	at first construction of workers' camp,

				later plane part production.
Engineer Kimmel, Munich	25	23	7,925	building of radio measuring instruments <i>prod. result Jan: 35 RC-generators.</i>
Air force research institute, Munich	400	40	—	building of air force research institute Ottobrunn
Messerschmitt AG., Augsburg—				
” Haunstetten	3,400	2,695	740,640	air plane production Me
” Gablingen	600	352	—	air plane production Me
” Dachau	600	192	35,766	manufacture of plane parts
” Kottern	1,000	341	57,050	first building of factory, then plant parts production
Air force planning office, Sudelfeld	25	25	4,660	building of experimental station for high frequency
Praezifix, Dachau	400	356	94,067	production of standard plane parts and screws
H. Sachse KG. Kempten.	1,000	374	91,630	first building of factory/start production of

				propeller control instruments.
<i>Flossenbuerg:</i>				
Dt. Erd- & Steinwerke GmbH, Floss.	4,000	1,911	422,158	plane parts production for Me <i>prod. result Jan:</i> 900 noses & radiator covering; 120,000 parts.
Erla-Maschinenwerk GmbH,				
Johanngeorgenstadt	600	564	117,524	air plane parts production.
Milsen	500	30	—	air plane parts production.
Geramic Works Bohemia, Neurohlau	100	100	10,764	plane parts production.
Luftfahrtgeraetewerk, Zwodau	1,500	199	28,314	instrument prod. for air force.
<i>Herzogenbusch:</i>				
Dt. Erd- & Steinwerke GmbH. Herzogenbusch	600	411	35,248	air plane disassembling plant <i>prod. result Jan:</i> 12 planes disassembled 35 motors ” 120 wings ”
Air force field construction office 3	1,000	265	64,800	runway construction for airport

Mauthausen:

Dt. Erd- & Steinwerke
GmbH., Mauthausen

500

423

82,632

plane parts
construction for Me
prod. results
January: 25 plane
fuselages

Flugmotoren GmbH.,
Wiener-Neudorf

3,000

1,983

417,328

first building, later
plane parts prod.

Heinkel-Werke AG,
Schwechat

3,200

2,065

486,206

air plane parts
production

Natzweiler:

Dt Erd- & Steinwerke
GmbH, Natzweiler

400

261

63,221

disassembling of Ju
motors & welding of
air torpedoes.

Neuengamme:

Jastram, Hamburg-
Bergedorf

80

80

21,554

air plane parts
production

Messap GmbH.,
Hamburg-Langenhorn

120

110

31,422

production of fuse
mechanisms

prod. result Jan:

16 800 balance
wheels S30

53 900 balance
wheels S60

15 600 time fuses
S30

46 700 time fuses
S60

Ravensbrueck:

Air ministry testing ground, Peenamuende-W	600	598	125,000	building
Geraetewerk Pommern GmbH, Stargard	550	283	81,129	production of aerial torpedoes
Heinkel-Werke AG, Barth.	2,000	1,721	435,155	air plane production
Mechan. Werkstaetten GmbH. Neubrandenburg	4,000	1,981	529,126	production of bomb release mechanism and Fz.G.76; <i>prod. Jan.</i> 23,000 lock 50/X 1,500 lock 2000 150 PVC 1006 500 rudder machines 400 ER 4 L-“2”
Siemens & Halske, Berlin, work Ravensbrueck	2,400	872	242,867	communication equipment product. (e.g. throat microphones)
Silva-Metallwerke GmbH, Genthin	600	596	154,224	production of AA ammunition <i>prod. result Jan.:</i> 518 200 2-cm shells 927 500 2-cm shells (various styles)

				965 000 13-mm shells
Veltener-Maschinenbau GmbH., Volten	600	596	146,873	production of plane parts.
<i>Sachsenhausen:</i>				
Heinkel-Werke AG, Oranienburg	6,500	5,939	1,699,978	plane mass production. <i>Prod. result</i> 15 plane bodies He 177
Luftschiffbau Zeppelin GmbH, Oranienburg	300	221	54,006	production and repair of balloons <i>prod. result Jan:</i> 120 balloons repaired and part work for 40 new balloons.
<i>Ostland Concentration Camp:</i>				
Air force field building direction. Spilve	1,000	1,000	280,776	building of airport.
Field building direction 3/I, Kauen	1,000	829	222,186	building of airport.
AA booty repair shop, Kauen	200	162	4,920	rebuilding of booty AA
Kopperschmidt & Soehne, Riga	20	20	6,160	production of plane turrets.
It was recently agreed to use further:				
<i>Buchenwald:</i>				

Anhydrit	10,000	—	—	plane production of Ju underground
Ago, Oschersleben	1,500	—	—	plane production Focke-Wulf fighters.
<i>Gross-Rosen:</i>				
Famo, Bunzlau	1,500	—	—	servicing of FW night fighters, Ta 154.
<i>Mauthausen:</i>				
Esche II	10,000	—	—	kind of production to be decided by air Ministry.
<i>Natzweiler:</i>				
Geraetewerk Pommern GmbH., branch Diedenhofen	600	—	—	production of aerial torpedoes.
	90,785	35,839	8,733,495	

The Chief of the
SS Economics Administration Main Office
Berlin, 21 February 1944 (signed) Pohl I. [?]
SS Obergruppenfuehrer and General of Armed Forces SS.

The Reich Minister for Armament and War Production

TAE-No. 475/44 top secret

(Signed) Pohl

[Initialled] HH

Berlin, Pariser Platz 3, 17 April 1944.
Phone: 11 00 52
Pohl

TOP SECRET

Fighter staff, attention: Field Marshal MILCH

Fighter staff, attention: Chief of office SWR

For Information

Reichsfuehrer-SS and chief of the German Police, Reichleader
HIMMLER

Head of armament office Lt Gen Dr Ing. h. c. Waeger

Plenipotentiary-General for Construction, Director Stobbe-
Dethleffsen

1. Using tables and drawings as an illustration I have in conjunction with Field Marshal Milch informed the Fuehrer on the work of the fighter staff in pointing to the extraordinarily pleasing and successful cooperation of the newly created organization with all offices and works. He is cognizant of the fact that the greatest part of the transfer has been fixed according to plan and that as the first step the decentralization above the ground can be concluded by approximately August and that the second step aiming at the total subterranean security of the most sensitive works will be concluded by the end of the year.

2. Field Marshal Milch has reported as a result of the meeting on construction of the "central planning" to the Fuehrer, that of the amount of construction demanded, because of the extraordinary aggravation of the all-over situation, only the most important part of the construction work could be accomplished. The Fuehrer demands that in spite of that both the large plants, each of at least 600,000 qm, which he demanded should be constructed with all energy. He consents that one of these works will not be built in concrete but in accordance with the proposal as an enlargement and in the immediate vicinity of the present central works as the so-called central construction and will come under the management of the Junkers works.

The Fuehrer agrees to the suggestion that the second large building project will, because of lack in labor and material, not be carried out on German territory, but on suitable ground (first of all gravel foundation and possibilities for transportation) in the immediate proximity of the border, on

French, Belgian or Dutch territory, as long as the plant is constructed behind a fortified zone. The suggestion to build on French territory is favored by the fact that it will then be much easier to make the necessary labor available. In spite of that the Fuehrer asks to try, to construct this second works in an essentially secure territory, namely in the Protectorate. If the labor can not be supplied there either, the Fuehrer wants to get in touch in person with the Reichsfuehrer SS and will cause him to provide the approximately 100,000 men required, thru the securing of corresponding Jewish contingents from Hungary. The Fuehrer demands that a meeting take place with him shortly in order to discuss the details in the presence of the men concerned.

3. An immediate task for the central construction besides assuring the supply of the bottleneck products of the Junkers works which is to be executed step by step, is the planning and securing of ME 262 at the rate of 1000 a month and of an additional fighter plane at the rate of 2000 a month.

Heil Hitler
signed: SPEER
Certified: Capt. Stein

TRANSLATION OF DOCUMENT 1590-PS

[several illegible notations]

Re: Taking of hostages

OKH received: 1 Oct. 1941

5 copies—copy
OKH/Gen. Qn.
(W. Bfh. Suedost)

Military Commander, South-East

Attacks on members of the Armed Forces lately committed in the occupied territories gave reason to point out that it is advisable that military commanders always have at their disposal a number of hostages of different political tendencies, namely:

1. nationalist
2. democratic-bourgeois, and

3. communist

It is important that among them shall be well-known leading personalities or members of their families, whose names are to be made public.

Depending on the membership of the culprit, hostages of the corresponding group are to be shot in case of attacks.

It is asked that commanders be accordingly instructed.

[partly illegible notation]

Chief of the Armed Forces High Command
(signed) Keitel.

Complied with in France and Belgium.

TRANSLATION OF DOCUMENT 1600-PS

The State-Picture Gallery in Dresden

The Director.

Dresden-Al, 1 June 1940.

To: Ministerialrat Dr. Hanssen

Berlin W 8, Wilhelmstr. 64

Dear Ministerialrat!

Permit me to express my thanks for having sent me the copy of the letter of the State Secretary Dr. Landfried.

I herewith enclose a copy of my letter of 16 March 1940 to Reichsleiter Bormann, referring mainly to the *confiscated property of the convents in the Ostmark*. In accordance with the Fuehrer's decree on Jewish property, a generally applicable procedure may be recommended in this case, too; the Fuehrer should have the final word in the distribution to the individual consumers, rather the first option on any purchase. This regulation should be made to be retroactive as of the time of the assumption of power if possible.

Heil Hitler!
Yours faithfully

H. Posse.

1 enclosure.

At the Fuehrer's present HQ, 16 Jan 41 Bo/Fu

R.L.M.B.

1. Director Dr. Posse, *Dresden-Hellerau*

Personal!
Registered!

Tunnigtweg 14

Dear Dr. Posse!

Enclosed herewith I am sending you the pictures of the altar from the convent in Hohenfurth near Kruman. The convent and its entire property shall be confiscated in the immediate future because of the attitude, hostile towards the State, of its inhabitants.

It shall be up to you to decide whether the pictures shall remain in the convent at Hohenfurth or be transferred to the museum in Linz after the latter shall be completed.

I await your decision in the matter.

Heil Hitler!
Faithfully yours,
[initialed by Bormann]

Enclosures

2. Presented again: 3 May 1941.

Dresden-Al, 16 May 1941

The State-Picture Gallery in Dresden.

The Director.

The Reichsleiter Martin Bormann,

Berlin W 8, Wilhelmstr. 64

Personal!

Dear Reichsleiter!

I report that I have returned today from a weeks trip to Oberdonau and Vienna. Besides checking on the confiscated convents and monasteries, the main reason for my trip to Linz and Oberdonau was to find out *whether any of the confiscated convents offered facilities suitable for temporarily storing the collections acquired by the Fuehrer.*

After having seen the convents at Hohenfurth, St. Florian, Krenesmunster, Schloegel, Wilhering etc., and after having discussed the matter with Gauleiter Eigruber and his deputies, I found that the *convent in Krenesmunster is extremely suited for this purpose.* There are in this convent 50-60 rooms that can be locked; the various new acquisitions can be stored there temporarily. There is also the "Emperor's Stall" there, 25 m long, and a flight of 7 rooms in good shape, at present the picture-gallery of the convent, not very valuable, is on exposition. From time to time, the newly acquired collections may be presented to the Fuehrer there.

Krenesmunster is situated in the woods, far away from industrial area; therefore, a threat from the air hardly exists.

In case the Fuehrer should agree with the proposal to have Krenesmunster as a depot for Linz, it is suggested that the Germans from Bessarabia who are at present living in the convent, be moved into another convent, in order to safeguard the stocks, particularly against fire.

Therefore, I beg to have the Fuehrer state his intentions regarding their proposal which is also supported by Gauleiter Eigruber not only is the collection Lanz in Amsterdam, packed in the meantime, awaiting, also several other collections of paintings for which there'd hardly be space enough in Munich, are ready, and so is Dr. Topfer's library which was bought in Switzerland. Also very rich stocks, already packed and stored in Vienna, confiscated from Jewish owners, and many new acquisitions from

Vienna could be brought to Krenesmunster. This way, room could be made in Vienna and what remains of confiscated art-treasures could be distributed.

Heil Hitler!
Yours faithfully
H. Posse.

Report on the trip, undertaken on orders to Cracow and Warsaw, so as to ascertain the kind and the amount of confiscated art-treasures.

It was impossible to carry out the order as such, as well as that part of it which drafting of a plan as to how to dispose of the confiscated art treasures, since most of them were still packed away in cases and were either stored in Cracow, or in other places, particularly in Warsaw ready for shipment to Cracow.

Since 6 October, under the direction of Understate secretary Dr. Muhlmann, as the special deputy of General Field Marshall Goering and as the Director of the Department of Science and Training, the storing of all the valuable Art treasures has been in full swing with assistance of suitable experts from Berlin, Vienna, and Breslau, and, so far as I could determine it has been almost completely carried out.

Works of art and culture, mainly from Warsaw were saved, particularly from the badly damaged chateau of the Kings whose furniture and interior decorations were salvaged to a large extent. In Cracow, box-cars containing the works of art secured from public, clerical and private ownership arrived almost daily. The Art treasures are being collected in the particularly suitable building of the Jagellonic Library in Cracow and are being set up there properly, a task which may be finished by February 1940. As soon as the task of collecting shall be finished and an inventory is made so that a complete survey of the entire valuable Polish Art-treasure can be made, I shall again travel to Cracow so as to carry out the order given me.

The official pictorial service is photographing all important works of art little by little. The governor general shall present these pictures in the form

of a photo-Album to the Fuehrer.

I was able to gain some knowledge on the public and private collections as well as clerical property in Cracow and Warsaw. It is true that we cannot hope too much to enrich ourselves from the acquisition of great Art works of paintings and sculptures there with the exception of the Veit Stoss-altar and the plates of Hans von Kulmbach in the Church of Maria in Cracow, the Raffael, Leonardo and Rembrandt from the collection Czarborpki and several other works from the National Museum in Warsaw—works of a rather high value of whose existence we in Germany had already known. Richer and more extensive is the Polish stock of “objects d’art”, such as handicraft in gold and silver of German origin to a large part, (particularly from the Church of Maria and the cathedral of Wawel) tapestries, arms, porcelains, furniture, bronzes, coins, valuable parchment-scrips, books, etc. Those were the principal fields of interest for Polish collectors, besides their interest in Polish National Art, particularly of the 19th century. It is characteristic that apart from original paintings so many copies can be found in Polish castles and private collections (for example Czartoryski, Wilano etc). However, many thousand works of art of all kinds ought to be found in the Jagellonic Library.

As I said before, I shall not be able to make proposals regarding the distribution as long as an inventory of the entire material does not exist. However, I should like to reserve for the museum in Linz the three most important paintings of the Czartoryski collection, namely the Raffael, Leonardo and Rembrandt which are at present in the Kaiser-Frederick Museum in Berlin. We in Dresden are particularly interested in the interior decorations of the castle of the Kings in Warsaw since Saxonian architects and artists have created them; therefore, the suggestion is made that the salvaged parts of it (panellings, doors, inlaid floors, sculptures, mirrors, glass-chandeliers, porcelains etc) be used for the interior decoration of the Pavillion of the “Zivinges” in Dresden.

A number of fine drawings of Albrecht Durer’s and other old German masters kept in the Ossolinemm in Lemberg, has fallen into Russian hands. Maybe at least Durer’s 27 pieces could still be salvaged for Germany.

While in Warsaw, a Polish colleague of mine whom I have known, for quite some time told me that the storing of the art treasures was begun already in

June 1939; by the end of July the entire official museum property was packed in cases and ready for shipment. In spite of that the Poles did not manage to carry any important stocks away and save them for themselves, with the exception of the famous tapestry, collection of Wawel, the riding costumes kept there also, arms and historically valuable pieces like the blood-banner of the Prophet which, as far as I could ascertain, fell into Russian hands.

/s/ Hans Posse.

PARTIAL TRANSLATION OF DOCUMENT 1602-PS

Dr. med. Sigmund RASCHER

MUNICH, 15 May 1941

Trogerstrasse 56

Dear Reichsfuehrer,

My sincere thanks for your cordial wishes and flowers on the birth of my second son. This time, too, it is a strong boy, though he has come 3 weeks too early. I may send you a picture of both children incidentally. * * *

For the time being I have been assigned to the Luftgaukommando VII, Munich, for a medical course. During this course, where researches on high-altitude flights play a prominent part (determined by the somewhat higher ceiling of the English fighter planes) considerable regret was expressed at the fact that no tests with human material had yet been possible for us, as such experiments are very dangerous and nobody volunteers for them. I put, therefore, the *serious* question: can you make available two or three professional criminals for these experiments? The experiments are made at "Bodenstaendige Pruefstelle fuer Hoehenforschung der Luftwaffe", Munich. The experiments, by which the subjects can, of course, die, would take place with my cooperation. They are essential for researches on high-altitude flight and cannot be carried out, as has been tried, with monkeys, who offer entirely different test-conditions. I have had a very confidential talk with a representative of the air forces Surgeon who makes these experiments. He is also of the opinion that the problems in question could only be solved by experiments on human persons. (Feeble-minded could also be used as test material). * * *

I hope sincerely, highly esteemed Reichsfuehrer that, in spite of the immense burden of work you carry, you are in the pink of health.

With my heartiest wishes, I am with Heil Hitler your gratefully devoted

(signature) S. RASCHER

(Z—2)

TRANSLATION OF DOCUMENT 1616-PS

Dr. S. RASCHER SS-Hauptsturmfuehrer

Munich, 17 February 1943

To the Reichsfuehrer SS and Chief of the German Police Mr.
Heinrich Himmler

Berlin SW 11 Prinz Albrecht Str. 8

Dear Reichsfuehrer!

Enclosed I present to you in condensed form a summary of the results of the experiments made in warming up people who have been cooled off by using animal heat.

Right now I am attempting to prove through experiments on human beings that it is possible to warm up people cooled off by dry cold just as fast as people who were cooled off by remaining in cold water. The Reich physician SS, SS-Gruppenfuehrer Dr. Gravitz doubted very much that that would be possible and said that I would have to prove it first by 100 experiments. Up to now I have cooled off about 30 people stripped in the open air during 9-14 hours to 27°-29°. After a time corresponding to a transport of one hour, I put these subjects in a hot bath. *Up to now* every single patient was completely warmed up within one hour at most, though some of them had their hands and feet frozen white. In some cases a slight fatigue with slightly rising temperature was observed on the day following the experiments. I have not observed any fatal results from this extremely fast warming up. I have not so far been able to do any warming up by "Sauna" as ordered by you, my dear Reichsfuehrer, as the weather in December and January was too warm for any experiments in the open air, and right now the camp is closed on account of typhoid and I am not

allowed therefore to bring the subjects to these experiments into the SS-Sauna. (I have been vaccinated several times and continue myself to make the tests within the camp in spite of the typhoid in the camp.) It would be best if I were transferred to the Waffen-SS soon and could go together with Neff to Auschwitz and * * * the question of the warming up of persons who have frozen on land * * *.

[rest of document missing]

TRANSLATION OF DOCUMENT 1617-PS

SECRET

The Reichfuehrer SS

Berlin, SW 11, B. Prinz Albrecht Strasse 8 Field Command Post

November 1942

Dear Comrade Milch!

You will recall that through General Wolff I particularly recommended to you for your consideration the work of a certain SS Fuehrer, Dr. Rascher, who is a physician of the air force on leave [Arzt des Beurlaubtenstandes der Luftwaffe].

These researches which deal with the behavior of the human organism at great heights, as well as with manifestations caused by prolonged cooling of the human body in cold water, and similar problems which are of vital importance to the air force in particular, can be performed by us with particular efficiency because I personally assumed the responsibility for supplying asocial individuals and criminals who deserve only to die [todeswuerdig] from concentration camps for these experiments.

Unfortunately you had no time recently when Dr. Rascher wanted to report on the experiments at the Ministry for Aviation. I had put great hopes in that report, because I believed that in this way the difficulties, based mainly on religious objections, which oppose Dr. Rascher's experiments—for which I assumed responsibility—could be eliminated.

The difficulties are still the same now as before. In these "Christian medical circles" the standpoint is being taken that it goes without saying that a

young German aviator should be allowed to risk his life but that the life of a criminal—who is not drafted into military service—is too sacred for this purpose and one should not stain oneself with this guilt; at the same time it is interesting to note that credit is taken for the results of the experiments while excluding the scientist who performed them.

I personally have inspected the experiments, and have—I can say this without exaggeration—participated in every phase of this scientific work in a helpful and inspiring manner.

We two should not get angry about these difficulties. It will take at least another ten years until we can get such narrow-mindedness out of our people. But this should not affect the research work which is necessary for our young and splendid soldiers and aviators.

I beg you to release Dr. Rascher, Stabsarzt in reserve, from the air force and to transfer him to me to the Waffen-SS. I would then assume the sole responsibility for having these experiments made in this field, and would put the results, of which we in the SS need only a part for the frost injuries in the East, entirely at the disposal of the air force. However, in this connection I suggest that with the liaison between you and Wolff a *“non-Christian” physician should be charged, who should be at the same time honorable as a scientist and not prone to intellectual theft* and who could be informed of the results. This physician should also have good contacts with the administrative authorities, so that the results would really obtain a hearing.

I believe that this solution—to transfer Dr. Rascher to the SS, so that he could carry out the experiments under my responsibility and under my orders—is the best way. The experiments should not be stopped; we owe that to our men. If Dr. Rascher remained with the air force, there would certainly be much annoyance; because then I would have to bring a series of unpleasant details to you, because of the arrogance and assumption which Professor Dr. Holzloehner has displayed in the post of Dachau—who is under my command—about me in utterances delivered to SS Colonel Sievers. In order to save both of us this trouble, I suggest again that Dr. Rascher should be transferred to the Waffen SS as quickly as possible.

I would be grateful to you if you would give the order to put the low pressure chamber at our disposal again, together with step-up pumps,

because the experiments should be extended to include even greater altitudes.

Cordial greetings and Heil Hitler!

TRANSLATION OF DOCUMENT 1618-PS

S. RASCHER

Intermediate report on intense chilling experiments in the Dachau Camp,
started on 15 August 1942

Experimental procedure

The experimental subjects (V P) were placed in the water, dressed in complete flying uniform, winter or summer combination, and with an aviator's helmet. A life jacket made of rubber or kapok was to prevent submerging. The experiments were carried out at water temperatures varying from 2.5° to 12°. In one experimental series, Occiput and brain stem protruded above the water, while in another series of experiments the Occiput (brain stem) and back of the head were submerged in water.

Electrical measurements gave low temperature readings of 26.4° in the stomach and 26.5° in the rectum. Fatalities occurred only when the brain stem and the back of the head were also chilled. Autopsies of such fatal cases always revealed large amounts of free blood, up to ½ liter, in the cranial cavity. The heart invariably showed extreme dilation of the right chamber. As soon as the temperature in these experiments reached 28°, the experimental subjects (VP) died invariably, despite all attempts at resuscitation. The above discussed autopsy finding conclusively proved the importance of a warming protective device for head and Occiput when designing the planned protective clothing of the foam type.

Other important findings, common in all experiments, to be mentioned. Marked increase of the viscosity of the blood, marked increase of hemoglobin, an approximate five fold increase of the leukocytes, invariable rise of blood sugar to twice its normal value. Auricular fibrillation made its appearance regularly at 30°.

During attempts to save severely chilled persons, it was shown that rapid re-warming was in all cases preferable to slow re-warming, because after

removal from the cold water, the body temperature continued to sink rapidly. I think that for this reason we can dispense with the attempt to save intensely chilled subjects by means of animal heat.

Rewarming by animal warmth—animal bodies or women's bodies—would be too slow. As auxiliary measures for the prevention of intense chilling, improvements in the clothing of aviators come alone into consideration. The foam suit with suitable neck protector which is being prepared by the German Institution for textile research [Deutsches Textilforschungsinstitut] Muenchen-Gladbach deserves first priority in this connection. The experiments have shown that pharmaceutical measures are probably unnecessary if the flier is still alive at the time of rescue.

(signed) Dr. S. Rascher

Muenchen—Dachau, 10 September 1942.

TRANSLATION OF DOCUMENT 1621-PS

SECRET!

The Reichsfuehrer SS Personal Staff
File Nr. 19/9/43a/Pers/V

Command Post, 12 November 1942
[Rubber Stamp]
Personal Staff, Reichsfuehrer SS
[illegible notation] Administration
Secret/

SECRET!

1. To SS Major General Rauter

The Hague

Dear Major General,

The SS Captain Dr. Rascher is in need of medico-physiological appliances. He points out that there are sufficient appliances at the University of Leyden and at the University of Utrecht, which could be put to use.

The Reichsfuehrer SS asks you to attempt to obtain these appliances, which would still have to be listed in detail by SS Captain Dr. Rascher resp. by SS

Colonel Sievers, through the Reich Commissar. SS-Hauptsturmfuehrer Dr. Rascher resp. SS-Standartenfuehrer Sievers will submit the list directly to you.

Heil Hitler!
(signed) Brandt

Transmitted to

2. SS Colonel (SS-Standartenfuehrer) Sievers

3. SS Captain (SS-Hauptsturmfuehrer) Dr. Rascher, with the request that the above be noted and the necessary steps taken.

[Signed illegible]
SS-Lieutenant Colonel

SECRET!

[Rubber Stamp]
Personal Staff Reichsfuehrer SS
(illegible notation)
SECRET

Dr. S. Rascher, SS Captain

SECRET!

File Memorandum.

Procurement of medico-physiological appliances is so difficult in Germany that the continued conduct of experiments is seriously endangered. If the necessary appliances cannot be procured, it will be very much more difficult to build up the Institute for Functional Research in Military Science within the framework of the Ancestral Heritage Organization [Ahnenerbe].

The Institutes of the Universities of Leyden and Utrecht, however, are very plentifully equipped with the very best scientific appliances at both these universities is not feasible, however, since the University of Leyden is, and

will remain, closed, notwithstanding all rumors, and since the University of Utrecht works with only half its usual enrollment.

SS Lieutenant Colonel Sievers therefore suggests that the Reichsfuehrer SS write a letter to Reich Governor Dr. Seyss-Inquart saying that it is request that the Reich Governor put the appliances of the University Institutes concerned at the disposal of the Ancestral Heritage Organization [Ahnenerbe], initially on a loan basis.

(signed) Dr. Rascher

Munich, 12 November 1942

[Handwritten notation]
Dr. Brandt to Reuter

TRANSLATION OF DOCUMENT 1637-PS

1938 REICHS MINISTERIALBLATT, i. V., PAGES 1089-1091

Acceptance of members of the Security Police into the SS of the N.S.D.A.P.
of 23 June 1938.

Ministerial-Blatt of the Reich and Prussian Ministries of the Interior, Berlin,
1938

No. 28, p. 1090

Appointments, Wages, Maintenance, Service Regulations

Circular of the Reichsfuehrer SS and Chief of the German Police in the
Reich Ministry of the Interior for 23.6.1938—S-V 3 No. 72/38

<i>The</i>	<i>The</i>	<i>Corresponds to the</i>
Criminal-assistant aspirant in preparatory service [Kriminal-Assist- Aniv. im Verbereitungsvienst	Office helper [Amtsgehilfe Betenmeister]	SS Sergeant [SS Unterscharfuehrer]

Criminal-Assistant aspirant [Kriminal-Assist-Aniv]	Superintendent [Hausmeister]	SS-Staff Sergeant [SS-Scharfuehrer]
Criminal assistant [Kriminal-Assist]	Police office assistant. [Pol-Buereassist] Police-Prison-Technical Sergeant. [Poli-Gefaengnisoberwachtm]	SS-Technical Sergeant [SS-Oberscharfuehrer]
Chief Criminal Assistant. [Krim-Oberassist]	Police-Prison-Master Sergeant [Pol-Gefaengnis-Hauptwachtm]	SS-Master Sergeant [SS-Hauptscharfuehrer]
Criminal secretary [Krim-Sekretar] Criminal district secretary [Krim-Bez. Sekretar]	Police-secretary [Pol-Sekretar] Office-Secretary [Kanzleisekretaer] Police secretary first class [Pol-Obersekretaer] Technical secretary [Techn-Sekretar]	SS-Lieutenant [SS-Untersturmuehrer]
Criminal inspector [Krim-Inspektor] Criminal commissar up to 15 years of service [Krim-Kommissar]	Ministerial registrator [Min-Registrator] Police inspector [Pol-Inspektor] Assessor [Assessor]	SS-First Lieutenant [SS-Obersturmuehrer]
Criminal commissar with over 15 years of service [Krim-Kommissar] Criminal counsellor [Krim-Rat] up to 15 years of service.	Police inspector [Pol-Inspektor] with 300 Reichsmark additional salary. Police inspector first class [Pol-Oberinspektor] Government-Assessor	SS-Captain [SS-Hauptsturmuehrer]

	[Reg-Assessor] Police counsellor up to 15 years of service. [Pol-Rat]	
Criminal counsellor with over 15 years of service [Krim-Rat] Criminal director [Krim-Direktor] Government and criminal counsellor [Reg. u. Krim-Rat]	Police counsellor with over 15 years of service. [Pol-Rat] Office-counsellor [Amtsrat] Government-counsellor [Reg-Rat]	SS-Major [SS-Sturmbannfuehrer]
Government counsellor first class and criminal counsellor. [Oberreg.-und Krim.-Rat]	Government counsellor first class [Oberreg-Rat]	SS-Lieutenant Colonel [SS-Obersturmbannfuehrer]
Government and criminal director [Reg.-und Krim.-Direktor] Reich-criminal director [Reichskrim-Direktor]	Government director [Reg-Direktor] Ministerial counsellor [Min-Rat]	SS-Colonel [SS-Standartenfuehrer]

With the aim of fusing members of the German Police with the “Schutzstaffel” of the National Socialist German Workers Party into one uniformly turned out State Protective Corps [Staatsschutzkorps] of the National Socialist Reich, I decree as follows:

I. (1) Members of the Security Police can upon request be received into the Schutzstaffel of the *NSDAP* if they

1. fulfill the general requirements of the SS and
2. a. Up to 30.1.1933 (inclusive) have been members of the NSDAP or of its affiliates (the Sturmabteilung, the

National Socialist Motor Corps, the Hitler Youth) even if they have meanwhile honorably resigned from these affiliates.

or

b. for a static period [seit einem ... liegenden Zeitpunkt] before 30.1.1933 were sponsoring members of the SS [Foerderndes Mitglied]

or

c. Have seen service for at least three years in the Security Police under the direction of the Reichsfuehrer SS and have proven themselves.

(2) Permit for admission of a wider circle of persons I reserve for myself.

(3) Admission according to the general requirements is not affected by this circular.

II. 1. Upon transfer into the SS, the grade held in the police will be changed to a corresponding one in the SS. Former members of the SS, SA, NSKK (National Socialist Drivers Corps) who held a higher rank, will be incorporated with the same high rank. When promoted within the security police, an assimilation of ranks will take place in every case.

3. I myself will make decisions about incorporation of members of the security police with higher ranks.

4. The employees of the security police will be put into that SS rank which corresponds to their rank as civil servant, according to their jobs.

5. Members of the security police incorporated into the SS up to the publication of these ordinances will be promoted to the SS rank corresponding to their police rank, provided they do not already hold such, or a higher SS rank.

III. 1. Members of the security police incorporated into the SS will be assigned to the units of the security service of the Reichsfuehrer-SS, according to more detailed instructions of the chief of the security police and of the security main office of the Reichsfuehrer-SS.

Separated from the SS etc. on the

(with indication, whether transferred directly to the police, or, if otherwise,
which service relations in the meantime)

Day of joining the NSDAP, SS, SA, HJ

Helping member [Foerderndes Mitglied] of the SS since:

Working in the security police since:

To The Chief of the security police through channels.

* * * * *

V. This circular is to be brought to the attention of all members of the security police.

To the Reichsstatthalter, the state governments, the Reichscommissioner for the Saarland, the Prussian supreme and government presidents, the office of the secret state police [Gestapo], the Reich criminal police office [Reichskrim-Pol-Amt], the federal police main offices [Staatspol-Leitstellen] and federal police office [Staatspol-Stellen], the criminal police main offices [Krim-Pol. Leitstellen] and criminal police offices [Krim-Pol Stellen], the commander of the leaderschool of the security police [Kommandeur der Fuehrerschule der Sicherheitspol].

To the SS main office, the main office for security [Sicherheitshauptamt], the security service leaders [SD-Fuehrer] of the higher levels of the SS [SS-Oberabschnitte] and the security service lower levels [SD-Unterabschnitte].
by copy.

TRANSLATION OF DOCUMENT 1638-PS

1938 REICHS MINISTERIALBLATT, iV, PAGE 1906

Cooperation of the Agencies of the General and Interior Administration
with the S.D. of the Reichsfuehrer SS (SD) of 11 Nov. 1938

(1) The Security Service of the Reichsfuehrer SS (SD) has, as the intelligence organization for Party and nation—in particular for the support of the Security Police—important missions to fulfill. The SD thereby becomes active on a national mission. This necessitates a close and sympathetic cooperation between the SD and the authorities for general and internal administration. Therefore, inquiries of the SD are to be answered in the same way as inquiries of all national office are treated. Likewise, the sections of the SD are obligated to furnish information to the general and internal administration.

(2) Business between the SD and the Reich Ministry of the Interior proceeds solely through the Chief of the Sicherheitshauptamt, business between the SD and the remaining authorities of general and internal administration only through the higher levels of the SD. Business between the authorities for general and internal administration of the SHA proceeds through the Reich Ministry of the Interior, business between the authorities for general and internal administration and the other SD offices in Prussia through the Regierungs-Praesident or Ober-Praesident, in the other provinces through the corresponding authorities. In doubtful cases the combined decision of the Reich Ministry of the Interior and of the Reichsfuehrer SS should be obtained.

Supplement for municipalities, municipal groups, other corporate bodies of the public law: I request, to act accordingly.

To lower authorities municipalities, municipal groups, other corporate bodies of the public law.

PARTIAL TRANSLATION OF DOCUMENT 1639-A-PS

Mobilization Book for the Civil Administration 1939 Edition [Pages 2-18]

Armed Forces High Command

Berlin, 18th Feb 1939

No. 265/39 g.Kdos. I IVa. Re: Reprint of 125 copies, 101st copy
Mobilization Book for
the Civil Administration.

1. Enclosed is the Reprint for 1939 of the "Mobilization Book for the Civil Administration" with the request to destroy Mobilization Books (Z), hereby made obsolete, at the beginning of the new mobilization year.
2. The Reprint takes effect on the 1st April 1939. The annexes V, XIX, and XX will be forwarded after their completion.
3. An expression of opinion on the proposals handed in here will not take place in detail any more, insofar as the expression has not already been made.
4. The necessity of cooperation between Ministers and the highest Reich agencies is not always pointed out in the column "Remarks". It is to be understood that the cooperation needed for preparations and carrying out of the measures must be guaranteed, even without an express directive.

Chief of the Armed Forces High Command.
Keitel.

Distribution list on the next page.

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Attention Counsellor of the Legation Dr. <i>Freiherr v.d. Heyden-Rynsch</i>	

GBV [Plenipotentiary-General for Administration] Chief of Operational Staff

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GBW [Plenipotentiary-General for Economics] Chief of the Operational Staff

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Part I

of the Mobilization Schedule for the Civil Administrative Authorities *Introduction to the Mobilization Schedule for the Civil Administrative Authorities.*

A. Principles & Concepts

1. Preparedness for defense on the part of the whole nation is the condition for an effective defense of the Reich.
2. It is through *mobilization* that Wehrmacht, Economy, State and People are carried over from a state of peace to a state of war.

The mobilization of the Wehrmacht comprises:

- (a) The securing of the necessary foundations for the establishment, leadership and supplying of the needs of the war-Wehrmacht,
- (b) the building up of peace units to war strength,
- (c) the establishment of new war units,
- (d) the establishment of the reserve Wehrmacht.

The Mobilization of Economy comprises the collecting of all *economic* forces and holding them in readiness to work at their highest capacity in the service of the conduct of the war.

The Mobilization of State & People comprises:

- (a) the turn-over of State Leadership and the life of the people to the requirements of the conduct of the war as regards politics, sociology and constitutional law; and
- (b) making available for the conduct of the war all the material forces of the people.

3. A case of war can arise instantaneously or start as a result of foreign political tension. The preparation and schedule of mobilization must take both possibilities into account.

The “*state of defense*” and the “*state of war*” in the sense of R.V. Law will be ordered expressly in accordance with the Reichs defense law by the Fuehrer and Reichs Chancellor.

With the declaration of the “*state of war*”, the war laws and regulations come into force without further orders. The legal consequences provided in other laws for the state of war also become effective.

If no “*state of defense*” has previously been ordered, the regulations concerning the state of defense will come into force with the declaration of the state of war.

It is to be reckoned with that foreign political considerations (war guilt question, etc.) will not give rise to a declaration of a state of war, even if it should come to armed conflict with a foreign enemy. Legal provision is therefore to be made by which regulations for “war” in various laws will come into force for the case in question. These regulations must be formulated in such a way that no “war” exists as understood in international law.

For this reason the legal consequences provided in the various laws for the “the case of war” will not come into force with the mobilization decree (X or mobilization case).

4. The *period of tension* possibly preceding a case of war must be exploited to the limit of foreign political endurance in order that the Reich may be made ready for war.

For these reasons the 3 following stages must be distinguished from each other in the schedule of mobilization.

4. a. “*The period of tension*”

During the period of tension the fundamentals for the reliable execution of the mobilization proper should be created, and individual measures for mobilization should be taken in advance, whereby as far as possible foreign political liability and any kind of provocation abroad are to be avoided.

These “*advance measures*” will be arranged in the mobilization plans of the armed forces, according to stages of tension. Within these advance measures there will be no distinction of special stages for the civil

administration, since it is necessary to have a much more flexible regulation.

The advance measures will be executed on the basis of peace legislation. The fact and the purpose of the advance measures are to be camouflaged as much as possible within the civil administration concerned.

The “*period of tension*” as such will not be ordered; it is merely the technical term for a period of special political tension in foreign relations, during which preparatory measures (advance measures) can be ordered.

4. b. Mobilization without public announcement (“X case”):

While its purpose is to be camouflaged as far as possible, it is to bring about the systematic mobilization of the armed forces, and if necessary the camouflaged mobilization of the state, economy and people. A possibility exists that “Case X” will only be ordered for the armed forces or parts of it.

If no official announcement of the state of defense is made, the execution of the mobilization must be assured through administrative channels. The peace time laws: Law relating to Participation in Defense measures, emergency service decree, etc. (Wehrleistungsgesetz, Notdienstverordnung, u.a.) adapted for camouflaged mobilization will serve as legal basis.

Case X may be ordered without being preceded by the measures provided in sub 4a.

4. c. General mobilization with public announcement. (“Mobilization case”—“Mob case”):

This includes the mobilization of the armed forces and the state of the national economy as well as of the entire people, if no special limitations have been ordered in the mobilization decree (for instance local limitations). In the normal case, the order for general mobilization initiates the provided mobilization measures of the armed forces, and of all civil authorities and offices, with the exception however of specially designated measures for the supervision and checking of the information service.

In all cases these measures will only come into force by a special order of the Supreme High Command of the Armed Forces.

Just as in Case X, the execution of general mobilization is based on the peace laws adapted for a camouflaged mobilization.

The general mobilization (Mob case) can be ordered without being preceded by the period of tension or by mobilization without official announcement (Case X).

5. Publication and Execution of Mobilization Measures.

5. *a.* The measures provided for the *period of tension* will be ordered singly, in groups or in their entirety by the Fuehrer & Reich Chancellor (after considering proposals from the appropriate Reich Dept.) on the application of the Chief of the OKW, or of the Plenipotentiary for the Reich Administration or the Plenipotentiary for Economy who will act in conjunction with the Chief of the OKW. The measures ordered by the Fuehrer and Reichs Chancellor will be communicated to the highest civil administrative authorities through the OKW, and to the Departments under the Plenipotentiaries for the Reich Administration and Economy through the latter.

The measures ordered have to be carried out according to the instructions of the highest Reich authorities, provided that the authorities of the Armed Forces have not been specially ordered to charge the intermediate and lower civil authorities with the execution of the measures.

This is applicable for the following cases (or, as circumstances may dictate, not till the incidence of Case X or general mobilization).

(1) *Evacuation and clearing of battle territory* according to directives for the “evacuation of Reichs territory threatened by the enemy”, Vol. 1, Nos. 14 and 15, or (respectively) “clearing of the battle territory of the west” and the corresponding provisions for the East.

(2) *Establishment of the Frontier Guards* incl. initiation of the attached special intelligence network acc. to the provisions for the VGAD of Sept. 1937 No. 24 & Appendix 10, No. 12.

(3) *Establishment of the VGAD* incl. initiation of the special intelligence network acc. to the provisions for the VGAD of Sept. 1937, App. 1, No. 2 & App. 10, No. 12.

(4) *Establishment of Field Police Units—Key Words* (not code numbers) may be agreed with the military authorities for these measures.

The purpose of all other key words made known to the civil authorities by the military commands is exclusively that of informing the authorities concerned about measures coming within the *military* sphere. Those key words are not to be entered in the mobilization calendar, but are to be added on a special sheet.

Notwithstanding all this, a *mutual understanding* with military authorities concerning the *preparation* of the various measures in time of peace and their *execution* (after proclamation through civilian channels) in war time is absolutely necessary wherever military and civil measures come into contact.

5. *b. Case X (Mobilization without public announcement)* is ordered by the Fuehrer and Reichs Chancellor. Publication to the highest Reichs authorities is carried out in the same manner as for the “advance measures”.

Various mobilization measures will be decreed within the civil sphere through release [Ausloesung] of code words, or through special order if Case X applies only to the armed forces or parts of it.

The measures for mobilization are carried out by the highest Reichs authorities under their exclusive responsibility with the limitation that the fact of mobilization must not be mentioned publicly (diplomatic channels, press, public proclamations and announcements, radio, etc.). To achieve this purpose it must be stressed that it is necessary to camouflage the individual measures as much as possible without endangering their execution ... The main purpose is not to offer legal grounds to the prospective enemy for the opening of hostilities or their own mobilization. For that purpose, the necessary suspension of various measures contained in Section II (mobilization) of the mob. calendar will be ordered by the High Command of the Armed Forces.

In principle every proclamation and suspension of code numbers during the period of tension or in case X must be made known to the High Commands of the three branches of the Armed Forces by the High Command of the Armed Forces.

5. *c. General mobilization with public announcement* (case of mobilization):

The general mobilization will be decreed publicly by the “Mobilization-order” of the Fuehrer and Reichs Chancellor.

5. *d.* Preparations are being made to enable parts of the Wehrmacht to move out at increased speed. In order that the units of the Army & the Navy to whom this applies may be *prepared to move out* and the Luftwaffe *prepared to take off*, the civil administration authorities are required to render special assistance. This measure may be ordered during the period of tension.

As this preparedness (for moving out or taking off) only applies to certain territories of the Reich and only affects certain administrative authorities, the latter will receive their instructions direct from those Wehrmacht authorities in whose territory the preparedness for moving out or taking off is being established. In addition, the order to prepare for the march-out or take-off will be communicated to the appropriate Reich ministries, the G.B. and so on, by the OKW.

6. *Dissemination of the mobilization orders through the various administrative channels:*

In case of mobilization the general mobilization with public announcement (case of mob.) will be announced to the Reichs authorities etc., the intermediate and lower civil authorities by a mob. cable through the DRP [German Reichs Postal Service].

The DRP organizes for that purpose a dissemination plan in agreement with the other Reichs authorities. The “general mobilization” will also be made public by means of radio, public announcements, etc.

The highest Reichs authorities will issue individual orders in their spheres for the “period of tension” and for “Case X”. Announcements concerning the stages of mobilization and the measures to be taken therefor will not be circulated through district cables by the DRP.

All mobilization orders are to be passed on by the quickest means to the subordinate authorities.

If the orders are passed on by phone, the identity of the civil servant transmitting the order is to be ascertained by appropriate questioning, in order to guard against deception. If doubts remain as to the identity of the person calling, they are to be dispelled by a further call.

The ordering of measures which concern, directly or indirectly, offices of the armed forces or authorities of other departments must be made known to those authorities.

If an authority learns about the stages of mobilization through unofficial channels, then it must immediately be ascertained through contact with superior authorities whether measures may be taken. The means of dissemination of mob. orders must be defined in the mob. calendars of the authorities. It is assumed that the night and day telephone service will be organized within the framework of the advance measures for the period of tension.

B. Preparations for Mobilization.

Principles for the drafting of the “Mobilization Schedule for the Civil Administrative Authorities”.

7. The mobilization plans of the Wehrmacht and the Mobilization Schedule for the civil administration provide the responsible State Government with a general survey of the volume of preparations for mobilization and of their political scope. They have been so adjusted to each other that the unification of the entire mobilization is secured.

8. The mobilization schedule for the civil administrative authorities comprises in general all the measures of the civil state administration which on the one hand directly support the operational capacity of the Wehrmacht, or on the other hand serve the preparedness for war on the part of state, economy and people.

9. The mobilization stages discussed sub. no. 4—

(a) period of tension

(b) mobilization without public announcement (Case X)

(c) general mobilization with public announcement (mob. case)

form the *basis* for the drafting of the “mobilization schedule for the civil administration”.

9. *a.* The *advance measures for the period of tension* form the content of *Section I* in every part of the mobilization schedule.

The advance measures for the civil administrative authorities in the period of tension are made flexible to conform to any development of the political & economic situation. Insofar as the advance measures for the civil administration give direct support to the Wehrmacht, they will be ordered from case to case so as to conform to the advance measures of the Wehrmacht.

9. *b.* The measures for *mobilization* form the content of *Section II* in every part of the mob. schedule, with the proviso that in the case of “mobilization without public announcement (Case X)” they will be carried out according to the provisions of No. 4.b without publication, whereas in the case of general mobilization with public announcement (mob. case) they will as a rule be subject to no restrictions. The specially designated measures (code number) for the supervision and checking of the intelligence service will in *no* case, however, come into force except by special order of the OKW (No. 4.c).

The advance measures for the period of tension are printed in red in Section II (mobilization).

The purpose of the said summary in Section II is to afford a complete survey in case mobilization should arise suddenly (without a previous period of tension).

The mob. measures common to all administrative authorities are listed in a special *Part II of the mobilization schedule*. They are not included in the separate parts of the mob. schedule.

10. Every part of the “Mobilization Schedule for the civil administrative authorities” (and therewith all the highest Reich Departments) is furnished with certain *code numbers* with which the various measures are to be designated at all times.

The purpose of these code numbers is to enable certain measures to be put into effect quickly and under certain circumstances to be camouflaged. In order to guard against confusion with the code numbers of the Wehrmacht units, the letter Z (for Zivilverwaltungen- i.e. civil administration) is to be set *before* the code number wherever code numbers are given in the mob. schedule of the civil administration.

11. The “mobilization schedule for the civil administrative authorities” contains in—

Part I

The introduction to the mob. schedule for the civil administrative authorities	No. 1-100
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Part II

Measures applicable to all administrations and in its subsequent parts measures of the various supreme Reich Departments.	Code No. 0101-0500
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Part III

Foreign Office	Code No. 0501-1000
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Part IV

Reich Ministry of the Interior	Code No. 1001-1500
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Part V

Reich Ministry for Popular Enlightenment & Propaganda	Code No. 1501-2000
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Part VI

Reich Ministry of Justice	Code No. 2001-2500
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Part VII

Reich Ministry for Science, Education and Popular Culture	Code No. 2501-3000
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Part VIII

Reich Traffic Ministry (Motor traffic, shipping & waterways)

Code No.
3001-3500

Part IX

Reich Post

Code No.
3501-4000

Part X

Reich Traffic Ministry (Railway Sections)

Code No.
4001-4500

Part XI

General Inspector for German roadways

Code No.
4501-5000

Part XII

Special measures of the Plenipotentiary for Economy

Code No.
5001-5500

Part XIII

Reich Ministry for Economy

Code No.
5501-6000

Part XIV

Reich Ministry for Food and Agriculture

Code No.
6001-6500

Part XV

Reich Ministry of Finance

Code No.
6501-7000

Part XVI

Reich Ministry of Labor

Code No.
7001-7500

Part XVII

Reich Forests Director

Code No.
7501-8000

Part XVIII

Reichbank Directorate

Code No.
8001-8500

Part XIX

Reich Department for Space Regulation

Code No.
8501-9000

Part XX

NSDAP

Code No.
9001-9500

12. The various civil administrations will in their own sphere of authority keep *mobilization calendars* based on the general measures set forth in the “mobilization schedule for civil administrative authorities”.

These calendars will comprise the individual measures and explanations necessary for the execution of the general measures in the same order and with the same code numbers as in the mobilization schedule.

That the code numbers of the mobilization schedule should agree with those on all mob. calendars is necessary to enable the measures ordered in accordance with the mob. schedule to be passed on quickly and camouflaged.

The mobilization calendars of the civil administrative authorities shall be drafted and passed on in the same way in compliance with the executory

provisions laid down by the OKW.

C. Securing of sufficient money to cover mobilization.

13. The money set aside in the Reichsbank establishments for the purposes of the armed forces and the civil administration in the case of mobilization may be used for the advance measures and for the mobilization without public announcement ("Case X").

The absolutely necessary payments before the publication of a mobilization order are to be entered under a special section of the present budget appropriations for the time being and will be transferred to the war budget later on, unless otherwise directed. This regulation is to be added to all mobilization calendars.

D. Dates for Mob. Preparations in the Civil Administration.

14. In order that a new measure should be included in the mobilization schedule for the civil administrative authorities, application must be made to the Chief of the Reich Defense Committee (Section Defense of the Reich in the OKW).

15. In order that consistency may be preserved in preparing measures for the calendar for any mobilization year, alterations, and where possible, new measures should only be applied for once a year—at the latest—November 1st.

On the basis of such applications the mob. schedule will be altered by the following 1st of February in such a way that it will be decisive for calendar preparations for the current mob. year (April 1-March 31).

TRANSLATION OF DOCUMENT 1642-PS

Distribution List for the Secret map of the Soviet Union (European part)

OKW—(Supreme Command Armed forces):

Keitel, Jodl, Warlimont, Munch, Wedell, Canaris 6

Office for the Four year plan:

Koerner, Neuman, Gramsch and 12 others 15

Foreign office:	
Grosskopf	2
OKH—(High Command Army):	
Brauchitsch and Quartermaster-General	3
OKM—(High Command Navy):	
Raeder and 1 other	2
Propaganda Ministry:	
Goebbels, Gutterer	3
Reichs Ministry for Economy:	
Funk	11
Police:	
Himmler and 3 others	4
	—
	36
Own Ministry:	
Sch., Mall., Leibl, Siew., Korpp, Meyer, Dreyer	8
	—
	44
[illegible]	2
	—
	46

and 50 persons

Title of map:
Union of the Socialist

Soviet republics
European part
scale 1 : 400000000 kilometer

Map I

OKW /(Supreme Command of the armed forces)
Office for Economy and armament/
Economy
(Wi Rue Amt/Wi)
1. March 1941

[Explanatory note: The map was found among the Rosenberg documents in a red folder carrying the remark “Frontiers”, with a distribution list in Rosenberg’s own handwriting. This distribution list refers apparently to plans worked out by Rosenberg for the administration of the occupied territories as the map shows lines in blue pencil indicating possibly the extent of the intended administration through the Rosenberg Ministry.]

SYNOPSIS OF DOCUMENT 1643-PS

Synopsis of letter written 29 November 1942 by Dr. Casdorf to various Reich officials: Leader of the SS; Chief of the German police; Main Government Office of Economics of the SS.

Invitation extended to various responsible officials for a meeting to be held on 17 December 1942 at 10 o’clock, for the purpose of discussing the legal aspects of the confiscation of property by the SS for enlarging the concentration camp at Auschwitz as suggested in the attached letter.

Synopsis of letter written 7 November 1942 by SS General Pohl to the Reich Minister of Finance for the enlargement of the concentration camp at Auschwitz.

The Reichsfuehrer of the SS expressed the wish that the territory of Auschwitz concentration camp should be increased to about 4640 acres and become a private estate owned by the Reich. The area in question (to be confiscated as soon as possible) belonged to various owners such as (1)

Jewish and Polish private land owners, (2) towns in which most of the industrial property belonged to the Poles and the Jews, (3) the Polish State, (4) the community, (5) the church, (6) racial Germans.

Different authorities were in charge and different rules had to be applied which made the transfer of property an impractical legal procedure. For this reason, the Minister of Justice introduced a new regulation on 23 May 1942 which made a new system of property registration possible.

The SS suggests that the Reichskommissar, for the securing of the German element, should be authorized to transfer estates under categories 2-6. Racial Germans should be compensated for their estates in money or in allotting other ground properties to them.

It is desired that all authorities concerned should be notified and invited for a discussion on this subject. In this meeting, Dr. Fiedler (Office of the Reichskommissar for the strengthening of the German element) and Mr. Korch [Zentralbodenamt] should participate.

Synopsis of teletype letter from the Chief of the ORPO to the Regierungspraesident in Kattowitz, 8 December 1942, forwarded to the Reich Minister on 9 December 1942.

The chief of police orders:

The creation of an independent police district for the concentration camp and quarters [Lager und Wehnsiedlung] for inmates in Auschwitz, headed by the camp commandant. This new regulation will not affect the police functions of the Landsrat in Bielitz or of the Regierungspraesident in Kattowitz. The commander of the camp will be the police chief of the town of Auschwitz. The disciplinary measures ordered by the camp commander against the camp inmates should not have the character of police measures, and his functions as camp commander and police chief should be kept distinct. The field police can be ordered by the camp commandant for special duty within the camp itself; but such an order can be given only by the camp commander.

Synopsis of a copy of minutes of meeting held on 17 and 18 December 1942 about the confiscation of territory for the enlargement of the Auschwitz concentration camp.

In order to be able to enlarge the territory of the Auschwitz concentration camp, it would be expedient to transfer all the estates to be confiscated to the "Zentralbodenamt" which is an agency of the Reichsfuehrer SS. However, in order to carry out this transaction, all those agencies which are at present responsible for the various types of real estate in question, have to give their approval.

The officials in charge of the church property and of the former Polish State property gave their consent to release the estates under their jurisdiction to the Zentralbodenamt. However, the representative of the Reich Minister of the Interior claimed that he had no authority to dispose of the property.

Of the community, in spite of arguments to the contrary from other officials, a further discussion on 21 December 1942 was to be held between the representatives of the Reich Ministry of the Interior and the Reichsfuehrer SS.

On 18 December 1942 the representative of the Haupttreuhandstelle Ost agreed to release the estates under their jurisdiction and empower the officials in charge to initiate the transactions. The still remaining legal requirements for the release of properties belonging to industrial enterprises, racial Germans, and the town of Auschwitz were finally discussed. The list of participants appears on page 4. Attached, an authorization from the Reich Minister of Finance (Haupttreuhandstelle Ost) issued 12 January 1943, giving full power of attorney to the Bodenamt of the Reichsfuehrer SS to make out the necessary declarations in regard to the real estates.

Synopsis of teletype letter from Dr. Hoffman, representing the Reich Ministry of the Interior, to the Regierungspraesident in Kattowitz, dated 22 January 1943.

The territory of the Auschwitz concentration camp will be changed into an independent estate. For this purpose it must become the property of the Reich, represented by the Reichsfuehrer SS. This transaction must be carried out quickly. Land belonging to the Auschwitz district or to former Reich communities will be transferred after individual agreements have been made between the owners and the Reichsfuehrer SS or his agencies. The other community property will be transferred to the Bodenamt from the respective communities through the mediation of the Regierungspraesident. Regardless of how much of a property will become part of the new concentration camp estate, it will have to be purchased in its entirety. After the measurements have been completed, the part not needed for the camp estate will be returned to the original owner. In the Interior the Reichsfuehrer will administer the property.

Finally the legal aspects of the compensation are discussed.

Synopsis of letter from Dr. Hoffman, representative of the Reich Ministry of the Interior, to the Oberpraesident of Kattowitz, dated 9 June 1943.

Inquiry as to whether the new Auschwitz estate has already been formed.

Synopsis of letter from the Chief President of Upper Silesia to the Reich Minister of the Interior, dated 16 August 1943.

Since the new estate of the concentration camp Auschwitz could not be created fast enough because two private properties could not be purchased, the President of Upper Silesia issued a decree creating a new district for Auschwitz. This decree, issued 31 May 1943, is attached in two copies. It gives a detailed description of the border line of the newly created Auschwitz district. Relevant maps are enclosed in folder.

TRANSLATION OF DOCUMENT 1650-PS

SECRET STATE POLICE—STATE POLICE OFFICE COLOGNE

Branch Office, Aachen

To be transmitted in secret—To be handled as a secret government matter.

DOR. BERLIN NUE 19 507 March 4 1944 1430—WF—

To all State Police Directorates except PRAGUE and BRUNN—Inspectors of the Security Police and of the Security Service.

Subject: Measures to be taken against captured escaped prisoners of war who are officers or not working non-commissioned officers, except British and American prisoners of war.

The Supreme Command of the Army has ordered as follows:

1. Every captured escaped prisoner of war who is an officer or a not working non-commissioned officer, except British and American prisoners of war, is to be turned over to the Chief of the Security Police and of the Security Service under the classification “Step III” regardless of whether the escape occurred during a transport, whether it was a mass escape or an individual one.
2. Since the transfer of the prisoners of war to the security police and security service may not become officially known to the outside under any circumstances other prisoners of war may by no means be informed of the capture. The captured prisoners are to be reported to the Army Information Bureau as “escaped and not captured”. Their mail is to be handled accordingly. Inquiries of representatives of the Protective Power of the International Red Cross, and of other aid societies will be given the same answer.
3. If escaped British and American prisoners of war who are officers or not working non-commissioned officers, respectively, are captured they are to be detained at first outside the prisoner of war camps and out of sight of prisoners of war; if Army owned buildings are unavailable they are to be placed in police custody. In every instance the Corps Area Command will request speedily the Supreme Command of the Army (Chief, Prisoner of War Section) for a decision as to whether they are to be turned over to the Chief of the Security Police and of the Security Service.

In reference to this, I order as follows:

1. The State Police Directorates will accept the captured escaped officer prisoners of war from the prisoner of war camp commandants and will transport them to the Concentration Camp Mauthausen following the procedure previously used, unless the circumstances render a special transport imperative. The prisoners of war are to be put in irons on the transport—not on the station if it is subject to view by the public. The camp commandant at Mauthausen is to be notified that the transfer occurs within the scope of the action “Kugel” [translator’s note: the literal translation of “Kugel” is “bullet”]. The State Police Directorates will submit semi-yearly reports on these transfers giving merely the figures, the first report being due on 5 July 1944 (sharp). The report is to be made under the reference “Treatment of Captured Escaped Prisoners of War who are officers within the Scope of the Action ‘Kugel’.” In the case of special events, reports are to be submitted immediately. The State Police Directorates will maintain exact records.

2. For the sake of secrecy, the Supreme Command of the Armed Force has been requested to inform the prisoner of war camps to turn the captured prisoners over to the local State Police Office and not to send them directly to Mauthausen.

3. Captured escaped British and American officers and not working non-commissioned officers are to be detained in police custody in a city in which a State Police office is located provided the Army has no suitable quarters. In view of the existing crowding of police prisons, the State Police officer will accept captured prisoners only if the Army actually does not dispose of any suitable space. The prisoner of war camp commandants are to be contacted in reference to their quarters immediately after the receipt of this order. In the interest of the secrecy of this order, confinement outside of police jails, e.g. in Labor Education Camps is not permissible.

4. If escaped prisoners of war who are officers and not working non-commissioned officers except British and American prisoners of war are captured by police authorities, reasons of practicability render it unnecessary to return the prisoner to the prisoner of war camp commandant once the facts have been clarified adequately. The prisoner of war camp is to be informed of the capture and is to be requested for a transfer under the classification “Step III”. Captured escaped British and American prisoners

of war who are officers and non-commissioned officers are always to be turned over to the Army.

5. The city and county police authorities are not to be informed of this order.

Chief of the Security Police and of the Security Service

IV D5d—B.NR. 61/44 GRS.—For the Chief—(signed) Mueller.

SS General.

Branch Office Aachen.

Aachen 6 March 1944

IV D No. 26/44 g Rs

1. Two extract copies were made of this order.
1st Copy to IV A—6 March.
2nd Copy to IV D—2 March.
2. To be filed with IV C.—IV 3 Noted.

ROSCHER 19 June
[two illegible signatures]

TRANSLATION OF DOCUMENT 1652-PS

1933 REICHSGESETZBLATT, PART I, PAGE 135

Decree of the Reichs President for Protection against treacherous Attacks
on the Government of the Nationalist Movement 21 March 1933

On the basis of Article 48, Par. 2 of the constitution the following is
decreed:

Par. 1

1. Any person possessing a uniform of an organization supporting the government of the nationalist movement without being entitled thereto through membership in the organization or otherwise, will be punished with imprisonment up to two years.
2. Any person wearing the uniform or an insignia representing membership of an organization designated in Par. 1, without being a member of the organization, will be punished with imprisonment of at least one month.

Par. 2

1. Whoever commits a punishable act against persons or objects or threatens the same and while so doing wears or carries with him the uniform or insignia designating membership in an organization of the kind listed in Section 1 (1) without being a member of the organization, will be punished with a penitentiary sentence; in case of mitigating circumstances, with imprisonment of not less than 6 months.

2. If the offense was committed with the intention to incite a revolt or to create fear or panic among the populace or to cause difficulties for the German Reich in its foreign affairs, the punishment is a penitentiary sentence of from 3 years to life. In especially severe cases the death penalty may be exacted.

3. According to these regulations a German can also be prosecuted if he has committed the offense in a foreign country.

Par. 3

1. Whoever purposely makes or circulates a statement of a factual nature which is untrue or grossly exaggerated or which is apt to seriously harm the welfare of the Reich or of a state or the reputation of the national government or of a state government or of the parties or organizations supporting these governments, is to be punished, insofar as no more severe punishment is decreed in other regulations, with imprisonment up to two years and, if he makes or spreads the statement publicly, with imprisonment of not less than three months.

2. If through this deed, heavy damage for the Reich or a state resulted, penitentiary punishment can be exacted.

3. Whoever commits an act through negligence, will be punished with imprisonment up to 3 months, or by a fine.

Par. 4

Whoever has acquired membership in an organization surreptitiously is counted as a non-member in the application of this decree.

Par. 5

This decree becomes effective on the day following its publication.

Berlin, 21 March 1933

Reichs President
von HINDENBURG

Reichs Chancellor
Adolf HITLER

Reichs Minister of the Interior
FRICK

For the Reichs Minister for Justice
The Deputy of the Reichs Chancellor
von PAPEN

TRANSLATION OF DOCUMENT 1653-PS

1934 REICHSGESETZBLATT, PART I, PAGE 81

First regulation concerning the new building of the Reich of 2 February
1934

Under the authority of Article 5 of the law on the Reconstruction of the Reich from 30 January 1934 (Reichsgesetzblatt I, page 75), the following decree is published herewith:

Article 1

To exercise sovereign rights—a function which was transferred from the provinces onto the Reich—shall be a function exercised by the provincial governments as a mandate and on behalf of the Reichs, since the Reich shall not make use of its right to exercise this function, either generally or in individual cases.

Article 2

Treaties or agreements in the realm of administration which the provinces may have concluded among each other or with the Reich shall not be affected by this transfer of the sovereign rights from the provinces onto the Reich.

Article 3

1. Laws need the assent of the competent Minister of the Reich.
2. In his own domain the competent Minister of the Reich may order that the drafts of laws be submitted to him before the law is published.

Article 4

The highest echelons of the provincial governments shall, within the realm of their tasks, obey the orders issued by the competent Ministers of the

Reich.

Article 5

Employees of the provincial governments may be transferred into the Reich's civil service, and employees of the government of the Reich may be transferred into the civil service of the provinces.

Article 6

This decree became valid on 30 January 1934.

Berlin, 2 February 1934

The Minister of the Interior
FRICK

TRANSLATION OF DOCUMENT 1654-PS

1935 REICHSGESETZBLATT, PAGE 369, Nr. 28 dated 16 March 1935

TO THE GERMAN PEOPLE!

When in November 1918, the German people trusting the assurances given in Wilson's 14 points, laid down their arms, after four and a half years of glorious resistance in a war which they never wanted, they believed, not only to have rendered a service to tortured mankind but also toward a great idea. Suffering the most, under the consequences of this insane battle, millions of our people faithfully grasped at the thought of a reorganization of the relationship between people. This would be improved by the elimination of secret diplomatic cabinet politics on one hand, and the horrible means of war on the other. The harshest results of defeat which are history appeared, to many German people as the necessary sacrifices in order to free the world once and for all of similar horrors.

The idea of the League of Nations has probably not aroused a more hearty approval in other nations than in the German which lost all earthly happiness. And so it was easy to understand, why the German people occupied and fulfilled the inane requests for destruction of armaments. The German people, and especially the administration, were convinced that through their fulfillment of orders for disarmament, laid down at Versailles, an international disarmament program was going to be started and

guaranteed. For only in a fulfillment of these orders, by both sides, lies a moral sensible justification for a demand, which if unilaterally imposed and executed, will lead to eternal discrimination and with that, to a declaration of inferiority, of a great nation. But such a peace treaty could never be the prerequisite for a real inner reconciliation of the people and with that lead to a pacification of the world; but it would only create an eternal burning hatred. Germany has fulfilled the imposed disarmament obligations laid down by the Inter-Allied Control Commission.

The following were the works of the destruction of the German military power and its means which were certified to, by this commission.

A. Army

59 897	guns and barrels
130 558	machine guns
31 470	trench mortars and barrels
6007 000	rifles and carbines
243 957	machine gun barrels
28 001	gun carriages
4 390	trench mortar carriages
38750 000	projectiles
16550 000	hand and rifle grenades
60400 000	fuzes
491000 000	small arms ammunition
335 000	shells
23 515	cartridges and bullets
37 600	powder
79 500	empty shells
212 000	telephones
1 072	flamethrowers

31 armored trains
59 tanks
1 762 observation cars
8 982 wireless stations
1 240 Field bakeries
2 199 pontoons
981 pieces of equipment for soldiers and
8230 350 sets of equipment for soldiers
7 300 pistols and revolvers
180 machine gun sleighs
21 mobile workshops
12 AA gun carriers
11 caissons
64 000 steel helmets
174 000 gas masks
2 500 machines of former war industry
8 000 rifle barrels

B. Air

15 714 fighter planes and bombers
27 757 Airplane engines

C. Navy

26 battleships
4 coast guard vessels
4 destroyers
19 small destroyers

21 school and special ships
83 torpedo boats
315 U-Boats

Remarks to A and B

Further under the destruction duties; vehicles of all kinds, means of gas attack and partly gas defense, gas and explosives, searchlights, sighting mechanisms, range-finding and sound-ranging devices, optical apparatus of all kinds, harnesses for horses, narrow gauge equipment, field printing shops, field kitchens, workshops, slash and stabbing weapons, steel helmets, ammunition transport material, normal and special machines of the War industry as, buildings, blueprints thereof, airplane and zeppelin hangars, etc.

Following this unprecedented historical fulfillment of a treaty, the German people had the right to expect the redemption of the introduced duties also from the other side.

Because:

1. Germany has disarmed.
2. In the peace treaty it was plainly required that Germany must be disarmed in order to set precedent for general disarmament; this means, it was said that only in Germany's armament alone lies the basis for the armament of other nations.
3. The German people were filled with such principles in its governments and in its Parties which completely agreed with the pacifistic-democratic ideals of the League of Nations and its founders.

While Germany however had fulfilled its obligations on one side of the treaty, there remained the redeeming of the obligations on the other side. That means: the high treaty-makers of the former victorious states have unilaterally released themselves from the obligations of the Versailles treaty!

Not enough that every disarmament, was in some way or another comparable to the German destruction of arms, discontinued, no: Not even a standstill in the armament was seen, on the contrary the armament of a

whole number of states became visible. What was discovered during the War in the way of new destructive machinery now was completed in a methodical-scientific way. In the field of creating mighty tanks, fighters and bombers, uninterrupted and terrible improvements took place. New large guns were constructed, new high explosive, incendiary and gas bombs were developed.

In the meantime however, the world resounded again with war cries as if there never had been a World War and never a Versailles Treaty. Germany was an empty powerless space, among these highly armed War states, which continually made available the most modern motorized equipment [Kraefte] and had no defense against any menace or threat. The German people recall the disaster and suffering from fifteen years of economical distress, political and moral humiliation. It is therefore easily understood when Germany began to ask loudly for the redeeming of the promise of the disarmament of the other nations.

Because this is clear, the world would not tolerate a hundred year long peace but it must be an unmeasurable blessing to her. But it would not endure a hundred year long break between conqueror and conquered.

The feeling regarding the moral rectification and necessity of an international disarmament was not only active in Germany but also within many other nations. Out of the pursuance of these strengths resulted attempts to try and direct an armament reduction by means of conferences and thereby bring about a general international assimilation on a lower level.

And so resulted the first proposition for an international armament abrogation, of which we have the memory of the MacDonald Plan as being significant.

Germany was prepared to accept this plan and to take it as foundation of a final agreement.

It failed due to the rejection by other nations and was finally abandoned. Since the German people and Reich under such circumstances found no realization in the equality of rights solemnly guaranteed in the December declaration of 1932, the new German government saw in themselves, the guardians of the honor and the living rights of the German people; they

were not in the position to continue to take part in such conferences or to belong to the League of Nations.

Even after the leaving of Geneva, the German Government was still prepared not only to consider proposals by other nations but also to make several practical proposals themselves. They undertook thereby the conception, which was coined by other nations themselves, that the creation of short services Armies are inappropriate for purposes of aggression and therefore are to be recommended for a peaceful defense.

They were therefore prepared to convert the long-service Reichswehr into a short service Army according to the wishes of other nations. Their proposals of the winter 1933/34 were practical and easy to accomplish. Their rejection as well as the final rejection of the similar proposed Italian and English plan however led us to believe that the inclination toward a further sensible fulfillment of the Versailles disarmament provision no longer exists.

Under these circumstances, the German government was forced to take every necessary measure which would guarantee the termination of conditions, which are just as unworthy as menacing; of the helpless defenselessness of a great people and Reich.

They started out from the same motivations as the very true expression given by Minister Baldwin in his last speech:

“A country, which is not willing to seize the necessary precautionary measures for its own protection will never have might in this world, neither moral nor material might.”

The Government of the present day German Reich however, only wishes one single moral and material might; it is the power to be able to protect the peace for the Reich and with that, peace for all of Europe!

Therefore she did everything that was in her power and what could serve toward the furtherance of the peace.

1. For a long period of time she has proposed to all her neighbor nations, the signing of non-aggression pacts.
2. She has sought and found an agreeable arrangement with the eastern neighbor nation, which, thanks to the great arbitrary understanding, has for ever decontaminated the menacing atmosphere which existed when they

took over the power, and it will lead to a lasting understanding and friendship between the two peoples.

3. She has finally given France the solemn security that Germany, after the effectuated arrangement of the Saar question will not place or raise any more territorial claims against France. She believes thereby to have created, in a historically rare form the prerequisite for the termination of a hundred year long conflict between two large nations through a great political and essential sacrifice.

However, the German government must witness to its regret, that for months a continually rising rearmament is taking place in the world. She sees in the creation of a Soviet-Russian Army of 101 Divisions, which means 960,000 men in present peacetime strength, an element which could not be foreseen at the time of the composition of the Versailles Treaty.

She sees further signs of rejecting the disarmament idea, proclaimed in its time, in the overdoing of similar measures. It is far from the German Government to reproach any nation. However, she sees today that through the present resolved introduction of the two-year military service in France, the basic ideas of the creation of a short service defense Army has been abandoned in favor of a long-service organization.

This, however, was one of the arguments used in the demands on Germany, to surrender its Reichswehr.

* * * Under these circumstances, the German government feels that it is impossible longer to postpone taking the necessary measures for the security of the Reich, or even to hide them from the knowledge of the world.

Therefore, if it now complies with the desire, expressed in the speech of the English Minister Baldwin on November 28, 1934 for a clarification of the German intentions, then this is done:

1. IN ORDER TO GIVE THE GERMAN PEOPLE THE CONVICTION AND THE OTHER STATES THE KNOWLEDGE THAT THE MAINTAINING OF THE HONOR AND SECURITY OF THE GERMAN REICH WILL, FROM NOW ON, AGAIN BE ENTRUSTED TO THE GERMAN NATION'S OWN POWER.

2. But in order, by fixing the extent of the German measures, to invalidate these assertions which wish to imply that the German people are striving for a position of military hegemony in Europe.

What the German government desires, as the guardian of the honor and interests of the German nation, is to guarantee the extent of those means of power which are required not only for maintaining the integrity of the German Reich, but also for the international respect and esteem of Germany as a co-guarantor of the general peace.

For in this hour the German government renews, before the German people and before the whole world, the assurance of its determination never to trespass the limit of guarding German honor and the freedom of the Reich, and especially of its determination to (wish to) form, in the national German armament, not an instrument of military attack, but rather exclusively one for defense, and thus for maintaining the peace.

In so doing, the German Reich Cabinet expresses the confident hope that the German people, which thus regains its honor, may be permitted, with independent equal right, to make its contribution to the pacification of the world in a free and open cooperation with the other nations and their governments.

In this spirit the German Reich Cabinet has today passed the following law:

Law for the Organization of the Armed Forces of March 16, 1935.

The Reich Cabinet has passed the following law which is herewith promulgated:

Section 1

Service in the Armed Forces is based upon compulsory military duty.

Section 2

In peace time, the German Army, including the police troops transferred to it is organized into:

12 Corps and
16 Divisions.

Section 3

The Reich Minister of War is charged with the duty of submitting immediately to the Reich Ministry, detailed laws on compulsory military duty.

Berlin, March 16, 1935

The Fuehrer and Reich Chancellor
ADOLF HITLER

The Reich Minister of Foreign Affairs
FREIHERR VON NEURATH

The Reich Minister of the Interior
FRICK

The Reich Minister of Finance
GRAF SCHWERIN VON KROSIGK

The Reich Minister of Economics
Acting: HJALMAR SCHACHT
President of the Board of Directors of the Reichsbank.

The Reich Minister of Labor
FRANZ SELDTE

The Reich Minister of Justice
DR. GUERTNER

The Reich Minister of Defense
VON BLOMBERG

The Reich Minister of Post and Traffic
FREIHERR VON TELTZ

The Reich Minister of Nutrition and Agriculture
R. WALTER DARRE

The Reich Minister for Public Enlightenment and Propaganda
DR. GOEBBELS

The Reich Minister for Air
HERMANN GOERING

The Reich Minister of Science Education and Popular Culture
RUST

The Reich Minister without Portfolio
R. HESS

The Reich Minister without Portfolio
KERRL

The Reich Minister without Portfolio
Dr. HANS FRANK

TRANSLATION OF DOCUMENT 1659-PS

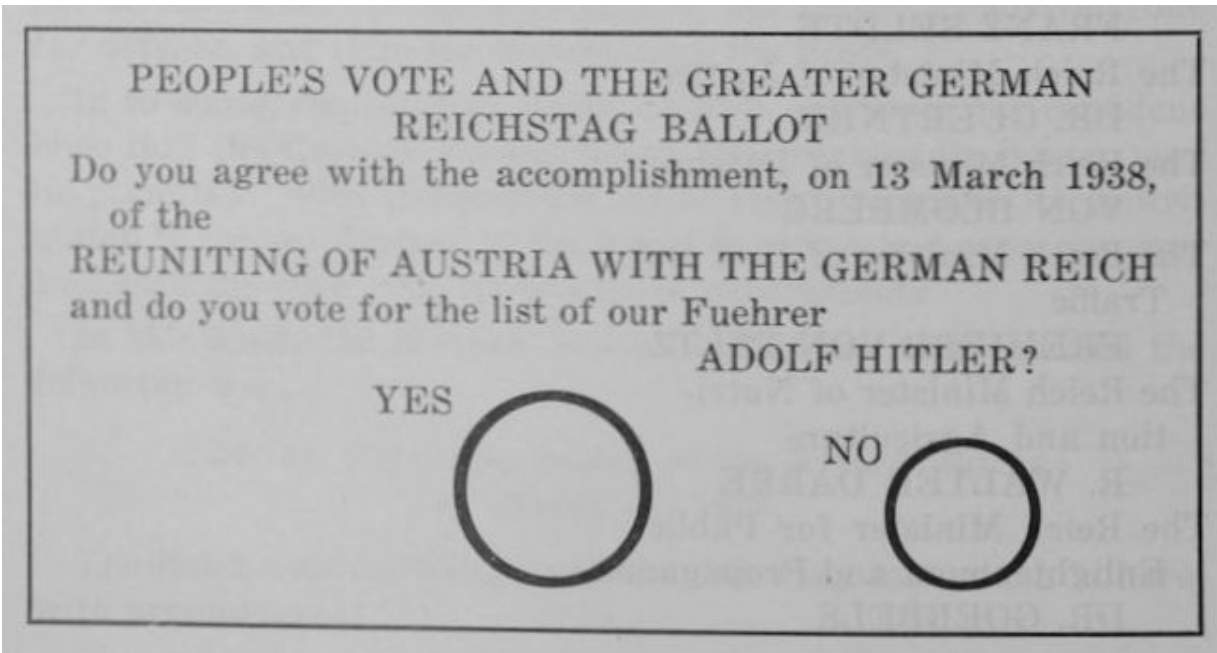
1938 REICHSGESETZBLATT, PART I, PAGE 303

Second order concerning plebiscite and election for the greater German
Reichstag of 24 March 1938

On the basis of par. 4 of the Second Decree regarding the Reichstag election law of 18 March 1938 (RGBl I, p. 258) the following is decreed in supplement to pars. 8 and 32 of the First Decree of 22 March 1938 for the people's vote and for the election to the Greater German Reichstag:

Article 1

1. The ballot is printed as follows:



**PEOPLE'S VOTE AND THE GREATER GERMAN REICHSTAG
BALLOT**

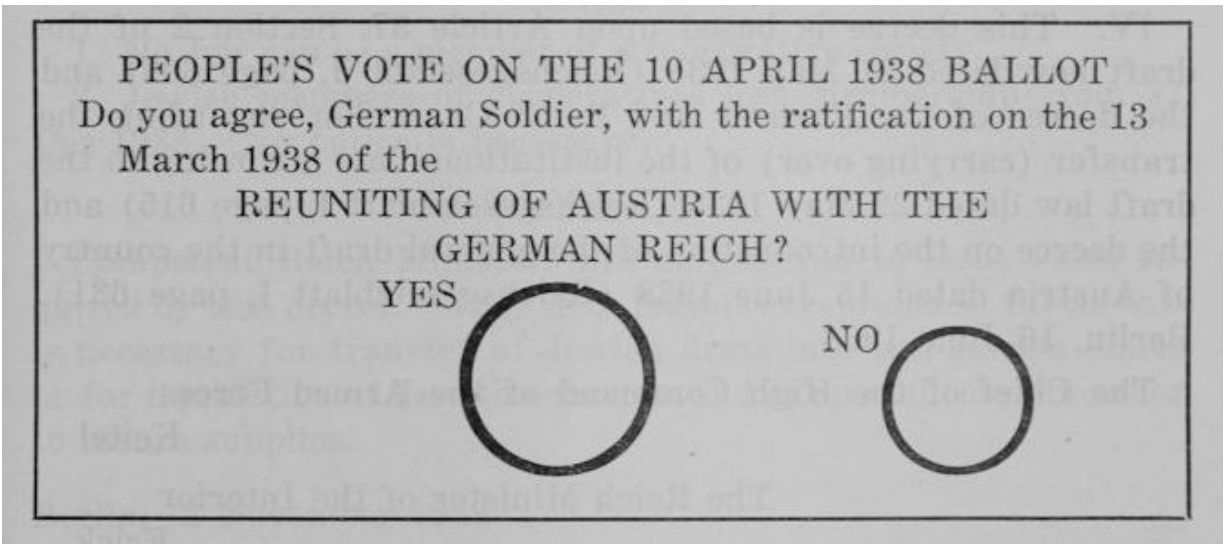
**Do you agree with the accomplishment, on 13 March 1938, of the
REUNITING OF AUSTRIA WITH THE GERMAN REICH and do
you vote for the list of our Fuehrer ADOLF HITLER?**

YES NO

2. The ballot for the qualified voters with the exception of the Austrian qualified voters (par 8 of the First Decree) consists of white or yellow paper.
3. The ballot for the Austrian qualified voters (par. 32 section 1 of the First Decree) consists of green paper.

Article 2

1. The ballot for soldiers of the former Austrian Army (par 32 section 2 of the First Decree) is printed as follows:



PEOPLE'S VOTE ON THE 10 APRIL 1938 BALLOT
Do you agree, German Soldier, with the ratification on the 13 March
1938 of the
REUNITING OF AUSTRIA WITH THE GERMAN REICH?
YES NO

TRANSLATION OF DOCUMENT 1660-PS

1938 REICHSGESETZBLATT, PART I, PAGE 631

Decree for the registration for the active service in Austria in the year 1938
of 16 June 1938

I. The registration for the active service in the army for the year 1938 in the country of Austria will be conducted during the time from 16 August until 10 September 1938.

II. To be called for registration:

1. All those subject to duty, born in the year 1917, without regard to their physical fitness and regardless whether they were exempt from induction in spring of the year 1938;
2. All those volunteers of other years of birth who were considered "general service";
3. All those subject to duty considered "general service" or "limited service" at the time of induction of the class of 1915 and 1916 who have

registered with reserve commands and who have as yet not been trained;

4. The volunteers who have reported, or want to report, in June 1938, for induction into active service for the fall of 1938 (for the Luftwaffe also for the spring of 1939), without regard whether or not they have been physically examined.

III. Charged with this task are—

in the higher administrative echelons:

The Landeshauptmaenner (governors of provinces); in
Vienna the mayor,

in the district police echelons:

in the cities, the mayor, and the State police officer, as
far as they are on hand,

in Vienna the Chief of Police,

in the rural districts the district governors.

IV. This decree is based upon Article 37, Section 2 of the draft law dated 21 May 1935 (Reichsgesetzbl. I, page 609) and the decree of the Fuehrer and Reich Chancellor regarding the transfer (carrying over) of the institutional law according to the draft law dated 22 May 1935 (Reichsgesetzblatt I, page 615) and the decree on the introduction of the general draft in the country of Austria dated 15 June 1938 (Reichsgesetzblatt I, page 631).

Berlin, 16 June 1938

The Chief of the High Command of the Armed Forces
Keitel

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 1662-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1580

Order eliminating Jews from German economic life of 12 November 1938

On the basis of the Decree of 18 October 1936 for the execution of the Four Year Plan (RGBl I, p. 887), the following is ordered:

Article 1

1. From January 1, 1938, operation of retail shops, mail order houses, independent exercise of handicrafts is forbidden to Jews. (Article 5 of the First Decree to Reich citizenship law [Reichsbuergergesetz] of 14 Nov 1935 —RGBl I, 1933).
2. Moreover it is forbidden to Jews from the same date to offer goods or services in the markets of all kinds, fairs, or exhibitions or to advertise such or accept orders therefor.
3. Jewish shops operated in violation of this order will be closed by police. (Third Decree to Reich citizenship law of 14 June 1938-RGBl I, 627).

Article 2

1. No Jew can manage a firm according to the interpretation of the term “manager” under the law for national labor of 20 Jan 1934. (RGBl I, 45).
2. If a Jew is a leading employee in a business concern he may be dismissed with notice of six weeks. At expiration of this period all claims resulting from the employee’s contract, especially claims of compensation or pensions, become null.

Article 3

1. No Jew can be a member of a cooperative society.
2. Jewish members of cooperatives lose membership from 21 Dec 1938. No notice is necessary.

Article 4

Competent Reich Ministers are empowered to issue rules required by this decree. They may permit exceptions so far as this is necessary for transfer of Jewish firms into non-Jewish hands or for liquidation of Jewish concerns and in special cases in order to insure supplies.

Berlin, 12 November 1938

The Commissioner for the Four Year Plan
Goering

General Field Marshal

TRANSLATION OF DOCUMENT 1665-PS

1940 REICHSGESETZBLATT, PART I, PAGE 1270

Order concerning treatment of property of Nationals of the former Polish
State of 17 September 1940

On the basis of the Decree to Implement the Four Year Plan of 18 October 1936 (RGBl I, 887) in conjunction with the Decree for the Introduction of the Four Year Plan in the Eastern Territories of 30 October 1939 (RGBl I, 2125) the following is decreed for the area of the Greater German Reich, including annexed Eastern territories:

Article 1

1. Property of nationals of the former Polish State within the area of the Greater German Reich, including annexed Eastern territories, is subject to confiscation, administration by commissioner and sequestration in accordance with the following regulations.
2. This does not apply to the property of persons who have gained German citizenship in accordance with Article 6 of the edict of the Fuehrer and Reich Chancellor concerning organization and administration of Eastern territories, dated 8 October 1939 (RGBl I, 2042). The competent authority (Article 12) may permit additional exceptions.
3. Nationals of the former Free City of Danzig who are of Polish nationality are considered as nationals of the former Polish State.

Article 2

1. Confiscation will be applied in case of property belonging to:
 - a. Jews.
 - b. Persons who have fled or who have absented themselves for longer than temporary period.
2. Confiscation may be applied:
 - a. If the property is needed for the public good, especially for purposes of national defense or the strengthening of German folkdom.

b. If the owners or other persons entitled to it immigrated into the, then, area of the German Reich after 1 October 1918.

3. Confiscation may be limited to individual articles of property.

4. As a rule the following articles are to be exempted from confiscation:

a. Movable articles destined exclusively for personal use.

b. Cash, bank and savings bank deposits as well as stocks and bonds up to a total value of one thousand marks.

Article 3

Properties are stationary and movable objects (with all accessories), credits, shares, judgments, and interests of all sorts.

Article 4

1. With the sequestration the previous owners lose the rights of disposal of the sequestered properties. The competence of the general governor in accordance with the ordinance for public administration of farm and forestry industries and territories in the annexed Eastern areas of 12 Feb 1940 (RGBl I, 355) remains unaffected.

2. Whoever has sequestered property in his possession or custody, must administer it until further notice. Changes or disposal of the property or its profits are only to be permitted within the limits of regular business. All measures which go beyond this, especially the disposal of plots of land, must have the permission of the competent office (Article 12).

Article 5

1. The commissarial administration can be ordered for property which is subject to sequestration, insofar as ordinary administration demands it.

2. Orders by the commissarial administration serve as confiscation at the same time.

Article 6

1. The commissarial administrator is appointed by the competent office (Article 12). He will receive a written appointment. He can be recalled at any time.

2. In the direction of businesses, he must use the same caution which a regular businessman or administrator would and is responsible for all the damages which result through breach of duty. He must report to the competent office (Article 12) at all times all of the information requested by it and insofar as nothing else is determined he still must report it concerning his administrative activity monthly without further request.

3. The commissarial administrator can be held to the fulfillment of his obligations by the competent office—without prejudice to his criminal responsibility—by means of an automatic fine of up to 10,000 RM.

Article 7

1. The commissarial administrator is empowered to take all judicial and extrajudicial actions, which the administration of the property entails within the limits of ordinary business.

2. The administrator needs a special permission of the competent office (Article 12) prior to:

a. Selling or mortgaging lots.

b. Changing the subject or the legal form of an enterprise.

c. Doing legal business which results in the sale or winding-up of an enterprise or of a management or the sale of an administrated stock of goods or other property which is not divided.

d. Renting professional, agriculture and lumber enterprises and farm and timber lots over 10 hectares.

e. Undertaking other legal business whose settlement is made dependent upon previously established authority of the competent office (Article 12) by means of public announcement in the German Reichsanzeiger and the Prussian Staatsanzeiger.

3. Legal affairs which are undertaken without the authority required by Article 2 are not valid.

Article 8

1. The administrator will receive a remuneration for his activity which will be determined by the competent office.

2. The costs of the commissarial administration including the remuneration will be borne by the concern, property, or portion of property, administered.

Article 9

1. Sequestered property can be confiscated in favor of the Reich by the competent office if the public weal, particularly the defense of the Reich or the consolidation of the German nationality [Volkstums], requires it.

2. Before confiscation the sequestered property is to be determined according to more detailed directives of the competent office (Article 12).

The Reich is the security for the debts of the confiscated property up to the amount of the sale value of the confiscated property. Judgments against confiscated properties remain valid.

4. The disposal of confiscated property is granted the office which was competent for the confiscation (Article 12). In the case of disposal of agricultural property an accord will be reached between the Reich Commissar for the strengthening of German nationality and the Reich Minister for Food and Agriculture.

5. The regulation of the type and extent of compensation which will be granted for property losses attendant upon the carrying out of this decree remains withheld. For measures of the competent agency (Article 12), on the basis of Articles 16 and 17, no compensation will be granted.

Article 10

1. A commissarial (provisional) administration can also be established over the property of legal persons, societies, clubs and other associations of individuals in which subjects of the former Polish State in the year 1939 still either had a preponderant capital interest or whose administration was decisively influenced by members of the former Polish State.

2. During the existence of the commissarial administration the authority of chief and of the other persons authorized for representation or administration will be dormant; the same thing for the powers of all other organs.

3. Only the shares and holdings of subjects of the former Polish State are subject to confiscation in this case.

Article 11

1. The sequestration or the regulation of the commissarial administration are upon request of the competent authority (Article 2) to be entered into the register of deeds or any other appropriate public register. The entry of the name of the commissarial administrator can also be demanded.
2. Insofar as the register of deeds or other appropriate public register becomes incorrect as a result of measures on the basis of this decree, it is upon request of the competent authority to be corrected. Article 1, section 3 to 5 of the second decree for the execution and completion of the law on the granting of compensation in case of confiscation or transferral of property of 18 March 1938 (RGBl I, 317) is to be applied appropriately.

Article 12

1. For measures and decisions on the basis of this decree the commissioner for the four year plan—chief-trusteeship East—is the competent authority; for agriculture including agricultural side-enterprises, the Reich Commissar for the strengthening of German nationality.
2. The competent authorities according to subparagraph (1) can delegate the exercise of their powers entirely or partially to other agencies. Complaints against their decisions will be directed to the competent authority according to Sect (1). The complaint will have no delaying effect. It is not permissible if more than one year has gone by since the issuance of the disputed decision.

Article 13

If anybody opposes the sequestration or the ruling of the commissarial administration with the assertion that he is a member of the German people, then the proceedings are to be suspended. The competent authority (Article 12) will entrust the decision concerning membership in the German people to the local governor [Regierungspraesident]. The person concerned also has the right of requesting that his nationality be determined. Complaint against the decision of the Regierungspraesident to the Reich Minister of the Interior is permissible. The decision on membership in the German people is binding, upon the proceedings of the competent authority (Article 12) on the basis of this decree.

Article 14

The regulations to be issued according to Article 2, 5 and 10 will be effected by a written order which is to be made known to person concerned. This personally making known may be substituted by a sign, poster, or public proclamation.

Article 15

1. Disposal of property and property rights of subjects of the former Polish State, who do not come under the regulations governing exceptions of Article 1, Section 2, need the approval of the competent authority (Article 12) to be valid. This is not true for the disposition of claims upon interest and other continuous earnings.

2. The competent authority decides whether approval according to Section 1 is necessary. The decision is binding upon courts and administrative agencies. The competent authority (Article 12) must upon demand issue a certificate that approval is not necessary.

Article 16

1. All sorts of compulsory sales of objects are by this decree subject to sequestration may only be begun with the assent of the competent authority (Article 12). If one of the competent authorities according to Article 12 has assented, it has no influence upon further proceedings, if it has wrongly asserted its competence.

2. If it is to be feared that the debtor will escape the compulsory sale, or an immediate seizure is called for, for some other reason, then upon order of the court authorizing the compulsory sale the compulsory sale can be begun before issuance of the necessary approval, according to Section 1. It should, in this case, be limited to the measures permissible in the execution of an attachment and be continued from this point only when the approval has been issued. Upon demand of the competent authority (Article 12) the court authorizing a compulsory sale must order the lifting of the temporary attachment measures.

Article 17

1. If in the incorporated Eastern territories bankruptcy proceedings are opened on the property of a bankrupt, then the provisions of Article 16 are valid accordingly, for the liquidation of the property belonging to the estate of the bankrupt.

2. If the opening or discontinuance of bankruptcy proceedings in the incorporated Eastern territories depends upon whether the value of the bankrupt estate corresponds to the cost of the proceedings, then objects which according to this decree are subject to confiscation, shall only be regarded as belonging to the bankrupt estate, if the competent authority (Article 12) has agreed to their liquidation in bankruptcy proceedings.

Article 18

It can be publicly announced that property coming into consideration for sequestration is to be registered. The announcement of registration for agricultural property takes place in agreement with the Reich Minister for Food and Agriculture.

Article 19

The competent authority (Article 12) can demand information of everybody for the carrying out of its tasks. Administrative agencies and courts must give it official help, especially they must question witnesses and experts upon its demand.

Article 20

1. Whoever undertakes to deprive the agencies indicated in Article 12 or those empowered to dispose of the property by said agencies or otherwise in any way undertakes to thwart, to evade, or to prejudice the effect of the sequestration in order to create a profit for himself or another, will be punished with imprisonment and fine or one of these penalties.

2. In aggravated cases the punishment will be confinement to a penitentiary. If the culprit acts out of insubordination against the political new order or the case is otherwise especially aggravated the sentence of death is to be given.

Article 21

1. Whoever intentionally or carelessly fails to fulfill or fulfills incorrectly, or incompletely, an obligation to report or give information incumbent upon him according to an executionary regulation issued to implement this law or a regulation issued according to Articles 18 and 19, will be punished with imprisonment and fine.

2. The criminal prosecution will be instituted only upon request of the competent authority (Article 12).

Article 22

1. The following remain unprejudiced:

a. The regulation for the securing of the necessary establishments for the fitting out of the Reich's war harbor Gdynia of 21 December 1939 (RGBl I, 2475);

b. The decree on the public exploitation of agricultural and sylvicultural enterprises and real estate in the incorporated Eastern territories of 12 February 1940 (RGBl I, 355) with the provision that upon the undertaking subject to public exploitation the provisions of Articles 1, 2, 3, 4 Section 1, Articles 9, 11, 12 Section 1, Articles 14, 18, 19, 20, 21 and 23 of this decree will be applied;

c. The ordinance on the handling of enemy property of 15 Jan 1940 (RGBl I, 191) with the provision that property of the subjects of the former Polish State, who have their residence or permanent domicile in the territory of an enemy state, will be treated according to this decree, insofar as it is located in the Greater German Reich including the incorporated Eastern territories.

d. The decree on confiscation in the occupied former Polish territories (except Eastern Upper Silesia) of 5 Oct 1939, P. 25.

e. The decree on the employment of Jewish property of 3 Dec 1938 (RGBl I, 1709) with following:

1. The sequestration according to Article 2 and the regulation of a commissarial administration according to Articles 5 and 10 of this decree do not take place in the case of property of Jews, which the Jewish owners had already been ordered to sell on the basis of Articles 1 to 6 of the decree on the disposal of Jewish property at the time this law came into effect. The proceeds of this sale can be confiscated.

2. The approval according to Article 15 of this decree is not necessary insofar as a license is prescribed by Article 8 of decree on employment of Jewish property;

f. The decree of the Reich protector in Bohemia and Moravia on Jewish property of 21 June 1939 [Verordnungsblatt des Reichsprotectors in

Boehmen und Maehren p. 45] and the decree of the Reich protector in Bohemia and Moravia on the removal of the Jews from the economy of the protectorate of 26 Jan 1940 [Verordnungsblatt des Reichsprotectors in Boehmen and Maehren P. 45] with the provision that the proceedings for the removal of Jews will also be carried out in regard to the property of subjects of the former Polish State according to these provisions, in agreement with the chief-trusteeship East; for the sequestration and confiscation the agencies named in Article 12 remain competent.

2. Furthermore all regulations conflicting with this one, issued since 28 August 1939 in the incorporated Eastern territories including the territory of the former Free City of Danzig, especially such regulations which grant the right to sequester, to install commissarial administrators or trustees, or to confiscate, become invalid.

3. The measures and legal transactions of the commissariat administrator undertaken with the approval of the competent agencies are not subject to the necessity of being approved according to the decree to assure the orderly development of the economy in the incorporated Eastern territories of 31 Jan 1940 (RGBl I, 255). In the case of property disposal an understanding will be established with the competent Reichs governor or provincial governor or the highest Reichs authority, which according to Article 3 Section 2 of the decree of 31 Jan 1940 have withheld their consent. If in cases of especial importance such an understanding cannot be established, then the commissioner for the four year plan will make the decision.

4. Measures of the competent authorities (Article 12) which have been taken before this decree became effective, are valid if they are in accordance with the provisions of this decree or with the law as it stood previously.

5. Insofar as sequestrations, confiscations, or the installation of commissarial administrators have been carried out by anyone else but the competent agencies (Article 12), their confirmation is to be applied for in writing. If the confirmation of them is not then forthcoming, the previously directed measures become null and void. The same is true if a decision is not reached on the confirmation before 31 October 1940. The competent

agencies are authorized to prolong this period to a reasonable degree in individual cases.

6. The provisions of Section 5 are not valid for trustees, who at the time this law came into effect were installed according to Articles 2 and 6 of the decree on the employment of Jewish property of 3 Dec 1938 (RGBl I, 1709) for the temporary carrying on, transferral, or winding up of Jewish business undertakings or for the administration or transferral of other property of Jews. The legal position of these trustees remains unchanged.

Article 23

1. The commissioner for the four year plan will issue the necessary legal regulations for the carrying out of this law—for agriculture including subsidiary enterprises pertaining to agriculture—with the agreement of Reich commissar for the strengthening of German nationality and of the Reich Minister for Food and Agriculture.

2. The commissioner for the four year plan in agreement with the Reich Minister of Finance and the Reich Minister for Economic Affairs can decree by means of legal regulations a simplified settlement, diverging from the provisions of the law as it stands, of the legal affairs of those persons whose property is subject to confiscation according to this decree.

3. The necessary administrative regulations for the carrying out of this decree will be issued by the commissioner for the four year plan—Chief Trusteeship East—in agreement with the competent authorities.

Article 24

1. This decree becomes effective one week after its proclamation.

2. The commissioner for the four year plan will fix the time of its becoming invalid.

Berlin, 17 September 1940

The chairman of the ministerial council
for the defense of the Reich and commissioner
for the four year plan

GOERING
Reichs Marshal

TRANSLATION OF DOCUMENT 1666-PS

1942 REICHSGESETZBLATT, PART I, PAGE 179

Decree of the Fuehrer concerning a plenipotentiary general for the
utilization of labor of 21 March 1942

In order to secure the manpower requisite for the war industries as a whole, and particularly for armaments, it is necessary that the utilization of all available manpower, including that of workers recruited [angeworbenen] abroad and of prisoners of war, should be subject to a uniform control, directed in a manner appropriate to the requirements of war industry, and further that all still incompletely utilized manpower in the Great German Reich, including the Protectorate, and in the General Gouvernement and in the Occupied Territories, should be mobilized.

Reichsstatthalter and Gauleiter Fritz Sauckel will carry out this task within the framework of the Four Years Plan, as Plenipotentiary General for the utilization of labor. In that capacity he will be directly responsible to the Commissioner for the Four Years Plan.

Section III (wages) and Section V (utilization of labor) of the Reich Labor Ministry, together with their subordinate authorities, will be placed at the disposal of the Plenipotentiary General for the accomplishment of his task.

Fuehrer-Headquarters, 21 March 1942

The Fuehrer
Adolf Hitler

The Reich Minister and Head of the Reich Chancellery
Dr. Lammers

The Chief of the High Command of the Armed Forces
Keitel

1942 REICHSGESETZBLATT, PART I, PAGE 180

Ordinance for the execution of the Fuehrer's decree concerning a
Plenipotentiary General for Arbeitseinsatz of 27 March 1942

In pursuance of the Fuehrer's Decree of 21 March 1942 (RGBl I, 179), I decree as follows:

1. My manpower sections [Geschaeftsgruppen Arbeitseinsatz] are hereby abolished. (Circular letter of 22 Oct 1936/St. M. Dev. 265). Their duties (recruitment and allocation of manpower, regulations for labor conditions [Arbeitsbedingungen]) are taken over by the Plenipotentiary General for Arbeitseinsatz, who is directly under me.
2. The Plenipotentiary General for Arbeitseinsatz will be responsible for regulating the conditions of labor (wage policy) employed in the Reich Territory, having regard to the requirements of Arbeitseinsatz.
3. The Plenipotentiary General for Arbeitseinsatz is part of the Four Year Plan. In cases where new legislation is required, or existing laws require to be modified, he will submit appropriate proposals to me.
4. The Plenipotentiary General for Arbeitseinsatz will have at his disposal for the performance of his task the right delegated to me by the Fuehrer for issuing instructions to the higher Reich authorities, their branches and the Party offices, and their associated organisms and also to the Reich protector, the General-Governor, the Commander-in-Chief, and heads of the civil administrations.

In the case of ordinances and instructions of fundamental importance report is to be submitted to me, in advance.

Berlin, 27 March 1942

The Deputy for the Four Year Plan
Goering
Reich Marshal

TRANSLATION OF DOCUMENT 1669-PS

NATIONAL SOCIALIST GERMAN WORKERS PARTY

Deputy of the Fuehrer
H/J

Munich, Briennerstrasse 45
Tel: 54901 and 58344

Munich, 28 August 1933.

Mr. Dr. Albrecht Hanshofer

BERLIN

Society of Geography, Wilhelmstr, BERLIN

My dear Doctor:

Many thanks for both your letters of the 23 and 24 of this month. I made all necessary arrangements concerning the Standartenfuehrers, immediately.

I would like very much to speak to Haselblatt before his convention starts. Probably I will be at Berlin around September 7. I don't know yet if I shall be able to attend the Convention myself.

Concerning the American, would you please tell him, that in one case it is no longer the question of a "party" in the sense of the "custom" practiced since Washington's time, that we are striving for, but this party is a section of the State itself. It is of utmost interest to me to know, whether any American official representatives ever attended meetings of the fascist party.

I reported the statements of the Polish Chief of Staff.

With hearty greetings
your
[Signature] Rudolf Hess.

Registered!

Berlin, August 1933.

EAST PRUSSIA

Dear Mr. Hess:

Today I have only two reports to pass on to you, having received them from a generally well informed source.

Primarily: Assertion of the Polish Chief of staff: “Once the damned civilians thwarted our East Prussian aim with their scruples & hesitation. That will not happen again. Precaution has been taken that these people are sent to a Concentration Camp if they should still dare to obstruct us.”

Secondly: A very delicate matter. It is known to yourself, that at some place in your organization, there are people, unable to subordinate their personal initiative for the benefit of the common good. I am informed that a personage very highly esteemed abroad, but completely retired at home, H * * * h B * * * g has to fear for her individual safety. The source of this insecurity, I was told is S.A. Standartleader Schoeneberg. I don't have to point out to you the repercussions, abroad, which any personal accident would provoke. * * * Could you take care of internal curbing.

With hearty Greetings
Always Your

TRANSLATION OF DOCUMENT 1674-PS

1938 REICHSGESETZBLATT, PAGE 1044, 17 Aug. 1938

The second decree for the execution of the law regarding the change of the surnames and forenames of 17th August 1938.

On the basis of Article 13, of the law of 5 January 1938 (Reichsgesetzblatt I.S.9) concerning the change of the surnames and given-names, the following is ordered:

Art. 1

1. Jews may be given only such given-names as are cited in the directives issued by the Ministry of Interior concerning the utilization of given-names.
2. Para. (1) is not applicable to Jews who are foreign citizens.

Art. 2

1. In so far as the Jews are still using some other given-names different from those which are at their disposal according to Art. 1,—they are obliged to assume by the 1st January 1939, a second, additional given-name as follows; for males, the given-name Israel and for females the given-name Sara.

2. The person having to assume an additional forename according to para (1) is obliged to give a written notification in this matter to the registration office at which his birth, and marriage are registered. The same notification is to be given to the proper police-official in the registerer's place of residence or customary habitat. The notifications are to be reported within a month from the date requiring him to assume an additional given-name.

3. In so far as the birth or marriage of the person who must register has been verified by a German diplomatic representative of a Consul, or has been verified in a German protectorate,—the notification, which must be made, is to be forwarded to the Register-Office I, Berlin. If the place of residence or customary habitat of the person registering is abroad, the notification in question, mentioned in Para (2), sentence (1) is to be forwarded to the competent German Consul instead of to the competent police-official.

4. For people who are unable, or are partially unable to conduct their own affairs, the obligation to register rests upon the legal representative.

Art. 3

As far as is customary in juridical and business procedure to indicate the given-names, the Jews are obliged always to indicate at least one of their given-names. In so far as they are required to assume an additional given-name as mentioned in Art. 2,—this additional given-name is to be indicated also. The present directives regarding the management of a business are not hereby altered.

Art. 4

1. Whoever deliberately disobeys the directives of Art. 3 is to be punished by imprisonment of up to six months. Cases of negligent disobedience will be punished by imprisonment of no more than one month.

2. Whoever deliberately or carelessly neglects to give the proper notification according to Art. 2 is to be fined or punished by imprisonment of no more than one month.

Berlin, 17th, August 1938.

Reichs Minister of the Interior:
Representative, Dr. Stuckart.

Reichs Minister of Justice:
Dr. Guertner.

TRANSLATION OF DOCUMENT 1676-PS

Voelkischer Beobachter
Southern Germany Edition
28/29 May 1944

A Word on the enemy air-terror
by Reichsminister Dr. Goebbels

Nowadays, it is no longer disputed by anyone that the enemy air-terror pursues almost exclusively the aim of breaking the morale of the German civil population. The enemy wages war against the defenseless, against women and children in particular, in order to compel the men of our country to yield. This intention of his is proved on one hand by the facts themselves and on the other hand by the abundance of existing statements by enemy publicists. As far as the facts are concerned one needs only to visit one of the often bombed towns in the Reich or in the occupied territory in order to determine without doubt by one's own examination that our war potential is damaged by perhaps at the most only 1% by enemy air-terror and the remaining 99% plainly falls upon the civil sector.

A short time ago, the leading representatives of the French, and Belgian Episcopate, who certainly cannot be suspected of acting according to German orders, objected with flaming protest directed to the international public against the enemy's barbarous methods of aerial warfare, which kills old people, women and children, as well as destroys churches, venerable cultural monuments and thickly settled civilian residential sections, without any military objectives being apparent. To this we need to add nothing more.

Our enemies do not try to conceal their intentions in this matter. One does not need to look far in British and American press in order to find substantial proof of this. "Lay the great cities in ruins and you will crush the will to fight". Thus wrote the English air expert T. M. Epaight in his book "Air power and the cities" in 1930. Nothing in this tendency of the British aerial warfare has changed since then. "It is not possible to draw a boundary-line between the civil population and the combatants". With this

cowardly excuse the “Daily Mail” attempts to justify publicly this rough and low method of the enemy aerial warfare. Much more explicit becomes influential British naval officer who states in the English military publication “The Army Quarterly”: “Does the concept of non-combatants exist at all? A small child is neither in peace nor in war a useful member of the national community. No one has in reality the right to demand inviolability for himself even if he can attempt to do so in the name of humanity. Germany must become more desolate than the Sahara Desert”.

The well known London’s newspaper “News Chronicle” is not missing in this choir of hatred. It adds “We favor that every living being in Germany be wiped out. Man, woman, child, bird and insect. We would not let even a blade of grass grow”. This causes the respected British author H. G. Wells to name the following demand: “Treat the German people like a troublesome native tribe”. The American publicists are no less robust. One of their leading spokesmen Raymond Clapper writes with evident pleasure: “Terror and brutality are the best sides of aerial warfare!” One might object, perhaps, that not all influential Americans and Englishmen think this way. Wrong! Even the Anglican High Church declares in its official organ “Church of England” on the 28 of May 1943: “It is a perverse view of Christianity to suppose that civilians must not be killed”. Even the Archbishop of York, Dr. Cysill Barbett, blesses the barbaric methods of the Anglo-American aerial terrorism in his pastoral letter of June 1943 with the words: “It is only a small evil to bomb German civilians.”

We had so far desisted from making known to the German people the meanest of the statements from which we have only presented a small selection and which all together represent a simple demand for the murder of women and children, because we were afraid that in view of this cynicism it would take measures of self-defense and revenge itself with the same measures upon the enemy pilots who bail out of shot down enemy planes. In the meantime, however, circumstances have arisen which prevent us from continuing to maintain this reserve in the future.

The Anglo-American terror flyers in the last few weeks, besides indiscriminately bombarding the residential quarters of our cities have taken to attacking the German civilian population openly, directly and without even any superficial respect, for the international rules of warfare, by strafing them and slaughtering them in cold blood. No more excuses can be

brought toward in this matter because the enemy planes sweep low over villages, fields and highways, and direct their machine-guns upon harmless groups of people who are minding their own business. This has nothing more to do with war. This is naked murder. There is no rule of international law which the enemy can call on in this matter. The Anglo-American pilots place themselves through such a criminal mode of warfare, outside the pale of every internationally recognized rule of warfare. On last Sunday, for example, to take only one of a thousand examples, in the rural countries of Saxony, groups of playing children were attacked by strafing, and suffered considerable casualties.

No one will be astonished by the fact that the population concerned which, as is known in the whole world, can understand any soldierly type of warfare has been seized with a terrible rage on account of these cynical crimes. It is only possible with the aid of arms to secure the lives of enemy pilots who were shot down during such attacks, for they would otherwise be killed by the sorely tired population. Who is right here? The murderers who after their cowardly misdeeds await a humane treatment on the part of their victims, or the victims who wish to defend themselves according to the principle: "An eye for an eye, a tooth for a tooth"? This question is not hard to answer. In any case it would be demanding too much of us if it were asked of us that we use German Soldiers for the defense of murderers of children against the parents who seized with blind rage, having just lost their most valuable treasure through the brutal cynicism of the enemy, take measures of self-defense. If the English and Americans as they themselves say, regard and treat us as troublesome native tribes, then it is our business whether we stand for it. The German people is known in the whole world for the fact that it gives to war what war demands from it. But too much is too much and here the boundaries of what can be borne have been far overstepped.

It seems to us—hardly possible and tolerable to use German police and soldiers against the German people when it treats murderers of children as they deserve. Even the arbitrary methods of warfare of the Anglo-Americans must end somewhere. The pilots cannot say that they as soldiers acted upon orders. It is not provided in any military law that a soldier in the case of a despicable crime is exempt from punishment because he passes the responsibility to his superior, especially if the orders of the latter are in

evident contradiction to all human morality and every international usage of warfare. Our century has obliterated to a great extent the boundaries between warfare and crime on the part of the enemy. It would be demanding too much of us to expect that we should silently accommodate ourselves as victims to this unlimited barbarity.

We reach these conclusions in a completely objective manner. In these questions our people think much more radically than its government. It has always been our wish that the war should be conducted in a chivalrous manner. The enemy, apparently, does not want this. The whole world is a witness for that. If this revolting condition continues, it will also be witness for the fact that we can find ways and means to defend ourselves against these criminals. We owe this to our people which decently and bravely defend its life and therefore has in no way deserved to be declared fair game for the enemy killers.

TRANSLATION OF DOCUMENT 1678-PS

DOCUMENTS OF GERMAN POLITICS, VOLUME 5, PAGES 372, 373
and 376

Statement of accounts of the Reich Organization Leader of the NSDAP, Dr. Ley, at the 5th yearly session of the German Labor Front in Nurnberg, on 11 September 1937.

In speaking of "Soldiers of Labor" I have to demand that such soldiers of labor exist in reality. I have to demand that everybody march at the same cadence and in the same spirit. The factory-community is only then complete when every manager takes his place as an ordinary work-crew member among his crew. We shall not rest or relax before this is accomplished. Otherwise everything would be reduced to beautiful phrases resulting only in beer sessions and distribution of cigarettes. No, same cadence and stride, same pack and same marching, then no outward distinction between the entrepreneur and the worker shall exist anymore, and sometimes a worker might even look better from a racial point of view than the entrepreneur. And if the latter was adequately polished and drilled, he will lose his feeling of superiority and "curse" exactly like the others. That is necessary, and with this I come to another point.

My collaborators and myself found no rest. We too wanted to have laws and legal foundations, I was constantly pursued with that request. I asked the Fuehrer myself: “My Fuehrer, can’t we too get a law?”

The Fuehrer refused. That’s why I say: He was of greatest help to us. Had the Fuehrer given in at the time, we would be in bad shape now. The Fuehrer said: “I think it’s wrong. For once I want you to make a law through habit in Germany. For once I want to try if it isn’t possible in Germany to set up an authority without having to issue laws and decrees on the part of the State. It must be possible to create a great institution and establishment, based only on a law through habit and it must be possible to make this law through habit of a much greater force than any other law and justice.”

Once I said to the Fuehrer: “My Fuehrer, actually I am standing with one foot in jail, for today I am still the trustee of the comrades “Leipart” and “Imbusch”, and should they some day ask me to return their money, then it will be found that I have spent it, either by building things, or otherwise. But they shall never again find their property in the condition in which they handed it over to me. Therefore I would have to be convicted.”

The Fuehrer laughed then and remarked that apparently I felt extremely well in this condition.

It was very difficult for us all. Today we laugh about it. * * *

* * * * *

We have only 70,000,000 altogether. Therefore we must use everybody. We have work for at least 300,000,000 and that figure is increasing from year to year. We must have new space. We want to repeat that again and again. We have told the world often enough. We are a people without space and we shall never forget that factor in all our social measures.

We need space, and we must never give this up in all our measures. We must never lose sight of that. That’s why we need a healthy people and healthy men.

We succeeded—and this is about the most important accomplishment for the German Labor Front—in eliminating the association-character of the trade unions and the employer-associations, and for it we have substituted the conception “Soldier of Labor” [Soldat der Arbeit].

TRANSLATION OF DOCUMENT 1680-PS

10 Years Security Police and SD—Die Deutsche Polizei,

1 February 1943.

When the Fuehrer assumed the direction of the fate of the German Reich and people on 30 January 1933, he found in the domain of the police, as in all other fields, a situation which bore all the signs of the irresponsible incapability of the Weimar system. The concept of a police force, together with the Marxist-Liberal tendency and their characteristic practices were the main reasons for the insufficiently organized and therefore in many respects helpless condition of the police.

This was particularly obvious in that part of the police system to which was assigned the task of the safekeeping of the community against inner-political dangers from the beginning of all historical state activity. The activities to which we are accustomed today under the concept of "Security Police" was, under the "Weimar Interim State" in its political police field, exclusively directed towards a prevention of the unavoidable collapse of its system, especially against the National Socialist movement, with the use of more or less brutal means of power of the state, and was decisively handicapped in the domain of criminal police by the organizational splintering as well as the liberalistic sympathy towards crimes and criminals which existed at that time.

The task of the New National Socialist Security Police, which became apparent with the assumption of power in 1933, had to include as a nucleus the creation of an organism with the view towards the vital necessities of the people and without consideration of the individual interest the safeguarding of the communities against all disturbances and destructions. The prerequisite for its organization was the strict coordination of the political and criminal police, which were split through the federal state regulations and which alone could provide the necessary striking power for the struggle against the enemies of the nation and in the service of the commands of the leadership. The foundation for this achievement of restoration were the National Socialist views of the world, the occupation of important positions by proved national socialistic fighters and the inner core

of a large part of the police officials which had remained unharmed in spite of all the attempts to rouse them.

The fight against the political, as well as the individual criminal which was the responsibility of the political departments of the police administration and of the criminal police and which is now combined under the term of "Security Police" took a continuously developing form in the execution of its central goal, as well as in its content as in its organization. With the knowledge that the police in the National Socialistic State, of which it is a distinguished representative, must not only be the best friend of the people but also, and just for the same reason, the most pitiless adversary of all the enemies of the nation, the preventive fight against criminals was added to the activities of the security police which was previously mainly punitive and executive. This constitutes a decisive innovation in the general development of the police. The activities of the security police were furthermore considerably supported by the communication service, and partially made possible only by the development of the security service of the Reichsfuehrer SS, which was created upon the assumption of power which came into ever closer personal and organizational contact with the security police in the course of years.

The general development of the police since 1933 was outwardly characterized by:

The Reichs Reconstruction Law [Reichsneuaufbaugesetz] of 1934 (central directive law for the federal states in individual domains).

The merger of the Reichs Ministry of the Interior and the Prussian Ministry of Interior of 1934.

The Fuehrer decree concerning the creation of a Chief of the German Police dated 17 June 1936.

The law about finance measures in the domain of the police of 1937, the German Police official law of 1937.

Within the general development of the police since 1933, the following regulations were of decisive importance for the security police and SD:

Decree of the Reichsfuehrer SS and the Chief of the German Police in the Reichs Ministry of the Interior of 26 June 1936 (Transfer of Direction of the Security Police, newly created from the political, secret state and criminal

police to the SS Gruppenfuehrer HEYDRICH as chief of the Security Police.) Decree of the Reich and Prussian Ministers of the Interior concerning appointment of inspectors of the Security Police, dated 20 Sept 1936.

Decree of the Reichsfuehrer SS and Chief of the German Police of 27 Sept 1939, concerning the merger of the central bureaus of the security police and the SD along with the

Decree of execution of the chief of the Security Police and the SD of the same date concerning the creation of a Central Bureau of Reich Security [RSHA].

The organizational development of the three branches, Secret State Police [Gestapo], Criminal Police, and Security Service [SD] of the Reichsfuehrer SS, which are now merged under the leadership of the Chief of the Security Police and SD took place in its details, as follows:

1. The Secret State Police [GESTAPO]

The first step towards the creation of a Secret State Police replacing the Political Police Forces of the various federal states was undertaken in Prussia by the law concerning the establishment of a Secret State Police, dated 26 April 1933. The same day a circular decree was issued by the Prussian Ministers of the Interior regulating the tasks and responsibilities of the Secret State Police and establishing a State Police Bureau in each government district of Prussia as a subordinate to the Secret State Police Bureau. The creator and Chief of the Secret State Police in Prussia was Prime Minister Hermann GOERING. The State Police Bureaus were separated from their organizational connection with the District Government or the police administrations of the State and appointed as independent authorities of the Secret State Police, in the spring of 1934 by a circular decree of the Prime Minister and the Chief of the Secret State Police.

Parallel to that development in Prussia, the Reichsfuehrer SS Heinrich HIMMLER created in Bavaria, the Bavarian Political Police, and also suggested and directed in the other federal states outside of Prussia the establishment of Political Police. The unification of the Political Police, of all the federal states, took place in the spring of 1934 when Hermann

GOERING appointed Reichsfuehrer SS Heinrich HIMMLER, who had meanwhile been nominated as Commander of the Political Police Forces of all the federal states possible. The Prussian law about the Secret State Police, dated 10 Feb 1936, then summed up the developments hitherto and determined the position and responsibilities of the Secret State Police in the executive regulations issued the same day.

A new decisive chapter of the development began with the appointment of the Reichsfuehrer SS as Chief of the German Police by means of the Decree of the Fuehrer mentioned above dated 17 June 1936, and the nomination which followed of SS Gruppenfuehrer Maj Gen HEYDRICH, who up to then, had been Chief of the Secret State Police Bureau and Chief of the Central Security Bureau of the SS, as Chief of the Security Police (Secret State Police and Criminal Police). The term "Secret State Police" was decreed by the Reichsfuehrer SS and Chief of the German Police on 28 August 1936 in the process of establishing uniformity for all the political police forces of the federal states and their organization adapted to the one existing in Prussia by the creation of State Police Bureaus. The Chiefs of the State Police Bureaus assumed the functions of the political executive with the current "Oberpraesident" (later on also with the Reich Governor), that is the president of the Government, according to the decree of the Reich and Prussian Ministers of the Interior, dated 20 Sept 1936.

On the basis of these forms of organization and with the help of the powers bound up with them, the fight against the open and hidden political enemies of the National Socialist peoples State was taken up by the Secret State Police after the assumption of power and is still being tried on today. Its activity is not only limited to solving political crimes already committed or to seizing their perpetrators, but they are equally interested in the prevention of these crimes, thus eliminating these dangers for the community at their very start. Constant investigation and observation of the enemies of the State and quick action in the case of recognition or after commitment of the act, thus go hand in hand. The Secret State Police by carrying out these tasks, contributed decisively to the fact that the National Socialist construction work could be executed in the past ten years without any serious attempts of interference by the political enemies of the nation.

2. The Criminal Police

The subordination of the Criminal Police of the Reich under the Chief of the Security Police, as decreed on 26 June 1936 became the fundamental basis for the uniform development throughout all Germany of the Criminal Police, which had been organized differently in all the federal states up to this time, namely for the establishment of the Reich Criminal Police in its present form of organization. The circular decree of 20 Sept 1936 stated the first fundamental regulations for the reorganization of the Criminal Police of the State, separating the Prussian State Criminal Police Bureau, in locality as well as function, from the Police Presidency in Berlin and charging it with the professional direction of the Criminal Police of all the German federal states, State as well as communal. The Reich Central Bureau for the struggle against the international and professional criminals as well as against habitual instinctive criminals, which was attached to the State Criminal Police Bureau, was particularly characterized in the course of this process by its close relationship to the practices of the Criminal Police.

The whole territory of the Reich was simultaneously divided into Criminal Police Bureaus on the basis of criminal geographical delineation of spheres of competence in place of the State Criminal [Police] offices. The new spheres occasionally combined several criminal police offices. Insofar as Criminal Police District Offices are not affiliated to State Police Administrative Offices, local duties falling within criminal police jurisdiction are to be taken care of by the crime sections of these State Police Administrative Officers.

In the course of further organizational development, the title of Reichskriminalpolizeiamt [Reich Criminal Police Bureau] was conferred on the Prussian State Criminal Police Bureau through a decree of 16 July 1937. This bureau was directly subordinated to the Chief of Security Police.

This newly created organizational system rendered possible the successful activity of the German Criminal Police, which also became increasingly more perfect in technical fields. From then on Criminal Police did not limit itself to repressive activity, but paid much attention to preventive combatting of crime on the basis of national protective ideology. The correctness of planning and development is demonstrated most clearly in the decline of criminality in the subsequent period.

3. The Security Service of the Reichsfuehrer SS (SD)

Recognizing that accurate knowledge of the enemy, of his methods and aims, is one of the most important bases of any successful struggle the Reichsfuehrer SS created an intelligence service organization as early as 1932 under the then SS-Standartenfuehrer (Colonel) Reinhard HEYDRICH. From the beginning members of the SS were the full-time agents of the SD, which had emerged from the SS.

After the seizure of power the leaders of the National-Socialist movement felt the necessity for current objective information about newsworthy events. This caused the NSDAP to issue an ordinance on 9 June 1934 which merged all information facilities then existing within the Party organization with the SD, and declared the latter to be sole Party information service. The original task of intelligence coverage of the enemy was thereby expanded to general intelligence activity.

In the course of the development as a whole, an increasingly closer cooperation of the SD with the offices of the Security Police resulted as a matter of course. The successful combatting of all activity hostile to the state by the Security Police can be traced back to a considerable extent to the intelligence groundwork of the SD. In addition the field of activity of the SD was progressively expanded, because top Reich authorities delegated to the SD in a series of agreements the task of informing these authorities about the effects of official measures upon popular morale. These agreements also regulated the details of cooperation between these top Reich authorities and the SD. Today the exploration of the situation in all fields of life from the information point of view is incumbent upon the Security Service (SD) of the Reichsfuehrer SS, with special consideration of the morale factors and repercussions among the population. The results of its variegated and responsible activity transmit an objective, always up-to-date picture of the situation to the leading authorities of Party and State. In addition they form valuable hints for current planning of the competent authorities.

The organizational structure within which the SD became active during the first years of its existence and was headed by the Chief of the Main Security Bureau of the SS, to whom in turn the regional subdivisions were subordinate. The elimination of SD-Oberabschnitte in September 1939

resulted in direct functional connection between the SD-Abschnitte, as the regional subdivisions were now termed, and the Main Security Bureau as central authority. The current close personal and organizational connection between the SD and the Security Police resulted from the Decree of the Reichsfuehrer SS and Chief of German Police, dated 27 September 1939. This Decree amalgamated the central authorities of the security police and of the SD, and vested it in the newly-created Chief of Security Police and SD, and above him in the Reich Main Security Bureau. Since that time the SD-(Leit)-Abschnitte and their subordinate offices have been under the jurisdiction of the Reich Main Security Bureau.

The above description of the history of the Secret State Police [Gestapo], of the Criminal Police and of the Security Service [SD] of the Reichsfuehrer SS only recounts the external stages of development. It can express only incompletely the great degree of personal initiative and unlimited National-Socialist prowess in work and organization which was brought to bear by the authoritative leadership personalities in building up the undertaking. However, the result of this concentrated effort is such that in these decisive times an apparatus was created on an entirely new basis which was from the beginning a necessary and effective instrument in the hands of the nation's leadership and proved that it is capable of protecting the national community against protracted interference with communal life. It is obvious that these entire tasks could be handled only by men who are deeply rooted in National Socialist ideology, and who are ready to devote not only their total working capacity, but also their life, to the comprehensive realization of the National Socialist idea in the course of the fulfilment of their duties which is frequently dangerous. Because of this, and according to the wish of the Reichsfuehrer SS and of their late Chief, General Heydrich, it is the duty of the Security Police and of the SD not only to form a perfectly working administrative machinery, but in addition it is their duty to form a battle community sworn to a common ideology and brotherhood. The currents of strength generated by this battle community in fulfilling its difficult task of continuous combatting of everything inimical to the nation, a task which has to be accomplished in inglorious silence, shape the National Socialist idea ideologically. These currents of strength also shape the basic law of the SS, from the members of which Security Police and SD are recruited in increasing measure. Tangibly they shape the continuous work in thoroughly training the individual. Ideological schooling,

comradeship, professional education and physical fitness are inculcated without cease; they take up a prominent position side by side with the professional daily routine proper, especially in the schools of the Security Service and the SD established for these purposes.

Trained in such a manner, Security Police and SD could do justice even to the great additional requirements, which the four year battle for the living rights of the German people brought in its train. In all battle areas, and in all occupied territories, the men of the Security Police and of the SD stand side by side with the Armed Forces. In a struggle full of sacrifice they devote all their strength to keep the rear of the front free, and to help make secure German reconstruction in occupied territory. In the offices of the home front, on the other hand, the men employed make certain that the fight for life of the German people is not impaired by criminal elements. Through increased effort they equalize the additional tasks and the additional work, which are necessitated by the war as such and especially by the reduced number of personnel due to drafting of men for front-line duty. All faithful to the words of the Reichsfuehrer SS, to do more than their duty in time of war.

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PARTIAL COPY OF DOCUMENT 1689-PS

CZECHOSLOVAKIA FIGHTS BACK

A Document of the Czechoslovak Ministry of Foreign Affairs

Published by

American Council on Public Affairs

Washington, D. C., 1943

[Pages 110, 111, and 114]

On December 2, 1942, a special order issued by the "Protectorate" Ministry of Agriculture excluded the Jews not only from buying unrationed foods, but even from receiving them as a gift from any private citizen. The same order has left it to the discretion of the Ministry of Agriculture to exclude Jews entirely or partially from obtaining rationed food, thus exposing the remnants of the Jewish community to death by starvation.

One hour on five days a week has been allowed for shopping, this hour being fixed at a time when after, first the Germans and then the Czechs,

have done their buying, the small stocks are mostly exhausted.

After the occupation of Poland, Hitler designated Lublin and its immediate district as a reservation in which all Jews from the occupied countries were to be concentrated. Some 2,000 Jews of Moravska Ostrava were the first to be sent there. A year later, at the end of October 1941, 48,000 Czech Jews were already picked out for deportation. Men between the ages of sixteen to fifty were sent to labor camps, while their womenfolk and children were taken to special settlements in Eastern Poland.

At the end of June, 1942, deportation to Poland began on a large scale. The Gestapo was instructed to prepare by every Monday and Thursday contingents of a thousand Jews each. Those to leave were given a day or two's notice. The Nazi records of the Jewish registration were out of date and it often happened that the call-up cards were addressed to persons who had died years ago, had left the country or had already been deported. In such cases the daily quota of a thousand was made up by people simply picked up from the streets or dragged from their beds at night-time. The Gestapo took a delight in so selecting the deportees that families were split, wives separated from their husbands, and even small children from their mothers. Those left at home were never allowed to bid farewell to their relatives or friends. But sometimes, on early summer mornings, their Czech friends could watch those gloomy processions of the outlawed marching to the railway station and passing for the last time through the streets of Prague.

At the end of 1942, no Jewish life in Bohemia and Moravia was left. Out of the 90,000 Czech Jews more than 72,000 have been deported.

Although the deportations went on, leaving at the end of August, 1942, only some 20,000 Jews in Slovakia, most of them in ghettos the Nazis were still not satisfied. At the end of November, 1942, a special committee was set up to consider the final expulsion of the remainder of the Jews. By then, out of the 95,000 Jews, 76,000 had already been deported.

TRANSLATION OF DOCUMENT 1696-PS

THE REICHSMINISTER OF THE INTERIOR
IV g 4178 /39-5100

Berlin, NW 40, Koenigsplatz 6, 16 November 1939

Telephone:

Dept. Z, I, II, V, VIII, 11 00 27

Dept II, IV, VI

(Unter den Linden 72); 12 00 34

Tel. Address: Reichsinnenminister.

To the Head of the Hospital (for Mental cases)

Kaufbeuren

or his Deputy in Kaufbeuren.

With regard to the necessity for a systematized economic plan for Hospitals and Nursing Institutions, I request you to fill up the attached Registration Forms immediately, in accordance with the attached instructional leaflet, and to return them to me. If you yourself are not a doctor the Registration Forms for the individual patients are to be filled in by the superintending doctor. The filling up of the questionnaires is, if possible, to be *done on a typewriter*. In the column "Diagnosis" I request a statement as exact as possible, also a short description of the condition if feasible.

In order to expedite the work, the registration forms for the individual patients can be despatched here in several parts. The last consignment must, however, in any case have arrived at this Ministry *at the latest* on 1 January 1940. I reserve for myself the right, should occasion arise, to institute further official enquiries on the spot through my representative.

p.p. (Sd.) DR. CONTI

Certified.

(Sd.) Illegible

Administrative Secretary.

Registration Form 1

To be typewritten.

Current No. _____

Name _____ of _____ the _____ institution:

at:

Surname and Christian name of the patient: _____ at birth

Date of birth: _____ Place: _____ District:

Last place of residence: _____ District:

Unmarried, married, widow,
widower, divorced: _____ Religion _____ Race^[1]

Previous profession: _____ Nationality: _____ Army Service
when? 1914-18
or from 1.9.39

War injury (even if no connection with mental disorder) Yes/No

How does war injury show itself and in what does it consist?

Address _____ of _____ next _____ of _____ kin:

Regular visit and by whom (Address):

Guardian or nurse (Name, address):

Responsible for payment:

Since when in that Institution:

Whence and when handed over: _____ Since when ill:

If has been in other Institutions, where and how long:

Twin yes ____ Blood relations of unsound mind:

no
Diagnosis:

Clinical description (Previous history, course, condition; in any case ample
data regarding mental condition):

Very restless? yes

no
Bedridden? yes

no
Incurable bodily illness: yes (which)

no
Schizophrenia: Fresh attack ____ Final Condition

good recovery

Mental debility: weak ____ Imbecile ____ Idiot

Epilepsy: psychological alteration ____ Average frequency
of the attacks

Therapeutics (Insulin, Cardiazol, Malaria, Permanent result: yes

Salvarsan etc. When?) ____ no

Admitted by reason of para. 51, para. 42b StrGB etc

through

Crime: ____ Former punishable offences:

Manner of employment (detailed description of work):

Permanent } Yes

} Employment, independent worker
Temporary } No

Value of work (if possible compared with average performance of healthy person)

This space to be left blank.

Place, Date

Signature of the head doctor or his representative
(doctors who are not psychiatrists
and neurologists please state same.)

FOOTNOTES:

[1] German or of similar blood (of German blood), Jew, Jewish mixed breed
Grades I or II, Negro (mixed breed).

PUBLIC UTILITY

AMBULANCE TRANSPORTATION G.m.b.H.

Dept. II/d, H/K

Berlin, W. 9. 12th. May, 1941

To the Director of the Hospital of the District association of Swabia,
Kaufbeuren/Bavaria.

Potsdamer Platz 1.

Dear Director,

By order of the Reich Defence Commissioner I must remove mental cases from your institution and from the Branch at Irrsee to another institution. A total of 140 persons are to be transported, 70 on 4th June and 70 on 5th June. I forward you herewith Transport Lists Nos. 8, 9, 10 and 11 in triplicate. The additional names on the lists are intended for possible deficits (discharged meanwhile, died, etc.).

The marking of the patients is most suitably done by means of a strip of adhesive tape, on which the name is written in ink-pencil, to be pasted between the shoulder blades. At the same time the name is to be put on an article of clothing.

The hospital reports and personal histories are to be prepared for the transportation and to be handed to our Director of Transport, Herr Kuepper, in the same way the personal possessions of the patients, as well as money and articles of value.

I enclose property information cards and information cards as to the defrayer of the expenses, which, accurately filled out, must be handed in at the time of transportation. Money and articles of value, besides being noted on the property information cards, must also be noted on separate special lists (in duplicate). Transportation takes place:

On 4th June, 8.46 a.m. from Kaufbeuren—70 patients.

On 5th June, 8.46 a.m. from Kaufbeuren—70 patients.

Our director of transport, Herr Kuepper, will visit you the previous day, in order to discuss further details with you.

I further request you to provide the patients with food (2-3 slices of bread and butter each and some cans of coffee).

[Pencil note illegible]

Heil Hitler!

[signature illegible]

Public Utility Ambulance Transportation G.m.b.H.

PROVINCIAL ASSOCIATION FOR SOCIAL WELFARE SWABIA.
Address: Augsburg 1, P.O. Box Regierungspraesident

Tel No. 5842

Cashier's Office: Principal Govt.

Cashier's Office Augsburg.

Post Office check account:

Munich No. 1624

Enclosures:

Director: Dr. Falthhauser, of the Hospital, Kaufbeuren.

Your reference: 2080. Your letter of 13.11.40. Our ref: (to be given always)
II-B-7-2.

Augsburg, 6.5.1941

Concerning the transfer of patients.

I have the honour to inform you that the female patients transferred from your institution on 8.11.1940 to the institutions in Grafeneck, Bernburg, Sonnenstein and Hartheim all died in November of last year.

[signature illegible]

Copy

No. 5255 c 39

Ministry of State of the Interior.

Oberregierungsrat Gaum.

Munich, 24th November 1942
To the Director of the Hospital,
Kaufbeuren, Obermed. Rat
Dr. Falthhauser.

To Head Physician Dr. W. Leinisch
Guenzburg.

Re letter of 13.11.1942.

Dear Doctor,

In your letter of 13.11.1942 you requested me to send suitable epileptics for the carrying out of your research work. I had an opportunity of discussing this with the Obermedizinalrath Dr. Faltlhauser and Dr. Pfannmueller. Both will willingly deliver you suitable patients. For various reasons patients from the Institution at Kaufbeuren are primarily to be chosen. If this institution has no suitable material, I agree to the transfer of patients from Eglfing-Haar to Guenzburg for your research work. I request you to get into touch with Dr. Faltlhauser.

Heil Hitler!
(Sd.) GAUM.

TRANSLATION OF DOCUMENT 1701-PS

Copies distributed to Gauleiter Dr. Wilhelm von Allwoerden [?]

11 Aug.
H
Berlin, 9 August 1943

The Reich Minister of the Interior

Pol. SV A I No 844/43

To the Reich Minister and Chief of the Reich Chancellery *in Berlin*

W8

For the information of the other Reich ministers.

Subj: Law on the treatment of enemies of the society.

In addition to my letter of 19 March 1942—

Enclosures: 55. —

After the draft of the law on the treatment of enemies of the society has been completely rewritten, I am sending the enclosed new draft with the consent of the Reich Minister of Justice, Dr. Thierack and ask that the law be approved in a circulatory manner. The necessary number of prints is attached.

The Chief Plenipotentiary for the Reich Administration has again agreed on the importance of the law in war, considering the existing directions for curbing the making of laws and the administrative activity. Furthermore I refer to my letter of 19 March 1942 and to the reasons attached to the draft.

/s/ Frick

The Reich Minister for the Occupied Eastern Territories

Berlin W 35, 22 Dec 1943

Tele—letter

To the Reich Minister of the Interior for the information of the Reich Minister and Chief of the Reich Chancellory and the other Reich Ministers.

Subject: Law on the Treatment of Enemies of Society.

To Pol. SVA 1 No. 844/43 of 9 August 1943

I have basic objections against the draft of the law. In Par 2, Dir. 4, I assume that the police will inform the penal prosecuting authority also of such cases in which it does not consider—for legal or actual reasons—that a punishable act has been committed or can be proved, especially if it wants to connect the behavior of the culprit with consequences adverse to him. The penal prosecuting authority should be able to determine also in dubious cases whether the possibility of penal prosecution exists. I therefore suggest to formulate Par. 2, Dir. 4, of the law draft about as follows:

“If there is suspicion of a punishable act by enemies of society, the police will inform the penal prosecuting authorities about it.”

Because, in the framework of the draft, the basic regulation of the connections between penal justice and police has become mandatory, an exact definition of the respective competence seems necessary to me. In the expected executory decree it should hence be made clear, as it was already provided in the draft of the executory decree (Par. 4) for the first draft of the law, that police actions because of the same matter are not admissible anymore if a court has freed (a party) because of proven innocence or lack of proofs, except for custody measures in case of freeing for lack of proofs. Furthermore, it should be determined that the police can not take other than custody measures after the penal term of a person judged by a court because of the same facts. Further, I think it necessary to have a fundamental clearing of the question whether, and if so—to what degree police measures

are admissible after refusal of a decree of custody or other judicial directions, regardless of the reason for refusal.

Finally, I mention for consideration if the words "the regime of the time of the system" in Dir. 3 of the official document, taken from the newspaper language, could not be replaced to advantage by another expression.

I especially direct your attention to the printing mistake in the last but two dir. of the reason, in which in the third line it should probably read "protective surveillance" instead of "protective custody".

Rosenberg

attested:

chancellery employee

Offic. Stamp

TRANSLATION OF DOCUMENT 1702-PS

Rec'd: 1025/44g

encl: 1 Aug. 44

Copy

SECRET

II 1C

Evacuation Report
of District Commissariat of Kasatin
[Illegible notes]

REPORTER: District Commissar STEUDEL, Kasatin.

Time of report: 8 November to 28 December 1943.

1. The military situation in November/December 1943.

Immediately following the capture of Kiev by the Soviets on 7 November, the district town of Wassilkow as well as the important railroad center Fastow, belonging to the district of Wassilkow, fell into enemy hands, (8-9 November). The following day, the Soviets attempted to advance farther along the rail line Fastow-Kasatin. They succeeded in capturing with weak armored and infantry spearheads in one move, the stations of Kozanka, Popilnva and Browki, situated along this line, and to execute further sudden

advances past the station of Czernorudka. For this reason the district of Wtscheraische had to be evacuated on 15 November. I withdrew the Germans committed there to the district of Rushin situated 20 kilometers to the South. The withdrawal was effected according to plan and without friction, with all implements, after all camps had been evacuated previously; the cattle—above all the valuable breeds (Oxen and colt stables) led back. German tractors and farm machines transported away and all businesses had been crippled. (Fundamentally, the chief command of the 4th Armored Army, in whose zone these battles took place, had ordered that in the district West of the Dnjepr, in contrast to the ones to the East, no destructions of farm goods or businesses should take place).

* * * * *

The results of the hereby described military events between 8 November and 20 December were as follows:

In a conference, called by me, of the authoritative leaders of all offices of the civilian sector on 8 November, I ordered the immediate start of, and discussed in detail, measures for the most far-reaching decentralization. At the same time, the leaders of all vital, above all of the economic food industry, were informed to effect, in case of an evacuation, the crippling of factories (by taking away important and hard-to-replace machine parts, belts, etc.,) and to prepare this already now. Up till then, however, all factories had to be kept running at full capacity. It should be emphasized here, praisingly, that all measures ordered by me in strictest accordance with the army economic leader [A.W.F.] of the chief command of the 4th Armored Army, were executed by the responsible parties and their staff in an exemplary manner, and with the greatest conscientiousness. Although the delivery of cars, for conceivable reasons, did meet with considerable difficulties, we succeeded, due to the splendid cooperation of the authoritative Reich German organizations of military and civil government, in transporting to the West approximately 80% of the most vital goods (grain, cattle, sugar, etc), or in making them available for the armed forces for immediate use as provisions for the fighting troops.

* * * * *

5. In the midst of the conditions, almost restored to normal, I received *a call on the eve of the 25th of December from the Army* according to which *the*

Soviets with superior forces of tanks and motorized troops, had exerted a strong renewed pressure on the line of Kotscherowo-Brusilow-Fastow and along the street Kiev-Shitomir with the main advance in a South West direction. Shortly afterwards, the long distance calls, as per attached inclosure number 2, was put through according to which the able-bodied male population in the ages between 15 and 65 as well as the cattle had to be led back in the direction East of the line Kililowka-Berkitschew-Shitomir. The transporting of the able-bodied population was charged to the military authorities by the chief quartermaster of the army, while beginning with the morning of 26 December. I discussed and ordered in detail, during an immediate conference for the whole district the shipment of all the cattle. This action started successfully on that day according to plan, while the discussions over the seizure of the male population were not yet concluded in the afternoon hours of the 26th of December and no positive measures of any kind were taken.

Enclosure II

SECRET

Kdt. rueckw. A. Geb. 585

Abt. Qu. Nr. 452/43 geh.

In the field 25 December 1943

To the District Commissar KASATIN

1. The able-bodied male population between 15 and 65 years of age and the cattle are to be shipped back from the district East of the line Belilowka-Berditschen-Shitomir (places excluded).

* * * * *

4. Destruction of farm goods and factories in all places must not take place, only a crippling of factories for several weeks will be executed by army economic leader (A.Wi.Fue.).

In charge
[signature illegible]

Lt. General

Distribution:
See original.

Enclosure III

Copy

SECRET

High Command of the 4th Armored Army
O. Qu/Qu 2 Nr. 1662/43/ secret

Army Headquarters,
26 December 1943

Re: Evacuation measures.

1. The city of Berditschew is to be evacuated of Reich Germans, German [Volksdeutschen] agencies of the civil government, government of the country, able-bodied population. The cattle is to be taken away. Execution of evacuation measures is charged to the civil government.

* * * * *

4. No destructions are to take place as far as they are not expressly ordered by the armored army. All factories are to be prepared for crippling so that this can be accomplished in the shortest possible time. The electricity and water plants are to be taken over by the technical troops.

* * * * *

6. The same measures are to be prepared for Kasatin in such a way that they can be started at once at the command of the armored army.

For the High Command of the Armored Army
The Chief of the General Staff
In charge
Original signed MUELLER
Colonel, General Staff

Correct:
[signature illegible]
Lt Colonel, General Staff.

TRANSLATION OF DOCUMENT 1708-PS

National Socialistic Yearbook 1941

Edited by: Dr. Robert Ley

Published by: Central Publishing House of the N.S.D.A.P.
Franz Eher, successor Munich

The program of the NSDAP

The program is the political foundation of the NSDAP and accordingly the primary political law of the State. It has been made brief and clear intentionally.

All legal precepts must be applied in the spirit of the party program.

Since the taking over of control, the Fuehrer has succeeded in the realization of essential portions of the Party program from the fundamentals to the detail.

The Party Program of the NSDAP was proclaimed on the 24 February 1920 by Adolf Hitler at the first large Party gathering in Munich and since that day has remained unaltered. Within the national socialist philosophy is summarized in 25 points:

1. We demand the unification of all Germans in the Greater Germany on the basis of the right of self-determination of peoples.
2. We demand equality of rights for the German people in respect to the other nations; abrogation of the peace treaties of Versailles and St. Germain.
3. We demand land and territory (colonies) for the sustenance of our people, and colonization for our surplus population.
4. Only a member of the race can be a citizen. A member of the race can only be one who is of German blood, without consideration of creed. Consequently no Jew can be a member of the race.

5. Whoever has no citizenship is to be able to live in Germany only as a guest, and must be under the authority of legislation for foreigners.

6. The right to determine matters concerning administration and law belongs only to the citizen. Therefore we demand that every public office, of any sort whatsoever, whether in the Reich, the county or municipality, be filled only by citizens. We combat the corrupting parliamentary economy, office-holding only according to party inclinations without consideration of character or abilities.

7. We demand that the state be charged first with providing the opportunity for a livelihood and way of life for the citizens. If it is impossible to sustain the total population of the State, then the members of foreign nations (non-citizens) are to be expelled from the Reich.

8. Any further immigration of non-citizens is to be prevented. We demand that all non-Germans, who have immigrated to Germany since the 2 August 1914, be forced immediately to leave the Reich.

9. All citizens must have equal rights and obligations.

10. The first obligation of every citizen must be to work both spiritually and physically. The activity of individuals is not to counteract the interests of the universality, but must have its result within the framework of the whole for the benefit of all.

Consequently we demand:

11. Abolition of unearned (work and labour) incomes. Breaking of rent-slavery.

12. In consideration of the monstrous sacrifice in property and blood that each war demands of the people personal enrichment through a war must be designated as a crime against the people. Therefore we demand the total confiscation of all war profits.

13. We demand the nationalization of all (previous) associated industries (trusts).

14. We demand a division of profits of all heavy industries.

15. We demand an expansion on a large scale of old age welfare.

16. We demand the creation of a healthy middle class and its conservation, immediate communalization of the great warehouses and their being leased at low cost to small firms, the utmost consideration of all small firms in contracts with the State, county or municipality.

17. We demand a land reform suitable to our needs, provision of a law for the free expropriation of land for the purposes of public utility, abolition of taxes on land and prevention of all speculation in land.

18. We demand struggle without consideration against those whose activity is injurious to the general interest. Common national criminals, usurers, Schieber and so forth are to be punished with death, without consideration of confession or race.

19. We demand substitution of a German common law in place of the Roman Law serving a materialistic world-order.

20. The state is to be responsible for a fundamental reconstruction of our whole national education program, to enable every capable and industrious German to obtain higher education and subsequently introduction into leading positions. The plans of instruction of all educational institutions are to conform with the experiences of practical life. The comprehension of the concept of the State must be striven for by the school [Staatsbuergerkunde] as early as the beginning of understanding. We demand the education at the expense of the State of outstanding intellectually gifted children of poor parents without consideration of position or profession.

21. The State is to care for the elevating national health by protecting the mother and child, by outlawing child-labor, by the encouragement of physical fitness, by means of the legal establishment of a gymnastic and sport obligation, by the utmost support of all organizations concerned with the physical instruction of the young.

22. We demand abolition of the mercenary troops and formation of a national army.

23. We demand legal opposition to known lies and their promulgation through the press. In order to enable the provision of a German press, we demand, that: a. All writers and employees of the newspapers appearing in the German language be members of the race: b. Non-German newspapers be required to have the express permission of the State to be published.

They may not be printed in the German language: c. Non-Germans are forbidden by law any financial interest in German publications, or any influence on them, and as punishment for violations the closing of such a publication as well as the immediate expulsion from the Reich of the non-German concerned. Publications which are counter to the general good are to be forbidden. We demand legal prosecution of artistic and literary forms which exert a destructive influence on our national life, and the closure of organizations opposing the above made demands.

24. We demand freedom of religion for all religious denominations within the state so long as they do not endanger its existence or oppose the moral senses of the Germanic race. The Party as such advocates the standpoint of a positive Christianity without binding itself confessionally to any one denomination. It combats the Jewish-materialistic spirit within and around us, and is convinced that a lasting recovery of our nation can only succeed from within on the framework: common utility precedes individual utility.

25. For the execution of all of this we demand the formation of a strong central power in the Reich. Unlimited authority of the central parliament over the whole Reich and its organizations in general. The forming of state and profession chambers for the execution of the laws made by the Reich within the various states of the confederation. The leaders of the Party promise, if necessary by sacrificing their own lives, to support by the execution of the points set forth above without consideration.

Adolf Hitler proclaimed the following explanation for this program on the 13 April 1928:

Explanation

Regarding the false interpretations of Point 17 of the program of the NSDAP on the part of our opponents, the following definition is necessary:

“Since the NSDAP stands on the platform of private ownership it happens that the passage” gratuitous expropriation concerns only the creation of legal opportunities to expropriate if necessary, land which has been illegally acquired or is not administered from the viewpoint of the national welfare. This is directed primarily against the Jewish land-speculation companies.

PARTIAL TRANSLATION OF DOCUMENT 1709-PS

[Report of Special Delegate for Art Seizures, July 1943]

[Page 68 Par. 134]

The collection Lubomierski in Lemberg contained among others 31 valuable hand drawings by Albrecht Duerer. An offer made in the spring of 1940 by a special commissioner through the foreign office to the Russian government, to exchange these drawings by Duerer for equally valuable Russian works of arts and literary monument, was refused. On the day of the capture of Lemberg, the special commissioner, Dr. Muehlmann and the museum director Dr. Kudlich went there by order of the Reichmarshal, to conduct a search for the hand drawings. The investigation encountered considerable difficulties, because the Russians had reorganized the system of museums in Lemberg and because the collection Lubomierski did not exist any more.

In the course of further investigations Prof. Gebarowicz of the Bawarowski-museum, who had publicized the drawings in the past, was thoroughly interrogated also. Finally he explained that he kept the drawings carefully hidden from the Russians in the Bawarowski-museum. On demand, he also brought them out from concealment.

After thorough examination, the sequestration was announced, and a regular receipt was issued.

The special commissioner has turned over these hand drawings in July 1941 to the Reichmarshal in person, who brought them to the Fuehrer into the headquarters, where they still are. By specific order of the Fuehrer, they remain temporarily in his possession.

The following single drawings are affected, which were entered in the supplement of the catalogue (31 drawings on 23 cartons):

- | | |
|------------|--------------------------------------|
| Carton I | 1. Self portrait |
| | 2. 6 pillows |
| Carton II | 3. The young steer |
| Carton III | 4. Nude with mirror |
| | 5. Partial sketch of the same figure |

Carton IV	6. Nude woman with headscarf in a niche on a sphere
Carton V	7. Nude man with lion
	8. Nude man with mirror
	9. Attached weak reprint of the same figure
Carton VI	10. Corner ornament with eagle
	11. The holy family
Carton VII	12. Drapery study
	13. Nude man lying down
Carton VIII	14. Oarsman
Carton IX	15. Horse
Carton X	16. Europa on the steer
Carton XI	17. Corpus Christi
Carton XII	18. Nude woman with a staff
Carton XIII	19. Sampson with the city gates of Gaza
Carton XIV	20. Mary and child
	21. Childhead
Carton XV	22. Pictures of the emperors Charlemagne and Sigismund
Carton XVI	23. The holy family in a hut
Carton XVII	24. Study for a Madonna and the head of an old man
	25. Two geometric drawings
Carton XVIII	26. Mary with a child in an indicated renaissance hall
Carton XIX	27. Christ as king of the universe
Carton XX	28. Man's head with a cap
Carton XXI	29. Lamentations over Christ
Carton XXII	30. Head of a deer

Carton
XXIII

31. Study for an adoration, left kneeling Mary, right Holy Joseph

[Page 77, Par. 148]

Works of art for decorative purposes

On the desire of the Governor General, a number of 2nd and 3rd class art objects was made available to him for exhibition and decorative purposes, —Reference Paragraph 141 and 142.—The architect Franz Koettgen in Krakau was charged with the execution of this mission, especially the furnishing of Castle Kressendorf and the castle in Krakau. A list was made by the special commissioner, in which all objects, put at the disposal of architect Koettgen, were exactly listed in detail.

During the conference with the architect Koettgen, on 30 July 1942, the latter promised, to continue the inventory, already started by him, more rapidly, and to conclude by the end of 1942 at the latest. He furthermore said he was willing, to provide the special commissioner after the completion of the inventories with a directory of the location of the individual objects. The completeness of the transferred art objects and their careful storing can only be examined after the completion of the inventories.

A copy of the above mentioned lists on the object, put at the disposal of Koettgen is added to the report as enclosure Nr. 8.

[Page 80]

Of the objects, taken from the depot of the special commissioner in the state library in Krakau as of 1 Aug 1942, the following were inspected:

- I. In Berlin in the depot of the special Commissioner and in the safe of the German Bank:

	<i>Catalogue No.</i>
East German Master 1430 "Picture of the Vesper"	4
German Master 16th century "Picture of a bearded man"	17
Master von Kappenberg "Mary with child"	27

Dirk Bouts “Annunciation of Mary”	35
Netherland Master “Lamentation over Christ”	42
Berckheyde “Small Houtpoort in Haarlem”	45
Breughel “Folksfestival”	47
Gerrit Dou “Rembrandt’s mother”	51
Pinturicchio “Madonna and child”	138
Raffaell “Picture of a young man”	141
Venetian Master “Mary and child”	145
de Largilliere “Portrait of a lady”	158
Further two 2nd class pictures, namely “The lustful old man” (unequal lovers), “Fugger’s Portrait”.	

TRANSLATION OF DOCUMENT 1721-PS

CONFIDENTIAL

Supreme SA Command
FO No 82/277-38 n.f.D. Ha/Hbl.

MUNICH, 29 November 1938
For Use of the Services Only
Distributor I

Subject: Measures against the Jews.

The Stabsleiter of the Fuehrer’s deputy, in Order No. 189/38 (not to be made public), makes the following announcement:

“In connection with the actions against the Jews arising from the public, valuable objects had to be safeguarded here and there by the offices of the Party and its branches for the protection of German public property. I order that such objects be turned over at once to the nearest office of the Secret State Police, and receipts be given therefor.”

“If, in connection with these actions, the offices of the Party and their branches should become aware or have been aware of thefts, which unfortunately may have occurred, it is to be reported at once to the nearest Police Station. The same is to be done upon the appearance of suspicious objects.”

“The offices of the police are to be aided to the fullest extent in accomplishing their assignment.”

Chief of the Fuehrungshauptamt:
Signed: JUETTNER
Obergruppenfuehrer

Official
/s/ [Illegible]
Standartenfuehrer
STAMPED: SA Group Kurpfalz 1543
/s/ [Illegible]
30 November 1938

CONFIDENTIAL

SA der NSDAP
50th Brigade (Starkenbourg)
Division F Reference No 4309

DARMSTADT, 2 Moosbergstrasse 11 November 1938

Tel. 7042 and 7043 Postal checking account: Frankfurt on
the Main 234-38 Bankaccount City Savings Bank 155

To: SA Group Electoral Palatinate [Kurpfalz] *Mannheim*

The following order reached me at 3 o'clock on 10 November 1938.

“On the order of the Gruppenfuehrer, all the Jewish synagogues within the 50th Brigade are to be blown up or set on fire immediately.”

“Neighboring houses occupied by Aryans are not to be damaged. The action is to be carried out in civilian clothes. Rioting and plundering are to be

prevented. Report of execution of orders to reach Brigade Fuehrer or office by 8:30.”

I immediately alerted the Standartenfuehrer and gave them the most exact instructions; the execution of the order began at once.

I hereby report that the following were destroyed in the area of:

Standarte 115

1. Synagogue at Darmstadt, Bleichstrasse destroyed by fire.
2. Synagogue at Darmstadt, Fuchsstrasse destroyed by fire.
3. Synagogue at Ober/Ramstadt interior and furnishings wrecked.
4. Synagogue at Graefenhausen interior and furnishings wrecked.
5. Synagogue at Griesheim interior and furnishings wrecked.
6. Synagogue at Pfungstadt interior and furnishings wrecked.
7. Synagogue at Eberstadt destroyed by fire.

Standarte 145

1. Synagogue at Bensheim destroyed by fire.
2. Synagogue at Lorsch in Hessen destroyed by fire.
3. Synagogue at Heppenheim destroyed by fire and blown up.
4. Synagogue at Birkenau destroyed by fire.
5. Prayer House Alsbach destroyed by fire.
6. Meeting room Alsbach destroyed by fire.
7. Synagogue at Rimbach furnishings completely destroyed.

Standarte 168

1. Synagogue in Seligenstadt destroyed by fire.
2. Synagogue in Offenbach destroyed by fire.
3. Synagogue in Klein-Krotzenburg destroyed by fire.

4. Synagogue in Steinheim on the Main destroyed by fire.
5. Synagogue in Muehlheim on the Main destroyed by fire.
6. Synagogue in Sprendlingen destroyed by fire.
7. Synagogue in Langen destroyed by fire.
8. Synagogue in Egelsbach destroyed by fire.

Standarte 186

1. Synagogue in Beerfelden blown up.
2. Synagogue in Michelstadt furnishings wrecked.
3. Synagogue in Koenig furnishings wrecked.
4. Synagogue in Hoechst i/Odenwald furnishings wrecked.
5. Synagogue in Gross-Umstadt furnishings wrecked.
6. Synagogue in Dieburg furnishings wrecked.
7. Synagogue in Babenhausen furnishings wrecked.
8. Synagogue in Gross-Biebrau destroyed by fire.
9. Synagogue in Fraenk. Crumbach furnishings destroyed.
10. Synagogue in Reichelsheim furnishings destroyed.

Standarte 221

1. Synagogue and Chapel in Gross Gerau destroyed by fire.
2. Synagogue in Ruesselheim torn down and furnishings destroyed.
3. Synagogue in Dornheim furnishings destroyed.
4. Synagogue in Wolfskehlen furnishings destroyed.

The Fuehrer of Brigade 50 (Starkenbourg)

/s/ [Illegible]
Brigadefuehrer

Stamped: SA Group Electoral Palatinate (Kurpfalz)
11 Nov 1938

/s/ [Illegible]

CONFIDENTIAL

Notice!

8.35 Oberfuehrer Durein [?] for the area of Brigade 51 reports completion of the matter of the Synagogues.

Everything has been carried out up to Roelsheim [?] near Germersheim.

10 Nov 38

(s) [Illegible]

CONFIDENTIAL

Note for Files

Telephone call by the Fuehrer of Brigade 50, Darmstadt.
Brigadefuehrer Lucke.

Brigadefuehrer Lucke reports at 9 o'clock on 10 November 1938: The Jewish church at Darmstadt, the Synagogue at Darmstadt, and the Synagogue at Eberstadt were destroyed by fire. The Synagogue in Darmstadt destroyed and burned out. The Synagogue in Eberstadt destroyed and burned out. The Synagogues in Griesheim, in Graefenhausen and Oberramstadt destroyed. The Synagogue in Bensheim destroyed by fire. The Synagogue in Lorsch near Bensheim destroyed by fire. The Synagogue in Heppenheim blown up. The Synagogues in Rimbach and Birkenau destroyed. The Prayer Hall at Alsbach a.d.B. destroyed. Meeting-room in the Jewish cemetery in Haehnlein destroyed. The Synagogue and Church in Gross-Gerau destroyed by fire. The Synagogue in Ruesselsheim wrecked. In addition, the Synagogue and wooden church in Dornheim were demolished. In Offenbach the big Church and the Synagogue were destroyed by fire. Synagogues that may still exist will also be found and destroyed.

Mannheim, 10 Nov 1938

/s/ LOHMANN

Sturmhauptfuehrer

Copied:

CONFIDENTIAL

Note for Files

Telephone call from Brigade 151, Saarbruecken, by Sturmhauptfuehrer Rossel.

Sturmhauptfuehrer Rossel reports at 9.15 on the morning of 10 November 1938. Tonight the Synagogue in Saarbruecken was set on fire, and the Synagogues in Dillingen, Merzig, Saarlautern, Saarwillingen and Broddorf were also destroyed. Jews were taken into protective custody. The fire departments are occupied with extinguishing the fires. In the area of Standarte 174 all Synagogues were destroyed.

MANNHEIM, 10 November 1938

Copied:

/s/ ZIMMERMANN
Standartenfuehrer

CONFIDENTIAL

Note for Files

Telephone call from the Fuehrer of Standarte 250, Bruchsal, Standartenfuehrer Ritter von Eberlein.

Standartenfuehrer Ritter von Eberlein reports at 9.00 on the morning of 10 November 1938. In the early morning of 10 November 1938, between the hours of 4.30 and 6.00 o'clock, the Synagogue at Bruchsal burned down to the foundations. The crowd broke all shop windows of the Jewish stores in the city; the alerted SA put guards before the Jewish stores to prevent plundering. The Rabbi and several prominent Jews had to be taken into protective custody for their own safety. This was done by the Gestapo. The Synagogue at Philippsburg also burned down at the same time. The infamous Rabbi Neuburger, who is known because of his foreign connections was taken into protective custody by instigation of the SA. During the night the Synagogues at Wiesloch, Walldorf and Malsch were also destroyed. The male Jews had to be taken into protective custody for their personal safety. In the area of Sturmbann III/250 the Synagogues at Sinsheim, Neidenstein, Neckar-Bischofsheim, Hoffenheim, Wollenberg and Ittlingen were also destroyed.

MANNHEIM, 10 November 1938

Copied:

/s/ ZIMMERMANN
Standartenfuehrer

CONFIDENTIAL

Note for Files

Standarte 17 reports by telephone call from Sturmbannfuehrer. Then at 10.13 o'clock in the morning of 10 November 1938: The Synagogues at Ludwigshafen and Frankenthal were burned down completely this morning between 7 and 8 o'clock. Several Jewish stores were demolished.

MANNHEIM, 10 November 1938

Copied:

/s/ [Illegible]
Standartenfuehrer

PARTIAL TRANSLATION OF DOCUMENT 1723-PS

DECREES, REGULATIONS, ANNOUNCEMENTS [The German publication entitled "Verfuegungen, Anordnungen, Bekanntgaben"] Pp. 430-39.

Security Police

Cooperation of the Party offices with the Secret State Police [Gestapo].

In a summary of all the previously issued decrees on the cooperation between the Party and the Gestapo I refer to the following and ordain:

1. To the Gestapo has been entrusted the mission by the Fuehrer to watch over and to eliminate all enemies of the Party and the National Socialist State as well as all disintegrating forces of all kinds directed against both. The successful solution of this mission forms one of the most essential prerequisites for the unhampered and frictionless work of the Party. The Gestapo, in their extremely difficult task, is to be granted support and

assistance in every possible way by the NSDAP. The supervision of the Party itself does not come under the jurisdiction of the Gestapo.

I prohibit all offices of the Party, its organizations and associated groups to conduct investigations and interrogations regarding affairs which concern the Gestapo only. All occurrences of a political-criminalistic nature are to be reported without prejudice along Party channels and as ever brought to the knowledge of the Gestapo immediately.

2. The secret state police must report automatically all occurrences of a criminal nature, even if it includes Party Members, to the responsible public prosecutor according to the laws of the National Socialist State, in force for all nationals. In such cases, the State police offices will notify, as before, the county and Gauleiters concerned, of the reports made to the public prosecutor. Reports will include reasons for the incidents. In the interest of the movement the functionaries [Hoheitstrager] are obliged to suspend, if necessary, the party members, after contacting the responsible Party Court; the latter will hold a public hearing, to decide on the temporary suspension.

Invitation of the leaders of offices in the Security Police and the Security Service to attend Party meetings.

In order to establish closer connections between all the offices of the Party and their organizations and the office leader of the Security Police and SD, the leader of the Party Chancellor asks that they should be invited in the future to all large official meetings of the Party.

The taking over of political offices by officials of the Gestapo

The Secret State police has the mission to safeguard the unhampered development of all forces active in the party and released by it in the National Socialistic State.

Since it is still in a state of being organised and the available officials and employees are very much in demand they are only to be employed in order to take over positions in the Party in as much as it is compatible with their official duties in the Secret State Police.

I, therefore, ask to check in every single case and in close harmony with the department of the Secret State Police concerned, whose leader welcomes the taking over of political functions by officials and employees of the Secret State Police, whether the transfer of political missions into the Party

can be justified in the interest of the official obligations of the Secret State Police.

Presentation to the State Police upon request by Party offices

The Chief of the Security Police and SD has issued the annexed decrees of 29 March 1940 and 4 November 1940. It is ordered herewith that departments of the Secret State Police will be obliged to execute the presentation request when the same emanates from the Reichsleiters or the Gauleiters. If the request for presentation originates from subordinate departments of the party it will only be granted if particular interests of the State Police seem to warrant a presentation.

In the future the county administration and local administrations are to direct all requests through the district administration to the responsible department of the Secret State police.

Berlin, 29 March 1940

The Chief of the Security Police and SD
I A 1 NR. 102/40-176

To all State police departments

By way of information to the Inspectors of the Security Police and SD.

Subject: Presentation to the State Police upon request by Party offices.

Repeated requests by Party offices for presentation to the State Police of Volksgenossen who did not heed the summons of the Party offices, cause the following regulations to be decreed:

1. If the district administration makes the request the same is to be granted as long as no important interests of the State Police interfere.
2. If a party office subordinate to the district administration requests the presentation, the same has to be denied in as far as no important interests of the State Police seem to warrant a presentation.

Signed: HEYDRICH

Verified: Schoenbrunn of the Chancellery

Berlin SW 11 4 November 1940

The Chief of the Security Police and SD
IB 1 NR 763/40-151

To All State Police Departments

By way of information to the Inspectors of the Security Police and SD

Subject: Presentation to State Police upon request of Party Offices

Reference: Decree of 29 March 1940 IA 1 NR 102/40-176

In supplement to my decree of 29 March 1940 I order that presentation requests by Reichsleiters be granted in so far as important interests of the State Police do not interfere.

Signed: HEYDRICH

Protective Custody

Protective custody must be viewed as the strongest measure in order to impressively instruct the Volksgenossen, who maliciously neglect their duties toward the community or endanger the security of the State, that they have to conform themselves to the universal interests and to adapt themselves to State discipline. Therefore it should only serve as a means of combatting real enemies of the Reich, but should never be used for the clarification or punishment of different or insignificant offenses.

An excessive use of protective custody, as well as its infliction without previous indisputable clarification of the state of affairs and the question of guilt, is neither justified with regard to the future of the one involved nor with respect to the reduction of its moral effect.

Therefore it must be expected that protective custody is only to be employed in really pressing and substantial cases.

I request that the county leaders be instructed orally to avoid any written communications; special emphasis on secrecy.

Protective Custody (Regulations)

Through the circular of the 25 January 1938, the Reich Minister of the Interior has issued new regulations regarding the introduction of protective custody. In the following, I announce the wording of this decree for confidential information.

Berlin 25 Jan. 1938

The Reich Minister of the Interior

The following regulations regarding protective custody go into effect on the 1 February 1938. At the same time, the following are rescinded:

- a. My decree of 12 April 1934—I 3311 A/28.2 along with the supplement of 26 April 1934 and 10 July 1934 (directed to governments of the states and to the Reichstatthalters).
- b. My decree of 12 April 1935—VI B 757A/3014 along with the supplementary decree of 1 June 1935 VI B 11568/3014 (directed to the governments of the states, Reichstatthalter, Prussian presidents of government districts).
- c. My decree of 17 June 1935—III P 3311/329 (directed to the state government and the Reichstatthalter.)
- d. The decree of office of Secret State Police of 3 July 1934—B Nr. 19582 II I D (directed to the presidents of the Prussian government districts).
- e. The decree of the Political Police Commander of the Lands of the 9 Sept 1935—B. Nr. 37840/35 II I D (directed to the Political police of the states and the Prussian State Police offices).

Article 1 Admissibility

Protective custody can be decreed as a coercive measure of the Secret State Police against persons who endanger the security of the people and the state through their attitude, in order to counter all aspirations of enemies of the people and state.

Protective Custody shall not be decreed for penal purposes or as a substitute for punitive arrest. Punishable offenses have to be decided finally by the courts.

Article 2 Competence

1. The Secret State Police exclusively is competent for the application of protective custody.
2. Motions in behalf of the application of protective custody have to be directed to the Secret State police through the State police offices. Every motion has to be substantiated in detail; the statements of the arrested person have to be considered in it. A copy of the hearing of the person temporarily apprehended has to be forwarded immediately.
3. Protective custody may only be inflicted if the accused has previously had a hearing on offenses imputed to him.

Article 3 Temporary Arrest

1. The Secret State police bureau, the offices of the State police director and of the State Police are authorized under the provisions of par. 1 to order the temporary arrest of persons:
 - a. If it is feared that the freedom will be abused for activities hostile to the state.
 - b. If danger of under-cover activities exists.
 - c. If there is suspicion of escape.
2. The accused has to be notified at the latest within 24 hours after the arrest. He is to be heard on the grounds for the infliction of the temporary arrest according to protocol.
3. A temporarily arrested person has to be released at the latest after an elapse of 10 days from the day of apprehension if the Secret State police bureau has in the meantime not decreed protective custody (5).

* * * * *

Article 6 Execution

The protective custody has to be executed generally in the State Concentration Camps.

Article 7 Duration

1. Protective custody shall only be upheld as long as it serves its purpose.
2. The Secret State police bureau authorizes release from protective custody. For that reason the bureau investigates periodically but not exceeding 3 months, whether the protective custody should be cancelled. The release must have taken place, at the latest, on the third day after the lifting of the protective custody.

Article 8 Foreigners

As a matter of principle deportation procedure has to be carried out against foreigners who have been taken into protective custody unless particular reasons interfere.

Article 9 Executory Regulations

The Chief of the Security Police issues the necessary regulations for the execution.

PARTIAL TRANSLATION OF DOCUMENT 1724-PS

Press conference on August 4, 1938 headed by Regional Leader
[Gauamtsleiter] Schoeller

Duration: 1 hour

[Page 1, par. 4]

The breaking up of the synagogue (information must still be secret).

On August 10, 1938 at 10 o'clock A. M. the breakup of the synagogues will commence. Gauleiter Julius Streicher will personally set the crane into motion with which the Jewish symbols (Star of David etc.) will be torn down. This should be arranged in a big way. Closer details are still unknown.

TRANSLATION OF DOCUMENT 1725-PS

1935 REICHSGESETZBLATT, PART I, PAGE 502

Ordinance on Enforcement of the Law for Securing the Unity of Party and State of 29 March 1935

By virtue of the law for securing the unity of Party and State of 1 December 1933 (RGBl I, 1016) I order:

ARTICLE 1

1. The NSDAP and the Hitler Youth Movement, Inc. are to be expunged in the corporation register. The property of these corporations has without liquidation become the property of the NSDAP as a corporation of public law.

2. The land deeds and other public records are to be corrected free of charge on request.

3. Until the decree of the statute of the NSDAP (Article 1, Section 2 of the Law for Securing the Unity of Party and State of 1 December 1933), the previous statute of the National Socialist German Workers' Corporation, Inc., is applicable in this sense to the NSDAP as a corporation of public law.

ARTICLE 2

The SA,

The SS,

The National Socialist Driver Corps [Kraftfahrkorps],

The Hitler Youth (including the Jungfolk, the League of German Girls and Jungmaedel),

The National Socialist German Student League,

The National Socialist German Women's Auxiliary [Frauenshaft], are components of the party.

ARTICLE 3

The National Socialist League of German Physicians, Inc.,

The League of National Socialist German Jurists, Inc.,

The National Socialist Teachers' League, Inc.,
The National Socialist People's Welfare, Inc.,
The National Socialist War Veterans' Administration, Inc.,
The Reich League of German Officials, Inc.,
The National Socialist League of German Technologists,
The German Labor Front (including the National Socialist foundation
"Kraft durch Freude"),
are the organizations affiliated to the NSDAP.

ARTICLE 4

1. The components of the NSDAP possess no legal character of their own and no property of their own.
2. The NSDAP forms with its components as a corporation of public law, a unit for the domain of the entire organization, with reference to property rights. Therefore the entire corporation is exclusively obligated and justified as to property rights.
3. The Reich Treasurer of the NSDAP is the Plenipotentiary of the Fuehrer in all legal matters relating to property of the NSDAP. The Plenipotentiary rights include the right to assign sub-powers of attorney generally or for individual matters.

ARTICLE 5

1. The affiliated organizations can possess their own legal character.
2. The affiliated organizations are subject to the financial supervision of the Reich Treasurer of the NSDAP.
3. The other legally determined supervisory rights are not touched by the financial supervision of the Reich Treasurer of the NSDAP.

ARTICLE 6

All authorities have to assist the Reich Treasurer of the NSDAP and his agent in the fulfillment of his duties and to conform with the requests of the Reich Treasurer of the NSDAP, which go to them on the basis of this order.

ARTICLE 7

1. The first enforcement order of 23 March 1934 (Voelkischer Beobachter, Munich edition No. 86 of 27 March 1934 and Berlin edition No. 87 of 28 March 1934) on the law for securing unity of party and state dated 1 December 1933 is abrogated.

2. Likewise all previous orders and regulations contrary to the above enforcement order on the law for securing unity of party and state of 1 December 1933 are abrogated.

ARTICLE 8

1. The Deputy of the Fuehrer issues terms for enforcement and supplementing Articles 2 and 3 of this order. The Reich Treasurer of the NSDAP issues the remaining terms for execution of this order.

2. This law takes effect on the day following its announcement.

Berlin, 29 March 1935

The Fuehrer and Reich Chancellor
Adolf Hitler

The Deputy of the Fuehrer
R. Hess
Reich Minister without Portfolio

The Reich Minister of the Interior
Frick

COPY OF DOCUMENT 1726-PS

STATEMENT OF THE NETHERLANDS GOVERNMENT IN VIEW OF THE PROSECUTION AND PUNISHMENT OF THE GERMAN MAJOR WAR CRIMINALS

Enclosure "h" entitled: *Central Bureau for Statistics*

THE DEPORTATION OF NETHERLANDS WORKMEN TO GERMANY [Pages 1-3].

The enlistment of working labourers took quite a different course. Many big and reasonably large business concerns, especially in the metal industry,

were visited by German commissions who appointed workmen for deportation. This combing out of the concerns was called the “Sauckel-action”, so named after its leader, who was charged with the appointment of foreign workmen in Germany.

The employers had to cancel the contracts with the appointed workmen temporarily, and the latter were forced to register at the labour offices, which then took care of the deportation under supervision of German “Fachberater”.

Workmen who refused (relatively few) were prosecuted by the “Sicherheitsdienst” (SD). If captured by this service, they were mostly lodged for some time in one of the infamous prisoners camps in the Netherlands and eventually put to work in Germany.

In this prosecution the “Sicherheitsdienst” was supported by the German Police Service, which was connected with the labour offices, and was composed of members of the N.S.B. and the like.

At the end of April 1942 the deportation of working labourers started on a grand scale. Consequently in the months of May and June the number of deportees amounted to not less than 22,000, resp. 24,000 of which many were metal workers.

After that the action slackened somewhat, but in October 1942 another top was reached (2,600). After the big concerns, the smaller ones had, in their turn, to give up their personnel. * * *

This changed in November 1944. The Germans then started a ruthless campaign for manpower, passing by the labour offices. Without warning, they lined off whole quarters of the towns, seized people in the streets or in the houses and deported them.

In Rotterdam and Schiedam where these raids (razzia's) took place on 10 and 11 November, the amount of people thus deported was estimated at 50,000 and 5,000 respectively.

In other places where the raids were held later, the numbers were much lower, because one was forewarned by the events. The exact figures are not known as they have never been published by the occupants.

The people thus seized were put to work partly in the Netherlands, partly in Germany.

The events of the war then took such a turn that further deportations did not take place. But still in the North and East of the country, many men, up to 60 years, were seized and forced to build defence works in the neighbourhood of their homes.

PARTIAL TRANSLATION OF DOCUMENT 1741-PS

PART 3

S BLN NR 51 7 AUG 8 AUG 0800—
TO the Chairman of the German-French Economic Commission,
Ambassador HEMMEN,
Wiesbaden Hotel 4 Jahreszeiten.

[Rubber Stamp]

German Armistice Delegation for Economy

Wiesbaden 8 AUGUST 1940
NO. 30 Incl. 1.

NO. 70—

Enclosed, I forward to you a copy of the draft of the note on occupation costs, which corresponds to the decisions made in the meeting of the H.P.A. on 31 July, and which in the meantime has the consent of the Chief of the OKW. I request to forward the note now.

By Order /S/ WIEHL.

NOTE: For the Chairman of French Delegation with the German Armistice
Commission General Huntziger

My General:

By order of my government, I have the honor to inform you of the following:

1 According to Article 18 of the German French Armistice Agreement of 22 June 1940, the costs for the maintenance of the German occupational troops on French soil are to be borne by the French government. To carry out this term, an early settlement is necessary.

2 Considering the impossibility to calculate the costs accurately at present, until further notice, daily installments of at least 20 million marks are necessary. These installments may be paid in French francs, Reichcredit checks [Reichskassen Scheinen] or other values, to be agreed on. The conversion of French francs has been fixed on a currency ratio at 1:30, subject to a later different settlement. The billeting of the German occupation troops on French soil is not included in the settlement of installments. The billet owners will be compensated for the billeting costs by the French government outside of the settlement of installments.

3 The settlement is in force from the period beginning 25 June 1940. The back payments are due with the settlement of installments. The further amounts are to be paid every time for a period of ten days in advance.

4 Certificates of requisition for material in kind, issued by the German occupation, exclusive of billeting, as far as they have been issued after the coming into force of the settlement of installments, will be registered as payment for the cost of the occupation by the French government. However, the certificates of requisition, which were issued by the German occupational troops before the coming into force of the settlement of installments, are to be redeemed by the French government without deducting it from the costs of occupation. I request my General to confirm to me the receipt of this note, and to notify me about the measures which the French government has made about the execution of the above settlement.

Permit me, My General, to express my utmost respect,

* * * * *

PART 6

Wiesbaden No. 29 17.9.40 2010 Secret

Teletype

Foreign Berlin

Secret

Del. No. 120.

In your teletype No. 171 of 12 September, concerning occupation expenses, it is stated in number 2 that it is the wish of the Reich Finance Ministry to inform the French delegation explicitly “that the installments did not constitute a settlement by a lump sum, but that they would have to be adapted to the actual necessities arising from the current war situation and the current requirements of the occupation troops”. I hesitate considerably, to communicate this request to the French delegation for the following two reasons:

In my notes of 8 August 1940—Del. W. 280 of 15 August 1940—Del. W. 331—and of 20 August 1940—Del. W. 408, the idea of installments has always been expressed clearly. The idea of a settlement by a lump sum has never been discussed with the French. The French delegation has therefore no reason, up to now, to assume that the installments constituted a settlement by a lump sum. The instruction requested by the Reich Finance Ministry would, on the contrary, only arouse the idea of a settlement by a lump sum in the minds of the French, which I consider as disastrous.

General von Stuelpnagel informed me more officially, that numerous German Divisions have been transferred to the East from France. This fact cannot remain unknown to the French permanently. He draw my attention to that fact because he thought that this decrease of the armed forces in France would certainly influence the amount of the occupation expenses.

The transmission of the communication to the French delegation at present in the wording “as necessitated by the current war situation and the current requirements of the occupation troops” as desired by the Reich Finance Ministry, contains the further danger, that the French delegation would claim a reduction of the installments because of the decrease in the number of troops.

I ask you for your decision.

Signed: HEMMEN

2015 NR 29 Received BO AUSW AMT (Foreign Office) Berlin.

PART 7

Wiesbaden 23 October 1940

Armistice Commission for Economic Affairs

The President of the French Delegation for Economic Affairs French
Delegation

To Monsieur Hemmen

Minister Plenipotentiary

President of the German Armistice

Delegation for Economic Affairs.

No. 6318/DE

[Rubber Stamp]

German Armistice Delegation for Economic Affairs Wiesbaden

24 October 1940

No. 1532

Enclosures

Sir:

By order of my government I have the honor to communicate the following
to you:

In a note dated the 12th of October, the German government answered a
note of the 26th of August in which the French government had made a
formal protest against the payments demanded from her to cover the
expenses of the German occupation troops in France. The German
government refuses all discussion, both on the distinction between
“occupation troops” and “operational troops”, and on the rate of exchange
between Reichsmarks and francs.

It further refuses or denies the French government the right to watch and
receive information about the way in which the sums paid for the costs of
occupation are used, as well as about the requisitioning of lodgings and
economic requisitions.

The French government profoundly regrets this reply. It considers, in fact,
that events have fully justified the position it took up.

After having recalled once more the essential distinction which it makes between “occupation troops” and “operational troops”, the French government pointed out to the government of the Reich the two considerations which, in its opinion, make a fresh examination of the problem necessary.

1. Facts have shown that the rate of exchange fixed for the conversion of the Reichsmark into francs was too high. This rate of exchange did not take into account the respective levels of prices in France and Germany at the time when it was fixed. It anticipated a very considerable rise in French prices, which the German authorities considered inevitable. Actually this rise did not take place and the buying power of the franc remains much higher, than that implied by the maintenance of the present parity.

The French government is all the more surprised at its protest against the rate of exchange between francs and Reichsmarks not having had any results, as it had itself suggested, in case the rate were modified, a formula allowing the pay and allowances received by the German troops for their expenses in France to remain at the figures at present paid in francs.

An immediate consequence of the rate of exchange of 20 francs to the mark is that the sum demanded on account, for the maintenance of the occupation troops, which is reckoned in Reichsmarks, is out of all proportion to the real expenses of these troops. As a matter of fact, the credit balance of the account opened by the Bank of France for the German military administration is enough to cover the costs of occupation for a long time to come.

2. It is obvious that the payments demanded by the government of the Reich should be reduced in proportion to the number of German troops in France. But it is clear that this number has diminished considerably since the daily payment was fixed.

The French government is all the more justified in arguing from the above facts, as it is faced by an extremely serious economic problem, owing to a lack of raw materials and insufficient means of transport, which have led to considerable unemployment. The result is that, if the level of the costs of occupation fixed in August is persisted in, the burden will become more and more difficult to bear as time goes on.

The French government therefore has to make a formal request for a revision of the present daily payment. This reduction is amply justified, both by the real needs of the occupation troops and by France's economic capacity. If it does not take place soon, the French government will inevitably be unable to continue its payments.

The French government, anxious to carry out the Armistice Convention which it signed, wanted to give the government of the Reich this loyal explanation of the position it is forced to take up. It appeals to the feeling of great comprehension of the German government and hopes that this sincere explanation will induce the latter to grant the revision requested in this note.

I am, sir,

/S/ Yves de Boisanger.

[Rubber Stamp]
THE PRESIDENT
French Armistice Delegation
For Economic Affairs.

PART 8

French Delegation for Economic Affairs

Wiesbaden, 18 March 1941

[Rubber Stamp]

German Armistice Delegation for Economic Affairs

18 March 1941

No. 5409

Enclosures.

No. 15447/DE

The President of the French Delegation for Economic Affairs, to Monsieur
Hemmen Minister Plenipotentiary

President of the German Armistice Delegation for Economic Affairs.

Sir:

I have the honor to communicate the following to you on the orders of my government:

Since the fixation of the daily indemnity by Germany, the French government has paid over 108 million as occupation costs.

The burden of this payment, aggravated as it is to this degree, can no longer be borne by the economy of this country without serious danger. There is a risk of its causing a disorganization of its social and political structure from which German interests would be the first to suffer.

The representatives of the German government have several times manifested their intention of dealing considerately with France's domestic order and her attempts at recovery.

It is the purpose of safeguarding the economic forces necessary for Franco-German collaboration that the government has the honor of setting forth the motives and objects of its request for the revision of the indemnity.

I. MOTIVES

1. *Monetary*

The total of the sums paid by France is so great that financing has to be covered by repeated appeals to the Bank of France.

As a result, the monetary circulation is increasing at an exceptionally dangerous rate.

In January 1939 it did not exceed 110 milliards. In January 1941 it had already been doubled. At the present rate it will soon reach three times its pre-war volume.

2. *Economic*

This enormous mass of buying power weighs down an impoverished country, whose reserves have been exhausted by war and whose production is cramped by the lines of demarcation. It can not be reabsorbed by taxes, since budgetary recoveries, which already represent a very heavy burden on the taxpayer, do not exceed 60 milliard francs. It can not be absorbed by loans, since subscriptions to treasury bonds only just cover the expenses of the French state.

The mass of currency thus exercises considerable pressure on prices, so that it is difficult to prevent them rising.

3. Psychological

This is particularly the case owing to the fact that, all holders of francs are showing an increasing propensity to fly from money. The rise in the rate of interest on shares, hoarding by merchants and individuals and rise in real estate prices reveal the progressive depreciation of the national currency.

The fall of the franc was considerably accelerated when, the State's Fourth Convention with the Bank of France (20 January 1941) became known. It is to be feared that the publication of the Fifth Convention, dated the 20th of February, will be still more disastrous, unless it is accompanied by the announcement of a revision of the indemnity.

II. OBJECTS

1. Reduction of the indemnity

The indemnity was fixed at 400 million francs per diem, as the result of a decision by the German Armistice Commission for Economic Affairs on the 8th of August 1940, to meet the expenses of the occupation troops.

But these troops have decreased in number since the armistice, and one must reintroduce the distinction between operational troops and occupation troops, the latter being the only ones who were to be supported by France, according to the Armistice Convention.

Furthermore, the debits actually entered on the account of the Reich Credit Bank [Reichskreditkasse] with the Bank of France have been used to cover other needs than that of supporting German troops.

Finally, in spite of these non-military uses to which the indemnity has been put, German expenses have not absorbed the credits which were opened.

Thus it came about, that on the 12th of March 1941 the payments made by France amounted to 108 milliards, while the Germans had only drawn up to half this figure.

It would therefore only be fair, to reduce the daily payment of 400 millions by a very considerable fraction.

2. Incorporation of all French obligations into the indemnity

The present indemnity does not include all the obligations which France has to meet.

The French State meets the expenses of lodging and billeting separately.

The fiscal exonerations which Germany recently decided her purchases in France should enjoy, deprived the French Treasury of a considerable income.

It would only be fair that the new payment should cover all the obligations falling on France as a result of the occupation.

3. Reduction of the rate of exchange of the mark

The rate adopted for the mark, as a result of the decision of the 8th August, is 20 francs to the Reichsmark, whereas the official parity between the two currencies is 17 francs, and real parity, based on a comparison of their buying power, is still lower than this figure.

This over-valuation of German currency does not have as its only effect a considerable aggravation of the burden of tribute. It also exerts an upward pressure on French prices which tend to adjust themselves to German prices, on the basis of the excessive rate of exchange of the mark.

The parity between the two currencies should therefore be brought back to a level which stands in a closer relationship to economic realities.

4. Alteration of the method of payment

The habit of making payments in currency in settlement of the requisitions supplied to the occupation authorities is the principal cause of the exaggerated monetary circulation.

It is therefore essential that the needs of the German occupation troops be met, in principle, only by requisitions in kind;

that the methods used in the Rhineland from 1919 onwards be taken as an example and the French authorities be made responsible for obtaining these requisitions and debiting the occupation account with the value of the products and services provided in France;

that payments in currency be limited to a few purchases direct from commerce and industry made by soldiers of the German army out of their pay;

that payment for purchases in Germany for the maintenance of the occupation troops in France be met by the Reichsmarks which the French Compensation Office holds in Berlin. The cost of these supplies would be debited to the account opened to follow the use of the daily indemnity.

The French government strongly hopes, that the reasons for her preoccupations will be understood. It urgently requests, that talks be begun rapidly, so that the indemnity can be readjusted before the currency has lost its value completely. It counts on the German government agreeing to no new payments being made, until the necessary negotiations have been completed, as the needs of the occupation troops are covered for many months by the money at present credited to them in the Bank of France.

I am, Sir, etc.

/S/ Yves de Boisanger.

[rubber stamp]

The President

French Armistice Delegation
for Economic Affairs.

* * * * *

PART 20

Paris 11 Sep 1941

C 3

Del. W. No. 9659 P

1. *Foreign BERLIN*

Del W. No. 443 of 11 Sep 1941

Teletype Secret

After extensive examination of the situation, I would like to suggest urgently, in reference to our dilatory treatment of the occupation costs, ordered by the telegram from there of 2 Aug 1941—No. 3863—and strictly complied with up to now, to make a new appeal to the Reichsminister for Foreign Affairs, to authorize me to sign the agreement over the reorganization reached with the French delegation, according to my telegram of 22 July 1941, Del. W. No. 372, and to put it into force.

In fact, it absolutely complies with Ambassador Abetz's opinion, forwarded there in his telegram of 15 Aug 1941, paragraph 1, that our consent for a fundamental readiness to decrease the occupation costs has been given to Admiral Darlan on 7 May 1941 for the concessions, granted us in Syria. As it is reported to me, General Huntziger has represented the opinion to De Boisanger, that there may be a misapprehension or incomplete notification of German agencies, if now the settlement of the occupation costs are brought up in connection with the North African questions.

I further point out, that the present arbitrary de facto settlement of the payment of 15 instead of 20 million RM daily, already extends over 4 months, and that this represents for France the practically most favorable situation, and probably pleases more than the new regulation for 10 million RM credit plus 3 million RM transfer daily. It is still more important, that with a further delay of the settlement of occupation cost, a series of important questions, which are regulated with the reorganization simultaneously, remain further unsolved *at the same time*, and disadvantages for us come about from this:

1. The purchase of further French interests abroad is obligatory in most cases because of war-economical reasons. However, the reorganization, agreed to, cannot be taken up for that, as long as a total solution is still uncompleted. The Reichsministry for Economy reports that the negotiations are practically at a standstill at present for this reason. Therefore, the disadvantage lies with us alone in these subjects, while 60 million RM for the purchase of interests with the coming into force of the reorganization.
2. The execution of armament deliveries from France always presents to our armed forces authorities difficulties, which result from the payment. An immediate coming into force of the transfer of goods would directly result in favor of our war potential.
3. I can secure the final appointment of the German foreign trade commissioner at the same time, for which especially the Four Years' Plan and the military commander show a lively interest.

But the stoppage also has a disadvantageous effect on the other work of the delegation. I am forced to approach the French government every week with new demands, mostly war-economically important, among them the construction of a German-French clay factory in France for deliveries of

additional 100,000 tons of clay per year, the renting of several thousand trucks with French drivers, and the purchase of 15,000 French trucks, converted to wood gas for transports to Russia.

Everywhere the energetic cooperation of the French government and in part serious pressure by the government on its own economic circles are necessary for the execution of these problems. Because of the well-known tendency of the French government to hide themselves in case of such economic desires behind the general political situation, my efforts now ran against continually increasing difficulties. It is therefore desired to reinstitute the previous status as soon as possible, and to keep the field of endeavor of my delegation free and independent of the prevailing political constellations, as much as possible.

For these reasons, I recommend, that the present uncertain situation of the occupation cost question, which can only have a disadvantageous effect on us ourselves, be ended soon, and that the new settlement be ordered by us now.

[In ink] Ambassador Abetz has been informed of this telegram before it was forwarded.

/s/ Hemmen

1735 No. 23 one received foreign office KR

* * * * *

PART 22

FOREIGN OFFICE Ambassador Ritter C.3

“Westfalen”, 14 October 1941

[STAMP] German Armistice Commission

Wiesbaden 18 October 1941

Nr. 10628

Dear Mr. Hemmen,

I have received your letter of 29 September 1941—Del. W. No. 10093 P.

The Reich Foreign Minister does not consider it appropriate to approach the Fuehrer with the regulation of the occupation expenses at the present.

With friendly greetings

Heil Hitler
Yours
signed: Nitter

To The Ambassador Hemmen German Embassy Paris

PART 23

Paris, 4th November 1941
Place du Palais-Royal

French Delegation to the German Armistice Delegation for Economic
Affairs

German Armistice Delegation f. Economic Affairs

Wiesbaden 5 November 1941 No. 11116 Enclosures

The President of the French Delegation for Economic Affairs,

To Monsieur Hemmen Minister Plenipotentiary President of the German
Armistice Delegation for Economic Affairs

Sir,

In execution of the decisions taken by the German government with regard to the payment of the costs of occupation, the French government has, since August 1940 made periodic payments which, on the 31st October 1941, totalled 183,200,000 francs. It was also obliged to defray certain expenses (particularly the lodging of troops) directly—expenses which amounted at this same time, to nearly 8 milliards and to cover the deficit in the Franco-German clearing account, which is, at the moment, in the neighborhood of 11 milliard francs.

The French government protested several times against the size of this imposition, drawing the attention of the German Government to the grave dangers it entails, both from the financial and from the economic point of view.

Its fears on this point are unfortunately being shown to be better founded every day.

The expenses resulting to the French Treasury from the occupation alone are as high as the expenses of the State itself. The sums paid towards the costs of occupation are also often used to a large extent to defray expenses which have nothing to do with the maintenance of troops.

It is clear that such burdens are disappropriate to the present resources of France and that they can be covered only by treasury expedients.

The national revenue is diminishing continually. If the efforts made in the field of agriculture result in an increase in the productivity of the soil, industrial activity slows down. An increase in taxation would produce a hardly noticeable result, and one must, on the contrary, expect the product of these taxes to diminish more or less rapidly. One is therefore forced to borrow at short call, either from the Bank of France or from individuals and credit establishments, up to 70% of the needs. In this way the public debt and the advances from the fiduciary swell at an alarming speed, whatever the effects may be of the measures taken to manipulate certain elements of this debt and to make it less onerous (conversion, consolidation, reduction of rates of interest).

The mass of means of payment created to deal with the expenses resulting from the occupation, seriously imperils economic equilibrium. Inflation takes place in spite of the efforts of the government to limit its volume and its consequences.

The prices of foodstuffs of daily use and of industrial products are maintained by rationing and taxation, but nevertheless tend more and more irresistibly to rise, and each day it is harder to prevent too rapid a rise in the cost of goods and property.

The increasing abundance of money available is shown both by the increased circulation of bank notes and by the increase in stocks held in private and public institutions.

The monetary circulation, which was about 160 milliard francs in June 1940, has today reached the figure of 250 milliards, in other words, it has increased by over 56%. During the same period bank deposits increased by about 50%.

The smallness of the quantity of goods offered is at the same time accentuated by supply difficulties and by the extent of the requisitions carried out in the occupied zone.

This development is leading to a catastrophe like that suffered by Germany 20 years ago.

When the French government signed the Armistice, it firmly intended reestablishing the economic situation. All its efforts since then have aimed particularly at keeping the monetary situation under control, in spite of difficulties of all kinds and, particularly, in spite of the enormous costs of occupation.

The French government is resolved to persevere in this path, but it cannot do so usefully if the payments imposed by the German government continue to render all its efforts useless in advance. It wants to warn it once more.

I am, Sir, etc.

sgd. Yves de Boisanger.

[rubber stamp] The President French Armistice Delegation for Economic Affairs

* * * * *

PART 27

Telegram (Secret Ch V)

Berlin, 19 February 1942, 1343 o'clock

Wako Paris

Nr. 50 of 19 Feb. Citissime.

Matter to be kept under lock C

Att: Mr. Hemmen

German Armistice Delegation for Economics

Wiesbaden 20 February 1942 No. 1309 Enclosures

[Initials]

In answer to report of 3 and 11 February No. 736 and No. 189 of 16 February and telegram of the 18th No. 43.

1. Reich Foreign Minister has ordered on 16 February that you orally transmit to the Governor de Boisanger that the German Government considers the letter of Finance Minister Bouthillier to the Reich Minister of Finances only as a personal statement, not as an official communication of the French Government. In case the French government wishes to make a statement concerning the question of occupation costs this should be directed by the authorized French chief of negotiations to the authorized German chief of negotiations. In connection with this communication you are to warn Mr. de Boisanger regarding the end of Mr. Bouthillier's letter emphatically against an arbitrary discontinuation of the payments for occupation costs by the French Government and to point out to him that such a discontinuation would create a serious situation and result in corresponding German counter measures.

2. The Reich Minister of Finance has on 17 February declared that he approves these steps and that he is not going to answer the letter. However, he has suggested an internal discussion of the question of occupation costs to which the Reich Foreign Minister also agreed regarding the report of the OKW on the actual daily expenditures. The discussion will take place soon in agreement with the competent department and your reports mentioned in the beginning will also be discussed.

3. Reich Foreign Minister, by the way, has issued for all your negotiations the general directive, considered at an earlier date, that you are to break off negotiations and depart for Berlin in case the French assume an attitude which is not becoming to them as the conquered ones.

Wiehl.

* * * * *

PART 29

French delegation to the German armistice delegation for economic affairs

Ref.: P 276/DE

Paris, 4 March 1942
Place du Palais-Royal

From: The president of the French delegation to the German armistice delegation for economic affairs.

To: Monsieur Hemmen, Minister Plenipotentiary, president of the German armistice delegation for economic affairs.

Sir,

I have the honour to inform you of the following by order of my government.

Ever since August 1940 the French government has continuously drawn the attention of the German Government to the extremely grave consequence which must necessarily accrue to French economics and finance from payments towards the costs of the occupation.

The French delegation to the German armistice delegation for economic affairs has time and again made personal and written representations on this point; the question has also been taken up regularly by members of the French government and their representatives every time they had a chance to discuss Franco-German problems with the German authorities; lastly, the French finance minister considered it his duty, in view of the seriousness of the situation, to make a direct appeal to the German finance minister.

The French government declared, as soon as it was informed of the German Government's demands, that it only agreed under duress to make payments out of proportion to the obligations accruing to it out of the armistice agreement; it has protested against the German refusal to differentiate between occupation and operational troops and against the rate of exchange imposed between the franc and the mark, which enabled the German army, by reason of the very low level of French prices, to effect enormous requisitions in the occupied territory. Finally, it has proved again and again that the daily payments of 20 million Reichsmarks exceeded the total requirements of occupation and operational troops, since the sums placed at the disposal of the German authorities were never sent in their entirety, although they were even used otherwise than for the expenses of the German army in France (purchases of goods by the Reich, purchases of stocks and shares, etc.).

These representations remained without effect, and those protests were never accepted. Only one series of discussions was opened in May 1941; it

continued for over three months and had no other result than the reduction of the daily payments to 15 million Reichsmark and an admission by the German government that this amount could very well be reduced a lot more. Even these concessions were made dependent by the Germans on extremely heavy compensations in the form of transfers which the French Government only accepted for a limited period and in order to facilitate an agreement.

More than seven months have gone by and this question is still outstanding. It is now impossible to put off a decision any longer, since the effects on French economics and finance of the payments exacted under occupation costs are now fully visible.

On February 28th, in other words after 20 months of occupation France will have paid 219,200,000,000 francs and another 9,000,000,000 odd under the heading of military accommodation costs. Payments for the year 1942 based on present facts and exclusive of accommodation costs will reach 110,000,000,000, which is considerably more than the total fiscal receipts of the French state.

PART 30

Dir. Ha Pol Nr. Buero RAM with the request for further transmission.

Berlin, 10 March 1942

Notes Concerning occupational cost regulation

With the approval of the Reich minister for Foreign Affairs all the departments took up again the question concerning the occupational costs.

According to the opinion of all the ministries expressed unanimously, negotiations with France concerning the occupational costs have become necessary, because a suspension or diminution of the payments on the part of the French was to be feared on one hand (Bouthillier-letter) and because the OKW on the other hand protested again with determination against the, in July 1941, proposed reduction of the installments to 10 million RM's per day because of its current needs in France.

After careful deliberation of the question, all departments, the Armed Forces included, took the point of view that the reduction to 10 billion RM's should not be conceded to the French as a final settlement on the occasion of new negotiations, but that they should be granted a breathing spell of about 6 months, from 1 April 1942—1 October 1942, which should exclude any further discussion of that question until that date. This is insofar of tactical importance as in that manner the old amount of the installments of 15 to 20 million RM's is being maintained and thereby the important concession of a reduction to 10 million RM as a political concession is left open.

It has been agreed upon, that:

1. A current transfer from the existing credit amounting to 2 million RM per day in merchandize and 1 million RM in securities (stocks) and participation must be insisted upon for the meeting of the so-called external occupation costs.
2. The French Government should see to it that the expenditures for the occupational costs figure in the budget in a lawful manner.
3. A general regulation of the absolutely necessary tax-, wage- and price-reform and other measures for the prevention of the danger of an inflation must be demanded simultaneously.

The decision proved indisputably that we had no real efficacious counter-measures at our disposal in the case of an arbitrary suspension or diminution of the occupational costs by France. To make ourselves paid by sequestering the bank-note reserve of the Bank of France or by sequestering French State- or private property would only be of temporary efficacy, not to mention the political effect of such a measure of force. This would direct itself very soon against the proper German interest, because the present efficacious French cooperation in the execution of great armament orders and the distribution of orders would suffer strongly by it.

Considering these viewpoints, I ask for the authority to instruct the German Armistice delegation for economy in Paris to conduct the negotiations with the French delegation in that sense.

Hereby submitted to the Foreign Minister of the Reich
through the State secretary.

signed: Wiehl

* * * * *

PART 32

Draft/KA

Final Copy

SR/17 Oct 1942

Paris, 16 October 1942

Del. W. No. 347 secret RS

1) To the Foreign office Berlin

(in ink) written in eight copies 3 copies of which to Berlin:

1 FRH v. Mahs

1 Int Ley (2)

1 Ambassador-Paris

1 Capt. Brandt

1 Qva

To the decree of 18 September this year—Ha Pol Frie 839/secret and in connection with the report of 24 August this year—Del.

W. No. 307 secret RS

Subject: Occupation costs in France

2 information copies

I. In addition to the suggestions of the German armistice delegation for economy in its above-mentioned report and for the preparation of the execution of the decision of the HPA of the 7 September 1942 in the question of occupation costs, the following suggestions are made:

If one starts out, that because of political and financial reasons the French government does not find itself ready for the continuous advance of the occupation cost account above the daily installment of 15 million RM for the purpose of retention of a minimum amount of the account, because it will mean an increase of the cost of occupation, then it will depend during the coming negotiation with the French government upon getting its

agreement to the suggestion of the German armistice delegation for economy, to settle the expenditures, unrelated to the occupation, which have been paid thus (or from occupation cost funds, via the clearing, to retain the occupation cost funds for their proper purpose).

1. In connection with this suggestion, it must be attempted to solve two questions:

a. One single transfer of a larger amount via clearing to the occupation cost to equalize at least partly the expenditures, unrelated to occupation costs, already paid in the first half year of 1942 from occupation cost funds;

b. Continuous monthly transfer via clearing of funds from Germany, which are necessary for the settlement of expenditures, unrelated to occupation costs.

At first it will depend upon making it clear to the French that we are forced to make a difference between expenditures for occupational purposes, and expenditures, unrelated to occupation costs. It is yet to be considered in detail, which instances are to be mentioned to the French as examples of expenditures, unrelated to the occupation costs. Without doubt, these will include in the past the funds out of which the compensations were paid for the requisitioned horses, and in the future the expenditures for food and fodder deliveries consigned for Germany. However, there are strong doubts about mentioning the black market purchases here also. At the end, the only thing to do will be to justify the distribution to the French by generally military reasons, which cannot be described in detail. Of course, such a basis for negotiations makes the accomplishment of the new German demands for the transfer via clearing of the continuously necessary funds of 150 million RM monthly more difficult, because the French will recognize that therewith additional purchases of goods outside the contingencies agreed to are to be paid.

Since the costs of the occupation have increased greatly especially since the beginning of the year, there is a definite reason to demand from the French that they also agree for the past to the settlement of at least a part of the expenditures, unrelated to occupation costs, in such a form that an amount as big as possible, is paid in via clearing and transferred by France to the occupation cost account. In that manner, it could be accomplished that the occupation cost account will again be replenished by this amount. In the

first half year of 1942, 280 million RM have been spent for the purchase of horses, and 600 million RM for the purchase of the Raw Material Trading Co. Ltd. (Roges). Of course, it will not be possible to get from France the consent for the transfer of an amount of that size.

In case of the one single payment as well as in case of the future continuous monthly payments for expenditures, unrelated to the occupation costs, the French authorities will neither be informed about the distribution of the accounts, the latter of which are to be paid as lump sum payments at the end of each month, nor about the purpose.

It is a prerequisite for the settlement, that the procurement of funds in Reichsmarks is secured in the past as well as in the future.

* * * * *

3. This type of settlement of the question of occupation costs secures the procurement of French funds in a simple practical form, and fits into the frame of the German-French financial transaction. Naturally, it amounts to a further considerable financial burden on French economy; but it does not appear in the form of an increase of the occupation costs.

The idea to balance this internal account at the final settlement of the occupations at the conclusion of the peace can be combined at the same time with the special internal bookkeeping of these expenditures, unrelated to the occupation costs, separate from other clearing transfers.

II. The fact that in the meeting of the HPA it was not finally given up to increase the amount of francs of the installments by change of the exchange rate, causes the German armistice delegation once more conclusively to take a standpoint to this question.

* * * * *

However, a new evaluation of the Franc by 50% does not lie in the German interest. The present economical situation of France can no longer be compared with the one of 1940, where the interior purchasing power of the Franc was about in the ratio of 1 RM=10 Francs.

* * * * *

The account has dropped since 1 July 1942 until 15 October 1942 from 2,476 billion RM to 1,532 RM.

* * * * *

/s/ Hemmen

PART 33

Received: 28 October 1942 at 9:40 o'clock from: A. A. Bln by: Buehler

Initials

Incoming stamp:

German Armistice Delegation for Economics
Wiesbaden 28 October 1942 no. 353 g. Rs. Enclosures

From Foreign Office, Berlin

To German Armistice-Delegation for Economics

Paris

Citissime!

Telegram (secret code) No. 307 of 27 October.

Matter to be kept under lock C.

1. For your information: Reich Minister for Foreign Affairs has ordered, as there might arise political objections against increased demands from France, more exact explanation how in detail the increase of daily expenditures for occupation has been brought about, in particular, who is responsible for the fact that from the account of occupation costs demands have been satisfied which do not represent actual occupation costs. OKW, Department of Wehrmacht Budget and Administration, declare themselves not to be in a position to explain more fully the use of occupation cost amounts and expenditures unrelated to occupation costs.

II. Therefore I ask you to contact the bookkeeper of occupation cost account, get the necessary documents and vouchers and wire back. What matters is to get a survey of amount and purpose of the issue of green checks to the various authorities entitled to make demands [Bedarfstraeger] since the beginning of this year which should easily appear from the books

of the issuing office. Greatest speed is demanded as these documents are needed for another submission to Reich Foreign Minister.

/s/ Wiehl

decoded: Buehler

Pencil notes:

1. How large is the part administered by v. *Lenz*? How large is the part administered by Berlin? Who gives to Roges. To whom else does Berlin give allotments.
2. How far does Lenz know for that purposes the amounts are used which he allots to branches of the Wehrmacht, etc.
3. What are green checks?

PART 34

OKW

Berlin, 6 November 1942

2 f 32 Beih. 1A WV (XVI)
3145/42 secret

SECRET

To the Foreign Office

Subject: Occupation costs France

Reference:

- a. Note of the DFWF Del. W. 347 g of 16 Oct 42
- b. Meeting of committee for trade policy of 22 Oct. 42 and 30 Oct 42

The Chief Intendant with the military Commander in France has reported that in the past deliveries have been made amounting to a total of 90,000,000 RM monthly which could have been paid by way of the German-French clearing system, because the procured goods were exported from France. The following figures have been obtained from the present monthly average of the year 1942 but they can only serve as a conjecture

because the elimination of those goods which were not procured for the requirements of the units of the German Wehrmacht stationed in France is very difficult on basis of the available documents. The following items are involved:

1. Food supply and forage	ca.	11	mill.	RM
2. Spirits, wine and champagne	”	4	”	”
3. Red wine for troops	”	0.6	”	”
4. Canteen goods of all kinds	”	1	”	”
5. Billeting utensils	”	16	”	”
6. Tools for vehicles	”	3	”	”
7. Procurements of ordnance staffs	”	0.4	”	”
8. Procurements of air force	”	23.5	”	”
9. Procurements of horses	”	15	”	”
10. Purchases by Wehrmacht procurement office	”	4	”	”
11. Procurements by the departments				
North and Pas de Calais	”	5.3	”	”
12. War risk premiums	”	2.5	”	”
13. Navy	”	5	”	”
	ca.	91	”	”

These procurements have been transacted at the prices resulting from the general increase of prices in France. As the procurements were made for service branches outside of France, payment by way of the German-French clearing system is permissible as a matter of principle. Funds of occupation costs have been claimed so far, because the final customer of the goods in most cases is not known at the time of procurement. The payment and final entry into the books of these expenditures is the duty of the procurement office in France.

The amount of 150 mill. RM provided so far for carrying out the flat clearing process [Pauschalclearingverfahren] with France can be reached

only by including the purchases made by the Roges “Raw Material Trading Company Ltd.” [Rohstoffhandelsgesellschaft m k H] on the black market. Objections have been made hereto, because resale of the goods bought on the black market [“S-Markt”] is practicable only with subsidies to reduce the prices granted by the Reich Minister of Finances, and it is irresponsible to incur a commercial debt in the amount of these subsidies given by the Reich Minister of Finance, in order to procure goods which bring a considerably lower price than that expended. Payment of the procurements on the black market should be possible, however, at least to the amounts *actually* obtained by the Roges through resale. The amount of 150 mill. RM would almost be reached if the Roges were required to transfer by way of the German-French clearing the proceeds obtained by resale of the goods with exception of the Reich subsidies for price reduction.

If this settlement should not be practicable carrying out of the flat clearing process could be restricted to the amount of 90 mill. RM per month. In this case, the French Government in accordance with the suggestion of the Reich Minister of Finances of 27 October 1942 should be obliged to provide in form of occupation costs the surplus amount missing from the 150 mill. RM.

The excess consumption of occupation cost funds in 1942, as already thoroughly pointed out in the last meetings of the Committee for Trade Policy, is primarily due to the decrease in purchasing power of the franc, and it is to be assumed that this decrease compared with 1940 is at least one third. In addition, payments to a considerable extent had to be made from the occupation cost funds which were not allotted to meet the demands of those units of the German Wehrmacht stationed in France. On 15 January the B account of occupation costs was approximately 3 *bill.* RM. The reason for the decrease appears from the following compilation:

a for procurement of goods exported from France during the period of 1 Jan.-31 Oct 1942 an estimated 10	900	mill.	RM
× 90 mill. RM			
b to Roges Raw Material Trading Company Ltd. for purchases on black market	700	”	”

c for procurement of foreign bills by the Navy (the purchase of foreign bills with French francs was necessary to buy and repair merchant ships in Spanish harbors. These merchant ships are to serve for supplying Rommel's Panzer army in Africa)	40	"	"
d Reimbursement to Foreign Office (account Syria)	4	"	"
e Allotments in favor of families of French workers working in Germany	1.5	"	"
f Special commissioner Rumania	1.3	"	"
g Costs of building completions for directors of French powder factories	0.2	"	"
	1647	"	"

Therefrom it appears that the decrease of reserves of occupation cost funds amounting to 3000 mill. RM on 15 January 1942 is primarily due to expenditures for purposes unrelated to the occupation. Also in the above compilation are not included the bills issued by the Reichskreditkasse imported into France. Of these probably a not immaterial part has been imported by troop units transferred to France, but to carry out procurement of goods destined for export from France. Consequently, it may be assumed that the requirements of the Wehrmacht units stationed in France up to now could have been approximately satisfied from the installments of 450 mill. RM made available every month by the French Government. It is further pointed out that a considerable part of the above-listed expenditures unrelated to occupation, in particular the expenditures for purchases on the black market (S-Markt) and for French food deliveries not destined for the occupation troops proper, have not been caused by the OKW.

The Chief of the OKW
b. Dr. Kersten
Del. W. 7479

PART 35

Received 4 December 1942
at 16 - - o'clock
from AA Berlin
by Mk.

[Rubber Stamp]
German Armistice Delegation for Economy
Wiesbaden 4 December 1942
No. 399 top secret

Telegram from Foreign Office, Berlin to German Armistice Delegation for
Economy Paris

Citissime

Telegram (Secret, coded, Verf) No. 352 of 4 Dec.

Secret

Reich Minister for Foreign Affairs has ordered the submission of a vote with reasons, *whether the French potential can bear* the increase of occupation cost payments, demanded by us. One must if possible gain clarification before a decision, whether for instance as result of black market purchasing actions, a development would be started, which would lead to Greek conditions.

Request *by return* that *documents and standpoint, necessary* for vote, is wired, if *necessary* in connection with *military commander* and *Embassy*.

/s/ Wiehl.

decoded: Buehler

PART 36

Dir. Ha Pol 379

Berlin, 8 December 1942

Note re French occupation costs

Following the note dated 27 November—Dir. Ha Pol 371

According to instructions, I submit in the annex a note of delegate Hemmen about the financial capacity of the French to pay the increased expenditure rates of the occupation as well as about the dangers threatening French finances arising from the payments of occupation costs and about the methods to meet these dangers. Delegate Hemmen comes to following conclusion.

1. The increased payments of 25 million RM daily (yearly 182 billion francs) are bearable and by no means dangerous for the French finances. The yearly French national income amounted to 432 billion francs for 1942. The daily per capita war expenses are at present in Germany 2.90 RM and thus 6 times as high as in France with 0.40 RM.
2. The danger point for the French finances lies in the fact that the French government has done nothing until now to counteract the threatening inflation which is due to the war expenditures, so that a price increase of 50-60 per cent and a devaluation of the franc of about one third took place.
3. Therefore it is necessary to raise simultaneously with the demand for increased occupation costs the demand for effective French financial, monetary and price regulations and to secure their strictest execution under German guidance and control.

This result on the whole corresponds to the decisions of the HPA which were laid down in my former note. As suggested there, it can be demanded from the French to increase the daily part-payments from 15 to 25 million RM; however, as it has been also suggested there, it is to be insisted that the measures which are needed against further price increase should be carried out without delay and in an absolutely effective way. The investigations which were conducted by the OKW and by the Reich Ministry for Finance come to the same conclusion.

In doing so, it is not sufficient to leave this to the French government alone, but we ourselves have to intercede. The nomination of a special commissioner with similar tasks as in Greece will at present not be necessary and not even feasible in France, for the simple reason that it would be unwise to entirely unburden the French government of its own responsibilities to maintain the order of economics and finances. But it

seems necessary to persuade the French government to accept a collaboration with one or more German advisors in order to introduce and carry out the necessary measures. This function could be assigned to the delegate Hemmen and to his delegation in such a manner that the negotiations they have conducted until now would be changed into a collaboration with the corresponding French governmental agencies. The necessity for this could be presented to the French government with the double motivation that, as an occupying power, our interest is not only in that further inflation should be prevented in France and that we can demand this in our capacity as receiver of the occupation costs on the basis of the armistice contract, but that we also have the same interests on account of the far-reaching interweaving of the French and German industries which was achieved through mutual free negotiations.

Furthermore, the German side has to do its share that nothing should happen in the further course which would enhance the inflationary tendencies in France. I have agreed with State Secretary Koerner that the Foreign Office and the Four Years' Plan should most closely follow further development in this respect and intervene as soon as necessary. State Secretary Koerner has told me that the Reich Marshal announced his decision to curb and, if necessary, to stop the black market action if it should become apparent that it has undesirable consequences in this respect. Also, further liaison will be maintained by the Foreign Office with the OKW which has already taken provisions to reduce the military expenditures to the absolutely necessary minimum in order to observe permanently this point of view.

In this way both on French as well as on German sides everything will be done to prevent the possible dangers of the payment of increased occupation costs.

Herewith submitted via the State Secretary to the Reich Foreign Minister with the request to approve the planned procedure.

signed Wiehl

Copies to:

Buero Reich Foreign Ministry
St. S

U. St. S. Pol
Dir. Ha Pol
Dg. Ha Pol
Delegate Hemmen
Ha Pol Frie
Ha Pol II a

* * * * *

PART 41

12th February 1943

The Head of the Government

[Rubber stamp]

German Armistice Delegation f. Economic Affairs
Wiesbaden, 13 January 1943
No. Del. W. 165
enclosures:

To his Excellency, Monsieur Hemmen, Minister Plenipotentiary German
Armistice Delegation for Economic Affairs

Sir,

On the 15th December 1942 the German government asked me through you to increase the payments towards the costs of occupation by 10 million RM (200 million French francs), which would bring the daily total of payments to 25 million RM, as against 15 millions, or 500 million French francs as against 300 millions.

During our conversation of the same day, the 15th December, at the German Embassy, I pointed out to you:

on one hand that these payments exceeded France's ability to pay; that they would oblige the French government to cover this increase by advances from the Bank of France, and would in consequence risk compromising the French currency irretrievably;

on the other hand that the French payments exceeded the concept of occupation costs and really constituted a French contribution to the common defence of Europe;

that, wishing to collaborate and to render effective aid to the German war-effort under existing circumstances, I accepted these extra payments.

In formulating your request for an increase, you declared that close cooperation should be instituted between our two countries, with the purpose of seeking and applying common measures intended to ensure the stability of the French currency and of French economy. You mentioned, on this subject, that the German government would appoint a plenipotentiary to the French government, whose mission would be to advise the French government.

I declared myself ready to cooperate closely in the financial field as in all others, but I formally rejected the appointment of a financial adviser, as this would undermine the authority of the French government and risk ruining the confidence of investors.

It is in fact necessary to point out that the daily payments which are the object of your request of the 15th December for an increase, do not represent the total of the financial burdens on my country. Besides these payments, France bears the lodging and billeting expenses of the German troops in the occupied zone, as well as the advances made for the functioning of the Franco-German clearing agreement.

I had also pointed out to you, in our conversation of the 15th December, that a demand from the Italian Government could be expected. Since then, although the Franco-Italian Armistice Convention does not put part of the costs of maintenance of the Italian occupation troops on France, the Italian government has requested advances.

Finally, I consider that the daily payments should, from the day that they are raised to 25 million RM, i.e., 500 million French francs, include all obligations falling on France as a result both of the occupation and of the Clearing agreement, and should take into account any advances which may eventually be granted to the Italian government.

It has not been possible to hold any conversations since December; I consider that negotiations on these various points are essential and should be pursued without delay.

While waiting for these negotiations to end up the necessary agreement, I inform you that I accept from now, under the conditions I have just

described, a provisional increase in the daily payments as from January 1943, to 25 million RM, i.e., 500 million French francs.

The French government will immediately take steps to meet, on this basis, the new payments which have been demanded from it, and particularly to make up the difference in the payment made on the 11th January 1943 at the old rate.

I am, sir, etc.

[signature illegible]

* * * * *

H. Hartlieb I propose a note 2/Nov
Received 2 November 1943 at 1630 o'clock from AA Berlin
by Kn.
[Rubber Stamp]
German Armistice Delegation For Economy
Wiesbaden, 2 November 1943
No. 4492
Inclo.

From S Berlin, Foreign Office No. 52 Nov 1617 Etat

To Delegation Hemmen Paris

No. 196=Secret Letter

Reference: *written Decree HA POL FRIE 808 of 28 and 836 of 30 October*
[penciled note: not yet received] and 838 of 2 November.

All departments concerned attach the *greatest importance* to the continued payment of the French occupation cost payment, previously paid to Italy, because of the condition of the occupation cost and of the increased demand, which has been caused by the occupation of the Southern French area, which was up to now reserved for the Italian armed forces. I therefore request, to demand from the French government the transfer of all payments promised to Italy, to the Reich. If the French government should raise any legal objections then I request to point out without going into legal questions that the German Reich has taken over the protection of the areas occupied by Italy up to now. If necessary, certain concessions can be made,

according to the suggestion by the Four Years' Plan, to which the Reich Minister of Finance has also agreed, in the question of the additional payment of 2.8 billion Francs for the previous additional demands of the Italians in the connection with war and occupation damages. The Reich Minister of Finance requests to point out to the French government also that its representatives themselves, during the negotiations of the delegate of the Reich cabinet (Reichsregierung) for economic and Financial questions, always have entered the Italian occupation costs as debit items. Request report on the acceptance of your demarche.

Dumont * * *

No. 6 of 2 November 1943 1630 Rec'd Wako Paris Ka † †

* * * * *

PART 44

Paris 23 June 1944

Minister of Finance
Minister's Office

[rubber stamp]

German Armistice Delegation f. Economic Affairs.

Wiesbaden, 23 June 1944

No. 2126

Enclosures

[rubber stamp]

Minister's office

Ministry of National Economy
and Finance

Sir,

I have the honour to confirm the conclusions reached in our talk of the 21st June.

The payments towards the costs of occupation, which have till now been made every 10 days and in advance, will provisionally, to fit in with present circumstances, be made monthly and in advance, on the 21st of each month.

On the 25th of June next a settlement will be made, which will cover the monthly period from the 21st June to the 20th July, taking into account the payment made on the 21st June. From the 21st July, monthly payments will be made in advance at the rate previously agreed.

These new regulations for the payments were adopted owing to the exceptional circumstances which justify the request you addressed to me in the note of the 19th June. They impose new burdens on the French Treasury at a time when, as you know, the monetary situation fills me with the liveliest apprehension.

I therefore count on the system of making the payments every 10 days being reintroduced as soon as possible.

I am, sir, etc.

[signature illegible]

Monsieur Hemmen Minister Plenipotentiary

President of the German Armistice Delegation for Economic Affairs

* * * * *

PART 46

Konzept/Ss No. 2318

Paris, 11 July 1944

1. To the Foreign Office Berlin Teletype-C7-(only from to in secret cipher)

[In handwriting] "Citissime"

No. 87 of 11 July 1944

after cabled order of 8 July No. 71.

I ask for the consent of the Reich Minister for Foreign Affairs to enter negotiations with the French government on the following basis:

1. The OKW demands an increase of the French occupation cost payments from 25 million RM a day or 750 million RM a month plus 50 million RM for Italian occupational costs to 33.3 million RM a day or 1 billion RM per month and proposed to the Foreign Office to instruct my delegation to enter negotiations with the French Government to that effect. The RFM (Reich Finance Ministry) and the Four Year Plan agreed to that demand.

The expenditures for occupational cost have since the beginning of the year constantly exceeded the income because of the increasing preparations on the Atlantic coast, made necessary by the war. Those excess expenditures were covered by using the remaining credits on the account of occupational costs and by a payment of one month of occupational costs in advance which we demanded a short time ago.

These expenses increased to an even larger extent during the last few months, especially since the beginning of the invasion. While they still amounted to 900 million RM in May, they increased to 950 million RM in June and will reach 1100 millions in July. All reserves which were available up to now will be exhausted by the middle of August at the latest. New means for the conduct of war in France must therefore be procured until then according to the demand of the OKW.

2. The income of the French Government from Tax-Sources, and mainly the raising of money through loans and short term bills of exchange has on the other side decreased considerably since the extensive paralyzation of the economic life, the industries and the transportation system in France. The French Government consequently has been forced for the last few months to use the *advances of money* of the Bank of France at an ever-increasing rate. Those advances increased from *about 10 billions* of F. Frs. to 18 billions of F. Frs. *in May* and 25 *billions* F. Frs. in June. The newly demanded payments will also have to be raised through the use of the bank-note credit, that means, through the printing of bank notes.

The French Government can on the other hand hardly be surprised, considering the actual circumstances, if we approach them with the demand for increased payments.

We know from confidential sources that Laval and Finance Minister Cathala already expect such a demand.

3. Considering, however, the political necessities and the already mentioned difficult financial situation of France, and in appreciation of the fact that the French Government has kept its financial obligations for 4 years without interruption, I propose the following:

1. to designate the new increase of payments which has now become necessary, as *temporary* and to leave open the possibility of our readiness to

reopen negotiations for an eventual re-diminution, as soon as the military situation in France permits.

2. *Not* to designate that new demand as an increase of the occupational costs in the spirit of the Armistice treaty, because that demand, which was explicitly motivated by the OKW, as to cover the increased expenses for our conduct of war in France, could only with difficulty be reconciled with the obligation to pay the “*cost for the maintenance of our occupation troops*”, as based on the Armistice-treaty. I recommend rather to present it *as special contribution of the French Government and the French people* for the repelling of Bolshevism (original version reads: “repelling of the Anglo-Saxon invasion of Europe” but it has been changed in pencil to read as above) and the defense of Europe. Such a formulation lies in the political line of Laval and his repeated declarations. This does not change the fact, that those payments, like the previous increase, will also be made through the account of occupational costs and will thus continue to be treated as such.

3. In order to provide *also an exterior character* to that idea, I propose to negotiate about a single additional effort of *1 billion RM* to be paid in *monthly installments* of 200 million RM each. At the expiration of 4 months a further contribution by France could eventually be negotiated again, according to the then prevailing military situation.

With the consent of the embassy.
signed: Hemmen.

PART 47

Copy as concept/Ss

German Armistice Delegation for Economics

Paris, 31 July 1944

1. Note for the President of the French Delegation to the German Armistice Delegation for Economics, Governor de Boisanger.

Mr. President!

Following a special order of the Reich Cabinet, I have the honor to communicate the following to you:

According to Article 18 of the Armistice treaty the French Government has to defray the expenses for the support of the German occupation troops on French soil.

The daily occupation expenditures for the Wehrmacht in France are at present more than 35 million RM. Since 11 November 1942 the French Government has paid daily installments of 25 million RM to the occupation costs. Due to the deficit thus resulting every month the last reserves from the occupation cost account have been used up in the meantime as you repeatedly had occasion to notice for yourself. By my exchange of notes with Minister Cathala on the future monthly advance payments of occupation costs of 19 and 23 June 1944 the necessarily resulting insolvencies could be overcome, however, the existing deficit could not be removed. I therefore request the French Government now to increase the installments of occupation costs effective on 1 August of this year to 35 million RM daily.

In accordance with the said exchange of notes of 19 and 23 June 1944—No. 2076—the installments are to be paid monthly in advance on the 21st of the preceding month. The additional amount of 200 million RM for the period of 1 to 20 August has therefore become due and is to be paid before 15 August 1944.

I request you, Mr. Governor, to acknowledge receipt of this note and to inform me of the orders given by the French Government in order to carry out the above demand of the Reich Cabinet.

Please accept, Mr. President, the expression of my deepest respect.

s. Hemmen
President

* * * * *

PART 49

By special route via Altkirch

Belfort, 20 August 1944

No. 2739 IV

Teletype

Foreign

Berlin

No. 111 of 20 August 1944

In connection with No. 107 of 11 August.

As I reported on 12 August the 8 billion-rate promised by President Laval for 12 August has finally been paid on time after considerable difficulties had been overcome (compare my report of 16 August). There was an unmistakable tendency to put off this payment until after the approaching bank-holidays to the 16th in the hope that by that time the development of the military situation would prevent the payment (American tanks had already been reported in Chartres).

In addition to the increase of occupation cost payments I negotiated since 7 August upon suggestion of our military agencies with the Governor of the Bank of France, de Boisanger, about transport for safeguarding of the large reserves in bills in Paris (60 billion F. frs.) and Clermont Ferrand (80 billion F. frs.) to eastern France.

Readiness of the Bank of France to do so was undoubtedly present, the existing transport facilities and the requisite military protection however extremely slight. A first transport of 25 billion from Paris to Nancy was scheduled for 12 August; simultaneously also the installment of 8 billion due on the 12th was to be sent off because there would be no other transport opportunity for it. This transport was carried out. For a second transport of 25 billion the military could no more make available any trucks. Railroads are also out. Therefore, the German Bank commissioner tried to transfer 10 billion F. frs. on 2 trucks of the Bank of France in another transport about the completion of which there is no report yet.

Still greater were the difficulties of transport and protection for the transfer of 80 billion reserves in bills from Clermont-Ferrand to Dijon and Lyon, because there direct transport is being obstructed by Maquis and transport therefore had to be directed via Paris.

Ten billion of these did arrive. Further transports are improbable in view of the development in the meantime.

* * * * *

However, on the morning of the following day, 17 August, I again negotiated orally with Minister Cathala and Governor de Boisanger about our demand for increase of occupation costs. Cathala at this opportunity declared as per order of President Laval that the French government now definitely refuses the demanded increase for reasons already stated. I stated that therewith I had to consider our negotiations as definitely frustrated and therefore reserve subsequent decisions to my government. As I had learned in the meantime that the convention in the Bank of France necessary for the installment of 8 billion due on 21 August had not yet been applied for, i.e., that on the due date new difficulties for the payment had to be expected, I expressed the definite expectation of the Reich Cabinet that order to pay the balance will be issued on time by the Ministry of Finances, Cathala thereupon declared that the French Government for a period of more than 4 years always fulfilled its obligations promptly. As long as he functioned as Minister of Finances he always considered it his special duty to fulfill the obligations contracted by the French Government; he would act the same way now in case he should still be in office on the 21 August. By saying so he distinctly alluded to the pending plans for a change of government and the present serious situation of President Laval.

* * * * *

[Note: The original shows numerous corrections in ink. Translation followed the corrected version.]

* * * * *

PART 51

Copy

In the field 7 September 1944

The Military Commander in France
To Distribution

The French government has not yet paid the 2nd September installment of the occupation costs which were due 21 August. For the securing of the French for the armed forces, stationed on French soil, I order the following.

The administrative headquarters [Feldkommandanturen; FK] mentioned in the distribution, will confiscate at once half of the cash amounts of francs at the branch of the Bank of France, located at their official station, and will cause the removal under military guard to the following Reichskreditkassen: Belfort, Colmar, Muehausen, Strassburg, Saargemund, and Saarlautern. According to the situation of end of July, the following cash amounts were with the branches of the Bank of France: Belfort 698 million francs, Besancon 642, Epinal 853, Luneville 93, Nancy 1,411, Nevers 1,016, Saint Die 181, Vesoul 227.

Furthermore, 2 billion francs in thousand-franc notes are in the vault of the Bank of France in Nancy or Epinal, which were brought via transport in the middle of August from Paris to Nancy. Those 2 billion francs are also to be confiscated and to be removed.

/s/ Kitzinger
General of the Air Force

Distribution

	(in pencil)
FK Belfort	698
Besancon	642
Epinal	853
Luneville	93
Nancy	1,411
Nevers	1,016
Saint Die	181
Vesoul	227

6,131 : 2 = 3 billion francs

+ 2 billion francs

5 billion francs were to be confiscated

Order was forwarded by telephone

* * * * *

PART 53

German Armistice Delegation for Economics

Wiesbaden 16 November 1944

No. 2971 Enclosures

Berlin C 111,

7 November 1944

Chief Administration of the Reichskreditkassen

Journal No. 10906/44 Re: Your letter of 12 October 1944 No. II 2846

The French moneys in the amount of frs. 2,931,000,000 deposited with us by the military commander in France have been accounted for by us with the Bank of France, Belfort branch, as per our letter of 25 October 1944, photocopy of which is enclosed.

Chief Administration of the Reichskreditkassen

[initials illegible]

To the
German Armistice
delegation for Economics
(12 b) *Salzburg*
Hotel Osterreichischerhof

TRANSLATION OF DOCUMENT 1742-PS

The Reichmarshal of the Greater German Reich.

V.P. 18727/6/3

Distribution:

Berlin, October 26, 1942
W8 No. 3, Leipziger Street

OKW W.F.St.
OKW Wi Amt,
OKH Gen.St.d.H.
OKW Gen. Qu.
Chef d. Gen.St.d. Luftw.

Reichsfuehrer SS, Ostmin.
Reichsernaehrungsmin.
Chef wi Srab Ost
Gen. Bev. f. d. Arb. Eins.,
Org. Todt,
Reichsarbeitsdienst, Chefgr. Ernaehrung.

Simultaneously with the intensified combating of gang activities, [Bandentaetigkeit] ordered by the Fuehrer, and with the cleaning up of the Hinterland in particular that behind the Army Group Middle, I request that the following aspects are taken into consideration and that the deductions drawn therefrom are put into practice.

1. During combating of the underground and the combing through of the areas contaminated by them, all the available *cattle stock* there, must simultaneously be driven off to safe areas. *Food supplies* are to be evacuated and protected similarly, so that they will no more be accessible to the bands.

2. All masculine and feminine labour which can be considered for some kind of employment, must be seized by force and transported to the plenipotentiary Chief of the Labour Exchange who will employ them in the safe areas of the hinterland or at home. The accommodation of the children in the hinterland camps is to be regulated separately.

3. In the execution of the directives outlined under pars 1 and 2, no regard is to be paid to whether the agricultural or any other production in these areas will suffer or succumb owing to these measures. Since up to now these band infested areas have nothing to show in the way of production anyway, but were directly or indirectly useful to the bands.

I request all authorities concerned, in as far as it is necessary, in mutual agreement, to effect the requisites within their spheres of competence, in order to act according to the directives outlined by me.

About the detailed delimitation of areas an Agreement must be reached between the various head groups of agriculture of the Economy Offices [Wirtschaftsdienststellen].

(signed) Goering
attested:

Schwimpe
Registrar of the Ministry.

PARTIAL TRANSLATION OF DOCUMENT 1743-PS

[Page 1] Economic Operations Staff East

TOP SECRET

Note: Up to mobilization day these instructions are to be treated as “Top secret”, as of mobilization day open for “Restricted”.

*Guiding Principles for the Economic operations in the newly occupied
Eastern territories*

(Green portfolio)

Section I Assignments and organization of the Economy

Berlin, June 1941 Printed at the Armed Forces High Command

Introductory remark. [page 3]

The “green portfolio”, Section I, serves the military leadership and the Economic offices for orientation in the Economic assignments in the Eastern territories to be newly occupied. It contains instructions concerning the supplying of the troops from that land and provides the guiding principles for the troops to assist the Economy.

The instructions and guiding principles contained in the “green portfolio” correspond to the military orders issued by the armed forces high command and the branches of the armed forces.

The Major Economic Assignments

The following executions are first of all intended for orientation during the course of operations. But they contain simultaneously the guiding principles, which serve for the duration of the occupation as a fundamental principle. The Economic arrangements necessary in the further progress of the occupation will be released as soon as the great political aim is publicized, which will be determined in connection with the necessary improvement of the German war Economy.

I. In accordance with the commands given by the Fuehrer, all measures are to be taken which are necessary, to bring about the immediate and highest possible exploitation of the occupied territories in favor of Germany. On the contrary all measures are to be refrained or to be held back that could be harmful to this goal.

II. The Exploitation of the territories to be newly occupied must be executed first of all in the realm of food and mineral oil economy. To gain for Germany as much food stuff and mineral oil as possible is the main goal of this action. Aside of that order raw materials are to be transported from the occupied territories for the German War Economy, insofar as it is technically possible and with a view towards the production to be maintained outside. As far as kind and amount of the factory production to be maintained the occupied territory, to be reconstructed or newly ordered is concerned, this likewise is also in the very first line to be decided according to the needs, provided by the exploitation of the agriculture and the mineral oil Economy for the German War Economy.

For the Economic leadership in the occupied territories the main points are to be clearly outlined in accordance with this. This is valid with regards to the main aim as well as for the individual assignments and those that serve to aid their execution. From that it can be further concluded, that these assignments, that cannot agree with the given basic direction toward the goal, respectively those that may make their retention difficult, must be left out of consideration, no matter if their individual compilation does appear desirable. The conception would be totally off the track, if it would come to the point to uniformly pursue the idea in the occupied territories, that it can be directly restored to order and reconstructed with the greatest expediency. The treatment of the individual districts of the country will have to be on the contrary, entirely varied. Only those territories must be economically promoted and urgently kept in order in which considerable food and mineral oils can be rendered accessible for us. In other sections of the country, which cannot feed themselves—therefore in big sections of north and middle Russia—the economic operations must be limited to the available supplies.

Which mobilization factories are to be maintained or reconstructed, is reserved for later decision.

III. The individual fields consist of the following [Page 4]:

a. Food and agriculture:

1. The main assignment to be accomplished as soon as possible, is the uninterrupted supply of the German troops, in order thereby to relieve the supply situation in Europe and to ease the burden on the means of transport. The entire need of oats for the armed forces is to be taken care of from middle Russia, the main section for the growth of oats, insofar as it cannot be obtained from other occupied territories. In South-Russia it is to be achieved to feed barley and corn instead of oats.

2. The main weight in procuring of food stuff for the domestic economy has to be placed on grain and oil fruits. The surplus of the crop that can be obtained and stocks in the southern territories are to be secured by all means, the proper handling of the harvest is to be watched, the removal into agricultural deficient Middle and North Russia has to be stopped ruthlessly, insofar as exceptions are not ordered or made necessary in order to feed the troops.

b. The main weight as far as industrial raw materials are concerned, is to be placed on mineral oil. Under these measures, which do not serve the food management, all tasks connected with the production and shipment of mineral oil, will have first priority, by all means. For the execution of the decrees in the mineral oil field, especially to be issued for the Caucasus, the Continental Oil Company will be appointed. * * *

c. The industries which provide for the functioning in the German interest, of agricultural production in surplus territories, the production of mineral oil and raw material production, are to be put into operation immediately.

d. In order to tackle the transportation problem in the German interest, particular attention is to be paid to

1. Street buildings in South territories and the thoroughfares,
2. The extension of the railroad tracks, especially the building of two track lines in the most important traffic districts,
3. The improvement of canals, unloading facilities in the inland waterways, especially in the North and South traffic,
4. Rebuilding of harbor facilities. * * *

Organisation of the Economy [Page 5]

A. General.

The Reichsmarschall has formed the “Wirtschaftsfuehrungsstab Ost” which is under his immediate jurisdiction and which will be run by Staatssekretaer Koerner, as his representative, for the uniform management of the Economy administration in the zone of operations and in administration districts, to be established later. For the representation of the military interests, for the preparation and for the duration of the military operations, the Chief of the War Economy and Armament Office, General of the Infantry Thomas, has the authority which he exercises as a Member of the Wirtschaftsfuehrungsstabes Ost.

The directives of the Reichsmarschall include all phases of the Economy incl. food and agriculture. They will be carried out by the subordinate economy agencies (see B).

The orders of the “Wirtschaftsfuehrungsstabes Ost” will be transmitted by the Chief of the Wi Rue office to the advanced “Wirtschaftsstab Ost” in the occupied territory which will be located during the operations in the vicinity of the OKH/Gen Qu.

B. Organization of the Economy in the zone of operations.

The subordinate Economy agencies of the “Wirtschaftsstab Ost” are, as far as they are active in the zone of operation, assigned to the Command agencies of the Army and militarily under their jurisdiction, namely:

a. In the rear area of the army:

One each economy inspection team with the Commanders of the army rear area,

One each of several economy Commands with the security divisions,

One group IV Wi each with the field administration headquarters.

b. in the Army zone:

One each group IV Wi [V.O. Wi Rue Office] with the AOK's [Army high commands]

One each group IV Wi with the field administration headquarters, who have advanced into the Army zone and who are under the jurisdiction of the AOK's, also in case of need, economy commands advanced into the Army zone militarily under the jurisdiction of the AOK's. * * *

C. Organization of the Economy for the political Administration districts.

Regulation will follow later by the Reichsmarschall.

The execution of the economic detailed tasks [Page 9].

1. Within the food economy, the procurement of grain and oil containing plants is the foremost task. All measures for this will be taken with a view of long duration (bringing in of the harvest, safe storage, preparation and cultivation of the fields for autumn, to make available manpower and machines, the seed, fertilizer, throttling of the consumption of the domestic population. As much use as possible, is to be made of the setting up of simple community kitchens.)

The supplying of the troops from the land [Page 14].

As far as the troops have to be supplied from the land, attention is called to the following:

I. Food, Clothes, housing needs and consumer goods.

* * * * *

2. The food, housing, consumer goods and Clothes found in the zone of combat and in the rear areas, are in the first place at the disposal of IVa in order to satisfy the immediate needs of the troops (notice par. 3).

3. In order to facilitate the possibility of transfer of food stocks at a later date, the required supplies for the immediate needs of the troops, are if possible not to be taken from stocks which are in a general favorable locality for the shipment to Germany. (At railroad stations and waterways, in harbor, especially baltic harbor, the border states, in the vicinity of the German borders.)

4. All food, housing, consumer goods and Clothes stocks which have not been taken over in the zone of combat and the Army rear areas by IVa and its agencies for the immediate use of the troops, will be put at the disposal

of IV Wi, who thereby will be responsible for the care and Transfer to the economy agencies next in line.

5. In the Army rear area the economy agencies who are taking over the preliminary work done by IV Wi will be charged with reconnaissance, security and care of the food, housing, consumer goods and Clothes stocks. The assignment to the troops will be made through the Wi agencies to the permanent local food supply agencies, who will determine the requirements of all troops of the different branches and report them to the local competent economy agencies. These will regulate the supply demands. * *

II. Fuel and tires.

a. The troops will resort to the stocks found by them.

Only in an emergency can be used:

- a. stocks of the gas, water, electricity and mine facilities
- b. gasoline and lubricants for farm and vital Industries
- c. stocks of the motor tractor stations.

* * * * *

War-Booty, Services for pay, Army booty, prize [Page 19].

I. General.

1. Although according to the Hague Convention the entire movable property of the enemy country can be taken away without compensation, however for the time being only the movable property of the enemy army shall be treated as booty. Other movable property of the state may however be used by the troops in case of need, it is however to be treated as private property and to be paid for in case of use or acquisition.

2. The payment is to be made in case of values up to 1000 RM in Reichskassennotes, amounts exceeding 1000 RM by issuance of receipts.

Receipts may be issued by every agency in the rank of battalion or higher, unless exceptions have to be made due to a situation of the fighting or in case different directives have not been given by the OKH.

3. When taking over property for which there is no owner a receipt will be given to the Senior member of the community or a report will be made to the field administration headquarters.

4. With the establishment of the Field administration headquarters [Feldkommandanturen] and the permanent local economy agencies, the latter will be charged, in connection with the military agencies, with the procurement and making available the requirements of the troops from the Economy. In urgent cases the troops may even then secure their immediate needs independently. If possible, the local competent Field administration headquarters will be notified in such a case.

Raw materials, Management of goods [Page 23].

An exact regulated production and distribution of goods by interpolation of special merchandise pools will be out of question as far as the new territories to be occupied are concerned, with the exception perhaps of the Baltic states.

* * * * *

C. All raw materials, processed and half processed goods, useful to us will be withdrawn from the market. This will be initiated by IV Wi's and the economy agencies through suitable measures such as appeals and orders, through decrees for confiscation or through military guard or both.

Money and Credit system [Page 24].

* * * * *

2. Gold reserves and foreign currency are to be secured. Further action will be taken by the Economy command upon notification.

* * * * *

5. Reichskreditkassen will be established as soon as possible. They are personally and in fact under the jurisdiction of the Chief administration of the Reichskreditkassen in Berlin. The Reichskreditkassen are charged with the regulation of the Money and Credit system. They will discharge their duties with Reichskreditkassen notes which will be issued in 50, 20, 5, 2, 1 and 0.50 RM denominations. The Reichskreditkassen notes are legal tender along with the currency of the country. The ratio of the Reichsmark in

relation to the currency of the Country will be fixed through decrees by the authorities in charge.

The Reichskreditkassen notes serve as well the purpose to keep the economy of the occupied country intact, as far as this is important for us in the interest of peace and order, as well as to satisfy and balance the money requirements of the German troops. The first will be achieved by granting credits to industrial and other enterprises also to financial institutions or also to state and district administrations, if the granting of credits is in the German interest (compare 3).

The financial institutions of the occupied countries are also to be induced to open accounts with the Reichskreditkassen.

The Army has been ordered to pay its troops, after they cross the border, only with Reichskreditkassen notes or with the currency of the country and to use German change only in the smallest denominations of 10, 5, 2 and 1 Reichspfennig if the foreign change is not available. The money in the hands of the soldiers at the time of the invasion, in the amount of more than 0.50 RM, has to be exchanged into Reichskreditkassen notes at the nearest Reichskreditkasse by the Finance office of the troops.

6. The Army has the order to see to it that the soldiers on their part pay in the occupied territory only with Reichskreditkassen notes or in the currency of the foreign country at the established rate of exchange. A decree will be issued in due time to the effect that in the occupied territory along with the currency of the foreign country, the Reichsmark in the form of Reichskreditkassen notes will also be a legal tender and what the rate of exchange will be.

7. The maintenance of the rate of exchange of the Reichskreditkassen notes is especially important. The way of their acceptance by the population is therefore carefully to be observed. Should any difficulties arise of the kind that the population refuses to accept Reichskreditkassen notes at all or only to another than the fixed rate of exchange, so if necessary it must be counteracted by punishment. The Economy agencies will report about such incidents.

To the maintenance of the rate of exchange pertains also that in case of subscription to forced loans and also when selling merchandise to the

population not only the currency of the foreign country is demanded, but also Reichskreditkassen notes will be accepted at the rate of exchange by us.

* * * * *

9. The Reichskreditkassen will work in closest cooperation with the Economy agencies. They have, notwithstanding the fact that they are under the jurisdiction of the Chief administration of the Reichskreditkassen, to bring in line their measures with the intentions of the Economy inspector with regard to the Money and Credit system.

Foreign Trade and Exchange [Page 25].

1. General.

With regard to the question of Trade and Exchange between the occupied territories and third countries is to be taken into account, that all surplus of goods are in principle destined for German consumption. So far as removal is not possible, the goods will be, for the time being, stocked and secured, and be held ready for later removal. Therefore trade between the occupied territories and third countries is for the time being, fundamentally not possible. Directives for carrying on trade at a later date, with third countries in the interest of Germany, will be given as soon as the situation is clearer.

* * * * *

Price Control [Page 26].

A decree or announcement of a most simple character will prohibit the raise of prices and other compensations (also wages) and make it a punishable offense. This is only a temporary solution. A change of prices which are subject to political conditions will have to be considered.

For agricultural products, the following rates are fixed, which may not be exceeded in the occupied territories.

The IV Wi and the economy agencies will take care of their publication. Food purchases for the troops as well are to be made at the established prices only.

1. Field products, prices for 1 dz:

Wheat	140	Ruble
Rye	120	”
100% Grain	145	”
Barley	110	”
Oats	120	”
Corn	100	”
Peas	160	”
Millet	100	”
Buckwheat	130	”
Potatoes	50	”
Hay	30	”
Straw	15	”

2. Processed Products, prices for 1 dz:

80% Wheat flour	200	Ruble
85% Rye flour	155	”
Sugar	400	”

3. Animals (living)

Cattle (for each dz.)	500	Ruble
Hogs (for each dz.)	600	”
Calves (for each dz.)	250	”
Sheep (for each dz.)	200	”

4. Dairy products

Milk (each 1.)	1	Ruble
Butter (each kg.)	44	”

PARTIAL TRANSLATION OF DOCUMENT 1746-PS

Conference between Field Marshal List and Representatives of the
Bulgarian General Staff

(Agreement between Germany, Bulgaria and Rumania for attacking Greece
and eventually Turkey). dated February 8, 1941

[Page 1, Line 5-14:]

Minutes of questions discussed between the representatives of the Royal Bulgarian General Staff and the German Supreme Command—General Field Marshal List—in connection with the possible movement of German troops through Bulgaria and their commitment against Greece and possibly against Turkey, if she should involve herself in the war.

[Page 1, Line 19—Page 2, Line 24:]

1. During the operation of the German troops against Greece or Turkey, the Bulgarian army will not be committed in an offensive way against the two mentioned countries, according to an agreement between the two governments. It will be reinforced, in order to safeguard the new order on the Balkan.

2. Up to the arrival of German troops on the Bulgarian South and Southeast border, the Bulgarian army will alone defend its territory with its own troops for the beginning, with about the following deployment:

at least 6 Bulgarian divisions on the Bulgarian-Turkish border

sufficient forces for the protection of the border, on the Greek border,

reinforced border protection on the Yugoslavian border

Later on, the Bulgarian army is also responsible for adequate protection along those fronts where German forces will not become offensive.

The mobilization and the deployment of these forces may start immediately in a camouflaged way. However, in order that these measures will have the desired effect, the deliveries to Bulgaria must be fulfilled immediately by Germany (enclosure I).

The German supreme command will do everything in its power, so that its troops will appear on the Bulgarian-Turkish and Bulgarian-Greek border in sufficient numbers in the shortest time.

For this purpose, from the beginning a sufficient amount of German forces—mainly armored and motorized divisions—will be moved in the shortest time behind the Bulgarian border protection troops. This move will start with the deployment of the two armored divisions which already are in the Dobrudscha as well as with the armored and motorized divisions which are in Walachia. The other forces provided for the operations, that means more infantry and armored divisions, will follow behind, depending on weather, road, and bridge situation.

[Page 3, Line 3-12:]

3. The Bulgarian and the German general staff will take all measures in order to camouflage the preparation of the operations and to assure in this way the most favorable conditions for the execution of the German operations as planned.

The representatives of the two general staffs consider it to be suitable to inform their governments that it will be good to take the necessity of secrecy and surprise into consideration, when the three-power treaty is signed by Bulgaria in order to assure the success of the military operations.

[Page 3, Line 13—Page 4, Line 27:]

4. In order to protect Bulgaria from any possible enemy before and after the beginning of the operations, the German supreme command will take the following measures:

a. *Against Turkey:* From the beginning, sufficient German forces, mainly armored divisions, will be thrown against the Turkish border behind the Bulgarian defensive front. At the same time, the German air force will stand ready for active defense.

If Turkey should attack Bulgaria, while the German operations against Greece are being carried out, the Bulgarian army will defend itself, supported by sufficient German forces. The German supreme command will take all necessary measures immediately, in order to beat and throw back the Turkish army with German troops, so that an extended defense by Bulgarian troops will be avoided on the Turkish front.

The same also goes for Greece, if the Greeks should attack Bulgaria during the German operations against Turkey.

b. *Against Greece:* Motorized advance units shall thrust immediately against the Greek-Bulgarian border as fast as possible, in order to stand there as support for the protection of the Bulgarian border.

c. *Against Yugoslavia:* If Yugoslavia should attack, the columns of the German infantry divisions would take over the protection against the West, at first, which are deployed on the right flank to the rear. Other German forces would get at Yugoslavia from another side, too. It is assumed in this case, that a reinforced Bulgarian border protection exists also along the Bulgarian-Yugoslav border.

d. *Against Russia:* Sufficient German forces are ready on the German Eastern border, to be used for any purpose. Moreover, German instructor troops are available in Rumania, in addition to the Rumanian army.

e. *Against landing attempts:* The German troops are in a position to take a hand at any time in the defense against a possible landing on the Black Sea coast, in cooperation with the air force. Besides, the supreme command of the army List will make its suggestions at the competent German navy office, in order to strengthen the protection of the two ports Varna and Burgas, according to the already known wishes of the Bulgarian supreme command.

The Bulgarian army will also do its part to guarantee the protection of the two ports by providing forces there.

[Page 4, Line 32—Page 5, Line 27:]

6. The supply of the German troops on their march through Bulgaria and during their operations against Greece or Turkey will be provided from their own German stocks. However, in order to relieve the railroad and transportation system, especially with regard to feeding facilities, assistance from the Bulgarian side is necessary. This assistance will only be within the limits of the so-called “Contingents” [Kontingent]. The details about the installation of the necessary dumps, about purchases, payment of work, etc., as well as export and import control, will be regulated by a special commission.

[Remark in pencil] (L IV Is taken care of)

7. It will be necessary to use the Bulgarian national installations (railroad, postal system, etc.), for the purposes of the German armed forces, as far as it will be bearable for the Bulgarian economy. The details about it will be regulated by the special commissions which are already in Sofia. It is presumed that especially the railroad net and the rolling stock will be placed at the disposal of the German army for its requirements. For that purpose it is necessary that the Bulgarian railroad receives an extra allowance of about 100 locomotives, 1500 freight cars and 30 km rail material, in order to satisfy all requirements of the Bulgarian army, the Bulgarian economy and the German army. Operation and management of the Bulgarian national railroad, postal and telegraphic service are to remain in Bulgarian hands. Transportation required by the German army will be organized by the Bulgarian general staff. The details about the service of the railroads, postal and telegraphic systems will be discussed and regulated by a special commission.

[Page 6, Line 6-11:]

10. The activity of the counter intelligence service [Abwehr Dienst] of the German and Bulgarian general staffs is already regulated by a special commission.

11. The question of command function in Bulgaria could not yet be finally settled. The German high command will come back to this question in the near future.

[Page 6, Line 15-26:]

13. Questions which might come up later will be taken care of by further conferences.

14. The conditions laid down above, as far as political questions are concerned, will be in effect only after the approval by the German supreme command of the armed forces. Nevertheless, the preparations for the execution of the operations will be made with all energy, regardless of the above fact.

In order to enable the Bulgarians to carry out in time the last preparations for the deployment, it is necessary that the Bulgarian general staff should be informed of the crossing of the border by the Germans 10 days ahead of time.

Finis

PART II Conference of Hitler and the German High Command *on the situation in Yugoslavia. Dated March 27, 1941*

[Page 1—Page 4, Line 13:]

W F St

Berlin, March 27, 1941

Top Secret

1st copy W F St

2nd copy L

3rd copy W Kr G

Only for general officers

To be transmitted by officers only.

Discussion about the situation in Yugoslavia

[stamp] [several pencil
marks and initials]

OKW/W F St Dept L (I M I) 29 March 1941

No 44391/41 top secret

Present:

Fuehrer

Reich Marshal

Chief OKW

Chief W F St

Major General Bodenschatz

Colonel Schmundt

Commander von Puttkamer

Lieutenant-Colonel Scherff

Major von Below

Major Christian

Later on the following persons were added:

Supreme commander of the army (Ob.d.H.)

Chief of the General staff of the army (Chef Gen St d H)

Colonel Hensinger
Lieutenant-Colonel Sieverth
Reich Foreign Minister
Ambassador Hewel
Brigadier General (Gen.Maj.) von Waldan
Colonel Schmidt
Brigadier General (Gen.Maj.) von Rintelen.

The Fuehrer describes Yugoslavia's situation after the coup d'etat. Statement that Yugoslavia was an uncertain factor in regard to the coming Marita-action and even more in regard to the Barbarossa-undertaking later on. Serbs and Slovenes were never pro-German. These governments never sit securely in the saddle, because of the nationality problem and the officers caste (Kamarilla), which is always inclined to start a coup d'etat. In the present time, the country had only one strong man, namely Stojodinowitsch, and Regent Prince Paul had him thrown over, to his own disadvantage.

The present moment is for political and military reasons favorable for us to ascertain the actual situation in the country and the country's attitude toward us, for if the overthrow of the government would have happened during the Barbarossa-action, the consequences for us probably would have been considerably more serious.

The Fuehrer is determined, without waiting for possible loyalty declarations of the new government, to make all preparations in order to destroy Yugoslavia militarily and as a national unit. No diplomatic inquiries will be made nor ultimatums presented. Assurances of the Yugoslav government which cannot be trusted any how in the future will be taken note of. The attack will start as soon as the means and troops suitable for it are ready.

It is important that actions will be taken as fast as possible. An attempt will be made to let the bordering states participate in a suitable way. An actual military support against Yugoslavia is to be requested of Italy, Hungary, and in certain respects of Bulgaria too. Rumania's main task is the protection against Russia. The Hungarian and the Bulgarian ambassador have already been notified. During the day, a message will still be addressed to the Duce.

Politically, it is especially important that the blow against Yugoslavia is carried out with unmerciful harshness and that the military destruction is

done in a lightning like undertaking. In this way, Turkey would become sufficiently frightened and the campaign against Greece later on would be influenced in a favorable way. It can be assumed that the Croats will come to our side when we attack. A corresponding political treatment (autonomy later on) will be assured to them. The war against Yugoslavia should be very popular in Italy, Hungary, and Bulgaria, as territorial acquisitions are to be promised to these states; the Adria coast for Italy, the Banat for Hungary, and Macedonia for Bulgaria.

This plan assumes that we speed up the schedule of all preparations and use such strong forces that the Yugoslav collapse will take place within the shortest time.

In this connection, the beginning of the Barbarossa-operation will have to be postponed up to 4 weeks.

The military operations are to be carried out in the following way:

1. Begin the operation Marita as early as possible with the limited aim to capture Greek-Thracia and the basin of Saoloniki and to win the high terrain of Edessa; for that purpose march [Ausholen] across Yugoslav territory.
2. Push from neighborhood South of Sofia in direction Skoplje in order to relieve the flank of the Italian front in Albania.
3. Push with stronger forces from the area around Sofia in direction towards Nis, then towards Belgrad, in cooperation with
4. Stronger German forces penetrating from the area around Graz and Klagenfurt in direction South-East with the aim to destroy the Yugoslav army.

[Page 5, Line 3-9:]

5. The main task of the airforce is to start as early as possible with the destruction of the Yugoslavian airforce ground installations and to destroy the capital Belgrade in attacks by waves; besides the air force has to support the advance of the army.

For this purpose, it is possible to make use of the Hungarian ground installations.

[Page 6, Line 7-12]

The Fuehrer orders the immediate starting of all preparations. He expects the plans of the different parts of the armed forces during the evening of March 27th. General von Pintelen is ordered to receive the message and verbal orders from the Fuehrer during the night of March 27.

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* * * * *

PART V

Subject: Tentative plan for the coordination of the German and Italian operations against Yugoslavia. Dated: March 28, 1941

The Chief of the operational staff of
the Armed Forces of the Supreme Command
of the Armed Forces.

Berlin, March 28, 1941

[in pencil] Handed over to Gen. von Rintelen on March 28, 1941 at 4 P. M.

Only for general officers

To be transmitted by officers only

KW/W F St [Stamp] [several pencil marks]

Tentative Plan for the coordination of the German and Italian operations
against Yugoslavia.

1. In the event that the political development requires an armed intervention against Yugoslavia, it is the German intention to attack Yugoslavia in a concentric way as soon as possible, to destroy her armed forces, and to dissolve her national territory.

2. For this purpose, the following units are being formed:

a. One assault group South of Sofia for the advance in direction Skoplje and South, in order to occupy the Southern part of Yugoslavia as basis for the combined attack against Greece and to remove the danger for the rear of the Italian front in Albania.

b. One assault group which will be deployed around Graz and under certain circumstances also in the Southwest Hungary, in order to penetrate into Yugoslavia later in the direction Belgrad and Westward.

c. Probably an Hungarian attack group reinforced by German forces which will be committed in the general direction towards the Danube on both sides of Belgrad.

3. If the weather situation permits, the operation against Greece will start on April 2nd or 3rd. In this operation, the right flank will move across Yugoslavian territory. In the beginning, its aim will be limited to the occupation of the basis of Saloniki and the high terrain of Edessa.

4. Therefore, the following tasks result for the participation of the Italian armed forces:

a. Flank protection for the German attack group Graz by advancing towards the line Split-Yajele, with forces as strong as possible.

b. Shifting to the defense on the Greek-Albanian front and deployment of an attack group, in order to join with the German forces committed around Skoplje and South.

c. Elimination of the Yugoslav naval forces.

d. Later on, resumption of the attacks against the Greek front in Albania.

For the inner-political integration of the Yugoslav national territory it is especially desirable to favor the Croat independence movements in every respect and to treat the Croats as friends of the Axis. It will therefore be opportune to avoid any air attacks against Croat territory, as long as it is not a question of commitment against enemy troops fighting there.

5. The following chronological schedule of the German operations may be expected:

a. Attack against Greece: April 2nd-3rd

b. Attack from the area South of Sofia on April 3rd or April 4th

c. Attack from the area around Graz and East of it: April 12th.

[illegible initial]

PARTIAL TRANSLATION OF DOCUMENT 1751-PS

SECRET

SS Main Office Economy Administration [SS Wirtschafts-Verwaltungs
Hauptamt]

Department Chief [Amtsgruppenchef]

Concentration Camps

Dramenburg, 12 May 1944

DI/Az,:14 h 2/Na/s-
Geheim Tgb-Nr. 605/44

Re: assignment of prisoners for experimental purposes

To the Camp Commanders of Concentration camps Da, Sah, Bu, Mau, Flo,
Neu, Au.I III, br-Ro, Natz, Stu, Rav, Herz, Aufenth, Camp Bergen,
Belsen

Group leader D Riga, one copy each for KL Riga, Kauen, Vaivara

SS Wirtschaftler Ost, Krakau with one copy each for KL Lublin, Warschau
and Plaszow.

There is cause to call attention to the fact that in every case permission for
assignment has to be requested here *before* assignment of prisoners is made
for experimental purposes.

To be included in this request are number, kind of custody, and in case of
aryan prisoners, exact personal data, file number in the Main Reich's
Security Office and reason for detainment in the concentration camp.

Herewith, I explicitly forbid assignment of prisoners for experimental
purposes without permission.

[signature illegible] (Waffen)
SS Lt Gen and Lt Gen of the SS

TRANSLATION OF DOCUMENT 1752-PS

SECRET

Preparations already made for the International Congress

Reichsleader Alfred Rosenberg received the order from the Fuehrer to stage
an anti-Jewish congress. The date for this congress was fixed for 11.7. after
a discussion, and after the corresponding preparations had been made.

The following preparations for the congress have been undertaken:

1. In Germany.

2. abroad.

1. *Preparations in Germany.*

a. The financing of the congress has been taken on by the Reich Treasury of Chief, Schwarz. Further, after the Fuehrer had decided on Cracow as the site of the congress, Reich Minister and General Governor Frank has taken over all the costs that arise within his General Government.

b. *The site of the meeting.*

All negotiations concerning billeting, feeding and welfare of the guests, the lecture rooms etc. have been readily settled with the offices of the General governor. (Instead of Cracow, a place that is safe from air raids, for instance Zakopane, can be selected at any time.)

c. The program of lectures has been discussed with the appropriate offices,

1. Foreign Office

2. Propaganda Ministry

3. Head Office for internal security

and has met with general approval. The Reich Foreign Minister as well as Reich Minister Dr. Goebbels have given their assent to the program.

d. German speakers and lecturers have been visualized, among others three German Ministers. The promise of these three gentlemen to attend seems certain. Some lectures are already on hand.

The final preparations, those for the cultural extra items on the programme, have been taken in hand. (See the letter from Reichsleader Rosenberg to Reichsleader Bormann concerning the appearance of the Berlin Philharmonic Orchestra, with Furtwaengler as conductor.)

Even the formation of international organisations for investigating and combatting Jewry, which have been provided for in connection with the congress, have been brought about, and scientific presidents of the organisations have been earmarked. Some individual personalities have already been approached. Amongst others we already have the promise of Geheimrat Professor Dr. Eugen Fischer to be president of the European organisation for the “racial-biological questions of Jewry”.

e. The following have been entered as honorary members:

Reich Foreign Minister Joachim von Ribbentrop

Reich Minister of the Interior and Reichsleader of the SS
Heinrich Himmler

Reich Minister Dr. Goebbels

Reich Minister and Governor Dr. Frank

2. Preparations abroad

The Foreign Office has accepted the task of contacting the prominent European people, with the exception of a few of the occupied territories in Europe, via its representatives abroad.

The German representatives abroad have received several official instructions, according to which they are

- a. to propose delegates to be invited,
- b. nominate lecturers,
- c. approach the representatives of governments with a view to their participating at the congress.

In the course of these instructions being carried out, the following have promised their participation, or membership of the congress-committee and membership of the honorary committee:

Italy: Minister for National Enlightenment Mezzasoma (honorary committee)

The former Minister of State Preziosi (congress-committee and congress lecturer)

France: Minister for Education Abel Bonnard (Honorary committee)

Secretary of State Paul Marion (congress-committee)

Hungary: Minister for the Interior von Jarossh (honorary committee and congress lecturer)

Holland: The leader of the NSB, Mussert (Personally invited by Reichsleader Rosenberg during the latter's stay in Holland)

Arabia: The Grand Mufti of Jerusalem (honorary committee and congress lecturer)

Iraq: Prime Minister Gailani (honorary committee)

Norway: At the present moment a representative of Reichsleader Rosenberg has arrived here, in order personally to convey an invitation to Prime Minister Quisling to attend the congress.

Contacts have also been established with countless other countries. For the time being the promises to attend of the prominent representatives are not yet at hand. On the other hand promises have been received from delegates from Sweden, Roumania, Slovakia and illegal delegates from Switzerland, Spain and Portugal. Further the office of General in the SS Berger has undertaken to invite renowned leaders of the Germanic volunteers in the SS to take part in the congress. Amongst others, Britons and Americans are visualised in this connection, who are also willing to speak.

The occupied eastern territory is included via the Ministry for the East. A number of promises to attend have been received from renowned personalities in this territory. Lectures have already been received from foreign speakers, amongst others from the former Minister of State Preziosi.

3. Reason for the importance of the Congress at the present time. The reports from outside Germany and the anti-German allied propaganda try to make believe beyond all doubt that the whole war is being kindled by the other side more and more as a crusade, because the German nation plans to destroy the "Jewish People".

The Soviet Union: We refer to the pro-semitic Molotov-congress in Moscow.

U.S.A.: We refer to permanent session of the Jewish Congress.

The *last new* beginning 6. 5. 1944.

England: We refer to the English failure to pay attention to their own White Paper regarding Palestine problem.

At the same time, we point out the slowly rising anti-Semitic feeling in the countries of our opponents. It seems necessary that the feeling caused by enemy propaganda that National Socialism is retreating on all fronts, be refuted by this great anti-Jewish Congress.

The invasion army is not fighting against the barbarian Germany of annihilation of Jews but it is fighting for world Jewry!

What kind of propaganda is being duly turned out on the German side?

To give up this plan or to postpone this International Congress *to an indefinite date*, after half of Europe has already been won for this plan would support or strengthen the propaganda conducted against us.

It must be borne in mind that not a German authority but an international assembly is responsible for the Congress and issues invitations to it.

The preparations for the Congress have so far progressed with the greatest possibilities of disguise.

An arrangement, which has been made on general lines, mentions only an International historic and scientific congress taking place in a Town in the East of the Reich.

Berlin, 15th June 1944.

Hg/We

/s/ Hans Hagemeyer,
Head of the Department.

PARTIAL TRANSLATION OF DOCUMENT 1757-PS

REPORT OF GOERING'S COMMISSION

for the investigation of the Aryanisations carried out in the Gau of Franconia between 9.11.38 and 9.2.39 and the irregularities connected therewith which have been established

[P.9] k. By an order of the Reich Chancellor of the Exchequer of the 2nd September 1938, No. 57/38, issued with the agreement of the Fuehrer's deputy, all party offices, including organisations and attached formations, are forbidden to accept administrative dues, donations, gifts, bequests or material payments of any other kind for the participation of the party in

economic tasks, including the transfer of Jewish firms to persons of German race, nor are they allowed to make the fulfillment of such tasks dependent on the payment of contributions, etc. The order was addressed to all Gau treasurers and reached the Gauleaders as well, among others.

[P.12] From the course of events one can only assume that the Reich Chancellor of the Exchequer's order of the 2nd September 1938 No. 57/38 about the ban on financial payments for the cooperation of the Party in Aryanisation and other economic tasks was considered in Franconia to be superseded, and that they thought themselves entitled to obtain considerable sums of money for the Gau of Franconia in connection with Aryanisation.

[P.13] 1. Following upon the November demonstrations, the deputy Gauleader, Holz, took up the Jewish questions. His * * * reasons can be given here in detail on the basis of his statement of the 25th March 1939:

"The 9th and 10th November 1938. In the night of the 9/10 November and on the 10th November 1938 events took place throughout Germany which I considered to be the signal for a completely different treatment of the Jewish question in Germany. Synagogues and Jewish schools were burnt down and Jewish property was smashed both in shops and in private houses. Besides this, a large number of particular Jews were taken to concentration camps by the police. Towards midday we discussed these events in the Gauleiter's house. All of us were of the opinion that we now faced a completely new state of affairs on the Jewish question. By the great action against the Jews, carried out in the night and morning of the 10th November, all guiding principles and all laws on this subject had been made illusory. We were of the opinion (particularly myself) that we should now act on our own initiative in this respect. I proposed to the Gauleiter that, in view of the great existing lack of houses, the best thing would be to put the Jews into a kind of internment camp. Then the houses would become free in a twinkling and the housing shortage would be relieved, at least in part. Besides that, we would have the Jews under control and supervision. I added "The same thing happened to our prisoners of war and war internees." The Gauleiter said that this suggestion was, for the time being, impossible to carry out. Thereupon I made a new proposal to him: I said to him that I considered it unthinkable that, after the Jews had had their property smashed they should continue to be able to own houses and land. I proposed that these houses and this land ought to be taken away

from them, and declared myself ready to carry through such an action. I declared that by the Aryanisation of Jewish land and houses *a large sum could accrue to the Gau out of the proceeds*. I named some millions of marks. I stated that in my opinion, this Aryanisation could be carried out as legally as the Aryanisation of shops. The Gauleiter's answer was something to this effect: *"If you think you can carry this out, do so. The sum gained will then be used to build a Gau school."* The very same afternoon I began to organize the Aryanization of land. I stated here as in my memorandum, too, *that I considered this Aryanisation of Jewish land as a logical continuation of the events of the 9th and 10th November*. I was of the opinion that I was doing a service to the Party by trying to bring it money. I was further of the opinion *that the transfer of the land and houses from Jewish to German hands was a National-Socialist action."*

[P.16] Holz appointed commissioners for Nurnberg and Furth to carry out the Aryanisation of Jewish landed property * * *

[P.18] 2. The Aryanisation was accomplished by the alienation of properties, the surrender of claims, especially mortgage claims, and reductions in buying price.

The payment allowed the Jews was basically 10% of the nominal value or nominal sum of the claim. As a justification for these low prices, Holz claimed at the Berlin meeting of the 6th February 1939 that the Jews had mostly bought their property during the inflation period for a tenth of its value. As has been shown by investigating a large number of individual cases selected at random, this claim is not true.

[P.70] Favoritism shown to third parties and irregularities during the Aryanization of properties.

[P.72] *Schoeller case*. c. Gauamtsleiter Fritz Schoeller bought *Grimmstrasse 3, Nurnberg* by a contract of the 15th November 1938. The house has a nominal value of RM 43,300 and an exchange value of RM 50,000. The buying price was fixed at RM 5,000. Holz admitted (statement of the 27th March 1939) that he was in agreement with the buying of the property. He based his agreement on the fact that Schoeller was an old and deserving party member and deserved particular consideration owing to his family circumstances.

Report of German Commission to Goering on Streicher. [Extract from Part II]

[P. 139] On the other hand, the minority of the shares of the Mars-Werke, Nurnberg, with a face value of Reichsmark 112,500, were acquired through publishing house manager Fink for the Gauleiter according to the latter's instructions at the instigation of the deceased SA Brigadier General Koenig. These shares were in the possession of the Jewish banking house Kohn, the proprietor of which was at that time in protective custody. Verlagsdirektor Fink, as agent for the Gauleiter, acquired the parcel of Mars-Werke shares from this Jew at 5 per cent of the face value, i.e., the sum of Reichsmark 5,600.

In the presence of Fink, Koenig informed the Gauleiter in detail of the completed transaction. The Gauleiter gave his complete assent and, in addition, gave the order to transfer the parcel of shares from the account of the banking firm Kohn to the account of Fink at the Dresdner Bank. He further ordered that his name should not be mentioned at all in connection with the transaction.

By order of the Gauleiter, Fink withdrew Reichsmark 5,600 from a Stuermer account, and later, also acting for the Gauleiter, he bought the remainder of the shares of the Mars-Dresdner Bank, at 60 per cent for the Gauleiter with Stuermer funds.

After Fink learned of the investigating commission he discussed the matter with Gauleiter Streicher. Streicher told Fink that he would keep the shares, because they had no connection with the Aryanization of estates, and if the purchase of the Mars shares should be contested he would simply pay over the required sum to the Reich.

After the investigating commission had started to work Gauleiter Streicher sent for Fink and told him the following: "The police have found out about the Mars shares. We will simply say that the shares were not bought for me but for the Fraenkische Tageszeitung!!" [P. 145] Thanks to the efforts of the district economic adviser and president of the chamber of commerce Strobl, it was possible to persuade the Hungarian consul Pfaller to buy the estate of the Gauleiter on Lake Constance without ever having seen it, for a price of Reichsmark 240,000. It is noteworthy that the Gauleiter and people close to him had a very bad opinion of Consul Pfaller, but after the purchase of the

estate the Gauleiter sent him a picture. In order to avoid the Gauleiter's appearing personally as the seller, a sham contract was made with publisher Willmy, so that the latter would appear to the outside world as the seller of the estate.

[P. 152] Gauleiter Streicher likes to beat people with a riding whip, but only if he is in the company of several persons assisting him. Usually the beatings are carried out with sadistic brutality.

The best known case is that of Steinruck, whom he beat bloodily in the prison cell, together with deputy Gauleiter Holz and SA Brigadier General Koenig. After returning from this scene to the "Deutscher Hof" he said: "Now I am relieved. I needed that again!" Later he also stated several times that he needed another Steinruck case in order to "relieve" [erloesen] himself.

In August 1938 he beat editor Burkert at the district house, together with district office leader Schoeller and his adjutant Koenig.

On 2 December 1938 he asked to have three youthful criminals (15 to 17 years old) who had been arrested for robbery brought to the room of the director of the criminal police office in Nurnberg-Fuerth. Streicher, who was accompanied by his son Lothar, had the youths brought in singly and questioned them about their sex life and in particular, through clear and detailed questioning, he laid stress on determining whether and since when they masturbated. One of the youths did not know the word, whereupon Streicher gave him a vivid description. The last one of these three boys he beat with his riding whip, with blows on the head and the rest of the body.

[P. 151] From 1934 to 1938 Gauleiter Streicher employed the Jew Jonas Wolk as contributor to the Stuermer. Wolk wrote for the Stuermer under the pseudonym of "Fritz Brandt". In addition, Wolk did spy work for the Gauleiter abroad. From February 1937 to August 1938 the Stuermer paid the Jew Wolk a fee of Reichsmark 8,262.39. Wolk was previously convicted six times, among other things with loss of civic rights. It is especially significant that Streicher had the Jew Wolk paid by the Fraenkische Tageszeitung from 1934 to 1937. The Fraenkische Tageszeitung paid Wolk the sum of Reichsmark 9,623.65.

[P. 160] According to the statement of the district treasurer [Gauschatzmeister], his financial adviser, and several other persons, Streicher is regarded as extremely brutal. The statements made by Verlagsdirektor Fink are especially significant. He declared that he was convinced that the Gauleiter would have him bumped off one of these days, as soon as he found out that Fink had told the truth to the investigating commission.

[P. 161] According to reports of reliable witnesses, Gauleiter Streicher is in the habit of pointing out on the most varied occasions that he alone gives orders in the district of Franconia. For instance, at a meeting in the Collosseum in Nurnberg in 1935 he said that nobody could remove him from office. In a meeting at Herkules Hall, where he described how he had beaten Prof. Steinruck, he emphasized that he would not let himself be beaten by anybody, *not even by an Adolf Hitler*.

[P. 166] For, this also must be stated here, in Franconia the Gau acts first and then orders the absolutely powerless authorities to approve.

[P. 172] In general it is to be said that Koenig was regarded as the evil spirit in Franconia. In an unheard-of-manner he tyrannized the Gau leader, the authorities and the population, and he knew how to make the influence of his power felt everywhere. Koenig's word carried the weight of that of the Gauleiter.

[P. 174] In favor of Strobl [pencil note: Director of the AEG, Gau economic adviser, and president of the Chamber of Industry and Commerce] it must be said that he, in contrast to almost all other defendants, immediately told the truth on all points in his interrogations. It is primarily thanks to him that clearness was quickly reached in many cases which could be verified.

As an excuse for his incorrect acts Strobl states that he like all other persons in the Gau of Franconia was to such an extent under the pressure of Gauleiter Streicher and his adjutant Koenig that he would never have dared to do anything against the orders of the two men mentioned.

[P. 179] By the law of April 1938 it is decreed that all applications for Aryanization shall be submitted to the competent Gauleiter. From that time on Strobl submitted the applications, which he had up to that time handled by himself, to the adjutant of the Gauleiter, SA Brigadier General Koenig

for approval. He makes the excuse that it had been the practice in Franconia for the adjutant to take care of almost all matters as agent for and deputy of the Gauleiter. Every order of Brigadier General Koenig was equivalent to an order of the Gauleiter.

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United Mexican States }
Mexico, Federal District }
Embassy of the United } ss
States of America }
Mexico City, D. F. }
} ss
Mexico }

Raymond H. Geist, being first duly sworn, deposes and says:

I came to Berlin in December, 1929, as Consul and continued in that capacity, exercising my official functions until the end of 1939. In 1938 I was appointed First Secretary of the Embassy and continued in that office discharging at the same time my duties as consul. During the entire period of ten years my work was of such character that I frequently came into contact with many officials of the German Government. After the Nazis came to power in 1933, these contacts increased owing to the much more frequent occasions on which it was necessary to intervene with German officials in order to protect the rights of American citizens and their properties. During this period I not only had many official contacts but also friends and acquaintances, both in Berlin and elsewhere in Germany. My work permitted and occasionally required travel in Germany. It was my custom to make bicycle trips, as well as excursions by automobile to various points particularly in the environs of Berlin, often to the extent of fifty miles. Although I do not have the first-hand information with regard to developments under the National Socialists for all of Germany that I have regarding the neighborhood of Berlin, I saw enough during my excursions, and was told enough by friends and acquaintances to know that the activities hereafter described in and around Berlin were being substantially duplicated all over Germany.

There were indeed few military establishments in the neighborhood of Berlin in 1929 and until 1933 there were the Casernas at Potsdam and the military establishment at Doeberitz. After the Nazis came to power, military establishments of all sorts grew up with enormous rapidity. Before the end of 1933, during my frequent excursions, I discovered outside of Berlin on nearly every road leaving from the city new large military establishments, including training fields, airports, barracks, proving grounds, anti-aircraft stations and the like. For these establishments most of the ground was broken during the year 1933; there were probably fifty within the immediate vicinity of Berlin. Most of these establishments were being openly prepared, nevertheless they were under guard. It was apparent with respect to others that an attempt was made to preserve secrecy. I recall in particular that the large anti-aircraft station near my house in the Gruenwald was built under secrecy, likewise a munitions dump burrowed in the hills of Wildpark near Potsdam was also built under secrecy. Being disguised as a German and speaking the language, I was able on my bicycle trips to penetrate certain of these establishments where at various times I saw military exercises, including the use of tanks, in various maneuvers. I recall from my travels beyond Berlin and the information and reports which I had from friends and acquaintances that the same feverish preparations were in progress throughout the length and breadth of Germany, in fact, all establishments which could serve a military purpose were converted to military uses.

I also saw the preparations being made for building up the new army. I visited the camps of the compulsory labor service, the *Arbeitsdienst*, which was well under way by the end of 1933, with camps established all over Germany. Though this was ostensibly a labor service, it was essentially military in character, as is well known. I saw the men working on reclamation projects and was informed that they worked two hours in the morning and two hours in the afternoon, the balance of the time being spent in military tactics and in instruction in Nazi ideology. So that when conscription went into effect in 1935 through the medium of these camps, it was possible for the Germans to put a trained army of at least 3,500,000 men, which formed the nucleus of the future army of aggression.

Particularly through the years 1933 and 1934 the hordes of storm troopers SA were much in evidence practicing military exercises. They were being

converted into a military organization. I frequently encountered the storm troopers deployed in fields and in forests engaged in military technical exercises. This was all the part of a general plan to prepare Germany's manpower for war.

I witnessed, too, scores of times, the training of the Hitler Youth, which included boys from 14 to 17, who dressed in their uniforms, were likewise generally in evidence wherever I chose to travel. I frequently saw them in the woods near Berlin, deployed in ravines, in fields, woods and hillsides staging mock attacks, employing the technique of actual maneuvers. Frequently they were under the direction of uniformed leaders and at times under officers of the Reichswehr. This type of training of the youth extended everywhere in Germany. Frequently my route of travel had to be changed in order not to find myself in the midst of some maneuvers which required the use of roads or paths along which I was riding. It was not considered wise to get too close to these operations, particularly if they were on an extensive scale.

The *Deutsche Jungvolk* (boys from the ages of 6 to 14) was also the vehicle for military training. They were also in evidence throughout the country. I frequently met them marching. I saw them engaged in military exercises in the school yards during the school recesses, particularly throwing hand grenades usually under expert adult leadership. Often I have seen these children in large numbers engaged in what were obviously military maneuvers, and under the direction of adult uniformed officers.

I had occasion, at times, to witness the organizations which were created for the girls that were part of the Hitler Youth and were also incorporated in the so-called *Arbeitsdienst*, usually located somewhere near the camps for men. The resultant illegitimate children were a definite planned result of the program; they were part of the manpower and the army for the next generation. The shame and the grief of parents over this program fostered and urged by the Nazis although it existed, was seldom openly expressed on account of dangers to which the parents might expose themselves.

So far as the youth were concerned, the entire program was carried on with lavish propaganda and enough benefits to the participants to make it extremely popular. The Nazis provided the youth with special trains, special trucks, special bathing beaches, food and other privileges. At the same time,

the semi-hysteria which was maintained about the whole National Socialist program made it impossible for parents or anyone else to speak against it even if they had wished to do so. The German people were well acquainted with the goings on in concentration camps and it was well known that the fate of anyone too actively opposed to any part of the Nazi program was liable to be one of great suffering. Indeed, before the Hitler regime was many months old almost every family in Germany had had first-hand accounts of the brutalities inflicted in the concentration camps from someone either in the relationship or in the circle of friends who had served a sentence there; consequently the fear of such camps was a very effective brake on any possible opposition.

In addition to what I saw during these many years with my own eyes regarding the preparation and the building of a huge armed force, I received reliable information from trustworthy sources as to its scope and strength. One of my close friends in Berlin was one George Graffenstein, who lived at 34 Altenauerstrasse, just across the street from me. He was a German, formerly a member of Meile Printing Company of Chicago and a man strongly opposed to the Nazis. He had been an officer in the German army in the First World War; therefore he knew a large number of the officers of Reichswehr. Occasionally he gave in his house beer-evenings which a number of Reichswehr officers attended, including certain generals. To these parties I was occasionally invited. One of these generals was General Goettke, who was the head of the artillery on the General Staff and a very close friend of Graffenstein. In addition, Graffenstein's nephew was on the General Staff and was at the same time the liaison between the Reichswehr and the S.A. Late in 1934, George Graffenstein told me that from the information which he had received from his friends, the armament program was already so complete, so far advanced, so gigantic and all-inclusive, that there was no doubt of Germany's winning the war on sheer weight of arms alone. That same information was given to me directly by certain of the high officers of the Reichswehr, whom I met at Graffenstein's house.

By the middle of 1934 it had become obvious that the rearmament program, though in its beginning, was being planned on a vast scale so that it could not possibly be considered as defensive armament but only as a weapon for offensive war. This was, however, not a conclusion of my own; but it was openly stated as such to me. Graffenstein told me in 1934, during the

conversations to which I have already referred, that the purpose of the program was an aggressive war. He told me that he had been so informed by General Goettke in particular. This statement was borne out by other persons who were in the know in Germany at that time. I confirmed his statements by my own conversations with the generals who gathered in his house. They intimated to me, not only that Germany was embarked upon an inevitable program toward war but even gave me indications of the general plan, namely, the drive to the East and the attack upon Russia, after Poland, Czechoslovakia, and Austria had been eliminated. This was as early as 1934, and I had many similar conversations along the same line at Graffenstein's house during the following years.

Similar information was constantly being confirmed from other sources at later dates. For instance, in December 1938, I had a conversation with General Franz Halder, who was then Chief of Staff, at the house of Dr. Etscheit, a prominent Berlin lawyer. Halder stated to me: "You must take into account the National Socialist program in the East. If you, the Western powers, oppose our program in the East, we shall have to go to war with you." During this conversation he made it clear to me that the program of the Nazis for expansion in the East was unalterably fixed and decided upon. It included the attack on Poland, the annexation of Austria, territorial expansion in Yugoslavia, Czechoslovakia, Rumania, and Russia, particularly in the Ukraine. The latter provinces would have to be German. When I replied to Halder that I was positive the Western powers would never tolerate any such aggressive program and that inevitably it would not only mean war with England and France but with the United States as well Halder replied: "That is a pity."

The same information as to the aggressive intention of the Nazis was given to me by a friend, Count von Bismarck, formerly Counselor of the German Embassy in London. He was violently anti-Nazi. In Germany, where I knew him, he held no official position, deriving his income from his estates in East Prussia; but he was a man with wide contacts in officialdom, particularly in the Foreign Office. He said that the Nazis were headed for war, for huge aggressive adventures, that conquest of the East was a major part of the vast plan and that conquest of the West would only follow, when complete victory in the East solidified Germany's strength and resources in those quarters. He made this statement to me in 1936 and we discussed it

often in 1937 and 1938. He was extremely disturbed, not over the aggressive plans of the Nazis, but over their manner of converting Germany into a slave State, which he repudiated entirely. He considered that the course of the Nazis militarily could not be hindered and furthermore, no country was preparing to stop them.

I also had the same information from another reliable source. After Hitler came to power in 1933, General von Hammerstein withdrew from public life. He had been head of the Reichswehr under Chancellor Bruening. Although he was then retired, he knew and associated intimately with the Generals of the German Army, as he was among them *primus inter pares*. He told me of the German program for aggressive war during a long conversation which we had during a musical recital in 1938 at Dr. Paul Kempner's home. The army, he said, was at a highly mechanized strength, extremely mobile and ready for anything. He was sure, in view of the preparations and the excellent character of the German equipment that the German Army was then an instrument of invincible striking power. He stated categorically that it was a superb instrument which had been formed to wage war and that it would not be much longer delayed. He did not know the plans and details but he confirmed the information that I had from all sources, that Germany intended to strike in the East and that the war in the West depended on whether or not the Western powers would endeavor to intervene when the German war machine started moving.

Of these aggressive designs I learned also from other sources. A personal friend, Dr. Hans Henniger, a veterinarian in Berlin, was an intimate friend of an officer by the name of Schlessicher (I believe that is the correct spelling), who was the responsible purveyor to the German Army, therefore a high member of the Quartermaster Corps. I do not remember his exact title. Dr. Henniger received from this man information constantly with regard to the preparations being made by the Germans in 1939. A month before March 15, 1939, I was informed of the plans for marching into Prague on that date and that large stocks of food and other equipment were being accumulated near the border of Czechoslovakia. On March 15, 1939, the German Army rolled into Prague.

I also had a good deal of personal experience with and first-hand knowledge of the internal policies from 1935 to 1939. Indeed, from the very outset of the regime, I had intimate and continuous contact with various

officers of the German Government in the course of my duties as an American official protecting American citizens or protesting against their mistreatment. The acts of violence against American citizens were numerous, particularly during the early years of 1933 and 1934. In addition, I was constantly receiving information as regards other Nazi tactics and the nature and number of victims from a variety of sources; the victims themselves on many occasions, both American and German, told me their experiences and appealed for help; relatives and friends of victims, both those who came back and those who did not; the foreign newspaper correspondents and, to a very considerable degree, I received information from the Gestapo itself.

For a period I dealt directly with Herr Heinrich Himmler, then subsequently with Herr Reinhard Heydrich and often with Dr. Werner Best.

My vigorous relations with the Gestapo began in March, 1933. In fact I knew the organization of the secret police and dealt with that organization before the Nazis came to power. It was then the Politische Abteilung des Politizeipraesident, i.e., the political division of the Politizeipraesidium, which was charged with supervisory and preventive functions with regard to political matters, then chiefly investigating the terror of Communists. It was located in Berlin at the Politizeipraesidium. On March 6, 1933, it was moved from the Politizeipraesidium to No. 8 Prinzalbrechtstrasse and became the famous Gestapo [Geheimstaatspolizei], its first chief was Rudolf Diels, who was succeeded by Heinrich Himmler, in May, 1934. I knew well not only Diels but also Himmler, his second in command, Reinhard Heydrich and his administrative officer, Dr. Werner Best. The organization at No. 8 was huge with over 1,000 persons employed there. Besides, as rapidly as administrative measures permitted, Gestapo headquarters were established throughout Germany, not only in the cities but in provincial places to such an extent that the smallest hamlet and village fell under direct Gestapo supervision. At the beginning of the Hitler regime, the only organization which had meeting places throughout the country was the S.A. (storm troopers). Until the Gestapo could be organized on a national scale the thousands of local S.A. meeting places became the "arrest points." There were at least fifty of these in Berlin. Communists, Jews, and other known enemies of the Nazi party were taken to these points and, if they were enemies of sufficient importance, they were immediately transferred

to the Gestapo headquarters. During 1933 and 1934, when the Gestapo became universally organized, the S.A. were gradually eliminated as arresting agents and the S.S. [Schutzstaffe] were incorporated as administrative and executive officials into the Gestapo. By the end of 1934, the S.A. had been fairly well eliminated and the S.S., the members of which wore elegant black suits and were therefore called Elite Guards, became almost identical as functionaries with the Gestapo.

Immediately in 1933, the concentration camps, as soon as they were established, were put under the immediate charge of the Gestapo and they remained exclusively a Gestapo institution. Only "political" prisoners were held in the concentration camps. Ordinary criminals remained the responsibility of the regular police authorities and the established courts. On being sentenced, they were confined in the regular prisons. These confinements were always the result of duly carried out legal procedure. Incarceration in concentration camps was carried out without any legal procedure, neither indictment nor trial. Prisoners were, occasionally, released from the concentration camps and turned over to the prosecuting attorney for prosecution before the legal courts of justice. A prisoner accused of high treason, for example, whose offense might carry a death sentence, would be released to the prosecuting attorney for trial in the people's court. All felonies were tried by the regular courts.

As I have stated, my frequent contacts with this entire Gestapo organization began with the first wave of terrorist acts in the week of March 6-13, 1933. That wave was accompanied by universal mob violence. Since 1925, one of the cries of the Nazi party had been "Jude Verrecke" (Death to the Jews) and when the Nazi party won the elections in March, 1933, on the morning of the sixth, the accumulated passion blew off in wholesale attacks on the Communists, Jews, and those who were suspected of being either. Mobs of S.A. men roamed the streets, beating up, looting, and even killing persons.

No American citizen, so far as I am aware, was killed, but a number of them were assaulted and injured and appealed to the Consulate General for aid and protection. For example, Nathaniel Wolff, an American citizen, who resided in Rochester, New York, made an affidavit which stated:

This morning, March 6, at 5 o'clock, there came into my room five or six Nazis with drawn revolvers. They abused me, called

me a dirty Russian Jew and started going through my belongings. They asked me what remarks I had made. I replied that I had made none that I knew of and that I am not interested in politics. One of them shouted "Do you call throwing bombs not being interested in politics?" Another asked at the same time, "Are you the Wolff who lived in the Pension Stephanie?" Having left the Stephanie on account of difficulties with the Portier regarding the price of the room and his behavior, I whistled very softly, intimating that I understood the source of the denunciation. Thereupon one of the Nazis remarked: "Du Scheiss Jude, warum pfeiffst du?" and hit me in the jaw. They said that they would take me to the police station, whereupon I answered, "The quicker, the better, because my conscience is absolutely clear." One of them said, "Do you call throwing bombs having a clear conscience?" The intruders were not accompanied by an officer, nor did they carry "Hilfspolizei" armbands. They took me in an automobile to an address in the Knewbeck Strasse beyond the Kant Strasse (I believe No. 67 or 76, Gartenhaus left, I think three or four flights up the stairs). I was conducted to a bare room in which the shutters were closed and the windows boarded, evidently to prevent sounds from getting out, where, after my possessions were taken away including my keys, I was left with two guards who spent the time abusing the Jews. At five minutes before seven, the group who had arrested me returned with two or three members including one who was apparently a leader, when I was again abused, that is, they gave me to understand that they imagined I was implicated in communistic activities. I remarked that I should like to send a telegram to my cousin, Alan Steyne at the Hamburg American Consulate, and asked if I had the right to do so, whereupon the leader replied: "As a foreigner you have no right, and especially not as a Jew." One of the men then proceeded to bind my hands and feet as closely and as painfully as possible. I still bear the marks of the bruises on my wrists. I was questioned about various English and French letters which had been found in my room and taken along with them and then I was left about half an hour alone because they evidently

discussed my fate. After some time one of the group returned and advised me that every one had a right to his own political opinions as long as no attempt was made to mix into politics. He remarked that nothing was to be gained by brutality, undid the rope and freed my hands and feet and gave me a cup of coffee and said, "Probably the thing isn't so bad because women chatter a great deal" and that I was denounced by a girl. After a few minutes he elaborated the statement that the girl, Paula, of the Pension, had denounced me as having the intention of throwing bombs at the Nazi parade. I expressed my astonishment and told him the facts of the case. He appeared to laugh it off and asked me if I would be willing to sign a paper on the condition that they would release me. I said "yes." They then said I would have to go to the police to have my signature attested to and one of the men who had come in, in the meanwhile, went out to draft the paper I was to sign. He returned with the paper which read: (1) "I am a Jew," (2) "I will leave tonight for Paris," (3) "I promise never again to set my foot on German soil." "I attest that no physical violence was done to me and that none of my property was stolen." This paper I signed. They told me to put on my coat and come to the police. Instead of taking me to the police station they took me to Charlottenburg towards the Gruenwald. When I asked to which police station they were taking me, they replied "You'll get there soon enough." When we were near the Heer Strasse they pretended that the automobile was broken down and informed me that I would have to walk through the woods to get to the police station. We proceeded into the woods where three members drew their pistols and the other two brought straps out of their pockets and informed me that they were going to teach me a lesson and made as if they were about to tie me to a tree. They said that they intended to beat the life out of me and "You can walk back afterwards." I replied that I hoped I would be able to walk. This was probably about eight o'clock and we were entirely alone as nobody had followed us. I took off my coat myself and remarked "If one can't help oneself, one may as well make the best of it." One of them threw my coat to the

ground and said "Get ready" and after making a threatening gesture, said "You can go home now!" pointing to the wrong direction, whereupon they walked rapidly to the automobile and disappeared yelling after me, "Keep your mouth shut." I was also threatened that if they ever caught me in Germany again, they would know how to get me out of the way. * * *

Another American, Herman I. Roseman, made an affidavit which stated:

Yesterday, March 10, 1933, in the afternoon at about 4:30, I came out of "KDW" with my fiancée, Fraulein Else Schwarzlose, residing in Wilmersdorf, Kaiser-Allee 172, and proceeded to walk along Tauentzien Strasse. A man in S. A. uniform stepped on my toe purposely, obviously offended me and said "Pardon." I said "bitte," and walked ahead. He followed me and kicked me saying: "Na und?" A policeman saw this and walked ahead, paying no attention to attacks made on me. Then I took my passport out of my pocket, showed it to the second policeman, and said that I was an American citizen, but he walked ahead, obviously not able to afford me protection, or at least being unwilling. The S.A. man continued to attack me, struck me in the face, wounded me over the eye, and continued to do me bodily harm. During this attack, all the time my walking along, we reached another policeman, and I applied to him, showing my passport and said: "I am an American and am entitled to protection." He shrugged his shoulder and said "What can I do?" By this time the S.A. man had obviously inflicted enough attack upon me and walked away.

Upon my appeal the policeman brought my fiancée and me to the station house at 13 Bayreuther Strasse. My fiancée and I reported to the officer in charge. He heard the story and said that he was sorry, but that there was nothing to do. My face was bleeding. The policeman said that he had had orders not to interfere in any affair in which an S.A. man took part. I then asked him what I could do to protect myself. He said that there was nothing to do but to wait until the situation was better. He added that the police were absolutely powerless, and were under

the direction of the S.A., and that there were S.A. [Sturm-Abteilung] in the police itself. Thereupon I departed * * *

Another American, Mrs. Jean Klauber, made an affidavit which stated:

That on the night of Friday, March 10, 1933, she and her husband had retired for the night when they were awakened by a prolonged ringing of their apartment bell. They heard pounding upon the street door and a demand for immediate entry, and a concurrent threat to break the door down. The street door was opened by the janitor's wife, and a party of four or five men entered and went at once to the apartment of the deponent where they again rang and pounded on the door. Mr. Klauber asked who was there, and was answered—"The police." He opened the door and a party of four or five men in brown uniforms, one wearing a dark overcoat and carrying a rifle, pushed in, jostling Mr. and Mrs. Klauber aside. One asked Mrs. Klauber where the telephone was and she indicated the room where it was to be found, and started to go there. Thereupon, she was knocked down by one of them. They went on to the bedroom where Mr. and Mrs. Klauber followed them, and there they demanded their passports. Mr. Klauber went to the wardrobe to get his, and was stopped, being asked by the intruders whether he was carrying any weapons. Being clothed only in pajamas, his denial was accompanied by a gesture indicating his garb. He then turned to the wardrobe, opened it, and reached for one of his four suits hanging there in where he thought the passport was, and was immediately attacked from behind by all but one of the intruders, who beat him severely with police clubs, the one with the overcoat and rifle standing by. Remarks were shouted such as "Look. Four suits, while for fourteen years we have been starving." Mrs. Klauber tried to inquire the reason for their actions, and was answered—"Jews. We hate you. For fourteen years we have been waiting for this, and tonight we'll hang many of you."

When the intruders stopped beating Mr. Klauber he was unconscious, and they demanded the passports again of Mrs. Klauber. Mrs. Klauber found her American passport and her

German passport (required by local authorities as the wife of a German citizen, and issued by the Police at Munich after her arrival here), and the intruders took both in spite of Mrs. Klauber's protests that she was American. She then searched for her husband's passport, laid hold of his pocket-book, and in her excitement offered it to them. Though full of money they refused it, and again demanded the passport. Mrs. Klauber then found it and handed it over.

Then the intruders returned to the unconscious Mr. Klauber, saying "He hasn't had enough yet," and beat him further. Then they left, saying "We are not yet finished," and just as they departed, one of them said to Mrs. Klauber "Why did you marry a Jew? I hate them" and struck her on the jaw with his police club * * *

I personally can verify that the police had been instructed not to interfere; that is that there was official sanction for these activities. Affidavits taken from numerous victims attest this fact. I had become acquainted with the two police officers stationed at the corner of Bellevuestrasse and Tiergartenstrasse near where the Consulate General was located; these officers told me that they and all the other police officers had received definite instructions not to interfere with the S.A., the S.S. or the Hitler Youth.

For the Germans who were taken into custody by the Gestapo, chiefly Communists at that time, there was, from my experience and from the information that I had from all sources, a regular pattern of brutality and terror. Upon arrest, the victims would be systematically subjected to indignities and brutalities such as beatings, kicking, pushing downstairs, deprivation of food and all comforts, and threats of much worse. After the victims had been imprisoned—usually in cellars, since both the headquarters at No. 8 Albrechtstrasse and the S.A. meeting places usually had them—they would be beaten with various degrees of severity. If the Gestapo believed that the victim—particularly Communist leaders—had information as to other alleged accomplices they would give systematic beatings, usually when stripped and tied on a table. This would go on often for many days until they had extracted the information they wanted or killed the victim.

Based on all of the reports which I had from many sources, my judgment is that the victims were numbered in the hundreds of thousands all over Germany. Many of them were ultimately released. I can state with certainty that the contemporaneous accounts in foreign newspapers, such as the London Times and the American newspapers which I have seen, are accurate.

The second wave of terror was not so systematic nor so concentrated as to point of time. It was directed chiefly against the Jews, and was chiefly the result of the ruthless and occasionally violent enforcement of numerous decrees and orders, such as the Nurnberg Decrees. After the initial outbreak in March, 1933, and all through that year and the next, the Jews still in Germany had, in many cases, come to believe that things might become a little better and that they could live in some sort of peaceable relationship with the Nazis, even though they were reduced to the status of second or third class citizens. In 1935, however, the pressure on them began to increase and they began to be excluded completely from certain civil activities. The terrorism was continued all the time to some degree; but the enforcement of the new decrees in 1935 was characterized by such brutality and ruthlessness that it warrants special attention. Inadvertent violators were dealt with, for example, with great severity.

The 1938 wave of terror was a very pronounced and definite one. Again the object was the Jews, particularly the wealthy ones. The ostensible occasion was the murder of the German diplomat, von Rieth, by a French Jew, but the violence was in no sense spontaneous. Dr. Best, the Administrative Officer of the Gestapo, told me that the terror had been decided upon and ordered by Hitler himself, and that he, Dr. Best, could, therefore, do nothing about it. Actually that statement corroborated what everyone knew. Innumerable persons with whom I talked and who witnessed the violence told me that at all of the synagogues, which had been set on fire by the Nazis, the fire departments were always present, but never acted except to prevent the fires from spreading to neighboring non-Jewish properties. Nor did the police interfere with any of these acts of vandalism and incendiarism.

I personally did not see any of the violence nor the burning of the synagogues while the acts were being perpetrated, as the mobs throughout Germany commenced to work at midnight on November 8, 1938, and

carried through their activities during the early morning hours of November 9. At that time I was on my way to the Wartburg Castle, and on the day of November 9 I saw the burned synagogues and the looted and smashed shops in Eisennach, and later in Berlin. I also know that at this time many of the wealthy Jews, who had previously escaped attack, were arrested, among whom were relatives of American citizens. Pursuant to requests from the United States, some of which were transmitted through the Department of State, I personally intervened with the Gestapo through Dr. Best, and secured the return of nearly twenty victims from the Saxonhausen Concentration Camp. Among these victims were Fritz Warburg and Eugene Garbaty. I think that many, perhaps most of these people, were released in the space of ten days or two weeks with the warning that if they remained in Germany they would have cause to regret it. In all cases the victims were subjected to rough treatment. Those who returned from the concentration camp and whom I saw in my office had their hair closely clipped, a common outward sign that they had been at Saxonhausen.

The Gestapo authorities with whom I spoke on my frequent, and often daily visits to the Gestapo headquarters did not hesitate to state that they regarded Communists in particular as subversive and as an element dangerous to the State, and that it was necessary to wipe them out. Diehls, the first chief of the Gestapo, in particular, whom I saw nearly every day of the March wave of terror in 1933, made no attempt to conceal the systematic character of the roundups of what he called “subversive persons”; though he did attempt to justify it to me as necessary to the safety of the State. While denying that any violence against American citizens was contemplated, he admitted that it was being undertaken against Germans. Terroristic tactics, however, in all their various forms, were so completely and thoroughly the actuating policy, that it would have been wholly redundant to discuss it. They and I both understood that it was the mainspring of all Gestapo activity—indeed of all Nazi activity—and that it was beyond discussion.

On one occasion I received a clear and definite admission of the Nazi terroristic policy with respect to many of their victims. In 1938 I was making strenuous efforts to free a young man from a concentration camp. He had been arrested in March, 1933, for aiding certain of his comrades to escape Germany, and had been sentenced by regular courts to a sentence of 2½ years. When he was released from the Brandenburg Prison at the end of

that time, he was taken into custody by the Gestapo and sent to Dachau, the notorious concentration camp, and from there to Buchenwald. I had tried over a long period of time to secure his release by appeals personally to Himmler, Heydrich and Best, and had failed. In 1938, however, I was told by Ministerialrat Krohne, in the Ministry of Justice, that if I could reach Gruppenfuehrer Eiche of the Todtenkopfverbande (Death's Head Regiments) I might be successful. Eiche was then the head of all German concentration camps. After having first been told officially by the Gestapo that no such person existed, I was finally able by a ruse to secure his telephone number whereupon, through the recommendation of Krohne, I was able to make an appointment with Eiche at the Saxonhausen Concentration Camp near Berlin. He told me that with respect to Communists and any other persons who were suspected of holding views contrary to the Nazi conception of the State, such persons were "Asoziale", that is, impossible of social assimilation and, therefore, they must be physically eliminated from society or destined to perpetual confinement. Thaelman, the leader of the Communists in the Reichstag, was, as is well known, kept during the Hitler regime in perpetual confinement. His ultimate fate has never been revealed.

On another occasion I was given considerable information by a high official of the Gestapo as to the policy of the Nazis with respect to the Jews. I had had a considerable contact with the head of the Jewish section of the Gestapo, known as the "Judische Abteilung der Gestapo", one Dr. Hasselbacher, in connection with making arrangements for official representatives of the American Joint Distribution Committee to visit certain Jewish centers throughout Germany, for which visits, of course, the permission of the Gestapo was necessary. These negotiations brought me frequently in touch with Dr. Hasselbacher, whom I came to know very well. He told me that Germany will be made "Judenrein", that is, clean of Jews. He said that all the Jews who failed to leave Germany would be exterminated. That statement was made in 1938 before the extermination camps were established, but the statement of Hasselbacher clearly indicated the eventual emergence of extermination camps in accordance with the general Nazi plan; for certainly the Jews were unable to leave Germany, even if they had been permitted to do so by the Nazis, as no world-wide arrangement had been made to receive them in other countries.

I had a great deal of experience with the systematic measures which were taken to confiscate property of non-Nazis, particularly Jews. Force of circumstance and a settled governmental policy made this campaign a more gradual one. Drastic and sudden action would have led to the alienation of a great deal of ready assets owned by the Jews and would have tended to destroy the economic value of Jewish-owned property. It would also have resulted in the physical destruction or hiding by Jews of things of value, as indeed did happen to a great extent. Consequently, the Nazis permitted many Jews, particularly those of wealth and position, to remain unmolested for many years, giving the Jews the faithless and false assurance that they were exempted from the general repressive program for various reasons. For example, I knew well the leading German cigarette manufacturer, Eugene Garbaty. Until September, 1938, he was in complete control of his fortune. During that month, however, he was compelled to sell his factory, worth between seven million and ten million marks for the sum of one million marks. In October, 1938, his country estate near Dresden, valued probably over two million marks, was simply confiscated with no payment at all. It was to be used, as the authorities stated, for a welfare center for German Youth. After his experience in the Pogrom of November 8, 1938, Garbaty applied for a passport and received one only after paying a bribe of 500,000 marks to the corrupt Count Heldorf, Chief of Police in Berlin, and enough other fines to equal the million marks that he had received for his factory. He left Germany with nothing, except that earlier, by bribing the customs officials with approximately 250,000 marks, he had been able to get valuable art treasures out of Germany. Garbaty is now a citizen of the United States and is living in Connecticut.

Another instance of the same nature occurred with respect to my landlord, Mr. Franz Rinkel, who told me the entire story of his persecution at the hands of the Nazis. He had a fine house at No. 2 Bruckenalle in Berlin, in which I lived. Rinkel was one of the victims sent to Saxonhausen and whom, after the space of a week, I was able to rescue. One Dr. Lilienthal, a fanatical Nazi lawyer practicing in Berlin, coveted Rinkel's house. The general system of expropriating the property of the Jews was illustrated in this particular case. My landlord was approached by Dr. Lilienthal and told the price the latter desired to pay, a mere fraction of the value of the estate. He was given a few days to make up his mind to sell at that price. He sold because he knew that if he did not, he would be accused of some trumped-

up crime and taken away to the concentration camp. Dr. Lilienthal took possession of Rinkel's house. I know that on many occasions where it was thought necessary to increase the pressure, the prospective purchaser or his agent would be accompanied by a uniformed S.A. or S.S. man. I know because I lived in the immediate neighborhood and know the individuals concerned, that Baron von Neurath, one time Foreign Minister of Germany, got his house from a Jew in this manner. Indeed, he was my next door neighbor in Dahlem. Von Neurath's house was worth approximately 250,000 dollars. I know too that Alfred Rosenberg, who lived in the same street with me, purloined a house from a Jew in similar fashion. There were, of course, innumerable instances in which Nazis used their positions in the Party to void debts and the like. An illustration of this were the cases of the persons who came to the Consulate in Berlin and informed us of the circumstances. For example, Max Schussler, an American citizen, made an affidavit which states:

* * * I own several apartment houses in Berlin, one situated at Ring Strasse 11, Berlin-Steglitz. On the property at Ring Strasse 11 resides a tenant by the name of Hans Zink, who owns and operates a restaurant in those premises. He has been in arrears in his rent for about a year. Since the first of February of this year, that is, since the new Government came into power, he has refused to pay his rent. I gave instructions to the Sheriff to have him put out. Yesterday two uniformed men came to my office and spoke to my secretary and said that if I do not recall the order to the Sheriff to have Zink evicted, something will happen to me. I did not see these men. My secretary received them. She stated they wore black trousers and brown shirts. She referred them to my attorney, Felix Szkolny, Charlottenstrasse 17, Berlin S.W. 68. They went to the attorney, but he refused to give the order. They came to my office again and said to my secretary that if I did not give the order in writing and hand it over to a certain address within an hour's time, something would happen. I then called the police station at Alexandrinenstrasse 134, Revier No. 113, and a police officer came to my office and accompanied me to a taxi, when I went home.

About a week before, it may be noted, Zink had come to my office and insisted on my rescinding the order of eviction, and said, "I care nothing about law; we are now in power, remember that. Do anything you please, I am not going out of the office until you cancel the order". I called the police, and an officer came. Zink said, "I do not care what you say". After about ten minutes the officer put him out.

At two o'clock Tuesday morning, March 7, I was awakened and faced by two men with pistols, who had come into the house. They were allowed to enter by the janitress, as they claimed to be "Hilfspolizei", and also by my maid. These two men were accompanied by two others in civilian clothes, the former wearing the brown National Socialist uniforms. They said, "Here, dress yourselves, quick too". My wife asked them to turn about while she dressed, but they refused. She was compelled to remove her night gown at the point of a revolver and stand naked before the intruders. When she protested they said, "Don't be theatrical". My wife then wanted to telephone, but they said, "No, sit down. Do not touch the telephone", while they kept their pistols pointed at us all the time. I sat down. One of them said, "Have you got a fountain pen? You sign that". I had to sign the order to the Sheriff cancelling the order of eviction, and had to sign another letter to the tenant Zink, stating that the order of eviction was called off. I hesitated to sign and they drew their revolvers on me, and my wife in terror fell to her knees, and then I signed. I asked if they had credentials, and they pointed to the "Hakenkreuz" on their sleeves and said that was their credentials. They then said, "If you recall that order tomorrow, you will be dead". After I signed, they left * * *

Actually, all Nazis used their positions in the Party as a means of enriching themselves. I have already spoken of the bribe to the customs officials and the Foreign Office officials, which Mr. Garbaty was compelled to pay. Another instance of the venality of the Nazi officials was illustrated in the case of Mendelssohn Bartholdy, who owned a house near me and whom I knew well. He was told by Count Heldorf, Chief of Police in Berlin, through his stooge, one Herr Schmidt, that his passport would cost him

250,000 marks. Bartholdy told me the facts and asked me if he should pay. Knowing the Nazi practices and the danger which he ran as a Jew in Germany, I advised him to pay. He did, got his passport and visa, and left Germany. This happened in November, 1938.

I was informed by a personal friend, a Jewish banker in Berlin, Herr Kempner, whom I believed to be qualified to make an accurate estimate, that the total confiscations from Jews in Germany was between seven and eight billion marks.

I had less experience with the manner in which the Nazis operated in industrial firms. However, from the accounts of numerous American businessmen with manufacturing plants in Germany, accounts which agreed with the information which I had with respect to similar activities in German factories, I know that the Nazis used their Party position to obtain authority and power. Many American businessmen told me that they had serious troubles operating their factories because the Nazi officials in the establishment, usually recruited from the workmen, attempted to take over the management themselves, and engaged consistently and ruthlessly in acts of persecution against non-Nazi workmen. Many German firms were actually dominated by fanatical Nazis, usually persons who had had no previous position of importance, such as janitors, timekeepers and the like. Their position in the Nazi hierarchy gave them importance in the enterprise out of all proportion to their standing and position.

[Signed] Raymond H. Geist

Subscribed and sworn to before me William L. Brewster Vice Consul of the United States of America, duly commissioned and qualified, in Mexico, D. F., Mexico, this 28th day of August 1945.

[Signed] William L. Brewster
Vice Consul of the United States of America
Service No. 6684
Tariff No. 38
No fee prescribed.

COPY OF DOCUMENT 1760—PS

United Mexican States }

Mexico Federal District }
Embassy of the United } SS
States of America }

George S. Messersmith, being first duly sworn, deposes and says:

During the period 1930 to the late spring of 1934, I was Consul General of the United States of America in Berlin. During that period and particularly during the years 1933 and until my departure for Austria in the late spring of 1934, the nature of my work brought me into frequent contact with German Government officials. As background for this statement it is pertinent to state that this contact with German Government officials in the highest categories was necessary by me as Consul General, and some of my principal associates, because of the circumstances of the period.

In the period immediately preceding the coming into power of the National Socialists it was necessary for me and some of my principal associates in the Consulate General to have contact with high officials of the German Government because of unsettled state of affairs in Germany due to the uncertain political situation; this involved difficulties for American firms of various kinds which made the intervention of the Consulate General in the line of its regular duty necessary. In addition to this contact with the officials of the Government, as a matter of further duty I had contact with individuals in all parties in Germany in order to keep myself and therefore our Government currently informed with regard to developments in the political picture in Germany. During that period, and before the National Socialists came into power, I therefore had contact of an informed character with persons in the National Socialist Party for the purpose of securing information as to their aims and objectives, but that contact was, before the access to power of that party, with secondary rather than with the first ranking members thereof.

Immediately after the access to power of the National Socialist Government in the beginning of 1933, all sorts of steps of an arbitrary character were taken by the new Government and by its various agencies and dependencies which affected the rights of American citizens and property and in the carrying through of my official duty as Consul General I had the primary responsibility for the protection of American citizens and property. In consequence of this responsibility I had to see frequently almost all of the

high ranking members of the German Government with the exception of Hitler and a very large number of officials below the rank of Minister. The nature of my duties was such that a considerable portion of my days had to be spent in visits on such officials to discuss the protection of American interests and property. Some of these secondary officials I had known before the Party came to power, for information purposes.

It is difficult to explain adequately in a statement of this kind the circumstances under which these officials of the Nazi German Government frequently took occasion to talk to me most frankly about matters of general Nazi policy and to discuss frankly and freely the aims and purposes of the Nazi regime. Frequently our conversations were long and difficult because of the matters which I had to present and on which I had to take the firmest stand. Not infrequently at the end of such official conversations they spoke freely and without any reserve with regard to the aims of the regime.

It is the more important to bring this out in this preliminary section of my statement because I did not at any time conceal from any of these Nazi officials my complete lack of sympathy with the course they were pursuing nor did I hesitate to say to them what I considered was the danger of the course which they were pursuing not only for Germany but for Europe and the rest of the world. Their freedom of expression to me was all the more interesting in view of the fact that I never hesitated to assert in the strongest possible way the rights of the United States and of its citizens when they were violated. It requires a knowledge of the circumstances of the time, of the character and psychology of these high Nazis and secondary Nazi officials to be able to appreciate that the fact that I was forthright in my views and did not hesitate to express them and particularly that we stood out so strongly for the rights of our country and our citizens that led them to respect me and my associates and to reveal to me more than they very probably revealed to other foreign representatives. Whatever the reasons may have been, however, the Nazi Government officials, almost without exception from the highest to the lowest with whom I had contact, were on most occasions amazingly frank in their conversation and without any concealment of their aims.

* * * * *

[Omitted is a part of this affidavit in which Mr. Messersmith lists the names, and states his impressions of, the following:

1. Hermann Goering
2. General Milch
3. Hjalmar Schacht
4. Hans Frank
5. Wilhelm Frick
6. Count Schwerin von Krosigk
7. Joseph Goebbels
8. Richard Walther Darré
9. Robert Ley
10. Hans Heinrich Lammers
11. Otto Meißner
12. Franz von Papen
13. Walther Funk
14. General Wilhelm Keitel
15. Admiral Eric von Raeder
16. Admiral Karl Doenitz
17. Dr. Bohle
18. Dr. Stuckert
19. Dr. Krupp von Bohlen
20. Dr. Davidson]

In the late spring or early summer of 1934, I cannot recall the exact date, I left my post as Consul General at Berlin to go to Vienna where I remained until the late spring of 1937. During my stay in Austria, I had intimate official and personal contact with the highest officials of the Austrian Government as well as with many of the secondary and lower ranking officials. I had this intimate contact with these officials of the Austrian Government from the very outset due, undoubtedly, to the fact that when I came to Austria it was already well known that I was an outspoken opponent of all that the Nazi Government and leaders stood for. In consequence, even though I was the Minister of a country which was considered in Austria as having no immediate concern in Austria's foreign relations, I received much information from the many Austrian officials on developments in Austro-German relations and in their relations with other

countries in Europe. Among those whom I saw frequently and from whom I obtained information were the following:

President Miklas
Chancellor Dollfuss
Chancellor Schuschnigg
Foreign Minister Berger-Waldenegg
Police President and Minister of Security, Hofrat Skubl.

In addition, I should add that there were both in Berlin and in Vienna a corps of correspondents, many of whom were of outstanding ability and with whom I was in frequent contact.

Finally, I should say that during my stay in Austria I made fairly frequent trips to Berlin and on many of these saw and talked with the same persons whom I had known during my residence there as Consul-General. Thus I maintained my German sources of information as well as acquiring new Austrian ones.

I feel fully qualified, therefore, to speak with authority on the matters which follow in this statement. The specific conversations and events which I recite are, of course, specific facts which I set forth here as facts. As to many of them, I have refreshed my recollection as details from contemporaneous reports and letters which I wrote during this period. The opinions which I offer are, I believe, fully warranted by the sum total of information which I received from all sources.

From the very beginnings of the Nazi Government, I was told by both high and secondary Government officials in Germany that incorporation of Austria into Germany was a political and economic necessity and that this incorporation was going to be accomplished "by whatever means were necessary". Although I cannot assign definite times and places, I am sure that at various times and places every one of the German officials whom I have listed earlier in this statement told me this with the exception of Schacht, von Krosigk and Krupp von Bohlen. I can assert that it was fully understood by everyone in Germany who had any knowledge whatever of what was going on that Hitler and the Nazi Government were irrevocably committed to this end and the only doubt which ever existed in conversations or statements to me was "how" and "when".

At the beginnings of the Nazi regime in 1933, Germany was, of course, far too weak to permit any open threats of force against any country, such as the threat which the Nazis made in 1938. Instead it was the avowed and declared policy of the Nazi Government to accomplish the same results which they later accomplished through force through the methods which had proved so successful for them in Germany—obtain a foothold in the cabinet, particularly in the Ministry of the Interior which controlled the police, and then quickly eliminate the opposition elements. During my stay in Austria I was told on any number of occasions by Chancellor Dollfuss, Chancellor Schuschnigg, President Miklas and other high officials of the Austrian Government that the German Government kept up constant and unceasing pressure upon the Austrian Government to agree to the inclusion of a number of Ministers with Nazi orientation. The English and French Ministers in Vienna with whom I was in constant and close contact confirmed this information through statements which they made to me of conversations which they had with high Austrian officials.

In order to compel the Austrian Government to accept their terms the Nazis resorted to almost every conceivable measure, including economic pressure, propaganda, and most important of all, terroristic acts. My information concerning these terroristic outrages came partly from official communiques of the Austrian Government, partly from responsible news sources, and to a very considerable extent from Skubl, the Police President and later Minister of Public Security, whom I saw frequently and knew well. The Austrian secret police under the direction of Skubl, it should be noted, was one of the most efficient in all of Europe.

The outrages were an almost constant occurrence, but there were three distinct periods during which they rose to a peak. During the first two of these periods—in mid-1933, and in early 1934—I was still in Berlin. However, during that period I was told by high Nazi officials in conversation with them that these waves of terror were being instigated and directed by them. I found no concealment in my conversations with high Nazi officials of the fact that they were responsible for these activities in Austria. These admissions were entirely consistent with the Nazi thesis that terror is necessary and must be used to impose the will of the Party not only in Germany but in other countries. I recall specifically that General Milch was one of those who spoke frankly that these outrages in Austria were

being directed by the Nazi Party and expressed his concern with respect thereto and his disagreement with this definite policy of the Party.

During the wave of terroristic acts in May and June 1934, I had already assumed my duties as American Minister in Vienna. The bomb outrages during this period were directed primarily at railways, tourist centers, and the Catholic Church, which latter, in the eyes of the Nazis, were one of the strongest organizations opposing them. I recall, however, that these outrages diminished markedly for a few days during the meeting of Hitler and Mussolini in Venice in mid-June 1934. At that time Mussolini was strongly supporting the Austrian Government and was strongly and deeply interested in maintaining Austrian independence and sovereignty and in keeping down Nazi influence and activity in Austria. At that time also Hitler could not afford an open break with Mussolini and undoubtedly agreed to the short cessation of these bomb outrages on the insistence of Mussolini because he, Hitler, wished to achieve as favorable an atmosphere for the meeting between him and Mussolini as possible. The cessation of the bomb outrages during the Hitler-Mussolini conversations was considered by me and by the Austrian authorities and by all observers at that time as an open admission on the part of Hitler and the German Government that the outrages were systematically and completely instigated and controlled from Germany.

While I cannot recall at this time the details of the terroristic acts, they were fully reported in the Legation despatches of the period. These reports were based upon intimate and frequent contact with high Austrian officials and many of the details I received from the then head of the Austrian Police, Dr. Skubl. While there was no doubt whatever that these outrages had been conducted and directed by Germany, there was ample evidence as to the origin of the outrages from the fact that fragments of the bombs collected by the Austrian police showed that they were of German manufacture and had been introduced from Germany into Austria. While I do not recall having seen any of these bomb fragments myself, I recall specifically having been told by high Austrian authorities that they had seen them and that there was no doubt as to the origin of the bombs. A further proof that these outrages were directed from Germany, although in most cases the bombs were actually planted by Austrian Nazis, is found in the fact that the records of the Vienna Police and Courts at the time will show that when

some of these Nazis were arrested they declared proudly that they had committed these acts.

At various times I or A. W. Kliefoth, Counselor of the Legation, reported on these outrages because of their significance. Quotations from some of these despatches are as follows:

Trunks containing inflammable material were placed in the three leading railway stations of Vienna and timed to explode simultaneously on the evening of May 6. The damage was very slight. The police charged the Nazis with the Crime.

An official communique, dated May 10, announced that on the previous evening a bomb was exploded near the Philadelphia Bridge in Vienna, wounding two persons. The same evening a bomb was exploded in one of the local beer gardens, at which a picnic of the Heimwehr was being held, slightly wounding a woman.

Official despatch from Vienna dated May 15, 1934.

During the past week the continuation of the Nazi terrorist activities in bombing public places and railway lines, with the object of damaging the Austrian tourist trade, some of which are described below, was the source of serious concern to the authorities. This terrorism was carried out according to a well organized plan, undoubtedly conducted by Nazi agents in Germany. The explosives used by the Nazis during the past week, according to the Foreign Office, were all manufactured in Germany and smuggled into Austria.

In a communique dated May 24, the authorities also admitted a number of other bomb outrages at Brannau, Bad Ischl and Dorf an der Pram. While the damage to both life and property was small—no lives were lost—the Government admitted its inability to cope with the situation with the existing measures of security.

The authorities further confirmed officially, on May 25, a bomb explosion on May 23 in the residence of the Archbishop of Salzburg, which caused considerable damage. At Monag, near

Salzburg, on May 23, a bomb explosion wrecked a flower-kiosk, causing damages amounting to 10,000 schillings. A nine year old child was severely injured in Anleiten, near Ried.

Official Despatch from Vienna dated May 29, 1934.

The Nazi terrorist outrages continued during the past week in spite of the Government's notification regarding the application throughout Austria of martial law for crimes of public violence. These crimes, now punishable by death, include malicious acts against public order, and damage to the railway, telegraph, telephone and wireless services of the State.

The new development in the recent outrages was that many of the acts were directed against the property of the Roman Catholic Church, which in the eyes of the Nazis was the strongest organization opposing the Nazi regime.

In addition to the attempted bombing of the Archbishop's palace in Salzburg, a few days previously, a bomb was exploded on May 20 in an annex to the Archbishop's palace in Feldkirch, which caused minor damages. The police charged Nazis with the outrages and arrested a number of suspects. During the night of May 27, a bomb explosion broke windows in the churches and vicarages of St. Paul in Carinthia.

In Linz, on May 26, a bomb exploded before the entrance of one of the schools, breaking 44 windows. The school was empty at the time the outrage was committed. During the same night, an attempt was made to blow up the electric works at Brannau, causing a temporary suspension of the electric service.

Other outrages, not reported by the press, included an attempt to blow up one of the bridges over the Danube in Vienna on May 30, a bomb explosion in one of the popular cafes, and numerous bombings of telephone and newspaper kiosks.

Official Despatch from Vienna dated June 4, 1934.

The National Socialist terrorism in Austria, which started slowly and cautiously several weeks ago, culminated in a heavy and rather serious outbreak on June 8 to June 11, threatening not

only the peace and security of the country, but the foreign tourist trade, an exceedingly important item in Austria's economic life. The attempts to wreck the railway lines near Vienna and in other parts of Austria, as well as terrorist outrages in the principal tourist centers, occupied the attention of the Government above all other matters. After a number of important cabinet sessions, new measures were adopted to counteract the terrorism, and the matter was also the subject of diplomatic conversations between Austria and Germany.

Official Despatch from Vienna dated June 13, 1934.

The outrages in Austria during the week ending June 23, while almost as numerous as in the week preceding, were less violent in character. The attacks were directed, as heretofore, against the quarters of anti-Nazi associations and persons, public utilities, but less against the railway communications. Additional stores of explosive materials were uncovered in Vienna and elsewhere.

* * * * *

A recent terrorist explosion in the Vienna School of Agronomy caused damages amounting to about 40,000 schillings. As a result of the Nazi outrages, the school has been closed for one week.

In an attempted bomb attack on the post office in Bregenz, the capital of the Province of Vorarlberg, the police seized a supply of explosives bearing labels of "Sprengstoffwerke Kloster Lechfeld, G.m.b.H.", "Dynamit A.G. Hamburg, Alfred Nobel & Co.", and "Fabrik Wurzendorf", explosive factories domiciled in Germany.

Official Despatch from Vienna dated June 25, 1934.

During the week ending June 30 there were less terrorist outrages of major importance, but the number of small outrages, bomb explosions, attacks on electric, water, and railway establishments had not decreased. The principal attacks were directed against Catholic institutions, ex-National Socialists, and the city of Salzburg. The purpose in the latter case was to

frighten foreign tourists away from the Summer Music Festivals at Salzburg.

A bomb which exploded in the Roman Catholic vicarage in Kapfenberg, in the Province of Styria, on June 24, resulted in the death of the Chaplain, Reverend Franz Eibel. Several other persons were slightly injured. The death was one of terrorism, although there were several cases of attacks. Likewise there were attacks on other Church institutions in different parts of the country.

A series of outrages were reported on June 28 from Salzburg and adjoining tourist centers. Bombs were exploded in the market place and elsewhere, and attempts were made to blow up the electric and railway communications. The outrages were particularly directed at Salzburg at this time in view of the forthcoming Summer Festivals, which ordinarily attract thousands of non-German tourists. Similar attacks were made the same day in the Provinces of Vorarlberg and Tyrol.

Official Despatch from Vienna dated July 3, 1934.

A series of lesser outrages were reported from all parts of Austria on Sunday, July 15. A large amount of explosives were stolen from a shop in Gloggnitz; the director of the institution was fined 600 schillings and sentenced to two weeks imprisonment for negligence in guarding the supplies. In Unterkirchen, on July 17, a bomb explosion damaged the local vicarage and the electric works. On July 18 a bomb explosion in Innsbruck injured one person, whereas in St. Kathrein a house was damaged. In Vienna on July 18 a public telephone was damaged, and set on fire. The perpetrator, a National Socialist, was immediately apprehended by the Police. At Edlach, a summer resort about 100 kilometers from Vienna, an attempt was made to bomb the railway. A similar attempt was made in a Tyrolian mountain railway station.

Official Despatch from Vienna dated July 26, 1934.

In addition to these outrages, the Nazis attempted to bring pressure upon Austria by means of the “Austrian Legion”. This organization, a paramilitary force of several thousand men, was stationed near the Austrian border in Germany as a constant and direct threat of violent action against Austria. It was without any question sanctioned by the Nazi Government of Germany as it could otherwise not have existed, and it was armed by them. It was made up of Austrian Nazis who had fled from Austria after committing various crimes in Austria and by Austrians in Germany who were attracted by the idle life and pay given by the German authorities.

After the July Putsch, in August 1934, in Vienna I was told by the British Military Attaché in Vienna of a conversation which he had had with the German Military Attaché in Vienna, General Muff. It may be observed here that to my knowledge General Muff was a rather influential person in Germany and one who played a preponderant role in the German Legation in Vienna. General Muff told the British Military Attaché that he had just been in Germany and had spent three days with Hitler at Berchtesgaden, during which time he had several conversations with Hitler. He said then—in August 1934—that the Austrian Legion had not yet been dissolved and that Hitler had talked at length with him about the Legion. General Muff did not deem it worth while to conceal to the British Military Attaché the fact that the Austrian Legion had been armed and that the Nazis had armed it. I saw General Muff later myself and received the same impression as to these facts although he was not as frank and direct in his statements with me as he had been with the British Military Attaché.

The events of the Putsch of July 25, 1934, are too well known for me to repeat them in this statement. I need say here only that there can be no doubt that the Putsch was ordered and organized by the Nazi officials from Germany through their organization in Austria made up of German Nazis and Austrian Nazis. Dr. Rieth, the German Minister in Vienna, was fully familiar with all that was going to happen and that was being planned. The German Legation was located directly across the street from the British Legation and the Austrian secret police kept close watch on the persons who entered the German Legation. The British had their own secret service in Vienna at the time and they also kept a discreet surveillance over people entering the German Legation. I was told by both British and Austrian officials that a number of the men who were later found guilty by the

Austrian Courts of having been implicated in the Putsch had frequented the German Legation. In addition, I personally followed very closely the activities of Dr. Rieth and I never doubted on the basis of all my information that Dr. Rieth was in close touch and constant touch with the Nazi agents in Austria; these agents being both German and Austrian. Dr. Rieth could not have been unfamiliar with the Putsch and the details in connection therewith. I recall, too, very definitely from my conversations with the highest officials of the Austrian Government after the Putsch, their informing me that Dr. Rieth had been in touch with von Rintelen, who it had been planned by the Nazis was to succeed Chancellor Dollfuss had the Putsch been successful.

It may be that Dr. Rieth was himself not personally sympathetic with the plans for the Putsch but there is no question that he was fully familiar with all these plans and must have given his assent thereto and connived therein.

As this Putsch was so important and was a definite attempt to overthrow the Austrian Government and resulted in the murder of the Chancellor of Austria, I took occasion to verify at the time for myself various other items of evidence indicating that the Putsch was not only made with the knowledge of the German Government but engineered by it. I found and verified that almost a month before the Putsch, Goebbels told Signor Cerruti, the Italian Ambassador in Berlin, that there would be a Nazi Government in Vienna in a month. On the evening before the Putsch, a pamphlet appeared in the streets of Berlin from which it appeared that the Nazi Government had full knowledge of what was planned the next day in Vienna. An attempt was made by the German authorities in Berlin to suppress this pamphlet and this effort was partly successful but copies of it were available at the time and I recall an officer of our Embassy in Berlin, whose name I cannot specifically recall at this time, informing me that he had seen a copy thereof. Articles also appeared in some of the German papers of July 25, indicating that they had information as to the time that the Putsch was to take place. I will not go into detail as to the character of the evidence but there is no question from the historical record and the facts as known to me from direct knowledge at the time that the Putsch was engineered and directed by the German Government from Berlin and Munich.

For two years following the failure of the July 25 Putsch, the Nazis remained relatively quiet in Austria. Very few terroristic acts occurred during the remainder of 1934 and as I recall in 1935 and most of 1936; this inactivity was in accordance with directives from Berlin as direct evidence to that effect, which came to my knowledge at that time, proved. Early in January, the Austrian Foreign Minister, Berger-Waldenegg, furnished me a document which I considered accurate in all respects and which stated:

“The German Minister here, von Papen, on the occasion of his last visit to Berlin, was received three times by Chancellor Hitler for fairly long conversations, and he also took this opportunity to call on Schacht and von Neurath. In these conversations the following instructions were given to him:

“During the next two years nothing can be undertaken which will give Germany external political difficulties. On this ground, everything must be avoided which could awaken the appearance of Germany interfering in the internal affairs of Austria. Chancellor Hitler will, therefore, also for this reason not endeavor to intervene in the present prevailing difficult crisis in the National Socialist Party in Austria, although he is convinced that order could be brought into the Party at once through a word from him. This word, however, he will, for foreign political reasons, give all the less, as he is convinced that the for him desirable ends may be reached also in another way. Naturally, Chancellor Hitler declared to the German Minister here, this does not indicate any disinterestedness in the idea of Austria’s independence. Also, before everything, Germany cannot for the present withdraw Party members in Austria, and must, therefore, in spite of the very real exchange difficulties, make every effort to bring help to the persecuted National Socialist sufferers in Austria. As a result, Minister of Commerce Schacht finally gave the authorization that from then on 200,000 marks a month were to be set aside for this end (support of National Socialists in Austria). The control and the supervision of this monthly sum was to be entrusted to Engineer Reinthaler, who, through the fact that he alone had control over the money, would have a definite influence on the Party followers. In this

way it would be possible to end most quickly and most easily the prevailing difficulties and division in the Austrian National Socialist Party.

“The hope was also expressed to Herr von Papen that the recently authorized foundation of German ‘Ortsgruppen’ of the National Socialist Party in Austria (made up of German citizens in Austria) would be so arranged as not to give the appearance that Germany is planning to interfere in Austrian internal affairs.

“He was also informed that an effort would be made through the easing of the Ausländerbeschränkung, particularly with reference to the more westerly Austrian Alps sections, so that to the German-Austrian Alpenverein (Alps Association) a particular role was to be given. The easing of the Ausländerbeschränkung was naturally only to be accorded to those who obligated themselves to visit the more westerly Austrian Alps sections and to go to fixed towns and live in specified hotels or inns.”

This policy of the Nazis was dictated solely by considerations of expediency. The basic aim of achieving Anschluss remained wholly unchanged. The brutal murder of Dollfuss, the Austrian Chancellor, and the unquestioned direct attack on Austrian sovereignty through the Putsch, directed by the German Government from Germany, had so shocked public opinion in Austria and in Europe that the Nazis could not afford for the time being to take open action.

That the policy of Anschluss remained wholly unchanged was confirmed to me by Franz von Papen when he arrived in Vienna as German Minister. It will be recalled that he accepted this assignment as German Minister even though he knew that he had been marked for execution in the St. Bartholomew’s massacre on June 30, 1934. When, in accordance with protocol, he paid me a visit shortly after his arrival in Vienna, I determined that during this call there would be no reference to anything of importance and I limited the conversation strictly to platitudes which I was able to do as he was calling on me in my office. I deemed it expedient to delay my return call for several weeks in order to make it clear to von Papen that I had no sympathy with and on the other hand was familiar with the objectives of his mission in Austria. When I did call on von Papen in the German Legation,

he greeted me with "Now you are in my legation and I can control the conversation". In the baldest and most cynical manner he then proceeded to tell me that all of Southeastern Europe, to the borders of Turkey, was Germany's natural hinterland, and that he had been charged with the mission of facilitating German economic and political control over all this region for Germany. He blandly and directly said that getting control of Austria was to be the first step. He definitely stated that he was in Austria to undermine and weaken the Austrian Government and from Vienna to work towards the weakening of the Governments in the other states to the South and South East. He said that he intended to use his reputation as a good Catholic to gain influence with certain Austrians, such as Cardinal Innitzer, towards that end. He said that he was telling me this because the German Government was bound on this objective of getting this control of Southeastern Europe and there was nothing which could stop it and that our own policy and that of France and England was not realistic.

The circumstances were such, as I was calling on him in the German Legation, that I had to listen to what he had to say and of course I was prepared to hear what he had to say although I already knew what his instructions were. I was nevertheless shocked to have him speak so baldly to me and when he finished I got up and told him how shocked I was to hear the accredited representative of a supposedly friendly state to Austria admit that he was proposing to engage in activities to undermine and destroy that Government to which he was accredited. He merely smiled and said, of course this conversation was between us and that he would, of course, not be talking to others so clearly about his objectives. I have gone into this detail with regard to this conversation as it is characteristic of the absolute frankness and directness with which high Nazi officials spoke of their objectives.

Nazi activities, forced underground in this period, were by no means neglected. The Party was greatly weakened for a time as a result of the energetic measures taken against the Putsch and as a result of the public indignation. Reorganization work was soon begun. In October 1934 the Austrian Foreign Minister, Berger-Waldenegg, furnished me the following memorandum, which he told me had been supplied to the Austrian Government by a person who participated in the meeting under reference.

“A meeting of the chiefs of the Austrian National Socialist Party was held on the 29th and 30th of September, 1934, at Bad Aibling in Bavaria.

“The meeting occupied itself principally with the reorganization of the Austrian National Socialist Party and particularly with the measures to be taken to this end in the Tirol.

“Measures were decided upon as to the means to be used to create better contact between the party leadership and its members as well as with respect to new propaganda measures.

“One principal point on the agenda had reference to the preparatory measures to be taken for taking over the power in Austria. It was decided to give to all of the Party Headquarters in Austria instructions preparatory to new Terroristic acts. The necessary material, however, is nevertheless until new instructions are issued not to be transported from the German border into Austria, but shall be kept assembled at appropriate places on the German side of the entire Austro-German frontier.

“From a report received by the Party chiefs on the situation in Vienna and upper Styria, it is established that agreements have been concluded with the Communists and with the Socialists with respect to a uniform and common procedure.

“The agents of the Party Direction in Germany have received orders in every Austrian district to prepare lists of all those persons who are known to actively support the present Government and who are prepared closely to cooperate with it.

“When the next action against the Government takes place these persons are to be proceeded against just as brutally as against all those other persons, without distinction of party, who are known to be adversaries of National Socialism.

“In a report of the Party leaders for Austria the following principles have been emphasized:

“A. The taking over of the power in Austria remains the principal duty of the Austrian National Socialist Party. Austria has for the German Reich a much greater significance and value

than the Saar. The Austrian problem is the problem. All combat methods are consecrated by the end which they are to serve.

“B. We must on every occasion which presents itself appear to be disposed to negotiate, but arm at the same time for the struggle. The new phase of the struggle will be particularly serious and there will be this time two centers of the terror, one along the German frontier and the other along the Yugoslav frontier.”

The Austrian Legion was kept in readiness in Germany. Although it was taken back some miles further from the Austrian frontier, it remained undissolved in spite of the engagement which had been taken to dissolve it. The Austrian Government received positive information to this effect from time to time which it passed on to me and I had direct information to the same effect from reliable persons coming from Germany to Vienna who actually saw the Legion.

On the surface, however, German activities consisted principally of efforts to win the support of prominent and influential men through insidious efforts of all kinds, including the use of the German Diplomatic Mission in Vienna and its facilities and personnel. Von Papen as German Minister entertained frequently and on a lavish scale. He approached almost every member of the Austrian Cabinet, telling them, as several of them later informed me, that Germany was bound to prevail in the long run and that they should join the winning side if they wished to enjoy positions of power and influence under German control. Of course, openly and outwardly he gave solemn assurance that Germany would respect Austrian independence and that all that she wished to do was to get rid of elements in the Austrian Government like the Chancellor, Schuschnigg and Starhemberg as head of the Heimwehr and others, and replace them by a few “nationally-minded” Austrians, which of course meant Nazis. The whole basic effort of von Papen was to bring about Anschluss.

In early 1935, the Austrian Foreign Minister, Berger-Waldenegg, informed me that in the course of a conversation with von Papen, the latter had remarked “Yes, you have your French and English friends now and you can have your independence a little longer”. The Foreign Minister, of course, told me this remark in German but the foregoing is an accurate translation.

The Foreign Minister told me that he had replied to von Papen "I am glad to have from your own lips your own opinion which agrees with what your chief has just said in the Saar and which you have taken such pains to deny." Von Papen appeared to be terribly upset when he realized just what he had said and tried to cover his statements, but according to Berger-Waldenegg, kept constantly getting into deeper water.

Von Papen undoubtedly achieved some successes, particularly with men like Glaise-Horstenau and others who had long favored the "Grossdeutschtum" idea, but who nevertheless had been greatly disturbed by the fate of the Catholic Church. Without conscience or scruple, von Papen exploited his reputation and that of his wife as ardent and devout Catholics to overcome the fears of these Austrians in this respect.

Developments in the fall of 1935 and the spring of 1936 gave Germany an opportunity to take more positive steps in the direction of the Nazification of Austria. Italy, which had given Austria assurance of support of the most definite character against external German aggression, and on one occasion by mobilizing her forces, had undoubtedly stopped German aggressive action which had been planned against Austria, embarked on her Abyssinian adventure. This and the reoccupation of the Rhineland in 1936 completely upset the balance in Europe. The French and the British Minister informed me that as early as August 1935, they had informed their Governments, on the basis of conversations with the Austrian Foreign Minister, that if there was to be any Danubian Pact, it would have to come into being rapidly for the Austrian Government would be forced to negotiate with Germany even though it would have no confidence that any such agreement arrived at would be respected.

The result of all these forces was the Austro-German accord of July 11, 1936, the public text is as follows:

"Convinced that they are thereby rendering a valuable contribution toward the peaceful development of Europe, and believing that they are thereby doing the best service to the various common interests of the two German States, the Government of the German Reich and the Government of the Austrian Federal State have decided to restore normal and friendly mutual relations.

“It is therefore declared:

“1. In the sense of the statement made by the Fuehrer and Reich Chancellor on May 21, 1935 the German Government recognizes the full sovereignty of the Federal State of Austria.^[2]

FOOTNOTES:

^[2] On May 1935, in a speech in the Reichstag, Hitler had stated with respect to Austria (I quote from *Documents on International Affairs*, Vol. I, 1935, published by the *Royal Institute of National Affairs*, (London, 1936) p. 171):

“Germany neither intends nor wishes to interfere in the internal affairs of Austria, to annex Austria, or to conclude an “*Anschluss*“. The German people and the German Government have, however, the very comprehensible desire, arising out of a simple feeling of solidarity due to a common national descent—namely, that the right to self-determination should be guaranteed, not only for foreign nations but to the German people everywhere. I myself believe that no regime which does not rest on public consent and is not supported by the people can continue permanently.”

“2. Each of these two Governments shall regard the internal political conditions of the other country, including the question of Austrian National-Socialism, as a domestic concern of that country, upon which it will exert neither direct nor indirect influence.

“3. The Austrian Federal State Government’s general policy and its policy toward Germany in particular shall be constantly guided by the Principle that Austria recognizes herself to be a German State. The Rome Protocol of 1934, together with its additional clauses of 1936, and the relations of Austria to Italy and Hungary, as partners in the said protocols are not hereby affected.

“Recognizing that the relaxation of tension desired by both parties can be brought about only if in addition certain preliminary conditions are established by the Governments of both countries, the Reich Government and the Austrian Federal

Government shall in a series of detailed measures create these required preliminary conditions.”

Even more important than the terms of the agreement published in the official communique, was the contemporaneous informal understanding, the most important provisions of which were, that Austria would (1) appoint a number of individuals enjoying the Chancellor’s confidence but friendly to Germany to positions in the Cabinet; (2) would devise means to give the “national opposition” a role in the political life of Austria and within the framework of the Patriotic Front, and (3) would amnesty all Nazis save those convicted of the most serious offenses. This amnesty was duly announced by the Austrian Government and thousands of Nazis were released, and the first penetration of the *Deutsche Nationaler* into the Austrian Government was accomplished by the appointment of Dr. Guido Schmidt as Secretary of State for Foreign Affairs, and of Dr. Edmund Glaise-Horstenau as Minister without portfolio.

The significance of these arrangements can best be explained by quoting from an official dispatch which I wrote in October 1934 when concern was being expressed with regard to conversations which Chancellor Schuschnigg was reported as having with the “moderate Nazis”, Reinthaller and Riehl. I then reported as follows:

“It is obvious, however, that in view of certain well known facts, these conversations will be followed with interest. A major consideration which will not be disregarded is the fact that Chancellor Hitler himself has always been in favor of indirect rather than direct action in bringing Austria into the German picture. It is his belief that the way to be followed is to get representatives of the National Socialist Party into the penetration. It is an indication of political astuteness, for it is quite certain, in the opinion of many objective observers, that if once a militant, even though small, National Socialist minority gets representation in the Cabinet, it will be the forerunner of absorption. To explain why this is so is rather difficult, as it requires a full appreciation of many factors at play in Germany and in Austria. Briefly, however, it may be epitomized in the terroristic policy which is one of the primary principles of National Socialism. Even before July 25, when the National

Socialist Party was legally prohibited, it was very difficult to get proper police and judicial action against National Socialists who committed terroristic acts or who were plotting against the Government. This inaction came, not through sympathy with the movement or through lack of definite knowledge of overt acts, but through fear—through fear of reprisals when a National Socialist regime might come, and that if it did come, those who had proceeded, even though in the line of duty, against National Socialists, would be dealt with with the barbarity and intolerance with which National Socialism has treated its opponents in Germany. The determined attitude of the Government after July 25, strengthened the administration of justice and of the security forces, and this changed attitude came about as a result not only of the feeling within the country that National Socialism would not come now, but also as a result of the action of the powers in support of the independence of Austria. Should the conversations which the Government is having with the National Socialist groups reawaken this fear, or should there be any weakening of the attitude of the Government towards National Socialist be admitted even to indirect or subordinate participation in the Government, it would undoubtedly bring back this fear in an even more acute form and bring into what element of weakness.

“The fact that these conversations are taking place need, therefore, not be considered as being intrinsically a disturbing factor in the internal and external situation of Austria, but should these National Socialist elements in the Government, there is reason for the gravest concern, not only so far as the internal situation in Austria is concerned, but this might become the focal point of disturbance without the country * * *”

The sequel of the agreement was the only one which could have been expected in view of all the facts and previous recorded happenings. Active Nazi operations in Austria were resumed under the leadership of a certain Captain Leopold, who it was known definitely was in frequent touch with Hitler. The Nazi program was now to form an organization through which the Nazi could carry on their operations openly and with legal sanction in

Austria. There were formed in Austria several organizations which had a legal basis but which were simply a device by which the Nazis in Austria could organize, and later seek inclusion as a unit in the Patriotic Front. The most important of these was the *Ostmarkischer Verein*, the sponsor of which was the Minister of the Interior Glaise-Horstenau. Through the influence of Glaise-Horstenau and the pro-Nazi Neustadter-Sturmer, this organization was declared legal by the Courts. I made specific mention of the foregoing because it shows the degree to which the situation in Austria had disintegrated as a result of the underground and open Nazi activities directed from Germany.

Even more open recognition of the Nazis was demanded. In January 1937, Captain Leopold submitted a memorandum of Nazi demands, which, though not formally received, were known to and considered by the Austrian Cabinet.

The Leopold memorandum is as follows:

For the Internal Pacification of Austria.

* * * * *

[In Mr. Messersmith's affidavit there appears at this point the body of Captain Leopold's lengthy memorandum. It includes Captain Leopold's statement of the existing situation in Austria. It includes the following demands: (1) An amnesty for all punishments or privations suffered for National Socialist or National activity or sympathy; (2) equal treatment for National Socialists, including freedom of political activity and cultural activity; abolition of laws and sanctions used by the Government against Nazi activity. The memorandum advocates cooperation on the basis of political principles including: A broadening of the Patriotic Front; changes in the Cabinet; an alliance with the Reich; common racial stock as a political aim, and the application of anti-Semitic measures; an early plebiscite on Anschluss.]

Later, a petition circulated by Leopold was submitted to the Austrian Government, demanding authorization to form a "nationalistic party", which was to be incorporated as a group in the Political Front. It was a Party which its sponsorship plainly marked as openly Nazi. Pressure for the acceptance of these demands was exercised by staging frequent

demonstrations and circulating propaganda, all of which was financed in and from Germany. Even as soon after July 11 as July 29, 1936, when the Olympic Torch was carried through the streets of Vienna, there were violent Nazi disorders. From then on, and until Austrian sovereignty was destroyed, there were constant arrests and trials of persons accused of distributing illegal literature or staging illegal demonstrations, accompanied by numerous press comments of more or less violence.

The Austrian Government sought to counteract this pressure in some way by allowing activity in favor of a restoration of the Hapsburgs. On his visit to Vienna in late February 1937, von Neurath took occasion to register Germany's emphatic opposition to any such move. I remember von Neurath's visit very clearly. I had known him well and was on friendly terms with him while I was stationed in Berlin. At that time and after the Nazi came into power, he told both Ambassador Dodd and me that he had remained as Foreign Minister when the Nazi came into power in order that he might exercise "a restraining influence" and render service to his country. This may have been the initial motive of von Neurath but he rapidly became one of the most complete and in some ways effective instruments of the Nazis. If he was not in accord with what they did, he was a perfect instrument in helping to carry it through.

Although I had known him well in Berlin and had on occasions been in his house in small gatherings, when he came to Vienna in 1937, there were a number of ceremonies and receptions given by the Austrian Government to which the Diplomatic Corps was invited. When he met me at these meetings he treated me with great coolness and even disdain, knowing my complete lack of sympathy with the program to which he had committed himself, and this manner of treating me with disdain and open disregard was probably his way of protecting himself and his own feelings of shame. Shortly after the visit of von Neurath, Chancellor Schuschnigg in my conversations with him told me that in his conversations with von Neurath, during the visit, von Neurath had been just as bad as if Habicht or Frauenfeld had been talking when they had discussed the German demands for the inclusion of Nazis in the Austrian Cabinet.

About the same time, Schuschnigg made some concessions to ease the pressure from the Nazis. In February, he appointed a so-called "Committee of Seven", consisting among others of Dr. Jury and a man named Tavs, to

discuss “nationalistic ambitions” with him. In June, following the visit of Glaise-Horstenau and General Kraus and Leopold to Hitler in Berlin, and the increased Nazi activities following, Schuschnigg appointed Seyss-Inquart and Dr. Pembauer to devise a means whereby the “Nationalists” could be incorporated into the Patriotic Front.

Dr. Seyss-Inquart himself was a prominent Vienna Lawyer, who had long been an intimate personal friend of Chancellor Schuschnigg. The Chancellor himself told me on various occasions that Dr. Seyss-Inquart had frequently attempted to convince him that the admission of the Nazi into the Austrian Cabinet would be for the best interest of Austria, in that it would relieve the pressure on Austria by Germany, and that he (Seyss-Inquart) at all times professed a sincere desire to maintain the independence of Austria. I had little personal contact with Seyss-Inquart but I knew from various sources absolutely reliable that while Seyss-Inquart was making these protestations to the Chancellor with whom he had had this intimate friendship, and which the Chancellor repaid by his confidence, Seyss-Inquart was in fact completely insincere. He was known at the time, and I had knowledge of this, to be in frequent contact with many high officials of the German Government and that he had had contact with Hitler himself. My information on this point was obtained not only from sources in Austria but also from acquaintances in Germany. There is only one thing which can be said in favor of Seyss-Inquart at the time and that is that he perhaps did believe the German protestations made to him that Austria’s independence would be respected. It is difficult, however, to conceive that a man who was known to have the legal ability and intelligence of Seyss-Inquart could have been completely taken in by these protestations. The probabilities are that at least from the outset he used his friendship with Chancellor Schuschnigg in order to help to destroy the independence of his country in order to make a place for himself.

I left Vienna on July 11, 1937, in order to assume the post of Assistant Secretary of State in Washington. I, therefore, left Vienna before the final tragedy occurred. The final outcome, however, was then already foreseeable. From the tenor of the Italian Minister’s conversations with me it was clear that Italy would not or could not any longer defend Austria militarily against German aggression. It was also clear that Austria could not resist the German pressures alone. Although France had given very

definite assurances as to her interest in maintaining Austria's independence and England had expressed her interest therein, the Austrian Government was less and less able to be assured of real support. When the Austrian government could no longer expect the full military support of Italy, it knew that its fate was sealed. Hitler was, therefore, free to work his will in Austria. The only question remaining was when he would do it and when he considered it opportune. The work of disintegration, set forth in this statement, had had its effect. Early in 1938, apparently satisfied that England and France would not move and knowing that Italy could not and would not oppose him, Hitler struck the final blow at Austria's independence, bringing to a climax what must be recorded in history as one of the most insidious, dastardly, unjustified and altogether effective series of measures to undermine and bring about the end of a sovereign state, during the course of which machinations and operations the Nazi Government nevertheless consistently openly proclaimed its friendliness towards Austria and its intentions of maintaining its respect for its sovereignty and independence.

[Signed] G. Messersmith

Subscribed and sworn to before me, William L. Brewster, a Vice Consul of the United States of America, duly commissioned and qualified, in Mexico, D.F., Mexico, this 28th day of August 1945.

[Signed] William L. Brewster
Vice Consul of the United States of America

TRANSLATION OF DOCUMENT 1765-PS

The commissioner for the four year plan
Plenipotentiary for special missions

Berlin W8, Behrenstr. 43, 15 Jan 43

SECRET

To

1. His excellency, the Reich marshal of the Greater German Reich—
commissioner for the four-year plan—

a. Attention the secretary of state Koerner or his representative

- b.* Attention the ministerial dirigent Dr. Gramsch or his representative
 - c.* Attention ministerial councillor Dr. Kadgien or his representative
 - d.* Attention ministerial councillor Legler, or his representative
- 2. the commissioner for the four-year-plan- central planning-Attention state councillor Schieber or his representative.
- 3. The high command of the armed forces
 - a.* Office of economics—attention General Thomas or his representative
 - b.* Special staff HWK, attention Admiral Groos, or his representative
 - c.* Office of foreign intelligence, attention Admiral Canaris, or his representative
 - d.* Army Administration Office, attention General Osterkamp, or his representative
 - e.* Armed forces budget dept., attention Ministerial dirigent Dr. Tischbein, or his representative
 - f.* Armed forces administrative dept., attention Intendant General Dr. Biehler, or his representative.
- 4. The High Command of the army—Quartermaster General, attention Maj. Gen. Wagner or his representative.
- 5. The Reich minister for Aviation and supreme commander of the Airforce, attention Field Marshal Milch, or his representative
 - b.* Administrative office of the airforce, attention General Crosrav or his representative
 - c.* Dept. GI—attention chief engineer Sellschopp, or his representative
- 6. The high command of the navy, attention Admiral-General Witzell, or his representative.

7. The Reichsfuehrer SS and Chief of the German Police

- a.* SS Main office of economic administration, attention SS brigadier General Loerner, or his representative.
- b.* SS-Office for raw materials—SS-Colonel Kloth, or his representative.

8. The Foreign Office

- a.* Attention Ministerial Director Wiehl, or his representative
- b.* Attention VLR. Bisse, or his representative
- c.* Attention Minister Hemmen, or his representative

9. The Ammunition Ministry

- a.* Attention Reichsminister Speer, or his representative
- b.* Attention Commercial Attaché Ruckenbrod, or his representative

10. Reich Minister for Nutrition

- a.* Attention Secretary of State Backe, or his representative
- b.* Attention Ministerial Director Dr. Moritz, or his representative

11. Reich Minister of Finance

- a.* Attention Reichsminister Count Schwerin-Krosigk, or his representative
- b.* Attention Ministerial Councillor von Knorre, or his representative
- c.* Attention Government Councillor Nitschke, or his representative

12. The Reichsminister of Economy

- a.* Attention the secretary of State Dr. Landfried, or his representative
- b.* Attention to the under secretary of state von Jagwitz, or his representative

- c.* Attention for the President Kehrl, or his representative
 - d.* Attention to the Ministerial Councillor Dr. Drexel, or his representative
 - e.* Attention of the Chief Councillor of government Dr. Goetze, or his representative
- 13. The Main Office for Reich Security [RSHA]
 - a.* Attention SS-Brigadier General Ohlendorf, or his representative
 - b.* Attention SS-Colonel Schellenberg, or his representative
- 14. The Reich Commissioner for price control
 - a.* Attention Minister Fischboeck, or his representative
 - b.* Attention Government councillor Dr. Wurst, or his representative
- 15. The Auditor-Generals Office of the German Reich
 - a.* Attention Ministerial Councillor Kuesel-Glogau, or his representative
 - b.* Attention Office Councillor Rueger, or his representative
- 16. The Military Commander in France
 - a.* Attention KVCh Dr. Michel, or his representative
 - b.* Attention KVACH Frhr. v. Mahs, or his representative
 - c.* Attention OKVR Bolck, or his representative
 - d.* Attention Intendant of General Staff Lenz, or his representative
- 17. The Military Commander in Belgium and Northern France
 - a.* Attention KV Chief Reeder, or his representative
 - b.* Attention Ministerial dirigent Dr. Schlumprecht, or his representative

- c. Intendant in charge, Intendant of General Staff Fritsch, or his representative
- 18. Commissar of the Reich for the occupied Dutch Territories
 - a. Reichscommissar Dr. Seyss-Inquart, or his representative
 - b. Dept. of industrial economy, attention Chief Councillor of government Dr. Heinemann, or his representative
 - c. Dept. of the four-year plan, attention Mr. Pluemer, or his representative
- 19. Commander of the Armed Forces in the Netherlands
 - a. General Christiansen, or his representative
 - b. Intendant in charge, intendant of General Staff Dr. Geyer, or his representative
- 20. The Plenipotentiary General for Economy in Serbia, Consul General Neuhausen, or his representative
- 21. The Supervisory Office in Paris, attention Lt. Col. Koch, or his representative, two copies
- 22. The Supervisory Office in Belgium, attention Lt. Col. V. Parish, or his representative, two copies
- 23. The Supervisory Office in Lille, attention Major Woehlke, or his representative, two copies
- 24. The Supervisory Office Netherlands, attention SS-Major Hanke, or his representative, two copies
- 25. The Supervisory Office Belgrade, attention Major Werner, or his representative, two copies
- 26. The Roges trading Company Ltd., attention Director Kraney, or his representative

Enclosed I send copy of my second report of findings with the request for acknowledgement.

Heil Hitler
signed: J. Veltjens

Col AC
certified:

Hillmann
office employee

The commissioner for the four-year plan
plenipotentiary for special missions

SECRET

2. Report of findings of the plenipotentiary for special missions

A. Obtaining of war important goods on the black market in the occupied western territories and in Serbia.

I. The black market up to the issue of the order to the plenipotentiary for special missions.

II. Development of the black market since the 1 July 1942.

1. General

2. The organization created by the plenipotentiary for special missions.

3. Scope of the previous purchases (per 30 Nov. 1942).

III. The further development

B. Obtaining of harbor installations and machines from shut down plants.

I. Harbor installations

II. Machines

C. Christmas action.

D. Miscellaneous.

A. Providing of war important goods on the black market in the occupied western territories and in Serbia.

I. The black market up to the issue of the order to the plenipotentiary for special missions.

The beginning of a black market in the occupied territories can already be ascertained in the time before the German troops entered. It started however, on a large scale after the German occupation and as matters were, the occupation authorities could not prevent this.—The following reasons have necessarily led to its rise:

1. The scarcity of goods in consequence of the exploitation and rationing as a result of hoarding as an escape into material values (particularly in metals) and as a result of removal for the purpose of sabotaging the German Military power.
2. The impossibility of enforcing price limits completely and consequently a constant enlargement of the divergence of price between raw materials and finished products on one hand and between goods and wages on the other.
3. The impossibility of controlling the prices on the German model because of the lack of personnel in the German supervisory organizations.
4. The lack of effective support of the counter-measures by the individual administrative state authorities, primarily in France.
5. The inefficient criminal justice of the individual state criminal authorities.
6. The lack of discipline in the civilian population.

This development was accelerated—particularly since the year 1942—by the attitude of numerous offices of the armed forces and other German organizations. The raw materials and finished products needed by these offices could often not be placed at disposal on the desired scale by the home land within the framework of existing priority measures. Consequently it became often actually the practice simply to use the way of supply through the black market. The activity of German agencies on the black market gradually reached an extent which led to increasingly more unbearable conditions; it was daily routine for the black marketeers to offer

their goods simultaneously to several offices for sale and that that office which offered the best price received the merchandise so that the individual German formations in this manner not only snatched the merchandise away from one another, but also, inflated the prices.

Finally the black market dealings took a course which gave impetus to the most serious fears with respect to market- and currency policy. The military commanders in France, Belgium and northern France and the Reichscommissar for the occupied territories of the Netherlands therefore took measures during the course of the year 1941 to bring this development to a halt. However, in this respect the lever was not—at any rate not primarily—inserted at the price side because this promised only little success in the face of the internal conditions prevailing in the occupied territories; just as little could a stricter control of prices be considered at that time. The central occupation authorities rather began to do business themselves on the black market, with the aim of slowly gaining control of it and then to kill it gradually. These actions can be viewed as the predecessors of the organization of the Bfs, (Plenipotentiary for special missions) here also the purchased goods were distributed centrally and because the winding up was also executed through the Roges (in France) or through the AWG (in Belgium) and the Bfs in Holland in conjunction with the department “four year plan” of the Reich commissioner on the one hand and the departments of the Reich on the other. The purchase was at times made through a single purchasing agency. However, such a procedure had to be denied the desired success as long as it was not possible to hold off all the other offices from activity on the black market; it would have been a prerequisite for this, that all central authorities in the Reich had instructed the departments subordinated to them accordingly, but this was only done in part.

Finally, in June 1942 the plenipotentiary for special missions [Bfs] in agreement with all central authorities was ordered to take charge of the seizure and central control of the black markets. With that, the prerequisite for an effective beginning regarding the problem of the black market and with it the struggle against it existed for the first time.

II. Development of the black market since 1 July 1942.

1. General.

The plenipotentiary for special missions has from the beginning on viewed the purpose of the mission given to him less in presenting the highest possible figures of purchases; the final aim was set rather to combat the black market that is, to bring it to an end.

The starting point had to be however, that as long as in the occupied territories an essential part of the goods existing or produced at all, disappears by reason of inefficient control or various other reasons in the black market, in the interest of supplying the German war economy with the most important raw materials and finished products, as textiles and PX rations, seizure of these goods could not be avoided. One fact is overlooked again and again: that the black market is not a phenomenon evoked through the activity of the plenipotentiary for special missions or other departments, but—as is shown under I—has developed inevitably from the economic situation of the market and will exist and have to be exploited in the German interest as long as no way has been found to break it up completely or at least check it to the extent that the amount of goods caught through it are meaningless within the framework of the total supply. However, the figures given later on in detail show that for the time being there cannot be any question about it.

But the figures given later on show also that the purchases made on the black market could contribute essentially to the covering of many gaps in the supply of the German war economy without impairing the quota of deliveries in the occupied territories. Therefore the purchases can already for this reason not be refrained from as long as it has not been established that the goods can be secured in another way. The objection that these goods could have been secured anyhow within the frame work of the normal supply—and then much cheaper,—is incorrect. A typical example is the result of the last negotiations with France regarding leathersgoods: Upon the desire of the Reichsminister of economics, the chief plenipotentiary for special missions had agreed to stopping the purchases on the leather and hide market, if the French who had complained about the German buying activity on the black market, would oblige themselves to deliver additionally in 1943 the same amount which had been bought in 1942 on the black market; the French declared that they did not feel in a position to do this. The objection mentioned is overlooking the fact that merchandise which had once been withdrawn from production or had been produced

illegally, will never again become “white”. What is done cannot be undone, the black market is in existence and would also exist without any doubt if not a single German department would work in this field. The black market receives new impulse again and again and that on the one hand from the supply side, and

1. from the large hidden stocks still in existence,
2. from the illegal production which is taking place continuously (this subject will have to be investigated later on more in detail),
3. in France—at any rate up to date—through continuous supply from the unoccupied territory;

on the other hand, at the always increasing scarcity of goods every item finds a buyer, either from the civilian population or industry, or through purchase on the part of the Italians, Swiss, Spaniards; yes, numerous purchases could even be ascertained—in particular in unoccupied France—by the English or—evidently through British instigation—from neutral sources, as for instance the Portuguese which do not serve any other purpose than that of depriving Germany of the merchandise.

The consequence of such sudden cessation of purchases through the organization of the plenipotentiary for special missions would therefore only be that a so far not inconsiderable source of raw materials and war important finished products dries up without achieving on this account the end of the black market. Besides, it has to be doubted with good reason that it would be possible to keep up the prohibition of purchases which was issued to the German departments in the occupied territories, if the delivery by the organization of the plenipotentiary for special missions would suddenly cease. This applies particularly for the cases of the so-called immediate-need [Sofort-Bedarf]. The conception that the black market will come to an end if no more is bought on the part of the Germans, is incorrect. [Marginal notation in handwriting is inserted here: “Yes, our work has to begin *here*; with it we hit then the French black market primarily”.]

The central purchasing organization of the plenipotentiary for special missions for instance does not buy agricultural products (only some

particularly reasonable items in price have been bought, which however are not at all worth mentioning within the framework of the total supply) and nevertheless the black market is the most significant just on this sector.

It has been explained that further activity on the black market at the scale up to date will in the long run not be bearable any more for the budget of the Reich. However, in this respect it has to be pointed out that the greatest part of the purchases—that is the ones made in France—have been financed from the French costs of occupation. Of RM 1,107,792,819—the total amount of purchases, RM 929,100,000 have been financed from French occupational funds. Therefore a debit to the budget of the Reich did not arise to this extent.

The claim that the black market or the activity of German departments on the black market would bring about an increasing decline of the currency in the occupied territories, cannot be recognized as the truth. The decline of the currency which has in part actually occurred already, is not a consequence of the black market, but on the contrary, the inflationary tendencies accompanying the increasing scarcity of goods have evoked the rise of the black market.

At this place it will not be necessary to elaborate on the advantages of a centralized obtaining of the purchases on the black market; only two points of view shall be emphasized:

1. While in the time before the commissioning of the plenipotentiary for special missions, the prices on the black markets rose always further,—for the most part a consequence of the mutual competition of the individual German buyers—it has since been possible, to stabilize the prices of most goods, and this in spite of the fact that the *general* level of prices in the occupied territories has risen further.
2. While until the commissioning of the plenipotentiary for special missions, the individual German departments received and used the goods purchased by themselves uncontrolled, without regard to the degree of necessity, the distribution now takes place within the scope of total planning by the Reich according to the degree of *urgency*.

In summarizing, it has to be said that in the face of the supply situation of the Reich, it cannot be refrained from skimming the black market now as

before as long as there are still concealed stocks of war important goods. With regard to this higher interest all other points of view have to remain in the background.

2. The organization created by the plenipotentiary for special missions.

In his report at the end of August 1942, the plenipotentiary for special missions has presented in detail the organization created by him for the getting hold of and centralized control of the black market. Therefore here a short review only shall be given.

The general control and supervision of the purchasing activity is the task of the supervising offices newly created for this purpose.

They are:

- a. the supervising office France with its seat in Paris
- b. the supervising office Belgium and Northern France with its seat in Brussels
- c. the supervising office Belgium and Northern France, Lille branch, with its seat in Lille
- d. the supervising office Netherlands with its seat in the Hague
- e. the supervising department Serbia with its seat in Belgrade.

Principle and directives for the execution are on the one hand “the instructions for the winding up of stocks of merchandise of uncertain origin” issued by the plenipotentiary for special missions in agreement with the military commanders of the Reich commissar for the occupied Dutch territories and on the other hand the contracts concluded by the Roges raw material trading company Ltd. with the purchasing organizations. The purchases themselves are made by a restricted number of authorized purchasing organizations, of which there are in France 11, in Belgium 6, in the Netherlands 6 and in Serbia 3. Thereby the total purchasing activity is subordinated to the central supervision of the plenipotentiary for special missions. Each purchasing organization is only authorized for a quite definite kind of goods. The engagement of a number of purchasing organizations which will on first sight appear comparatively high was necessary, because the black marketeers by experience want to sell for the most part only to certain departments, with which they have cooperated

before and because they refuse to cooperate with other buyers whom they did not know previously; it had to be taken care, however, that none of the existing sources dried up. Participation has been prohibited to all other departments by corresponding orders of the central authorities in the Reich and the military commanders of the Reich commissioner.

The financing of purchases and the transportation of the goods will be taken care of by the Reich-owned Roges Ltd.; the goods are then distributed according to the urgency of the individual consumers in agreement with the instructions of the centralized planning or the departments charged by the centralized planning. It is the additional task of the Roges Ltd., to level the purchasing prices down to the German internal price; lower prices, however, will not be granted for deliveries to the armed forces, authorized and—in case of investment goods—to big plants. The adherence to the directives is guaranteed by the fact that the purchasing organizations at each offer may only then perform the transaction, if the supervising department has given its permission through an expert. The experts for their part will make their decision on the basis of the price and quality limits given by the plenipotentiary for special missions or the Reich departments.

3. Scope of the previously made purchases (up to 30/11/1942).

a. Since the beginning of the action (that is since purchases have been directly centralized by the military commander or the Reich commissar with centralized distribution of goods in the Reich).

Up till now since the beginning of the action purchases have been made in the total amount of RM 1,107,792,818.64, of which

in France	RM 929,100,000.00
in Belgium	RM 103,881,929.00
in Holland	RM 73,685,162.64
in Serbia	RM 1,125,727.00

Payment takes place in France from the funds for occupation, in the other countries through clearing.

In the following is a statement of the quantities involved:

1. *Metals:*

66,202 tons to the value of RM 273,078,287.00 of which there are

- a. non-ferrous metals 58,742 tons, in particular copper and copper containing material (34,000 tons), lead and lead alloys (14,500 tons), furthermore (in the succession of their quantity) zinc, aluminum, tin, nickel, magnesium, antimony, manganese ore;
- b. material containing iron (tools, junk, etc.) 7,460 tons.

2. *Textiles:*

To the total value of RM 439,040,000.00, of which there are 22,672,000 pieces of linen, suits (particularly workers' clothing), overcoats, etc., 5,488,000 kg yarn and miscellaneous, 40,642,000 m cloth and ribbons, 10,072,000 pairs of gloves, suspenders, etc.

3. *Leather, skins, and hides:*

To the total value of RM 120,754,000.00, of which there are 5,053,000 kg raw hides, 3,390,000 square feet of finished leather, 1,783,000 pieces of hides, chamois, etc., 801,000 pairs of shoes, and 694,000 kg leather for soles and other shoe soling articles.

Furthermore was bought:

- industrial oils and fats (1,330 tons)
- food oils and fats (346 tons)
- wool
- household articles
- PS goods including paper articles
- wines and alcoholic drinks
- equipment for engineers
- sanitary necessities
- sacks

The factors leading to excessive raising of prices of essential goods are at the present time the following:

<i>France</i>	<i>Belgium</i>	<i>The Netherlands</i>
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Metals	9	9	5-6½
Textiles	4	6½	5
Hides	6½	6	4
Leather	6½	6	6

Since beginning of the action the following items were bought in *France*—against payment from occupation funds:

Metals	RM 248,000,000.00
Textiles	RM 340,000,000.00
Hides, skins, leather	RM 112,000,000.00
Wool	RM 3,000,000.00
Oils & fats (for industrial and food purposes)	RM 12,000,000.00
Household goods	RM 46,600,000.00
PK goods	RM 33,000,000.00
Wines and alcoholic drinks	RM 50,000,000.00
Sacks	RM 10,500,000.00
Paper and packing material	RM 5,000,000.00
Food and pleasure items	RM 33,000,000.00
Chemical products	RM 8,000,000.00
Sanitary necessities	RM 12,000,000.00
Miscellaneous	RM 16,000,000.00
TOTAL SUM	RM 929,100,000.00

Since beginning of the action the following items were bought in *Belgium*—against payment by clearing:

Metals	RM 13,784,000.00
Textiles	RM 43,755,000.00
Leather, skins & hides	RM 4,030,880.00

Wool	RM	2,179,720.00
Industrial oils & fats		
Chemical products		
Food-oils & fats	RM	3,815,159.00
Household goods	RM	2,512,912.00
Furniture	RM	418,035.00
Paper & packing material	RM	5,561,268.00
Food & pleasure items	RM	3,393,955.00
Engineer equipment	RM	7,500,000.00
Miscellaneous	RM	16,931,000.00
TOTAL SUM	RM	103,881,929.00

Since beginning of the action the following items were bought in the *Netherlands*—against payment through normal bank transactions:

Non-ferrous metals	RM	6,706,744.00
Textiles	RM	55,285,568.00
Wool	RM	753,878.00
Leather, hides & skins	RM	4,723,130.00
Wooden barrels	RM	254,982.00
Furniture	RM	272,990.00
Food-and pleasure items	RM	590,859.00
Chemical-and cosmetic articles	RM	152,191.00
Various iron-and steel goods	RM	3,792,166.00
Rags	RM	543,416.00
Motor oil	RM	52,284.00
Raw diamonds	RM	25,064.00
Miscellaneous	RM	531,890.00

TOTAL SUM

RM 73,685,162.00

In Serbia was bought against payment through clearing:

Non-Ferrous metals in the amount of RM 1,125,727.00

The action began here only in the month of November. Up to date the goods charged to the receivers amounted to a total of RM 86,084,910.06.

The reasons why, at a total delivery of RM 1,107,792,819.00 no larger quantities could be completely wound up, are various (aggravation of the winding up through the procedure in fixing the prices, difficulties in transportation, lack of personnel). The Plenipotentiary for special missions has instigated measures, in order to accelerate the wind-up in the future.

b. Since the beginning of the activity by the plenipotentiary for special missions, on the 1/7/1942, the following was bought (up to 30/11/1942):

Altogether for	RM 840,382,893.00
of which	
metals	RM 174,982,697.00
textiles	RM 318,013,354.00
leather, skins and hides	RM 82,265,070.00

The figures mentioned above comprise roughly about the same period of time (1/7/-30/11, i.e., five months) as the purchasing action of the military commander or the Reichs Commissar before commissioning of the plenipotentiary for special missions (in France 6 months, in Belgium 2 months, in the Netherlands 7 months); the figures are however several times higher (RM 840,382,893.00—in contrast to RM 267,409,926.00). This proves more than anything else that and to what degree, the concentration of purchases on the black market through the organization of the plenipotentiary for special missions and the placing of the purchased goods at the disposal of the total planning of the Reich succeeded.

III. The further development.

There is not any doubt that the black market as such from the viewpoint of political economy is extremely undesirable and that therefore everything

has to be attempted to bring it to an end. In this respect it is also necessary that the German purchasing activity be stopped as soon as possible. But on the other hand, as has already been explained above in detail, the delivery of war important raw materials and finished products cannot be refrained from. The plenipotentiary for special missions has therefore made his own suggestions to the departments involved to the effect the purchasing activity be abandoned by degrees if the black market is suppressed by corresponding measures; in this respect it must be certain however, that the quantities of goods which flowed up to date to the black market will now go into the “white” production and into normal trade. Naturally, however, repressive measures have to precede this; only then can the gradual abandoning of the purchasing activity take place in order to impair the total influx of goods as little as possible.

In examining the measures to be taken for the fight against it, a distinction must be made between the sources, from which the black market is fed. First, there are the concealed stores established for most varied reasons whose sale will bring a one time flow of goods. Second, the black market is fed by continuous illegal production. It is certain that with continued duration of the war the second mentioned source will gain more and more in importance; therefore special attention has to be paid to it.

The illegal production has its cause—aside from the general lure of higher prices—in the fact that the price divergence between raw materials and finished products has partly become so great that it cannot be bridged any more within the framework of normal production without endangering the solvency of the enterprise. Often the capacity of the enterprise is exploited only incompletely so that the entrepreneur, even if it is only in order to avoid a shut-down, turns to procurement of raw materials illegally in order to produce beyond his quota, that is, illegally. Previously the purchases in unoccupied France which were sent on special routes into the occupied territory, formed a third and considerable source. It remains to be seen, whether it is now possible to supervise production in the up to now unoccupied part of France on a stricter basis so that, here also, the fight against the black market can be initiated.

According to the conception prevailing here, the following measures for the removal of the black market would have to be effected:

1. Enlargement of the price supervision.—As an increase in personnel of the German departments entrusted with the supervision does not or only at a restricted scale seem possible, the administrative authorities of the individual state have to be constrained to show more activity.

2. The enactment of severer penalties for violations against measures of economic management taken in accordance with the German example because only then can the lack of discipline in the civilian population resulting from their individualistic and liberalistic attitude be removed. A supervision of the verdicts of the penal authorities of the individual states seems to be recommendable.

3. The announcement of awards for reporting violations against measures of economic management amounting to a not too small percentage of the value of the objects confiscated on the basis of the report.

4. Engagement of spies and agents provocateurs.

Besides for the prevention of illegal production:

5. Shut down of all plants which are not manufacturing for war purposes.

6. Stricter shut-downs or merger of plants whose capacity is exploited immediately only.

7. Stronger supervision of the production in factories.

8. Stricter scrutiny in the allotment of raw materials for the distribution of orders.

9. A price policy which gives to the enterprises sufficient prices and guarantees them the existence.

In order to create for the purchasing organizations of the plenipotentiary for special missions the basis for purchasing activity on the black market in the face of the administrative authorities of the individual state in the occupied territories, the plenipotentiary for special missions has in Belgium and in the Netherlands effected a “decree on the clarification of unexplained goods” or a “general decree”. Hereby the supervising departments and their purchasing organizations were given simultaneously the possibility of approaching through purchases of goods the source of error in management and control. In accordance with it a suggestion was made by the plenipotentiary for special missions also to Ambassador Hemmen for

France, which will result in the issue of such a decree for France also in cooperation with the military commander.

Most important and promising of success for the beginning appears the measure outlined in 2 whereby the initial effort should be made toward commerce and there again first toward retail business. As soon as a number of draconic penalties has occurred, the retail dealers will in their own interest refrain from buying excessively priced merchandise from the wholesalers and manufacturers. The latter face then only the organization of the plenipotentiary for special missions; then it could be started by degrees to let the illegal producers crack up. The plenipotentiary for special missions has in this respect already performed certain preliminary work by directing part of the purchasing organizations to try to approach the manufacturers by eliminating of the black market traders.

The repressive measures mentioned above—particularly under 1 and 2—have to be performed in close cooperation with the individual state authorities; it is recommendable that as soon as possible proper measures be taken on the part of the German occupation authorities. The measures have to be accompanied by purposeful propaganda of press and radio (branding the black market as a crime against one's own people); in order to build psychologically foundation for the strict measures with the population and to rouse it to cooperation.

Further, French and Belgium government—and economic circles—among others also the French chief of government—have lately found it necessary to complain about the organized German purchasing activity. In the face of such representations—aside from various other arguments—it should be pointed out that also on the part of Germany the greatest interest exists in the disappearance of the black market, but its existence is, in the main, the fault of the government authorities themselves, through their incapability in the supervision of prices and their laxity in penal prosecution, whereby, lack of discipline is bred within their own population.

B. Providing of fort installations and machines from shut-down plants.

I. Harbor installations.

A large amount of harbor equipment exists in the occupied western territories, which at the present time is not or is insufficiently used. On the

other hand, in the eastern territories as well as partly in the Reich there exists an urgent need for such harbor installations. The plenipotentiary for special missions has therefore received the directive to seize these idle potentialities, in agreement with the departments involved. The determination of the objects to be shipped is up to the Reich commissar for navigation or those needing the goods after confiscation by the responsible navy departments, the plenipotentiary for special missions effects the financial settlement and puts the objects for installation at the disposal of those needing them. So far installations of that kind could already be provided for Oslo and for Hamburg; further transactions are in the process of being executed.

II. Machines.

Another task of the plenipotentiary for special missions is the seizure of machines from closed down plants. It is certain that large potentialities, particularly in machine-tools which are badly needed at home for the armament productions, are at the present time still idle. In agreement with the plenipotentiary for special missions, the military commander and the plenipotentiary for the production of machines a so-called “arbitration offices for machines” is anticipated in Belgium and the Netherlands. One of the main difficulties in this field lies in the overcoming of the resistance of both the owner of the plants involved and the individual state authorities in the occupied territories. Here the occupational authorities will have to employ all their initiative in order to break this resistance.

C. Christmas-Action.

At the end of August 1942 the plenipotentiary for special missions received a further special task, i.e. the providing of Christmas presents for the German people. Initially the action was calculated to amount to RM 300,000,000 (internal price). This task was undertaken immediately with all possible vigor, though it could be foreseen that providing and transportation of such quantities of goods in the comparatively short time available until Christmas could hardly be achieved; as the providing should if possible take place in the normal way—by payment through clearing also in France—and *not* on the black market, an organization had first to be created in order to master this task.

Actually it was possible to provide goods to the value of approximately RM 244,000,000 (purchase price) up to the 20 December 1942. But on account of the difficulties of transportation occurring in conjunction with the political events in France as well as the procedure necessary for fixing the prices and other reasons, it was impossible to bring all of these goods to Germany and to make them available for sale on time. 2,306 box-cars with 11,138,229 kg and further by ship 6,335 bales of goods with over 100,000 kg arrived in Germany. In the first place they comprise cosmetics, toys and in general gift-articles. Distribution was primarily made in the bomb-damaged regions as well as in the big cities Berlin, Vienna, Hamburg, Breslau, Koenigsberg and in the industrial region of Waldenburg and Upper Silesia. A conclusive report in the Christmas-action will be presented in the course of the month of February. If an identical action should be contemplated in the year of 1943 on the basis of experiences made it would have to be started in the course of the month of March.

D. Miscellaneous.

Recently a report has been made to the commissioner for the four-year plan on the other fields of activity of the plenipotentiary for special missions insofar as the providing of additional shipping space for war important purposes is concerned.

A report on the special imports by way of blockade running is anticipated.

On the orders issued recently

- a.* in the field of the so-called "commodity-arbitrage"
- b.* the economic use made of enemy property,

a report shall be rendered at opportune time.

Signed: J. Veltjens
Colonel of the Air-Force.

Berlin, 15 Jan. 1943

TRANSLATION OF DOCUMENT 1770-PS

1933 REICHSGESETZBLATT, PART I, PAGE 161

Law concerning Factory Representative Councils and Economic
Organizations of 4 April 1933

The Reich Cabinet has decided the following law which is hereby made public:

Chapter I

Factory Representative Councils

Article 1

1. The Highest Authority of the Federal State can postpone the elections for the Legal Factory Representative Council for the Federal State, parts of the Federal State or for individual enterprises until 30 September of this year at the latest for reasons of public safety and order.

2. The Factory Representative Council existing up to date remains in office in the case of postponement of the elections. Filling of vacancies in Factory Representative Councils caused by dismissal of members is only necessary if the number of its members has fallen below half of the legal number of members or if they number less than three. The new members of the Factory Representative Council required for its minimum strength will be nominated from the eligible workers by the highest authority of the Federal State or the authority appointed by it.

Article 2

The highest authority of the Federal State can cancel the membership of members who have been appointed contrary to the spirit of State and economy [die in Staats- oder Wirtschaftsfeindlichem Sinne eingestellt sind.] It can appoint new members for the Factory Representative Councils from the eligible workers to replace the eliminated members.

Article 3

The aforementioned regulations will be applied accordingly to the "United Factory Councils", created according to Article 50 of the Factory Council Law and to the "Special Representations" formed according to Articles 61 and 62. Article 93 of the Factory Council Law will not be applicable in the case of disputes concerning the execution of the above-mentioned regulations.

Article 4

The competent highest Reich authorities will be appointed to exercise the powers for the highest authority of the Federal State contained in Chapter I, in the case of the administrations and enterprises of the Reich, including the German Railroad Company and the Reichsbank.

Article 5

The regulations contained in Article 1, para. 2 and Article 2, 2nd sentence are also applicable to measures taken before the effectiveness of this law.

Chapter II

Dismissal of Workers

The right to oppose dismissal of a worker contained in Article 84 of the Factory Council Law is not applicable if the dismissed is suspected of an unfriendly attitude towards the State. The worker can appeal within a week to the authority declared competent according to Chapter I, Article 2. That authority decides, after hearing all those concerned, whether the suspicions are justified or not. The dismissal is cancelled if its findings are negative.

Chapter III

Representation of Economic Organizations within the Miners Insurance

Article 1

Article 184, Article 157, sentences 2 and 3 and Article 180, part 3 of the Reich Mining Law are hereby revoked.

Article 2

The Reich Labor Minister can charge members of the insurance or mine supervision authorities, as commissioners with the tasks of the instances which are in office at the time; the commissioners are under the authority of the Reich Labor Minister.

Chapter IV

Legal Representation before the Labor Court

The following part 3 is added to Article 11 of the Labor Court Law:

The Reich Labor Minister can, in agreement with the Reich Economy Minister and the Reich Minister of Justice, put other organizations on the same level for legal representation as the organizations named in parts 1 and 2.

Chapter V

Directives of Execution

The Reich Labor Minister has the power to issue legal decrees and general administrative directives in order to insure the execution of the Regulations of this Law; he is authorized to change regulations of the Reich Mining Law in order to adapt them to the decrees of Chapter III of this Law.

Berlin, 4 April 1933

The Reich Chancellor
Adolf Hitler

The Reich Labor Minister
Franz Seldte

The Reich Minister of the Interior
Frick

For the Reich Minister of Justice
The Reich Minister of Finance
Count Schwerin von Krosigk

The Reich Minister of Economy
Hugenberg

PARTIAL TRANSLATION OF DOCUMENT 1773-PS

THE LAW OF THE GENERAL GOVERNMENT

[Das Recht des Generalgouvernements] Krakau, 1941

E 8. Impounding of Valuables

E 800. Decree on the Sequestration of Property of the Former Polish State in the General Gouvernement.—15 November 1939

On the basis of Article 5, section 1 of the decree of the Fuehrer and Reich Chancellor governing the administration of occupied Polish territory dated 12 October 1939 (RGBl I, page 2077), I issue the following order:

Article 1—1. All movable and stationary property of the former Polish State with accessories, including all demands, participation, rights and other interests inside the General Gouvernement, will be sequestered for the purpose of securing all manner of public valuables.

2. The seizure, administration, and utilization of the sequestered property is the duty of the department “Trusteeship for the General Gouvernement” in the office of the Governor General.

Article 2—The director of the department “Trusteeship for the General Gouvernement” will in agreement with the director of the finance department in the office of the Governor General issue the regulations required to execute this decree, in particular on the duty to make a declaration of the wealth belonging to the former Polish State as well as the treatment of rights of third persons on the wealth of the former Polish State and of claims against this wealth.

Article 3—This regulation will be effective on the day of its publication.

The Governor General for the Occupied
Polish Territories
FRANK

E 810. Decree on the Right of Ownership of Wealth of the former Polish Territories.—24 September 1940

On the basis of Article 5, section 1 of the decree of the Fuehrer and chancellor of the Reich of 12 Oct 1939 (RGBl I, page 2077), I issue the following order:

Article 1—The property sequestered on the basis of Article 1, section 1 of the decree on the confiscation of the wealth of the former Polish State within the General Gouvernement of 15 Nov 39 (Verordnungsblatt GGP, page 37) will be transferred to the ownership of the General Gouvernement.

A legal right of the General Gouvernement will not be established by this transaction.

Article 2—1. Rights of third persons in the property mentioned in Article 1 expire insofar as they existed before 20 November 1939.

2. It will be determined later on whether and to what extent an indemnification can be granted to persons, especially to rightful foreign claimants, for legal losses suffered through the action.

Article 3—The seizure and administration of the property mentioned in Article 1 will be executed until further notice on the basis of the regulation on the confiscation of the wealth of the former Polish State within the General Gouvernement of 15 November 1939 (Verordnungsblatt, GGP, page 37) and of the first executionary decree issued on 16 March 1940 (Verordnungsblatt GGP II, page 175).

Article 4—The director of the department “Trusteeship for the General Gouvernement” in agreement with the director of the finance department in the office of the governor general will be in charge of the property mentioned in Article 1.

Article 5—This regulation will be effective on the day of its publication.

The Governor General
FRANK

E 845. Decree on the Confiscation of Art Objects in the General Gouvernement.—16 December 1939

On the basis of Article 5, section 1 of the decree of the Fuehrer and Chancellor of the Reich on the administration of the occupied Polish territories of 12 Oct 1939 (RGBl I, page 2077), I order the following:

Article 1—All art objects in public possession in the General Gouvernement will be confiscated for the fulfillment of public tasks of common interest insofar as it has not already been seized under the decree on the confiscation of the wealth of the former Polish State in the General Gouvernement of 15 November 1939 (Verordnungsblatt GGP, page 37).

Article 2—With the exception of art collections and art objects which were the property of the former Polish State, art objects will be considered as owned by the public:

1. private art collections which have been taken under protection by the special commissioner for the seizure and safekeeping of the art and cultural treasures.
2. all ecclesiastical art property with the exception of those objects required for the daily performance of liturgic actions.

Article 3—1. In order to determine whether art objects are public property in the sense of this regulation, every private and ecclesiastical art possession has to be registered with exact data on the kind, nature and number of pieces.

2. Everyone who possessed or at the present time is in possession of or else is entitled to dispose of such objects of art since 15 March 39, is obliged to register the same.

3. Everyone is obliged to make upon request truthful and appropriate statements.

Article 4—The special commissioner appointed by me for the seizure and safekeeping of the art and cultural treasures will determine in cases of doubt what art collections and art objects in detail will have to be regarded on the basis of Article 2 of this regulation as public art property. He also will decide on the eventual necessary exceptions.

Article 5—1. He will be punished with imprisonment

1. Who undertakes to conceal, sell or remove objects of art from the General Gouvernement.

2. Who refuses or else gives incorrect or incomplete information required from him on the basis of this decree.

2. The special court is competent for the trial.

Article 6—The special commissioner appointed for the seizure and safekeeping of the art and cultural treasures will issue the regulations necessary for the execution of this decree.

Article 7—This regulation will be put into effect immediately.

The Governor General for the Occupied
Polish Territories

FRANK

E 846. First Enforcement Regulation for the Order of 16 December 1939 on the Confiscation of Art Objects in the General Gouvernement.

In order to execute the decree on the confiscation of art objects in the General Gouvernement of 16 December 1939 (Verordnungsblatt GGP, page 209), I order the following:

Article 1—The registration decree in Article 3, section 1 of the regulation must be carried out by 15 February 1940 with the office of the special commissioner for the seizure and safekeeping of the art and cultural objects, Cracow, Bergakademie.

Article 2—1. Objects of artistic, cultural-historical and historical value which originate from the time before 1850, have to be registered.

2. The registration includes the following:

- a.* paintings
- b.* sculpture
- c.* products of handicraft (for instance antique furniture, china ware, glass, golden and silver objects, Gobelins, rugs, embroideries, lace-work, paramente, etc.)
- d.* drawings, engravings, woodcuts, etc.
- e.* rare manuscripts, musical manuscripts, autographs, book-paintings, miniatures, prints, covers, etc.
- f.* weapons, armors, etc.
- g.* coins, medals, seals, etc.

3. Regarding the art objects mentioned in section 2, detailed information has to be given, if possible, on the master, the time of production, the

contents of the representation, measurements and material (for instance, wood, canvas, bronze, etc.)

Article 3—The special commissioner will send in writing his decision in doubtful cases or in the eventual necessary exceptions as provided for in Article 4 of the decree. The decision will be final.

Article 4—Scientific experts will be entrusted with the execution of the decree.

The Governor General for the Occupied
Polish Territories

By order:

Dr. MUEHLMANN

PARTIAL TRANSLATION OF DOCUMENT 1774-PS

ORGANIZATIONAL LAWS OF THE GREATER GERMAN REICH

“Verfassungsrecht des Grossdeutschen Reiches” by Ernst Rudolf Huber.

FUEHRER, AND REICH-CABINET [REICH REGIERUNG, Page 223]

a. The Structure of the Reich-Cabinet

The political direction of the Reich is the task of the Fuehrer. The Fuehrer selects, in all fields of political developments the goals which should be attained, determines the methods to be used and makes all fundamental decisions when necessary. The authority of the Fuehrer [Fuehrergewalt] is the “Political Authority” in the new Reich. The term “Leadership” expresses better the mobilization of the collective political force of the people towards the achievement of the common goal, than the term “Government” which has been used heretofore for the highest authority of the State. The Fuehrer has the only final power to decide in all matters concerning movement [party], people, and Reich. He possesses and bears the historical responsibility to his people. Even in instances, where the law assigns certain tasks to the “Reichsregierung”, it is the Fuehrer who is responsible for the final decision.

The Fuehrer avails himself, however, in his decisions of the counsel and the constructive cooperation of his collaborators, especially the Reich-Cabinet,

which combines the Subordinate-Fuehrers [Unterfuehrer] of the various departments of the State. The legal position of the Reich-Minister was originally laid down by the Reich-Minister Law of March 27 1930 (RGBl I 96). In its place Section XIII of the German Civil Servant Law is now applicable, with the exception of the regulations concerning the official salaries, service quarters, moving—and travel expenses, where the old law remains valid. The Reich-Ministers are appointed by the Fuehrer and maintain a public service relationship towards him and the Reich. They take a special oath before the Fuehrer when they assume their functions. They cannot belong to any economic enterprise as chairmen or members of administrative or supervisory councils while they hold office (“economic incompatibility”). The Reich-Ministers can be dismissed from their offices at any time by the Fuehrer. No disciplinary action against them will be taken. Special treatment of the Reich-Ministers is based on the fact that they are not “Civil Servants”. Civil Servants are only the members of the Bureaus which are sub- and coordinated to the hierarchic administrative structure, but not those who occupy immediate state-directing positions to whom the Reich-Ministers belong according to the present constitutional law.

The Fuehrer and Reich-Chancellor is at the top of the Reich-Cabinet. He hands down the directives for the over-all operation of the Government and the basic principles for the various departments. A number of Bureaus are subordinated to him for direct counsel and assistance, as follows:

1. The Reich-Chancellery (Chief: Reich-Minister, Dr. Lammers)
2. The Supreme-Command of the Armed Forces (Chief: Generaloberst (Gen.) Keitel)
3. The Presidential Chancellery (Chief: State Minister Dr. Meissner)
4. The Privy Cabinet Council (President: Reich-Minister Frh. von Neurath)

The Reich-Cabinet [Reich Regierung] comprises furthermore the department ministries proper. It is constituted in the following manner according to the official order of rank laid down in the year 1939:

1. The Deputy Commander for the Fuehrer (Reich-Minister Hess)
2. The Supreme Command of the Armed Forces (Generaloberst (Gen.) Keitel)

3. General Field-Marshal Goering (Deputy for the 4 Year Plan)
4. Foreign Office (v. Ribbentrop)
5. Reich-Minister of the Interior (Dr. Frick)
6. Reich-Minister for Enlightenment of the People and Propaganda (Dr. Goebbels)
7. Reich Air-Minister (Gen. Field-Marshal Goering)
8. Reich Finance Minister (v. Schwerin-Krosigk)
9. Reich-Minister of Justice (Dr. Guertner)
10. Reich-Minister of Economy (Funk)
11. Reich-Minister for Food and Agriculture (Darre)
12. Reich-Minister of Labor (Seldte)
13. Reich-Minister for Science, Education and National Culture (Dr. Rust)
14. Reich-Minister for Ecclesiastical Affairs (Kerrl)
15. Reich-Minister of Transportation (Dr. Dorpmueller)
16. Reich Postal Minister (Ohnesorge)
17. Reich-Minister Frank (Legal Affairs Reich-Fuehrer)
18. Reich-Minister Schacht
19. Reich-Minister Seyss-Inquart
20. Reich Forest-Office (Gen. Field-Marshal Goering)

The Commanders-in-Chief of the Army (Generaloberst (Gen.) v. Brauchitsch) and of the Navy (Great-Admiral Raeder) have also the rank of Ministers. Furthermore, the following participate regularly in the sessions of the Government, whenever matters of their department are being discussed:

1. The Prussian Finance Minister, Dr. Popitz.
2. The Reich-Fuehrer SS and the Chief of the German Police, Himmler.
3. The Reich Labor Leader in the Reich-Ministry of the Interior, Hierl.

4. The Chief of the Organization in Foreign Countries in the Foreign Office, Bohle. In addition, the following Supreme Reich-Bureaus are immediately subordinate to the Fuehrer:

1. Court of Accounts of the German Reich (State-Minister, retired, Mueller).
2. Inspector General for the German Road System (Dr. Todt).
3. Reich Office for Area Control [Raumordnung] (Kerrl).
4. Youth-Fuehrer of the German Reich (v. Schirach).

Furthermore, the following are immediately subordinate to the Fuehrer:

1. The German Reich-Bank (President Reich-Minister Funk).
2. Inspector General of Constructions for the Reich Capital (Professor Speer).
3. Counsellor General of Constructions for the Capital of the (party) movement (Professor Giesler).
4. Reich Construction Counsellor for the town of Linz on the Danube.

The directors of these Reich Bureaus act as direct advisers and collaborators of the Fuehrer in their department without being members of the Reich-Government by authority of their office.

A privy cabinet council, to advise the Fuehrer in the basic problems of foreign policy, has been created by the decree of 4 February 1938 (RGBl I, 112). This privy cabinet council is under the direction of Reich-Minister v. Neurath, and includes the Foreign Minister, the Air Minister, the Deputy Commander for the Fuehrer, the Propaganda Minister, the Chief of the Reich-Chancellery, the Commanders-in-Chief of the Army and Navy and the Chief of the Supreme Command of the Armed Forces. The privy cabinet council constitutes a select staff of collaborators of the Fuehrer which consist exclusively of members of the Government of the Reich; thus, it represents a select committee of the Reich Government for the deliberation on foreign affairs.

The law on the Supreme Leader of the State makes provision for the nomination of a Deputy Commander for the Fuehrer and also a Vice-Chancellor. Up to July 1934, von Papen, then Reich Minister, was Vice-

Chancellor. Since then, no such nomination has been promulgated. The Deputy for the 4 Year Plan has a sort of representation in all matters concerning the 4 Year Plan, “all competent instances of party and state” being combined in his person, and he has been given the power to “issue directives to all authorities, including the highest Reich-Authorities and all offices of the party, its subdivisions and its affiliated associations”. The deputy for the 4 Year Plan is therefore within the limits of his authority superior to the other Reich Ministers, particularly to the economic and military departments. But he is not only superior to the offices of the State but also to those of the party. He is (with the exception of the Fuehrer) the only central authority which by virtue of an office (and not by virtue of a personal union of a party and State office) can issue binding directives to the offices of the party and the State. Considering the tremendous importance of the 4 Year Plan, this position of the deputy is an important means for securing unity between party and State.

This same object is furthermore pursued by the Office of the Deputy Commander for the Fuehrer. While the Deputy for the 4 Year Plan constitutes an authority of the State with the power to issue directives to the party, the Deputy Commander for the Fuehrer represents a party instance with authority to cooperate in State affairs to a large extent. The “Ministry Hess”, with its Liaison-Staff is charged to assert the influence of the party in the legislation and administration of the State. All projects of politically important laws have to be submitted to the Deputy Commander for the Fuehrer for his preliminary examination. He naturally has the power to propose laws from his side. His influence on the administration affects particularly the selection of personnel. All appointments to be made by the Fuehrer have to be examined first by the Deputy Commander for the Fuehrer. Besides these individual powers, it is the duty of the Deputy Commander for the Fuehrer to assert the will of the (party) movement in the organization of the State, to settle difficulties which develop, to investigate complaints, and thus to guarantee unity of party and State.

Unity of party and Reich-Cabinet is furthermore secured by the numerous personal unions i.e. association of Central State Offices with corresponding party offices. Such personal unions exist in the cases of the Food Minister and the Propaganda Minister, the Chief of the German Police and the Reich Labor Leader, the Chief of the Organization in the foreign countries, and

the Reich Youth Fuehrer. Furthermore, the majority of the Reich-Ministries is occupied by leading old party members. Finally, all Reich Ministers have been accepted by the party on 30 January 1937 and have been decorated with golden party insignia.

b. The Reich-Cabinet as the bearer of responsible collaboration.

The relationship between the Fuehrer and the Reich-Cabinet differs from the Weimar colleague-like system as well as from Bismarck's Chancellor System. The great political principles are determined by the Fuehrer; the will of the government is not expressed by vote, as under the colleague-like system; doubts and differences of opinion are also settled by the Fuehrer (in contrast to the provisions of Section 57 of the Weimar Constitution). The Reich-Ministers who act as advisers to the Fuehrer owe him loyalty and obedience in accordance with the oath they have to take by virtue of the law of 16 October 1934. The Fuehrer is therefore not "primus inter pares" (first among equal ones), as it was featured in the colleague-like system, but he is absolutely superior to the other Reich-Ministers. But, if therefore the principle of authority prevails within the Reich-Cabinet it is not permitted in this case in the least to become a formal bureaucratic mechanism like the one that characterized the Chancellor System of Bismarck. In the latter, the collaborators of the Reich-Chancellor, the State-Secretaries, were not independent and responsible chiefs of their departments, but they were the subordinates of the Chancellor and administered in his name and by his orders the various Reich-Offices, at the top of which stood the Chancellor. Even the law of 17 March 1878 concerning deputies did not change that state of affairs to any extent. Such a bureaucratic system does not permit the collaborators to develop a sense of enjoying responsible action and power of resolution and prevents genuine deliberation, the prerequisite of which is independence of the advisor. This is characteristic of an administrative state, where everything depends on the authoritarian technical functioning of the State apparatus. In the Reich of the Fuehrer the decisive factors are that the collaborators are subordinate leaders, that they are therefore possessed themselves with the desire for creative leadership and responsibility.

The Fuehrer does not avail himself of the Reich-Ministers as subordinate executive organs. The Reich-Cabinet is not a technical apparatus. It is therefore inadmissible to consider the Reich-Ministers as mere "Chiefs of Reich Offices" who preside over bureaucratic institutions, rather Reich-

Ministers in particular must become genuine sub-leaders if the entire Reich is to be imbued with the spirit of the Fuehrer system. In the Reich Cabinet, the Fuehrer procures for himself the independent and responsible collaborators who do not only technically direct the various offices but who are also capable to act in a constructive and creative manner, within the scope of their assignments. The Reich-Ministers are therefore not only advisors but at the same time responsible creative assistants of the Fuehrer, who administer their offices independently under the direction of the Fuehrer. The prerequisite for the Fuehrer Principle which has been realized in the Reich-Cabinet, is independent cooperation based on confidence and responsibility, of the Fuehrer's closest followers. Thus, the Fuehrer Principle presents far higher requirements than the bureaucratic absolutism and its not too different Chancellor System of Bismarck.

In view of this structure of the Reich-Cabinet it is only natural that the counter-signature, prescribed in Section 50 of the Weimar Constitution for all decrees and regulations issued by the Reich-President, becomes unnecessary for the decisions of the Fuehrer. They do not require the counter-signature of the Minister of the respective department. Compulsory counter-signature was an institution of the constitutional and parliamentary system. The Minister who counter-signed the orders of the Chief of State assumed thereby responsibility before parliament. The counter-signature was thus inseparably connected with the parliamentary responsibility of the Ministers; it lost its political foundation with the revolutionary elimination of parliamentarianism of any form. However, also in the New Reich during the period of Reich President Hindenburg's administration, counter-signature of presidential acts by the Reich-Chancellor was maintained. Of course, the counter-signing Reich-Chancellor or Reich-Minister did not assume any more the "responsibility before the Reichstag", as was the case within the limits of the Weimar parliamentary system. The counter-signature was used in this case rather as a suitable technical form for safeguarding the unified direction of the State as long as a dual Chief of State existed. This technical reason for maintaining the counter-signature was rendered unnecessary with the assumption of the presidential powers by the Fuehrer. Today, it is not necessary any more according to constitutional law. The decrees of the Fuehrer have legal force, even if they are not counter-signed by a Reich-Minister. Such was particularly the order of execution of the 4 Year Plan of 18 October 1936 (RGBl I, 887) which in

fact contains a law issued by the Fuehrer alone without any counter-signature.

As a rule, the decrees of the Fuehrer, are on the other hand, even today co-signed by the Minister of the department concerned. Authorized to co-sign are the Reich-Ministers, within the limits of their departments. Furthermore the Chiefs of the Presidential-Chancellery and of the Reich-Chancellery for their departments (Decree of 22 November 1934, not published), and also the State-Secretaries of a Reich-Minister who is temporarily unavailable (Decree of 20 March 1935, RMinBl. 423). The decrees concerning the party are co-signed by the Deputy Commander of the Fuehrer, decrees concerning the range of problems of the 4 Year Plan by the Deputy of the 4 Year Plan and the military decrees by the Chief of the Supreme Command of the Armed Forces. The Chiefs of the Supreme Reich-Bureaus who are not Reich-Ministers are not authorized to co-sign.

Co-signature is being regularly maintained for two reasons. For once, the co-signature brings out the fact that the Minister of the department is more than a mere technical auxiliary tool of the Fuehrer, that he performs rather independent and objective work which requires of course the approval of the Fuehrer but which is nevertheless the Minister's own work and performance. Thus, the co-signature gives prominence to the fact that the Minister is an independent collaborator and not only an executive instrument. Also, the co-signature is therefore documentary proof—and this is the second reason—for the responsibility of the Minister of the department, naturally not before the Parliament but before the Fuehrer himself. By co-signing the Minister accepts the responsibility before the Fuehrer that the decree is practical, has been carefully considered and thoroughly worked out. Such a responsibility of the Minister before the Chief of the State could not exist under the radical parliamentary Republic. The independence of the Minister from the Chief of State and his responsibility before the Parliament would have been weakened in that way. Under the old constitutional system, on the other hand, (as well as under the presidential system formed after the constitutional system) this responsibility of the counter-signing Minister also before the Chief of State was in existence. This type of "Minister responsibility" is indispensable under the Fuehrer Constitution. In view of the number and the importance of affairs, it is self-evident that the Fuehrer needs the advice, the

suggestions, and the proposals of his collaborators; political leadership is impossible without reliable collaborators. The Ministers are responsible to the Fuehrer by their oath for competent and reliable counsel and preparation of his decisions. This responsibility of the Ministers of the various departments finds its public expression by their counter-signature. This counter-signature is not necessary, nevertheless. The Fuehrer can do without it and issue all decrees and decisions which have full legal effect by his own accord.

TRANSLATION OF DOCUMENT 1775-PS

The OKW is asking the Fuehrer's decision, concerning the following proposals:

Orders will be given immediately, after the detailed numbers and letters have been released by the Leader, for accomplishment.

1. To take no real preparatory measures in the Army or Luftwaffe. No troop movements or redeployments.
2. Spread false, but quite credible news, which may lead to the conclusion of military preparations against Austria,
 - a.* through V-men [V-Maenner] in Austria,
 - b.* through our customs personnel at the frontier,
 - c.* through traveling agents.
3. Such news could be:
 - a.* Furloughs are supposed to have been barred in the Sector of the VII A.K.
 - b.* Rolling stock is being assembled in Munich, Augsburg, and Regensburg.
 - c.* Major General Muff, the Military Attaché in Vienna has been called for a conference to Berlin. (As a matter of fact, this is the case).
 - d.* The Police Stations located at the frontier of Austria, have called up reinforcements.

- e. Custom officials report about the imminent maneuvers of the Mountain Brigade in the region of Freilassing, Reichenhall and Berchtesgaden.
- 4. Order a very active make-believe-wireless exchange in Wehrkreis VII and between Berlin and Munich.
- 5. Real maneuvers, training flights, and winter maneuvers of the Mountain Troops near the frontier.
- 6. Admiral Canaris has to be ready beginning on February 14th in the Service Command Headquarters in order to carry out measures given by order of the Chief of the OKW.
- 7. An answer is requested to Lt General Keitel through the Reich-Chancery.

Signed. Keitel.

Captain Eberhardt gives the information by phone, that the
14.2 7:30 Fuehrer has given his approval in all points. Answer came only around 2 at night through Reich-Chancellery.

9:00 Telephone message transmitted to Admiral Canaris in Munich.

PARTIAL TRANSLATION OF DOCUMENT 1778-PS

THE POISONOUS MUSHROOM [Der Giftpilz]

A Stuermer book for young and old Fables by Ernst Hiemer

Pictures by Fips

Published by Der Stuermer—Nurnberg copyright 1938

* * * * *

[P.6] “It is almost noon,” he said, “now we want to summarize what we have learned in this lesson. What did we discuss?”

All children raise their hands. The teacher calls on Karl Scholz, a little boy on the first bench. “We talked about how to recognize a Jew.”

“Good! Now tell us about it!”

Little Karl takes the pointer, goes to the black board and points to the sketches.

“One usually recognizes a Jew by his nose. The Jewish nose is crooked at the end. It looks like the figure 6. Therefore it is called the “Jewish Six”. Many non-Jews have crooked noses, too. But their noses are bent, not at the end but further up. Such a nose is called a hook nose or eagle’s beak. It has nothing to do with a Jewish nose.”

“Right!” says the teacher. “But the Jew is recognized not only by his nose...” The boy continues. The Jew is also recognized by his lips. His lips are usually thick. Often the lower lip hangs down. That is called “sloppy”. And the Jew is also recognized by his eyes. His eyelids are usually thicker and more fleshy than ours. The look of the Jew is lurking and sharp.

[P.9] Then the teacher goes to the desk and turns over the black board, on its back is a verse. The children recite it in chorus:

From a Jew’s countenance—the evil devil talks to us,
The devil, who in every land—is known as evil plague.
If we shall be free of the Jew—and again will be happy and
glad,
Then the youth must struggle with us—to subdue the Jew devil.

[P.32] Inge sits in the reception room of the Jew doctor. She has to wait a long time. She looks through the journals which are on the table. But she is much too nervous to read even a few sentences. Again and again she remembers the talk with her mother. And again and again her mind reflects on the warnings of her leader of the BDM [League of German Girls]: “A German must not consult a Jew doctor! And particularly not a German girl! Many a girl that went to a Jew doctor to be cured, found disease and disgrace!”

When Inge had entered the waiting room, she experienced an extraordinary incident. From the doctor’s consulting room she could hear the sound of crying. She heard the voice of a young girl: “Doctor, doctor leave me alone!”

Then she heard the scornful laughing of a man. And then all of a sudden it became absolutely silent. Inge had listened breathlessly.

“What may be the meaning of all this?” she asked herself and her heart was pounding. And again she thought of the warning of her leader in the BDM.

Inge was already waiting for an hour. Again she takes the journals in an endeavor to read. Then the door opens. Inge looks up. The Jew appears. She screams. In terror she drops the paper. Frightened she jumps up. Her eyes stare into the face of the Jewish doctor. And this face is the face of the devil. In the middle of this devil's face is a huge crooked nose. Behind the spectacles two criminal eyes. And the thick lips are grinning. A grinning that expresses: "Now I got you at last, you little German girl!"

And then the Jew approaches her. His fleshy fingers stretch out after her. But now Inge has her wits. Before the Jew can grab hold of her, she hits the fat face of the Jew doctor with her hand. Then one jump to the door. Breathlessly Inge runs down the stairs. Breathlessly she escapes the Jew house.

[P.61]

The pimpf [Hitler boy between 10-14] so far has not said anything. Suddenly he stops. Then he grasps his two friends by the arm and pulls them away. They stop in front of a bill-board. They read a large poster. It says Julius Streicher makes an address in the People's Hall about "The Jews are our misfortune".

"That is where we go!" shouts Konrad, "I wanted to hear him speak for a long time." "I have heard him once before at a meeting two years ago," says Erich. "Do tell us all about it!" the two pimpfs beg.

The Hitler youth recounts:

"The meeting was overcrowded. Many thousands of people attended. To begin with, Streicher talked of his experiences in the years of struggle, and of the tremendous achievements of the Hitler Reich. Then he began to talk about the Jewish question. All he said was so clear and simple that even we boys could follow it. Again and again he told about examples taken from life. At one time he talked most amusingly and cracked jokes, making all of us laugh. Then again he became most serious, and it was so quiet in the hall that one could hear a needle drop. He talked of the Jews and their horrible crimes. He talked of the serious danger which Judaism is for the whole world.

"Without a solution of the Jewish question there will be no salvation of mankind."

That is what he shouted to us. All of us could understand him. And when, at the end, he shouted the “Sieg-Heil” for the Fuehrer, we all acclaimed him with tremendous enthusiasm. For two hours Streicher spoke at that occasion. To us it appeared to have been but a few minutes.

PARTIAL TRANSLATION OF DOCUMENT 1780-PS

Excerpts from General Jodl's Handwritten Diary, February 1937-August 1939.

1937

4 February:

Decisive conference about the scarcity of raw materials by the Commissioner of four-year plan.

Only 50% of steel and iron available, therefore rationing necessary. Full allotment only for export. Armed forces and constructions for four-year plan must be cut down by about 40%. Therefore, requests for money have to be converted into requirements for raw materials. Three branches of the Armed Forces and L. for R.V. special resources must make up a priority sequence. Until further notice no more orders to be placed with industry so they will have a chance to fill the many orders previously placed with them.

The sentence "Money is an unimportant factor" has come true, even in another sense. The main part is the raw materials.

Bad harvest and [illegible], especially bread grain [Brotgetreide], demand considerable use of foreign currency for the feeding of the people.

31 March:

Report to the Minister about the maneuvers of the Armed Forces. The Field Marshal emphasized the necessity to bring some influence to bear (on the maneuvers) in so far as a special Armed Forces problem has to be dealt with daily. These exercises are to be designated as "Armed Forces Maneuvers" (army, etc.). After two years, a two front war i.e., two maneuvers, should be presented.

5 November:

Hitler develops his ideas of future development, intentions, and conduct of policy to the Commanders-in-Chief of the Armed Forces, the Army, the Navy and the Air Force.

There is a divergence in the recording of his ideas as made by the Chief of the Armed Forces Office (War Department) [des Chef WA (R Kr. Min)] and

by the Commander-in-Chief of the Air Force (Directive to the Chief of the General Staff of Air Force). (No minutes were kept).

Intention of L to put ideas on paper and transmit them to the Services (C-in-C Air Force); furthermore, to incorporate them into mobilization instructions.

1938

11 February:

In the evening and on 12 February General K., with General v. Reichenau and Sperrle, at the Obersalzberg. Schuschnigg together with G. Schmidt are again being put under heaviest political and military pressure. At 2300 hours Schuschnigg signs protocol.

13 February:

In the afternoon General K. asks Admiral C. and myself to come to his apartment. He tells us that the Fuehrer's order is to the effect that military pressure by shamming military action should be kept up until the 15th. Proposals for these deceptive maneuvers are drafted and submitted to the Fuehrer by telephone for approval.

14 February:

At 2:40 o'clock the agreement of the Fuehrer arrives. Canaris went to Munich to the Counter-Intelligence office VII and initiates the different measures.

The effect is quick and strong. In Austria the impression is created that Germany is undertaking serious military preparations.

15 February:

In the evening an official communique about the positive results of the conference at the Obersalzberg is issued.

16 February:

Changes in the Austrian government and general political amnesty.

22 February:

At 1300 hours General K. sees the Fuehrer in order to inform him about the planned advances [Vorstoesse].

3 March:

The Austrian question is becoming critical. 100 officers shall be dispatched there. The Fuehrer wants to see them personally. They should not see to it that the Austrian Armed Forces will fight better against us, but rather that they do not fight at all.

10 March:

By surprise and without consulting his ministers, Schuschnigg ordered a plebiscite for Sunday, 13 March, which would bring strong majority for the Legitimists in the absence of plan or preparation.

Fuehrer is determined not to tolerate it. The same night, March 9 to 10, he calls for Goering. General v. Reichenau is called back from Cairo Olympic Committee. General v. Schebert is ordered to come, as well as Minister Glaise-Horstenau, who is with the District leader [Gauleiter] Burckel in the Palatinate. General Keitel communicates the facts at 1:45. He drives to the Reichskanzlei at 10 o'clock. I follow at 10:15, according to the wish of General v. Viebahn, to give him the old draft.

“Prepare case Otto.”

1300 hours: General K informs Chief of Operational Staff (and) Admiral Canaris. Ribbentrop is being detained in London. Neurath takes over the Foreign Office.

Fuehrer wants to transmit ultimatum to the Austrian Cabinet. A personal letter is dispatched to Mussolini and the reasons are developed which force the Fuehrer to take action.

1830 hours: Mobilization order is given to the Command of the 8th Army (Corps Area 3), 7th and 13th Army Corps; without reserve Army.

Air puts 300 JU-52 in readiness for dropping of propaganda pamphlets. In addition, one Pursuit Squadron [Jagdgruppe], 3 bomber groups [Kampfgeschwader] and two companies as airborne troops with transport planes are held ready at civilian airports [Friedensflugplatze] in Bavaria.

Subordinated to the Army are: one commander of the Air Force, 2F, 3H Squadrons, courier squadron, 1 heavy AA Bn., Regt. General Goering.

11 March:

Instruction No. 1 of the Fuehrer is given on 11 March at 2:00 without signature; at 1300 hours with his signature.

The Army is joined by the SS Military Units (V. T.) by regiments, 40,000 men of the police and the Totenkopf Unit Upper-Bavaria as second wave.

1700 hours: The Navy has ordered all ships back home.

1800 hours: Schuschnigg has resigned; Seyss-Inquart is chancellor. SA and SS perform duty in uniform. Own movements have commenced. Frontier will not be crossed at the moment. Air Force plans large scale propaganda flights for tomorrow. The police force will be needed in any case and will be mixed with the troops.

1835 hours: Department L. has been informed. Colonel Winkler and Oberfuehrer Petri have also been informed. The Air Force has its doubts if it should initiate the movements that have not yet started.

Decision: yes.

2030 hours: Briefing received from Major General Viebahn that the situation has changed once more. The occupation will take place.

Later undated entry.

After annexation of Austria, the Fuehrer mentions that there is no hurry to solve the Czech question because Austria has to be digested first. Nevertheless, preparations for Case Green will have to be carried out energetically; they will have to be newly prepared on the basis of the changed strategic position because of the annexation of Austria. State of preparations (see memorandum L I a of 19 April) reported to the Fuehrer on 21 April.

The intention of the Fuehrer not to touch the Czech problem as yet is changed because of the Czech strategic troop concentration of 21 May, which occurs without any German threat and without the slightest cause for it.

Because of Germany's self-restraint, its consequences lead to a loss of prestige of the Fuehrer, which he is not willing to take once more. Therefore, the new order is issued for "green" on 30 May.

22 May:

Fundamental conference between the Fuehrer and K. Henlein (see enclosure).

23 May:

Major Schmudt reports ideas of the Fuehrer. Further conferences, which gradually reveal the exact intentions of the Fuehrer, take place with the Chief of the Armed Forces High Command (OKW) on 28 May, 3 and 9 June, see enclosures. (War Diary L)

30 May:

The Fuehrer signs directive Green, where he states his final decision to destroy Czechoslovakia soon and thereby initiates military preparation all along the line. The previous intentions of the Army must be changed considerably in the direction of an immediate break-through into Czechoslovakia right on D-Day [X-Tag], combined with aerial penetration by the Air Force. Further details are derived from directive for strategic concentration of the army. The whole contrast becomes acute once more between the Fuehrer's intuition that we must do it this year and the opinion of the army that we cannot do it as yet, as most certainly the Western Powers will interfere and we are not as yet equal to them.

10 August:

The Army chiefs and the chiefs of the Air Force groups, Lt. Col. Jeschonnek and myself are ordered to the Berghof. After dinner the Fuehrer makes a speech lasting for almost three hours, in which he develops his political thoughts. The subsequent attempts to draw the Fuehrer's attention to the defects of our preparation, which are undertaken by a few generals of the Army, are rather unfortunate. This applies especially to the remark of General Wietersheim, in which to top it off he claims to quote from General Adams [die er noch dazu dem General Adams in den Mund legt] that the western fortifications can only be held for three weeks. The Fuehrer becomes very indignant and flames up, bursting into the remark that in such a case the whole Army would not be good for anything. "I assure you,

General, the position will not only be held for three weeks, but for three years.” The cause of this despondent opinion, which unfortunately enough is held very widely within the Army General Staff, is based on various reasons. First of all, it (the General Staff) is restrained by old memories; political considerations play a part as well, instead of obeying and executing its military mission. That is certainly done with traditional devotion, but the vigor of the soul is lacking because in the end they do not believe in the genius of the Fuehrer. And one does perhaps compare him with Charles XII. And since water flows downhill, this defeatism may not only possibly cause immense political damage, for the opposition between the Generals’ opinion and that of the Fuehrer is common talk, but may also constitute a danger for the morale of the troops. But I have no doubt that [?] the Fuehrer will be able to boost the morale of the people in an unexpected way when the right moment comes.

21-26 August:

Visit to Germany of the Hungarian Regent [Reichsverweser]. Accompanied by the Prime Minister, the Minister of Foreign Affairs and the Honved Minister v. Raatz [?].

They arrive with the idea that in the course of a great war, after a few years, and with the help of German troops, the old state of Hungary can be reestablished. They leave with the understanding that we have neither demands from, nor claims against them, but that Germany will not stand for a second provocation by Czechoslovakia, even if it should be tomorrow. If they want to participate at that moment, it is up to them.

Germany, however, will never play the role of arbitrator between them and Poland. The Hungarians agree; but they believe that, when the issue arises, a period of 48 hours would be indispensable to them to find out Yugoslavia’s attitude.

6 September:

Chief of General Staff, General of Artillery Halder, has a conference with the Hungarian Chief of General Staff Fischer.

Before that he is briefed by me on the political attitude of the Fuehrer—especially his order not to give any hint on the exact moment. The same with OQI, General v. Stuelpnagel.

8 September:

General Stuelpnagel OQI asks for written assurance that the Army High Command will be informed five days in advance if the plan is to take place. I agree and add that the over-all meteorological situation can be estimated to some extent only for two days in advance, and that therefore, the plans may be changed up to this moment. (D-day-2) [X-2 Tage].

General Stuelpnagel mentions that for the first time he wonders whether the previous basis of the plan is not being abandoned. It presupposed that the Western Powers would not interfere decisively. It gradually seems as if the Fuehrer would stick to his decision even though he may no longer be of this opinion. It must be added that Hungary is at least moody and Italy reserved.

I must admit that I am worrying too, when comparing the change of opinion about political and military potentialities, according to directives of 24 June, 5 Nov 37, 7 Dec 37, 30 May 38, with the last statements.

In spite of that one must be aware of the fact that the other nations will do everything they can to apply pressure to us. We must pass this test of nerves, but because only very few people know the art of withstanding this pressure successfully, the only possible solution is to inform only a very small circle of officers of news that causes us anxiety, and not to have it circulated through anterooms as heretofore.

1800 hours to 2100 hours: Conference with Chief of Army High Command and Chief of General Staff of the Air Force (present were Jeschonnek, Kammhuber, Sternburg and myself).

We agree about the promulgation of the D-day order [X-Befehl] (X-1, 4 o'clock) and preannouncement to the Air Force (D-Day-1, 7 o'clock). The "Y time" has yet to be examined; some formations have an approach flight of one hour.

10 September:

General Halder back from Nurnberg. He reports that the Fuehrer signed decree subordinating the Reich Labor Service to the Army High Command, as of 15 September. Furthermore it was decided that the 13th and 2nd motorized divisions would join the Reichenau Army and their place would be taken by two other divisions [3 words illegible].

11 September:

In the afternoon conference with Secretary of State Jahnke from the Ministry of Public Enlightenment and Propaganda on imminent common tasks.

The joint preparations for refutation [Widerlegung] of our own violations of international law, and the exploitation of its violations by the enemy, were considered particularly important.

15 September:

In the morning conference with Chief of Army High Command and Chief of General Staffs of Army and Air Forces; the question was discussed what could be done if the Fuehrer insists on advancement of the date, due to the rapid development of the situation.

16 September:

General Keitel returns from the Berghof at 1700 hours. He graphically describes the results of the conference between Chamberlain and the Fuehrer. The next conference will take place on the 21st or the 22nd in Godesberg.

With consent of the Fuehrer, the order is given in the evening by the Armed Forces High Command to the Army High Command and to the Ministry of Finance, to line up the V.G.A.D. along the Czech border.

In the same way, an order is issued to the railways to have the empty rolling stock kept in readiness clandestinely for the strategic concentrations of the Army, so that it can be transported starting 28 September.

17 September:

Contrary to the previous intention to transfer all Sudeten Germans with previous military training to the Replacement Army, the Fuehrer issues order to unite them into a Sudeten German Free Corps. The Armed Forces High Command puts Lt. Col. Koechling (reporter on youth questions) at the disposal of Konrad Henlein as advisor to Henlein.

19 September:

Order is given to the Army High Command to take care of the Sudeten German Free Corps.

20 September:

England and France have handed over their demands in Prague, the contents of which are still unknown. The activities of the Free Corps start assuming such an extent that they may bring about, and already have brought about, consequences harmful to the plans of the Army. (Transferring rather strong units of the Czech Army to the proximity of border). By checking with Lt. Col. Koechling, I attempt to lead these activities into normal channels.

Toward the evening the Fuehrer also takes a hand and gives permission to act only with groups up to 12 men each, after the approval of the Corps HQ.

21 September:

The motorized reinforcements by the L. take effect.

1130 hours: Telephone call from the Adjutant of the Fuehrer, Captain Engel, (it is submitted during the conference with the Chiefs by Captain Eberhardt). "The Fuehrer has received news five minutes ago that Prague is said to have accepted unconditionally."

1245 hours: Department heads are informed and directive is given to continue preparation for "Green", but nevertheless to get ready with everything necessary for a peaceful penetration. Orders to the Ic and Ib of Navy High Command and Chief of General Staff of the Air Force; General Stumpf to be informed.

22 September:

1920 hours: Ia reports about a telephone call from Godesberg by General von Stuelpnagel on behalf of Keitel. Subject: a) Date cannot yet be ascertained (D-Day); continue preparations according to plan. In case "Green" occurs, it will not be before 30 September. If it occurs sooner, it will probably be improvised.

25 September:

By order of the Fuehrer, two Death Head [Totenkopf] SS battalions have moved into the panhandle territory near Asch [Acher Zipfel] to the rear of the Free Corps.

26 September:

Chief of the Armed Forces High Command, acting through the Army High Command, has stopped the intended approach march of the advance units to the Czech border, because it is not yet necessary and because the Fuehrer does not intend to march in before the 30th in any case. Order to approach towards the Czech frontier need be given on the 27th only.

In the evening of the 26th, fixed radio stations of Breslau, Dresden and Vienna are put at the disposal of the Reich. Ministry for Popular Enlightenment and Propaganda for interference with possible Czech propaganda transmissions.

Question by department "Foreign Countries" whether Czechs are to be allowed to leave and cross Germany. Decision from Chief of the Armed Forces High Command: yes.

1515 hours: The Chief of the Armed Forces High Command informs General Stumpf about the result of the Godesberg conversations and about the Fuehrer's opinion. In no case will X day be before the 30th.

It is important that we do not permit ourselves to be drawn into military engagements because of false reports, before Prague replied.

A question of Stumpf about Y hour results in the reply that on account of the weather situation, a simultaneous intervention of the Air Force and Army cannot be expected. The Army needs the dawn, the Air Force can only start later on account of frequent fogs.

The Fuehrer has to make a decision for the commanders in chief who is to have priority.

The opinion of Stumpf is also that the attack of the Army has to proceed. The Fuehrer has not made any decision as yet about commitment against Prague.

2000 hours: The Fuehrer addresses the people and the world in an important speech at the Sportpalast.

27 September:

1320 hours: The Fuehrer consents to the first wave of attack being advanced to a line from where they can arrive in the assembly area by 30 September.

28 September:

Stapf (?) reports about a conference with Goering where the latter states that a Great War can hardly be avoided any longer. It may last 7 years, and we will win it.

1700 hours: Tension relaxes. The Fuehrer has decided on a conference with Chamberlain, the Duce, and Daladier in Munich.

29 September:

The pact of Munich is signed. Czechoslovakia as a power is out. Four zones as set forth will be occupied between the 2nd and 7th of October. The remaining part of mainly German character will be occupied by the 10th of October. The genius of the Fuehrer and his determination not to shun even a World War have again won the victory without the use of force. The hope remains that the incredulous, the weak and the doubtful people have been converted and will remain that way.

1939

23 August:

Received order from Armed Forces High Command to proceed to Berlin and take over position of Chief of Armed Forces Executive Office. (WFA).

1100 hours-1330 hours: Discussions with Chief of Armed Forces High Command. X day has been announced for 26 August. Y time has been announced for 0430 hours.

PARTIAL TRANSLATION OF DOCUMENT 1786-PS

WAR DIARY OF THE DEPUTY CHIEF OF THE ARMED FORCES OPERATIONS STAFF

WF. St. KTB (1) 1943

14 Mar. 1943

The treatment of captured partisans has been laid down in the combat directive for the combatting of partisans in the East [Kampfanweisung fuer die Bandenbekaempfung] of 27.11.42 (cf. 27.11/11/1) and Hitler's order [Fuehrerbefehl] of 16.12 (cf. 16.12/1). On the basis of the foregoing the Reichsfuehrer SS ordered on the 30.12 that persons suspected of being

partisans or their assistants, who are not to be executed, are to be transferred to concentration camps in Germany.

This order, which corresponds to the terms of reference already decreed, differs from an order already given on the 30.10.42 by the Commander in Chief [Oberbefehlshaber] of the 18th Army, which calls for the shooting without discrimination of all members of partisan groups and which is covered by the subsequent orders of the 15.11 and 16.12 only on their strictest interpretation. The Reichsfuehrer SS therefore sent to the Armed Forces Operations Staff [Wehrmachtfuehrungstab] on the 21.1 a letter of the Chef der S.P. and S.D. in which it is requested that, in the area of the 18th Army also, partisan helpers and persons suspected of such activity, should be dealt with in accordance with the terms of reference of 30.12.

The Armed Forces Operations Staff handed the matter over on the 25.1 to the Army General Staff [Generalstab des Heeres] competent for the combatting of partisans, and thereby conforming with the ruling given by the Reichsfuehrer SS. This decision was confirmed by the Chief of the High Command of the Armed Forces [Chef des Oberkommandos der Wehrmacht].

Since the ruling of the combat directive, figs. 85, 86 & 104, provides for work in Germany as a punitive measure for partisan helpers and suspects and has proved to be disadvantageous for the enlistment of voluntary workers, the General Plenipotentiary for Labour [Generalbevollmaechtigter fuer den Arbeitseinsatz], has requested that no threat of forced labour in Germany as a punitive measure should be made, or that at least, suspects should be described as such to the labour authorities for the purpose of supervision.

The General Quartermaster together with the Economic Staff (East) [Wirtschaftsstab Ost] has proposed that the deportees should be sent either to prison camps or to "training centers in their own area", and that deportation to Germany should take place only when the deportees are on probation and in less serious cases.

In view of the Armed Forces Operations Staff this proposal does not take sufficient account of the severity required and leads to a comparison with the treatment meted out to the "peaceful population" which has been called upon to work. He recommends therefore transportation to concentration

camps in Germany which have already been introduced by the Reichsfuehrer SS for his sphere and which he is prepared to introduce for the Armed Forces [Wehrmacht] in the case of an extension to the province of the latter. The High Command of the Armed Forces [Oberkommando der Wehrmacht] therefore orders that partisan helpers and suspects who are not to be executed should be handed over to the competent Higher SS and Police Leader and orders that the difference between “punitive work” and “work in Germany” is to be made clear to the population.

TRANSLATION OF DOCUMENT 1796-PS

7 April 1941

W Kr Gesch.

Copy

3 Copies, 3rd Copy

Major of the General Staff Deyhle

Berlin, 18 October 1940

2 Copies, 2nd Copy

Notes to the War Diary

1st. End of March 1939:

The Fuehrer decides to make military preparations for the gradual, seemingly unavoidable conflict with *Poland*, in such manner that these can be executed in late summer 1939. Thereby the Fuehrer hopes only to have to wage war on one front (“Fall Weiss”).

2nd. The following months: *Minutes under the Fuehrer’s influence*:

a. Attack by the forces from East Prussia;—OKH will first of all deploy the forces from South West Part of East Prussia in order to eliminate the Corridor as soon as possible. The Fuehrer considers attack further East more suitable in order to reach a decisive solution at the very beginning (causing the Vistula line to fall, thereby preventing the Poles from making a new stand behind the Vistula).

b. Forming of 14 divisions. Fourth wave (Welle) to consist of E units.

c. All preparations to be camouflaged as defensive measures.

Basis for 1st and 2nd:

a. Directive for “Fall Weiss” OKW/L of April 1939.

b. “Chronological table” for Weiss OKW/L of July 1939.

c. Correspondence OKW/L with sections of the Armed Forces.

d. Beginning of the War diary L.

3rd. August 1939:

In spite of the English guarantee to Poland, and thereby a war on 2 fronts becoming almost unavoidable, the Fuehrer decides to settle the account with Poland after having prevented encirclement by means of an agreement with Russia.

4th. September 1939: *Polish Campaign mainly under the Influence of the Fuehrer:*

a. “Great Pincers” (strongly motorized forces to attack the Eastern part of East Prussia towards South behind Vistula, moreover motorized forces to push forward in plenty of time across lower Vistula towards East Prussia).

b. Capture of Warsaw. Must be carried out *before* the Russians reach the Vistula.

c. Reinforcement of the Western Front. Extension northwards to the Belgian/Dutch border, in order to incite the French/British Army to march into Holland and Belgium; in addition to this also hasten the construction of the Northern part of the West Wall.

5th. End of September 1939:

Decision of the Fuehrer, to attack in the West and this as soon as possible since the French/British Army is not yet ready. Intention of attacking through Belgium and Holland (at least southern part) is certain from the start. From the very beginning it is the Fuehrer’s idea not to repeat the Schlieffen-plan but to attack in approximately a west-north western direction through Belgium and Luxembourg under strong protection of the Southern flank, and to gain the Channel coast.

After conclusion of the Eastern campaign the restrictions hitherto existing in regard to warfare in the West are progressively being lifted. They served the purpose, while the Eastern campaign was in Progress, of not inciting the enemy in the West to greater action, by German measures.

6th. October 1939:

Attack to begin at the earliest about 10 Nov. OKH is of the opinion that the preparations of the Army will not be absolutely complete by this time. Frequently the opinion is advocated—by no means shared by the Fuehrer—that an attack in the West is unnecessary, the war could perhaps be won for us satisfactorily if we were to wait a little.

Fuehrer is determined to attack in November only if the *weather* will permit operations by the mass of the Luftwaffe since only then can one of our most important trumps become effective.

How situation would turn out if *France/England* march into *Belgium/Holland*, is constantly the concern of the Fuehrer. Immediate attack of the German Western Army [Sofortfall] must be prepared for this event.

7th. End of October 1939: *Influence of the Fuehrer*:

a. Employment of *motorized* forces in direction Sedan is suggested by the Fuehrer. Preparations are under way for moving Army group B and concentrating them at A after, in accordance with previous deployment of troops, main concentration had been at Army Group B.

b. Re-occupation of Holland, it has been decided that Holland is not to be occupied for the time being, rapid occupation in case of English landing should however be possible at any time.

c. Question of using parachute and airborne troops is being taken up by the Fuehrer.

8th. Beginning of November 1939: Mainly under *Influence of the Fuehrer*:

a. Permanent reinforcement of the southern mot. group, which is to advance against Sedan.

b. Reinforcement of the Western Army to the utmost capacity.

The weather conditions prevent the execution of the attack in the West.

9th. 23 November 1939: *Speech by the Fuehrer to the Generals and Admirals.*

10th. End of November 1939: *Influence of the Fuehrer above all*

a. Holland is to be occupied immediately.

b. Shifting of the main concentration of Army Group B to A appears to have even better prospects.

c. Deployment of 7th FL. Div. (Deliberation of further possibilities).

d. Important to maintain element of surprise, therefore motorized units which are still all located at home will be moved up to the Rhine in order not to betray to the enemy the imminent beginning of the attack, by the moving up to the front.

e. Capture of the bridges at Maastricht and of the Fort Eben Emael, since destruction of the bridges would render impossible the fast advance of the sixth Army.

First directive for *warfare against England* (no. 9) is issued. Purpose: concentration of all combat weapons for important targets.

At a conference in the map-room of the OKW (Supreme Command of the Armed Forces) in the Reich Chancellery, the Fuehrer expresses anew his opinion that *the attack planned in the West* will lead to the greatest victory in world history.

11th. December 1939:

In spite of the *severe winter* the Fuehrer as always still continues to consider it desirable to carry out the *attack in the West* as soon as possible and not to delay it until spring. Reasons:

a. England/France must not be allowed under any circumstances to steal a march on us by occupying Belgium and Holland since then—on account of the danger to the Ruhrbasin—the war could hardly be won.

b. Time is not on our side but on the enemy's (see notes of Major Deyhle).

The Fuehrer is carefully watching the Russo-Finnish war (on account of the possibility of the Western powers joining in to the advantage of Finland).

12th. Beginning of January 1940:

The introductory movements in *preparation for the big attack* are ordered anew by the Fuehrer, soon however checked again on account of the weather condition, although most important operational basis fall into Belgian hands and thereby there is a possibility of our intentions becoming known.

For the deployment of the 7th FL. Division a new possibility becomes more and more probable: Capture of the “Fortress Holland”.

13th. Middle of January 1940:

During the past weeks probable *dates* for our attack in the West *have become known* in Belgium and Holland. The reason can not be determined, the main fault lies possibly in the long waiting time just before the attack (issue of order 7 days beforehand).

In order better to maintain the *surprise* element beyond the time of attack, the Fuehrer orders therefore a *change in the alert procedure*.

The idea that the decisive point of the attack will have to be reached by breaking through Southern Belgium (thus the total attack to be concentrated on the left) is being worked out by the Fuehrer in even greater detail.

The occupation of the whole of Holland is ordered. For this also the 7th FL. Division is to be employed. Extensive deceptive measures are ordered. The “Sofortfall” remains in effect.

The Fuehrer *makes up his mind* to utilize the Danish and *Norwegian space* for the German warfare.

The Fuehrer considers what possibilities exist for forming new units. The setting up of the division’s 7th and 8th wave is then ordered. * * *

PARTIAL TRANSLATION OF DOCUMENT 1799-PS

War Diary; Armed Forces Operations Staff (L/K.T.B. WFSt, Volume 6A, 1 Aug. 1940-26 Mar. 1941)

ANNEX 1

Report to the Fuehrer on 5 December 1940

The Chief of the General Staff of the Army then reports about the planned operation in the East. He expanded at first on the geographic fundamentals.

The main war industrial centers are in the Ukraine, in Moscow and in Leningrad.

* * * * *

The Fuehrer declares that he is agreed with the discussed operational plans and adds following: The most important goal is to prevent that the Russians should withdraw on a closed front. The eastward advance should be combined until the Russian air force will be unable to attack the territory of the German Reich and, on the other hand, the German air force will be enabled to conduct raids to destroy Russian war industrial territories. In this way we should be able to achieve the annihilation of the Russian army and to prevent its regeneration.

The first commitment of the forces should take place in such a way to make the annihilation of strong enemy units possible.

* * * * *

It is essential that the Russians should not take up positions in the rear again. The number of 130-140 Divisions as planned for the entire operation is sufficient.

1 August 1940-March 26, 1941

PARTIAL COPY OF DOCUMENT 1800-PS

PRELIMINARY REPORT ON GERMANY'S CRIMES AGAINST NORWAY

[Prepared by the Royal Norwegian Government.]

[Page 17]

Other Violations.

In different places in Norway the Germans appeared in Norwegian uniforms during battles. This was the case in the district of Bergen according to a Communique of the 14th of April, 1940, during the struggles in Valdres and in Narvik. Reports have been received that at one place the Germans even put on women's clothes, in order to reach a favourable position.

Where the Germans passed, the civilians found their homes in an indescribable condition after the battle, even if the Germans had not set fire

to the houses. The so-called German “informal requisitions” which actually meant plundering and destruction, were later compensated for to the extent of about 9 million kroner in all, partly by Norwegian authorities and partly by German authorities, that is, by money drawn out of the Bank of Norway [Norges Bank] by the Germans.

On 25th April, 1940, Ulvik in Hardanger was reduced to ruins, as a reprisal measure, as the Germans claimed that civilians there had fired on German troops. Damage was done to more than 400 buildings and chattels amounting to a total of 2.3 million kroner. [Page 26]

B. CRIMES AGAINST NORWEGIAN PROPERTY

a. Wanton ravaging and destruction.

4. As a result of the advance of the Russian troops and the retreat of the German Army in Finnmark, October-November 1944, the Germans practised the “scorched earth” policy for the first time in Norway. Orders were issued that the civilian population was to evacuate and that all houses, transport and stores were to be destroyed. As a result of this about 30,000 houses were damaged, apart from 12,000 items of damage to chattels, amounting to a total of about 176 million kroner (Appendices 31 and 32). [Page 62]

Appendix 31.

TO THE POPULATION:

The evacuation of a part of North Norway has been rendered a military necessity as a result of the treachery of a Finnish Government clique.

This evacuation necessitates the removal of the civilian population, as the enemy has proved that, in those territories occupied by him, he ruthlessly and brutally forces the civilian population to give him active assistance in achieving his aims.

This means that no shelter or means of existence of any kind can be left to the Bolshevick enemy in the fighting zone. All such installations as housing accommodation, transport facilities and food stocks must be destroyed or removed.

The population in these districts will therefore be deprived of the basis for their existence so that in order to be able to survive they must evacuate to

those Norwegian territories which are still protected by the German Wehrmacht.

For this reason, the German occupation authorities have declared themselves prepared to support, by all means at their disposal, the civil evacuation which the Norwegian authorities are carrying out.

In the interests of the people themselves all means by which they can effect their own evacuation are to be used to the greatest possible extent.

It is above all essential for a successful evacuation that all fishing smacks and other craft which are available in this area shall be fully employed. Owners of craft who try to evade evacuation must be prepared for severe counter-measures such as the shooting and sinking of craft and crew.

He who does not comply with these unequivocal instructions exposes himself and his family to possible death in the arctic winter without house or food.

(signed) Terboven.

Reichskommissar for the Occupied Norwegian Territories.

(signed) Rendulic.

Colonel-General

Commander-in-Chief 20th Army.

Proclamation by Terboven and General Rendulic on the evacuation
of Finnmark.

PARTIAL TRANSLATION OF DOCUMENT 1807-PS

[EXTRACT FROM JODL'S DIARY.]

16.6.42.

The operational staff of the Navy [SkI], applied on the 29th May, for permission to attack the Brazilian sea and air forces. The SkI considers that a sudden blow against the Brazilian naval and merchant ships is expedient at this juncture (a) because defence measures are still incomplete (b) because there is the possibility of achieving surprise and (c) because Brazil is to all intents and purposes fighting Germany at sea.

PARTIAL TRANSLATION OF DOCUMENT 1808-PS

Address by the Chief of the Armed Forces Operations Staff, Col. Gen. Jodl to the Officers and Officials of the Armed Forces Operations Staff. July 24, 1944: 19:30 hours, page 4.

Those making the attempt may have thought also that the men around Hitler were climbers and servile characters. But how did matters really stand? I, for example, was drawn in, even though I knew the movement before 1933 but little and could do nothing for it for the very reason that I was a soldier. Rather, I was against any relaxing of the discipline, bound as I was by my oath to the Reich President. Of course, my aims were, by and large, the aims of the movement, since my thinking was always nationalistic, social, and anti-Catholic, and since loyalty and obedience were the bases of life for me. And thus this train of thought is also disposed of.

TRANSLATION OF DOCUMENT 1809-PS

General Jodl's Diary (Armed Forces Operational Staff) from 1 February to 26 May 1940

1 February 1940:

The Fuehrer requests that Major Kieritz be sent from here in good time with special mission.

Col. Schmundt and Capt. Deyhle are back from the West.

Conclusion:

1. Morale and discipline—excellent
2. Tactical mobility is impossible because of the weather. One cannot withdraw more than 15 km. Army Group B, on the contrary, deems weather excellent to overcome floods.
3. In all divisions, formerly committed in the East, the automotive position is very bad. Up to 40% are missing—each of these 40 divisions should be provided with up to 100 vehicles.

1700 hours General Jeschonnek.

1. Attitude of parachute units. In front of the Hague, they have to be strong enough to break in even forcibly. The 7th

division intends to drop units near the town.

2. Political mission contrasts to some extent with violent action against the Dutch air force.
3. Walcheren Island will have to be occupied as soon as possible.
4. Immediate use requires some arrangements.

To be eliminated:

Commitment of K against Eben Emael
against bridge C

“Fieseler Storch” airplane in front of Army Group A.

The ground Forces already will take up position at dusk, if possible.

7th Fl. Division is to be in readiness, but will not take up position without further orders.

5. Question about general intentions? Time.
6. Is it not possible to tackle H alone; that would already be a tremendous improvement in conducting aerial warfare.
7. The Air Force wants permission to attack every kind of commercial shipping in the 30-mile zone as well as everything anywhere making use of arms: French vessels, cargo boats.

2 February:

Fuehrer is furious about presentation by Ordnance Bureau which needed 8 days to demonstrate to him—not by actual constructing but only theoretically—that the Czech 4.7-cm anti-tank gun is not usable with armored car 3.

Fuehrer decides as to Jeschonnek’s questions of 1 February:

a. one has to employ in the Hague [d.H.] forces of such strength that they will be able to take over command there. In order to achieve that, a landing can be made in the center of the Hague.

Unlimited use of arms against airfields and anti-aircraft guns is authorized.

Relative to an attack against all ships, found between the English East Coast and the English mine fields, as desired by air, the Foreign Office is still to be consulted and Admiral Schuster, Chief Air Force, 1700 hours, states in that matter that he does not want any exception.

Italian and Japanese ships to be considered, which were sailing to Newcastle, until a short time ago.

Important, that, though we signed an agreement about submarine warfare, we never signed one about manner of air warfare.

Reported to the Fuehrer on 3 February

The Spanish have supplied a German submarine and convoyed a merchant ship from Bilbao to Santander.

Opinions of the newspapers: Spain is not ungrateful. Photos of Church Services, does Fuehrer agree with them?

The Foreign Office wants that within the 30 mile zone the Air Force shall *not* attack—

- a. Japanese and Italian ships.
- b. Danish Maltesian cross ships.
- c. All passenger boats which do not fire.

3 February:

General Gerke: Railroads are unable to accomplish big tasks. No reaction to our transports. It seems possible that he got news about the reliefs. Opportune to keep movement going. Proposal to prepare again an A-movement to deceive the enemy. Empty rolling stock for 6 divisions available, organization transports are rolling. Will head of transportation service be able to release state of readiness, so that he can gather empty rolling stock during 4 days.

To consult Fuehrer. *The chief of Transportation Corps West requires one week's time (225 trains).* 70 trains are at the disposal of the armies.

315 trains are needed for second echelon. An order will be issued on this matter on D-day.

Afterwards remain 3rd, 4th, and 5th echelon.

Total 660 trains, including 80 for tanks and 70 for armies (among them 10,000 army cars).

Altogether 60 fewer trains ready than before.

Air raid protection.

Ammunition train has no special protection. If machine gun car is added, the enemy flier will be aware of the fact, that this is an important train. The wave before the trains should attack the enemy plane with best results. Ammunition trains often remain for weeks, personnel for its protection become demoralized.

Ammunition trains, regulating stations and storage areas to be spread out and protected. Assembly stations are enlarged to assembly areas.

Maintenance units are kept in readiness in the most endangered areas between the Rhine and the line Kassel-Hanover.

Ruhr area has 15 different ways to give way.

Rumania wants to get supply of rail track material (from Poland.)

1340 locomotives and 40000 cars will be manufactured by the end of 1940 or maybe beginning of 1941. Stock 23000 locomotives, 8000 of which are heavy freight train locomotives for Armed Forces transports. This will only replace the loss.

4 February:

Will the Court-Martial be re-activated?

Bodenschatz: Army Group C should not get out of hand [Keinen zauber machen] on minus-1 day.

Fuehrer gives his agreement that 225 trains in position of readiness may be used for other purposes by the chief of transportation corps until 12 February.

Proposal to the Fuehrer about continuation of aerial warfare within the 30 mile zone. Fuehrer agrees with proposal and talks with the Minister for Foreign Affairs in the afternoon.

5 February:

Special staff "Weser Exercise" meets and is welcomed by Chief of Armed Forces High Command, gets instructions.

Representative of Air Force is still missing.

6 February:

Consumption of gasoline is not reduced. Stocks further diminished by 30000 tons.

Deception even of Armed Forces High Command.

Office Reinicke and Thomas, that is to say Chief of Armed Forces High Command,

W Pr that is to say Chief of Armed Forces Operational Office.

Fuehrer leaves in the evening.

15:30 hours conference with General Jeschonnek, Col. v. Waldau and Col. Warlimont.

Air Force submits following questions:

Does X time remain unchanged? Yes. Deceptive action intolerable for Army Group C on A-1 day. Navy is not interested in Walcheren. Does not see any danger from the English side. New idea: carry out actions H and Weser Exercise only and guarantee Belgium's neutrality for the duration of the war.

Discussed once more affair Risberg with Chief of Armed Forces High Command.

8 February:

Chief of Transportation Corps reports: Reich Railroads now admit that they cannot handle any additional burden at this moment. They are not ready for war. Although they hardly got any military requests, they cannot supply the domestic economy right now.

It is only a question of engines, now, there are enough cars available everywhere.

Transportation: 80% railroad.

18% water transport.

2% road transport.

Transportation by water has to be brought to double of current capacity.

Radio receivers can be transformed into transmitters without particular difficulties.

Paris probably only by Gen. F.... [Fermont?], rue de Louvre.

9 February:

Chief of Armed Forces High Command received by Field Marshal Goering at 10 o'clock. Newspaper correspondents from the Protectorate may be sent to the West Wall (Fuehrer gave permission on 10 February).

10 February:

The difficult situation in Transportation is presented by me in written form to the Chief of the Armed Forces High Command.

13:00 hours: Conference of Fuehrer with General Halder. Before that, inspection of 4.7 tank destroyer on tank I, chassis satisfying [befriedigt].

Field Marshal has explained, that he is able to start at night anyhow. Flying into the area of ... from the sea.

During the World War, we have dropped 28,000 tons. Thus, the Air Forces does not want to anticipate, but prefers start at night. Planes shall not fly over Luetlich and Eben Emael in order to avoid any alarm there.

113,000 trucks driving in the W * * *

45,000 of them are suited for Armed Forces.

We are able to produce 4000 trucks.

Fuehrer states, all the iron has been taken away from Todt, even that put aside by him (he wanted to build 3000 additional ones).

For the first time, the problems of transportation, motor vehicles and gasoline have been reported to the Fuehrer more impressively.

Fuehrer agrees that the 225 trains for the first wave of Army High Command reserves may still be used further on by the Chief of the

Transportation Corps.

11 February:

First report from France about our troop movements and reinforcements in the west, which were terminated on 1 February already.

12 February:

Fuehrer has a cold. No report.

13 February:

The Army requested survey about the strength of the armies and reserves, divided into batteries, battalions and tanks [Btn. Btlen u. Kampfwagen], induces the Fuehrer again to open the question of the center of gravity.

He says: Most of the armed tanks [Geschuetzkampfwagen] have been directed to areas of secondary importance. Armored Divisions at 4th Army can do little in barricaded and fortified area.

They will be stopped at the latest on the Maas river and must be withdrawn. The 16th or 12th Army will then miss them. One should lead them together in direction of Sedan. The enemy does not expect our main assault there. The documents of fliers, who landed, have convinced them [the enemy] still further in their opinion that our intention is only to take possession of the Dutch and Belgian channel coast.

A great number of tanks with 8th Tank Division does not seem necessary, a mechanized division in 3 or 4 parts with tanks assigned, should suffice. (It may be that this is a wish of the SSV division.)

I hand over to the Fuehrer a summarized report, from which the great possibility for formation of a center of gravity south of the line Luettich-Namur becomes obvious (at least 5 times the strength of the forces committed north of that line). I bring to his attention that the thrust against Sedan is a tactical secret path, where one can be surprised by the God of War. If the French attack from the south flank, we must veer to the south.

Fuehrer still thinks it possible, that the enemy will not engage the battle at all. Anyhow he will do it automatically. After half a day the news from Holland and Belgium may be so threatening already that he will decide to stand still.

I don't believe it.

At 17:30 hours Col. v. Greifenberg and Lt. Col. Heusniger are summoned to discuss these questions.

The Fuehrer disapproves of the wearing of regular army uniforms by persons who are not members of the army or the Fuehrer's headquarters.

Recommends taking care of motor vehicles and fuel. Higher speeds result in doubled tire consumption.

Chief of Armed Forces High Command has a cold and will remain at home in the afternoon.

Have learned from Admiral Canaris that the echelon Reivel is to be put to use against the Caucasus with bulk from Bulgaria. The Air Force must explain with whom this false idea originated.

Inquiries made to the Chief of the Operational Division: whether there is a sufficient quantity of cloth for flags on hand? Change of position of the Army High Commands.

Proper designation of own troops:

- (a) Front line: white.
- (b) In line of company CPs: swastika flag.
- (c) Rear echelons: yellow rectangle.

Communicated Fuehrer's ideas to Col. Warlimont, von Greifenberg and to Lt. Col. Heusniger, at 17:30 hours. Instructions requested how we should proceed in future.

14 February:

Ziegenberg plant cannot be completed before June due to technical difficulties. Emergency installation can be made ready for operation by the middle of March, but in that case the Air Force must be in Nauheim or on the train.

Colonel Schmudt must make a report on the distribution of personnel to WNV.

Copper advance from Wifo stocks now to WNV, later back to Wifo.

Political action against the increase in frontier road-blocks [?] in Luxemburg.

Dr. Dorpmueller telegraphed to the chief of the Transportation Corps: The condition of the Reich Railroads requires that all nonessential transportation of the Armed Forces be postponed until warmer weather sets in.

15 February:

The Fuehrer approves my article on the Finnish-Russian conflict. Is to be published in the Voelkischer-Beobachter. Backlog congestion of railroads increased by 200 trains.

Certainty that nothing will happen to W.

Instructions to the 18th Army.

16 February:

Corps on left flank of 16th and not 6th Army.

Landing at the Hague....

Capture Fort Hendrik.

10 divisions of the 8th wave [must receive 3 batteries].

No off-standard types of vehicles must be permitted to be used at the front, as long as standard army models are still being used in industry.

To the Chief of the Luftwaffe [taken care of].

Air raid protection....

Speakers for troops, danger if commanders order the speeches themselves.

Chief of the Armed Forces High Command.

WNV training of 300 to 400 men
land postal clerks at Verst. [?]

from the Chief of the Air Force

Not yet
at present

6 new German consuls appointed in Scandinavia.

C. has given orders for large-scale preparations for offensive.

Fortress [Fest] drill of "Grafemvoeln".

Special security by counterintelligence coordination of press.

Brief reports in the provincial newspapers for enemy intelligence service. Request authorization to land at Myden with a load of machines. Alternative preparations at C. should work in the same direction. Pr. Battleship "Repulse" in dock. Complete flop of this news report. Altmark in Bergen, British submarines expected. Burgedeyk submarine 48 Schulz unsuccessful [?] submarines.

Chief of Armed Forces High Command.
Press Conference at Foreign Office.

Chief of the Navy High Command wishes to talk the Halifax problem over once more and then speak to the Fuehrer. Now applications of mines only. Chief of Navy, High Command will take this matter up again with the Fuehrer. L. ask what with report of General Staff Officers.

17 February:

Incident with tankship "Altmark", 6 dead, 4 seriously injured. 1700 hours: Newly promoted Commanding Generals and General Rommel at Fuehrer's table for dinner. (Geyr, Manstein, Schmidt, Reinhardt, Glumne). Complaints that guns in armored cars IV only * * * have not to 2000 m. After dinner Manstein reports his ideas about the operations of Army Group A. He says, the decisive blow will not fall west of the Maas, but it must be overcome between Sedan-Charleville. If the enemy crosses the river, we are able to beat him and cross the River Maas together with him. In the south therefore, we must have strong armor or none at all. What is in the rear cannot reach the battlefield in time.

18 February:

On the basis of my discussion with Greifenberg on 13 February Chief of the Armed Forces High Command and General Halder reported to the Fuehrer the following intention:

1. To shift the demarcation line between Army Group A and B in line Luettich-Namur.
2. To employ stronger armored forces in front of the 12th and 16th army, weakening by the measure Army Group B (1st and 5th armored) and ground forces reserved (9th armored division).

3. Intention to go to the front any way with a very small staff one night preceding A Day.

Fuehrer approves all three suggestions but insists that in distributing the heavy tanks III, III t and IV due consideration should be given to the tasks to be expected. That is to say not such a large number of heavy tanks as it is the case now with the 8th Armored and 6th Armored Division.

19.II

Fuehrer displeased with behavior of Graf Spee crew on the Altmark. No resistance, no British losses.

Fuehrer presses energetically, preparations for the Weser Exercise Equip steamships. Put units in readiness. Will talk to staff.

In order to speed up preparations I advise to appoint one of newly promoted commanding generals with his staff as leader.

Fuehrer approves.

Chief of Army reports about problems of organization.

20 February:

Discussion and consideration how case "Weser Exercise" is to be carried through. Equipment is to be taken on board ships ahead of the troops. Designation of units depends on equipment on hand.

1500 hours discussion concerning that matter through Chief of Armed Forces High Command with General Fromm. Intention, to take two divisions with technical equipment as second wave.

21 February:

Fuehrer talks to General von Falkenhorst and charges him with preparation of the Weser Exercise. Falkenhorst accepts gladly. Instructions to each of the 3 branches of the armed forces.

Proposal from Fromm to use only units with German material. Therefore 7th Fl. Div., 22nd Division, one regiment of the 1st mountain division. Two divisions of the 7th wave, motorized brigade (rifle brigade. 11 with armored car 1).

Fuehrer wishes that western connections of the “Spicherer Hoehen” be advanced and fortified with pillboxes.

Colonel v. Greifenberg transmits.

22 February:

Fuehrer expresses his intention to go to Munich for Sunday.

At the beginning of operations he does not want to go to Ziegenberg but to the Eagle’s Nest [Felsen].

Colonel Juppe ordered:

- a. to have a drawing made of the chain of command.
- b. to consider, in what way the communications can be technically improved at the Eagle’s Nest and vicinity.

Commander Junge informed about proposed points in his report by the Commander-in-Chief of the Navy. Important 3 points:

- a. Submarines into the Mediterranean.
- b. Estonian submarines.
- c. Discordance Navy-Airforce about the moment for the beginning of mine laying. Air force beginning 1 May with 3000, Navy with Heinkel 115 now, already 1845 hours
Chief of the Armed Forces High Command informed.

Noon. Todt reports to the Fuehrer concerning extension of railroad gauges [?] [Schienenhoehen]. Fuehrer approves that extension will be built according to schedule.

23 February:

Navy High Command reports that during last night 2 destroyers were sunk by our own planes [Leberecht Maas and ...]. Navy High Command stresses that this is the consequence of uncoordinated conduct of sea warfare, regardless whether it is conducted under, on or above the sea. One takes pains not to get excited; what would happen if there should be heavy losses. Fuehrer is furious. He is right. He says: “I would not say anything if the whole Navy were sunk in battle with the enemy, but it is inexcusable if that happens on account of lack of coordination.”

Gasoline reserve for motor vehicles.

24 February:

Clear up, whether Navy is authorized to start already now with mine laying. Who will ask Duce, whether our own submarines have to enter the Mediterranean?

Engel informs about inquiry results Todt and Schmundt. The latter calls long distance from Munich. Fuehrer has ordered completion of Eagle's Nest for Armed Forces Operational Staff and Air Force. [Zug] (air group [?]) Heinrich will have to stay east of the Rhine.

Army High Command as strongly as possible in forests. Officer from the General Staff and an officer from Intelligence Service are to go to Eagle's Nest 26 February. There to reconnoiter together with Todt.

1430 hours. Orally transmitted to Chief of Operational Department and to Lieutenant Colonel Heusinger the matter. Chief of the High Command is informed. Staff Falkenhorst arrives in Berlin and starts to function XXIst Corps.

25.II.

Disturbing reports from Turkey. Communication apparently cut off.

Chief of Armed Forces High Command inform General Halder about Fuehrer's intention to have an Operational Staff of the Army High Command near the Eagle's Nest also.

26.II.

Fuehrer raises the question, whether it is better to undertake the Weser Exercise before or after case "Yellow".

Chief of the Air Force charged with examining this problem. Fuehrer decides that Navy will have to wait with starting of mine laying by means of planes, until situation will permit large-scale employment of air force [transmitted to Commander-in-Chief of the Air Force].

Talked with Chief of Air Force and Chief of Staff about work on and about housing of Air Force near Eagle's Nest at the beginning. Air Force to Rodert or Muenstereifel or train nearby.

27 February:

60 Tons of leaflets shall be dropped down in the near future. Fuehrer approves the schedule but will not issue proclamation to Armed Forces from here on A Day.

28 February:

I make the following proposition to the Chief of the Armed Forces High Command and after that to Fuehrer: Case "Yellow" and Weser Exercise have to be prepared in such a manner that they will become quite independent from another regarding time and strength. Fuehrer completely agrees with that proposition if there is any possibility for it.

1500 hours, staff Falkenhorst reports about preparations made so far. In this connection I explain to him the new basis of preparations.

Proposition for employment of forces

- N 4 airborne companies
- 2 Mountain divisions
- D 1 corps headquarters
- 22 infantry divisions less
- 2 division, 7th wave pol. division
- 1 div. 3rd wave regional defense unit.

It has yet to be decided, whether reinforcement 11th rifle brigade is to be directed first to group D and then to group N or to group N immediately.

Proposition as regards combat planes too high.

29 February:

1500 hours, Report of staff Falkenhorst with Kranke, Buschenhagen, Dnaus very satisfactory to Fuehrer. He approves the suggestions.

Fuehrer wishes also to have a strong group at Copenhagen and detailed elaboration in which way the individual coastal batteries are to be overpowered. Commander-in-Chief of Air Forces is instructed to make out immediately the order for Army, Navy, and Air Force, and Chief "WZ" order concerning increasing of the staff.

According to my proposal outfit transport ships immediately and with them bring horses over here from East Prussia.

1300 hours, Order to Juppe to speed up construction of Eagle's Nest, 11 March according to interim solution (operational staff of the Commander in Chief of the Armed Forces in hunting lodge and at the same time permanent solution). (Army High Command with operational department and parts of O.A.IV.)

The same evening order concerning personal requirements of the staff and requisition to the branches of the armed forces.

1 March:

Fury at Army High Command because transfers. Consultation with Chief of Armed Forces High Command. After my discussion with Jeschonnek scaling-down of requisitions.

2 March:

Agreement with Army. Field Marshal rages and gets unfriendly towards Chief of Armed Forces High Command, goes to see Fuehrer at 1300 hours. During the afternoon new requisitions are put forward which are somewhat reduced after consulting with Army and Air Force.

1100 hours: Assistant Secretary of State Welles with the Fuehrer. The appointment of a new Minister for Ordnance is to be expected because Fuehrer is dissatisfied with production of equipment and munition.

Letter from the Chief of the Armed Forces High Command to the Field Marshal.

3 March:

Fuehrer expresses his opinion about the necessity of prompt and strong action in Norway very sharply. No delay by branches of Armed Forces. Rapid acceleration is necessary.

Commander-in-Chief of the Air Force is against any proposition to subordinate Air Force units to XXI Corps.

Fuehrer decides to undertake Weser Exercise before case "Yellow", with several days interval.

4 March:

Discussion with General Jeschonnek. All units of the Air Force are subordinated to X Fl. K. This receives its order through High Command of the Air Forces, upon demand of the Staff of XXIst Corps.

Fuehrer orders that the Air Force shall provide the anti-aircraft battalion for the Weser exercise South.

3rd mountain division to be in Berlin already on March 6th.

1000 hours: Chief of the Air Force is informed.

1300 hours: Chief WNV is charged with securing communications from Falkenhorst to us. The former has to go to Luebeck to the X Fl. K.

1500 hours: Chief WNV is instructed to set up * * * platoon company only after X-day. After that time, use expedients and send some men with the tactical troops.

1700 hours: General Bodenschatz complains about exclusion of the Field Marshal from Weser exercise. He said that 110 officers of the Air Force had been consulted in advance. Such subordination is intolerable.

Mad at General K

I certify this error.

Chief of the Armed Forces High Command is informed that General Rundstedt is supposed to feel sick. Intend to talk about it with Commander-in-Chief of the Army. If it is true, v.R. would have to be replaced by List in good time.

Himmler or Canaris are to provide personnel who are familiar with the Hague. These to Wenninger and are grabbed there by Kiertz.

Proclamations:

- a. faked ones,
- b. proclamations that everything is going well.

Student wants separate proclamations for Holland.

5 March: 1500 hours:

Big conference with the 3 Supreme Commanders about Weser exercise. Field Marshal vents his spleen, because he was not consulted beforehand. He dominates the discussion and tries to prove that all previous preparations are good for nothing.

Result:

- a. Stronger forces to Narvik,
- b. Navy shall leave warships in the ports (Hipper or Luetzow in Trondheim),
- c. Christian and may be excluded, for the beginning,
- d. 6 divisions should be calculated for Norway,
- e. To get a foothold immediately in Copenhagen, too.

After this, the following make a report: General von Kesselring, Student, Sp * * * Richthofen, Captain Koch, 1st lieutenant Witzig about the case “Festung” [fortress] and actions by glider-borne troops against the bridges of Vroenhofen and Veldvezelt, furthermore against Fort Eben-Emael. Accusations are made that Army Group B is supposed to have said that it would take 3-4 days until forces of the army could attack the fort.

6 March:

7 March:

Falkenhorst with Commander-in-Chief of the Air Force. The preparations have now materialized. The Fuehrer signs a directive containing all changes subsequent to the conference of March 5th. Nothing is to be changed any more now.

8 March:

Fuehrer wishes to have issued special orders for the Weser exercise in another form. They are to be divided into military orders which have to be made known to the tactical troops and into general instructions concerning actions of the Plenipotentiary of the Reich.

Fuehrer is outraged about report of the Field Marshal that the Army does not care for occupation of the area in front of the left wing of the Army led by Busch by airborne troops dropped from “Stork” planes, because

divisions can get there only after several days. I object that it will naturally be better to employ these troops there, where armored divisions will arrive faster.

9 March:

Fuehrer is outraged when he learns that Prince Oskar is commanding officer of a regiment. Schmidt was just about to suggest that he should be given command of a division, but he managed not to mention it.

Buschenhagen reports to me about the preparations for W and submits the schedule.

Fuehrer does not appear at table.

In the evening of March 8th, I again bring seriousness of the gasoline situation to the attention of the Chief of the Armed Forces High Command. Nothing efficacious has been done to improve the situation. Industry regularly uses up 80,000 tons a month.

There is pressing need for the appointment of a Deputy-General for Fuel Economy (General von Schell).

10 March:

Fuehrer makes his wonderful speech in the arsenal on the occasion of Memorial day.

The news about the Finnish-Russian negotiations are very favorable, from a political point of view.

The French press rages about it because they consider it necessary to cut Germany off from the Swedish ore. In a military way, the situation is disturbing for us, because, if peace should be concluded soon, the motivation for the prepared action of the group Falkenhorst will be difficult.

11 March:

Fuehrer has objections against the iron cross in gold (color effect black-gold), as it means abandoning tradition. Rather create a new decoration.

On the other hand, he agrees with the Oak-Leaves for the Knight's Cross. The Chief of the Armed Forces High Command presents a list of the tanks at hand in the armed forces.

Fuehrer wants a basic ruling that only such people should be appointed in the Armed Forces and in Civil Service who have no relatives abroad. The danger is too great that they will get into conflict with their own conscience. The schedule (for the Weser exercises) is presented to the Fuehrer. Also the special orders which the Fuehrer takes along.

12 March:

Fuehrer is very much satisfied with Ribbentrop's conference in Rome. Duce remains steadfast, wants to talk with Fuehrer personally next week on the Brenner. Conclusion of peace between Finland and Russia deprives England, but us, too, of any political basis to occupy Norway.

The preparations are ready to the extent that March 20th could be W-day. However, unfavorable ice conditions compel postponement by 1-2 days.

13 March:

Fuehrer does not yet give order for "W". He is still looking for some justification.

14 March:

English keep vigil in the North-Sea with 15-16 submarines; the reason is doubtful, either to prevent a German action. Fuehrer has not yet decided, how to justify the Weser exercise. Wrong news report in the American newspapers.

Commander-in-Chief of the Navy is in doubt, whether it is still important to play at preventive war [?] in Norway. The question is, if it wouldn't be better to carry out case "Yellow" before the Weser exercise.

The danger in that case is that the English will immediately get a foothold in Narvik, because we would have started with neutrality violation.

At noon, Colin Rosz visits the Fuehrer. Interesting explanations about Japan-China and Russia.

15 March:

Fuehrer wants the following material for the conference with the Duce on March 18th:

1. Large-scale map of the distribution of our own forces (207 divisions).
2. Maps about the distribution of enemy and neutral forces. France, England, Holland, Belgium, Switzerland, Norway, Denmark, Sweden, Hungary.
3. Terminal map of the Finnish-Russian conflict.
4. Strength of our own Air Force.

1330 hours: Lunch with Army Group A and with Chief of the General Staff.

1500 hours: Reports of Army Group Commander and Army Commanders, including Group Kleist; very satisfactory.

16 March:

Worries that the English will proceed against Norway, as overhead radio messages indicate. As the English have retired 7 submarines, such an action does not seem probable any longer.

Army Group B reports about its evaluation of the situation and its intentions.

Detailed preparations are done very well. Displeasure about disconnection of the 4th army. Mutual assistance is eliminated.

Lack of reinforcements, if the 6th army should be successful, after all. 6th army shifts its center of gravity to 4th Corps, and also draws 3 armored divisions of the 2nd echelon there. 10th and 9th Corps have no anti-aircraft protection.

Jeschonnek transmits that Army Bush needs another 25 “stork” planes.

17 March:

Fuehrer leaves at noon for conference with Duce on the Brenner.

News of the successful raid of the Air Force against Scapa Flow. Fuehrer is in high spirits.

18 March:

Nothing important. Commander-in-Chief of the Air Force (Chef L) is informed about the report of the commanders in the West.

19 March:

Fuehrer returns from the conference with the Duce beaming with joy and very much satisfied. Complete harmony, Duce is resolute; but he cannot fight a long war. Duce is highly impressed and agrees with the opinion of the Fuehrer's that the decision against France is being made. Whatever happens at the periphery in the meantime is unimportant. At the end, Duce told Ciano: "My decision is made. Did you hear, Fuehrer?" Balkan should and must remain quiet. Complete understanding for Fuehrer's cooperation with Stalin.

Fuehrer deeply moved by enthusiasm of the Tyrolian's England song ["We will sail against England..."—translator's note].

Chief of Armed Forces High Command very much depressed because of Todt's appointment. I try to persuade him not to insist on the "agreement". It is much better, to separate the tasks clearly. The quests of the Armed Forces are laid down by the Fuehrer and transmitted to Dr. Todt by the Armed Forces High Command. Dr. Todt has full powers to fulfill these requests.

20 March:

During the night, the English attack Sylt and Hoermann [?]. No success.

At noon, the Fuehrer signs an order which appoints Todt as Minister for Ordnance.

Wedel is instructed by the Chief of the Armed Forces High Command to celebrate the 40th anniversary of service by the Commander-in-Chief of the Army in a modest way only. The achievements of individual personalities can be appreciated only during or after the war.

In the evening, annihilating blow against an English convoy; 42000 tons of big boats (10-12000 tons) have been sunk.

21 March:

Objections of Group 21 [Grp. XXI] about the long interval between taking up readiness positions at 05,30 hours and finishing of the diplomatic action. Fuehrer rejects any earlier negotiations, because otherwise calls for help will be offered, it has to be broken ruthlessly. The political plenipotentiaries

will have to strongly emphasize the military measures taken, and will even have to exaggerate them.

22 March:

Reported to Fuehrer, how we want to proceed at the proposed discussions with the Italian General Staff. First, inquiry by attaché in Rome, how they believe they can take some burden off us. Only then to proceed to possibility of an operation across the Upper Rhine. Discussion with General Staff only once our cards are on the table.

American newspaper correspondents inspect the small damage on Sylt.

24-25 March:

Fuehrer at Obersalzberg.

No special events.

The English start to molest our merchantmen in the Danish and Norwegian territorial waters, or even fire at them.

26 March:

The Fuehrer is back.

Discussion about deadlines for operations.

Fuehrer sticks to it: first Weser exercise, dark nights necessary for it. Thus about 4-5 days later. Commander-in-Chief of the Navy reports, urges to start laying mines with planes, as 1270 mines will already be at hand by end of April. Fuehrer wants to think it over some more.

27 March:

Our own submarine stranded near Lindesnaes, one submarine and boat 37 come to help. Are to ask for permission to stay in Norwegian waters, if necessary, 2300 PM. Discussion of the Fuehrer with Commander-in-Chief of the Army and of Army Group C. First and Seventh army.

Fuehrer explains his intentions with the Italians about to strike. Operational aim plateau Langres.

Deceptive actions of First Army in case "Yellow" agreed to. Attacks proposed in case of 95th, 93rd, 75th, 268th, 215th, and 246th divisions.

These have favorable effects, but deceptive measures of the 7th army will not take place, because of the preparation of case Brown (Ital.).

28 March:

Duce attaches importance to General Staff talks, Graziani intends to send General Roatta to B. in April. The Norwegians are interning U 21 seemingly because of awkward statements by the commander, who did not claim engine trouble but mistaken navigation. But it may also be a mistake made in translation. Individual naval officers seem to be lukewarm concerning the Weser exercise and need stimulus. The three chiefs von Falkenhorst are also pondering matters, which are none of their business. Kranke sees more disadvantages than advantages.

In the evening, the Fuehrer steps into the map room and explains sharply that he will not be content with the Navy again quitting the Norwegian ports right away. Narvik, Trondheim, and Oslo will have to remain occupied by naval forces. Bad impression on ground forces.

29 March:

Talk with Commander-in-Chief of the Navy, 1200 hours. Wants decision about commitment of air mines.

Fuehrer talks to him alone about retaining of ships. Admiral of the Fleet [Grossadmiral] rejects Narvik, but wants to examine, if Trondheim cannot be set up as a base immediately.

Commander-in-Chief of the Navy draws attention to the fact that they want fuel from him, because the army will run out of it by the end of May. This is the consequence of the wrong arrangements with Shell and not to buy in Mexico, like the Navy did it.

3 PM: Commander-in-Chief of the Force with the Fuehrer.

30 March:

U-21 not set free yet by the Norwegians. Negotiations under way.

Fuehrer thinks about activation of another 10-12 new divisions. Where are the mortars committed?

L II ordered to present an outline of personnel and materiel, from which it could be determined, if and when new activations are possible.

31 March:

Nothing of importance.

1 April:

German fighters shoot 7 enemy fighters down. 1300 hours: Falkenhorst again gives general report about Weser exercise. 1300 hours: Breakfast, then discussion with all commanding officers primarily concerned.

Fuehrer has a very good impression about thoroughness of preparations.

2 April:

1530 hours: Commander-in-Chief of the Air Force, Commander-in-Chief of the Navy, and General von Falkenhorst with the Fuehrer. All confirm end of the preparations. Fuehrer orders carrying out of the Weser exercise for April 9th.

Protests of the commanding officer of the Air Force that some warships leave ports again right away. Fuehrer, too, disapproves of that, but does not want to intervene too much in an exclusive concern of naval warfare.

Commander-in-Chief of the Air Force agrees to plan to start aerial torpedo war [LM-Krieg] now.

Fuehrer wants that Luetzow shall be used for the transport of troops to Trondheim, in spite of tasks later on.

Find out, if it is not possible to land debarkation troops by fishing boat, in order to capture the bridge strong point of Vordingborg.

3 April:

Movements of the first 3 ships of the leading echelon [Ausfuhrstaffel] started at 0200 hours. Lt. Commdr. Junge reports at 1600 hours that the 3 ships have instructions how to act against Norwegians. I immediately instruct Councillor of Legation Hewel in order to inform the Foreign Minister what the situation is, in case one of the ships of the leading echelon should be examined by Norwegians. The Chief of the Armed Forces High Command also informs the Fuehrer at 1815 hours about it.

1830 hours Reich Foreign Minister informed by Fuehrer. Chief of Armed Forces High Command asked to join discussion.

4 April:

Slight alarm, as some news from Norway indicates increased preparedness. Sweden has asked what preparations for troops shipments in Stettin are supposed to mean (boats under Reich Naval Ensign) [Reichsdienstflagge].

Fuehrer drafts the proclamations. Piepenbrock, Chief of Counter-Intelligence service 1, returns with good results of the talk with Quisling from Copenhagen.

News that 2 armored coastal vessels [Kuestenpanzer] are in Narvik and that 2 submarines are expected.

5 April:

Weser exercise runs according to plan. Some alarm report from the source of a Belgian agent [V-Mann] appears unworthy of belief. The Chief of the Armed Forces High Command instructs General von Rintelen at 1930 hours.

6 April:

Weser exercise runs according to plan. The high-pressure weather area over the Northern North-Sea, which was predicted yesterday, is not taking place and that favors the action of the navy. Fuehrer puts great emphasis on the fact that the families of all deserters will be checked carefully. Navy records long English radio message, but is unable to decipher it.

1500 hours: General Gerke reports that his movements according to plan.

1600 hours: Talks in room of the Chief of the section for Foreign Countries in presence of Chef L and Military Attaché in Rome with General Marras.

1700 hours: Report that Luetzow is dropping out and can go to Oslo only, because auxiliary engines did not take part. Fuehrer agrees to this decision.

7 April:

No disquieting news. Hipper with destroyers seems to have been reported by an English submarine on Sunday morning, April 7th.

Prince Axel of Denmark has the intention to visit Field Marshal Goering on Monday.

8 April:

Day of highest tension. The English put 3 mine fields in the Norwegian territorial waters and make that public.

Leading echelon is far off with several ships because of lack of pilots.

Only 1 ship near Narvik, everything else seems to be hardly beyond Bergen.

Boat Rio de Janeiro is torpedoed; since horses and men in uniform are landed, the impending project becomes known to the Norwegians.

Group Hipper gets into a battle with an English destroyer and annihilates it.

9 April:

The surprise effect succeeds in Bergen, Trondheim, Narvik, and from the air in Stavanger. Not at Christiansand and in Oslo.

Bluecher sinks after heroic fight. Commanding Admiral and Commander 103 (Kdr 103) of it, on deck up to the last moment, swim to land.

Luetzow has to take over lead and lower boats.

Heavy fighting for coastal fortifications. Fortress Christiansand fought to surrender by planes and Karlsruhe.

10 April:

Chief of naval forces [Flottenchef] reports 2 turrets gone, only 25 miles.

First breaking through of British destroyers in Narvik.

The Koenigsberg destroyed by enemy dive bombers. Bornholm occupied.

11 April:

Luetzow on voyage home. Oslo hit by torpedo.

Norwegian warships are put into service.

Denmark does not belong any longer to jurisdiction of XXIst Corps. Railroads Oslo-Bergen and Oslo-Drontheim destroyed.

12 April:

Still 6 destroyers left ready for use in Narvik, Freighter [Treckdampfer] Jon Wellom in N., otherwise no ship of the leading echelon. Bulk of the submarines ordered outside the ports occupied by us.

Hundalen on the iron-ore railroad reached. Strong enemy air attack on Bergen.

13 April:

* * * Mountain battery flown to lake near Narvik with Ju 52 planes. Concentration of strong English naval forces near Harstadt in process.

Much booty in Oslo.

1650 hours naval battle in Narvik.

Battleships and Hipper arrived in home ports.

14 April:

Dietl is not being attacked, but is separated from Northern group. Terrible excitement. All details are to be ordered from here.

Steamship Baerenfelsis sunk in the course of attack on Bergen.

Another 3 airforce anti-aircraft batteries on board ship torpedoed by submarine.

Fuehrer wants that Dietl tries to fight his way through to the South. I argue against this impossible idea.

15 April:

16 April:

Reproaches against the navy, especially because the battle was not engaged by battleships and because she does not succeed in speeding up the transports (Unjustified—I strongly argue against it).

17 April:

During the night from the 16th to 17th Staff Officer from Admiralty arrives in Narvik and delivers written report by Dietl with call for help from Stavanger, since English naval forces are firing there. Air-Force notified. The Fuehrer again states in a temperamental way that the Gr. Dietl will have to march South or will have to be picked up. I advocate again in a very strong way that

a. a march South is impossible,

- b. even a transport can evacuate only very small units, leads to the loss of many planes and breaks the moral backbone of the Dietl group.

They will continue to fight on the Swedish border for a long time. A thing should be considered lost only when it is actually lost. 1200 hours: Field Marshal with Jeschonnek. Has to be regrouped. Draws combat teams to Ralburg and transport groups back into Slesvig. 1530 hours: Admiral of the Fleet [Grossadmiral] with Admiralty Staff Officer from Narvik who reports verbally about his experiences in Narvik. Each piece of bad news leads to the worst fears. Chief of Air-Force and of L IH [Army Air-Forces?] presents an evaluation of the situation I fully agree to. I present to the Fuehrer this and the proof that we do not have enough long range planes to pick up troops from Narvik, anyhow. Furthermore, an order which is delivered by courier and composed in our sense.

To fight and tie down forces and not to give up.

Even a professor who knows Norway is fetched from Innsbruck and asked whether mountain troops can get from Narvik to Fauske is impossible judging from my mountain experience.

In the evening, the Fuehrer signs the order to Dietl which I had prepared, to hold out as long as possible.

18 April:

Fuehrer is again calm. He gives orders to Captain von Sternburg in a way conforming entirely with our point of view. It might even be possible to change last night's order even more towards a sense of holding out and tying down forces.

The situation, too, looks better. The strong shipping losses of the English give them something to think about.

Quiet day which does our somewhat strained nerves good.

Sternburg leaves by plane with additional verbal orders.

1600 hours: General Jeschonnek shares the opinion we should go to Bardufoss. I refuse that. The troops cannot hold out.

Important is * * * of the forces on hand, most important the thorough destruction of the railroad.

2. He expresses doubts whether the landing of the 22nd division which takes several days still runs satisfactorily in view of the preparations in Holland. I emphasize that we have to open for ourselves at least the entry into the Southern front of the fortress Holland and that we have to keep it open.

19 April:

Renewed crisis. Political action has failed. Envoy Braner is recalled; since Norway is at war with us, the task of the Foreign Offices is finished. According to the Fuehrer's opinion, force has to be used. Gauleiter Terboven is supposed to be put in charge.

Field Marshal works in the same direction; he criticizes that the behavior against the civilian population is not energetic enough, that it was possible to occupy the electrical plant, that not enough troops are brought up by the navy. The Air-Force cannot do everything.

Chief of the Armed Forces High Command leaves room, leadership chaos is again threatening, because even details are being overruled from above, and all orderly work of the competent military leadership (Navy High Command and Gr. XXI) is in vain.

In the evening, Terboven arrives; after supper, the Fuehrer instructs him alone. It is doubtful, if it will be possible to limit him to the activity of a Civilian Commissar [Zivilkommissar], as I suggest it; we will have to talk to him personally.

20 April:

Fuehrer's birthday. Chief of the Armed Forces High Command and the Supreme Commanders congratulate. All the tempests have quieted down.

The movements to Oslo and Narvik make progress. No English landings. Fuehrer has a discussion with the Field-Marshal, with Himmler, Terboven, Reichsleiter Bormann.

Before that, the Chief of the Armed Forces High Command has told the Fuehrer about all possible points of friction between an independent head of the government and the Military Commander in Norway. It seems that

reports of the Air Force have induced the Fuehrer to form the opinion that the Norwegians are already conducting guerilla warfare and sabotage on a large scale. Already on the 19th, I contradicted such an opinion. We must not lead the Norwegians to passive or even active resistance, because that is precisely the aim of the English, after all.

21 April:

Reports about landings on a larger scale near Andalsnes and Namsos become more tangible.

On the evening of April 20th, the General [Generaloberst] leads a long fight in order to word the text of the order to Terboven in such a way that the military necessities are taken into account.

Fuehrer would like to bring big vessel with personnel and materiel to Trondheim.

Commander-in-Chief of the Navy considers that to be impossible, especially now.

22 April:

Fuehrer is increasingly worried about the English landings and the consequent impossibility to set up ground communications with Trondheim. Without success, I compare the difficult situation of the English, who have no usable port and no airdrome at their disposal.

The Field-Marshal somewhat quieter, in view of the good weather forecasts for the Air Force today.

23 April:

The excitement grows, because the 163d and 196th divisions are making small progress towards the North and new bridge demolitions are being reported. Fuehrer orders that no more motorized units [11th rifle brigade] are to be sent to *Stavanger*, but immediately 2 mountain divisions instead. 3rd is to be brought up to full strength again. 4 ships of the Iller class, in addition a 5000t steamer, later 2 larger East Asia boats are to be brought to Bergen convoyed by capital ships, in order to make the troops there mobile and ready for battle.

Forces in Narvik to be reorganized right away, in order to make the 3d mountain division again steadfast for battle.

No heavy artillery is to go to Norway for ground combat. The heavy battalion of the 2nd mountain division remains in the West, those of the 3d mountain and 69th division are at the disposal of the Commander-in-Chief of the Army.

Fuehrer talks to Commander-in-Chief of the Air Force.

a. Anti-aircraft reinforcements for Stavanger.

b. Bombers for ground fighting in Oslo,
Fighters for ground fighting in Oslo.

In the evening Lieutenant-Colonel von Lossberg returns from Oslo. He reports the favorable situation in a somewhat schoolmasterly way, but does not know any details. He brings along an English battalion order.

24 April:

The situation looks much more favorable, a fast advance on the right flank is to be expected with mechanized Battalion Goering.

Lieutenant-Colonel Boehme confirms that picture after his return from the front. He brings collected orders of the captured English brigade detachment along. Very great political success to be anticipated with that.

1130 hours: Field-Marshal reports, especially the situation in Trondheim. Lieutenant-Colonel Boehme, back from the battle field, reports favorably, rapid progress. Fuehrer regrets the halting of the 11th rifle brigade. I refuse to send them again now.

2300 hours: Schmundt back, even more favorable news. Boehme brings English orders for the entire project of Norway's occupation by the English. Complaint about lack of clear orders in the Air Force.

25 April:

Optimistic mood continues. Fuehrer very happy about Schmundt's report and about exact orientation. Talks adversely about Lossberg to Bodenschatz; Lossberg's somewhat braggard report has created displeasure, although he did not know any details. Preparation of an action on the basis of the orders found on captured Englishmen.

Order to Kraatz W Pr and Counter Intelligence Bureau for foreign countries [Amt Abwehr/Ausland].

Report by Sternberg about his task in Narvik.

Order by me to Chief L to give out a strong directive that nobody but Armed Forces High Command will give orders to Gr. Narvik. All men there are subordinated General Dietl exclusively.

The Belgian government resigned.

26 April:

Suggestion to the Fuehrer to omit naval transport to Bergen with battleships and to bring these mobile parts of the 69th Division back to Oslo. Italian ambassador Atolico is recalled, because he does not take a clear pro-German attitude.

At 1500 hours the Commander-in-Chief of the navy reports.

Fuehrer drops request for transporting troops to Bergen convoyed by heavy naval forces.

Commander-in-Chief of the Navy reports that everything which could be possibly thought of has been done for the safeguarding of * * * the Westwall will be extended * * * Sp * * * solidified.

Major Soltman reports about the interrogation of the Englishmen, and delivers additional important documents, among them the secret chain of command [Rangliste]. At noon, the first prisoners arrived in Berlin. They are being interrogated in the Alexander Barracks and confirm the authenticity of the orders. All material is handed over to the Foreign Office.

Until 0330 in the Reich Chancellery, where Fuehrer formulates the government statement together with Foreign Minister. It will be published on the * * *

27 April:

Fuehrer voices intention to start with case "Yellow" between 1st and 7th May. I point out that the Air Force and the Transportation Chief have to be initially notified 3 days ahead of time.

Motor column [Mot.Kol.] Fischer gets stuck 100 miles [Km?] south of Drontheim in front of many destroyed bridges.

Group (Gr) XXI is crying for engineers and cross-Country motor vehicles. They will have to get along with their own engineers. After all, there are 19 engineer companies. Order to get all engineers up to the front.

28 April:

Advance movement direction Drontheim is halting. Nevertheless the English are retiring fast according to their communiques.

29 April:

Fuehrer decides: Air Force can commit another 2 groups (new) in Norway on Tuesday and Wednesday, but must be ready for Yellow on Sunday.

Commander-in-Chief of the Navy commits heaviest flat * * * for the safeguarding of * * * [?]

Emden still to be left in Baltic (O), Employ 2 East Asia steamboats for Oslo-transport.

Falkenhorst wants his motorized and mountain battalion with engineer platoon and battalion brought to Drontheim by air.

Commander-in-Chief of the Army has to be compelled first to set up the missing regiment for the 3rd mountain division so rapidly than it can roll immediately behind the 2nd mountain division.

Fuehrer is worried about Drontheim and is not quite to be dissuaded yet from readying heavy artillery and also the 1st mountain division for Norway.

30 April:

At 13.35 hours I am able to report to the Fuehrer that line of communication on land between Oslo and Drontheim has been established. Fuehrer is happy with joy. At noon, I have to sit next to him.

The special communique is released right away. It remains to be decided now, whether to keep in readiness the 1st mountain division (no) and heavy artillery (no). At 18.30 hours the report comes in that Dombaas has been reached, too, and that the enemy is retiring. Opdal on the railroad

Drontheim-Dombaas has also been occupied. Fuehrer releases order of the day to the soldiers in Norway.

1 May:

More big successes in Norway on land and in the air.

Fuehrer orders that starting Saturday, May 4th, everything must be in readiness to start operations for case Yellow the following day, when ordered.

2 May:

Victory report from Norway. Pursuit direction Andalsnes. The English flee to the boats. Norwegians give up the Commander of Moeren-Romsdal, Gen. Hang offers capitulation.

Field Marshall with Kesselring, Jeschonnek, Student, Sponek again report about case "Festung" [fortress]. It will be carried out. Landing on super-highway possible.

Difficulty is the strong echelonment in depth [Tiefenstaffelung] of the bridge position near Moerdyk and north of it.

Air Force is to get order on the 3rd at noon, whether to guide in [einweisen] or not to guide in, that whether means to use or not to use parachutists and airborne units.

3 May:

After evaluation of weather, Fuehrer decides that X-day will not be before Monday, 6 May.

Air Force notified by code word "Do not guide in." ["Nicht einweisen"]

Field Marshal protests against draft of the comprehensive description of operations in Norway, where Armed Forces High Command is mentioned and where the name Pellengahr appears, but not Milch.

Fuehrer rejects request of the Air Force to set up a listening post [Horchstelle] in the Caucasus.

Prepared White Book concerning unneutral actions of Holland and Belgium does not seem to satisfy the Foreign Office completely. To my mind the material is more than sufficient.

A new order goes out to group XXI, especially as several foreign news reports say that Namsos, too, will be evacuated.

Dr. Todt transmits exact details.

4 May:

Reports about evacuation of Namsos by the English. Great successes of the Air Force against the English fleet. Battleship, heavy cruiser and destroyer, in addition to 12000 ton transport sunk.

Fuehrer himself wants to make comprehensive report about the campaign in Norway. He is furious about it that people other than himself meddle with this reporting. He stated that the Armed Forces High Command is his staff. Fuehrer designates Tuesday, May 7th as X-day.

The flanks of Gr. Dietl are being pressed hard in Narvik. I am afraid he remains too long in front.

5 May:

Field Marshal reports that an English 1500 ton submarine minelayer was sighted on the Swedish coast. He makes an onslaught aimed at subordinating all Naval Air units under the Commander-in-Chief of the Air Force.

Fuehrer has finished justification [Begrundung] for case "Yellow". Wednesday, May 8th, is designated as A-day.

6 May:

Detailed orders for May 8th for A-day are issued, and for transmission of the code words Augsburg and Danzig.

7 May:

Fuehrer railroad train was scheduled to leave Finkenkrug at 16.38 hours.

But weather remains uncertain and therefore, the order valid up to this time is rescinded. Next decision May 8th until 1200 hours.

1100 hours: The Field Marshal with Bodenschatz and Jeschonnek at the Fuehrer's.

1500 hours: Admiral of the Fleet [Grossadmiral] Raeder.

Mine damage of the Gneisenau only very insignificant. One destroyer may be recalled from Drontheim, as a second one is still ready for sailing.

Fuehrer very much agitated about new postponement, as there is danger of treachery particularly in brown leaflets [in braunen Blaettern]. Talk of the Belgian Envoy to the Vatican to Brussels permits the deduction that treason has been committed by a German personality who left Berlin for Rome on April 29th.

Fuehrer again emphasizes that the greatest achievement of endurance [Dauerleistung] is that of the foot-slogging combat-soldier.

8 May:

Alarming news from Holland, canceling of furloughs, evacuations, road-blocks, other mobilization measures; according to reports of the counterintelligence service the British have asked for permission to march in but the Dutch have refused.

According to reports the measures of the Dutch are partly directed against the coast and partly against us. It is not possible to obtain a clear picture, whether the Dutch don't work hand in hand with the English or whether they actually want to defend their neutrality against the first attacker. Evaluation of the weather shows slow improvement of the whole situation, but development fog in the next days still have to be taken into consideration.

Fuehrer does not want to wait any longer.

Field Marshal wants postponement until the 10th, at least.

Chief of the Armed Forces High Command presses for early action. Fuehrer is very agitated; then he consents to postponement until May 10th, which is against his intuition, as he says. But not one day longer. Departure of Envoy Kieritz, who was scheduled to leave at 12.57 hours is stopped at the last minute. Is not supposed to leave until May 9th.

In the evening, I arrange the different telegrams with him.

9 May:

Fuehrer decides to fall in on May 10th for sure. Departure with Fuehrer train at 17.00 hours from Finkenkrug.

After report Jeschonnek that weather situation will be favourable on the 10th, the code word Danzig is given at 2100 hours.

The same to Commander-in-Chief of the Air Force.

10 May:

Morning arrival in Emskirchen still during darkness. At 0530 hours in the Eagle's nest.

11-13 May:

The operations take a course favorable beyond expectation. The Dutch offer desperate resistance. Bridges at Maastricht, and all bridges north of it, are blown up. Only the railroad bridge at Gemrep falls into our hands undamaged. Fort Eben Emael is taken and the bridges in Mordeyk south of Dordrecht as well as the important ones over the Albert Canal west of Maastricht are taken over by parachutists and glider-borne personnel and are held by them. Airborne operation of the Sponek Division is met by heaviest resistance and is badly mauled. However, the different units hold out. On the R., the junction of the 9th armored division with them is effected. The citadel of Luettich is being broken into.

14 May:

Order number 11 issued, which orders the concentration of all armored and mechanized units in front of the 4th army.

Holland capitulates.

16 May:

Fuehrer insists very much on transfer of all armored and mechanized units from Army Group B to A, and on speediest bringing up of strong reserves behind the 4th and 12th army. OKH gives orders to pull these units out from B and to add them via F ... to the fifteenth corps as new Armored Group Hoepfner. According to report Reichau, there are indications that the enemy is giving up the Dyle position or its Southern part, at least. Therefore, Army High Command receives the option to carry out the junction of Armored Group Hoepfner also in front of Nanner, which the enemy seems to be evacuating.

Engle reports after visit at 4th army that that army has reached the French-Belgian border near Beauchmont, after a heavy tank battle.

1600-1830 hours: Field Marshal Goering with the Fuehrer, talk with Jeschonnek about forthcoming tasks of the Air Force and intentions concerning Narvik, utilizing the new airdrome near * * *

17 May:

18 May:

Day of great tension. The commander-in-chief of the Army has not carried out the intention of building up, as quickly as possible, a new flanking position to the South. Instead of turning march to the west. For this reason the 10th Armored Division and the 2nd and 29th Motorized Divisions are still entrenched in the defensive flanking positions.

The commander-in-chief of the Army and General Holdes are called immediately and ordered to adopt the necessary measures immediately (see note in the files).

Chief of the Armed Forces High Command is flying immediately by plane to General Rundstedt at Bastogne.

I further give an order supplementing the previous directive. It veers the 1st Mountain Division and the rear echelons of the 4th Army, to the South and South-West for an attack.

19 May:

20 May:

Break-through becomes more and more clearly outlined. True, Army Group "B", respectively Chief are very vexed because their Armored Corps was taken away from them, but it was the right thing to do. On the 20th, we already have all armored and mechanized divisions, except the 9th one, in the middle of the break-through wedge. While we were still afraid on the 19th that the bulk of the French-English army might have escaped to the South, it becomes increasingly evident on the 20th that more than 20 divisions are still north of the Somme.

Now everything depends on sealing off the Abbeville gap and the Army Corps Kleist reaches it in the evening of the 28th. In the forenoon of the

20th, at the Army High Commands conference, the Fuehrer declares the new directive for continuation of operations against the French Army.

1. Annihilation of the enemy north of the Somme and gaining of the sea coast.
2. Sudden thrust forward between Oise and sea, until Seine river is reached.
3. Principal Attack on both sides of Reims in south-westerly direction, accompanied on the right flank east of Paris by heavy forces.
4. For secondary reasons penetration of the Maginot line by lighter forces between St. Avold and Sarreguemines in direction of Nancy-Luneville.

General von Stuelpnagel is ordered, not to follow up any more former intention, to attack the Plateau of Langres with 20 Italian Divisions crossing the Upper Rhine. The Italians rather should attack the French Alpine Front and pin down French forces on the Upper Rhine. This they can prepare already now, without having commenced hostilities.

Fuehrer is beside himself with joy. Talks in words of highest appreciation of the German Army and its leadership. Is working on the peace treaty, which shall express the tenor only: Return of territory robbed over the past 400 years from the German people, and other values.

First negotiations in the forest of Compiègne like in 1918.

British can get a separate peace any time after restitution of the colonies.

A special memorandum of the Chief of the Armed Forces High Command containing the emotion-choked words of the Fuehrer when receiving the telephone report of the Commander-in-Chief of the Army about the capture of Abbeville, is in the files.

21 May:

Commander in Chief of the Army together with Halder reports at 09.45 about situations and later intentions. The Commander-in-Chief of the Army wants to operate by-passing Paris on the West with the entire Armored and mechanized units under Reichman's command, and in addition to this to attack with he wants to attack the Upper Rhine with 18 divisions. This would change the intentions of the Fuehrer, expressed by him on the 20th. Fuehrer declares his agreement for the time being.

* * * * *

In the afternoon the Fuehrer explains to Chief of the Armed Forces High Command and to me, that he had changed his mind. He believes, that it is wrong to employ all Armed and Mechanized Divisions West of Paris, that it would be better to direct the main thrust, also with the bulk of Armored Forces, to by-pass Paris in the east (transmitted by me to Greifenberg in the evening).

Report of Commander-in-Chief of the Navy to Fuehrer at 1200 hours. In the afternoon Field Marshal and Jeschonnek.

The Fuehrer is a little nervous in the evening about the fact, that infantry divisions are not pushed forward fast enough. Possibly they are being held back in order to obtain improvements of position of the VIth and VIIth Corps. If possible, one must employ transport groups.

Fuehrer stays in map room until 0130 hours.

22 May:

Chief of the Armed Forces High Command decides after that to fly to Army Group A in Charleville early on the 22nd. Brings back a report much more pleasant than the situation map indicates. It becomes apparent that Headquarters of 4th Army has ordered General Kluge to commit the 1st Army Corps south of Sombre, so that it will be in front rather than in the rear of the French border fortifications.

The Fuehrer approves at 1300 hours directive, submitted by me, concerning sparing of human lives of the 10th Army by disengagement from the Maginot line, cessation of unnecessary attacks, bringing up of all Divisions and mobile GHQ troops to the rear of 4th Army.

Sharp pressure of Army Group B towards the West. The Fuehrer furthermore approves commitment of an airborne Battalion already in readiness and of 2 companies Mountain troops, with short training, in Narvik.

Army High Command draws a very optimistic picture of the situation at 1700 hours and intends to continue at 1200 hours on left wing West of Arras towards North.

But Jeschonnek reports at 1900 hours, that French tanks reached point 3 kilometer in front of Arras and were stopped only there by dive bombers, pursuit planes and Anti Aircraft Artillery.

24 May:

The Fuehrer flies together with me and Schmundt to Army Group A to Charleville.

He is very happy about the measures of the Army Group, which correspond entirely with his ideas. He learns to his surprise that the Army High Command, without informing the Fuehrer and the High Command of the Armed Forces, has subordinated the 4th Army and a number of Divisions to its rear, to Army Group B. Fuehrer is very much displeased and thinks this regulation is a mistake not only in military respect but also psychologically wrong. Commander-in-Chief of the Army is ordered to report, and shifting of dividing-line is rescinded. New crisis of confidence, especially since Field Marshal reports earlier that an order of the Army High Command in no way pushes the Army Group B onward, but even invites it to make available reserves that can be spared.

For that reason a new order is issued in the evening (a) not to advance beyond the line Sandez-St.Omer-Graveline towards the East. Besides that each change regarding the Chain of command among the Armies is subject to approval of the Fuehrer.

The Fuehrer signs Order #13 regarding continuation of operations.

He prohibits the proposed talk by General von Melsch in the Foreign Office to foreign journalists about the war situation, if necessary this shall be done by W PR [Armed Forces Propaganda?]

Very favorable report of the Commander in Chief of the Air Force and the Commander in Chief of the Army about the situation.

It becomes obvious, that the surrounded enemy is no longer capable of concerted action.

Situation in the East becomes threatening because of Russian concentration of forces against Bessarabia.

25 May:

In the morning the Commander-in-Chief of the Army arrived and asks permission armored mechanized division to push forward from the High terrain Vimy-St.Omer-Graveline towards in the West into the level terrain. Fuehrer is against it, leaves decision to Army Group A. They decline for the time being because tank, shall rest a while, to be ready for tasks in the South.

At noon, Commander of 22 Divisions (Parachute Divisions) Count Sponek, reports about his experiences between the Hague and Rotterdam. He had heavy losses, but accomplished the incredible.

Air Force reports great successes near Narvik.

The unlimited expansion plan of the SS causes general apprehension. Lutz protests in a letter to the General [Generaloberst] against mentioning of the Armed-SS [Waffen-SS] in Armed forces High Command communiques. But this came from the Fuehrer in a proclamation to the troops in the Dutch theater of operations. General Dietl has received parachuted mountain troops in Narvik after a course of training lasting only 10 days, no losses.

26 May:

In the morning the Fuehrer sends for Commander-in-Chief of the Army and agrees because 18th and 6th army advance slowly and because, resistance in the South in front of the 2nd Army Corps has stiffened, that tank units and infantry divisions push forward in direction of Tournai, Cassel and Dunkerque from the West, especially because the enemy on their part do not advance against the mountain positions but dig themselves in defensive positions and improve them. In conjunction therewith the Commander-in-Chief of the Army reports about his intentions for further conduct of the operations (All sketch). Of the 12 Divisions, committed for the first push northwest of Paris, 6 shall join Army Group B (9th and 4th Army). First push possible around 31 May. 2nd push 6 to 8 days later (Main attack A and B), 3rd push at C will be in readiness starting 15 June.

The problem Paris is to be considered, not only from a military, but also from a political point of view.

* * * * *

If Paris is surrendered or if revolutionary features come to the fore, then Paris must be occupied at once. If Paris is defended, we will strongly

disengage ourselves for the time being.

TRANSLATION OF DOCUMENT 1814-PS

ORGANIZATION BOOK OF THE NSDAP

Editions of 1936, 1938 and 1940.

Editor, the Reich Organization Leader of the NSDAP (Dr. Robert Ley).

Published by the Central Publishing House of the NSDAP, Franz Eher
Successor, Munich. Pages 86-88.

THE ORGANIZATION OF THE NSDAP AND ITS AFFILIATED ASSOCIATIONS

The Party was created by the Fuehrer out of the realization that if our people were to live and advance towards an era of prosperity they had to be led according to an ideology suitable for our race. They must have as supporters men above average, that means, men who surpass others in self-control, discipline, efficiency, and greater judgment. The party will therefore always constitute a minority, the order of the National Socialist ideology which comprises the leading elements of our people.

Therefore the party comprises only fighters, at all times prepared to assume and to give everything for the furtherance of the National Socialist ideology. Men and women whose primary and most sacred duty is to serve the people.

The NSDAP as the leading element of the German people control the entire public life, from an organizational point of view, as well as from that of affiliates, the organizations of the State administration, and so forth.

In the long run it will be impossible to let leaders retain responsible offices if they have not been recognized by the Party.

Furthermore, the party shall create the prerequisites for a systematic selection of potential "Fuehrers".

The reconstruction of the National Socialist organizational structure itself is demonstrated by the observation of the following principles:

The Fuehrer Principle.

The subordination and coordination within the structure of the entire organization.

The regional unity.

The expression of the practical community thought.

I. FUEHRER PRINCIPLE [Fuehrerprinzip]

The Fuehrer Principle requires a pyramidal organization structure in its details as well as in its entirety.

The Fuehrer is at the top.

He nominates the necessary leaders for the various spheres of work of the Reich's direction, the Party apparatus and the State administration.

Thus a clear picture of the tasks of the party is given.

The Party is the order of "Fuehrers". It is furthermore responsible for the spiritual-ideological National Socialist direction of the German people. The right to organize people for their own sake emanates from these reasons.

This also justifies the subordination to the party of the organizations concerned with the welfare of the people, besides the inclusion of people in the affiliates of the party, the SA, SS, NSKK, the Hitler Youth, the NS Womanhood, the NS German Student Association and the NS German "Dozentenbund" [University teachers association].

This is where the National Socialist Fuehrer structure becomes more strongly apparent.

Every single affiliate is cared for by an office of the NSDAP.

The leadership of the individual affiliates is appointed by the Party.

The Reich Organization Leader [Reichsorganisationsleiter] of the NSDAP is simultaneously leader of the DAF. The NSBO is the organization bearer of the DAF.

The Leader of the Head-Office for Public Welfare also handles within the "Personalunion" the National Socialist Welfare and the Winter Relief.

The same applies to:

The Reich Justice Office [Reichsrechtsamt] for the NS
“Rechtswahrerbund”,

The head office for public health for the NS. German Medical
Association,

The head office for educators for the NS Teachers Association,

The head office for civil servants for the Reich Association of
Civil Servants,

The head office for war victims for the NS. War Victim Relief,

The head office for technology for the NS. Association of
German Technology.

The Racial Political Office handles the Reich Association of families with
many children, the NS Womanhood [Frauensschaft] and the “Deutsches
Frauenwerk”.

The Reich Office for agrarian politics of the NSDAP remains furthermore
in closest touch with the “Reichnaehrstand” [Reich Nutrition Office] which
is anchored in the State. Direct handling and personal contact of the leaders
is also provided in this manner.

All attached affiliates, as well as the offices of the Party, have their
foundation, in the same manner as in the Reich direction, in the sovereign
territories, in the “Gaue” and furthermore in the districts (Kreise) and if
required in the local groups of the NSDAP. This applies also to cells and
blocks in the case of the NS Womanhood, the DAF, and the NSV. The
members of the attached affiliates will be included in local administrations,
respectively district sectors or district comradeships which correspond
geographically to local groups of the Party.

II. FUEHRER PRINCIPLE. SUBORDINATION AND COORDINATION WITHIN THE TOTAL ORGANIZATIONAL STRUCTURE

The Fuehrer structure would be split, though, if all subdivisions, including
attached affiliates were completely independent in their structure from the
smallest unit up to the “Reichsfuehrung” and were they to come only at the
top directly under the Fuehrer.

Like a four-story building, if we consider the four Sovereign territories [Reich, Gau, etc.] whose pillars and walls go up to the roof without having supporting joists (wooden stays) or connections on the various floors. Furthermore, it would not be reconcilable with the Fuehrer principle, which assumes complete responsibility, to assume that the Leader of a subdivision, as well as of an affiliated organization, would be in the position to guarantee beyond a professional and factual responsibility the political and ideological attitude of *all* the sub-leaders down to the smallest unit on the basis of his Reich leadership. The total independence of individual organizations would necessitate furthermore, the creation of an organizational, personal and educational apparatus for each one of them. This, in turn, would create eventually, in spite of the best will of the responsible “Reichsleiter” [Reich Leaders], central offices and office leaders in the Reich Leadership [Reichsfuehrung] of the party, differences in the various organizations. Those differences would later on of necessity take the shape of completely different systems in regional, vertical, and personal respects, etc. within the National Socialist regime.

The Subdivisions NS German Student Association, NS Womanhood Association, NSD [Dozentenbund] and the affiliates and their leaders come therefore under the authority of the competent sovereign leaders of the NSDAP. At the same time their structure is professionally effectuated from the bottom up and they are subordinated to their immediately superior organization in the sovereign divisions of the Party, from a disciplinary point of view, that is to say insofar as organization, ideology, politics, supervision and personal questions are concerned.

Thus a solid anchorage for all the organizations within the party structure is provided and a firm connection with the sovereign leaders of the NSDAP is created in accordance with the Fuehrer Principle.

[In the 1943 edition the text remains the same, but the topical sentences “I. Fuehrer Principle” and “II. Fuehrer Principle. Subordination and Coordination within the Total Organizational Structure” are changed to “I. Construction of the Organization” and “II. Subordination and Coordination within the Total Organizational Structure”.]

PARTIAL TRANSLATION OF DOCUMENT 1815-PS

Berlin 12 May 1941

R.S.H.A.

IV B I

To all Staatspolizei-leit-stellen

For information:

The SD-Leit-Abschnitten

The Inspektoren der Sipo/SD

Concerning: The Study and Treatment of Church Politics

The Chief of the R.S.H.A. has issued an order, which is to come into immediate operation, in which the Sipo and SD Study and Treatment of Church Politics, which has hitherto been divided between the SD-Abschnitte and Stapostellen, shall now be taken over entirely by the Stapostellen. (See the plan for the division of work issued by the R.S.H.A. on 1.3.41. In addition to combatting opposition, the Stapostellen thus take over the entire 'Gegnernachrichtendienst' in this sphere.)

In order that the Stapostellen should be in a position to take over this work, the Chief of the Sipo/SD has ordered that 'Church Specialists' hitherto employed in the SD-Abschnitten, should be temporarily transferred to the same posts at Stapostellen, and operate the Nachrichtendienst (Intelligence Service in the Church Political Sphere) there.

On the orders of the Chief of the R.S.H.A., and after reaching agreement with the heads of Amts III, II, and I, these 'Church Specialists' specified in the attached lists will thus be transferred from the SD-Abschnitten to the Stapostellen, quoted. Further instructions for transference or removal will be issued by Amt. I. Those Stapostellen which are unable to obtain any SD-'Specialists' must immediately train those of their specialists who appear most suitable for Nachrichtendienst work.

The Chief of the R.S.H.A. has furthermore ordered that 'Nachrichtendienst' files concerning Church Political Opposition, hitherto the property of the SD-Abschnitte should be handed over to the Stapostellen. However, material concerning Confessional influence on the lives of the people is to remain with the SD-Abschnitten. In doubtful cases the Stapostellen are to be given an opportunity of making copies or photostats of these reports.

Since it is essential that in this particular sphere the opposition should be kept under constant observation, with no possibility of loopholes, I am endeavoring to ensure that the change-over in organization should take place immediately.

On I.VI.1941 all Stapostellen are to send in reports on the completion of the actual change-over of organization, and, at the same time, draw up a list of personnel, giving the names of those 'Specialists' who, after the reorganization, are doing executive work in the Stapostellen, and of those who are conducting the intelligence proper of the Nachrichtendienst.

I then intend, at the end of June, to summon all these specialists to a conference [Arbeitstagung] in Berlin, at which they will receive important instructions for the carrying-out of their work.

Signed Mueller
Beglaubigt: Kanzleiangestellte

Berlin 14.8.1941

R.S.H.A.

IV B

To all Stapo-leit-stellen

Information: From the Inspectors of the Sipo/SD

Concerning: Conference of the Specialists in Church Affairs
[Kirchenbearbeiter] attached to the Stapostellen.

On 22d and 23d of September 1941 a Conference for Church Specialists attached to Stapo-leit-stellen will take place in the Lecture-Hall of the Stapoamt, Prinz-Albrechtstrasse 8, Berlin SW II. Date of arrival: 21.9.41. Uniform: Brownshirt and trousers worn with jackboots.

I leave it to the heads of the Stapo-leit-stellen as to whether they send those officials responsible for the entire 'Kirchenbearbeitung' (Treatment and Study of Church Politics) to this conference, or officials in charge of both the executive and intelligence branches (SD-members). In each case those taking part in the conference must have their names sent in before

10.9.1941, in order that accommodation may be found for them. Billeting forms will be issued on arrival in Berlin on the 21st at the Stapoamt Watchroom, Room I. Passes are to be given up at the entrance of the lecture-hall at the opening of the conference at 9 hrs.—22.9.41.

Heydrich
Beglaubigt: Kanzleiangestellte

Aachen, 8 October 1941

Report of Hammes on Conference dated 8 October 1941 at Aachen

Notes on the Conference of Church Specialists attached to Stapo-leit-stellen

On the 22d and 23d September 1941 a Conference of Church Specialists attached to Stapo-leit-stellen was held in the Lecture-Hall of the R.S.H.A. in Berlin, in which 141 Specialists took part.

I. *On 22.9.1941*

1. The latest developments in the Church Political situation, and our outstanding tasks at this moment—SS-Stubaf. Hartl.
2. Sipo measures for combating the Political Church and Sects—Regierungsrat Rotu & Reg. Ass. Harnensbruch.
3. Nachrichtendienst tasks in the conflict with Political Catholicism in the Reich—SS-Ostuf. Kunze.
4. Vatican world-politics, and our Nachrichtendienst tasks—SS-Untersturmfuehrer Jakobs.

II. *On 23.9.1941*

5. Present conditions within the German Protestant Church—SS-Obersturmfuehrer Stiller.
6. Treatment of the Sect problem, and the combating of Sects—SS-Hauptscharfuehrer Ehrhardt.
7. World-Protestantism and the Oxford Movement—Nachrichtendienst work evolving from these subjects—SS-Obersturmfuehrer Stiller.

8. The problem of the Church in the Eastern regions, and Nachrichtendienst measures—SS-Untersturmfuhrer Wandesleben.

9. The present Nachrichtendienst problem of Freemasonry—SS-Hauptsturmfuhrer Kolrep.

10. Summary of the most important points in the treatment of Church Political opposition—SS-Sturmbannfuhrer Hartl.

In the absence of SS-Obergruppenfuhrer Heydrich, the Conference was opened by SS-Brigadefuhrer Mueller, who, after a short speech of welcome, and introduction handed over to the first lecturer. The most important lectures—those under I, items 2 and 3, have been noted down and filed.

The main aim and object of the conference has been to familiarize the specialists as thoroughly as possible with their material, and, by stimulating their interest, enable them to fulfill their duties to the best of their ability.

Nothing of great moment came to light in the discussions. Finally SS-Stub. Hartl, also deputizing for the absent Heydrich, summed up the most important points in the treatment of Church Political affairs. He summarized the culminating points as follows:

1. Avoidance of all sweeping measures and actions against the Church and its establishments.

2. Suspension of measures taken against monasteries/convents, including “camouflaged” measures of this type.

3. Action is still to be taken as before in individual cases, but the R.S.H.A. is to be informed in each case. In particularly serious cases the decision of the Fuehrer will be sought.

4. Above all it must be ensured that the Church does not win back any lost ground. We must see to it that we retain any position won.

5. The greatest importance is to be attached to Church Political activity. Any material that is of the slightest significance, or could become of significance, is to be carefully examined. On the Fuehrer’s instructions photostats are to be made of all documents seized, and other material of this type, as in such cases duplicate copies are in no way sufficient for the introduction of decisive measures.

The “Nachrichtennetz” is to be fostered with the greatest of care, and enlarged through the recruitment of new V-Personen. Particular value is attached to contacts between Church circles and “Staatsstellen.”

The lecturer closed with the following words:

Each one of you must go to work with your whole heart and a true fanaticism. Should a mistake or two be made in the execution of this work, this should in no way discourage you, since mistakes are made everywhere. The main thing is that the enemy should be constantly tackled with determination, will, and effective initiative.

Signed: HEINZE
Kriminal-Secretaer

Signed: HAMMES
Kriminal-Kommissar z. Pr.

Aachen, 26 September 1941

Report of Regierungsrat Roth's speech before Conference dated 26
September 1941

Sicherheitspolizei measures for combating Church Politics and Sects

While describing the aim and methods of the Political Church in its oppositional activities, the executive measures which, in accordance with the Concordat, are at the disposal of the Stapo, were discussed.

a. Punishable offences and infringements of the law by members of the Church are to be submitted to the Kripo for processing. Nachrichtendienst evaluation, and the compiling of evidence for a final breakdown is the responsibility of the Stapo.

b. It has been demonstrated that it is impracticable to deal with political offences (malicious) under normal legal procedure. Owing to the lack of political perception which still prevails among the legal authorities, suspension of this procedure must be reckoned with. The so-called “Agitator-Priests” must therefore be dealt with in future by Stapo measures,

and, if the occasion arises, be removed to a Concentration Camp, if agreed upon by the RSHA.

c. Offences and crimes against the “Sammlungsgesetz” [Order to contribute to Party Funds] and the “Flaggenerlass” [Order to beflag Churches etc.,] come under normal procedure. [A penciled note states that this is not always so, and that it depends on the case in question.]

d. The necessary executive measures are to be decided upon according to local conditions, the status of the person accused, and the seriousness of the case—as follows:

1. Warnung (Warning)
2. Sicherungsgeld (Fine)
3. Redeverbot (Forbidden to preach)
4. Aufenthaltsverbot (Forbidden to remain in parish)
5. Betaetigungsverbot (Forbidden all activity as a Priest)
6. Kurzfristige Festnahme (Short-term arrest)
7. Schutzhaft (Protective custody)

The instructions for the application of individual measures are known. The following points must be remembered:

The Aufenthaltsverbot (Forbidden to remain in parish) is very much feared by all the clergy. In one case a Vicar-General appealed to the RSHA for the lifting of the ban, and begged that they would rather place the priest under short-term arrest. The “Aufenthaltsverbot” is to be enforced in any case where the continued stay of the priest in his former parish is likely to bring about dissension and disquiet among the population. It should be applied, for instance, in the event of a priest returning from arrest, in order to prevent him from being feted as a martyr. Care must be taken that the measure is only enforced where really expedient (encumbering of another Stapostelle).

Redeverbot (Forbidden to preach) is intended chiefly as a measure against itinerant preachers, and will only be brought against residential ones when they exceed their normal offices as priests, and preach much injurious matter.

Betaetigungsverbot (Forbidden all activities as a priest) has not yet been applied, but is possible.

Schutzhaft (Protective custody). As already stated, in accordance with the Order issued by the RSHA on 24.8.36 the “Agitator Priest” is to be taken into long-term imprisonment. The technical execution of this lies in the hands of the Referat IV C 2, while it is IV B I’s responsibility to present the charges.

Actions against societies are not at the moment possible as a widespread State measure. However, in cases where the Society has been involved in anti-state activity, or appears superfluous or undesirable, local measures may be applied. Small funds/properties may be liquidated. Funds may also be handed over to the NSV. In cases of activities against the State the only method is confiscation of funds. Proposals for “Declaration of Enmity to People and State” with the object of confiscation of property, are principally to be directed to the RSHA, which works nonexecutively, and directs the necessary negotiations with the MdI.

Monasteries/Convents. It is not expected at the present that they will be declared as hostile to the State. During the process of “Dissolution” it should be remembered that the Law of 10.2.36 suffices as a legal basis for the disposal. It is not essential that the Order of 28.2.33 should be quoted, and it will only be brought up if the Stapo measures are to come under “legal justification” (*Betaetigungsverbot* 4).

Actions against Monasteries/Convents. About 100 monasteries in the Reich have been dissolved. Various incidents which may be traced back to bad tactical procedure by Stapo officials, have led to disagreeable consequences. Should the inmates of the monasteries put questions to the appointed officials, those officials must refer them to the Aktionsleiter [officer in charge of the proceedings].

Churches are to be seized at the same time, but, if possible, should not be closed. As long as the confiscation is not absolute, any action which interferes with property, or causes any alteration to it should be avoided. The principle to be followed during the period of “Sicherstellung” is that life should go on within the framework of an ordered administration.

Further points made were:

Retreats, recreational organizations, etc., may now be forbidden on grounds of industrial war-needs, whereas formerly only a worldly activity could be given as a basis.

Youth camps, recreational camps are to be forbidden on principle. Church organizations in the evening may be prevented on grounds of the black-out regulations.

Processions, pilgrimages abroad are to be forbidden by reason of the overburdened transport conditions. For local events too technical traffic troubles and the danger of air attack may serve as grounds for their prohibition (one Referent forbade a procession, on the grounds of it wearing out shoe leather).

There are no new regulations regarding the despatch of Confessional literature to the troops, and the restrictions on Confessional publications.

Visas are always to be denied where the applicant cannot offer the excuse that he will dedicate himself unreservedly to working for the Fatherland while abroad. There are, however, possible exceptions. In principle the intention still holds good, that no foreign priest should enter the Reich, and that no German priest should travel abroad, above all, not to the "Aufbaugesbiet."

In the meantime the Church Ministry has adopted the view of the RSHA, in which it was decided that Polish civilian workers and prisoners-of-war must definitely be separated at Services.

The RSHA requests that questions of policy should be submitted to them, but that, on the other hand, they should not be bothered with unnecessary inquiries. Above all, definite proposals on how to handle the case in question should always be given, and not just requests for direction or decision.

The immediate aim: The Church must not regain one inch of the ground it has lost.

The ultimate aim. Destruction of the Confessional Churches to be brought about by the collection of all material obtained through Nachrichtendienst activities, which will, at a given time, be produced as evidence for the charge of treasonable activities during the German fight for existence.

Signed: HAMMES
Kriminal-Kommissar z.Pr.

SECRET

Excerpt from Note 16 concerning the Conference held by the Inspector in
Dusseldorf on 23.9.41. (Pp. 26, 27, 28.)

14. *Cooperation between Stapo/and SD in the sphere of Church Politics*

The study and treatment of the efforts of the Catholic Church in its opposition to the present State is, from both a communication and executive angle, the responsibility of the Stapo ('Gegnerbekämpfung'). The treatment of the efforts of the Church, and their repercussions in the sphere of 'religious life' is, however, the task of the SD.

From this it can be seen that a close cooperation in the future within the sphere of the "Catholic Church" is especially necessary. It is the duty of the Stapostellen to inform the SD-Abschnitte of any general points to be observed during the course of 'Gegnerbekämpfung,' in order that the SD-Abschnitte can evaluate these facts from a religious angle. The SD-Abschnitte are to inform the Stapostellen of any observations which might be of assistance to them in their fight against the church as an opponent of the State. Gegnerbekämpfung and research in the religious sphere must go hand in hand. The SD-Abschnitte must hand over to the Stapostellen those V-Maenner who are working entirely, or for the greater part, in 'Gegnerbekämpfung.' However, if mutually agreed upon, the SD-Abschnitte, who may still have a certain claim on these V-Maenner by virtue of their work in the religious sphere, may retain one or another of them to contribute work in this sphere. It is desirable, however, that the appropriate official attached to the Stapostelle should start taking over the direction of the V-Maenner by stages as soon as possible.

The Inspector has asked for a general ruling from RSHA concerning the direction of the 'Kirchenreferat' by the Stapo offices, and at the same time expressed the opinion that it was not absolutely essential that the responsibility of this should rest principally on the executive officials. The

RSHA has made a corresponding decision in which it shall be left to the Stapoleiter in every individual case to choose who should be entrusted with the general direction and control of the 'Kirchenreferat.' It is therefore up to the Stapo leader [leiter] to decide, by the efficiency of his work, who is the more capable, and to appoint him head of the Referat. (Order of the Chief of Sipo/SD 18.9.41 IV B.) The Inspector is to be informed as soon as possible of the subsequent decision.

Berlin, 22 October 1941

Reichssicherheitshauptamt IV B 1—2744/41 g

To all Stapostellen

For information to:

- a. The Fuehrers of all SD-(Leit) Abschnitte
- b. To all Inspectors of the Sipo/SD
- c. To the "Befehlshaber der Sipo/SD in Generalgouvernement KRAKAU"
- d. To the "Kommandeure der Sipo/SD—KRAKAU, LUBLIN, RADOM, WARSCHAU."

Concerning: Present Conditions within the Organization of the Catholic Church.

Enclosure: 1 Report.

Minute

I am inclosing a report on the present position of the Organization of the Catholic Church. This report is designed to serve as a basis for:

- a. The education of the appropriate Specialist.
- b. To aid "Nachrichtendienst" activity.

The following directions must be followed concerning Nachrichtendienst activity:

1. If at all possible to verify that Bishops are using the papal nunciate courier to deliver their report to Rome, and vice versa, we should be informed.
2. It should be found out which priests, members of Holy Orders, and Laymen are used by the Bishops to bring their reports to and from Rome. Wherever possible, attempts should be made to intercept this method of reporting through V-Maenner.
3. If possible, the reports submitted to Rome every 5 years should be intercepted, especially when an opportunity arises in connection with Stapo action.
4. Where tension is known to exist between Bishops, the Bishop and Nuncio, or the Bishops and the “Instanzen” subordinate to them, this is to be utilized for Nachrichten purposes.
5. Since there are at the moment 13 Arch- and Bishoprics vacant in Greater Germany, efforts must be made to obtain the lists of Bishop candidates.
6. If not already known, it must be found out with what particular department the individual Bishops are concerned, under the aegis of the Bishops Fulda Conference. Those Stapostellen in whose area there is a Bishop entrusted with special duties—(The Bishop of Berlin with Press work, the Bishop of Mainz with “Jugendseelsorge,” the Archbishop of Freiburg with charity work, the Bishop of Passau with work connected with the Church in the Eastern regions ... etc. ...) have Nachrichtendienst tasks of especial Reich importance.
7. Points discussed during the Diocesan Synodes are to be obtained wherever possible, and should be immediately submitted to IV B 1 at the R.S.H.A.
8. The following directive is given for local Nachrichtendienst activity—
 - a. In every case where a Sachbearbeiter attached to a Stapostelle has an Archbishopric in his area, he must have a thorough knowledge of the particular sphere of work in which the individual Referenten of the appropriate Ordinarians are engaged.
 - b. The Episcopal Chancery is of particular importance within the Episcopal Ordinariat. Similarly, and especially in the case of an “Action,” the diocesan

archives and the Episcopal secret archives are of especial significance.

c. The Deans are of particular importance to Aussenstellen, since they are described as the eyes and ears of the Bishop. Should the opportunity arise, the yearly reports which they have to submit to the Bishop, should be obtained and evaluated locally.

d. In order to ensure that the Nachrichtendienst organization is as comprehensive as possible, an all-embracing Nachrichtennetz should be spread among the more insignificant members of the clergy.

9. It must be discovered which of those members of Orders, and priests of German origin are employed in important posts at the Vatican—other than those named in the report; we must be immediately informed of this.

10. The Specialists of the individual Stapo(leit)stellen have to extract the names of those Papal “Protonotare,” Chamberlains, Prelates, and Chaplains who are officiating in their districts, and devote extra attention to them in the course of their Nachrichtendienst duties. Especial watch must be kept in order to discover to what extent they are employed as “agents” to and from the Vatican.

11. Reports are also to be submitted on those theological students destined for Papal Institutes, and Priests returning from such institutes to Germany. Should the opportunity arise of placing someone for Nachrichtendienst purposes in one of these institutes, in the guise of a theological student, we should receive immediate notification.

Signed: Heydrich
Attested: KLANN [?]
Chancellery Clerk

TRANSLATION OF DOCUMENT 1816-PS

STENOGRAPHIC REPORT OF THE MEETING ON “THE JEWISH QUESTION” UNDER THE CHAIRMANSHIP OF FIELD MARSHALL GOERING IN THE REICHS AIR FORCE

(12 November 1938—11 o'clock)

Part I

Goering: Gentlemen! Today's meeting is of a decisive nature. I have received a letter written on the Fuehrer's orders by the Stabsleiter of the Fuehrer's deputy Bormann, requesting that the Jewish question be now, once and for all, coordinated and solved one way or another. And yesterday once again did the Fuehrer request by phone for me to take coordinated action in the matter.

Since the problem is mainly an economic one, it is from the economic angle that it shall have to be tackled. Naturally a number of legal measures shall have to be taken which fall into the sphere of the Minister for Justice and into that of the Minister of the Interior; and certain propaganda measures shall be taken care of by the Minister for Propaganda. The Minister for Finance and the Minister for Economic Affairs shall take care of problems falling in their respective resorts.

In the meeting, in which we first talked about this question and came to the decision to aryanize German economy, to take the Jew out of it, and put him into our debit ledger, was one in which, to our shame, we only made pretty plans, which were executed very slowly. We then had a demonstration, right here in Berlin, we told the people that something decisive would be done, but again nothing happened. We have had this affair in Paris now, more demonstrations followed and this time something decisive must be done!

Because, gentlemen, I have enough of these demonstrations! They don't harm the Jew but me, who is the last authority for coordinating the German economy.

If today, a Jewish shop is destroyed, if goods are thrown into the street, the insurance company will pay for the damages, which the Jew does not even have; and furthermore goods of the consumer goods belonging to the people, are destroyed. If in the future, demonstrations which are necessary, occur, then, I pray, that they be directed, so as not to hurt us.

Because it's insane to clean out and burn a Jewish warehouse then have a German insurance company make good the loss. And the goods which I need desperately, whole bales of clothing and what-not, are being burned; and I miss them everywhere.

I may as well burn the raw materials before they arrive. The people of course, do not understand that; therefore we must make laws which will

show the people once and for all, that something is being done.

I should appreciate it very much if for once, our propaganda would make it clear that it is unfortunately not the Jew who has to suffer in all this, but the German insurance companies.

I am not going to tolerate a situation in which the insurance companies are the ones who suffer. Under the authority invested in me, I shall issue a decree, and I am, of course, requesting the support of the competent Government agencies, so that everything shall be processed through the right channels and the insurance companies will not be the ones who suffer.

It may be, though, that these insurance companies may have insurance in foreign countries. If that is the case, foreign bills of exchange would be available which I would not want to lose. That shall have to be checked. For that reason, I have asked Mr. Hilgard of the insurance company, to attend, since he is best qualified to tell us to what extent the insurance companies are protected against damage, by having taken out insurance with other companies. I would not want to miss this, under any circumstances.

I should not want to leave any doubt, gentlemen, as to the aim of today's meeting. We have not come together merely to talk again, but to make decisions, and I implore the competent agencies to take all measures for the elimination of the Jew from German economy and to submit them to me, as far as it is necessary.

The fundamental idea in this program of elimination of the Jew from German economy is first, the Jew being ejected from the Economy transfers his property to the State. He will be compensated. The compensation is to be listed in the debit ledger and shall bring a certain percentage of interest. The Jew shall have to live out of this interest. It is a foregone conclusion, that this aryanizing, if it is to be done quickly, cannot be made in the Ministry for Economy in Berlin. That way, we would never finish.

On the other hand, it is very necessary to have safety precautions so that the lower echelons, Statthalter, and Gauleiter will not do things unreasonably. One must issue correction directives, immediately.

The aryanizing of all the larger establishments, naturally, is to be my lot—the Ministry for Economy will designate, which and how many there are—it must not be done by a Statthalter or his lower echelons, since these things

reach into the export trade, and cause great problems, which the Statthalter can neither observe, nor solve from his place.

It is my lot, so that the damage will not be greater than the profit, which we are striving for.

It is obvious gentlemen, that the Jewish stores are for the people, and not the stores. Therefore, we must begin here, according to the rules previously laid down.

The Minister for Economic Affairs shall announce which stores he'll want to close altogether. These stores are excluded from aryanizing at once. Their stocks are to be made available for sale in other stores; what cannot be sold, shall be processed through the "Winterhilfe" or taken care of otherwise. However, the sales values of these articles shall always be considered, since the State is not to suffer but should profit through this transformation. For the chain and department stores—I speak now only of that, what can be seen, certain categories have to be established, according to the importance of the various branches.

The trustee of the State will estimate the value of the property and decide what amount the Jew shall receive. Naturally, this amount is to be set as low as possible. The representative of the State shall then turn the establishment over to the "Aryan" proprietor, that is, the property shall be sold according to its real value.

There begins the difficulties. It is easily understood that strong attempts will be made to get all these stores to party-members and to let them have some kind of compensations. I have witnessed terrible things in the past; little chauffeurs of Gauleiters have profited so much by these transactions that they have now about half a million. You, gentlemen, know it. Is that correct?

(Assent)

Of course, things like that are impossible. I shall not hesitate to act ruthlessly in any case where such a trick is played. If the individual involved is prominent, I shall see the Fuehrer within two hours and report to him.

We shall have to insist upon it, that the Aryan taking over the establishment is of the branch and knows his job. Generally speaking he is the one who

must pay for the store with his own money. In other words, an ordinary business transaction is to be sought—one merchant selling, the other one buying a business. If there are party members among the contenders, they are to be preferred, that is if they have the same qualifications: first shall come the one who had the most damage, and secondly, selection should be according to length of Party membership.

Of course, there may be exceptions. There are party-members who, as may be proven, lost their business concessions by action of the Schuschnigg or Prague Government, and so went bankrupt. Such a man has naturally first option on a store for sale, and he shall receive help if he does not have the means to help himself. The trustee of the State can justify this help, if he is more business like in the transfer. This party-member should have the chance to buy the store for as cheap a price as possible. In such a case the State will not receive the full price, but only the amount the Jew received. Such a buyer may even receive a loan besides, so that he will get off to a good start.

I wish to make it clear that such a proceeding shall only be legal if the party-member has once owned such a store. For example, a party-member was the owner of a stationery store, and Schuschnigg took away the concession to operate it so that the man lost the store and went bankrupt. Now, if a Jewish stationery store is being aryanized, this party-member should get the store on conditions which he'll be able to fulfill. Such a case shall be the only exception though, in all other cases the procedure shall be of a strictly businesslike nature whereby the party-member, like I said before, shall have the preference, if he has the same qualifications as any other candidate, who is not a member of the party.

When selling for the actual value we shall find only about 60 Aryans ready to take over 100 Jewish stores. I don't think that we have a German for every Jewish store. You must not forget that the Jew sees his main activity in the field of trade, and that he owns 90% of it. I doubt that we'd have a demand big enough. I even doubt that we'd have enough people, particularly now since everybody has found his field of work.

Therefore, I ask the Minister for Economy to go beyond what we think ought to be done for the sake of the principle, in liquidating the

establishments. I ask him to go further, even though there won't be any candidates. That'll be perfectly alright.

The transfer of stores and establishments shall have to be executed by the lower echelons, not through Berlin but through the Gaue and through the Reichstatthalterschaft. Therein shall be the seat of the members of the Board of Trustees, even if it consists of a few people only. The Statthalter and his people cannot do this job; the trustees will have to tackle it. But the Statthalter shall be the authority which supervises, according to the regulations given him, the trustees, particularly in dealings such as the transfer to party-members.

Naturally, these establishments cannot disappear all at once but we'll have to start by Monday, in a manner that shall make it obvious that a change has begun to materialize. Besides that, certain stores could be closed which will make things here easier.

Another point! I have noticed that Aryans took over a Jewish store and were then so clever to keep the name of the Jewish store as "formerly," or kept it altogether. That must not be; I cannot permit it. Because it may happen—what has just happened—stores were looted because their signboards bore Jewish names—because they had once been Jewish, but had been "aryanized" a long time ago. Names of former Jewish firms shall have to disappear completely, and the German shall have to come forward with his or his firm's name. I ask you to carry this out quite definitely. That much then regarding aryanizing of stores and wholesale establishments, particularly in regard to signboards and of all that is obvious!

Of the consequences resulting from this for the Jew, I shall speak later, because this is connected with other things.

Now for the factories. As for the smaller and medium ones, two things shall have to be made clear.

1. Which factories do I not need at all—which are the ones where productions could be suspended? Could they not be put to another use? If not, the factories will be razed immediately.
2. In case the factory should be needed, it will be turned over to Aryans in the same manner as the stores. All these measures have to be taken quickly, since Aryan employees are concerned everywhere. I'd like to say right now

that Aryan employees shall have to be given employment immediately after the Jewish factory is closed. Considering the amount of labor we need these days, it should be a trifle to keep these people, even in their own branches. As I have just said; if the factory is necessary, it will be aryanized. If there is no need for it, it being abandoned shall be part of the procedure of transforming establishments not essential, for our national welfare into one that is essential for it—a procedure that shall take place within the next few weeks. For it, I shall still need very much space and very many factories.

If such a factory is to be transformed or razed, the first thing to be done is check the equipment. The questions arising will be: Where can this equipment be used? Could it be used after the place is transformed? Where else might it be needed badly? Where could the machinery be set up again? It follows that aryanizing factories will be an even more difficult task than the aryanizing of stores.

Take now the larger factories which are run solely by a Jewish owner, without control by a Board of Directors; or take corporations where the Jews might be in the Supervisory Council or Board of Directors. There the solution is very simple: the factory can be compensated in the same manner as in the sale of stores and factories; that is, at a rate which we shall determine, and the trustee shall take over the Jew's interest as well as his shares, which he in turn may sell or transfer to the State, which will then dispose of them. So, if I have a big factory, which belonged to a Jew or a Jewish corporation, and the Jew leaves, perhaps with his sons who were employed there, the factory will still continue to operate. Maybe a director will have to be appointed because the Jew has run the factory himself. But otherwise, particularly if the maintenance of the establishment is very essential everything will run smoothly.

Everything is very simple. I now have his shares. I may give them to some Aryan or to another group or I may keep them. The State takes them over and offers them at the stock market, if they are acceptable there and if it so desires, or it makes use of them in some other way.

Now, I shall talk of the very big establishments, those in which the Jew is in the Board of Directors, in which he holds shares etc., and so is either the owner or one of the coowners; in any case in which he is greatly interested. There too, things are comparatively simple; he delivers all of his shares

which shall be bought at a price fixed by the trustee. So the Jew gets into the account book. The shares shall be handled like I've just explained. These cases cannot be taken care of by the Gaue and Reichsstatthalter, but only by us here on top; because we are the only ones to decide where these factories are to be transferred to, how they may be affiliated with other establishments or to what an extent the State shall keep them or hand them over to another establishment belonging to the State. All this can only be decided here. Of course, the Gauleiter and Statthalter will be glad to get hold of the shares, and they'll make great promises to beautify our capital cities, etc. I know it all! It won't go! We must agree on a clear action that shall be profitable to the Reich.

The same procedure shall be applied where the Jew has a share in, or owns property of German economy. I am not competent enough to tell off hand in what forms that might be the case, and to what an extent he'll have to lose it. Anyway, the Jew must be evicted pretty fast from German economy.

Now, the foreign Jews. There we'll have to make distinctions between the Jews who have always been foreigners—and who shall have to be treated according to the laws we arranged with their respective countries. But regarding those Jews who were Germans, have always lived in Germany and have acquired foreign citizenship during the last year, only because they wanted to play safe. I ask you not to give them any consideration. We'll finish with these. Or have you any misgivings? We shall try to induce them through slight, and then through stronger pressure, and through clever maneuvering—to let themselves be pushed out voluntarily.

Woermann: I'd like the Foreign Office to be included, since a generally valid decision could hardly be made.

Goering: We cannot consult you in every case, but on the whole we will.

Woermann: Anyway, I'd like to make known the claim of the Foreign Office to participate. One never knows what steps may become necessary.

Goering: Only for important cases! I do not like to take this category under special consideration. I have learned only now to what extent that has been done, particularly in Austria and Czechoslovakia. If somebody was a Czech in Sudetenland, we do not have to consider him at all, and the Foreign Office doesn't have to be consulted because that person now belongs to us.

And in Austria and also in Sudetenland, too many become all of a sudden Englishmen or Americans or what-not—and generally speaking we cannot consider that a great deal.

[Part II is missing]

Part III

Funk: That is quite a decisive question for us: should the Jewish stores be reopened?

Goebbels: If they will be reopened is another question. The question is will they be restored? I have set the deadline for Monday.

Goering: You don't have to ask whether they'll be reopened. That is up to us to decide.

Goebbels: *Number 2*. In almost all German cities synagogues are burned. Now, various possibilities exist to utilize the space where the synagogues stood. Some cities want to build parks in their place, others want to put up new buildings.

Goering: How many synagogues were actually burned?

Heydrich: Altogether there are 101 synagogues destroyed by fire; 76 synagogues demolished; and 7,500 stores ruined in the Reich.

Goering: What do you mean "destroyed by fire?"

Heydrich: Partly, they are razed, and partly gutted.

Goebbels: I am of the opinion that this is our chance to dissolve the synagogues. All those not completely intact, shall be razed by the Jews. The Jews shall pay for it. There in Berlin, the Jews are ready to do that. The synagogues which burned in Berlin are being leveled by the Jews themselves. We shall build parking lots in their places or new buildings. That ought to be the criterion for the whole country, the Jews shall have to remove the damaged or burned synagogues, and shall have to provide us with ready free space.

Number 3: I deem it necessary to issue a decree forbidding the Jews to enter German theaters, moving houses, and circuses. I have already issued such a decree under the authority of the law of the chamber for culture. Considering the present situation of the theaters, I believe we can afford

that. Our theaters are overcrowded, we have hardly any room. I am of the opinion that it is not possible to have Jews sitting next to Germans in movies and theaters. One might consider, later on, to let the Jews have one or two movie houses here in Berlin, where they may see Jewish movies. But in German theaters they have no business anymore.

Furthermore, I advocate that the Jews be eliminated from all positions in public life in which they may prove to be provocative. It is still possible today that a Jew shares a compartment in a sleeping car with a German. Therefore, we need a decree by the Reich Ministry for Communications stating that separate compartments for Jews shall be available; in case where compartments are filled up, Jews cannot claim a seat. They shall be given a separate compartment only after all Germans have secured seats. They shall not mix with Germans, and if there is no more room, they shall have to stand in the corridor.

Goering: In that case, I think it would make more sense to give them separate compartments.

Goebbels: Not if the train is overcrowded!

Goering: Just a moment. There'll be only one Jewish coach. If that is filled up, the other Jews will have to stay at home.

Goebbels: Suppose, though, there won't be many Jews going on the express train to Munich, suppose there would be two Jews in the train and the other compartments would be overcrowded. These two Jews would then have a compartment all to themselves. Therefore, Jews may claim a seat only after all Germans have secured a seat.

Goering: I'd give the Jews one coach or one compartment. And should a case like you mention arise and the train be overcrowded, believe me, we won't need a law. We'll kick him out and he'll have to sit all alone in the toilet all the way!

Goebbels: I don't agree. I don't believe in this. There ought to be a law. Furthermore, there ought to be a decree barring Jews from German beaches and resorts. Last summer * * *

Goering: Particularly here in the Admiralspalast very disgusting things have happened lately.

Goebbels: Also at the Wannsee beach. A law which definitely forbids the Jews to visit German resorts!

Goering: We could give them their own.

Goebbels: It would have to be considered whether we'd give them their own or whether we should turn a few German resorts over to them, but not the finest and best, so we cannot say the Jews go there for recreation.

It'll also have to be considered if it might not become necessary to forbid the Jews to enter the German forests. In the Grunewald, whole herds of them are running around. It is a constant provocation and we are having incidents all the time. The behavior of the Jews is so inciting and provocative that brawls are a daily routine.

Goering: We shall give the Jews a certain part of the forest, and the Alpers shall take care of it that various animals that look damned much like Jews,—the Elk has such a crooked nose,—get there also and become acclimated.

Goebbels: I think this behavior is provocative. Furthermore, Jews should not be allowed to sit around in German parks. I am thinking of the whispering campaign on the part of Jewish women in the public gardens at Fehrbelliner Platz. They go and sit with German mothers and their children and begin to gossip and incite.

Goebbels: I see in this a particularly grave danger. I think it is imperative to give the Jews certain public parks, not the best ones—and tell them: “You may sit on these benches” these benches shall be marked “For Jews only.” Besides that they have no business in German parks. Furthermore, Jewish children are still allowed in German schools. That's impossible. It is out of the question that any boy should sit beside a Jewish boy in a German gymnasium and receive lessons in German history. Jews ought to be eliminated completely from German schools; they may take care of their own education in their own communities.

Goering: I suggest that Mr. Hilgard from the insurance company be called in; he is waiting outside. As soon as he'll be finished with his report, he may go, and we can continue to talk. At the time Gustloff died, a compensation for the damage Germany had suffered, was prepared. But I believe that at present we should not work it through raised taxes but with a contribution paid only once. That serves my purpose, better.

(Hilgard appears)

Mr. Hilgard, the following is our case. Because of the justified anger of the people against the Jew, the Reich has suffered a certain amount of damage. Windows were broken, goods were damaged and people hurt, synagogues burned, etc. I suppose that the Jews, many of them are also insured against damage committed by public disorder, etc.

(Hilgard: "Yes")

If that is so, the following situation arises; the people, in their justified anger, meant to harm the Jew; but it is the German insurance companies that will compensate the Jew for damage. This situation is simple enough; I'd only have to issue a decree to that effect that damage, resulting from these risks, shall not have to be paid by the insurance companies. But the question that interests me primarily, and because of which I have asked you to come here, is this one: In case of reinsurance policies in foreign countries, I should not like to lose these, and that is why I'd like to discuss with you ways and means by which profit from reinsurance, possibly in foreign currency will go to the German economy, instead of the Jew. I'd like to hear from you, and that is the first question I want to ask: In your opinion, are the Jews insured against such damage to a large extent?

Hilgard: Permit me to answer right away. We are concerned with three kinds of insurances. Not with the insurance against damage resulting from revolt or from risks. But with the ordinary fire insurance, the ordinary glass insurance, and the ordinary insurance against theft. The people, because of their contracts, who have a right to claim compensation are partly Jews, partly Aryans. As for the fire insurance, they are practically all Jewish, I suppose. As for the department stores, the victim is identical with the Jew, the owner and that applies more to the synagogues, except for neighbors to whose places the fire may have spread. Although the damage done to the latter's property seems to be rather slight, according to the inquiries I made late last night.

As for the glass insurance which plays a very important part in this, the situation is completely different. The majority of the victims, mostly the owners of the buildings are Aryans. The Jew has usually rented the store, a procedure which you may observe all over, for example on Kurfuerstendamm.

Goering: That is what we've said.

Goebbels: In these cases, the Jew will have to pay.

Goering: It doesn't make sense, we have no raw materials. It is all glass imported from foreign countries and has to be paid for in foreign currency! One could go nuts.

Hilgard: May I draw your attention to the following facts: the glass for the shop windows is not being manufactured by the Bohemian, but by the Belgian glass industry. In my estimation, the approximate money-value to which these damages amount is \$6,000,000—that includes the broken glass, glass which we shall have to replace, mainly to Aryans because they have the insurance policies. Of course I have to reserve final judgment in all this, Your Excellency, because I have had only one day to make my inquiries. Even counting on about half of the \$6,000,000 being spent in transacting the business-specialists from the industry itself are more confident in this matter than I am, we might well have to import glass for approximately \$3,000,000. Incidentally, the amount of the damage equals about half a whole year's production of the Belgian glass industry. We believe that half a year will be necessary for the manufacturers to deliver the glass.

Goering: The people will have to be enlightened on this.

Goebbels: We cannot do this right now.

Goering: This cannot continue! We won't be able to last with all this. Impossible! Go on then! You suggest that the Aryan is the one who suffers the damage; is that right?

Hilgard: Yes, to a large extent, as far as the glass insurance goes.

Goering: Which would have to replace the glass.

Hilgard: Yes. Of course there are cases in which the Aryan, the owner of the store is identical with the owner of the building. That is so with all department stores. In the case of the department store Israel, the owner is the Jew.

Goering: And now the third category.

Hilgard: Under this fall the victims of thievery.

Goering: I have to ask you a question. When all kinds of goods were taken from the stores and burned in the streets, would that also be thievery?

Hilgard: I don't think so.

Goering: Could that be termed as "Riot"?

Hilgard: That is just the question which we are unable to decide at this moment. Is it ordinary theft if entry into a dwelling or a container of any kind is forced and something is taken away?

Goering: That is a case of "Riot."

Hilgard: Riot does not mean much since we have very little insurance against damage caused by riots—these were discarded by us long ago.

Goering: But this here is "Rioting." That is the legal term. There was no theft, and no individual broke into any place. But a mob rushes in and knocks everything to pieces, or "Public Disturbances."

Hilgard: Public disturbance. It is no riot.

Goering: Are they insured against damages caused by public disturbances?

Hilgard: No, no more. May I show this by an example. The most remarkable of these cases is the case Margraf Unter Den Linden. The Jewelry store of Margraf, is insured with us through a so-called combined policy. That covers practically any damage that may occur. This damage was reported to us as amounting to \$1,700,000 because the store was completely stripped.

Goering: Daluege and Heydrich, you'll have to get me this jewelry through raids, staged on a tremendous scale!

Daluege: The order has already been given. The people are being controlled all the time. According to reports, 150 were arrested by yesterday afternoon.

Goering: These things will otherwise be hidden. If somebody comes to a store with jewels and claims that he has bought them, they'll be confiscated at once. He has stolen them or traded them in all right.

Heydrich: Besides that, looting was going on in the Reich in more than 800 cases, contrary to what we supposed; but we have already several hundred people who were plundering, and we are trying to get the loot back.

Goering: And the jewels?

Heydrich: That is very difficult to say. They were partly thrown into the street and picked up there. Similar things happened with furriers, for example, in Friedrichstrasse, district C, there the crowd was naturally rushing to pick up minks, skunks, etc. It'll be very difficult to recover that. Even children have filled their pockets, just for fun. It is suggested that the Hitler Youth is not to be employed and to participate in such actions without the Party's consent. Such things are very easily destroyed.

Daluege: The Party should issue an order to the effect that the police will immediately receive a report in case the neighbor's wife, (everybody knows his neighbor) has a fur coat altered or in case somebody appears wearing new rings or bracelets. We'd like the Party to support us here.

Hilgard: These damages are not covered by the policy, I believe. May I say a word in general about our liabilities and a "Petidum" of the Versicherungswirtschaft report. We'd like to make it our point, Mr. General Field Marshall, that we shall not be hindered in fulfilling the obligations for which our contracts call.

Goering: But I have to. That is important for me.

Hilgard: If I may give reasons for this request, I'd like to say that it simply has to do with the fact that we carry out, to a large extent, quite a number of international transactions. We have a very good international basis for our business transactions, and in the interest of the equilibrium of the Foreign exchange in Germany, we have to make sure that the confidence in the German insurance shall not be ruined. If we now refuse to honor clear-cut obligations, imposed upon us through lawful contract, it would be a black spot on the shield of honor of the German insurance.

Goering: It wouldn't the minute I issue a decree—a law sanctioned by the State.

Hilgard: I was leading up to that.

Heydrich: The insurance may be granted, but as soon as it is to be paid, it'll be confiscated. That way we'll have saved face.

Hilgard: I am inclined to agree with what General Heydrich has just said. First of all, use the mechanism of the insurance company to check on the

damage, to regulate it and even pay, but give the insurance company the chance to * * *

Goering: One moment! You'll have to pay in any case because it is the Germans who suffered the damage. But there'll be a lawful order forbidding you to make any direct payments to the Jews. You shall also have to make payment for the damage the Jews have suffered, but not to the Jews, but to the Minister of Finance.

(Hilgard: Aha!)

What he does with the money is his business.

Schmer: Your Excellency, I should like to make a proposal. A certain rate should be fixed, say 15% or maybe a little higher, of all the registered wealth, I understand one billion is to be confiscated so that all Jews shall pay equally, and from the money raised this way, the insurance companies shall be refunded.

Goering: No. I don't even dream of refunding the insurance companies the money. The companies are liable. No, the money belongs to the State. That's quite clear. That would indeed be a present for the insurance companies. You make a wonderful Petidum there. You'll fulfill your obligations, you may count on that.

Kerl: It seems that in one respect, we'll have to arrange this somewhat differently. As far as the glass insurance goes, the fact of the matter is that the owners of the buildings will definitely have to be paid for the damage, as stipulated. The majority of these companies, with the exception of one Joint Stock Company in Cologne, are all very small reciprocity companies [Gegenseitsvereine]. They won't be able to make up for the damage. We'll have to find out how far they are covered by reinsurance which I cannot tell at the moment.

Hilgard: In this connection, the reinsurance plays a relatively small role, except for the large fire-insurance policies taken out by department stores. There is not reinsurance in the glass insurances, for the simple reason that, under normal conditions glass insurance is one of our best branches in the insurance business; and therefore does not need reinsurance. I have to add, though, that the amount of this damage is approximately twice as high as

the amount of damage for an average year. It makes all our calculations wrong and completely wipes out our chance for profit.

(Interrupted by Kerl)

No, sir, that is the way it is. The whole premium of the German glass insurance amounts to \$14,000,000, if I am not wrong. Under normal conditions it amounted to 4 or 5 million. The glass insurance is our greatest asset. So far, the greatest profits were made in it. But now, the amount of this damage is alone twice as high as the amount for one ordinary year. With the various special glass insurances, it is altogether different.

Goering: One moment! 4 to 5 millions normally. Twice as much would be about 10 million. You suggested 14 million. There are still 4 million left.

Hilgard: We'll also have to pay for the expenses. No, it is a very great catastrophe for us. Let me point out that the damage in the whole of Germany, in my estimation, shall amount to approximately 25 million mark. I wanted to be careful.

Heydrich: We estimate that the damage to property, to furniture and to consumer-goods amounts to several hundred million; although that includes the damage the Reich shall suffer from loss of taxes—sales taxes, taxes on property, and on income. I assume that the Minister for Finance too, has been informed of all this.

V. Krosigk: I have no idea about the extent.

Heydrich: 7,500 destroyed stores in the Reich.

Daluege: One more question ought to be cleared up. Most of the goods in the stores were not the property of the owner but were kept on the books of other firms, which had delivered them. Then there are the unpaid for deliveries by other firms, which definitely are not all Jewish but Aryan, those goods that were delivered on the basis of commission.

Hilgard: We'll have to pay for them, too.

Goering: I wished you had killed 200 Jews, and not destroyed such values.

Heydrich: There were 35 killed.

Kerl: I think we could do the following: Jews we don't pay anyhow. As for Aryans, payment shall have to be made. The insurance company may

contact us through the “Reichsgruppe” and we shall investigate each case. I am thinking of the small reciprocity companies; it should be easy to find out whether they are capable of paying or not. In their cases, the amounts involved are not too large. We may find an arrangement for this later on; I am thinking of one in which the insurance companies arrange for recompensation exclusively to Aryan, and once they know the results of their inquiries, contact us. We shall then find a way out for these small companies. Of course only in cases where it is absolutely necessary.

Funk: That is not necessary. I’d like to refer to what I’ve said before about the decree. That seems to be the easiest solution.

Goering: We cannot do that. These people make a point of their ability to pay.

Funk: If the Jews pay for it, the insurance companies don’t have to pay.

Goering: Right, well, gentlemen, this is all very clear. We’ll stick to it. At this moment every insurance company, except Mr. Hilgard who is here, counts on having to pay for the damage. They want to pay too, and I understand this very well. They’ll have to want that, so they cannot be reproached for not being secure enough to pay. The glass insurance, and a point was made of that, has brought the highest profits so far. That means they’d have enough surplus money, and if they haven’t divided it all up in dividends, they’ll have savings enough for the compensation. Such an insurance company will have to be in a position to pay for a damage of 10, 12, 15 million, that is three times the amount paid in the normal year. If they are unable to do that, then we’ll have to wonder whether we should let small companies live at all. It would be insane to keep insurance companies which would be unable to pay for such a damage. To permit an insurance company like that to exist would simply mean to cheat the people. I suggest now the following. The damage shall be determined in each case. And for the time being, the insurance companies shall have to honor their contract in every respect and shall have to pay.

[Part IV is missing]

Part V

Goering: Now for the damage the Jew has had. At Margraf’s the jewels disappeared, etc. Well, they are gone, and he won’t get them refunded. He is

the one who has to suffer the damage. As far as the jewels may be returned again by the police, they belong to the State. Now for the consumer foods which were thrown into the street, stolen, or burned. There too, the Jew will be the one who has the damage.

As for the goods that were kept on the basis of commissions, the Jew shall have to make good for the damage.

Goebbels: That doesn't have to be put in the decree, though. This decree is quite sufficient the way it is.

Hilgard: I wonder to what an extent insurance companies in foreign countries might be involved in this.

Goering: Well, they'll have to pay. And we'll confiscate that.

Hilgard: As for this merchandise sold on the basis of commissions, I can imagine that the American supplier of fur coats, shipping them from England or from America would in many cases insure it with English or American insurance companies!

Goering: Then they'll pay him for the damage. The question merely is the following: do you think there are reinsurances for all this damage in foreign countries?

Hilgard: Very few, amounting to very little.

Goering: Of course, the Aryan cannot report any damage because he hasn't had any. The Jew will make good.

The Jew shall have to report the damage. He'll get the refund from the insurance company but the refund will be confiscated. After it's all said and done, there will remain some profit for the insurance companies since they can't have to make good for all the damage. Mr. Hilgard, you may enjoy yourself.

Hilgard: I have no reason for that—the fact that we won't have to pay for all the damage is called profit!

Goering: Just a moment! If you are compelled under the law to pay 5 million and all of a sudden there appears an angel in my somewhat corpulent form before you, and tells you: you may keep 1 million—why, cannot that be called making a profit? I should actually split with you, or

whatever you'd call it. I can see it, looking at you. Your whole body grins. You made a big profit.

(Remark: Let's initiate a tax for damages, resulting from public disturbance, to be paid by the insurance companies)

Hilgard: For me it goes without saying that the honorable German merchant cannot be the one who suffers. I have discussed this matter with the enterprises and I have spoken for it that the Aryan must not be the one who has the damage. But it is decidedly he who has it, because all the insurance companies, not one insurance company, are the ones that shall have to pay higher rates and at the same time shall receive lower dividends. Therefore, all the insurance companies are the losers. That is so, and that'll remain so, and nobody can tell me differently.

Goering: Then why don't you take care of it that a few windows less are being smashed! You belong to the people too! Send your representatives out. Let them instruct the people. If there should be any more questions speak to Mr. Lange.

(Reichsgruppenleiter Hilgard leaves the meeting)

Gentlemen, let us continue.

Woermann: I think that the foreign Jews are left out completely in Article 1. They are covered only by Article 2. But they should also be taken care of in Article 1. Otherwise they can be dealt with only if they are insured, and not if they are not insured.

Goering: Well, they'll have to insure themselves—or what else do you mean?

Woermann: As for insurance, the foreign Jews are, to my understanding, mentioned only in Article 2 and 3, and not in Article 1. If I remember correctly, you were going to say in Article

1: "Jews inside the country." Well, we'll have plenty of complaints then.

Goering: Pardon me. According to Article 2, they'll receive their compensation.

(*Woermann:* If they are insured!)

The number of those who are not insured is negligible.

Heydrich: I'd like to say one more thing of primary importance. In the decree we should not mention the confiscation. We can do that easily.

Goering: No, you cannot do that tacitly. A clear legal procedure will have to be employed there. But that is not what Mr. Woermann means, he is talking about these foreign Jews who are not insured. As far as they are insured, they are covered. This here concerns those who are not insured. That may be the case here and there.

Woermann: We shall then have plenty of complaints.

Goering: I'd like to avoid paying too much attention to the foreign Jews.

Woermann: But if Article 2 contains that provision, Article 1 may as well have it. The first draft by the Minister for Justice covered it all very nicely.

Guertner: Now, if I don't misunderstand, Mr. Woermann, he is primarily concerned with the obligation for restoration which shall be valid generally while only Jews who have German citizenship are mentioned regarding the insurance.

I'd like to know whether there are any objections against compelling also the foreign Jews to restore the damage, and to inform him that he shall not be paid the money from the insurance.

Goering: He is quite able to do that.

Woermann: Even if he is not insured?

Guertner: Oh!

Goering: There should hardly be such instances. Let's take a chance on it.

Stuckart: If he is not insured, he'll have to have the damage restored anyway. How can he then make claims against anybody?

Goering: He cannot.

Woermann: He can file claims against the State.

Stuckart: According to which law? Damage caused by riots? We won't recognize riots.

Goering: Perfectly right.

Woermann: Generally speaking, may I say: regarding foreign Jews, the reservation that the contract is to be taken into consideration was made only for the organization. That is valid for all branches which we have discussed today, and also for the expropriation.

Goering: Like the Fuehrer says, we'll have to find a way to talk this over with the countries which also do something against their Jews. That every dirty Polish Jew has a legal position here and we have to stand him—that ought to cease. The Fuehrer was not very happy about the agreement that was made with the Poles. He thinks we should take a few chances and just tell the Poles: all right, we are not going to do that; let's talk over what we may be able to accomplish together; you are doing something against your own Jews in Poland; but the minute the Itzig has left Poland, he should suddenly be treated like a Pole! I'd like to disregard these stories from foreign countries a little.

Woermann: It ought to be considered whether or not, the U S might take measures against German property. This question cannot be handled equally for all countries. I have to make a formal and general reservation.

Goering: I have always said and I'd like to repeat it that our steamship companies and German companies in general should finally catch on and liquidate their investments in the U S, sell them, etc. That country of scoundrels does not do business with us according to any legal rules. Once before they stole everything from us, that is why I don't understand how we could do it again, just for some temporary profit. It is dangerous. You can do it with a regular country but not with one that cares for the Right as little as the U S. The other day I had the American ambassador with me, we talked about the zeppelin and I told him: "We don't need any helium, I fly without helium but the prerequisite will have to be that this ship will be flying to civilized countries where the Right prevails. It goes without saying that one cannot fly to such gangster-states." He had a rather silly look on his

face. One ought to tell these Americans. But you are right, Mr. Woermann, it ought to be considered.

Woermann: In other words, the foreign office is granted the right to be consulted.

Goering: Granted, but I'd like to avoid mentioning the foreign Jews as long as we can help it. We'd rather have the foreign office take part in these cases where that question becomes acute, so that some compromise can be reached.

Woermann: Generally, and in particular cases.

Funk: The decisive question is: Are the Jewish stores to be reopened or not?

Goering: That depends on how big a turn-over these Jewish stores have. If it is big, it is an indication that the German people are compelled to buy there, in spite of its being a Jewish store, because a need exists. If we'd close all Jewish stores which are not open right now, altogether before Christmas, we'd be in a nice mess.

Fischboeck: Your Excellency, in this matter we have already a very complete plan for Austria. There are 12,000 Jewish artisan and 5,000 Jewish retail shops in Vienna. Before the National Revolution, we had already a definite plan for tradesmen, regarding this total of 17,000 stores. Of the shops of the 12,000 artisans, about 10,000 were to be closed definitely and 2,000 were to be kept open. 4,000 of the 5,000 retail stores should be closed and 1,000 should be kept open, that is, were to be aryanized. According to this plan, between 3,000 and 3,500 of the total of 17,000 stores would be kept open, all others closed. This was decided following investigations in every single branch and according to local needs, in agreement with all competent authorities, and is ready for publication as soon as we shall receive the law which we requested in September; this law shall empower us to withdraw licenses from artisans, quite independently from the Jewish question.

Goering: I shall have this decree issued today.

Fischboeck: It was granted us in connection with the economic plan for Austria. I believe the only reason why it was not yet published was that negotiations between the Reich Ministry for Economic Affairs and the National Food Corporation were going on. A basic agreement had already

been reached. We'll be able to close these 10,000 stores as a matter of mere routine as soon as the decree will be issued. As for the actual execution of the matter, somebody will have to take care of the merchandise in these stores. Until last week we had intended to more or less leave it up to the Jews themselves to liquidate the warehouses. We cannot do that anymore. We intend to create a central agency which shall take care of the merchandise to be used. Generally, the best procedure might be to turn the merchandise over to the particular branch which in turn shall divide it up among the Aryan stores. These, in turn, shall resell it on the basis of commissions or for a fixed price.

If this is carried out as planned, it'll concern only the approximately 3,000 remaining stores which shall be aryanized, according to the investigations made in the various branches. Actual buyers for about half of these stores are waiting: their contracts have been checked and are ready to be approved. If many of these cases were not approved sooner, it is only because the decision on the planning had not yet been made. As for the remaining 15,000 stores, negotiations have also gone rather far in many cases. We think that a deadline should be set, say until the end of the year. If, by the end of the year, definite buyers for the stores designated for Aryans, cannot be found, it'll have to be examined once more whether the stores should not be liquidated. In most cases that will be possible; an artisan's shop is of a rather individual character. As for retail stores, it would never be urgent enough, so as to say that the economic worth was too big. The very few stores which would still remain and found to be necessary but for which no buyer was available, could be taken over by trustees. This way, I believe that fewer than 100 stores would be left, and by the end of the year we would have liquidated all the Jewish-owned businesses which so far have been obvious as such in the eyes of the public.

Goering: That would be excellent.

Fischboeck: Out of 17,000 stores 12,000 or 14,000 would be shut down and the remainder aryanized or handed over to the bureau of trustees which is operated by the State.

Goering: I have to say that this proposal is grand. This way, the whole affair would be wound up in Vienna, one of the Jewish capitals, so to speak, by Christmas or by the end of the year.

Funk: We can do the same thing over here. I have prepared a law elaborating that, effective 1 January 1939, Jews shall be prohibited to operate retail stores and wholesale establishments as well as independent artisan shops. They shall be further prohibited from keeping employees or offer any ready products on the market. Wherever a Jewish shop is operated, the police shall shut it down. From 1 January 1939, a Jew can no longer be employed as an enterpriser as stipulated in the law for the Organization of National Labor from 20 January 1934. If a Jew holds a leading position in an establishment without being the enterpriser, his contract may be declared void within 6 weeks by the enterpriser. With the expiration of the contract all claims of the employee, including all claims to maintenance, become obliterated. That is always very disagreeable and a great danger. A Jew cannot be a member of a corporation; Jewish members of corporations shall have to be retired by 31 December 1938. A special authorization is unnecessary. The competent Ministers of the Reich are being authorized to issue the provision necessary for the execution of this law.

Goering: I believe that we can agree with this law.

(Remark: Yes)

Of course there remain a few things to be straightened out even after 1 January. We shall be able to handle them with these general methods which we shall have to employ for handling all other Jewish property. As for the Jewish stores, we may proceed vigorously; we believe that by Christmas enough buyers shall be found to take over the stores which from now on shall be entirely under pressure. Also the merchandise may be taken the way you have proposed it. To me, all this seems to be prepared in an excellent manner.

Funk: In every single store everything is there.

Schmer: Everything is there, except that we have no control, anymore, over this business with the trustees. I personally am of the opinion that we don't need it at all; so far we have managed quite well with the aryianization. For those few stores that are to be kept open, we shall easily find buyers. All other rooms shall be rented without much ado. There is a great need for this right here in Berlin.

Goering: But my dear friend, that way the Jew will receive the full amount.

Schmer: He will receive the amount that is far below the value, and the aryanizing shall have to be authorized, as before.

Goering: The Jew will receive the amount which won't be put into the account book.

Schmer: No. We can arrange that later. He cannot swallow the money. The amount is fixed, and under the law the Jew is compelled to report every change in his financial status, so that it can easily be controlled. He won't run away; we'll keep it in the Reich. The only thing you'd have to do is to issue a decree, or to transfer the provisions of Article 7 on to the Ministry for Economic Affairs in order to confiscate the Jewish property. He cannot run away from us.

Goering: Mr. Schmer, could not the following be done: Somebody will become aryanized and get 300,000 marks into his hands. He runs into the next-best jewelry store around the corner and buys one piece of jewelry after another, and on the same day disappears across the border.

Schmer: In that case, we'll have to report this change in his property.

Goering: But if he wants to scam!

Fischboeck: The OK on the aryanizing is not being given the minute the price for the purchase is being paid. We do that the following way. The aryanizing is being authorized only under the condition that the price for the purchase is to be paid in installments lasting over a long period of time, in case the buyer is unable to pay; or, in case payment is being made, that the amount is to be put in the bank of a frozen account.

Goering: We could do the same thing here.

Schmer: In the provisions for the execution of the law we may stipulate that from a certain level on, payment shall have to be made in bonds of the Reich or something similar. That would have to be a decree made by the authorities which OK the aryanizing.

Daluege: The number of Jewish stores is unknown. Until yesterday, 7,500 were reported to us and the number does not increase.

Fischboeck: Because of what has happened the day before yesterday in Vienna, 5,000 were shut down there. There were 40,000 altogether.

Schmer: Shall the arrangement made in Austria remain?

Goering: Nothing will be changed there.

Fischboeck: Everything can be shut down at any time.

Heydrich: I know that a very high limit has been set for registering, 3,000 I believe.

Fischboeck: More than 5,000.

Goering: Is that the same in the Reich?

Fischboeck: Yes, in the Reich too. In this connection, I'd like to make a few more remarks. What we are very much concerned with, is the situation regarding the Jewish apartment houses which contribute a large percentage of Jewish wealth. Surprisingly enough, the Jewish national wealth in Austria is reported to amount to 320 million marks only; the value of the apartment houses alone amounts to 500 million. We should appreciate it very much if the regulation which makes it possible to requisition Jewish property would be made to be valid also for the apartment buildings; thus we would be enabled to have these houses administered by a board of trustees and to give the Jews the right to have a claim on the debit ledger of the Reich. That could also be an occasion to cash the contribution, which might be deducted this way in advance. The administration of these blocks of apartment buildings wouldn't be a problem at all. The only thing we'd need for it would be managers, and there'd be plenty of them. We'd like to requisition the apartment buildings and also any bonds that way. This question of the bonds has been left open so far. In Austria, a very large part of Jewish wealth, 266 billion Reichsmarks, is invested in bonds of all kinds, in shares or simply in bonds bringing a fixed rate of interest. In my opinion, a danger for the market does not exist because the Ministry for Economic Affairs would have control over these bonds. We'll pay by handling out claims, on the debit-ledger of the Reich. Therefore, the finances of the Reich won't be affected, the Minister for Finance shall only pay 3% for the claims on the debit-ledger of the Reich. He in turn receives internal loans, that means saves money. And if the bonds are not being sold, one might

keep them 30 years until those claims on the debit-ledger of the Reich shall be expired.

Funk: Why should Jews not be allowed to keep bonds?

Goering: Because that way he would actually be given a share.

Funk: That is entirely new.

Goering: No. I said very clearly before; bonds and shares.

Funk: Shares yes, but not internal loans.

Fischboeck: It is certainly better to pay the Jew 3% instead of 4%. We'd have no possibility to control Jewish wealth the minute we'd let him have shares.

Goering: Gentlemen, no arguments. It is out of the question that he'd keep the shares. He'll have to turn them in.

Fischboeck: In that case I'd like you to arrange this by calling the shares in so that the stock market won't be ruined. That can very easily be done. They'll be turned in. Administering the shares is also much simpler. The trustee turns the shares over to the depot and receives claims on the debit-ledger of the Reich in their place. With this, the whole affair is settled. The only question is whether you want to recall the shares or not.

Funk: This way, the Reich will become possessor of half a billion shares.

Goering: Yes, yes.

Goebbels: He'll be able to get rid of them according to its needs.

Fischboeck: But it is a business based on profits.

V. Krosigk: I am wondering, first whether it will bring us profits. I grant you that, though. But secondly, an entirely new point of view has to be entered here. I can very well see the point in what the Minister, Mr. Fischboeck, says. As for the values that otherwise bring fixed rates of interest, it is an entirely new idea to expropriate the Jew also in this, though the intention had been to refrain his status as the owner of the shares.

Fischboeck: The reason why this is so very important is that our whole action shall remain without success as long as the Jews shall be in the

possession of values, which they may realize quickly and employ for any other undertaking.

Goering: That's it. We want to prevent the Jews from again secretly manipulating against us.

Fischboeck: For example, if we don't want the Jews to possess jewelry we can prevent them from having it by allowing them to possess only Internal Loan bonds, that means that they could acquire the jewelry only by paying with bonds.

Goering: Nobody would pay them claims on the debit-ledger.

Fischboeck: They are not transferable.

Goering: Only if authorized.

Heydrich: Is it not possible to issue an order forbidding the Jew to invest his money in certain values, such as art treasures?

Goering: The arrangement with the registration in the debit-ledger is much simpler. Claims on the debit-ledger are not transferable. He cannot do anything with them, and he cannot do much with those 3½%.

Heydrich: But we'll also have to find an arrangement for confiscation of valuable objects in Jewish possession.

Goering: What he has now in his possession, that'll come.

Schmer: Article 7 of the decree states that the use of Jewish wealth in German economy shall be regulated through the Four Year Plan.

Goering: I think Fischboeck's proposal is very good. We should give it the form of a draft now, find the apartment buildings, the shares, etc.

Fischboeck: I should also like to have a decision made on the following question. In Austria, individuals, not institutions, owe the Jews 184 billion Reichsmarks. This way the Jews certainly have invested money in a way we don't like. That is money which they have loaned out to other Jews, oftener enough to an Aryan. This way, a dependency of the Aryan artisan from the Jewish creditor is created which we do not want. Now the question arises, and I would answer yes. Should trustees not be created to administer these debts and then pay with claims on the debit-ledger, according to demand coming in. The goal of this procedure would be to make the debtor

independent from the Jewish creditor, to insert Aryan trusteeship and pay the Jew, as far as his demands could actually be met. Therefore it does not have to be paid. So we should have to insert trusteeship in this case also, but the difference to that in the case of the bonds would be that we won't simply pay but leave the decision for payment up to the trusteeship.

Funk: If word of this debate should reach the public, we'd have a run on the capital market tomorrow.

Fischboeck: That's why we have postponed these ideas all the time. We have examples for it that the Jews have sold, head over heel, bonds of internal loans, shares and everything they had.

Goering: I could stop that with a single decree, ordering the immediate stoppage of traffic of Jewish capital. He is punishable who buys from Jews, and his purchase shall be confiscated. I would not do it any other way.

[Part VI is missing]

Part VII

Frick: The Ministry of the Interior shall have to take part in it.

Goering: I have said so before.

(Shout by Goebbels)

* * * that is a misunderstanding. That is now the committee which is elaborating on nothing but on this problem which is being tackled. How are the shares, how are the claims on the debit-ledger to be handled? Therefore, I shouldn't like to have anybody else in the Committee, in order to keep it as small as possible.

Buerkel: Is the plan for the aryanizing to be discussed also?

Goering: Mr. Fischboeck shall bring that up. This place is the crux of the matter. I hope you have listened properly so that you know exactly what is to be valid for the Sudetengau! Of course, I too am of the opinion that these economic measures ought to be strengthened by a number of Police-action-Propaganda-measures and cultural displays so that everything shall be fixed now and the Jewry will be slapped this week right and left.

Heydrich: In spite of the elimination of the Jew from the economic life, the main problem, namely to kick the Jew out of Germany, remains. May I

make a few proposals to that effect?

Following a suggestion by the Commissioner of the Reich, we have set up a center for the Emigration of Jews in Vienna, and that way we have eliminated 50,000 Jews from Austria while from the Reich only 19,000 Jews were eliminated during the same period of time; we were so successful because of the cooperation on the part of the competent Ministry for Economic Affairs and of the foreign charitable organizations.

Goering: The main thing is, you cooperated with the local leaders of the "Green Frontier."

Heydrich: That amounted to a very small number, your excellency. Illegal *
* *

Goering: This story has gone through the whole world press. During the first night the Jews were expelled into Czechoslovakia. The next morning, the Czechs grabbed them and pushed them into Hungary. From Hungary, they were returned to Germany and from there into Czechoslovakia. They traveled around and around that way. They landed finally on an old Barge in the Danube. There they lived, and wherever they tried to go ashore, they were barred.

Heydrich: That was the report. There weren't even 100 Jews.

Goering: For practically two weeks, a number of Jews left every midnight. That was in the Burgenland.

Heydrich: At least 45,000 Jews were made to leave the country by legal measures.

Goering: How was that possible?

Heydrich: Through the Jewish Kulturgemeinde, we extracted a certain amount of money from the rich Jews who wanted to emigrate. By paying this amount, and an additional sum in foreign currency, they made it possible for a number of poor Jews to leave. The problem was not to make the rich Jew leave but to get rid of the Jewish mob.

Goering: But children, did you ever think this through? It doesn't help us to extract hundreds of thousands from the Jewish mob. Have you ever thought of it that this procedure may cost us so much foreign currency that in the end we won't be able to hold out.

Heydrich: Only what the Jew has had in foreign currency.

(Goering: agreed)

This way. May I propose that we set up a similar procedure for the Reich, with the cooperation of the competent government agencies, and that we then find a solution for the Reich, based on our experiences, after having corrected the mistakes, the General Field Marshall has so rightly pointed out to us.

(Goering: agreed)

As another means of getting the Jews out, measures for Emigration ought to be taken in the rest of the Reich for the next 8 to 10 years. The highest number of Jews we can possibly get out during one year is 8,000 to 10,000. Therefore, a great number of Jews will remain. Because of the aryanizing and other restrictions, Jewry will become unemployed. The remaining Jews gradually become proletarians. Therefore, I shall have to take steps; to isolate the Jew so he won't enter into the German normal routine of life. On the other hand, I shall have to restrict the Jew to a small circle of consumers, but I shall have to permit certain activities within professions; lawyers, doctors, barbers, etc. This question shall also have to be examined.

As for the isolation, I'd like to make a few proposals regarding police measures which are important also because of their psychological effect on public opinion. For example, who is Jewish according to the Nurnberg laws shall have to wear a certain insignia. That is a possibility which shall facilitate many other things. I don't see any danger of excuses, and it shall make our relationship with the foreign Jew easier.

Goering: A uniform?

Heydrich: An insignia. This way we could also put an end to it that the foreign Jews who don't look different from ours, are being molested.

Goering: But, my dear Heydrich, you won't be able to avoid the creation of ghettos on a very large scale, in all the cities. They shall have to be created.

Heydrich: As for the question of ghettos, I'd like to make my position clear right away. From the point of view of the police, I don't think a ghetto in the form of completely segregated districts where only Jews would live, can be put up. We could not control a ghetto where the Jews congregate amidst

the whole Jewish people. It would remain the permanent hideout for criminals and also for epidemics and the like. We don't want to let the Jew live in the same house with the German population; but today the German population, their blocks or houses, force the Jew to behave himself. The control of the Jew through the watchful eye of the whole population is better than having him by the thousands in a district where I cannot properly establish a control over his daily life through uniformed agents.

Goering: We'd only have to forbid long-distance calls.

Heydrich: Still I could not completely stop the Jews from communicating out of their districts.

Goering: And in towns all of their own?

Heydrich: If I could put them into towns entirely their own, yes. But then these towns would be such a heaven for criminals of all sorts that they would be a terrific danger. I'd take different steps. I'd restrict the movement of the Jews and would say; in Munich, the governmental district and the district

* * *

Goering: Wait a minute! I don't care so much for it that the Jews don't appear in spots where I don't want them. My point is this one: if one Jew won't have any more work, he'll have to live modestly. He won't be able to go far on his 3½%—to restaurants, etc. He'll have to work more. That'll bring about a concentration of Jewry which may even facilitate control. You will know that in a particular house only Jews are living. We shall also have concentrated Jewish butchers, barbers, grocers, etc., in certain streets. The question is of course whether we want to go on tolerating that. If not, the Jew shall have to buy from the Aryan.

Heydrich: No, I'd say that for the necessities in daily life, the German won't serve the Jew anymore.

Goering: One moment. You cannot let him starve. But there'll be the following difficulty. If you say that the Jews will be able to have so and so many retail stores, then they'll again be in business, and they'll continually have to sell for the wholesaler.

Schmer: In a small town that wouldn't work at all.

Goering: It could only be worked out if you'd reserve in advance whole districts or whole towns for the Jews. Otherwise, you'll have to have only Germans do business, and the Jew shall have to buy from them. You cannot set up a Jewish barbershop. The Jew will have to buy food and stockings.

Heydrich: We'll have to decide whether we want that or not.

Goering: I'd like to make a decision on that right now. We cannot make another subdivision here. We cannot argue: so and so many stores will remain for the Jew because then again no control will be possible since these stores in turn would have to work with wholesale stores. I'd say, all stores should be Aryan stores, and the Jew may buy there. One may go one step further and say that these and these stores will probably be frequented mostly by Jews. You may set up certain barbershops operated by Jews. You may make concessions in order to channel certain professions into certain streets for certain tasks. But not stores.

Heydrich: What about the ghetto? Would the Jew have to go to an Aryan district to buy?

Goering: No. I'd say that enough German storekeepers would love to dwell in the ghetto if they could do some business there. I wouldn't alter the principle that the Jew shall have no more say in German economy.

Heydrich: I shouldn't like to comment on that. Now a few things which are important also from a psychological angle.

Goering: Once we'd have a ghetto, we'd find out what stores ought to be in there, and we'd be able to say: you, the Jew so and so, together with so and so, shall take care of the delivery of goods. And a German wholesale firm will be ordered to deliver the goods for this Jewish store. This store would then not be a retail shop but a cooperative store, a cooperative one for Jews.

Heydrich: All these measures would eventually lead to the institution of the ghetto. I'd say one shouldn't want to build a ghetto. But these measures, if carried through as outlined here, shall automatically drive the Jews into a ghetto.

Funk: The Jews will have to move quite close together. What are 3 million? Everyone will have to stand up for the next fellow. The individual alone will starve.

Goering: Now, as to what Minister Goebbels has said before, namely compulsory renting. Now, the Jewish tenants will be together.

Heydrich: As an additional measure, I'd propose to withdraw from the Jews all personal papers such as permits and driver's licenses. No Jew should be allowed to own a car, neither should he be permitted to drive because that way he'd endanger German life. By not being permitted to live in certain districts, he should be furthermore restricted to move about so freely. I'd say the Royal Square in Munich, the Reichsweihestatte, is not to be entered any more within a certain radius by Jews. The same would go for establishments of culture, border fences, military installations. Furthermore, like Minister Dr. Goebbels has said before, exclusion of the Jews from public theaters, movie houses, etc. As for cultural activities, I'd like to say this: cultural activities in holiday resorts may be considered an additional feature, not absolutely necessary for the individual. Many German Volksgenossen are unable to improve their health through a stay at a resort town. I don't see why the Jew should go to these places at all.

Goering: To health spas, no.

Heydrich: Well, then I'd like to propose the same thing for hospitals. A Jew shall not lie in a hospital together with Aryan Volksgenossen.

Goering: We'll have to manage that gradually.

Heydrich: The same applies to public conveyances.

Goering: Are there no Jewish Sanatoriums and Jewish hospitals?

(Remarks—Yes!)

We'll have to finagle all this. These things will have to be straightened out one right after another.

Heydrich: I only meant to secure your approval in principle so that we may start out on all this.

Goering: One more question, gentlemen: What would you think the situation would be if I'd announce today that Jewry should have to contribute this 1 billion as a punishment?

Buerckel: The Viennese would agree to this whole-heartedly.

Goebbels: I wonder if the Jews would have a chance to pull out of this, and to put something on the side.

Brinkmann: They'd be subject to punishment.

V. Krosigk: Mr. Fischboeck, one question: Could this authorization be ordered without their closing out their securities?

Funk: They are all registered. They'll also have to register the money.

V. Krosigk: But for the time being they may dispose of it.

Goering: It won't help them to cash them all. They can't get rid of the money.

Funk: They'll be the ones to have the damage if they sell their stocks and bonds.

Fischboeck: There is a certain danger, but I don't think it is very great. But only then, when all the other measures shall definitely be carried out during next week.

V. Krosigk: They have to be taken during the next week at the latest.

Goering: I would make that a condition.

Fischboeck: Maybe it is good that we put ourselves under pressure this way.

Goering: I shall close the wording this way; that German Jewry shall, as punishment for their abominable crimes etc., etc., have to make a contribution of 1 billion. That'll work. The pigs won't commit another murder. Incidentally, I'd like to say again that I would not like to be a Jew in Germany.

V. Krosigk: Therefore, I'd like to emphasize what Mr. Heydrich has said in the beginning; that we'll have to try everything possible, by way of additional exports, to shove the Jews into foreign countries. The decisive factor is that we don't want the society-proletariat here. They'll always be a terrific liability for us.

(Frick: "and a danger!")

I don't imagine the prospect of the ghetto is very nice. The idea of the ghetto is not a very agreeable one. Therefore, the goal must be, like Heydrich said, to move out whatever we can!

Goering: The second point is this. If, in the near future, the German Reich should come into conflict with foreign powers, it goes without saying that we in Germany should first of all let it come to a showdown with the Jews. Besides that, the Fuehrer shall now make an attempt with those foreign powers which have brought the Jewish question up, in order to solve the Madagascar project. He has explained it all to me on 9 November. There is no other way. He'll tell the other countries. "What are you talking about the Jew for?—Take him!" Another proposal may be made. The Jews, gotten rid of may buy territory for their "coreligionists" in North America, Canada, or elsewhere.

I wish to summarize: The Minister of Economic Affairs shall direct the committee and he shall in one form or another, take all steps necessary within the next few days.

Blerning: I fear that during the next few days, beginning Monday, the Jews will start to sell bonds on internal loans for hundreds of thousands, in order to provide themselves with means. Since we control the course of the internal loan in order to sell more bonds, the Reich-Treasury, Loan-Committee or the Reich Minister for Finance should have to back this internal loan.

Goering: In what way could the Jew bring his bonds on the market?

(Remark: "Sell them")

To whom?

(Remark: "on the stock market—he orders a bank to do it.")

Well, I'll prohibit selling internal loan bonds for three days.

Blerning: That could be done only through a decree.

Goering: I can't see any advantage for the Jew. He won't know himself how and he'll have to pay. On the contrary, I believe he won't move.

Goebbels: For the time being he is small and ugly and stays at home.

Goering: I don't think it would be logical. Otherwise we'll have to do it. The reason why I want this decree in a hurry is that for the time being we have peace but who can guarantee that there won't be new trouble by Saturday or Sunday. Once and for all I want to eliminate individual acts.

The Reich has taken the affairs in its own hand. The Jew can only sell. He can't do a thing. He'll have to pay. At this moment, the individual Jew won't think of throwing anything on the market. There'll be some chatter first, and then they will begin to run to us. They'll look for those great Aryans with whom, they'll think they may have some luck, the so-called various mailboxes of the Reich with whom they can lodge their protests. These people will run my door in. All that takes some time, and by then we'll be ready.

Daluege: May we issue the order for confiscating the cars?

Goering: Also the Ministry of the Interior and the Police will have to think over, what measures will have to be taken. I thank you.

[Conference closed at 2.40 PM]

PARTIAL TRANSLATION OF DOCUMENT 1817-PS

ORGANIZATION BOOK OF THE NSDAP, 1936 EDITION

The Reich Organization Leader of the NSDAP, published by the Central Publishing House of the NSDAP, Franz Eher Successor, Munich. Page 211.

BUREAU FOR FACTORY TROOPS [AMT WERKSCHAREN]

I. TASK:

The factory troops in the National Socialist Community "Strength through Joy" [NS—Gemeinschaft "Kraft durch Freude"] carry out the following tasks:

1. To help and come to the rescue, in their capacity as a young factory guard, whenever there is a question of bringing the German working man strength through joy.
2. Shaping of factory celebrations and festivals in order to permeate the factories with National Socialist ideology and philosophy, with special regard to the creation of a new ritual.
3. To be an ideological shock squad [Weltanschaulicher Stosstrupp] within the factory.

PARTIAL TRANSLATION OF DOCUMENT 1818-PS

ORGANIZATION BOOK OF THE NSDAP, 1940 EDITION

The Reich Organization Leader of the NSDAP [Dr. Robert Ley] published by the Central Publishing House of the NSDAP, Franz Eher Successor, Munich. Pages 195-196b.

BUREAU FOR FACTORY TROOPS AND TRAINING

The Bureau of Factory Troops and Training [Werkschar und Schulung] is simultaneously a Bureau under the jurisdiction of the Reich Organization Leader of the NSDAP—Main Training Bureau.

* * * * *

The education and training of the Bureau of Factory Troops and Training has in mind the totality of the tasks of the NSDAP and of the German labor front. It comprises political shaping of the will, and conveying trade knowledge, and includes the whole labor policy on an ideological basis, character education, and creation of a soldierly attitude [Soldatisch-haltungsmaessige Ausrichtung].

It is the aim of the German labor front training to enable the factory troops and the German labor front functionaries to lead the workers of the German people, and thereby to render real the National Socialist community of factory, accomplishment and people.

* * * * *

THE FACTORY TROOPS OF THE GERMAN LABOR FRONT IN THE FACTORY

Regulations for its building:

The Factory Troop as an organization exists only in the factory. It is the nucleus of the factory community.

The Factory Troops Leader:

The confirmed factory chairman [Betriebsobmann] of the German Labor Front leads, under the same title, the Factory Troops of the factory. For training and commitment of the shock squad [Stosstrupp] the factory chairman deputizes a shock squad leader [Stosstruppfuehrer].

Membership in the Factory Troops:

Membership in the Factory Troops is voluntary and it presupposes readiness to fight for a National Socialist conception of work and for a German worker's community.

* * * * *

TASK OF THE FACTORY TROOPS

Under the leadership of the factory chairman, it is the task of the Factory Troops to guarantee, under all circumstances and by all means, the political security and readiness of the factory to commit itself.

Not through words and speeches alone, but primarily through their example, the Factory Troops shall convince the community of their fellow-workers of the justice of the National Socialist will, and educate them to utmost effort, to highest accomplishments, and to most extreme devotion.

It must remain the aim of the Factory Troops to fuse the factory into a closely-meshed, single-willed community capable of the highest accomplishments for the people and the Reich. Commitment:

Directives and regulations for physical coordination, commitment and utilization of the Factory Troops are issued by the Reich Organizational Leader, or on his behalf by the head of the Central bureau, or the German Labor Front chairmen of district [Gau] county [Kreis] and locality [Ort], so far as it is not a question of Factory Troops tasks falling within the professional sphere of activity of the factory.

The competent regional chairmen (district, county and locality) are solely responsible for the over-all commitment of the Factory Troops.

TRANSLATION OF DOCUMENT 1822-PS

[Item 1]

1. Letter of the Fuehrer with wording of 25 August 1939 transmitted to me by telephone from the Reich Labor Ministry.
2. Telegram No. 370 of 25 August 1939 concerning transmittal of Fuehrer's letter to Duce.
3. Second letter of Fuehrer to Duce, dated 25 August 1939 transmitted by telephone by the Reich Labor Ministry to the Ambassador.

4. Tel. No. 371 of 25 August 1939 concerning transmission of second letter of Fuehrer.

5. Note of Envoy von Plessen concerning telephone call from Berlin, dealing with alleged contradiction between telegram 370 and a letter transmitted by Ambassador Attolico in Berlin.

6. Note of 26 August 1939 on same subject.

7. Letter of Duce to Fuehrer of 26 August, transmitted at 1210 hours by telephone in Berlin by Count Ciano to Attolico.

[Item 2]

Rome, August 25, 1939.

Embassy Courier (Btsch./Kr.)

Telegram in code (Secret Ch. V.)

(Valid)

Foreign Affairs
Berlin

Citissime

No. 370 of 25 August

Top Secret

To: The Minister of Foreign Affairs.

Subject: Today's Telephonic Instructions.

V.1.Encoding: Fink/Grade/Haupmann.

2.Dispatched: Krueger/Limberg/Zimmerm.

3.To me dispatched in sections (last one at 11 p. m.)

[Illegible notations]

I have personally handed on to the Duce in the Palazzo Venezia at 1520 o'clock in the presence of Ciano the contents of today's letter of the Fuehrer conveyed here by telephone. The Duce, who was possessed of great

calmness, at first, read the letter through entirely, and then went over it, with me sentence for sentence, at which time, he translated the sentences into Italian for Ciano, who is not conversant with German, and, in fact, as I was able to convince myself, completely, correctly, and true to the meanings.

Among this comments upon the individual themes, I shall single out the following:

He was entirely satisfied with the non-aggression pact with Moscow. He, himself, already in the Spring had offered such a suggestion to Field Marshal Goering, pointing out, indeed, at this juncture, the need of adopting a moderate attitude, since our two nations, who for ten years on account of ideological reasons have been oriented for a fight against Moscow, must have the time needed for a readjustment. In spite of the suggestion made at that time, he, himself, is and remains an implacable anticommunist.

(Here I interrupted with the view that the German position against communism self-evidently remains entirely unchanged and that in regard to this fact Moscow has never been left in doubt.)

The comment in the letter concerning the attitude of the Japanese Cabinet he regarded as being correct. The fault lies with the Japanese Ministry of the Navy, which is opposed to adopting an unambiguous position against England.

The reaction he also expects the pact with Moscow to have upon Rumania appeared to be of most lively interest to him. Consideration for Bessarabia would paralyze Rumania's freedom of movement in favor of Poland in the case of conflict. Thus Rumania would be left to the Hungarians.

With an approving nod of the head he agreed that Turkey would now have to revise its attitude.

He described the worsening of German-Polish relations as so acute that an armed conflict can no longer be avoided. The moment to consider possibilities of preventing the conflict has now passed, because the Polish mentality—supported by England's attitude—is no longer responsive to reasonable suggestions, no matter from which side they might come. Otherwise he might have imagined that the Poles would have sought, for example, immediate reapproachment with Germany, if they correctly

appreciated the danger threatening their existence; and, to prove clearly their willingness to negotiate, they would first of all have given Danzig to Hitler, without reservations and without any talks on negotiations. Then one might have considered the removal of further reasons for discord—he cited the Polish Corridor and Silesia—by means of direct German-Polish talks; in his opinion that would have been possible. Finally, a general conference might have followed in order to solve the other big controversial questions—points of differences between Italy and France, German colonies, distribution of raw materials, armament questions. This would have assured European peace for 15-20 years, as is desired by all. Such considerations, however, are outdated by the precipitous course of events. He had now adjusted himself to the fact that the outbreak of a general conflagration is not only unavoidable but immediately imminent. The question of the exact date interested him most, and he wanted to know whether I could tell him more about that. I answered the question by pointing out the corresponding places in the letter. He seemed to realize that nothing more could be said at the moment by anybody. But he emphasized that he attached much value, for obvious reasons, to the fact that he should be informed as fast as possible. But in view of the speed of the developments he understood the difficulties of such notification. Finally, he stated again that he would have preferred open conflict 2 to 3 years hence and gave his reasons. And he believed the reasons also applied to us, especially in view of the condition of our fleet. However, developments are now forcing us in another direction. In any case, he expressly emphasized, he is with us, unconditionally and with everything.

At the end of the talk he made comments about the prospects of an armed German-Polish conflict which should be decided in our favor by our army in a very short time.

Ciano, who led me out after I took leave of the Duce, summarized his impressions of the situation by saying that any discussion over possibilities to keep the peace was outdistanced by the course of events. No longer the word “peace,” but “victory” would govern his action.

Mackensen

TRANSLATION OF DOCUMENT 1823-PS

Telegram in Cipher (Good)
Sent Berlin 27 Aug 1939 00-32 hours
Rec Rome same day 02-25
Rec Embassy 27 Aug 1939 03-40

Deciphering Nr. 403 of 26 Aug 1939

[illegible pencil mark] For Chief of Agency personally. Sealed matter.
Decipher personally. Strictly secret. To Ambassador v. Mackensen personally.

The Reich Minister requests that the following reply of the Fuehrer be forwarded to the Duce immediately.

Duce!

I have received the information concerning your final attitude. I respect the motives and influences determining your resolution. Perhaps it will nevertheless be for the best. Of course, in my opinion, this will be true only if the world does not receive any inkling of the intended attitude of Italy, at least not till actual fighting starts. For this reason I beg you heartily to support my struggle psychologically in your press and any other means. I also beg of you, Duce, if it is possible for you to force at least England and France to immobilize certain parts of their strength, by demonstrative military actions, or to keep them in any case, in a state of uncertainty. But the most important thing is this, Duce: should, as mentioned, the big war start, the situation in the East will be solved, before the two Western powers can achieve any success. This winter or at the latest by spring I intend to deploy in the West forces at least equal to those of France and England. The blockade will be of little effect, especially under the altered circumstances in the East and as a result of my autarchic preparations. Its danger during the progress of war will not increase but decrease. Now I have a big favor to ask you, Duce. You and your people could help me most in this hard struggle by supporting me with Italian manpower, manpower for industrial as well as agricultural purposes. Should you later on in the course of developments be forced or be in a position to intervene, the intensified autarchic basis of the Reich would be of the utmost importance to you. In reiterating my entreaty for the granting of this special favor, I wish to thank you for all the efforts you have made in our common cause.

Adolf Hitler

End of Letter: Schmidt.

COPY

Letter of the Fuehrer transmitted telegraphically to his Excellency Ambassador v. Mackensen, received at 3:40 o'clock, 27 August 1939, for immediate delivery to Il Duce.

DUCE!

[Text of message the same as above].

PARTIAL TRANSLATION OF DOCUMENT 1828-PS

Extract from Memorandum Handed to German Foreign Office by Count Magistrati, forwarded by von Weizacker to Ambassador von Mackensen in Rome 7 August 1939.

2. * * * Above all it must be most *clearly* and *unmistakably* stated that when the Fuehrer decides that the opportune time to start a war has come, Italy is ready to agree a *hundred percent*. If Germany has to mobilize, Italy will also do so *at the same time*, since it intends to meet its obligations fully and with all its forces. As said already before, this should be *clearly* understood. * * *

TRANSLATION OF DOCUMENT 1831-PS

BTSCH/KR

NOTE

On behalf of the Reich Minister for Foreign Affairs, VLR Kordt calls at 11:15 with the information that two telegrams, numbered 439 and 440 are on the way to me. The Reich Minister for Foreign Affairs requests that I should get in touch with the postal authorities to have these telegrams delivered to me with the greatest possible speed. They contained the text of two letters by the Fuehrer to the Duce, but I was to keep this information to

myself. I was to hand these to the Duce personally as quickly as possible. When I asked when were the telegrams sent off and how long they were which I had to know in order to estimate for when to make an appointment with the Duce, Mr. Kordt stated that until then only No. 439 had been sent off at 10:30, whereas No. 440 was still being in the process of coding. One of the telegrams was about half a page long, the other, two. I told Mr. Kordt that I would take the necessary steps, but that I had to point out already now that one should not entertain any false hopes as to the time that would elapse.

At 11:50 the Reich Minister for Foreign Affairs calls me up from the Reich Chancellery personally and requests me to have the Fuehrer's two letters to the Duce received immediately by telephone, as their transmission by telegraph would presumably take too long and then to deliver the letters to the Duce with greatest speed. Then the telephonic transmission of the text of the two telegrams followed immediately.

Immediately afterwards VLR Kordt called me and told me that he had just transmitted to us the Fuehrer's two letters to the Duce by telephone. Referring to our previous telephone conversation he asked me to take the further steps. I answered that meanwhile the Minister for Foreign Affairs has called me personally and that I had already received the text of the letters over the telephone through another line. We ascertained together that thus the text of these letters has arrived here over three routes.

At 12:15, I informed the office RM by telephone that the Duce would receive me at 1 o'clock.

After the audience with the Duce, I informed by telephone the Office RM at 1:50 about the delivery of the letters, adding that a telegram about my conversation with the Duce would be sent immediately.

ROME, 1 September 1939

(Signed) Mackensen

Coded Telegram (Copy)

From Berlin: 3 September 1939, 2:50 hours
Arr. Rome: 3 September 1939, 3:00 hours.
Arr. Embassy: 3 September 1939, 6:30 hours

DECODING

No. 450 dated 2 September 1939.

For High Officials or their representatives in person.

Top Secret. To be decoded in person.

Top Secret.

For the Chief of the Mission for personal and confidential information.

The Italian Ambassador handed to the State Secretary at the Duce's order following copy for the Fuehrer and Reich Chancellor and for The Reich Minister for Foreign Affairs:

Italy sends the information, leaving, of course, every decision to the Fuehrer, that it still has a chance to call a conference with France, England and Poland on following basis: 1. Armistice which would leave the Army Corps where they are at present. 2. Calling the conference within 2-3 days. 3. Solution of the Polish-German controversy which would be certainly favorable for Germany as matters stand today.

This idea which originated from the Duce has its foremost exponent in France.

Danzig is already German and Germany is holding already securities which guarantee most of her demands. Besides, Germany has had already its "moral satisfaction." If it would accept the plan for a conference, it will achieve all her aims and at the same time prevent a war which already today has the aspect of being universal and of extremely long duration.

Duce does not insist on it, but he lays particular emphasis that above should be brought to the immediate attention of von Ribbentrop and of the Fuehrer.

End of Copy

The answer to the Italian Ambassador was promised by 3 September.

Woermann

Telegram Heading in Italian

773 S Berlin AW1/2 977 630/626 3/9 2051 Etat—459

For the Ambassador

I request that the following message from the Fuehrer be forwarded to the Duce personally:

Duce

I first want to thank you for your last attempt at a mediation. I would have been ready to accept, but only under condition, that there would be a possibility to give me certain guarantees that the conference would be successful. Because, for the last two days the German troops are engaged in an extraordinarily rapid advance in Poland. It would have been impossible to devaluate the bloody sacrifices made thereby by diplomatic intrigues. Nevertheless, I believe that a way could have been found, if England would not have been determined to wage war under all circumstances. I have not given in to the English, because, Duce, I do not believe that peace could have been maintained for more than $\frac{1}{2}$ year or 1 year. Under these circumstances, I thought that, in spite of everything, the present moment was better for resistance. At present, the superiority of the German armed forces in Poland is too overwhelming in all fields that the Polish Army will collapse in a very short time. I doubt whether this fast success could be achieved in one or two years. England and France would have armed their allies to such an extent that the crushing technical superiority of the German armed forces could not have become so apparent anymore. I am aware, Duce, that the fight which I enter, is one for life and death. My own fate does not play any role in it at all. But I am also aware that one cannot avoid such a struggle permanently and that one has to choose after cold deliberation the moment for resistance in such a way that the probability of the success is guaranteed and I believe in this success, Duce, with the firmness of a vouch. Recently you have given me the kind assurance that you think you will be able to help me in a few fields. I acknowledge this in advance with sincere thanks. But I believe also—even if we march now over different roads—that fate will finally join us. If the National Socialistic Germany were destroyed by the Western democracies, the Fascist Italy would also have to face a grave future. I was personally always aware of this community of the future of our two governments and I know that you,

Duce, think the same way. To the situation in Poland, I would like to make the brief remark that we lay aside, of course, all unimportant things, that we do not waste any man in unimportant tasks, but direct all on acts in the light of great operational considerations. The Northern Polish Army which is the Corridor, has already been completely encircled by our action. It will be either wiped out or will surrender. Otherwise, all operations proceed according to plan. The daily achievements of the troops are far beyond all expectations. The superiority of our air force is complete, although scarcely one third of it is in Poland. In the West I will be on the defensive. France can here sacrifice its blood first. Then the moment will come when we can confront the enemy also there with the full power of the nation. Accept my thanks, Duce, for all your assistance which you have given to me in the past and I ask you not to deny it to me in the future.

(Signed) Adolf Hitler

End of message. Cable report is requested

Ribbentrop

Rome, 4 September 1939

Foreign Berlin

No. 418 of 4 September 1939

Telegram, secret code procedure (good)

CITISSIME to telegram No. 495 of 3rd of this month and in connection with telegram No. 414 of 3 September.

TOP SECRET

Duce remarked during the presentation of the Fuehrer's message, which took place in Ciano's presence at 0940, that he would forward his view point by letter. He explained somewhat as follows, during the ensuing conversation of a half an hour: they never had considered in the least to let himself be used in an action of arbitration, which had as prerequisite the withdrawal of German troops. No man on earth can seriously consider the thought as worthy of discussion, to make such an offer to troops, which, furthermore, are advancing successfully. He refused such ideas with actual

indignation, also he would not consider the “symbolic withdrawal” suggested by Paris. In view of the strong appeal by France to make one last attempt, he had forwarded the suggestion under the self-evidence supposition, that the remaining of the army corps, where it should be a prerequisite. In this case, if we had considered the agreement of the Fuehrer to the suggestion possible, he would perhaps even have advised it. However, England, which is guilty for the entire development of the German-Polish conflict, did apparently not want to let it come to a compromise. He seemed to know, that the Polish Ambassador in London still exercised in the last minutes a decisive influence on the position at the British Cabinet. The declaration by England, which brought about the stage of war, and which France followed up the last, only hesitantly, is absolutely “diotic,” brought about by people who apparently have never even studied a map. For what form should such a war take? It can only be waged on water, on land or in the air. Breaking out of the Maginot Line on land, over-running of the West Wall would be a hopeless undertaking, which will hardly be attempted by the French. Even if our fleet is modest, in any case the Navy cannot undertake anything decisive. The air force would attempt to drop a few bombs, maybe it would destroy this and that installation, but even that has nothing to do with the decision, especially if we limit ourselves in the air as well to the defensive. In brief, the declaration of war is an absolutely absurd undertaking, because the only thing actually left would be the war of attrition and that would also be harmful to the one who declares it.

If the Fuehrer’s message says that the Fuehrer and the Duce “would now go separate ways”, he is of an entirely different opinion. On the contrary, the most complete agreement in respect to methods and goal prevails, and especially militarily, he has done everything to the last, what the Fuehrer desired of him, and he continues his preparation most intensively. In Lybya, the critical month for him is September, after which even there, he will be armed for a successful defense. Already today, he ties down 400,000 men of the opponent by his measures on the Alpine frontier and in Africa. He will send to the Fuehrer, via the military attaché (who is invited this evening to the home of Gen. Pariani) all the details of his military measures with appropriate carbo-graphic material, which he also showed me and explained most thoroughly. I can leave the reporting on this to the military attaché. I only wish to emphasize the Duce’s remark, that the mobilization measures

did not only pass without any friction, but also that the spirit of those conscripted and of their families, thanks to the generous subsidy allotted to them, is excellent.

At the end, the Duce repeated his assurance of every assistance desired by us, particularly, in the question of workers and (on a suggestion of mine) by the press.

Duce was in a confidential mood.

/s/ MACKENSEN.

PARTIAL TRANSLATION OF DOCUMENT 1832-PS

The Reich Minister for Foreign Affairs called me on the telephone at 2200 hours from the Reich Chancellery and reported as follows:

According to authentic information, the rumors spreading in Rome, by way of the Italian embassy in Berlin, that a relaxation of the situation is to be noted and that conferences are being held. We wanted to state on the contrary, that just the opposite is true and that the situation is getting more serious from hour to hour. "The Armies are marching". It would be good if I would see to it that the rumor mentioned above should not be believed by the Duce and Ciano.

Rome, 27 August 1939.

to the notice of:

Mackensen

1. B. R. [initialed]
2. Military attaché [initialed]
3. Naval attaché [initialed]
4. Air attaché [initialed]
5. to be returned to me.

Rome, 27 August 1939.

[initialed]

PARTIAL TRANSLATION OF DOCUMENT 1834- PS

FOREIGN OFFICE
RAM NO. 56/R

Berlin, 2 March 1941

STRICTLY SECRET

Personal

In the inclosure is forwarded, for strictly confidential and purely personal information, an extract of a report on my conference with the new Japanese Ambassador Oshima in Fuschl on 23 February 1941. These statements are of fundamental significance for orientation on the general political situation facing Germany in early Spring 1941.

Signed: Ribbentrop

To: The German Embassy in

Ankara
Madrid
Moscow
Rome (*Quir.*)
Rome (Vat.)

The German Legation in

Athens
Belgrade
Bern
Budapest
Bukarest
Helsinki
Lisbon
Pressburg (Bratislava)
Sofia
Stockholm
one each

Enclosure

To RAM No. 56/R

STRICTLY SECRET

Extract from the report of the conference of the Reich Foreign Minister with Ambassador Oshima in Fuschl on 13 February 1941

After particularly cordial mutual greetings, the RAM (Reich Foreign Minister) declared that Ambassador Oshima had been proved right in the policy he had pursued regarding Germany in the face of the many doubters in Japan. By Germany's victory in the west these policies had been fully vindicated. He (the RAM) regretted that the alliance between Germany and Japan, for which he had been working with the Ambassador for many years already, had come into being only after various detours, but public opinion in Japan had not been ripe for it earlier. The main thing was, however, that they are together now.

Expanding upon the general political situation the Reich Foreign Minister declared: The Fuehrer had always looked for an understanding with England and he (RAM) had himself been sent to England as an ambassador in his time to undertake a last attempt in this direction. A certain possibility had existed in the person of King Edward, even though it had been doubtful from the beginning whether the king would prevail. He (the RAM) had been more than skeptical already at his arrival in London, and had considered the chances for an understanding as 100 to 1. Thus the war-inciter clique in England had then won the upper hand. When he (the RAM) left England, *war was unavoidable*. Then when it came to war the Fuehrer decided on a *treaty with Russia*—a necessity for *avoiding a two-front war*. Perhaps this moment was difficult for Japan. The treaty was, however, in the interest of Japan, for the Japanese empire was interested in as rapid a German victory as possible, which was assured by the treaty with Russia. Furthermore he (the RAM) had made it clear to Stalin as well as to the public that the treaty

between the Reich and Russia in no way affected the German-Japanese relationship. Now the *German-Japanese alliance* has been concluded. Ambassador Oshima is the man who gets credit for it from the Japanese side. After conclusion of the alliance the question of its further *development* now stands in the foreground. How is the situation in this respect?

* * * * *

As for the war against *England*, we had poor weather for our bombers during the Fall and Winter to be sure, but in spite of this, heavy damage has been done which has had a strongly retarding effect on English war production, etc. The bombings would continue in increasing measure so that we hope to destroy very much more than America was able to replace. We now had air supremacy over the whole continent. The time when we should win air supremacy over England would depend on further developments.

At sea the commitment of U-boat weapon had thus far been comparatively slight; after the end of March the commitment of the U-boat weapon would multiply in a short time. Then with the combination Air Force-U-Boat weapon we would deal terrible blows to England. The loss of tonnage already was making considerable difficulties for the English food supply. Meat and fats were already scarce. It was now a matter of reducing imports by sinking to a definite level below the absolute minimum for English existence. Thereby England's situation would take catastrophic shape overnight. The landing in England is prepared; its execution, however, depends on various factors, above all on weather conditions.

Concerning *America*, the Reich Foreign Minister went on, it must be noted that Roosevelt is the most bitter enemy of Germany and Japan. As far as he was concerned he would like to enter the war. However we have an interest in keeping America out of the war. Should America enter the war in spite of this it could not wage the war militarily at all. The vast spaces of the oceans lying between us and America made this impossible.

In East Asia, America would hardly dare to send its fleet beyond Hawaii, as it would then be threatened with destruction by the Japanese fleet. In the Atlantic Ocean there is a lack of commitment possibilities with the exception of England. Landing in Europe is impossible, and Africa also is too far removed. Supply points for the fleet and land troops are lacking. This points to the creation of American air bases in England for practical purposes. But in an air war we are located in a strategically advantageous position with respect to England. We could bomb England concentrically from the broad basis of the European coast while England had to spread out in fanlike fashion in its attacks on Europe and must thereby split up its forces. In an air duel—Europe vs. England—Germany would always be superior. We believed, however, that it should be possible to keep America out of the war by skillfully coordinated politics of the allied powers.

The Fuehrer would beat England wherever he would encounter her. Besides our strength is not only equal, but superior to a combined English-American air force at any time. The number of pilots at our disposal was unlimited. The same was true for our airplane production capacity. As far as quality is concerned ours was always superior to the English (to say nothing about the American) and we were on the way even to enlarge this lead. By order of the Fuehrer the anti-aircraft defense too would be greatly reinforced. Since the army had been supplied far beyond its requirements, and enormous reserves had been piled up (the ammunitions plants have been slowed down because of the immense stock of material), production would now be concentrated on submarines, airplanes and anti-aircraft guns.

Every eventuality had been provided for; the war has been won today militarily, economically and politically. We had the desire to end the war quickly and to force England to sue for peace soon. The Fuehrer was vigorous and healthy, fully convinced of victory and determined to bring the war to a quick and victorious end. To this end the cooperation with Japan was of importance. However, Japan, in its own interest, should come in

as soon as possible. This would destroy England's key position in the Far East. Japan, on the other hand, would thus secure its position in the Far East, a position which it could acquire only through war. There were three reasons for quick action:

1. Intervention by Japan would mean a decisive blow against the center of the British Empire (threat to India, cruiser-warfare, etc.). The effect upon the morale of the British people would be very serious and this would contribute toward a quick ending of the war.

2. A surprising intervention by Japan was bound to keep America out of the war. America, which at present is not armed as yet and would hesitate greatly to expose her Navy to any risks West of Hawaii, could do this even less so in such a case. If Japan would otherwise respect the American interests, there would not even be the possibility for Roosevelt to use the argument of lost prestige to make war plausible to the Americans. It was very unlikely that America would declare war if it then would have to stand by helplessly while Japan takes the Philippines without America being able to do anything about it.

3. In view of the coming new world order it seems to be in the interest of Japan also, to secure for herself already during the war the position she wants to hold in the Far East at the time of a peace treaty. Ambassador Oshima agreed with me entirely and said that he would do everything to carry through this policy.

The Reich Foreign Minister mentioned further that, if America should declare war because of Japan's entry into the war, this would mean that America had had the intention to enter the war sooner or later anyway. Even though it would be preferable to avoid this, the entry into the war would, as explained above, be by no means decisive and would not endanger the final victory of the countries of the Three-Power Pact. The Foreign Minister further expressed his belief that a temporary lift of the British morale caused by America's entry into the war would be cancelled by Japan's entry into the war. If, however, contrary to all expectations, the Americans should be careless enough to

send their Navy in spite of all, beyond Hawaii and to the Far East, this would represent the biggest chance for the countries of the Three-Power Pact to bring the war rapidly to an end. He, the Foreign Minister, is convinced that the Japanese fleet would then do a complete job. Ambassador Oshima replied to this, that, unfortunately he does not think the Americans would do it, but he is convinced of a victory of his fleet in Japanese waters.

The Minister for Foreign Affairs further explained that closest cooperation was required for the common waging of the war, particularly as far as intelligence service and press were concerned. The cooperation with the Italians is already exemplary; the same is true for the cooperation with Rumania, Hungary and Slovakia. The press, radio, etc. of these countries were already so synchronized with each other that they form one single weapon. The same kind of close contact must be established with Japan. The Ambassador welcomed this and intends to set up a program with our men determining how our Japanese propaganda can be most effectively intensified in all fields.

Ambassador Oshima explained that when the Three-Power Pact was concluded, various opinions were still present in Japan. It was then that the Emperor intervened with an edict. It must be stated, however, that, impressed by the German victory in the West, the Japanese people are now entirely for the Three-Power Pact.

Ambassador Oshima remarked further that in Japan, under the influence of the events, the hard feelings against America had risen considerably. The Reich Foreign Minister referred to the recent statement of Nomura, the Japanese Ambassador in the U.S.A., concerning Japan's attitude in case of America's entry into the war, and mentioned that he considered it appropriate to talk plain language with the U.S.A. Ambassador Oshima remarked hereto that the Japanese Ministry of Foreign Affairs had given instructions to that effect. The Minister for Foreign Affairs pointed out that particularly in view of the desire to keep America out of the war, plain language must be used. Only if the

U. S. realized that they were confronting firm determination, would they hold back. The people in the U. S. did not like National Socialism. However, they were not willing to sacrifice their sons and therefore were against an entry into the war. The American people felt instinctively that they were drawn into the war for no reason, by Roosevelt and the Jewish wire-pullers. Therefore, our politics with the U. S. should be plain and firm, but, of course, not aggressive. In the U. S. they must realize that Germany, Italy and Japan had no hard feelings for the American people, but that should the U.S.A. have any aggressive desires, they would confront an iron front of determined people, a front, at that, which includes practically the whole world. One would therefore have to work in close cooperation against the attempts of misrepresentation by the British propaganda. As far as speeches and addresses of a principle nature are concerned it would be necessary to keep up a continuous exchange of ideas. In this connection the Minister for Foreign Affairs referred to a recent remark by Matsuoka concerning Japanese willingness to act as mediator for peace negotiations. This remark had been extensively exploited by the enemy propaganda.

The Reich Foreign Minister continued by saying that it was Japan's friendship which had enabled Germany to arm after the Anti-Comintern Pact was concluded. On the other hand, Japan had been able to penetrate deeply into the English sphere of interest in China. Germany's victory on the continent has brought now, after the conclusion of the Three Power Pact, great advantages for Japan. France, as a power, was eliminated in the Far East (Indochina). England too was considerably weakened, Japan had been able to close in steadily on Singapore. Thus, Germany had already contributed enormously to the shaping of the future fate of the two nations. Due to our geographical situation we should have to carry the main burden of the final battle in the future, too. If an unwanted conflict with Russia should arise we should have to carry the main burden also in this case. If Germany should ever weaken, Japan would find itself confronted by a world-coalition within a short time. We were all in the same boat. The fate of both nations was being determined

now for centuries to come. The same was true for Italy. The interests of the three countries would never intersect. A defeat of Germany would also mean the end of the Japanese imperialistic idea.

Ambassador Oshima definitely agreed with these statements and emphasized the fact that Japan was determined to keep its imperial position. The Reich Foreign Minister then discussed the great problems which would arise after the war for the parties of the Three Power Pact from the shaping of a new order in Europe and East Asia. The problems arising then would require a bold solution. Thereby no overcentralization should take place, but a solution should be found on a basis of parity, particularly in the economic realm. In regard to this the Reich Foreign Minister advanced the principle that a free exchange of trade should take place between the two spheres of interest on a liberal basis. The European-African hemisphere under the leadership of Germany and Italy, and the East-Asian sphere of interest under the leadership of Japan. As he conceived it, for example, Japan would conduct trade and make trade agreements directly with the independent states in the European hemisphere, as heretofore, while Germany and Italy would trade directly and make trade agreements with the independent countries within the Japanese orbit of power, such as China, Thailand, Indochina, etc. Furthermore, as between the two economic spheres, each should fundamentally grant the other preferences with regard to third parties. The Ambassador expressed agreement with this thought.

The Reich Foreign Minister then touched upon the question, explicitly pointed out as theoretical, that the contracting powers might be required, on the basis of new affronts by the U.S.A., to break off diplomatic relations. Germany and Italy were fundamentally determined on this; after signing of the Three-Power Pact we should proceed if the occasion arises, but also jointly in this matter. Such a lesson should open the eyes of the people in the U.S.A. to the situation and under certain conditions bring about a swing toward isolation in public

opinion. Naturally a situation had to be chosen in which America found herself entirely in the wrong. The common step of the signatory powers should be exploited correspondingly in propaganda. The question, however, was in no way acute at the time.

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TRANSLATION OF DOCUMENT 1835-PS

Urgent. To Ambassador:

Fuehrer and RAM request you immediately to transmit the following letter by Fuehrer to Duce.

Report execution.

Berlin, 28.3.41. 0,5 -

Duce, events force me to give you, Duce, by this quickest means, my estimation of the situation and the consequences which may result from it.

1. From the beginning, I have regarded Yugoslavia as a dangerous factor in the controversy with Greece. Considered from the purely military point of view, German intervention in the war in Thrace would not be at all justified, as long as the attitude of Yugoslavia remains ambiguous and she could threaten the left flank of the advancing columns, on our enormous front.

2. For this reason, I've done everything and honestly have endeavored to bring Yugoslavia into our community bound together by mutual interests. Unfortunately these endeavors did not meet with success, or they were begun too late to produce any definite result. Today's reports leave no doubt as to the imminent turn in the foreign policy of Yugoslavia.

3. I don't consider this situation as being catastrophic but nevertheless a difficult one, and we, on our part, must avoid any mistake if we do not want, in the end, to endanger our whole position.

4. Therefore, I have already arranged for all necessary measures in order to meet a critical development with necessary military means. The change in the deployment of our troops has been ordered also in Bulgaria. Now I would cordially request you, Duce, not to undertake any further operations in Albania in the course of the next few days. I consider it necessary that you should cover and screen the most important passes from Yugoslavia into Albania with all available force.

These measures should not be considered as designed for a long period of time but as auxiliary measures designed to prevent for at least fourteen days to three weeks a crisis arising.

I also consider it necessary, Duce, that you should reinforce your forces on the Italian-Yugoslav front with all available means and with utmost speed.

5. I also consider it necessary, Duce, that everything which we do and order be shrouded in absolute secrecy and that only personalities who necessarily must be notified, know anything about them. These measures will completely lose their value should they become known.

6. Today I called in the Bulgarian and the Hungarian ministers and outlined to them my thoughts on the situation and, with view to military developments, to arouse their interest by explaining to both of them, the negative and positive effects which would arise for them in this case. Since without the aid of Hungary and Bulgaria, operations, Duce, cannot develop with the swiftness which might be necessary under the circumstances.

If possibly in the course of tomorrow, I will inform you, Duce, more thoroughly about all this.

7. Therefore, General von Rintelen will report to you, Duce, tomorrow if the weather is suitable for flying and will tell you the military dispositions which are being prepared, and which we shall carry out.

Duce, should secrecy be observed as to these measures, then in case action on our part should become necessary, I have no doubt that we will both achieve a success no less than the success in Norway a year ago. This is my unshaken conviction.

Accept my heartfelt and friendly greetings. Yours.

(Signed) Adolf Hitler

End of letter, Bureau of Minister.

With the directive that Ambassador Mackensen transmit this letter tonight to Duce.

Howel 27.3.41 2400

PARTIAL TRANSLATION OF DOCUMENT 1842- PS

Notes on the discussion of the Reich Foreign Minister Von Ribbentrop with the Duce in the presence of Count Ciano as well as the ambassadors von Mackensen and Alfieri, in Rome on the 19th September 1940.

* * * * *

All the same, Germany had won air superiority, and was bombing England, and particularly London, by day and by night, whilst the British were at most sending a few planes over Germany at night, in order to drop bombs there at random. During the day no British plane dared to fly over German territory. Germany, however, was carrying out strong reprisal attacks by day as well as by night. On one occasion the German Luftwaffe had been ready for a large scale attack as early as August. But this attack had to be called off because of bad weather. A really large scale attack had not taken place since, because the Fuehrer wanted to accept the responsibility for this only when it was certain, that such an attack would mean the beginning of England's destruction. Although Germany had merely carried out reprisal bombings from the air, their results for England had already been extraordinarily serious. With a

continuation of these attacks London would be in ruins within a short time. The British armament factories had been seriously affected, and important ports, such as Portland, had been entirely crippled. Moreover, all aerodromes from the South Coast to London had been made unusable.

* * * * *

With regard to Greece and Yugoslavia, the Foreign Minister stressed, that it was exclusively a question of Italian interests, the settling of which was a matter for Italy alone, and in which Italy could be certain of Germany's sympathetic assistance. But it seemed to us to be better not to touch on these problems for the time being, but to concentrate on the destruction of England with all our forces instead. Where Germany was concerned, she was interested in the northern German districts (Norway etc.), and this was acknowledged by the Duce.

* * * * *

The Reich Foreign Minister further announced a statement by the Fuehrer regarding the military part of the Spanish problem, i.e., the conquest of Gibraltar. The Spaniards wanted to conquer Gibraltar by themselves. But so as to prevent any failure, Germany would provide Spain with special troops equipped with special weapons, and a few squadrons of planes. The Fuehrer had carefully examined the Gibraltar problem from the military point of view, and had come to the conclusion, that the conquest of the rock was absolutely possible, but only then, if the Spaniards were to be given assistance.

The Reich Foreign Minister then showed the Duce the German map regarding the Spanish territorial demands, and this was duly noted by the Italian gentlemen. A question which was put to the Duce by the Reich Foreign Minister, showed, that the Spanish ambitions did not clash with Italy's in any way. In this connection the Reich Foreign Minister announced Serrano Suner's intention, also to make a visit to Rome.

On his return to Berlin, he (the Reich Foreign Minister) intended to sign a secret protocol with Serrano Suner, dealing with Spain's entry into the war, as well as the supplying of Spain with the aforementioned materials, recognizing the Spanish ambitions, and providing an attack against Gibraltar as a declaration of war. The protocol would also state, that Spain's entry into the war would be left to the judgment of that country. It had been verbally provided, that Spain would come into the war as soon as Franco had completed his preparations, and particularly after the German special weapons and troops as well as planes had arrived at their destinations in Spain.

TRANSLATION OF DOCUMENT 1850-PS

Filing reference 11 C-2 [in ink]

Subject: Negotiation between Obergruppenfuehrer Krueger, Oberst Karmann, Oberst Lorenz, in the Chambers of the Reich Board of Trustees on 8 July 1933.

Oberst Karmann stated that the Armed Forces had so far maintained no contact whatsoever with the ex-service men. The only contact which the ex-service men have, is the vote of their maintenance at the Reich Ministry of Labor. Oberst Karmann intends to establish an Ex-service men's Association for which membership of the SA is laid down as a condition. Ex-service men wait for about 3 years from the time their active service ends until they obtain a Civil Service post. Roughly estimated, they number about 20,000 men. In addition, approximately 8,000 non-commissioned officers and men are released yearly. The demand for these ex-service men is so great that, for example, Oberst Karmann has difficulty in obtaining personnel for his establishment. Oberst Karmann, however, wishes to send ex-service men compulsorily to the S.A., as soon as this is required by the Chief of Training. As a rule, the ex-service men go where they receive the best pay. Furthermore, Oberst Karmann explained his ideas on the recruitment of non-commissioned officers of the reserve. Forestry and customs officials should, for example, do several years military service

with the Reichswehr. A similar provision should be made for officials of other categories. The settling of the question regarding the disadvantages of ex-service men in the SA, compared to those in the Labor Service has been postponed until a later date. Oberst Karmann mentioned that ex-service men, who were not appointed to good, regularly paid positions in the S.A. would, when they claimed their right to maintenance, be at a great practical disadvantage as regards their financial circumstances by reason of their S.A. service. He would see that there was official compensation for this.

Berlin, 8 July 1933.

131 Fl [ink]
C002167

Confidential
filing reference [in ink]

5 July 33
[ink]

*Discussion with Oberst v.
Vietinghoff, Chief of Armed Forces Division, on Wednesday the
5th July 33.*

1. *Leadership of Reich Youth* [Reichsjugendfuehrung]. The question of the powers of the Head of the Reich Youth in connection with pre-military training.

I state that, by a decision of the Fuehrer, the spheres of duty of the Head of the Reich Youth, the Reich Commissar for Sport and the Chief of Training are sharply defined. I sent a draft to Munich to that effect.

2. *Students*. A discussion is taking place today between Oberst v. Vietinghoff and Gerullis regarding the question of military sports for students. Oberst v. Vietinghoff is of the opinion that these matters also should be placed under the control of the Chief of Training.

I mentioned my preliminary negotiations with Herr Schwab, formerly with the General Armed Forces Office [AWA- Allgemeines Wehrmachtsamt] who, as liaison official on the Staff, was arranging this matter of military sports for students on the right lines.

Oberst v. Vietinghoff believes that the Prussian Ministry of Education and Public Worship, will make certain difficulties and would very much like to take a service-officer into the ministry as technical advisor. He suggested Hauptmann von Bernuth for this purpose.

3. I then gave an extensive outline of Bernuth's duties; he was working out the guiding principles for the training of men and the leaders for the military camps and schools for leaders in accordance with the wishes of the Reich Minister for Defense [Reichswehrministerium] with regard to pre-military training, in addition, however, he should make the technical preparations for weapon-training. Oberst v. Vietinghoff declared himself in agreement.

Hauptmann v. Bernuth is being given a long-term appointment to my staff. 002168 131 F2 [ink]

4. *Labor Service*. Military sports in Labor service camps are suspended for considerations of foreign policy. Dr. Stellbrecht has been to Oberst v. Vietinghoff to inform him that the Labor Service is being organized on the wrong lines.

5. *The Office for Defence Policy* [Wehrpolitisches Amt]. My answer to Oberst v. Vietinghoff's question was that of the "Wehrpolitisches Amt" must not interfere with my sphere of duties and that I considered it advisable to dissolve it.

Oberst v. Vietinghoff is of the opinion that the "Wehrpolitisches Amt" has become superfluous and that all questions relating to military sports should again be decided by the Chief of Training.

6. *The budget*. I drew Oberst von Vietinghoff's attention to the fact that the budget question must find its solution through the S.A., that it was not advisable for the Reich Ministry for

Defence to put the care for the budget on behalf of the Chief of Training, for that might cause difficulties. I drew attention to Oberst v. Reichenau's suggestion and how it would work out.

Oberst v. Reichenau recommends that the budget adviser to the Chief of Training should contact Major Osterkamp, the expert of the Reich Ministry for Defense, who is very experienced in these matters. It would then be easier to get the budget passed by the Reich Ministry for Finance.

I declared myself ready to examine the budget, in conjunction with the Reich Ministry for Defense, as soon as it was decided upon. Furthermore, the Fuehrer's demand in Reichenhall that I should train 250,000 SA men and leaders within a year so that they would be at the disposal of the Reichswehr in case of emergency, is the basis on which I shall act.

In accordance with this demand of Hitler's I should have to examine the possibilities of instructional training and draw up my budget accordingly. Deductions from the budget made by the Reich Ministry would not be allowed.

7. *The Reich Trusteeship.* Oberst v. Vietinghoff asked when I was taking over the Trusteeship of the Reich, to which I answered that I had had a talk with Neuville today and that he had requested me in the course of this discussion to go with him the next morning to Minister Seldte to obtain information regarding the winding-up of affairs.

Oberst v. Vietinghoff considers this step superfluous, and only calculated to cause further delay. I assured him that I was of the same opinion.

8. *Branch Leaders* [Zweigstellenleiter]. I referred to my order to the main groups; it is to be left to them to employ Branch Leaders as Training Inspectors as they are required. If they were not needed, the former Branch Leaders would have to leave their posts.

Berlin, 5 July 1933.

SECRET

Filing Reference 11 C-3 [Ink] Bauen

Discussion with Reich Defense Minister v. Blomberg on 15 July,
0930 hours.

1. My note of 13.7 to General v. Blomberg showed both parties that, in fact, there had been a misunderstanding in the way the budget question was viewed. General v. Blomberg had not been informed that Oberst v. Reichenau had tried to have the budget for the Chief of Training of the S.A. introduced by the Reich Ministry for Defense.

The Fuehrer's statement of 12.7 regarding the basic regulations for pre-military fitness training for youth, which had been shown to him today, had cleared all doubts.

At the last discussion he had merely intended to grant to the Chief of Training from his own special Fund for Training purposes, money which might possibly be refused by the Reich Minister for Finance. He had only wished to offer his services for this purpose, and today agreed with me that the Reich Ministry of the Interior should decide upon the budget for the Chief of Training and put the case before the cabinet.

2. With a view to a practical solution of the budget problems he suggests that a discussion should take place between the Chiefs at the beginning of August, in which the Ministers Frick, Schwerin-Krosigk, and v. Blomberg should take part; he recommended also that I should first have a word with State Secretary Reinhard in the Reich Ministry for Finance to smooth the way.

3. General v. Blomberg had me explain to him the forms of training in the military camps and requested that the very necessary camouflage measures be taken.

4. Relationship of the higher S. A.—Fuehrerkorps to the Reich Ministry for Defense. Berlin, 15.7.33.

Ki/Eg

Berlin, 1 Sept. 1933.

Filing Reference

Subject: Enrollment in the SA of members of the Reichswehr
who are due for release.

for the archives [in ink]

Discussion (1.9. 1933/0936 hours) between *Oberst Hinria* and Hauptmann von Wolf (general section and Armed Forces Section of Reich Ministry of Defense) on the one hand and Stabsfuehrer Waehmann and Adjutant Kiefer on the other.

Oberst Hinria expressed the wishes of the members of the Reichswehr. The latter wish, on entering the SA after their demobilization to receive a rank corresponding to their last appointment. They consider it inadvisable that, *for example* a non-commissioned officer on entering the SA should have, as his superior in rank, a man who was formerly under him.

As opposed to this, Stabsfuehrer Waehmann holds that this idea is contrary to the spirit and the service instructions of the SA, for it is a demand which is particularly stressed in the SA that one should place oneself voluntarily under the orders of another.

With regard to the Unions [Treubuende] the commonly held opinion is voiced that their main purpose was to prevent the members of the Reichswehr due for release from going over to the left. After the assumption of power, since this danger was averted, this purpose will no longer be held good in future. Nevertheless, *Oberst Hinria* advocates their continued existence, for the reasons stated below.

Suggestions for a temporary solution: In future the Reichswehr will presumably only be recruited from members of the S.A.

Thus the men being demobilized, will automatically return to the S.A. Therefore, the solution for this period is simple.

Filing reference [in ink]

131 Gi [in ink]

SECRET

Filing reference

11 C-5 [in ink]

*Discussion with State Secretary Reinhard, Reich Ministry for
Finance on the morning of 18.7*

1. I reported to State Secretary Reinhard on the whole question of the budget for the new sphere of duties assigned to Chief of Training; I also asked that the further payment of the budget funds granted by the Reich Ministry for Finance and belonging to the Reich Trusteeship, since dissolved, should be cleared up for the current financial year.

2. Preliminary examination of the supplementary budget drafted by me for the financial year 33/34 and an additional demand of approximately 25 millions.

State Secretary Reinhard considers it very difficult under the circumstances to carry through the supplementary budget for the current financial year. He was informed that the Reich Ministry for Finance wishes to dispose of the funds granted from the Reich Trusteeship, but on the other hand considers it necessary that the discussion of Chiefs mentioned by General v. Blomberg should take place between the Ministries. Taking the long view, State Secretary Reinhard believes that the estimated budget could still be approved if the unemployment problem were solved in the autumn. This is in his opinion a preliminary condition.

In addition, however, Finance Minister Krosigk had the matter of the budget in his own hands, for he [Reinhard] has to solve all the problems relating to unemployment.

Berlin, 18 July 1933.

[illegible initials] R. [ink]

131 E (1) [in ink]

SECRET

11 C-4 [in ink] Bauen

Filing Reference

Discussion with Ministerial Director Gerullis, Prussian Ministry for Public Worship and Instruction, on 17 and 18.7.33

1. Gerullis is fundamentally of the opinion that all military sports in the colleges and universities should be in the hands of the Chief of Training. He declared himself to be in agreement with my suggestion to take onto my staff as liaison officer a Student Leader who is still to be nominated, (Schwab or Krueger) and who, according to my suggestion, is to be responsible for all training in military sports.

In addition it is necessary for carrying this out further, that the S.A. Leaders etc., at present appointed as instructors in military sport in the Colleges and universities, should once again be summoned to a special course in order to do their training on the new lines. Gerullis suggests Councillor Ministerialrat Haupt, present at today's discussion, as representative for Prussia. [3 illegible words in ink and illegible initials follow]

2. From 1 October, five officers of the General Staff are to be appointed for 3 years to the Universities of Koenigsberg, Breslau, Berlin, Cologne, and Frankfurt-on-Main to teach military tactics, leave of absence being granted for that period.

(Regulars, 5 senior Staff officers for this) [marginal note in pencil]

They will give lectures on military tactics in those universities. On 1 September these gentlemen will be brought to Berlin and will make contact with the Chief of Training. Questions regarding Military Training are to be cleared up with me by these gentlemen. This ruling is the joint decision as mentioned by Oberstleutnant Weissenberger, who also took part in the discussion of the Reich Ministry for Defense and the Prussian Ministry for Public Worship and Education.

3. With regard to the former soldiers of the Reichswehr *now* united in the Unions it was said: The SA has no interest in incorporating the Unions, for all elements who do not believe firmly in the principles of the new ideology, are unwanted. (There is also no power of authority over these unions). *The troop commanders should, however, be guaranteed authoritative influence over the unions in their commands.* They should then see to it that:

1. All those who have hitherto been members of the Unions, who are suitable by reason of their ideology, are incorporated into the S.A.

2. That the members of the Reichswehr due for release in the future continue to join the unions which are under the supervision of the Commanders, but are without exception incorporated into the SA. The necessary foundations for this enrollment are to be laid immediately upon entry into the Reichswehr and also constantly during military service.

Oberst Hinria has also set up for future use the following organization and order of service:

1. SA with preparation for the Reichswehr.
2. Period of service with the Reichswehr.
3. Re-entry into SA after release.

4. Transfer to the S.A. Reserve [SA—Handwehr] after the age of 45.

(Expansion of the Kyffhaeuser Union to form the SA Reserve.)

[illegible pencilled initials]

131 G 2 [in ink]

Personal [in pencil]

Ch 25/4/33 [in ink] [Illegible initials]

11C- 7 [in ink]

5 September 1933.

To the Chief of Naval Command for the attention of
Konteradmiral Dr. N. C. Gross.

Berlin W. 10

Koenigin Augustastrasse 38-42.

K/Kl.

Sir:

I am very much obliged for the dates of the Fleet Maneuvers sent to me at the request of the Chief of Naval Staff [Chf der Marineleitung].

On the 17th inst. I shall go on board in Pillan punctually at 1200 and will take the liberty of reporting in good time when and where, I shall be arriving in Pillan, for before that I shall probably be on a duty visit in East Prussia.

I take this opportunity of expressing a personal wish.

The Chief of Staff, Oberstleutnant Roehm, informed me that he will also be present at the Fleet Maneuvers. I should be very grateful if I could go on board the same cruiser, for I think that particularly with regard to the whole question of the training of Naval-SA units, my presence might be of value. Since the

problems relating to this are my responsibility, it would be a great advantage to me, if the opportunity were offered me, to discuss the question and all its complications with the Chief of Staff. In Nurnberg I took the opportunity of discussing the matter with Korvettenkapitaen Kieseritzky, who is assigned to my staff. Korvettenkapitaen Kieseritzky believes, however, that it is unlikely that my request will be fulfilled on account of the distribution already on hand.

For this reason, Sir, I am again applying directly to you.

Perhaps Korvettenkapitaen Kieseritzky could inform me briefly whether my request can be granted.

Your very faithfully,

Heil Hitler
K. [Krueger]
Obergruppenfuehrer.
C—2177 131 D2 (in ink)

For filing 11C-8

received 31.10.33 Initials [ink]

SECRET

Filing reference

1. The speech delivered by the Fuehrer to the SA leaders on the evening of Tuesday the 17.10, has induced me to bring up for decision by the Chief of Staff, the question, as to whether it is right that the SA training in the Army of the Reich should be continued. In the clearly expressed declaration of the Fuehrer there might be lost a suggestion of apprehension, if we trained the SA in the Reichswehr; informers and spies might have the opportunity of passing information regarding that training to our foreign political opponents.

The Chief of Staff intends to decide this question before the Gruppenfuehrer at the Gruppenfuehrer discussion on 23.10, while I am commissioned to discuss the decision intended at the Reich Ministry for Defense. If the Reich Minister for Defense assumes complete responsibility for the resulting consequences, the Chief of Staff agrees to the training of the SA in the army.

I informed Hauptmann von Dernuth on 18.10 of this wish of the Chief of Staff, with the request that he would inform Oberst von Reichenau to that effect, and obtain the decision of the Reich Minister for Defense.

On 19.10, 1100 hours, Oberst von Reichenau asked me to attend a discussion during which this question was approached again. Oberst von Reichenau drew attention to the fact that, to reject the training of the SA in the Army of the Reich, by this decision of the Chief of Staff, would mean that the training by special courses would also be a thing of the past and also the entire training in frontier-guard duties would be rendered impossible. I replied that, with regard to the questions of frontier protection, no conversation had taken place between the Chief of Staff and myself. This point would therefore need special consideration.

C002177/1 P.T.O.

Filing reference [in ink]

The Chief of Staff is placing the decision with the Reich Minister for Defense, who, for his part, bears the responsibility for the training of the SA in the Army of the Reich.

The clearly-expressed speech of the Fuehrer on 17.10 caused the Chief of Staff to clear up the question of responsibility in such a way as to leave no room for doubt; for this reason it was absolutely necessary that the Reich Minister for Defense should make inquiries of the Chancellor.

If the Reich Minister for Defense assumed full and complete responsibility for the training in the Army of the Reich, the Chief of Staff saw no reason to cease training the SA in the Army.

II. Oberst von Reichenau showed me the letter written by Obergruppenfuehrer von Jagow to the Reich Minister for Defense by way of reply to the complaint made by the Reich Minister for Defense regarding Obergruppenfuehrer von Jagow.

Since it was possible to misinterpret the wording of von Jagow's letter, I repeated to Oberst von Reichenau the remarks I had made to Jagow, which the Reich Minister for Defense made in my presence. It appeared that Obergruppenfuehrer von Jagow had had the opportunity on the occasion of his visit to Berlin on 17.10, to speak to Korvettenkapitaen von Langsdorff at the Reich Defense Ministry on the suspension of weapon training in the SA camps. A remark made by Jagow on this subject, which was quite unimportant and only reached Minister von Blomberg in the course of a report, was the reason for Minister von Blomberg's complaint regarding Obergruppenfuehrer von Jagow.

Oberst von Reichenau remarked that there had been a misunderstanding on the part of the Reich Minister for Defense and, after examining the facts, he was of the opinion that the complaint made by the Reich Minister for Defense about Obergruppenfuehrer von Jagow, which was reported by word of mouth to Obergruppenfuehrer Krueger had been unnecessary.

C002178/1

Reich Minister for Defense von Blomberg would now feel induced to write to Jagow.

III. Discussion regarding the appointment of personnel to the Reich Ministry for Defense.

IV. Discussion about the case of von Reichenau, von Obernity, and Gruppenfuehrer Franken. It so happened that, through Hauptmann Fenchtlinger, Nurnberg, a conversation between

himself and Gruppenfuehrer von Obernity has come to the knowledge of the ministry.

Oberst von Reichenau is very anxious that this misunderstanding should be removed. He will therefore write a personal letter to Gruppenfuehrer von Obernity.

Berlin, 19 October 1933.

/s/ Ringen.
C002179/1

PARTIAL TRANSLATION OF DOCUMENT 1851- PS

THE NEW GERMANY SPEAKS HERE

Book 11, Reichsfuehrer SS HEINRICH HIMMLER.

The Security Squadron as an Anti-Bolshevist Battle
Organization. 1936.

Central Publishing House of the NSDAP., Franz Eher, Succ.
Munich

OBEDIENCE.

* * * * *

[Page 23, line 31 to page 24, line 27]

The fourth directive and virtue, which applies to us, is that of obedience; of obedience, which arises unconditionally through the highest spontaneity, through the service to our ideology [Weltanschauung], which is ready to make every necessary sacrifice of pride, superficial honors and of everything, which is dear and valuable to us; of obedience, not hesitating once, but following every order, which is given by the Fuehrer, or has lawfully been given by one of the superiors; the virtue of obedience, which keeps silent even during the time of the political fight, when the will of freedom believes to have to rise indignantly, which, with wide-awake senses and with strict attention toward the enemy, does not raise a finger, which also

obeys unconditionally, and goes over to the attack, even if it should believe, in its heart, that it cannot conquer.

We are so honest, that we do not claim about ourselves, that all these laws are understood by the very last man, and in their last deepest sense. But we believe to be able to claim, that now for six years, the SS has generally assembled according to these directives, was organized and lives according to them. We know, that year for year, we will accept more of these virtues, and that they will more and more become the natural property of every SS man. We are convinced, when fate determines sooner or later, that as the first generation of the SS, we are no more, then we can hand down these virtues as a full heritage, as the best tradition to those, who are SS men after us.

* * * * *

[Page 28, line 17 to page 29, line 9]

BLOOD and SOIL

I, as Reichsfuehrer SS, who am myself a peasant according to ancestry, blood and being, would like to state this second fact in front of you, German peasants: The idea of blood, advocated by the SS from the beginning would be condemned, if it were not tied eternally with the conviction about the value and holiness of the soil. From the beginning, the Race and Settlement Main Office [Rasse- und Siedlungs-Hauptamt], has incorporated the term "Blood and Soil" in its name, although with different words, but in the same meaning. I can assure you, that it is not a coincidence, that the Reich Leader of Peasants [Reichsbauernfuehrer des Deutschen Reiches] has belonged to the SS as a leader for years, and that he, as a SS Lt. Gen. is Chief of its Race and Settlement Main Office, as much as it is no coincidence, that I am a peasant, and belong to the Reich Council of Peasants [Reichsbauernrat]. Peasants and SS men both do not belong to those kind of men, who speak superfluously many kind and friendly words. But let it be said here clearly and plainly, as it was until now, so it should be according to our will in the future. Wherever Adolf Hitler's

peasants stand, they shall always have the SS at their side as their most faithful friend, just as we know, that wherever Adolf Hitler's SS stands, it will have at its side the German peasant as its best friend and comrade. That is how it is today, and that is how it will be forever.

[Page 29]

I know that there are some people in Germany who become sick when they see these black coats; we understand the reason for this and do not expect that we shall be loved by too many. All those who love Germany close at heart will and shall respect us; those who shall fear us, in any way or at any time, must have a bad conscience toward the Fuehrer and the nation. For these persons we have established an organization called Security Service, and likewise, we the SS, place the men for the service in the Secret State Police. We shall unremittingly fulfill our task, the guaranty of the security of Germany from the interior, just as the Wehrmacht guarantees the safety of the honor, the greatness, and the peace of the Reich from the exterior. We shall take care that never again in Germany, the heart of Europe, will the Jewish-Bolshevistic revolution of sub-humans be able to be kindled either from within or through emissaries from without. Without pity we shall be a merciless sword of justice for all those forces whose existence and activity we know on the day of the slightest attempt, may it be today, may it be in decades or may it be in centuries.

* * * * *

[Page 31]

Every one of us knows, that he does not stand alone, but that this tremendous force of two hundred thousand men, who are bound together by oath, gives him unmeasurable strength, and he knows as well, that he, as a representative of the black corps, must do honor to this community by his best performance at his place. Thus we assemble and march according to unalterable laws as a national socialist, soldierly order of distinctly Nordic men, and as a sworn community, of its clans, on our way into a

far future, and we wish and believe, that we do not only want to be the descendants who fought it out better, but above that the ancestors of later generations, necessary for the eternal life of the German, Germanic people.

PARTIAL TRANSLATION OF DOCUMENT 1852-PS

“THE GERMAN POLICE” by Dr. Werner Best, Pp. 14-20 1940 edition.

III. LAW. The conception and formation of “police” law, which governs the duties and activities of the “police” in detail, is based on the conception of the law and its formation in general.

1. Law. a. The personal-human (individual-human) conception of law.

For the personal-human (individual-human) conception, “law” is only that law laid down by those who are concerned with the validity of the law or those commissioned by them, in accordance with the rules of the fundamental law—the “constitution”—or a legal decree based on law, whereas the administrative decree which governs the actions of the authorities is not regarded as law. Every action which is not based upon the law and does not come within its framework, is wrong and illegal, insofar as it concerns individual men, because their agreement to such action cannot be stated or supposed.

b. The people’s conception of “Law”.

According to the people’s conception, law is every rule which fulfills the unity of the people’s “organs”—organizations and individuals—and which is sanctioned or approved by the leaders. There is, therefore, no difference between stronger and weaker “rules”, between “constitutional Law” and “common law”, between “law”, “orders” and “decrees”, between “public” and “private” law. The will of the leaders, in whatever form it is expressed whether through law, order, decree, single order or collective order, regulation of an organization or regulation of

competence, etc., administers law and alters all theretofore valid law.

2. “Police” law. There is no written “Police” law of the German Reich, which rules the duties and activities of the Police (actual “Police” law).

The only government ruling, in which the “police duties” are mentioned, without any more detailed specification, is in the Fuehrer’s and Reich Chancellor’s decree concerning the appointment of the Chief of the German Police and Reich Ministry of the Interior, dated 17th June 1936 (Reichsgesetzblatt I, p. 487):

For the unification of the police duties in the Reich, a chief of German Police of the Reichs Ministry of the Interior is appointed who will be commissioned with the leadership and organization of all police matters in the administrative sphere of the Imperial and Prussian Ministry of the Interior.

The contents of the “police duties”, which in this are specifically recognized by the leader as special State duties, must be gathered from the written and unwritten “law”, through which the action of the police is at present determined.

a. The written “police” law.

Written “police” law, which governs the duties and activities of the “police” exists at present only as common law of the individual German states. As an example, the Prussian Police Administration Law of 1.6.1931 (Prussian Law Manual, p. 77) is referred to.

The extent to which this written law can still be regarded as valid, evolves upon two points of view, insofar as differences of common law definitions can be established, firstly, to exercise duties uniformly in the German Reich, different rules in different districts cannot be recognized; secondly, in differences of common law, the laws drawn up by the national socialist

regime take precedence over the laws of earlier times which are still valid.

The most important national socialist ruling on duties for a part of the “police” is contained in the Prussian Law of 10.2.1936 (Prussian Law Manual, p. 21) about the Secret State Police. Clause 1 of this law reads:

The Secret State Police has the task of investigating and combatting all activity dangerous to the state within the whole territory of the state, of collecting and evaluating the results of the investigations, of giving information to the government of the state, of keeping other authorities posted as to facts important for them, and of supplying them with suggestions. The Chief of the Secret State Police in agreement with the Minister of the Interior decides what individual matters come within the sphere of the Secret State Police.

The sphere of competence of the organs of the ordinary administration of justice remains unaffected.

Thus the “police” task for a branch of the “police” has been defined according to the law of the land, in such a way that it conforms to the task which forms the basis of the people’s conception of “police”: the safeguarding of national order against disturbance and destruction.

The decree for the protection of people and state of 28.2.1933 (Reich Law Publication I p. 83) is to be regarded not as “police” law, i.e. as the direction of police duties and activity, but as the expression of the changed conception of “state” after the national socialist revolution, out of which arose the new conception of “police”. Paragraph 1 of this decree reads:

The articles 114, 115, 117, 118, 123, 124 and 153 of the constitution of the German Reich are annulled until further notice. Therefore restrictions as regards personal freedom, the right of free expression of

opinion including freedom of the Press, the right of forming unions and holding meetings, infringements on the secrecy of letter, post, telegraph and telephone communications, orders for house-searches and confiscation of property, as well as restrictions on property, even beyond the limits already fixed by law, are admissible.

By means of this legal statement it was formally made clear at the very moment of the revolution, that individual decisions of the law valid until then, even of constitutional law, are no longer to be used, as they are incompatible with the new conception of “state”; since that time countless other legal decisions of the past—even those of constitutional law—have been regarded as being no longer applicable without formal repeal or annulment, because they are no longer compatible with the new constitution of the state. The decree of 28.2.1933 for the protection of people and state was not a “legal foundation”, i.e. a statement of their duties and their activity, but only the confirmation of the fact that the duties which they had already begun to undertake were in accordance with the will of the highest governing body to set things right.

Both the second clause of the law of 18.3.1938 (Reich Law Publication I p. 262) dealing with the reunification of Austria and the German Reich and the third clause of the decree of the Fuehrer and Reich Chancellor of 22.10.1938 (Reich Law Publication I p. 1453) dealing with the administration of the Sudeten-German territories, served as the desired formal clarification, in the territories newly acquired by the Reich, that the restrictive legal decisions of the past must not stand in the way of the fulfilling by the “police” of their duties in Reich territory. The first paragraph of both these clauses is practically identical and reads:

The Reichsfuehrer SS and Chief of the German Police in the Reich Ministry of the Interior can take the necessary measures for the maintenance of security and order (in the decree of 22.10.1938: administrative

measures) even beyond the legal limits otherwise laid down for this purpose.

b. The unwritten “Police” law.

Not only the legal regulations drawn up by the national socialist regime, but also the whole activity of the German police since the year 1933 sanctioned by the highest governing body of the Reich—and partly on its sole instructions—as well as the rearrangement of the “police” regulations, show that the duty of the “police” is conceived by the government in the sense represented here, and that any other conception of the duty of the “police” can no longer be valid.

Thus all legal definitions which are at odds with this must be considered as altered in the sense of this new conception, without formal cancellation or alteration of the individual earlier laws. For the making of laws as a result of popular “voices” working together, of actively operating organizations and of “actively” or “passively” cooperating individuals, for the fulfilling of a definite task—here the task of the “police”—must not be contradictory in itself, or only because an individual law drawn up at an earlier date has not been formally altered, and to which laws at variance with the will of the government remain tied. At an early date this conception became evident in the administration of justice of individual German High Administrative Courts. The High Administrative Court of Saxony has already explained in a decision of 18.1.1935 (published in the Reich Administrative Publication of 1935, p. 117 ff.):

According to it (the national socialist conception of state and law), law is not the sum total of the single regulations expressly laid down by the legislator. Legislation is rather only the expression of the ideas of right which are rooted in the people. Not legislation but these ideas of law (“conceptions of right”), according to which laws are formed in steady development, represent “law” * * * In this sense,

“law” as common law, i.e. as the orderly way in which the people lives as a community, is recognized as taking precedence over the statutes themselves.

This means that the orderly or regular way in which the people fulfills the “police” task through its “voices”—organizations and individuals—is “police” law, which takes precedence over statutory law, insofar as this does not reproduce the contents of the “police” law which is valid at the time but which belongs to an earlier date and has meanwhile been altered.

The unwritten “police” law, i.e. law which is not laid down in statutory form, by means of which all “police” action is determined, does not however consist of mere “ideas of law” which are “rooted in the people”, but of many sorts of regulations which in different forms—law, order, decree, single command, general command, organizational and competence regulations, etc.—were laid down by the highest governing body of the Reich or with its sanction. The “police” never acts in a lawless or illegal manner so long as it acts according to the rules laid down by its superiors—up to the highest governing body. The High Administrative Court of Hamburg rightly states in its judgment of 19.11.1937 (published in the *Juristischen Wochenschrift* 1937, p. 3335 f.):

According to its nature, the police must only deal with what the government wants to know is being dealt with.

What the “government” wants to know is being “dealt with” by the police is the essence of “police” law, and is that which guides and restricts the actions of the police. As long as the “police” carries out the will of the government, it is acting legally; should it overstep the will of the government, then it is no longer a matter of “police” action, but it is a case of a breach of duty by a member of the police.

Whether the will of the government lays down the “right” rules, i.e. those possible and necessary for police action—thus the “police” law suitable for and beneficial to the people—is no

longer a question of law, but a question of fate. For actual misuse of the “right-to-put-right” on the part of a people’s government, whether it consist of harmful severity or of harmful weakness, will be punished more surely before history by fate itself with misfortune and overthrow and ruin, because of the violation of the “laws of life”, than by a State Court of Justice.

[Pages 38-39]:

As the intelligence service of the German National Socialist Labor Party, the Security Service has first of all the task of investigating and keeping a watch over all forces, events and facts which are of importance for the domination of the National Socialist idea and movement in German territory. With this task follows that duty laid down by the Reich Minister of the Interior—the duty of supporting the Security Police—which is fulfilled, so far as it goes, under State orders. In support of the task of the Security Police in securing the ranks of the German people against interference and destruction of any kind, the Security Service has to watch over every sphere of life of the German people with regard to the activities of inimical forces and the result of state and political measures, and to inform continually the competent State authorities and offices about the facts which have come to light. Finally, it has to investigate politically and explore fundamentally the activities and connections of the great ideological arch-enemy of National Socialism and the German people, in order thereby to render possible a purposeful and effective fight against it.

TRANSLATION OF DOCUMENT 1855-PS

ORGANIZATION BOOK OF NSDAP, Page 418.

Bravery is valued by the SS man as the highest virtue of men in a struggle for his ideology.

He openly and unrelentingly fights the most dangerous enemies of the State: Jews, Free Masons, Jesuits, and political clergymen.

However, by his example, he recruits and convinces the weak and inconstant, who have not been able to bring themselves to the National Socialistic ideology.

PARTIAL TRANSLATION OF DOCUMENT 1856-PS

HERMANN GOERING, SPEECHES AND ESSAYS.

Edited by Dr. Erich Gritzbach, Third Edition. Published by
Central Publishing House of the NSDAP Franz Eher Successor,
Muenchen. (1939)

* * * * *

Excerpt from speech entitled: “We Bear the Responsibility”,
delivered at an NSDAP demonstration on 3 March 1933, at
Frankfurt am Main [page 27]:

Fellow Germans, my measures will not be crippled by any judicial thinking. My measures will not be crippled by any bureaucracy. Here I don't have to give Justice, my mission is only to destroy and exterminate, nothing more! This struggle, fellow Germans, will be a struggle against chaos and such a struggle I shall not conduct with the power of any police. A bourgeoisie state might have done that. Certainly, I shall use the power of the state and the police to the utmost my dear Communists, so that you won't draw any false conclusions but the struggle to the death, in which my fist will grasp your necks, I shall lead with those down there,—those are the brown shirts.

TRANSLATION OF DOCUMENT 1857-PS

VOELKISCHER BEOBACHTER, 26 July 1934 p.I.

The Fuehrer elevates the SS to a standing of an Independent
Organization.

Munich, 25 July

The Reich Press Office announces the following order of the Fuehrer:

In consideration of the very meritorious service of the SS, especially in connection with the events of 30 June 1934, I elevate it to the standing of an independent organization within the NSDAP. The Reichsfuehrer SS, like the Chief of Staff, is therefore directly subordinate to the highest SS fuehrer. The Chief of Staff and the Reichsfuehrer SS are both invested with the party rank of Reichsleiter.

Munich, 20 July 1934.

/s/ Adolf Hitler.

PARTIAL TRANSLATION OF DOCUMENT 1861- PS

1934 REICHSGESETZBLATT, PART I, PAGE 45

Law Regulating National Labor of 20 January 1934

The Government of the Reich has decided to enact the following law which is hereby made public:

SECTION I

The Leader of the enterprise and the board of employee representatives.

Paragraph 1

The entrepreneur works in the factory as leader of the enterprise together with the employees and the workers who constitute his followers for the furtherance of the aims of the enterprise and for the common benefit of people and state.

Paragraph 2

1. The leader of the enterprise makes the decisions for the employees and laborers in all matters concerning the enterprise, as far as they are regulated by this law.

2. He is responsible for the well-being of the employees and laborers. The employees and laborers owe him faithfulness according to the principles of the factory community.

Paragraph 3

1. In the case of legal persons and personal groups the legal representatives will be the leaders of the enterprises.

2. The entrepreneur or in the case of legal persons or personal groups, the legal representatives can appoint a person who participates in the management of the enterprise in a responsible capacity as their deputy. This must be done if they do not direct the enterprise themselves. In matters of lesser importance they can also appoint another person.

3. Should the court of honor legally deprive the leader of the enterprise of his qualifications to be a leader, then a new entrepreneur must be appointed.

Paragraph 4

1. Administrations are also considered as enterprises in the sense of this law.

2. Subordinate enterprises and parts of the enterprise which are connected with the main enterprise through common direction will only be considered as independent enterprises if they are situated far away from the main enterprise.

3. The regulations of this law, with the exception of paragraphs 32 and 33, do not apply to Ships, Inland navigation and Air-transport and their crews.

Paragraph 5

1. Representatives recruited from the employees and laborers act in an advisory capacity to the leader of an enterprise with, in the rule, at least 20 employees. They constitute with the leader and under his direction the board of representatives of the enterprise.

2. To the employees and laborers in the sense of the regulations concerning the board of representatives belong also the persons

who do piece work at home, who work mainly for the same enterprise either alone or with their families.

Paragraph 6

1. It is the duty of the board of representatives to increase the mutual confidence within the enterprise-community.
2. It is the task of the board of representatives to discuss all measures concerning the improvement of the output, the form and execution of the general labor conditions, especially the enterprise regulations, the execution and the improvement of enterprise-protection, the strengthening of the ties between the members of the enterprise among themselves and toward the enterprise as well as the welfare of all the members of the community. It is furthermore their task to liquidate all quarrels within the enterprise-community. They must also be heard prior to the determination of punishment for violation of the plant-rules.
3. The board of representatives can charge certain representatives with the execution of certain of its tasks.

Paragraph 7

(1) The number of representatives is as follows:

in enterprises with	20- 49 employees	2
in enterprises with	50- 99 employees	3
in enterprises with	100-199 employees	4
in enterprises with	200-399 employees	5

(2) These numbers are increased by one representative for each 300 supplementary employees until they reach the maximum of ten representatives.

(3) An equal number of deputies shall be designated.

(4) Employees, workers and those who do piece work at home are to be considered in the choice of trustees.

The Chancellor of the Reich
Adolf Hitler

The Reich Minister of Labor
Franz Seldte

The Reich Minister of Economic Affairs
Dr. Schmitt

The Reich Minister of Justice
Dr. Guertner

The Reich Minister of Finance
Graf Schwerin von Krosigk

The Reich Minister of Interior
Frick

TRANSLATION OF DOCUMENT 1862-PS

1936 REICHSGESETZBLATT, PART I, PAGE 887

Ordinance for the Execution of the Four Year Plan of 18 October
1936.

The realization of the new Four Year Plan—announced by me at the Party Congress of Honor—requires homogeneous leadership of all forces in the German nation and the strict coordination of all competent authorities in Party and State.

The execution of the Four Year Plan, I intrust to Minister-President General Goering.

Minister-President General Goering shall take all steps necessary for the execution of the task put before him; he is authorized to issue decrees of ordinances and general administrative directives. He is empowered to receive reports from all governmental agencies, including the highest agencies of the Reich and from all Party offices, their departments and attached organizations—and issue orders to them.

Berchtesgaden, 18 Oct 36

The Fuehrer and Chancellor of the Reich
Adolf Hitler

TRANSLATION OF DOCUMENT 1866-PS

Record of the conversation between the Reich Foreign Minister and the Duce in the Palazzo Venezia on the 13th May 1941, in the presence of Count Ciano.

To begin with the Reich Foreign Minister conveyed the Fuehrer's greetings to the Duce.

He would shortly propose to the Duce a date for the planned meeting, which he would like to take place as soon as possible. As the place for the meeting he would probably prefer the Brenner. At the present moment he was, as the Duce well understood, still busy with the Hess affair and with a few military matters, but could be at his disposal after that for a meeting.

The Duce replied that he would agree with all the Fuehrer's proposals concerning the place and date of this meeting. That he was prepared to go to Germany, to meet him at the Brenner, or to arrange for the conversation to take place anywhere else in Italy.

The Reich Foreign Minister then said that the Fuehrer had sent him to the Duce, in order to inform him about the Hess affair and the conversation with Admiral Darlan about the Hess affair. He remarked that the Fuehrer had been completely taken aback by Hess' action, and that it had been the action of a lunatic.

Hess had been suffering for a long time from a bilious complaint and had fallen into the hands of magnetists and nature cure doctors who allowed his state of health to become worse.

All these matters were being investigated at the moment as well as the responsibility of the aides-de-camp who had known about Hess' forbidden flights. Hess had for weeks carried out secret

practice flights in a M.E. 110. Naturally he had acted only from idealistic motives. His being unfaithful to the Fuehrer was utterly out of the question. His conduct had to be explained by a kind of mysticism and a state of mind caused by his illness.

The Reich Minister went on to say that Hess was undoubtedly convinced that England was facing imminent defeat, but that the English could not take the step of drawing the necessary conclusions.

Being sympathetically inclined towards England Hess had conceived the crazy idea of using Great Britain's Fascist circles to persuade the British to give in. He had explained all this in a long and confused letter to the Fuehrer. When this letter reached the Fuehrer, Hess was already in England. It was hoped in Germany that he would perhaps have an accident on the way, but he was now really in England and had tried to contact the former Marquis of Clydesdale, the present Duke of Hamilton. Hess quite wrongly considered him as a great friend of Germany and had flown to the neighbourhood of his castle in Scotland. He had thus carried out his plan at the risk of his life. The Fuehrer who was naturally and personally deeply stricken by these events, took up a very severe attitude under the circumstances, demoted Hess immediately and stated that he would have Hess shot immediately if he returned to Germany. The investigation of the event was continuing, but it was quite clear that Hess had not acted out of lack of faithfulness towards the Fuehrer.

The Duce replied that he was also of the opinion that Hess was no traitor. From the political point of view he did not consider the results of his action serious. He was wondering what Hess intended to say in England. It was said that his first words after being found were to the effect that he had always had a great sympathy for England.

Without failing to see that the psychological results of Hess' flight were not slight, one could nevertheless say that the prosecution of the war and public opinion in the Axis countries

remained untouched by it. In 3 or 4 days the whole affair would gradually subside. The question arose as to whether anyone in Germany knew about Hess' attitude to England, and whether Hess had perhaps wanted to save England.

The Reich Foreign Minister remarked here that in Germany Hess had had supporters mainly among the * * * [illegible] party members, but that now every German was wondering how it was possible that Hess could have done such a thing. The Fuehrer would want first to see in what way enemy propaganda would make use of this affair. Considering England's morale and its situation, Churchill could naturally not use Hess' peace idea as propaganda material; this would immediately cause trouble among his own people. The British would probably rather direct their propaganda tactics towards making out that they regarded the whole event as a sign of discord and internal division and as an outcome of an allegedly difficult position of the Reich, and would also maintain that Germany would now no doubt have to make peace soon. If it should be necessary, the Fuehrer would carry out an energetic counter-attack against this propaganda and would, if necessary, summon the Reichstag, in order to clarify the whole situation there.

The Duce repeated his unworried view of the affair and remarked that to him also it seemed best that the whole truth should be told about the whole affair.

Going on to the matter of the talks with Admiral Darlan, the Reich Foreign Minister explained to the Duce that two subjects especially had been discussed:

1. the assistance which France could give in Syria for the support of Iraq, and
2. the facilities she could provide for German-Italian supplies to North Africa.

Darlan had agreed to deliver to Iraq certain quantities of arms and war materials out of the stocks stored in Syria under Italian control. Part of these arms would, no doubt, already be on their

way to Iraq. Ambassador Rahn and a French official had flown to Syria and had submitted a directive of the Vichy Government to the local Government Commissioner, General Deuz, according to which he was to provide all the deliveries and other facilities recommended by the two delegates. Darlan had, furthermore, put landing places for German aircraft and stocks of petrol at their disposal.

At the same time, Ambassador von Papen had been recalled to Germany and been instructed, as he, the Reich Foreign Minister, could inform the Duce confidentially, to endeavour to obtain from the Turks permission for the secret passage of arms for Iraq through Turkish territory.

According to the impression he left, Darlan would certainly do all that was possible to help the Axis. Although, of course, one could not look into his heart, he yet definitely appeared to be an enemy of the English.

Should a large-scale transport of arms reach Iraq it would be possible to move airborne troops into the regions, who could then advance against the British with the material found there and who could, under certain circumstances, attack Egypt from the East from Iraq.

The Duce stated his point of view on the Iraq question:

1. One must definitely help Iraq, as a new front against the British would be created in this way and the indignation, not only of the Arabs, but also of the great number of Moslems would be aroused. Already the Grand Mufti had summoned the Arabs of the world to a holy war against England. In answer to an interpellation by the German Foreign Minister, the Duce declared that he ascribed a certain importance to these events in any case.

2. It would be necessary to get possession of Crete and Cyprus (the “anteroom” of Syria). If one could then obtain, from the French, permission to land troops and planes in Syria, the Axis powers help to Iraq could be very substantial. The Italians had

already prepared five planes, which would proceed to Baghdad via Rhodes, in order to transport their 400 machine-guns, as well as 20 anti-tank guns. In addition, 12 fighter planes were ready for action.

Should the passage of arms through Turkey prove impossible, one would have to march against England from Syria. The great advantage here lay in the 100 km stretch of desert which had to be overcome in the event of an attack on Egypt from Syria, as compared with the 500 km stretch of desert in the case of an attack on Egypt from the West.

In answer to an interpolation by the Reich Foreign Minister as to how long Iraq would be able to hold out against the British, the Duce replied that the Head of the Iraq Government had declared that he could hold his own against the British, provided only he received some war material. If, however, he received no aid, opposition would, in the Duce's opinion, be overcome by the British in 3 or 4 weeks. He was also wondering whether the de Gaullist movement in Syria would not perhaps put difficulties in the way of French assistance. The Reich Foreign Minister replied to that that Darlan appeared convinced that he could carry out the business in Syria as planned.

With regard to Tunis, the Reich Foreign Minister, reported on the purchase of lorries and the recent concession that these lorries could be sent to Tripolitania with freight. Darlan had agreed to place an Algerian harbour, Baume, at their disposal for the unloading of the materials transported by sea, (as these things could be carried out more easily in Algeria than in Tunis). The Reich Foreign Minister also mentioned, in this connection, that Darlan had told him that he would like it, for personal reasons, if lorries were sold to Germany only. Should Italy wish to obtain such vehicles from the French, he proposed that the sale should first take place to Germany, and that the trucks should then be given by the Reich to Italy. The Duce and Count Ciano agreed to this procedure.

In reply to the Duce's question as to what Germany had conceded to France in exchange for these concessions, the Reich Foreign Minister pointed to the lowering of the occupation costs from 20 to 15 millions which, although it had not yet been definitely fixed, was expected, as well as to certain facilities with the regard to the Line of Demarcation. Further the rearming of some torpedo boats.

The Fuehrer had laid down as a principle that France could be granted facilities to the extent to which she on her part made the war against England for the Axis easier.

The Reich Foreign Minister answered the Duce's question as to whether concessions had been made regarding French prisoners of war in the negative and mentioned that the Fuehrer had first of all reminded Darlan of how the German prisoners of war had only been released in the year 1920, when the World War had already been over a long time.

The Reich Foreign Minister further pointed out that he had suggested to Darlan that if France should now grant facilities for the continuation of the war against England, such an attitude would be taken into account when the peace was signed. Furthermore he had stressed to Darlan the necessity that France choose now, and place herself unambiguously on the side of the Axis. Germany had certain wishes concerning naval bases in Morocco for the maintenance of her submarines and surface vessels. If France agreed to that, she (Germany) would allow her some destroyers to arm, as she had long requested to do. Beyond this, Germany did not, for one moment, anticipate assistance from France on a larger scale, just as she did not expect the possible assistance of the French Fleet against England.

It had been made clear to Darlan that in future the Axis powers would be the decisive centre of power in Europe and that France would have to toe the line in this respect.

It was also pointed out that France must, of course, count on having to make concessions in the Mediterranean in the peace treaty; the Italian demands were indeed known to them. She

might, however, receive compensation for the concessions elsewhere, e.g. in Africa, at the expense of England.

In a private *tete-a-tete* conversation, Darlan declared to the Reich Foreign Minister that he wished to assist the Axis powers against England under all circumstances, after the Reich Foreign Minister had analysed to him the three possibilities which offered themselves to France, namely, that France could either work against Germany, in which event she would be destroyed, or she could adopt a waiting attitude, which, however, would also be to her detriment. Finally she could give clear evidence of her will to cooperate with the Axis, and would then receive an honourable position amongst the peoples of Europe.

The Duce replied that there were two camps in France, those who wanted to wait, and those who were in favour of collaboration. When the Yugoslav campaign began, people in France had hoped that it would end unfavourably for the Axis. The opinion of French politicians was beginning to waver. Typical of the trend of public opinion was the fact, that in those days the monument of King Alexander of Yugoslavia in France had been decked with flowers by the population. But when the French saw how quickly Germany was victorious in the Balkans, they immediately turned round towards collaboration again. In Vichy the majority belonged to the camp that wanted to await events. Count Ciano here added that the only difference between Vichy and Paris was that in Paris people were saying: "Let us hope the British win," whilst in Vichy people were saying, "Let us hope those British swine win". To this the Reich Foreign Minister added, that of course chauvinists continued to exist in France and would have to be weeded out according to a plan yet to be laid down. In his opinion Pétain was an old fox, whose memory deserted him just at the moments when it best suited him. A few days before, and in connection with the invitation to Admiral Darlan to come to the Berghof [Hitler's residence in Berchtesgaden], he had written a letter to the Fuehrer, which factually contained nothing of importance, but which nevertheless indicated that in France people were

gradually becoming more and more certain that the war was finally lost. It was the Fuehrer's opinion that final victory against England must under all circumstances be achieved. For this purpose he wanted to obtain from France a maximum of facilities, without in any way binding himself. The French questions would be dealt with on this basis, and it would now have to be seen how far Darlan was prepared to go along this road. But, as already stated, France would only be granted concessions in proportion to facilities for the battle against England. When the French would participate on a large scale in the battle against England was still undecided.

To this the Duce remarked that France could give many small, but very important bases to the Axis. In this connection he stressed the fact that France always drew closer to the Axis when the Axis gained a victory. But as soon as things were not making any proper headway, she made eyes at England and the United States. The latter, particularly, would have to be watched closely in this connection. The Reich Foreign Minister agreed with this and remarked that if France was to attach herself in any way to the Axis organization, this fact would make a deep impression on the United States.

The Duce agreed with this conception, and referred in this connection to the policy, expressed by the Fuehrer, of the unity of all Europe against England. Russia and Spain were alone absent from this united front. Serrano Suner had actually stated that Spain would march after this year's harvest. But this seemed to him to be extremely doubtful. To this the Reich Foreign Minister remarked that at the beginning of this year Franco had unfortunately left the Axis completely in the lurch. This he had to note with regret again and again. If he had cooperated at that time, Gibraltar would today not be in the hands of the British, and the Spanish people would probably have far more to eat than now, when alms from England and America could not save them either.

The Duce returned to his remark concerning the united front of Europe against England and the two countries, Spain and

Russia, that were absent from it, with the remark that, to him, it seemed that it would be advantageous if a policy of collaboration with Russia could be carried out. He asked the Reich Foreign Minister whether Germany excluded such a possibility, i.e. collaboration with Russia. The Reich Foreign Minister replied that Germany had treaties with Russia, and that the relations between the two countries were in other respects correct. He personally did not believe that Stalin would undertake anything against Germany. But should he do so, or should he carry out a policy that was intolerable to Germany, then he would be destroyed within 3 months.—The Duce agreed to this.—The Fuehrer would certainly not look for any quarrel, but he had nevertheless taken precautions for all eventualities. He had in no way come to any decision, but as a result of certain occurrences and want of clearness on the part of the Russians, he had become suspicious. Thus, for example, the Russians had strengthened their forces along their western Frontier, which of course caused Germany to reinforce her troops too, but only after the Russians started it.

But Russia would never be a problem that could have any influence on the final victory against England. She would never be able to interfere with Germany, for Germany had such a large number of troops available that she could easily deal with any eventuality.

The Duce then enquired whether Germany was not receiving deliveries of raw materials from Russia, whereupon the Reich Foreign minister mentioned the figures 1 million tons of oil and 1½ million tons of corn, and added that these deliveries were coming in relatively well.

During the further course of the conversation, the subject of Japan, and in particular the Japanese-American exchange of opinions, was touched upon. In this connection the Reich Foreign Minister stressed the fact that the principle that Japan shared a common destiny with Germany and Italy had been so clearly understood by the Japanese that he (the Reich Foreign Minister), did not think Japan would pursue a policy which

would not in the end align itself once more with the policy pursued by Germany and Italy. In this connection the Reich Foreign Minister referred to Matsuoka's remarks that he was forced into frequent manoeuvres for reasons of home politics, and that on occasion he might be forced to do things that would not be easily understood in Germany. At any rate he (the Reich Foreign Minister) trusted Matsuoka, although of course he could not know what was going on inside his heart. It was unfavourable that the discussions with Roosevelt were being conducted via Admiral Nomura, for at heart Nomura inclined rather towards the Anglo-Saxons. Matsuoka had, for the time being, made the following further enquiries:

1. Whether the United States were willing to enter into an undertaking not to enter into the European conflict, and
2. What was the attitude of the United States on the problem of the Philippines.

If against all expectations, Japanese policy should follow a course which does not correspond with the spirit of the Tripartite agreement, great opposition would certainly arise all over Japan and Ambassador Oshima would probably become the soul of such a real revolution. But these affairs should be handled carefully, and we should avoid creating unnecessary difficulties for Matsuoka.

The whole affair shows that Roosevelt is beginning to get alarmed, probably because he is gradually realizing that, in case of warlike complications, he can accomplish nothing, because of America's bad armament position, and therefore wishes to keep his back free.

The Duce remarked, in this connection, that it would without doubt be favourable to Germany, and Italy if Matsuoka were in this manner to prevent the United States entering the war. On the other hand, the motive of his actions could, of course, also be Japan's desire to keep out of the war herself.

To that, the German Foreign Minister remarked that, if a forcing hand were played and it were laid down that the American system of protecting convoys meant war, the Americans would most probably hesitate, because American rearmament was the biggest bluff in the world's history.

In this connection the Duce referred to the split which had appeared in the United States and quoted speeches by Hoover and Lindbergh as the most prominent opponents of Roosevelt's policy. As against this, the Jews and their propaganda were so strong that they had brought the whole of America under their influence. But if in a country a War party fights against a Peace party the War party usually wins, because war is much nearer the soul of man than peace.

The German Foreign Minister replied that the same naturally went for Japan as well, and that it was his conviction that sooner or later Japan would enter the war on the side of the Axis to exploit the opportunities offered. Anyhow he was absolutely certain that Japan would meet her treaty obligations.

The Duce went on to speak about Turkey, which he called Germany's and Italy's trump card. He asked the German Foreign Minister whether he believed that Turkey would go with Germany and Italy.

The German Foreign Minister replied that Germany was in the act of trying to influence Turkey in this sense. The preliminary conditions were favourable, in so much as it was not in Turkey's interests to let great masses of English troops assemble in Iraq, so that Germany hoped to be able to draw the Turks over to her side. A certain improvement in the attitude of the Turkish press could already be noted.

Later on in the discussion the German Foreign Minister spoke about a great intended propaganda drive in the British Empire, with the motto that the Axis would support the liberation of all peoples oppressed by the British. In this connection he mentioned the presence in Germany of the Indian Nationalist

leader—Bose—news which the Duce received with surprise and great interest. The Duce agreed to this kind of propaganda.

In conclusion, the German Foreign Minister explained the plans according to which he intended to employ Bose for Indian propaganda and he emphasized that the development of any antagonism between Bose and Ghandi should be avoided. Besides, Ghandi had written a very good article against the British a short while before.

In conclusion, the Duce mentioned in this connection that Italy was in contact with the Fakir of Ipi and was attempting by means of large sums of money to get him, as well as the Grand Mufti, to carry on some activity in the interests of the Axis. Even if these actions were not very extensive, they would nevertheless create some unpleasant difficulties for the English.

When parting, the possibility of having another discussion next morning shortly before the return flight of the German Foreign Minister, was left open.

This discussion took place in a very cordial spirit.

Fuschl, the 14th May 1941.

SCHMIDT.

TRANSLATION OF DOCUMENT 1871-PS

Minutes of the conference between the Fuehrer and the Italian Minister for Foreign Affairs, Count Ciano, in the presence of the Reich Foreign Minister of Obersalzberg on 12 August 1939.

At the beginning of the conference the Fuehrer with the aid of maps explained to Count Ciano the present situation of Germany from the military standpoint. He emphasized particularly the strength of the German fortifications in the west. There are three break-through points in the west at which the French had in former times always attempted to break through for geographical and strategic reasons, which have now been protected with particular care, so that a break-through seems

impossible here as well. Moreover, fortifications have also been built along the Luxemburg and Belgian borders up to the Dutch border, so that a violation of Belgian neutrality would no longer give France any military advantages, but would only involve the danger that Belgium would join the German side in order to defend her neutrality and under pressure from the Flemish part of the population. The only remaining possibility of attack is therefore theoretically through the Netherlands. But they too would, in the opinion of the Fuehrer, defend their neutrality energetically because they would know that if they should participate in a general conflict they would lose their East Asiatic colonies, which are almost undefended, to Japan. Moreover, the Netherlands are completely unsuitable as an assembly area for a large army because of the numerous rivers and the possibility of flooding large parts of the land which lies below sea level. In case of a breach of Dutch neutrality Germany would of course move into the country immediately and would have the possibility of reaching the Meuse in a few hours because of its proximity to the German border. Besides, the Rhine which is 1 to 1½ km wide in Holland offers natural protection against attacks from this direction.

The third possibility of attacking Germany is a blockade by the British Navy. But it must be kept in mind the ships used for the blockade would be attacked from the air from Germany, since all of England is within the radius of attack of the German air force, because of the long range of the latest German bombers. There are no further possibilities of attack on Germany. The Nordic countries would no doubt remain neutral and are safe from air attack from any side, since there is hardly any question of occupying such large areas as Norway and Sweden. In the same way Switzerland would certainly defend her neutrality to the last against any invader.

Germany has likewise built strong fortifications in the East. The Fuehrer showed Count Ciano the various fortification systems of East Prussia (Koenigsberg, Heilsberg triangle, border fortifications). On the rest of the German frontier (Grenzmark,

Silesia) strong fortifications are also being built, which have been developed, particularly on the Polish border opposite Berlin, into an impregnable system of lines lying one behind the other. Of course the capital is exposed to air attacks, since it lies only 150 km from the Polish border, particularly since because of its size (28 km north to south and 45 km east to west) the city could be bombed from a very great altitude (8 to 9,000 meters) without the possibility of attacking certain targets but with the certainty that the bombs would hit somewhere within the city.

Proceeding to the military situation of the western powers and Poland the Fuehrer again pointed out England's vulnerability from the air. Although some progress has been made in air craft production, the anti-aircraft defense is still quite backward. It is known that England decided on a certain type of anti-aircraft gun only last fall, and we have enough experience on the basis of our own 7 years of rearmament to know that mass production is possible only a long time after the choice of a prototype, so that effective anti-aircraft defense can be expected in England only after 1 to 2 years. Moreover, London and other great cities and industrial centers have the same disadvantage which characterizes Berlin's position in regard to Polish air attacks: from high altitude, out of range of the present English AA guns which are left from the war, bombing can be carried out in absolute safety, which would be successful in any case in the general target area.

At the present time England has no increase in sea power to record. The first units of the ships under construction cannot be put in service for some time. As for the land army, 60,000 men have been called up since the introduction of compulsory military service. If England keeps the necessary troops at home, she will be in a position to put at the disposal of France only two infantry divisions and one armored division. Furthermore she can transfer a few groups of bombers to France but hardly any groups of fighters, since the German air fleet would attack England immediately upon the outbreak of war, and the English

fighter planes would be urgently needed for the protection of their own country.

In regard to France's situation—the Fuehrer said that in a general conflict after the expected conquest, within a short time, of Poland, Germany would be in a position to assemble 100 divisions at the Westwall, which would force France to assemble all available forces from the colonies, from the Italian border, and elsewhere at the Maginot line for the life and death struggle which would then begin. Moreover, it is his opinion that the French cannot overrun the Italian fortifications any more than the Westwall.

At this point Count Ciano showed signs of extreme doubt.

The Polish Army varies greatly in its value. Besides several crack divisions there are a number of inferior units. Poland is very weak in AA and anti-tank defense. At present France and England cannot supply her. If, however, Poland is supported economically for a considerable period of time by the West, she could acquire these weapons, and Germany's superiority would be reduced. The fanatics of Warsaw and Cracow are opposed by the indifferent peasant population of other districts. Besides, the composition of the population of the Polish state must be considered: out of 34 million inhabitants 1½ million are German, about 4 million are Jews, and an estimated 9 million Ukrainians, so that there are considerably fewer real Poles than the total population, and even these, as mentioned before, have to be differently evaluated in regard to fighting power. Under these circumstances, Poland would be conquered by Germany in a very short time.

As Poland makes it clear by her whole attitude that in case of conflict she will in any event be on the side of the enemies of Germany and Italy, quick liquidation at this moment would only be of advantages for the unavoidable conflict with the western democracies. If a hostile Poland should remain on Germany's Eastern frontier, not only the 11 East Prussian Divisions, but also further contingents would be tied up in Pomerania and

Silesia, which would not be the case in the event of previous liquidation. Generally speaking, it would be best to liquidate the pseudo-neutrals one after the other. This is fairly easily done, if one Axis partner protects the rear of the other, who is just finishing off one of the uncertain neutrals, and vice versa. Italy may consider Yugoslavia such an uncertain neutral. At the visit of Prince Regent Paul he (the Fuehrer) suggested, particularly in consideration of Italy that Prince Paul clarify his political attitude toward the Axis by a gesture. He had thought of a closer connection with the Axis and Yugoslavia's leaving the League of Nations. Prince Paul agreed to the matter. Recently the Prince Regent was in London and sought reinsurance from the western powers. The same thing was repeated that happened in the case of Gafencu, who was also very reasonable during his visit to Germany and who denied any interest in the aims of the western democracies. Afterwards it was learned that he had later assumed a contrary standpoint in England. Among the Balkan countries the Axis can completely rely on Bulgaria, which is in a sense a natural ally of Italy and Germany. That is why Germany has supported Bulgaria as much as possible with supplies of weapons and will continue to do so. Yugoslavia would stay neutral only as long as it would be dangerous to take the side of the western democracies openly. At the moment when there would be a turn to the worse for Germany and Italy, however, Yugoslavia would join the other side openly, hoping thereby to give matters a final turn to the disadvantage of the Axis. Rumania is afraid of Hungary and is militarily very weak and internally corrupt. King Carol would doubtless not give up his neutrality unless absolutely necessary.

Hungary is friendly and Slovakia is under German influence and even has German garrisons in some parts.

Returning to the question of Danzig, the Fuehrer explained to Count Ciano that it is impossible to yield on this point. He has agreed with Italy to withdraw the Germans from South Tyrol, but for that very reason he must carefully avoid everything that could give the impression that a precedent has been created by

the withdrawal of the Germans from South Tyrol, which could be applied to other regions, too. Besides, his justification to the German people of the withdrawal of these Germans from Italy is the German policy, which is in general, directed toward the east and the north-east. The east and the north-east—i.e., the Baltic countries—have always been Germany's uncontested sphere of interest, just as the Mediterranean is Italy's own sphere. Germany needs the grain and wood-producing countries of these eastern regions for economic reasons as well. Danzig is not only a case of material interests, however, although this city is the biggest Baltic port. The turn-over amounts to 40% of the tonnage of Hamburg.

Danzig, the Nordic Nurnberg, is an old German city, which awakens sentimental feelings in every German, and just this psychological element forces the Fuehrer to respect public opinion. To make the situation easier to understand for an Italian, Count Ciano should imagine that Trieste is in the hands of Yugoslavia and a strong Italian minority on Yugoslavian territory is being treated with brutal force. It can hardly be supposed that Italy would look on calmly for very long.

Count Ciano replied to the Fuehrer's explanations by first pointing out the great surprise among the Italians at the absolutely unexpected seriousness of the situation. Neither in the Milan conversations nor in the talks on the occasion of his visit to Berlin was any indication given by the Germans that the situation with regard to Poland was so serious. On the contrary, the Reich foreign minister had declared that in his opinion the question of Danzig will be settled in the course of time. On the basis of this state of affairs, the Duce decided, true to his conviction that a conflict with the western democracies is unavoidable, to make his preparations for that eventuality and made his plans for a certain period of time of 2 to 3 years. If a conflict is unavoidable now, Italy would of course be on Germany's side, as the Duce re-emphasized just before Count Ciano's departure, but for various reasons, enumerated in detail, Italy would welcome a postponement of the general conflict.

Count Ciano then explained, with the aid of a map, the Italian position at the outbreak of a general conflict. Italy believes, he said, that a conflict with Poland would not be restricted to that country, but would grow into a general European war.

The Fuehrer remarked that opinions differ on that point. He personally is firmly convinced that the western democracies will in the end shy away from precipitating a general war.

Count Ciano replied that he hoped the Fuehrer was right, but he did not believe it. In any case, one should adapt one's reflections to the worst possibility, i.e., to general conflict. Since the Abyssinian conflict Italy has actually been constantly living in a state of war and therefore urgently needs a breathing spell. Count Ciano proved with the aid of figures how great Italy's material effort had been, especially in the Spanish conflict. Italy's stock of raw materials is now exhausted. She needs time to restock her warehouses.

She must also transfer her war industries, all of which are in an exposed location, to the south, in order to be better able to defend them. In the same way the Italian artillery, particularly the AA defense, is greatly in need of modernization. The long coast line and other exposed points are not sufficiently defended.

The strength of the fleet is also extremely unfavorable. At the moment Italy can put against the combined English and French 11 to 12 battleships only 2 of its own, while in a few years a total of 8 battleships will be available.

At this point the Fuehrer remarked that of course England and France will have additional battleships of 35,000 and 40,000 tons.

Count Ciano pointed out the long Italian coastline, which is hard to defend and the numerous bases at the disposal of the English and French fleets, giving particular attention to the Greek ports.

The Italian colonies are especially vulnerable at present. Lybya is hard to attack from Egypt, it is true, while from Lybya there is

the possibility of advancing to Marsah Matru. The situation in regard to Tunisia is quite different. The proportion of the Italian and French Arab population is 1 to 20, while the strength of white troops is 1 to 5 to Italy's disadvantage. Besides, the Italian fortifications on the French frontier are quite inadequate. Only recently new armored bunkers were delivered.

Though Abyssinia is almost pacified, with the exception of certain regions along the border of the English territory, where the English create difficulties among the population with their money and propaganda, this pacification is only on the surface. It would be sufficient, in a general conflict for a few English airplanes to drop leaflets over Abyssinia, saying that the world had risen against Italy and that the Negus would return, to make the revolt of the Abyssinians flare up again. Besides, Abyssinia would be cut off completely from the motherland in case of a conflict, and the fate of the 200,000 Italians in Abyssinia would be very uncertain. In a few years there would be an army of 4 to 500,000 men in Abyssinia, and if a conflict should break out then it would be possible to attack the Sudan, Kenya, and French Somaliland successfully.

The islands of the Dodecanese would be in difficulties because of the attitude of Turkey. Of course Leros and Rhodes could defend themselves for years.

Albania is a completely undeveloped country and would make an effective base for operations against the Balkans only after several years. First roads have to be built and the natural resources (iron, copper, chromium, and petroleum) have to be exploited, and then one could consider, as the Fuehrer had indicated, advancing successfully on Saloniki and in other directions of the Balkans, as along the five fingers of an outstretched hand.

Italy has plans of economic autarchy which cannot be realized for several years and which would then put Italy in a position to withstand even a prolonged war without difficulties. Another reason for the Duce's desire to postpone the conflict is the

Italians abroad, who were to be brought back to Italy according to plan. One million Italians live in France, of whom about 700,000 are definitely lost for Italy. The other 300,000, however, would be used by France as hostages in case of a conflict, as could be seen from some measures taken by France in September of last year.

Besides, the Duce personally attaches great importance to the orderly execution of the world's fair in 1942, for which Italy made big preparations and from which she hopes for good results in the economic field, especially as regards the inflow of foreign currency.

Besides these considerations, which are based on Italy's position, there are others of a general political nature which recommend postponement of a general conflict. The Duce is convinced that the encirclement system of the western democracies would doubtless work at the present time. But after a certain length of time the points of friction and the seeds of disunity would come to the fore among the partners of the encirclement front, and the front would gradually disintegrate.

Moreover, the Duce is convinced that the present enthusiasm in England and France will not last very long. Soon, particularly in France, the union sacrée will once more be replaced by party discord, on condition that the Axis keeps quiet for a time. At the present time it is only due to the Axis that internal differences have been buried in the respective countries.

Japan's position would also be much stronger after the termination of the China conflict, which is to be expected in two years, while Roosevelt's position in America would be seriously weakened after a period of calm in the field of foreign politics, so that he could not be elected president for a third time, which would certainly be the case if a conflict should break out soon.

Spain, which has just acquired government friendly to the Axis (Serano Suner, Beigbeder), needs peace after the civil war, but would stand at the side of the Axis in 2 to 3 years as a power not to be neglected. Thus, for example, within 2 years Spain would

build 4 battleships of 35,000 tons each, the plans for which have just been taken to Spain by an Italian General. The construction is to take place in El Ferrol.

For these reasons the Duce wishes strongly (le Duce insiste) that the Axis powers should make a gesture which would emphasize anew the will of peace of Italy and Germany. This could be done by the publication of a communique which Count Ciano had given to the Reich foreign minister on the previous day and which he now presented again in the following English (and French version): * * *

Count Ciano said in connection with this tentative communique that the Duce had at first contemplated a proposal for a conference, but conscious of the Fuehrer's misgivings, he now makes another suggestion in a milder form and is very much interested in its acceptance.

The Fuehrer declared concerning the conference plan that in future meetings of the powers it will not be possible to exclude Russia. In the German-Russian conversations the Russians made it plain, with reference to Munich and other occasions from which they had been excluded, that they would not tolerate this any more. Besides the 4 main powers, Poland and Spain would also have to be included in such a conference, besides Russia. This means, however, that Italy, Germany, and Spain would oppose England, France, Russia, and Poland, which certainly is an unfavorable position.

Count Ciano replied that the Duce is of the opinion that the one who wins at a conference is the one who is ready to let the conference fail if necessary and to accept war as a possible result. Moreover, the Duce took the Fuehrer's misgivings into consideration and modified his proposal. He sees in an Italian and German peace gesture, as suggested in this proposal, the advantage that the western powers, which are internally not at all ready for war—but would surely start it at the present moment, if they were, so to speak, forced to the wall by the Axis and saw no other way out, according to the conviction of the

Duce, based on very reliable information from the democracies. [Translator's note: This sentence is incomplete—possibly something was omitted in copying]. The suggested gesture of Germany and Italy represents a face-saving way out for the western powers, which they will certainly use, for there are wide circles which warn against war and which would be backed up by a peace gesture. This means, however, that Poland, which would doubtless be abandoned by the western powers, would be isolated after a time and would have to agree to reasonable solutions of the existing difficulties.

The Fuehrer replied that there is no time to be lost in the solution of the Polish problem. The further we get into fall the harder military operations in the east of Europe will be. The air force could hardly be employed at all after the middle of September in those regions because of the weather conditions, while the motorized forces would also be unusable because of the condition of the roads, which are rapidly turned to mud by the rains which set in in the fall. From September to May Poland is one big swamp and absolutely unsuitable for any military operations. Thus Poland could simply occupy Danzig in October—and she probably intends to do so—without Germany's being able to do anything against it; for it is out of the question to shell and destroy Danzig.

Count Ciano asked by what time the question of Danzig will have to be settled, in the Fuehrer's opinion. *The Fuehrer* replied that this question will have to be settled one way or the other by the end of August. The Fuehrer replied to Ciano's question as to how the Fuehrer imagined the solution, that Poland will have to give up Danzig politically, whereby her economic interests will of course be preserved, and that she will have to contribute by her general attitude to a release of the tension. It is doubtful whether Poland will be willing to do so; for hitherto she had rejected the German proposals. The Fuehrer personally made these proposals to Beck on the occasion of his visit to Obersalzberg. They were very favorable for Poland. In exchange for the political return of Danzig to Germany, with complete

preservation of Polish economic interests and the establishment of a connection between East Prussia and the Reich, Germany conceded a border guarantee, a 25-year friendship pact, and Polish participation in influence on Slovakia. At that time Beck acknowledged the proposal with the remark that he wanted to examine it. The sharp refusal was only the consequence of English intervention. Poland's aims can, moreover, be seen clearly in her press. All of East Prussia should be occupied, they want to advance to Berlin, etc. In the long run it is unbearable for a big power to tolerate such a hostile neighbor at a distance of only 150 km from its capital. The Fuehrer is therefore determined to use the opportunity of the next political provocation, in the form of an ultimatum, brutal mistreatment of Germans, an attempt to starve out Danzig, or something similar, to attack Poland within 48 hours and to solve the problem in this way. This would mean a considerable strengthening of the Axis, just as an Italian liquidation of Yugoslavia would mean a considerable increase of power for the Axis.

Count Ciano asked when such an undertaking against Poland is to be expected, since Italy must of course prepare for all eventualities. The Fuehrer replied that under the prevailing circumstances an attack on Poland is to be expected at any moment.

A telegram from Moscow and one from Tokyo were handed to the Fuehrer during this exchange of opinions. The conference was interrupted for a short time, and then Count Ciano was informed of the contents of the Moscow telegram. The Russians agreed to the sending of a German political mediator to Moscow. The Reich foreign minister added that the Russians were completely informed about Germany's intentions against Poland. He himself had informed the Russian charge d'affaires, by order of the Fuehrer.

The Fuehrer remarked that in his opinion Russia would not be willing to pull chestnuts out of the fire for the western powers. Stalin's position is endangered as much by a victorious Russian army as by a defeated Russian army. Russia is, at the most,

interested in enlarging her access to the Baltic a little. Germany has no objection to that. Besides, Russia would hardly take the part of Poland, whom she hates from the bottom of her heart. The sending of the English-French military mission to Moscow has only the purpose of averting the catastrophic state of political negotiations.

After further discussion of the communique proposed by Count Ciano, the Fuehrer said that he wanted to think over for a day, this proposal as well as Count Ciano's explanation of the general situation, and he therefore suggested that the discussion be resumed the next day.

Salzburg 12 August 1939

signed Schmidt.

PARTIAL TRANSLATION OF DOCUMENT 1874- PS

Notes on the Conference Between General Field Marshal
GOERING and the DUCE in the Presence of Count CIANO

15 April 1939

[Page 4, par. 2]

However, the heavy armament of Czechoslovakia shows, in any case, how dangerous this country could have been, even after Munich, in the event of a serious conflict. Because of Germany's action the situation of both axis countries was ameliorated, among other reasons because of the economic possibilities which result from the transfer to Germany of the great production capacity (armament potential) of Czechoslovakia. That contributes toward a considerable strengthening of the axis against the Western powers. Furthermore, Germany now need not keep ready a single division for protection against that country in case of a bigger conflict. This, too, is an advantage by which both axis countries will, in the last analysis, benefit.

[Page 5, par. 2]

* * * the action taken by Germany in Czechoslovakia is to be viewed as an advantage for the axis in case Poland should finally join the enemies of the axis powers. Germany could then attack this country from 2 flanks and would be within only 25 minutes flying distance from the new Polish industrial center which had been moved further into the interior of the country, nearer to the other Polish industrial districts, because of its proximity to the border. Now by the turn of events it is located again in the proximity of the border.

[Page 6, par. 2]

Furthermore the Fieldmarshal happened to talk about the date at which Germany would be prepared best for a greater test of strength. In this connection he pointed out that Germany at the moment was comparatively weak on the sea because both the new battleships which had been launched recently would be ready for commissioning only next year and two additional battleships would be launched only next year. In the airforce also, regrouping and adaptation of a new bomber type "JU 88", the production of which had yet to begin, was taking place. This new German bomber had such a range that it would be possible to attack not only England herself, but moreover that would push forward into a western direction, in order to bomb the ships which come from the Atlantic to England. Of course, Germany was ready for action, if suddenly some conflict should come up. But if one was considering at what period of time the armament situation was most favorable, both the facts mentioned above—the insufficient armament at sea and the reconversion of the airforce to the new type of bomber—should not be disregarded. Besides in the fall already a monthly production of 280 planes of the "JU 88" and at the end of the year of 350 planes, could be counted upon. On the basis of these calculations he came to the conclusion that in 9 months or one year the situation for the axis, from a military point of view, would be more favorable. On the other hand it was true that the rearmament in England and France had not made very much progress. In many cases, the

factories for the production of war material were only in a state of construction. England would most likely not be able to show any results worth mentioning before 1942 for her new beginning high pressure rearmament in the air.

Furthermore, the Fuehrer considered it almost out of the question that England and France would not stand together. According to the German point of view, both countries would in any conflict eventually support each other to the utmost. Only if England should execute a complete reversal of her policy, and the costs and risks of her present political line should become too high, she would perhaps adapt herself to confining her efforts to the preservation of the empire and give the authoritarian countries a free hand for the securing of their vital necessities. At the present time England had a weak government which had yielded to the pressure of the leftist circles. England had deviated from her old line in a way that it offers assistance only on the basis of her own judgment of the situation in question from case to case and she had, in completely turning away from her traditional policy of giving support from time to time only on the basis of her own judgment of the situation at the time, now obliged herself in advance to render support, and that under conditions which could be determined by the other partner. It was another question, of course, how England could fulfill her guarantee obligation in fact. How was she going to help Poland or Rumania, for instance? She did not have the possibility of sending troops and could actually fulfill her obligations only by setting ablaze a general war.

All in all, however, it had to be stressed, that the situation of the axis was very strong and that it could defeat all possible opponents in a general conflict.

**PARTIAL TRANSLATION OF DOCUMENT 1877-
PS**

Report RAM 19/41

REPORT ON THE CONVERSATION BETWEEN THE
REICH MINISTER FOR FOREIGN AFFAIRS [RAM] AND
THE JAPANESE FOREIGN MINISTER MATSUOKA IN
BERLIN ON 29 MARCH 1941.

The RAM resumed the preceding conversation with Matsuoka about the latter's impending talks with the Russians in Moscow, where they had left off. He expressed the opinion, that it would probably be best, in view of the whole situation, not to carry the discussions with the Russians too far. He did not know how the situation would develop. One thing, however, was certain, namely that Germany would strike immediately, should Russia ever attack Japan. He was ready to give Matsuoka this positive assurance, so that Japan could push forward to the South on Singapore, without fear of possible complications with Russia. The largest part of the German army was anyway on the Eastern frontiers of the Reich, and fully prepared to open the attack at any time. He (the RAM) however believed, that Russia would try to avoid developments leading to war. Should Germany however enter into a conflict with Russia, the USSR would be finished off within a few months. In this case, Japan had of course even less reason to be afraid than ever, if it wants to advance on Singapore. Consequently, it need not refrain from such an undertaking because of possible fears of Russia.

He could not know of course, just how things with Russia would develop. It was uncertain, whether or not Stalin would intensify his present unfriendly policy against Germany. He (the RAM) wanted to point out to Matsuoka in any case, that a conflict with Russia was anyhow within the realm of possibility. In any case, Matsuoka could not report to the Japanese Emperor upon his return, that a conflict between Russia and Germany was impossible. On the contrary, the situation was such, that such a conflict, even if it were not probable, would have to be considered possible. * * *

Next, the RAM turned again to the Singapore question. In view of the fears, expressed by the Japanese, of possible attacks by submarines, based on the Philippines and of the intervention of

the British Mediterranean and Home fleets, he had again discussed the situation with General-Admiral Raeder. The latter had stated, that the British Navy during this year would have its hands so full in the English home waters and in the Mediterranean, that it would not be able to send even a single ship to the Far East. General-Admiral Raeder had described the U.S. submarines as so bad, that Japan need not bother about them at all.

Matsuoka replied immediately, that the Japanese Navy had a very low estimate of the threat from the British Navy; it also held the view, that in case of a clash with the American Navy, it would be able to smash the latter without trouble. However it was afraid, that the Americans would not take up the battle with their fleet; thus the conflict with the United States might perhaps be dragged out to five years. This possibility caused considerable worry in Japan.

The RAM replied, that America could not do anything against Japan in the case of the capture of Singapore. Perhaps for this reason alone, Roosevelt would think twice before deciding on active measures against Japan. For while on one hand he could not achieve anything against Japan, on the other hand there was the probability of losing the Philippines to Japan; for the American President, of course, this would mean a considerable loss of prestige, and because of the inadequate rearmament, he would have nothing with which to offset such a loss.

In this connection, Matsuoka pointed out, that he was doing everything to reassure the English about Singapore. He acted as if Japan had no intention at all regarding this key position of England in the East. Therefore it might be possible, that his attitude toward the British would appear to be friendly in words and in acts. However, Germany should not be deceived by that. He assumed this attitude not only in order to reassure the British, but also in order to fool the pro-British and pro-American elements so long, until one day he would suddenly open the attack on Singapore.

In this connection, Matsuoka stated, that his tactics were based on the certain assumption, that the sudden attack against Singapore would unite the entire Japanese nation with one blow. ("Nothing succeeds like success," the RAM remarked.) He followed here the example of the words of a famous Japanese statesman, addressed to the Japanese Navy at the outbreak of the Russo-Japanese war: "You open fire, then the nation will be united". The Japanese need to be shaken up to awaken. After all, as an oriental, he believed in the fate, which would come, whether you wanted it or not. * * *

Matsuoka then introduced the subject of German assistance in the blow against Singapore, a subject which had been broached to him frequently, and mentioned the proposal of a German written promise of assistance.

The RAM replied, that he had already discussed these questions with Ambassador Oshima. He had asked him to procure maps of Singapore in order that the Fuehrer—who probably must be considered the greatest expert on military questions at the present time—could advise Japan on the best method of attack against Singapore. German experts on aerial warfare, too, would be at their disposal; they could draw up a report, based on their European experiences, for the Japanese on the use of dive-bombers from airfields in the vicinity against the British fleet in Singapore. Thus the British fleet would be forced to disappear from Singapore immediately.

Matsuoka remarked, that Japan was less concerned with the British fleet, than with the capture of the fortifications.

The RAM replied, that here too, the Fuehrer had developed new methods for the German attacks on strongly fortified positions, such as the Maginot Line and Fort Eben Emael, which he could make available to the Japanese.

Matsuoka replied in this connection, that some of the younger expert Japanese naval officers, who were close friends of his, were of the opinion, that the Japanese naval forces would need three months until they could capture Singapore. As a cautious

foreign minister, he had doubled this estimate. He believed, he could stave off any danger which threatened from America, for six months. If, however, the capture of Singapore required still more time and if the operations would perhaps even drag out for a year, the situation with America would become extremely critical and he did not know as yet how to meet it.

If at all avoidable, he would not touch the Netherlands East Indies, since he was afraid that in case of a Japanese attack on this area, the oilfields would be set afire. They could be brought into operation again only after 1 or 2 years.

The RAM added, that Japan would gain decisive influence over the Netherlands East Indies simultaneously with the capture of Singapore. * * *

Berlin, the 31st of March 1941.

TRANSLATION OF DOCUMENT 1881-PS

Notes Fueh 20/41

NOTES

regarding the discussion between the FUEHRER and the Japanese Foreign Minister MATSUOKA in the presence of the Reich Foreign Minister and of the Minister of State MEISSNER in Berlin on the 4th of April 1941.

Matsuoka further mentioned, that he was induced to make those endeavors for peace particularly in view of the personality of Cardinal Caspari.

Furthermore he had endeavored to convince the Pope, that the United States and particularly the American President prolonged the war in Europe and in China. It was not the question to determine, if America or its President were right or wrong. They certainly had their definite reasons for their policy. Notwithstanding the question of right or wrong, one had to state the fact that they prolonged the war in Europe and in China. In regard to China, he tried to convince the Pope that Japan was

not fighting the Chinese or China herself, but merely the Bolshevism which threatened to spread in China and in the entire Far East. It is regretful that America and England sided with Bolshevism.

The Fuehrer interrupted that both countries also sided in Spain with Bolshevism.

Matsuoka then also expressed the request, that the Fuehrer should instruct the proper authorities in Germany to meet as broad-mindedly as possible the wishes of the Japanese Military Commission. Japan was in need of German help particularly concerning the U-boat warfare, which could be given by making available to them the latest experiences of the war as well as the latest technical improvements and inventions. Japan would do her utmost to avoid a war with the United States. In case that country should decide to attack Singapore, the Japanese navy, of course, had to be prepared for a fight with the United States, because in that case America probably would side with Great Britain. He (Matsuoka) personally believed, that the United States could be restrained by diplomatic exertions from entering the war at the side of Great Britain. The Army and Navy had, however, to count on the worst situation, that is with war against America. They were of the opinion that such a war would extend for five years or longer and would take the form of guerilla warfare in the Pacific and would be fought out in the South Sea. For this reason, the German experiences in her guerilla warfare are of the greatest value to Japan. It was a question how such a war would best be conducted and how all the technical improvements of submarines, in all details such as periscopes and such like, could best be exploited by Japan.

To sum up, Matsuoka requested that the Fuehrer should see to it that the proper German authorities should place those developments and inventions concerning navy and army which were needed by the Japanese at their disposal.

The Fuehrer promised this and pointed out that Germany too considered a conflict with the United States undesirable, but that

it had already made allowances for such a contingency. In Germany one was of the opinion that America's contributions depended upon the possibilities of transportation, and that this again is conditioned by the available tonnage. Germany's war against tonnage, however, means a decisive weakening not merely against England, but also against America. Germany has made her preparations so that no American could land in Europe. She would conduct a most energetic fight against America with her U-boats and her Luftwaffe, and due to her superior experience, which would still have to be acquired by the United States, she would be vastly superior, and that quite apart from the fact that the German soldiers naturally rank high above the American.

In the further course of the discussion the Fuehrer pointed out that Germany on her part would immediately take the consequences, if Japan would get involved with the United States. It did not matter with whom the United States would first get involved if with Germany or with Japan. They would always try to eliminate one country at a time, not to come to an understanding with the other country subsequently, but to liquidate this one just the same. Therefore, Germany would strike, as already mentioned, without delay in case of a conflict between Japan and America, because the strength of the tripartite powers lies in their joint action, their weakness would be if they would let themselves be beaten individually.

Matsuoka once more repeated his request, that the Fuehrer might give the necessary instructions, in order that the proper German authorities would place at the disposal of the Japanese the latest improvements and inventions, which are of interest to them, because the Japanese navy had to prepare immediately for a conflict with the United States.

As regards Japanese-American relationship, Matsuoka explained further that he has always declared in his country, that sooner or later a war with the United States would be unavoidable, if Japan continued to drift along as at present. In his opinion this conflict would happen rather sooner than later. His argument

went on, why should Japan, therefore, not decisively strike at the right moment and take the risk upon herself of a fight against America? Just thus would she perhaps avoid a war for generations, particularly if she gained predominance in the South Seas. There are, to be sure, in Japan many who hesitate to follow those trends of thought. Matsuoka was considered in those circles a dangerous man with dangerous thoughts. He, however, stated that, if Japan continued to walk along her present path, one day she would have to fight anyway and that this would then be under less favorable circumstances than at present.

The Fuehrer replied that he could well understand the situation of Matsuoka, because he himself was in similar situations (the clearing of the Rhineland, declaration of sovereignty of armed forces). He too was of the opinion that he had to exploit favorable conditions and accept the risk of an anyhow unavoidable fight at a time when he himself was still young and full of vigor. How right he was in his attitude was proven by events. Europe now was free. He would not hesitate a moment to reply instantly to any widening of the war, be it by Russia, be it by America. Providence favored those who will not let dangers come to them, but who will bravely face them.

Matsuoka replied, that the United States or rather their ruling politicians had recently still attempted a last maneuver towards Japan, by declaring that America would not fight Japan on account of China or the South Seas provided that Japan gave free passage to the consignments of rubber and tin to America to their place of destination. However, America would war against Japan the moment she felt that Japan entered the war with the intention to assist in the destruction of Great Britain. Such an argument naturally did not miss its effect upon the Japanese, because of the education oriented on English lines which many had received.

The Fuehrer commented on this, that this attitude of America did not mean anything but that the United States had the hope that, as long as the British World Empire existed, one day they

could advance against Japan together with Great Britain, whereas, in case of the collapse of the World Empire, they would be totally isolated and could not do anything against Japan.

The Reich Foreign Minister interjected that the Americans precisely under all circumstances wanted to maintain the powerful position of England in East Asia, but that, on the other hand, it is proved by this attitude to what extent she fears a joint action of Japan and Germany.

Matsuoka continued that it seemed to him of importance to give to the Fuehrer an absolutely clear picture of the real attitude inside Japan. For this reason he also had to inform him regretfully of the fact that he (Matsuoka) in his capacity as Japanese Minister for Foreign Affairs could not utter in Japan itself a single word of all that he had expounded before the Fuehrer and the Reich Foreign Minister regarding his plans. This would cause him serious damage in political and financial circles. Once before he had committed the mistake, before he became Japanese Minister for Foreign Affairs, to tell a close friend something about his intentions. It seems that the latter had spread these things and thus brought about all sorts of rumors, which he as Foreign Minister had to oppose energetically, though as a rule he always tells the truth. Under these circumstances he also could not indicate, how soon he could report on the questions discussed to the Japanese Premier or to the Emperor. He would have to study exactly and carefully in the first place the development in Japan, so as to make his decision at a favorable moment, to make a clear breast of his proper plans towards the Prince Konoye and the Emperor. Then the decision would have to be made within a few days, because the plans would otherwise be spoiled by talk.

Should he, Matsuoka, fail to carry out his intentions, that would be proof that he is lacking in influence, in power of conviction, and in tactical capabilities. However, should he succeed it would prove that he had great influence in Japan. He himself felt confident that he would succeed.

On his return, being questioned, he would indeed admit to the Emperor, the Premier and the Ministers for the Navy and the Army, that Singapore had been discussed; he would, however, state that it was only on a hypothetical basis.

Besides this, Matsuoka made the express request not to cable in the matter of Singapore because he had reason to fear that, by cabling, something might leak out. If necessary he would send a courier.

The Fuehrer agreed and assured him, after all, that he could rest entirely assured of German reticence.

Matsuoka replied he believed indeed in German reticence, but unfortunately could not say the same of Japan.

The discussion was terminated after the exchange of some personal parting words.

Berlin, the 4th of April 1941.

Signed: SCHMIDT

PARTIAL TRANSLATION OF DOCUMENT 1882- PS

Aufz RAM 21/41

Notes on the talk between the Reich Foreign Minister and the Japanese Foreign Minister Matsuoka in Berlin on 5 April 1941.

[Pages 2 to 3]

Matsuoka then spoke of the general high morale in Germany referring to the happy faces he had seen everywhere among the workers during his recent visit to the Borsig Works. He expressed his regret that developments in Japan had not as yet advanced as far as in Germany and that in his country the intellectuals still exercised considerable influence.

The Reich Foreign Minister replied that at best a nation which had realized its every ambition could afford the luxury of intellectuals, most of whom are parasites, anyway. A nation,

however, which has to fight for a place in the sun must give them up. The intellectuals ruined France; in Germany they had already started their pernicious activities when National Socialism put a stop to these doings; they will surely be the cause of the downfall of Britain, which is to be expected with certainty.

In answer to a remark by Matsuoka, that Japan was now awakening and, according to the Japanese temperament, would take action quickly after the previous lengthy deliberation, the Reich Foreign Minister replied that it was necessary, of course, to accept a certain risk in this connection, just as the Fuehrer had done so successfully with the occupation of the Rhineland, with the proclamation of sovereignty of armament, and with the designation from the League of Nations. * * *

[Pages 9 to 11]

The Reich Foreign Minister replied that the new German Reich would actually be built up on the basis of the ancient traditions of the Holy Roman Empire of the German Nation, which in its time was the only dominant power on the European Continent.

In conclusion, the Reich Foreign Minister once again summarized the points he wanted Matsuoka to take back to Japan with him from his trip:

1. Germany had already won the war. With the end of this year the world would realize this. Even England would have to concede it, if it had not collapsed before then, and America would also have to resign herself to this fact.
2. There were no conflicting interests between Japan and Germany. The future of both countries could be regulated for the long run on the basis that Japan should predominate in the Far East, Italy and Germany in Europe and Africa.
3. Whatever might happen, Germany would win the war. But it would hasten victory if Japan would enter the war. Such an entry into the war was undoubtedly more in the interest of Japan than in that of Germany, for it offered a unique opportunity which

would hardly ever return, for the fulfillment of the national objectives of Japan, a chance which would make it possible for her to play a really leading role in East Asia.

Matsuoka replied that he himself could only repeat that he had long been of the opinion that every nation would be offered an opportunity only once in a thousand years. Japan was confronting such an opportunity, and she would have to assume the risk connected with it. She would have to act decisively at the right moment in order to take advantage of this unique opportunity.

Berlin, the 7th of April 1941

Sig. Schmidt

TRANSLATION OF DOCUMENT 1889-PS

Account Concerning the conference of the Fuehrer with the Italian Ambassador Attolico on August 31, 1939 at 1900 hours.

The Fuehrer handed the Italian Ambassador a copy of the German proposals and a press notice, pointing out that because of the Polish Government the proposals are now void. The mediation attempt of England must, therefore, be considered as having failed.

Ambassador Attolico recalled that the Fuehrer on the occasion of a mediation offer made a few days ago by Mussolini had declared that England had just made a proposal and that one would wait for its result. Since the Fuehrer had stated himself now, that the English proposal must be considered as having failed, the question arises now if the Duce on his part could not take over a mediation. He asks, therefore, the Fuehrer if it were all right if the Duce would mediate from now on.

The Fuehrer replied, one had to wait first of all for future developments. He is not in the mood to be slapped in the face time and again by Poland, and does not want to bring the Duce into an uncomfortable position through acceptance of his

mediation. He is certain that because of the spiritual conception of the Poles, they wouldn't listen to the Duce either.

To the question of Attolico whether herewith everything is at an end, the Fuehrer answered yes.

Herewith submitted to the Foreign Minister as per instructions.
Berlin, 1 September 1939

(signed) Dr. Schmidt
Ambassador

PARTIAL TRANSLATION OF DOCUMENT 1893- PS

Organization Book of the NSDAP 1943 edition, Editor the
Reich Organization Leader of the NSDAP (Dr. Robert Ley),
Published by the Central Publishing House of the NSDAP, Franz
Eher Successor, Munich.

[Page 6 e.]

3. Resignations.

* * * * *

Authorized to decree dismissal on the basis of a lawful decision
of a party court are:

- (a) The Local Chapter Directors [Ortsgruppenleiter].
- (b) The County Directors [Kreisleiter].
- (c) The District Directors [Gauleiter].
- (d) The Fuehrer.

[Page 7]

6. Duties of the Party Members.

The commandments of the National Socialists:

The Fuehrer is always right.

* * * * *

The program be your dogma:

It demands your utter devotion to the movement:

* * * * *

Right is, what serves the movement and thus Germany
which means the Nation.

* * * * *

[Page 13]

The aims of the Party are Only Ideological Ones.

It must be attempted to transfer all professional duties which, during the reconstruction in connection with the rebuilding of the Reich, are still being executed by the Party, to the affiliated organizations or, if possible, to the State administration in due time. If necessary, and if possible, directives to this effect will be issued by the competent officers of the Reich Directorate [Reichsleitung].

The party as an instrument of ideological education, must grow to be the Leader Corps [Fuehrerkorps] of the German nation.

This Leader Corps is responsible for the complete penetration of the German Nation with the National Socialist spirit and to overcome the dependence on the international influences in which the nation is still partly rooted.

It will further be the duty of this Fuehrerkorps to see that the professional and general duties within the affiliated organizations and within the State administration will be handled according to National Socialist directives.

[Page 14]

The Political Director [Der Politische Leiter].

The basis of the Party organization is the Fuehrer thought. The public is unable to rule itself either directly or indirectly. The man best suited for the job will be a Fuehrer. He will be carried by the confidence of the people. All Political Directors stand as appointed by the Fuehrer and are responsible to him. They possess full authority towards the lower echelons. In choosing

the Political Director the main consideration will be to put the right man in the right place * * *. In principle this is to be noted: Only a man who has absorbed the school of subordinate functions within the Party has a claim to the higher Fuehrer offices if he should be otherwise suited. We can only use Fuehrers who have served from the ground up. Any Political Director who does not conform to these principles is to be dismissed or to be sent back to the lower offices, as Blockleiter, Zellenleiter, for further training.

Each Political Director must be conscious always, as a Political Fuehrer, that leadership does not only confer greater powers, but first and foremost higher duties * * *.

[Page 15]

The Type of the Political Director.

All this shows the character of the Political Director. The Political Director is not an office worker but the Political Deputy of the Fuehrer * * *. With the Political Director we are building the political leadership of the State * * *. The type of the Political Director is not characterized by the office which he represents. There is no such thing as a Political Director of the NSBO, etc., but there is only the Political Director of the NSDAP.

[Page 16]

The Oath of the Political Director.

The Political Director is sworn in yearly. The oath is worded as follows:

“I pledge eternal allegiance to Adolf Hitler. I pledge unconditioned obedience to him and the Fuehrers appointed by him.”

The Political Director is inseparably tied to the ideology and the organization of the NSDAP. His oath only ends with his death or with his expulsion from the National Socialist community.

[Page 17]

The Protection of the Honor of the Political Director.

The leading personalities of State and Party are protected against vicious attacks upon State and Party. (See Section 6).

This law primarily protects leading Party members from District Directors on up.

Should, however, a situation exist which is liable to degrade the Party and its institutions (for instance an allegation of embezzlement by a Kreisleiter in which matter nothing was being done which would mean, in other words, that bad conditions were tolerated) the prosecution may be directed by authority of paragraph 1 of the law.

In case of attacks which are liable to degrade the Party and its officers prosecution may be requested through the competent State prosecutor after consultation with the proper law office of the Party.

[Page 19]

The Appointment of Political Directors.

1. The Fuehrer appoints the following Political Directors:

(a) Reichsleiter and all Political Directors to include the Directors of the Women's Leagues within the Reich Directorate [Reichsleitung].

(b) Gauleiters to include the Directors of an office of the Gau Directorate, as well as the Directors of the Women's League's of the Gau.

(c) Kreisleiters.

Their appointment will be published in the official paper [Verordnungsblatt].

2. The Gauleiter appoints:

(a) The Political Directors and the Directors of the Women's Leagues within the Gau Directorate, and the Directors of the Main Offices up to Associate Directors [Mitarbeiter].

(b) The Political Directors and the Directors of the Women's Leagues in the Kreis Directorate.

(c) The Local Chapter Directors [Ortsgruppenleiter].

3. The Kreisleiter appoints: The Political Directors and the Directors of the Women's Leagues of the Local Chapter [Ortsgruppen] to include Block and Cell Directors and Block Helpers, as well as the Political Directors in the factories (inasmuch as they are Party members). All Political Directors and Directors of the Women's Leagues will be issued an identity card.

[Page 24]

All political directors irrespective of the local chapter, the county, or the district in which they may be in office will wear a uniform office suit.

All political directors irrespective in what party offices they execute their duties, be it in the political directorate, the administration, the party courts, the affiliated associations or in the factories, will wear a uniform office suit.

[Page 49]

MEETINGS OF MEMBERS AND PUBLIC MEETINGS

The bearers of sovereignty of the party are responsible for the membership meetings planned by all party offices and affiliated associations. They will be approved:

1. By the local chapter director if they do not go beyond the local chapter in their importance.
2. By the county directors if they do not go beyond the county in their importance.
3. The district directors if they have a general political significance for the district.

The meetings will be conducted along the lines laid down by the local organization and propaganda offices.

CELL EVENINGS OF THE NSDAP

1. Time of meetings:

Cell evenings of the NSDAP will be held once a month.

2. Conduct of the Cell Evenings:

The cell evenings of the Party will be conducted by the cell director of the NSDAP. If no suitable cell director is on hand—either because of his short time in office or insufficient indoctrination—the meeting will be in the hands of the local Chapter Director of the NSDAP.

3. Participants:

(a) Participation at a cell evening is compulsory for:

All political directors of the cell:

Block leaders and block helpers, cell foremen
and block foremen living within the cell
zone.

Factory cell and factory block foremen of the
German Labor Front [DAF] and their co-
workers.

NSV cell and block managers:

Cell and block leaders of the Women's League
and the co-workers of the NSV and NSF
whose domicile is within the Cell Zone.

All Party members within the cell;

All members of organizations of the NSDAP.

* * *

5. Program of the Cell Evenings. (During War Time):

Following are the rules for the program of a cell evening:

* * * * *

(b) Lecture (not over 30 minutes) based on the directives issued by the Reich Directorate for Propaganda of the NSDAP.

[Page 50A-51]

LEADER CONFERENCES—TIME OF MEETINGS

1. Leader conferences in the local chapter zone.

(a) Local chapter directors and office chiefs, cell directors and block directors possibly in the presence of cell and block foremen, as well as cell and block managers and cell and block directors of the Women's League, as well as the local leaders of the organizations and possibly the deputies of the Kreis offices (health, education, civil servants, county policy, etc.).

Once a month.

(b) Cell directors with block directors and cell foremen, cell managers and cell directors of the Women's League.

Once a month.

(c) Block directors with block foremen, block managers, block leaders of the Women's League and block helpers.

Once a month.

(d) All officers of the local chapter are also to participate in:

1. The official formation within the region of the local chapter (may be combined with leader conference (a)).

2. Official formations of the county.

Every three months.

3. The District Day. [Gautag].

One every three years.

4. The County Day. [Kreistag].

If coinciding with District Day, County Day will be cancelled.

Once a year.

(e) Participation in schooling:

1. Participants: The political directors, foremen, managers, advisers, directors of the Women's League, etc.

* * * * *

Once a month.

(f) Participation in education.

The political directors of the local chapter; in the evenings or Sunday mornings, sport to be conducted concurrently. (For further details see AVM).

Twice a month.

* * * * *

2. Leader conferences in the county [Kreis]:

(a) County director and his staff every 8 to 14 days.

(b) If possible the county director is to arrange for a week end course of 1½ to 2 days duration. (Possibly at a county school [Kreisschule], with the participation of the directors of the county offices and local chapter directors.)

One every 3 months.

Purpose: To hear fundamental lectures, to gather socially in the presence of the bearer of sovereignty, to get to know each other, to overcome difficulties of personal and professional nature by a mutual exchange of thought.

In counties having a large number of local chapters, these courses can be divided. Participation in these conventions is compulsory and official duties are not constituted an excuse under any circumstances.

* * * * *

(d) The bearers of sovereignty will meet at least once a month with the leaders of the SA, SS, NSKK, HJ, as well as the RAD, and NSFK, in so far as they are located within their sector for mutual orientation.

3. Leader conferences in the District:

(a) District leaders [Gauleiter] with his staff every 8 to 14 days.

(b) It is further absolutely necessary that the directors of the GAU offices will meet with the county directors of their district once every three months for a three day convention (possibly at a district schooling castle) where they will have an opportunity to overcome difficulties of personal and professional nature, apart from hearing fundamental lectures, by social gatherings in the presence of the bearer of the sovereignty, by getting to know each other and by a mutual exchange of ideas. Participation in these conferences is compulsory and duty would not constitute an excuse under any circumstances.

(c) The arrangement of social meeting in the presence of leaders of the organizations of RAD and NSFK of the respective zone of sovereignty. In the course of these meetings differences of opinions may be straightened out in discussions.

(d) The bearer of sovereignty will meet at least once a month with the leaders of the SA, SS, NSKK, HJ, as well as the RAD and the NSFK who are within the zone for the purpose of mutual orientation.

[Page 98]

Bearers of Sovereignty—[Hoheitstraeger].

Sectors of Sovereignty—[Hoheitsgebiete].

Among the Political Directors [Politische Leiter] the Bearers of Sovereignty assume a special position. Contrary to the other Political Directors who have departmental missions and serve as advisers to the Bearers of Sovereignty, the Bearers of Sovereignty themselves are in charge of a geographical sector known as the Sector of Sovereignty [Hoheitsgebiete].

Bearers of Sovereignty are:

The Fuehrer.

The District Directors [Gauleiter].

The County Directors [Kreisleiter].

The Local Chapter Directors [Ortsgruppenleiter].

The Cell Directors [Zellenleiter].

The Block Directors [Blockleiter].

The Sectors of Sovereignty are:

The Reich.
The District.
The County.
The Local Chapter.
The Cell.
The Block.

Within their Sector of Sovereignty the Bearers of Sovereignty have sovereign political rights. They represent the Party within their Sector, internally and externally, and they are responsible for the entire political situation within their Sector. The Bearers of Sovereignty supervise all Party officers within their jurisdiction and they are responsible for the maintenance of discipline within their sector. On the other hand, the Directors of the Offices, etc., and of the affiliated organizations are responsible to their respective Bearers of Sovereignty as regards their specific missions apart from their responsibility towards their departmental superiors. The Bearers of Sovereignty are superior to all Political Directors, Managers, etc., within their sector. As regards personal considerations Bearers of Sovereignty, from a Local Chapter Director on up are endowed with special rights. They may, within the provisions of their general directives regarding personnel authorizations, appointments, leaves and dismissal of Political Directors, execute the judgments of the Party law courts which have jurisdiction within their Sector of Sovereignty.

The Bearers of Sovereignty of the Party are not to be administrative officials for a certain sector but are to move in a continuous vital contact with the Political Directors and the population within their sector. The Bearers of Sovereignty are responsible for the proper and good supervision of all members of the nation within their sector. The supervision within a Local Chapter of the NSDAP should, if possible, not be conducted through its business office but through the Blocks and Cells and by the Directors of those units. Through the arrangement of regular interview hours everyone should be given the opportunity to contact his Bearer of Sovereignty.

* * * The Party intends to achieve a state of affairs in which the individual German will find his way to the Party not only in cases of emergency but where the Party, upon its own initiative, as desired by the Fuehrer, will currently supervise and care for all members of the nation.

[Page 70]

POLITICAL LEADERS AND THE SA

The political leaders conduct the practical political work and care for the German nation.

The SA is the instrument of training and education through the Party. The parallel organizations, SS and NSKK, are charged with maintaining physical fitness and soldierly spirit within their organizations and with the possibility of commitment as an inner political troop.

* * * * *

Smooth cooperation in the service of the Movement and the avoidance of all petty jealousies is the absolute duty of both parties.

* * * * *

Mutual Leader Conferences.

To emphasize unity and to promote it, the following principles will apply:

Hoheitstrager [bearers of sovereignty], gauleiters, kreisleiters, etc., will meet at least once a month with the leaders of the SA, SS, NSKK, and HJ, as well as RAD and NSFK, as found within their zone for the purpose of mutual orientation.

More than that, it is desirable to invite the SA leader to other political Fuehrer talks and the political leader to the SA Fuehrer talks.

* * * * *

[Page 71]

The Hoheitstrager is responsible for the entire political appearance of the Movement within his zone. The SA leader of that zone is tied to the directives of the Hoheitstrager in that respect.

Requisitioning the SA.

The Hoheitstrager is the ranking representative of the Party to include all organizations within his zone. He may requisition the SA located within his zone from the respective SA leader if they are needed for the execution of a political mission. The Hoheitstrager will then assign the mission to the SA.

* * * * *

Should the Hoheitstrager need more SA for the execution of a political mission than is locally available, he then applies to the next higher office of sovereignty which, in turn, requests the SA from the SA office in his sector.

* * * * *

[Page 75]

POLITICAL LEADERS AND THE SS

The directives laid down with regard to the relationship to the SA are similarly applicable to the SS.

* * * * *

POLITICAL LEADERS AND THE NSKK

The directives laid down with regard to the relationship to the SA are similarly applicable to the NSKK.

[Page 76]

POLITICAL LEADERS AND THE HJ

The directives laid down with regard to the relationship to the SA are similarly applicable to the HJ.

In appointing leaders of the HJ and the DJ, the office of the HJ must procure the approval of the Hoheitstrager of his zone. This means that the Hoheitstrager can prevent the appointment of leaders unsuited for the leadership of youth. If his approval has not been procured, an appointment may be cancelled if he so requests.

* * * * *

The political leader has the right to requisition the HJ, in the same manner as the SA, for the execution of a political action.

* * * * *

[Page 76a]

THE POLITICAL LEADERS AND THE NS AVIATION CORPS (NSFK)

General Collaboration.

The ranking unit leader of the NSFK within the zone will be consulted during the general leader conferences by the Hoheitstrager of the NSDAP. Similarly, the Hoheitstrager or his deputy will be invited to general leader conferences and other meetings of the NSFK.

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[Page 76b]

THE POLITICAL LEADER AND THE REICH LABOR SERVICE

General Collaboration.

Although the Reich Labor Service is no longer an organization within the NSDAP—on the basis of the Labor Duty Law of 26 June 1935—the connection of this service with the Party is demonstrated by the appointment of the Reich Labor Leader to be Reichsleiter of the NSDAP.

To emphasize this union, the leaders of the Reich Labor Service within the zone will participate in the monthly leader conferences of the Hoheitstrager. More than that, it is desirable that the Reich Labor Leader will be invited to other political Fuehrer talks and, vice versa, the political leader to meetings of the Reich Labor Service.

[Page 77]

THE POLITICAL LEADER AND THE STATE

To achieve unity of Party and State, the Chief of the Party Chancellery has been given the powers of a Reich Minister. In fundamental questions, the official channels of all Party offices and organizations of the NSDAP with the ministries and other State authorities and, in the opposite direction, of all State offices with organizations of the Party go through the Party Chancellery. This method will assure unified procedure of the Party towards the State.

The Chief of the Party Chancellery must be heard prior to the appointment of any higher civil servant; he will indicate the judgment of the Party towards the person of the proposed civil servant. To make sure of agreement between the municipal administration and the Party, the deputy of the NSDAP will have a decisive voice in the appointment and dismissal of the mayor, the alderman, and the municipal councillors, and furthermore, in the following decisions of the mayor:

1. The decree of principal directives.
2. The bestowal of honorary citizen rights and honorary titles.

The Chief of the Party Chancellery appoints the deputy of the NSDAP. On the basis of his directives, the gauleiter appoints the deputies as follows: for town and country districts, the kreisleiter. If this official happens to be an employee of a municipality or of an inspectorate, a gau inspector will be appointed. In special cases, the gauleiter may appoint himself as deputy.

[Page 92]

Membership in Affiliated Organizations.

The tasks of the affiliated organizations are laid down by the chief offices of the Party which have jurisdiction in the zone of those organizations.

* * * * *

Only those organizations may claim to uphold the Fuehrer principle and the form of National Socialist organization and thus be recognized as promoting the continuation of State and people in the National Socialist sense who have found, and will find in the future, structure, supervision, and general character through the Party.

All others, living an existence of their own, are to be turned away as outsiders and must either change or disappear from public life.

[Page 99]

BLOCK OF THE NSDAP

A. BLOCKLEITER

1. Regional Sector.

The household: The household is the basic community upon which the block and cell system is built. The household is the organizational focal point of all the Germans united in an apartment and including roomers, domestic help, etc.

* * * * *

The block of the NSDAP consists of 40 to 60 households (if possible no more than 50).

* * * * *

2. Personnel Questions.

a. The blockleiter is Hoheitstrager of the NSDAP.

* * * * *

c. Subordination: Within the local chapter the blockleiter is subordinate to the cell leader in disciplinary matters.

d. Appointment: The blockleiter will be appointed by the Ortsgruppenleiter (local chapter director).

* * * * *

3. Tasks and Jurisdiction.

The blockleiter has jurisdiction over all matters within his zone relating to the Movement, and he is fully responsible to the cell leader.

* * * * *

[Page 101]

It is his duty to find people disseminating damaging rumors and to report them to the Ortsgruppe so that they may be reported to the respective State authorities.

The blockleiter must not only be preacher and defender of the National Socialist ideology towards the members of nation and Party entrusted to his political care, but he must also strive to achieve practical collaboration of the Party members within his block zone and he must make those of special talents and ability known to the Hoheitstrager.

[Page 102]

The blockleiter shall continuously remind the Party members of their particular duties towards the people and the State.

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Furthermore, the blockleiter completes a list (card file) about the households.

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[Page 103]

It is the blockleiter's aim to achieve to the greatest extent possible that the sons and daughters of families within his zone become members of the various formations of the HJ, SA, SS, NSKK, as well as the corresponding affiliated organizations of the Party, and the German Labor Front, that they visit the National Socialist meetings, rallies, celebrations, etc. In short, the blockleiter must be an untiring activist and propagandist of the Movement.

* * * * *

In principle, the blockleiter will settle his official business verbally, and he will receive messages verbally and pass them on in the same way. Correspondence will only be used in cases of absolute necessity and practicability.

[Page 104]

5. Attitude Towards Members of the Nation.

* * * * *

a. The blockleiter conducts National Socialist propaganda from mouth to mouth. He will eventually awaken the understanding of the eternally dissatisfied as regards the frequently misunderstood or wrongly interpreted measures and laws of the National Socialist government. He is to encourage the members of the nation to ask questions and he is to point out that they may go ahead and talk to him without having to expect difficulties. He will admonish them, however, to exercise discretion towards other members of the nation as regards loose talk. It is not necessary for him to fall in with complaints and gripes about possibly obvious shortcomings of any kind in order to demonstrate this solidarity, but he must always be eager to think in a positive manner and to influence those under his care by his attitude of confidence. * * *

b. A condition to gain the confidence of all people is to maintain absolute secrecy in all matters. * * *

[Page 110]

THE CELL OF THE NSDAP

A. CELL LEADER

1. Regional Sector.

The cell consists of four to eight blocks.

* * * * *

2. Personnel Questions.

a. The cell leader is the Hoheitstrager of the NSDAP immediately superior to the block leader.

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[Page 112]

3. Mission and Jurisdiction.

The missions of the cell leader correspond to the missions of the block leader.

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[Page 116]

THE LOCAL CHAPTER [ORTSGRUPPE] OF THE NSDAP

1. Regional Sector.

The zone of sovereignty includes one or more communities; if necessary, towns may be subdivided into several zones of sovereignty.

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[Page 119]

3. The Local Chapter Director.

I. Personnel Questions.

a. The Ortsgruppenleiter of the NSDAP in his capacity as Hoheitstrager is endowed with special rights.

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[Page 119a]

c. Place of Rank: The Ortsgruppenleiter is directly subordinate to the respective (County Director) [Kreisleiter].

d. Appointment: The Ortsgruppenleiter is appointed by the Kreisleiter.

* * * * *

[Page 120]

II. Mission and Jurisdiction.

(1) General Responsibility.

Contrary to the time before the assumption of power, the actions of the NSDAP are not limited to the care of its members but now include the care of the entire German nation. This results in the following basic conditions for the Ortsgruppenleiter and his office chiefs:

The Ortsgruppenleiter and his office chiefs must manage their Party duties in addition to the fulfillment of their professional and family duties.

Therefore, the proper conduct of Party tasks is only possible if the tasks of the individual and, in particular, the honorary co-workers of the Party are as limited as possible.

As Hoheitstrager, all expressions of the Party will emanate from him; he is responsible for the political and ideological leadership and organization within his zone of sovereignty.

The Ortsgruppenleiter carries the over-all responsibility for the political results of all measures initiated by the offices, organizations and affiliated associations of the Party. The Party office directors (office chiefs, etc.) within the staff of the Ortsgruppenleiter are the deputies of the Hoheitstrager in their respective offices.

The Ortsgruppenleiter has the right to protest to the Kreisleiter against any measures contrary to the interests of the Party with regards to a unified political appearance in public.

* * * * *

[Page 121]

(2) Special Tasks and Duties.

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c. Leader Conferences: The Ortsgruppenleiter has the duty to issue directives in regular conferences.

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[Page 130]

THE KREISLEITUNG OF THE NSDAP

[Page 131]

4. The County Director [Kreisleiter]

I. Personnel Questions.

a. Place of Rank: The Kreisleiter is directly subordinate to the Gauleiter.

* * * * *

c. Appointment: The Kreisleiter is appointed by the Fuehrer upon suggestion of the Gauleiter.

[Pages 132-133-134]

II. Mission and Jurisdiction of the Kreisleiter.

The Kreisleiter carries the over-all responsibility towards the Gauleiter within his zone of sovereignty for the political and ideological training and organization of the political leaders, the Party members, as well as the population.

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[Page 136]

GAULEITUNG OF THE NSDAP

The Gauleitung—Gauleiter and Gau staff—have the political leadership of a designated sector of the Reich and there they perform creative work.

1. Regional Sector.

The Gau represents the concentration of a number of Party counties [Parteikreis].

* * * * *

4. The Gauleiter.

The Gauleiter is directly subordinate to the Fuehrer. He is appointed by the Fuehrer.

The Gauleiter bears the over-all responsibility to the Fuehrer for the sector of sovereignty entrusted to him. The rights, duties, and jurisdiction of the Gauleiter result primarily from the mission assigned by the Fuehrer and, apart from that, from detailed directives.

* * * * *

[Page 140b]

7 B. Functions.

(1) The edition of the official gazette of the Gauleitung.

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(3) The central coordination office of the Gau directorate with the State authorities (Reich deputies, police, Gestapo, etc.). The arrangement of conferences between the Gauleiter and offices outside the Party (State, economy, and others) inasmuch as several Gau main offices or Gau offices are interested, in the presence of the respective professional Gau office directors.

(4) The installation of the M Section into the Gau staff office and, thus, the connection to the Armed Forces.

* * * * *

(7) Preparation of matters of pardon and commutation of sentence.

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[Page 141a]

C. Structure.

To be able to handle all these tasks the staff office director of the Gau is assigned the necessary number of co-workers. The above-mentioned tasks of the staff office director of the Gau are combined in the following main offices.

(1) Referee for questions of the Armed Forces (mobilization matters).

(2) Information and report matters.

(3) Pardon matters.

(4) Matters of interior conduct of business in as far as these are not a concern of the Gau treasurer.

(5) Chancellery for personal-official concerns of the Gauleiter and the Deputy Gauleiter.

(6) Law consultant of the Gau.

(7) Complaints and reception of visitors.

[Page 146]

THE FUEHRER

The recognition of the sociological mismanagement in pre-war Germany which prevented the growth of a genuine people's community, the front line experiences of the World War filled with the spirit of comradeship, and the disgust with the traitorous pacifist postwar Germany, matured the Fuehrer's decision to become a politician and to give the German people a state form which would assume its justified life interests for centuries.

To achieve this aim the Fuehrer created the National Socialist German Workers' Party. He filled it with his spirit and his will, and with it he conquered the power of the State on 30 January 1933. The Fuehrer's will is supreme in the Party. As supreme bearer of sovereignty in the Movement, he possesses the right of pardon in Party court matters.

By authority of the law about the Chief of State of the German Reich, dated 1 August 1934, the office of the Reich President has been combined with that of the Reich Chancellery. Consequently, the powers heretofore possessed by the Reich President were transferred to the Fuehrer, Adolf Hitler. Through this law, the conduct of Party and State has been combined in one hand. By desire of the Fuehrer, a plebiscite was conducted on this law on 19 August 1934. On this day, the German people chose Adolf Hitler to be their sole leader. He is responsible only to his own conscience and to the German nation.

To assist him, particularly in party-political questions, the Fuehrer uses the *Party Chancellery*.

The Chief of the Party Chancellery, to guarantee closest collaboration between the offices of the Party and the State authorities, has the powers of a Reich Minister and is a member of the Reich Cabinet.

With the execution of tasks particular to the Party, the Fuehrer has entrusted the *Reichsleiter* within the Reich Directorate of the NSDAP.

[Pages 148-149]

THE REICH DIRECTORATE OF THE NSDAP

The NSDAP represents the political conception, the political conscience, and the political will of the German nation. Political conception, political conscience, and political will are embodied in the person of the Fuehrer. Based on his directives and in accordance with the program of the NSDAP, the organs of the Reich Directorate directionally determine the political aims of the German people. It is in the Reich Directorate where the strings of the organization of the German people and the State meet. By endowment of the Chief of the Party Chancellery with the powers of a Reich Minister, and by special administrative directives, the penetration of the State apparatus with the political will of the Party is guaranteed. It is the task of the separate organs of the Reich Directorate to maintain as close a contact as possible with the life of the nation through their sub-offices in the Gaus. Observations at the front are to be collected and exploited by the offices of the Reich Directorate.

The structure of the Reich Directorate is thus that the channel from the lowest Party office upwards shows the most minute weaknesses and changes in the mood of the people, and that the directives thereby produced in the Reich Directorate will reach the outer command posts of the Party quickly and clearly.

The Reich Directorate, then, sees to it that the reports of the mood of the people will move from the lower to the higher echelons uninterruptedly and quickly, and that the will of the Fuehrer will reach the most distant branches quickly and accurately, even as in the healthy organism of a tree, where the roots receive the food from the soil and lead it into the leaves while the juices formed in the leaves are being sent to the most distant roots. This coordination guarantees an ever-renewed reception of power and an ever-strengthening anchorage of the roots, and it permits the crown to spread

further and further, to reach higher and higher, and yet to withstand wind and weather.

Since the National Socialist Movement has originated from the people, it is the most noble task of the Reich Directorate to watch that the strong roots of the Party—namely its ties within the nation—will not die off.

Another essential task of the Reich Directorate is to assure a good selection of leaders. It is the duty of the Reich Directorate to see that there is leadership in all phases of life, a leadership which is firmly tied to National Socialist ideology and which promotes its dissemination with all its energy.

Apart from the general great political tasks which are the responsibility of the Reich Directorate, it will also see that the Party is well organized in all its offices. For that purpose, the Reich Organization Leader exercises a continuous supervision of the organizations of the entire Party apparatus, and he prevents the birth of a bureaucracy which would paralyze the striking power of the Party. It is the supreme task of the Reich Organization Leader to preserve the Party as a well-sharpened sword for the Fuehrer.

The inner organization of the Reich Directorate serves for the execution of the above-named tasks. The number of its offices is so arranged that there will be a representation of all phases of national life within the Reich Directorate. The offices will have subordinate organizations in the other zones of sovereignty as may become necessary. The tasks, jurisdiction, etc., of the offices are further defined in detail in the following chapters.

PARTIAL TRANSLATION OF DOCUMENT 1903-PS

Decrees, Regulations, Announcements [Verfuegungen, Anordnungen, Bekanntgaben], Vol. II. Edited by the Party-Chancellery. Published by: Zentralverlag der NSDAP, Frz. Eher Nachf. GmbH., Muenchen. Page 510.

Decree of the Fuehrer on the execution of the decree concerning the Deputy General for the mobilization of labor [Arbeitseinsatz].

In the following the Fuehrer's decree on the extension of the authority of the Deputy General for the Arbeitseinsatz is made public:

“Decree of the Fuehrer on the execution of the decree concerning the Deputy General for the Arbeitsdienst of 30 September 1942.

I herewith authorize the Deputy General for the Arbeitseinsatz, Reich-governor and district-leader [Gauleiter] Fritz Sauckel to take all necessary measures for the enforcement of my decree referring to a Deputy General for the Arbeitseinsatz of 21 March 1942 (Reichsgesetzblatt I, Page 179) according to his own judgment in the Greater German Reich, in the Protectorate, and in the Government General [Generalgouvernement] as well as in the occupied territories, measures which will safeguard under all circumstances the regulated deployment of labor [geordneter Arbeitseinsatz] for the German war-economy. For this purpose he may appoint commissioners [Beauftragte] to the bureaus of the military and civilian administration. These are subordinated directly to Deputy General for the Arbeitseinsatz, in order to carry out their tasks. They are entitled to issue directives to the competent military and civilian authorities in charge of the Arbeitseinsatz and of wage-policy.

More detailed directives will be issued by the Deputy General for the Arbeitseinsatz.

Fuehrer-Headquarters 30 Sept 1942

The Fuehrer
Sign. Adolf Hitler

The Reichminister and Chief of the Reich-Chancery
Sign. Dr. Lammers

The chief of the German High Command
Sign. Keitel."

TRANSLATION OF DOCUMENT 1913-PS

1943 REICHSARBEITSBLATT, PART I, PAGE 588

Agreement between the Plenipotentiary General for the Arbeitseinsatz and the German Labor Front concerning the care of non-German workers

The Commissioner for the Four Year Plan

The Plenipotentiary General for the Arbeitseinsatz VIc 5783/291

Berlin, 20 Sept. 1943

To the presidents of the Gau employment offices and
to the Reich Trustees of Labor
as well as to the directors of the employment offices.

AGREEMENT

The following agreement has been concluded between the Plenipotentiary General for the Arbeitseinsatz, Gauleiter and Reich Governor [Reichstatthalter] Sauckel and the Reichsleiter of the German Labor Front, Reichsorganisation leader Dr. Ley.

1. The German Labor Front, on the basis of decree Nr 4 of the Plenipotentiary General for the Arbeitseinsatz of 7 May 1942—GBA 405/42 (Nr 2b) has the sole and exclusive mission of caring for all foreign workers employed within the Reich. Excluded are the farm workers employed in the Reich food administration.

2. The Reichsleiter of the German Labor Front, Reichsorganisationleiter Dr. Ley, in collaboration with the Plenipotentiary General for the Arbeitseinsatz, Gauleiter Sauckel, will establish a “central inspection” for the continuous supervision of all measures concerning the care of the foreign workers mentioned under 1. This will have the designation:

“Central inspection for the care of foreign workers.”

The central inspection for the care of foreign workers exercises its functions upon directives and in the name of the Plenipotentiary General for the Arbeitseinsatz and of the Reichsleiter of the German Labor Front. In order to avoid all duplication of work, it will be its sole responsibility, to scrutinize all measures taken for the care of foreign workers employed in the factories and camps, also to remove immediately all defects discovered—as far as possible—on the spot and to issue the necessary instructions for this.

The authority of the Plenipotentiary General for the Arbeitseinsatz to empower the members of his staff and the presidents of the state employment offices to get direct information on the conditions regarding the employment of foreigners in the factories and camps, will remain untouched.

3. The central inspection for the care of foreign workers will be continuously in touch with the main office VI of the Plenipotentiary

General for the Arbeitseinsatz. It will instruct the office on the general observations made and will make suggestions for changes, if that should become necessary.

4. The offices of the administration of the Arbeitseinsatz will be constantly informed by the “central inspection for the care of foreign workers” of its observations, in particular immediately in each case in which action of State organizations seems to be necessary.

This agreement becomes effective on the day of its signing.

Berlin, 2 June 1943

Dr. Robert LEY

Fritz SAUCKEL

For the carrying out of this agreement I order the following:

1. The supervision of all welfare measures in the realm of the employment of foreign workers is the sole responsibility of the central inspection for the care of foreign workers. Complaints about bad quarters, food, deficient provision of free time activities and cultural and propagandistic care will in the future be directed by me to the central inspection for investigation and elimination of possible deficiencies. The labor offices and Gau labor offices must direct complaints and protests coming to them to the locally competent office of the German Labor Front.

The central inspection will inform the Plenipotentiary General for Arbeitseinsatz regarding its decisions and the measures instituted by it and their completion.

2. The employment of foreign workers, their identification, equalization between the plants, transfers, supervision of practical and vocationally correct employment in the plant, the promotion of instructional measures to increase production, as well as drafting of the labor-contract regulations, the carrying out of pay regulation measures, and the supervision of the orderly paying of foreign workers, remain as formerly the task of the competent offices of the administration of the Arbeitseinsatz and Reich trusteeship.

3. The directives for the employment of eastern and western laborers given in Va 5780.28/90 of 9 January and Va 5780/196 of 4 February 1943 remain in force with the provision that the labor offices and Gau labor offices and the specialists employed with them for the inspection of camps for eastern laborers need only undertake the tasks mentioned under No. 2.

4. The close interrelationship of the tasks of the Arbeitseinsatz and the care of foreign labor demands, independently of the measures to be effected, for the execution of the above agreement, a constant and close cooperation between the offices of the administration of the Arbeitseinsatz and the offices of the German labor front. If, for example, it is determined in the execution of Arbeitseinsatz measures, that an insufficient labor performance on the part of foreign labor results from absence of welfare work, then the competent agencies of the German Labor Front are to be informed of this without delay so that the latter may effect the correction of existing deficiencies. On the other hand the offices of the German Labor Front will bring to the attention of the competent agencies of the Arbeitseinsatz administrative findings made in the course of their welfare work which require an evaluation from the point of view of the Arbeitseinsatz.

For the adjustment of individual questions of cooperation between the offices concerned and the erection of a permanent exchange of findings the Gau labor offices will enter into negotiations with the appropriate administration [Gauwaltungen] of the German Labor Front and will inform the labor offices on the rulings effected for the districts.

By order

Dr BEISIEGEL

TRANSLATION OF DOCUMENT 1914-PS

Decrees, Regulations, Announcements [Verfuegungen, Anordnungen, Bekanntgaben], 1st part, 1943 Edition—Editor: The Party Chancellery. Published by the Central Publishing House of the NSDAP, Franz Eher, successor, Muenchen. Pages 318-320.

AGREEMENT

The following agreement between the Reich Minister for the Occupied Eastern Territories, Reichsleiter Alfred Rosenberg and the director of the

German Labor Front, Reichsorganisationsleiter Dr. R. Ley, was reached today:

I. On the basis of the agreement reached on June 2, 1943, between the Deputy General for the Arbeitseinsatz, Gauleiter Fritz Sauckel and the leader of the German Arbeitsfront, Reich Organisationsleiter Dr. R. Ley, concerning a “Central inspection for the care of foreign laborers”, in order to avoid in the future duplication of work and overlapping in plants and camps in which foreign workers are employed or housed, special inspections of the plants and community camps will be effected only by the central inspection. In order to secure cooperation between the Reich Ministry for the occupied Eastern territories and the Central Inspection, a liaison agency will be created in the Reich Ministry for the Occupied Eastern Territories.

II. The Central Inspection for the care of foreign laborers is directed to give upon request the liaison office of the Reich Minister for the Occupied Eastern Territories, all information in questions related to the care of foreigners.

III. If, in special cases, the Reich Minister for the Occupied Eastern Territories considers that a committee should be dispatched in order to inspect camps and plants, this will be done with the consent and cooperation of a representative of the central inspection for the care of foreign workers.

IV. However, the leader of the liaison agency will have at any time access to the community camps and plants in which workers from the Occupied Eastern Territories are housed or employed. Nevertheless, in these cases too the central inspection will have to be given advance notice of the intended inspections.

V. This agreement comes into force on the day of signing.

AGREEMENT

1. A liaison office of the Propaganda Ministry to the German Labor Front is established in the office of the Arbeitseinsatz between the Reichminister for

Enlightenment and Propaganda, Dr. Goebbels and the Director of the German Labor Front, Reichsorganisationsleiter Dr. Ley as the result of the agreement reached on 2 June 1943, between the Deputy General for the Arbeitseinsatz, Gauleiter Fritz Sauckel and the Director of the German Labor Front, Dr. Ley about the establishment of a “Central inspection for the care of foreign laborers”.

2. A similar agency will be created in the Gau administrations between the Reich Propaganda Office and/or the Gau Propaganda Office and the main section of the Arbeitseinsatz of the German Arbeitsfront.

3. The liaison agencies have to see that all the measures for caretaking should be carried out in closest cooperation.

4. In order to secure this cooperation, it will be ascertained that all reports, especially those of the central inspection, should be currently maintained to liaison agents.

5. The liaison agents will be currently notified of the visits to camps and plants effected by the German Arbeitsfront and by the delegates of the Central Inspection; it will be at their discretion to take part in these visits in person or by a representative. In special cases the liaison agent or his representative can also visit camps and plants after notifying the DAF.

6. This agreement comes into force on the day of signing.

Chief of Security Police and SD.

IV D—626/43 (ausl Arb.)

Berlin
June 21, 1943
Night Letter!

To the inspectors of the Security Police and of the SD.

Subject: Central inspection for the care of foreign laborers.

For the permanent control of all measures for the care of foreign workers employed in the Reich—except in agriculture—the leader of the DAF has

created:

“Central Inspection for the care of foreign labor”, in cooperation with the Deputy General for Arbeitseinsatz.

This Central inspection has the task of supervising all the measures for the care of foreign labor in plants and camps, of correcting the detected flaws right on the spot, as far as possible and to issue the directives which are necessary for this purpose.

The leader of Central Inspection for the care of foreign labor is the Hauptdienstleiter of the NSDAP.

Party member Otto Gohdes.

The erection and tasks of this central inspection will not interfere with the measures for which the Security Police and SD are responsible. The preventive tasks of the police which aims at an orderly treatment and care of foreign laborers to avoid incidents undesirable from the standpoint of the Security Police, will be considerably supported and secured by the central inspection and its delegates. The delegates of the central inspection for the care of foreign laborers are instructed to carry out their activities in close cooperation with the agencies of the Security Police and of the SD, particularly with the State Police (directive) agencies. I request, therefore, that close cooperation be afforded the delegates of the central inspection, that they be strongly assisted and taken everywhere committed, even where the care of foreign laborers does not forward the interests of the Security Police and the SD.

Care of laborers of a German blood.

In order to do justice to the particular position of people of German blood [Volksdeutschen], the DAF—Office of the Arbeitseinsatz—has confidentially instructed its agencies to carry out the care of Volksdeutschen in cooperation with the agencies of the Volksdeutschen information office and to avoid that foreign liaison agencies should take care of the Volksdeutschen workers. In the future, the DAF and the State Labor Office will not submit to the foreign liaison agencies such plants which employ only Volksdeutschen from the country in question.

TRANSLATION OF DOCUMENT 1915-PS

1938 REICHSGESETZBLATT, PART I, PAGE 111

Decree concerning the leadership of the Armed Forces, 4 February 1938

From now on, I take over directly the command of the whole Armed Forces.

The former Armed Forces department in the Reichs War Ministry will come directly under my command with all its tasks which it fulfilled under the jurisdiction of the “supreme command of the Army” and my military staff.

At the head of the staff of the supreme command of the Armed Forces is the former Chief of the Armed Forces department as “Chief of the supreme command of the Armed Forces”. He is equal in rank to a Reichs Minister.

At the same time, the supreme command takes the responsibility for the affairs of the Reichs Ministry of War, and by my order, the chief of the supreme command of the Armed Forces exercises the authority formerly belonging to the Reichs Minister.

It is the supreme command of the Armed Forces’ duty to carry out in peace time in accordance with my instructions, the preparation of the defense system of the Reich.

Berlin 4 February 1938

The Fuehrer and Reichs Chancellor
Adolph Hitler

The Reichs Minister and Chief
of the Reichs Chancellery
Dr. Lammers

The Chief of the Supreme Command
of the Armed Forces
Keitel

PARTIAL TRANSLATION OF DOCUMENT 1918-PS

HIMMLER’S ADDRESS TO OFFICERS OF THE SS-LEIBSTANDARTE
“ADOLF HITLER” ON THE “DAY OF METZ” (PRESENTATION OF
HISTORICAL NAZI FLAG).

Now I would like to bring another matter to your attention. Very frequently the member of the Waffen-SS thinks about the deportation of this people here. These thoughts came to me today when watching the very difficult work out there performed by the Security Police, supported by your men, who help them a great deal. Exactly the same thing happened in Poland in weather 40 degrees below zero, where we had to haul away thousands, ten thousands, hundred thousands; where we had to have the toughness—you should hear this but also forget it again immediately—to shoot thousands of leading Poles, where we had to have the toughness, otherwise it would have taken revenge on us later. We also had to bring in, in this winter of 40 degrees below zero, ten thousands of Germans, and had to take care of their needs—that the women were warm; that, when they bore children, these children did not experience want and destitution; where we had to take care of their horses; where we had to take care of the baggage of these poor Germans from Volkynia; all duties where the proud soldier says: “My God, why do I have to do that, this ridiculous job here...!” Gentlemen, it is much easier in many cases—and that I would like to tell you this once, or would like to recall to you, you will gladly admit: in many cases it is much easier to go into combat with a company than to suppress an obstructive population of low cultural level in some area with a company, or to carry out executions, or to haul away people, or to evict crying and hysterical women, or to return our German racial brethren across the border from Russia and to take care of them. I want to tell you: In the entire Waffen-SS we must begin to view the other great activity of the entire SS [Gesamt-SS] and entire police. We must see to it that you consider the activity of the man in green uniform as just as valuable as the activity you yourself are engaged in. You have to consider the work of the SD man or of the man of the Security Police as a vital part of our whole work just like the fact that you can carry arms. You are the ones to be envied, because if you do something, if a unit achieves fame, then one can talk of fame, and it can be decorated. It is much more difficult in many other positions—and with that I do not want to underestimate your achievements; I would be the last one to do that—but, believe me, in many places it is much more difficult, this silent work-compulsion, this silent activity, this standing guard over our ideology, this necessity of remaining steadfast, this necessity of not compromising is very much more difficult in places. Now I want to tell you something else; I mentioned before that we absolutely were in danger of suffocating within

ourselves, within the leadership corps [Fuehrerkorps]. There did not seem to be a way out. Either we would have become senile or we had to kick the people out too soon. Today, in the future, in time of peace, the possibility does not exist that a man, or a leader, provided he is worth his salt, does not perform valuable work in some position or that satisfactory work is not assigned to him. Of course we will do it in such a way—let there be no doubt about it—that we put the most capable ones into each position. In other words, if there are four company commanders, the most capable one will be promoted to battalion commander, the one who is best fitted for that activity. The other three, or the other 2, will be utilized in some activity which is just as valuable, but for which he is better adapted. In general, everyone should understand that the course of the past two years, which were pure war years with preparation for war, are of course not completed, education for Political Officers will become much more strongly emphasized. I would like to use this word for once, Political Leader, Political Officer. A period will commence where someone will be platoon leader in the Waffen SS for 3 or 4 years. During that time he will attend this training course or that, and already as a young leader he will come to know the sphere of activity of all other branches in the SS, in courses lasting 6 to 8 weeks. From the beginning it will then happen that mutual understanding sets in, mutual esteem and the absolute conviction that the duties of the other guy are very, very difficult, and are very, very valuable. On the other hand, I will not allow any branch to grow where the leading men, the members of the Fuehrerkorps, are not at least reserve leaders of the Armed SS and did not get at least far enough to be able to lead a company as reserve leader. This way coherence will be achieved which is necessary. I believe that you can get an idea from what I said to the men today—and you as leaders can add to it by drawing your own conclusions—what the entire SS will have to do in order to secure our Reich, I mean in the first place with respect to ideology and safeguarding of the race [Blut] by settlements and extending of our Lebensraum, with respect to the work in colonies, and we shall have garrisons far away in South-Africa, and we shall have garrisons in the Arctic winter, as we have not in Kirkenes, that is up there on the North cape we are also going to have a garrison of a few battalions, we shall have garrisons on the Bug, and we shall now have garrisons in the West, where certainly Metz will not be the most distant western frontier. If we think the right way, some things will be of decisive

importance. You would be surprised if I wanted to carry out immediately after the war when peace begins with an iron hand what I indicated today in my class with the men, that we must win the peace and be hard against ourselves. The first two years of peace will be decisive for our future. After victory we must nowhere become megalomaniacs, we must not relax in any respect but we must start an unheard-of education of ourselves. It is necessary, that obedience be granite-like, or else it would be impossible to have distant garrisons like Kirkenes which at times cannot be reached even by modern means, or colonial garrisons, if the officers there, the leader there, does not act strictly [eisern] in accordance with his orders and would take any consequences rather than disregard in any way an order, a basic order, given.

We shall have to do one thing: After the war we shall apply an unheard-of discipline against ourselves as far as external values are concerned they also are important. Whether it concerns our clothes or anything else, because you see, it is a great plus and a great danger at the same time, that what we are doing after the war, during Adolf Hitler's life, will live on for centuries to come, and if we make a mistake, the mistake will live on for centuries, because silly descendants will say: "Yes this is what they did in Adolf Hitler's time, consequently we must act likewise!" If we strike up a wrong tune, this wrong tune will resound through centuries. And mistakes unfortunately do grow in dimension the longer they are continued. Therefore, it is necessary that we train ourselves in the future in an unheard-of way. I believe it is not the right thing for us to do to discuss these worries which I have with each one of you separately. The one or the other among you who talks here and there like a fool and believes he must talk wildly in the Cassino might say: "For Heaven's sake, those people up there don't know, they have not the slightest idea!" Our idea goes very far and I know exactly what is going on within the troop, know exactly what they think and how they feel. You must also consider the following: I cannot concentrate my mind solely on—now, please don't become conceited—the most splendid part of the SS because it is the most positive part and because the trade you are following is the most positive and most manly, I cannot do that, I must always have the entire SS in my mind.

If I did not see this part, I would deny life to this most positive and most manly part of our activity; i.e., the Armed SS. I would deny your life.

Because this armed SS will live only if the entire SS is alive. If the entire corps is actually an order which lives according to these laws and realizes that one part cannot exist without the other—you are unimaginable without the general SS, and the latter is not imaginable without you. The police is not imaginable without the SS, nor are we imaginable without this executive branch of the state which is in our hands. The Fuehrercorps is not imaginable without the national-political institutions of education which we are building up now, and vice versa we cannot fill up our ranks without contact with the youth, we cannot exist without the business enterprises. A field which probably is unknown to most of you because nothing has ever been said about it. I want to tell you just a little bit of it: The apartment-building program which is the prerequisite for a healthy and social basis of the entire SS as well as of the entire Fuehrercorps can be carried out only when I get the money for it from somewhere; nobody is going to give me the money, it must be earned, and it will be earned by forcing the scum of mankind, the prisoners, the professional criminals to do positive work. The man, guarding these prisoners, serves just as hard as the one on close-order drill. The one who does this and stands near these utterly negative people will learn within 3 to 4 months * * * and we shall see: In peacetime I shall form guard-battalions and put them on duty for 3 months only—to fight the inferior being [Untermenschentum], and this will not be a boring guard duty, but if the officers handle it right, it will be the best indoctrination on inferior beings and the inferior races. This activity is necessary, as I said, 1. to eliminate these negative people from the German people, 2. to exploit them once more for the great folk community by having them break stones and bake bricks so that the Fuehrer can again erect his grand buildings and 3. to in turn invest the money, earned soberly this way, in houses, in ground, in settlements so that our men can have houses in which to raise large families and lots of children. This in turn is necessary because we stand or die with this leading blood of Germany and if the good blood is not reproduced we will not be able to rule the world. Please understand: We would not be able to hold the great Germanic Reich which is about to take shape. I am convinced, that we can hold it, but we have to prepare for that. If we once had not enough sons those who will come after us will have to become cowards. A nation which has an average of 4 sons per family can venture a war: if 2 of them die, 2 transplant the name. The leadership of a nation having one son or two sons per family will have to be faint-hearted

at any decision on account of their own experience because they will have to tell themselves: We cannot afford it. Look at France, which is the best example. France had to accept from us a dictate. It could no longer dictate to us because they could not continue. All the things which sometimes seem strange to you because other things were more urgent during the last 2 years, because I could not explain them sufficiently to you, the leaders, because sometimes I did not explain them to you in order not to make too public what was just starting life, so that the tender nursling would not be pulled out by people who don't like us. I preferred that very often not even my own troops knew anything about it and let the small nursling secretly grow into a small tree. Then when it is big, nowadays everything is big, now the trees are not being uprooted. Everything that seemed strange to you: "Why do we have to contribute to the spring of life [Lebensborn]?" "Why do we have to join the saving's cooperative?" "Why do we have to do this and to do that?" If anything like that turns up, I demand from you in future:

In the first place be SS men who have the creed that everything being done is all right. One piece fits the other, even if you don't recognize it beforehand, even if it does not appear at first sight that they fit each other. In the end, everything will be all right. The ultimate aim for those 11 years during which I have been the Reichsfuehrer SS has been invariably the same: To create an order of good blood which is able to serve Germany. Which unfailingly and without sparing itself can be made use of because the greatest losses can do no harm to the vitality of this order, the vitality of these men, because they will always be replaced. To create an order which will spread the idea of nordic blood so far that we will attract all nordic blood in the world, take away the blood from our adversaries, absorb it so that never again, looking at it from the viewpoint of grand policy, nordic blood in great quantities and to an extent worth mentioning will fight against us. We must get it and the others cannot have it. We never gave up the ideas and the aim conceived so many years ago. Everything we did has taken us some distance further on the way. Everything we are going to do will lead us further on the way. It can only be carried out, if everyone of us looks beyond the things he likes in his activity, his company, his regiment—and you are supposed to love it you may be proud of it—looks beyond it towards the great common goal, here the SS, and the SS also is only a

means to an end, always the Reich, the ideology, created by the Fuehrer, the Reich, created by him, the Reich of all teutons.

PARTIAL TRANSLATION OF DOCUMENT 1919-PS

Speech of the Reichsfuehrer-SS at the meeting of SS Major-Generals at
Posen October 4th, 1943

The 1941 attack

In 1941 the Fuehrer attacked Russia. That was, as we can well see now, shortly,—perhaps 3 to 6 months—before Stalin prepared to embark on his great penetration into Central and Western Europe. I can give a picture of this first year in a few words. The attacking forces cut their way through. The Russian Army was herded together in great pockets, ground down, taken prisoner. At that time we did not value the mass of humanity as we value it today, as raw material, as labour. What after all, thinking in terms of generations, is not to be regretted, but is now deplorable by reason of the loss of labour, is that the prisoners died in tens and hundreds of thousands of exhaustion and hunger [p. 3].

It is basically wrong for us to infuse all our inoffensive soul and spirit, our good-nature, and our idealism into foreign peoples [p. 22]. This is true since the time of Herder who clearly wrote “Voices of the Nations” [Stimmen der Voelker], in a state of drunkenness, thereby bringing [p. 23] on us, who come after him, such immeasurable sorrow and misery. This is true for instance, of the Czechs and the Slovenes to whom we gave their consciousness of nationality. They were just not capable of it themselves; we had to discover it for them.

One basic principle must be the absolute rule for the SS man: we must be honest, decent, loyal, and comradely to members of our own blood and to nobody else. What happens to a Russian, to a Czech does not interest me in the slightest. What the nations can offer in the way of good blood of our type, we will take, if necessary by kidnapping their children and raising them here with us. Whether nations live in prosperity or starve to death [verrecken—to die—used of cattle] interests me only in so far as we need them as slaves for our Kultur; otherwise, it is of no interest to me. Whether 10,000 Russian females fall down from exhaustion while digging an anti-tank ditch interests me only in so far as the anti-tank ditch for Germany is

finished. We shall never be rough and heartless when it is not necessary, that is clear. We Germans, who [p. 24] are the only people in the world who have a decent attitude towards animals, will also assume a decent attitude towards these human animals. But it is a crime against our own blood to worry about them and give them ideals, thus causing our sons and grandsons to have a more difficult time with them. When somebody comes to me and says, "I cannot dig the anti-tank ditch with women and children, it is inhuman, for it would kill them," then I have to say, "You are a murderer of your own blood because if the anti-tank ditch is not dug, German soldiers will die, and they are sons of German mothers. They are our own blood." That is what I want to instil into the SS and what I believe have instilled into them as one of the most sacred laws of the future. Our concern, our duty is our people and our blood. It is for them that we must provide and plan, work and fight, nothing else. We can be indifferent to everything else. I wish the SS to adopt this attitude to the problem of all foreign, non-Germanic peoples, especially Russians. All else is vain, fraud against our own nation and an obstacle to the early winning of the war.

Foreigners in the Reich

We must also realize that we have 6 to 7 million foreigners in Germany. Perhaps it is even 8 million now [p. 43]. We have prisoners in Germany. They are none of them dangerous so long as we take severe measures at the merest trifle. It is a mere nothing today to shoot 10 Poles, compared with the fact that we might later have to shoot tens of thousands in their place, and compared to the fact that the shooting of these tens of thousands would then be carried out even at the cost of German blood. Every little fire will immediately be stamped out and quenched, and extinguished,—otherwise—as in the case of a real fire—a political and psychological surface-fire may spring up among the people.

The Communists in the Reich

I don't believe the Communists could attempt any action, for their leading elements, like most criminals, are in our concentration camps. And here I must say this—that we shall be able to see after the war what a blessing it was for Germany that, in spite of all the silly talk about humanitarianism, we imprisoned all this criminal sub-stratum of the German people in concentration camps: I'll answer for that. If they were going about free, we

should be worse off. For then the sub-humans would have [p. 44] their NCOs and Commanding Officers, then they would have their councils of workers and military. As it is, however, they are locked up, and are making shells or projectile cases or other important things, and are very useful members of human society.

The SS in wartime

Now I come to our own development, to that of the SS in the past months. Looking back on the whole war, this development was fantastic [p. 51]. It took place at an absolutely terrific speed. Let us look back a little to 1939. At that time we were a few regiments, guard units [Wachverbaende] 8 to 9,000 strong,—that is, not even a division, all in all 25 to 28,000 men at the outside. True, we were armed, but really only got our artillery regiment as our heavy arm two months before the war began. We will recapitulate which tasks, which duties, and which assignments we have been given in the last 4½ years. But first I would like to enumerate and make known once more some outward changes.

Changes in Personnel

The following changes have taken place at the Main Offices:

Our comrade, SS Lieutenant General Kaltenbrunner has succeeded our fallen friend Heydrich. Unfortunately he is ill today. He has phlebitis, but it is, I am glad to say, not dangerous. That [p. 52] is why he could not come.

Our old friend Daluge has such severe heart trouble that he has to undergo courses of treatment and now has to retire from active service for 1½ to 2 years.—I would like this evening to send our two friends, Daluge especially, and Kaltenbrunner too, a teleprint or a telegram in the name of all of us. As I have said, we may hope that Daluge will have recovered in about two years, and can then return to the front and get into harness.

SS Lieutenant General Wuennenberg is in charge as his deputy. He has been in charge of the police division up till now, and was then appointed to be Officer Commanding IVth SS armored corps. He is General of the Waffen-SS and the police, and is in charge of the uniformed regular police [ordnungspolizei] as their Head.

SS-Gruppenfuehrer Breithaupt has succeeded our old comrade and friend Scharfe as Chief of the SS-court of justice.

SS-Obergruppenfuehrer Hofmann has made a change. He has given up the Main office for race and settlement [Rasse—u. Siedlungshauptamt] and has become Senior Executive SS and Police Officer [Hoehre SS—und Polizeifuehrer] for the South-West.

SS-Obergruppenfuehrer Hildebrandt has left Oberabschnitt Weichsel, and has become Chief of the Main Office for race and settlement [p. 53].

SS-Obergruppenfuehrer Schmidt has left the Head Office for Personnel at his own request and has joined my personal staff for special duties. He is succeeded by SS-Gruppenfuehrer von Herff.

One of my closest and most long-standing colleagues, SS-Obergruppenfuehrer Wolff, has now, I am glad to say, recovered completely from a severe illness which greatly endangered his life—(it was an operation for removing stones from the kidney)—and is now,—this is a new appointment—Supreme Executive SS and Police Officer for the whole of occupied Italy. He therefore has charge of 25 to 30 million people. Under him he has SS-Gruppenfuehrer Globocnik as Senior Executive SS and Police Officer for the coastal area. He too could not come today.

Senior Executive SS and Police Officers have since been appointed as follows: for Croatia—Kammerhofer, who on account of the Croats is not called Senior Executive SS and Police Officer, but Commissioner of the Reichsfuehrer SS; for Serbia, Meyszner was appointed earlier, for Greece—[p. 54] Stroob at the moment but—I would like to tell you this now—I am transferring him from there to Schimana. Officials in Greece will become Senior Executive SS and Police Officers, and thus not command the Galician SS—Volunteer Division. SS-Gruppenfuehrer Pancke is to become Senior Executive SS- and Police Officer for Denmark.

Chief of the Anti-partisan Units [Bandenkampf-Verbaende]

In the meantime I have also set up the department of Chief of the anti-partisan units [p. 57]. Our comrade SS-Obergruppenfuehrer von dem Bach is Chief of the anti-partisan units. I considered it necessary for the Reichsfuehrer SS to be in authoritative command in all these battles, for I am convinced that we are best in a position to take action against this enemy struggle, which is a decidedly political one. Except where the units

which had been supplied and which we had formed for this purpose were taken from us to fill in gaps at the front, we have been very successful.

It is notable that, by setting up this department we have gained [p. 58] for the SS in turn a division, a corps, an army, and the next step, which is the High Command of an army or even of a group—if you wish to call it that.

Regular uniformed Police and the Sipo

Now to deal briefly with the tasks of the regular uniformed police and the Sipo. They still cover the same field. I can see that great things have been achieved. We have formed roughly 30 police regiments from police reservists and former members of the police—police officials as they used to be called. The average age in our police battalions is not lower than that of the Security battalions of the Armed Forces. Their achievements are beyond all praise. In addition, we have formed Police Rifle Regiments by merging the police battalions of the “savage peoples”. Thus we did not leave these police battalions untouched but blended them in the ratio of about 1:3. That is why we have, at the present moment of crisis, a far greater stability than could be seen among the other units made up of natives or local inhabitants.

SS-industrial concerns

I now come to other individual great spheres of activity, of which it is important for you all to know [p. 63]. We have huge armament works in the concentration camps. This is the sphere of activity of our friend SS-Obergruppenfuehrer Pohl. Every month we put in many millions of hours of work for armaments. We tackle the most thankless tasks and—I must give this its [p. 64] due—whether in the concentration camps, in Pohl’s industrial works, or outside at the offices of the Senior Executive SS and Police Officers or in the workshops of the Head Office of SS administration, one thing is obvious: wherever we are, we are SS-men. Where things are in a bad way, we act. I want every subordinate trained to this end. We want to help, unhampered by quibbles regarding authority, for we want to win the war. What we are doing, we are doing for Germany. Whether it is a question of building a road, if a tunnel is not going ahead somewhere, or if it is an invention which for sheer red-tape does not come to fruition, or anything else; where we can get to work, we get to work. What we are doing in our

armament works will be a remarkable and noteworthy achievement, even if we can only assess it and prove it when the war is ended.

The Clearing out of the Jews

I also want to talk to you, quite frankly, on a very grave matter. Among ourselves it should be mentioned quite frankly, and yet we will never speak of it publicly. Just as we did not hesitate on June 30th, 1934 to do the duty we were bidden, and stand comrades who had lapsed, up against the wall and shoot them, so we have never spoken about it and will never [p. 65] speak of it. It was that tact which is a matter of course and which I am glad to say, is inherent in us, that made us never discuss it among ourselves, never to speak of it. It appalled everyone, and yet everyone was certain that he would do it the next time if such orders are issued and if it is necessary.

I mean the clearing out of the Jews, the extermination of the Jewish race. It's one of those things it is easy to talk about—"The Jewish race is being exterminated", says one party member, "that's quite clear, it's in our program—elimination of the Jews, and we're doing it, exterminating them." And then they come, 80 million worthy Germans, and each one has his decent Jew. Of course the others are vermin, but this one is an A-1 Jew. Not one of all those who talk this way has witnessed it, not one of them has been through it. Most of *you* must know what it means when 100 corpses are lying side by side, or 500 or 1000. To have stuck it out and at the same time—apart from exceptions caused by human weakness—to have remained decent fellows, that is what has made us hard. This is a page of glory in our history which has never been written and is never to be [p. 66] written, for we know how difficult we should have made it for ourselves, if—with the bombing raids, the burdens and the deprivations of war—we still had Jews today in every town as secret saboteurs, agitators and trouble-mongers. We would now probably have reached the 1916/17 stage when the Jews were still in the German national body.

We have taken from them what wealth they had. I have issued a strict order, which SS-Obergruppenfuehrer Pohl has carried out, that this wealth should, as a matter of course, be handed over to the Reich without reserve. We have taken none of it for ourselves. Individual men who have lapsed will be punished in accordance with an order I issued at the beginning, which gave this warning: Whoever takes so much as a mark of it, is a dead man. A

number of SS men—there are not very many of them—have fallen short, and they will die, without mercy. We had the moral right, we had the duty to our people, to destroy this people which wanted to destroy us. But we have not the right to enrich ourselves with so much as a fur, a watch, a mark, or a cigarette or anything else. Because we have exterminated a bacterium we do not want, in the end, to be infected by the bacterium and die of it. I will not see so much as a small area of sepsis appear here or gain a [p. 67] hold. Wherever it may form, we will cauterize it. Altogether however, we can say, that we have fulfilled this most difficult duty for the love of our people. And our spirit, our soul, our character has not suffered injury from it.

The bearing of the SS-man

If I make a statement for us all and in the presence of all of us of all that we have done this year in the form of—I would almost say—a statement of accounts, then there is one thing that I must not overlook and pass over: the significance of the bearing of the SS-man.

The Principle of Selection

We are a product of the law of selection [p. 70]. We have made our choice from a cross-section of our people. This people came into being aeons ago, through generations and centuries, by the throw of the dice of fate and of history. Alien peoples have swept over this people and left their heritage behind them. Alien blood-streams have flowed into this people, but it has, nevertheless in spite of terrible hardships and terrible blows of fate, still had strength in the very essence of its blood to win through. Thus this whole people is saturated with, and held together by Nordic-Phalian-Germanic blood, so that after all one could, and can, still speak of a German people. From this people, of such varied hereditary tendencies, as it emerged from the collapse after the years of the battle of liberation, we have now consciously tried to select the Nordic-Germanic blood, for we could best expect this section of our blood to contain the creative, heroic and life-preserving qualities of our people. We have gone partly by outward appearances, and for the rest have kept these outward appearances in review by making constantly new demands, and by repeated tests both physical and mental, both of the character and the soul. Again and again we have sifted out and cast aside what was [p. 71] worthless, what did not suit us. Just as long as we have strength to do this will this organization remain healthy.

The moment we forget the law which is the foundation of our race, and the law of selection and austerity towards ourselves, we shall have the germ of death in us, and will perish just as every human organization, every blossom in this world does some time perish. It must be our endeavour, our inner law, to make this blossoming and fructifying last for our people as long as possible, bringing as much prosperity as possible, and—don't be alarmed—if possible for thousands of years. That is why, whenever we meet and whatever we do, we must be mindful of our principle: blood, selection, and austerity. The law of nature is just this: What is hard is good; what is vigorous is good; whatever wins through in the battle of life, physically, purposefully and spiritually, that is what is good—always taking the long view. Of [p. 72] course sometime—and this has happened often in history—someone can get to the top by deceit and cheating. That makes no difference to nature, to the fate of the earth, to the fate of the world. Reality, that is, Nature, Fate, removes the impostor after a time—time not reckoned in generations of man but in historical periods. It must be our endeavour never to deceive ourselves, but always to remain genuine, that is what we must continually preach and instill into ourselves, and into every boy and each one of our subordinates.

The SS after the war

One thing must be clear, one thing I would like to say to you today: the moment the war is over, we will really begin to weld together our organization, this organization which we have built up for 10 years, which we imbued and indoctrinated with the first most important principles during the 10 years before the war. We must continue to do this—we,—if I may say so, we older men—for twenty years full of toil and work, so that a tradition 30, 35, 40 years, a generation, may be created. Then this organization will march forward into the future young and strong, revolutionary and efficient to fulfill the task of giving the German people, the Germanic people the super-stratum of society which will combine and hold together this Germanic people and this Europe, and from which the brains which the people needs for industry, farming, politics, and as soldiers, statesmen and technicians, will emerge. In addition this super-stratum must be so strong and vital that every generation can unreservedly sacrifice two or three sons from every family on the battlefield, and that nevertheless the continued flowing of the bloodstream is assured.

The Virtues of the SS-Man

I will speak now of the most important virtues which I began years ago to preach and to impress on this organization, on this whole General-SS [Allgemeine-SS]—for that is the basis of this organization—and which are just now in the 5th year of war of such decisive significance and importance.

1. Loyalty

We have, I am glad to say, not had a single case among our ranks so far, of an SS-Man being disloyal. Let this one thing be our guiding principle: If within the sphere of your knowledge there is ever anyone who is disloyal to the Fuehrer or to the Reich, even if it is only in thought, you must see to it that this man is thrown out of the organization and we will see to it that he departs this life [p. 74]. For everything,—I have said this one already and repeat it today,—everything can be forgiven in this world, but one thing cannot be forgiven among us Teutons: that is disloyalty. It would be unforgivable and is unforgivable. Downfalls, like the downfall of Badoglio in Italy must not and will not happen in Germany. The name Badoglio will in future be the name for bad dogs, the name of abuse for four-legged mongrel curs, just as in the olden days the name Thersites was the name of abuse for traitors.—We can only say one thing and preach it constantly: Let the German people show, by unparalleled and wholehearted loyalty on the part of each one of its men and each one of its women that is worthy of being permitted to live at the time of an Adolf Hitler, and worthy of this leader having arisen for it, who has dedicated his life full of care, full of responsibility, full of work, to our German Teutonic people.

2. Obedience

Obedience is demanded and given in the soldier's life morning, noon, and night. And the little man always obeys or usually does. If he does not, he is put in prison. The question of obedience in [p. 75] the case of senior officials in the state, party and the army, and even here and there in the SS, is more difficult. I would like here to state something clearly and unequivocally: It is a matter of course that the little man must obey. It is even more a matter of course that all the senior leaders of the SS, that is, the whole corps of Gruppenfuehrer, are a model of blind obedience. If anyone thinks that an order is based on a misunderstanding on the part of the

superior or on a false basis it goes without saying that it is his duty and responsibility—that is, the duty and responsibility of every one of you—to say so, and also to state his reasons truthfully like a man if he is convinced that they deprecate the order. But the moment the superior concerned or the Reichfuehrer-SS—that applies to the Corps of Gruppenfuehrer in most cases—or even the Fuehrer has made the decision and given the order, it must be carried out, not only in word and letter, but also in spirit. Whoever carries out the order must do so as a good steward, as a true representative of the authority giving the command. If you thought at first that this would be right and that that would not be right or even wrong, then there are two alternatives. Thus if a man thinks that he cannot be answerable for obeying an order, then he should say quite honestly: [p. 76] I cannot be answerable for it. I beg you to excuse me from it. Then the order will usually be: You must still carry it out. Or you think: his nerve has gone he's weak. Then you can say: Good, retire on a pension. But orders must be sacred. If the Generals obey, then the armies obey automatically. The more our territory grows, the more does this sacredness of orders apply. It was not all difficult to enforce an order in our little Germany. But to enforce an order once we—and I am convinced of this—have garrisons in the Urals,—that *is* more difficult. Here it will not always be possible to make sure that the order is carried out. Our controlling authority may not, may never be,—as in Russia—the Commissar. The only Commissar we have must be our own conscience, devotion to duty, loyalty, obedience. If you lead the way with this example, gentlemen, every subordinate will follow this example. But you will never be able to demand obedience of your men if you do not give the same obedience to authority over you, and give it blindly and without reserve.

3. Bravery

To bravery, I think we need least to exhort ourselves, for our leaders and men are brave [p. 77].

4. Truthfulness

I now come to a fourth virtue, which is very rare in Germany, to truthfulness. One of the greatest evils which has spread during the war is the lack of truthfulness in messages, reports, and statements which subordinate departments in civil life, in the state, the party and the Services

send in to the departments over them. The message, the report is the basis of every decision. It is actually the fact that one can now in many spheres assume in wartime that 95 out of 100 messages are untrue or only half true or semi-correct [p. 80].

While on the subject of truthfulness I now come to another matter [p. 83]. It must so come about in war and in peace—in peace this will be above all a training task—that we SS-men no longer conclude written agreements, but that among us, as used to be the case formerly, the giving of one's word and the hand-shake signify the contract, and that the hand-shake of one SS-man is—if necessary—certainly for 1 million or more. It must so happen that the hand-shake or the promise of an SS-man is more proverbially reliable than mortgage upon the greatest value of anybody else's. It must be so!

If we conclude agreements, we must keep them. If I make a contract with an agent, even with a blackguard, I keep the contract. I take my stand unreservedly on this point of view. If I announce in the Generalgouvernement, that anyone who informs against a Jew who has sought shelter and gone into hiding, shall have a third of the Jew's property, then it often happens that Secretary Huber or Second Lt. (SA) Huber who—when he can—makes illegal trips, or does not hesitate [p. 84] to order a new telephone or new pencils, who, that is, never saves,—suddenly begins to save for the German Reich. He says for instance: This Jew has 1200 RM. What, that means I would have to pay out to the Pole who denounced him 4000 RM. No, I'll save that for Germany. The Pole shall only get 400 RM. So a little man goes and breaks the promise of a whole organization. That sort of thing should be impossible.

If we make a promise, it must be kept. If one Reichsfuehrer-SS pledges to anyone support for his organization—as may very often be the case now in the Balkans—this pledge must be kept. We must acquire such a reputation for the keeping of contracts in the whole world, we in the SS, that we thereby gain for Germany advantages of the greatest value, namely faith through confidence. Many will come to us, who will not approach official departments. The Balkans are always in a state of confusion. That is a blessing. If they were united it would be terrible. Things are chaotic in the Caucasus and in Russia. We can only see to it—this is also a [p. 85] precept,—that the territories we have occupied and the peoples we rule over never become united, that they always remain disunited. For they would only be

united against us. If therefore we pledge our protection to a party [Splittergruppe] who approaches us, it must be quite out of the question for any member of the SS or the police, any member of the whole organization to go and break the promise. This promise must be sacred.

Practical Tasks

In the way of practical duties for the Senior SS executive and [p. 103] Police Officers I see above all one task, which applies at the same time to the Heads of the Main Offices as well. For me the Senior SS Executive and Police Officer is the representative of the Reichsfuehrer-SS in his area. It would be an evil day if the SS and police fell out. It would be an evil day if the Main Offices, performing their tasks well meaningly but mistakenly made themselves independent by each having a downward chain of command. I really think that the day of my overthrow would be the end of the SS. It must be, and so come about, that this SS organization with all its branches—the General-SS which is the common basis of all of them, the Waffen-SS, the regular uniformed police [Ordnungspolizei], the SIPO, (with the whole economic administration, schooling, ideological training, the whole question of kindred), is, even under the tenth Reichsfuehrer-SS *one bloc, one body, one organization*. Alas if we do not bring them together. Alas if the individual main offices, the individual chiefs had a false conception of their duty here, if they believed they were doing a good thing, whereas in fact they were taking the first step toward the end. We have come a long way on the road to amalgamation. In the hard battles of this year the Waffen-SS has been welded together in the bitterest hours from the most varied divisions and sections, and from these it formed: body-guard units [Leibstandart], military SS [Verfuegungstruppe], Death's head units, and then the Germanic SS. Now when our "Reich", Death's Head Cavalry Divisions and "Viking" Divisions were there, everyone knew in these last weeks: "Viking" is at my side, "Reich" is at my side, "Death's Head" is at my side,—"Thank God", now nothing can happen to us.—The regular uniformed police and Sipo, General-SS and Waffen-SS must now gradually amalgamate too, just as this is and [p. 105] must be the case within the Waffen-SS. This applies to matters concerning filling of posts, recruiting, schooling, economic organization, and medical services. I am always doing something towards this end, a bond is constantly being cast around these sections of the whole to cause them to grow together. Alas, if these bonds

should ever be loosened,—then everything—you may be sure of this—would sink back into its old insignificance in one generation, and in a short space of time. It could then be said that that would be no pity; if it wasn't worth keeping alive, it should come to an end. That is right. I would not hear of anything being kept, even if it is my, our SS which is so dear to us, if it was not worth keeping alive.

Only I think that we could not be answerable for it to Germany, and to Germania, for this Germanic Reich needs the SS organization. She needs it at least for the next few centuries. Then, in a hundred, a thousand, or two thousand years another form will surely be found. When we are dead and gone, some remnant of us with a few of our fundamental ideas will pull through and carry on. Out of this will grow something new again, just as here and there we took over, and now bear, a torch from the time of the Teutons, from the age of chivalry, from the Vehmic organization, and from the [p. 106] Prussian army, in order to light a great light from it. It will be just like that later on. I believe that today we could not afford to let anything happen to this SS. That is why I urge one thing on all of you, on you, my heads of the main offices, my Senior Executive SS and Police Officers, and on this whole corps of Gruppenfuehrers, the highest gradation in this hierarchy of the SS organization: Always see the whole, always look at the whole organization, never at your branch of it only, or only your Oberabschnitt but always see the SS, and above it the Germanic Reich, and above that our Fuehrer who has created and is still creating this Reich.

The Future

When the war is won,—then, as I have already told you, our [p. 112] work will start. We do not know when the war will end. It may be sudden, or it may be long delayed. We shall see. But I say to you *now*, if an armistice and peace comes suddenly, let no-one think that he can then sleep the sleep of the just. Get all your Commanders, Chiefs and SS-Fuehrers attuned to this; only then, gentlemen, shall we be awake, for then, so many others will fall into this sleep. I am going so to rouse the whole SS, and keep it so wide awake that we can tackle reconstruction in Germany immediately. Then Germanic work will be begun immediately in the General-SS, for then the harvest will be ripe to be taken into the granary. We shall then call up age-groups thereby law. We shall then immediately put all our Waffen-SS units into excellent form, both as regards equipment and training. We shall go on

working in this first 6 months after the war, as though the big offensive were starting on the next day. It will make all the difference, [p. 113] if Germany has an operative reserve, an operative backing, at the peace or armistice negotiations, of 20, 25 or 30 SS-divisions intact.

If the peace is a final one, we shall be able to tackle our great work of the future. We shall colonize. We shall indoctrinate our boys with the laws of the SS-organization. I consider it to be absolutely necessary to the life of our peoples, that we should not only impart the meaning of ancestry, grandchildren and future, but feel these to be a part of our being. Without there being any talk about it, without our needing to make use of rewards and similar material things, it must be a matter of course that we have children. It must be a matter of course that the most copious breeding should be from this racial super-stratum of the Germanic people. In 20 to 30 years we must really be able to present the whole of Europe with its leading class. If the SS, together with the farmers,—we together with our friend Backe, then run the colony in the East on a grand scale, without any restraint, without any question about any kind of tradition but with nerve and revolutionary impetus, we shall in 20 years push the national boundary [Volkstumsgrenze] 500 kilometers Eastwards.

I requested of the Fuehrer today, that the SS—if we have fulfilled our task and our duty by the end of the war—should have the privilege of holding Germany's most Easterly frontier as a defence frontier [p. 114]. I believe this is the only privilege for which we have no competitors. I believe not one person will dispute our claim to this privilege. We shall be in a position there to exercise every young age-group in the use of arms. We shall impose our laws on the East. We will charge ahead and push our way forward little by little to the Urals. I hope that our generation will successfully bring it about that every age-group has fought in the East, and that every one of our divisions spends a winter in the East every second or third year. Then we shall never grow soft, then we shall never get SS members who only come to us because it is distinguished or because the black coat will naturally be very attractive in peacetime. Everyone will know that: "if I join the SS, there is the possibility that I might be killed." He has contracted in writing that every second year he will not dance in Berlin or attend the carnival in Munich, but that he will be posted to the Eastern frontier in an ice-cold winter. Then we will have a healthy elite for all time. Thus we will create

the necessary conditions for the whole Germanic people and [p. 115] the whole of Europe, controlled, ordered and led by us, the Germanic people, to be able, in generations, to stand the test in her battles of destiny against Asia, who will certainly break out again. We do not know when that will be. Then, when the mass of humanity of 1 to 1½ milliards lines up against us, the Germanic people, numbering, I hope, 250 to 300 millions, and the other European peoples, making a total of 600 to 700 millions—(and with an outpost area stretching as far as the Urals, or, a hundred years, beyond the Urals)—must stand the test in its vital struggle against Asia. It would be an evil day if the Germanic people did not survive it. It would be the end of beauty and “Kultur”, of the creative power of this earth. That is the distant future. It is for that that we are fighting, pledged to hand down the heritage of our ancestors.

We see into the distant future, because we know what it will be. That is why we are doing our duty more fanatically than ever, more devoutly than ever, more bravely, more obediently and more thoroughly than ever. We want to be worthy of being permitted to be the first SS-men of the Fuehrer, Adolf Hitler, in the long history of the Germanic people, which stretches before us.

Now let us remember the Fuehrer, Adolf Hitler, who will create the Germanic Reich and will lead us into the Germanic future [p. 116].

Our Fuehrer Adolf Hitler
Sieg Heil!
Sieg Heil!
Sieg Heil!

Speech of the Reichsfuehrer-SS Heinrich Himmler at Kharkow April 1943
My SS-Fuehrer,

It is perhaps very strange, that we should meet in a university of the Russian State, here at Kharkow,—at this Kharkow, which has played so great a part, and really will play a still bigger part in the history of the war. Until last year it was of no very great significance. This year it has become, like

Stalingrad, but in the reverse sense, a city of destiny in German war history, in German history. I have asked you, the Commanding Officers of the three SS-Divisions, who took part in this campaign from the Dnieper to Kharkow and carried out this campaign practically alone and forced a decision, to come together here in order, as has been the custom for many many years, as long as there has been an SS, to meet each other again, and in order once more to establish a few facts about the past and the future.

I would like, in a few words, to outline the whole position and situation with regard to the war.

Today, Germany is on the borders of Europe everywhere. These European frontiers stretch up as far as the North Cape, down the Norwegian coast, through Denmark, the Netherlands, Belgium and France and jump over to Africa, continue to Tunis to form a bridgehead, run across as far as the frontiers formed by the sea, then from Greece and Crete up to the borders of the neutral states of Turkey and Bulgaria, to join hands again here in the East. I would like to give it a name: it is the great fortress of Europe.

It will undoubtedly happen, that the enemy will make the attempt, today, tomorrow or the next day, at some time, to break into this fortress of Europe at one point or another. That will undoubtedly be the case. Possibly he will be able to force an entry for a shorter or longer period at one point or another in places which we do not have in our personal and responsible control, or which we are not defending with our arms [p. 2]. One thing is certain: wherever the enemy lands, if once we can get to grips with him on the Continent, where we are not dependent on supplies from overseas, that ought to be, and will be, all right with us. On the whole, however, it is here in the East that the decision lies. The fortress of Europe with its frontiers must be held and will be held too, as long as is necessary. The decision, therefore, lies here in the East; here must the Russian enemy, this people numbering two hundred million Russians, be destroyed on the battle field and person by person, and made to bleed to death ...

It is my opinion—and here, I believe, I am speaking to men [p. 3] who already understand this—that we must conduct the war and our campaign on these lines:—how can we take the most men from the Russians—dead or alive? We shall do it by killing them or taking them prisoner and [p. 4] really putting them to work, by endeavoring to gain as much control as

possible over any territory we occupy, and by leaving empty of people any territory we dispose of, any areas we make over to the enemy. Either they must be deported and will be used as labour in Germany for Germany, or they will just die in battle. To hand people back again, giving the enemy workers once more and enabling him to recruit again,—that I think, taking the broad view, would be absolutely wrong. That could not be advocated *

* *

On the other side, one thing goes on the same as ever, the U-boat war, this dreadful stranglehold on the throat of the enemy. [p. 5] I have good reason to be convinced that this stranglehold will never be relaxed, but will tighten. I cannot help feeling that things are beginning to go worse with England these last few months in matters of supply. That by no means indicates that England will collapse today, tomorrow or the next day, but it does mean that we will just be approaching the time when one or other of our opponents, once Russia is conquered and eliminated as a factor, will come to the conclusion that it is not worth carrying on the war. The result—and I am convinced of this, I believe it and I know it—the result, the end of this war, regardless of however many months or even years it lasts, will be this: that the Reich, the German Reich or the Germanic Reich of the German nation, will with just title find confirmation of its evolution, that we have an outlet and a way open to us in the East, and that then centuries later, a politically Germany—a Germanic World Empire will be formed. That will be the result, that will be the fruit of all the many, many sacrifices, which have been made and which must still be made.

We have,—I would say, as very consistent National Socialists, [p. 7] taken the question of blood as our starting point. We were the first really to solve the problem of blood by action, and in this connection, by problem of blood, we of course do not mean anti-semitism. Anti-semitism is exactly the same as delousing. Getting rid of lice is not a question of ideology. It is a matter of cleanliness. In just the same way, anti-semitism, for us, has not been a question of ideology, but a matter of cleanliness, which now will soon have been dealt with. We shall soon be deloused. We have only 20,000 lice left, and then the matter is finished within the whole of Germany. But for us the question of blood was a reminder of our own worth, a reminder of what is actually the basis holding this German people together. Just as is the case in the years between 1938 and 1943, in exactly the same way as now,

the same ill-founded reproaches were made then: well, if you bring the Nordic man so much to the fore, you're creating a new split, a new class-distinction,—it's a new class hatred. We're overcoming the social barriers, so I've been told by important party members, and now you're setting up racial ones. My reply to these people has always been: If you want to look at things in a negative way, there is nothing in the world which you cannot see in a negative way. From the negative angle, of course, you can argue that way. I see it differently, for I see it on this plane: What is the binding factor which holds the man in East Prussia and the man in the Black Forest together, the man in Schleswig-Holstein and in Hamburg and the man in Munich, in Graz, in Pomerania, in Berlin [p. 8] and in the Rhineland? What is then the factor or the element which contains all that is dear and precious and valuable to us? It is in fact what we Germans call inherent Kultur, it is this Germanic, this Nordic component of our blood.

In one operation those peoples must and will be incorporated in the Germanic Reich which, at one time, were part of Germany, part of the German Empire (the Roman Empire and the German nation) and belonged to us up to 1806 or only till 1648,—that is Flanders, Wallonia, and the Netherlands. They were a part of the Reich [p. 10]. Over and above this, we must have the power to bring into the fold, and make a part of our community in a second operation, those Germanic peoples and states too, which have never been part and parcel of the German Reich,—I mean Denmark and Norway, the Danish and Norwegian people.

I very soon formed a Germanic SS in the various countries. We very soon got Germanic volunteers from them [p. 11]. It has not always been liked and is still not liked today by many of the political leaders in these countries. From the beginning, I have said to them, "You can do what you like and leave what you like. I leave everything entirely to you, but you may be sure, that an SS will be set up in your country, and there is but one SS in Europe, and that is the Germanic SS, led by the Reichsfuehrer-SS. You can resist, or you can offer no resistance, it's all the same to me. We shall do it in any case!" We have told them that curtly and plainly and clearly from the beginning.

I have said to the SS-men from the beginning too: We do not expect you to renounce your nation, or do anything which a proud and self-respecting fellow who loves his nation cannot do. We do not expect you to become

German out of opportunism. But we do expect you to subordinate your national ideal to the greater racial and historical ideal, to the Germanic Reich.

In addition, one thing is quite obvious. All of us, who are members of the Germanic peoples, can be happy and thankful that once in thousands of years fate has given us, from among the Germanic peoples, such a genius, a leader, our Fuehrer Adolf Hitler, and you should be happy to be allowed to work with us.

Although I do not wish to discuss any individual official matters here, I would still like to mention in a slightly official way, in my capacity as a military man, what I said before about racial Germans. I beg you never to commit the psychological error of speaking of Germans who came from Roumania or Hungary or Croatia, as Croats, Roumanians or Hungarians. I also beg you never to make the mistake of letting a man who speaks [p. 12] German badly or cannot speak and read German, sense this, or let him sense the thought: "You are a second-rate German, for you can't read or write German properly." I beg you rather, (and here too I am stating a very sober opinion), to think in this case of these Germans in the whole of the Balkans, still more of those overseas, in America, when one day we must fetch over here in millions,—and we shall succeed in doing so—who have held out for centuries. I am certainly of the opinion that if a mighty German Reich with an incredible upward urge in its very being and a great German Fuehrer had not now come into being at this time and in the last few decades, it would have been the end of these Germans. A person with a very strong character can personally rise above his surroundings for years and perhaps for decades. A race, if it is in small groups, cannot in the long run hold out against its surroundings. And we must never forget this: these Germans do not usually live together in hundreds of thousands, but a thousand here in a few villages, and two thousand there, and 20 thousand at the most somewhere else. But they do not live together in large numbers. So they are always encircled by a foreign nation [Volkstum], and surrounded by its influence, but are above all surrounded by the influence of the people of the country. *They* are not the people of the country, those are the others. They are subjects of a state of foreign nationality, which, in any moment of doubt, is their enemy, or at the very best, as, shall we say, Roumania, a tolerably neutral and impartial observer. But on the whole these Germans

have lived, throughout the centuries of German weakness, from the Thirty Years' War up till now, in surroundings calculated not to strengthen their consciousness of German race [Deutschtum] but to destroy it.

There was something else besides this. If one of these Germans wanted to get anywhere he could only do so by entering the state system of the foreign people as an official or an officer. It is no mere chance—[p. 13]. I am not making spiteful assertions now but merely stating the facts—that, for instance, among Hungarian generals there is such a considerable percentage of men of German origin, who of course had, in most cases, to alter their names if they wanted to get anywhere. In many cases, if they did not do so, and remained obdurate about it, they were subsequently removed from office. I quote here as an example the present Chief of the Hungarian General Staff, General Sombacke, who in his youth at the Austrian Military Academy still had the thoroughly good German name of Knaus. May I remind you of Feldmarschall or Feldmarschall-Lieutenant Raab, who as we all know, has now retired. Both are of German descent, and one could name countless hundreds of leading men in these South-Eastern States who are all of German origin, had to become part of the alien nation, and were then drained [eine Auslaugung bildeten] of their own most valuable national characteristics.

If, then, we get sons of these racial Germans [Volksdeutschtum] who have still survived there—(some are genuine volunteers, and others come as a result of a levy, for we have organized the racial groups from within the Reich through the SS, so that without possessing political power we have in fact, morally such strength and power among these people that we can compel a man, compel him morally, to serve with us in Germany, due entirely to the power of the whole German national community)—if we therefore get these men, you must not make it difficult for them to enter our community by calling him by the name which you judge he will not wish to hear. A Saxon from Siebenburg will never let it be said that he is a Roumanian. It's just against that that he and his fathers have fought for 700 years. And a German from Hungary will never let it be said that he is a Hungarian. If you know how he has been thrashed by many a Hungarian gendarme, before he came to us, how his mother was thrashed, and his parents driven from hearth and home, you can imagine how bitter it is for him if he now joins German service-men and they say: here comes a

Hungarian. Or you can imagine how bitter it is for him when he is reproached for something which he cannot help. If we had not been to a German school we should not be able to read and write German either. If we had been forced, shall we say, to go to a Polish school, we should write Polish too, although we profess to be Germans. And that is often the case with these men. I must therefore expect of you understanding and human sympathy in this matter, and must expect that the leaders, in addition to their many other duties, will undertake to see that additional German instruction in reading, speaking and writing, be given to these men at every opportunity that is offered. I lay special emphasis on this matter, because by negotiations, we have now managed to make an arrangement enabling us in future to enlist even those Germans who up to now have been serving in the Roumanian army. So we can expect a great influx from the Germans of the South-East.

We know that these clashes with Asia and Jewry are necessary [p. 16] for evolution. They give the cue [Auftakt] for the European Continent to unite. These clashes are the only evolutionary possibility which will enable us one day, now that Fate has given us the Fuehrer Adolf Hitler, to create the Germanic Reich. They are the necessary condition, for our race, and our blood to create for itself and put under cultivation, in the years of peace, (during which we must live and work austere, frugally and like Spartans), that settlement area in which new blood can breed, as in a botanical garden so to speak. Only by this means can the Continent become a Germanic Continent, capable of daring to embark, in one or [p. 17] two or three or five or ten generations, on the conflict with this Continent of Asia which spews out hordes of humanity. Perhaps we shall also have to hold in check other coloured peoples who will soon be in their certain prime, and thus preserve the world, which is the world of our blood, of our children and of our grandchildren. Now it is just this world we like the best, the Germanic world, the world of Nordic life. We know that this conflict with the advancing pressure from Asia, with the 200 million Russians, is necessary. And we shall win as sure as I am speaking here in the University of Kharkow. We shall have to pass through many a valley, many a narrow defile. Many will grow tired on the way. Of course they will mostly be those who have no reason to do so. To put it vulgarly, many will do something in their trousers. Many people will get shaky at the knees. The only thing that matters is that we stand firm. This is what is important for us

as SS-men, for our province of duty and our mission (it is a task additional to those of the whole German Armed Forces and the whole German people): That is what I would like to impress upon you, this is what I beg you, as Commanding Officers, as Chiefs, and as leaders to teach the young men again and again in their ideological instruction. That is what I demand and exact of you,—that you really concern yourselves with the man, the young fellow of 17 to 18 who comes to us, and with many who are in our ranks not as volunteers but as conscripts. I ask you to look after them, and guide them, and not let them go before they are really saturated with our spirit and are fighting as the old guard fought before us—that is what I request and demand of you.

We have only one task, to stand firm and carry on the racial struggle without mercy. I will now say again something which I have already today said to the men elsewhere: we will never let that excellent weapon, the dread and terrible reputation which preceded us in the battles [p. 18] for Kharkow fade, but will constantly add new meaning to it. They can call us what they like in the world, the main thing is that we are the eternally loyal, obedient, steadfast and unconquerable fighting men of the Germanic people and of the Fuehrer, the SS of the Germanic Reich.

TRANSLATION OF DOCUMENT 1932-PS

SS Main Economic Administrative office

[SS-Wirtschafts-Verwaltungshauptamt]

Oranienburg 7 June 1943

Office group D, Concentrations Camps

D I/ 1 Az: 14 c 2 / Ot / S.—Secret diary No. 743/43

Subject: Treatment of prisoners who fall under the night and fog decree.
[NN-Erlass].

Reference: Reich Security Main Office [Reichs-Sicherheitshauptamt] IV c 2
General No. 103/42 g - issued 5 May, 1943

Annexes: None

SECRET

To the Camp commanders of the Concentrations Camps

Dachau, Sachsenhausen, Buchenwald, Mauthausen, Flossenburg, Neumarkt, Auschwitz, Gross-Rosen, Natzweiler, Stu., Ravensbruck, Herz., Riga, Lublin and the Civilian Camp Bergen-Belsen.

[Da., Sah., Bu., Mau., Flo., Neu., Au., Gr.-Ro., Natz., Stu., Rav., Herz., Ri., Lub., und Zil Bergen-Belsen.]

I send the following decree of the Reich Security Main Office [Reichssicherheitshauptamt] regarding treatment of Night and Fog [NN] prisoners for acknowledgement and strictest observation.

The purpose of the NN decree is the elimination of all anti-German forces in the occupied territories and their being brought into the Reich.

The relatives and the population are to be kept in uncertainty about the fate of these persons. In order to achieve this, the NN decree further provides that prisoners of this kind should be placed under prohibitions to write, to receive mail and parcels, to talk, or that information should be given about them. In this regard it is irrelevant whether it is the question of a NN-prisoner of the old or new type. By NN-prisoners of the old type are understood those whom the military courts have handed over to the disposing agencies for shipment to the Reich, while the so-called New-Type NN-prisoners have been brought directly by the arresting agencies of the Security-Police and of the SD to the concentration camps (KL) in the Reich without the participation of military courts.

The Agencies of the security police and of the SD in question are instructed to submit to the Reich security Main Office and to the concentration camp in charge questionnaires on all prisoners who fall under the NN-decree. This questionnaire should contain detailed personal data, data on racial origin, the reason for arrest, the former place of custody and other incriminating elements. These questionnaires are to be marked by a seal "Night and Fog" [Nacht und Nebel].

Upon the reports of the agencies of the Security Police and of the SD a collective order for protective custody will be issued here with the questionnaires attached and the agencies will be further instructed to transfer the arrestees to a concentration camp.

Insofar as Germanic NN-prisoners are concerned, they will be transferred from here to the concentration camp of Natzweiler exclusively; in all other cases the NN-prisoners will be shipped to a concentration camp depending on the location of the transferring agency of the Security Police and of the SD with consideration of the echelon division and of capacity of the concentration camp.

The camp commanders of concentration camps in which there are already NN-prisoners have to order immediately that the prisoners should be investigated according to racial points of view and that the *Germanic* NN-prisoners should be transferred to the concentration camp of Natzweiler. Compliance with this order is to be reported on individual questionnaires for each prisoner. The camp commander of the concentration camp of Natzweiler has to take care that the NN-prisoners are to be kept separated from the other prisoners.

In other respects the directives of the RSHA-Referat ND 4—which have been sent together with the secret letter No. 551/42, dated 18 Aug. 1942, are referred to.

Furthermore it is pointed out again as has been ordered already in the circular decree, issued 2 Feb. 1943, secret diary No. 111/43—that death notices of NN-prisoners are to be submitted *exclusively* to the agency particular transferring agency of the Security Police and of the SD, to the RSHA and to this agency, in order to exclude divulgence of the place of custody of an NN-prisoner. Hereby the decrees regulating the procedure in cases of death, particularly any notification of the relatives are cancelled. The effects of deceased Night and Fog prisoners are to be sent in their entirety to the transferring agency in charge which will guard it until further notice.

The chief of the central office
[signature illegible]
SS Lt. Colonel

TRANSLATION OF DOCUMENT 1933-PS

Main Bureau for SS Economic Administration

Bureau Group Chief D—Concentration Camp— DI/I/Az: 14 f 13/L/S

Secret order of the day—No. 612/43

Subject: Action 14 f 13 in the concentration camps.

Reference: Local directive DI/1/Az: 14 f 13/OT/S—Secret order of the day No. 34/43 of S.1.43

STATE SECRET

To the Camp Commanders of the Concentration Camps

Da., Sah., Bu., Mau., Flo., Neu., Au., Gr.-Ro., Natz., Stu., Rav., Ri., Herz.,
Lubl., and Bergen-Belsen.

Copy to: Chief of Bureau D II, III in the house

The Reich Fuehrer-SS and Chief of German Police has decided, after consultation, that in the future only mentally sick [geisteskrank] prisoners may be selected for action 14 F 13 by the medical commissions appointed for this purpose.

All other prisoners incapable of working (tubercular cases, bed-ridden cripples, etc.) are to be basically excepted from this action. Bedridden prisoners are to be drafted for suitable work which they can perform in bed.

The order of the Reich Fuehrer SS is to be obeyed strictly in the future.

Requests for fuel for this purpose therefore do not take place.

[signature illegible]

SS-Brigadefuehrer and Major General of the Waffen-SS

TRANSLATION OF DOCUMENT 1939-PS

A “Proclamation to Workers” addressed to employees and employers by Dr. Robert Ley on 5 September 1939. Quoted from the chapter “The German Worker Has Recognized * * *” pp. 14-17, of “Forge of the Sword”, a collection in book form of speeches by, and articles about, Dr. Robert Ley, published in 1942 by the Central Publishing House of the NSDAP, Franz Eher Successor, Munich, with a foreword by Reichs Marshal Goering.

The German people in its over-all attitude is what the Fuehrer has made of that people after the collapse. The poised and self-assured attitude of the German people in the current world crisis contrasts so enormously with the

insecurity of the so-called democratic nations, that each thinking human being must ask himself about the cause of this state of affairs, which is so full of hope for us Germans.

The achievement of the Fuehrer in the entire political sphere is a LARGE SCALE AND UNIQUE ACHIEVEMENT OF EDUCATION. The following principles have been taught by the Fuehrer and are decisive for the present strong attitude of Germany.

The Fuehrer has taught the German people that its existence and its being is dependent upon the unqualified perception of all Germans that the battle for life of the German people cannot be fought in limited areas, but that this battle for life means wrestling and battling in all spheres of life. It is the teaching of the totality for the battle for life.

We National Socialists say: social policy and economy are one and belong together. Progress and development are socialism. A socialist can never be a pacifist; on the contrary, he must ALWAYS STAND PREPARED AT THE HIGHEST PITCH OF MILITARY READINESS to attain the socialist objective. Peace and war are not separate, mutually exclusive conditions, but in each case they are only a different guise [Erscheinungsform] for one and the same struggle of the people to secure its living potentialities. We National Socialists do not hope for gifts and miracles, but we recognize that every thing must be fought and worked for honestly. We do not believe in chance, and we leave nothing to arbitrariness either. To us Fight is Life, and to us Life means Fight. We have no inclination to rest and restrict ourselves to watching, but we know that Life would simply pass us by were we to withhold ourselves from the Fight. We could never make up for what we neglect today.

BECAUSE OF THAT THE FUEHRER HAS FURTHERMORE TAUGHT US THAT OUR GERMAN PEOPLE MUST COMMIT ALL THE STRENGTH AND ENERGY IT POSSESSES TO FIGHT THROUGH THE STRUGGLE OF LIFE AND DESTINY, SO AS TO ATTAIN VICTORY. We National Socialists REJECT HALF MEASURES AND COMPROMISES. They never lead to the goal, but lull people to sleep until they wake up one day in horror and dread. COWARDS PERISH!

Because of that we National Socialists have mobilized all resources and all our energies during the past seven years, so as to be equipped for the

supreme effort of battle. WE DO NOT THROW OURSELVES INTO ADVENTURES, AND WE ARE NOT SO UNSCRUPULOUS AS TO LEAVE ANYTHING TO ACCIDENT.

True,—when according to human judgment and according to the state of our knowledge all preparations have been made, then we have never as yet hesitated to venture the ultimate.

OBSERVE THE FUEHRER! Is he not the living model! His own career, his leadership of the NSDAP, the seizure of power, the conduct of the state, the regaining of Austria, the Sudeten area, Bohemia and Moravia and finally the Memel territory,—all great events demonstrate ever anew the fortunate fact that the Fuehrer prepares anything and everything to the last detail. He calculates, ponders, elucidates,—he acts. But when a decision has been arrived at, then there is no more going back. He holds fast. He is tenacious.

Thus did the Fuehrer's great successes come about, and thus new successes will be added.

In conclusion the Fuehrer has taught a third principle: THE PREREQUISITE for any battle and THE PREREQUISITE for the mobilization of all our strength and energy is the *folk and fate community of all Germans*. [Volks und Schicksalsgemeinschaft]. Even though our professions may differ, even though our interests may clash, even though the individuality of the various tribes and provinces may reveal itself, one thing encompasses us, whether we are workers or soldiers: THE RECOGNITION, THAT WE GERMANS BELONG TOGETHER IN AN INDISSOLUBLE COMMUNITY OF FATE.

For example, what a splendid example was the building of the West Wall, which revealed convincingly and unforgettably the cohesion of worker and soldier!

THE COMMUNITY OF THE FACTORY IS NOT A MATTER OF PAPER VERBIAGE, BUT IT IS AN UNEQUIVOCAL FACT.

The Great War 1914/1918 was not lost because the German soldier had become a coward, but because dissension and discord tore the people asunder.

Destiny will test us anew. This time we will demonstrate what the National Socialist community can accomplish. This community is not a matter of paper verbiage, it is not a phrase! The first precautionary measure, the introduction of rationing certificates has proven how seriously the National Socialist state believes in the total people's community.

Thus you, German man and German woman workers, will understand that in this gigantic fight of Germany for justice and freedom, for living space and bread, THERE IS NO PLACE WHATEVER FOR EVERYDAY QUARRELS. YOU, working German, will learn to understand THAT THE LONG-RANGE PLANS OF THE FUEHRER AUTOMATICALLY PRECLUDE ALL DISSENSION.

It will be impossible in future, too, to play the Home Front against the Fighting Front and Fighting Front against the Home Front. Not a front sector at some border is alone involved in battle, but the entire German people. The worker at his drill press, the merchant at his counter, the inventor in his laboratory, the soldier in the trenches, they are all equally determined to fight for Germany's freedom.

No one will be able to evade the question: "Do you believe in Germany?", and no one will want to evade that question. And the answer to this question will resound audibly for the whole world: "Yes, indeed, we believe in Germany because we believe in the work of the Fuehrer."

PARTIAL TRANSLATION OF DOCUMENT 1940-PS

VOELKISCHER BEOBACHTER, Southern German Edition (Publisher Franz Eher, Successor), issue 136, of 11 May 1933, Page 1, column 5.

THE GERMAN LEADERS OF LABOR AN EDICT BY ADOLF HITLER

Berlin, 10 May

The Fuehrer Adolf Hitler has issued the following edict:

I appoint the Chief of Staff of the Political Organization [P.O.] of the NSDAP, Dr. Robert Ley, as leader of the German Labor Front.

I appoint District Leader [Gauleiter] Forster Danzig, as leader of the Employees' Associations [Angestelltenverbaende].

I appoint the leader of the National Socialist Factory Cell Organization [N.S.B.O.], Schuhmann, as leader of the Workers' Associations [Arbeiterverbaende].

Berlin, 10 May
Adolf Hitler.

PARTIAL TRANSLATION OF DOCUMENT 1942-PS

LEGAL REGULATIONS AND LEGAL PROBLEMS OF THE MOVEMENT

[Rechtseinrichtungen und Rechtsaufgaben der Bewegung] by Dr. Otto Gauweiler (Munich 1939), page 20.

a. Amendments in Reich Legislation:

By an order of the Fuehrer, dated 25 July 1934, his Deputy, as well as appointed reviewers, were given the power to take part in the editing of bills dealing with all the departments of the Reich. On the basis of this decree, the Deputy of the Fuehrer was to be invited to all discussions of the department heads, to which he could also send his representatives. Drafts of the laws had to be presented to the Deputy of the Fuehrer in the form of reviewer's drafts [Referentenentwuerfe] and not as Cabinet bills. From a special order from the Fuehrer, 6 April 35, this privilege of participation in government affairs by the Fuehrer's Deputy was expanded to include all executive decisions and orders insofar as they were published in the Reichsgesetzblatt. The Deputy of the Fuehrer can on his own initiative introduce bills, etc. regardless in what field; insofar as the good of the party is concerned, he is the man in charge.

Thus, the direct influence of the movement on the legislation and the executive branch was assured at a point where up to now the laws were an internal affair of the individual ministries. From now on, technical considerations or considerations of time cannot interfere with the requests and plans of the party.

PARTIAL COPY OF DOCUMENT 1947-PS

From: Freiherr v. Fritsch.

To: Baronin Margot v. Schutzbar.

Achterberg, 11 Dec 38.

My dear Baroness:

Many thanks for your two letters. * * * It is really peculiar that so many people should look to the future with increasing fears, in spite of the Fuehrer's indisputable successes during the past years. Herr von Wiegand's letter interested me very much and I am returning it herewith. Unfortunately, I am afraid he is right when he speaks of the profound hate which is directed to us by a large part of the world.

Soon after the war I came to the conclusion that we should have to be victorious in three battles, if Germany were to become powerful again:

1. The battle against the working class—Hitler has won this.
2. Against the Catholic Church, perhaps better expressed against Ultramontanism, and
3. Against the Jews.

We are in the midst of these battles and the one against the Jews is the most difficult. I hope everyone realizes the intricacies of this campaign.

* * * * *

(signed): FRITSCH

TRANSLATION OF DOCUMENT 1948-PS

The Reichsstatthalter in Vienna

I a Pol.—VIII—136/40 Vienna

Vienna 7 November 1940

Subject: Compulsory Labor of Able-bodied Jews.

1. Notice:

On 5 November 1940 telephone conversation with Colonel [Standartenfuehrer] Huber of the Gestapo. The Gestapo has received directions from the Reich Security Main Office [RSHA], as to how able-bodied Jews should be drafted for compulsory labor service. Investigations are being made at present by the Gestapo, to find out how many able-bodied Jews are still available in order to make plans for the contemplated mass projects. It is assumed that there are not many more Jews available. If some should still be available, however, the Gestapo has no scruples to use the Jews even for the removal of the destroyed synagogues.

SS Colonel Huber will report personally to the “Regierungspraesident” in this matter.

I have reported to the “Regierungspraesident” accordingly. The matter should further be kept in mind.

2. Presented anew: 25 November 1940

Presented anew: 20.12.40

[Initialed]

By order:

[Signed] Dr. Fischer.

TRANSLATION OF DOCUMENT 1949-PS

State Administration of Reich Gau Vienna

Statistical Office for Reich Gau Ostmark

Zl. 3305/I 39

Vienna, 15 December 1939

1. Heldenplatz, Neue Burg

Tel. R 27-5-65

To the Reich Commissar for the Reunion of the Austrian Nation with the German Reich

through channels via the Governor [Regierungspraesident] of Vienna

The Statistical Office for Reich Gau Ostmark has the honor to submit herewith, in the enclosure, an initial compilation of early results of this year's census relative to the number and reduction in number of Jews and part Jews in Reich Gau Ostmark, especially in the Vienna districts, together with a brief commentary.

[Signature illegible]

1 file of the Statistical Office for the Reich Districts (Gau) of the Ostmark, together with a summary of 15 December 1939. Zl. 3305/I 39

Jews and Part Jews in the Reich Districts [Gau] of the Ostmark

In the census of 17 May 1939, the question was put for the first time whether one of an individual's grandparents was full Jew by race. The declarations were to be made by the people on the "Supplementary Card for Data on Descent and Education" in full and to the best of their ability; this supplementary card was to be given to the honorary census taker in a sealed, opaque envelope, which was opened only when the statistical count was made. No check has yet been made as to the correctness of the information submitted. In the compiling of the statistics, everyone who reported that three or four of his grandparents were full Jews was counted as a full Jew himself, everyone with two Jewish grandparents as a part Jew, Grade I, and correspondingly everyone with only one Jewish grandparent as a part Jew, Grade II. The resulting slight deviation from the pertinent legal definitions of full Jew and part Jew was occasioned by formulation of the question in the simplest possible way.

According to the initial results of this year's census, there were 91,480 full Jews and 22,344 part Jews of Grades I and II in Vienna as of 17 May 1939. In the remaining Reich Districts of the Ostmark there were 3,073 full Jews and 4,241 part Jews. According to this, there were altogether 121,138 Jews in the Ostmark, of whom 113,824, i.e. 94%, lived in Vienna, 3% in Niederdonau, 1% in the Steiermark, and less than 1% in each of the remaining Gaus.

While 80% of all the Jews in Vienna were full Jews and only 14% were part Jews, Grade I, and 6% part Jews, Grade II, in the other Reich Gaus the part

Jews predominated, totaling 58%, as against 42% who were full Jews. Only in Niederdonau were the full Jews, with a total of almost 2,000, approximately as numerous as the part Jews.

These varying proportions of full Jews and part Jews are explained primarily by the emigration of Jews following the political change over. This emigration had reduced the number of *full Jews* in the Reich Gaus of the Ostmark, excluding Vienna and Niederdonau, to a small remainder of 1,103 by the time of the census.

The extent of the emigration of full Jews can be estimated approximately by comparison with the number of persons of Jewish faith reported in the census of 1934. It must be remembered, however, that in 1934 the number of those of Jewish faith did not include all full Jews and that, on the other hand, a small number of those of Jewish faith were part Jews, Grades I and II.

With this reservation, it can be stated that the number of Jews in the Ostmark (not including the annexed Sudeten-German regions) has diminished from 191,528 Jews by faith to 94,384 full Jews. At the same time the number of Jews in the Reich Districts (Gaus), excluding Vienna, decreased by 13,000 i.e. approximately 82% to 3,000. In Vienna alone, the decrease amounted to 84,000 persons, i.e. 48%.

The ratio of the sexes among full Jews has become so greatly dislocated that there are 100 male full Jews to every 136 female full Jews in Vienna, which can probably be ascribed to the earlier emigration of the Jewish males. The ratio among the part Jews, comparatively few of whom are thought to have emigrated, is 100:112, more nearly the average surplus of women in the population of Vienna.

According to data furnished by the Central Office for Jewish emigration, Vienna IV., about 100,000 Jews emigrated from the Ostmark in the period between the change over [Umbruch] and the census. This number is very close to the figure of 97,000 given above as the reduction in Jews since the census of 1934. Some 26,000 persons of Jewish faith emigrated from the Ostmark in the months succeeding the census.

While the problem of full Jews is almost completely solved, therefore, in the Reich Districts of the Ostmark, with the exception of Vienna, from a numerical standpoint the problem of part Jews still plays a relatively large role. For example, almost half of the approximately 1,000 Jews in Oberdonau are part Jews, Grade I, and more than one quarter are part Jews, Grade II. Similar

conditions prevail in the remaining Reich Gaus, particularly in Salzburg, in Carinthia, and in the Tyrol.

Nevertheless the problem of part Jews in the Ostmark is first and foremost a problem for the Reich District of Vienna, where there are 86% of the part Jews Grade I and 80% of the part Jews Grade II. Gau Niederdonau takes second place, with a large interval, but has only 6% of the part Jews Grade I and 8% of the part Jews Grade II.

Out of all the part Jews in the Ostmark, 68% had two Jewish grandparents and 32% had one Jewish grandparent. It is worth noting that 70% of all Jews in Vienna were half-Jews, whereas less than 60% were half-Jews in the remaining Gaus of the Ostmark.

At the present time the problem of part Jews in Vienna is still numerically overshadowed by the large number of full Jews, of whom there are estimated in round figures to be 70,000, since approximately 4,000 persons of Jewish faith have emigrated from the Ostmark every month since the census—with the exception of September.

[Signature illegible]

15.12.39.

JEWS AND PART JEWS IN THE DISTRICT OF VIENNA

Preliminary Results of 1939 Census

* JEWS

<i>DISTRICTS</i>	<i>GRAND TOTAL</i>			<i>FULL JEWS</i>			<i>PART JEWS GRADE I</i>	
	total	male	female	total	male	female	total	male
I. Innere Stadt	6,825	3,001	3,824	5,947	2,596	3,351	650	293
II. Leopoldstadt	33,889	14,483	19,406	31,564	13,370	18,194	1,862	885
III. Landstrasse	7,623	3,290	4,333	5,890	2,530	3,360	1,180	520

IV. Wieden	3,166	1,365	1,801	2,121	901	1,220	698	31
V. Margareten	2,712	1,229	1,483	1,769	788	981	632	293
VI. Mariahilf	4,634	2,016	2,618	3,826	1,653	2,173	608	263
VII. Neubau	5,187	2,263	2,924	4,181	1,786	2,395	740	356
VIII. Josefstadt	3,699	1,668	2,031	2,958	1,314	1,644	534	256
IX. Alsergrund	12,784	5,179	7,525	11,281	4,527	6,754	1,076	498
X. Favoriten	2,307	1,057	1,250	1,393	609	784	609	292
XI. Aimmering	447	218	229	265	134	131	127	57
XII. Meidling	1,986	900	1,086	1,045	444	601	610	298
XIII. Hietzing	2,008	851	1,157	1,310	524	786	457	210
XIV. Penzing	1,729	759	970	933	403	530	506	230
XV. Fanfhaus	3,667	1,572	2,095	2,573	1,051	1,522	758	368
XVI. Ottakring	3,123	1,440	1,683	1,874	831	1,043	833	410
XVII. Hernals	1,690	760	930	934	394	540	508	249
XVIII. Wahring	3,246	1,411	1,835	2,155	922	1,233	744	329
XIX. Dobling	2,961	1,325	1,636	2,030	845	1,185	633	315
XX. Brigittenau	7,082	3,020	4,063	6,025	2,519	3,506	754	339
XXI. Floridsdorf	1,391	671	720	524	224	300	540	279
XXII. Grossenzersdorf	171	82	89	45	21	24	69	35
XXIII. Schwechat	364	215	149	286	175	112	44	23
XXIV. Modling	365	176	189	113	56	57	146	67
XXV. Liesing	507	205	302	240	89	151	185	80
XXVI. Klosterneuburg	340	161	179	198	93	105	88	41

Total	113,824	49,317	64,507	91,480	38,798	52,682	15,591	7,29€
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Decrease of Jews in the Reich Districts [Gau] of the [\[3\]](#)
(Based on preliminary results of 1939 census)

Reich Gau	Jews by religion as of 22 Mar 1934	Full Jews by race as of 17 May 1939	Numbers less in 1939 than in 1934		Jews by religion 1934	Local distribution		
			Absolute	In percent		1939		
						Full Jews	Part Jews	
							Grade I	Grade II
Vienna	175,099	91,480	83,619	47.8	91.4	96.9	86.8	80.3
Niederdonau	11,439	1,836	9,603	83.9	6.0	2.0	5.6	7.1
Oberdonau	1,257	216	1,041	82.8	0.7	0.2	2.4	3.4
Steiermark	2,818	563	2,255	80.0	1.5	0.6	2.9	5.2
Karnten	273	60	213	78.0	0.1	0.1	0.7	1.5
Salzburg	239	67	172	72.0	0.1	0.1	0.7	1.0
Tirol	361	119	242	67.0	0.2	0.1	0.8	1.1
Vorarlbg.	42	43	1	...	0.0	0.0	0.1	0.4
OSTMARK	191,528	94,384	97,144	50.7	100.0	100.0	100.0	100.0

FOOTNOTES:

[3] Regional status as of Oct. 15, 1938, without the annexed Sudeten-German districts.

Jews and Part Jews in the Reich Districts (Gaus) of the Ostmark
(Preliminary results of the census of 17 May 1939)

<i>Reich Gau</i>	<i>Jews and part Jews together</i>	<i>These include</i>			<i>In percentages</i>		
		<i>Full Jews</i>	<i>Part Jews</i>		<i>Full Jews</i>	<i>Part Jews</i>	
			<i>Grade I</i>	<i>Grade II</i>		<i>Grade I</i>	<i>Grade II</i>
Niederdonau	3,737	1,970	1,117	650	52.7	29.9	17.4
Oberdonau	1,015	251	468	296	24.7	46.1	29.2
Steiermark	1,512	563	508	441	37.2	33.6	29.2
Karnten	313	60	129	124	19.2	41.2	39.6
Salzburg	273	67	123	83	24.5	45.1	30.4
Tirol	360	119	147	94	33.1	46.8	26.1
Vorarlberg	104	43	23	38	41.4	22.1	36.5
Total	7,314	3,073	2,515	1,726	42.0	34.4	23.6
Vienna	113,824	91,480	15,591	6,753	80.4	13.7	5.9
Ostmark	121,138	94,553	18,106	8,479	78.1	14.9	7.0

TRANSLATION OF DOCUMENT 1950-PS

COPY

The Reichminister and Chief of the Reich Chancellory

RK. 789 B secret

Berlin, W8 3 Dec. 40
Voss Str. 6

SECRET

To the Reich Governor in Vienna Gauleiter von Schirach

VIENNA

Dear Mr. von Schirach,

As Reichleiter Bormann informs me, the Fuehrer has decided after receipt of one of the reports made by you, that the 60,000 Jews, still residing in the Reichsgau Vienna, will be deported most rapidly, that is still during the war, to the General Gouvernement because of the housing shortage prevalent in Vienna. I have informed the Governor General in Cracow as well as the Reichsfuehrer-SS about this decision of the Fuehrer, and I request you also to take cognizance of it.

HEIL HITLER!

Yours Obedient

/s/ Dr. LAMMERS.

TRANSLATION OF DOCUMENT 1954-PS

Deposition of Field-Marshal Wilhelm Keitel

Investigating Officer: Dr. Bohuslav Ecer, Colonel of the Czechoslovak Judge-Advocate's Department.

Secretary: Elizabeth Radziejewska, WCB, USFET.

Present: Dr. Schwartz, L. of Judge-Advocate's Department

Place: Ashcan—Time: 3rd August 1945, afternoon.

On being interrogated Keitel deposes:

I am Wilhelm Keitel, born 22 September 1882 at Helmscherode, district of Gandersheim, Brunswick. Married to Liza, born Fontaine, I have 5 children. I have 3 sons, 30, 28, and 26 years old, the last one killed in action in the East in 1941, and 2 daughters; one of them 35 years old, married. The other one died at the age of 30. I saw my wife for the last time in middle of April 1945.

My functions.

On 4 February 1938 I was appointed Chief of the Supreme Command of the Armed Forces by Adolf Hitler. Before I was appointed there was a Reich-Minister for War, who was at the same time Supreme Commander of the Armed Forces. It was von Blomberg. On 4 February 1938 Adolf Hitler ordered a change. He abolished the functions of the Minister for War, and himself took over the functions of Supreme Commander of the Armed Forces.

At that time I became entrusted with certain functions of the Minister for War, and that from case to case. The three Supreme Commanders of the three formations of the Armed Forces—Air Force, Army, Navy—were under direct orders of the Fuehrer, and contrary to Blomberg, I had no command authority with respect to them. Therefore I was not entitled to give orders independently, but only by order of Adolf Hitler and after reporting to him. I had no authority of command, my role was really that of a Chief of Staff. I was, however, able to submit proposals in military matters to the Fuehrer in his capacity as Supreme Commander of the Armed Forces on my own initiative, if the three Supreme Commanders of the formations of the Armed Forces had not done so themselves; and generally the Fuehrer asked for my opinion in military matters. The decision was made by the Fuehrer alone.

On 1 September 1939 a Ministerial Council for the Defense of the Reich was created under the chairmanship of Hermann Goering. I was a member of this board only in so far as it dealt with military matters. I was never made a member of the Reich Government and I never had seat or vote in the Cabinet. For seat and vote in the Cabinet was never granted to me.

Relations to the Party.

In spring 1939 I was awarded the Golden Badge of Honor of the Party as a decoration. I never applied formally for admission to the Party. The Party considered me a member after the alteration of the law concerning the Armed Forces as from autumn 1944, because I held the Golden Party Badge; they asked me to pay a voluntary contribution to the Party. To begin with I sent them 1000 marks at that time. Personally I was a faithful follower of Adolf Hitler and my political conviction was National-Socialist. But when the Fuehrer granted me his confidence, I developed into National-Socialist under the influence of this personal contact. Even today I am a convinced adherent of Adolf Hitler; this does not exclude that I do not identify myself with some items of the Party programme and of the Party policy.

The German rearmament.

The German rearmament began approximately in the year 1935; at first to a modest extent, after we had withdrawn from the League of Nations and had reestablished the German sovereignty of arms.

Question: How much was the total expenditure for the German Armament up to 1 September 1939?

Answer: For the Armed Forces about 30 and not more than 40,000,000,000.

Q. Do you know about the speech of Adolf Hitler, delivered at the Sport Palace on 1 September 1939, in which he admitted to have spent 90,000,000,000 marks for German rearmament?

A. Yes. I know of his speech and also of the figure mentioned. I was utterly surprised by this figure and I nearly fainted when I heard this figure. As far as my knowledge went, this figure was exaggerated by about two thirds.

Q. Was it the purpose of German rearmament to prepare for a war of aggression?

A. Even during the years 1938 and 1939 none of us soldiers gave thought to a war of aggression. I knew that we were not at all prepared for a war of aggression, and even less for a world war.

Q. Did you ever advocate a German war of aggression in your official capacity?

A. I was in favor of a war of aggression under certain conditions, e.g. if by such a war of aggression a certainly impending attack of an adversary was to be prevented.

Q. What were the reasons for the German attack on the Soviet Union?

A. Because we had sure knowledge of the preparations of the Soviet Union for an attack and wished to prevent it.

Q. Did you know that some individuals in Germany, both military and civilian, advocated a total war?

A. No.

Q. Did you yourself favor total war, i.e. a war disregarding international law of warfare?

A. No.

Q. Was Germany prepared for a world war at the time of the Munich crisis?

A. No, for at that time no preparations had been made on our side, neither strategically nor operationally.

Q. Would Germany have begun the military attack if France and Gt. Britain had not agreed to the Munich Treaty?

A. Hardly, in my opinion, because as I said before, we were not prepared for a war at that time, especially if France had fulfilled her obligation to help Czechoslovakia.

Q. Had Adolf Hitler made up his mind firmly to get his political aims, even at the price of war of aggression waged by Germany or even of a world war?

A. I do not know that, but I am firmly convinced that he did not want a world war.

Q. Did you, in your capacity as Chief of the Supreme Command of the Armed Forces, never sign an ordinance which might have implied a violation of the International Law of Warfare?

A. Not that I know of.

The investigating officer submits at this instance an ordinance of the Fuehrer concerning a General Trustee for the Employment of Labor to Wilhelm Keitel, an ordinance dated 21 March 1941.

Q. Were you one of the signatories of this ordinance?

A. Yes.

Q. Were you aware of the fact that a rule of International Law is violated by the employment of prisoners of war and the civilian population of the occupied countries in the German armament industry?

A. No, as long as the ordinance is applied in accordance with International Law. I am not responsible for further ordinances issued later on the basis of this ordinance in order to carry it into effect. I add, that the Fuehrer would have issued the ordinance also without my counter-signature; or to put it better that he would not have made the ordinance of 21 March 1942 dependent on my counter-signature.

The Czechoslovakian Problem.

Q. Who conceived the idea to solve the problem of the Sudeten-Germans by means of an occupation by German forces, and to solve the whole problem of Czechoslovakia forcibly by means of an occupation of the remainder of the Republic?

A. That was exclusively the idea of the Fuehrer, although possibly political advisers cooperated; about this I know nothing, though.

Q. Was there a part-mobilization or were there movements of German forces against Czechoslovakia during the second half of May 1938 with the purpose of solving the Sudeten-German problem by the use of force?

A. No. The idea of military action was not yet discussed at that time, so far as I know.

Q. Do you remember an order of Adolf Hitler's of 28 May 1938, ordering the preparation of military action against Czechoslovakia for the 2 October?

A. I do not remember such an order, although I should have known about it.

The investigating officer now reads to Wilhelm Keitel the following passage from the Reichstag speech of Adolf Hitler's of 30 January 1939, page 453 of the book "Dokumente der deutschen Politik" (Documents of German Policy), vol. 7, part 2:

As Germany had not mobilized, let alone any intentions to attack Czechoslovakia, the situation was bound—there is no doubt about it—to lead to a grave loss of prestige of the Reich. This unbearable provocation, made still worse by a really infamous prosecution and terrorization of our Germans living there, has led me to the decision to solve the Sudeten-German problem now finally and radically. On 28 May

(1) I ordered to prepare military interference against this state for the 2 October.

(2) I ordered the enormous and speedy completion of our defensive front in the West.

Keitel declares thereto:

Such orders may have been given, although from my memory I do not know anything about it; for according to my memory the respective preparatory measures were ordered only later, during the summer. I believe, though, that the declarations of Hitler's are correct, but I do not know where they come from.

I stress the fact that Germany was not prepared for military action against Czechoslovakia in May 1938. I know, it is true, that the Fuehrer had made up his mind to solve the Sudeten-German problem in any case and within a reasonable space of time.

Q. Was the danger of a Czechoslovakian mobilization discussed at the time of the invasion of Austria by German forces?

A. I myself have drawn the attention of the Fuehrer to the fact that we were not prepared and could not occupy Austria if Czechoslovakia would mobilize. This indication was rejected by the Fuehrer.

Q. Do you know that at the time of the Austrian crisis Goering and Neurath gave guarantees, both in their own names and that of the Fuehrer, to Czechoslovakia that Germany felt bound by the Treaty of Arbitration concluded with Czechoslovakia in 1925 and that Germany had no intentions of attacking Czechoslovakia?

A. I do not know anything about such a guarantee.

Munich.

I was present, I admit, in Berchtesgaden, Godesberg, and Munich when Neville Chamberlain visited the Fuehrer. But I did not participate in any of the discussions and was but passively present, ready for any military information required.

Q. Did the Fuehrer consult you with regard to the military possibilities of Germany before the meetings with Chamberlain?

A. No. He was well informed about the military possibilities proper, and he knew that we were not at all prepared for war at the time of the Munich crisis.

Q. Was then Adolf Hitler in favor of war at that time?

A. No, because Germany was not prepared for war, as I have to stress again.

Q. What would have happened militarily, if Gt. Britain, France and the Soviet Union had taken the side of Czechoslovakia, and if they had declined the discussions with Germany and Italy, which led to the Munich Treaty?

A. The military means of the German Reich were by no means sufficient against such a constellation. An action at such a time would have been madness.

Q. Was it the political purpose of the Munich Treaty to eliminate the Soviet Union from the European affairs?

A. That is correct, for Czechoslovakia was considered to be a virtual field of deployment of the Soviet Union which might have dangerous consequences for military operations.

Q. Did the Armed Forces as a whole make their influence felt by means of an official representative with regard to the designation of the borderline in consequence of the so-called Munich Treaty?

A. I personally did not, neither did an officer of my Staff to my knowledge; but it may be that a representative of the Army was given the duty to point out strategical points of view, when the borderline was discussed.

signed: Wilhelm KEITEL

Wilhelm Keitel has signed this protocol consisting of 9 (nine) pages, on all copies and on every page in my presence.

signed: Guy A. Weill O-513470
Capt, AUS.

Signed Col. Dr. B. Ecer

Signed Lt. Dr. P. Schwarz

Signed Elisabeth Radziejewska.

TRANSLATION OF DOCUMENT 1956-PS

Das Archiv, Vol. 22-24, Page 1342 January 1936.

Meaning and tasks of the Secret State Police.

In order to refute the malicious rumours spread abroad, the “Voelkische Beobachter” (V.B. of 22.1.36) published an article on the origin, meaning and tasks of the Secret State Police; extracts from this read as follows:

The Secret State Police was created simultaneously in all German Provinces after the National Socialist Revolution owing to cogent political necessity. In Prussia its creator was Prime Minister Goering who is still the Chief of the Secret State Police today. In Bavaria the Bavarian Political Police was created by the Reichs Leader of the S.S. Himmler, who at the same time directed the building of the political police forces in the other provinces outside Prussia. The Political Police Forces became uniformly coordinated when, in the spring of 1934, Prime Minister Goering appointed the Reichs Leader of the S.S. as deputy Chief of the Prussian Secret State Police—cf. Si P.38 (Vol. 1). Thereby a unified leadership and a proportionate extension of the Political Police Forces of all provinces was assured.

The Secret State Police is an official machinery on the lines of the criminal police, whose special task is the prosecution of crimes and offences against the State, above all the prosecution of high treason and treason. The task of the Secret State Police is to detect these crimes and offences, to ascertain the perpetrators and to bring them to judicial punishment. The number of criminal proceedings continually pending in the People's Court on account of high treasonable actions and of treason is the result of this work. The next most important field of operations for the Secret State Police is the preventive combatting of all dangers threatening the State and the leadership of the State. As, since the National Socialist Revolution, all open struggle and all open opposition to the State and to the leadership of the State is forbidden, a State Police as a preventive instrument in the struggle against all dangers threatening the State, is indissolubly bound up with the National Socialist Leader State. The opponents of National Socialism were not removed by the prohibition of their organizations and their newspapers, but have withdrawn to other forms of struggle against the State. Therefore, the National Socialist State has to trace out, to watch over and to render harmless the underground opponents fighting against it in illegal organizations, in camouflaged associations, in the coalitions of well meaning fellow Germans and even in the organizations of party and state before they have succeeded in actually executing an action directed against the interest of the state. This task of fighting with all means the secret enemies of the state will be spared no Leader State, because powers hostile to the state, from their foreign headquarters, always make use of some persons in such a state and employ them in underground activity against the state.

The preventive activity of the Secret State Police consists primarily in the thorough observation of all enemies of the state in the Reichs territory. As the Secret State Police can not carry out, in addition to its primary executive tasks, this observation of the enemies of the state, to the extent necessary, there steps alongside to supplement it the Security Service of the Reichs Leader of the S.S., set up by the Deputy Fuehrer as the political intelligence service of the movement, which puts a large part of the forces of the movement mobilized by it into the service of the security of the state. The Secret State Police takes the necessary police preventive measures against the enemies of the state on the basis of the results of the observation. The most effective preventive measure is without doubt the withdrawal of freedom, which is covered in the form of "protective custody", if it is to be feared that the free activity of the persons in question might endanger the security of the state in any way. The employment of protective custody is so organized by directions of the Reichs and Prussian

Minister of the Interior and by a special arrest examination procedure of the Secret State Police, that—as far as the preventive fight against the enemies of the state permits—copious guarantees against a misuse of protective custody are provided. While protective arrest of short duration is carried out in police and court prisons, the concentration camps under the Secret State Police admit those taken into protective custody, who have to be withdrawn from public life for a longer time. The majority of the inmates of the concentration camps is formed by those communist and other Marxist functionaries, who, by previous experiences, would if free immediately resume their struggle against the state. Further police preventive measures against efforts hostile to the state consist in the dissolution of associations, in the prohibition and dissolution of assemblies and congregations, in the prohibition of publications of all kinds and so on. As the NSDAP and its leaders are also provided with special protection by legal regulations, the prosecution of crimes against these laws and the protection of the party and its leaders are also incumbent upon the Secret State Police.

TRANSLATION OF DOCUMENT 1961-PS

1942 REICHSGESETZBLATT, PART I, PAGE 247

Decision of the Greater German Reichstag of 26 April 1942

At the proposal of the president of the Reichstag, on its session of 26 April 1942, the Greater German Reichstag has approved of the rights which the Fuehrer has postulated in his speech, with the following decision:

There can be no doubt, that in the present war, in which the German people is faced with a struggle for its existence or annihilation, the Fuehrer must have all the rights postulated by him which serve to further or achieve victory. Therefore—without being bound by existing legal regulations—in his capacity as leader of the nation, Supreme Commander of the Armed Forces, governmental chief and supreme executive chief, as supreme justice and leader of the party—the Fuehrer must be in a position to force with all means at his disposal every German, if necessary, whether he be common soldier or officer, low or high official or judge, leading or subordinate official of the party, worker or employee—to fulfill his duties. In case of violation of these duties, the Fuehrer is entitled after conscientious examination, regardless of so-called well-deserved rights, to mete out due punishment and

to remove the offender from his post, rank and position without introducing prescribed procedures.

At the order of the Fuehrer this decision is hereby made public.

Berlin, 26 April 1942

The Reich Minister and Chief of the Reich Chancellery
Dr Lammers

PARTIAL TRANSLATION OF DOCUMENT 1962-PS

1935 REICHSGESETZBLATT, PAGE 839

Law to change the Penal Code 28 June 1935

The Reich government has ratified the following law which is herewith announced:

Article 1

Creation of Law by suitable application of the penal law.

The sect. 2 and 2a of the penal code contain the following wording:

sect. 2

Any person who commits an act which the law declares to be punishable or which is deserving of penalty according to the fundamental conceptions of the penal law and sound popular feeling, shall be punished. If there is no penal law directly covering an act it shall be punished under that law which most closely fits, in regards to fundamental conception.

sect. 2a

The culpability of the act and the punishment are determined according to the law which is in force at the time of the act.

Should a milder law be in force at the time of judgment than at the time of the act, then the milder law can be applied; should the act no longer be subjected to punishment at the time of judgment, then punishment may not take place.

A law which is only valid for a designated time is also to be applied upon the acts which have been committed during its validity even if it has been rescinded.

Decisions on disciplinary measures of security and improvement are to be made according to the law which is in force at the time of judgment.

Berlin 28 June 1935

The Fuehrer and Reich Chancellor
ADOLF HITLER

The Reich Minister of Justice
DR. GUERTNER.

TRANSLATION OF DOCUMENT 1964-PS

1942 REICHSGESETZBLATT, PAGE 535

Decree of the Fuehrer regarding special jurisdiction of Reich Minister of Justice 20 Aug 1942.

A strong administration of Justice is necessary for the fulfillment of the tasks of the great German Reich. Therefore, I commission and empower the Reich Minister of Justice to establish a National Socialist Administration of Justice and to take all necessary measures in accordance with my directives and instructions made in agreement with the Reich Minister and Chief of the Reich Chancellery and the Leader of the Party-Chancellery. He can hereby deviate from any existing law.

Fuehrer Supreme Headquarters 20 August 1942

The Fuehrer
ADOLF HITLER

Reich Minister and Chief of Reich Chancellery
Dr. Lammers

PARTIAL TRANSLATION OF DOCUMENT 1965-PS

EXTRACT FROM "DER STURMER", 4 November 1943

"It is really the truth that the Jews 'so to speak' have disappeared from Europe and that the Jewish 'reservoir' of the East, from which the Jewish plague has for centuries beset the peoples of Europe, has ceased to exist * * * However, the Fuehrer of the German people at the beginning of the war prophesied what has now come to pass * * *"

TRANSLATION OF DOCUMENT 1969-PS

NOTE

To the file.

Subject: Ottilienheim Absberg.

Dr. Hefelmann, Berlin, informed me by telephone that the transfer of the sick from the Ottilienheim was not carried out by the directive of Berlin, but by the directive from the Bavarian State Ministry, Munich, Regierungsrat Gaum.

Furthermore, he told me, that the bearer of sovereignty [Hoheitstraeger] could not be included, since the regulation does not call for that.

Nurnberg, 5 March 1941.

/s/ Sellmer

/t/ Sellmer

297/12

[Seal]

Gau Staff Office Sel/Pf.

5 March 1941

To the Kreisleiter Party Member Michael Gerstner

Weissenburg/Bavaria

Subject: Your letter of 24 Feb 1941

Alarm of the population of Absberg.

The Reich Office [Reichsstelle], Berlin, informs me that the transfer of the sick from the Ottilienheim was not carried out by Berlin, but by Munich. Therefore, I have now turned to Munich. In the meantime, I have found from the Regierungspräsident that we also raised a complaint against the ways and means of the treatment of the sick. I therefore hope, that such cross mistakes will not occur in the future.

Heil Hitler

S 297/11

[Initial: Semmler]
Gaustabsamtsleiter

NB: The specialist [Sachbearbeiter] for Bavaria is Regierungsrat Gaum in the Bavarian State Ministry in Munich. If possible we should get in touch with him. Regierungsrat Gaum will see to it, that the institutions will be cleared out as soon as possible.

Berlin, 31 Dec 1940 NW 7, Unter den Linden 72

Telephone: Local 120034

Long Distance 120037

Teletype: Local 517

Long Distance K 1517

Cable Address: Reichsinnenminister

[Rubber Stamp] Kreisleiter Informed

Reichministry of the Interior Ministerial Dr. Linden.

Iog 7633/40/5100.

It is requested, to mention this official designation and subject in any further correspondence.

[Red pencil] S.6.I.41

To the Gaustabsamtsleiter, Heinrich Sellmer in Nurnberg, Gauleitung

My dear party member Sellmer!

I forward in the enclosure an incident, which deals with the affair about which you have been informed by party member Blanickenburg from the Fuehrer's chancellery. As you can see in the application of Mrs. Marie Kehr, the latter would like to have information whether it is possible by a law of the Reich, to relieve people from their incurable sufferings. I request that you investigate, whether Kehr is politically reliable, especially whether she does not have church connections. In case this should not be so, from my side, there are no misgivings, if you give Kehr the desired information orally.

Heil Hitler!
/s/ Linden

In Ink

Ortsgruppenleiter Party member Popp is of the opinion, that one can inform Mrs. Kehr. She is calm and circumspect.

S 7 Jan 1941
297/21 2 DM

TRANSLATION OF DOCUMENT 1972-PS

SECRET

SS Fuehrungshauptamt [SS Main directorate office]

Kommandoamt of the Waffen SS

[Command Office]

Berlin—Wilmersdorf, 14 October 1941
Kaiserallee 188

Sect. Ia NR. 4116/41 geh.

SUBJ: Intermediate report on the civilian state of emergency.

TO: Reichsfuehrer SS

I deliver the following report regarding the commitment of the Waffen SS in the Protectorate Bohemia and Moravia during the civilian state of emergency:

In the mutual changes, all Battalions of the Waffen SS in the Protectorate Bohemia and Moravia will be brought forth for shootings, and relatively for the supervision of hangings.

Up until now there occurred:

in Prague:

99 shootings

21 hangings

in Bruenn:

54 shootings

17 hangings

Total 191 executions (including 16 Jews)

A complete report regarding other measures and on the conduct of the officers, non-coms and men will be made following the termination of the civilian state of emergency.

Signed: JUETTNER

SS Gruppenfuehrer [Maj. Gen.] and
Generalleutnant of the Waffen SS

Official stamp of Personal Staff of Reichsfuehrer SS

15 Oct 1941

PARTIAL TRANSLATION OF DOCUMENT 1991-PS

6th Report on activities and final report of the German Armistice Delegation for Economy and of the Delegate of the Reich Government for Economic and Financial Questions with the French Government for the period from 1 July 1943 to 17 August 1944.

Salzburg. 15 December 1944.

No. 000101.

[Page 63, last paragraph].

During the four years of the occupation of France the Armistice Delegation transferred approximately 121 Million Rmk. worth of investments from French into German possession, among them shares of war vital enterprises in third countries, in France and in Germany. For details see the former activity reports of the Delegation. About half of these transfers have been paid for by Germany with economic compensations by delivery of French foreign bonds, which were acquired in Holland or Belgium, whereas the balance was paid through Clearing and from occupation costs. From the difference in the value of the French foreign bonds, between the German purchasing price and the French rate of purchase, there have been realized profits amounting to Rmk. 7 Million which could be paid to the Reich.

PARTIAL TRANSLATION OF DOCUMENT 1992-PS

Lecture by General [Obergebietsfuehrer]

Dr. Hellmuth Stellrecht:

“The Military Education of the German Youth”

From: National Political Course for the Armed Force, from 15-23 January 1937

[National-Politischer Lehrgang der Wehrmacht, vom 15.-23. January 1937]

Restricted for the Armed Forces

[Pages 163-166]

All of you know already the words: Pre-military training, youth's physical training or military education [Wehrerziehung].

The first term “pre-military training” means, that the young person prior to his induction into the Army should acquire a certain amount of knowledge; the second term “youth's physical training” means conditioning of the body to a certain degree of physical fitness will be reached. However, we are choosing of the three terms the last one which is “military education”. Because not only does it mean acquiring a certain amount of knowledge and reaching a certain degree of physical fitness, but what is more important, it will have a decisive influence on the soldier.

One will ask: Why is it that there is such an endless debate going on in Germany today about the term “military education”? Why are attempts being made just at present to define clearly the term “military education” to carry out what is recognized as correct? Is it done for the sole purpose of trying to get the lead over foreign countries? Is it because of reasoning that we did this, or does it go much deeper than is noticeable on the surface?

Gentlemen, I believe that it was not only because of the reasoning of individuals who inspired us that a change in our thinking unnoticeable for many is taking place and becomes visible to all in its effects.

The term “military education” cannot be realized in a vacuum but it is closely connected with the symbol of the German soldier. Just like this symbol changes, the term “military education” also changes. Military education of the youth makes sense only under certain historical conditions. These in turn are closely connected with the ideology of state and society current at the time.

* * * * *

The young Germany found herself again in a soldierly way of life. The great historic development which lasted over hundred years had finally reached its conclusion and consequently the German people had gained new possibilities. Under Frederic the Great the military and the bourgeoisie (middle class) as different estates [Staende] opposed each other without understanding as hopeless strangers; the reforms, the wars of independence brought about, had united again both terms. However, they could not overcome the bourgeois way of life permanently.

Only within our time was this development concluded since life was again molded into one unit. No more the citizen of the sovereign ruler but each citizen of the New Reich is being born to bear arms. It is not a "cursed obligation" which puts him under military law but his own free will urges him to do it and makes him recognize the necessity of military service not only for one or two years but for a life-time, under a new unified system which begins in the earliest childhood and ends only when he is also unable to do service at home for the well being of all.

Considering all this, it goes without saying that we are talking about the military education of the German youth and carrying it out. It is just as clear before our eyes that Friederich Ludwig Jahn with all his knowledge and the great effort put forward by him did not succeed in carrying it out. But now the time is ripe because the newly gained philosophy of life may be realized. It would only be self deception to believe that this task could be solved from the top only. German youth has been a movement since a generation.

This movement started long before the war as a first proof of its coming great renovation protesting against the bourgeoisie.

The Youth Movement before the war was not yet soldierly but it was hard against itself and on long hiking tours it helped to lay the foundation for a real great Germany. The volunteer-spirit of the great war would be unthinkable without this youth movement—that volunteer-spirit which is the prerequisite of military duty! Of course, those who only came in order to fulfill their own duty did not spare themselves anything either in the great war. They were no less brave than the volunteers. The only difference was that the volunteer was willing to take responsibility for his fate, injury and death, while the other one felt more secure if the State and the Law were responsible for himself and the family when the misfortune arose.

The voluntary service was contained in the free corps [Freikorps], in the military organizations [Wehrverbänden], in the organizations of the NSDAP and in the Hitler Youth Movement.

The German youth has formed its own Reich within this youth-movement in which it has the right and privilege of its own way of life. In a decree issued by the Fuehrer on 1 December 1936, pertaining to the Hitler Youth Movement this own Reich was approved by him. It might be said that its own way of life gives its own character to German youth but we are lucky in that the philosophy of life of National Socialism has become the philosophy of life of youth and that there are no political differences between the different generations of present day Germany. Only the way of life of German youth has its individual emphasis. This has hardly penetrated the older generations. The way of life could also not be changed by an order from above because it did not grow by order or by accident but through a movement that has grown through the decades. We have to observe the fact that in the youth organization and in other organizations different ways of life confront each other. For instance, the way of life of the Army which is based on the probably oldest tradition which we have. There is no doubt that a boy who changes from one organization to another feels that the different ways of life are different and that he tries to decide for himself if one or the other is the right one. He probably tries to compare youth hostel and barracks, comradeship leader [Kameradschaftsfuehrer] and sergeant, an evening in a youth hostel and military instruction, the comradely "thou" which bound him to all leaders up to the Reichs Youth Leader and the pronounced separation from his superior even the corporal, also, abstinence from nicotine and alcohol and the sudden abolition of this abstinence.

It would, of course, be completely senseless for the individual to start to investigate if this or that way seems right to him. It goes without saying that an army which is to be trained for battle must be handled entirely different from a unit of boys. I believe that there is no organization in Germany which has gathered so much experience through its century old tradition in leading men as the army. Only at a later age one comes to see those things as a result of a deep psychological knowledge which, as a private, as a young sergeant or lieutenant, seemed obscure, or which one carried out without thinking, as and how it has always been done.

It would be just as senseless to argue that the army, as the oldest organization, should demand that the way of life in the youth organization should be

patterned after the army's way and that this should be done at once by a system of orders and regulations. That would be completely wrong because the present youth movement is of a natural growth which cannot suddenly be sent by coercion but needs a certain amount of freedom to be able to grow further. And nothing would be more harmful than to substitute a system of orders, which developed under totally different conditions, for the free will of the present young generation. The forty years of German youth history cannot and shall not be erased because what has developed alive out of an idealistic motive shall never be extinguished.

But, from a long range point of view, it is necessary that we do not allow the life of a German boy who has to pass through all the organizations, to go through as many breaking experiences as there are organizations. On the contrary, it is necessary to give to his life and his development actual stability. We do not only want to train our boys and through the difference of the organizations give them the opportunity to compare and to criticize but we want to lead them in an unbroken line of development from boy to man, a development which must be natural to them, which does not give them cause to investigate why they have been dealt with in this or that manner. The political education of the boy stops when he enters the service of the Armed Forces.

We have to admit that the way of life in the youth organization is different from that in the Armed Forces. But our time gives us an opportunity to draw one line of development from the tenth year to the time of discharge from the Armed Forces; that is the line of development of military training and military education. Therefore, it is in general of tremendous educational value and not only for the training of a soldier. The boy should feel that he is part of a natural course of events and react to it by feeling a constant uninhibited enhancement of life.

The young scout grows into the armour-bearer of the nation. Thus the natural course of events is again completed which has been characteristic of every natural warriorhood. It always let the boy become a scout first, then gave him practice weapons and only then let him earn the deathly weapon of the man.

All military training must thus be regarded a building of life without friction, following only the laws of life and supported by the one as well as the other organization and nothing to block it. Life itself knows no abrupt fundamental changes from one day to another. One is not a boy one day and a man the next

one but every age period has educational and formative significance, which needs to be recognized and utilized.

In case these laws are observed one will, a few decades from now, be incredulous before the achievements which will be made by development of physical potentialities and by technical knowledge and also before the high degree of ideological readiness which is inherent in the German soldier. The recognition of the laws of development will and must give us an incredible advantage over the achievements of other nations, especially in the present which is carried along by the impulse of national uprising. There is no question that even with several years of military training another nation cannot ever make up for that which was neglected in regard to development which we recognized and utilized in time.

But that which will happen in the future in regard to this will not only mean the training to be a German soldier but training to be a German man, the decisive final finish of whom takes place in the service of the Armed Forces. In addition, an extensive exchange of experiences will come about on the broadest possible basis between the Armed Forces in the Youth Organization on all things so decisive for all future development in order to continue the one education in every respect at the exact point where the other one stopped.

In regard to work with pure military education, this has already been done in years of collaboration and very extensively. The result has been put down in a book written by me which regulates future military education up to the last detail of training and which, on mutual consent, includes a preface by the Reichs minister of war [Reichskriegsminister] and the Reichs Youth Leader [Reichsjugendfuehrer].

The basic idea of this work is to present to the boy what fits into the particular stage of his development. In doing this one quite naturally avoids to bring up something beforehand that belongs into the future training of the Armed Forces and does not fit the boy but only the man. For that reason no boy is given a military weapon, simply because it does not make sense from the point of view of development. But, on the other hand, it makes sense to give him practice guns of smaller caliber. Just as there are military exercises which fit only adult men there are exercises which are better tackled at the age of a boy. Among others, for instance, outdoor training.

The young man of twenty who has become estranged to nature in the city—and two-thirds of the German population today live in cities—will find it very

difficult to reestablish contact. Everything has become too foreign to him and he will never again be able to become a bush or woods runner [Busch- und Waldläufer] whose best friends are nature and terrain.

It is different for the boy. At the age of 12 to 16 or 17 a boy is actually ideal for the terrain. It is exactly the age of wild west romanticism when he thinks only in terms of secret paths, ambush and surprise raids. If at that time nothing brings the boy into the terrain if he only continues the dull way of going to school something ingrown and crooked develops in him which can never again be straightened out. The right time to put him into the terrain has been missed.

The same is true of the training of the senses. I am of the opinion that to the training for seeing even the most insignificant things in nature, for noticing the slightest change in the normal world around us, a very systematic training of the ear should be added. One has to learn again to distinguish from entire noise pictures the single important sound which has something to say. One has to learn direction hearing and distance hearing and one has to train the ear to be constantly on the alert and immediately register the slightest noise which shows danger. This kind of training belongs entirely to a youthful age. If the right time has been missed it can hardly be made up in later years.

The boy starts to learn while he plays and in more and more systematic training becomes a young scout. He again acquires the incredible agility of primitive men to find cover and camouflage in the terrain, to use every indentation in the ground, every bit of vegetation to close in, to cover long distances without any noise also at night and, at the same time, to see everything, to hear everything and finally to appear out of nowhere before the baffled enemy; thus growing into the future battle technique through his full life of a boy.

I ask you, gentlemen, to think back for a moment and remember Langemarck, the volunteers who, for the idea, offered their lives to the bullets while singing "Deutschland, Deutschland ueber alles". And then think of the youth with the same ideological readiness of a few decades later which does not waste one drop of blood, which in defense and attack evades the enemy, against whom the best weapon becomes useless because it hardly any longer can find its aim. This is a picture of the goal of great education which starts with the playful training of the boy in the terrain and completes itself in the training in the Armed Forces.

If we in Germany use only a fraction of the effort which is used in the school to prepare the boy for *that* we will certainly get results. Because this service has one advantage: It meets the desires of the boy halfway while, thank heavens, sitting on a school bench never does. Because the fate of nations will also in the future not be determined by academicians but by politicians and finally by the soldier. Why shouldn't it be possible to give back to German youth what is natural to primitive men? Our nation is healthy. The natural tendency for it still exists. They have not been lost, they are only obscured. First, they have to be forced so that they may grow again.

What a boy between 10 and 14 does in his games, the older boy practices in systematic training. But nowhere is there a place for unnatural drilling, everything shall and must be part of the life of youth. But the effort made by the individual must be increased as he grows older.

We Germans were given a great gift by providence. That is, that we are the only nation who knows how to hike. We are bound to nature not only by the necessity to exploit it but by the talent to understand nature emotionally. We experience nature when we hike because we add our own effort.

We do not wish our youth to goose step in a column, but travel in a small group which must find its own way. The group learns, after it has been taught essentials, to orient itself, to read maps and to judge the terrain. It increases the joy of hiking if the leader gives definite problems, for instance, to find a certain point visible in the terrain on the map, or, to look up a road on the map and lead the group to it, etc., etc.

The trip offers the great opportunity to fit in all that which belongs to the system: description and judgment of terrain; recognition and description of the aim; use of terrain, scouting; reporting; securing; and to end up in a terrain game which requires all the boy; initiative.

The trip does not alone train the boy in the terrain but, as I like to call it, to self-help. During the war we found that the truly useful soldiers were not those who had completed their training but those guys who knew what to do in any situation and could take care of themselves when it came to the smallest details. Only the mastery of these thousands of skills makes a completely useful soldier. The idealist reaching for the stars is of little use if he cannot deal with all the unpleasant things which must be overcome. Of what use is the most enthusiastic man if he neglects his footwear and has to stay behind with bad feet. It is a useless comrade who does not know how to set up a tent, to dig

a hole for cooking, to make a fire, to dress a wound. The many repulsive tasks in the world of war will soon cause him to stay behind as unfit, or he will remain a constant source of trouble to the sergeant, who will be unable to grasp how anybody could be born with so little common sense.

We have no use for helpless professors but need agile, quick youths who can deal with every situation in life and have learned all that at a time when it was easiest to learn it. This is, to a large extent the purpose of the hiking trip and the camp.

But the hiking trip has still another purpose. It is one of the best means of education at our disposal; because it is the only way in which the boy can get acquainted with his fatherland for which he will have to fight one day. From the perspective of the back alley he can never win it. But he who has not been completely satisfied will still find in sun and rain and in his own effort the meaning of trees and soil, of villages and old towns. He can carry it with him as his true possession and with this possession he ceases to be a proletarian. It is even a prerequisite for the possibility that the new state once again may give him a piece of land. Then again it would have a meaning to the individual.

The systematic development of physical ability for all of us today has become something self-understood. We can hardly grasp the fact that the old state did so little for it with a few hours of gymnastic exercises up to the end of compulsory school and nothing up to the time of military service. And that at a time when the number of men fit for military service in the large cities decreased from year to year. It does not make sense to us to provide physical training only for those who desire it and, therefore, join sports clubs. Because he who does not do that is certainly much more in need of physical training. A definite program for physical training simultaneous with the physical development of the young person is a demand already made by the Fuehrer in his book "Mein Kampf" and which was therefore also demanded and carried out by the new state. The gap between school, labor and army service must finally be closed.

What shall and must be done in particular is clear today and established. The natural is the best. General physical training is the beginning. Then follows athletics. Track comes first, followed by jumping, throwing and pushing. But not everything belongs to athletics but only the simplest: short and long distance running, high and broad jumping, shot put and instead of javelin, club-throwing. For building the body those are the most beneficial exercises which require a minimum of tools and at the same time not too much

technique. Among those swimming is one of the exercises which develop the body in general. Why should a boy wait till he is 20 years old to learn how to swim? In the question itself lies the contradiction. Why should the army occupy itself by teaching 70 percent of the recruits how to swim. The boy of ten can learn to swim and should master it long before he becomes a soldier.

* * * * *

Of special value for the development of the body is any fighting sport, especially boxing. Every boy first learns free wrestling and then boxing. There is no sport which educates better to hardiness and fighting spirit.

One could not start it too early but only after the body has almost stopped growing, under no circumstances during the grooming periods. After that it shall be the main part of body training.

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[Pages 174-176]

Every boy endures within the proper limits of his strength and resistance. It is the art of the educator not to go further and to go so far that through a new test new hardiness follows and in such a manner that the new test can be on a higher level and increase resistance by not giving beyond its limits.

* * * * *

All that has been learned serves, from a military point of view, nothing but to get close to the enemy and to bring arms into effect. The entire education and training remains without value if it does not lead to the full effect of the weapon against the enemy. All training, therefore culminates in training in shooting. It cannot be emphasized enough and because shooting is a matter of practice one cannot start too early. In the course of years we want to achieve that a gun feels just as natural in the hands of a German boy as a pen. It is a strange state of mind in a nation if, through years many hours every day are spent in practicing penmanship and grammatical writing but not a single hour in practice-shooting. Liberalism put the following slogan above school doors "Knowledge is power". We, on the other hand, have found out during the war and postwar period that the power of a nation, in the last analysis, always rests on its arms and on those who know how to handle them.

Shooting meets with the desire of a boy. There is hardly ever a boy who does not experiment with it, if only with a bow and arrow he made himself. Let us put into his hand that which suits him that gives him real pleasure. First a new

air rifle with which he can really learn how to shoot and let us teach him how to do it correctly. Later, the older boy gets a small caliber rifle with which all the fine points of shooting can be taught and in the service of the army finally, as the last stage, a weapon.

In such a training course the art of shooting can be developed to a degree which, up to now, seemed not attainable.

* * * * *

In addition to general training there is special training for the new replacement generation in the Air Force, Navy and motorized troops. The training course for this has been established with the competent authorities in the Armed Forces. In addition, there is training in communications on a broad basis and, in the country, cavalry training.

* * * * *

With the law of 1 December 1936 on the Hitler-Youth, the Fuehrer made it possible to extend the principles which, so far, have been applied to the education of the Hitler-Youth to all German Youth. Military education is one of the most important tasks to be fulfilled by the future Hitler-Youth. Besides it, there are the other tasks which are inseparably connected with it. In our opinion it is not possible to divide the thinking of a human being into various sections which then are cultivated by various organizations. But man is an indivisible whole also in regard to education. Military education and philosophical education belong together. The latter is not to exhaust itself in lectures but always through ideological attitude has to draw the conclusion through action.

During the years the boy lives in the youth organization we want to give him the knowledge of that for which he has to fight and be a soldier. The army of the new Reich is not only a community of men who know how to fight according to the laws of military honor, but a community of faith in the mission of the German people and in their own great task. The education of youth has to take care that the knowledge and the principles, according to which the state and the Armed Forces of our time have been organized and which support them, enters so thoroughly into the thoughts of the individual that they never again can be taken away and remain direction-giving principles all through life.

But if faith should be shattered and the idea itself should no longer be firm enough then the German man must have been educated in such a manner that the laws of honor, which alone enable him to live in his community, still hold. And if even those should be shattered, there remains as the last resort the manly discipline, the iron habit to obey silently and to carry out, without a word that service by order of another for which the individual will does not suffice. He who cannot give orders to himself, must get used to obeying the orders of others and to feel the obligation so to do so strongly that even at the most dangerous moment it does not fail. It is a fine thing when a man of 20 learns to obey unconditionally but it is much better when the boy of ten starts to put his own wishes aside, to renounce, to give in, and to serve the will of the community.

Gentlemen, you can see for yourself that the tasks of present German youth education have gone far beyond the “playful”. Within the great order of the new Reich they have taken on a new and tremendous significance. In order to be able to solve these problems apart from everything old and inhibiting the Fuehrer has given its own realm to youth. But this problem can only be solved if the large educational organizations of the German people are coordinated in such a way that the life of the German boy constantly increases in physical skill as well as in ideological will. It would be a pleasure to know that I succeeded in showing you the great possibilities and in arousing your interest in the fact that the Armed Forces and the youth together, have to follow *one* road.

PARTIAL TRANSLATION OF DOCUMENT 1992-A-PS

National Political Course for the Armed Forces, from 15 to 23 Jan. 1937.

[National-Politischer Lehrgang der Wehrmacht, vom 15.-23. Januar 1937]

Restricted for the Armed Forces.

HIMMLER: Organization and Obligations of the SS and the Police.

[Pages 141-161]

I shall speak first of all about the origin, organization, and the spheres of activity of the SS; secondly, about the organization and obligations of the Police; and thirdly, about the combined efforts of the SS and the Police, and about the important and vitally necessary question on the internal security of the Reich.

The SS originated in 1923, very early in the history of the movement, as shock troop [Stosstrupp] Hitler, was prohibited and disbanded on November 9, 1923. When the party was reestablished in 1925, the SA as a protective organization for the meetings was at first prohibited. The Fuehrer was also denied the right of speech and assembly in Prussia as well as in Bavaria. Assembly was permitted only in Saxony and Thuringia which at that time were entirely red.

In order to insure the success of these meetings, it was necessary to protect them from dispersal. Therefore in 1925 the Fuehrer ordered a small organization to be formed in order to protect these meetings, namely the SS [Schutzstaffeln, protective squadrons]—literally Staffeln at that time, namely small formations with the effective strength of one leader and 10 men in each location. Even as large a city as Berlin had a squadron of only 2 leaders and 20 men at that time. Throughout 1925 and 1926 we succeeded in carrying out and carrying through the meetings of the Fuehrer and also of other party speakers in Saxony and Thuringia with these squadrons.

In 1926 the SA was again permitted to exist, and for a few years the SS withdrew more into the background.

In the year 1929, eight years ago, I was ordered by the Fuehrer to take over the leadership of all SS units in the entire Reich, then totaling 280 men, and to change them according to the order, into a reliable elite organization of the Party.

I decided to tackle this problem—which I should like to discuss here to some extent—because I was a National Socialist, of course. I want to tell you also how this is to be interpreted. I am a strong believer in the doctrine that, in the end, only good blood can achieve the greatest, enduring things in the world. Strengthened by this conviction of mine, I began to work on this problem.

Accordingly only good blood, blood which history has proved to be leading and creative and the foundation of every state and all military activities, only Nordic blood, can be considered. I said to myself that should I succeed to select from the German people for this organization as many people as possible a majority of whom possess this desired blood, to teach them military discipline and, in time, the understanding of the value of blood and the entire ideology which results from it, then it will be possible actually to create such an elite organization which would successfully hold its own in all cases of emergency.

This form of selection of good blood has been very often theoretically recognized. Many books have been written on it from Chamberlain to Guenther of the years 1926/27, and many others which I shall not mention here. Now came the difficult question of the method of selecting these people. There are two kinds of selection procedures: first, the most severe selection procedure brought about by war, the struggle for life and death. In this procedure the value of blood is shown through achievement. In the year 1929, a great number of former soldiers still existed whose worth could be determined by their record during the war. Wars however, are exceptional circumstances, and a way had to be found to make selections in peace time as well, when courage could not be given this test. Thus, I could only draw conclusions from the appearance of the people in question. Of course, many will argue immediately: that is all very well but if you judge by height, blond hair and blue eyes and the dimensions of the skull then the matter is very problematical. That is known to me very well, too. One could never judge by that alone.

I then went on to require a certain height. I did not accept people under 1,7 m—and here I ask you to understand the exact meaning to my words—because I know that people who have reached a certain height must possess the desired blood to some degree. Of course it is impossible to be too discriminating here as it cannot be said that people who are smaller should not possess the same blood. That is natural but by choosing from this pool of people having the desired height there exists a greater probability of obtaining satisfactory results.

But we went further. It was not enough to go by height, but we began to obtain photographs at that time. That amounted to a hundred to two hundred people annually who were eligible for admission. I have personally seen each photograph and asked myself: Does the face of this man have distinct traits of foreign blood, excessive cheek bones, or as is the common way of asking: Does this one appear Mongolic or that one Slavic? Slavic, incidentally, is a faulty expression. It is merely a popular expression.

Why have I done all this? I should like to call to your attention here the types of soldier councils of the years 1918 and 1919. Everyone of you who was an officer at that time knows a number of such people by personal experience. You will have to admit that on the whole they were people whose appearance affected our German eye as rather peculiar, whose features looked strange and who had some foreign blood in them. They were the type of people who could

be disciplined, who are orderly in normal times, who would even be brave, bold and daring in time of war but who, because of their blood, would fail to pass the final great test of character and nerves.

Since I knew these things I said to myself: I shall not accept people whom I expect to quit, to complain, to become disloyal and traitors, to have bad soldierly manners and the like at the moment of political tests, because of the nature of the composition of their blood. We had to be all the more careful because we had only voluntary discipline in the SS during the years of struggle, and therefore we were unable to compel a man to do something.

It was only possible to deprive the man of his arm band for a period of three or four weeks or impose on him penal drills, and that only if he voluntarily accepted the punishment. If he was unwilling he could always say: "I resign, I don't like it any longer." We therefore have followed the above-mentioned principle of selection and been able to remove the principal causes of defect.

With this outward screening however, no final selection had been attained, since it was always the performance of the person during the following months and years which was of importance. It was my point of view that we should always require difficult tasks and more than any other organization. Valuable personnel is never trained by means of easy service and conveniences, but by difficulties and added burdens. We therefore began by exacting from our men higher dues in spite of the widespread poverty of the times. At a time when no uniforms were issued to party organizations, we asked our people to acquire black trousers and boots from their own means—a tremendous expense for an unemployed person who had to pay the 40 marks of his own purse. If he failed to do so and declared: I cannot do that, then we explained to him: please go away, for you somehow failed to understand the matter for you do not possess the instinctive willingness to a sacrifice of your own accord, for we cannot use you. Thus we gradually arrived at our intended and desired picture.

This briefly-mentioned theory of selection of people may be criticised, today after eight years I believe I can say with sincerity that its practical application has justified its existence, and that it has really been possible to effect a certain selection of people in the SS already during the time of fighting.

I shall skip the next few periods and shall now occupy myself with the year 1933. This year was for the SS the hardest trial; for it was a time when all organizations flourished, a time of great assault and tidal waves of those who desired membership in the party and its organizations. A very difficult question

confronted us at that time. It was a question of deciding whether to close the party and its organizations to further membership and thus remaining pure in quality but small in volume, or of opening them to further membership to increase their volume. This resulted in a dangerous situation, as was shown as a number of people poured in who were not entirely loyal and idealists, so that to a certain degree it became a menace of numbers, of the masses.

The SS too was endangered by this menace. Therefore I closed it in April 1933 while some of the other organizations still accepted as great a number of people as possible. This way I had the SS again under my control in April and said: We shall accept no more people. From the end of 1933 to the end of 1935 we expelled all those of the newly accepted members who proved unsuitable. In these years I have expelled approximately 60,000 men. Today the strength of the SS consists of approximately 210,000 men. This has been of great benefit to the SS and all of its units as its quality has greatly improved whereas it would have suffered considerably through quantity.

I shall close the question of selection by stating that today we accept young men of 18 years of age. We know them already from the Hitler Youth, have studied them already a few years, so that we are sure to get only the best. With 18 years they come to us as candidates.

They are extremely thoroughly examined and checked. Of 100 men we can use on the average 10 or 15, no more. We ask for the political reputation record of his parents, brothers and sisters, the record of his ancestry as far back as 1750 and naturally the physical examination and his records of the Hitler youth. Further we ask for a record of hereditary health showing that no hereditary diseases exist in his parents and in his family. Last, but perhaps most important, is a certification of the race commission. This examining commission is composed of SS leaders, anthropologists and physicians.

The behavior of this young man in front of this commission is now what is decisive: Not only the way he stands at attention but also his manly disciplined bearing, the ease and composition with which he answers the questions posed to him in the course of conversation, his gait, his hands, in fact all that which we have come to regard in the course of our eight years of experience as ideal. This is the way we determine whether to accept the man or not. The first years the company has been very unhappy in many cases. It asked: Why is this man refused us? We have just located in this or that village a man who has in every respect an orderly appearance and now when this man confronts the race commission he is being refused at a time when it is so difficult to obtain

people. In such cases we have always remained and still remain severe and that is the right thing. That is the proper way to conduct a veritable selection.

I now come to the organization of the SS. It is necessary to distinguish among the following organizations of the SS. First the General SS which consists of about 190,000 men. This General SS is entirely civilian in nature except for the higher officer corps, which performs its duties on the higher levels, that is from Sturmbannfuhrer up. I am very proud of the fact that only 0.4 percent of the General SS are unemployed. These 0.4 percent come from Upper Silesia where it is really very difficult to obtain work. We have almost only professionals, and it is my opinion that it should be so. For a really capable man is of little value to me if he only excels in arts, he must also be otherwise honest and of good character, and accomplish something in his field, in his profession. A man who changes his position three times without satisfactory reason is expelled as we have no further interest in him. People who stand around idle are of no use to us. The General SS, therefore, is entirely professional in its nature and character and performs its duties nights and Sundays just like in war time. Besides the General SS there is the Verfuegungstruppe; also the Death Head Units, the SD, and the race and population system. I shall now discuss individual units in some detail.

The General SS is divided into 13 subdivisions which on the whole are exactly adapted to the present corps districts and one corps district being planned. Under these subdivisions headed by Oberabschnittsfuehrer who are Gruppenfuehrer or Obergruppenfuehrer, there are those which are headed by an Oberfuehrer or Brigadefuehrer. These subdivisions, in their turn, are subdivided into SS regiments [Standarten]. A regiment, if in its entire force, is made up of 1600 men. Under the regiments we have the battalions [Sturmbanne] and companies [Stuerme], and under the companies the platoons.

A great many SS men live very far apart. Of course, it would be much more convenient to set up a Sturmbanne in some town and in this way have all the people always together. That would facilitate considerably the exercises which always take place in the evening hours, instruction and sport, and require much less effort. However, that would inevitably result in a decreasing quality because not enough people possessing the desired qualities could be obtained in a town of approximately 20 to 25 thousand inhabitants. We have, therefore, extended our organization considerably and have many platoons in the country side. These platoons are then divided up between the villages, so that in a

typical village only the two best young men are SS members. We have meetings over the week ends when the farmer is not too occupied, or one entire afternoon in the winter, while in summer we only have monthly roll calls. That is the outline of the organization of the General SS.

The age groups in the SS are as follows: With 18 years the young man enters the SS. He is first an applicant, after three months he takes the oath on the Fuehrer and thus becomes a candidate [Anwaerter]. As a candidate during the first year he takes examinations for his SA sport insignia and his bronze sport insignia. At the age of 19 or 19½, according to the time of his acceptance, he is conscripted for the labor service and subsequently for the Wehrmacht. After two more years he comes back from the Wehrmacht unless he remains there as a prospective non-commissioned officer or reenlists. If he returns to us he is still candidate. In these weeks he is especially thoroughly instructed in ideology. The first year is for him a period of elementary ideological indoctrination. In these weeks following his return from the Wehrmacht he receives special instruction about the marriage law and all other laws pertaining to the family, and the honor laws. On the 9th of November, following his return from the Wehrmacht, he becomes an SS man in the true sense. The Reichsfuehrer of the SS is just as much an SS man in the sense of the SS organization as the common man at the front. On this 9th of November he is being awarded the dagger, and at this occasion he promises to abide by the marriage law and the disciplinary laws of the SS, since the family is also subject to these laws. From this day on he has the right and the duty to defend his honor with a weapon as laid down by the honor laws of the SS. The applicants and candidates do not yet have this right. The SS man remains in the so called active general SS until his 35th year. From his 35th to his 45th year he is in the SS reserve, and after his 45th year in the Stammabteilung of the SS, identified by the grey color patch. Between the ages of 21 and 35 the SS man has to perform a great many duties, especially up to his 25th year. In these first four years there are a lot of marches, tournaments, i.e., sports of all kinds which take the form of contests that take place each year between Easter and Summer solstice so that we are able to select the best men of every company by these demonstrations of physical ability. Every SS man is being asked to pass some kind of annual test until his 50th year. And the reason for that? These men are for the most part professionals. In the SS perhaps anywhere from ½ to ¾ live in cities. The workman in the cities is often engaged in occupations requiring him to stand or the intellectual worker to sit for a

considerable amount of time. To that is added the misery of big cities which in my opinion is also a very serious military question.

People of the 20th Century no longer walk but travel in the subway, railroad or cars. Nobody is accustomed to marching in all the years of his civilian life. Or take those who hold leading positions as an example, all the professional State and Ministry leaders. These people are condemned to sit. Everybody is so pressed for time he has to take an automobile because there is no other way to keep up with the rush. The result of this is that people grow pale and fat and in some cases phlegmatic which is never good for the State. If we desire to remain young we have to be sportsmen. But all that would remain on paper if I did not hold annual checkups or arouse to a certain degree the ambition of the men so that they really become sportsmen and pass their annual tests. * * *

The performance insignia of the SA have the following meaning: every form of sport which requires the use of arms is being executed with both arms. Shot put is done with both arms; the same holds true for stone putting. Pistols and rifles are fired left and right. That appears terribly awkward and unaccustomed in the beginning, but it is an excellent form of exercise and very successful. Hand grenades and clubs are hurled left and right. In the beginning no record performances can be expected of course of people past their twentieth year, since the left arm or in the case of a left-handed person the right arm, are completely untrained, so that at a distance of 10 m the target is often missed by three or five meters. It will be, however, a very good development and application of all physical strength if we require such performances of youths in the ages of 13 to 14 from the very beginning. I believe that in this way we shall be very successful. Every year the performance insignia differ. Of course, I do not expect the conditions and time from a 40 year old for a 100 meter race as I do expect them from a man of 21, but I do require of the man of 40 greater endurance in marching than I do of the man of 21. I expect a 30 year old man to shoot calmer and better than a 19 or 20 year old with few examples. They are also graded to the extent that a wounded war veteran who e.g. cannot swim need not, for that reason, refuse every sport. But I want to help him by grading the conditions so that one who lost an arm can perform the exercise with the other arm. Such are the sport activities of the SS from the ages of 18 to 50. Aside from the sport activity, those between the ages of 21 and 35 receive complete training in street patrolling and barricading for cases of internal security.

Hand in hand with physical exercise is mental and ideological training. Weekly periods of instruction are held during which pages from Hitler's "Mein Kampf" are read. The older a person, the more steadfast must he be in his ideology and the more training must he get in ideology.

I now come to the *Verfuegungstruppe* [Forerunner of Armed Forces SS]. The *Verfuegungstruppe* is divided into the following units: SS Regiment "Adolf Hitler," with three battalions, which is motorized and at the same time contains infantrymen and additional companies; SS Regiment "Deutschland" with 4 battalions with the usual motorcycle riflemen and infantry howitzer companies; SS Regiment "Germania" with 3 battalions also with motorcycle riflemen and infantry howitzer companies; the SS battalion "Nurnberg," an infantry battalion; the SS engineer battalion today in Leisnig; later in Dresden; and the SS signal battalion today in Berlin, later in Unna, upon completion of the barracks. The Regiment "Adolf Hitler" is in Berlin. The Regiment "Deutschland" has three battalions in Munich and one battalion in Ellwangen, the Regiment "Germania" has now one battalion and two companies in Hamburg, and one battalion in Arolsen and up to now one other battalion in Soltau. The final garrison is not yet stationary. The time of service is 4 years. No other form of conscription exists. The annual need for replacement will be approximately 2200 men, not a great number.

I now come to the Death Head Units. The employment and obligations of the *Verfuegungstruppe* I shall discuss later in connection with the police. The Death Head Units originated from the guard units of the concentration camps. In connection with these concentration camps, I should like to give a few data. We have in Germany today the following concentration camps which, in my opinion, should not decrease but increase in number for certain reasons:

(1) Dachau near Munich; (2) Sachsenhausen near Berlin, which is the former camp Esterwege in Emsland. I have dissolved this camp in Emsland upon the suggestion of Reich Labor Leader, Hierl, and the judiciary, who declared it was wrong to tell one person that the service in the swamps to make land arable is an honor, and another, by sending him there as a prisoner: "I'll teach you people what it means to get sent to the swamps." This indeed is illogical, and after half or three quarters of a year, I dissolved the camp in Esterwege and transferred it to Sachsenhausen near Oranienburg. Then there is a camp in Lichtenburg near Torgau, one in Sachsenburg near Chemnitz and besides a few smaller ones. The number of prisoners is about 8000. I shall explain to you why we must have so many and still more. We once had a very efficiently

organized German Communist Party [KPD]. This KPD has been crushed in the year 1933. A part of the functionaries went to foreign countries. Another part was comprised in the very high number of protective custody prisoners in the year 1933. Because of my extensive knowledge of Bolshevism, I have always opposed the release of these people from the camps. It must be clear to us that the great mass of workmen are absolutely susceptible to National Socialism and the contemporary form of state as long as their way of thought has not been changed by the specifically indoctrinated, trained and financially backed functionaries. * * *

It would be extremely instructive for everyone—some members of the Wehrmacht were already able to do so—to inspect such a concentration camp. Once they have seen it, they are convinced of the fact that no one had been sent there unjustly; that it is the offal of criminals and freaks. No better demonstration of the laws of inheritance and race, as set forth by Doctor Guett, exists than such a concentration camp. There you can find people with hydrocephalus, people who are cross-eyed, deformed, half-Jewish, and a number of racially inferior products. All that is assembled there. Of course we distinguish between those inmates who are only there for a few months for the purpose of education, and those who are to stay for a very long time. On the whole, education consists of discipline, never of any kind of instruction on an ideological basis, for the prisoners have, for the most part, slave-like souls; and only very few people of real character can be found there. They would pretend to do all that would be asked of them, repeat all that is said in the “Voelkischer Beobachter” but in reality, stay the same. The discipline thus preens order. The order begins with these people living in clean barracks. Such a thing can really only be accomplished by us Germans, hardly another nation would be as humane as we are. The laundry is frequently changed. The people are taught to wash themselves twice daily, and the use of a toothbrush with which most of them have been unfamiliar. * * *

The concentration camps are guarded by these Death Head Units. It is impossible to use exclusively married people for guard duty as has been suggested once, for no state can afford to do so. It is further necessary to keep the number of such guards for concentration camps—there are 3,500 men in Germany—at a relatively high level, for no form of service is as exacting and strenuous for troops as the guarding of crooks and criminals. * * *

In case of war, it must become clear to us that a considerable number of unreliable persons will have to be put here if we are to assure ourselves of the

absence of highly disagreeable developments in case of war.

The prisoner guards were formerly members of the general SS. We gradually collected them into the so-called Death Head Units. They are not arranged in companies, but in centuries (groups of 100) and have naturally also machine guns. In such camps there are two or three control towers, manned day and night with fully loaded machine guns, so that any attempt of a general uprising—a possibility for which we must always be prepared—can be immediately suppressed. The entire camp can be strafed from three towers.

The time of service in these Death Head Units is also four years. They consist today mainly of people who have served their time in the Wehrmacht and then enlisted with us for a period of four years. The Death Head Units have the additional purpose of being the cadre centuries for approximately 30 Death Head special battalions of the SS in case of war, for 25,000 men with whom we shall guarantee the safety in the interior. I shall come back to this subject later.

I now come to the Security Service [SD]; it is the great ideological intelligence service of the party and, in the long run, also that of the state. During the time of struggle for power it was only the intelligence service of the SS. At that time we had, for quite natural reasons, an intelligence service with the regiments, battalions and companies. We had to know what was going on on the opponent's side, whether the Communists intended to hold a meeting today or not, whether our people were to be suddenly attacked or not and similar things. I separated this service already in 1931 from the troops, from the units of the general SS, because I considered it to be wrong. For one thing, the secrecy is endangered, then the individual men or even the companies are too likely to discuss every day problems.

That was indeed the principle of the SS from the beginning. Every day problems do not interest us; every leader appointed by the Fuehrer will be backed by us, every leader dismissed by the Fuehrer will be removed by us, if necessary by force, because only the command of the Fuehrer counts. Besides that we are only interested in ideological questions of importance for decades or centuries, so that the man is really above the concern of every day and knows that he is working for a great task, which occurs but once in 2000 years. The SS man is not interested in daily problems of the kind whether perhaps the local group is correctly manned, whether everything is done properly in the labor front, no matter what it is, he is not interested.

The Security Service was already separated from the troops in 1931 and separately organized. Its higher headquarters coincide today with the Oberabschnitte and Abschnitte (sectors), and it has also field offices, an own organization of officials with a great many Command Posts, approximately 3-4000 men strong, at least when it is built up. The spheres which it handles are above all Communism, Judaism, Freemasonry, ultra-mundane activities, the activity of political religion, and reaction. Here, too, the details of the work are not of interest. You will perhaps see that during your visit; I can, therefore, be short. The security service is only interested in the great ideological problems.

For example: Let us say that it is attempted on the part of ultra-mundane people to effect gradually for the territory of Austria a change into a Swiss like state by means of scientific exploitation of the theory of the Austrian man. Just as it happened to us in our history 700 or 800 years ago with Switzerland which, although it still speaks the German language today, does not consider itself inwardly as belonging to Germany; or as we had to suffer the loss of Holland with its entire lower German territory a few centuries ago; the attempt is now being made to point at this problem of the South-East German people, of the Austrian people, with propaganda, by scientific underrunning and scientific work at the universities, until spiritual separation is also possible. We are furthermore interested: Which German professors support this theory or are connected with any wire-pulling abroad or elsewhere?

These are spheres which interest us. To us as a security service it is of no interest whether, for instance, the cell organization of the German Communist party at Berlin-Wedding has been broken up or not. This is a question for the executive power. One day it will be broken up, or it is broken up already, and if it is reorganized, it will be broken up again. Therefore, this is of no interest to us, on account of that Germany will not perish. We are interested: What are the Communists' large-scale plans for the next years, in which country do they intend to begin, which influences of Bolshevism are noticeable in foreign Freemasonry circles, what are their plans, where do the big emissaries go now? Recently, e.g. 800 emissaries went to Austria. They arrived there 3 or 4 months ago, and now we are extremely interested to know: How is this going to affect Austria? Or what plans do they have, what great organizational plans for Germany, from which angle do they start, how does Bolshevism make common cause, for instance, with the religious coalition [Bekennntnisfront], and suddenly supports as an atheist movement these religious parsons, how is that possible all of a sudden? Or we are furthermore interested in this:

What economic influence do the Jews exercise—again considered on a large scale—to suffocate business, to commit sabotage and to transfer foreign currency illegally? These are things which are being studied there scientifically and—in this case the word really fits—by a general staff, which may sometimes last for years, tasks which in many or in most cases are only in the beginning stage.

After the Security Service follows the last pillar, the race- and settlement organization. We thus have the general SS, which represents the majority of the SS, of the order, the *Verfügungstruppe* troops with a certain task in the country for the protection of the interior, the *Death Head Units*, also for the protection of the interior, the Security Service, the intelligence service of the party and the state, and finally the race—and settlement organization whose task of ideological training is of a positive nature, as contrasted with the Security Service which has the negative task to seek information about the opponent. In this race- and settlement office the marriage applications are being handled. In the last 4 or 5 years we have the order concerning marriages: No SS men can get married without the approval of the SS Reich leader. A physical examination of the bride and guarantees for the bride's ideological and human character are required. We are not interested whether the woman has a fortune or not. We request only a statement whether or not she has defects. We prefer it if the rich girls take along only what they have earned themselves, or their dowry. In addition, the genealogical table up to 1750 is required, the hereditary physical report of both, and several police and other reports. This results in tremendous work, especially now that people are getting married in an unusually great number; because it is our concern, that our men get married. We desire that they get married at 26 years, if possible, so that there will be really young marriages which are also able to have children. * * *

I now turn to the Police and its structure. Today the Police is divided into two branches, namely civil and security police; the civil police wears a uniform. The security police is composed of the criminal police and of the Secret State Police [Gestapo]. We can certainly state without exaggeration that in 1933 we took over a wild confusion, a Police the decent elements of which were humiliated; for the sword had been taken away from the officers and a rubber truncheon had been given to the men. The police was permeated by persons with criminal records and by absolute Marxists; it did not care to actually take a stand against any crime because at once the League for Human Rights, the Peace Society and similar societies intervened, and because absolute

glorification of crime was in vogue. This was the method of planned intellectual Bolshevization.

In Prussia, Goering took over the Police, put the uniformed police in order, and created a Landespolizei (gendarmerie) which in 1935-1936 was absorbed by the army; the same occurred in Bavaria. From my SS position, I first of all concerned myself only with the Secret State Police, with the political Police of the countries and with the Secret State Police in Prussia. Through the fact that I personally was political police commander of all German countries, and at the same time deputy of the Gestapo in Prussia, the Gestapo gradually came under the control of one person.

I may skip the whole further development. On the 17th of June of the previous year I became head of the German police, that is, of all the German Police together with its auxiliary organizations. I shall review for you my conception of my task as I have seen and still see it.

First:—I shall ultimately form one true Reich police out of these 16 different gendarmeries, for the Reich police is one of the strongest binding elements that a state can have. We now have for the first time in German history a Reich Police. Outwardly, I am eliminating the various uniforms, the laws and regulations which were still in force until six or nine months ago. When a Hamburg police official was pursuing a criminal who was bold enough to go into Prussian territory, he could not pursue him farther without the consent of the Prussian Police. This naturally was to the great advantage of the criminal, for he could very easily escape. The same was the case between the other states of the federation. These things were still on such a firm legal basis that one could not do away with them without legal revision.

For the creation of the Reich police, not only outwardly but also inwardly, I have already made a beginning in the officers' corps and with the officials, by shifting the people somewhat, through transfers, etc., in this way showing Germany to them; thus my dear Bavarians may come North for a change, and the people from the North go South. If that is not done they all groan a little about it at first, as was the case with the SS a few years ago. Now a telegram arrives suddenly, the man is to be at his new post in two days. Transfers are effected on principle only by telegram, that keeps people young and fresh. As stated, this is only the beginning of our work with the Reich police.

The effective strength of officers and men is very low. That is quite understandable, for the police has given up much of its good or even best

personnel for setting up the Landespolizei. The Landespolizei was absorbed by the Wehrmacht, and what is left in many places is the poorest not only of equipment, trucks, autos and other things, but sometimes the poorest of officers and men. All of this must now be painfully built up and brought into order. * * *

As far as I can, I am now bringing the police up to full strength with men leaving the Veruegungstruppe (reserve unit) and the Death Head Units; I am bringing the police officers' corps up to full strength with SS leaders who come into the police from the Toelz and Brunswick Fuehrerschulen [Leader Training schools] by way of the Veruegungstruppe. This brings me to an important problem; I am fighting to prevent the police officers' corps from becoming a second class officers' corps. This happens very easily just as it did in the past.

In connection with this whole matter, I now come to the main problem: internal security and obligations of the police during war. In a future war we shall have not only an army front on land, a navy front at sea, and an air force front in the air over Germany, but we shall also have a fourth theater of war, namely internal Germany. This is the basis which must be kept sound, at all costs, lest the three combat branches of Germany be stabbed in the back again.

We must clearly recognize that an opponent in war is an opponent not only in a military but also in an ideological sense. When I speak here of opponents, I obviously mean our natural opponent, international Bolshevism, under Jewish-Masonic leadership. This Bolshevism, of course, has its supreme citadel in Russia. But this does not mean that there is danger of Bolshevik attack from Russia only. One must always reckon with this danger from wherever this Jewish Bolshevism has gained decisive influence for itself. The states or people under Jewish-Masonic-Bolshevist leadership, or at least strong influence, will of necessity be unfriendly toward Germany and will constitute a danger.

Thus we must constantly ask ourselves, "Who is, or would be an opponent in case of war? Who is an ideological opponent, that is, who is under Jewish-Masonic-Bolshevist influence"? We must clearly realize, that Bolshevism is the organization of the sub-humans, it is the absolute foundation of Jewish sovereignty, it is the exact contrary of all that is dear to an Aryan people. It is a diabolical teaching, for it appeals to the meanest and lowest instincts of mankind and makes a religion of this. Do not be deceived: Bolshevism, with its Lenin entombed in the Kremlin, will take only a few decades to become the diabolical religion of destruction, a religion native to Asia for the destruction

of the whole world. Furthermore, remember that this Bolshevism is working according to plan for the Bolshevization of other peoples, and the destruction is aimed at the white race. One of the first institutions founded under Jewish leadership, as early as 1918, was an Asiatic university as I shall call it. It has a kind of department for each Asiatic population, whether numerous or not. The functionaries for these populations are instructed not only in their language, but also as to the customs, as to the religious and class quarrels, and the economic circumstances, etc. They are instructed whether these people are mostly rich or poor, whether the poorer class is particularly oppressed, etc. All of this is studied down to the smallest sects. The people who have finished their education there, then go out in a constant stream to all of these people and exploit their wishes and longings as their religious differences and their fanaticism, taking advantage of social misery, to draw them into a whirlpool and thus gradually convince them that the only ones who can really help them are the people in Moscow.

This general movement is also directed against the white race, and is today directed primarily against resurrected Germany, which was generally considered to have been ruined, because of having been subdued. If we wish to be immune to the poison of destruction in our people, our lives must again be founded on social well-being, order and cleanliness. We are in the process of creating both. The first four years have passed; unemployment has almost vanished, much has been accomplished, much more remains to be done by us. But the most important thing is the thorough ideological permeation of all our people with the profound realization that our people, a minority of 70 million in the heart of Europe, could stand only because we are qualitatively more valuable than the others.

And this brings me back to what I said about the race question at the beginning.

We are more valuable than the others who do now and always will surpass us in numbers. We are more valuable because our blood enables us to invent more than others, to lead our people better than the others; because it enables us to have better soldiers, better statesmen, higher culture, better characters. We also have better quality, speaking of your profession, because the German soldier is more devoted to duty, more decent, and more intelligent than the soldiers of other countries. And we shall maintain this quality as long as we keep our blood and people healthy, so long as this people recognizes and obeys the ancient laws for preservation of a people which National Socialism, thanks to

Adolf Hitler, restored to it. We shall remain healthy and immune as long as we do not slide back into democracy, into a hereditary or legitimate imperialism which did not develop from the people. Let us realize clearly that we shall weather the next decades only if we are a people that has a profound conviction of itself, believes in its own strength, and proves this strength.

I spoke of the ideological permeation of the whole people in case of war. If this war should come sooner than any of us believe or wish, that is, if war will come at all, we must clearly realize that there will always be a residue among the German people who will form a nucleus for the Comintern. The Comintern have an easy time of it, for they have a political agitator and at the same time a military spy who sells. Every communist is also a military spy who reveals any military and industrial secret out of loyalty to his imaginary fatherland, Moscow, the native land of the proletarians. Because of his conviction, he engages in political agitation and sedition in exactly the same way in order to start the revolution. The sooner war would come, the greater would be the danger. The later it comes, the more generations of youth have grown up, year after year, the less is the danger. The danger would arise again only if the German people would deviate from today's path. In any case, we must prepare for this danger, for this internal theater of war, and always realize clearly that any war brought about by neglect of this internal theater of war would lead to damage.

I picture the scope of obligations in case of war as follows: The police of course would, according to their duty as I see it, be able to give up a maximum of 15,000 to 20,000 men (not more) to the Wehrmacht as soldiers. I have a total of 80,000 to 90,000 uniformed police. It must be taken into consideration that a large part of this uniformed police is over or at least over 40, so that if I should give up 15,000 to 20,000, I really would give up the backbone of this police. I can substitute men over 55 or 60 whom I may reactivate. That could be done if unavoidable. However, it is possible only if I assure myself of an attack unit [Eingreiftruppe] which I can use for large scale projects. These are the Death Head Units. By and large, I can get along with this old Police force. I can carry out all the former tasks of the Landsturm, i.e. guarding munition factories, railroad crossings, etc., with civilians over 45, who would be drafted as auxiliary police as planned provided I have as a backbone a troop that is young. For this the Death Head Units are provided, ranging in age from 25 to 35, not older and not younger.

I do not wish to have any very young nor any old persons, for the sabotage and terror troops consist of young, very lively persons with the most modern equipment. This opponent cannot be fought with old Landsturm personnel.

The Death Head Units will enter every government district of Germany. The following measures have been provided: firstly, no unit is to go to its native province, thus a Pomeranian troop would never serve in Pomerania. Secondly, each unit will change after three months. Thirdly, the unit will never be assigned to street duty singly. An individual with the death head insignia will never be used as a policeman for street service, that must not be. Fourth, if such use is made relentless measures are to be taken. Anything else is out of the question. Otherwise we would have to reckon in Germany with such possibilities as parachute jumps, use of saboteurs, use of bold groups of 16 or 20 men who might, with the support of Communist personnel, entrench themselves in a munitions factory. If these measures are not provided for one could not get along with such a limited personnel. * * *

In closing, I may say one thing: I can manage with the officers' corps of the civil police and with the men of the Security Service, whom I naturally cannot release even in war, and with the men and leaders of the Death Head Units, only if I have valuable and decent people in them. I must make it possible by way of the *Verfuegungstruppe* which will be in combat, to have a constant exchange of wounded or those who have been at the front a long time, in return for officers and men of the police and the Death Head Units. Otherwise, I either would get no decent characters for these home formations, and then obviously could not fulfill the obligations; or else there would appear in the home formations manifestations of disturbances as happened with the fleet during the war, because it didn't get out. This must be avoided, and for this reason rotation is planned within the organization. Every SS leader of the *Verfuegungstruppe*—we have about 300 SS leaders yearly coming from the Toelz and Brunswick SS schools—is placed with the civil police once every half year, in order to become a reserve officer of the police. I can make good use of these people. If, for instance, one of them is wounded and has only one arm, he can still render excellent service at home.

An appreciation of this completely new kind of organization must penetrate everywhere, as well as an understanding of this internal theater of war which will mean the difference between the existence or nonexistence of our people if we ever would have to stand a trial. It is the obligation of the SS and of the police to solve positively the problem of internal security. That is the

assignment given to us by the Fuehrer. We are tackling it in all seriousness and are really convinced that it is no second-rate task, and we are further convinced that only the best ideological training of our men and a racial selection will enable us to solve this problem some day.

In this short outline I have depicted for you the task of the SS and police. Just as I do in every address to Wehrmacht officers, I ask you in your circle to think yourselves into these somewhat novel channels of thought, and create understanding for it wherever you can.

Let us all clearly realize, the next decades do not signify any foreign political argument which Germany either can or cannot overcome, but they signify a fight of extermination of the above-mentioned subhuman opponents in the whole world who fight Germany, as the nuclear people of the Northern race, Germany as nucleus of the German people, Germany as bearer of the culture of mankind; they signify the existence or nonexistence of the white race of which we are the leading people. We have, of course, one conviction: we are lucky enough to be alive just at the time when once in 2,000 years an Adolf Hitler has been born, and we are convinced that we shall survive every danger in both good and bad times because we all hold together and because each one approaches his work with his conviction.

PARTIAL TRANSLATION OF DOCUMENT 1997-PS

Copy of RK. 10714 B.

Decree of the Fuehrer concerning the administration of the newly-occupied Eastern territories, dated the 17 July 1941.

In order to restore and maintain public order and public life in the newly-occupied Eastern territories I decree that:

Article 1

As soon as the military operations in the newly-occupied territories are over, the administration of these territories shall be transferred from the military establishments to the civil-administration establishments. I shall from time to time determine by special decree, the territories which according to this are to be transferred to the civil administration, and the time when this is to take place.

Article 2

The Civil Administration in the newly-occupied Eastern territories, where these territories are not included in the administration of the territories bordering on the Reich or the General government, is subject to the Reich Minister for the Occupied Eastern territories.

Article 3

Military sovereign rights and powers are exercised by the commanders of the Armed Forces in the newly-occupied Eastern territories in accordance with my decree of 25 June 1941.

The powers of the Commissioner for the 4-year plan in the newly-occupied Eastern territories, according to my decree of 29 June 1941, and those of the Reichsfuehrer SS and Chief of the German Police according to my decree of 17 July 1941, are subject to special ruling, and are not effected by the following regulations.

Article 4

I appoint Reichsleiter Alfred Rosenberg as Reich Minister for the Occupied Eastern Territories. He will hold office in Berlin.

Article 5

The parts of the newly-occupied Eastern territories which are subject to the Reich Minister for the Occupied Eastern Territories are to be divided into Reich Commissariats, which are to be divided into General Regions [Generalbezirke] and these again into District Areas [Kreisgebiete]. Several "Kreisgebiete" can be joined into a Main Region [Hauptbezirk]. The Reich Minister for the Occupied Eastern Territories will issue more detailed instructions on this subject.

Article 6

At the head of each Reich Commissariat will be a Reich Commissar; at the head of each General Region a Commissar-General and at the head of every District Area an Area Commissar [Gebietskommissar]. Where a Main Region is formed, there will be a Head-Commissar [Hauptkommissar] in charge.

The Reich Commissars and the Commissar-Generals will be appointed by me, the heads of the main sections in the bureaux of the Reich Commissars, as well as the Head Commissars and District Commissars will be appointed by the Reich Minister for the Occupied Eastern Territories.

Article 7

In cases where Article 3 is not applicable, the Reich Commissars will be responsible to the Reich Minister for Occupied Eastern Territories, and will receive instructions exclusively from him.

Article 8

It is the responsibility of the Reich Minister for the Occupied Eastern Territories to legislate for the newly occupied territories under his jurisdiction. He can delegate the legislative power to the Reich Commissars.

Article 9

As regards civil affairs, the Reich Commissars are responsible for the whole administration of their territory.

As long as military operations are in progress, it is the duty of the highest competent authorities of the Reich to guarantee railway and postal services in accordance with the instructions of the Chief of Supreme Command of the Armed Forces. Further ruling will remain pending until the time the military operations cease.

Article 10

In order that the measures taken by the Reich Minister for the Occupied Eastern Territories or by the Reich Commissars in their areas may be brought into harmony with the over-all [uebergeordnete] aspects of the interests of the Reich, the Reich Minister for the Occupied Eastern Territories will maintain close liaison with the highest Reich authorities. In differences of opinion which cannot be settled by direct negotiations, my decision is to be obtained through the Reich Minister and Chief of the Reich Chancellery.

Article 11

The necessary regulations for carrying out and supplementing this decree will be issued by the Reich Minister for the Occupied Eastern Territories in agreement with the Reich Minister and Chief of the Reich Chancellery.

Fuehrer's Headquarters, 17 July 1941

The Fuehrer
Signed: Adolf Hitler

Chief of Supreme Command
of the Armed Forces
Signed: Keitel

Reich Minister and Chief of the Reich Chancery
Signed: Dr. Lammers.

[L.S.]

PARTIAL TRANSLATION OF DOCUMENT 2000-PS

1935 REICHSGESETZBLATT, PART I, NO. 100, PAGE 1146.

Law for the Protection of German Blood and German Honor of 15 September
1935

Thoroughly convinced by the knowledge that the purity of German blood is essential for the further existence of the German people and animated by the inflexible will to safeguard the German nation for the entire future, the Reichstag has resolved upon the following law unanimously, which is promulgated herewith:

Section 1

1. Marriages between Jews and nationals of German or kindred blood are forbidden. Marriages concluded in defiance of this law are void, even if, for the purpose of evading this law, they are concluded abroad.
2. Proceedings for annulment may be initiated only by the Public Prosecutor.

Section 2

Relations outside marriage between Jews and nationals of German or kindred blood are forbidden.

Section 3

Jews will not be permitted to employ female nationals of German or kindred blood in their household.

Section 4

1. Jews are forbidden to hoist the Reichs and national flag and to present the colors of the Reich.
2. On the other hand they are permitted to present the Jewish colors. The exercise of this authority is protected by the State.

Section 5

1. A person who acts contrary to the prohibition of section 1 will be punished with hard labor.
2. A person who acts contrary to the prohibition of section 2 will be punished with imprisonment or with hard labor.
3. A person who acts contrary to the provisions of sections 3 or 4 will be punished with imprisonment up to a year and with a fine or with one of these penalties.

Section 6

The Reich Minister of the Interior in agreement with the Deputy of the Fuehrer and the Reich Minister of Justice will issue the legal and administrative regulations which are required for the implementation and supplementation of this law.

Section 7

The law will become effective on the day after the promulgation, section 3 however only on 1 January 1936.

Nurnberg, the 15 September 1935 at the Reich Party Rally of freedom.

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reich Minister of Interior
Frick

The Reich Minister of Justice
Dr. Guertner

The Deputy of the Fuehrer
R. Hess
Reich Minister without portfolio

TRANSLATION OF DOCUMENT 2001-PS

1933 REICHSGESETZBLATT, PART I, PAGE 141

Law to remove the distress of people and State of 24 March 1933

The Reichstag has resolved upon the following law which is promulgated herewith with approval of the Reichsrat after it has been established that all the

requirements of legislation for changing the constitution have been complied with.

Section 1

Laws for the Reich can be resolved upon also by the Reich Cabinet besides the procedure provided by the constitution of the Reich. This also applies to the laws pursuant to sections 85 subsection 2 and 87 of the Reich-Constitution.

Section 2

The laws for the Reich resolved upon by the Reich Cabinet may deviate from the Reich-Constitution so far as they do not deal with the institution of the Reichstag or the Reichsrat as such. The powers of the Reich-President will remain intact.

Section 3

The laws for the Reich resolved upon by the Reich-Cabinet are issued by the Reich-Chancellor and promulgated in the Reichsgesetzblatt. They will become effective, so far as they do not determine otherwise on the day following their promulgation. Section 68 to 77 of the Reich-Constitution are not applicable to the laws resolved upon by the Reich-Cabinet.

Section 4

Treaties of the Reich with foreign countries relating to matters of the legislation of the Reich do not require the approval of the bodies participating in the legislation. The Reich-Cabinet issues the rules necessary for the execution of such treaties.

Section 5

This law will become effective on the day of its promulgation. It becomes ineffective on 1 April 1937. Moreover it becomes ineffective if the present Reich-Cabinet should be replaced by another.

Berlin, 24 March 1933

The Reich-President
von Hindenburg

The Reich-Chancellor
Adolf Hitler

The Reich-Minister for the Interior
Frick

The Reich-Minister for Foreign Affairs
Freiherr von Neurath

The Reich-Minister for Finances
Count Schwerin von Krosigk

TRANSLATION OF DOCUMENT 2003-PS

1934 REICHSGESETZBLATT, PART I, PAGE 747

Law re the Sovereign Head of the German Reich 1 August 1934

The Reich Government has enacted the following law which is hereby promulgated:

Section 1

The office of the Reichspraesident will be consolidated with that of the Reich Chancellor. The existing authority of the Reichspraesident shall consequently be transferred to the Fuehrer and Reich Chancellor, Adolph Hitler. He shall select his representative.

Section 2

This law is effective as of the time of the death of Reichspraesident von Hindenburg.

The Reich Chancellor
Adolf Hitler

The Reich Deputy Chancellor
von Papen

The Reich Minister of Foreign Affairs
Freiherr von Neurath

The Reich Minister of Interior
Frick

The Reich Minister of Finance

Graf Schwerin von Krosigk

The Reich Minister of Labor
Franz Seldte

The Reich Minister of Justice
Dr. Guertner

The Reich Minister for Defense
von Blomberg

The Reich Postal Minister and Transportation Minister
Freiherr von Eltz

The Reich Minister for Nutrition and Agriculture
R. Walther Darre

The Reich Minister for Enlightenment and Propaganda
Dr. Goebbels

The Reich Minister for Air Travel
Hermann Goering

The Reich Minister for Science, Training and Education
Bernhard Rust

The Reich Minister without Portfolio
Rudolf Hess

The Reich Minister without Portfolio
Hanns Kerrl

PARTIAL TRANSLATION OF DOCUMENT 2004-PS

1933 REICHSGESETZBLATT, PART I, PAGE 153

Preliminary Law for the Coordination of the Federal States under the Reich, 31
March 1933.

Article 4

(1) The popular representation of the federal states (diets [Landtage], citizens' assemblies [Burgerschuften]) is hereby dissolved with the exception of the Prussian diet [Preussischer Landtag] elected 5 March 1933, so far as this has not already happened according to the law of the state.

(2) They will be newly constituted according to the number of votes which in the election to the German Reichstag were given to the electoral lists within each federal state. In this connection, seats falling to the Communist Party will not be given out. The same will be true for electoral lists of electoral groups which are to be regarded as a substitute for the electoral lists of the Communist Party.

* * * * *

Berlin, 31 March 1933.

The Reich Chancellor
ADOLF HITLER

The Reich Minister of Interior
FRICK

PARTIAL TRANSLATION OF DOCUMENT 2005-PS

1933 REICHSGESETZBLATT, PART I, PAGE 173

Second Law Integrating the Laender with the Reich 7 April 1933

The Reich Government has enacted the following law which is hereby promulgated:

1

(1) In the German "Laender", with the exception of Prussia, the Reich President, upon the proposal of the Reich Chancellor, shall appoint the Reich governor, the Reich governor shall require the observance of the general policy laid down by the Reich Chancellor. The following powers of "Land" authority belong to him:

1. Appointment and removal of the head of the "Land" Government, and upon his proposal, the other members of the "Land" Government.
2. Dissolution of the legislature and designation of the new election subject to the rule of section 8 of the Provisional

Law of March 31, 1933, Integrating the German "Laender" with the Reich.

3. Preparations and publication of "Land" laws, including the laws which are determined upon by the "Land" Government according to section I of the Provisional Law of March 31, 1933, Integrating the German "Laender" with the Reich. Article 70 of the Constitution of August 11, 1919, applies accordingly.

4. Upon the proposal of the "Land" Government, appointment and dismissal of the higher "Land" officials and judges, so far as this formerly was accomplished by the highest "Land" officials.

5. The power of pardon.

(2) The Reich governor may preside over the meetings of the "Land" Government.

(3) Article 63 of the German Constitution of August 11, 1919 remains unaltered.

2

(1) A Reich governor may not simultaneously be a member of a "Land" Government. He shall belong to the "Land" whose sovereign powers he exercises. His official residence is at the seat of the "Land" Government.

(2) For several "Lands" in each of which there are less than 2 million inhabitants, a common "Lands" governor who must be a resident of one of these "Lands", may be appointed. The Reich President shall designate the governor's official residence.

3

(1) The Reich governor is appointed for the duration of a "Land" Legislative period. He can be recalled at any time by the Reich President on the proposal of the Reich Chancellor.

(2) The provisions of the Reich Ministry Law of March 27, 1930, find appropriate application to the office of Reich governor. His remuneration is borne by the Reich; the establishment of its size remains unsettled.

4

Votes of no confidence of the “Land” legislature against the head and the members of the “Land” Government are not permissible. * * *

The Reich Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2006-PS

1934 REICHSGESETZBLATT, PART I, PAGE 75

Law for the Reconstruction of the Reich 30 January 1934

The popular referendum and the Reichstag election of November 12, 1933 have proven that the German people have attained an indestructible internal unity superior to all internal subdivisions of political character.

Consequently, the Reichstag has enacted the following law which is hereby promulgated with the unanimous vote of the Reichstag after ascertaining that the requirements of the Reich Constitution have been met:

ARTICLE I

Popular assemblies [Volksvertretungen] of the “Laender” shall be abolished.

ARTICLE II

(1) The sovereign powers [Hoheitsrechte] of the “Laender” are transferred to the Reich.

(2) The “Laender” governments are placed under the Reich government.

ARTICLE III

The Reich governors are placed under the administrative supervision of the Reich Minister of Interior.

ARTICLE IV

The Reich Government may issue new constitutional laws.

ARTICLE V

The Reich Minister of Interior may administer the necessary legal and administrative regulations for the execution of the law.

ARTICLE VI

This law shall be effective on the day of its promulgation.

Berlin, 30 January 1934.

The Reich President
von Hindenburg

The Reich Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2008-PS

1935 REICHSGESETZBLATT, PART I, PAGE 49

German Communal Ordinance 30 January 1935

The German Communal Ordinance [Deutsche Gemeindeordnung] aims at qualifying the communes for the highest achievements in close cooperation with Party and State, affording them full opportunities for helping to accomplish—in the true spirit of Baron von Stein, the creator of communal home rule—the purpose of the State: to restore the priority of the common weal over the individual in a united people permeated by one national will; to place the public interest before selfish ends and to bring about the true national community under the leadership of the best of the people, in which every willing fellow-citizen finds the feeling of mutual solidarity.

The German Communal Ordinance is a basic law of the National Socialist State. The reconstruction of the Reich will be completed on the foundations laid by the act.

The Reich Government has therefore enacted the following law which is hereby promulgated. * * *

Section 6

(1) The mayor [Bürgermeister] is the head of the commune. He is represented by the executive officers [Beigeordnete].

(2) The mayor and the executive officers receive their appointments through the confidence of Party and State. In order to insure harmony between the

communal administration and the Party, the delegate of the National Socialist Workers' Party participates in certain matters. Continuous contacts between the communal administration and the citizens is guaranteed by the councillors [Gemeinderäte], who as meritorious and experienced men assist the mayor through their advice. * * *

Section 33

(1) In order to insure harmony between the communal administration and the Party, the delegates of the National Socialist German Workers' Party participate, apart from the appointment and recall of the mayor, the executive officers, and the councillors (Secs. 41, 45, 51, 54), in the following decisions of the mayor:

1. The issuance of the basic ordinance requires the approval of the Party delegate;
2. Honorary citizenship and honorary titles may be granted or revoked only with his consent.

(2) When the Party delegate [NSDAP] refuses to concur with the mayor he must give his reasons in writing within two weeks after the mayor has requested his decision. If the matter concerns the basic ordinance, the Party delegate must state the provisions disapproved by him, otherwise his approval is considered granted. Should further conferences or correspondence between the Party delegate and the mayor fail to bring about an agreement, the mayor must request the decision of the supervisory authority, in urban counties that of the Reich governor. In the case of the basic ordinance, the Reich governor must have the approval of the Reich Minister of the Interior for any final decision overruling the recommendation of the supervisory authority. The decision of the Reich governor is binding upon the supervisory authority. * * *

Section 41

(1) Vacant full-time positions of mayor and executive officer must be advertised before they are filled by the commune. All applications received are to be sent to the Party delegate, who after secretly conferring with the councillors, nominates up to three candidates. In the case of an executive officer, he must give the mayor an opportunity to express his opinion of the candidate.

(2) In submitting his nominations together with all the applications, the Party delegate proceeds as follows:

1. If the vacancy concerns the position of mayor, senior executive officer or chamberlain in cities of more than 100,000 inhabitants, the folder is sent through the supervisory authority to the Reich Minister of the Interior.
2. In the case of the position of another executive officer in cities of the above class and in the case of the position of mayor and executive officer in other urban counties, the folder is sent through the supervisory authority to the Reich governor;
3. In the case of the position of mayor and executive officer in cities belonging to a rural county, the folder is sent through the supervisory authority to the higher supervisory authority, and for all remaining communes to the supervisory authority.

(3) If the proper authority concerned with the matter approves of a nomination, the commune appoints the candidate. Otherwise new nominations must be submitted. If no new nomination finds the approval of the proper authority, the latter selects a candidate, whom the commune must appoint. The same applies if nominations are not made within the period of time specified by the proper authority.

(4) Vacancies in the position of unpaid mayor or executive officer need not be advertised. The proper authority may permit a commune to proceed without advertising a vacancy in a position mentioned under (2). Otherwise the regulations given in (1) to (3) apply accordingly.

(5) Nominations are to be kept confidential until the proper authority according to (2) has made its decision. * * *

Section 45

(1) The proper authority according to Sec. 41 (2) may revoke the appointment of a mayor or executive officer until the close of their first year of office. For positions of the first category under Sec. 41(2) the Reich governor must be invited to express himself on the matter. The same applies to the Party delegate for position of the third category under Sec. 41(2); cases of disagreement require a decision of the Reich governor. * * *

Title 2

Communal Councillors

Section 48

(1) It is the duty of the councillors to keep the communal administration in close touch with all groups of the citizenry. They must advise the mayor on their own responsibility and uphold his measures among the population. In their activities they are to be guided solely by the thought of preserving and promoting the common weal.

(2) In cities the councillors have the title of "Ratsherr."

* * * * *

Section 51

(1) The Party delegate selects the councillors in agreement with the mayor. In making the appointment, he is to take into account national reliability, qualifications, and reputation, and must consider personalities whose activities give the commune its special significance or who exert an important influence upon the life of the community.

(2) Civil servants, employees and workers of the commune and civil servants of the supervisory authority may not be appointed councillors. The supervisory authority may grant exceptions from this rule.

* * * * *

PART VII

SUPERVISION

Section 106

The State supervises the communes in order to insure that their activities conform with the laws and the aims of national leadership. The supervision shall be exercised in such a way that the initiative and the sense of responsibility of the communal administration are strengthened and not diminished.

* * * * *

Section 123

The provisions of this act take effect on April 1, 1935.

Berlin, 30 January 1935.

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2012-PS

1933 REICHSGESETZBLATT, PART I, PAGE 195

First Regulation for Administration of the Law for the Restoration of the
Professional Civil Service of 11 April 1933

On the basis of Article 17 of the Law for the Restoration of the Professional
Civil Service of 7 April 1933 (RGBl I, 175), the following regulation is issued:

1

To Article 2:

Unfit, are all civil servants who belong to the communist party or communist
aid- or supplementary organization. They are, therefore, to be discharged.

2

To Article 3:

1. A person is to be regarded as non-Aryan, who is descended from non-
Aryans, especially Jewish parents or grandparents. This holds true even if only
one parent or grandparent is of non-Aryan descent. This premise especially
obtains if one parent or grandparent was of Jewish faith.

2. If a civil servant was not already a civil servant on 1 August 1914, he must
prove that he is of Aryan descent, or that he fought at the front, or that he is the
son or the father of a man killed during the World War. Proof must be given by
submitting documents (birth certificate and marriage certificate of the parents,
military papers).

3. If Aryan descent is doubtful, an opinion must be obtained from the expert on
racial research commissioned by the Reich Minister of the Interior
(Sachverstaendiger fuer Rasseforschung).

3

To Article 4:

1. In determining whether the suppositions of Article 4, sentence (1) are given, the whole political career of the official is to be considered, particularly from 9 November 1918 on.

2. Every official is required on request to attest to the highest Reich or country authority (Article 7) as to what political party he has been a member of until the present. As political parties in the sense of this definition reference is made to the Reichsbanner, Black-Red-Gold, the Republican Judges' Union and the League for the Rights of Man.

4

All negotiations, documents and official certificates which are requisite for the fulfillment of this law, are free of duty and stamping (gebuehren- und stempelfrei).

Berlin, 11 April 1933

The Reich Minister of the Interior
Frick

The Reich Minister of Finance
Count Schwerin von Krosigk

PARTIAL TRANSLATION OF DOCUMENT 2014-PS

1934 REICHSGESETZBLATT, PART I, PAGE 341

Law About Changing the Rules of Criminal Law and Criminal Procedure of 24
April 1934

CHAPTER III

Article 1

(1) A People's Court is formed as a trial court in cases of high treason and treason.

(2) When the People's Court sits for trial, the decisions are made by five members; otherwise by three members, including the President. The President and one other member must have the qualifications of judges. Several Senates may be formed.

(3) The Supreme Reich Prosecutor [Oberreichsanwalt] is the prosecuting authority.

Article 2

On the suggestion of the Reich Minister of Justice, the Reich Chancellor appoints the members of the People's Court and their deputies for a period of five years.

Article 3

(1) The People's Court has jurisdiction over the investigations and has the power to make the sole and final decision in cases of high treason according to Articles 80-84—, treason according to Articles 89-92—, attacks against the Reich President according to Article 94, paragraph 1 of the Reich Criminal Code: and crimes according to Article 5, paragraph 2, No. 1 of the Decree of the Reich President for the Protection of People and State of February 28, 1933 (Reichsgesetzblatt I, p. 83). In these cases the People's Court also makes the decisions enumerated in Article 73, paragraph 1 of the Law of the Organization of the German Courts.

* * * * *

Article 5

* * * * *

(2) There is no appeal from the decisions of the People's Court.

CHAPTER IV

* * * * *

Article 3

The appointment of a Council of Defense must be approved by the President of the People's Court.

* * * * *

Berlin, April 24, 1934

The Reich Chancellor
Adolf Hitler

The Reich Minister of Justice also for
the Reich Minister of the Interior
Dr. Guertner

The Reich Minister of Defense
von Blomberg

TRANSLATION OF DOCUMENT 2016-PS

1942 REICHSGESETZBLATT, PART I, PAGE 475

Order concerning the Jurisdiction of SS Courts and Police Courts in the Protectorate Bohemia and Moravia. July 15, 1942

In pursuance of the decree of the Fuehrer and Reich Chancellor concerning the Protectorate Bohemia and Moravia, dated March 16, 1939 (RGBl I, p. 485) and in agreement with the Reich Protector of Bohemia and Moravia, the following order is issued:

Section 1

In case of direct attack by a non-German citizen against the SS or the German Police or against any of their members, the Reich Leader of the SS and Chief of the German Police in the Reich Ministry of the Interior may establish the jurisdiction of a combined SS Court and Police Court, by declaring that special interests of parts of the SS or of the Police require that judgment be given by an SS and Police Court.

This declaration shall be sent to the Reich Protector of Bohemia and Moravia. The SS and Police Court, which shall have jurisdiction in individual cases, shall be specified by the Reich Leader of the SS and Chief of the German Police in the Reich Ministry of the Interior.

Section 2

If the offense directly injures the interests of the Armed Forces, the Reich Leader of the SS and Chief of the German Police in the Reich Ministry of the Interior, and the Chief of the Supreme Command of the Armed Forces shall reach an agreement as to whether the case shall be prosecuted by an SS and Police Court or by a Military Court.

Section 3

This order shall become effective one week after its publication.

Berlin, July 15, 1942.

The Reich Minister of the Interior
By deputy: Dr. Stuckart.

The Chief of the Supreme Command
of the Armed Forces
Keitel.

The Reich Minister of Justice
Dr. Schlegelberger (in charge)

TRANSLATION OF DOCUMENT 2018-PS

1939 REICHSGESETZBLATT, PART I, PAGE 1539

Fuehrer Decree Establishing a Ministerial Council For Reich Defense, 30
August 1939

For the period of the present foreign political tension, I decree the following
for the uniform leadership of administration and economy:

I

(1) A Ministerial Council for Reich Defense shall be established as a standing
committee out of the Reich Defense Council.

(2) The standing members of the Ministerial Council for Reich Defense shall
include: General Field Marshall Goering as chairman, Fuehrer's Deputy,
Commissioner General for Reich Administration, Commissioner General for
the Economy, Reich Minister and Chief of the Reich Chancellory, Chief of the
High Command for the Armed Forces.

(3) The chairman may draw on other members of the Reich Defense Council
including further personalities for advice.

II

The Ministerial Council for Reich Defense may issue decrees with statutory
effect, in so far as I have not provided for the passing of a law by the Reich
Government or the Reichstag.

III

The authority of General Field Marshall Goering under the Decree for the
Administration of the Four-Year Plan of October 13, 1936 (RGBl I, 887)
including his power to issue instructions shall remain unaffected.

IV

The Reich Minister and Chief of the Reich Chancellery shall supervise the business of the Ministerial Council for Reich Defense.

V

I shall determine the period for the expiration date of this decree.

Berlin, 30 August 1939.

The Fuehrer
Adolf Hitler

General Field Marshall
Goering

The Reichs Minister and Chief of the Reichs
Chancellery
Dr. Lammers

PARTIAL TRANSLATION OF DOCUMENT 2022-PS

1933 REICHSGESETZBLATT, PART I, PAGE 225

Law against overcrowding of German Schools and Higher Institutions of 25
April 1933

The Reich Government has enacted the following law that is promulgated herewith:

* * * * *

Article 3

In those special schools and faculties where the number of pupils and students is greatly disproportionate to professional demand, the number of registered students must be reduced during the school year 1933 as far as it is, without excessive rigor, consistent with a proper proportion.

Article 4

The number of non-Aryan Germans, within the meaning of the Law for the Restoration of the Professional Civil Service, of 7 April 1933 (RGBl I, p 175), who may be admitted to schools, colleges and universities, must not exceed a number proportionate to the Aryan students in each school, college or

university compared to the percentage of non-Aryans within the entire German population. This proportion is fixed uniformly for the whole Reich.

If, in accordance with Article 3, the number of pupils and students is to be reduced, there is likewise a proper proportion to be established between the total number of students and the number of non-Aryans. In doing so a somewhat higher proportion may be fixed.

Clauses 1 and 2 do not apply in the case of non-Aryans, whose fathers have fought at the front during the World War for Germany or her allies, or to children whose parents were married before the enactment of this law, if the father or mother or two of the grandparents are of Aryan origin. The number of these students is not to be included when calculating the quota of non-Aryans.

* * * * *

Article 7

The decree is valid upon promulgation.

Berlin, 25 April 1933

The Reich Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2029-PS

1933 REICHSGESETZBLATT, PART I, PAGE 104

Decree Establishing The Reich Minister of Public Enlightenment and
Propaganda of 13 March 1933

A Ministry of Public Enlightenment and Propaganda is herewith established for the purpose of enlightening and propagandizing the population with regard to the policies of the Reich Cabinet and the national reconstruction of the German fatherland.

The chief of this agency has the title “Reichsminister of Public Enlightenment and Propaganda.”

The Reichschancellor defines in detail the duties of the Reich Minister for Public Enlightenment and Propaganda.

In agreement with the other Reich Ministers concerned, he defines the duties which are transferred from their jurisdiction to that of the new Ministry. This will be done even in cases where the jurisdiction of the Ministries concerned is affected fundamentally.

Berlin, March 13, 1933
The Reich President VON HINDENBURG
The Reich Chancellor ADOLF HITLER

TRANSLATION OF DOCUMENT 2030-PS

1933 REICHSGESETZBLATT, PART I, PAGE 449

Decree Concerning the Duties of the Reich Ministry for Public Enlightenment and Propaganda of 30 June 1933

Based upon the order of the Reich President of 13 March 1933 (Reichsgesetzblatt I, Page 104), I decree in agreement with the Reich Minister of Foreign Affairs, the Reich Minister of the Interior, the Reich Minister of Economics, the Reich Minister of Nutrition and Agriculture, the Reich Post Minister, the Reich Minister of Transportation, and the Reich Minister of Public Enlightenment and Propaganda, as follows:

The Reich Minister of Public Enlightenment and Propaganda has jurisdiction over the whole field of spiritual indoctrination of the nation, of propagandizing the State, of cultural and economic propaganda, of enlightenment of the public at home and abroad; furthermore, he is in charge of the administration of all institutions serving these purposes.

Therefore, the Reich Minister of Public Enlightenment and Propaganda takes over the following jurisdictions:

1. From the jurisdiction of the Foreign Office:

News services and enlightenment in foreign countries; art; art exhibitions; moving pictures and sport abroad.

2. From the jurisdiction of the Reich Ministry of the Interior:

General domestic enlightenment;

Academy of Politics;

Establishment and celebration of national holidays and of state celebrations in conjunction with the Reich Minister of

Interior;
Press, (including the Institute for Journalism);
Radio;
National anthem;
German Library in Leipzig;

Art (however, with the exclusion of: the Institute for the History of Art in Florence; of protection of rights in literature and art; the catalogue of works of art of national value; German-Austrian agreement on export of art; protection of art and monuments; protection and care of landscape and natural monuments; national parks, maintenance of buildings of historical importance; for the Science of Folkdom; Reich Honor Monument).

Music, including the Philharmonic Orchestra;
Theater;
Moving Pictures;
Campaign against dirty and obscene literature.

3. From the jurisdiction of the Reich Minister of Economics and of the Reich Ministry for Nutrition and Agriculture; Propaganda in the field of business, exhibitions, fairs, and commercial publicity.

4. From the jurisdiction of the Reich Post Ministry and of the Reich Ministry of Transportation:

Propaganda for tourism.

Furthermore, there are transferred from the Reich Post Ministry all radio matters with the exclusion of the technical administration; the administration of the buildings of the Reich Radio Corporation and the Radio Corporation is not included in that exception. However, the Reich Minister of Public Enlightenment and Propaganda must participate in the technical administration to the extent necessary for the execution of his own duties, especially in fixing the conditions for renting radio installations and the regulation of fees.

The representation of the Reich in the Reich Radio Corporation and the Radio Corporation is entirely transferred to the Reich Ministry of Public

Enlightenment and Propaganda.

In the areas designated, the Reich Minister for Public Enlightenment and Propaganda has the predominant jurisdiction, including legislation. The general regulations are valid so far as the other Ministers of the Reich have to participate.

Berlin, 30 June 1933

The Reich Chancellor
ADOLF HITLER

TRANSLATION OF DOCUMENT 2031-PS

1938 REICHSGESETZBLATT, PART I, PAGE 112

Decree Concerning the Establishment of a Secret Cabinet Council dated 4 Feb.
1938

To advise me in conducting the foreign policy I am setting up a secret cabinet council.

As president of the secret cabinet council, I nominate: Reichsminister Freiherr von Neurath

As members of the secret cabinet council I nominate: Reichsminister of the Exterior Joachim von Ribbentrop

Prussian Prime Minister, Reichsminister of the Air, Supreme Commander of the Air Forces, General Field Marshall Hermann Goering

The Fuehrer's Deputy, Reichsminister Rudolf Hess

Reichsminister for the enlightenment of the people and of propaganda, Dr. Joseph Goebbels

Reichsminister and Chief of the Reichs Chancellory, Dr. Hans-Heinrich Lammers

The Supreme Commander of the Army, General Walther von Brauchitsch

The Supreme Commander of the Navy, Grand Admiral Dr. (honorary) Erich Raeder

The Chief of the Supreme Command of the Armed Forces, Lt. Gen. Wilhelm Keitel

The current affairs of the secret cabinet council are handled by the Reichsminister and Chief of the Reichs Chancellery.

Berlin, 4 February 1938

The Fuehrer and Reichs Chancellor
Adolf Hitler

The Reichsminister and Chief of
the Reichs Chancellery
Dr. Lammers

TRANSLATION OF DOCUMENT 2039-PS

1942 REICHSGESETZBLATT, PART I, PAGE 419

Decree concerning the conditions of Employment of Eastern Workers of 30
June 1942

The Ministerial Council for Defense of the Reich orders with force of law:

Chapter I

Definition of Eastern Worker

Article 1

Eastern workers are those laborers of non-German national origin who inhabited the Reich Commissariat for the Ukraine, the General Commissariat for White Russia, or territories bordering on these territories to the east or on the former free states of Lithuania and Estonia, and who were brought into the German Reich, including the Protectorate of Bohemia and Moravia, and employed there after the occupation by the German armed forces.

Chapter II

Conditions of Employment

Article 2

General Conditions

The eastern workers employed in the Reich have an employment relationship of a special type. German labor code and labor protection provisions shall be applicable to them only insofar as specifically stated.

Article 3

Compensation

1. The eastern workers employed in the Reich shall receive compensation graded according to their work.
2. The amount of this compensation shall be determined from the tables which are attached as an appendix to this decree.
3. In determining the compensation which is to be paid individual eastern workers under the appended tables, the point of departure shall be the wage-rate (hourly, piece and premium wage-rates) of comparable German workers.

If a part of the reference wage consists of payment in goods, such payment shall be considered equivalent, in determining this wage, to the rate calculated for it for German workers in the enterprise in event of payment in cash.

Social security deductions and payments of all kinds to which the German workers are subject shall not be included in the determination of the reference wage.

With respect to incentive payments, these shall be computed, in determining the reference wage, at the same rate at which they are made to German workers in the enterprise for the same work. If the eastern worker's production falls behind the average production of a German worker, a correspondingly reduced reference wage will be the point of departure in determining the compensation to be paid him.

Extra pay for difficult work, dirty work, etc. shall be included in determining the proper reference wage for calculating the individual eastern worker's compensation.

4. The eastern worker shall receive compensation only for work actually performed; but the regulations on idleness resulting from bad weather may be applied in his case.
5. Higher compensation than that determined under those provisions may not be paid to eastern workers.

Article 4

Extra Rates and other Payments

Except as otherwise provided by the General Manpower Authority, eastern workers shall have no claim to extra compensation for overtime or Sunday,

holiday, and night work. Per diem and maintenance payments, as well as travel and board expense payments, may not be made.

Article 5

Payment in Goods

1. The compensation due the individual eastern worker according to the tables appended to this decree shall be paid in cash at the end of the regular pay period for the enterprise after deduction of the equivalent of payments made in goods. The board and room furnished by the employer shall be computed according to the rates specified by the tables appended to this decree. Other payment in goods, such as clothing, shoes, etc., shall be computed at proportionate prices.

2. Employers may cover the commutation cost of eastern workers to and from the place of work for the entirety of eastern workers employed by them and make deductions for this expense from the amounts to be paid in cash according to the tables.

Article 6

Compensation in Case of Illness

For days on which the eastern worker is unable to work on account of sickness or accident, free board and room only shall be furnished by the employer, unless hospital care is given. In other respects the sick care of these workers shall be regulated by prescriptions issued by the Reich Minister of Labor.

Article 7

Leave and Family Visits

Leave and family visits will not be granted for the present. Detailed regulations concerning the institution of leave and family visits will be issued by the General Manpower Authority.

Article 8

Pay Invoices

Pay invoices shall not be issued to eastern workers.

Article 9

Exceptions

The Reich Trustee or Special Trustee of Labor may permit exceptions from the provisions of this decree in regard to the calculation of compensations.

Chapter III

Eastern Workers Tax

Article 10

Tax Obligation

1. Employers who use eastern workers within the German Reich, including the Protectorate of Bohemia and Moravia, are subject to a tax in amounts specified by the tables appended to this decree (Eastern Workers Tax).
2. Agricultural employers must pay only one half of this tax.

Article 11

Accrue ment of the Tax

The Eastern Workers Tax accrues exclusively to the German Reich.

Article 12

Tax Exemption of Eastern Workers

Eastern workers must pay no wage tax nor citizen tax during their employment in the German Reich.

Chapter IV

Savings

Article 13

Eastern workers may lay up their compensation in whole or in part as savings with interest: the sum saved is transferred to the saver's homeland, and is there available to him or to members of his family according to detailed regulations issued by the Reich Minister for the Occupied Eastern Territories or by the Commander in Chief of the Armed Forces.

Chapter V

Grant of Powers

Article 14

1. The General Manpower Authority shall be empowered to issue, in consultation with the interested Reich Ministers, regulations for the execution,

implementation, and revision of Chapters I and II of this decree.

2. The Reich Minister of Finance shall be empowered to issue, in consultation with the General Manpower Authority, the Reich Minister of the Interior, the Reich Minister for the Occupied Eastern Territories and, so far as eastern workers employed in agriculture are in question, with the Reich Minister for Food and Agriculture, regulations for the execution, implementation and revision of Chapter III of this decree.

3. The Reich Minister of Finance, in consultation with the General Manpower Authority, may change by executive order the amounts of the Eastern Workers Tax as specified in the appended tables.

4. The Reich Minister of Economic Affairs, the Reich Minister for the Occupied Eastern Territories, and the Commander in Chief of the Armed Forces shall be empowered to issue, in consultation with the General Manpower Authority, regulations for the execution and implementation of Chapter IV of this decree.

Chapter VI

Effective Date, Sphere of Validity

Article 15

1. This decree shall become effective 15 June 1942. The provisions of Chapters II and III shall be first applicable to compensation paid after 15 June 1942.

2. Articles 1 to 5 and Article 7, subsection 1, of the decree concerning taxing and treatment under the labor code for workers from the newly occupied eastern territories [StVAOst] of 20 January 1942 (RGBl I, p. 41), as well as the regulation of the Reich Minister of Labor concerning treatment under the labor code for workers from the newly occupied eastern territories of 9 February 1942 (Deutscher Reichsanz. No. 37 of 13 February 1942), shall become invalid on the effective date of this decree.

3. This decree shall be valid also in the Protectorate of Bohemia and Moravia and in the incorporated Eastern Territories.

Berlin, 30 June 1942

The Chairman of the Ministerial Council for Defense
of the Reich and Commissioner for the Four Year Plan

Goering, Reich Marshal

The General Manpower Authority

By Deputy: Dr. Stuckart

The Reich Minister and Chief of the Reich Chancellory

Dr. Lammers

TRANSLATION OF DOCUMENT 2047-PS

1937 REICHSGESETZBLATT, PART I, PAGE 105

Law for the Extension of the Law Concerning the Removal of the Misery of
the People and the Reich of 30 January 1937

The Reichstag has decided unanimously to enact the following law which is
hereby published:

(1) The validity of the law for the removal of the misery of the people and the
Reich of 24 March 1933 (RGBl I, p. 141) is being extended to 1 April 1941.

(2) The law on the reconstruction of the Reich of 30 January 1934 (RGBl p.
75) remains unchanged.

Berlin, 30 January 1937

The Fuehrer and Chancellor of the Reich
Adolf Hitler

The Reichs Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2048-PS

1939 REICHSGESETZBLATT, PART I, PAGE 95

Law

for the Extension of the Law Concerning the Removal of the Misery of the
People and the Reich of 30 January 1939

In completion of the law of 30 January 1937 (RGBl I, p. 105), the Reichstag
has decided unanimously to enact the following law which is hereby
published:

1. The validity of the law on the removal of the misery of the people and the Reich of 24 March 1933 (RGBl I, p. 141) is being extended to 10 May 1943.

2. The law on the reconstruction of the Reich of 30 January 1934 (RGBl I, p. 75) remains unchanged.

Berlin, 30 January 1939.

The Fuehrer and Chancellor of the Reich
Adolf Hitler

The Reichs Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2049-PS

1934 REICHSGESETZBLATT, PART I, PAGE 1189

Second Edict concerning the Reconstruction of the Reich of November 27,
1934.

On the basis of Article 5 of the law concerning the reconstruction of the Reich of January 30, 1934 (Reichsgesetzblatt I page 75) it is ordered in agreement with the Prussian Minister-President:

Article 1

Up to the execution of the reorganization of the Reich, the Prussian Provincial governors [Oberpraesidenten] are, in the Provinces over which they have jurisdiction, simultaneously representatives of the Reich government.

Article 2

The provincial governors [Oberpraesidenten] are empowered to receive instructions from all Reich and federal state authorities as well as from offices supervised by permanent Reich or State public-legal corporations, within the Province, and to call their attention to the authoritative viewpoints and the consequently necessary measures as well as effect temporary regulations in case of danger in delay. These rights they may not transfer to their supplementary officials; their representatives may only practice those rights, when the provincial governors are hindered not merely for a short time in the observation of their business.

Article 3

The Reich ministers may in the execution of Reich missions furnish directly with instructions the Prussian provincial governors and council heads without prejudice to the supervision of the Civil Service of the Reich and Prussian Ministers of the Interior.

Berlin, November 27, 1934.

The Minister of Interior for
the Reich and Prussia.
Frick

TRANSLATION OF DOCUMENT 2050-PS

1919 REICHSGESETZBLATT, PART I, PAGE 1383

THE CONSTITUTION OF THE GERMAN REICH

August 11, 1919

The German people, united in their racial elements and impelled by the will to renew and strengthen their Reich in freedom and justice, to serve the ends of peace at home and abroad and further social progress, have established this Constitution.

FIRST PART

STRUCTURE AND FUNCTION OF THE REICH

First Chapter

Reich and Lands

Article 1

The German Reich is a Republic. The state power is derived from the people.

Article 2

The territory of the Reich consists of the territories of the German Member States [Lands]. Other territories may be incorporated in the Reich by Reich statute if the inhabitants of such territory, in exercises of the right of self-determination, so desire.

Article 3

The Reich colors are black, red and gold. The merchant flag is black, white and red, with the Reich colors in the upper inside corner.

Article 4

The generally accepted rules of international law are to be considered as binding integral parts of the law of the German Reich.

Article 5

The state power in respect to matters within the competence of the Reich shall be exercised by the authorities of the Reich on the basis of the Constitution of the Reich; in respect to matters within the competence of the Member States by the authorities of the Lands, on the basis of their respective constitutions.

Article 6

The Reich shall have exclusive legislative competence for:

1. Foreign affairs.
2. colonial matters.
3. questions relating to nationality, freedom of travel and residence, immigration, emigration and extradition.
4. the organization of defense forces.
5. coinage.
6. customs, as well as the unity of customs and trading areas and freedom of commerce.
7. post and telegraph, including the telephone.

Article 7

1. civil law.
2. penal law.
3. judicial procedure, including the execution of penalties and legal aid between authorities.
4. matters relating to passports and police supervision of aliens.
5. poor relief and the care of vagrants.
6. matters relating to the press, associations and assemblies.
7. policies relating to population, maternity relief, welfare of infants, children and youth.

8. public health, veterinary matters and the protection of plants against disease and pests.
9. labor laws, insurance, and the protection of laborers and employees, and employment bureaus.
10. the establishment of Reich organs of vocational representation.
11. provision for war veterans and the surviving dependents of deceased soldiers.
12. laws relating to expropriation.
13. the socialization of natural resources and economic undertakings, and also the production, manufacture, distribution and price regulation of economic wares for the benefit of the general economy.
14. trade and commerce, weights and measures, the issue of paper money, banks and banking and the stock exchanges.
15. traffic in foodstuffs, articles for consumption and luxury, and necessities of daily life.
16. industries and mining.
17. matters relating to insurance.
18. ocean navigation, deep-sea fishing and coastal fishing.
19. railways, inland navigation, automatic traffic on land, water, and in the air; the construction of highways, insofar as general communication and national defense are concerned.
20. theaters and cinemas.

Article 8

The Reich shall further legislate in regard to taxation and other revenues, insofar as they are partially or wholly utilized for its own purposes. If the Reich claims such taxes or other revenues for its own purposes as have hitherto been available for the Member States (Lands), the Reich shall take into consideration the preservation of the life of the Member States.

Article 9

Insofar as it is necessary to issue uniform rules, the Reich shall legislate for:

1. public welfare.

2. the protection of public order and safety.

Article 10

The Reich may by legislation, establish fundamental principles for:

1. the rights and duties of religious associations.
2. educational matters including high schools and scientific libraries.
3. laws relating to officers of all public corporations.
4. matters relating to the real-estate laws, distribution of the soil, settlements and homesteads, restrictions attached to landed property, housing and the distribution of the population.
5. matters relating to burial.

Article 11

The Reich may by means of legislation establish fundamental principles concerning the admissibility and mode of:

1. injury to the revenues or commercial relations of the Reich.
 2. double taxation.
 3. excessive or obstructive fees for the use of public means of communication, highways, and other facilities.
 4. tax discrimination against imported goods in favor of domestic products in interstate or inter-district commerce, or
 5. export premiums,
- or in order to preserve important social interests.

Article 12

So long as and so far as the Reich refrains from exercising the right of legislation, the Lands shall retain the right of legislation. This does not apply to matters for which the Reich has exclusive competence of legislation.

The government of the Reich has the right of veto in regard to Lands laws relating to matters within the scope of Article 7, Number 13, so far as the general welfare of the Reich is thereby affected.

Article 13

Reich law takes precedence over Lands law.

Where there are doubts or differences of opinion as to whether a legal provision of a Land is compatible with Reich law, the competent Reich or central authorities of a Land may, in accordance with particulars prescribed by the Reich law, appeal for decision to a Supreme Court of the Reich.

Article 14

The laws enacted by the Lands shall be executed by the authorities of the States, unless the laws of the Reich determine otherwise.

Article 15

The government of the Reich exercises supervision in such matters as are within the legislative competence of the Reich.

So far as the laws of the Reich are to be executed by the authorities of the Lands, the government of the Reich may issue general instructions. The government is empowered to send commissioners to the central authorities of the Lands, and with their permission, to the lower state authorities, to supervise the execution of the laws of the Reich.

It is the duty of the government of the Lands, at the request of the government of the Reich, to rectify defects which have become manifest in the execution of Reich laws. Where differences of opinion arise both the government of the Reich and the government of the Land may appeal for decision to the Constitutional Court, unless a different court is prescribed by Reich law.

Article 16

The officers entrusted with direct Reich administration in any Land shall, as a rule, be citizens of that Land. The officers, employees and laborers of the Reich administration shall be employed in their home districts if they so desire, whenever this is possible and not inconsistent with the requirements of their training or the service.

Article 17

Each Land must have a republican constitution. The people's representatives must be elected by universal, equal, direct and secret ballot by all German men and women in conformity with the principles of proportional representation. The government of the Land must enjoy the confidence of the people's representatives.

The principles for the elections of the people's representatives apply equally to communal elections. A Land law, however, may make the right to vote

dependent on residence in the communal district for a period not exceeding one year.

Article 18

The division of the Reich into Lands shall be such as to serve the people to the highest possible economic and cultural attainment, whereby the will of the population affected shall be taken into consideration as far as possible. The alteration of territory of the Lands and the creation of new Lands within the Reich may be effected by means of a Reich law amending the Constitution.

If the Lands directly affected give their consent, an ordinary Reich law is sufficient.

An ordinary Reich law is also sufficient, if one of the Lands affected refuses consent, but the territorial alteration or the creation of a new Land is demanded by the will of the population and the paramount interests of the Reich.

The will of the population shall be ascertained by plebiscite. The Government of the Reich orders the plebiscite if, in the territory to be separated, one-third of the inhabitants qualified to vote for the Reichstag so demand.

Three-fifths of the votes taken, but at least a majority of the enfranchised voters, are necessary for a resolution to alter a boundary or create a new Land. Even if it is only a question of the disconnection of a part of a Prussian administrative district, a Bavarian “county” or a corresponding administrative division in other Lands, the will of the population in the whole district affected must be ascertained. If the territory to be disconnected nowhere adjoins the rest of the district, a specific Reich law may declare that the will of the population in the said district is sufficient.

The consent of the population having been ascertained, the government of the Reich shall introduce an appropriate bill for enactment in the Reichstag.

If the unification or disconnection should give rise to a dispute concerning the distribution of property, the Constitutional Court of the German Reich shall decide the same on the application of one party.

Article 19

Constitutional disputes arising within any Land in which there is no court competent to settle the same, of disputes not governed by private law, arising between different Lands or between the Reich and any Land shall be decided by the Constitutional Court of the German Reich on the application of one party, unless some other court of the Reich is competent to decide such dispute.

The President of the Reich executes the judgment of the Constitutional Court of the Reich.

Second Chapter

The Reichstag

Article 20

The Reichstag is composed of the delegates of the German people.

Article 21

The delegates represent the whole people. They are subject only to their own conscience and are not bound by instructions.

Article 22

The delegates are elected by universal, equal, direct and secret ballot by men and women over twenty years of age, according to the principles of proportional representation. The election day must be a Sunday, or a public holiday.

The Reich Election Law will regulate details.

Article 23

The Reichstag is elected for four years. New elections must take place at the latest on the sixtieth day after this term has run its course.

The Reichstag assembles for the first time at the latest on the thirtieth day following the election.

Article 24

The Reichstag meets every year on the first Wednesday in November at the seat of the government of the Reich. The President of the Reichstag must summon it earlier if the President of the Reich or at least one-third of the members of the Reichstag so demand.

The Reichstag determines the close of its session and the date of reassembly.

Article 25

The President of the Reich may dissolve the Reichstag, but not more than once for the same cause.

The new election takes place not later than the sixtieth day after dissolution.

Article 26

The Reichstag chooses its president, his substitutes and its secretaries. It sets up its own rules of procedure.

Article 27

Between two sessions or terms the President and his substitutes of the preceding session continue in their duties.

Article 28

The President has domiciliary and police authority within the Reichstag building. He controls the house administration; he manages the revenues and expenditure of the house in accordance with the budget of the Reich, and represents the Reich in all legal transactions and disputes arising within his administration.

Article 29

The Reichstag proceedings are public. They may be held in camera, if, on the motion of fifty members, a two-thirds majority so decides.

Article 30

Accurate reports of the proceedings of the public meetings of the Reichstag, the State Diets, and of their committees remain free from all responsibility.

Article 31

An Election Investigation Court shall be established in connection with the Reichstag. It shall also be competent to decide whether a delegate has forfeited his seat.

The Election Investigation Court consists of members of the Reichstag, elected by the latter for the election period and of members of the Reich Court of Administration, appointed by the President of the Reich on the proposal of the presidency of the said court.

The decisions of the Election Investigation Court shall be taken after a public oral hearing by three members of the Reichstag and two judicial members.

Outside of the oral proceedings before the Election Investigation Court such affairs shall be managed by a commission of the Reich, nominated by the President of the Reich. In other respects the procedure is regulated by the Election Investigation Court.

Article 32

A simple majority vote is necessary for decisions of the Reichstag, unless the Constitution prescribes a different proportion of votes. The rules of procedure may make exceptions in the case of elections by the Reichstag.

The rules of procedure regulate the question of a quorum.

Article 33

The Reichstag and its committees may demand the presence of the Chancellor of the Reich and of any Minister of the Reich.

The Chancellor and Ministers of the Reich and the commissioners appointed by them have access to the sittings of the Reichstag and its committees. The Lands are entitled to send delegates to these meetings to state the views of their governments on the subject under discussion.

At their request the governmental delegates must be heard during the deliberations, in the case of the representatives of the government of the Reich, even irrespective of the agenda.

They are subject to the authority of the chairman as regards questions of orders.

Article 34

The Reichstag has the right and—on the application of one-fifth of its members—the duty, of appointing investigation committees. These committees hear such evidence in public sittings as they or the applicants consider necessary. The public may be excluded from the proceedings by a two-thirds majority of the investigation committee. The rules of procedure determine the proceedings of the committee and determine the number of its members.

It is the duty of the judicial and administrative authorities to accede to the requests of the said committees in regard to the taking of evidence; the files of the authorities must be submitted to the committees on request.

The provisions of the Code of Criminal Procedure are applicable as far as is appropriate to the investigations of the committees and the authorities approached by them; nevertheless, the secrecy of letters, post, telegraph and telephone remains inviolate.

Article 35

The Reichstag appoints a standing committee for foreign affairs, which may also act when the Reichstag is in recess, and after the parliamentary term has expired, or after the dissolution of the Reichstag, until the new Reichstag meets. The meetings of this committee are not public, unless the committee decides otherwise by a two-thirds vote.

The Reichstag also appoints a standing committee for the maintenance of the right of the people's representation towards the government of the Reich during the periods of recess, and after the term has expired or the Reichstag is dissolved, until the new Reichstag meets.

These committees have the rights of investigation committees.

Article 36

No member of the Reichstag or of a Land's Diet may at any time be subjected to criminal or disciplinary prosecution or otherwise held responsible outside the house on account of his vote or of remarks made by him in the execution of his functions.

Article 37

During a session no member of the Reichstag or of a Land's Diet may be subjected to investigation or arrested on account of any punishable offense, without the consent of the house to which such a delegate belongs, unless he is arrested in the act of committal or at the latest in the course of the following day.

Similar consent must be obtained for every other curtailment of personal freedom which hinders a delegate in the execution of his functions as representative.

Any criminal proceeding against a member of the Reichstag or a Land's Diet, any detention or other curtailment of his personal liberty must be suspended for the duration of the session at the request of the house to which the delegate belongs.

Article 38

Members of the Reichstag and the Land's Diets are entitled to refuse to give evidence in respect to persons who have confided matters to them in their capacity as delegates or to whom they have given such confidences in the execution of their functions as delegates, as well as in respect to such facts. In respect also to the seizure of documents they have the same status as persons who are entitled by law to refuse to give evidence.

Any search or seizure may only be carried out within the precincts of the Reichstag or a Land's Diet with the consent of their President.

Article 39

Public officials and members of the defense forces need no leave for the performance of their functions as members of the Reichstag or a Land's Diet.

If they are candidates for a seat in one of these bodies, the necessary leave must be extended to them to enable them to prepare for their election.

Article 40

Members of the Reichstag shall have free passes for all German railways and receive a compensation for expenses to be fixed by Reich law.

Third Chapter

The Reich President and the Reich Government

Article 41

The Reich President is elected by the whole German people.

Every German who has completed his thirty-fifth year is eligible for election.

Details will be regulated by a Reich law.

Article 42

The Reich President shall, on assuming office, take the following oath before the Reichstag.

I swear to devote my energies to the well-being of the German people, to further their interests, to protect them from injury, to keep the Constitution and the laws of the Reich, to fulfill my duties conscientiously and to administer justice to all.

It is permissible to add a religious asseveration.

Article 43

The Reich President's term of office shall last seven years. Re-election is permissible.

At the request of the Reichstag the President may be deposed from office by plebiscite before his term has expired. A two-thirds majority vote is necessary for such a resolution by the Reichstag.

The resolution has the effect of suspending the Reich President from the further exercise of his office. If the deposition is rejected by the plebiscite, this is regarded as a new election and entails the dissolution of the Reichstag.

The Reich President cannot be prosecuted criminally without the consent of the Reichstag.

Article 44

The Reich President may not at the same time be a member of the Reichstag.

Article 45

The Reich President represents the Reich in the sphere of international law. He concludes alliances and other treaties with foreign powers in the name of the Reich. He accredits and receives Ministers.

War is declared and peace concluded by Reich law.

Alliances and treaties with foreign States which relate to matters within the legislative competence of the Reich, require the consent of the Reichstag.

Article 46

The Reich President appoints and dismisses the public officials of the Reich and officers of the defense forces, unless otherwise provided by law. He may allow the right of appointment and dismissal to be exercised by other authorities.

Article 47

The Reich President has supreme command over all the defense forces of the Reich.

Article 48

If a Land fails to fulfill the duties incumbent upon it according to the Constitution or the laws of the Reich, the Reich President can force it to do so with the help of the armed forces.

The Reich President may, if the public safety and order in the German Reich are considerably disturbed or endangered, take such measures as are necessary to restore public safety and order. If necessary he may intervene with the help of the armed forces. For this purpose he may temporarily suspend, either partially or wholly, the Fundamental Rights established in Articles 114, 115, 117, 118, 123, 124 and 153.

The Reich President shall inform the Reichstag without delay of all measures taken under Paragraph 1 or Paragraph 2 of this Article. On demand by the Reichstag the measures shall be repealed.

In case of imminent danger, the government of any Land may take preliminary measures of the nature described in Paragraph 2 for its own territory. The measures are to be revoked upon the demand of the Reich President or the Reichstag.

Details will be regulated by a Reich law.

Article 49

The Reich President exercises the right of pardon for the Reich.

Reich amnesties require a Reich law.

Article 50

All orders and decrees of the Reich President, including those concerning the defense forces, require for their validity the counter-signature of the Chancellor of the Reich or the competent Minister of the Reich. By counter-signature responsibility is assumed.

Article 51

The Reich President shall, when prevented from functioning, be represented in the first place by the Reich Chancellor. When such disability is likely to be of long duration, a Reich law shall regulate the question of representation.

The same applies in the case of a premature termination of the Presidency until the new election takes place.

Article 52

The government of the Reich shall consist of the Chancellor and the Reich Ministers.

Article 53

The Reich Chancellor and at his proposal the Reich Ministers shall be appointed and dismissed by the Reich President.

Article 54

The Chancellor and the Reich Ministers require for the exercise of their office the confidence of the Reichstag. Any of them must retire if the Reichstag by express resolution withdraws its confidence.

Article 55

The Reich Chancellor presides over the government of the Reich and conducts its affairs according to rules of procedure laid down by the government of the Reich and approved by the Reich President.

Article 56

The Reich Chancellor determines the outlines of the policy of the State and is responsible to the Reichstag for the same. Within these outlines each Reich Minister conducts the office entrusted to him independently and on his own responsibility towards the Reichstag.

Article 57

The Reich Ministers shall lay before the Reichstag for deliberation and enactment all bills and all matters for which such a course is prescribed in the Constitution or by law, as well as all differences of opinion in regard to questions within the competence of more than one Minister.

Article 58

The government of the Reich passes its resolutions by majority vote. In the case of tie votes the chairman has a casting vote.

Article 59

The Reichstag is entitled to impeach the Reich President, the Chancellor and Reich Ministers for having culpably violated the Constitution or a statute of the Reich before the Constitutional Court. The motion for impeachment must be signed by at least one hundred members of the Reichstag and be approved by the majority prescribed for amending the Constitution.

Details will be regulated by the Reich statute concerning the Constitutional Court.

Fourth Chapter

The Reich Council

Article 60

A Reich Council shall be constituted to represent the German Lands in the legislature and administration of the Reich.

Article 61

Each Land has at least one vote in the Reich Council. In the case of larger Lands there shall be one vote for every 1,000,000 inhabitants. A surplus, which is equal to at least the population of the smallest Land, will be

reckoned equal to 1,000,000. No Land may be represented by more than two-fifths of the total number of votes.

German-Austria, after its union with the German Reich, shall be entitled to participate in the Reich Council with the number of votes proportionate to its population. Until then the representatives of German-Austria may take part in the deliberations.

The number of votes shall be fixed anew by the Reich Council after every general census.

Article 62

No Land shall have more than one vote on the committees formed by the Reich Council from its own members.

Article 63

The Lands shall be represented on the Reich Council by members of their governments. But half the Prussian votes shall belong to the Prussian provincial administrations in accordance with a Land law.

The Lands are entitled to send as many representatives to the Reich Council as they have votes.

Article 64

The government of the Reich must convene the Reich Council on the demand of one-third of its members.

Article 65

A member of the government of the Reich shall preside over the Reich Council and its committees. The members of the government of the Reich have the right and—if so demanded—the duty of attending the deliberations of the Reich Council and its committees. On their own request they must be heard at any time during the proceedings.

Article 66

The government of the Reich and each member of the Reich Council are entitled to lay proposals before the Reich Council.

The Reich Council regulates its procedure by rules of procedure.

The plenary sittings of the Reich Council are public. In compliance with the rules of procedure the public may be excluded for specific subjects of deliberation.

Decisions are taken by a simple majority of those voting.

Article 67

The Reich Council shall be kept informed by the Reich ministries of the conduct of affairs of the Reich. The competent committees of the Reich Council shall be consulted by the ministries of the Reich with regard to important affairs.

Fifth Chapter

Reich Legislation

Article 68

Bills are introduced by the government of the Reich or by members of the Reichstag.

Reich laws shall be enacted by the Reichstag.

Article 69

The introduction of bills by the government of the Reich requires the consent of the Reich Council. If no agreement is reached between the Reich government and the Reich Council, the Reich government may introduce the bill notwithstanding, but must state the contrary opinion of the Reich Council.

If the Reich Council resolves on a bill not assented to by the government of the Reich, the latter must introduce the bill to the Reichstag, stating its own point of view.

Article 70

The Reich President shall promulgate all constitutionally enacted laws and proclaim them in the Reich's Legal Gazette within one month.

Article 71

Reich laws, unless they provide otherwise, come into force on the fourteenth day after the date on which the Reich's Legal Gazette is

published in the capital of the Reich.

Article 72

The proclamation of a Reich law shall be postponed for two months on the demand of one-third of the Reichstag. Laws stated to be urgent by the Reichstag and the Reich Council may be proclaimed by the Reich President notwithstanding such demand.

Article 73

A law enacted by the Reichstag shall be made the subject of a referendum, if the Reich President so determines within a month.

A law, the proclamation of which has been postponed on the application of at least one-third of the members of the Reichstag, shall be subjected to a referendum, if one-twentieth of the persons qualified to vote so submit.

A referendum shall further be instituted if one-tenth of the persons qualified to vote initiate by petition the introduction of a bill. An elaborated bill must underlie such people's initiative. The bill shall be submitted to the Reichstag by the government together with a statement of its own point of view. No referendum shall take place if the petitional bill is passed unaltered by the Reichstag.

In regard to the budget, taxation laws and laws relating to pay and salaries, only the Reich President may inaugurate a referendum.

A Reich law shall regulate the procedure for referendum and initiative.

Article 74

The Reich Council is entitled to raise an objection to laws passed by the Reichstag.

The objection must be submitted to the Reich government within two weeks following the final vote in the Reichstag and sustained by reasons at the latest within two further weeks.

When such objection has been raised, the law is again submitted to the Reichstag for redécision. If by this means no agreement is reached between the Reichstag and the Reich Council, the President may, within three months, order that a referendum be taken on the matter in dispute. If the President does not exercise this right, the law is considered not to have been

passed. If the Reichstag has passed the law in spite of the objection by the Reich Council by a two-thirds majority, then the President must either proclaim the same within three months in the form approved by the Reichstag or order a referendum to be taken.

Article 75

A referendum can nullify an enactment of the Reichstag only if a majority of those qualified to vote take part in the vote.

Article 76

The Constitution may be amended by law. But acts of the Reichstag amending the Constitution can only take effect if two-thirds of the legal number of members are present and at least two-thirds of those present consent. Resolutions of the Reich Council also require a two-thirds majority of the votes taken, when an amendment to the Constitution is in question. If on a popular initiative an amendment to the Constitution is to be decided by referendum the consent of a majority of those qualified to vote is required.

If the Reichstag has passed an amendment to the Constitution in spite of an objection on the part of the Reich Council, the President may not proclaim such law, if within two weeks the Reich Council demands a referendum.

Article 77

Unless otherwise provided by law the Reich government shall issue the general administrative provisions necessary for putting into execution the laws of the Reich. The approval of the Reich Council is required when the execution of the Reich laws is within the competence of the authorities of the Lands.

Sixth Chapter

Reich Administration

Article 78

The cultivation of the relations with foreign States is exclusively a function of the Reich.

With regard to matters the regulation of which is within the competence of the Lands' legislatures, the Lands may conclude treaties with foreign States; such treaties require the approval of the Reich.

Agreements with foreign States relating to any alteration of the boundaries of the Reich are concluded by the Reich, after the consent of the Lands concerned has been obtained. Such boundary alterations may only be undertaken on the basis of a Reich law, unless it is simply a case of adjusting the boundaries of uninhabited districts.

All arrangements and measures necessary for safeguarding the interests of individual Lands arising out of their particular economic relations with or their proximity to foreign States shall be undertaken by the Reich in agreement with the Lands concerned.

Article 79

The defense of the Reich is a function of the Reich. The defense organization of the German people shall be uniformly regulated by Reich law with due regard to special peculiarities of the inhabitants of the different Lands.

Article 80

Colonial matters belong exclusively to the competence of the Reich.

Article 81

All German commercial vessels constitute one single merchant marine.

Article 82

Germany constitutes one single customs and trading area surrounded by a customs frontier.

The customs frontier coincides with Germany's foreign frontier line. At the sea the shore of the mainland and of the islands belonging to the territory of the Reich form the customs boundary. Deviations may be ordered for the course of the boundary line along the sea and other waters.

Foreign territories or parts of territories may be joined to the customs area by means of international treaties or agreements.

Portions may be excluded from the customs area to meet particular necessities. In the case of free ports such exclusion can only be repealed by a law amending the Constitution.

Districts excluded from the customs area may be joined to a foreign customs area by means of international treaties or agreements.

All products of nature and industry and art which are freely traded within the Reich may be transported over the boundaries of the Lands and Communes into, out of, and through them. Exceptions may be allowed by Reich law.

Article 83

Customs duties and consumption taxes are administered by the authorities of the Reich.

The authorities of the Reich, when administering taxes of the Reich, shall take steps to enable the individual Lands to safeguard their own particular interests in regard to agriculture, trade, commerce and industry.

Article 84

The Reich shall provide by law for:

1. the institution of a tax administration of the Lands, so far as is necessary for the uniform and equal execution of the Reich taxation laws
2. the institution and powers of the authorities entrusted with the supervision of the execution of the Reich taxation laws
3. the accounting with the Lands
4. the reimbursement of the costs of administration in executing the Reich taxation laws.

Article 85

All revenues and expenditures of the Reich must be estimated for every fiscal year and entered in the budget.

The budget shall be passed by law before the beginning of the fiscal year.

Appropriations are as a rule made for one year; in special cases they may be granted for a longer period. Other provisions in the budget law which legislate for a period beyond the fiscal year, or which have no reference to the revenues or expenditures of the Reich, may not be incorporated in the budget law.

The Reichstag may not increase existing or incorporate new appropriations in the budget bill without the consent of the Reich Council.

The consent of the Reich Council may be replaced as provided in Article 74.

Article 86

The Reich Minister of Finance shall, in the course of the year, account to the Reich Council and the Reichstag for the expenditure of all the revenues of the Reich for the preceding year in order to release the government of the Reich from its responsibility. The auditing of this account shall be regulated by Reich law.

Article 87

Funds may only be obtained by loans in the case of extraordinary requirements and, as a rule, only for the purpose of productive outlay. A Reich law is required for this method of procuring funds as well as for the creation of a charge on the Reich by way of security.

Article 88

The post and telegraph as well as the whole telephone system are exclusive functions of the Reich.

Postage stamps are uniform for the whole Reich.

Treaties relating to communications with foreign countries may only be concluded by the Reich.

Article 89

It is a function of the Reich to take over the ownership of railways serving as means of general traffic and to operate them as a uniform system of communications.

The rights of the Lands to acquire private railways shall be transferred to the Reich on demand.

Article 90

With the transfer of the railways the Reich acquires the right of expropriation and the sovereign state rights of the Lands over the railway

systems. The extent of these rights shall be decided in the case of conflict by the Constitutional Court.

Article 91

With the approval of the Reich Council, the government of the Reich shall issue all decrees relating to the construction of railways, their operation and traffic. With the consent of the Reich Council, the government may transfer this right to the competent Reich Minister.

Article 92

The railways of the Reich, although their budget and accounts are incorporated in the general budget and accounts of the Reich, shall be operated as an independent economic enterprise, with the duty of defraying its own expenditure including interest on and amortization of the railway reserve fund. The amount of the amortization and the reserve fund, and the purposes for which the latter is to be utilized shall be regulated by special law.

Article 93

The government of the Reich with the consent of the Reich Council shall establish advisory councils for the railways of the Reich to assist in an advisory capacity in matters relating to railway traffic and rates.

Article 94

Once the Reich has taken over the administration of the railroads serving the general traffic of a particular district, new railroads serving general traffic may not be constructed within such district except by or with the consent of the Reich. When new railroad systems or alterations in those already existing are so projected as to fall within the police competence of any Land, the Reich railroad administration shall consult the Land authorities before the decision is taken.

Whenever the Reich has not yet taken over the administration of the railroads, it may construct such railroads on its own account as are deemed necessary for general traffic or for national defense by virtue of a Reich law, even against the protest of the Lands whose territory is to be traversed, but without prejudice to the sovereign rights of the Lands; or the Reich may

entrust another with the execution of such construction, together with the right of expropriation, if necessary.

All railroad administrations must permit the junction of other lines at the latter's expense.

Article 95

Railways of general traffic not administered by the Reich shall be supervised by the Reich.

Railways under the supervision of the Reich shall be constructed and equipped according to uniform principles determined by the Reich. They must be kept in safe working order and developed as traffic requirements dictate. Service and equipment for passenger and freight traffic shall be maintained in accordance with their requirements.

The supervision of railway rates shall be directed to securing nondiscriminatory and moderate charges.

Article 96

All railways, including those not serving as means of general traffic, must comply with any demands of the Reich for their utilization for the purpose of national defense.

Article 97

It is the duty of the Reich to take over the ownership and administration of waterways serving the general traffic.

After they have been taken over, waterways serving the general traffic may only be constructed or developed by the Reich or with its consent.

In the administration, development or construction of waterways, the requirements of land and water economy must be safeguarded in agreement with the Lands. Their improvement shall also be taken into consideration.

Every administration of waterways must permit the connection of their own with other inland waterways at the expense of the promoter. The same obligation holds for the construction of a connection between inland waterways and railways.

With the transfer of waterways the Reich acquires the right of expropriation, the control of rates and the police survey over the waterways and navigation.

The duties of the river conservancies in respect to the development of the natural waterways in the Rhine, Weser, and Elbe districts shall be taken over by the Reich.

Article 98

Advisory councils to cooperate in matters concerning Reich waterways shall be formed in compliance with detailed provisions to be issued by the Reich government with the approval of the Reich Council.

Article 99

On natural waterways charges may only be collected for such works, plants and other institutions as are designed to facilitate traffic. In the case of Lands and communal institutions they may not exceed the necessary costs, for construction and upkeep. The construction and maintenance costs of institutions not exclusively devoted to the facilitation of traffic but also destined for the furtherance of other purposes, may only be raised in a proportionate degree by shipping charges. Interest and sinking funds on the invested capital are included as costs of construction.

The provisions of the foregoing paragraph apply also to charges collected for artificial waterways and to works erected thereon and in harbors.

Within the sphere of inland navigation the entire cost of a waterway, a river basin or a system of waterways may be utilized for calculating the shipping charges.

These provisions apply equally to the floating of timber on navigable waterways.

It is within the exclusive competence of the Reich to exact from foreign ships and their cargoes other or higher charges than from German ships and their cargoes.

Article 100

In order to cover the cost of the maintenance and construction of inland navigation routes, contributions may also be levied by virtue of a Reich law

from persons enjoying benefits from the construction of dams in other ways than by navigation, if more than one Land is involved, or the Reich bears the costs of construction.

Article 101

It is the duty of the Reich to take over the ownership and administration of all marine signal stations, particularly lighthouses, lightships, buoys, floats, and beacons. After the Reich has taken them over, marine signal stations may only be constructed or developed by the Reich or with its consent.

Seventh Chapter

The Judiciary

Article 102

Judges are independent and subject only to the law.

Article 103

The ordinary judiciary consists of the Reich Supreme Court and the courts of the Lands.

Article 104

The judges of the ordinary judiciary are appointed for life. Against their will they may only be permanently or temporarily suspended from office or transferred to another position or retired by virtue of a judicial decision and only for the reasons and in the form prescribed by law. The legislature may fix an age limit, on reaching which judges shall retire.

A temporary suspension from office as provided by law is not affected hereby.

If a change is effected in the organization of the courts or their districts the judicial administrative authorities of the Lands may order involuntary transfers to another court or removal from office, but only on full pay.

These provisions do not apply to commercial judges, lay judges, and jurors.

Article 105

Exceptional courts are prohibited. No one may be deprived of the right to be heard by his legally prescribed judge. The legal provisions concerning

military courts and courts martial are not affected hereby. Military courts of honor are abolished.

Article 106

Military jurisdiction shall be abolished except in time of war and on men-of-war. Details shall be regulated by a Reich law.

Article 107

Both in the Reich and in the Lands, administrative courts shall be established under the laws for the protection of individuals against decrees and orders of the administrative authorities.

Article 108

A Constitutional Court shall be established for the German Reich in accordance with a Reich law.

SECOND PART

FUNDAMENTAL RIGHTS AND DUTIES OF THE GERMANS

First Chapter

The Individual Person

Article 109

All Germans are equal before the law.

In principle men and women have the same civil rights and duties.

Public-legal privileges or disadvantages of birth or of rank are to be abolished.

Titles of nobility shall be regarded merely as part of the name, and may no longer be bestowed.

Titles may only be bestowed when they indicate an office or profession; academic degrees are not affected hereby.

Orders and decorations may not be conferred by the State.

No German may accept titles or orders from a foreign government.

Article 110

Citizenship of the Reich and the Lands is acquired and lost in accordance with the provisions of a Reich law. Every citizen of a Land is at the same time a citizen of the Reich.

Every German has in every Land of the Reich the same rights and duties as the citizens of that Land.

Article 111

All Germans enjoy liberty of travel and residence throughout the whole Reich. Everyone has the right to sojourn and settle in any place within the Reich, to acquire real estate and to pursue any means of livelihood. Restrictions require a Reich law.

Article 112

Every German is permitted to emigrate to a foreign country. Emigration may only be restricted by a Reich law.

All citizens of the Reich within and without the territory of the Reich are entitled to the protection of the Reich in relation to foreign countries.

No German may be surrendered to a foreign government for prosecution or punishment.

Article 113

No laws or administrative orders may prejudice in their free and characteristic development the elements of the population of the Reich whose mother tongue is other than German, especially in regard to the use of their mother tongue in schools, in matters of internal administration, and the administration of justice.

Article 114

The freedom of the person is inviolable. Curtailment or deprivation of personal freedom by a public authority is only permissible on a legal basis.

Persons who have been deprived of their freedom must be informed at the latest on the following day by whose authority and for what reasons the deprivation of freedom was ordered; opportunity shall be afforded them without delay of submitting objections to their deprivation of freedom.

Article 115

Every German's home is his sanctuary and is inviolable. Exceptions may only be made as provided by law.

Article 116

An act can only be punishable if its penalty was fixed by law before the act was committed.

Article 117

The secrecy of letters and all postal, telegraphic and telephone communications is inviolable. Exceptions are inadmissible except by Reich law.

Article 118

Every German has the right, within the limits of the general laws, to express his opinions freely in speech, in writing, in print, in picture form or in any other way. No conditions of work or employment may detract from this right and no disadvantage may accrue to him from any person for making use of this right.

Censorship is forbidden, but in the case of moving pictures deviations from this rule may be established by law. Legal provisions are also admissible for combatting pornography and obscene publications and for the protection of young persons at public plays and entertainment.

Second Chapter

The General Welfare

Article 119

Marriage as the cornerstone of family life and the preservation and increase of the nation is placed under the special protection of the Constitution. It is based on the equal rights of both sexes.

It is the duty of the State and the Communes to foster the purity, health, and social advancement of the family. Families with numerous children have a claim to proportionate assistance.

Motherhood has a claim to the protection and care of the State.

Article 120

To provide their children with a thorough physical, spiritual, and social education is the supreme duty and natural right of parents, whose activities shall be supervised by the State.

Article 121

The same conditions shall be created by law for the physical, spiritual and social development of illegitimate as for legitimate children.

Article 122

Youth shall be protected against exploitation and also against neglect of their moral, mental or physical well-being. The States and Communes shall make the necessary arrangements.

Compulsory measures for their welfare may only be ordered on the basis of law.

Article 123

All Germans have the right to assemble peacefully and unarmed without giving notice and without special permission.

A Reich law may make previous notification obligatory for assemblies in the open air, and may prohibit them in the case of immediate danger to the public safety.

Article 124

All the Germans have the right to form associations or societies for purposes not contrary to criminal law. This right may not be curtailed by preventive measures. The same provisions apply to religious associations and societies.

Every association may become incorporated according to the provisions of the civil law. The right may not be refused to any association on the grounds that its aims are political, social-political or religious.

Article 125

The liberty and secrecy of the vote is guaranteed. Details shall be regulated by election laws.

Article 126

Every German has the right to address requests or complaints in writing to the competent authorities or to the people's representatives. This right may be exercised individually or by several persons collectively.

Article 127

Communes and communal unions have the right of self-administration within the limits of the law.

Article 128

All citizens without distinction shall be eligible for public office in accordance with the laws and according to their capabilities and achievements.

All provisions discriminating against women are abolished.

The principles governing the legal status of the public officials shall be regulated by Reich law.

Article 129

Public officials shall be appointed for life, unless otherwise provided by law. Pensions for retired officials or the surviving dependents of deceased officials shall be regulated by law. The vested rights of public officials are inviolable. Legal steps may be taken by public officials for pecuniary claims.

Public officials may be only temporarily suspended from office, temporarily or permanently relieved or transferred to a different office with a lower salary on the conditions and in the form provided by law.

In every case where a disciplinary sentence is pronounced, the way must be open for appeal and a new trial. Entries unfavorable to a public official may not be made in his official record until opportunity has been afforded him of expressing his own view of the facts. Public officials shall be permitted to inspect their official records.

The inviolability of vested rights and the competence of the civil courts to adjudicate pecuniary claims are also assured particularly to the regular soldiers. In other respects their position shall be regulated by Reich law.

Article 130

Public officials are servants of the whole community, and not of a party.

Liberty of political opinion and freedom to form associations is guaranteed to all public officials.

A Reich law shall provide in detail for the special representation of public officials.

Article 131

If a public official in the execution of the official authority vested in him transgresses his official duty towards a third person, the State or the public body in whose service the officer is, is in principle held responsible. The right of recovery from the officer is reserved. Recourse to the ordinary civil courts may not be excluded.

Details shall be regulated by the competent legislature.

Article 132

It is the duty of every German to accept honorary offices in accordance with the laws.

Article 133

It is the duty of all citizens to render personal services to the State and the Commune in accordance with the laws.

The duty of military service is determined by the provisions of the Reich Defense Law. This shall also stipulate how far single Fundamental Rights of the Constitution shall be restricted in respect to members of the defense forces, in the interest of the fulfillment of their tasks and the maintenance of discipline.

Article 134

All citizens without distinction contribute to all public burdens in proportion to their means and in accordance with the laws.

Third Chapter

Religion and Religious Associations

Article 135

All inhabitants of the Reich enjoy full religious and conscientious freedom. The undisturbed exercise of religion is guaranteed by the Constitution and is under state protection. The general state laws are unaffected hereby.

Article 136

Civil and civic rights and duties are neither contingent upon nor limited by the exercise of religious freedom.

The enjoyment of civil and civic rights and the eligibility for public office are independent of religious belief.

Nobody is obliged to reveal his religious conviction. The authorities are only entitled to ask questions concerning adherence to a religious body so far as rights and duties are dependent thereon or in pursuance of statistical inquiries prescribed by law.

No one may be compelled to attend any church service or ceremony or to participate in religious exercises, or to take oath in religious form.

Article 137

There is no State Church.

Freedom to form religious societies is guaranteed. The combination of religious societies within the territory of the Reich is subject to no restrictions.

Every religious society regulates and administers its affairs independently within the limits of the law, applicable to all. It appoints its officers without the cooperation of the State or the civil community.

Religious societies become incorporated in accordance with the general provisions of civil law.

Religious societies remain bodies of public law if this has been their status hitherto. Similar rights shall be granted to other religious societies on their application, if their constitution and the number of their members offer a guarantee of permanency. If several such religious societies are united as public bodies, this union is also a public body.

Such religious societies as are public bodies are entitled to levy taxes on the basis of the civil tax-roll in accordance with the laws of the respective Lands.

Associations devoted to the common cultivation of a philosophy of life are placed on the same footing as religious societies.

So far as the execution of these provisions requires more detailed regulation, this is within the competence of the Lands' legislatures.

Article 138

State contributions to religious societies based on laws, contract or special legal titles shall be commuted by Lands legislation. The Reich shall establish the principles therefor.

Property and other rights of religious societies and associations in their institutions, foundations, and other properties for cultural, educational, and charitable purposes are guaranteed.

Article 139

Sundays and public holidays recognized by the State remain under legal protection as days of rest and spiritual edification.

Article 140

Members of the defense forces shall be allowed the necessary free time for performing their religious duties.

Article 141

So far as there is need for divine service and spiritual consolation in the army, in hospitals, prisons or other public institutions, the religious societies shall be permitted to perform the religious offices, but all compulsion shall be avoided.

Fourth Chapter

Education and the Schools

Article 142

Art and science and the teaching thereof are free. The State guarantees them protection and takes part in their cultivation.

Article 143

The education of young persons shall be provided for by means of public institutions. The Reich, Lands and Communes shall cooperate in their

establishment.

The training of teachers shall be regulated uniformly for the whole Reich according to the generally recognized principles of higher education.

Teachers in public schools have the rights and duties of state officials.

Article 144

The whole school system is under the supervision of the State, which may cause the Communes to participate therein. The supervision of schools is exercised by trained expert officials as their occupation-in-chief.

Article 145

Attendance at school is universally obligatory.

In principle this duty is fulfilled by attending an elementary school for at least eight school years and a connected continuation school until the completion of the eighteenth year. Instruction and school supplies are supplied free of charge in the elementary and continuation schools.

Article 146

The system of public schools shall be organically developed. The intermediate and secondary school system shall be built upon the basis of common elementary schools. This system shall be determined by the needs of all kinds of vocations, and for the reception of a child into a particular school, his abilities and inclination shall be the deciding factor, not the economic and social status or the religious confession of his parents.

Within the Communes, however, on the petition of parents and guardians, popular schools professing their own faith or philosophy of life shall be established, so far as this does not interfere with an organized school system in the sense, also, of Paragraph 1, *supra*. As far as possible the will of parents and guardians shall be taken into consideration. Details shall be regulated by Lands legislation based on principles prescribed by a Reich law.

Public funds shall be provided by the Reich, Lands and Communes to make the intermediate and secondary schools available for those possessed of restricted means; in particular shall there be educational grants for the

parents of children looked upon as suitable subjects for instruction in intermediate and secondary schools until their schooling is completed.

Article 147

Private schools as substitutes for public schools require the approval of the State and are subject to the laws of the Lands. Approval shall be granted when the private schools are not inferior to the public schools as regards their instructional aims and equipment and the scientific training of the teachers, and a separation of the pupils according to the wealth of their parents is not encouraged. The approval shall be refused if the economic and legal position of the teachers is not sufficiently assured.

Private elementary schools shall only be admitted when for those parents or guardians whose wishes are to be regarded under Article 146, Paragraph 2, no public elementary school of their faith or philosophical persuasion exists in their Commune, or if the educational administrative authorities recognize the existence of a particular educational need.

Private preparatory schools shall be abolished.

The existing law shall continue to apply to private schools not serving as substitutes for public schools.

Article 148

In all schools moral training, a sense of civic responsibility, personal and vocational efficiency in a spirit of national German feeling and international conciliation shall be aimed at.

Care shall be taken that instruction in public schools shall not hurt the feelings of those who differ in opinion.

Civics and manual training form part of the school curriculum. On completing his obligatory schooling every pupil shall receive a copy of the Constitution.

Popular education including popular universities shall be developed by the Reich, Lands and Communes.

Article 149

Religious instruction forms part of the ordinary school curriculum except in the nonconfessional (secular) schools; its form will be regulated by the laws

relating to schools. Religious instruction shall be given in conformity with the principles of the religious society concerned, without prejudice to the State's right of supervision.

The imparting of religious instruction and the performance of religious acts is left to the decision of the teacher, while the participation in religious lessons, acts, and ceremonies is a matter for the decision of those who have the right to determine the religious education of the child.

The theological faculties in the universities shall be maintained.

Article 150

Artistic, historical, and natural monuments and scenery enjoy the protection and care of the State.

It is a function of the Reich to prevent German art treasures from passing to foreign countries.

Fifth Chapter

The Economic Life

Article 151

The regulation of economic life must be compatible with the principles of justice, aiming at the attainment of humane conditions of existence for all. Within these limits the economic liberty of the individual shall be assured.

Legal compulsion is only admissible for the realization of threatened rights or in the service of preponderant requirements of the common welfare.

Freedom of trade and commerce is guaranteed on the basis of the Reich laws.

Article 152

As far as the laws allow, there shall be freedom of contract in business intercourse. Usury is prohibited. Legal transactions contra bonos mores are invalid.

Article 153

Property is guaranteed by the Constitution. Its content and limits are defined by the laws.

Expropriation can only take place for the public benefit and on a legal basis. Adequate compensation shall be granted, unless a Reich law orders otherwise. In the case of dispute concerning the amount of compensation, it shall be possible to submit the matter to the ordinary civil courts, unless Reich laws determine otherwise. Compensation must be paid if the Reich expropriates property belonging to the Lands, Communes, or public utility associations.

Property carries obligations. Its use shall also serve the common good.

Article 154

The right of inheritance is guaranteed according to the civil code.

The share of the State in inherited property is determined by the laws.

Article 155

The distribution and utilization of the land shall be supervised by state authorities in a manner to prevent abuse and with the object of ensuring a healthy dwelling to every German and to all German families, especially those with numerous children, living and working quarters in accordance with their needs. War veterans shall be particularly considered in the enactment of homestead laws.

Real estate, the acquisition of which is necessary for housing purposes, for the promotion of settlements and land cultivation or to improve agriculture, may be expropriated. All entails shall be dissolved.

The cultivation and utilization of the soil is a duty owed by the landowner to the community. An increase in the value of land, which arises without the expenditure of work or capital on the property, shall be utilized for the common benefit.

All treasures of the soil and all natural forces of economic utility are under the supervision of the State. Private mining rights shall be transferred to the State by legislation.

Article 156

The Reich may, without prejudice to the right of compensation, by law transfer to public ownership private economic enterprises suitable for socialization, applying thereby analogously the regulations relating to

expropriation. The Reich may allot to itself, the Lands or the Communes a share in the administration of economic enterprises and associations or secure to itself a controlling influence therein in some other way.

The Reich may also in case of urgent necessity for socioeconomic interests, by law effect a combination of economic enterprises and associations on the basis of self-administration with the object of securing the cooperation of all working elements of the population, of allowing employers and employees a share in the management and regulating the production, fabrication, distribution, utilization, price fixing, and the importation and exportation of economic goods according to the principles of national economy.

The cooperative industrial and economic associations and their unions shall at their request be incorporated in the socialized economic system, their constitution and peculiarities being thereby taken into consideration.

Article 157

The ability to work is under the special protection of the Reich. The Reich shall create a uniform labor law.

Article 158

Intellectual labor, the rights of the author, the inventor, and the artist enjoy the protection and care of the Reich.

Recognition and protection in foreign countries also shall be secured to German science, art and technic by means of international agreements.

Article 159

Freedom of association for the preservation and promotion of labor and economic conditions is assured to everyone and to all vocations. All agreements and measures attempting to restrict or restrain such freedom, are unlawful.

Article 160

Persons working as employees or laborers are entitled to the leave necessary for the exercise of their civic rights and, so far as the enterprise is not materially damaged thereby, for performing the duties attached to public

honorary offices entrusted to them. The law shall determine to what extent they retain their right to remuneration.

Article 161

For the maintenance of health and capacity to work, for the protection of maternity, and for provision against the economic consequences of age, infirmity, and the vicissitudes of life, the Reich shall organize a comprehensive system of insurance, in which the insured persons shall cooperate to a considerable extent.

Article 162

The Reich shall endeavor to obtain an interstate regulation of the legal status of laborers which shall have as its object the establishment of a general minimum standard of social rights for all working classes of mankind.

Article 163

Every German has, without prejudice to his personal liberty, the moral duty to utilize his intellectual and physical powers in the interest of the general welfare.

The opportunity of earning his living by economic work shall be afforded to every German. So far as suitable work cannot be found for him, he shall be provided with the necessary support. Details shall be regulated by special Reich laws.

Article 164

The interests of the independent middle classes in agriculture, industry and commerce shall be promoted by legislation and administration and protected from oppression and absorption.

Article 165

Laborers and employees are called upon to take part on equal terms and together with the employers in regulating conditions of work and wages and also in the general economic development of productive forces. The organizations on both sides and agreements between them shall be recognized.

Laborers and employees shall be legally represented on the Workmen's Councils of the Enterprise, as well as in the District Workmen's Councils organized for each economic area and on a Reich Workmen's Council.

The District Workmen's Councils and the Reich Workmen's Council shall combine with the representatives of the employees and other interested elements of the population to form District Economic Councils and a Reich Economic Council for the purpose of performing all economic tasks and of cooperating in carrying out the socialization laws. The District Economic Councils and the Reich Economic Council shall be so constituted that all important vocational groups are represented thereon in accordance with their economic and social importance.

Social-political and political-economic bills of basic importance shall be submitted to the opinion of the Reich Economic Council by the government of the Reich before being introduced. The Reich Economic Council has itself the right to propose the introduction of such bills. If the government of the Reich does not approve them, it must nevertheless introduce such bills to the Reichstag, stating its own point of view. The Reich Economic Council may have the bill supported in the Reichstag by one of its own members.

Supervision and administrative powers may be conferred on the Workmen's and the Economic Councils within their own spheres of work.

The regulation of the organization and tasks of the Workmen's and the Economic Councils as well as their relation to other social self-governing bodies is exclusively a function of the Reich.

Transitional and Concluding Provisions

Article 166

Until the establishment of the Reich Administrative Court the Reich Supreme Court shall take its place in the formation of the Election Investigation Court.

Article 167

Article 18, sect. 3 to 6 are valid 2 years after announcement of the Reichs Constitution.

Article 168

Until—but only for a year—the Landlaw, considered in Article 63 is issued, all Prussian votes in the Reichsrat can be given by the members of the Cabinet.

Article 169

The Reichs Cabinet, will set the date, when Article 83, sect. 1, becomes valid.

Article 170

The postal—and telegraph agencies of Bavaria and Wuertenberg, will be taken over by the Reich on 1 April 1921 the latest.

If, on 1 Oct 1920, no agreement on the points of the taking over has been reached, the supreme constitutional court will decide.

Until the taking over, the present rights and duties of Bavaria and Wuertenberg are in force. The postal and telegraph traffic with neighboring states of foreign countries, will be regulated by the Reich.

Article 171

The State Railroads, Waterways and sea-marks will be taken over by the Reich on April 1, 1921, the latest.

If on 1 Oct 1920 no agreement on the points of the taking over, has been reached, the Supreme Constitutional Court will decide.

Article 172

Until the Reich law concerning the Supreme Constitutional Court comes into force, a Senate shall exercise its powers; this Senate shall consist of seven members of which four are chosen by the Reichstag from its own members and three by the Supreme Court of the Reich from its own members. The Senate shall regulate its own procedure.

Article 173

Until the enactment of a Reich law according to Article 138 the present state contributions to religious societies based on laws, contracts or special legal claims shall be continued.

Article 174

Until the enactment of the Reich law provided in Article 146, Paragraph 2, the present legal situation shall continue. The law shall take into particular consideration those districts of the Reich in which a school where no distinction of creeds is made is established by law.

Article 175

The provision of Article 109 does not apply to orders and decorations to be conferred for merit in the war years 1914-1919.

Article 176

All public officers and members of the defense forces shall take the oath upon the Constitution. Details shall be regulated by an order of the Reich President.

Article 177

Where in the existing laws the oath is prescribed in religious form, the oath shall be legally binding if the person taking the same, leaving out the religious formula, declares: "I swear." The content of the oath as prescribed in the laws remains otherwise unaltered.

Article 178

The Constitution of the German Reich of April 16, 1871, and the laws of February 10, 1918, concerning the provisional government of the Reich, are repealed.

All other laws and orders of the Reich remain in force, so far as this Constitution is not incompatible with them. The provisions of the Peace Treaty signed at Versailles on June 28, 1919, are not affected by the Constitution. With respect to the negotiations concerning the acquisition of the island of Heligoland a regulation in favor of its inhabitants may be made differing from that of Article 117, Paragraph 2.

Orders by the authorities which have been legally issued in conformity with the present laws, retain their validity until they are repealed by new orders of legislation.

Article 179

So far as laws or orders refer to provisions and institutions which are repealed by this Constitution, the appropriate provisions and institutions of

this Constitution shall take their place. In particular, the Reichstag shall take the place of the National Assembly, the Reich Council that of the State Committee, the Reich President elected on the basis of this Constitution that of the Reich President elected on the basis of the law concerning the provisional government of the Reich.

The power, hitherto pertaining to the State Committee, of issuing executive orders is transferred to the government of the Reich, which requires therefor the approbation of the Reich Council in accordance with this Constitution.

Article 180

Until the meeting of the first Reichstag, the National Assembly shall function as Reichstag. The President of the Reich chosen by the National Assembly shall retain his office till 30 June 1925.

Article 181

The German people have passed and adopted this Constitution by means of their National Assembly. It comes into force with the date of its proclamation.

Schwarzburg, 11 August 1919.

The Reich President

EBERT

The Reich Cabinet

BAUER

ERZBERGER HERMAN MUELLER DR. DAVID NOSKE
SCHMIDT SCHLICKE GIESBERTS
DR. MAYER DR. BELL

TRANSLATION OF DOCUMENT 2056-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1632

Decree concerning the Extension of the Jurisdiction of the Special Courts of
20 November 1938

On authority of Chapter II of the Sixth Section of the decree of 6 October 1931 (RGBl I, page 537), Article II of the law regarding the reunification of Austria with the German Reich of 13 March 1938 (RGBl I, page 237) and Article 7 of the decree of the Fuehrer and Reich Chancellor regarding the administration of the Sudeten German territories of 1 October 1938 (RGBl I, page 1331), the following order is promulgated:

Article I

In cases of criminal acts which belong to the jurisdiction of the Assizes or of a lower court, the prosecuting authorities can bring the charge before the Special Court, if they believe that in consideration of the gravity or the wickedness of the deed, or the possible arousing of popular excitement, an immediate verdict by the Special Court is advisable.

Article II

(1) Under the same supposition in the state of Austria and in the Sudeten German territories the prosecuting authorities can bring the charge before the Court of Appeal in cases of criminal acts which, according to the existing legal procedure in those areas, belongs to the jurisdiction of the Jury Court or of a lower court. This is decided by the appointment of three professional judges.

(2) For the legal procedure the decree of 21 March 1933 (RGBl I, page 136) is applicable. The Reich Minister for Justice is to be consulted for more precise definitions.

Article III

In the proceedings before the Special Court (Court of Appeals) the period of time for summons is limited to 24 hours.

Article IV

As long as the main deliberation has not yet begun in cases of Articles I and II, proceedings which are pending in the Assizes (Jury Court) or a lower court at the time this decree enters into effect, are to be referred to the Special Court of the prosecuting authorities so proposed.

Article V

This decree becomes effective on the date of publication.

Berlin, 20 November 1938

The Reich Minister for Justice
Dr. Guertner

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2057-PS

1934 REICHSGESETZBLATT PART I, PAGE 529

Law Relating to National Emergency Defense Measures of 3 July 1934

The Reich Government has enacted the following law, which is hereby promulgated:

ONLY ARTICLE

The measures taken on 30 June and 1 and 2 July 1934 to counteract attempt at treason and high treason shall be considered as national emergency defense.

Berlin, 3 July 1934.

The Reich Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

The Reich Minister of Justice
Dr. Guertner

TRANSLATION OF DOCUMENT 2058-PS

1933 REICHSGESETZBLATT, PART I, PAGE 462

Decree for the securing of the State Leadership of 7 July 1933

Based on paragraph 18 of the provisional law about the coordination of the states [Laender] with the Reich of 31 March 1933 (Reichsgesetzblatt I, page 183), I decree:

The Reichstag and houses of delegates of the states

Article 1

The distribution of seats, according to the electoral suggestion of the Social Democratic Party, for the Reichstag and the provincial diets (citizens' committee), based on the election results of 5 March 1933 or on the results of the coordination action, according to Article 4, Section 2 of the provisional law for the coordination of the states with the Reich of 31 July 1933, is void. An alternate distribution will not take place.

Community self-administrative bodies

Article 2

The distribution of seats, according to the elective suggestion of the Social Democratic Party, for the community self-administrative bodies (county diets, district diets, district councils, council of officials, city councils, city councils of representatives, community councils, etc.) in Prussia based on the results of the election of 12 March 1933, in the other German states based on the results of the coordination action according to article 12, Section 2 of the provisional law for the coordination of the states with the Reich of 31 March 1933 is void.

Article 3

In as much as it may be necessary for the maintenance of a self-administration of the community to fill the seats whose distribution has been nullified, the state supervisory authority can fill these seats again according to the will of the people after the conquering of the republic [Parteienstaat].

Article 4

The members of the community self-administrative bodies will be appointed by the state supervisory authority according to the will of the people after the conquering of the republic in the following additional cases.

1. if a community body of representatives is dissolved, by the state supervisory authority, or if their election or coordination has been declared void in the examination of the election,

2. if a community or an association of communities is newly formed by way of organization,
3. if a regular filling of the community body of representatives is not possible, because, according to the elections, a sufficient number of acceptable alternates is no longer available,
4. if in Prussia, a new election of the community body of representatives has not taken place on 12 March 1933.

Civic honorary positions

Article 5

(1) The elections of honorary members of national administrative resolution authorities, committees and of bearers of national, individual honorary positions, who themselves belong to the Social Democratic Party, or who were elected because of the electoral suggestion of representatives of the Social Democratic Party, are void.

(2) The same applies to the election of honorary chairmen or members of boards of direction of communities and association of communities, deputations, commissions, community councils, as well as bearers of honorary individual positions, who are themselves members of the Social Democratic Party, or who have been elected by bodies of representatives or other organs, entitled to vote, of the community or of the community associations based on electoral suggestion, which have been submitted by the representatives of the Social Democratic Party.

(3) In as much as it is necessary for the maintenance of the national administration or of the community self-administration to fill civic honorary positions, the election of which are void (Section 1 and 2), the alternates will be appointed by the state supervisory authority or by its deputized officials according to the will of the people after the conquering of the republic.

Berlin, 7 July 1933.

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2059-PS

1933 REICHSGESETZBLATT, PART I, PAGE 134

Decree of the Reich-President relating to the granting of amnesty of 21
March 1933

Pursuant to Section 48, subsection 2 of the Constitution of the Reich the following is ordered:

Section 1

Amnesty is granted for penal acts committed in the national revolution of the German People, in its preparation or in the fight for the German soil pursuant to the following provisions:

Section 2

Penalties imposed by final judgment at the time this law becomes effective and which have not yet been served, are annulled.

The amnesty applies to additional fines and security measures as long as they have not been executed, to subsidiary legal consequences as well as outstanding fines payable to the Treasury of the Reich or the Landes and to outstanding expenses.

If a sentence has been passed to the effect that something should be confiscated or made unusable it will remain as such.

Section 3

Pending proceedings will be discontinued if the offense has been committed before the 21 March 1933 and further proceedings are not to be instituted.

Section 4

Should a penalty which has not yet been served at the time when this decree becomes effective, include one or several penalties for offences for which amnesty is granted, such part of the entire penalty which is proportionally meted out for the offences mentioned has to be deducted.

If a penalty constituting imprisonment has been transformed into one of penal servitude only on account of simultaneous offences for one of which amnesty is granted, the entire penalty which will be reduced pursuant to subsection 1, has to be commuted into imprisonment of the same length of time.

Judicial findings (Section 458 of Code of Criminal Procedure) relating to whether and to what extent a penalty is to be extenuated pursuant to the provisions of subsections 1 and 2 will be decided upon by the court which has the jurisdiction to impose penalties for the offence mentioned in subsection 1.

Section 5

The Court decides upon the discontinuance of pending proceedings upon application of the parties.

If the proceedings have been instituted upon a private complaint the costs of such proceedings are quashed. The Court may divide the necessary expense of the private complaint and the accused appropriately or may impose the expenses on any one of them.

TRANSLATION OF DOCUMENT 2061-PS

1934 REICHSGESETZBLATT, PART I, PAGE 785

Oath of Reich Officials and of German Soldiers, of 20 August 1934.

Law on attestation of officials and of soldiers of the Armed Forces, of 20 August 1934.

The Reich's government has enacted the following law which is hereby proclaimed:

Art. 1

The Public officials and the soldiers of the armed forces have to take an oath of service on entering service.

Art. 2

1. The oath of service of public officials will be:

“I swear: I shall be loyal and obedient to Adolf Hitler, the Fuehrer of the German Reich and people; respect the laws, and fulfill my official duties conscientiously, so help me God.”

2. The oath of service of the soldiers of the armed forces will be:

“I swear by God this sacred oath, that I will render unconditional obedience to Adolf Hitler, the Fuehrer of the

German Reich and people, supreme commander of the armed forces, and will be ready as a brave soldier to risk my life at any time for this oath.”

Art. 3

Officials already in service are to be given the oath without delay according to Art. 2, number 1.

Art. 4

The law on attestation of officials and of soldiers of the armed forces of 1 Dec. 1933 (RGBl I. P. 1016) and the decree of the second of the same month (RGBl I. P. 1017) are rescinded.

Berlin, 20 August 1934.

The Fuehrer and Reichschancellor
Adolf Hitler

The Reichsminister of the Interior
Frick

The Reichsminister of Defense
von Blomberg.

TRANSLATION OF DOCUMENT 2073-PS

1936 REICHSGESETZBLATT, PART I, PAGE 487

Decree concerning the Appointment of a Chief of German Police in the
Reich Ministry of the Interior of 17 June 1936

I

For the unification of police duties in the Reich, a Chief of German Police is instituted for the German Ministry of the Interior, to whom is assigned the direction and conduct of all police affairs within the jurisdiction of the Reich and of the Prussian Ministries of the Interior.

II

(1) For the Chief of German Police in the Reich Ministry of the Interior, the Deputy Chief of the Secret State Police of Prussia is declared to be Reichsfuehrer SS Heinrich HIMMLER.

(2) He is subordinated individually and directly to the Reich and the Prussian Ministries of the Interior.

(3) In their absence he represents for his jurisdiction the Reich and the Prussian Ministries of the Interior.

(4) He bears the service title: Reichsfuehrer SS and Chief of the German Police in the Reich Ministry of the Interior.

III

The Chief of the German Police in the Reich Ministry of the Interior shares in the sessions of the Reich Cabinet, so far as his jurisdiction is concerned.

IV

I commission the Reich and the Prussian Ministries of the Interior with the conduct of this decree.

Berlin, 17 June 1936

The Fuehrer and Chancellor of the Reich
Adolf Hitler

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2075-PS

1937 REICHSGESETZBLATT, PART I, PAGE 187

Decree

for appointment of a chief of the organization of Germans abroad within the Foreign Office.

30 January 1937.

For uniform care for German Nationals abroad a Chief of the Organization of Germans abroad is appointed within the Foreign Office and to whom, at the same time, the leadership and processing of all affairs of German Nationals abroad within the jurisdiction of the Foreign Office will be given over.

II

(1) As chief of the Organization for Germans abroad within the Foreign Office Gauleiter Ernst Wilhelm Bohle, director of the Organization for Germans abroad of the Nazi Party is appointed.

(2) His is a personal appointment and immediately subordinate to the Reich Minister for Foreign Affairs. His field of activity, as chief of the organization of German nationals abroad of the Nazi Party and his subordination to the deputy of the Fuehrer are not affected.

(3) His official title is: Chief of Organization of Germans abroad within the Foreign Office.

III

The Chief of Organization of Germans abroad of the Foreign Office participates in the sessions of the Reich Cabinet so far as his field is concerned.

IV

The Reich Minister for Foreign Affairs in agreement with the deputy of the Fuehrer will issue the implementative regulations of this decree.

Berlin, 30 January 1937.

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reich Foreign Minister
Freiherr von Neurath

PARTIAL TRANSLATION OF DOCUMENT 2076-PS

1933 REICHSGESETZBLATT, PART I, PAGES 136-137

Decree of the Reich Cabinet relating to the formation of special courts of
March 21, 1933

On the basis of Chapter II, Part 6 of the third decree of the Reich President to safeguard economy and finances and to combat political excesses, of 6 October 1931 (Reichsgesetzblatt I pp. 537, 565) the following is decreed.

Section 1

- (1) A special court will be created for the district of each court of appeals.
- (2) The special courts are courts of the State [Land].
- (3) The legal administration of the State [Land] determines the seats of the special courts.

Section 2

The special courts have jurisdiction over crimes and felonies enumerated in the decree of the President of the Reich for the defense of people and state, of 28 February 1933 (Reichsgesetzblatt I, p. 83) and in the decree relating to the defense against insidious attacks against the government of the national revolution provided that such offenses are not within the jurisdiction of the Supreme Court or court of appeals.

Section 3

- (1) The special courts also have jurisdiction when a crime or felony which is under their jurisdiction fulfills at the same time the specifications of another offense.
- (2) If another offense is directly connected with the crime or felony which comes under the jurisdiction of the Special Courts, then the proceedings against the offenders and accessories of the other offense may be instituted in the Special Courts.
- (3) The extended jurisdiction pursuant to Paragraphs 1 and 2 does not apply to offenses for which the Supreme Court or Courts of Appeals have jurisdiction.

* * * * *

Section 7

Proceedings may be instituted also before the Special Court in the district of which the defendant was caught or where he is in custody. The release of the defendant does not affect this jurisdiction once it has been established.

* * * * *

Section 9

(1) No hearings relating to the warrant of arrest shall be held.

* * * * *

Section 11

A preliminary court investigation will not take place. If a preliminary investigation is pending at the time this decree becomes effective, the records are to be transferred at once to the prosecuting official with the Special Court.

* * * * *

Section 16

(1) No legal remedy is admissible against the decisions of the Special Courts.

* * * * *

Berlin, March 24, 1933

The Reich Chancellor
Adolph Hitler

For the Reich Minister of Justice
The Deputy of the Reich Chancellor
von Papen.

TRANSLATION OF DOCUMENT 2078-PS

1934 REICHSGESETZBLATT, PART I, PAGE 365

Decree concerning the establishment of the Reichs Ministry of Science,
Education, and Popular Culture of 1 May 1934

(1) For the entire system of education, training, and instruction of the Reich, as well as for the tasks of science, a Reich Ministry for Science, education, and popular culture is established.

(2) The director of this office bears the title “Reich Minister for Science, Education and Popular Culture.”

(3) The Chancellor of the Reich will determine the various duties of the Reich Ministry for Science, Education, and Popular Culture. He will also determine the duties which are transferred from the sphere of activity of the Reich Ministries affected to the new Ministry and also even if the sphere of activity of the ministries concerned is fundamentally affected hereby.

Berlin, 1 May 1934

The President of the Reich
von Hindenburg

The Chancellor of the Reich
Adolf Hitler

TRANSLATION OF DOCUMENT 2079-PS

1935 REICHSGESETZBLATT, PART I, PAGE 1145

Reich Flag Law 15 September 1935

The Reichstag has unanimously ratified the following law which is hereby announced:

Article 1

The colors of the Reich are black, white, and red.

Article 2

The Reich and national flag is the swastika flag. It is also the merchant flag.

Article 3

The Fuehrer and Reich Chancellor designates the design of the Reich War Flag and the Reich Service Flag.

Article 4

The Reich Minister of the Interior releases the necessary legal and administrative regulations for the execution and completion of this law as long as it does not interfere with the jurisdiction of the Reich Minister of War.

Article 5

This law becomes valid on the day of announcement.

Nurnberg 15 September 1935
on the Reichparteitag of Freedom

The Fuehrer and Reich Chancellor
ADOLF HITLER

The Reich Minister of the Interior
FRICK

The Reich Minister of War and
Supreme Commander of the Wehrmacht
VON BLOMBERG

TRANSLATION OF DOCUMENT 2082-PS

1933 REICHSGESETZBLATT, PART I, PAGE 661

Law relating to the Reich Chamber of Culture of September 22nd, 1933.

The Reich Government has decreed the following law which is hereby promulgated:

Section 1

The Reich Minister for Popular Enlightenment and Propaganda is ordered and authorized to organize the functions under his jurisdiction into public corporations.

Section 2

Pursuant to section 1, the following chambers are established:

1. a Reich Chamber of Archives,
2. a Reich Press Chamber,
3. a Reich Radio Chamber,

4. a Reich Theater Chamber,
5. a Reich Music Chamber,
6. a Reich Chamber of Creative Arts.

Section 3

In establishing the Chambers mentioned in section 2, the provisions relating to the film industry contained in the Law relating to the Establishment of a Provisional Film Chamber of 14 July 1933 (Reichsgesetzblatt, page 483) and supplementary executive provisions thereunder are to receive corresponding application.

Section 4

The organization of these Chambers must be kept within the framework of the policies laid down by the Reich Government in connection with professional advancement.

Section 5

The corporate bodies listed in Section 2, together with the provisional film Chamber, referred to as the Reich Film Chamber, are united into a Reich Chamber of Culture. The Reich Chamber of Culture is under the supervision of the Reich Minister for Popular Enlightenment and Propaganda. It has its seat in Berlin.

Section 6

The Reich Minister for Popular Enlightenment and Propaganda and the Reich Minister of Economics are authorized to coordinate the provisions of the Trade Laws with the provisions of this law by means of a combined decree.

Section 7

The Reich Minister for Popular Enlightenment and Propaganda is authorized to decree laws and general administrative regulations as well as amendments for the purpose of implementing this law. The laws and general administrative regulations affecting financial or trade interests of the Reich require consent of the Reich Minister of Finance, in agreement with the Reich Minister of Economics.

Berlin, 22 September 1933.

The Reich Chancellor
Adolf Hitler

The Reich Minister for
Popular Enlightenment and Propaganda Dr. Goebbels

TRANSLATION OF DOCUMENT 2083-PS

1933 REICHSGESETZBLATT, PART I, PAGE 713

Editorial Law
4 October 1933

The Reich Government has resolved upon the following law, which is hereby published:

Part One

The Editorial Profession

Section 1

The cooperative work carried on as main employment or based upon appointment to the position of chief editor in the shaping of the intellectual contents by written word, dissemination of news or pictures of the newspapers or political periodicals, which are published within the area of the Reich, is a public task, which is regulated as to its professional duties and rights by the state through this law. Its bearers are called editors. Nobody may call himself an editor who is not entitled to do so, according to this law.

Section 2

(1) Newspapers and periodicals are printed matters which appear in regular sequence at intervals of at most 3 months, without limiting their circulation to a certain group of persons.

(2) All reproductions of writings or illustrations, destined for dissemination, which are produced by means of a mass reproduction process are to be considered as printed matter.

Section 3

(1) The provisions of this law relating to newspapers are valid also for political periodicals.

(2) This law does not apply to newspapers and periodicals which are published by official order.

(3) The Reich Minister of Public Enlightenment and Propaganda will determine which periodicals are to be considered as political within the meaning of the law. In case the periodical affects a certain vocational field, he will make the decision in agreement with the highest Reich or State agency concerned.

Section 4

Cooperation in the shaping of the intellectual contents of the German newspapers is also considered as such, if it does not take place in the management of a newspaper, but in an establishment, which is to supply newspapers with intellectual contents, (written word, news, or pictures).

Part Two

Admission to the Profession of Editor

Section 5

Persons who can be editors are only those who:

1. possess the German citizenship,
2. have not lost the civic rights [buergerliche Ehrenrechte] and the qualification for the tenure of public offices,
3. are of Aryan descent, and are not married to a person of non-Aryan descent,
4. have completed the 21st year of age,
5. are capable of handling business,
6. have been trained in the profession,
7. have the qualities which the task of exerting intellectual influence upon the public requires.

Section 6

For the requirement of the Aryan descent and the Aryan marriage, section 1a of the Reich Law for Officials [Reichsbeamten-gesetz] and the provisions issued for its implementation will be applied.

Section 7

(1) Whoever has acquired the knowledge of an editor by training for at least one year (editor in apprenticeship) with the editorial staff of a German newspaper or an establishment of the kind mentioned in Section 4 and can prove this by certificate to the editorial staff will be considered as professionally trained. The apprenticeship served with a foreign newspaper may be made equivalent to the apprenticeship served with a German paper by means of the implementation order.

(2) The provisions of this law also pertain to the editors in apprenticeship with the exception of Section 5, Subsections 4, 5, and 6.

Section 8

The admission to the editorial profession will be affected by entry upon request in the professional editors' list. The professional rosters are kept by the offices of the regional associations [Landesverbände] of the German press (Section 24, Subsection 2). The registration will be passed upon by the head of Regional association. He must decree the registration, if the requirements which are set forth in Section 5 are fulfilled. He has to reject it if the Reichsminister for Public Enlightenment and Propaganda protests.

Section 9

(1) Upon application by the head of the regional association the head of the Reich Association of the German Press (Section 23) with the approval of Reich Minister of Public Enlightenment and Propaganda may permit exceptions from the requirements set forth (Section 5, Nos. 1, 3, and 6). This exception can be limited to certain branches of the activity of an editor. In this case the Reich Minister of Public Enlightenment and Propaganda grants the permission in accordance with the highest competent Reich or State authority.

(2) Exemption from the requirement of German [Reich] citizenship is to be granted to those of German origin if no special objections exist.

Section 10

The nominator must be notified in writing together with a statement of reasons of a decision by the head of the Land Association [Landesverband] rejecting an entry into the professional roster. The nominator may call for a decision by the professional court within four weeks after the notice. The appeal is not permitted if the circumstances fall within the purview of Section 8, 5th sentence.

Section 11

The head of the Land Association is required to decree the deletion of an entry in the professional roster if the requirements set forth in Section 5, Nos. 1, 2, 5, are not present, or the data furnished under Nos. 1-6 has been found incorrect, or the editor has given up his profession. Section 10, sentences 1 and 2 are correspondingly applicable.

Part Three

Exercise of the Profession of an Editor

Section 12

By registration in the professional roster, the editor becomes entitled to execute his profession with German newspapers or with German enterprises of the kind described in Section 4. If he moves into the district of a different Land Association, he will be transferred to the respective professional roster without further examination.

Section 13

Editors are charged to treat their subjects truthfully and to judge them according to the best of their knowledge.

Section 14

Editors are especially bound to keep out of the newspapers anything which:

1. in any manner is misleading to the public, mixes selfish aims with community aims,
2. tends to weaken the strength of the German Reich, outwardly or inwardly, the common will of the German people, the German defense ability, culture or economy, or offends the religious sentiments of others,
3. offends the honor and dignity of Germany,

4. illegally offends the honor or the welfare of another, hurts his reputation, makes him ridiculous or contemptible,
5. is immoral for other reasons.

Section 15

Editors are bound to exercise their profession conscientiously and by their behavior inside or outside their professional activities prove themselves worthy of the respect which this profession demands.

Section 16

The publisher of a newspaper may compel an editor by means of a contract to observe the fundamental policies of a newspaper. The public duties and rights of the editor which derive from Sections 13 to 15, cannot be affected by policies.

Section 17

Contracts for the hiring of an editor must be in writing.

Section 18

The publisher of a newspaper must appoint an editor-in-chief and is required to report his name in writing to the Land Association concerned.

Section 19

The editor-in-chief is required to draw up in writing a plan for distribution of work, from which must be evident what part of the tasks of editing are to be taken by each editor and to what extent he has the authority to issue directions to other editors, in accordance with the terms of the contracts of employment and the supplementary directives of the publisher.

Section 20

(1) Editors of a newspaper are responsible under professional, criminal and civil law, for its intellectual content so far as they themselves wrote or selected it. The responsibility under criminal or civil law of other persons is not thereby excluded.

(2) The chief editor is responsible for the over-all editorial policy of the newspaper.

(3) The editor-in-chief is required:

(a) to take care that only such contributions are accepted as have been written or selected for acceptance by an editor.

(b) to take care that the first and last names as well as the residence of the editor-in-chief and his deputies, as well as that of each editor to whom a specific part of the direction of a newspaper is delegated, is reported.

(c) upon request to give information to anyone establishing a legal interest therein, as to which editor bears the responsibility for a contribution, so far as this is not evident from the data under subdivision b.

Section 21

Editors who cooperate in the shaping of the intellectual contents of a newspaper by their activity with an enterprise of the kind mentioned in Section 4, are responsible for the contents to the extent of their cooperation.

Part Four

Protection of the Editorial Profession Afforded by the Laws Relating to Association.

Section 22

The editorial group as a whole will watch over the fulfillment of duty on the part of individual professional colleagues and will look after their rights and their welfare.

Section 23

Editors are legally united to the Reich Association of the German Press [Reichsverband der Deutschen Presse]. By virtue of his registration on the professional roster every editor belongs to it. By virtue of this law the Reich Association becomes a public corporation. It has its seat in Berlin.

Section 24

(1) The Reich Minister for Public Enlightenment and Propaganda will appoint the head of the Reich Association who will issue a charter for the Reich Association, which will require the approval of the Minister. The head of the Reich Association will appoint an advisory councilor.

(2) The Reich Association is organized in Land Associations. Further details are regulated by the charter. Editors who live abroad must belong to a Land Association in whose district there is a newspaper or an establishment of the kind outlined in Section 4, by which they are employed.

Section 25

(1) The Reich Association is required:

1. to establish educational, advanced training and welfare institutions for the editors,
2. to give expert advice to Reich and Land authorities,
3. to cooperate in the making of stipulations for employment of editors,
4. upon request of one party, to negotiate among editors, and to settle differences in case both parties agree.
5. to maintain professional courts for the press.

(2) The Reich Association may assume additional duties for the achievement of the purposes provided for in Section 22.

(3) The Reich Association is authorized to impose dues on its members in order to meet its expenses. The regulations governing this must have the approval of Reich Minister for Public Enlightenment and Propaganda. The dues are to be collected like public taxes.

Section 26

The Reich Minister for Public Enlightenment and Propaganda will exercise supervision to ensure that the Reich Association fulfills tasks which have been assigned to it.

Section 27

(1) Professional Courts [Berufsgerichte] will be established for the protection of the editorial profession.

(2) Professional Courts of the first instance are the District Courts [Bezirksgerichte] of the Press. Professional Courts of the second instance is the Press Court [Pressegerichtshof] in Berlin.

Section 28

The Professional Courts have jurisdiction:

1. to try and to decide whether the registration in the professional roster for cases set forth in Section 10 is to be decreed.
2. to try and to decide upon removals under Section 11.
3. to interpret termination clauses in editors' contracts of employment [Anstellungsverhaeltnisses] under Section 30.
4. to try and to decide offenses of a professional nature on the part of editors (proceedings of an honor court).

Section 29

The termination of employment must be in writing and must contain a statement of reasons.

Section 30

A publisher may dismiss an editor because of the views expressed by him in the newspaper only if they are in conflict with the public professional duties of an editor or if they contravene the agreed policies. The Professional Court will, at the request of the editor, state whether the dismissal, in its opinion, has been contrary to the provisions of the preceding sentence or amounts to an evasion of them. Legal proceedings before the regular courts, if any have been initiated, are to be deferred until the requested opinion has been obtained.

Section 31

(1) An editor who fails in his public professional duties, as set forth in Sections 13 to 15, 19, 20, subsection 3, commits a professional misdemeanor. In such case the Professional Court may:

1. warn the editor,
2. punish him with a fine not exceeding the sum of one month's professional earning,
3. decree the removal of his name from the professional roster.

(2) His license to exercise the editorial profession and to call himself an editor is terminated with such removal.

(3) The Professional Court may temporarily deny an editor, against whom proceedings in an honorary court have been instituted, the right to exercise his profession.

Section 32

Professional Courts shall consist of the President and the lay judges [Beisitzer]. Alternates are to be appointed for the President and the lay judges. The President and the lay judges must be eligible for the office of judge or for higher administrative offices. They must possess judicial independence. The lay judges and their alternates have to be editors and publishers in equal numbers. All members of the Professional Courts are appointed by the Reich Minister for Public Enlightenment and Propaganda. The head of the Reich Association will nominate the editors, while the head of the Organization of Publishers in the Reich Press Chamber will nominate the publishers.

Section 33

The District Press Courts with five members, the Press Court [Pressegerichtshof] with 7 members, the President being included in both cases.

Section 34

The procedure before the Professional Courts will be regulated by a code of procedure which is decreed by the Reich Minister for Public Enlightenment and Propaganda in agreement with the Reich Minister for Justice after obtaining the opinion of the head of the Reich Association.

Section 35

The Reich Minister for Public Enlightenment and Propaganda may decree the removal of an editor from the professional list independent of the proceedings of the Professional Court, if he deems it necessary for pressing reasons of public welfare.

Part Five

Protection of the Editorial Profession Afforded by the Penal Laws

Section 36

Whosoever works as an editor despite the fact he is not registered in the professional rosters, or despite the fact that the exercise of his profession has been prohibited temporarily, will be punished with imprisonment up to one year, or fined.

Section 37

A publisher who entrusts a person who is not registered in the professional rosters or an editor who has been temporarily suspended from the exercise of his profession with the work of an editor as a main profession, or who maintains a newspaper without having appointed a chief editor, according to Section 18, will be punished by imprisonment of up to 3 months or by a fine.

Section 38

An editor who demands, accepts a promise of, or accepts a remuneration or any other advantage for an action which violates Sections 13 or 14, will be punished with imprisonment or fined.

Section 39

Whosoever attempts to induce an editor or a publisher or his deputy, by an office, promise or granting an advantage, to undertake, bring about or tolerate the shaping of the intellectual content of a newspaper, in violation of Sections 13 or 14, will be punished with imprisonment or fined for bribery of the press.

Section 40

(1) Whosoever attempts to induce an editor or a publisher or his deputy by means of threats to undertake, bring about or tolerate the shaping of the intellectual content of a newspaper in violation of Sections 13 or 14 will be punished with imprisonment or fined for unlawful interference with the press.

(2) If the unlawful interference with the press is exerted by misuse of the dependent employee-status of the editor, then the punishment must be not less than 3 months imprisonment.

Section 41

In cases under Sections 38 to 40 the judgment may include less of civil rights in addition to imprisonment.

Section 42

Whosoever assumes the title of an editor, despite the fact he is not registered in the professional roster, will be punished by fine of up to 150 Reichsmark or by imprisonment [haeft].

Section 43

The license of a publisher against whom there is a final judgment for violation of provisions contained in Sections 37, 39 and 40, may be revoked by the administrative authority having jurisdiction in such matters under the laws of the State.

Part Six

Concluding Provisions

Section 44

Regulations enabling delegates of a law-making body to limit prosecutions are not applicable to cases under sections 31 to 35 of this law.

Section 45

(1) Sections 7, 8, of the Reich Law relating to the Press of 7 May 1874 (RGBl I page 65) are not applicable to newspapers and political periodicals.

(2) Otherwise the provisions of the Reich Press Law relating to the responsible Editor in charge [Redakteur] are applicable to the responsible editor [Schriftleiter or Hauptschriftleiter] of newspapers and political periodicals, insofar as Section 20, subsection 1 and Section 21 of this law are concerned.

Section 46

The Reich Minister for Popular Enlightenment and Propaganda in agreement with the other Reich Ministers concerned may issue directives for the execution of these laws and for conversion from the old legal basis to the new one.

Section 47

The Reich Minister for Public Enlightenment and Propaganda will set the date on which this law becomes valid.

Berlin, 4 October 1933

The Reich Chancellor
Adolf Hitler

The Reich Minister for Public
Enlightenment and Propaganda
Dr. Goebbels

TRANSLATION OF DOCUMENT 2084-PS

1933 REICHSGESETZBLATT, PART I, PAGE 215

Law on the Formation of Student Organizations at Scientific Universities

22 April 1933.

The Government of the Reich has decreed the following law which is promulgated herewith:

Section 1

Students of German descent and mother tongue, fully registered with a scientific University shall constitute the Student-body of such University, regardless of their citizenship.

Section 2

The Student-body is a part of the University and represents the students as a whole. It shall be instrumental in ensuring that students fulfill their duties towards the people, the State, and the University.

Section 3

Details relating to organization and work of the student-bodies will be determined by Land governments' Student Regulations and by the by-laws of the Universities and the Student-bodies.

Berlin, 22 April 1933.

The Reich Chancellor

ADOLF HITLER

The Reich Minister of the Interior
FRICK

TRANSLATION OF DOCUMENT 2088-PS

1934 REICHSGESETZBLATT, PART I, PAGE 375

Decree Relating to Tasks of the Reich Ministry for Education of 11 May
1934

Pursuant to the decree of the Reich President of 1 May 1934 (RGBl I, p. 365) I determine that the following affairs are transferred from the jurisdiction of the Reich Ministry of Interior to the Reich Ministry of Education:

1. Science

German scientific matters, also in their relation to foreign countries,

Physical-Technical Institute,

Chemical-Technical Institute,

Seismographical Institute,

Important Scientific Institutes inside and outside Germany,

Scientific Libraries,

Folklore,

Archeological Institute.

2. Education and Instruction:

High School-matters,

Support of students, "Reichsschaft" leaders of the students in
German High Schools and

Craft Schools,

General School matters,

Elementary schools,
Private schools,
Craft and Technical Schools,
German school affairs in foreign countries,
Schools in foreign countries.

3. Youth Organizations.

4. Education of Adults.

The Reich Minister for Education is the authority in the outlined fields for the tasks including legislation. The participation of other Reich-Ministers is governed by general principles.

Berlin, 11 May 1934.

The Reich Chancellor
ADOLF HITLER

TRANSLATION OF DOCUMENT 2089-PS

1933 REICHSGESETZBLATT, PART I, PAGE 241

Decree relating to the Reich Air Ministry of 5 May 1933.

A Reich Air Ministry is established as the highest Reich authority for Aviation. The Chief of this office shall have the title "Reich Air Minister."

Jurisdiction will include the functions of the Reich in Aviation; the functions and authority of the now abolished Reichskommissar [Reich Commissioner] for Aviation are transferred to the "Reich Air Minister."

This decree is effective from 1 May 1933.

Berlin, 5 May 1933.

The Reichpresident
von Hindenburg

The Reich Chancellor
Adolf Hitler

The Reich Commissioner for Aviation
Goering

TRANSLATION OF DOCUMENT 2090-PS

1935 REICHSGESETZBLATT, PART I, PAGE 1029

Decree relating to the Coordination of the Jurisdiction of the Reich and
Prussia in relation to Church Affairs of 16 July 1935

Those church affairs, which have hitherto come within the jurisdiction of the Reich and Prussian Ministry of the Interior as well as by the Reich and Prussian Ministry for Science, Education and National Culture, are transferred to the Reich Minister without Portfolio KERRL.

The Reich and Prussian Ministers concerned will issue more specific regulations for the execution of this decree.

Berlin, 16 July 1935.

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

The Reich Minister for Science, Education and National Culture
Rust

The Prussian Minister President
By order
Koerner

TRANSLATION OF DOCUMENT 2091-PS

1940 REICHSGESETZBLATT, PART I, PAGE 513

Decree of the Fuehrer and Reich Chancellor Appointing a Reich Minister
for Armaments and Munitions

17 April 1940

In order to consolidate the highest leadership of all offices engaged in the production of armaments and munitions in the Greater German Reich including the German Government for occupied Polish territories, I am appointing a Reich Minister for Armaments and Munitions. I appoint as Reich Minister for Armaments and Munitions the General Inspector of the German Highways Dr. Engineer Todt. The issuance of administrative regulations are reserved by me.

Berlin, 17 March 1940.

The Fuehrer and Reich Chancellor
Adolf Hitler

The President
for the Council of the Ministry for the Defense of the Reich

Goering
General Field Marshal

The Chief of the Supreme Command of the Armed Forces
Keitel

The Reich Minister and Chief of the Reich Chancellery
Dr. Lammers

TRANSLATION OF DOCUMENT 2092-PS

1943 REICHSGESETZBLATT, PART I, PAGE 529

Decree of the Fuehrer for the Concentration of the War Economy 2
September 1943

Considering the closer coordination and the unified employment of all economic forces, demanded by the necessities of war, I order for the duration of the war:

Article 1

The Reich Minister of Economy is competent for the basic economic-political questions of German economy.

Article 2

The competence of the Reich Minister for Economy in the realm of raw materials and production in industry and the trades are transferred to the Reich Minister for Armament and Munitions. The Reich Minister for Armament and Munitions will carry the designation, because of his enlarged realm of activity, of

“Reich Minister for Armament and War Production.”

Article 3

(1) The Reich Minister for Economy remains competent for the supply of civilian population with consumer goods and for their rationing.

(2) The Reich Minister for Economy is competent in the realm of raw materials and of the production in industry and trades and in the realm of commerce for the treatment of foreign commerce questions within the frame of the foreign trade policy of the Reich.

(3) Furthermore, he is responsible within the realm of the entire foreign trade, for the maintenance of the general economic viewpoints in the framework of the active German economic planning, and to direct German economy accordingly.

(4) The competence of the Reich Minister of Foreign Affairs in regard to the foreign trade policy of the Reich, and in regard to the preparation and execution of foreign trade policy conferences, remains untouched.

Article 4

(1) The Reich Minister for Economy is charged with the topmost supervision over the credit institutes, the supervisory and administrative rights, which belong, according to law or constitution, to the subordinated Reich or state authorities, are transferred to him. He delegates the supervisory or administrative rights to the subordinated officials, so far as he is not required to take care of them himself for special reasons.

(2) He is competent for the financial questions of the German economy.

Article 5

The authorities of the Reichsmarshal of the greater German Reich as Commissioner for the Four-Year Plan, remain untouched.

Article 6

This proclamation applies to the area of the greater German Reich including the incorporated Eastern territories and the Protectorate. In the protectorate also, the Reich Minister for Armament and War Production is competent in the realm of raw materials and the production in industry and the trades.

Article 7

The legal and administrative regulations, necessary for the execution and completion of articles 2, 3, and 4, will be issued: For Article 2 by the Reich Minister for Armament and War Production together with the Reich Minister for economy. For Articles 3 and 4 by the Reich Minister for Economy in agreement with the Reich Ministers concerned.

Fuehrer Headquarters, 2 September 1943.

The Fuehrer
Adolf Hitler

The Reich Minister and Chief of Reich Chancellery
Dr. Lammers

PARTIAL TRANSLATION OF DOCUMENT 2093-PS

1934 REICHSGESETZBLATT, PART I, PAGE 617

First Executive Order relating to the transfer of Forestry and Hunting
Matters to the Reich of 12 July 1934

Article 1

Section (2)

The Reich Conservator of Forests [Reichsforestmeister] has as Chief of the Reich Board of Woods and Forests the position and the authority of a Reichminister.

* * * * *

Berlin, 12 July 1934.

The Reichminister of the Interior
Frick

The Reich Forester
Goering

The Reich Minister for Food and Agriculture
R. Walther Darre

PARTIAL TRANSLATION OF DOCUMENT 2094-PS

1937 REICHSGESETZBLATT, PART I, PAGE 95

Decree of the Fuehrer and Reich Chancellor Concerning the Reich Labor
Leader in the Reich Ministry of the Interior of 30 January 1937

* * * * *

ARTICLE 3

The Reich Labor leader in the Reich Ministry of the Interior will participate
in sessions of the Reich Cabinet, in so far as matters under his jurisdiction
are concerned.

Berlin, 30 Jan 1934.

The Fuehrer and Reichs Chancellor
Adolf Hitler

The Reich Minister of the Interior
Frick

TRANSLATION OF DOCUMENT 2095-PS

1943 REICHSGESETZBLATT, PART I, PAGE 495

Decree of the Fuehrer on the Establishment of a Supreme Reich Authority
— “The Reich Labor Leader” of 20 August 1943.

In Amendment of the Reich Labor Service Law, in the form of the
proclamation of 9 September 1939 (RGBl I, p. 1747), and of my decree of
30 January 1937 (RGBl I, p. 95), I ordain:

Under the title “The Reich Labor Leader,” a Supreme Reich Authority will be established, with a seat in Berlin.

II

(1) The Reich Labor Service is under the jurisdiction of the Reich Labor Leader.

(2) The powers of the Reichminister of the Interior derived from laws, decrees and orders concerning the Reich Labor Service will be transferred to the Reich Labor Leader. The processing of matters concerning the Reich Labor Service will no longer fall under the competence of the Reichminister of the Interior.

(3) The Reich Labor Leader is under my immediate jurisdiction.

Fuehrer Headquarters, 20 August 1943.

The Fuehrer
Adolf Hitler

The Reichminister and Chief of the Reich Chancellery
Dr. Lammers

TRANSLATION OF DOCUMENT 2097-PS

1937 REICHSGESETZBLATT, PART I, PAGE 1317

Decree of the Fuehrer and Reich Chancellor relating to Designation of the
Chief of the Praesidialkanzlei of 1 December 1937

The State secretary and chief of the Praesidialkanzlei will carry in the future the official designation “State Minister and chief of the Praesidialkanzlei of the Fuehrer and Reich Chancellor.” He will be equal in rank to a Reich Minister.

Berlin, 1 Dec 1937

The Fuehrer and Reich Chancellor
Adolf Hitler

The State Secretary and Chief of the
Praesidialkanzlei

TRANSLATION OF DOCUMENT 2098-PS

1938 REICHSGESETZBLATT, PART I, PAGE 215

Decree relating to the Status of the Supreme Commanders of the Army and
Navy of 25 Feb 1938

The Supreme Commander of the Army, General von Brauchitsch, carries the equivalent rank of a Minister of the Reich—as has already been the case with the Supreme Commander of the Navy, Admiral Dr. h.c. Raeder.

Following my orders, the Supreme Commanders of the Army and Navy shall participate in the meetings of the Reich Cabinet.

Order No. 461 of April 20, 1936 (Heeresverordnungsblatt page 163) is rescinded.

Munich, 25 Feb 1938

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reich Minister and Chief of the
Reich Chancellery
Dr. Lammers

TRANSLATION OF DOCUMENT 2099-PS

1941 REICHSGESETZBLATT, PART I, PAGE 295

Fuehrer Decree Relating to the Chief of the Party Chancellery of 29 May
1941

By order of May 12, 1941, I decree for the National Socialist German Labor Party that the hitherto existing office of Deputy Fuehrer should be designated from then on as Party Chancellery under my personal jurisdiction. In order to guarantee closest collaboration of the Party Chancellery with the Supreme Reich Authorities, I order in this connection:

The Chief of the Party Chancellery, Reich Leader Martin Bormann, has the powers of a Reich Minister; he is member of the Reich Government and the Ministerial Council for Reich Defense. Wherever in connection with laws, orders, decrees, ordinances, and other regulations the term “Deputy

Fuehrer” is used, it will be replaced by “Chief of the Party Chancellery.” The instructions necessary for the execution and supplementing of this decree will be given by the Reich Minister and Chief of the Reich Chancellery in agreement with the Chief of the Party Chancellery.

Headquarters of the Fuehrer, 29 May 1941

The Fuehrer

Adolf Hitler

The Reich Minister and Chief of the Reich Chancellery

Dr. Lammers

TRANSLATION OF DOCUMENT 2100-PS

1942 REICHSGESETZBLATT, PART I, PAGE 35

Directive

About the application of the Fuehrer decree regarding the position of the chief of the Party Chancellery, dated 16 January 1942.

Based on the Fuehrer decree about the position of the chief of the Party Chancellery, dated 29 May 1941, (RGBl I, page 295) the following is decreed:

Par. 1

(1) The participation of the Party in legislation is handled exclusively through the chief of the Party Chancellery unless otherwise directed by the Fuehrer. Proposals and suggestions for legislation coming from the Party, its organizations and affiliated associations, may be submitted to the competent supreme Reich authorities only through the chief of the Party Chancellery.

(2) The same procedure regarding collaboration of the Party in personnel questions of civil servants will be used exclusively through the chief of the Party Chancellery.

Par. 2

In legislative functions the position of the chief of the Party Chancellery will be that of a participating Reich Minister in all cases. The supreme

Reich authority will therefore include him in the preparations for Reich laws, for decrees and directives of the Fuehrer, for directives of the Counsels of Ministers for the Defense of the Reich, as well as directives of the supreme Reich authorities to include executive directives and general directives. The same applies to his concurrence with laws and directives of the states and directives of the Reich deputies [Reichsstadthalter].

Par. 3

In fundamental and political questions, in particular those which serve to prepare, change or put into effect laws, decrees and directives, the channels between the supreme Reich authorities and the supreme authorities of the states which include several Gaue on the one hand, and the offices of the Party, its organizations and affiliated associates on the other hand, go through the chief of the Party Chancellery. Direct communication between the supreme Reich authorities and the supreme State authorities with other offices of the Party is not permissible in these cases. This applies to personnel matters regarding civil servants in as far as there are no special regulations.

Fuehrer Headquarters, 16 January 1942.

The Reichs Minister and Chief of the Reich Chancellery
Dr. Lammers

The Chief of the Party Chancellery
M. Bormann

TRANSLATION OF DOCUMENT 2101-PS

1941 REICHSGESETZBLATT, PART I, PAGE 192

Decree of the Fuehrer and Reich Chancellor concerning the Inspector General of the German Highways Administration of the 3rd of April 1941.

The Inspector General of the German Highways Administration has the power of a Reich Minister.

Berlin, April 3, 1941

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reichminister and Chief of the Reich Chancellery
Dr. Lammers

PARTIAL TRANSLATION OF DOCUMENT 2102-PS

1941 REICHSGESETZBLATT, PART I, PAGE 467

Decree of the Fuehrer and Reich Chancellor concerning the Inspector
General for Water and Power of 29 July 1941

In consideration of the special needs of the war and the necessity of unified planning in the Greater German Territory I appoint for the administration and reconstitution of the power development and the Power and Water administration an Inspector General for Water and Power. He has within the field for his activity the position and authority of a Reichminister and a Prussian Minister. His office is the highest Reich authority and the highest Provincial authority in Prussia.

To the office of Inspector General for Water and Power I nominate the Inspector General for the German Highways, Reichsminister Dr. Todt.

I. Power Administration

(1) The responsibilities of the Reichsminister for Economics in the realm of power administration especially according to the law for the advancement of the power administration (Power administration law) of December 13, 1935 (Reichsgesetzblatt I, Page 1451) are transferred to the Inspector General for Water and Power.

(2) Art. 1 Sect. 2 of the power administration law receives the following interpretation:

“(2) The supervision is done by the Inspector General for Water and Power.”

(3) The Reichsminister for Economics remains responsible for

a. the determination of the electrical current demands of the industry and the requesting of the necessary amounts of power;

b. the preparation of the materials and coal required by the power industry;

c. the approval for the use of the stock market for the purpose of the power industry in accordance with the generally valid regulations and the adjustment of the claims of the power industry on the money and stock market with regards to the requirements of the entire industrial economy;

d. the approval for the rearrangement of the legal constitution of enterprises of the power industry especially for registered corporations, and for the introduction of new legal constitution in the field of the registered trade corporation.

II. Water Administration

(1) The responsibilities of the Reichminister and Prussian Minister for Food and Agriculture and of the Reichminister and Prussian Minister for Transportation in the field of Water Administration and the waterways are transferred to the Inspector General for Water and Power.

(2) The Reich—and Prussian Minister for Food and Agriculture remains responsible for the Agricultural matters in the Water Administration, namely for the carrying out of the agricultural accommodations [Folgoeinrichtungen]. The Inspector General for Water and Power decides, in agreement with the Reichminister for Food and Agriculture, concerning the carrying out of improvements in Agriculture and in the Fisheries as well as concerning the bearable burdens of the land owners.

(3) The Reich—and Prussian Minister for Transportation remains responsible for the traffic on the waterways.

(4) The Inspector General for Water and Power may transfer the technical supervision concerning the planning and the carrying out of Water Administrative measures and harbor constructions, to the water construction agencies, in so far as the execution does not lie in the hands of official agencies.

III. Mutual Regulations

(1) The Inspector General for Water and Power takes over at the very latest by April 1, 1942 the personnel of the Reich and of Prussia, which are occupied with the assignments now transferred to him. The Reichminister for Economics, the Reichminister for Food and Agriculture and the Reichminister for Transportation will immediately make available to him the pertinent business groups. Also included in this transfer are the

furnishings and office material belonging thereto. The details of the transfer will be agreed upon by the participating Reichministers.

(2) For the execution of his missions the Inspector General for Water and Power may create corporations, institutions of a public legal nature or commercial legal companies, or other institutions in using new legal procedures.

(3) The Reichminister for the Interior and the Inspector for the field of responsibility transferred to them under inclusion of the road administration to prepare the development of a uniform administration within the framework of the general administration

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reichminister and Chief
of the Party Chancellory
Dr. Lammers

TRANSLATION OF DOCUMENT 2103-PS

1943 REICHSGESETZBLATT, PART I, PAGE 295

Decree of the Fuehrer on the Cabinet Legislation of 10 May 1943

Considering that the law of 24 March 1933 (RGBl I, p. 141) expires formally on 10 May 1943, I ordain:

The Reich Cabinet has to continue to exercise the powers entrusted to it by the law of 24 March 1933.

I reserve it to myself, to bring about the confirmation of these powers of the Reich Cabinet by the Greater German Reichstag.

Headquarters of the Fuehrer, 10 May 1943.

The Fuehrer
Adolf Hitler

The Reich Minister and Chief of

the Reich Chancellory.
Dr. Lammers.

TRANSLATION OF DOCUMENT 2104-PS

1933 PREUSSISCHE GESETZSAMMLUNG, PAGE 122

Law on the organization of a Secret State Police Office

The State Ministry has resolved on the following law:

Article 1

(1) The Secret State Police, with headquarters in Berlin, is organized in order to carry out the duties of political police with or in place of the ordinary police authorities (Article 2, paragraph 1 of the Code of Police Administration of June 1, 1931, Gesetzsammlung p. 77). The Secret State Police Office has the rank of a higher police authority and is subordinate only to the Minister of the Interior.

(2) The Minister of the Interior determines the functional and territorial jurisdiction of the Secret State Police Office.

(3) The regulations of the Code of Police Administration of June 1, 1931 concerning appeals against orders of the higher police authorities are applicable in so far as the Administrative Court in Berlin has exclusive jurisdiction over court appeals against orders of the Secret State Police Office.

Article 2

Within its jurisdiction, the Secret State Police Office can make requests for police action to all police authorities.

Article 3

The Minister of the Interior is entitled to issue administrative orders for the execution of this law. He acts in agreement with the Minister of Finance in regard to the number and type of officials and employees who should be employed by the Secret State Police Office.

Article 4

The law goes into effect on the day of its promulgation.

Berlin 24 April, 1933

The Prussian Ministry of State
/ss/ Goering and by Popitz
and for the Minister of the Interior

The above law, resolved by the Prussian State Ministry, is herewith promulgated.

Berlin 26 April 1933
/ss/ For the Reich Chancellor:
The Prussian Prime Minister
Goering

TRANSLATION OF DOCUMENT 2105-PS

1933 PREUSSISCHE GESETZSAMMLUNG, PAGE 413

Law on the Secret State Police of November 30, 1933

The State Ministry has resolved the following law:

Article 1

(1) The Secret State Police is an independent branch of the Administration of the Interior. The Prime Minister is its chief. He appoints an Inspector of the Secret State Police as acting manager of the affairs.

(2) In case of absence, the State Secretary of the State Ministry acts as deputy of the Prime Minister in his capacity as Chief of the Secret State Police.

(3) The Inspector of the Secret State Police is also chief of the Secret State Office.

Article 2

The jurisdiction of the Secret State Police covers all political police matters of the general and interior administration. The Prime Minister as Chief of the Secret State Police, will issue the regulations regarding the matters which must be transferred to the Secret State Police.

Article 3

(1) With the enactment of this law the Secret State Police Office takes over matters of a political nature which were previously handled by the Ministry of the Interior.

(2) The district, county and local police authorities [Landes Kreis und Ortspolizeibehoerden] are subject to the directives of the Secret State Police Office.

Article 4

The Minister of Finance is empowered to make changes in the budget of the State in order to carry out this law.

Article 5

Provisions of the law of April 26, 1933 (Gesetzsammlung 1933, p. 122) which conflict with this law are superseded by this law.

Article 6

This law goes into effect with its promulgation.

Berlin, November 30, 1933

The Prussian State Ministry,
/ss/ Goering Popitz
and as Minister of Interior

The above law, as resolved by the Prussian State Ministry, is herewith promulgated.

For the Reich Chancellor:
For the Prussian Prime Minister
Goering

PARTIAL TRANSLATION OF DOCUMENT 2107-PS

1936 PREUSSISCHE GESETZSAMMLUNG, PAGES 21-22.

(No. 14308) Law on the Secret State Police of 10 February 1936

Section VII

Orders in matters of the Secret State Police are not subject to the review of the Administrative Courts.

* * * * *

Berlin, 10 February 1936

THE PRUSSIAN STATE MINISTRY
GOERING FRICK

PARTIAL TRANSLATION OF DOCUMENT 2108-PS

1936 PREUSSISCHE GESETZSAMMLUNG, PAGES 22-24

Issue No. 5 distributed in Berlin, 12 Feb 1936. No. 14309

Decree for execution of the Law on the Secret State Police of 10 February
1936

On the basis of Articles 1 and 8 of the Law on the Secret State Police of the
10 February 1936 (Prussian Legal Gazette, page 21) is decreed:

Art. 1

The Gestapo is authorized to carry out the police investigations in high treason, treason and explosive cases, as well as other punishable aggressive actions against Party and State.

Art. 2

(1) In the proper competence of the Secret State Police, the Secret State Police Bureau is authorized to undertake measures in the entire territory of Prussia and measures effective for the entire territory.

(2) The Secret State Police Bureau assumes the competence of the Supreme Federal State Authorities in cases of the Law on guns and munitions of the 13 July 1928 (Reichs Legal Gazette I, page 198).

(3) The Secret State Police Bureau is a central collecting agency for political police information.

(4) The Secret State Police Bureau administers the state concentration camps.

(5) In Berlin the Secret State Police Bureau assumes the competence of the Secret State Police for the Federal-State-County and local police affairs. Whether, and to what extent these tasks will be transferred to the State

Police office in Berlin—will be determined by the Chief of the Secret State Police.

Art. 3

The State Police offices may, within the framework of the competence of the Secret State Police, take all the measures incumbent upon the Secret State Police with the exception of the prohibition of periodicals in their district.

Art. 4

(1) Insofar as it is necessary for the detection and fighting of aspirations which are directed against the State, the authorities of the county and local police in towns of more than 5000 inhabitants may decree the confiscation of printed material and restrictions regarding the rights of association and assembly for the support of the Secret State Police. The county and local police authorities have to obey within this realm the instructions of the responsible office of the State Police.

(2) The State Police office at its location executes also the functions of the local police within the framework of responsibility of the Secret State Police.

Art. 5

The Secret State Police is an independent branch of the interior administration. Its officials, employees and paid personnel belong to the interior administration. Its highest superior is the Chief of the Secret State Police.

Art. 6

The head of the Secret State Police office will represent the Deputy Chief of the Secret State Police in all official business functions.

Art. 7

The Secret State Police office may, within the framework of responsibility resting upon the Secret State Police, make requests to the heads of provincial and county governments [Ober—und Regierungspraesidenten], as well as to all police agencies. The heads of the provincial and county

governments have to obey the instructions of the Secret State Police office with respect to affairs concerning the Secret State Police.

Art. 8

(1) The State Police offices are located at the seat of the government. The chief of the Secret State Police can, in agreement with the Minister of Interior, make exceptions from this principle.

(2) An index of the State Police offices is added in the appendix.

Art. 9

(1) The heads of the State Police offices and political specialists [Sachbearbeiter] of the provincial governors will be determined by the Chief of the Secret State Police in agreement with the Minister of the Interior.

(2) In case the head of the State Police Office is prevented from doing so, the functions of the political specialist of the provincial governor will be taken care of by the official who is destined as permanent deputy of the head of the State Police Office. He will be designated by the Chief of the Secret State Police in agreement with the Minister of Interior.

Art. 10

The State Police offices may make their requests to all police authorities of their district. In counties, the request has, as a matter of principle to be directed to the County Governor [Landrat]; in the urgent cases it will suffice to inform the County Council. The reports of the authorities subordinated to the County Governor have to be sent to the State Police offices through the County Council; in urgent cases it will suffice to inform the County Council at the same time.

Art. 11

The authorities of the County Police have to report directly to the responsible state police office on all important political occurrences and observations.

Art. 12

Insofar as officials of the Secret State Police within the framework of the authority of the Secret State Police, take over the tasks incumbent upon the

authorities and officials of the police—and security services according to the regulations of the code for criminal proceedings, they are acting as auxiliary officials of the Chief Prosecutor of the Reich [Oberreichsanwalt] or of the State Prosecutor for the District Court [Oberstaatsanwalt] who is locally responsible.

Art. 13

The Chief of the Secret State Police disposes of the funds set aside for the Secret State Police in the budget of the interior administration.

Art. 14

The Ministerialblatt of the Reich—and Prussian Ministry of the Interior is the official gazette for the Chief and Deputy Chief of the Secret State Police.

Art. 15

This decree will be effective on the day after its publication.

Berlin, 10 February 1936

The Prussian Prime Minister
GOERING

The Reich—and Prussian Minister of the Interior
FRICK

TRANSLATION OF DOCUMENT 2111-PS

1941 VERORDNUNGSBLATT, PAGE 190

Order of the Reich Commissioner for the Occupied Netherlands Territories
concerning the Establishment of Administrative Courts Martial

Pursuant to Section 5 of the decree of the Fuehrer concerning the exercise of governmental authority in the Netherlands, of May 18, 1940 (RGBl I, p. 778) I hereby order as follows:

Section 1

(1) The Reich Commissioner for the occupied Netherlands territories may, if he shall deem it necessary for the maintenance or restoration of public

order and security, establish administrative courts martial for these territories or for certain areas within these territories.

(2) The establishment of administrative courts martial shall become effective as soon as it is announced. Such announcement shall be made by posters along public roads, streets and squares, by radio, by the press, or according to local custom. The abolition of administrative courts martial shall be made public the same manner.

(3) Simultaneously with the establishment of administrative courts martial, shall be decreed that everyone shall refrain from all activities which might disturb or endanger public order and security, and that everyone must comply with special orders issued by the Reich Commissioner, in which he shall make particular reference to the strictness of the administrative courts martial. Any person acting contrary hereto shall be subject to the jurisdiction of the administrative courts martial.

Section 2

Unless the Reich Commissioner shall order otherwise, the provisions of Sections 3 to 8 shall be effective for the areas in which administrative courts martial have been established, so long as these courts are maintained.

Section 3

(1) The Higher S.S. and the Police Leader shall take all measures deemed necessary by him for the maintenance or restoration of public order and security.

(2) He may promulgate rules and regulations, having the force and effect of laws, which are necessary for the fulfillment of his functions. Notwithstanding the provisions of Section 7, such rules and regulations may contain penal clauses subjecting a defendant to fines of unlimited amount, imprisonment or jail. They shall be published in accordance with the provisions of Section 1, paragraph 2, sentence 2.

(3) In the fulfillment of his duties, the Higher S.S. and the Police Leader may deviate from existing law.

Section 4

(1) The Reich Commissioner shall appoint a Special Agent for the entire area for which an administrative court martial has been decreed.

(2) The Special Agent shall be the head of the entire public administration, excluding the police administration, unless the Higher S.S. and the Police Leader assumes administrative tasks in accordance with Section 3, paragraph 1.

(3) The Special Agent shall promulgate rules and regulations necessary for the fulfillment of his functions. Notwithstanding the provisions contained in Section 7, they may contain penal clauses subjecting a defendant to fines of unlimited amount, imprisonment, or jail. They shall be published in accordance with the provisions of Section 1, paragraph 2, sentence 2.

(4) In the fulfillment of his duties, the Special Agent may deviate from existing law.

(5) The Reich Commissioner shall have the right to appoint Special Agents, even for certain parts of the area in which administrative courts martial have been established.

Section 5

The activities of all public representative committees which made decisions as a body, shall be suspended. Their powers and duties shall be transferred to the chief administrative authority concerned with the subject matter (for example, commissioner of the province, major, overseer of dikes, etc.).

Section 6

The validity of regulations issued by the Secretaries General in the Netherlands Ministries in accordance with Section 3, paragraph 2, sentence 2, of Order No. 3/1940, or by virtue of Order No. 23/1940, shall be dependent upon prior consent by the Special Agent (Section 4).

Section 7

Any person shall be subject to court martial who, after the establishment of an administrative court martial, shall intentionally participate in activities likely to disturb or to endanger public order and security, or who intentionally violates special orders of the Reich Commissioner issued in accordance with Section 1, paragraph 3. Such person shall be punishable by death or, in less serious cases, by hard labor either for life or for a period of not less than ten years.

Section 8

(1) The German Superior Court shall operate as a court martial in accordance with the procedure established in the Old Reich for proceedings before Special Courts.

(2) The provisions regarding judicial procedure for the German Armed Forces and the jurisdiction of Special Courts in criminal cases concerning members of the S.S. and of the police forces assigned to special duty, shall not be affected by this order; Section 11 of Order No. 52/1940, regarding the possibility of referring certain criminal cases to the jurisdiction of Special Courts, shall likewise remain unaffected.

(3) The judges of the court martial shall be appointed by the Reich Commissioner. The Court Martial shall be considered lawfully constituted even if only one judge has the educational qualifications required for judicial tenure.

(4) Death sentences shall be executed by shooting.

Section 9

This order becomes effective on the day of publication.

The Hague, March 19, 1941

SEYSS-INQUART

Reich Commissioner for the Occupied Netherlands Territories. 2 7 2

TRANSLATION OF DOCUMENT 2112-PS

1941 VERORDNUNGSBLATT, PAGE 655

Order of the Reich Commissioner for the Occupied Netherlands Territories
concerning Jewish Real Estate—11 August 1941

By virtue of article 5 of the decree of the Fuehrer concerning the exercise of Governmental authority in the Netherlands, of May 18, 1940 (RGBl I, p. 778) I order as follows:

Part I

DEFINITION

Section 1

(1) Jewish real estate, as defined in this order is any real estate which belongs in whole or in part:

1. To a Jew, as defined in Section 4 of Order No. 189/1940, concerning the registration of enterprises;
2. To an enterprise which is required to register by virtue of Order No. 189/1940;
3. To a private corporation, an association, an institution, a foundation or any other endowment, if one of the conditions of Section 2 of Order No. 189/1940 is fulfilled, although the organization in question is not an enterprise within the meaning of that order.

(2) Jewish real estate for the purpose of this order is, further, any right in real estate, as well as any mortgage, to which a person, an enterprise, an association, an institution, a foundation or any other endowment, as defined in paragraph (1), is entitled in its entirety or in part.

(3) The owner or beneficiary, for the purpose of this order, is the holder of title to the property, the possessor of a right in the real estate, or the

mortgage creditor.

Section 2

The provisions of this order shall not apply to real estate covered by the provisions of Order No. 102/1941, concerning the registration and treatment of agricultural real estate in Jewish hands (Order for the Exclusion of Jews from Agriculture).

Part II

REQUIREMENT OF REGISTRATION

Section 3

(1) Jewish real estate must be registered in writing with the Netherlands Real Estate Administration, The Hague, Juliana van Stolberglaan 45, by the use of a form which may be obtained from the Chambers of Industry and Commerce.

(2) Registration must be made before September 15, 1941. Any real estate acquired only after this order has become effective, must be registered within one month after such acquisition.

(3) The owner or beneficiary of real estate must register it. Any person who is entitled to represent the owner or beneficiary, or who is entitled to administrate such real estate, must also register it.

Section 4

(1) A person required to register must fill out the registration form completely and truthfully.

(2) Copies of the following documents must be filed with registration form, if they are in the possession of the person registering:

1. Excerpts from the Land-Register and the Mortgage-Register;
2. Contracts of sale and other documents concerning the acquisition of the real estate;
3. Contracts of lease or tenancy, or other documents showing an existing use.

(3) The Netherlands Real Estate Administration is empowered to require further information and the production of books, vouchers, and any other documents.

Section 5

(1) Every parcel of real estate, every right in real estate and every mortgage which on or before May 9, 1940, belonged to a person, an enterprise, an association, an institution, a foundation or any other endowment, as defined in Section 1, paragraph 1, or to which such person, enterprise, association, institution, foundation or other endowment was entitled, and which, before this order has become effective, has been transferred to any other person, must likewise be registered.

(2) The owner or beneficiary as defined in paragraph 1, and his representative, as well as his immediate successor in title and the representative of the latter, are required to perform this registration.

(3) Registration must be filed in writing before September 15, 1941, with the Netherlands Real Estate Administration. The registration must be accompanied by excerpts from the Land-Register and the Mortgage-Register, as well as by the contracts of sale and other documents concerning the legal transfer to which reference was made in paragraph 1. Section 4, paragraph 3, shall not be applicable.

Section 6

The registration requirements shall not apply to real estate:

1. Which has been registered pursuant to Order No. 26/1940, concerning the handling of enemy property;
2. Which belongs or did belong to an association or foundation which has been registered by virtue of Order No. 145/1940, concerning the registration of non-commercial associations and endowments;
3. Which has been reported in the registration of an enterprise, pursuant to Section 6 of Order No. 189/1940.

Part III

ADMINISTRATION

Section 7

(1) The Netherlands Real Estate Administration shall be empowered to take over Jewish real estate for administration.

(2) It shall be empowered to appoint third persons for such administration.

Section 8

(1) As soon as real estate has been taken over for administration, the Netherlands Real Estate Administration shall be empowered to execute all transactions, by court procedure or otherwise, which are necessary in the regular course of administration; it may alienate real estate in its entirety or in part, and may also mortgage it. The Netherlands Real Estate Administration shall be empowered to transfer these powers in their entirety or in part to the persons whom it has appointed for the administration of the real estate.

(2) Dispositions by the owner or beneficiary of the real estate shall be void during the period in which such real estate is being administered by the Netherlands Real Estate Administration. During such period payments by a mortgage debtor to the owner or beneficiary shall have no releasing effect.

Section 9

(1) The taking over of administration by the Netherlands Real Estate Administration shall be recorded in the public register without payment of a fee.

(2) It shall become legally effective on the date on which the request for recording was received by the agency competent to keep the register.

Part IV

PERMISSIONS

Section 10

(1) Persons, enterprises, associations, institutions, foundations or other endowments, as defined in Section 1, paragraph 1, may acquire real estate by legal transfer, only with the permission of the Reich Commissioner for the occupied Netherlands Territories (Commissioner General for Finance and Economic Affairs).

(2) Acquisition at an execution sale shall also be considered acquisition by legal transfer.

Section 11

(1) Jewish real estate can be alienated, mortgaged, leased, or made subject to other changes in ownership or possession, in part or in its entirety, only with the permission of the Reich Commissioner for the Occupied Netherlands Territories (Commissioner General for Finance and Economic Affairs); mortgages in particular can be paid off entirely or in part only with such permission.

(2) Paragraph 1 shall not apply, if real estate:

1. Is being administered by the Netherlands Real Estate Administration;
2. Is being administered by an administrator appointed pursuant to Order No. 26/1940;
3. Is being administered by a trustee appointed pursuant to Order No. 48/1941 (Order concerning the Exclusion of Jews from Economic Affairs);
4. Belongs to an association or foundation registered pursuant to Order No. 145/1940.

(3) The incurring of an obligation to execute any of the legal acts mentioned in paragraph 1, sentence 1, is also subject to the granting of permission. If permission is granted to incur such obligation, said permission shall also extend to legal acts in performance of the obligation.

Section 12

The request for permission shall be made by the person who intends to conclude a contract subject to permission, or to carry out any legal act subject to such permission.

Section 13

The permission may be made dependent upon the fulfillment of certain conditions or may be connected with certain requirements.

Part V

COSTS

Section 14

- (1) The procedure pursuant to this order may be subject to costs.
- (2) Action on applications may be made dependent on advance payment of such costs in part or in their entirety.

Part VI

PROVISIONS

Section 15

- (1) Any person who maliciously violates or circumvents the provisions of this order, or of any order, condition or requirement issued or made by virtue of this order, shall be subject to imprisonment or fine, unlimited as to the amount, or to both of these penalties.
- (2) If the act has been committed negligently, the punishment shall be imprisonment not exceeding one year, or a fine not exceeding 100,000 guilders.

Section 16

- (1) In addition to such penalty, the confiscation of the property to which the criminal act referred may be ordered.
- (2) If no particular person can be prosecuted or convicted, confiscation may be ordered independently.

Section 17

- (1) Prosecution shall be initiated only upon request of the Reich Commissioner for the Occupied Netherlands Territories (Commissioner General of Finance and Economic Affairs).
- (2) The request for prosecution can be withdrawn until sentence has been pronounced in the court of last resort.

Section 18

Acts punishable pursuant to Section 15 shall be considered criminal acts as defined in Section II, paragraph 2, of Order No. 52/1940, concerning German jurisdiction in Criminal Cases, as revised in Order No. 123/1941.

Section 19

(1) Property involved in the punishable act pursuant to Section 15 may also be confiscated by administrative procedure.

(2) In this case, confiscation takes place upon order of the Reich Commissioner for the Occupied Netherlands Territories (Commissioner General for Security); it becomes effective upon general publication or upon notice to the person concerned. If such confiscation involves property or rights which by virtue of a legal provision have been recorded in a public register, such confiscation shall be immediately recorded free of cost in such register, upon request of the Reich Commissioner (Commissioner General for Security).

(3) The Reich Commissioner for the Occupied Netherlands Territories (Commissioner General for Finances and Economic Affairs) shall decide as to the disposition of confiscated property.

Part VII

FINAL PROVISIONS

Section 20

(1) The Reich Commissioner for the Occupied Netherlands Territories (Commissioner General for Finance and Economic Affairs) shall carry out all measures necessary for the enforcement of this order. He is authorized to delegate his powers.

(2) The Reich Commissioner for the Occupied Netherlands Territories (Commissioner General for Finance and Economic Affairs) shall have general power to make legally binding final decisions, in doubtful cases arising from the application of the provisions of this order.

Section 21

This order shall become effective on the day of publication.

THE HAGUE

August 11, 1941

Reich Commissioner for the Occupied
Netherlands Territories
SEYSS-INQUART

TRANSLATION OF DOCUMENT 2113-PS

1934 PREUSSISCHE GESETZSAMMLUNG, PAGE 143

Secret State Police Department Decree for Application of the Law of 30 November 1933, Concerning the Secret State Police of 8 March 1934

ARTICLE 1

- (1) The tasks of the Secret State Police will be effected
 - a.* by the Secret State Police Department in Berlin (Art. 1 of the law of the 26th April 1933—L.R. p. 122) for the entire State territory,
 - b.* by the State Police Offices for the Provincial Police Districts [Landes Polizei Bezirke].
- (2) The “Inspecteur” (Head of the Police) conducts the general supervision of the State Police Offices, on the order and according to the instructions of the “Ministerpraesident” (Chief of the Secret State Police).
- (3) In so far as the Minister President does not otherwise order, the State Police Offices are subordinate to the Regional President and in Berlin to the Police President with whom they are in immediate working connection. The control of the State Police Offices will be effected by officials to be designated by the Minister President.
- (4) In places where there is no State Police Office, subsidiary offices can be established on the proposal of the “Inspecteur”.
- (5) The competence of the State Police Offices will cover
 - a.* matters limited in their inferences to the Provincial Police Districts,
 - b.* matters assigned to them by the “Inspecteur” of the Secret State Police without regard to the limitations of the Provincial Police District.
- (6) The local or district police matters within the sphere of the Secret State Police will be conducted at the seat of the State Police Office by the latter, in places where there are subsidiary offices of the State Police by these, and

for the rest by the Local and District Police authorities as auxiliaries to the Secret State Police.

ARTICLE 2

The receipts and expenditure of the Secret State Police will be treated separately in the Budget of the Ministry of the Interior. The task of the preparation of the Budget and the disposition of these funds belong to the Minister President.

ARTICLE 3

(1) The officers of the Secret State Police are officials of the general internal Administration. On the request of the Minister President, they will be placed at the disposal of the Secret State Police by the Minister of the Interior. The appointments of the higher administrative officials of the Secret State Police and of the Superior officials of the Criminal Police, from the Criminal Commissar upwards, will be made by the Minister President and the appointments of the other officials will be made by the “Inspecteur”.

(2) The “Inspecteur” has disciplinary powers over the officials of the Secret State Police in accordance with Art. 16, Art. 17, para. 1, No. 2 of the Officers’ Disciplinary Code of the 27th January 1932 (L.R. p. 59).

ARTICLE 4

(1) Art. 2 of the Second Decree of Application of the 26th April 1933, by the Minister of the Interior (L.R. p. 126), to the Decree of the President of the Reich concerning the protection of the German People, dated 4th February 1933, is hereby abolished.

(2) Art. 1, of the Decree of the Minister of the Interior of the 26th April 1933 (L.R. p. 127) reads as follows:

“Article 1

Besides the Police President in Berlin, in his capacity as Provincial and District Police Authority (Art. 1 and 2 of the Decree of the 2nd March 1933—L.R. p. 33), the Secret State Police Department in Berlin is also competent for the prohibition of periodicals, for the imposition of restrictions on property, on personal liberty, and on the right of union and

assembly, as well as limitations on letter, post, telegraph and telephone secrecy, in accordance with Art. 1 of the Decree of the Reich President for the Protection of the People and State of 28th February 1935 (Reichs Law Register p. 83).”

ARTICLE 5

Art. 2 of the Decree of the Minister of the Interior of the 2nd March 1933 (L.R. p. 33), concerning the supplement to the Decree of 1st October 1931 (L.R. p. 213), for the regulation of the competence of the Provincial and District Police Authorities, will be altered in such wise that, for the ordering of restrictions on personal freedom and the rights of union and assembly, as well as on limitations on letter, post and telegraph secrecy, the authorities of the Secret State Police (Art. 1, para. 1) shall also be competent, in so far as concerns their sphere of office, but that, for the regulation of restrictions on telephone secrecy, only the latter shall be competent.

ARTICLE 6

This Decree comes into force on the day of its proclamation.

THE PRUSSIAN MINISTER PRESIDENT.

Berlin, 8 March 1934

Goering.

TRANSLATION OF DOCUMENT 2115-PS

1939 REICHSGESETZBLATT, PART I, PAGE 710

Second Execution Order to the Law of the Hitler Youth (Youth Service Regulation) of 25 March 1939

On the basis of Article 4 of the law for the Hitler Youth of 1 December 1936 (RGBl I, page 993), I order:

Article 1

Length of Service

(1) Service in the Hitler Youth is honorary service to the German people.

(2) All juveniles from the 10th to the end of the 18th year of age are obliged to serve in the Hitler Youth, and namely:

1. Boys between the ages of 10 and 14 in the Junior Hitler Youth (DJ),
2. Boys between the ages of 14 and 18 in the Hitler Youth (HJ),
3. Girls between the ages of 10 and 14 in the Junior Hitler Youth (JM),
4. Girls between the ages of 14 and 18 in the German Girls League (BDM).

(3) Pupils of elementary schools, who have already completed their 10th year of age, are deferred from the service in the Hitler Youth until they leave the classes of the elementary schools.

(4) Pupils of elementary schools, who have already completed their 14th year of age, remain, until their discharge from school, members of the Junior Hitler Youth (DJ and JM).

Article 2

Educational Authority

All boys and girls of the Hitler Youth are subject to a public-legal educational authority according to the provisions of regulations, decreed by the Fuehrer and Reich Chancellor.

Article 3

Unworthiness

(1) Those juveniles are unworthy of membership in the Hitler Youth, and thus are excluded from the community of the Hitler Youth, who

1. Commit dishonorable acts,
2. Were dismissed from the Hitler Youth, before this law came into effect, because of dishonorable acts,
3. Who cause offense by their moral behavior in the Hitler Youth or in public, and thus injure the Hitler Youth.

(2) Furthermore, juveniles are excluded from membership in the Hitler Youth, as long as they are in official custody.

(3) The youth leader of the German Reich can permit exceptions.

Article 4

Unfitness

(1) Juveniles, who have been found, in the opinion of a medical officer of the HJ or of a physician, commissioned by the HJ, to be unfit or only partially fit for service in the Hitler Youth, must be relieved altogether or partially from service in the Hitler Youth according to the medical decision.

(2) The cooperation between health offices and the execution of other hygienic measures will be regulated by the youth leaders of the German Reich in agreement with the Fuehrer's Deputy and the Reich Minister of the Interior.

Article 5

Deferment and Exemption

(1) On request of the legal guardian or the HJ leader concerned, juveniles can in each case be deferred or exempted from service in the Hitler Youth up to the duration of one year, if they:

1. Are retarded considerably in their physical development,
2. In the judgment of the school principal cannot fulfill the demands of school without the exemption.

(2) In individual cases, a request for deferment or exemption from service in the Hitler Youth can also be granted, when the conditions of Part 1 do not exist, but if there are other urgent reasons, which justify the temporary or permanent absence of a juvenile from service in the Hitler Youth.

(3) The youth leader of the German Reich will issue further regulations.

Article 6

German Subjects of non-German National Origin

(1) Juveniles of German citizenship, whose both parents or father belong according to their own statement to the Danish or Polish ethnic groups, are to be exempted from membership in the Hitler Youth on request of those who are charged with their care. If several persons have the right and duty to care for the juvenile person, and not everyone of them makes the request, the juvenile may be exempted. Illegitimate juveniles may be exempted from

membership in the Hitler Youth on request of those who are charged with their care, if the mother belongs according to her own statement to the Danish or Polish racial groups; they are to be exempted if the guardian agrees to the request.

(2) The request is to be made to the lower administrative authorities. The higher administrative authority will investigate whether there is an acknowledgment of membership in the Danish or Polish ethnic group. More specific administrative rules will be issued by the Reich Minister of the Interior in agreement with the youth leader of the German Reich.

(3) The Reich Minister of the Interior exercises the supervision over youth organizations of the Danish or Polish ethnic groups. New foundations need his permission.

(4) No compulsion may be exercised by anyone toward the joining of a youth organization of the Danish or Polish ethnic groups.

Article 7

Racial Requirements

Jews (Article 5 of the 1st proclamation to the law of Reich citizenship of 14 November 1935, RGBI I, page 1333) are excluded from the membership of the Hitler Youth.

Article 8

German Subjects residing Abroad

Juveniles of German citizenship, who reside abroad, and who are only temporarily in the German Reich, are not obliged to serve in the Hitler Youth.

Article 9

Registration and Induction

(1) All juveniles are to be registered with the respective Hitler Youth, leader for induction into the Hitler Youth before 15 March of the calendar year during which they complete their 10th year of age. If a juvenile fulfills the conditions for acceptance into the Hitler Youth (for instance release from official custody, receipt of citizenship, permanent residence in the German

Reich) after this time, the juvenile is to be registered within one month after fulfillment of the conditions named.

(2) The legal representative of the juvenile is liable for the registration.

(3) Induction into the Hitler Youth takes place on 20 April of every year.

(4) The youth leader of the German Reich will issue more specific regulations about registration and induction into the Hitler Youth.

Article 10

Discharge

(1) The following will be discharged from the Hitler Youth:

1. Juveniles after the expiration of the period, fixed in Article 1, and girls who marry,

2. Juveniles concerning whom it is established that they are excluded from membership in the community of the Hitler Youth according to the regulations of this law.

(2) Article 3, part 3 apply accordingly to No. 2 and 3.

(3) Male and female leaders remain members of the Hitler Youth after the period fixed in Article 1 has expired. Their discharge will take place by special regulations. They are to be discharged on their request.

Article 11

Leaves during Membership in the Hitler Youth

(1) The membership in the Hitler Youth becomes inactive for the duration of active military service.

(2) Members of the Reich labor service may not be active in the service of the Hitler Youth.

Article 12

Punitive Regulation

(1) A legal guardian will be punished with a fine up to 150 marks or with confinement if he intentionally acts against the provisions of Article 9 of this law.

(2) Whoever malevolently prevents or attempts to prevent a juvenile from serving in the Hitler Youth, will be punished with prison and fine, or with one of these punishments.

(3) Legal punitive action will only be taken on request of the youth leader of the German Reich. The request can be withdrawn.

(4) Juveniles can be forced by the respective local authorities, to fulfill the duties with which they are charged on the basis of this law, and of the implementative regulations issued for it.

Article 13

Final Regulations

For juveniles of the age classes 1921 to 1929, who have not belonged to the Hitler Youth up to now, the youth leader of the German Reich will fix the time of their registration and induction into the Hitler Youth.

Berlin, 25 March 1939

The Fuehrer and Reich Chancellor
Adolf Hitler

The Deputy of the Fuehrer
R. Hess

The Reich Minister and Chief of the Reich Chancellery
Dr. Lammers

TRANSLATION OF DOCUMENT 2118-PS

1941 REICHSGESETZBLATT, PART I, PAGE 547

Police Decree on Identification of Jews 1 September 1941

In agreement with the Reichs-Protector for Bohemia and Moravia the following law based on the regulations regarding the Police-decrees of the Ministers of the Reich from 14 November 1938 (Reichsgesetzblatt I, page 1582) and on the decree regarding the right of establishing of law [Rechtsetzungsrecht] in the protectorate Bohemia and Moravia from 7 June 1939 (Reichsgesetzblatt I, page 1039) is herewith published:

Article 1

(1) Jews (article 5 of the first decree regarding the law on German citizenship of 14 November 1935—Reichsgesetzblatt I, page 1333) who have completed their sixth year of life shall be prohibited to appear in public without wearing a Jewish star.

(2) The Jewish star is a yellow piece of cloth with a black border, in the form of a six pointed star of the size of a hand with the inscription “Jew”. It shall be worn visible, sewed on the left side of the chest of the garment.

Article 2

Jews are prohibited to:

- a.* leave the area of the community in which they live without written permission of the local police;
- b.* to wear medals, ribbons and other insignia.

Article 3

Article 1 & 2 shall not apply to:

- a.* a husband living in a Jewish mixed marriage if children, born from this marriage who are not considered as Jews exist. This also applies if the marriage is dissolved or if the only son was killed in the present war.
- b.* to a Jewish wife in a childless mixed marriage, for the duration of the marriage.

Article 4

(1) He who violates articles 1 & 2 willingly or carelessly shall be punished with a fine up to 150 Reichsmark or with imprisonment not to exceed 6 weeks.

(2) Further protective measures on the part of the police as well as rules according to which a more severe punishment is permitted remain unaffected.

Article 5

This decree shall also be valid within the borders of the protectorate of Bohemia and Moravia with the specifications that the Reichs-Protector in

Bohemia and Moravia shall adopt the rules of article 2 *a*, to the local situation in the protectorate of Bohemia and Moravia.

Article 6

This Police-law shall be valid two weeks after publication.

Berlin, 1 September 1941.

For the Reich Minister of the Interior.
Heydrich

TRANSLATION OF DOCUMENT 2119-PS

1939 REICHSGESETZBLATT, PART I, PAGE 485

Decree of the Fuehrer and Reich Chancellor concerning the Protectorate of
Bohemia and Moravia, March 16, 1939

The Bohemian-Moravian countries belonged for a millennium to the living space of the German people. Violence and want of judgment have torn them arbitrarily from their old, historic environment and finally created, through their inclusion in the artificial structure of Czechoslovakia, a center of continuous unrest. Year after year the danger increased that out of this area—as once before in the past—would arise a new, stupendous menace to European peace. For the Czechoslovak State and its rulers had not succeeded in organizing in a reasonable manner the coexistence of the national groups arbitrarily comprised within it, and thus they failed to awaken and to preserve the interest of all concerned in the maintenance of the state common to them. Thereby this state has demonstrated its inherent inability to exist and therefore now has fallen into actual dissolution.

The German Reich cannot tolerate everlasting disturbances in these areas, areas so decisively essential not only to its own peace and security but also to the general welfare and the general peace. Sooner or later the German Reich would have had to suffer the most serious consequences because it is the power which is the most vitally interested and concerned by history as well as by geographical position. It is therefore only an act of compliance with the law of self-preservation if the German Reich is resolved to take decisive action for the reestablishment of the foundations of a Central European Order based on reason and to resort to measures impelled by this

aim. For the millennial this historic past of the German Reich has proven that it alone is chosen by virtue of its greatness and the qualities of the German people to solve this problem.

Imbued with the earnest desire to serve the true interests of the nations settled in this living space, to safeguard the national life of the German and Czech nations, to promote peace and the social welfare of all, I therefore order, in the name of the German Reich, the following as foundations on which the inhabitants of these areas can live side by side in the future:

Article 1. (1) The territories of the erstwhile Czechoslovak Republic, occupied by the German Armies in March, 1939, are hereby incorporated into the territory of the Greater German Reich and are placed under its protection as the "Protectorate of Bohemia and Moravia."

(2) In so far as the defense of the Reich requires it, the Fuehrer and Reich Chancellor may issue, for specified areas of these territories, orders at variance with these articles.

Article 2. (1) The residents of the Protectorate of German origin are hereby declared to be German nationals and German citizens, in accordance with the provisions of the Reich Nationality Code [Reichsbürgergesetz] of September 15, 1935 (RGBl I, p. 1146). Therefore, the provisions for the protection of German blood and German honor shall apply to them. They shall be subject to the jurisdiction of German courts.

(2) The other residents of Bohemia and Moravia are hereby declared to be citizens of the Protectorate of Bohemia and Moravia.

Article 3. (1) The Protectorate of Bohemia and Moravia is declared to be autonomous and shall govern itself.

(2) It shall exercise the sovereign rights to which it is entitled within the framework of the Protectorate in conformity with the political, military, and economic interests of the Reich.

(3) The Protectorate shall exercise these sovereign rights through its own political agencies, authorities, and officials.

Article 4. The head of the autonomous administration of the Protectorate of Bohemia and Moravia shall be entitled to the protection and the full honors of the head of a sovereign government. The head of the Protectorate must

enjoy, in the exercise of his high office, the confidence of the Fuehrer and Reich Chancellor.

Article 5. (1) The Fuehrer and Reich Chancellor will appoint as a guardian of the interests of the Reich a "Reich Protector of Bohemia and Moravia." His official residence shall be in Prague.

(2) It shall be the duty of the Reich Protector, as representative of the Fuehrer and Reich Chancellor and as the agent of the Government of the Reich, to assure compliance with the political instructions issued by the Fuehrer and Reich Chancellor.

(3) The members of the government of the Protectorate shall hold office subject to confirmation of the Reich Protector. A confirmation may be later revoked.

(4) The Reich Protector may demand information concerning all acts of the government of the Protectorate and may offer his counsel to the government. He may protest against measures which may be harmful to the Reich, and, in cases of emergency, may take all steps necessary to the common welfare.

(5) The publication of statutes, orders, and other general rules and regulations, and the enforcement of administrative measures and execution of judicial decisions which have become final, shall be suspended upon notice of protest given by the Reich Protector.

Article 6. (1) The foreign affairs of the Protectorate, especially the protection of its citizens abroad, shall be entrusted to the Reich. The Reich shall take charge of the foreign affairs in such a manner as shall conform with the common interest of both countries.

(2) The Protectorate shall have a representative with the Government of the Reich officially designated as Minister.

Article 7. (1) The Reich shall extend military protection to the Protectorate.

(2) For the purpose of extending such protection the Reich shall maintain garrisons and military establishments in the Protectorate.

(3) The Protectorate may establish its own units for the maintenance of home security and protection. The Government of the Reich shall determine

the form of organization, the number of the forces, and the armament to be employed.

Article 8. The Reich shall directly supervise all traffic, posts, and telegraphs.

Article 9. The Protectorate shall form part of the German customs area and shall be subject to its customs authority.

Article 10. (1) In addition to the Reichsmark the Krone shall constitute legal tender until further notice.

(2) The rate of exchange for the two currencies shall be determined by the government of the Reich.

Article 11. (1) The Reich may issue orders having the force of statutes for the Protectorate, in so far as required by the common welfare of both of them.

(2) In so far as there is a common need, the Reich may take over branches of the administrative services and may establish the necessary Reich agencies in their stead.

(3) The Government of the Reich may take all measures necessary for the maintenance of security and order.

Article 12. The laws and statutes presently in effect in Bohemia and Moravia shall remain in effect unless incompatible with the purposes of protection by the German Reich.

Article 13. The Reich Minister of the Interior shall, in agreement with the Reich ministers concerned, issue all rules and regulations, general and administrative, required for the enforcement and implementation of this decree.

Prague, March 16, 1939.

Adolf Hitler, Fuehrer and Reich Chancellor
Frick, Reich Minister of the Interior

von Ribbentrop, Reich Minister of Foreign Affairs
Dr. Lammers, Reich Minister and Chief
of the Reich Chancellery

TRANSLATION OF DOCUMENT 2120-PS

1938 REICHSGESETZBLATT, PART I, PAGE 1342

Law on Passports of Jews on 5 October 1938

Based on the law on passport, alien police and registration affairs as well as on identification affairs of 11 May 1934 (Reichsgesetzblatt I, Page 589) the following is ordered in agreement with the Reich Minister of Justice:

Article 1

(1) All German passports of Jews (Article 5 of the first law to the Reich citizenship of 14 November 1935—Reichsgesetzblatt I Page 1333), who reside in the Reich area, become invalid.

(2) The holders of the passports, mentioned in Section (1), are obliged to hand in these passports to the passport authority within Germany, in whose district the holder of the passport has his permanent residence or in lieu of such sojourns temporarily, within 2 weeks after this law becomes effective. For Jews who are staying abroad at the time of publication of this law, this period of two weeks begins with the day of their re-entry into the Reich area.

(3) The passports, made out to be valid abroad, will become valid again if they are marked with a sign designated by the Reich Minister of the Interior, which will mark the holder as a Jew.

Article 2

Whoever carelessly or willfully does not comply with the obligation described in article 1, section 2 will be punished with prison and fined up to 150 marks or with either one of them.

Article 3

The law becomes effective with its promulgation.

Berlin, 5 October 1938.

The Reich Minister of the Interior
By order
Dr. Best.

TRANSLATION OF DOCUMENT 2124-PS

1938 REICHSGESETZBLATT, PART I, PAGE 594

Decree Introducing the Nurnberg Racial Laws into the Land of Austria 20
May 1938

Pursuant to Article II of the law relating to the reunion of Austria with the German Reich, 13 March 1938 (Reichsgesetz Bl. I, p. 237), the following is ordered:

ARTICLE I

LAW RELATING TO CITIZENSHIP OF THE REICH

Section 1

The following are applicable to the Land of Austria:

1. The Law Relating to Citizenship of the Reich of 15 September 1935 (Reichsgesetz Bl. I, p. 1146).
2. Section 2, Sub-Section 2, Section 4, Sub-Sections 1, 3 and 4, Sections 5 and 6, Sub-Section 1, and Section 7 of the First Decree under the Law Relating to Citizenship of the Reich of 14 November 1935 (Reichsgesetz Bl. I, p. 1333).

Section 2

The effective date of Section 1, Sub-Section 2, of the Reich Citizenship Law will be determined by the Reich Minister of the Interior.

Section 3

The elimination of Jews from public offices which they hold on the effective date of this decree will be specially regulated.

Section 4

For the application of Section 5, Sub-Section 2, of the First Decree under the Reich Citizenship Law, 16 September 1935 will be considered the effective date of the Reich Citizenship Law in Austria also, and 17 September 1935 will be considered the day on which the law for the Protection of German Blood and Honor came into effect.

ARTICLE II

THE LAW FOR THE PROTECTION OF THE BLOOD

Section 5

The Law for the Protection of German Blood and Honor of 15 September 1935 (Reichsgesetz Bl. I, p. 1146) and the First Decree for the implementation of this Law of 14 November 1935 (Reichsgesetz Bl. I, p. 1334) are applicable to the Land of Austria.

Section 6

Section 3 of the Law for the Protection of the Blood will become effective on 1 August 1938.

Section 7

For the application of Section 12, paragraph 3, of the First Decree for the implementation of the Law for the Protection of the Blood, the 16 September 1935 is also to be considered the effective date of the Law for the Protection of the Blood in Austria.

Section 8

1. A marriage cannot be entered into unless it is proved by the testimony of the local Bürgermeister of the bride's permanent residence that there is no obstacle to the marriage according to the provisions of the Law for the Protection of the Blood and of the First Decree for the implementation of this law. If the bride has no permanent residence in Austria, the competence of the Bürgermeister is determined by the further Provisions of Section 3 of the General Administrative Procedure Law (Austrian BG. BL. #274/1925).

2. If the Bürgermeister has any doubt about the existence of a marriage obstacle in the sense of Section 6 of the First Decree for the implementation of the Law for the Protection of the Blood, he must demand a Marriage Fitness Certificate from the bride and groom of the official physician.

Section 9

In the application of Section 15, sentence 2, of the First Decree for the implementation of the Law for the Protection of the Blood, the former possession of Austrian citizenship is equivalent to the former possession of German citizenship.

ARTICLE III

PROCEDURE REGULATIONS

Section 10

In annulment proceedings, the provisions of the Austrian Law relating to the jurisdiction and the procedure of the courts in lawsuits relating to the annulment of marriages are applicable, subject to the following limitations:

1. The suit is to be made against both spouses. If the public prosecutor or one of the spouses files an appeal, then in the first case both spouses and in the second case the public prosecutor and the other spouse are to be considered as adverse parties.
2. The regulations relating to compulsory representation by counsel are not applicable to the public prosecutor.
3. If the public prosecutor is defeated, the Treasury is obliged to refund the expenses incurred by the spouses, according to Sections 40 et seq., of the Austrian Civil Law.
4. No counsel for the defense of the marriage bond will be appointed.
5. The suit can only be filed, if both spouses are alive. If one of the spouses should die before the sentence is executed, the case is to be considered in the main as closed.

Section 11

The court of first instance has jurisdiction over violations of Section 5, Sub-Sections 1 and 2, of the Law for the Protection of the Blood.

ARTICLE IV

CONCLUDING PROVISIONS

Section 12

If regulations introduced into Austria by this decree cannot be applied according to the letter, they are to be applied according to the spirit.

Section 13

This decree comes into effect on the day after its promulgation.

Berlin, 20 May 1938.

The Reichsminister of the Interior
Frick

The Deputy of the Fuehrer
Hess

The Reich Minister for Justice
per Dr. Schlegelberger.

PARTIAL TRANSLATION OF DOCUMENT 2149-PS

SECRET

[STAMP:]

German Armistice Delegation
14 December 1942
Del. W. 7903
Berlin, 11 December 1942

Foreign Office,
No. Ha Pol 7563 g

The enclosed statement of the Reichsbank, Department for National Economy [Volkswirtschaftliche Abteilung], of the capability of France is submitted for your information.

To this the Reichsbank remarks as follows:

“The statement deals solely with the effect of an increase of the occupation expenses through levying on the French budget in regard to economy and currency.

“It is an entirely different question, however, how to act in practice in the face of the imperative military necessities.

* * * * *

“The Armed Forces’ money requirements must be supplied in any case—either through the budget of the French Government or in the form of an advance from the issuing bank or in any other form of financing; otherwise it would be necessary to issue

Reich Credit Bills [Reichskredit Kassenscheine], which is undesirable.”

To:

The German Armistice Delegation for Economy in Paris

per
(signed:) DUMONT
[pencil notation:]

The German Embassy *in Paris*

Occup. SECRET

—each separate—

Copy to be attached to Ha Pol. 7563/42 g

Berlin, 7, December 1942

SECRET:

German Reichsbank

Department for National Economy

Concerning the question of an increase of French contributions to the
Occupation expenses.

Altogether the burden for France hitherto as an effect of the Armistice is
nearly 18.5 billion marks or 370 billion francs.

* * * * *

France therefore has transferred the greatest part of her payments (17.6
billion marks) in the form of goods and labor.

* * * * *

Anyhow the conclusion is obvious that the French National Economy has
been taxed more heavily since the Armistice in June 1940 than Germany
was after the World War.

* * * * *

Since the French contributions for the occupation expenses could not be covered by taxes, they had to be financed in part from the proceeds of the issuing of treasury bills, but mostly by credit from the bank of issue.

* * * * *

Whether the economic exploitation of France could be intensified by raising the daily contributions to the occupation expenses from 15 to 25 million marks for the rest of the War seems to us—as far as we can judge from here—rather doubtful for the following reasons:

* * * * *

Under these circumstances the French Government would be obliged to utilize the credit of the bank of issue to still greater extent than hitherto in order to finance the demands for increased occupation expenses.

* * * * *

Inflationary rises in prices and wages in France would cause very grave disadvantages for Germany.

* * * * *

Such a measure also seems very problematical in regard to the goods [gueterseite] in French national economy.

* * * * *

With the loss of a large part of French imports, industrial production as well as the capacity of France to supply us with food will have to be further reduced in the future. Such a great weakening of French economic power is to be reckoned with that it does not seem to make much sense to raise the expenses of the occupation.

* * * * *

An increase in French contributions to the occupation expenses could be advocated, however, only if there were a corresponding chance of raising her production ability [Sachleistungen].

TRANSLATION OF DOCUMENT 2153-PS

NATIONAL SOCIALIST PARTY CORRESPONDENCE

NSK No. 358

30 March 1933

Defeat the Enemy of the World!

By Julius Streicher, head of the Central Committee for defense against Jewish horror and boycott agitation.

All Judah wanted the battle, it shall have it! It shall have it until it realizes that the Germany of the Brown Battalions is not the Germany of cowardice and of surrender: All Judah shall have the battle until victory is ours.

National Socialists!

Defeat the enemy of the World! And if the World were full of devils, we must still succeed!

TRANSLATION OF DOCUMENT 2154-PS

NATIONAL SOCIALIST PARTY CORRESPONDENCE

NSK No. 359

31 March 1933

Additional orders of the Central Committee for defense against Jewish horror and boycott agitation.

NSK. The following additional orders are issued by the Central Committee for defense against Jewish horror and boycott agitation:

Order No. 3

In enforcing the defensive boycott, the closing of Jewish business or the use of violence against their customers is to be avoided under all circumstances.

If such an establishment closes its doors voluntarily, no higher power is involved, and the proprietors have no excuse for discharges without notice or for the refusal to pay wages and salaries or for reductions.

Order No. 4

Numerous reports are received by the Central Committee saying that Jewish proprietors are transferring their establishments to German figureheads in

order to avoid the effects of the defensive propaganda.

Therefore it is decreed that: Establishments transferred to German figureheads by the Jewish proprietors after 28 March 1933 will be considered as Jewish establishments for the duration of the defensive boycott.

Signed: Streicher

Order No. 5

Concerning the defensive action against the Jewish horror and boycott agitation beginning Saturday, 1 April at 10 AM, the local action committees are again reminded to see to it most strictly:

1. That any use of force is to be avoided, establishments cannot be closed by the committee or by its agents. On the other hand, closing by the proprietor himself is not to be prevented.

Entering of Jewish establishments is strictly forbidden to SA or SS members or other agents of the action committee.

The only duty of the defensive guards is to inform the public that the proprietor of the establishment is a Jew.

2. That boycotting of establishments is refrained from if it has not been definitely proved that the proprietor is a Jew.

3. That provocateurs cause no property damage which is counter to the purpose of the defensive action.

4. That the action committee be kept informed of all details of the course of the defensive action by the SA and SS controllers so as to be constantly well posted.

5. Posters with provocative contents are forbidden.

Central Committee for defense against
the Jewish horror and boycott agitation.
Streicher.

TRANSLATION OF DOCUMENT 2156-PS

NATIONAL SOCIALIST PARTY CORRESPONDENCE

The central committee for defense against Jewish horror and boycott
agitation

NSK. The central committee for defense against Jewish horror and boycott agitation announces:

Julius Streicher, member of the Reichstag, commissioned with the task of creating and directing the central committee for defense against Jewish horror and boycott agitation, began his work on Wednesday, 29 March. As presiding deputy of the central committee he appointed Karl HOLZ (Nurnberg), the editor of the anti-Semitic weekly "Der Stuermer". The other members of the central committee are:

Robert Ley, Reichstag member, staff leader of the Fuehrer, in the supreme leadership of the party organization.

Adolf Huehnlein, Major, Reichstag member, deputy chief of staff of the S. A.

Heinrich Himmler, Reichstag member, Reich Fuehrer of the S. S.

Reinhold Muchow, deputy head of the National Socialist factory cell leadership [Nationalsozialistische Betriebszellenleitung].

Hans Oberlindober, Reichstag member, head of the National Socialist list organization for the care of war victims.

Jakob Sprenger, Reichstag member, head of the National Socialist league of public officials.

Walter Darre, Reichstag member, head of the agrarian-political Dept. of the N. S. D. A. P.

Dr. von Renteln, Reichstag Fuehrer of the fighting league [Kampfbund] of the trade middle class.

Dr. Hans Frank II, Reichstag member, head of the National Socialist jurist's league.

Dr. Gerhard Wagner, head of the National Socialist league of physicians.

Willy Koerber, deputy of the Reich youth leader.

Dr. Achim Gercke, head of the National Socialist information department of the Nazi party executive board [Reichsleitung].

The office of the central committee for defense against Jewish horror and boycott agitation is located in Munich, Hotel "Reichsadler", 32 Herzog Wilhelm Street, Room 56. (Telephone Munich 90-0-12.)

PARTIAL TRANSLATION OF DOCUMENT 2163-PS

NATIONAL SOCIALIST YEARBOOK 1941

[Nationalsozialistisches Jahrbuch 1941]

Editor: Party Director for Organization of the NSDAP Dr. Robert Ley

The SS During the War-Year 1939/40.

In the foreground of the work and the battle of the SS during the war year 1939/40 stands the fight of the Waffen-SS in the Poland-Campaign and in the West, the matter-of-fact-employment of the leaders and men of the General-SS in all sections of the Armed Forces and the enormous performances of SS-Leaders and SS-men in the course of the work, which the Fuehrer imposed on the Reichsfuehrer-SS in his capacity as "Reich Commissioner for the Consolidation of German Nationality" by order of 7th October 1939.

As the Reichsfuehrer-SS said: "Everyone of us knows that he is a representative of the Black Corps and has to do honor to this community by the best possible performance of his station, whether he is employed on the field of battle in the divisions of the Armed-SS, or whether he fights as an officer or soldier of the Army, whether he has been detailed as unit or part of the police, and serves the inner order of the Reich, or whether he fights against the enemies of the State as a member of the Security Service, or whether he labors in the framework of the historic mission, which has been carried over to the Reichsfuehrer as Reich-Commissioner for the Consolidation of German Nationality, or whether he is professionally with

the home-front. The revolutionary spirit of fighting and sacrifice of this National-Socialist formation, its daily employment and hereby the best and most severe selection have determined its direction and its constant unique way.

The firm believing tie to the great blood stream of the people, the knowledge of the fulfillment of the deepest German longing by service to the people, this welding for a firm inner unity of solidarity which the SS could accomplish in the course of hard and fully filled years were the suppositions for the now following, largely increased missions of the Black Corps.” [Gunter d’Alquen].

The Armed-SS-divisions, a garrisoned organization, which have been constructed in accordance with the experiences of the SS and with the National-Socialist principles of selection, education, and formation of the will and leadership have been fully materialized during the winter 1938/39. They are at the exclusive disposal of the Fuehrer.

Already in March 1939 the SS-Emergency Force was required in this new form for the pacification of the Protectorate Bohemia-Moravia.

By decree of the Fuehrer they were committed in the framework of the Army.

Parts of the SS-Emergency Force crossed the German-Czech border together with units of the Army Groups 3 and 5, in the early hours of 15th March 1939. During the preceding night Army-units and the Leibstandarte “Adolf Hitler” had occupied Maehrisch-Ostrau and Wirkowitz. The German population in these localities was seriously threatened by Chauvinist Czechs. In the early morning of the same day 3 trucks with SS-leaders arrived at the Police Head Office in Prague and contacted the local security-officials.

The commitment of the SS-Emergency-Force in restoring order within collapsing Czechoslovakia, was their trial of efficiency in the new motorized form. After their return from this action a new order of the Fuehrer requested the immediate enlargement of the present SS-Emergency-Force into a motorized division. At once, new units were formed. As speedily as possible the SS-Artillery Regiments, the SS-Anti-

Tank Battalions, the SS-Anti-Aircraft Machinegun Battalion and the SS-Reconnaissance Squadrons were formed.

The training of future leaders was undertaken by the Junker schools at Tolz and Braunschweig in which the selected SS men were trained for a soldierly and politically perfect Fuehrer Corps under the harshest conditions.

The aim of the summer training 1939 was the training of the new groups to make a troop which had grown to cope with any situation.

On 22nd March 1939 the Memel-land returned to the Reich, on the basis of an agreement with Lithuania. Also the SS had taken part in the liberation of the old German province, especially the Eastern-Prussian SS.

In the liberation of Danzig in August 1939 the SS-Home-Guard especially excelled.

When in August 1939 the Polish despotism grew and acts of violence increased day by day, the quickly formed SS-Home-Guard entered the scene.

The SS-Home-Guard formed for the first time in Danzig on 18th August 1939, at which time they received their colors from District Leader [Gauleiter] Forester. The commitment of the SS-Home-Guard made Danzig ready for defense and it became possible to proclaim the District-Leader of Danzig to become Head of the State of the Free City of Danzig in opposition to the Polish threats. This was done in accordance with the "Law for the Lifting of Distress from the People and State" to be effective as of 23rd August 1939. The political department of the Danzig President of the Police was at the same time placed under the Senate under the title "Secret State Police Danzig", as an independent department. A further ordinance created the authority to appoint State-Commissioners for essential concerns.

When the Fuehrer gave the order that on 1st September the German sword should be wielded against Polish despotism, in order to break force by force, the SS-Home-Guard was employed in this battle.

They have proved their courage especially in the fighting for Dirschau and Gdynia and in defeating the Polish Army of the Corridor.

During the Polish Campaign, formations of the SS-Emergency-Force attached to the Army often fought shoulder to shoulder with units of the

Army at decisive places. The report which the High Command of the Wehrmacht made public on the 23rd September 1939 regarding the Polish Campaign pays special tribute to this fact.

How much courage and daring commitment the leaders and men have shown during the Polish Campaign, is proven by the great number of Iron Crosses awarded to officers and men of the Waffen-SS in the Polish Campaign for gallantry in action.

Iron Crosses First Class were awarded to 26 officers and 1 non-commissioned officer, the Iron Cross Second Class to 241 officers, 227 non-coms, and 203 men.

Numerous reports contain the heroic actions of the Waffen-SS in the war against the Allied Western Powers, especially the most daring advance of the SS-Regiment "Der Fuehrer". Reports about the actions of the Waffen-SS in this war shall be rendered when final victory has been won.

By decree of 1st August 1939 (RGBl I. p. 1335) the Fuehrer amplified the provisions of the Law concerning the Care and Welfare of former Members of the Armed Forces, dated 26th August 1938, making them applicable to former members of the SS-Junker schools, the SS-Death-Head-Units and the strengthening of the SS-Death-Head-Units and their bereaved.

The provisions of the Law concerning the Care and Welfare of Members of the Armed Forces are therefore applicable to all armed units of the SS.

The Reich-Minister for the Interior issued, in agreement with the Reich-Finance-Minister and the Chief of the High Command Armed Forces, an executionary decree to the decree of the Fuehrer, dated 3rd August 1939 (RGBl I. p. 1342). By this decree the Care and Welfare Office of the SS, created originally for the SS-Emergency-Force, was commissioned to carry out the care and welfare of all remaining armed units of the SS. A further Care-and-Welfare-Office-SS was created, which is subordinate to the Main-Welfare-Office-SS.

On the basis of an agreement between the Reichs-Fuehrer-SS and Chief of the German Police and the Chief of the High Command of the Wehrmacht—the Reich-Finance-Minister consenting—the whole care and welfare of former members of the Sudeten-German Free Corps and their bereaved has

been designated to the Care and Welfare authorities of the SS to become effective immediately.

On 7th October 1939 the Reichsfuehrer-SS and Chief of the German Police was, by decree of the Fuehrer, appointed "Reich-Commissioner for the Consolidation of German Nationality" with the duty to evacuate the persons of German race from the Baltic countries and from the former Polish territories of the Western Ukraine and White Russia. This is to be done in accordance with the National-Socialist ideology stating that common blood and race should have a common home as living space. It was to be his further duty to begin the racial consolidation and resettlement of the reclaimed German Eastern territories.

The SS takes a decisive part in this historic task and its solution.

The persons of German race from Galizia, Wolhynia, and the Narew area have been settled without loss or friction in full agreement with the Russian authorities.

For some time now the Reichsfuehrer-SS has had at his disposal an office under the management of SS-Obergruppenfuehrer Lorenz, the "National German Central Office" [Volksdeutsche Mittelstelle-VM]. This office has the task of dealing with National German questions and the raising of required support.

In addition to the VM the Immigration Center Offices [Einwanderungszentralen, EWZ.] with the Chief of the Security Police and the Security Service of the SS (under the management of SS-Obersturmbannfuehrer Dr. Sandberger) and the Settlement Staff of the Reich-Commissioner were created, which, in cooperation with the NSV [National Socialist Welfare Organization] and the Reich-Railroad Agency, took charge of the Migration of National Germans.

Numerous SS-leaders and SS-men helped with untiring effort in bringing about this systematic migration of peoples, which has no parallel in history.

There were many authoritative and administrative difficulties which, however, were immediately overcome due to the unbureaucratic working procedure. This was especially guaranteed above all by the employment of SS leaders.

The procedure called “Durchschluesung” [literally passing through the lock] takes 3 to 4 hours as a rule. The resettler is being passed through 8 to 9 offices, following each other in organic order: registration office, card-index office, certificate and photo-office, property office, and biological hereditary and sanitary test office. The latter was entrusted to doctors and medical personnel of the SS and of the Armed Forces. The SS-Corps Areas [Oberabschnitte] Alpenland, North-West, Baltic Sea, Fulda-Werra, South and South-East, the SS-Main Office [SS-Hauptamt], the NPEA [National Political Education Institution] Vienna, and the SS-Cavalry-School in Hamburg provided most of the SS-Officer and SS-Non-Coms who worked at this job of resettlement.

Up to 30th April 1940, the Immigration Center dealt with 149,513 persons. Of these 56,777 were Germans from the Baltic countries, 92,736 Germans from Galizia, Wolhynia and the Narew-provinces.

While the resettlement of the Germans from Galizia and Wolhynia is now in full swing, the resettlement of the Germans from Esthonia and Latvia has nearly been finished. Of these resettling Baltic Germans, 37,134 persons have been resettled in the Warthe-district, a small number in the district Danzig-Western Prussia, and in the Reich proper.

The statistics office of the Immigration Center dealt with 107,882 migraters from Galizia, Wolhynia and the Narew-area up to 23rd March 1940.

The settlement, establishment and care of the newly-won peasantry in the liberated Eastern territory will be one of the most cherished tasks of the SS in the whole future.

The Security Service [SD] of the SS is a thorough political intelligence service, created in accordance with the principles of racial and ideological selection as required by the SS; it became the real security service for the SS, the Party and the Reich. It has proved its significance during the war year of 1939/40.

The Security Service is organized in Corps Areas and division areas in close similarity to the General-SS; its Chief is SS-Gruppenfuehrer Heydrich, who is at the same time Chief of the Security Police. Part of the duties of the Security Service is to watch for any changes in the manner of working and the tactics of the enemy and to protect the people against any kind of

sedition. Leaders and men of the Security Service work in close cooperation with the German Security Police, whose members have the duty also to investigate and to fight against any nationally hostile intentions in the provinces of the Protectorate and the newly won Eastern territory, to evaluate and to gather the results of the uprisings.

The Fuehrer also assigned missions of police nature during the war year to the SS aside from those on military matters. Because of its ideological and political education the spirit of the SS is alive in the German Police.

Thus a front has been created in which the State and the Party, the official and the soldier not only cooperate in the defense against political and criminal enemies of the Nation, but also as protectors of the people. The Police, whose new members are recruited out of the ranks of the SS, has become friend and helper of the community of the people.

The Chief of the SS-Main Office SS-Obergruppenfuehrer Heissmeyer, was appointed Inspector of the National-Political Education Office. Thereby it has been ensured that the selected men of the SS-NPEA (National Political Education Office) are being educated exactly in the spirit of the SS. The educators and teachers of the NPEA are exclusively SS officers and non-coms.

The SS takes its share in the work in every sphere of racial life, according to the motto given to us by the Fuehrer as our obligation: "Our Honor means Faithfulness".

Our work and fight continues in the spirit of the proclamation of the Reichsfuehrer SS: "Thus we have fallen in and are marching forward, in accordance with unchangeable laws, as a National Socialist soldierly order of men of Nordic designation and as a sworn community of their tribes, towards a far future. We wish and believe that we are not only the grandchildren fighting better to the end, but that we shall be, further, the ancestors of yet unborn generations, which are necessary for the eternal life of the German and Germanic People."

TRANSLATION OF DOCUMENT 2164-PS

NATIONAL SOCIALIST YEARBOOK 1940 [Nationalsozialistisches
Jahrbuch 1940]

Editor: Dr. Robert Ley, Pp. 365-371

The SS (The Schutzstaffeln of the NSDAP)

The SS since the Reichsparteitag 1938

Between today and the Reichsparteitag 1938 there is a span of time which, saturated with important political events, was rich in missions and commitments for the SS as a whole. Only three of those occurrences of special significance are mentioned:

the incorporation of the Sudetenland into the Reich,
the founding of the Protectorate Bohemia-Moravia,
the return of Memel to the greater Germany.

When the march into the liberated provinces of the Sudetenland began on that memorable 1 October 1938, the Emergency Force [Verfuegungstruppen] as well as the Death Head units [Totenkopfverbaende] were along with those in the lead. Already previously they have proven themselves in the fulfillment of their assigned missions in every respect and thereby contributed to the results. However, not only the garrisoned parts of the SS were employed. Also the General SS [Allgemeine SS] were brought forth for special missions. Thousands of younger and older SS comrades were employed for the strengthening of the Police and for the guarding of Concentration Camps and have faithfully fulfilled their duty throughout the weeks.

The 15th of March 1939 brought a similar utilization of the SS when it served to establish order in the collapsing Czechoslovakia. This action ended with the founding of the protectorate Bohemia-Moravia.

Only a week later, on the 29th March 1939, Memel also returned to the Reich upon basis of an agreement with Lithuania. Again it was the SS, here above all, the East Prussian SS, which played a prominent part in the liberation of this province.

Aside from these illustrated commitments, the cordon-service [Absperrendienst], which is included among the well known missions of the SS, goes on. It placed increased requirements on the Berlin SS as a result of visits by the Italian Foreign Minister, Count Ciano, (21 to 23 May 1939), the Prince regent Paul of Yugoslavia (1 to 5 June 1939), and the return of

the Condor Legion (6 June 1939). Also these missions were readily fulfilled in cooperation with other formations of the movement.

It is here especially emphasized that the SS did justice to the demand required of it in all cases and have proven themselves worthy of the confidence of the Fuehrer.

Naturally the territorial expansion of the Reich also brought along a further expansion of the SS.

The return of Austria already resulted in the creation of the SS-Regiment "Der Fuehrer" in the SS-V.T. [Verfuegungstruppen] and the creation of the SS-Regiment "Austria" in the SS-T. [Totenkopfverbaende] and the formation of the SS Corps area "Donau" in the General [Allgemeine] SS. Likewise, the incorporation of the Sudeten-German provinces necessitates the organization of new units by the Allgemeinen SS.

The founding of the protectorate Bohemia-Moravia also brought the possibility to construct an SS here which consists out of the independent SS division XXXIX in Prague with the 107th SS Regiment in Iglau and 108th in Prague, which are under the command of the higher SS and Police-fuehrer Bohemia-Moravia, SS-Brigadier General Frank.

Upon the return of Memel, the whole Memel Ordnungsdienst was taken over in the SS by the Reichsfuehrer SS. The members of the new Regiment retained the right to wear the native insignia of Memel, the elk antlers, as collar insignia.

The SS-Emergency Force [Verfuegungstruppen]

The SS-Emergency Force [Verfuegungstruppen]. The SS-Verfuegungstruppe is a standing armed force although it belongs to the SS in its entirety. It is neither a part of the Police nor a part of the Wehrmacht and stands at the exclusive disposal of the Fuehrer.

The construction of the individual groups of the SS-Verfuegungstruppe is similar to the corresponding units of the Army for organizational reasons. The Truppe was recruited out of volunteers from the number who are conscripted [Wehrpflichtigen]; these however are still subjected to special selective laws of the SS in addition to their usefulness determined by the Wehrmacht.

In the SS-Verfuegungstruppe, in which they must obligate themselves to four years service, they fulfill the first two years of their active lawful Army conscription.

In the year 1938 after the reincorporation of Austria into the Reich, new SS-Regiment "Der Fuehrer" was formed in Austria by Fuehrer decree. It appeared for the first time in public as a group on the Reichsparteitag 1938.

During the September crisis of the year 1938, the SS-Verfuegungstruppe was placed under the Army by special decree of the Fuehrer in order to solve the mission of the liberation of the Sudeten provinces with this combination.

In all parts of the newly returned German Sudeten provinces, units of the SS-Verfuegungstruppen marched over the border, along with the first formations of the Army. All the tasks assigned to the Truppe were entirely fulfilled in every case. Hereby, the Truppe showed excellent accomplishments.

Following the completion of this employment the order came to completely motorize the Truppe during the course of the winter. This brought a huge amount of work for all officers and men of the SS-Verfuegungstruppe for the winter.

In addition to the organizational measures which were required by this rearrangement, the training of a large number of drivers for the various types of vehicles had to take place in this short time. Specialists had to be schooled. Aside from that, the leadership principles of officers and men had to be retaught. While everyone still worked with all their might in the fulfillment of this task, already the March of 1939 saw the new employment for the pacification of the protectorate Bohemia-Moravia.

By decree of the Fuehrer the SS-Verfuegungstruppe again was committed into the framework of the Army. This commitment offered an excellent test of efficiency for the employability of the SS Verfuegungstruppe. Hardly was the work of motorization completed when a new employment in this new form had to follow without any apparent large preparatory practices.

The return from this commitment however in no way signified the continuation of the uninterrupted training period. A new decree by the Fuehrer demanded the immediate conversion of the existing units of the SS-

Verfuegungstruppen into a motorized division. And so the organizational preparations for the construction of new groups already began on the military training grounds following their commitment in the protectorate. The SS Artillery Regiment, the SS Anti-tank Battalion, the SS Anti-aircraft machine gun Battalion and the SS Reconnaissance Squadrons were created.

The training of these new formations to a battle-ready, employable unit was the goal of the so short summer training of the year 1939.

The SS-Death Head Units [Totenkopfverbaende]

Once a year the SS-Totenkopfverbaende step forth into the open on a large scale: on the Reichsparteitag. The participation on this day is a reward for the officers and men for the heavy services accomplished during the preceding year. At the same time it should bear testimony of the exclusiveness and of the soldierly discipline of this Armed part of the SS.

If the work of construction and the commitment during the preceding years should be quickly summarized then it must be said beforehand that hardly a young German goes through a tougher school of self-training and self-discipline as the men of the SS-Totenkopf regiments. The service in the concentration camps, the guarding of State enemies and of criminal sub-humanity requires unheard of demands of the man in physical as well as in psychological respects; the man who fulfills his duty day by day for the community in his unselfish commitment and in his exemplary trustworthiness. Here it does not only mean to be a soldier, but also beyond that, to be a character who remains hard despite all enmities and who remains hard toward any temptations which may approach him. Only the best human material, selected according to character and heredity, grew in this organization for service.

During the last year, as in all of the years of its existence, the spiritual tools for their daily employment were given by schooling and instruction in the quiet work of the troop while the military training provided for the increased striking power of the troop. This systematic training made it possible for the SS Totenkopf regiments [Standarte] to do justice to all their missions which were assigned to them outside of the sphere of their daily service. Was it the employment during the reincorporation of the Sudeten district into the Reich in which especially the men of the SS Totenkopf regiments were placed in the front lines and where it served to execute the

quickest and most reliable commitment capabilities under orders; or was it the reception of foreign State officials which required the troop to serve as parade troops in public—always the SS Totenkopf regiments immaculately fulfilled their duties. Therefore, they can look back with justifiable pride upon all their achievements, in which they were employed and where they served to represent the SS. This also goes for their employment on district and county days [Kreistag] of the Party or on other occasions, as the Reich Warriors day in Kassel for example. Everywhere the men happily and unselfishly served according to their motto: “Be more than appears.”

One of the main missions in the past year was the continued construction of Special Units [Sondereinheiten], for example, all matters concerning transportation, communication and medical affairs. In addition, there also was the establishment of E-Battalions (Educational), the task of which is the training, in courses of 3 months each, of those comrades of the General [Allgemeinen] SS who are not inducted for service in the Wehrmacht. They were trained in weapons and terrain.

TRANSLATION OF DOCUMENT 2168-PS

Writings of the Hochschule for Politics Edited by Paul Meier-Beneckenstein

II The organizational structure of the Third Reich

Number 21

“The German laborer of brain and fist, who marches in the SA, has long ago grown out of the bourgeoisie notion of duty behind which stands ‘I must’ and has grown into the sublime feeling of the soldierly conception of duty which culminates in the absolute voluntariness of ‘I want to’.

We SA men want to live as men, to fight as men, and to die as men with the consciousness that we have done our utmost for and devoted our utmost to Fuehrer and Folk.”

/s/ VICTOR LUTZE

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THE SA

History, Work, Aim, and Organization of the Storm Troops of the Fuehrer and the Supreme SA Headquarters.

Compiled on order of the Supreme SA Headquarters.

By SA—Sturmuehrer

Dr. Ernst Bayer

1938

Junker and Luennhaupt Publishing House, Berlin

I. HISTORY OF THE SA

The Path of the Struggle

Germany experienced in the year 1918 a revolution whose spiritual bearers were people to whom morals, honor, and love of the Fatherland were unknown conceptions, who ridiculed soldierly virtues and fighting behavior and laughed at the performance of the German Army. Their example and their propaganda found followers because the man of that time had not learned to think clear politically, because he was tossed here and there between political, economic, and religious directions and interests, and because he did not have the power, to decide for himself, out of a deep anchorage and belief, in a great ideological idea, and to hold himself firm against a breakdown. That which the Reich of the Kaiser had failed to do, which was the internal shaping of the human being into a knowing and convinced fighter for the nation, avenged itself in 1918 bitterly.

At this time of the complete breakdown of Germany, the Fuehrer with his Idea began the march among the people. And beside and with him marched men, embodiment of soldierly spirit, who perceived their highest mission in life to be in service for a new greater Germany, ready to enter upon and to sacrifice everything for the victory of National Socialism. They are the first political soldiers of the Fuehrer, the original cell of the SA.

Are we able today to write a history of the SA? Scarcely, for this history is still too much the present and we stand too close yet to the experiences of a great period in order to be able to measure and evaluate correctly the immense performance of the fighting period and of the upheaval in its forcible measures.

Numbers are distinctive of the picture of history. And, indeed, if we would give an historical presentation of the fight and the performance of the SA, we must not only name the dates of great events, which are apparent to all the world, but also we must go out into everyday affairs and experience there the path, spirit, and struggle of the SA as an historical performance of the unfolding power of a nation. Dates and numbers, however, win meaning and become valuable only if they come alive as the expression of a great deed, of an offered sacrifice or of an historical performance for the nation. And the SA has produced innumerable of such dates and figures which distinguish the path of the SA as the sacrificial way of the best of a nation. Along this path stand the eternal monuments of over 400 blood witnesses of the Movement, who gave their lives for the resurrection of Germany.

The SA was not founded as one forms just any sort of club. It was born in midst of strife and received from the Fuehrer himself the name "Storm Troops" after that memorable hall battle in the Hofbrauhaus at Munich on the 4th of November 1921. Forty-six National Socialist regulars stood against a thousand Marxists on this memorable day. The Fuehrer had spoken to his men before the meeting: "Today for the first time you will have to preserve the faith of the Movement come what may. Not one of us leaves the hall unless they bear us out as dead men. He who cowardly yields, from him I will personally tear off his arm band and take away his badge. Think about the fact that attack at the slightest attempt to make an explosion is the best defense."

In a bitter struggle 46 German men, who were determined to carry through to the end even at the sacrifice of their lives, beat out of the hall and put to flight a thousand Marxists. It was a baptism of fire and a test of the willingness to bear a burden which this young shocktroop of the Movement had masterfully undergone and which secured for the Party peaceful meetings up to 9 November 1925, for no Marxist dared to raise his fist again in National Socialist meetings. Outside, however, on the streets the dissembling strife continued in strengthened extent.

Blood and sacrifice were the most faithful companions of the young SA on its hard path to power. The Storm Troops were and still are today the fist and propaganda arm of the Movement. The SA was not only messenger, but also pattern for the Idea, the spiritual and physical armament of the Party and the assembly basin for the fanatical fighters of the National Socialist ideology. So the SA became the school for practical National Socialism for all German men; it has so remained up to the present day and it will be so forever in the future.

It is one of the greatest historical services of the SA that at the time when the German People's Army had to undergo a dissolution, it held high those virtues which marked the German soldier: personal courage, idealism, willingness to sacrifice, consciousness of responsibility, power to decide, and leadership. Thus, the SA became among the people the messenger and bearer of German armed strength and German armed spirit.

The 4th of November 1921 was not only the birth hour of the SA by itself, but was the day from which the young fighting troop of the Movement took its stand at the focal point of political events. With the clear recognition that now the unity of a troop led to victory, the SA was systematically reorganized and so-called "Centuries" were established. The year 1922 saw the SA variously in action. On the 16th of August the first marching columns demonstrated along with patriotic associations against the protective law of the Republic. The Marxists appeared but the SA struck destructively and by fighting gained for itself the liberty and right of the streets. The flow into the SA grew so, that in September 1922 eight Hundertschaften could be raised in Munich. These quickly grew further. On the 23rd of November the 11th Hundertschaft was formed, which was composed almost exclusively of students. The present deputy of the Fuehrer, Rudolf Hess, took over the leadership of this Century.

“We have to teach the Marxists that the master of the streets in the future is National Socialism, exactly as it will once be the master of the State”; thus, Adolf Hitler sketched the outlines of the task of the SA. And sooner perhaps than one supposed, the opportunity came to let deeds speak. The march in Coburg on the 14th and 15th of October 1922 became a beacon of the Germany which was awakening. It was to be a “German Day” set up by the citizens and it became a break-through battle for National Socialism. It became the day of the SA on which 800 SA men under the leadership of Adolf Hitler and Naval Lieutenant retired, Klintzsch, broke completely the Red Terror.

This mighty success and its linking danger for the system of government led to a step by the Berlin government which was often repeated in the following years: prohibition of the NSDAP for Prussia and other states. The more lively the activity became in Bavaria. For the first time, on 28 January 1923, the Reich Party Day of the NSDAP was held in Munich, where the four standards designed by Adolf Hitler himself were handed over to the SA as campaign symbols. And here, too, the 11th Hundertschaft appeared for the first time in uniform: grey cap, wind-breaker, swastika band, and knotted stick.

The Ruhr invasion by the French caused the conversion of the SA, which up to then had been only a political fighting troop, into an armed association for the purpose of employing these battle-tested men in a desired active resistance against foreign domination. All pressed for a decision. And in the matter the Storm Troops of the Fuehrer did not want to be inactive. They joined themselves with other fighting Bavarian bands and formed the “Labor group of patriotic fighting associations” under the leadership of retired First Lieutenant Kriebel. In March 1923 the last commandant of the Richthofen Squadron, Hermann Goering, took command of the entire SA. Activity and readiness is the password. Out at Forstenrieder Park and on the Froettmaninger heath near Munich the Labor group held great exercises, at which on May 1st an armed parade of the whole Bavarian SA and other fighting associations ensues on the Oberwiesen field. This day was supposed to bring the final reckoning with the Marxists. Only the employment of the Reichswehr and police prevented this intention.

The decision is pressing; the collapse of the Ruhr resistance and its consequences threaten the unity of the Reich and seem to bring about chaos. The 8th of November comes around. That evening, full of hope and certainty of success; the betrayal of that night, base and unbelievable. No one believes yet that men in the fateful and difficult hour have betrayed the struggle for Germany. On the morning of November 9th, Adolf Hitler casts his young Movement, his faithful and upright fighters, onto the scales of decision; the march to the Hall of the Field Generals through jubilant Munich. Betrayal causes this March of Triumph to become a Death March for the best of the nation.

The Fuehrer is in custody. The Head of the Movement is missing in the most difficult hours after the miscarriage of the revolution. Everything appears beaten and lost. But one thing is not: that spirit of the Storm Troops which has fought for the new Reich and which has become, under the concept "Spirit of the SA", the pattern for voluntary and ceaseless preparedness for sacrifice and initiative for German men. And it was victorious over betrayal.

The faithful collaborators and comrades of the Fuehrer rescue what is to be rescued. The Illegal SA continues and waits for the return of the Fuehrer from the prison in Landsberg. He returns in 1925, and the men of the Storm Troops, with the same spirit of readiness for sacrifice and use, come to him and are strongest support to him at the Party refounding, which occurs on February 27, 1925. In his basic directions for the reestablishment of the National Socialist German Labor Party, Adolf Hitler ordered the refounding of the SA as a pure Party organization for meeting hall protection and propaganda, without having the character of an armed association.

And now a fight for Germany began of such a sort as was never before fought. What are names, what are words or figures which are not indeed able to express the magnitude of belief and of idealism on one side and the magnitude of hate on the other side.

1925: The Party lives again, and its iron spearhead is the SA. With it the power and meaning of the National Socialist movement grows. Around the central events of the whole Movement, the Reich Party Days, dates, decisions, fights, and victory roll themselves into a long list of German men of undenyng willingness to sacrifice.

One cannot count up all of this at one time. However, we wish to present the sense and meaning as we tell what the SA was: the political strong arm, the visible representation of the idealism and daily initiative of the Party. Generally, it stopped the breaches. As an example of a seemingly impossible deed, the 11th of February 1927 should be firmly preserved. It is the day on which the SA broke the Red Terror, with heavy sacrifice, in the hall battle at the Pharaoh's Hall in Berlin, the stronghold of the Communists, and thereby established itself decisively in the capital city of the Reich. In considering the badly wounded SA men, Dr. Goebbels coined the phrase "Unknown SA man", who silently fights and bleeds, obeying only his duty.

Possession of the streets is the key to power in the state—for this reason the SA marched and fought. The public would have never received knowledge from the agitative speeches of the little Reichstag faction and its propaganda or from the desires and aims of the Party, if the martial tread and battle song of the SA companies had not beat the measure for the truth of a relentless criticism of the state of affairs in the governmental system. They wanted the young Movement to keep silent. Nothing was to be read in the press about the labor of the National Socialists, not to mention the basic aims of its platform. They simply did not want to awake any interest in it. However, the martial tread of SA took care that even the drowsiest citizens had to see at least the existence of a fighting troop.

The SA conquered for itself a place in public opinion and the leadership of the National Socialist Movement dictated to its opponents the law for quarrels. The SA was already a state within a state; a part of the future in a sad present.

In this period there was only one thing: discretionless use of the person and genuine spirit of offensive. This became more essential from year to year for sudden attacks on individual National Socialists and whole columns piled up in frightful quantity. The death roster of the Movement grew. However, the greater the losses became, the more tightly the SA men closed themselves into a sworn fighting partnership. Its exemplary employment did not remain without effect. The best from the ranks of the Reds came to the "Nazis", because they were convinced by their deeds. When at the very end of 1926 the volunteer-corps fighters of the various Rossbach groups

joined themselves to the SA, the SA received not only strengthening alone through that but also strong buoyancy.

With the end of 1926 there begins a new phase of development in the history of the SA. The Storm Troops until now had stood in loose connection with the political organization. A Reich branch or central command office was not yet in existence. Both were created with the ensuing founding of the Supreme SA Leadership Headquarters, on November 1st, 1926. With that a central control originated to which the SA, as well as the SS and the HJ, were subordinate. Adolf Hitler appointed the Gau leader and SA Fuehrer of the Gau of the Ruhr, Franz von Pfeffer as the highest SA Leader. In the course of the years 1926 and 1927 the SA was uniformly reorganized and divided into divisions [Gruppen], Gau areas [Gaustuerme], brigades [Brigaden], regiments [Standarten], battalions [Sturme], and platoons [Trupps] and at the same time a sharp separation from the political organization was achieved. That which had been established in practice became now the clear internal orientation for the SA: the Storm Troop men should be educated into political soldiers, politically dependable, spiritually motivated, physically steeled, disciplined and devoted to the Fuehrer in unconditioned fidelity and obedience. Thus the SA became the mightiest instrument in the hands of the Fuehrer.

1927: The first huge demonstration in Nurnberg of National Socialism which can no longer be dead silent. 30,000 SA men march a bloc of will and strength. The System becomes nervous. Up to then the Executive has looked on inactively for the most part. From then on it directed all measures against National Socialism and allowed thereby more and more liberty to Communism and Marxism. The word "Forbidden" was all too well known to SA men. The Berlin SA, which had been forbidden with the Party in May 1927, coined the password: In spite of prohibition, not dead. And this slogan, to the discomfort of the System, became an all too living reality when it issued like hail prohibitions of all shades and shapes in the following years. One of the old veterans coined the phrase once: the history of the SA and of the NSDAP generally has been a single, almost uninterrupted succession of prohibitions. Something was always prohibited. There was never a period in which the SA was granted nearly the same liberty in all Germany as was granted to the Reichbanner or certain patriotic associations.

Brown trousers and boots in themselves were dangerous for the State. The white shirt had to substitute for the brown shirt for a long time. Often the SA men came to meetings and parades with naked upper parts of the body and with bare feet, and many in their underwear, because along the way the pieces of clothes which were dangerous to the State were taken off of them. Chicanery after Chicanery. But all of this had to be borne. However, murder and terror governed this year of the strife. And always it was National Socialists who were stamped as the attackers.

Emergency orders and measures for the protection of the Republic aided the waves of prohibition. They promised themselves results from this because they believed they dealt with factionists and did not recognize that these National Socialists were bearers and heralds of an ideology. They themselves were conscious that they were the last levy of the German Folk. Thus the SA grew to be the troop which fought most strongly against the decaying Republic. It was spared no sacrifice but also no prohibition, no trickery, and no item could stem its march.

Almost 300 dead comrades marched with the ranks of the SA, foremost among them the songster of the Movement, Horst Wessel. His sacrificial death became a new beacon of the struggle for Germany. The labor and the struggle of the SA was not in vain. They stood at the foremost front of election fights. Adolf Hitler himself on the 2nd of September 1930 took over the leadership of the SA as the Supreme SA Fuehrer. He himself guided his SA in the fateful election fight of the year 1930. On the evening of the 14th of September the first battle was won. 107 representatives of the NSDAP took their seats in the German Reichstag. A huge victory was earned through the fight, but, the System took no reckoning of it.

1931: It was to be the year of decision. The Movement grew steadily; everywhere the election results were great. The burden which tested the SA was enormous, and only an iron discipline and internal union helped it to bear all the difficulties.

SA, SS and HJ were newly articulated. On April the 1st the National Socialist Automobile Corps as an auxiliary organization of the SA, which performed valuable service at election time, was founded. The 17th and 18th of October brought the SA meeting in Brunswick at which 104,000 SA and SS men passed in review before Adolf Hitler. Here before these faithful

fighters the Fuehrer raised before all the world claim to the total state leadership by National Socialism. The men returned to every day affairs with enormous enthusiasm and new courage which could not be dampened by the announcement on December 8 prohibiting the uniform in all regions of the Reich.

The fateful year 1932 brings a heavy blow to the Movement. On April 13 the SA and SS are prohibited within the entire regions of the Reich, even after the vote of unprecedented activity in the second election for Reich president on April 10, 1932, had been 13,400,000 for the National Socialists. They wanted to beat an organization by the most brutal means. The wearers of the brown shirt were treated like criminals. Everything attainable was confiscated. SA homes and SA kitchens which gave protection and meals to needy and jobless SA men were pitilessly closed. Nevertheless, with exemplary discipline the SA and SS carries on and does not allow themselves to be enticed into rashness. As simple party partners the SA men fulfill their duty now. Finally on June 14th the uniform and demonstration prohibition is raised. Communism and Marxism raise themselves and want to stop the victory parade with bloody force. Not less than 32 National Socialists among whom were SA and SS men and Hitler Youths, fall as sacrifices to the Red Terror in a short six weeks. The Bloody Sunday of Altona was a terrible indictment against the governmental system. Eighteen Folk comrades are killed and 50 badly hurt. Nevertheless, the SA remains disciplined and unshaken. It is not the least of its meritorious services that the Reichstag election of 31 July 1932 brings the NSDAP a huge victory and makes the Movement the strongest Party in the Reichstag. And in spite of all, the SA men are still unprotected game, having nothing for their protection but their own strength and the fidelity of their comrades. It is difficult to clothe in words what lies and slanders were poured out over the SA during this period; it is also difficult to tell with what incomparable discipline and devotion these men have fought. "Bullies and beaters" they were called by the satiated citizenry, and yet it was they who protected the security of the citizenry from Bolshevism. "There can be no thanks for anyone when considering this greatest success of our Movement, but there is only the duty of all of us to take up and continue the fight again with renewed and increased strength"—thus Adolf Hitler recalled to mind on the night of the victory of his Movement, and that was a command for the SA.

The time of the most difficult trials arrives. The SA knows it is for the ultimate. Victory, already within grasp, must be finally gained by fighting. Comrades fall but unswervingly the columns march. The Fuehrer told them: "Victory belongs to him who in this fight brings the last levy and the last battalion onto the battlefield." And the SA was prepared to enter its last battalion.

On the 22nd of January 1933 the decision, morally, comes. At the Bulowplatz before the Karl-Liebknecht House in Berlin, the Moscow Center in Germany, the Berlin SA parades. Before this collected strength of the Party the hirelings of Moscow crept cowardly into their lurking holes. Hour after hour the SA men passed in review before the bulwark of Communism and none of the Moscow disciples dared to raise a fist. It was a victory for the SA, the significance of which could only be measured later.

Then the day dawns which meant victory and fulfillment of the struggle of the SA: the 30th of January 1933. No command was given on this day, and yet ten thousands of SA men and National Socialists stood ready in the evening, in their old tattered brown shirts in which they had marched through murder and terror, to greet the Fuehrer, their Highest SA-Fuehrer, as Chancellor of the German Reich. In these SA men the young Germany marched through the Brandenburg Gate into a Reich which they had fought for at the foremost front and which to form and to carry today is the highest commandment of their lives.

THE SA IN THE THIRD REICH

Just as there was no celebration of victory by Adolf Hitler and his fighting comrades after the seizure of power, so was there no moment of rest for the SA men. What was worth cleaning up, was cleaned up. Whether as auxiliary police or with special orders, whether as a propagandist or as helper, the SA man in general was there and labored silently as the shining example of the Idea in the structure of the new State. Even after victory the SA had heavy losses to lament. It was generally employed where elements of the government foreign to the people had not yet understood the signs of the time or where Communism and elements hostile to the State still insolently dared to rebel. And not the last the fight against disguised opponents was a difficult labor of the SA. But it is proud, then and now, to

be the tool for strengthening the structure of the new State and of the Community of Folk.

For the first time, on April 8, 1933, the entire SA in the regions of the Reich and of Austria, stands drawn up at the same hour to avow their immutable fidelity and willingness to follow to the Fuehrer, who addressed his men over the radio from the Berlin Sports Palace. The young Steel Helmets and the Steel Helmets during the year 1933 placed themselves under the SA and became members of it. The SA during the year experiences several changes which finally result in the present form of the organization as will be described in the following chapter.

With the consolidation of inner political perceptions within Germany the type of strife of the SA changed. Just as the SA man during the fighting period was not a companion along the way to great decisions, but was the one who prepared the way, so the SA retained in the Third Reich its original task, namely: to be the Shock Troops for Ideology and as the practical school of National Socialism. The SA trained no specialists in any form for its area of labor was among the entire German Folk. To carry to the Folk, through things previously experienced and by acts, the revolutionary spirit of the fighting period, the initiative and willingness to sacrifice and to keep awake among them those virtues which are the fundamentals for the preparedness of National Socialists, is one of the huge tasks of the SA. "All that you are, you are through me; and all that I am, I am through you alone". These words of the Fuehrer, spoken to his SA on the 30th of January 1936, are a recognition as well as an obligation. It is a short formula of the platform of the SA: Germany.

The deeds and achievements of the SA are not carried upon huge rosters but are every day undertakings which will continue to live in the hearts of the people. And that is more valuable than the written word.

Several things out of the manifold labor sphere of the SA should be named in collective concepts: use at times of catastrophe, prevention of damage, thanksgiving of the Nation, cultural work, colonization, educational encampments, officer training schools, scholarships and many more. Over all of this is the eternal charge: shaping of human beings. The guiding motif of this labor to educate the German people in this powerful entity: strong soul, sound spirit, steel-like body.

National Socialism has never demanded a new state form but has always demanded the reformation of the individual German into a fighter who has intelligence, who has conviction, who is politically dependable, who is spiritually motivated, and physically hardened. Thus it was only the consistent continuation of a labor already begun to win the individual German when the Fuehrer handed over to the SA the execution of protective and aggressive training and education of the individual German. SA sports and SA sports badges, the latter established by the Fuehrer himself on the 15th of February, 1933, "in order to lend a conscious expression in all sections of the German people to the cultivation of a warlike spirit", are essentially the new shape of the physical and spiritual training of the individual German within the meaning of the National Socialist Ideology. Therewith, the SA was commissioned to obtain an increase of and preservation of a warlike power and a warlike spirit as the expression of an aggressive attitude. The creation of the NS Contest Games on November 27, 1936, as a yearly spectacle of accomplishments of physical prowess and of a warlike spirit, and the order of March 18, 1937, that possession of the SA sports badge is made dependent upon yearly repetitive performance of the tests in order to maintain the warlike fitness of its bearers up to old age, are milestones along the way to attainment of the great goal of the SA.

The SA is aware of the magnitude of its task. But it is able to master the tasks given by the Fuehrer only because it emanates from the Folk and is a part of the Folk.

II. ORGANIZATION

The Branches of the SA

The Fuehrer himself has designated the SA as the guarantor of the National Socialist Movement and the National Socialist Revolution. The SA is the political soldiery. In this concept "political soldiery", which was coined and found its animated shape during the fighting period, are contained all these tasks of the SA whose affairs represent still today the educational work of the Storm Troops. Tasks of this proportion are only completed by voluntary performance of service; however, they require, too, an organization which branches out widely and yet guarantees as much as possible, by a

concentration of individual supervisory offices and their work sphere, a central, clear and united management.

The Supreme SA Fuehrer is Adolf Hitler, who gives his oldest fighting formation its tasks, determines its direction of work, and commands its uses. By order of the Fuehrer the Chief of Staff represents the SA in its totality. A high measure of recognition and trust of the Fuehrer lies in this charge, for to the Chief of Staff of the SA is entrusted, for ideological and physical education and for further development, the best and most valuable young strength of the German people.

The Supreme SA Headquarters in Munich and the Office of the Adjutant in Berlin are both bureaus of the Chief of Staff; the SA Fuehrers who head these are directly responsible to the Chief of Staff for their work.

The Supreme SA Headquarters is subdivided into the operational staff, main offices, offices, and divisions. The Stabsfuehrer of the Supreme SA Headquarters determines its employment as representative of the Chief of Staff.

The Storm Troops of the Fuehrer himself, which exist in all the regions of the Reich and in the free city of Danzig, are divided according to political and territorial considerations.

The entire SA is composed of 24 groups which are subordinate to the Chief of Staff. These are: SA Group Alpenland, Bavarian Eastern March, Berlin-Brandenburg, Danube, Franken, Hanseatic, Hessian, Hochland, Kurpfalz, Middle, Lower Rhine, Lower Saxony, North March, North Sea, Eastland, Eastern March, Pomerania, Saxony, Silesia, Southern March, Southwest, Thuringia, Westfalia, and Western March.

The next subordinate branch is the SA Brigade, which is composed of several regiments. A regiment consists of three to five battalions, which is formed from three to five companies. The SA Company is organized generally into three platoons, each of which is further subdivided into three squads.

The multilateral demands which are made of the SA formations require, above all, in the use of the SA for preparations, parades, catastrophes, accidents and all other acts of assistance, the incorporation of special or technical units. Therefore, the following special branches were established:

signal, engineer, mounted, naval, bicycle, and sanitary units. Local considerations and geographical situations determine their incorporation into companies and battalions and govern the consideration of subordinate positions.

THE OPERATIONAL STAFF OF THE SUPREME SA HEADQUARTERS

The Stabsfuehrer is the permanent deputy of the Chief of Staff. As such he is the highest authority for the collective main offices of the Supreme SA Headquarters and of the SA groups. All decisions of a basic nature for the SA, as long as they are not reserved for the Chief of Staff himself, are made by the Stabsfuehrer. Immediately subordinate to him are the liaison office of the Supreme SA Headquarters, the central division, the staff for military affairs, the press and propaganda division, the legal division, and the architectural division. The liaison office keeps in continuous touch with all important bureaus of the Party and State in order to handle all the questions which are of importance to the SA.

The treatment of occurrences of a fundamental sort, which require rapid settlement and touch on the spheres of the various main offices so that the closest cooperation with these main offices becomes a matter of course, is the function of the central division with its two main departments. The Staff commandant's office bears the responsibility for the total, internal operational service of the Supreme SA Headquarters.

The entire press and propaganda preparations or exploitations of all important events within the SA emanate from the press and propaganda division to which is also joined publication of the fighting sheet of the Supreme SA Headquarters, the SA-Man. Following the directions given by this division, the group press departments, whose function is the trusteeship of the local press, work through the individual SA groups. The activity is above all of an informative nature; for the SA lays no value on the quantitative nature of the things written about it, but is only concerned with the fact that the German editor may be trusted with the character and task of the SA.

The legal division is still in process of being formed. On the other hand the architectural division, which likewise was newly formed, is working on plans and projects for new building designs in which the creative genius of the SA will be expressed.

THE OPERATIONAL MAIN OFFICE

The chief of the operational main office is responsible for the entire organization and branches of the SA, for the education and suitable equipment of units, and, not last, for the employment of the SA.

The operational main office is subdivided into the office for organization and employment and the office for physical fitness. The latter, on the basis of the SA sports badges must prepare the fighting training of the bodies of all Germans capable of bearing arms and as preparation therefor must organize the execution of corporal exercises (basic physical training) and sports performances, so that the widest stratum of the population is laid hold upon and will be kept in condition to bear arms, both physically and spiritual, as well as ideologically in character up to the greatest old age.

The tasks of the organization and employment office are given in its title. Besides this it is entrusted with the special units of the SA: signal, engineer, naval, and mounted units; it treats with the air and gas protection of the SA; it carries on the education of the SA in the sphere of catastrophe protection and prevention of damage; and as well as keeping liaison with all Party and public offices which come into consideration for these questions.

In addition there arises the treatment of details of clothing and equipping the SA and the regulations for office plans for SA offices as well as the perfection of suggestions for investing certain SA units with standards and names of heroic champions of the Movement.

THE MAIN OFFICE FOR EDUCATION

The office of education is responsible for the entire education and orientation of the SA Officers' Corps. Upon this office devolves one of the tasks of greatest significance for the people, the Reichsfuehrer School, which consists of the Reichsfuehrer School in Munich and the Officers' School of the Supreme SA Headquarters in Dresden. The curricula and community of work at these officers' schools, as well as at the 21 group schools and special schools, serves the purpose of creating an SA officers' corps which bears the highest responsibility and great capability.

The comparatively young officers' school of the Supreme SA headquarters in Dresden, above all, serves for the education of the intermediate SA officers' corps which has earned its qualification to attend at one of the

group schools. In this school the training for those who want to try out for the SA sports badge stands in the foreground. The spiritual and physical training on the fundamentals of the National Socialist's ideology pursues the purpose of making the SA Fuehrer into a real educator of his troop. The threefold harmony: Soul, Spirit, and Body, which sets in unison for the common group capability, knowledge, and accomplishment, is an essential prerequisite here. Military sport, as an SA expression of sports activity, is just as much a means to accomplish our purpose as is instruction about the history of the Party and the Folk, about racial teaching, or training as speakers. The directions for this training hold good for the group schools, too, which are subordinate to the same office. The work is performed in close understanding with the leader of the group in whose territory the school lies, because he himself possesses the best possibility of choosing his future officers. This division, which is immediately subordinate to the main office, maintains liaison with the offices of Party and State, for which the experience won in the educational labor of the SA are significant. Thereby it is achieved that the educational labor of the SA stands in full and complete unison with the labor of the Party and all its branches.

The third office, ideology and culture, counts as its assigned sphere cultural forms of service, the cultivation of SA and Folk songs, and music. Directly and strictly avoided is publication of any sort of service plan for festive formations, for form is not the deciding factor, but the spirit with which that form is accomplished.

The division for scientific exploitation, finally, contains a voluminous library. It has the task of giving to every SA Fuehrer who desires to train himself further, information about the most important literature at hand on the subject.

THE MAIN OFFICE FOR HEALTH

The main health office is responsible for all questions of health and sanitary service of the SA. Since health forms the basis and prerequisite for physical fitness, the main health office inserts itself quite particularly into this branch of the SA service. Not only care of and looking after the sick and injured belong to the accomplishments of health service but, above all, preventive health care.

In the fighting period only the sanitation service existed. It is being organized and changed in some particulars at present. Ten thousand sanitation officers are trained and perfected in the best manner to be able to perform first aid at any time. The Reich Sanitation School of the SA in Tuebingen represents the ground floor for entire training activity in the essentials of sanitation. In all regiments in the whole Reich there are sanitation units ready for immediate employment in catastrophe and great accidents. The sanitation man accompanies his comrades everywhere in the SA service, whether it be employment in preparations, construction of barriers, parades, marches with full pack, or in the fields of sports contest.

Training, equipment, and organization of the sanitation service are gathered together in one office, the main office for health. Next to it is a second office with the task of health operations and fostering of race. The men of the SA have recognized the value of the health of a Folk, and bear the conviction that only a sound Folk can be an eternal Folk. With this conviction they fight for accomplishment of the directions and orders which emanate from the main office for Folk health and from the Reich Surgeon. In the foremost place are the sanitation men of the SA who use themselves for that great goal: Purity of blood and Purity of Race.

THE MAIN OFFICE FOR PERSONAL AFFAIRS

The trusteeship of the SA Officers' Corps, just as the care for future SA officers, is a problem not only for the members themselves but, far and above, is also of the greatest significance for the Party and for the entire Nation.

The personal affairs main office, which is divided into three offices: personnel, social welfare courts and justice office, works in permanent, animated touch with the SA front, where the capabilities and suitabilities of the SA officers show themselves in daily employment. A continuous exchange between this front of staff work and application to educational spheres marks the future path of the SA officers. His evaluation results from consideration of the suitability of the character, of his ability and knowledge, and, above all, of his service to the Movement. The oldest veterans and champions of the SA also receive leading positions within the branches in so far as they prove their capability to do the job.

If there exists in one way a reward for the old tested fighters in the assignment to fulfill a great obligation and a more responsible mission, then the office for social welfare takes care that those SA comrades who were wounded in the fight for the new Germany or who find themselves in need, are looked out for. If it was imperative in the first years after the seizure of power to provide a job generally for these men, then, the problem of retraining stepped into the foreground. In the camps of Lockstedt and Falkenstein the SA gives unskilled manpower the possibility of earning, in about 40 weeks, the journeyman's certificate, and, thereby, the prerequisites for an appointment as a skilled laborer in industry, or, in fact, in any of those places which suffer because of lack of such laborers. In addition to that men are retrained for mercantile professions and for work in administrative offices.

The same is true for the choice of settlers for those home sites which arise everywhere in the Reich by way of thanks offerings. Also here are old veterans who find a new home in the thanks-offering settlements alongside of the war victims.

To this office come officially the personal welfare matters of the men and their families. Comrades who have suffered injury at sports or in the service receive a cure or recuperation stay in the SA homes at Wyk in Foehr, Hohenlychen, or Trillup bei Hamburg. The needy are permitted support, and, in fact, in an understanding with the Reich treasurer, the means of the Adolf Hitler Thanks and the Adolf Hitler Foundation are placed at this office's disposal. Above all, however, this office interests itself in those who were injured in the fighting period by political adversaries, so that a permanent personal touch gives to these men the certainty that one will never forget their sacrifice.

As third within the main personal affairs office the courts and justice office is mentioned. One task of this office lies in the fostering of honor and of clean behavior of the SA and the SA Officer's Corps. For the clean behavior of the leadership two chambers of discipline serve. The personal rights of SA men are taken care of in a particular division.

Incumbent upon the justice division, composed of professional lawyers, is legal counsel to the main offices of the Supreme SA Headquarters and groups, cooperation with the remaining justice offices of the Movement,

and, thirdly, official traffic with the Chancellory of the Fuehrer and treatment of pardon petitions of criminally convicted SA men as well as former SA members. This proceeds from the viewpoint that the SA man, it is true, on the one side has an enhanced duty to the Community of the Folk; on the other side, however, there comes into discussion manifold economics and mental after-effects of the period of the wrestling for power in the case of old tested veterans of the SA in which their significance can be fully adjudicated only by the SA.

THE MAIN ADMINISTRATIVE OFFICE

The administration of the SA, in its present standard organization and proper economic operations, represents the tool which the Chief of Staff uses for the solution of great tasks given to him by the Fuehrer. Clarity is the distinguishing feature of SA administration in all its many spheres.

The matters pertaining to the property right of the NSDAP and, therefore, of concern to the SA, are placed under the Reich treasurer as Plenipotentiary of the Fuehrer. The deputy of the Reich treasurer for the entire SA administration is the Reich cashier administrator of the SA, who, without prejudice to his responsibility to the Reich treasurer, is at the same time in his quality as Chief of the main administrative office, the specialist of the Chief of Staff for all matters which touch upon the administration of the entire SA.

The large sphere of the tasks of the main administrative office is divided into three offices: *a.* money economy, budget bookkeeping, control of finances, and economics; *b.* things of value, procurement, insurance and contracts; *c.* construction and settlement office.

The salary of SA officers and men who are on the staffs which are essential to the main offices is regulated uniformly on the basis of an office plan. It is composed of base pay, quarters allowance, and increase for marriage and children. Considering it from the political standpoint of population, the increase for children in this ideal echelon of society was settled upon.

Great frugality which is pointed to particularly at every opportunity, is understood as a matter of course in the SA. A splendidly working accounting and control system makes possible an exact review of the economic operation of all units and makes easier the immediate remedy of a

shortage of any kind. The examination reports, which are requested by the Deputy of the Reich treasurer of the units are treated and made use of in one special division of the Main Administrative Office.

The great property values of the SA, which is a consistent part of the total fortune of the NSDAP, is laid hold upon according to number and value and carefully administered. Many millions flow into economy through the settlement work called into being by the Supreme SA Headquarters with the aid of the thanks-offering of the Nation. The settlement work should offer to many thousands of needy people and to families, sound in heredity and rich in children, their own homes. Aside from settlements on the edge of town the construction and settlement office in the neighborhood of Aurich erected farm settlements with 60 to 80 acres of land, which, above all, are managed by former farm laborers. Here, too, they put cattle and even crops at their disposal gratuitously.

The many sided tasks of SA Administration are united closely with those of the headquarters. Parades and other arrangements, training, equipping, procurement, etc., cannot be accomplished without standard cooperation of the administration.

THE MAIN OFFICE FOR NS-TOURNAMENTS

On the 27th of November 1936 the Fuehrer decreed the following order: In pursuance of my proclamation at the Reich Party Day of Honor I hereby create for future Reich Party Days the NS-Tournament. The SA is charged with the preparation and execution of this tournament. I decree that the determinations necessary for execution be left up to the suggestions of the Chief of Staff of the SA. The Reich Sports Fuehrer is directed to cooperate with the sports department of the Supreme SA Headquarters. The Chief of Staff will keep me continually informed about the measures planned.

In order to solve organizationally the tasks sketched in this order of the Fuehrer, the main tournament office was created in February 1937. As the chief of this main tournament office, the Chief of Staff appointed the Reich Sports Fuehrer von Tschammer und Osten. By this appointment the guarantee is given that, in comradely cooperation with the Reichsbund for physical training, the tasks set by the Fuehrer in respect to the military fitness of the entire nation and the formation of a Folk will be solved by physical training.

Therewith, SA Obergruppenfuehrer von Tschammer und Osten holds in his hand responsibility for the organization and accomplishment of the NS Tournaments, which are to be held each year in Nurnberg during the Reich Party Day as an exhibition of the achievement of the whole German people.

Incumbent upon the office simultaneously is direction of the NS Winter Tournaments and Reich Contests of the SA which also experience continuous enlargement.

The main office for the NS Tournaments is divided into three offices: organization, military sports, and sports which from their titles alone indicate the limits of their spheres of work.

THE ADJUTANT'S OFFICE OF THE CHIEF OF STAFF

In the Adjutant's Office of the Chief of Staff are treated all questions which are proposed directly to the Chief of Staff by the offices of the Party and of the State, as well as by others. Next to the very voluminous labor of dealing with those questions and lectures of the Chief of Staff on important matters, the Adjutant's Office, as the personal office of the Chief of Staff, has to take care of the preparation for and smooth execution of travel of the Chief of Staff. Continuously the Chief of Staff visits the individual Groups, using in the first place airplane, then rail transportation and automobile. All of the troublesome details, which these official trips demand, require thorough discharge so that appointments shall be kept and the entire program developed as foreseen. As a matter of course many SA Fuehrers, spending a while in the Reich capital, come in person to the Adjutant's Office to speak with the Chief of Staff. Various wishes are attended to here and many worthwhile suggestions come from the ranks of the visitors. The men in the Adjutant's Office whose task it is to do their duties in the personal service of the Chief of Staff endeavor, in order to facilitate for him his difficult and responsible task, take care of at least the pressing questions or help their fellows with professional advice. Next to that this office has value in that it fixes appointments for various official conferences of the Chief of Staff with leading men of the Party and State and in that it divides up the daily program according to current demands, so that all work can be executed smoothly. It is not easy work which the men in the Adjutant's Office have to perform; only the consciousness of helping their fellows in the broad Front

everywhere in the Reich and of supporting their fight gives to their work a valuable substance.

SPECIAL UNITS OF THE SA

Engineers and Signal SA

In the same measure that the little Shocktroop of the National Socialist Idea grew up into an organization in whose hands the Fuehrer has laid the whole physical and ideological education of our people, so in the same measure the sphere of the tasks of the brown Army of Adolf Hitler grew and received a multiformity which made necessary the special training of units which were capable of continuous employment and highest performance within their special areas.

First it was engineer companies, then further, it was signal companies. Since the time they were established, both units, when put to the test have proved that the men with "Pi" and "Na" on the lapels of their service uniform are found where German humanity needs their help. If storms whip the waves of the seas, and masses of water threaten the coasts of the Reich; if downpours and melting snows swell the mountain streams so that fields, plains, and farms are in danger; if fire is on the point of destroying the property of German people; or if anywhere a natural catastrophe happens, one finds, in all the Gaus of the Reich and at all times, the engineers and signal men among the first helpers who strike with cheer and with readiness to sacrifice. Very few have a suspicion of what takes place in the hour of bitterest wrestle with the might of Nature, but they scarcely think about the fact that these very same men, who perhaps gave their utmost during the entire night, are a few hours later going about their callings; and only the least number have a clear understanding of what basic and careful training and what untiring practice was necessary in order to achieve a complete success in time of serious accident. And in these practices we see how a bridge is made at the turn of a hand, how blasting is executed, and can alongside the performances of the engineers, who work hand in hand with the signal units, see with amazement how the latter lay their field cables, set up their telephones, let the blinker apparatus speak, and relay reports by bicycle riders, messenger dogs or carrier pigeons, in short, how they establish connection between the front and the staffs and thereby secure smooth cooperation. The status of training of the men of the signal units is

kept under constant control by the signal certificate. This certificate is proof for its holder that his status of training is complete and excellent. It must be won by examinations for three consecutive years before it is finally the possession of the signal man.

Thus there originates in these technical units of the SA a trained crew whose capabilities and knowledge are not the last things of extraordinary value in the service for defense of the country. On one side the young SA man, who enters the Army from his branch, comes prepared with a multitude of prerequisites which facilitate and speed up his training in technical respects; while on the other side those very soldiers, having served, who return out of the Army into the SA, keep themselves, by constant practice, in a trained condition physically and spiritually and impart their knowledge to their fellows.

Thus they contribute a considerable portion to the enhancement of military strength and military spirit of the German people. As everywhere, the soldier of the army finds here, too, his closest confederates in political soldiers.

The Mounted SA

If today in Germany the sport of riding is not as it was in past decades, the prerogative and affair of a propertied class, but a thing for all of those who from enthusiasm and love of horses profess to ride, then it is just something else for which to thank the SA which has interested itself in the sport of riding as a means of fitting the people physically. The Fuehrer himself by his order about the establishment of the NS cavalry Corps on March 17, 1936, created the basis upon which first the SA Cavalry itself and then the German youth and above all the compulsory military duty classes could be led to the sport of riding. This order soon created the necessary organizational prerequisites, so that at present the SA each year is able to furnish many thousands of young trained cavalymen to our Wehrmacht. All those who are 18 to 20 years of age must join the NSKK and even those in younger and older year groups, may join it, who come up for cavalry and motor training and want to earn a cavalry certificate before their period of service in order to be able to serve with a mounted or motorized troop.

The organization of the NSKK has its apex in the Reich Inspectorate for mounted and mobile units who is directly subordinate to the Chief of Staff

and who at the same time presides over the recently created main office for mounted and mobile training within the Supreme SA Headquarters. In this way a conceivably close liaison has been established between both organizations, and in it at the same time lies the foundation for fruitful exchange between the SA cavalry and the NSKK. In each S.A. group was created the office of Group Cavalry Fuehrer, who is responsible to the Reich Inspectorate as his deputy for training and organization. At present the S.A. cavalry has at its disposition 101 cavalry regiments in whose schools, year in and year out, young Germans who are obligated for service receive the training which fits them for entrance into a section of troops which is of their own choosing.

The NSKK has discovered, by creation of the cavalry certificate, a means of fostering and requiring cavalry fitness. The cavalry certificate is granted only after careful testing and fulfilling essential conditions successfully; it requires an all-embracing quantity of riding ability. Thus the cavalry certificate is a way to select and require real talent. The NSKK is still young, but two years of serious labor have already proven the correctness of its objective.

The Naval S.A.

The men of the water's edge, the navigators and fishermen, for the most part do their duty in the naval SA, since they are concerned in their daily professions with all sorts of things having to do with navigation and water. Nevertheless, there are not only naval S.A. regiments along the ocean but also in the interior. If there is no big ship at their disposal for training, a ship built on land often suffices for the accomplishment of the careful training of the men about masts, shrouds, and deck structure. The service of the naval S.A. operates as preparation and development for the Navy. Semaphore, radio, Morse Code, and flags as signal service, navigation, cutter operation, astronomy, professional use of sailing craft, rescue service—to mention only a few spheres of its tasks—complete its curriculum.

For the seafaring S.A. men however, who pass the greater portion of their lives on the seas of the world, there is, in the first place, ideological use as a border troop who make their appearance in foreign countries at celebrations, parades, and similar events. The naval S.A. furnishes yearly to the German merchant marine and navy splendidly prepared material and is,

therefore, practically and theoretically, a valuable support of German seafaring and German navigating.

The SA Sanitation Men

The “Sani” men, the sanitation men of the S.A., were already at hand in the fighting period if it was necessary to bring help to injured comrades. Endless numbers thanked the S.A. for these S.A. sanitation men of the fighting period. And from these simple men came physicians for body and soul, who continuously struck the correct note and whom one knew could be depended upon in every situation of life. If security and peace rule internally at present, the S.A. sanitation men have not indeed become superfluous. The Service in the S.A. which is continually prepared for use, brings with it physical danger, and many injuries can be avoided or lessened by speedy aid. Be it hot weather or frost, mischance or sudden sickness, the “sani-men” are at their post. Highest demands, however, are placed on them if, at time of catastrophe medical assistance is not sufficient and the life of many depends upon the success of appropriate initial treatment. Then the S.A. sanitation men fall to the task and give their utmost. Unnamed and unknown they do their duty in the spirit and tradition demanded by the organization to which they belong.

The “Feldherrnhalle” Regiment

Under the symbol, which for us National Socialists is the embodiment of supreme preparedness to sacrifice, the sacrificial runic symbol, the S.A. has created a troop which is set up to symbolize the political soldiery of our time: The Feldherrnhalle Regiment. The fact that the Supreme S.A. Fuehrer, Adolf Hitler, has appointed his tested comrade, S.A. Obergruppenfuehrer Hermann Goering, as its chief, proves the high calling which falls to the lot of this regiment today and tomorrow. As the elite troop of the S.A. it seeks to be the shining example in service and in obedience.

The measures are very strict which have been laid upon this young body of men who have assigned their lives to this regiment. Yearly young men from all callings and skills of the people thrust themselves into this original body. Differences of heredity or property are unknown. Here it is only the man, his performance and his obligation to obey as an ever ready S.A. man the commands of his leader, which has worth.

Every possibility stands open to him who proves himself true in this regiment. He who has performed his year of service may decide to remain or return to his calling. Likewise it is possible to work his way up into the main offices of the S.A. headquarters or to enter the administrative service; the decisive factors for that, frankly, are the capabilities of the candidate and the possibilities for their use in the political life of the people.

In six great camps, which lie scattered in the whole Reich, a valuable work of education is consummated for many hundreds of apt persons. The political value of this work cannot be grasped by bare numbers and dry statistics. These are not decisive factors; it seems to us to be much more essential and for the justification of this information of political soldiery, that out of the training of the Feldherrnhalle Regiment, National Socialists go forth who shall do their part to assure the continuation of that work begun by Adolf Hitler. For this reason there belongs in the Feldherrnhalle regiment the concepts of discipline, voluntary subordination, and leading a soldierly life as first prerequisites and basic conditions for the acceptance of future members.

Out of the apparent forms of political life developed by the present emulating in their behavior the proven example of the old S.A., the Feldherrnhalle regiment professes itself to the concept of a soldierly life. It unites in its ranks young, consciously political individuals who voluntarily wish to live their lives in hardiness and soldierly strictness.

The Reichsfuehrer School

Selection of officers and planned education of officers was the innovation drawn into the circle of political work of the Party after the seizure of power. An effective instrument for such officer training is the Reichsfuehrer School in Munich created in 1931 by the Fuehrer. Many thousands of S.A. officers are oriented here in accordance with the perceptions of the fighting period in their new form and have been trained and then, supplied with knowledge and ideological learning, have gone out into their units where they impart to those whom they have to lead, the Front of the political struggle of the present and their experiences and recently gained insights.

The work of the Reichsfuehrer School today is set aside to bring the synthesis of body and mind very near to the ideal form. All technical means are employed to do that. In a nine months course of study the future S.A.

officers are introduced into all spheres of political life. The Reichsfuehrer School desires to stimulate self-created labor, to teach meditation, and to shape the young S.A. officer into a consciously strong charactered, political personality. Body, mind, soul—one cannot be thought of without the other. A hardy physical training, strict measures about health and racial values and continued supervision of the life being led are valuable, but are also indispensable expedients for strict and serious work.

A second task has been given to the Reichsfuehrer School with the comprehensive two weeks labor conference which takes place yearly in the time after the Reich Party Day, and is for the older unit officers from regimental commanders up to, and including, staff divisions. At these labor conferences the political balance sheet of the year is reckoned. Consequently, the Reichsfuehrer School has an outstanding part in the political training work of the Party. The success of the education of future officers will perhaps become apparent only in later decades, but even today the goal stands out in a clearly recognizable fashion: the individual German trained in National Socialism, hardened in mind and strength, and firm in character.

The Reichsfuehrer School of the S.A. in Dresden is guided according to similar directions. For special training of particular units there is at the disposal of the S.A. the Reich Sanitation School in Tuebingen and the Reich Cavalry School in Zehlendorf.

III. PROSPECTUS

The Law of Willingness to Volunteer.

In the beginning of the fight there was the Party and the S.A. The goal, tasks and changing requirements of the fight have led to the establishment of the branches of the Party out of the great collecting basin of the S.A. The strong impulses which emanated from the S.A. have been carried over into the labor of all branches of the Party. All branches fulfill their work at present according to their own laws and responsibilities. Most of their officers, however, and many of the men have marched in the ranks of the Storm Troops, and, thus at present there lives and works in these branches the further quality which we call the S.A. spirit.

“The fight continues”—that was from the start the password of the S.A. and will continue to be for all time. Never has the S.A. man fought just to be fighting, and never to be destructive, but he has fought only to be constructive. And only for that reason can the Fuehrer extend tasks to the S.A. in the new State, which have a decisive significance.

Our comrades in the past years in Austria have demonstrated with what spirit the S.A. is blessed. They were unshaken in avowal to the Fuehrer, in belief in the strength of blood, and in fidelity to their native place. They have fixed for themselves a monument to the S.A. spirit which will always renew itself. Their sacrifice was a cornerstone of liberty. They were proud to be permitted to suffer for Germany. Fate has let these men and their families go along a path whose milestones were need, hate, suffering, terror, and pursuit. Many have sacrificed their lives, and for many, who sat behind dungeon and prison walls, the hope of liberty had sunk away to nothing, and, yet not one word of bitterness came past their lips. He who fought thus is worthy of being called a German and an S.A. man.

A few months ago the S.A. men of Austria still stood in the midst of bloody fighting, and yet now they work in peaceful construction. Thus the S.A. in German Austria became the peace army of the people in the National Socialist State. The S.A. was only able to master this task because the goal always remained the same and they marched along all paths which the Fuehrer commanded, and because the voluntary will to serve is the supreme law of National Socialism.

Today the S.A. stands before the great task of being guardian and fashioner of the armed desire and armed strength of the German people. Its devotion, its preparedness to sacrifice, its belief in the idea, and its soldierly, combatant attitude will create and preserve in the German people that physical fitness and armed preparedness which the Fuehrer and the Reich need and without which a people cannot live.

Great achievements are only produced with unheard of personal application based upon voluntary will. And this law of voluntary service is the key to preparedness and successful labor of the S.A. Not spectator, but active participant is the password of the S.A. in all things it takes hold of.

The Storm Troops have made their way through most difficult trials. They have withstood them because this nucleus troop bears in it unshakeably the

spirit of unconditional fidelity and unconditional obedience to the Fuehrer. The S.A. exists today stronger and firmer now and forever. It knows that the Fuehrer will also assign to it in the future new work spheres. The Storm Troops are ready to fulfil the commands of the Fuehrer and his charges with complete application because they desire in all things to be nothing other than the bearers of the Idea, the strong arm of the Movement, the secure support of the people and the German people's infantry, prepared to sacrifice and happy to attack.

TRANSLATION OF DOCUMENT 2169-PS

Copy

SS Garrison-doctor
Kl. Hmb.-Neuengamme

Hmb. Neuengamme
29 March 1945

Az.: 14 h (Kl) 3.45/Tr./Um.—

Subject: Quarterly Sickreport on Internees of Concentration Camp Hmb.-
Neuengamme

Re: Circular from there dated 27-12-1944 No. 242/Az.:14 h
(Kl.)

Attachments: 2 Diagrams

Date: 1-4-1945

To the Head of the Medical-Service at SS Chief office of Economic
Administration [Wirtschafts-Verwaltungshauptamt] and Chief of Bureau D
III

Oranienburg

I. Concentration Camp

1. The average number of internees in the Concentration Camp Hmb.-
Neuengamme during the quarter of the year reported on amounted to
40,393 (including the affiliated working camps).

In addition there is an average of 11,768 female internees.

2. There were 6,224 death cases during the quarter of the year reported on
(from 26-12-1944 to 25-3-1945), among them 95 female internees. Of this
number the following deaths have occurred in the affiliated camps:

Base-Camp	Hamburg	944	deaths
”	Bremen	515	”
”	Druette	102	”
”	Watenstedt	298	”
”	Reimstedt	9	”
”	Porta	89	”
”	Hannover	453	”
”	Braunschweig	198	”

Affiliated Camp	Meppen-Versen	379	”
”	Woebbelin	53	”
	Total	3,040	deaths
	at concentration camp Hmb.-Neuengamme	3,089	”
	Total deaths	6,129	
	In addition of the female internees: 95 deaths		

3. The average number of internees in the hospital buildings I, II, III, IV, and V during the quarter of the year reported on amounted to *1711* daily.
4. During the period of time reported on *815* internees daily were treated without being hospitalized.

SS Garrison doctor Kl. Hmb.-Neuengamme
SS Captain

COPY OF DOCUMENT 2171-PS

Report B-2833

THE NUMERICAL EXPANSION OF THE CONCENTRATION CAMP BUCHENWALD DURING THE YEARS 1937-1945

(Based on the complete records of the competent service units)

PREFACE

The following figures are compiled from authentic material that the SS in their flight from the camp were unable to destroy. Particular attention is called to the fact that every number can be substantiated by the personal records of the prisoners in question.

I

In July 1937 the first advance headquarters of the so-called professional criminals arrived on the completely unimproved, untouched wooded terrain of the Ettersberg near Weimar for the construction of a new large concentration camp. At the time the SS had not yet named the future camp and called it KL Ettersberg. The first roll call was made on 19 July 1937 and recorded 149 prisoners. On the following day 70 prophylactic prisoners, that is to say so-called professional criminals from the KL Sachsenburg, arrived. On the 27th of July the first 91 political prisoners, among them 7 Bible research students also arrived from the KL Sachsenburg. On the 29 July 1937 the name “KL Buchenwald” appeared for the first time in the official correspondence. At that time the number in the camp had increased to 327 persons. On 30 July 1937 600 prisoners from the KL Lichtenburg were added and another convoy from the Lichte [Lichtenburg] arrived on 6 August 1937.

On the lists of the Reich’s German nationals the name of Hermann Kempek appears as the first deceased, who died on 13 August 1937 in Buchenwald. The two next dead persons are already reported on 15 August 1937.

Additional convoys followed from Sachsenburg and the Lichte individual arrivals were also recorded. The total number of arrivals in the year 1937 amounted to 2,912 persons. By 1 January 1938 already 48 or 1.65% of them had died.

The last roll call made by the SS took place on 3 April 1945. At the time the number of prisoners in the camp amounted to 80,011 persons. On 11 April 1945 the victorious Allied troops liberated the concentration camp.

The expansion of the concentration camp is shown in Table 1, which gives the total number of arrivals and the deceased for each year.

Table 1

<i>Year</i>	<i>Arrivals</i>	<i>Deceased</i>
1937	2,912	48
1938	20,122	771
1939	9,553	1,235

1940	2,525	1,772
1941	5,890	1,522
1942	14,111	2,898
1943	42,177	3,516
1944	97,866	8,644
1945 (3 month)	43,823	13,056
Total	238,980	33,462

It is self-evident that under normal living conditions only a minor fraction of these 33,462 persons would have died. Most of them had reached the best years of their manhood. The living and working conditions in Buchenwald were such that every one could easily contract a serious illness, especially during the first months, owing to the sudden and violent change in their daily habits of life. In Buchenwald a serious illness resulted nearly always in death, because during the first years no medical help was dispensed or was so inefficient that the hope of a recovery was perforce without any prospects.

The number of unnatural deaths also reached a shocking figure. In desperation many chose voluntary death by hanging themselves or touching the electrically charged wire fence. In addition in the KL Buchenwald, like everywhere else where the SS and the Gestapo were in charge, numerous prisoners were shot “in flight”. This “shooting-in-flight” was often conducted after a certain pattern by forcing the prisoners in the labor units to cross the line of guards. This happened especially in the stone quarries, where they were maltreated to such a degree that in desperation they could find no other way of escape. The nearest SS guard would shoot them down only a few yards beyond the line. In the following Table 2 are not included those who were wounded by rifle fire or those who died in the camp area from the results of the maltreatment they received.

Table 2

<i>Year</i>	<i>Number shot while in flight</i>	<i>Number who chose voluntary death</i>

1937	7	—
1938	34	11
1939	9	3
1940	89	11
1941	16	17
1942	48	3
1943	46	2
1944	no accurate record	46
1945	no accurate record	16

A satanical asphyxiation installation equal to the one in the KL Auschwitz was not erected in the KL Buchenwald. The SS probably feared that they would not be able to keep the secret in the most densely settled part of Germany. But this does not mean that we were spared such installation in Buchenwald. Already on 13 July 1941 a convoy was formed consisting of 94 “invalids”, German Reich nationals and Poles, for the greater part but not exclusively Jews, and taken to Hohenstein near Dresden, guarded by heavily armed SS troopers. On the following day 93 more were dispatched. Several days later their clothes, including their personal effects, false teeth, etc., were returned to Buchenwald. In so far it became known at that time these persons were poisoned by gas at the place of their destination. It is probable that the SS had already at that time perfected its asphyxiation chambers and tested them. On 2, 11 and 12 March 1942 further convoys followed containing 285 prisoners, exclusively Jews.

Beginning Fall 1942 increasingly larger mass transports and individual transports of Jews, who had already been a long time in the camp, to KL Auschwitz took place, where unquestionably they were murdered. For this reason these prisoners were probably not entered on the records of the KL Auschwitz. In detail it concerns the following transports:

27 July 1942 163 prisoners, among them 119 Soviet PWs.

26 Sept. 1942 200 gypsies.

6 Oct. 1944 1,183 Jews.

It can no longer be determined today how high the number of the individual transports ran, but it is definite that these individual transports were carried out on special instructions from Berlin.

Since the beginning of the war a continually rising number of executions were carried out in the KL Buchenwald. The shooting or hanging of individual persons or of certain categories of prisoners took place on the basis of the orders issued by the SS Reich Management without any judicial verdict. Three executions in the KL Buchenwald by hanging were performed in public, that is to say, before the entire assembled camp inmates on the roll call grounds. The first prisoner was hung on 4 June 1938, the second on 21 December 1938, both of whom had beaten down their SS guards in their flight from an advance headquarters on 8 May 1938. The victim of the third execution on 13 September 1944 was a recaptured fugitive.

When other prisoners in the camp were to be executed they were called to the entrance and taken away. Exact figures can only be given with certainty for the years 1944 and 1945, because until then such prisoners were recorded as being turned over to the Gestapo and it is no longer possible to determine now which were actually turned over and which only allegedly. In the year 1944 at least 177 and in 1945 at least 54 prisoners of the camp were executed.

The mass executions of Soviet prisoners of war, officers, political officers and troops were introduced. However, Polish officers, German officials and higher ranking officers as well as German and foreign women were executed in Buchenwald. At that time the execution places were installed in the DAW terrain and in the horse stable and the crematory was considerably enlarged. Upon arrival, those destined to be executed were not entered on the camp records, but were separated from those arriving simultaneously in the normal course of procedure and handed over to the Court of Justice Division for "special treatment", which in official language meant, for execution. Unfortunately the SS had already destroyed on 1 and 2 April 1945 all the relating documents therefore no figures of any kind can be quoted.

Based on the observations of the prisoners it would seem that approximately 7,000 persons were executed.

Furthermore to the total number of those who died in the concentration camp Buchenwald must be added the others who were killed in April 1945 during the retransport from the advance headquarters to the camp, in the advance headquarters itself and on the march. In addition innumerable others must be added, who during the evacuation of the camp died in other camps en route.

If on the whole the number of the victims of death is set at 50,000 this frightful figure will not be estimated too high.

II

The development of the camp shall now be followed in all its details.

The camp strength rose gradually after 1 January 1938 until it reached the figure of 3,000 on 1 May 1938. Then the phase "Arbeitsscheu Reich" (shirking to work for the Reich) set in. The first "asocials" 5 May 1938. Larger transports of a total of 1,000 "asocial" Jews arrived on 14 and 15 June 1938. With this event the camp strength jumped and reached its first high point of 7,968 on 7 August 1938. The number of the dead also jumped. Whereas the number of dead prisoners amounted to 4 in April 1938 it amounted to 16 in May, 62 in June and 105 in July.

In the following months the camp strength slowly decreased through deaths and discharges and only amounted to 7,791 persons on 1 September 1938. The first foreigners arrived in September 1938, namely, in round figures, 2,200 Austrian Jews from the KL Dachau. This influx increased the camp strength to 10,471 on 1 October 1938.

In November 1938 the notorious great movement against the Jews in the Third Reich was carried through, which Hitler tried to justify by referring to the attempt on the life of the official of the German Embassy in Paris, von Rath. In a very short time the camp strength doubled itself. Whereas on 9 November 1938 it still amounted to 9,842, it had grown to 19,676 on 13 November 1938. No lodging facilities were available for such an increase. Temporarily the new arrivals were camped on the roll call ground and in the half completed sheep stable, until very primitive wooden barracks without any sanitary installations were erected alongside the roll call grounds,

which later became famous as the Blocks 1a-5a. During the first few days the SS had no clear survey that the keeper of the records would announce over the loudspeaker, “If another Jew hangs himself, will he kindly stick a piece of paper with his name on it in his pocket, so that one knows who he is.”

Where the Jews came from is given in the survey in Table 3.

Table 3

<i>Place of Origin</i>	<i>Number</i>
Giessen	138
Mainz	97
Kassel	693
Breslau	2,471
Dresden	151
Magdeburg	375
Chemnitz	171
Leipzig	270
Oppeln	703
Bielefeld	406
Meiningen	91
Dessau	85
Darmstadt	169
Frankfurt a/M	2,621
Friedberg	99
Erfurt	197
Halle/Saale	124
Hannover	316
Nordhausen	89
Aachen	135

Wuerzburg	103
Eisenach-Gotha	112
Offenbach	82
Worms	87
Various small places in Thuringen	689

This increase in the camp strength not only resulted in a definite but also in a greater percentage number of death cases, as indicated in Table 4.

Table 4

<i>Period</i>	<i>Number of deaths</i>	<i>Average Camp Strength</i>	<i>Deaths in % Camp Strength</i>
Oct. 10-Nov. 9, '38	53	10 156	0.52%
Nov. 10-Dec. 12, '38	244 ^[4]	17 262	1.41%

FOOTNOTES:

^[4] Among them 3 unknown dead and 3 suicides.

At that time the first construction work of the concentration camp and the necessary troop billets were finished in the rough. The SS sent their prophylactic prisoners to new places for the erection of other camps and SS barracks. The first professional criminals were sent to Camps Mauthausen and Flossenburg on 3 November 1938. Other Transports followed shortly. The "Actions-Juden" (Jews arrested during the movement or campaign against them) were also discharged after a comparatively short time, that is to say, after plundering them and requisitioning their property, they were for the greater part expelled from the Third Reich and upon leaving the camp had to immediately board a ship or cross the frontier. Through these proceedings and the inclusion of death cases the camp strength went down

to 8,650 in round figures by the end of February 1939 and stayed at this level, for the time being.

III

Immediately after the beginning of the war the camp strength rose anew. At that time the “Aktions” prisoners, Reich nationals and Austrians unfit to carry arms, arrived. Also the Czech hostages from the Protectorate were delivered as the next batch of foreigners in September 1939 amounting to a total number of 756, some of them coming from the KL Dachau. At the start of the war the KL Dachau was completely evacuated and on 26 September 1939 no less than 2,200 prisoners were transferred to Buchenwald.

On 5 October 1939 members of the Polish minority in Germany numbering 181 persons followed.

After the conclusion of the Polish campaign Buchenwald experienced a grim and tragic sequel in the action taken against the so-called Polish snipers and other Poles coming from those parts of Poland which belonged to Germany before 1918.

On 15 October 1939 and 16 October no less than 1,000 and 1,098 Poles arrived and were put in tents under the most primitive and barbaric conditions on the half-finished roll call grounds, where they received only half of the amount of the food furnished to the other prisoners. The terrible results of this annihilation process is reflected in the comparison of the death cases. In the period 16 September to 15 October 1939—44 prisoners died in the KL Buchenwald, and from 16 October to 15 November 1939, therefore in the same space of time, 6.4 times as many, or 283 prisoners.

After the attempt on Hitler's life in the Buergerbraeu in Munich on 9 November 1939 a new terror deed by the SS filled the camp with a shuddering and paralyzing fright. The 9 November was a holiday and no work was being done. In the morning under the command of the SS Staff Sergeant Blanck heavily armed SS soldiers appeared and without any list or records selected at random 7 men from each block of Jews, mostly young ones. Thereupon, without any further explanation, they were marched to the stone quarry and shot down. The particulars of the records of these 21 victims are known.

The unbelievable bad conditions, especially the sanitary ones, in the special camp of the Poles, spread to the rest of the camp. The epidemics in the camp and the fear of contagion on the part of the troops forced the SS to quarantine the camp. Individual additions arrived only in exceptional cases. From 1 November 1939 to 30 June 1940, i.e. in 8 months, only a total of 131 additions arrived. Correspondingly the discharges from the camp were almost completely discontinued. Therefore, it was in the main the death cases which in this first winter of the war, owing to the miserable nourishment, hunger and dysentery, caused a decrease in the number of prisoners from 12,841 on 24 October 1939 to 7,986 on 1 May 1940. Death took an especially high toll among the Burgenland gypsies confined in the camp. In the aforementioned figures showing the decrease, a transport of 1,000 prisoners on 6 March 1940 and one of 3,000 on 14 April 1940 sent to the KL Mauthausen, is included. Who ever knows the reputation of this newly erected camp in Mauthausen must also know that not many of these prisoners remained alive.

A larger number of additions to the camp only began to arrive again in August 1940, namely again 1,100 Poles in two transports from Posen. In the following winter the camp strength remained about the same and averaged in round numbers about 7,500 prisoners.

(Hitler had promised a very generous pardon decree for his 50th birthday. It consisted in discharging in round figures 2,300 mostly “asocial” prisoners. Later delayed pardon act reduced the camp strength from 6,363 on 1 May 1939 to a low figure of 5,376 on 21 August 1939.)

IV

The first results of the Western Campaign soon manifested themselves in Buchenwald. Already on 2 July 1940 delivery of 216 Hollanders was made to the KL Buchenwald, mostly high-ranking officials and officers as hostages, and was followed by an additional 111 on 8 and 9 October 1940. The last Dutch hostages arrived on 23 August 1941. They were isolated in a block from the other camp inmates like the preceding ones, and were conceded certain modest facilities. A selected few of them were discharged during the year. The main body, however, remained in Buchenwald until 15 November 1941 and were then transported to the vicinity of Herzogenbusch.

In the beginning of 1941 the German security police raided the Amsterdam Jewish quarter after a strike and abducted for transfer to Buchenwald 389 Dutch Jews on 28 February 1941. They were immediately employed in the hardest physical work and in this manner destroyed. The balance of them, 341, with 350 other prisoners were transferred to the KL Mauthausen on 22 May 1941.

Finally it should be mentioned, that a large transport of 2,000 prisoners arrived from the KL Dachau at the beginning of the Summer of 1941. In contrast to Buchenwald the construction regarded as a sort of recreation camp to which invalids and sick prisoners were sent. When they had recuperated they were again sent to other camps for heavy enforced labor. More will be told later about these “transfers”, as they were officially termed, from one camp to another.

The aforementioned addition and transports, augmented by the regular additions which were delivered two or three a week from the police prisons, caused the camp strength to rise from the low figure of 6,705 on 1 June 1941 to 8,370 prisoners on 1 October 1941.

V

On June 22 1941 Hitler invaded the Soviet Union. The delivery of 2,000 Soviet prisoners of war was the first direct effect on the camp on 18 October 1941. The SS troopers could not prevent the joyful reception of these prisoners of war by the camp inmates who provided them with additional bread, food, tobacco and other articles. The whole camp was punished and especially certain individuals who attracted most attention. The prisoners were also strictly isolated from the others and their barracks provided with a sign having the inscription “prisoners of war”.

Probably Soviet reprisals were feared and they did not want to give the impression that the prisoners of war had been turned over to a concentration camp. Nevertheless they were subjected to the same strict camp discipline as the other prisoners and in the first months especially the quality of their food was considerably inferior. They were compelled to do the hardest physical work. Details of the future fate of the prisoners of war will be reported later. A transfer of 1,000 of them to the KL Mauthausen was made on 19 May 1942. In the following months and years more Soviet prisoners of war were delivered. At the end there were 821 prisoners of war in the

camp which were evacuated in one group, when during the last days before the liberation the SS began to clean out the camp.

The camp strength rose to 10,342 persons with the arrival of the prisoners of war on 16 October 1941. During the winter of 1941/42 the figure slowly decreased and on 12 March 1942 amounted to 9,770 prisoners. On that day and the following one two large transports departed from the camp one on 12 March 1942 of 400 to the KL Natzweiler and one of 800 to the KL Ravensbrueck. The SS apparently tried to break the anti-fascist character of the camp by these transfers, which had manifested itself especially in its attitude toward the Soviet prisoners of war. Many long term political prisoners were sent away without any consideration. Undernourished and badly billeted they were forced to the hardest kind of physical labor in the new camps, so that the majority of them died and only a few were able to return to Buchenwald after a long time with other transports. After the departure of the transports the camp was again strictly searched for German political prisoners and a number of them isolated in a special company for hard physical labor. This matter will also be treated by another source in a special report, therefore, it will not be necessary to go into details at this time. These transports and the aforementioned transport of 1,000 Soviet prisoners of war to the KL Mauthausen reduced the camp strength on 1 June 1942 to the figure of 7,601, due to the relatively minor additions.

About this time, Sauckel, the Gauleiter of Thuringia and Hitler's General Deputy for labor Employment, began to abduct on a large scale the population of the occupied eastern territories for forced labor in Germany. Partly voluntary, with a naive belief in the promises of the Nazis, and partly concerned they came in large mass transports to Germany for employment. Already at the beginning the Germans must have recognized that many undisciplined and politically undesirable "elements" were to be found among them, which threatened to endanger peace and order.

They were harshly treated and locked up for minor infraction in the punishment and concentration camps for "commitment to labor", which in other words meant life-long slavery. No trouble was taken to determine in the individual cases the question of guilt. No one felt responsible for the fate of the abducted. The SS demanded and received their share of the booty derived from this unpaid labor and exploited it without any consideration and brutally for their own selfish purposes.

Beginning 1 June rapidly increasing numbers of Ukrainian, Russian, Tartar civilian workers and former prisoners of war arrived in the camp. In addition the normal collecting transports abducted people of all the various nations and of every age to the Ettersberg. Within a very short space of time the camp was inhabited by persons from 25 countries from all over Europe and overseas, one might say, shortly from nearly all the countries in the world. At the end for 1944 nationals from 36 different countries were imprisoned in the camp. If the influx let up, the Reich leader of the SS would issue new decrees on the basis of which new raids and actions were carried out causing the inflow to increase again by leaps and bounds.

The SS also understood how to procure slave labor from inside Germany. Beginning December 1942 the judicial authorities had to turn over in part their cheap labor employees to the concentration camps. A decree was issued which ordered the transfer of the prisoners of the courts of justice to the concentration camps for labor commitment. Committees visited the penal prisons and shortly thereafter pronounced criminals (murderers, persons guilty of manslaughter, persons guilty of moral turpitude) sentenced to long and life-long penal imprisonment were sent from the penal prisons Saxony, Thuringia, Hessen, the Rhineland and Westphalia, as well as from the Province of Brandenburg, (were sent) to the KL Buchenwald. Many of them were used as “guinea pigs” in the spotted fever barracks, while many others, accustomed to living for years in confined quarters, died, because they could not endure the sudden transition to a life in the open during the winter and in the spring.

If some of the concentration camps were overcrowded or workmen were needed at certain points, whether for the construction of airdromes, defense fortifications or barracks, or even for the completion of castles, country houses and homes of individual high-ranking SS officials and their staffs, the private slaves of the SS were dragged, without any consideration from one camp to another. Further developments are shown in Table 5, in which the camp strength and the number of the addition for the 12 months from 1 June 1942 to 31 May 1943 are given.

Table 5

<i>Month</i>	<i>Camp Strength</i>	<i>Additions during</i>	<i>Special Transport</i>

	<i>beg. of month</i>	<i>month</i>	
June '42	7,601	1,019	On 5 July—300 invalids
July '42	8,000	1,996	and 51 clergymen to Dachau.
Aug. '42	8,849	1,715	
Sept. '42	9,886	1,709	500 from KL Dachau
Oct. '42	10,075	984	13 Oct.—619 to KL Sachsenhausen. 17 Oct.—405 to KL Auschwitz.
Nov. '42	8,831	794	
Dec. '42	9,092	1,044	
Jan. '43	9,517	2,500	On 23 Jan. 43—843 foreign workers from Duesseldorf.
Feb. '43	11,275	1,291	
Mar. '43	11,920	2,474	The first in the small camp.
Apr. '43	12,461	2,773	On 5 Mar.—500 to KL Dachau.
May '43	13,326	2,939	On 23 Mar. to Riga.
31 May '43	14,441		On 3 Apr.—933 Poles from Lublin. On 12 Apr.—339 from KL Wewelsberg.

In what manner the terrible conditions in the overcrowded German concentration camps and the pitiless exploitation of the prisoners crossed the plans of the higher authorities of an increased production, is revealed in a communication of the SS Main Office of the Economic Administration. According to this letter, the total number of additions in all the German concentration camps in the 6 months from June to November 1942 amounted to 136,780, whereas 70,610 died in the same period. (See copy of the document in Annex IV.)

The Germans had to leave the Soviet Union after the decisive defeat at Stalingrad. During the retreat all the still available manpower reserves were combed out everywhere. Men and women, children and old men were dragged off to Germany. A great number of them were not even employed as foreign workers, but instead immediately delivered to the concentration camps. In the Fall of 1943 the following transports from the still occupied parts of the Soviet Union arrived in Buchenwald.

Table 6

<i>Date</i>	<i>Origin</i>	<i>Number</i>
26 Aug. '43	Dnjepropetrowsk	998
29 Aug. '43	Dnjepropetrowsk	781
19 Sept. '43	Dnjepropetrowsk	1,362
5 Oct. '43	Nikolajew	604
10 Oct. '43	Kiriwograd	529
31 Oct. '43	Kiew	233
1 Nov. '43	Kiriwograd	318
28 Nov. '43	Nikolajew	192
24 Mar. '44	Nikolajew	377
		5,394

Women and children also arrived with these men here. They were not allowed to enter the camp, but were passed on directly to the women's concentration camp, or an exception was made, and they were temporarily billeted for one or two days until they were transported to other places.

At the same time conditions in France also took an unfavorable turn for the Third Reich. After the defeat on the East Front the lack and in correlation the want of manpower rose in Germany. Sauckel went to Paris and negotiated with Laval for the delivery of forced labor. This development reflected itself in the KL Buchenwald by deliveries of French prisoners of war from the German concentration camp in Compiègne. The poetical talents of the German Security Service and its sneering attitude toward these victims expressed themselves in designating this action as the

“Meerscham Operation”, which was followed in 1944 by another operation termed the “Spring Zephyr”. The large mass transports which arrived in KL Buchenwald from the West are compiled in Table 7.

Table 7

<i>Date</i>	<i>Number</i>	<i>Origin</i>
21 May '43	50	Compiègne via KL Mauthausen
27 June '43	962	Compiègne
4 Sept. '43	896	Compiègne
18 Sept. '43	926	Compiègne
30 Oct. '43	911	Compiègne
16 Dec. '43	921	Compiègne
19 Jan. '44	1,940	Compiègne
24 Jan. '44	1,991	Compiègne
29 Jan. '44	1,580	Compiègne
8 May '44	967	Brussels
14 May '44	2,052	Compiègne
14 May '44	1,667	Compiègne via KL Auschwitz
22 May '44	891	Brussels
19 June '44	574	Brussels
3 July '44	435	Compiègne
6 Aug. '44	1,080	Compiègne
10 Aug. '44	827	Compiègne
20 Aug. '44	1,650	Compiègne
21 Aug. '44	1,246	Compiègne
5 Febr. '45	285	Penal Prison Gross-Strehlitz
Total	21,851	

Frenchmen and Belgians formed the bulk of these transports. However, all these transports also contained nationals of other countries, who were living temporarily or permanently in France, and were also delivered to Buchenwald.

The stream of mass transports stopped after the Red Army had reconquered the greater part of the Ukraine. However, many “normal” additions continued to arrive, i.e. prisoners from the Germany prisons, but also 90% foreigners, who were sent to the concentration camps on the orders of Himmler. Nevertheless, these additions could not have covered the disastrously increased demand, brought about by the inconsiderate waste of manpower, if the SS had not uncovered new sources.

Beginning in the early summer of 1944 Hungarian Jews were dragged into German slavery in undiscernible masses. They were followed in August by the civilian Polish population evacuated from Warsaw.

It is characteristic of the continually increasing catastrophic shaping of the conditions in the Third Reich, that the services conducting the arrests were no longer in a position to properly register the prisoners. Whereas the transport directing services sent lists along containing the records of the prisoners in the first mass transports from the Soviet Union, France and Belgium, such lists did not accompany the Hungarians and Poles coming from Warsaw.

Most of these transports passed through the KL Auschwitz where the prisoners probably were subjected to a first examination. Whoever appeared fit for work was provided with some scant clothing and after a few days sent on. In Auschwitz they were designated as “Transport Jews”, and no one took the trouble anymore to review their records. That work was left to the concentration camps to which the individuals were finally committed. The SS regarded the labor commitment as their first duty, and the prisoners engaged with the reception of the additions were faced with the greatest to determine the records of the additions so that the SS would not simply use them up as numbers. Only the fact that we insisted on carrying out the still existing order regarding the reception of the additions and did not ignore the regulations, which would have greatly pleased the SS it is now possible to report—who passed through the camp, who died in the camp—and in the

near future it will be possible to give information to the brutally torn apart family members, relatives and acquaintances on the fate of their relatives.

The same applies to the Hungarian Jews, the Poles evacuated from Warsaw, the Polish Jews, Poles, Estonians and the Lithuanians, who had been interned in the labor camps in the East. They had been committed as foreign workers and in part had lived together with their families. When the demand for labor arose and with the approach of the Red Army in spite of the fact that they were not guilty of any transgressions, they were dragged off to the German concentration camps. In many cases these separations only took place here upon their arrival at the railroad station; where the families were ruthlessly torn asunder, parents from their children, husbands from their wives, brothers from brothers and sisters from sisters.

During the Summer and the Fall of 1944 the following transports from the East arrived in the KL Buchenwald.

Table 8

<i>Date</i>	<i>Number</i>	<i>Type of Prisoners</i>	<i>Origin</i>
24 May '44	1,000	Hungarian Jews	Auschwitz
2 June '44	1,000	Hungarian Jews	Budapest
18 June '44	1,000	Hungarian Jews	Auschwitz
16 July '44	2,500	Hungarian Jews	Auschwitz
5 Aug. '44	1,459	Polish Jews	
13 Aug. '44	2,651	Evacuated Poles	Warsaw
15 Aug. '44	1,999	Evacuated Poles	Warsaw via Auschwitz
9 Nov. '44	615	Hungarian Jews	Graz
18 Jan. '45	2,840	Polish Jews	
20 Jan. '45	1,446	Polish Jews	

Also other domestic political events reflected themselves in new additions for the KL Buchenwald. After the disturbances at the University of Oslo 349 Norwegian students arrived at Buchenwald on 13 January 1944. Due to the intervention of the Swedish government they were better treated than the other prisoners. They were housed apart from the others, kept their

civilian clothes, received the same food as the troops and for several months were given instruction courses and political education by SS instructors. Evidently they were to be converted to Nazism. The efforts of the SS, however, were in vain. Not one volunteered for the SS. Therefore 117 of them were first sent to a SS camp on 7 July 1944 and the rest of them on 23 October 1944, where they had to do heavy work on the field fortifications. When the Front moved closer they were evacuated from the SS camp and on 12 December 1944, with other Norwegian students who had not yet been in Buchenwald, making a total of 492 men, they were again delivered to Buchenwald. On 1 March 1945 they were evacuated to the KL Neuengamme.

In 1942 a change swept over the German concentration camps—instead of being detention camps for political opponents they became labor camps for the German war industries. Early in 1942 the high-ranking SS leaders organized the DAW [Deutsche Ausrüstungs-Werke-German Equipment Works]. The DAW paid the camp administration a modest sum for the services of a prisoner with the result that the camps soon became self-supporting and the stockholders, having friendly relations with the military authorities and cheap labor at their disposal, were soon counted amongst the greatest war profiteers. Thusly, they had found a new means for garnering profits for the SS and its leaders out of state monies. For example, the Camp Commander Pister of Buchenwald was elected a director of the DAW-Buchenwald at a considerable monthly salary.

A further development plants were constructed and installed with machinery in the concentration camps. A railroad between Buchenwald and Weimar was built in record time, and the so-called Gustloff Works, consisting of 13 immense workshops were erected in the immediate vicinity of the camp. In addition increasing numbers of prisoners were employed in existing equipment plants. Sauckel himself obtained the first prisoners for the Sauckel Works in Weimar. At first they were only employed there and transported back and forth daily in automobiles. At a later date an equipment headquarters with shelters for the prisoners was installed close to the factory. Further outside headquarters soon followed in pronounced Nazi plants such as the Hasag-Leipzig, and at other points.

The largest and the most terrible of the outside headquarters was soon provided with the cover name of “*Dora*” and mentioned only with fear and

fright by the prisoners. What at first had been only an assumption very soon became a certainty. The senseless and cruel V-weapons were a specialty of the SS. Their satanical plan provided for the construction of these weapons by those foreigners whose countries were to be totally destroyed by them. Possibly they also thought that the employment of prisoners isolated from the rest of the world would help to better guard their secret coupled with the hope that the Allied air power would not bomb the plants out of consideration for their countrymen. Everything in connection with the production was treated as a top-secret. Prisoners who were in the respective headquarters were designated as “secret carriers.” In so far as it concerned the Reich nationals and the Czechs, they had to be reported specially to the Main Office of the Reich Security, the Central Office of the Gestapo, to prevent the possibility of a premature discharge.

The most important centers of production were the outside headquarters “Dora” near Nordhausen/Harz, and “Laura” near Saalfeld/Thuringia. In the workshops Nos. 4-7 of the tremendous Gustloff Works separate parts for the V-weapons were also manufactured. At the “Dora” and “Laura” plants underground, bomb safe factories were constructed without any regard for the waste of manpower or the living requirements of the prisoners as regards air, sleep or nourishment. One transport after another of unfortunates went to these outside headquarters from Buchenwald—never to return. The number of the victims of death soon reached record heights and was increased by the victims of explosions and plant accidents. Those who became unfit for work were sent to such isolated camps as Lublin and Bergen-Belsen, where they were for the greater part liquidated by gas poisoning or injections.

The civilian additions were not in sufficient numbers to fill the gaps, therefore new transports arrived continuously from other camps which after a few days in Buchenwald for the necessary recording photographing and physical examination, were passed to the notorious outside headquarters.

The Service Group Command D of the Economic Administration Main Office in Berlin-Oranienburg was the Central Office for the distribution of the labor forces to the German concentration camps. Orders were issued from there as to how many and what type of prisoners were to be transported to other camps, that is, how many prisoners were to be committed to labor by the various outside headquarters. At first this Service

Command issued a strict order that no political Reich nationals were to be shipped in these mass transports. The administrations of the various concentration camps strictly observed this rule in their own interests, not because they wanted to spare these Germans but because they were needed to perform the administration and disciplinary duties which the SS really should have handled had it not been for their lack of capability and ambition. We prisoners, therefore, had the great advantage of regulating many things ourselves, which by direct intervention of the SS would have aggravated considerably the already insupportable living conditions of all the inmates of the camp. Furthermore it is evident that every SS commander endeavored to keep his trained people because the new prisoners would only have meant trouble and work. In addition, regulations from the Reich Security Main Office forbade sending certain prisoners with the transports to assure a degree of isolation. Except for a few individual cases, this regulation applied in particular to the half-jews. On orders of the Reich Security Main Office all these as in Germany arrested “half-breeds”, Grade 1, as they were officially designated, were sent to Buchenwald and were not allowed to be transferred to another camp. Thusly it came about, that when larger transports were assembled, especially for the notorious outside headquarters or camps, the least capable and the latest additions were selected from the blocks and commands and sent away again. At the new places these persons were just as unfit for labor as at the previous ones, in other words, they were undesirable. After their arrival they very often had to be quarantined for some time. The attempted regulation of the distribution from one central office and the increasing impossibility to control this manpower, resulted in thousands of prisoners being continually on the move. They therefore, could not be committed to labor as the paper records seem to indicate.

From the Fall of 1943 to the Fall of 1944 the transports compiled in Table 9 arrived in Buchenwald from other concentration camps, which for the greater part had already been destined for shipment to “Dora” and other outside headquarters.

Table 9

<i>Date</i>	<i>Number</i>	<i>Type of Prisoner</i>	<i>From KL</i>

22 Sept. '43	300	Mostly Russians	Gross Rosen
22 Sept. '43	210	149 Russians and oth.	Natzweiler
14 Oct. '43	650	373 Frenchmen 144 Russians and oth.	Ravensbrueck
17 Oct. '43	849	Mostly Russians	Mauthausen
19 Oct. '43	311	Mostly Russians and Poles	Stutthof
21 Oct. '43	300	Mostly Russians and Poles	Auschwitz
21 Oct. '43	200	Mostly Russians and Poles	Natzweiler
21 Oct. '43	506	Mostly Jugoslavs	Flossenburg
23 Oct. '43	1,539	Mostly Poles	Auschwitz
30 Oct. '43	1,025	Mostly Jugoslavs and Russians	Dachau
20 Nov. '43	375	Mostly French and Poles	Mauthausen
21 Nov. '43	417	Mostly French and Russians	Dachau
12 Dec. '43	200	Russians and Poles	Auschwitz
25 Jan. '44	400	Germans and Russians	Sachsenhausen
3 Mar. '44	421	Mostly Czechs	Auschwitz
11 Mar. '44	413	Mostly Poles	Gross Rosen
2 Apr. '44	202	Czechs	Auschwitz
7 Apr. '44	883	Gypsies	Auschwitz
28 May '44	350	Mostly Poles and Russians	Stutthof
24 June '44	2,000	Mostly Poles and Russians	Auschwitz
29 July '44	200	Russians and Poles	Bergen-Belsen
3 Aug. '44	510	Gypsies	Auschwitz
3 Aug. '44	400	Russians and Poles	Neuengamme

16 Aug. '44	1,350	Jews various nations	Stutthof
27 Sept. '44	1,085		Natzweiler near Dora
1 Oct. '44	1,500	Poles and Russians	Auschwitz

In this table transports of less 200 prisoners from other camps and transports which went directly to the outside headquarters without passing through the main camp, are not listed.

The greater number of these additions, as well as the afore mentioned additions from the East and West proceeded quickly and intact to the outside headquarters of the equipment industry and only the completely emaciated in the camps until they died of old age or decrepitude. After months of the severest physical labor in those headquarters under the worst living conditions (bad food, no rest even during their free time, with out any sanitary installations, during months no thorough bodily cleansing and no change of underwear) they either perished [or were sent to] miserable concentration camps Lublin, Auschwitz or Belsen-Bergen not for recreation—but for final liquidation. This exploitation of the work potential of their slaves to the last gasp was termed by the SS “shredding”. In this manner they reduced every one they could lay their hands on to shreds—Russians, Poles, Hungarians, Jugoslavs, Frenchmen, Jews and Christians—they would have annihilated the population of a whole continent, if the Allied armies had not put a stop to matters by their victorious advance.

By reason of all these transports from the West and the East and from the other concentration camps the number of the additions, the camp strength and the number of death cases rose as shown in Table 10.

Table 10

<i>Month</i>	<i>Additions</i>	<i>Deaths</i>	<i>Camp Strength end of month</i>
July '43	1,725	191	15,796
Aug. '43	4,537	118	19,641
Sept. '43	5,444	123	24,688

Oct. '43	9,048	109	33,377
Nov. '43	4,454	314	35,112
Dec. '43	3,734	967	37,319
Jan. '44	8,017	1,000	42,833
Feb. '44	1,979	880	41,240
Mar. '44	5,065	1,311	43,371
April '44	4,788	560	45,830
May '44	9,655	390	54,287
June '44	9,986	460	61,156
July '44	7,398	347	66,609
Aug. '44	17,170	742	82,391
Sept. '44	4,251	497	84,505
Oct. '44	6,728	770	55,473

On the 6 October 1944 the camp strength reached its highest figure amounting to 89,134 prisoners. On 29 October 1944 the auxiliary headquarters "Dora" became an independent concentration camp with the name of KL Mittelbau containing 32,532 prisoners who were at that time attached to the various auxiliary headquarters. The names of these prisoners were removed from the Buchenwald records and the camp strength reduced accordingly.

On 24 August 1944 at noon the equipment plants belonging to the concentration camp were bombarded and completely destroyed. Not a single high-explosive bomb fell into the prisoners camp but a few incendiary bombs, diverted by the wind, set fire to the prisoners tailor shop, shoemaker shop, laundry and the disinfection station without injuring a single prisoner. The SS had not provided air raid shelters for the prisoners, in fact they did not even allow the prisoners to go into the camp during an air raid alarm. The prisoners were compelled to remain in the workshops or in their immediate vicinity. Bomb proof shelters or trenches for protection against bomb fragment had not been constructed for the prisoners. During an attack the water supply was shut off in the entire camp. Prisoners who attempted to escape from the high-explosive and the incendiary bombs by

running into the open were shot down by the SS guards without mercy. Consequently, the air bombardment caused the death of 364 prisoners. It is not possible to determine now how many were shot down by the SS troopers. It is a fact however that Thaelmann, who allegedly was killed during the attack was an inmate of the Buchenwald camp. The prisoners had reason to be grateful that the pinpoint bombing of the Allied Air Force greatly reduced the number of victims.

The bombardment not only destroyed the factory buildings but also the important administration offices of the SS in Buchenwald, especially the so-called "Political Section," in which the personal records of the prisoners were kept. Therefore no new prisoners were allowed to be shipped to the camp for a while. Those additions which were recorded in September 1944 were sent directly to the auxiliary headquarters, and in particular to "Dora".

After the failure of the attempt on the life of Hitler on 20 July 1944 Himmler took over command of the Home Front Army. The concentration camp Buchenwald soon reflected the results of this event. On 22 August 1944 the operation, given by the code name of "Gitter" [trellis], was conducted throughout the entire territory of the Reich, by which the remainder of the former functionaries of the Anti-Fascist Parties, who were still at liberty, were arrested and sent directly to the nearest concentration camp. On the 22 or 23 August 1944 about 750 "trellis" prisoners arrived from the immediate surroundings of Weimar within a few hours. Further transport from Saxony, the Rhineland and from Westphalia were anticipated. However, after the attack of the Allied Air Forces on the 24 August 1944 these transports could no longer be made. In other Fascist circles this "trellis" action must also have met with some opposition. The details and the reasons were not known at that time. In any case, the Weimar Gestapo arrived in the camp a few days later briefly examined the arrested persons and then set most of them free.

If this was merely a police measure to use the camp temporarily as a lodging place for arrested persons, Himmler soon found other ways and means to increase the number of the slaves of the SS by new additions.

In November 1944 the first prisoners of a new category arrived which was termed "Zwischenhaft II" (intermediate custody II). This category included members of the Wehrmacht who had been condemned by the military courts

to severe penal prison sentences for desertion and absence without official leave from their units. These soldiers were sent to the concentration camp for “intermediate custody” and to be set to work. It was Himmler’s plan to have these soldiers finish the balance of their penal prison sentence after the end of the war. According to orders from the highest authorities in Berlin they all had to be sent to the KL “*Mittelbau*” or in other words to “Dora.” At “Dora” they were probably put to work on the dangerous manufacture of the secret weapons, because being long term prisoners they were not to be spared. Furthermore, no difficulties could arise in the future because they could not be given a discharge on account of the secret nature of their work.

These intermediate prisoners were by no means only German Reich nationals, but among them were also members of all the European nations who had joined the German Wehrmacht as volunteers. In these months, even Himmler delivered members of his own SS units who were guilty of misdemeanors, to the concentration camps. In December 1944, January and February 1945 several small transports of Croatians, Turka (members of a Mohammedan SS formation) and Frenchmen, at the time in SS uniforms arrived in the camp as prisoners.

Other political events in occupied Europe brought new additions to the concentration camps. In September 1944 a large raid was carried out in Denmark, against the Danish police, especially in Copenhagen. On 30 September 1944, 1,480 Danish police functionaries arrived in the KL “Buchenwald,” after having been detained a few days in the KL “Neuengamme.” They were followed by 473 men on 5 October 1944. They were soon put to work and long columns of them had to carry building materials. However, they did not stay very long in the camp. The first 200, mostly high-ranking police officers, were removed by the Danish Red Cross on 8 December 1944, and as far as it was known here, taken to an internment camp in Schleswig Holstein. The next transport of 1,604 Danes left on 17 December 1944 and the balance followed during January and February 1945. The unaccustomed severe climate of Buchenwald, to which they had been transported at the beginning of the winter, demanded a relatively high total of victims. In the few months of their sojourn, approximately 90 Danes died.

When the Auxiliary Headquarters “Dora” was declared an independent concentration camp in October 1944, the construction work had been completed and the production of V-weapons was running at full speed. In connection therewith the demand for unskilled labor had diminished a little.

The establishment of a new and even more notorious auxiliary headquarters near Ohrdruf in Thuringia with the designation “S III”, soon caused Buchenwald to experience a new increase in mass transports. In all haste an underground factory was to be built there, without any regard for any wastage of manpower. Again mass transports from all concentration camps either passed through Buchenwald or went directly to their point of destination. Again mass transports left Buchenwald itself for the new auxiliary headquarters. The SS found the SS ordered all the prisoners to fall in on the roll-call grounds, the latter were then closed off and the SS selected 1,000 prisoners for “S III”, who were shipped off that same night. The first large transport of 1,000 men arrived in the new headquarters on 20 November 1944. Already within a month the strength of the headquarters rose to 7,500 men and reached a maximum figure of 13,726 prisoners on 27 March 1945.

The increasing inefficiency of the administrative machine in the higher offices soon manifested itself very clearly. The new headquarters were put under the command of the Wehrmacht. The prisoners were struck off the records of the camp strength of the various concentration camps and were to be incorporated into the new headquarters. This soon proved itself impossible on account of the enormous inflow and the lack of experienced help. Therefore the whole headquarters had to be taken over again into the camp strength of the KL Buchenwald. It was absolutely unknown which prisoners were in “S III” and the SS had it compiled with the help of prisoners, a complete record of all the camp inmates. At that time the rolls disclosed a strength of 7,648 men of which about 2,000 were in the so-called North Camp and approximately 5,500 in the South Camp. Before the lists sent to the KL Buchenwald could be checked, 1,400 completely exhausted prisoners arrived at Buchenwald from “S III” on 12 December 1944. They gave the camp its first shocking impression of the horrible conditions in Ohrdruf. On their arrival at the Buchenwald railroad station more than 200 of the 1,400 prisoners had already died or were well spent and exhausted that they were unable to give their names or numbers. The

transport lists, sloppily compiled by the SS, did not check. Prisoners were listed that did not come with the transport and vice-versa, consequently it was impossible to accurately identify later the dead. The SS management did not send the next transport of “shredded” workers to Buchenwald but to the concentration camp Bergen-Belsen, where their final liquidation in the remoteness of the Lueneburger Heide, presumably, could be carried out less openly and more expeditiously.

The tragic end of the exterior headquarters is probably known by this time. At the approach of the victorious Allied troops the headquarters set out on foot in the direction of Buchenwald. Anyone who could not keep up with the marching column was shot. From 4 to 7 April 1945 about 9,300 prisoners (in view of the chaotic conditions which also existed here, an accurate count could not be made) arrived in Buchenwald. On the 9 and 10 April 1945 the SS evacuated the majority of them from Buchenwald. From all that has been learned so far about them it is probable that this transport was annihilated completely. At the end of March, according to the local reports, about 12,000 prisoners were in “S III”. The prisoners who did not arrive in Buchenwald, by the SS in the “S III” camp or on the road.

Table 11

<i>Date</i>	<i>Number</i>	<i>Type</i>	<i>From KL—All to S III</i>
19 Nov. '44	778	Hung. Jews	Sachsenhausen
24 Nov. '44	500	Hung. Jews	Sachsenhausen
26 Nov. '44	1,000	Jews	Stutthof
27 Nov. '44	500	Jews	Sachsenhausen
29 Nov. '44	500	Lithuanians, Poles, Russians	Stutthof
2 Dec. '44	353	Polish jews	Camp Plaszow
5 Dec. '44	1,997	Various	Dachau
7 Dec. '44	500	Poles	Auschwitz
13 Dec. '44	2,496	Various	Dachau
18 Dec. '44	425	Mostly Poles	Auschwitz
26 Dec. '44	394	Mostly Poles	Natzweiler

In the following Table 12 transports are listed, consisting of prisoners from “S III” no longer capable of working, which were transferred to other camps. It is to be assumed, that at least a portion of these prisoners were not recorded as additions in the camps of their destination, because they were condemned to be liquidated and therefore, not booked on the rolls of the camp strength.

Table 12

<i>Date</i>	<i>Number</i>	<i>Type</i>	<i>Destination</i>
14 Febr. '45	500	Various	Bergen-Belsen
24 Febr. '45	1,884	Various	Bergen-Belsen
25 Febr. '45	500	Various	Bergen-Belsen

In addition to the above there was one transport of 1,002 “invalids”, the greater number of which had also been in “S III”, or had been destined for “S III”, but were sent directly from Buchenwald to the KL Bergen-Belsen.

Of the new arrivals booked by “S III” in the period of 24 December 1944 to 26 February 1945, the records indicate that 1,460 prisoners died in Ohrdruf.

XI.

The advance of the Red Army compelled the evacuation of the large concentration camps in the East. The result was a maddening increase in arrivals and a horrible, almost inconceivable increase of unnecessary suffering and senseless sacrifices. The offensive on the Vistula River began 13 January 1945. Within a short time the Red Army reached a menacing position close to the concentration camp Auschwitz, where there must have been about 80,000 prisoners. Auschwitz had to be evacuated. Shortly thereafter, the concentration camp Gross Rosen near Breslau had to be cleared. The first transports of evacuated Jews from the KL Auschwitz on open railroad cars arrived here on 22 January 1945, which were soon followed by others. In those days it was bitterly cold. These human beings had been traveling for days, insufficiently clad and underfed. In the overcrowded railroad cars their comrades had died from weakness and exhaustion, and to save themselves the living had to throw the dead bodies from the moving train. The commandant of the camp received complaints from the regions through which the trains had passed, that corpses had been

found on the railway embankments. The arrivals very often dragged themselves from the railroad station to the camp with their last ounce of strength. Prisoners, the camp guards and the fire department had to proceed with two-wheeled carts and handcarts, usually, and for transporting building materials to the station to load up the collapsed persons and the dead bodies. The camp streets were littered with lost blankets, caps, overcoats, mess kits and collapsed human beings, who had not been able to drag themselves any further.

An accurate count of the additions was no longer possible. A check on the number of those leaving the point of departure and on how many had died on the way, escaped, or had simply remained behind also was no longer possible. Likewise the administrations of the dissolved camps did not know which prisoners had been transported to Buchenwald. The Reich Security Service sent a teletype letter to all the concentration camps, who had received additions from Auschwitz and Gross-Rosen, requesting that lists of the newly arrived prisoners with their old prisoner's number be forwarded as soon as possible to the administration of the Auschwitz concentration camp, which latter in the meantime had been transferred to the KL Mittelbau. The concentration camps Auschwitz and Gross-Rosen, as well as other camps and prisons in the East and the West had to be evacuated in great haste and many of the inmates came to Buchenwald.

The transport which came here will be listed in detail in Table 13 and Table 14 will show the increases in the camp strength in the additions and the death cases.

Table 13

<i>Date</i>	<i>Number</i>	<i>Type of Prisoner</i>	<i>Origin</i>
24 Dec. '44	916	Polish Jews	Budapest via Vienna
25 Dec. '44	1,913	Hungarian Jews	
17 Jan. '45	263	Various	Cologne and Aix-la-Chapelle.

17 Jan. '45	2,740	Polish Jews	Tschenstochau.
20 Jan. '45	1,446	Polish Jews	Tschenstochau.
22 Jan. '45	2,224	Jews diff. nations	Auschwitz.
23 Jan. '45	917	Jews diff. nations	Auschwitz.
26 Jan. '45	3,987	Various	Auschwitz.
3 Febr. '45	291	Various	Kuestrin.
5 Febr. '45	285	French a. Belgians	Prison Gr. Strehlitz.
7 Febr. '45	250	Various	Kuestrin.
10 Febr. '45	6,805	Various	Gross-Rosen.
24 Febr. '45	464	Russians	Gross-Rosen.
26 Febr. '45	290	Various	Exterior Hdq. Gross-Rosen.
5 Mar. '45	580	Various	{ Gross-Rosen to Exterior. Hdqtrs. Leipzig.
7 Mar. '45	905	Mostly Jews	Gross-Rosen.
12 Mar. '45	399	Mostly Poles	Gross-Rosen.
30 Mar. '45	280	Various	Natzweiler.

Table 14

<i>Date</i>	<i>Additions</i>	<i>Deaths</i>	<i>Camp Strength End of month</i>
Nov. '44	10,305	612	59,261
Dec. '44	12,555	1,113	63,048
Jan. '45	24,197	2,002	80,297
Febr. '45	13,066	5,523	86,232
March '45	6,560	5,531	80,436

The further expansion in the last 11 days of the existence of the National Socialistic concentration camp Buchenwald was influenced by the ever closer approaching Allied Armies. The last of the exterior headquarters located in the West returned to the camp of origin Buchenwald. On 6 April the number of the prisoners amounted to about 47,700 men. The balance of 31,598, mostly employed in exterior headquarters east of Buchenwald, did not return to the camp. At this time nothing is known of their fate.

The SS began to evacuate the camp on April 6, 1945. It succeeded in transferring 28,285 prisoners to other camps. The transports in detail are given in Table 15.

Table 15

<i>Date</i>	<i>Number</i>	<i>Type of Prisoners</i>	<i>Destination</i>
6 Apr. '45	3,105	Jews	KL Flossenbuerg
7 Apr. '45	1,500	Various	Leitmeritz
7 Apr. '45	4,800	Mostly Jews	KL Flossenbuerg
9 Apr. '45	9,600	Various	Dachau
10 Apr. '45	9,280	Various	Unknown
Total	28,285		

When the KL Buchenwald was liberated by the Allied Armies on 11 April 1945 there were still about 21,000 prisoners on the Ettersberg.

Annex I
 Tabular Survey of the Numerical Expansion at the Buchenwald
 Concentration Camp

<i>Month</i>	<i>Increase</i>	<i>Decrease</i>				<i>Camp strength end of month</i>
		<i>Disch.</i>	<i>Trans.</i>	<i>Died</i>	<i>Total</i>	
July '37	930				1	929
Aug. '37	1,414			8	48	2,295
Sept. '37	180			7	55	2,420
Oct. '37	109			2	60	2,469
Nov. '37	133			9	75	2,527
Dec. '37	146			22	112	2,561
Total	2,912			48	351	
Jan. '38	139				67	2,633
Febr. '38	140				45	2,728
Mar. '38	138				60	2,806
April '38	236				42	3,000
May '38	1,785				54	4,731
June '38	3,103				111	7,723
July '38	463				258	7,928
Aug. '38	348				485	7,791
Sept. '38	3,059				379	10,471
Oct. '38	428				711	10,188
Nov. '38	10,098				2,181	18,105
Dec. '38	185				7,262	11,028

Total	20,122			771	11,655	
Jan. '39	184				1,727	9,485
Febr. '39	113				949	8,649
Mar. '39	45				30	8,664
Apr. '39	13				2,314	6,363
May '39	20				713	5,670
June '39	103				250	5,523
July '39	166				297	5,392
Aug. '39	155				165	5,392
Sept. '39	3,314				62	8,634
Oct. '39	5,373				1,232	12,775
Nov. '39	50				448	12,377
Dec. '39	17				587	11,807
Total	9,553			1,235	8,774	
Jan. '40	24				875	10,956
Feb. '40	21				654	10,323
Mar. '40	14				1,518	8,819
Apr. '40	67				900	7,986
May '40	19				372	7,633
June '40	26				321	7,338
July '40	250				318	7,270
Aug. '40	1,168				239	8,199
Sept. '40	52				144	8,107
Oct. '40	196				502	7,801
Nov. '40	96				286	7,611
Dec. '40	592				763	7,440

Total	2,525		1,772		6,892	
Jan. '41	50				128	7,362
Feb. '41	452				217	7,597
Mar. '41	236				513	7,320
Apr. '41	505				336	7,489
May '41	288				992	6,785
June '41	231				209	6,807
July '41	2,695				920	8,582
Aug. '41	396				496	8,482
Sept. '41	251				363	8,370
Oct. '41	251				468	8,153
Nov. '41	277				520	7,910
Dec. '41	258				257	7,911
Total	5,890		1,522		5,419	
Jan. '42	554				479	7,986
Febr. '42	480				349	8,117
Mar. '42	2,843				2,154	8,806
Apr. '42	521				673	8,654
May '42	452				1,505	7,601
June '42	1,019				620	8,000
July '42	1,996				1,147	8,849
Aug. '42	1,715				678	9,886
Sept. '42	1,709				1,520	10,075
Oct. '42	984				2,228	8,831
Nov. '42	794				533	9,092
Dec. '42	1,044				619	9,517

Total	14,111		2,898		12,505	
Jan. '43	2,500			111	742	11,275
Febr. '43	1,291	94	377	175	646	11,920
Mar. '43	2,474	40	1,582	311	1,933	12,461
Apr. '43	2,773	1,102	299	507	1,908	13,326
May '43	2,339	38	807	379	1,224	14,441
June '43	1,858	122	348	211	681	15,618
July '43	1,727	39	1,317	191	1,547	15,796
Aug. '43	4,537	57	517	118	692	19,641
Sept. '43	5,444	41	233	123	397	24,688
Oct. '43	9,048	41	209	109	359	33,377
Nov. '43	4,454	27	2,378	314	2,719	35,112
Dec. '43	3,734	35	525	967	1,527	37,319
Total	42,177	1,636	8,592	3,516	14,375	
Jan. '44	8,017	49	1,454	1,000	2,503	42,833
Febr. '44	1,979	44	2,648	880	3,572	41,240
Mar. '44	5,065	96	1,527	1,311	2,934	43,371
Apr. '44	4,788	120	1,649	560	2,329	45,830
May '44	9,655	133	675	390	1,198	54,287
June '44	9,986	464	2,193	460	3,117	61,156
July '44	7,398	311	1,287	347	1,945	66,609
Aug. '44	17,170	217	429	742	1,388	82,391
Sept. '44	4,221	1,139	471	497	2,107	84,505
Oct. '44	6,728	981	34,047	732	35,760	55,473
Nov. '44	10,305	698	5,207	612	6,517	59,261
Dec. '44	12,555	2,076	5,579	1,113	8,768	63,048

Total	97,867	6,328	57,166	8,644	72,138	
Jan. '45	24,197	190	4,756	2,002	6,948	80,297
Febr. '45	13,066	257	1,351	5,523	7,131	86,232
Mar. '45	6,560	488	6,337	5,531	12,356	80,436
Total	43,823	935	12,444	13,056	26,435	
TOTAL 1937 to 31 MARCH 1945:	238,980			33,462	158,544	

Annex II

Copy of a letter from the SS Main Office of Economic Administration to all concentration camps.

SS Main Office of Economic Administration
Service Group D Concentration Camp
D III/Az.: 14 h (KL) 12.42 Lg/Wy

Oranienburg
28 December 1942

Regarding: Medical Activities in the Concentration Camps
Reference: without
Enclosure: 1

SECRET

TO the 1. Camp Doctors of the Concentration Camps Da., Sh., Bu., Neu., Au., Rav., Flo., Lu., Stu., Gr-Ro., Nied., Natz., Hinz., Mor., Herzog., Mau.,
Copy to the Camp Commandants.

In the inclosed a compilation of the current arrivals and departures in all the concentration camps is sent to you for your information. It discloses that out of 136,000 arrivals about 70,000 died. With such a high rate of death the number of the prisoners can never be brought up to the figure as has been

ordered by the Reichsfuehrer of the SS. The 1. camp doctors must use all means at their disposal to reduce essentially this death rate in the various camps. The best doctor in a concentration camp is not the one, who believes that he must stand out for uncalled severity, but the one who by his supervision and exchange keeps the working capacity at the various labor commands at the highest possible level. The camp doctors must supervise more often than in the past the food of the prisoners and, with the approval of the administration, submit improvement proposals to the camp commandants. These, however, must not only appear on paper, but must be controlled regularly by the camp doctors. Furthermore, the camp doctors are to see to it that the working conditions at the various labor places are improved as much as possible. To this purpose it will be necessary that the camp doctors inspect the labor places on the ground and convince themselves about the conditions of work.

The SS Reichsfuehrer has ordered that the death rate absolutely must be reduced. For this reason the aforementioned has been ordered and a monthly report on this matter is to be submitted to the Chief of the Department D III. The first report to be submitted on 1 February 1943.

[Signature illegible]

Klueder[?]

SS Brigadefuehrer and Major General of the Arms

Survey

For the month of June-November 1942

<i>Month</i>	<i>Arrivals</i>				<i>Departures</i>			
	<i>Deliveries Uberst [?] Total</i>				<i>Dischrg, Uberst [?] Dead Exek. Total</i>			
June	10,322	1,575	11,897	873	1,903	4,080	243	6,899
July	25,716	6,254	31,970	907	4,340	8,536	477	12,260
Aug.	25,407	2,742	28,149	581	2,950	12,733	99	16,363
Sept.	16,763	6,438	23,201	652	6,805	22,598	144	30,199

Oct.	13,873	5,345	19,218	1,089	6,334	11,858	5,945	25,235
Nov.	17,780	4,565	22,345	809	5,514	10,805	2,350	19,478
Total	109,861	26,919	136,870	4,711	27,846	70,610	9,267	112,434

COPY OF DOCUMENT 2176-PS

CONFIDENTIAL

REPORT OF INVESTIGATING OFFICER HEADQUARTERS THIRD UNITED STATES ARMY

Office of the Judge Advocate

APO 403

AG 092 (3 JA-132) GNMCIJ

17 June 1945

SUBJECT: Report of Investigation of Alleged War Crimes.

TO: Commanding General, Twelfth Army Group, APO
655, U. S. Army.

I. AUTHORITY

1. This investigation was conducted in conformity with Letter, European Theater of Operations, 24 February 1945, by Eugene S. Cohen, ASN O-1573121, Major, 514th Quartermaster Group, APO 403, United States Army, Investigator-Examiner, during the period 6 May 1945 to 15 June 1945, and pursuant to directive of Commanding General, Third United States Army, a copy of which is attached as Exhibit 1.

II. MATTERS INVESTIGATED

2. Murder by shooting, beating, use of poison gas, drowning, starving, injections, stoning, exposure, burning, and choking of nationals of twenty-three (23) nations, including members of the United States armed forces, of the German civilian population working under the German armed forces and of other nationals under the orders of said German armed forces, in violation of Article 2 of the Geneva Prisoner of War Convention (Par 73,

Rules of Land Warfare, Article 2 of same, Par 25, 26, 30, and 31, Rules of Land Warfare).

III. *PROCEEDINGS*

3. *a.* The testimony of all witnesses examined in the course of this investigation and which is attached and made a part hereof was secured through the use of interpreters where requisite, after the witness had been sworn by me, through the interpreter, under the authority of Article of War 114, in the following form: “You swear (or affirm) that the evidence you shall give in this investigation now being conducted by me shall be the truth, the whole truth, and nothing but the truth. So help you God.” Where practicable, the witness was given an opportunity to sign his testimony in my presence and, in all cases, it was signed after such testimony had been read back to the witness in his own language by the interpreter. The use of a stenographic reporter was impracticable under existing conditions.

The interpreter was sworn in the following form: “You swear (or affirm) that you will truly interpret this investigation now being conducted by me. So help you God.”

b. The transcribed testimony of each such witness whose name is below listed is hereto attached as an Exhibit—the number of which is indicated immediately following the witness’ name. As a further aid, the name of each camp in the chain at which the said Exhibit was prepared is listed alongside the name of the witness:

* * * * *

c. Other Exhibits:

Description

(*a*) (Exhibit 4 is a report by an International Committee set up by this Investigation, and same is sworn to in due form by the two witnesses named. The report is further documented with the names of others who helped compile the facts and figures).

(*b*) Journal Record of victims between certain dates, including information as to name, nationality, residence, date of birth, date of death, manner of death, and the names of guards performing the actual execution. (Ex. #214)

(c) "Totenbuch," or Book of the Dead, representing names of victims, nationality, residence, date of birth, date of death, and manner of death, between certain dates. This is a sample of small journals which were later incorporated in the permanent records which number sixteen (16) volumes and which will be submitted in a supplemental report. (Ex. #215)

(d) Specimen of poisonous gas used in gas chamber at Mauthausen and Gusen No. 1 and No. 2. (Ex. #216)

(e) Rubber hose used by SS Guards to beat prisoners in the Mauthausen Chain of Camps. (Ex. #217)

(f) Heavy whip used by SS Guards to beat prisoners in the Mauthausen Chain of Camps. (Ex. #218)

(g) Cat of Nine Tails Whip used by SS guards. (Ex. #219)

IV. SUMMARY OF FACTS

4. A certificate by the Investigator-Examiner is attached hereto in separate form, summarizing the camp and methods of working them in the present investigation.

a. Between 1,500,000 and 2,000,000 political prisoners are known to have been incarcerated and labeled for extermination at the Mauthausen system of concentration camps from available records. The Chain consisted of between 23 and 30 individual camps between the years 1941 and 1945, the number varying as the smaller of these were occasionally evacuated when certain jobs had been finished (see Exhibits 4, 81, and 213).

b. Of the camps affiliated with Mauthausen, the present investigation covered 13 of them of which the largest were Mauthausen, Gusen, Number 1 and Number 2, Ebensee, Steyr, and Gunskirchen. Others in the list situated in Third Army Territory were Linz, Numbers 1, 2 and 3, Wells, Lenzing, Schlier, and Enns. The victims of this Chain of camps were murdered by the SS Guards working in these camps under the command of Franz Ziereis, Commandant and George Bachmayer, Assistant Commandant, both now deceased, whose headquarters were at the fortress in Mauthausen (see Exhibits 209, 210, and 212).

c. Evidence reveals that the orders for the systemic decimation of these prisoners originated in Berlin under the direct orders of SS Fuehrer

Heinrich Himmler (see Exhibit 4).

d. American Forces liberated this camp on 5 May 1945 and this Investigator-Examiner and his team commenced this investigation on 6 May 1945.

e. The victims of the Mauthausen Chain of concentration camps are in the process of compilation and will be submitted in a supplementary report.

5. It may be added that one of the functions of the International Committee formed by this investigator to assist in the investigation of these camps was to arrange for each nation to copy the names of each of its dead from the available records in order to notify the next of kin. Therefore, it is confidently concluded that each such nation already has a list of its own dead with all information regarding their manner of death and the statistics thereupon. This International Committee was selected from the inmates by the team and consisted of the most distinguished members selected by the prisoners themselves. The Committee numbered six men as principals and many assistants have greatly helped the investigation in securing the best witnesses and covering all phases in the preparation of this case for trial (see Exhibit 4).

6. Enemy Individuals

a. See Exhibit 2.

b. Wanted notices for all perpetrators are in the process of preparation.

V. CONCLUSIONS

The evidence collected in this case shows very clearly that the whole purpose of the Mauthausen Chain of concentration camps was extermination of human beings for no other reason than their opposition to the Nazi way of thinking. There is no doubt that Mauthausen was the basis for long term planning. It was constructed as a gigantic stone fortress on top of a mountain flanked by small barracks.

Mauthausen, in addition to its permanency of construction, had facilities for a large garrison of officers and men, and had large dining rooms and toilet facilities for the staff. It was conducted with the sole purpose in mind of exterminating any so-called prisoner who entered within its walls.

The so-called branches of Mauthausen were under direct command of the SS officials located there. All records, orders, and administrative facilities were handled for these branches through Mauthausen. The other camps, including Gusen and Ebensee, its two most notorious and largest branches, were not exclusively used for extermination but prisoners were used as tools in construction and production until they were beaten or starved into uselessness, whereupon they were customarily sent to Mauthausen for final disposal.

The responsibility for the deaths of these victims lies definitely with the Nazi Party and with the SS men who executed its commands. Men like Himmler, Ziereis, Bachmayer, Schulz, Giesler, Pelzer, and other names in Exhibit 2 are but the arch criminals. However, although direct evidence is not established against all the members of the SS Guards in this disreputable Chain, the inescapable presumption is that all of them are prima facie guilty of these mass murders and the burden of proof is upon them individually to prove his innocence. In this connection the SS organization was purely a voluntary one and its purposes were obviously criminal, in violation of the Hague and Geneva Conventions, and the rights of humanity.

It is the belief of the Investigator-Examiner that the theory of "Association des Malfaiteurs" should be employed most stringently in a case as virulent and as atrocious as the Mauthausen set-up (see Certificate attached hereto).

/s/Eugene S. Cohen
EUGENE S. COHEN, Major, QMC,
JA Section, Third US Army, Investigator-Examiner.
3 JA-132

CERTIFICATE OF OFFICER INVESTIGATING MAUTHAUSEN CONCENTRATION CAMP.

I hereby certify as follows:

1. The Mauthausen Chain of Concentration Camps varied in number from twenty to thirty or more, depending on the needs of any specific work

assignment.

2. As shown in Exhibits 21, 22, and 201, the captured records indicated the names of most of these camps, which varied in size from the huge fortress of Mauthausen itself, to a small detached lager similar to Steyr or Lenzing. Lenzing for example, like Steyr (See Exhibits 86, 194 and 195) were detachments from Mauthausen sent and billeted in barracks to run two large factories.

3. The map herein included as Exhibit 201 shows the locations of these named camps with most important route number leading to them. It is thus seen that the majority of these camps were located East of the River Enns (which flows into the Danube and passes through Steyr and Enns-Township, Austria), and, therefore, are of Russian concern, since this river is the present International Occupation Boundary between ourselves and the Soviet Union.

4. However, the remainder of the camps (as shown in Exhibit 201), amounting roughly to about 13, have been accounted for in this present investigation. (See list of Exhibits.) The so-called most notorious of these camps are, of course, first Mauthausen (ranked with Auschwitz as by far the largest and worst of all Concentration Camps); Ebensee (ranked by many as worse than Dachau yet only an inferior Aussenlager (Branch to Mauthausen)); Gusen, divided into two large branches named Numbers one and two and of large size in themselves; Gunskirchen and Steyr, (see Exhibit 84), numbering at capacity five-thousand people. (See Exhibit 195.)

5. Many of these camps were evacuated almost immediately upon liberation, even so large a one as Gunskirchen. (See Exhibit 84.) This camp was said to have numbered as many as 20,000 prisoners at one time, but however, Gunskirchen, like Steyr and Lenzing and the Linz Group (Exhibit 22), and even Ebensee, were not equipped for Mass Murder (Extermination), like Mauthausen and the Gusens, and when deaths were "required" other than through starving, beatings, exposure, or lack of hygienic treatment, the prisoners were dispatched either to Mauthausen or the Gusens where *all* were labelled for eventual annihilation. (See Exhibit 4 as a conclusive Exhibit which in itself, makes a complete case against the perpetrators involved.)

6. The total count of victims is impossible to estimate, but with Hartheim Castle (a building used for mysterious disposal of people), (see Exhibit 213) almost 2,000,000 are counted from the German Records themselves. (Also see again Exhibit 4).

7. As to the perpetrators or murderers, a complete list of leaders and some 10,000 (approximately) other SS names are included in this investigation. Descriptions are included whenever possible and at all events, Name, Rank, Date of Birth, Last Residence, and Residence of Next of Kin (to whom they might return) are given. (See Exhibit 2, and valuable Exhibit 213 which lists the victims between certain dates, giving their names, nationalities, Dates of Birth, Day of Death, Method of Death, and Names of Guards doing the killing).

8. All Camps presently investigated are as follows:

Mauthausen, Gusen (Nos. 1 and 2), Linz (Nos. 1, 2, and 3), and Ebensee. Wels, Gunskirchen, Lenzing, Steyr, and Schlier are also taken care of as part of the chain and as indicated heretofore. All others were either in Russian or British areas. All these camps have been treated as one case. However, a Supplemental Report is now being prepared to follow the present one in a short time. It should be noted that Franz Ziereis, Commandant of the Mauthausen Chain and Georg Bachmayer, Assistant Commandant, are now dead. (See Exhibits 181, 182, 183, 184, 185, 209 and 210.)

9. Besides the books made Exhibits in this present report, sixteen Totenbuecher (Books of the dead, as described in Exhibit 4) have been photographed in micro-film and although ready cannot be received in time to submit in this present report.

Additional still photographs and more than 1000 feet of motion pictures have been taken by an official Signal Corps Team and will also be submitted in the Supplemental Report.

/s/ Eugene S. Cohen
EUGENE S. COHEN,
Major, QMCorps, Investigating Officer.

TRANSLATION OF DOCUMENT 2187-PS

Main SS economic administration office
Office group chief D

—concentration camps—D I/Az : 14 e 3/Ot/S;—

Oranienburg, 14 July 1943

Re: Beating of female prisoners

Ref: Reichsfuehrer-SS B. Nz. I/1891/41 Ads.Sk/Fe.—of 7 July 1943

Enclosures / none

REGISTERED

To the camp commandants of concentration camps, Au., Rav., Herz., Lub.
and Stutthof.

The Reichsfuehrer-SS and Chief of the German Police has ordered that the execution of sentence on Russian women has to be done by Polish women and on Polish and Ukrainian women by Russian women.

As a reward the prisoners inflicting the punishment may be given a few cigarettes.

Under no circumstances may German prisoners be employed to inflict punishment. Also other prisoners due for punishment themselves are not to be employed for this purpose.

per sig. Liebehenschel
SS-Obersturmbannfuehrer

TRANSLATION OF DOCUMENT 2189-PS

SS Economic Administrative Main Office
Office Group Chief D
Concentration Camps, D 1/Az: 14e 3/L/Ot.

Oranienburg, 11 Aug. 1942.

Re: Punishment by Beating.

Ref: none

Encl: none

To the camp commandants of concentration camps. Da, Sah, Bu, Mau, Flo, Neu, Au, Gr-Ro, Natz, *Nie, Stu, Arb, Rav, and prisoner of war camp Lublin.*

The Reichsfuehrer SS and Chief of the German Police has ordered that punishment by beating will be executed in concentration camps for women by *prisoners*—under the ordered supervision.

In order to coordinate this order the main office chief of the main SS Economic Administration Office, SS-Obergruppenfuehrer and General of the Waffen-SS Pohl, has ordered, effective immediately, that punishment by beating will also be executed by prisoners in concentration camps for men.

It is forbidden to have foreign prisoners execute the punishment on German prisoners.

The order for punishment will read on page 2 under “executors”.

The following prisoners have executed physical punishment on the—

1. _____ prison number
2. _____ prison number

[signature illegible]

SS-Brigadefuehrer and Major General of the Waffen-SS

TRANSLATION OF DOCUMENT 2194-PS

REICH DEFENSE LAW

G-300

Top Secret

The Ministry for Economy and Labor Saxony

Dresden and 6 for September 1939

Tel: 52151/Long Distance 52051

Ref: Wbv:407g

To The Reich Protector in Bohemia and Moravia, Transportation Section,
Attention of Construction Chief, Counselor Hirches or Representative in the
Office.

Prag

[STAMP]

The Reich Protector in Bohemia and Moravia
received, Prag, 5 Sept. 1939. No. 274.

Enclosed please find a copy of the Reich Defense Law of 4 Sept. 1938 and a copy each of the decrees of the Reichsminister of Transportation dated 7 October 1938—RL/W10.2212/38, Top Secret—and of 17 July 1939—RL/LV 1.2173/39, Top Secret, for your information and observance.

By order—

3 Encl.:

SIGNED: Kretzschmar.

Completed at Dresden 4 September 1939

3 Enclosures.

SIGNED: Schneider.

Receipt for the letter of 4 September 1939, wbv:407g with 3 enclosures signed 5 September 1939 and returned to Construction Counselor Kretzschmar.

File: Wbv

Signed: HI.

Top Secret

Enclosure 2. RL/LV 1.2861/39G

The Reichsminister for Transportation.

RL/V 1.2173/39

Berlin 17 July 1939

44 plus 2 copies.

No. 45.

To the Subordinate Authority of the Reich and the States as well as the General Authority of the States to whom are attached:

- (a) Waterways Deputies (Wbv).
- (b) Deputies for Local Transportation (Nbv).
- (c) Deputies for ocean traffic. (Sbv).

To each one individually:

Subject: Protection of the secrecy of the law for the Reich

Defense. (RV—Gesetz).

Ref: Decree of 7 October 1938 RL/W 10.2212/38,

Top Secret.

The leader has agreed to the tacit omission of the secrecy protection of the Reich defense law of 4 September 1938 transmitted with the corresponding

decree. In spite of the greater ease in business correspondence thus created, the following limitations, which are herewith brought to your attention for compliance, have been ordered by the competent office.

1. *It remains prohibited* to cite the Reich Defense law in public or in connection with laws to be promulgated, as well as publication of the contents of the law in its entirety.

2. *It is permitted*

- a. the mention of all installations founded on the Reich Defense Law and their functions in public without referring to the law;
- b. the co-signature of laws which are prepared and announced in peace time for war.

Deputy
Signed: Baur.

SECRET STATE MATTER!

To GRS Nr. 10/39
Enclosure for RL/LV. I.2861/39 g.
The Reich Traffic Minister
RL/W 10. 2212/38 secret state matter

Berlin, W8, Wilhelmstrasse 80, the 7th October 1938
47 and 3 copies
Examination Nr. 49

To the following Reich and State authorities from whom have been ordered

- (a) deputies for water ways,
- (b) deputies for the local traffic,
- (c) deputies for ocean traffic

—but especially—

Subject: Reich Defense Law [Reichsverteidigungsgesetz].

Enclosed is transmitted copy of the Reich Defense Law signed by the leader and Reich chancellor on 4 September 1938. The promulgation remains suspended.

Deputy
Signed: Baur.

To wbv.: 407 g.

TOP MILITARY SECRET

To GRS Nr. 10/39

1432

Reich Defense Law of 4 September 1938.

The Reich cabinet has decided on the following law which is announced herewith.

I. State of Defense

par. 1

(1) As possessor of the complete power of state, the leader and Reich chancellor can decree for the Reich territory or its parts a "State of Defense".

(2) If the political situation demands it, the leader and Reich chancellor decrees the "Mobilization". The mobilization can be limited to a part of the Reich or of the armed forces.

par. 2

(1) Once the territory of operation is determined the chief of the army and the commanders of the armies have upon declaration of the state of defense without further order the authority to exercise executive power in this operational territory.

(2) The commanders exercising executive powers can, effective for the territory of operations, promulgate laws, institute special courts, and issue directives to the officials and offices competent in the territory of

operations, with the exception of the supreme Reich officials, the supreme Prussian country officials, and the Reich leaders of the NSDAP. The lawfulness of directives precedes directives from otherwise superior offices.

(3) The boundaries of the territory of operations are determined by the supreme commander of the armed forces.

(4) Special directives for the case of a surprise threat to the Reich territory.

If a part of the Reich territory is surprised by a military threat, and if special decrees for defense against this danger cannot be awaited, then the commanders of the imperiled service commands have the right to issue the directives which cannot be delayed and which are necessary for the protection of the imperiled territory to all non-military offices within their sphere of command. The same rights apply to the commanding admirals of the Navy in case of surprise threats against the coastal territory, and to the commanders of air districts in case of surprise attacks from the air within the framework of their war tasks. The execution of these directives has precedence over the other commitments and the directives of superior offices. The named commanders can transmit their right of issuing directives to subordinate officers down to the village counselor.

par. 3

(1) With the declaration of the state of defense the plenipotentiaries for the Reich administration (GBV) named by the leader and Reich chancellor takes over the uniform leadership of the non-military administration with exception of the economic administration.

To him are subordinate—

the Reich minister of the Interior

the Reich minister of Law

the Reich minister for science, education and popular education,

the Reich minister for religious matters,

the Reich office for regional order.

(2) The GBV must comply with the demands of the supreme command of the armed forces (OKW) which are of considerable importance for the armed forces. If the demands cannot be brought in accord with the affairs of the Reich administration the leader and Reich chancellor makes the decision.

(3) The GBV has the right within his sphere to issue laws with the accord of the OKW and GBW which differ from the existing laws.

par. 4

(1) With the declaration of the state of defense the chief deputy for economics (GBW), appointed by the leader and Reich chancellor, takes over the direction of the economy except for the armament industry.

(2) It is the task of the GBW to put all economic forces into the service of the Reich defense, and to safeguard economically the life of the German nation. To him are subordinate—

the Reich minister of economics,
the Reich minister of nutrition and agriculture,
the Reich minister of work,
the Reich chief of forestry,
the Reich commissar for price control.

He is furthermore responsible for directing the financing of the Reich defense within the realm of the Reich finance ministry and the Reich bank.

(3) The GBW must carry out the demands of the OKW which are of considerable importance for the armed forces; and he must insure the economic conditions for the production of the armament industry directed immediately by the OKW according to its demands. If the demands of the armed forces cannot be brought into accord with the affairs of economy, then the leader and Reich chancellor decides.

(4) The GBW has the right within his sphere to issue laws with the consent of the OKW and GBW which differ from the existing laws.

par. 5

(1) The Reich postal minister, the Reich transportation minister, and the general inspector for the German road net are, with the declaration of the state of defense, bound to the demands of the OKW for the immediate affairs of the armed forces.

(2) The following will get orders from the OKW:

(a) the *Reich transportation minister* for the use of means of transportation,

(b) the *Reich postal minister* for the use and distribution of the complete communication connections to the armed forces and the other agencies.

(3) The Reich transportation minister must comply, with the declaration of the state of defense, with the demands of the GBW according to the directions given to him by the OKW for the use of the means of transportation.

(4) In the sphere of the Reich postal minister, of the Reich transportation minister, and of the general inspector for the German road net, the chief of the OKW has the right to promulgate laws in accord with the GBV and GBW which differ from the existing laws.

par. 6

The Reich ministers and chief Reich offices carry out the tasks within their spheres on their own responsibility, regardless of the special competence of the chief of the OKW, of the GBV, and of the GBW, according to paragraphs 3, 4 and 5.

par. 7

For the shaping of the political mill of the people the deputy of the leader of the NSDAP is responsible. He uses for that the NSDAP, its formations and coordinated units.

II. *State of War*

par. 8

(1) If the fight with an external enemy is forced upon the German people, the leader and Reich chancellor declares the state of war.

(2) With declaration of the state of war, the war laws and war decrees come into force without further order. The legal consequences provided in other laws for the state of war become effective.

par. 9

If the state of defense is not already declared beforehand, the decrees about the state of defense go into effect with declaration of the state of war.

III. *Preparatory Measures*

par. 10

The Reich Defense Council (RVR).

(1) The task of the Reich Defense Council consists in peace time in the decision on all measures for the preparation of the Reich defense and the gathering together of all forces and means of the nation according to the directions of the leader and Reich chancellor. The tasks of the RVR in war time will be specially determined by the leader and Reich chancellor.

(2) The leader and Reich chancellor is chairman in the RVR. His permanent deputy is general field marshal Goering. He has the right to call conferences of the RVR. Permanent members of the RVR are—

the Reich minister of air and supreme commander of the air force,

the supreme commander of the army,

the supreme commander of the navy,

the chief of the OKW,

the deputy of the leader,

the Reich minister and chief of the Reich chancellery,

the president of the secret cabinet council,

the chief plenipotentiary for the Reich administration,

the chief plenipotentiary for economics,

the Reich minister of foreign affairs,

the Reich minister of the interior,

the Reich finance minister,

the Reich minister for popular enlightenment and propaganda,

the president of the Reich bank directory.

The other Reich ministers and the Reich offices directly subordinate to the leader and Reich chancellor are consulted if necessary. Further personalities can be called as the case demands.

par. 11

The Reich Defense Committee (RVA).

(1) The Reich defense committee is the working committee of the RVR. It prepares the decisions of the RVR, sees to their execution, and secures collaboration between armed forces, chief Reich offices, and party.

(2) Presiding is the chief of the OKW. He regulates the activity of the committee and gives the directions to the GBV and GBW and to the Reich ministries not subordinated to them and to the chief Reich offices according to the decisions of the RVR, which directions are necessary for securing their uniform execution.

(3) The RVA is composed of the OKW, deputy of the commissioner for the four year plan, the leader staffs of the GBV and GBW, and the Reich Defense officials.

(4) Chief office officials for the Reich defense (RV-Referenten) and their deputies are commissioned by the deputy of the leader, by the Reich chancellery by each Reich Ministry, by the Reich leader of the SS and chief of the German police, by the Reich work leader, by the Reich forest master, by the chief inspector for the German road net, by the Reich office for regional order, by the Reich bank directory, and in the Prussian state ministry. The RV-Referent and his deputy are immediately subordinate to the minister or the state secretary, and to the chief of the Reich office, resp.

par. 12

The uniformity of the preparations for the start and the course of the mobilization is secured by the OKW.

As regards the actual formulation of the preparations, the GBV and GBW make the arrangements for their sphere.

par. 13

The Chief Plenipotentiary for the Reich Administration (GBV):

The GBV conducts the preparations for the Reich defense in the sphere of the ministries and Reich offices subordinate to him according to paragraph 3. They are bound by his directions already in peace time.

par. 14

The Chief Plenipotentiary for Economics (GBW):

(1) The GBW conducts the economic preparations for the Reich defense as far as they do not come in the sphere of the OKW as regards the armament industry.

(2) The GBW must secure the economic conditions for the production of the armament industry immediately directed by the OKW according to its demands.

(3) The ministries and Reich offices named in paragraph 4 (2) are, within the framework of these directives, already bound for the preparation of the Reich defense to the directions of the GBW, the Reich transportation minister to his demands according to paragraph 5 (3).

IV. Final Directions

par. 15

Penal Directions.

Whoever acts against the orders of a decree promulgated on the basis of this law, on purpose or negligently, will be punished with a jail sentence and money fine or with one of these punishments, if the act is not punishable with a heavier sentence according to other decrees.

par. 16

Execution and Completion Directives.

The OKW promulgates in agreement with the GBV and GBW the law and administrative directives necessary for the execution and completion of this law.

par. 17

The law takes effect immediately.

Berchtesgaden, the 4th September 1938.

The leader and Reich chancellor
signed Adolf Hitler
signed Goering

General Field Marshal
The deputy of the leader

signed R. Hess

The Reich Minister of the Interior
signed Frick

The Chief Plenipotentiary for Economics
signed Walther Funk

The Reich Foreign Minister
signed Ribbentrop

The Chief of the OKW
signed Keitel

The Reich Minister and Chief of the Reich Chancellery
signed Dr. Lammers

Berchtesgaden, the 4 September 1938

Note to the Reich Defense Law

1. The Publication of the Reich Defense Law of 4 Sept. 1938, remains suspended.
2. The following laws and cabinet decisions are reputed effective immediately.
 - A. Reich Defense Law of 21 May 1935.
 - B. Decision of the Reich Cabinet of 4 April 1933 to form a Reich Defense Council.
 - C. Rectification and completion of 13 Dec. 1934 of the decision of the Reich Cabinet of 4 Apr. 1933.
 - D. Decision of the Reich Cabinet of 21 May 1935 on activity of the CB in peace times.

The Fuehrer and Reich Chancellery,
(signed) Adolf Hitler

The Reich Minister and Chief of Reich Chancellery
(signed) Dr. Lammers

TRANSLATION OF DOCUMENT 2195-PS

File Memorandum

Today I visited General Oshima. The conversation ranged over the following subjects:

1. The Fuehrer speech, which pleased him very much, especially because it had been spiritually warranted in all its features.
2. We discussed conclusion of a treaty to consolidate the triangle Germany/Italy/Japan into an even firmer mold. He also told me that, together with German counter-espionage [Abwehr], he was undertaking long-range projects aimed at the disintegration of Russia and emanating from the Caucasus and the Ukraine. However, this organization was to become effective only in case of war.
3. Furthermore he had succeeded up to now to send 10 Russians with bombs across the Caucasian frontier. These Russians had the mission to kill Stalin. A number of additional Russians, whom he had also sent across, had been shot at the frontier.
4. We then discussed the Mohammedan movement. He told me that a Japanese officer had worked in Afghanistan, but he had been expelled later because of suspicion that he had attempted to overthrow the Afghan government. I told him that I had a police officer there and that the two could very well collaborate once he again had someone there.
5. He told me confidentially that he had bought a piece of real estate in Falkensee under the name of a middleman. Six Russians were employed there, writing and printing leaflets, which were flown into Russia from Poland in small balloons, when the wind was favorable. He had reports and proofs from Russia that they had arrived in good condition and that they were obviously being passed around among the people very diligently.

6. Also he had bought a motor boat in order to bring leaflets from Roumania to the Crimea via the Black Sea. However, this had miscarried in the fall, but he would repeat it once more in summer.

Berlin, 31 January 1939

The Reichsfuehrer-SS:

(signed) H. Himmler

TRANSLATION OF DOCUMENT 2199-PS

SECRET

Copy

SS Economic-Administrative Main Office

District Group D—Concentration Camps—DI/1 Az.: 14 f 5/L/Ot.

Secret diary Nr. 645/42

Oranienburg, 12 Sept 42

Concerns: Return of urns of inmates deceased in concentration camps.

Reference: Chief of Security Police [Sipo] and the SD-ND1a-838/42—of 7.9.42

Encl: None

To the Commanders of Concentration Camps, Da., Sa., Bu., Mau., Flo., Neu., Au., Gro.-Ro., Natz., Nie., Stu., Arb., Rav., and Prisoners of War, Camp Lublin.

According to a communication of the Chief of the Security Police and the SD and conforming to a report of the Chief of Security Police and SD in Prague, urns of deceased Czechs and Jews were sent for burial to the home-cemeteries within the Protectorate.

Based on different events (demonstrations, erecting of posters inimical to the Reich on urns of deceased inmates in halls of cemeteries in the home-communities, pilgrimages to the graves of deceased inmates etc.) within the Protectorate, the delivery of urns with the ash remnants of deceased Nationals of the Protectorate and of Jews is henceforth prohibited. The urns shall be preserved within the Concentration Camps. In case of doubt about

the preservation of the urns oral instructions shall be available at this agency.

The Chief of the Central Office
sig: Liebehenschel,
SS-Obersturmbannfuehrer.

Correctness of Copy is certified:
Natzweiler, 16 September 1942
sig: [illegible signature]
SS Oscha. und Stabsscharf.

SECRET
Copy

SS Economic-Administrative Main Office
District Group D
Concentration Camps—D I/1/Az.: 14 e 3/Ot./U.

III
Oranienburg, 4 April 1942

Concerns: Lashing [Pruegelstrafen]

to the Concentration Camp Commanders of Da., Sah., Bu., Mau., Flo., Au.,
Gr. Ro., Natzw., Nie., Stu., Arb., Rav., and Commander of Prisoner of
War Camp Lublin.

The Reich Fuehrer-SS and Chief of the German Police has decreed that when the word “more severe” [verschaeft] is added in his orders for lashings, the execution of the sentence must be undergone with bare seat [unbekleidetes Gesaess]. (This includes male as well as female prisoners in protective or preventative custody.)

In all other cases the previously decreed punishment by Reichfuehrer-SS remains the same.

The Chief of the Central Office
sig: Liebehenschel

SS-Obersturmbannfuehrer

FdRda

sig: [illegible]

SS Oberscharfuehrer und Stabsscharfuehrer

PARTIAL TRANSLATION OF DOCUMENT 2219-PS

To the General Field Marshal

At Present in Vienna, 14 July 1939

Sir:

If I may add something about myself, it is the following: I know that I am not of an active fighting nature, unless final decisions are at stake. At this time of pronounced activism [aktivismus] this will certainly be regarded as a fault in my personality. Yet, I know that I cling with unconquerable tenacity to the goal in which I believe. That is Greater Germany [Grossdeutschland] and the Fuehrer. And if some people are already tired out from the struggle and some have been killed in the fight, I am still around somewhere and ready to go into action. This, after all, was also the development until the year 1938. Until July 1934 I conducted myself as a regular member of the party. And if I had quietly, in whatever form, paid my membership dues—the first one, according to a receipt, I paid in December 1931—I probably would have been an undisputed, comparatively old fighter and party member of Austria, but I would not have done any more for the union. I told myself in July 1934 that we must fight this clerical regime on its own ground in order to give the Fuehrer a chance to use whatever method he desires. I told myself that this Austria was worth a mass. I have stuck to this attitude with an iron determination because I and my friends had to fight against the whole political church, Freemasonry, Jewry, in short, against everything in Austria. The slightest weakness which we might have displayed would undoubtedly have led to our political annihilation; it would have deprived the Fuehrer of the means and tools to carry out his ingenious political solution for Austria, as became evident in the days of March 1938. I have been fully conscious of the fact that I am following a path which is not comprehensible to the masses and also not to my party comrades. I followed it calmly and would without hesitation follow it again because I am satisfied that at one point I could

serve the Fuehrer as a tool in his work, even though my former attitude even now gives occasion to very worthy and honorable party comrades to doubt my trustworthiness. I have never paid attention to such things because I am satisfied with the opinion which the Fuehrer and the men close to him have of me.

[Seyss-Inquart]

PARTIAL TRANSLATION OF DOCUMENT 2220-PS

SECRET

Letterhead

THE REICH Minister and Chief of the Reich Chancellery

RK.318D g III

Berlin W8, April 17th, 1943.

Vosstrasse 6, at present: FIELD-quarters.

Mail must exclusively be directed to Berlin address.

To the Reichsfuehrer-SS and Chief of the German Police. Herr Himmler

Ref: The situation in the Government General.

Dear Mr. Reichleader,

We had agreed at our conference on March 27th of this year that written texts should be worked out about the situation in the Government General, on which our intended, mutual report to the Fuehrer, could be based.

The material gathered for this purpose by Lieutenant General Krueger was submitted to you immediately. Based on this material, I have had a sketch prepared, which sums up the most important points of this material, subdivides them in a way quickly to grasp, and finally points out the kind of measurements to be taken.

The memorandum was checked, together with SS Lieutenant General Krueger who agrees with it in full. Part of it I herewith submit to you.

(signed) Dr. Lammers.

SECRET!

Ref: The situation in the Government General.

A. The task of the German Administration in the Government General. The German Administration in the Government General has to fulfill the following tasks:

1. For the purpose of securing food for the German people, to increase agricultural production and utilize it to the fullest extent, to allot sufficient rations to the native population occupied with work essential for the war effort and to deliver the rest to the armed forces and the homeland.
2. To employ the manpower of the native population in the Government General itself only for war important purposes, and to put at the homeland's disposal such manpower which is not needed for the purpose mentioned above.
3. To consolidate German folkdom in the Government General and by means of inland settlement in particular to create a stronghold of German folkdom in the eastern border districts, also by means of colonization with racial Germans, transferred from other places, thus safeguarding these very border districts.
4. To safeguard the Government General as a transit zone for replacements and supplies to the East front.
5. To obtain troops as far as possible from the native population for the fight against Bolshevism.

B. Wrong ways chosen for the fulfillment of these tasks. The German administration in the Government General has failed by a wide margin in achieving the tasks listed under A. Although, in the year of 1942, one succeeded in meeting the delivery quota of agrarian products for the armed forces and the homeland at a relatively high percentage, namely over 90% and also met the demands of the homeland concerning the conscription of labor in general, one has to consider two things on the other hand: First, these accomplishments in the year of 1942 were achieved for the first time, prior, f. i. only 40,000 German tons [Translator's remark: 2206 lbs. avoirdupois].

makes a ton] bread grain had been delivered to the Armed Forces. Secondly, and above all, one had failed to create for the bringing about of such achievements the necessary organizational, economic, and political basis, which is absolutely required, if such achievements shall not strongly affect the entire situation, may eventually cause chaotic conditions in the future. This failure of the German administration can for one thing be explained by the system of the German administrative and governmental activity in the Government General, personally represented by the Governor General, and secondly, by the wrong basic principles of policy in all those questions, which were decisive for conditions in the Government General.

II. The failure in basic principles of policy.

1. The realization of the task, listed in A 1, necessitates in the first place a strict and clear-cut structure of economics, as well as a disciplined and clear-cut official economic policy, accompanied by an elimination as totally as possible of clandestine trading and black markets. This stipulates above all the fullest utilization of the harvest and its public management, the stopping of all trade enterprises, which are not essential to the war and the care to be taken for a clear-cut management in war essential enterprises.

The German administration was in no respect capable of living up to these requirements. In the matter of raising food it took a request of a delivery contingent for the Reich and the Armed Forces amounting to 750,000 metric tons of bread grain in the summer of 1942, in order to have the attempt made, of drawing up an inventory of food products. For this purpose a census was taken. The result however turned out to be unreliable. The utilization of the harvest [Ernte-erfassung] did not even permit the full delivery of the contingent for the Reich and the Armed Forces (instead of 750,000 metric tons only 690,000 tons) let alone the ample feeding of the native population working for German interests. While 1.4 million metric tons were demanded, only 1.2 million metric tons of bread grain could be taken hold of, of which 690,000 m.t. were delivered to the Reich and the Armed Forces, so that for roughly 16 million natives only 510,000 m.t. were left. Accordingly, the weekly bread rations for the normal consumer had to be cut down to only 1050 g, compared with 1675 g in the Protectorate and 2600 g in the annexed Eastern territories. To make supplies available for the native population, black markets and clandestine trading were tolerated to the greatest extent, resulting in prices entirely unattainable

for the population, working for German interests. A married Polish official, without children, with High school education f.i. has a net income of 234.27 Zloty per month. Compared with this, the prices in the clandestine trade are:

1 kg. rye bread	11.00 Zloty
1 " potatoes	2.40 Zloty
1 " pork	80.00 Zloty
1 " bacon	160.00 Zloty
1 " butter	170.00 Zloty

Under such conditions the foreign worker remains at his place of work for about 4 to 5 days per week only in order to purchase the missing provisions for himself and his family on the remaining other days. Daily ransackings, robberies, murders and other crimes are further consequences of these conditions.

The farmer received, as an incitement for delivery of his agrar-products, premium certificates for the obtaining of commodities (articles needed for farming, household necessities, salt, cigarettes, brandy, etc.). These commodities very often could not be had, however, despite the fact that they were obtainable in any desired quantity in the clandestine trade, but at exorbitant prices.

(1 bricklayer's brush	=	1 cow
1 dz. (Drusch) coal	=	30.00 Zloty
1 pair of boots	=	1500.00 "
1 horse shoe nail	=	3.00 "
1 pair of wooden slippers	=	2 calves
1 dress	=	1 cow)

The consequences of this situation naturally lead to a severe curbing of the farmer's willingness to produce. Instead of reducing prices in the trade section by means of taking the necessary measures in regard to the management, a decree of the Governor General recommended, to adjust the

prices of agrar-products to the prices of commodities, which were as much as 300 to 4000% higher.

The trade economics are entirely built up according to capitalistic viewpoints, with the aim of earning quickly and much and any planned leadership, which might take war requirements into consideration, is lacking. There is a lack of state supervision and of guidance in the line of production and in the line of trade. The German individual business man as a “trustee” on his own, of enterprises personally directed by him, is given a free hand to do what he wants, in the unrestricted play of forces. These trustees very often make use of former Polish and Jewish owners of enterprises as agents empowered to sign in their names. These trustees make tremendous profits in clandestine trading, tolerated by the Government, and make them within the shortest time. Prohibition of production and control of individual management, as requested by the Armament Inspection (Lt. Gen. Schindler), were not carried out. Part of the trade production is directed only at putting at the disposal of the native population objects for the trade-in of food; metals, materials for spinning, leather, etc., are thus being drained off from the war economy.

2. *The Utilization of Manpower.* The most important presupposition for a proper and relatively frictionless regulation to utilize manpower taken from the native population within the Government General itself, as well as within the Reich, are normal conditions in the sphere of economics. Lack of this coordination influences the steering of labor employments unfavorably in many respects. If it would be possible to provide the population, working in the interest of Germany, with the minimum of food needed, and everyday objects, and to render impossible the access to other items by way of black market channels and clandestine trade, then the reserves of manpower at hand would volunteer for employment as planned, of their own volition. This would mean a basis for a sensible shaping of agrarian property-units. It is necessary in this respect that parts of the population thus available may then be employed in such work which will guarantee them a satisfactory standard of living. After failing to have created the necessary supposition for a well-planned and well-steered employment of manpower, the utilization of manpower is confronted with the greatest difficulties. It is clear that these difficulties have been increased by the elimination of Jewish manpower. But it is incorrect to consider this elimination as the cause of

difficulties. If the necessary basis for proper management of manpower had been given, the elimination of Jewish manpower would not have caused any difficulties worth mentioning. As things were, the utilization of manpower had to be enforced by means of more or less forceful methods, such as the instances when certain groups appointed by the Labor Offices, caught Church and Movie-goers here and there and transported them into the Reich. That such methods not only undermine the people's willingness to work and the people's confidence to such a degree that it cannot be checked even with terror, is just as clear as the consequences brought about by a strengthening of the political resistance movement.

3. *The Treatment of the Native Populations.* Can only be led into the right channels based on a foundation of a clear-cut and well-organized administration and management. Only such a foundation permits that the native population may be handled strictly if necessary, even severely. On the other hand, it can be dealt with in a big-hearted manner and may be granted certain liberties, especially in cultural respect, causing a certain amount of contentment. Without such a foundation, severity would only strengthen the resistance movement and meeting the native population half way would only undermine the German reputation. That this foundation is missing can be concluded from the facts mentioned above. Instead of trying to create this basis, the Governor General inaugurates a promotion of cultural life on the part of the Polish population, which knows no bounds in itself. Under prevailing circumstances however and last, but not least, in connection with our military situation last winter, this could only be explained as a weakness and thus had to bring about exactly the opposite results of the aspired aim.

PARTIAL COPY OF DOCUMENT 2222-PS

HEADQUARTERS 12TH ARMY GROUP OFFICE OF THE JUDGE
ADVOCATE APO 655

REPORT OF INVESTIGATION of ALLEGED WAR CRIME

Summary

Nature of violation: Mistreatment, torture and Murder of Allied nationals.

Place and Date: 31 concentration camps all in vicinity of Nordhausen, Germany from 23 August 1943 to 10 April 1945.

Victims: Approximately 52,000 nationals of 18 Allied countries.

Perpetrators: German SS troops and civilians.

CONFIDENTIAL

Information to Establish Prima Facie Case Required by SHAEF Court of Inquiry

25 May 1945

SUBJECT: Murder and maltreatment of Political Prisoners and Prisoners of War in Mittelbau (Dora) Concentration Camps, near Nordhausen, Germany.

TO: Commanding General, Ninth United States Army, APO 339, U. S. Army.

FROM: War Crimes Investigating Team 6822, U. S. Army.

Date and Time: 11 April 1945 to 14 May 1945. Own File Ref: 315.

1. *Nature of violations.* Murder and maltreatment of political prisoners and prisoners of war in Mittelbau (Dora) concentration camps near Nordhausen, Germany. (Map Ref: GSGS 4346, M-52:D-12.)

2. *Place, date, time.* 23 August 1943 to 10 April 1945.

3. Brief resume of incident. Nordhausen, Germany, a city of approximately 39,000 peacetime population, is located eighteen miles east of the Harz Mountains. In August 1943 (Exhibit A), the construction of a V-bomb factory was undertaken in tunnels dug into the foothills of the Harz Mountains about two miles north of Nordhausen. The area was operated by a combination of commercial firms known as Mittelwerk which was charged with the construction of V-bombs. The operating personnel was made up of forced laborers who were used in both the construction of the tunnels and manufacture of the V-bombs. These laborers were, with the exception of the German overseers, composed of a number of nationalities

the majority of which were Russians, Poles, French, Belgians, and Czechs, in that order. There were also Norwegians, Danes, Hollanders, Spanish, Italians, Hungarians, Bulgarians, Latvians, Yugoslavians, Greeks, Albanians, Rumanians, Estonians, and the records also show (Exhibit 81) one American as having been in the camp (Exhibit A-1). There were thirty-one (31) camps which were utilized for housing the forced laborers and which were, in most cases, located in the vicinity of the area in which the laborers were utilized. These camps were known as:

Artern
Ballenstedt
Blankenburg
Bleicherode
Dora
Ellrich
Gross Werther
Harzungen
Hohlstedt
Ilfeld
Ilsenburg
Kelbra
Klein Bodungen
Kleissingen
Mackenrode
Nixei
Nordhausen (Boelcke-Kaserne)
Osterhagen
Osterode
Quedlinburg
Regenstein
Rossla
Rottleberode
Sollstedt
Sonderhausen
Tettenborn
Trautenstein
Walkenried
Wickerode

Wieda
Wolffleben

The camps were guarded by SS troops (Exhibit A-1), and SS troop headquarters were located at Dora (Exhibit 86). The SS personnel were assisted in their guard duties by block leaders who, for the most part, were Kapos (Capos), which was the name given to German Civilian Criminals who had been released from imprisonment for the specific assignment as block leaders in the aforementioned camps.

Between 75,000 and 80,000 forced laborers (Exhibit A-1) were shuttled into, and a few out of, these installations. A complete indifference to the welfare of the prisoners was exhibited by their guards and custodians. Drinking water and water for washing, in the first stages of the operation of Dora proper, was found only wherever the forced laborers could find a leak in the pipes (Exhibit EEE). At the time of the liberation hundreds of bodies to which death had come from starvation and bombings were strewn about Bolke Kaserne. These bodies were emaciated, and bony prominences of the skeletons were conspicuous under the skin. These bodies were laid in rows in various conditions of decomposition. A pile of naked bodies, the result of one day's deaths, was found under the stairway at the Bolke Kaserne camp (Exhibit 87). Small piles of bodies were about the building (Exhibits 89, 90, 91, & 92). In their weakened condition the living were compelled to relieve themselves in their beds from which they were too weak to move. Deposits of human feces were frequent throughout. Both living and dead, in many cases, were in the same beds (Exhibits CC, DD, EE, & FF). The mental condition of the prisoners had degenerated with their physical condition, and due to a lack of water some were drinking their own urine (Exhibits A-1 & DD). Some effort had been made to burn some of the bodies, and the partially burned, blackened bodies of 100 children lay about the premises. No organized effort was made to bury the dead (Exhibits EE & FF).

The diet at the camps varied. At Dora the daily diet consisted of one litre of very thin soup, 400 grams of bread, 50 grams of margarine, and three times a week one slice of horse (hard) sausage or beef jelly, the equivalent of 70 grams of meat. One spoonful of marmalade and one spoonful of cream cheese once a week, and irregularly one canteen cup of black, ersatz coffee (Exhibits GG, HH, RR, SS, TT, UU, & EEE). This diet contained 1100

calories per day per man (Exhibit O). Deaths from starvation were numerous (Exhibits MM, UU, & JJJ).

During the period of construction of the camp at Dora no housing facilities were present. Prisoners for three months were required to sleep in the tunnels in which they worked. Many of them died from respiratory diseases contracted in the damp tunnels, and others died of heart ailments due to the under ground pressure (Exhibits A, A-1, TT, UU, CCC, & EEE). They were permitted to leave the tunnels during this period but once a week, and then only for roll call which lasted from one to three hours.

Transport was the name given to movements, whether they were made by vehicle or on foot, to the transfer of prisoners from one installation to another. When travel was by rail, groups numbering as high as 130 were placed in cattle and freight cars and during the inclement weather were given no extra clothing (Exhibits A, Q, GG, HH, and EEE). Of one group of 4,500 men and 500 women who were moved from Monowitz to Nordhausen in January 1945, a trip lasting approximately eight days, only twice were the passengers given food, at which times each was given one-half loaf of bread and 106 grams of meat. Upon arrival at Mittelbeau in the Nordhausen area, between 1,000 and 1,300 of the travelers were dead (Exhibits A-1, & Q). On the 8th, 9th, 10th, and 11th of March 1945, 2,000 prisoners were taken from Nordhausen to a so-called Red Cross Camp near Bolkenberg. They travelled by wagon and on foot, and were given three days food for the ten day trip. 1,000 of the 2,000 died within three days (Exhibit A). Of 1,600 prisoners who came to Bolke Kaserene from Ellrich 250 died within three days (Exhibit A). Approximately 100 prisoners a day, suffering from malnutrition, tuberculosis, etc., were shipped from Dora to Bolke Kaserene to be "hospitalized" (Exhibit A-1). As the Allied troops neared the vicinity of the camps, evacuation of the prisoners was attempted by the use of the so-called transports, and as transportation by rail became impossible due to tactical operations, prisoners were in some instances released and in other instances removed from their transports and taken to areas, there to be murdered by their overseers (Exhibits DDD, FFF, GGG, HHH, & III).

The SS guards shot laborers upon the slightest pretext. Six prisoners were shot one day because they had left their place of work to go to the water closet (Exhibits A, N, O, LL, QQ, & SS). Beatings were frequently

administered upon the slightest provocation by SS guards and Kapos (Exhibits A, F, G, H, I, J, L, M, O, R, S, T, U, V, AA, PP, QQ, RR & TT). One instance of a prisoner's failure to tip his hat to an SS man was sufficient justification for his being beaten (Exhibit V).

Executions were often performed without apparent trial under the shallow guise of the condemned man having been a saboteur. 75 prisoners were hanged on 10 March 1945 at Dora (Exhibit K). On 13 March 1945 twelve others, including a Yugoslavian Doctor, who was accused of administering too carefully to the prisoner's ailments and as being a saboteur were hanged (Exhibit K). 35 were hanged in one day (Exhibit JJ). 80 were hanged in February 1945 for having built a radio transmitter (Exhibits OO & SS). An engineer who was accused of tampering with a voltmeter was hanged (Exhibit TT). On many occasions the entire personnel of the camp were forced to witness the hangings (Exhibits O, JJ, & VV). This area was visited by many high Nazi officials, including Goebbels and Himmler. Himmler spoke to the personnel at Dora on one of his visits there (Exhibits A-1 & TT).

10,000 (Exhibit A-1) forced laborers who died or were killed at Dora and auxiliary camps were cremated at Buchenwald and Dora. Medical attention was of the most meager type (Exhibit HH). Deaths at Dora and the Mittelbeau camps varied, and were caused by starvation and diseases contributed to thereby (Exhibit EEE). At Dora estimated deaths were as high as eighty (80) per day (Exhibit N).

/s/ Fulton C. Vowell
FULTON C. VOWELL

Signature P. 13 of Document Major, JAGD,
Commanding Officer, WCIT 6822, U. S. Army

TRANSLATION OF DOCUMENT 2224-PS

THE END OF THE MARXIST CLASS STRUGGLE

Pages 1 and 2, Issue 381, 2 May 1933, of "NSK". National Socialist Party Press Agency [NSK, Pressedienst der NSDAP—the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press

Office. Dr. Otto Dietrich, Reich Press Chief. Published by Franz
Eher's Successor, Munich.

NSK. The Action Committee for the protection of German labor reports:

On 1 May 1933 the entire German people has made a mighty profession of confidence to the new governmental leadership and to the German folk community. The greatest event of the day was the unanimous stand which the entire German working class in all its strata, in all levels and trades, has taken up, behind the government of Adolf Hitler. The flags of the new Reich, the symbols of the National Socialist uprising and of German socialism fluttered in the workers' districts of the cities just as on the farms, on factory smokestacks and on trade union headquarters, on state buildings and on homes in all German cities.

1 May 1933 was the death hour of the Marxist class struggle. Workers from the factories, manual and intellectual workers, clerical employees—they all marched behind the swastika banner. The folk community is here—the most splendid and exalted dream has become reality. The working masses have testified to their faith in National Socialism.

But as yet the trade associations of the German working class, the representative bodies of workers and employees, were in the hands of Marxist leaders, who did not guide the German labor movement for the benefit of the working German people, but only considered it as the shock troop of their crazy international Marxist class-struggle ideology.

National Socialism, which today has assumed leadership of the German working class, can no longer bear the responsibility for leaving the men and women of the German working class, the members of the largest trade organization in the world, the German Trade Union movement, in the hands of people who do not know a fatherland that is called Germany. Because of that, the National Socialist Factory Cell Organization [NSBO] has taken over the leadership of the trade unions. The NSBO has eliminated the old leadership of the Trade Unions of the AGDB [General German Trade Union League] and of the AFA [General Independent Employees' Federation].

New German labor leaders have replaced senile ward-heelers [verkalkte Bonzen]. The proven pioneers of the National Socialist Factory Cell Organization [NSBO], who have fought to the limit for the rights of

German labor from the beginning, have taken over the leadership of the trade union associations. That proves that the struggle of National Socialism is not directed against the trade union idea as such, but only against the bureaucratized leaderships, because they are the foes of the German labor movement. The old, painstakingly attained rights of the workers' and employees' associations will not be touched. On the contrary, the new National Socialist trade union leadership will make good the harm inflicted on the German working class by class struggle and internationalism.

On 2 May 1933 the National Socialist Factory Cell Organization took over the leadership of all trade unions, all trade union buildings were occupied and most stringent control has been organized over financial and personnel matters of the organizations.

The leadership of the Action Committee for the Protection of German Labor has been assumed by Party Member Dr. Ley, Deputy: Schmeer.

The leadership of the General German Trade Union League has been taken over by Party Member Schumann. Party Member Muchow takes care of the fundamental questions of organization. Party Member Biallas is responsible for press and propaganda.

Party Member Peppler assumes leadership of the General Independent Employees' Federation [AFA].

Party Member Mueller assumes leadership of the "Bank for Workers, Employees and Civil Servants".

Auditing has been taken over by Party Member Brinkmann.

German workers and employees! Help us to build a new Germany of national liberty and socialist justice. Help to transform the trade unions to the media of fruitful work. Maintain discipline, then your work will be accompanied by success, to the benefit of the entire German people, but primarily of German workers and employees.

The new National Socialist trade union leadership will attempt to make good the damage done to the German working class by class struggle and internationalism. We appeal to the entire German people, to trade union members of all shades and associations.

Have confidence in the proven fighters of the National Socialist Factory Cell Organization!

Attempts at sabotage by unscrupulous mischief-makers will be avenged with the whole severity of the law. Comply with all future directives, it is a matter of your and your children's future!

Now to work!
Long live Socialism!
Long live Germany!

WORKERS' CONGRESS IN BERLIN

NSK, Berlin, 2 May

The "National Socialist Party Press Agency" is informed that a great Workers' Congress will take place on Wednesday, 10 May, in the Prussian House of Lords in Berlin. The united front of German workers will be formed there. Adolf Hitler will be asked to assume the position of Honorary Patron.

THE ACTION COMMITTEE WITH ADOLF HITLER

NSK. On Tuesday noon, at about two o'clock, the gentlemen of the Action Committee for the Protection of German Labor visited the Reich Chancellery under the leadership of Dr. R. Ley, in order to inform the Reich Chancellor of the accomplished coordination [Gleichschaltung] of the Free Trade Unions in line with the general political situation in Germany. Dr. Ley informed the Chancellor of the smooth course encountered by the project, the necessity of which was based on the attitude of the German working class itself, which had demanded an end to Marxist activity in the trade unions. The Action Committee then asked Adolf Hitler to become Honorary Patron of the Great Workers' Congress to take place within the next few weeks.

The Fuehrer declared his readiness to assume this position of Honorary Patron and emphasized especially that he expected smooth execution of the various measures, so that especially from a financial point of view, the Purge Project [Reinigungsaktion] would result not only in harm to the German worker, but exclusively in benefit. The Action Committee asserted that the settlement was taking place in complete peace and order, and could promise that as of tomorrow the payments of the institutions concerned would be resumed to their full extent.

“ARBEITERTUM”

OFFICIAL ORGAN OF THE ADGB

[General German Trade Union League]

NSK, Berlin, 2 May

In consequence of the coordination [Gleichschaltung] of the Free Trade Unions, the organ of the National Socialist Factory Cell Organizations [Nationalsozialistische Betriebszellenorganisation], “Das Deutsche Arbeitertum”, has been designated as official organ of the ADGB. In future “Arbeitertum” will appear weekly (instead of bi-weekly, as up to now) with a total circulation of about 4 million copies.

TRANSLATION OF DOCUMENT 2225-PS

THE FRONT OF GERMAN WORKERS HAS BEEN ERECTED!

Page 1, Issue 382, 3 May 1933, of “NSK”. National Socialist Party Press Agency, [NSK, Pressedienst der NSDAP—the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press Office. Dr. Otto Dietrich, Reich Press Chief. Published by Franz Eher Successor, Munich.

NSK. We have been informed by the leader of the Action Committee for the Protection of German Labor, Dr. Ley, that the following organizations have unconditionally subordinated themselves to the leadership of Adolf Hitler

and the directives of the Action Committee for the Protection of German Labor: Central League of Christian Trade Unions [Gesamtverband der Christlichen Gewerkschaften]; Trade Union Circle of Associations of German Employees, Workers and Civil Servants [Gewerkschaftsring deutscher Angestellten, Arbeiter und Beamtenverbaende] [Hirsch-Duncker]; Trade Union League of Employees [GDA], the RDA; and other associations. Tomorrow negotiations will begin with the German National Clerks' League [DHV] as the last association. It is to be hoped that this organization, too, will discern the spirit of the times and integrate itself into the great undertaking.

For the first time in the German labor movement a concentration of all workers' and employees' associations would thus be reached and one of the greatest undertakings recorded in the history of the German working class brought to fruition.

We have been further informed by the leader of the Action Committee for the Protection of German Labor, Dr. Ley, that he intends now, after these associations have unconditionally and without reservation submitted to the NSDAP, to draft the positive and expert forces from these organizations for cooperation. This intention will already find expression at the great Workers' Congress, which will take place in Berlin next week.

TRANSLATION OF DOCUMENT 2226-PS

THE LABOR FRONT STANDS!

From Page 2, Issue 383, 4 May 1933 of "NSK". National Socialist Party Press Agency, [NSK, Pressedienst der NSDAP—the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press Office. Dr. Otto Dietrich, Reich Press Chief. Published by Franz Eher Successor, Munich.

THE GERMAN NATIONALIST CLERKS' LEAGUE [DHV], TOO HAS JOINED

NSK, Berlin, 4 May

All German trade union associations of all shades having recognized the leadership of the NSDAP in German trade union affairs, the German

Nationalist Clerks' League [Deutschnationaler Handlungsgehilfenverband] has now too joined Adolf Hitler; the last big association to do so.

After a detailed conversation between the leader of the Action Committee for the Protection of German Labor, Dr. Ley, and the leadership of the German Nationalist Clerks' League [DHV], integration of the DHV into the German Labor Front was decided upon.

TRANSLATION OF DOCUMENT 2228-PS

ORDER ISSUED BY THE GERMAN LABOR FRONT

From Page 5, Issue 426, 26 June 1933, of "NSK". National Socialist Party Press Agency, [NSK, Pressedienst der NSDAP—the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press Office. Dr. Otto Dietrich, Reich Press Chief. Published by Franz Eher Successor, Munich.

NSK. The leader of the Organizational Office of the German Labor Front, Party Member Muchow, has issued the following proclamation:

All associations and societies of workers and employees, which have not yet been concentrated [zusammengefasst] in the two big collective associations of workers and employees within the German Labor Front must report to the Organizational Office of the German Labor Front, Berlin SW 19, 34, Maerkisches Ufer, within 8 days. The requisite documents about membership figures and other pertinent data must be enclosed. They will then be notified by the Organizational Office, which Association they will have to join [eingliedern].

TRANSLATION OF DOCUMENT 2229-PS

THE REICH YOUTH LEADER AT WORK

Issue 423, 22 June 1933, of "NSK". National Socialist Party Press Agency, [NSK, Pressedienst der NSDAP—the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press Office. Dr. Otto Dietrich, Reich Press Chief. Published by Franz Eher Successor, Munich.

IMPORTANT ORDER OF BALDUR VON SCHIRACH

NSK Berlin, 22 June

The Youth Leader of the German Reich, Baldur von Schirach, has published the following order:

* * * * *

ORDER 2

1. The Greater German League [Grossdeutscher Bund], together with its sub- and member organizations, is dissolved as of 17 June 1933. The property of the Greater German League and of the affiliated sub- and member organizations is to be secured. Thus, along with the Greater German League the following have been dissolved:

1. Free Band of the Young Nation [Freischar Junger Nation].
2. German Free Band [Deutsche Freischar].
3. German Boy Scout League [Deutscher Pfadfinderbund].
4. The Geuses [Die Geusen].
5. Community Circle of German Boy Scouts [Ringgemeinschaft deutscher Pfadfinder].
6. Circle of German Boy Scout Districts [Ring deutscher Pfadfindergaue].
7. German Boy Scout Corps [Deutsches Pfadfinderkorps].
8. Free Band of Protestant Boy Scouts [Freischar evangelischer Pfadfinder].

2. The Reich Committee of German Youth Associations [Reichsausschuss der deutschen Jugendverbaende] is dissolved herewith. Previous tasks of the Reich Committee will be taken over into the expanded sphere of tasks of the Youth Leadership of the German Reich.

3. All Youth Organizations in Germany are to be reported to the Youth Leader of the German Reich (Berlin NW 40, 10, Kronprinzenufer, Department for Organizations). Youth Organizations which have not reported, or reported only incompletely, by 15 July 1933, are to be

considered as dissolved. It is expressly emphasized that the term “Youth Organizations” also comprises such organizations which are groups within adult organizations. The reports are to be submitted by the top leadership of individual youth organizations for the entire organization. Insofar as the youth groups of adult organizations do not have centralized youth leadership, the leadership of the adult organization is obligated to submit the report.

It is mandatory that the report contain:

1. name of the society (with accurate information about the legal status of the society);
 2. board of directors of the society (accurate information about name, residence, and telephone number (if applicable));
 3. information relative to person authorized to represent the society;
 4. office of the society (telephone);
 5. banking and postal checking accounts of the society, with indication who is authorized to sign for the society there;
 6. accurate membership figures with indication when the figures were ascertained;
 7. statutes of the society;
 8. information about the organizational structure of the society, insofar as they are not contained in the statutes;
 9. information about chairmen of districts, regions, states, or similar subdivisions;
4. The tasks of the Youth Leader of the German Reich must be accomplished partially with the help of contributions of affiliated organizations. The amount of contributions will be fixed in the very near future.

TRANSLATION OF DOCUMENT 2230-PS

AGREEMENT ENTERED INTO BETWEEN THE REICH LEADER OF
THE GERMAN LABOR FRONT, PARTY MEMBER DR. LEY, AND

THE CHIEF OF STAFF OF THE STORM TROOPS [SA], VIKTOR
LUTZE, WITH REGARD TO THE FACTORY TROOPS
[WERKSCHAREN].

THE ORGANIZATION BOOK OF THE NSDAP

[Organisations Buch der NSDAP] Edition of 1938, editor: The
Reichs Organization Leader of the NSDAP [Dr. Robert Ley].
Published by the Central Publishing House of the NSDAP, Franz
EHER, Successor, Muenchen. [Pages 484, 485b, 486c].

1. The Factory Troop [Werkschar] is the National Socialist backbone of the factory. Its task is to permeate the factory with the National Socialist philosophy. The factory troop is the carrier of the factory community and incarnates community life within the factory; it bears witness to these facts by its factory celebrations and festivals. It is in the forefront in carrying through the tasks of the German Labor Front. It is the living incarnation of these tasks.
2. The Storm Troops [SA] will promote the building-up of the factory troops with all means. Storm Troops [SA] units will maintain closest comradeship and connection with the factory troops, frequently visiting their meetings, and inviting the factory troops to their own meetings.
3. Factory troops are formed on a voluntary basis by Storm Troopers [SA-Maenner] in a factory and by other workers in the factory. The latter simultaneously become Storm Troop candidates (insofar as they are not already members of another formation of the Party).
4. Officers and men of the Storm Troops, who are working in the factory and are members of the German Labor Front, are to be made leaders of the Factory Troops. On the basis of previous agreements, the appointments take place in accordance with the ordinance of 10 January 1936—Ch. Nr. 11150, as follows:
 - a. in the case of the Reich Directorate of the German Labor Front, upon recommendation of the Supreme Storm Troop Command [Oberste SA-Fuehrung]
 - b. in the case of Districts, upon recommendation of the SA-Group

c. in the counties, [Kreisen] upon recommendation of the SA-Standards [Standarten]

d. within the factory, the factory troop leader is appointed by the County Factory Troop Leader, after consultation with the factory representative of the German Labor Front.

5. Special sections [Referate] for factory troops will be established at the headquarters of Storm Troop Groups, respectively Brigades, and of Standards. They are to be merged with the previous Special Sections for Social Work at Storm Troop Bureaus. The District respectively County Factory Troop Leaders are in charge of this Special Section. Simultaneously these Storm Troop leaders are to be charged by the regional commissioners with the leadership of the Department factory troops in the German Labor Front. For disciplinary and personnel purposes they remain subordinate to their unit commanders.

The requisite financial means for the Special Sections are to be made available by the German Labor Front in accordance with agreements still to be reached.

6. Directives and regulations for commitment, and for the tasks to be accomplished within the factory, will be issued by the Reich Leader of the German Labor Front through factory troop channels (Reich factory troop leader; District factory troop leader; County factory troop leader; Factory factory troop leader).

7. 4 to 5 week days a month are available to the factory troop for carrying through their tasks.

In the case of urgent tasks within the factory, and in the case of protective measures against natural catastrophes and preparatory service for large-scale political utilization of the German Labor Front, factory troop service has priority over Storm Troop [SA] service.

8. Physical training will take place with Storm Troop [SA] cadre units.

9. The service Uniform for factory troops remains customary factory troop uniform for meetings within the factory as well as in parades of the German Labor Front.

Berlin, October 1936

The Chief of Staff of Storm Troops [SA]
(signed) Lutze

The Reich Leader of the
German Labor Front
(signed) Dr. Ley

PARTIAL TRANSLATION OF DOCUMENT 2231-PS

“Die Reichskanzlei” by Hermann von Stutterheim

[Pages 19-34]

Nevertheless, there is still a “people’s legislation” even in the Third Reich, but this does not restrict the legislative power of the Reich Cabinet [Reichsregierung] in any way. According to the law on the plebiscite of 14th July 1933, the Reich Cabinet, which is, de facto and also, as we shall see later, de jure, nothing more nor less than the Fuehrer, can apply to the people for its approval or disapproval of a measure which is envisaged by the Reich Cabinet, whereby it is also a matter of an approval or disapproval of a planned law. It is therefore impossible for a people’s law to be passed without or even contrary to the will of the Fuehrer. Neither can drafts of laws put up for approval be passed if the content has been altered in any way. It must be either accepted or rejected just as it stands. Even should it be rejected, such a result of the vote does not oppose the will of the Fuehrer. For, in as much as the Fuehrer puts a law to the people’s vote, an action which he takes of his own free will, he shows that he is quite prepared for the law to be rejected.

Within the Reich Cabinet, the Reich Chancellor was de jure at first also the president of the Reich Cabinet which was a body of people who made the decisions, in which the Reich Chancellor had only a seat and a vote. He could therefore be overruled. In practice, since the day of the assumption of power, this was no longer the case. The dominating personality of the Fuehrer and the actual power possessed by him made it obvious from the start that the Reich Cabinet could not make any decisions which did not coincide with the will of the Fuehrer. The Reich Cabinet accordingly was from the outset, nothing more than an advisory body to the Fuehrer which was to advise the head of the cabinet [Regierungschef]. Even if the result of

this advice was still called “the decision of the Reich Cabinet” the decision in reality was that of the Fuehrer and Reich Chancellor, which, after a previous conference, was passed by the Reich Cabinet. The same applied to administrative measures, political resolutions and legal decisions. Later, this situation also gained its legal semblance by the duty of obedience of the Reich Ministerate to the Fuehrer and Reich Chancellor. This occurred at the time of the Reich Law of 16th October 1934, on the oath taken by Reich Ministers and members of the provincial governments [Landesregierungen], by which the Reich Ministers had to swear loyalty and obedience to the leader of the German Reich and people, Adolf Hitler. Thereby, the whole administrative power was concentrated in the person of the Fuehrer. From then on, he was also de jure head of the Reich, supreme legislator, Supreme Chief of all administration and supreme commander of the armed forces, without being restricted by any other factors or authorities when exercising the power with which he was endowed by virtue of the legal position. The cooperation of the members of the Cabinet [Regierungsmitglieder] in an advisory capacity in particular, is therefore no essential condition of the legality of the Cabinet Laws [Regierungsgesetze]. Even without the advisory cooperation of the Cabinet, the Fuehrer and Reich Chancellor can issue decrees which are of course always in the form of a “Fuehrer Edict” or that of a Decree to differentiate between them and the designation “Reich Law” used for those laws issued with the formal cooperation of the Reich Cabinet.

It is neither an essential of the Fuehrer State, nor does it conform to the personal characteristics of the Fuehrer, that all the difficulties described above must be submitted to the supreme Fuehrer for his decision. On the contrary: although the Reich Ministers are today basically subject to the unlimited authoritative power of the Fuehrer when making their decisions even in unimportant individual cases, they actually have an independence in carrying out their official functions such as was never enjoyed by Reich Ministers during the republic [Systemzeit]. Responsibility, powers of decision, a driving energy and real authority, these are the qualities required, first and foremost by the Fuehrer of his ministers. Therefore he allows them great freedom in carrying out their official functions. But, if the evolutionary New Order is not to give way to revolutionary conditions, it is essential that the legal order be respected by the Reich Ministers, and by all their subordinate departments. And so it is necessary, in the middle of the

gigantic process of reorganization that we are now experiencing, that the Fuehrer himself should continually be taking steps to abolish obstacles of a legal or any other kind which could not be eliminated in any other way by apportioning certain full powers and issuing other orders which might not be legally binding or might lack the required authority if they were not issued as laws or Fuehrer Edicts. Anyone who has a certain amount of experience in the sphere of administration knows how extraordinarily difficult it is to gauge what retrospective effects interference with the traditional and established administrative system will have. Should such interference be unavoidable, if higher ends are to be gained, it is necessary to direct and restrict them so that unwanted repercussions are eliminated. Even with practical experience and a knowledgeable survey of the whole sphere of administration and legislation, it is however also necessary to give thorough consideration to the problem to be solved before it is submitted to the Fuehrer. Of course, the final decision can be made, to a certain extent, by the competent departmental Minister himself. Too often, however, he is unable to come to an agreement with those other ministers whose departments are affected by the measure intended, and he sometimes lacks any definite knowledge of the Fuehrer's possible plans to which such measures must conform.

Considered theoretically, the Reich Cabinet would be a suitable special committee to settle opposing points of view and make them fit in with the Fuehrer's aims. In practice, however, this would mean that the cabinet would be in almost continuous session, a quite impossible demand on the Fuehrer. He has not the time to take part in long cabinet meetings [Kabinetsitzungen] to listen to detailed descriptions, justifications and counter-arguments which it is the duty of all ministers to make from the particular standpoint of their departments. The Fuehrer must be free and have the necessary time for those great decisions, which must be made in the field of state-leadership in interior-policy and also especially in foreign policy and which he alone must make. For he is not called to be the arbitrator in differences both of opinion and of other things, but purely a leader, an inspiration, a commander-in-chief—in short a creator. That causes the necessity of reducing cabinet meetings to the minimum and therefore only to those all-important questions, so that even drafts of laws, before they are handed to the Fuehrer are to be dealt with, not during cabinet deliberations, but by the so-called process of circulation, i.e. by

obtaining the written statement of agreement from the individual members of the cabinet.

Under these conditions, it is the duty, first and foremost of the Chief of the Reich Chancellery to submit the matters to the Fuehrer, for his decisions and orders, in a concentrated manner and a suitable chronological order. This saddles him with the necessity of keeping conversant the whole time with the most important matters in the sphere of administration, economy and politics and, at the same time, of concerning himself in the preliminary work of legislation. It falls to him in particular to see whether and in what form any direct interference is to be recommended to the Fuehrer in as much as he must in any case be informed of occurrences in public life.

As they are so numerous, it is almost impossible to give an accurate individual picture of the extent and type of all the questions and concerns which, in this way, make up the substance of the reports made by the Chief of the Reich Chancellery to the Fuehrer. These questions and concerns are extremely numerous and affect all spheres of public life. Fundamentally, only those concerns can be separated which are the responsibility of the President's Chancellery and of the Office of the head of the NSDAP and are laid before the Fuehrer by the heads of these departments, as well, particularly, as all military matters, which the Chief of the Supreme Command of the Armed Forces has to report. Naturally even these matters could encroach on the sphere of activity of the Reich Chancellery on account of their connection with political and administrative questions and therefore require a special report by the Chief of the Reich Chancellery alone or together with the proper competent departmental heads.

Taken as a whole, it may be said that the severe limitation in frequency of the cabinet deliberations has resulted in a corresponding increase of the duties and heightening of the responsibility of the Chief of the Reich Chancellery.

However, the fact that cabinet meetings, under the pressure of circumstances, could take place only seldom, led to the necessity of setting up a special advisory body to the Fuehrer in the form of a Secret cabinet council [Kabinettsrat] to advise the Fuehrer on the direction of Foreign Policy. However, this fact meant a small reduction of the duties of the Reich Chancellery just as did the establishment of a cabinet council [Ministerrat]

for the defence of the Reich later on. This subject will be dealt with anon. The "Secret Cabinet Council" was established by the Fuehrer Edict of 4th February 1938. The following persons are members: Reich Minister Baron von Neurath as president, as members, Reich Foreign Minister von Ribbentrop, General Field Marshall Goering, the deputy-Fuehrer, Reich Minister Hess, Reich Minister of Enlightenment and Propaganda, Dr. Goebbels, Reich Minister and Chief of the Reich Chancellery, Dr. Lammers, C-in-C of the Army, General von Brauchitsch, C-in-C of the Navy, Dr. H. C. Raeder and Chief of the Supreme Command of the Armed Forces, General Keitel. The Reich Minister and Chief of the Reich Chancellery is in charge of any affairs with which the Secret Cabinet Council has to deal.

This is purely a deliberating body which is not called on or empowered to make orders or measures by itself. The special conditions of the war, especially the need to change the legal position and to meet the fast-arising wartime requirements however, made it vital to disembarass the Fuehrer even in the sphere of legislation. This was accomplished by the Fuehrer Edict of 30th August 1939. Under this, a "Cabinet Council for the defence of the Reich" was formed with the power to issue decrees with a legal authority should the Fuehrer decide that a certain law was not to be issued by the Reich Cabinet or by the Reichstag. The following persons are members of the Cabinet council for the defence of the Reich: General Field Marshall Goering as president, the deputy-Fuehrer, the Plenipotentiary-General for Reich Administration, the Plenipotentiary-General for Economy, also the Reich Minister and Chief of the Reich Chancellery and the Chief of the Supreme Command of the Armed Forces. The president can invite other persons to attend the deliberations of the Cabinet Council. The Reich Minister and Chief of the Reich Chancellery is in charge of the affairs of the Cabinet Council. Another legislative body, therefore, came into existence but here again, in accordance with the authoritarian principle of leadership, it was an organization of leadership in the hand of the Fuehrer and Reich Chancellor, a legislative organization, whose authority to issue decrees is based on the supreme legislative power of the Fuehrer and which can be used in specific cases only if the Fuehrer has not decided on some other procedure. Actually, the cabinet council's authority to issue decrees has been made use of to a great extent since the beginning of the war.

The most important decrees issued by the Cabinet Council for the defence of the Reich are the following:

Decree on the appointment of Reich Defence Commissars dated 1st September 1939 (Reich Law Gazette I p 1565), Decree on the compensation for personal damage (Personal damage decree) dated 1st September 1939 (Reich Law Gazette I p 1623), Decree on measures concerning civic disputes, compulsory execution, bankruptcy and civic right dated 1st September 1939 (Reich Law Gazette I p 1656), Decree on special radio measures dated 1st September 1939 (Reich Law Gazette I p 1683), Decree on the restriction on changing the place of work dated 1st September 1939 (Reich Law Gazette I p 1685), War-economy decree dated 4th September 1939 (Reich Law Gazette I p 1609), Decree against elements of the population, dated 5th September 1939 (Reich Law Gazette I p 1679), Decree on the assessment of damage to property (damage to property assessment decree) dated 8th September 1939 (Reich Law Gazette I p 1754), Decree on the concession of delayed payment in legal disputes dated 7th October 1939 (Reich Law Gazette I p 2004), Decree on the treatment of enemy capital dated 15th January 1940 (Reich Law Gazette I p 191).

This short list of the most important Cabinet Council Decrees should suffice to make clear the extent and significance of the Cabinet Council legislation. It is obvious that this has lifted a quite exceptionally heavy burden from the Fuehrer's shoulders. The Reich Chancellery, however, participates fully in the work of the Cabinet Council since the Chief of the Reich Chancellery is not only a member but also directs its affairs. The Chief of the Reich Chancellery was given the task of directing these affairs because it put him in a position to keep the Fuehrer conversant all the time with the work of the Cabinet Council. In this connection, the Chief of the Reich Chancellery, in cases where there is any doubt on the point, has to make sure that the Fuehrer has the opportunity in good time to make clear whether he is in favour at all of a measure planned by the Cabinet Council, or whether he would not prefer the form of a Cabinet or Reichstag law instead of a cabinet Council decree. Basically the right possessed by the Cabinet Council for the defence of the Reich to issue decrees is limited to legal matters directly

connected with the defence of the Reich. However, in special cases and at times when the Fuehrer is on a visit to the front, this rule cannot always be kept. Should there be any doubt, whether and to what extent deviations from this rule can be made, it usually falls to the Reich Minister and Chief of Reich Chancellery to take steps to obtain the Fuehrer's decision should the occasion arise.

According to the assignment of duties in the Reich Cabinet the Chief of the Reich Chancellery is in charge of the affairs of the Reich Cabinet as well. In this capacity he has to arrange the meetings of the Reich Cabinet on the direct instructions of the Fuehrer and to issue summonses to these meetings together with the agenda and the subjects up for discussion. He must also see that the Reich Ministries concerned are in agreement beforehand on the subjects to be discussed, or if they are not unanimous, that a clear position has been reached about the incompatibility of the various opinions and about the reasons for the opposed points of view. Ministerial conferences among the Ministers concerned may be held prior to the cabinet meeting to clear up these differences of opinion. These Ministerial Conferences under the chairmanship of the Reich Chancellor, took place before the assumption of power. Apart from exceptional occasions, this no longer occurs. Summonses to Ministerial Conferences are sent out by the Chief of the Reich Chancellery at the request of one or more of the ministers concerned; he then as a rule presides at these conferences. Naturally, this does not apply to the numerous ministerial conferences arranged by the authoritative Reich Ministers of the day, in which the matters dealt with are such that it is not, or not yet, necessary that the Fuehrer be informed; therefore the Reich Minister and Chief of the Reich Chancellery need not be present at the conferences.

The drafts of Cabinet laws [Regierungsgesetze] are first prepared by the authoritative ministry, that is the ministry most concerned, in agreement with any other ministry concerned, in the matter. There is sometimes a preliminary discussion of these in conferences between departmental heads [Chefbesprechungen] and then they are handed to the Chief of the Reich Chancellery who determines whether they are to be included in the agenda of a cabinet meeting or whether the agreement of all the members of the cabinet is to be obtained in writing by the so called process of circulation. Should there still be differences of opinion remaining unsolved when the

cabinet deliberates on the drafts of the laws, the Fuehrer makes the final decision on the content of the law and its passing. This procedure is also followed when any opposition remains during the process of circulation and deliberation on the draft in a cabinet meeting seems impracticable for some reason or other.

Cabinet laws [Regierungsgesetze] decided on are drawn up and issued by the Fuehrer and Reich Chancellor. The finished law, the actual legal document, is signed first by the Fuehrer and then by the ministers concerned, who are thereby responsible to the Fuehrer for the law. Apart from the Reich Ministers concerned, the Reich Minister and Chief of the Reich Chancellery also appends his signature and, by this action, makes himself responsible that all Reich Ministers had the opportunity of stating their opinions. Furthermore, the president of the Cabinet Council for the defense of the Reich must append his signature to all Reich Laws and that under the signature of the Fuehrer and Reich Chancellor. Fuehrer Edicts with a legislative content are always signed also by the Reich Minister and Chief of the Reich Chancellery. This rule of signatures is based mainly on an internal regulation of the Fuehrer or on usage. It applies also to the Cabinet laws [Regierungsgesetze] which are issued as Reichstag laws or People's laws.

The Reich Minister and Chief of the Reich Chancellery who, as we know, directs the affairs of the Cabinet Council plays a similar part in the work of the Cabinet Council for the defence of the Reich in issuing decrees which, as mentioned above, have the authority of laws, as he does with the Cabinet laws. It must be noted, that the peculiarity in this case is that the subjects dealt with by the Cabinet Council are distributed not merely among the members of the Cabinet Council, but also among all the members of the Cabinet who are thereby given the opportunity of guarding the interests of their spheres of office by adding their appropriate standpoints in the Cabinet Council legislation, even if they do not participate in making the decree.

PARTIAL TRANSLATION OF DOCUMENT 2232-PS

GERMAN ADMINISTRATIVE LAW [Deutsches Verwaltungsrecht]

by Dr. Hans Frank.

Published by: Central Publishing House of the NSDAP

Franz Eher Successor, Munich.

[Pages 420, 421, 424, 425, 430]

Task and Means of a Political Police.

A. The Task

The task of a political police in the sense of the National Socialist conception of this institution has been formulated best so far in Section 1 of the Prussian law concerning the Secret State Police of 10 February 1936 (Prussian law collection, 1936, p. 21): “The Secret State Police has the task of investigating and fighting all attempts dangerous to the State, of collecting and evaluating the result of the inquiries, of informing the State Government and of keeping the other authorities currently informed on important facts pertaining to them and of supplying them with suggestions.” This formulation also outlines the task of Political Police Systems in other German countries for which this task assignment is to be concluded from the National Socialist conception of a Political Police, since a legal formulation is mostly missing.

* * * * *

b. All attempts dangerous to the State are subject to the activity of the Political Police. “Dangerous to the State” is more than “hostile to the State” and includes not only undertakings with programs hostile to the State but also all attempts—no matter what their aim—which in their effects endanger the State.

Not the State in its outward organic appearance but the tasks of the leadership in the sense of the National-Socialist idea is the object of protection. It is the task of the National Socialist leadership to preserve and to develop all national values. These being endangered, the Political Police is called upon for protection against the endangering attempts, e.g. if there is any danger:

to the State leadership and structure of the State by intentions of
terror and revolutionary plans,

to the Armed Forces and the forces of defense by espionage and
(intellectual and technical) sabotage,

to the people's community and the state principles by
disintegration and instigation,
to the people's health and blood purity by moral corruption (e.g.
offenses according to Section 175 of the Reich penal code)
and racial disgrace,
to the ideological unity of the people by intellectual poisoning
and distortion (e.g. by "Jehovah's Witnesses" and other
sects).

A complete catalogue of "attempts dangerous to the State" can never be drawn up because it can never be foreseen what may endanger leadership and people sometime in the future. National Socialist recognition of threatening danger and National Socialist knowledge of responsibility will understand and fulfill the duties of the Political Police according to the real necessities in any political situation.

* * * * *

b. The lawful means for *preventive police measures* of the Political Police have not been regulated legally. They cannot be regulated, for the preventive police duties of the Political Police—and the means necessary for their performance—cannot be described and standardized for all time.

The duties of the Political Police and the necessary means for their performance are not chosen freely but are prescribed by the foe. Just as the operations of an army against the outward enemy and the means to fight this enemy cannot be prescribed, so the Political Police also must have free hand in the choice of the means necessary at times to fight attempts dangerous to the State.

Since the National Socialist revolution, the powers of the Political Police in a legally positive respect are derived immediately from the new conception of the State and the resulting conception of the duties of a police force. According to this conception the duty of the Political Police, due to its nature, is to fight all attempts dangerous to the State. And it thus has the right to take all necessary measures for this fight as long as there are not any expressly contrary regulations. This conception is confirmed by the decree of the Reichspresident for the Protection of People and State of 28 February 1933 (RGBl I, p. 83) by which the so-called basic rights of the

Weimar Constitution have been abrogated. This means that ever since, every State institution—particularly the Political Police—may take measures in the performance of its duties which were barred before by those basic rights.

“The decree for the Protection of People and State of 28 February 1933 has eliminated the negative law barriers of the State power. The positive competence of the police to restrict liberty of any kind, especially to order protective custody, results already from the character of the function which the Police in the National-Socialist State has to perform.” (Dr. Walter Hamel: “The Police in the National-Socialist State,” German lawyers’ newspaper of 15 March 1935, col. 326.)

According to kind and purpose the measures taken by the Political Police can logically be subject to a check only by their own channels of administrative supervision. This is recognized for instance in Section 7 of the Prussian law concerning the Secret State Police of 10 February 1936 by the stipulation: “Orders in matters of the Secret State Police are not subject to the check of the administrative courts.” In its decision of 2 May 1935 (III C 43/35) the Prussian High Court of Administration had already come to the same conclusion, before the decree of 10 February 1936 was issued, by reason of the legal situation in Prussia. Also for the other German countries—if not expressly settled to the contrary—and for a future Reich regulation the principle has to be maintained that measures of the Political Police can be checked only by their own channels of administrative supervision. In view of the tasks and means of the Political Police which cannot be standardized individually, there can be no legal backing for a court decision. Any agency outside of the Political Police must lack the necessary expert knowledge for a decision by way of administrative supervision.

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f. The Secret State Police administers the State Concentration Camps through the Inspector of the Concentration Camps who is affiliated with the Office of the Secret State Police.

PARTIAL TRANSLATION OF DOCUMENT 2233-A-PS

FRANK DIARY, Meetings of Departmental Chiefs in 1939/40
[Abteilungsleitersitzungen 1939/40]

Minutes of the 1st conference of the Departmental Chiefs on the 2nd
December 1939.

[Page 3, line 4-13]

The condemning to death of an archbishop and bishop gives cause to the fundamental observation that a total war against any kind of resistance is being waged in the Government General. The two bishops have been condemned quite rightly, because arms were found in their possession. If, despite that, they were pardoned to hard labor, then certain other considerations were the cause for that. Reports by the press concerning the shooting of Jews are not desirable because such reports would intimidate the Jews.

Minutes of the 2nd conference of the Departmental Chiefs on the 8th
December 1939.

[Page 4, par. 1 and 2]

The question of forced labor for the Jews could not be solved satisfactorily from one day to the other. Prerequisite for this would be the card indexing of the male Jews from 14 to 50 years of age. In this it had to be ascertained which trade the Jews had so far carried on, because just in those territories the Jews had had various skilled trades, and it would be a loss if this manpower would not be usefully exploited. To do this, sweeping planning is necessary. For the time being the Jews had to be gathered in columns and had to be employed wherever there was a pressing need. It is the task of the chief of the district to determine these needs.

The police was being reenforced by 4 police battalions. The commitment would be such that each government section was to receive one battalion. Moreover, it was ordered that the police battalions in the Government General would be relieved and interchanged from time to time with battalions from home. Already before Xmas the relief of 4 battalions would take place. No insecurity would result.

[Page 7, 2 last paragraphs]

Governor Dr. Lasch called attention to the fact that the order of the Governor General regarding the institution of compulsory work provided, that Poles from their 18th year upward were to be conscripted for compulsory labor. A regulation of the age groups from 14 to 18 would also

be desirable. One should not neglect the danger that particularly the youth of this age group in high schools could become a source of national resistance.

Governor General Reich Minister Dr. Frank orders the preparation of a supplementary decree, according to which the compulsory labor was to be extended to the age groups from 14 to 18.

Meeting of Departmental Chiefs at the Bergakademie (Academy for mines).

Friday, 10th May 1940

[Page 23, par. 1]

Then the Governor General deals with the problem of the *Compulsory Labor Service* of the Poles. Upon the demands from the Reich it has now been decreed that compulsion may be exercised in view of the fact that sufficient manpower was not voluntarily available for service inside the German Reich. This compulsion means the possibility of arrest of male and female Poles. Because of these measures a certain disquietude had developed which according to individual reports, was spreading very much, and which might produce difficulties everywhere. General Fieldmarshal Goering some time ago pointed out in his long speech the necessity to deport into the Reich a million workers. The supply so far was 160,000. However, great difficulties had to be overcome. Therefore it would be advisable to consult the district and town chiefs in the execution of the compulsion, so that one could be sure from the start that this action would be reasonably successful. The arrest of young Poles when leaving church service or the cinema would bring about an ever-increasing nervousness of the Poles. Generally speaking, he had no objections at all if the rubbish, capable of work yet often loitering about, would be snatched from the streets. The best method for this, however, would be the organization of a raid, and it would be absolutely justifiable to stop a Pole in the street and to question him what he was doing, where he was working, etc.

TRANSLATION OF DOCUMENT 2233-B-PS

FRANK DIARY, 1940
1st Vol., January-March.

[Page 18, 3rd paragraph]

Thursday, January 11th

1520 Section Chief Dr. Frauendorfer reports to the Governor General on the possibilities and the extent of the transport of workers into the Reich. The German State Railway sends daily 10 transports, each carrying 1000 workers. Beginning with January 15, these transports, which were stopped temporarily—will be taken up again.

In regard to the project of resettlement, it should be avoided, that it be carried out further in the brutal manner which has prevailed up till now, because otherwise it is to be feared that people will not volunteer any more to go into the Reich, and also because of the way in which the resettlement is carried out, the possibility of using these people in the Reich will be impaired. As an extra allowance for the unemployment pay the Reich Ministry for labor has held out the prospect of an additional sum of 3 million Reichmarks a month.

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[Pages 183-184]

March 7th, 1940

Citadel of Cracow

1645 Conference with SS Brigadier General Schreckenbach

1650 Attaché Dr. Albers is introduced by Councillor of Legation v. Grolinan to the Governor General

1700 Conference with Brigadier General Buehrmann, Stabsleiter Reichert, Reichshauptamtsleiter Dr. Frauendorfer, and 2 special advisors.

Subject of the discussion is the question of the shipment of Polish agricultural workers into the Reich.

Brigadier General Buehrmann started by saying that Stabsleiter Reichert has been appointed by the Reich Food Ministry, to make sure, that Polish workers would be sent into the Reich under all circumstances, and—if necessary—a compulsory service should be enforced upon them. Brigadier General Buehrmann would like to recommend, that the Governor General—for the time being does not make any decision for the introduction of a

compulsory service or employment of force against the Polish agricultural workers.

Stabsleiter Reichert emphasizes that Berlin insists that the one million agricultural workers be sent into the Reich.

Reichshauptamtsleiter Dr. Frauendorfer replies to a question of the Governor General, that so far 81,477 Polish agricultural workers were sent into the Reich—of which 56,721 were men, and 24,756 women.

Since 12 February, 154 special trains have been sent off, that was the utmost that could have been accomplished in this time. To these figures—just mentioned—are to be added 42,000 workers, who had been already in the Reich so that the amount is increased to 130,000.

The Governor General has the opinion, that the 480,000 prisoners of war should also be included in the sum of one million. On account of the railroad and the highway conditions, it is not at present possible to do anything by force, also there were not sufficient police forces there at disposal, to carry such measures out. If any force were exercised, then it would affect workers who were employed as specialized workers for the plants.

Stabsleiter Reichert asks—if the occasion arises—that superior offices should make the decision in this question.

Cracow

Wednesday, March 6th 1940

10:00 Conference with Ministerial-Director Dr. Buehler.

10:50 Conference with bank-director Dr. Paerscl.

11:00 Conference with Reichshauptamtsleiter Dr. Frauendorfer.

Reichshauptamtsleiter Dr. Frauendorfer reports, that 73,000 Polish workers have been sent now into the Reich. At present 4,000 men are transferred daily. Further, Dr. Frauendorfer reports on the organization in the plants. It is as simple as possible. On Monday, he visited a few plants in Warsaw, and he could only say that they all were running excellently, this applies also to the machinery. Kitchens were also installed everywhere now and furthermore, the necessary quantities of soap had been provided. 5,000 sets

of underwear and linen, 32,000 Kg. flour, 4,000 Kg. of beef and of pork and other merchandise had been distributed. The Governor-General ordered that the exact figures should be published in the press. Now, as before, he thinks that the soup given out daily was one of the best solutions, for the problem of the welfare for the working men.

Reichshauptamtsleiter Dr. Frauendorfer remarks that this soup is being served daily now with one pound of bread.

The Governor-General will not out of basic considerations give his consent to the proposal that an introductory note should be added to the 2nd decree for the regulation of social insurance, but he thinks it better to point out in a suitable way, that the chief of the labor section has given an explanation about it to the press chief.

In this conference the question of the sending of Polish agricultural workers into the Reich was then discussed. Here, Dr. Frauendorfer points out that workmen from the Lublin area had never gone to the Reich before, from which naturally certain difficulties arise. Besides numerous letters from the agricultural workers to their families had already come from the Reich, in which the Polish agricultural workers expressed themselves very gratefully concerning their treatment in Germany. The Governor-General orders that some of these letters should be published in the press.

[Page 216]

15 March 1940

Conference with ambassador v. Wuehlisch.

18:30: Ambassador v. Wuehlisch reports that the preparations for the transport of the *Vert Stoss Altar* to Nurnberg have been completed. The church really looked better, due to the space gained by the removal of the altar. Ambassador v. Wuehlisch reported furthermore, that the former ambassador Wysoski had asked again for an audience with the Governor-General. The Ambassador v. Ruemelin had been asked to make a request that he be taken into the service of the Government-General.

[Page 216, last 12 lines.]

The question of the Polish relief committee: the Security service wrote to Mr. Arlt, and pointed out, that the head of this organization Count

Radziwill, participated in Silesian revolt, that he supported Korfanty and that he also was supposed to have disloyal remarks about the Reich. The ambassador v. Wuehlisch asked Arlt, to proceed very carefully in this matter, before expelling Count Radziwill from the relief committee because such a procedure might have disagreeable consequences.

Under any circumstances, the consent of the Governor-General would be necessary for this.

The so-called Polish Government in anger has completed a "White Book" which deals with the arch-diocese of Posen and Suesen. The Governor General said that he discussed this question with the Papal Nuncio in Berlin. He gathered from this conversation that a great deal was said about the treatment of the churches and apparently it was attempted to push many things off into the government general, for which it was not at all responsible.

Ambassador v. Wuehlisch thinks it worth while that those and similar questions be discussed in Berlin. Such negotiations would have to be handled through the foreign office.

The Governor General said that he had long conferences with the Ministry of Finance and with the representatives of the Reich Food Ministry. It was requested there very urgently, that the Polish agricultural workers be sent in greater quantities to the Reich. In Berlin he explained that if he were asked to do so, he could naturally exercise some compulsion in perhaps such a way, that he might have the police surround a village and bring out the men and women in question by force, and then send them to Germany. But besides these police measures one also could proceed by withholding unemployment relief for the workers in question. Ambassador v. Wuehlisch discussed then certain violations of the border which occurred at the Soviet frontier. By request of the Reich Minister of Finance and by request of the Armed Forces High Command representation had been made in Moscow evidently for the reason that the Soviet border guards always employed their firearms immediately. It was suggested that such incidents be straightened out right away on the spot.

The deputy foreign commissar Potemkin suggested that liaison officers should be appointed by both sides for this purpose. The liaison staff Russia should serve as central office.

The Governor General does not consider this method practicable and he feels that here also the Government General should be unhindered, he requested that the ambassador v. Wuehlisch confer on this question with the Secretary of state Dr. v. Wuehlisch. This question did not only concern the Wehrmacht but also for example the customs administration, for this reason representatives of the Ministry of Finance must also cooperate in this matter.

Ambassador v. Wuehlisch draws attention to the fact that the customs officials are subordinated to the Wehrmacht.

The Governor General points out, that a superior office would not make any decision. In this matter the decision would be up to him. For the time being one must try to reach the goal by employing different means. For instance letters might be published, that were sent from the Reich, written by Polish workers to their families. If the occasion arises, such compulsory decree should not be announced publicly.

Reichshauptamtsleiter Dr. Frauendorfer confirms, on the basis of his experiences, that in many cases there was no possibility of employing recruiters from the Reich. On account of the snowfall, the passenger cars could not be used, and by using field sleighs, the recruiters could have travelled not more than 60 km. daily. Also, the Warsaw district was never really an emigration-area for Polish agricultural workers.

It has to be observed, that unfortunately the agricultural workers have medical certificates or statements made out by the words, which purport to say that they are not fit for service. Other workers took refuge into the woods. Often complaints were expressed, that the words did not support the action sufficiently, and cases have been observed, where official labor measures, had been intentionally violated. Besides, the activity of the recruiter can not be without danger; just some time ago, one of these German officers was fired upon. Also the fact should be noted, that of 800 workers, which were already assigned, only 69 reported to the station.

All that could be traced back to the fact that the rural population is affected by a psychosis of anxiety, without mentioning the fact that the Poles might have organized themselves well in the meantime.

The Governor General is not at all disinclined to take the most extreme measures. But then, the authority of the Reich would have to be fully utilized, but as long as there is snow on the ground, any change in this situation can not be contemplated. * * *

[Page 198, lines 15-22]

12 March 1940

Governor General Dr. Frank:

In view of the propaganda in the U.S.A. any use of force should if possible be avoided, but a light pressure could be exerted by stopping the payment of unemployment relief, for those categories which are concerned at all, at any rate agriculture should not send back young, strong workers, just because they were unskilled.

Reichsobmann Behrendt: The Agriculture needs skilled as well as unskilled workers. One unskilled worker could be employed for each two skilled workers.

PARTIAL TRANSLATION OF DOCUMENT 2233-C-PS

FRANK DIARY, 1940.

Vol. IV, October-December

[Page 943, 4th-6th lines]

10/7/40

The Governor-General then addresses the assembly with the following words:

My dear Comrades!

* * * * *

[Page 946, lines 1-3, 21-30]

10/7/40

* * * There are so few of us here that no one can actually really conceal himself. Everybody has to fear that the spotlight will now and then rest on him * * *

* * * It is clear that education will perhaps still be necessary here and there; furthermore, it is clear that this open-minded comradeship, this common spirit of close contact finds its counter-part in the unstinted observation of authority in inner office relations. We cannot permit the offices to become 5 o'clock tea rooms. But, of course, our position as Germans here must be such that the lowest of us is still far above the highest Pole in this room * * *

[Page 1158, 2nd par. to p. 1159 4th line]

* * * And another thing was told me by the Fuehrer in all seriousness, a few days ago: that the old Japanese proverb:—after the war tighten your helmet strap—should retain its validity. Comrades, never again shall we be a weak Reich. The Armed Forces will represent the crown of community education. Just as the NSDAP is the crown of social, political and ideological leadership, so the Armed Forces will be the essence of military training, of the proud and immaculate bearing of our people. And you can say: you took part in it as soldiers. I am very happy about this hour of the Armed Forces, for it joins us all together. Some of you left your mothers, your parents at home, others their wives, their brides, their brothers, their children. In all these weeks, they will be thinking of you, saying to themselves: my God, there he sits in Poland where there are so many lice and Jews, perhaps he is hungry and cold, perhaps he is afraid to write. It would not be a bad idea then to send our dear ones back home a picture, and tell them: well now, there are not so many lice and Jews any more, and conditions here in the Government General have changed and improved somewhat already. Of course, I could not eliminate all lice and Jews in only one year's time (public amused). But in the course of time, and above all, if you help me, this end will be attained. After all, it is not necessary for us to accomplish everything within a year and right away, for what would otherwise be left for those who follow us to do?

PARTIAL TRANSLATION OF DOCUMENT 2233-D-PS

FRANK DIARY, 1941 Oct-Dec.

CABINET SESSION

Tuesday 16 December 1941 in the Government Building at Krakow

Speech of the Governor General Closing the Session

[Page 76, line 10 to page 77 line 33]

As far as the Jews are concerned, I want to tell you quite frankly, that they must be done away with in one way or another. The Fuehrer said once: should united Jewry again succeed in provoking a world-war, the blood of not only the nations, which have been forced into the war by them, will be shed, but the Jew will have found his end in Europe. I know, that many of the measures carried out against the Jews in the Reich, at present, are being criticized. It is being tried intentionally, as is obvious from the reports on the morale, to talk about cruelty, harshness, etc. Before I continue, I want to beg you to agree with me on the following formula: We will principally have pity on the German people only, and nobody else in the whole world. The others, too had no pity on us. As an old National-Socialist, I must say: This war would only be a partial success, if the whole lot of Jewry would survive it, while we would have shed our best blood in order to save Europe. My attitude towards the Jews will, therefore, be based only on the expectation that they must disappear. They must be done away with. I have entered negotiations to have them deported to the East. A great discussion concerning that question will take place in Berlin in January, to which I am going to delegate the State-Secretary Dr. Buehler. That discussion is to take place in the Reich-Security Main-Office with SS-Lt. General Heydrich. A great Jewish migration will begin, in any case.

But what should be done with the Jews? Do you think they will be settled down in the "Ostland", in villages [Siedlungdoerfer]? This is what we were told in Berlin: Why all this bother? We can do nothing with them either in the "Ostland" nor in the "Reichkommissariat". So, liquidate them yourself.

Gentlemen, I must ask you to rid yourself of all feeling of pity. We must annihilate the Jews, wherever we find them and wherever it is possible, in order to maintain there the structure of the Reich as a whole. This will, naturally, be achieved by other methods, than those pointed out by Bureau Chief Dr. Hummel. Nor can the judges of the Special Courts be made responsible for it, because of the limitations of the frame work of the legal procedure. Such outdated views cannot be applied to such gigantic and unique events. We must find at any rate, a way which leads to the goal, and my thoughts are working in that direction.

The Jews represent for us also extraordinarily malignant gluttons. We have now approximately 2,500,000 of them in the general government, perhaps with the Jewish mixtures and everything that goes with it, 3,500,000 Jews. We cannot shoot or poison those 3,500,000 Jews, but we shall nevertheless be able to take measures, which will lead, somehow, to their annihilation, and this in connection with the gigantic measures to be determined in discussions from the Reich. The general government must become free of Jews, the same as the Reich. Where and how this is to be achieved is a matter for the offices which we must appoint and create here. Their activities will be brought to your attention in due course.

PARTIAL TRANSLATION OF DOCUMENT 2233-E-PS

FRANK DIARY, Conference Volume,

Cabinet session in Cracow on 24 August 1942

Cabinet session in the Great Conference Room of the
Government Building in Cracow

Monday, 24 August 1942

Subject: A new Plan for seizure and for food [Ernaehrung] of the General
Gouvernement

written in 3 Copies:

1. Office of the Governor General
2. State Secretary Dr. Boepple
3. District Court Judge [Oberlandesgerichtsrat] Dr. Weh

List of those present at the session of 24 August 1942

The Governor General
State Secretary Krueger
State Secretary Dr. Boepple
General Becker
Schoengarth
Kobusch
Dr. Wendler
Dr. Siebert

Dr. Radtke
Plodeck
Tetzner
Naumann
Dr. Eissfeldt
Dr. Gschliesser
Ohlenbusch
Watzke
Bauder
Gerteis
Dr. Breithaupt
Dr. Paersch
Dr. Weh
Dr. Schulte-Wissermann
Dr. Wohlrab
Neumann
Dr. Behr
Bette
Rauber
Eden
Neumann
Dr. Zeisner
Winkler
Grafmann
Gareis
Dr. Odenthal
Pietschmann
Krahmer
Schubert
Colonel Fischer
Reitz
Major Dr. Herrmann
Capt. Behringer
Verwaltungsrat Korff
Von Dazur
Vogel
Dr. Ness

Topf
Blauer

Beginning of the Session at 4 p.m.

The *Governor General* opens the meeting with the following words:

Gentlemen,

I have called you together today with special speed and emphasis in order to acquaint you with a measure which is unusually important and decisive for all the work in the General Government in the year to come. What I tell you, I tell you in strictest confidence. I call your attention to the fact that every word which leaks out of this meeting, unofficially, might mean a tremendous damage to our country.

A few days ago a meeting with the Reich Marshal took place in Berlin. The Reich Marshal had the reports concerning the almost catastrophic developments in the *food situation in Germany*. According to all confidential reports of the police, as well as of the Gauleiter, which, as he expressed himself, also confirmed by his own experiences, the situation is as follows: unless a considerable improvement in the food situation in Germany can be achieved in a short time, serious consequences as to the health of the people, especially the German working people, would result. In hundreds of thousands of sick cases, one can already see the tragic consequences not only of this food shortage but also a deterioration of foodstuffs which endangers health. That is especially true of the quality of bread which has been distributed to the German people within the last few weeks: this leads to the most serious health disorders.

A serious situation, therefore, has arisen since Germany not only has to feed herself but also a large proportion of other European people. We must also take care that in the months to come and during the coming winter sufficient food will be distributed to the German people that they will be able to withstand the great nervous strain of the coming months in every case.

Under these circumstances you probably will not be surprised that the saying now has become true: Before the German people are to experience starvation, the occupied territories and their people shall be exposed to starvation. In this movement, therefore, we here in the General Government

must also have the iron determination to help the Great German people, our fatherland.

Germany had almost sufficient rye to tide them over until the new harvest, but not sufficient wheat. In large parts of Germany, therefore, no more wheat can be distributed in the near future. We therefore must aid the fatherland until the beginning of the new wheat harvest.

The General Government therefore must do the following: The General Government has taken on the obligation to send 500,000 tons bread grains to the fatherland in addition to the foodstuffs already being delivered for the relief of Germany or consumed here by troops of the armed forces, Police or SS. If you compare this with our contributions of last year you can see that this means a six-fold increase over that of last year's contribution of the General Government.

The new demand will be fulfilled exclusively at *the expense of the foreign population*. It must be done cold-bloodedly and without pity; for this contribution of the General Government is still more important this year since the occupied Eastern territories—Ukraine and Ostland—will not yet be able to make an important contribution toward the relief of Germany's food problem. Even if a million tons of bread grains could be delivered from Ostland and Ukraine, it would in the face of Germany's food situation be only a "drop in the bucket".

For this reason I wanted to acquaint you, Gentlemen, here in this governmental session with the decisions which I have made known today to Party member Naumann. You will essentially find an additional *increase* of the *quota* of foodstuffs to be shipped to Germany and *new regulations for the feeding of the population*; especially of the Jews and of the Polish population, whereby, if possible, the provisioning of the working people, especially of those working for German interests, shall be maintained.

The step which we are taking together today, is one of the most decisive ones, because it will surely have certain consequences as to the internal order of this country in January or February of next year. These consequences have to be accepted, because before the German people be starved, others, as a matter of course, must undergo the same.

I first of all give the word to Party member Naumann, who will give you a general report about this problem.

Naumann, President of the Main Department for Food and Agriculture:

Governor General, Gentlemen!

At the beginning of July during the last session of the government, I acquainted you with the *food budget* of the year 42/43. I hoped that this budget would be adequate. The Governor General, in order to increase the high goal that was originally set in the General Government, had decreed martial law for the harvest time [Ernteausnahmezustand] in order to drain even the last possibilities for the execution of the seizure (of the harvest).

Previously we concluded conferences with the Reich Food Ministry. We had included the shipments which, according to the then prevailing interpretation, were to be delivered by the General Government, in the food budget, and could hope to reach the harvest of 1943 without friction. Meanwhile a message from State Secretary Backe as well as a message from Reich Marshal Goering has arrived, and the Governor General has ordered that all requirements of the Reich are from now on to be fulfilled under all circumstances.

Out of this situation the following needs arise:

1. Grain

After exact considerations the grain quota is raised 25%, that is, from 960,000 tons to 1.2 million tons. The dry measure [Metze] of *self-feeders*, which was 30 kg per head per year, will be raised to 50 kg per head per year. This means: Self-feeder—there total 8.8 million persons in the General Government who heretofore could eat two bushels and 20 kg of bread grain per year—will in the future eat two bushels per year. By this means it will be possible to cause an increase in the dry measure from 160,000 tons to 264,000 tons. This is the burden which we shall place upon and must place upon Polish and Ukrainian agriculture.

On the other hand, I gave an estimated total requirement of 670,000 tons of *bread grain* for the General Government in the food budget of early July. The requirements of the Reich make it necessary that exceptional savings be carried out in the interest of absolute fulfillment of Reich deliveries.

The feeding of a *Jewish population*, estimated heretofore at 1.5 million, drops off to an estimated total of 300,000 Jews, who still work for German interests as craftsmen or otherwise. For these the Jewish rations, including certain special allotments which have proved necessary for the maintenance of working capacity, will be retained. The other Jews, a total of 1.2 million, will no longer be provided with foodstuffs.

Non-German normal consumers will receive, from 1 January 1943 to 1 March 1943, instead of 4.2 kg bread per month, 2.8 kg; from 1 March 1943 to 30 July 1943 the total bread ration for these non-German normal consumers will be cancelled.

Those *entitled to be supplied* [Versorgungsberechtigten] are composed as follows. We estimate that 3 million persons come into consideration as war workers, the A- and B-card holders and their kin, and that somewhat more than 3 million persons are non-German normal consumers, who do not work directly or indirectly in the interests of Germany. The war workers, A- and B-card holders and their families, about 3 million persons, will however continue to be supplied, up to the harvest of 1943, at the prevailing rates.

Furthermore, savings will be brought about in the sphere of *seed grain* in such a way that seed grain will be issued for general seed grain needs only when the farm [Betrieb] delivers for it, in excess of its quota, an equal amount of food grain.

Rations of oats for feed to those who own horses in their professions must be reduced to a great extent. Unfortunately a certain portion of oats will also fall away which heretofore was placed at the disposal of the main forestry department for the horses with which the urgent transport of wood was carried out. Extensive restrictions will be carried out in *Manufacturing and finishing plants*, which will take effect in the food sphere. Also special allotments, as we carried them out last year during the winter months in Warsaw, Radom, Cracow, etc. cannot be carried out this winter. By this measure a saving of 115,000 tons of bread grain will be attained.

When the above mentioned increased quota will be brought in 100%, it will be possible to maintain a new food balance in the grain sector. Every amount which is missing from a 100% achievement of the total quota takes the form of a further reduction, first of all for the 3 million non-German normal consumers who do not work in the interest of Germany. In case the

seizure and collection of the dry measure should even then create certain difficulties, this will have an effect on the family members of war workers working in the interests of Germany and on A- and B-card holders. The Main Department for Food and Agriculture will try, however, not to take these last measures if the acquisition to some extent brings about the result we all hope from it.

2. Potatoes

Also here the changed *potato quota* must be raised 25 percent, that is, from 1.2 million to 1.5 million tons. It is planned that war workers and A- and B-card holders will again receive, as during last year, 3.5 double-bushels of potatoes which they can use for themselves and the members of their families. For Germans 2 double-bushels per head per year are planned, for the 7 main cities of the General Government, 1 double-bushel per person. Before supplying the main cities with potatoes, the requirements and quotas of factory potatoes must be primarily secured. Only then, when this securing has been made, will potatoes be issued to the main city population at the rate of a double-bushel per head. This precautionary measure has the purpose above all of seeing to it that enough alcohol can be produced, first of all to maintain equal quality amounts [Praemienmengen] and secondly to have enough alcohol available for other important purposes.

3. Meat

Also in the domain of meat a 25% *quota increase* takes place, so that the new Reich contributions can be fulfilled. The now almost completely accomplished registry of cattle aids the seizure. We hope to be able to achieve, with what are considerable encroachments in themselves, that the 400 grams per month for non-German normal consumers can be issued. Nevertheless the situation can arise that at certain times here and there the 400 grams per month may for once not be issued, but less must be given, since here also the deliveries to the armed forces and the Reich contributions have priority.

These drastic measures can only succeed when the following prerequisites can be created and/or maintained. Every *ration increase* for war workers, A- and B-card holders or members of their families must be refused. Just a short time ago the armament inspection requested from me an increase of rations. Furthermore requests have come in to raise the insufficient rations

of the Drohobycz oil region. In the face of the serious food situation in which the General Government finds itself, ration quota increases for these groups of workers, and the members of their families as well, cannot be carried out.

New *ration applicants* can under no circumstances be accepted any more. This means: New industries, new construction projects or major enterprises cannot be satisfied with supplementary, insofar as a need is created by new masses of workers, unless the Reich makes available and allows an amount to be deflected which corresponds to the requirements of the additional masses of workers, from those supplies which we have to deliver to the Reich.

The *Bonus amounts* approved by the Main Department of Economies and Monopoly must be delivered without fail. Beyond that new bonus goods must be made available due to the raising of quotas of the main Department of Food and Agriculture. If it is not possible to secure cigarettes, liquor, textiles, and earlier bonus goods, I request that *salt* be also fully counted into the bonus drive now, this means that, starting immediately, the total salt ration is to be provided in the cities through food cards and on farms through bonus certificates.

Proposed *resettlement projects*, such as are planned, according to reports from the Department Leaders of Lemberg and Lublin, must in my opinion be postponed, for the sake of a frictionless procurement and effecting of the harvest for the coming year.

The *securing of all depots and food processing plants* as well as their transport facilities must be assured, as otherwise irreplaceable losses result which mean a further burdening of the food budget. I have had maps made of all districts [Kreise] on which the depots have all been drawn in. I request that the necessary measures be taken on the part of the police that these depots, which are in the eyes of the starving masses above all at times when the restrictions are carried out, should be strictly guarded, so that the meager supplies which we have until the new harvest should not be destroyed by sabotage or arson.

The still outstanding *price adjustment* of various products in the district of Galicia to the price level of the old General Government must be carried out at once. Furthermore the strong inroads upon the substance of farm

establishments caused by the raising of quotas undoubtedly involves damage which will have unfavorable results on the procurement of the 1943 harvest.

Finally it must be determined at the beginning of November whether the *martial law for the harvest period*, which has been proclaimed up to 30 November, must be extended to 30 December. Martial law for the harvest period has been extended to all products which are to be reaped.

The planned quota increase and reduction of ration quantities must be kept secret under all circumstances and may be published only at that time which the Main Department for Food and Agriculture considers proper. Should the reduction of ration quantities and the increase of quotas become known earlier, extremely noticeable disturbances in the seizure would take place. The mass of the Polish population would then go to the land and would become a supplementary competitor of our requisitioning agencies. Should the quota increase become known prematurely, the winter sowing and work of procurement would suffer noticeable damage. We have therefore decided first to have the winter planting in the ground and then to announce the quota increase.

In the realm of food the General Government has lived through serious and difficult times during the last 3 years. However, I believe that the coming year 1942-43 will be the hardest in the food sector. My co-workers and I will do everything to master the situation under the given circumstances.

The Governor General.

Gentlemen! You have heard the very serious presentation of President Neumann. You will also derive therefrom that every debate about the figures or measures announced by him would be completely superfluous and actually entirely harmful to the matter. For every debate would give rise to the illusion that perhaps some other method would be possible.

I must point out that some sectors of the administration will feel this very keenly. In the first place the *police* will feel this, for it will have to deal, if I may say so, with an increased activity of the black market and a neglect of food customs. I will gladly give the police extraordinary powers so that they can overcome these difficulties.

The *economy* will feel it. The decrease of work rendered will become felt in all sectors, branches and regions. I also assume that our *transport system* will feel it too. In view of the worsening living conditions an extraordinary hardship will set in for railroad workers and other categories; as the previous quantities of food were already not enough. The monopolies will feel it through a decrease of their incomes, as the amounts of potatoes available for the production of vodka will be less.

The *Germans* in this area shall not feel it. We wish in spite of this new plan to see to it that the supplies for Germans will be maintained. Also the Wehrmacht and other encamped units in this area shall not feel it. We hope that it will be possible for us to keep up the whole quotas here.

To help in this necessity there is a corresponding measure, namely that the supervision of persons travelling from the General Government to the Reich, above all of military personnel, in order to see whether they are *taking food out* of the General Government, should be suspended. This means that in addition to all that which we must now extract from the land economically, there must take place a complete removal of control over that which is dragged out of the land by thousands upon thousands—doubtless illegally and against our government measures.

From this you realize how seriously the situation will develop. In this connection do not forget, however, that the food situation in the Reich is less favorable. In whatever difficulties you observe some place here, in the form of the sicknesses of your workers, the breakdown of your associations, etc., you must always think of the fact that it is still much better when a Pole breaks down than that a German succumb. That we sentence 1.2 million Jews to die of hunger should be noted only marginally. It is a matter, of course, that should the Jews not starve to death it would, we hope, result in a speeding up of anti-Jewish measures. [Page 15.]

However, that on the other hand it is expected of all that they will show an understanding of these government measures is also to be noted only marginally. The original demand of the Reich from the General Government amounted to 1 million tons. However it was fortunately possible to reduce this demand by half.

When you consider that a land like the Protectorate with a size of barely 50,000 square kilometers and a large industrial population was required to

deliver over 200,000 tons of bread grain, that countries like France and Holland are forced to deliver up to the last remnant to the Reich, then you can estimate how the food situation of the Reich is regarded.

I did not wish to fail to inform you of this decree, which I now put into effect.

To a question by president *Gerteis*, the *Governor General* explained that according to the coming new regulation the maintenance of members of the Eastern Railway [Ostbahn] will come under the categories of war workers, A- and B-card holders.

The *Governor General* then requested the representatives of the Wehrmacht, in view of the food situation in the General Government, to help the government more intensively to prevent a *buying up of foodstuffs* for the other eastern territories. He directed the same request to State Secretary Krueger for the SS and police. It would be out of the question entirely that purchasers from some other regions should be active in the General Government. Army and police should take care, in their own representing a supply—or purchasing territory for other regions or troop units, unless it were within the compass of the quota obligations of the General Government of the Reich.

Ministerialrat *Reis* indicated that the Oberquartiermeister would introduce a command to that effect with the Generalquartiermeister.

The *Governor General* then declared that it was left to a coming conference of the authoritative factors of the government of the General Government to take measures against the results of the present decision. The results would, to be sure, first take effect at the beginning of next year, since the old rations were valid until the end of this year.

In this connection the *Governor General* declares the new decree in force and empowers Main Departmental President [Hauptabteilungspraesident] Naumann, in line with his proposal, to lead the nutritional policy of the General Government.

State Secretary *Dr. Boepple* points out that by reason of the attendance list the names of all who took part in the meeting were known. Should rumors about the measures decided on today eventually seep through to the public,

he would, as representative of the government, have them traced to their source, and bring the responsible parties to account.

End of the meeting: 1640 hrs

* * * * *

Not unimportant manpower has been taken from us in form of our old proven Jewish communities. It is clear that the working program is made difficult when in the middle of this program, during the war, the order for complete annihilation of the Jews is given. The responsibility for this cannot be placed upon the government of the General Government. The directive for the annihilation of the Jews comes from higher quarters. We have to be content with the consequences and can only report that the Jew has caused tremendous difficulties with regard to the work-program. I was able to prove, the other day, to Staatssekretaer Ganzenmueller, who was complaining that a big building project in the General Government came to a halt, that this would not have happened if the many thousands of Jews working at it had not been deported. Now the order is given that the Jews will have to be removed from the armament projects. I hope that this order, if not already cancelled, will soon be cancelled, for then the situation will be still worse.

PARTIAL TRANSLATION OF DOCUMENT 2233-F-PS

FRANK DIARY, 1944.

Loose Leaf Volume covering period from 1 January 1944 to 28 February 1944—speech delivered by Hans Frank in Berlin 25 January 1944 before the Representatives of the German Press

[Page 5]

At the present time we still have in the General Government perhaps 100,000 Jews.

* * * * *

PARTIAL TRANSLATION OF DOCUMENT 2233-G-PS

FRANK DIARY, 1939, from 25 October to 15 December

[Pages 6-7]

1230 hours. The governor general received Captain Benninghoff. The latter reported about the extensive *reconstruction works* on the *bridges blown up* by the Poles and pointed out that *special engineer troops* are occupied on rebuilding these bridges (at the present time still 25 units).

The governor general received the president of the police of Lods, SS-Lieut. General Beckerle.

Questions pertaining to the commitment of *Police* and *civil service employees* were discussed. Lieutenant General Beckerle pointed out that the former *fear psychology* present among the people *had passed* and that there were more *Jews* in Lods than before. This is one of the reasons for the continued deterioration of the food situation.

The Governor General received the district chief in Warsaw [Reichshauptamtsleiter] Dr. Fischer.

He discussed with him current questions, especially on the subject of *finance* and *monopoly*. Dr. Fischer was instructed to clear up the question of mayoralty in Warsaw, and to determine what amounts of *copper* and *scrap metal* are available. Dr. Fischer promises to secure 300 *fur coats* for the main office. The Governor General requested information concerning the *diplomatic representation*, who were still *in Warsaw*, and concerning the shooting of *Jews* and other matters. Dr. Fischer reported also that there is a *cable connection* from Warsaw to *Krakau* and moreover there is a large cable supply at hand. Dr. Fischer was requested to set up *border signs* at the border of the general government * * *

[Page 44].

* * * By spring 1,000,000 Poles and Jews from East and West Posen, Danzig, Poland and Upper Silesia must be received by the general government. The resettlement of the ethnic Germans and the taking on of Poles and Jews (10,000 daily) must be accomplished according to plan. Especially urgent is the instituting of *forced labor for the Jews*. The Jewish population if possible must be extracted from the Jewish cities and be put to *work on roads*. The critical questions of housing and feeding are still to be cleared up * * *

[Page 19]. 11:00 o'clock.

* * * The Governor General received SS Lieutenant General Krueger, General Becker, SS Brigadier General Streckenbach, and Lieutenant Colonel Gudewill.

Brigadier General Streckenbach reported:

The Reichsfuehrer SS wishes that all *Jews* be evacuated from the newly gained Reich territories. Up to February approximately 1,000,000 people are to be brought in this way in to the general government. The families of good racial extraction present in the occupied Polish territory (approximately 4,000,000 people) should be transferred into the Reich and individually housed and thereby be uprooted as a people. The deadline provided for the migration transport is the 15th of November. The Governor General points out that better and greater transport ways be made ready for both the West-East as well as the East-West movements. SS Lieutenant General Krueger explained that, starting 15 November, the entire railroad net of the general government will be at the disposal of the resettlement transports. The general governor gave SS Lieutenant General Krueger the assignments to organize these refugee transports * * *

PARTIAL TRANSLATION OF DOCUMENT 2233-H-PS

FRANK DIARY, 1941, Vol. II, 19 April.

[Page 313]

8 PM Demonstration of the department of operations (Arbeitsbereich) "Generalgouvernement" of the NSDAP in the *Uraniol* in Cracow.

After a short welcome speech by the Chief Department leader (Oberbereichsleiter) *Schalk*, the *Governor General* (*Generalgouverneur*), Reichsleiter *Dr. Frank* begins to deliver the following address:

* * * * *

[Pages 316-317]

We are absolutely optimistic (Lively applause). I have the impression that the German Reich will always become greater and will keep growing ever more in the final fight against England. The Greater German Reich is by far not the greatest German Reich. The task we have here must move us to think always in terms of the greatest connections. Let us be on guard not to

let enter here the petty currents and tendencies which are not yet completely overcome at times here and there in the Reich, in spite of all consciousness of unity. It would be senseless, if one would start to feel superior and arrogantly assume to be higher than the other one, in our Government General. There the value of the German as such is the yardstick. And here the NSDAP, the department of operations [Arbeitsbereich] in the Government General can set up a model. The revolution of National Socialism can gain the original power of its fighting energy again and again only from territories like the one which we organize here. I have to watch myself like a hawk that the finger of egoism do not get hold of me in a more or less hidden form. I have to watch like a hunter that those individual cases of departmental competence craze and self-styled glory do not develop here which we often felt were the most vicious evil in the Reich. (lively applause)

It is therefore clear that I sit in my castle like an old rapacious knight and sometimes step out, in order to strike with my hammer all around the country. After all, it would be a nice state of affairs if I would not do that.

(public amused)

And, therefore, I believe it is always in order for us that we find the great line of direction remembering the personality of the Fuehrer, his own philosophy, and his conduct of life. We have all possibilities in the Government General, we have received full powers from the Fuehrer and can accomplish, by planning on a large scale, that has been assigned to us. Thanks to the heroic courage of our soldiers, this territory has become German, and the time will come when the valley of the Vistula, from its source to its mouth at the sea, will be as German as the valley of the Rhine.

PARTIAL TRANSLATION OF DOCUMENT 2233-K-PS

FRANK DIARY, Department Heads Meetings, 1939-1940

Protocol re the Conference of Department Heads, 2 December 1939.

[Page 1, lines 14-25]

Dr. Frank: * * * That which is stated in the Reichsgesetzblatt is not applicable in the General Government, except when applied on the basis of the Fuehrer Decree of 12.10.1939. This means that the authority rests with

the Chairman of the Ministerial Council for the Defense of the Reich and he will only use this authority with the consent of the Governor General. The final structure of the General Government is not yet known, even less does one know whether it will remain permanently as the General Government. Decisive in the administrative activities of the General Government is the will of the Fuehrer that this area shall be the first colonial territory of the German nation.

[Page 2, last 4 lines and page 3, lines 1-3]

Dr. Frank: * * * Principally it can be said regarding the administration of the General Government: This territory in its entirety is booty of the German Reich, and it thus cannot be permitted that this territory shall be exploited in its individual parts, but that the territory in its entirety shall be economically used, and its entire economic worth redound to the benefit of the German people.

PARTIAL TRANSLATION OF DOCUMENT 2233-L-PS

FRANK DIARY, Department Heads Meetings 1939-1940 Conference of
Department Heads, 19 January 1940

[Page 11, last line; page 12, lines 1-6 and 16-19]

Dr. Frank: * * * My relationship with the Poles is like the relationship between ant and plant louse. When I treat the Poles in a helpful way, so to speak tickle them in a friendly manner, then I do it in the expectation that their work performance redounds to my benefit. This is not a political but a purely tactical-technical problem * * * In cases where in spite of all these measures the performance does not increase, or where the slightest act gives me occasion to step in, I would not even hesitate to take the most draconic action.

PARTIAL TRANSLATION OF DOCUMENT 2233-M-PS

FRANK DIARY, Department Head Meetings 1939-1940

Meeting of Department Heads in the Bergakademie, Friday 8 March 1940.

[Page 5, lines 25-26; page 6, lines 1-8]

Frank: One thing is certain. The authority of General Government as the representative of the Fuehrer and the will of the Reich in this territory is certainly strong, and I have always emphasized that I would not tolerate the misuse of this authority. I have allowed this to be known anew at every office in Berlin, especially after Herr Field Marshal Goering on 12.2.1940 from Karin Hall had forbidden all Administrative Offices of the Reich, including the Police and even the Wehrmacht, to interfere in administrative matters of the General Government * * *

[Page 7, lines 22-28; page 8, lines 1-5].

There is no authority here in General Government which is higher as to rank, influence, and authority than that of the Governor General. Even the Wehrmacht has no governmental or official functions of any kind in this connection; it has only security functions and general military duties—it has no political power whatsoever. The same applies here to the Police and SS. There is here no state within a state, but we are the representatives of the Fuehrer and of the Reich. In final conclusion, this applies also to the Party, which has here no far-reaching influence, except for the fact that very old members of the National Socialist Party and loyal veterans of the Fuehrer take care of the general matters * * *

[Page 13, lines 28-30; page 14, lines 1-8].

Wherever there is the least attempt by the Poles to start anything, an enormous campaign of destruction directed against the Poles will follow. Then I would not hesitate to set up a regime of terror with all its consequences. I have issued the order to place under arrest for three months several hundred members of such secret organizations, so that nothing can happen in the immediate future. The last word of the Fuehrer at my departure was: See to it that there is absolute peace over there, I cannot allow anything to disturb peace in the East. I will see to it.

PARTIAL TRANSLATION OF DOCUMENT 2233-N-PS

FRANK DIARY, 1940, Second Volume, April to June

* * * * *

1245 Discussion with State Secretary *Dr. Buehler*, SS Lieutenant general *Krueger* and Reichshauptamtsleiter *Dr. Frauendorfer* in presence of Reich

Minister *Dr. Seyss-Inquart*.

Subject of the discussion is *the sending of workers, particularly agricultural workers into the Reich*.

Reichshauptamtsleiter *Dr. Frauendorfer* reports, that so far about 160,000 agricultural workers and about 50,000 industrial workers have been sent to the Reich, however, in total there should be 500,000. It is to be hoped that there would yet be enough voluntary enlistments.

The governor-general stated that the fact that all means in form of proclamations etc. did not bring success, leads to the conclusion that the Poles out of malevolence, and guided by the intention of harming Germany by not putting themselves at its disposal, refuse to enlist for working-duty. Therefore, he asks *Dr. Frauendorfer* if there are any other measures, not as yet employed, to win the Poles on a voluntary basis.

Reichshauptamtsleiter *Dr. Frauendorfer* answered this question negatively.

The General Governor emphasized the fact that he now will be asked to take a definite attitude toward this question. Therefore the question will arise whether any form of *coercive measures* should now be employed.

The question put by the general governor to SS lieutenant general *Krueger*: does he see possibilities of calling Polish workers by coercive means, is answered in the affirmative by SS lieutenant general *Krueger*.

So far as he knows another 300,000 Polish workers should be sent into the Reich, and it will be possible to fill this request once the working-duty decree has gone into effect.

Reichshauptamtsleiter *Dr. Frauendorfer* suggests to begin by issuing *orders to report for certain age groups* and to wait for the result of this measure. However, some difficulties will be encountered as it is not known where to send these orders to report. There might be the possibility of getting the cooperation of the Woids. It is important, however, that the workers of large cities be recruited and there the difficulties will naturally be particularly great.

The general governor is willing to agree to any practical measure, however, he wishes to be informed personally about the measures to be taken. One measure, which no doubt would be successful, would be the *discontinuance*

of unemployment compensation for unemployed workers and their *transfer to public welfare*. Therefore, he decrees that, beginning *1 May*, claim for unemployment compensation will cease to exist and only public welfare may be granted. For the time being only men are to report and above those men living in cities. There might be a possibility of combining the moving of the 120,000 Poles from the Warthe district with this measure.

Reich Minister *Dr. Seyss-Inquart* mentions that not many of the Polish workers are left in the Warthe district who would be qualified to be sent to the Reich. All those who are fit for work are already being sent to the Reich. Those capable of assimilation are going to the Reich with their families anyway. Of those not capable of assimilation only useful men are being chosen.

The general governor closes the discussion by saying that guiding directions are now given. The officials involved must work out the details by themselves. Wherever the labor section does not succeed, the police must act.

PARTIAL TRANSLATION OF DOCUMENT 2233-O-PS

FRANK DIARY, Department Heads Meetings 1939-1940

Warsaw, 19 December 1940

Present: Dr. Hans FRANK and others

[Page 12, last 7 lines, and page 13, first 2 lines].

Dr. Frank: * * * In this country the force of a determined leadership must rule. The Pole must feel here that we are not building him a legal state, but that for him there is only one duty, namely, to work and to behave himself. It is clear that this leads sometimes to difficulties, but you must in your own interest see, that all measures are ruthlessly carried out in order to become master of the situation. You can rely on me absolutely in this.

PARTIAL TRANSLATION OF DOCUMENT 2233-P-PS

FRANK DIARY 1941—Part III

9th September 1941

[Page 830, par. 1]

Obermedizinalrat Dr. *Walbaum* expresses his opinion of the *health condition* of the Polish population. Investigations which were carried out by his department proved that the majority of Poles eat only about 600 calories, whereas the normal requirement for a human being is 2,200 calories. The Polish population was enfeebled to such an extent that it would fall an easy prey to *spotted fever*. The number of diseased Poles amounted today already to 40%. During the last week alone 1,000 new spotted fever cases have been officially recorded. That represented so far the maximum number. This health situation represented a serious danger for the Reich and for the soldiers who were coming into the Government General. A spreading of the pestilence into the Reich is absolutely feasible. The increase in tuberculosis, too, was causing anxiety. If the food rations were to be diminished again, an enormous increase of the number of illnesses could be predicted.

PARTIAL TRANSLATION OF DOCUMENT 2233-Q-PS

FRANK DIARY, Government Meetings, Oct.-Dec., 1941

Meeting of the Government of General Government

Cracow, in the Government Building, 16 December 1941

[Page 35, lines 22-29]

Dr. Frank: Severe measures must and will be adopted against Jews leaving the ghettos. Death sentences pending against Jews for this reason must be executed as quickly as possible. This order according to which every Jew found outside the ghetto is to be executed, must be carried out without fail.

* * *

[Page 66, lines 13-22].

Chief of Office in Warsaw, Dr. Hummel: * * * In Warsaw, in spite of the setting up of a third court chamber, we have been able to decree only 45 death sentences, only 8 of which have been carried out since in each individual case, the Pardon Commission [Gnadenkommission] in Cracow has to make the final decision. A further 600 sentences were demanded and are under consideration. An effective isolation of the ghetto is not possible

by way of the Special Court Procedure. The procedure to be followed up to liquidation takes too much time. It is burdened with too many formalities and must be simplified.

PARTIAL TRANSLATION OF DOCUMENT 2233-R-PS

FRANK DIARY, 1942, Part I

Conference of the District Standartenfuehrer of the NSDAP in Cracow, 18 March 1942.

[Pages 185-186]

Dr. Frank: As you know, I am a fanatic as to unity in administration * * * It is therefore clear that the Higher SS and Police Leader is subordinated to me, that the Police is a component of the Government, that the SS and Police Leader in the district is subordinated to the Governor, and that the Kreis chief has the authority of command over the gendarmerie in his Kreis. This the Reichsfuehrer SS has recognized; in the written agreement all these points are mentioned word for word and signed. It is also self-evident that we cannot set up a closed shop here which can be treated in the traditional manner of small states. It would, for instance, be ridiculous if we would build up here a security policy of our own against our Poles in the country, while knowing that the Polacks in West Prussia, in Posen, in Wartheland and in Silesia have one and the same movement of resistance. The Reichsfuehrer SS and Chief of the German Police thus must be able to carry out with the aid of his agencies his police measures concerning the interests of the Reich as a whole. This, however, will be done in such a way that the measures to be adopted will first be submitted to me and carried out only when I give my consent. In the General Government, the Police is the armed forces. As a result of this, the Leader of this Police system will be called by me into the Government of the General Government; he is subordinate to me, or to my deputy, as a State Secretary for the Security System.

[Pages 195-196]

Incidentally, the struggle for the achievement of our aims will be pursued cold bloodedly. You see how the state agencies work. You see that we do not hesitate before anything, and stand whole dozens of people up against

the wall. This is necessary because here simple consideration says that it cannot be our task at this period when the best German blood is being sacrificed to show regard for the blood of another race. For out of this one of the greatest dangers may arise. One already hears today in Germany that prisoners-of-war for instance with us in Bavaria or in Thuringia are administering large estates entirely independently, while all the men in a village fit for service are at the front. If this state of affairs continues then a gradual retrogression of Germanism will show itself. One should not underestimate this danger. Therefore, everything revealing itself as a Polish power of leadership must be destroyed again and again with ruthless energy. This does not have to be shouted abroad, it will happen silently.

PARTIAL TRANSLATION OF DOCUMENT 2233-S-PS

FRANK DIARY, 1942, Part III

[Page 798, lines 26-28]

Mass Meeting of the NSDAP District Standartsfuehrung Galicia in Lemberg. 1 August 1942.

Dr. Frank: We have to understand that the purpose of this whole war is to expand the living space for our people in a natural manner.

PARTIAL TRANSLATION OF DOCUMENT 2233-T-PS

FRANK DIARY, 1942, Part III

Meeting to discuss Special Problems of the District Lublin Cracow, 4 August 1942.

[Page 830, lines 23-32 and page 831, line 1]

State Secretary Krueger then continues, saying that the Reichsfuehrer's next immediate plan until the end of the following year would be to settle the following German racial groups in the two districts (Zamosc and Lublin): 1000 peasant settlements (1 settlement per family of about 6) for Bosnian Germans; 1200 other kinds of settlements; 1000 settlements for Bessarabian Germans; 200 for Serbian Germans; 2000 for Leningrad Germans; 4000 for Baltic Germans; 500 for Wolhynia Germans and 200 settlements for

Flemish, Danish and Dutch Germans, in all 10,000 settlements for 50,000 to 60,000 persons.

[Page 832, lines 15-23]

The Governor General directs that the resettlement plan is to be discussed cooperatively by the competent authorities and declares his willingness to approve the final plan by the end of September after satisfactory arrangements had been made concerning all the questions appertaining thereto (in particular the guaranteeing of peace and order), so that by the middle of November, as the most favorable time, the resettlement can begin.

PARTIAL TRANSLATION OF DOCUMENT 2233-V-PS

FRANK DIARY, 1942, Part III

Official Meeting of Political Leaders of the NSDAP, Cracow, 5 August
1942

[Page 866, lines 14-23]

Dr. Frank: The situation in regard to Poland is unique insofar as on the one hand—I speak quite openly—we must expand Germanism in such a manner that the area of the General Government becomes pure German colonized land at some decades to come; and, on the other hand, under the present war conditions we have to allow foreign racial groups to perform here the work which must be carried out in the service of greater Germany * * *.

[Page 896, lines 24-28]

What a dirty people made up of Jews swaggered around here before 1939! And where are the Jews today? You scarcely see them. If you see them then they are working.

PARTIAL TRANSLATION OF DOCUMENT 2233-W-PS

FRANK DIARY, 1942, Part III

Discussion with Gauleiter Sauckel, Cracow, 18 August 1942

[Page 918, lines 18-21]

Dr. Frank: I am pleased to report to you officially, Party Comrade Sauckel, that we have up to now supplied 800,000 workers for the Reich.

[Page 918, lines 28-34]

Dr. Frank: Recently, they have requested us to supply them with a further 140,000. I have pleasure in informing you officially that in accordance with our agreement of yesterday 60% of the newly requested workers will be supplied to the Reich by the end of October, and the balance of 40% by the end of the year.

[Page 920, lines 6-10]

Dr. Frank: Beyond the present figure of 140,000 you can, however, next year reckon upon a higher number of workers from the General Government. For we shall employ the Police to conscript them.

PARTIAL TRANSLATION OF DOCUMENT 2233-X-PS

FRANK DIARY, 1942, Part III

Kressendorf, 28 August 1942

Present: Dr. Hans FRANK and others

[Page 968, 969, 983]

Dr. Frank: I have since 1920 continually dedicated my work to the NSDAP. * * * As National Socialist I was a participant in the events of November 1923 for which I received the Bluorden. After the resurrection of the movement in the year 1925, my real greater activity in the movement began, which made me, first gradually, later almost exclusively, the legal adviser of the Fuehrer and of the Reich leadership of the NSDAP. I thus was the representative of legal interests of the growing Third Reich in a legal ideological as well as practical legal way * * * The culmination of this work I see in the big Leipzig Army Trial in which I succeeded in having the Fuehrer admitted to the famous oath of legality, a circumstance which gave the Movement the legal grounds to expand generously. The Fuehrer indeed recognized this achievement and in 1926 made me leader of the National Socialist Lawyer's League; in 1929 Reich Leader of the Reich Legal office of the NSDAP; in 1933 Bavarian Minister of Justice; in the same year Reich Commissioner of Justice; in 1934 President of the Academy of

German Law founded by me; in December 1934 Reich Minister without portfolio; and in 1939 I was finally appointed to Governor General for the occupied Polish territories.

So I was, am and will remain the representative jurist of the struggle period of National Socialism * * *

I profess myself now, and always, as a National Socialist and a faithful follower of the Fuehrer Adolf Hitler, whom I have now served since 1919.

PARTIAL TRANSLATION OF DOCUMENT 2233-Y-PS

FRANK DIARY, 1942 Vol. IV [Pages 1212-1213]

Friday, 20 November 1942:

Of the total 180,000 head of cattle to be delivered, 159,000 have been delivered to the Reich up to now.

360,000,000 eggs have been collected. 92,000,000 of those eggs were delivered for the Reich, and 85,000,000 are already in possession of the Reich; the remaining 7,000,000 eggs would be delivered within the next few days.

The other deliveries were also being executed without friction on the whole, and it was hoped that the necessary achievements, for example in honey, poultry and sugar, would be completely fulfilled.

The *Governor General* expresses his satisfaction over those results and points out in that connection, that two thirds of the increase in the rations, carried out in the Reich were to be credited to the General Government, according to a statement of Ministerialdirektor Riche.

President *Naumann* then takes a position to the question concerning the distribution of the remaining stocks of food in the General Government. It was stated in the decree of 25 August 1942 that a decrease in the rations should occur, respectively that rations should be denied completely to the Polish population not working for the German interest.

The following plan has now been taken into consideration:

Starting 1 February 1942 the food ration cards should not be issued to the individual Pole or Ukrainian by the Nutrition Office [Ernaehrungsamt], but

to the establishments working for the German interest. 2,000,000 people would thus be eliminated from the non-German, normal ration-consuming contingent. Now, if those ration cards are only distributed by the factories, part of those people will naturally rush into the factories. Labor could then be either procured for Germany from them or they could be used for the most important work in the factories of the General Government. This would also constitute a help for the main department of labor to a certain extent, enabling it to get a better control over the available labor potential within the Polish population. In the case of the eventual exclusion of 2,000,000 Poles from the rationing system, the family members of the non-German, working population could be granted higher rations under circumstances, as for instance in the form of an increase of the bread ration to 1400 gr., the allotment of flour and larger meat rations.

The Plant-manager [Betriebsfuehrer] must, of course, realize the responsibility conferred upon him by the distribution of those food ration cards, and statements about the number of workers employed by the establishment must be absolutely correct.

Very harsh directives must, therefore, be issued in order to avoid eventual frauds; the plant-manager is personally responsible for the correctness of the number, which he must report every month.

It is planned furthermore to put a certain amount of foodstuff at the disposal of the *Polish Central Committee*, for the purpose of taking adequate care of old and infirm people, who cannot work any longer.

After having reached into the existing stocks, the main attention will have to be directed towards the greatest effort to *secure the harvest 1943*.

He has, therefore, already in September instructed his Department II to draft the necessary plans for it.

PARTIAL TRANSLATION OF DOCUMENT 2233-Z-PS

FRANK DIARY, 1942, Part IV.

Official Meeting of Political Leaders of the NSDAP Area of Operation in
the General Government.

Cracow. 14 Dec. 1942

[Page 1329, lines 11-15]

Dr. Frank: You know that we have delivered over 940,000 Polish workers to the Reich. Thereby the General Government absolutely and relatively stands at the head of all the European countries. This achievement is enormous: it has also been recognized as such by Gauleiter Sauckel.

[Page 1331, lines 5-7, 18-34]

Dr. Frank: I will endeavor to get out of the reservoir of this territory everything that is yet to be got out of it.

When you consider that it was possible for me to deliver to the Reich 600,000 tons of bread grain, and in addition 180,000 tons to the Armed Forces stationed here; further an abundance amounting to many thousands of tons of other commodities such as seed, fats, vegetables, besides the delivery to the Reich of 300 million eggs, etc—you can estimate the significance this territory possesses for the Reich. In order to make clear to you the significance of the consignment from the General Government of 600,000 tons of bread grain, you are referred to the fact that the General Government by this achievement alone covers the raising of the bread ration in the Greater German Reich by two-thirds during the present rationing period. This enormous achievement can rightfully be claimed by us.

PARTIAL TRANSLATION OF DOCUMENT 2233-AA-PS

FRANK DIARY, Official Meetings, 1943

Warsaw, 25 January 1943

Present: Dr. Hans FRANK and others

[Page 16]

State Secretary Krueger: When we settled about the first 4,000 in Kreis Zamosc shortly before Christmas I had an opportunity to speak to these people.

* * * * *

(State Secretary Krueger) It is understandable that in resettling this area *
* * we did not make friends of the Poles.

* * * * *

[Page 17]

(State Secretary Krueger) In colonizing this territory with racial Germans, we are forced to chase out the Poles.

* * * * *

(State Secretary Krueger) We are removing those who constitute a burden in this new colonization territory. Actually, they are the asocial and inferior elements. They are being deported, first brought to a concentration camp, and then sent as labor to the Reich. From a Polish propaganda standpoint this entire first action has had an unfavorable effect. For the Poles say: After the Jews have been destroyed then they will employ the same methods to get the Poles out of this territory and liquidate them just like the Jews.

* * * * *

[Page 19]

(State Secretary Krueger) As I have mentioned a great deal of unrest in Polish territory has resulted because of this resettlement.

* * * * *

Dr. Frank: We will discuss each individual case of resettlement in the future exactly in the same manner as in the case of Zamosc, so that you will, Mr. State Secretary, appear before me and render a report.

* * * * *

[Page 53]

Dr. Frank: Gentlemen, be assured that this composite structure of General Government, on which all who are gathered around this table have worked so splendidly, really has the power to endure over this period. The great task which is given us will grow more difficult. No one will help us; we are fully and entirely dependent on ourselves. The Fuehrer can only help us as a kind of administrative island or administrative pill-box. We must defend ourselves from all sides. To all criticism of methods which we have heard—you know my basic principle, I don't need to say it in this circle—I would like to stress one thing: we must not be squeamish when we learn that a total of 17,000 people have been shot. These persons who were shot were

nothing more than war victims. If we compare this number against the irreplaceable blood sacrifices which the German people uninterruptedly day by day and every hour are making, then it weighs as nothing in the balance. We are now duty bound to hold together. Each must bring with him understanding for the other, he must be convinced that he is doing his best. The main thing is that we do not allow any personal slackness to arise. We must remember that we, who are gathered together here, figure on Mr. Roosevelt's list of war criminals. I have the honour of being Number One. We have, so to speak, become accomplices in the world historic sense. Just because of this we must hold together, and be in agreement with one another, and it would be ridiculous if we were to let ourselves get involved in any squabbles over methods.

PARTIAL TRANSLATION OF DOCUMENT 2233-BB-PS

FRANK DIARY

Loose Leaf Bound File, 1 Jan. 1944—28 Feb. 1944.

Speech to Members of District Standortfuehrung to Political Leaders,
Conference Room of District Standortfuehrung Cracow.

14 January 1944.

[Page 24, lines 10-14]

Frank: Once we have won the war, then, for all I care, mincemeat can be made of the Poles and the Ukrainians and all the others who run around here—it doesn't matter what happens. * * *

Meeting of the Political Leaders of the NSDAP in General Government Area, on 15 January 1944 in NSDAP House Cracow.

[Page 13, lines 9-11]

Frank: I have not been hesitant in declaring that when a German is shot, up to 100 Poles shall be shot too * * *

Conference with Ambassador Counselor Dr. Schumburg, 8 February 1944,
at the Castle, Cracow.

[Page 7, lines 19-28]

* * * Ambassador Counselor Dr. Schumburg then brought up the question of a possible amnesty of Poles who, because of trivial offences or trespass of the law, had been taken to the concentration camp Auschwitz and kept there for months.

The Governor General will take under consideration an amnesty, probably for 1 May of this year. Nevertheless, one must not lose sight of the fact that the German leadership of the General Government must not show any kind of weakness.

PARTIAL TRANSLATION OF DOCUMENT 2233-CC-PS

FRANK DIARY, 1939, Page 99.

14 December 1939

The General Governor announces the following order of rank:

1. General Governor
2. Reich Minister Seyss-Inquart
- 3A. Ministerial Director Dr. Buehler
- 3B. The first SS and police leaders
4. The district chiefs
5. The department leaders of the Office of the General Governor
6. Office Chief and first police leaders of the District Chief

PARTIAL TRANSLATION OF DOCUMENT 2237-PS

SECRET

File on actions against the Jews in November 1938

1120

Action against the Jews on 9 and 10 November 1938

Legal Regulations

Reich Commissioner for the Re-Union of Austria with the German Reich

Vienna I, 18 November 1938
Parliament
phone R, 50-5-60

To the Minister President,
Generalfieldmarshal Goering
Berlin

Sir!

The action in Vienna which took place during the night from 9 to 10 November was finished up completely by Tuesday.

The following is what happened substantially:

A decree of Dr. Goebbels, the Reichsminister for Propaganda, but above all his speech which he delivered in Berlin on the evening of 9 Oct 1938 as well as the contents of the speech he made in Munich were preludes for this so-called action. Though the hint was somehow indefinite, no different conclusion could be drawn since it said: "The fire-department has to be notified". This order was not given in the first place to the district leaders, but the lower echelons [Gliederungen] were notified first so that the district-leader had no chance to possibly take counter-measures. Besides there existed a few orders which were farther reaching than the hint by Dr. Goebbels. Here in Vienna in many cases even the schools were closed in the morning so that the youth could participate—"according to the order" in the demonstrations. As always happens in such cases, the disorderly elements soon were leading and 40 different places were on fire. Around noontime the Major reported that the fire-department was no more in the position to control the situation. Simultaneously, the tumult against the Jewish stores began. That, one may say was the signal for the day and the night of the long fingers. How did the Party act in this situation, and especially the political leaders?

Fieldmarshal, I assure you, that after thorough investigation I am able to state today that the political leaders, and that is the district leaders and their Kreis-leaders, are the ones who have prevented chaos in Vienna. Enormous quantities of stolen merchandise, above all jewelry and valuables were safeguarded immediately by the Kreis-leaders, and at this moment an inventory is being made. Gold, silver and valuables will be brought to a safe

in a bank today. There is no question of returning the goods which were taken away from the Jews because one does not know their original owners and also because the Jews make the most outrageous and untruthful statements. Therefore I am forced, my Fieldmarshal, to safeguard an extremely high quantity of valuables. The rest of the goods will be checked, and shall be sold to retail-shops for the purchase-value, since we have to expect a scarcity of goods on account of the protective measures for our territory which we had to take [Gebietsschutzmassnahmen].

Especially the enclosed orders will be necessary, for the restoration of normal conditions and of a legal status.

Fieldmarshal, please do examine the enclosures. In case you have no objections, I would like to enforce them immediately.

I may refer again to my request for support as for the introduction of the laws on organization and also for the execution of the Fuehrer-order.

Heil Hitler!
sign.: [illegible]

Telephone-message of the Kripo D.D.

State Police Vienna, Reg. Rat Dr. Pifrader gives the following information via phone at 07,30:

Since the Kripo-agencies [Kripostellen] of the "POL.-Aemter" are constantly making inquiries at the state police (Stapo), they will have to be informed by phone of the following:

Influential and rich male Jews of German nationality of not too high an age and who are healthy have to be arrested.

The owners of the firearms are to be treated especially severely and a special notation has to be made about them.

The police agencies [Po. Amtsdienststellen] have to be informed (as top secret) that the property of all native Jews has to be razed entirely.

Therefore the police is not supposed to come to the aid of Jews in such cases.

Fires may be started only where there is no danger that the fire may spread. Therefore, as a rule, not in narrowly built parts of the city.

On a whole about 3,000 Jews are to be arrested.

Dr. Bayer D.D. of the Kripo

TRANSLATION OF DOCUMENT 2239-PS

Secret State Police / State Police Precinct WEIMAR.

Received March 12, 1945

[red stamp]

FS.-NR. 2470

[blue stamp]

PRAG NR. 8005 2.3.45 1730—KIL—

To State Police DARMSTADT

Subject: Protective prisoner ALEX MUUL, born Nov. 1, 1899 in KRIUSCH, Russia Estonia.

Reference: Report of January 26, 1945—ROEM. 4-6 Kl. B—2181/44—SCHM.—

Protective custody until further notice

Examination date May 19, 1945

Reason: Anti-German remarks

As prisoner of grade—11—to be left in concentration camp Buchenwald.

RSHA-ROEM. 4A 6 Kl. B—Nr. M 34 591—

DR. KALTENBRUNNER

All issued by RSHA, Amt IV A 6, Prague to Stapo Darmstadt signed by Dr.
KALTENBRUNNER.

<i>Date</i>	<i>Grounds</i>	<i>KL</i>	<i>Class</i>	<i>Name</i>	<i>Nationality</i>
6.10.44	Vagrancy, suspected subversive activity	Lachrenhausen	I	Vaculik	Czech
20.9.44	Sex relations with Pole	Ravensbrueck	—	Hartmann	German
30.9.44	Refusal to work	Ravensbrueck	—	Hilbert	German
19.10.44	Religious propaganda	Dachau	I	Bruecher	German
2.11.44	Association with Frenchmen and suggesting breach of labor contract	Ravensbrueck	—	Wetzel	German
22.11.44	Sex relations with PW's.	Ravensbrueck	—	Merz	German
2.12.44	Work sabotage and obstinacy	Dachau	I	Meriadec	French PW
2.12.44	Work sabotage	Dachau	I	Selderyk	Dutch
20.12.44	Sexual intercourse with Pole	Ravensbrueck	—	Dillmann	German
20.12.44	Work sabotage	Ravensbrueck	—	Francurchi	[French?] Corsican
27.12.44	Vagrancy; escape from transport;	Dachau	I	Garco	Italian

	illegal use of RB.				
31.12.44	Escape from transport, vagrancy	Dachau	I	Dellominut	Italian
31.12.44	Work sabotage and association with foreigners	Ravensbrueck	—	Buettner	German
12.1.45	Molestation and threatening of German woman; Communist statements	Hossenburg	II	Nomkin	Lithuanian
20.1.45	Loafing on job repeatedly	Bergen-Belsen	—	Filber	German
1.2.45	Conduct inimical to Germany; spreading of enemy propaganda; suspected membership in resistance movement	Hossenburg	II	Leclair	French
9.2.45	Working against Reich	Buchenwald	I	Etie	French
9.2.45	Spreading of rumors detrimental to morale	Buchenwald	I	Farichon	French
9.2.45	Spreading of rumors	KL transfer later		Farichon	French

	detrimental to morale				
2.3.45	“Aktion Gitter”	Dachau	I	Laux	German
2.3.45	“Aktion Gitter”	Dachau	I	Appel	German
2.3.45	Creating public nuisance	(KL transfer later)		Rauxloh	German
2.3.45	Black market	Buchenwald	I	Cau	French
2.3.45	Breach of work contract	Buchenwald	I	Coudoning	French
2.3.45	Sex relations with French PW.	(Investigation cont’d)		Meyer	German
2.3.45	Black market operator	Flossenburg	II	Biache	French
2.3.45	Black marketing of stolen goods	Dachau	I	Fruche	French
2.3.45	“Aktion Gitter”	Dachau	I	Rueffer	German
2.3.45	Work sabotage; suspected activity	Buchenwald	I	Revenranus	Greek
2.3.45	Loafing on job; creating public nuisance	(KL transfer later)		Oberle	German
2.3.45	Statements against Germany	Buchenwald	I	Agurini	Italian
2.3.45	Statements against Germany	Buchenwald	II	Muul	[USSR?]
2.3.45	Loafing on job	Thurenanstadt		Lang	Jew

2.3.45	{“Aktion Gitter” Man and wife?	Ravensbrueck		Maurer	Jew
2.3.45	{“Aktion Gitter”	Dachau	I	Maurer	German
2.3.45	Assault on foreman	Buchenwald	I	Toorn	Dutch
2.3.45	Theft of foodstuffs; resale at excess prices; or bartering	Dachau	IA	Rouanet	French
2.3.45	Defeatist statements	(KL transfer later)		Ezrenlaub	German
2.3.45	Working against Reich	Buchenwald	II	Bougoen	?
2.3.45	Attempted looting after air raid	Buchenwald	II	Borge	?
2.3.45	Theft and escape from jail	Buchenwald	I	Top	Dutch
2.3.45	Work sabotage	(KL later)		Eberhardt	German

TRANSLATION OF DOCUMENT 2241-PS

The employment of foreign labor forces in Germany.

Decree of the Plenipotentiary General for Manpower on the execution of the transportation of workers, in this case: damage to and soiling of passenger coaches of the German Railways and their fittings.

20 July 1942.

In his letter of 10 August 1940—21 Bauer 106—the Reich Minister of Transport laid down that the management of the German Railway be directed that the costs of the repair of damage caused to railway coaches

and their fittings by the careless or malicious behaviour of foreign workers in special labour trains be charged to the guilty persons, and where these are not determined, to the authorities responsible for the transportation. After the German Railway claimed again last winter considerable damage to and extraordinary soiling of railway coaches, it proposed to the management of the German Railway the demand of the costs of the repair of the damage and soiling from the Manpower Authorities. In this respect I direct, that it must definitely be left to the German Railway to pull up the guilty transport users. The writing off of the costs on the budget of the Reich stocks [Reichstocks] can only be considered exceptionally in the event of special circumstances. All cases are particularly to be refused in which the workers used normal trains or in which the damage was caused by deficiencies in the special trains provided.

According to reports of transportation commanders [Transportleiter] presented to me, the special trains provided by the German Railway have frequently been in a really deficient condition. Numerous windowpanes have been missing in the coaches. Old French coaches without lavatories have been partly employed, so that the workers had to fit up an emptied compartment as a lavatory. In other cases the coaches were not heated in winter so that the lavatories quickly became unusable because the water system was frozen and the flushing apparatus was therefore without water.

In order to obtain reliable records of the condition of special trains at the time of provision, in agreement with the Reich Minister of Transport, I beg to direct the transportation commanders, together with a representative of the station of departure, to determine in writing before the departure of a special train the deficiencies existing in the interior fittings of the railway coaches. The records are to be given up after completion of the transport operation to the labour reception office which has to present them to the competent state labour office. The transportation commanders will have to contact the office director of the station at least 1 to 2 hours before the departure of the train.

Simultaneously, I beg to direct the transportation commanders to give particular attention during the journey to the exclusion of damage and soiling of the railway carriages.

In view of the further tasks, involved in the winding up of the transport operation, incumbent on the transportation commander he will have to be relieved of the further mutual determination of the condition of railway carriages at the end of the journey.

I transfer the discharge of claims of the German Railway in respect of repairs to the state labour offices in whose area the special train was dispersed.

PARTIAL TRANSLATION OF DOCUMENT 2243-PS

1937 REICHSGESETZBLATT, PART I, PAGE 325

Law relating to Finance Measures in connection with the Police

19 March 1937

The government of the Reich has resolved upon the following law, which is hereby proclaimed:

1

(1) The following are to become direct officials of the Reich:

1. Officials in organizing posts of the establishment "Reichsfuehrer of SS and Chief of the German Police in the Reich Ministry of the Interior."
2. Officials of the Security Police [Gestapo and Criminal Police], but not police officials serving in the State Police Administrations for the Criminal Police.
3. Officials of the Civil Police, the Gendarmerie and the police medical and veterinary officers serving therein, professional police instructors and technical officials.

(2) The employees and workers who:

serve in the establishment mentioned in paragraph 1. No. 1,

serve in the Security Police, the Civil Police, the Gendarmerie
and the auxiliary establishments belonging to them, such
as schools, hospitals, convalescent homes, supply offices
and equipment offices and persons who

serve in the State Police Administrations

enter into the service of the Reich.

(3) The number of appointments of police administrative officials henceforth remaining dependent on the finances of the districts can be determined by the Reich Minister for Finance in agreement with the Reich Minister of the Interior.

2

The Reich pays the personal allowances and bears the maintenance expenses of the officials, employees and workers of the Reich mentioned in (1) paragraphs 1 and 2 and the material expenditure of the whole of the State Police but not the personal allowances, maintenance expenses and costs of removal of the Police Administrative officials mentioned in (1) paragraph 3.

3

(1) The revenues of the State Police are revenues of the Reich.

(2) The only revenues to remain in the districts are those which are still to be booked for the Financial Year 1936, and all revenues from taxes and fines.

4

(1) The Reich will assume all property dues and rights which are connected with the State Police of the districts, in so far as they are not left to the districts according to 2 and 3. When the law comes into force, the liability of the Reich is also extended to taking over maintenance allowances falling due to persons who were formerly entitled to them.

(2) The Reich also assumes the responsibility, which, according to the instructions regarding the liability of officials, rests with the districts, for damage caused by police administrative officials, who according to (1) remain under the districts. The districts owe compensation to the Reich; their right to make claims against officials is untouched.

5

The authorities who hitherto represented the districts (exchequer) in matters relating to the police, will now represent the Reich (exchequer) in these

matters. The Reich Minister of the Interior can arrange the representation otherwise.

6

(1) Premises and movable property belonging to the districts will become the property of the Reich if at the time of the proclamation of the law they are being used exclusively or mainly by the State Police or the establishments mentioned in (1) paragraph 2 or are intended for future use by these establishments.

(2) The premises of the Reich and Prussian Ministry of the Interior in Berlin, Unter den Linden 70/72/74, and the premises of the Chief of Police in Berlin which are to be specially indicated in the executive orders, will remain exempt from transference to the Reich.

(3) Due to the transference of property to the Reich, taxes, duties and other fees will not be levied. Cash payments remain out of account.

(4) When this law comes into force, if any premises transferred to the Reich become dispensable or unfit to be employed for the purposes of the Reich police, without replacement being necessary, they are to be offered for use to the district without recompense, in their present state, before further use is made of them.

7

(1) Where the Reich, the districts or the municipalities (municipal unions) have placed officials, employees and workers or property at the disposal of the State Police or of the establishments mentioned in (1) paragraph 2, or have carried out service transactions, no change will occur until a further ruling is made by the Reich Minister of the Interior. The same applies in cases where the State Police or the establishments mentioned in (1) paragraph 2 have placed their official employees and workers or property at the disposal of other authorities or have carried out service transactions, which have no connection with police duties.

(2) No further compensations than hitherto may be claimed for the services mentioned in paragraph 1.

8

The municipalities will pay their contributions to the Reich for the State Police according to the regulations hitherto in existence. The total contribution paid by the municipalities of a district during the Financial Year 1936 may not be exceeded. A special ruling may occur in cases of state control or regional change. The contributions of the municipalities can be reckoned on the shares in the Reich revenue remittances of the district.

9

The shares of a district in the Reich revenue remittances are for each Financial Year, first of all for the Financial Year 1937, reduced by the balance between the expenditure and the revenues (deficit) of its police, who, by this law are taken over on the Reich budget. The deficit is calculated on the basis of the budget of the district for the Financial Year 1936. If a greater deficit should be evident in the average of the Financial Years 1925 to 1934, this deficit is the standard. The Reich Minister for Finance fixes the sum to be reduced.

10

The districts must place at the disposal of the Reich the remaining expenses carried over into the Financial Year 1936 and not yet paid out at the end of that year. The districts must also place at the disposal of the Reich the additional sums not yet paid out at the end of the Financial Year 1936, which are made over by the Reich, and which are extra subsidies towards the material expenditure of the State Police.

11

The Reich Ministers for Finance and for the Interior will determine whether and how financial compensation is to be carried out if, in the municipalities (municipal unions) municipal, uniformed police officials are replaced by State Police or if, in the state police administrations, the relative authorities of the State Police and the municipal (remaining) police are ruled otherwise.

12

For the officials, employees and workers of the State Police or of the establishments mentioned in (1) paragraph 2, who are entering into the direct service of the Reich, the legal and administrative orders of the

districts are to be applied temporarily. The Reich Minister for the Interior can make a further ruling in agreement with the Prussian Prime Minister.

13

In so far as State contracts or other agreements between districts for matters concerning their police are not rendered inapplicable by this law, they will remain in force as Reich legal orders.

14

The Reich Ministers of the Interior and for Finance will issue the necessary legal and administrative orders for the execution and the completion of this law and will decide upon all questions of doubt arising from the application of this law. If the functions of other ministers are thereby affected their approval is necessary.

This law comes into force on 1st April 1937.

Berlin, 19th March 1937.

The Fuehrer and Chancellor of the Reich
Adolf Hitler

The Reich Minister of the Interior
Frick

The Reich Minister for Finance
Graf Schwerin von Krosigk

TRANSLATION OF DOCUMENT 2245-PS

1936 MINISTERIAL GAZETTE OF THE REICH AND PRUSSIAN
MINISTER OF THE INTERIOR

[Reichsministerialblatt]

The Employment of Security Police Inspectors

[Pages 1343, 1344]

Circular Decree by the Reich and Prussian Minister of the Interior dated
20.9.1936.

Police Special Order 1. 7/36 g

(already promulgated)

1. With effect from 1.10.1936 I am appointing Security Police Inspectors to the Prussian Provinces and the States of Baden, Bavaria, Wuerttemberg and Saxony. Detailed decrees to follow.
2. The duties to be undertaken by these Inspectors and entailed by their appointment are laid down in the appended Service Directives for Security Police Inspectors.
3. A special decree will be promulgated regarding the appointment of Security Police Inspectors to the remaining States.

To the State Governments (for Prussia: to the Prussian Ministerpraesident), the Ober- & Regierungs-Praesidente, to the Gestapo Office in Berlin, to the State Political Head Offices, to the State Political Offices.

Police Special Order 1.

Circular Decree of 20.9.1936

272/36

Appendix

Service Directive for Security Police Inspectors

1. The special duties of the Security Police necessitate the closest and most sympathetic cooperation with the Central Offices of the General and Interior Administrations of the Provinces and States as well as with the Gauleiters of the NSDAP and the Armed Forces Authorities.
2. The Security Police Inspectors are to foster this cooperation. Especially are they to keep in the closest contact with the Oberpraesident and/or the Ministry of the Interior of their area and to keep them informed of all important occurrences, all essential reports and observations of the Security Police and where necessary stimulate the authorities of the Interior Administration and eliminate any difficulties which may arise.
3. The Security Police Inspectors are personally and immediately subordinate to the Oberpraesident and/or Staatsminister of the Interior and are to follow his directives. Should these directives not be in accordance with the general and special Orders and Directions of the Chief of Security Police and should it be impossible to reach an agreement, then the Chief of Security Police is to be referred to for a decision.
4. The inspectors are furthermore charged with the task of supervising the execution in their area of any Decrees issued by the Chief of Security Police. They are to ensure that the Gestapo and the Civil Police are organized on the same basis. Any difficulties arising are to be reported to

the Chief of Security Police together with suggestions as to how they may be overcome.

PARTIAL TRANSLATION OF DOCUMENT 2246-PS

The Extraordinary and Plenipotentiary Ambassador of the German Reich on Special Mission

Vienna, 1 September 1936

To: The Fuehrer and Reich Chancellor, Berlin (by courier)

Subject: Report on Danube situation.

* * * * *

The progress of normalizing relations with Germany at the present time is obstructed by the continued persistence of the Ministry of Security, occupied by the old anti-National Socialist officials. Changes in personnel are therefore of utmost importance. But they are definitely not to be expected prior to the conference on the abolishing of the Control of Finances [Finanzkontrolle] at Geneva. The Chancellor of the League has informed Minister de Glaise-Horstenau, of his intention, to offer him the portfolio of the Ministry of the Interior.

As a guiding principle [Marschroute], I recommend on the tactical side, continued, patient psychological treatment, with slowly intensified pressure directed at changing the regime. The proposed conference on economic relations, taking place at the end of October, will be a very useful tool for the realization of some of our projects. In discussion with government officials as well as with leaders of the illegal party (Leopold and Schattenfroh) who conform completely with the agreement of July 11, I am trying to direct the next developments in such a manner to aim at corporative representation of the movement in the fatherland front [Vaterlaendischen Front] but nevertheless refraining from putting National-socialists in important positions for the time being. However such positions are to be occupied only by personalities, having the support and the confidence of the movement. I have a willing collaborator in this respect in Minister Glaise-Horstenau.

(Signature) Papen

PARTIAL TRANSLATION OF DOCUMENT 2247-PS

The Envoy Extraordinary and Minister Plenipotentiary on Special Mission

At present Berlin W.9, Lennestr. 9, 17 May 1935

Mein Fuehrer:

* * * * *

The news, which I communicated to you the day before yesterday, that the Austrian Government would proclaim its intention to arm through an autonomous act and simultaneously on 2 June would announce a Starhemberg regency becomes more and more likely.

* * * * *

I suggest that we take an active part in this game. The fundamental idea should be to pit Schuschnig and his Christian-social Forces, who are opposed to a home front dictatorship, against Starhemberg. The possibility of thwarting the measures arranged between Mussolini and Starhemberg should be afforded to him, in such way that he would submit the offer to the government of a definitive German-Austrian compromise of interests. According to the convincing opinion of the leader of the NSDAP in Austria, Capt. Leopold, the totalitarian principle of the NSDAP in Austria must be replaced in the beginning by a combination of that part of the Christian-elements which favors the Greater Germany idea and the NSDAP. If Germany recognizes the national independence of Austria and guarantees full freedom to the Austrian national opposition, then as a result of such a compromise the Austrian government would be formed in the beginning by a coalition of these forces.

There should follow a gradual disintegration of the barriers erected between the two countries. The rearmament of the army would have to be effected in close cooperation with the German army even if material aid from Germany would be limited.

A further consequence of this step would be the possibility of the participation of Germany in the Danube pact, which would take the sting out of its acuteness due to the settlement of relations between Germany and Austria. Such a measure would have a most beneficial influence on the European situation and especially on our relationship with England.

One may object, that Mr. Schuschnig will hardly be determined to follow such a pattern, that he will rather in all probability immediately communicate our offer to our opponents.

Of course, one should first of all explore the possibility of setting Schuschnig against Starhemberg through the use of “Go-betweens”. The possibility exists. If Mr. Schuschnig will finally say “no” and makes our offer known in Rome, then the situation would not be any worse by that; but, on the contrary, the efforts of the Reich government to make peace with Austria would be revealed—without prejudice to other interests. Therefore even in the case of refusal this last attempt would be an asset. I consider it completely possible, that in view of the far spread dislike of the Alpine countries of the pro-Italian course and in view of the sharp tensions within the federal government [Bundesregierung], Mr. Schuschnig will grasp this last straw—always under the supposition that the offer could not be interpreted as a trap by the opponents, but that it bears all the mark of an actually honest compromise with Austria.

Assuming success of this step, we would again establish our active intervention in Central European politics, which, as opposed to the French-Czech and Russian political maneuvers, would be a tremendous success, both morally and practically.

Since there are 2 weeks left to accomplish very much work in the way of explorations and Conferences, an immediate decision is necessary.

The Reich Army Minister shares the opinion presented above and the Reich Foreign Minister wanted to discuss it with you, my Fuehrer.

(signed) Papen.

PARTIAL TRANSLATION OF DOCUMENT 2248-PS

The Extraordinary Emissary and Minister Plenipotentiary of the German Reich in Special Mission.

Vienna, July 27, 1935.

To the Fuehrer and Chancellor

BERLIN

by courier.

Contents:

One year after the death of the Bundeskanzler Dollfuss.

Review and Outlook.

* * * * *

It seems to me to be expedient to use this incident ourselves also to draw the balance.

* * * * *

National Socialism must and will overpower the new Austrian ideology. If today it is contended in Austria that the NSDAP is only a centralized Reich German party and therefore unable to transfer the spirit of thought of National Socialism to groups of people of a different political make-up, the answer must rightly be that the national revolution in Germany could not have been brought about in a different way. But when the creation of the people's community in the Reich will be completed, National socialism could, in a much wider sense than this is possible through the present party organization—at least apparently—certainly become the rallying point for all racially German units beyond the borders. Spiritual progress in regard to Austria cannot be achieved today with any centralized tendency. If this recognition would once and for all be stated clearly from within the Reich, then it would easily become possible to effect a break-through into the front of the New Austria. A Nurnberg Party Day designated as “The German Day” as in old times and the proclamation of a national socialistic people's front, would be a stirring event for all beyond the borders of the Reich. Such attacks would win us also the particularistic Austrian circles, whose spokesman, the legitimistic Count Dubsy wrote in his pamphlet about the “Anschluss”: The Third Reich will be with Austria, or it will not be at all. National Socialism must win it or it will perish, if it is unable to solve this task; * * *

(signed) Papen.

PARTIAL TRANSLATION OF DOCUMENT 2260-PS

SETTLEMENT OF RELATIONSHIP BETWEEN NSDAP AND
STAHLHELM (STEEL HELMETS)

From Page 1, Issue 422, 21 June 1933, of “NSK” National Socialist Party Press Agency [NSK, Pressedienst der NSDAP, the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press Office Dr. Otto Dietrich, Reich Press Chief. Published by Franz Eher Successor, Munich.

NSK The Reich Press Office of the NSDAP informs us:

The following agreement was reached in a conference that took place today between the Reich Chancellor, the Reich Labor Minister Seldte, the Reich War Minister and the Vice-Chancellor:

To ensure the striking power of the National Socialist revolution the Stahlhelm, League of front-line Soldiers [Bund der Frontsoldaten], integrates itself into the National Socialist movement in the following manner:

- a.* The Old-Guard Nucleus of the Stahlhelm [Kernstahlhelm] remains, as heretofore, under the leadership of the League Leader.
- b.* The League Leader prohibits, as of now, any party membership except that in the NSDAP to members of the Old-Guard Nucleus of the Stahlhelm.
- c.* The leader of the NSDAP, Adolf Hitler, thus permits membership in the Stahlhelm for the NSDAP.
- d.* The Stahlhelm Youth [Jungstahlhelm] takes its place side by side with the SA and SS, and is subordinate to the Supreme SA Leader [Obersten SA-Fuehrer]. The “Scharnhorst” will be integrated into the Hitler Youth.
- e.* The leader of the Stahlhelm Youth [Jungstahlhelm] von Morozowicz, joins the staff of the Supreme SA Leader.

Berlin, 21 June 1933.

Adolf Hitler
Franz Seldte

TRANSLATION OF DOCUMENT 2261-PS

TOP SECRET

Copy

The Reich Minister of War and Supreme Commander of the Armed Forces

No. 1820/35 Top Secret L. II a

Berlin, 24 June 1935

To

The Supreme Commander of the Army
The Supreme Commander of the Navy
The Supreme Commander of the Air Forces

In the appendix I transmit one copy each of the law for the defense of the Reich of the 21 May 1935 and of a decision of the Reichs Cabinet of 21 May 1935 concerning the Reich's defense council. The publication of the Reich's defense law is temporarily suspended by order of the Fuehrer and Reichschancellor.

The Fuehrer and Reichschancellor has nominated the President of the directorate of the Reichsbank Dr. Schacht to be "plenipotentiary-general for war economy".

I request that the copies of the Reich defense law needed within the units of the armed forces be ordered before 1 July 1935 at armed forces office (L) where it is to be established with the request that the law should only be distributed down to Corps Headquarters outside of the Reichministry of war.

I point out the necessity of strictest secrecy once more.

(signed) von Blomberg.

No. 1820/35 L Top Secret II a

Berlin, 3 Sept 1935

To *Defense—Economic Group G-3*
transmitted (copy)
(signed) Jodl

Copy

Reich Defense Law of 21 May 1935

The Reich Cabinet has enacted the following law that is hereby made public:

Part I State of Defense

ARTICLE 1

The Fuehrer and Reichschancellor can declare a state of defense for the area of the Reich in case danger of war threatens.

ARTICLE 2

(1) With the declaration of a state of defense the entire power of execution devolves upon the Fuehrer and Reichschancellor. The Reichsminister of war exercises it by his orders.

(2) The Reichsminister is empowered in the carrying out of the power of execution to issue legal regulations which may deviate from existing laws. He can, in order to enforce his regulation, threaten punishments and set up special courts.

ARTICLE 3

(1) The Reichsministers are to observe the instructions of the Reichsminister of war. They remain the highest Reich authorities within their realm of activity.

(2) The Reichsministers will in case of a state of defense effect the necessary measures and are empowered to issue legal regulations which may deviate from existing laws.

Part II Mobilization

ARTICLE 4

(1) If conflict with an external enemy becomes unavoidable, the Fuehrer and Reichschancellor can order mobilization.

(2) The ordering of mobilization includes in itself the declaration of a state of defense according to Part I, in case the latter is not already proclaimed, without prejudice to the directive of Article Six.

(3) With the ordering of mobilization a state of war in the definition of this law begins.

ARTICLE 5

The Reichsministers will effect the necessary measures in case of mobilization and are empowered to issue legal regulations which may deviate from existing laws.

ARTICLE 6

(1) The Fuehrer and Reichschancellor will appoint a plenipotentiary-general for war economy to direct the entire war economy.

(2) It is the task of the plenipotentiary-general for war-economy to put all economic forces in the service of carrying on the war and to secure the life of the German people economically.

(3) Subordinate to him are:

The Reichsminister for economy

The Reichsminister for food and agriculture

The Reichs labor minister

The Reichs forest master and all Reichs' agents immediately subordinate to the Fuehrer and Reichschancellor.

Furthermore the financing of the war effort (in the province of the Reichs finance ministry and of the Reichsbank) will be carried on under his responsibility.

(4) The plenipotentiary-general for war economy is authorized, within his realm of responsibility, to issue legal regulations, which may deviate from the existing laws.

Part III Setting of penalties and Conclusion

ARTICLE 7

Whoever purposely or carelessly acts in violation of a decree issued by authority of this law will be, insofar as a more severe punishment is not stipulated according to other directives, punished with jail and with fine or with one of these penalties.

ARTICLE 8

The Fuehrer and Reichschancellor will issue the necessary legal and administrative directives for carrying out of this law.

Berlin, 21 May 1935

The Fuehrer and Reichschancellor
(signed) ADOLF HITLER

The Reichsminister of war
(signed) VON BLOMBERG

The Reichsminister of the Interior
(signed) FRICK

Note on the law for the defense of the Reich of 21 May 1935

The publication of the law for the defense of the Reich of 21 May 1935 will be suspended. The law became effective 21 May 1935.

The Fuehrer and Reichschancellor
(signed) ADOLF HITLER

Copy

Decision of the Reichscabinet of 21 May 1935 on the Council for the defense of the Reich

Supplementing the decision of the Reichscabinet of 4 April 1933 and 13 Dec 34 on formation of a council for defense of the Reich, the Reichscabinet has made the following decision:

1. The plenipotentiary-general for war economy appointed by the Fuehrer and Reichschancellor will begin his work already in peacetime. At the suggestion of the chairman of the Council for the defense of the Reich, he

will direct the economic preparations for war, insofar as they do not, in reference to the armament industry fall into the province of the Reichs' Ministry of war. In case of mobilization the following are subordinate to him:

Reichministry of economic affairs

Reichministry for food and agriculture

Reichministry of Labor

Reich's forest-master and all Reichoffices immediately subordinate to the Fuehrer.

In case of mobilization he will direct and be responsible for the financing of the war effort (in the province of the finance-ministry and the Reichsbank).

Those ministries and the Reich's authorities are bound already in time of peace to observe his recommendations for the preparation of a war economy and the financing of the war-effort.

2. The Reichsminister of War and the plenipotentiary for war economy will effect the preparations for mobilization in closest cooperation on both sides.

3. The plenipotentiary-general for war-economy will be a permanent working committee he represents through his leadership staff the interests of war economy. The department heads [Referenten] for the defense of the Reich of the Ministries mentioned in Point I are bound by the recommendations of this leadership staff.

Foundation:

The State of War, an institution of the old law, as it was established in the old Reichsconstitution of 1871, the Prussian law on the state of siege of 4 June 1861 and the Bavarian law on the state of war of 5 Nov 1912, has been only incompletely replaced by Article 48 of the Reichsconstitution of 11 August 1919. Moreover, the provisions of Article 48 no longer correspond to the actual legal conditions.

The new law for the defense of the Reich should create clear legal bases for the transfer of the whole machinery of state from a state of peace to one of war. In this connection it was to be noted that a state of war can begin unexpectedly or from a state of foreign political tension. Since the time of

such tension must be utilized as far as foreign political relations will bear, in order to create a readiness for war in time, the law for the defense of the Reich provides two steps for the transfer from state of peace to state of war:

1. The state of defense
2. The mobilization

For both steps of war preparation, the law gives the legal basis, upon which the individual measures of the Reichsdepartments can be built up as the council for the defense of the Reich instructs.

It is to be mentioned in regard to the provisions of the law in detail:

To Article 2

The exercise of the power of execution by the Reichsminister of war under the Fuehrer and Reichschancellor should emphasize the pressing necessity of all demands of the immediate conduct of the war and should guarantee their fulfillment.

To Article 4, Section 3

In numerous laws special provisions for war are contained. It is therefore necessary, to establish the beginning of a state of war, in respect to times in order to create clear conditions for the administration of justice etc. Since, however, in a future war official declarations of war are not to be expected, as a result of which Article 42 Section 2 of the Reichsconstitution also is obsolete, the beginning of a state of war is to be considered as being at the same time as the beginning of the mobilization.

To Article 6

The experiences of the great war have demonstrated the necessity of including during a war the entire economy and the financing of the conduct of the war under unified leadership. The plenipotentiary-general for war-economy should according to the will of the Fuehrer and Reichschancellor take over the responsible leadership and stands thereby independently along side the Reichsminister of war, the possessor of the power of execution, and responsible for his realm of activity under the Fuehrer and Reichschancellor.

TRANSLATION OF DOCUMENT 2270-PS

COORDINATION [GLEICHSCHALTUNG] OF COOPERATIVES

Issue 393, 16 May 1933, of “NSK” National Socialist Party Press Agency, [NSK, Pressedienst der NSDAP, the official news agency of the NSDAP]. Edited by Wilhelm Weiss. Responsible for communications of the Reich Press Office Dr Otto Dietrich, Reich Press Chief. Published by Franz Eher, Successor, Munich.
[Pages 1-2].

NSK. The Executive Secretaries of the Reich League of German Cooperatives [Reichsverband Deutscher Konsumvereine] have issued the following statement:

The undersigned, legally competent executive secretaries of the Reich League of German Cooperatives, Cologne, and of the Gepag hereby submit themselves and all cooperatives affiliated to their League irrevocably and unconditionally to the command and administrative authority of the leader of the German Labor Front, Dr. Robert Ley, and of Party Member Karl Mueller, the Commissioner for Cooperatives appointed by him.

Signed: Peter SCHLACK
Signed: Rob. SCHLOESSER
Signed: Fritz KLEIN

The Executive Secretaries of the Wholesale Purchasing League of German Cooperatives have issued the following statement:

The undersigned, legally competent executive secretaries of the Wholesale Purchasing League of German Cooperatives, Inc., Hamburg, hereby submit themselves and all cooperatives affiliated to their League irrevocably and unconditionally to the command and administrative authority of the leader of the German Labor Front, Dr. Robert Ley, and of Party Member Karl Mueller, the Commissioner for Cooperatives appointed by him.

Signed: H. EVERLING
Signed: A. GRAHL

Pursuant to these statements the leader of the German Labor Front has issued the following order:

As previously announced by Party Member Bank Director Mueller on my behalf, the German Labor Front has today taken over the leadership of the cooperatives. The legally competent executive secretaries of the Wholesale Purchasing League of German Cooperatives, Inc., Hamburg, and of the Reich League of German Cooperatives, Cologne, have submitted unconditionally and unreservedly.

The Chief of the economic enterprises of the German Labor Front, Party Member Bank Director Mueller, also assumes the management of the cooperatives. This action is being taken for the benefit of the German worker, in order to safeguard the savings of the masses here also, and in order not to permit the decay of the assets which the cooperatives hold for the benefit of the people.

The action in itself is a winding-up action, which means that their further extension will not be tolerated, that everything that is rotten and burdensome must be gotten rid of now in the shortest possible time, that in agreement with the representative organizations of the middle class an equitable settlement is being initiated now already. Offices of the NSDAP are requested to shed their hostile attitude towards cooperatives, because they can rest assured that everything is being done by the leadership which profits the benefit of the people and the benefit of Germany.

Future organization of the cooperatives is as follows:

The two great Reich Leagues of cooperatives will become members of, and be merged into one Reich League. Great savings will thus be effected in administration.

As a matter of principle there will be no more voting in any organization, but the leader, Party Member Mueller, is appointed by me and he is authorized to appoint additional leaders of the individual regions and localities.

The Administrative Council, which is to help Party Member Mueller, will constitute the Executive Chamber [Kleine Kammer], in addition a Plenary Chamber will be formed, so as to definitely clarify the relationship between

the new corporate structure and the cooperatives, and to shape the winding-up more decisively and organically.

The leader of the German Labor Front
Dr. R. Ley

TRANSLATION OF DOCUMENT 2271-PS

ORGANIZATION BOOK OF THE NSDAP

[Organisationsbuch der NSDAP]

Editions of 1936, 1938, 1940, & 1943

Editor the Reich Organization Leader of the NSDAP (Dr. Robert Ley).

Published by the Central Publishing House of the NSDAP, Franz Eher
Successor, Munich. [Pages 185-187].

The NSBO

The National Socialistic Factory Cells Organization.

[Die Nationalsozialistische Betriebszellen-Organisation]

The NSBO is a union of the political leaders of the NSDAP in the DAF
[German Labor Front].

The NSBO is the carrier of the organization [Organisationstraeger] of the
DAF.

The duties and responsibilities of the NSBO have passed over to the DAF.

The political leaders who have been transferred from the NSBO to the DAF
guarantee the ideological education of the DAF in the spirit of the National
Socialistic idea.

The German Labor Front

Including
the NS Community Strength through Joy [Kraft Durch Freude]

Decree of the Fuehrer on the Nature and Goal of the German
Labor Front, dated 24 October 1934

Nature and Goal

Article 1

The German Labor Front is the organization of creative Germans of brain and fist.

In the main, the members of the former unions, the former employee unions and the former employer unions are united in it as members with equal rights.

Membership in the German Labor Front *cannot* be substituted by memberships in professional, social, political, industrial or ideological organizations.

The Chancellor of the Reich can decree that class-organizations which have been recognized by the law should belong corporatively to the German Labor Front.

Article 2

The aim of the German Labor Front is to create a true social and productive community of all Germans [Volks- und Leistungsgemeinschaft].

Its task is to see that every single individual should be able to take his place in the industrial life of the nation in that intellectual or physical capacity which enables him to perform maximum work and thus guarantees a maximum of benefit for the community of the nation.

Article 3

The German Labor Front is a branch of the NSDAP according to the Law for Securing the Unity of Party and State, issued on 1 December 1933. (According to the law, issued 29 March 1935, the DAF will be designated as an affiliated organization [Verband] of the NSDAP. The editor.)

Leadership and Organization

Article 4

The NSDAP has the leadership of the German Labor Front.

The Staff leader of the Political Organization [PO] is the leader of the German Labor Front. He is assigned by the Fuehrer and Reich Chancellor.

He assigns and dismisses the other leaders of the German Labor Front.

These posts should be given in the first place to members of the existing branches of the NSBO and of the NS-Hago [NS Handelsund Gewerkbetreibenden Organization, or the National Socialist Organization of Tradesmen and Commercial Men] who are in the NSDAP, and further to members of the SA and SS.

Article 5

The regional organization of the German Labor Front corresponds to that of the NSDAP.

The aim toward an organic order as laid down in the program of the NSDAP determines the professional organization of the German Labor Front.

The staff leader of the Political Organization determines the regional and professional organization of the German Labor Front; they will be published in the service book of the German Labor Front. [In the 1943 edition the following is added: "Organization Book of the NSDAP"].

Article 6

The accounts [Kassenfuehrung] of the German Labor Front are under the control of the treasurer of the NSDAP on the basis of the first executive decree to the law securing the unity of Party and State, issued 23 March 1934.

Tasks

Article 7

The German Labor Front has to secure the peace of labor by creating understanding among the enterprise leaders for the justified claims of their following [Gefolgschaft] understanding among the following for the situation and possibilities of their enterprise.

The German Labor Front has the task of finding the common basis between the justified interests of all participants which is in accordance with the national socialistic basic principles and which reduces the number of the cases which are to be referred to the State agencies alone in charge on the basis of the law of 20 January 1934.

It is the exclusive task of the German Labor Front to represent all the parties which are required for the conciliation. It is prohibited to create other organizations in this domain or to permit their activities in this field.

Article 8

The German Labor Front is the carrier of the National Socialist Organization "Strength Through Joy."

The German Labor Front has to provide for professional training.

Furthermore, it has to fulfill the tasks which have been assigned to it by the law of 20 January 1934.

Article 9

The property of the former organizations as mentioned in Article 1 of this decree, including their help and compensation organizations, property managements and industrial enterprises, constitutes the property of the German Labor Front. This property is the original capital for the self-help organization of the German Labor Front.

The German Labor Front, through its self-help organization, should guarantee the existence of each of its members in emergency cases in order to facilitate the progress of the most qualified Germans [Volksgenossen] or to help them to secure an independent life, if possible, on their own ground and soil.

Article 10

This order becomes valid on the day of its publication.

Berlin, 24 October 1934.

Fuehrer and Reich Chancellor
Adolf Hitler

My decree, issued 24 October 1934 about the German Labor Front will be changed so that Article 4 will read as follows:

Leadership and Organization

Article 4

The NSDAP has the leadership of the German Labor Front. The Reich Organization Leader of the NSDAP is the leader of the German Labor Front. He is designated by the Fuehrer and Reich Chancellor.

He designates and dismisses the other leaders of the German Labor Front.

These posts should be given in the first place to members of the branches NSBO and NS Hago who are in the NSDAP and further to members of the SA and SS.

Furthermore: In Article 5, Par. 3, the word “Staff Leader of the PO” will be substituted by “*Reich Organization Leader*” of the NSDAP.

Berlin, November 12, 1934.

Fuehrer and Reich Chancellor
Adolf Hitler

PARTIAL TRANSLATION OF DOCUMENT 2273-PS

Draft

TOP SECRET

[Geheime Reichssache]

SPECIAL PURPOSE GROUP “A”

[Einsatzgruppe A]

* * * * *

III

Jews

The systematic mopping up of the Eastern Territories embraced, in accordance with the basic orders, the complete removal if possible, of Jewry. This goal has been substantially attained—with the exception of White Russia—as a result of the execution up to the present time of 229,052 Jews (see Appendix). The remainder still left in the Baltic Provinces is urgently required as labour and housed in Ghettos.

To attain this object various kinds of measures were necessary in the different areas of the [Ostland].

In the three Baltic States of Estonia, Latvia and Lithuania, Jewry did not make itself decisively felt until the Bolsheviks had come into power there. But even before that the Jewish influence on the one hand and the anti-Jewish feeling of the population on the other hand, were very strong.

In the following the various areas of the Eastern Territories will be dealt with separately:

1. Estonia

As Estonia, until the middle of the last century, was part of a closed zone of the Russian Empire, into which it was forbidden for Jews to immigrate, the number of Jews in the country has always been insignificant.

At the beginning of 1940 there were living in Estonia about 4,500 Jews out of a total population of 1.2 millions. Their influence on the economic life of the country was considerably stronger than the proportion of Jews to the whole population. For instance 11% of Estonian industry was in Jewish hands. During the Bolshevik time it is true Jewish private property was nationalized, but nevertheless the Jews themselves were almost everywhere left as Directors of their former enterprises. By means of connections with the NKWD the Jews got themselves into a very strong position. They controlled the Press, cultural institutions, forced their way into the open professions, and were the only minority besides the Germans to have the right to cultural autonomy.

With the advance of the German troops the majority of the Jews, together with the Soviet-Russian authorities, left the country. Approx. 2,000 Jews remained behind in the country. Out of these almost 1,000 lived in Reval alone.

The Estonian Self Protection Movement [Selbstschutz], formed as the Germans advanced, did begin to arrest Jews, but there were no spontaneous pogroms. Only by the Security Police and the SD were the Jews gradually executed as they became no longer required for work.

Today there are no longer any Jews in Estonia.

2. Latvia

The total number of Jews in Latvia amounted in June 1935 to 93,479 or 4.79% of the total population.

When the Bolsheviks came into power in Latvia in June 1940, their Soviet-Russian racial comrades succeeded in obtaining authoritative influence for the Latvian Jews, who previously had been predominantly Zionist. Whereas before 1940 there were no Jews as State officials in Latvia, in fact there were no Jews in the State Administration at all, in the Soviet Russian Republic all the influential State positions were quickly in the hands of the Jews. Half of the total number of Judges were Jewish. The number was up to 80% in the Higher Courts and in particular on the Tribunal. Equally strong was the influence of the Jews on the economy and cultural life.

When the German troops marched in there were still 70,000 Jews in Latvia. The remainder had fled with the Bolsheviks. The Jews left behind were actively engaged in sabotage and setting fire to places. In Duenaburg so many fires of this kind were started by the Jews that a large part of the Town was destroyed.

After the terror of the Jewish-Bolshevik rule—altogether 33,038 Letts were transported, imprisoned or murdered—an extensive pogrom carried out by the population might have been expected. In fact, however, only a few thousand Jews were eliminated by local forces on their own initiative. In Latvia it was necessary to carry out extensive mopping-up operations by means of Sonderkommandos with the help of forces picked from the Latvian Auxiliary Police (mostly relations of the Letts who had been carried off or murdered).

Up to October 1941 approximately 30,000 Jews had been executed by these Sonderkommandos. The remaining Jews who were still indispensable from the economic point of view were collected in Ghettos, which were established in Riga, Duenaburg and Libau.

As a result of punishments instituted for not wearing the Jewish star, black market, thieving, fraud, but also to prevent the danger of epidemics in the Ghettos, further executions were subsequently carried out. In this way 11,034 Jews were executed in Duenaburg on 9.11.41, and, as the result of an action ordered and carried out by high authorities and Police chiefs, 27,800 were executed in Riga at the beginning of December 1941, and, in the middle of December 1941, 2,350 were executed in Libau. At the moment there are in the Ghettos (other than Jews from the Reich) Latvian Jews in

Riga approximately 2,500
Duenaburg approximately 950
Libau approximately 300.

These are indispensable at the moment as they are specialized workers necessary for maintaining the country's economy.

3. *Lithuania*

Until the Bolsheviks marched in, according to a census taken in 1923 there were 153,743 Jews living in Lithuania, forming 7.58% of the total population. Whereas their influence had previously for the greater part been restricted to the business world, the Lithuanian Jews, who had already been working illegally for Bolshevism, now quickly became a dominating influence in public life. In particular Jews of both sexes supported the activities of the NKWD. The transporting of 40,000 Lithuanians to Siberia is traceable to the preliminary work done by the Jews.

When the German troops marched in the Lithuanians expressed their hatred of the Jews in active pogroms, at the same time Jewish communist youths set fire to many towns, through which the German armoured units had passed leaving them little damaged, by means of tins of petrol which they had previously put ready.

As a result of the pogroms carried out by the Lithuanians, who were nevertheless substantially assisted by Sipo and SD, 3,800 Jews in Kauen and 1,200 in the smaller towns were eliminated.

Where Jews were able to escape they were not infrequently handed over to the authorities by the farmers.

These spontaneous mopping-up actions were, however, insufficient to stabilize this rear section of the Front, and at the same time the enthusiasm of the local inhabitants waned.

Therefore by means of selected units—mostly in the proportion of 1:8—first of all the prisons, and then systematically district by district the Lithuanian sector was cleansed of Jews of both sexes. Altogether 136,421 people were liquidated in a great number of single actions. It is worthy of note that many of the Jews used force against the officials and Lithuanian auxiliaries who were carrying this out, and before their execution still

expressed their Bolshevik convictions by cheering Stalin and abusing Germany.

As the complete liquidation of the Jews was not feasible as they were needed for labour, Ghettos were formed which at the moment are occupied as follows:

Kauen approximately 15,000 Jews.

Wilna approximately 15,000 Jews.

Schaulen approximately 4,500 Jews.

These Jews are used primarily for work of military importance. For example up to 5,000 Jews are employed in 3 shifts on the aerodrome near Kauen on earth-works and work of that sort.

4. White Russia

The White Russian Sector is more thickly populated by Jews than all the other States in the Ostland. In the year 1926, far more than 400,000 Jews were counted in the then BSSR. The last Polish census showed more than 500,000 Jews in the provinces [Wojwodschaften] of Bialystock, Nowo Grodlek, Polesien and Wilna. These figures are however approximate and most certainly too low, which is further apparent from the fact that far more people have given "Yiddish" as their mother tongue than there were supposed to be Jews counted in the same area. Quite half of the Jews in the White Russian Settlement Area lived at the beginning of the war in the larger towns. Minsk was occupied to a very particular extent by Jews, in 1939 there were approximately 100,000 out of a total population of 238,000.

The social structure of the Jews shows a broad lower stratum of very poor Jews, both in the area formerly Polish, and in the White Russian Sector which was Bolshevik before the Russo-Polish war.

The proportionately thin upper stratum dominated simply every sphere of life in the former Polish sector, mainly as a result of its strong economic position, and in the former Soviet-Russian sector as a result of their influence in the leading party positions. The Jew in the area formerly Polish is a particularly dangerous element, because of his intelligence and activity. But even the Soviet-Russian Jew has during the 25 years of Bolshevik

domination assumed a very self-sufficient and arrogant air, which he has even retained after the entry of the German troops.

The final and fundamental elimination of the Jews remaining in the White Russian sector after the entry of the Germans is fraught with certain difficulties. Just in this place the Jews form an extremely high percentage of the specialized workers, who are indispensable because of the shortage in other reserves in this area.

Furthermore Einsatzgruppe A did not take over this area until after the heavy frost had set in, which made mass executions much more difficult. A further difficulty is that the Jews live widely scattered over the whole country. In view of the enormous distances, the bad conditions of the roads, the shortage of vehicles and petrol and the small forces of Security Police and SD, it needs the utmost effort in order to be able to carry out shootings in the country. Nevertheless 41,000 Jews have been shot up to now. This number does not include those shot in operations by the former Einsatzkommandos. From estimated figures about 19,000 partisans and criminals, that is in the majority Jews, were shot by the Armed Forces [Wehrmacht] up to December 1941. At the moment approximately 128,000 Jews must still be reckoned with in the area of the Commissariat-General. In Minsk itself—exclusive of Reich Germans—there are about 1,800 Jews living, whose shooting must be postponed in consideration of their being used as labour.

The Commander in White Russia is instructed to liquidate the Jewish question as soon as possible, despite the difficult situation. However a period of about 2 months is still required—according to the weather.

The shutting up of all the remaining Jews in special Ghettos is also almost completed in the towns in White Russia too. They will be used for work to the fullest extent by the authorities of the Armed Forces, the Civil Administration and German Authorities.

The feeding of the Jews in the Ghettos causes considerable difficulty, especially in White Russia but also in Lithuania. Together with the general decrease in working capacity, there is increased susceptibility to all contagious diseases.

5. Jews from the Reich.

Since December 1940 transports containing Jews have arrived at short intervals from the Reich. Of these 20,000 Jews were directed to Riga and 7,000 Jews to Minsk. The first 10,000 Jews evacuated to Riga were housed partly in a provisionally erected reception camp and partly in a newly established hut encampment near Riga. The remaining transports have for the time being been directed into a separate part of the Riga Ghetto.

The building of the hut encampment, as a result of the employment of all Jews fit for work, is so advanced that all evacuated Jews who survive the winter can be put into this camp in the spring.

Only a small section of the Jews from the Reich is capable of working. About 70-80% are women and children or old people unfit for work. The death rate is rising continually, also as a result of the extraordinarily hard winter.

The amount done by those few Jews from the Reich who are fit for work is satisfactory. They are preferred as labour to the Russian Jews, because they are German speaking and because of their *comparatively* greater cleanliness. Worthy of note is the adaptability of the Jews, with which they attempt to form their life in accordance with the circumstances.

The crowding together of the Jews into the smallest space, which occurs in all the Ghettos, naturally causes greater danger of epidemics, which is being combatted as much as possible by the employment of Jewish doctors. In isolated instances sick Jews with contagious diseases were selected under the pretext of putting them into a home for the aged or a hospital and executed.

CHART [See Chart *Number 4* in the last volume of this publication.]

Judenfrei—free of Jews

Jewish Executions carried out by Special Purpose Group A.

Estimated number of Jews still remaining—128,000.

TRANSLATION OF DOCUMENT 2275-PS

THE GERMAN LABOR FRONT. NATURE—AIM—MEANS

[Die deutsche Arbeitsfront. Wesen—Ziel—Wege] Issued by the Scientific Labor Institute of the German Labor Front. Published by the Publishing House of the German Labor Front, 1943

[Footnote, page 11].

More than nine-tenths of all working Germans are members of the German Labor Front. Shortly before the outbreak of war the German Labor Front had 23 million individual members in the then Reich territory. In addition there were corporate members [Korporative Mitglieder], the number of which can be estimated at 10 millions after eliminating all multiple memberships.

The members of such organizations are “corporatively” affiliated to the German Labor Front which have collectively joined the German Labor Front on the basis of special agreements. But the members of such organizations can nevertheless become individual members of the German Labor Front.

Among others the members of the following organizations are “corporative” members of the German Labor Front: Reich Chamber of Culture; Reich Food Estate; Reich League of Graduate Farmers; Organization of Trade Economy; Experts’ Council on Public Health; Attorneys’ League; Reich League of German Civil Servants; National Socialist Teachers’ League; Reich Labor Service; Armed Forces; Nurses’ Association. In other words, practically all important professional or economic organizations have led their members into the German Labor Front.

TRANSLATION OF DOCUMENT 2276-PS

THE GERMAN LABOR FRONT. NATURE—AIM—MEANS

[Die deutsche Arbeitsfront. Wesen—Ziel—Wege] Issued by the Scientific Labor Institute of the German Labor Front. Published by the Publishing House of the German Labor Front, 1943

[Page 55].

During the years from 1933 to 1939 everything necessary had been done in secrecy [in aller Stille] that seemed necessary to the conservation of the nation in the anticipated clash with an envious surrounding world. As always, when taking precautionary defense measures in a newly-won field, it was not possible here either to plan in a way that would be satisfactory. It was necessary to check what was on hand, and build with that the most essential and the momentarily most useful. It could not be obviated that the result, measured with the yardstick of what had been planned for the future, would appear modest and perhaps even inadequate.

It has not always been simple for those charged with practical social work to master satisfactorily the juxtaposition of old, scantily mended institutions and new ones. But certainly it was even more difficult for the biggest part of the people to see how the effort supported by it was, year after year, applied to tasks which initially necessitated renunciation after renunciation. After all, it seemed like a small matter to apply the energies released by the National Socialist revolution to the improvement of social conditions desired for so long. Instead the leadership chosen by the people and over again confirmed by it, channeled all its strength into armaments [Wehrhaftigkeit]. And—won the consent especially of those sections of the people who had had to suffer most from social conditions prevailing up to then.

TRANSLATION OF DOCUMENT 2277-PS

STATEMENT

of Gustav Schiefer, born 17 July 1876, residence: Munich 9, No. 3 Armanspergstrasse, about what happened to him when the Nazis came on 9 March 1933.

I was employed as part time worker [Hilfsarbeiter] by the former Trade Union Society, Munich, beginning 11 November 1911. During the years 1914-1918, I was in the World War.

After the revolution in November 1918 I was elected Executive Chairman of the General German Trade Union Association [Allgemeiner Deutscher Gewerkschaftsbund], Local Committee, Munich. I held this position without interruption until 9 March 1933.

On that day the Nazis stormed the Munich Trade Union Headquarters Building, 40/42 Pestalozzistrasse. The offices remained closed until 15 March. On 13 March my late colleague Erhard Kupfer, former District Secretary of the General German Trade Union Association [ADGB] and I had to report to the, then, State Commissar Wagner, and were ordered to reopen the Munich Trade Union Headquarters Building, and with it the offices, by 15 March, and to resume normal activity within the framework of the trade unions.

Since I was at the same time chairman of the Munich Trade Union Headquarters Building, Inc., it became my task to take over the house in its entirety, and with it the individual offices of the trade unions.

Because safes and strong-boxes, in fact everything that was locked, had been smashed open, and because safes and tills, in the main, were empty, I refused to take over the house and offices in their present condition. I stated that I would take over the house only in the condition in which it was when it was taken away from us on 9 March.

The house had been taken over on 9 March 1933 by Herr Kurt Frey, and returned to us on 15 March by the former executive secretary of the Hotel, Restaurant, etc. Employees' Association, Herr Reichart. This Nazi, with whom I did not get along too well because of his equivocal attitude, believed that the opportunity had arrived to wreak his vengeance on me.

I was dragged to the great hall, paper and pencil put before me with the challenge to designate these Nazis who had committed thefts during the period of 9 to 15 March 1933. I could not do that, since I did not know the individuals. As I refused my signature about 10 Nazis beat me promiscuously and indiscriminately until I collapsed. Upon that they seized me and threw me into the bottom of the light shaft of the Trade Union Headquarters Building. After lying there for some time I summoned up my strength and tried to rouse myself. When the Nazis noted that, they again dragged me into the hall and beat me until I collapsed and fainted. My colleagues Josef Gessl, former executive secretary of the Cobblers' Association, and Richard Moses, employee of the General Mutual Benefit Local Pay Office [Allgemeine Ortskrankenkasse], Munich, grabbed me and brought me in this condition to the Munich-Schwabing hospital. In addition to many other injuries, Professor Dr. Kerschensteiner, director of this

institution, diagnosed serious concussion of the brain with hemorrhage into the brain. I remained from 15 March to 5 May 1933. On 5 May the Precinct Physician, at that time already a Nazi, certified that I was sufficiently fit for arrest. On 5 May I was transported to the Ettstrasse Police Prison, and from there to Stadelheim. I remained in Stadelheim until 25 August 1933.

It is due to an extraordinarily fortunate circumstance that I was saved from Dachau in 1933. Medical Privy Councillor Dr. Geisendoerfer, who was chief physician in Stadelheim, knew me from the Cooperative Sickness Benefit movement (I had been on the Committee of the General Mutual Insurance Local Pay Office [Allgemeine Ortskrankenkasse], Munich, for 25 years). Through the many negotiations with the physician I had been in close touch with the above-named gentleman. During my stay in Stadelheim the Gestapo had me examined five times by the chief physician, who always held a protective hand over me, and to whom I am also indebted for my early release, due to a serious illness (intestinal gap of 15 cm depth and 7-8 cm length).

I was then sick and unable to work until 24 December 1933. On that day I was sent away by the Trustee Physician of the General Mutual Benefit Local Pay Office, Munich (city), in spite of my request to allow me to draw sickness benefits until the eve of the New Year. He said that there was no reason to grant the request. As far as I know this Trustee Physician was Medical Councillor Dr. Plate.

I was then unemployed until May/June 1934 and then accepted various jobs as representative. After my release from Stadelheim I had to report to the police every third day for almost 2 years. Constant police supervision was one of the simplest cases of chicanery.

Upon the initiative of my colleague Wilhelm Leuschner, Berlin, I joined the movement against the Nazi system in good time; and it was exclusively due to the steadfastness of my colleague Leuschner that I, like many other friends, am still alive.

After the assassination attempt on Hitler on 20 July 1944, I was again arrested and shipped to Dachau Concentration Camp. As is well known, that project was called "Gitter."

On 6 October 1944 I was released without any interrogation. I was extraordinarily fortunate. Since 2 May 1945 I am again active, in the trade union as well as the political movement and also in social work and life.

As witnesses for the correctness of my statements I name the persons already mentioned above, who brought me to the Schwabing hospital (Josef Gessl and Richard Moses).

And how decent were we once more in the year 1945. Not a hair on the head of any of these swine was harmed on behalf of the trade unions. We bore witness, and still bear witness today, for human dignity and justice.

Other liberated colleagues of the Free Trade Unions got away with beatings in the cellar of the Trade Union Headquarters Building in the beginning. Among others my colleague, Anton Friebl, now living at 4 Gabrielenstrasse, 2nd floor. Many deceased colleagues, such as Georg Kandlbinder, Josef Ertl, Heinrich Gassner and many others.

Munich, 17 October 1945

[signed] G. SCHIEFER

Today on the 19th of November 1945, I have reread and signed every single page of the statement given by me on 17 October 1945. I declare hereby under oath that this statement is true.

[signed] *Gustav Schiefer*

Gustav Schiefer

SWORN TO BEFORE ME this 19th day of November 1945, Munich, Germany.

[signed] Kurt A. Baer, 0-1041959

Captain, CAC

3rd Military Government Regiment

APO 403, U. S. Army

TRANSLATION OF DOCUMENT 2278-PS

Official tour of Reich Minister Dr. Seyss-Inquart to the districts of Warsaw, Lublin, and Radom from 17th November to 22nd November 1939

Those taking part were:

1. Reich Minister Dr. Seyss-Inquart.
2. Dr. Sild.
3. Dr. Rahn, department of food and agriculture in the office of the General Governor.
4. Legation Councillor [LGR] Dr. Goetze, economic department. 17.11. Departure at 7.0 a.m. from Burg Cracow in a car. To Warsaw via Mislowitz, Sosnowitz, Czestochau, Radomsko, Petrikau, Lodz, Tomaszow and Rawa. Arrival 1.0 p.m. Received by the governor, Dr. Fischer and the gentlemen of his staff, followed by a small luncheon party.

At 3.0 p.m., Reich Minister Dr. Seyss-Inquart addressed the department heads of the District Chief and stated, among other things, that the chief guiding rule for carrying out the German administration in the General Government must be solely the interests of the German Reich. A stern and inflexible administration must make the area of use to German economy and so that excessive clemency may be guarded against, the results of the intrusion of the Polish race into German territory must be brought to mind.

Following that the Reich Minister held conferences with the governor, Dr. Fischer, and Section Head, Dr. Barth, on administrative and economic questions; later on, experts and heads of departments were called into the conferences to make reports.

Among other specifications, Dr. Fischer submitted to the Reich Minister the specification attached to the plan for the preliminary arrangement of the departments in the office of the District Chief and of the authorities in Warsaw.

Dr. Fischer reported that, in particular, the number of personnel was still considerably too small. Three out of 14 Sub-Prefects [Landraete] were also missing. Of the departments in the District Office, only a few had their full complement; that was also the case with the department of Public Enlightenment and Propaganda and the Labour department. Of important experts, there were still none for taxes and monopolies. In the Health Service, one medical advisor was, at the same time, head of the Health

Department and district physician. The accommodation of the authorities also left much still to be desired.

Reich Minister Seyss-Inquart then stated that a large sum for the productive support of unemployed would be made available. This sum could be used for erecting or repairing any buildings required by the administration.

The governor, Dr. F., reported that further German administrative and municipal officials were also required for the administration of the city of Warsaw. Then a discussion took place on the organization of the district authorities, the occupation of the rural districts [Landkreise] and on the question of transferring the remaining 5 communities of the Gtojec district from the district of Radom, and a further 5 communities of the Garwolin district from the district of Lublin, to the district of Warsaw. Reich Minister S. I. promised to look into this affair. After that, general questions on the division and personnel to occupy the districts were discussed. Reich Minister S. I. agreed that should the District captain [Kreishauptmann] not be a lawyer the best arrangement for a district captaincy [Kreishauptmannschaft] was to assign to him a representative who was trained in legal matters. Dr. Fischer reported that, up to now, the German administration had been set up as essentially a supervising authority over a Polish administration. Questions arose from this as to what range of subjects should be included in the functions of the District chief. It was superfluous to draw up any building regulations, for should accommodation be had, it concerned only the Poles themselves. Then the question of using Polish employees at the German administrative courts was touched upon. There were some 300 Polish employees working at the office of the District Chief of Warsaw. The administration by the German authorities would have especially to serve for the utilization of the Government's sphere for German economy, so the administration of agriculture, Labour, and Roads especially would have to be well-ordered, on the other hand, trade, settlements, or even the accountancy of the Polish communities are of less importance.

Dr. Fischer then raised the question of prices. Price commissars were to be sent from the Reich and they would equalize the standard of prices with that in the Reich. Wages would then, however, have to be adapted to his standard and this might have unforeseen consequences. Reich Minister S. I., on the other hand, stated that Generaloberst v. Brauchitsch wished to place

army orders for textiles cheaply in Lodz and suitable industrial centres. Dr. F. thought that higher prices had their good points as at Warsaw, for instance which had only been fed because of higher prices which gave the farmers an incentive to bring their goods into the city. Thereupon, Reich Minister S. I. put the question of how a definite influence could be obtained on the price system and on the system of distributing goods by setting up monopolies for essential goods such as salt, sugar, coal, petrol, and tobacco. If these goods are in one's hands and if it be possible to make them available to the farmer for a definite price, he would also be prepared to sell his products for a corresponding price in order to obtain the goods he requires. Moreover for the time being it could not be a question of furnishing better living conditions for the Poles, but merely of securing the minimum of existence for them. However, it could not be regarded in that light when a forced laborer was paid nine Zloty per week.

Hereupon Reichsminister Dr. S.I. received the report of the City President [Stadtpraesidenten] of Warsaw, Dr. Dengel. He declared the problem of the unemployed to be the most urgent one. Until now taxes to the amount of 150,000 RM had been received, but this would not be nearly sufficient, not even for the reconstruction of the most urgently needed public buildings. The city budget was now in preparation, but already it became apparent, that a loan to the amount of 50,000,000 Zloty from the Reich Credit Bank [Reichskreditkasse], was needed. Sufficient city property was available as security, of which an inventory was being prepared. Later on the tax revenue would probably be sufficient for regular interest on the loan. Regarding the tax system, the City President reported that the cities received shares and additional payments over and above the remittances [Ueberweisungen] of State taxes, about the same as in the old Austria. The administration of property taxes would be partially difficult, since during this mix-up no status of persons or assets could be established.

On the question being put by Reichsminister Dr. S.I. the City President reported that in Warsaw about 40% of the buildings would be again habitable, after part of them had been repaired. Dr. F. thought, one would leave one quarter of the destroyed city for inspection, but otherwise lay out grass plots in place of the debris. The City President then mentioned the question of the Polish City officials. For their necessities they have been receiving so far up to 250 Zlotys a month and those with higher salaries half

of the surplus up to 1200 Zloty. Dr. F. pointed to the decree of the Governor General, whereby 100% of the basic salaries and not over 1,000 Zloty could be paid. The activity of the banks was then mentioned. Stocks in gold, precious metals, and foreign currencies had been delivered by them to the Reichsbank. The inhabitants were obliged to deposit all their money at the bank, withdrawals depending on the approval of the City President. Dr. F. explained that the banking system was now attached to the Department of Economic Affairs at the office of the District Chief.

The City President now reported on welfare questions. Specific difficulties had arisen from the sudden departure, on higher authority, of the relief train Bavaria. Workers who could buy no food for themselves, were frequently unable to continue working. The welfare service of the NSV confined itself to the racial Germans, whereby certain difficulties were caused by the question of determining who were racial Germans, of which about nine to ten thousand were now living in Warsaw. Jews were not aided, even out of municipal funds.

For the care of the Poles, the Polish social Self-Help was to be called into activity again, and was to be continued by the men who had formerly directed it. The supervisor was to be supplied, against payment, with motor cars and trucks with fuel, and permission was to be granted to the organization to accept voluntary contributions in the country. The confiscated bank accounts of about 9,000,000 Zloty are to be at the disposal of the organization.

The City President then pointed to the absolute necessity of the speediest establishment of criminal justice officials as well as a civil court. An orderly continuation of economic life depended on the latter. He then also reported on the Court of Corporal Punishment [Pruegelstrafengericht], which had been established for the punishment of crimes amongst the Poles.

Dr. F. pointed out that possibly greater treasures might be hidden in the Jewish quarter.

Reichsminister S.I. commented then that the building up of the administration to be effected in Poland, was a good school for those participating in it.

The ideal arrangement would be that a Party man with strong initiative should stand at the head of the administration, at whose side would be experts and an experienced administrator, in order to include the work in the general system.

The head of the department, Labour Oberregierungsrat Dr. Espe then spoke. He expressed the hope that it would later on be possible to exchange forced labor by normal labor. There was a definite lack of tools; he had therefore started a small factory for the manufacture of tools, and now construction of the most primitive sort was going on at the airport and on the highways. The question of transport was the most important and would have to be tackled ahead of the clearing-up work. At present a survey was being made of all undertakings which were at all capable of production, and, after the Reich had decided what was to be manufactured, they were to begin operations. Possibly three shifts were to work in these factories to equalize the destruction.

A difficult problem was the multitude of the new unemployed Polish intellectuals. The students could still be trained in handicraft, but for the 80,000 to 90,000 Polish officials, one must, if occasion arises, revert to reconstruction of the Polish Administration Departments.

Reichminister S.I. then stated clearly that a second Polish subadministration would be considered by the German authorities solely in the form of a welfare organization.

Oberregierungsrat Dr. Espe remarked that the activity of the sick fund and of social welfare would largely be dependent on the functionaries of the railroad and postal systems. Both welfare branches were controlled by a head institution for social security which was already again showing a certain profit. The administrative office could also be rebuilt with available materials. The property of the head institution is said to have been largely transferred to Russia in the form of securities. Fortunately, it was largely a question of mortgages, which could be declared invalid.

As an added difficulty, Oberregierungsrat Dr. Espe then also mentioned that wages had been brought down below the former level, due to surplus labour.

Reichsminister Dr. S.I. asked if the proclaimed tariffs were really to be enforced. In any case no official Polish State should be set up. Oberregierungsrat Dr. Espe thought that, on the basis of tax collection, this decree was advantageous, and one could naturally not suffer the obvious ignoring of regulations which we had promulgated. Reichsminister Dr. S.I. thought that this was no further problem east of the Reich border. One could, at an opportune moment, seize upon a case of border violation for corresponding exemplary and also otherwise useful action.

Then the representative of the Reich Railways at the office of the District Chief, Oberreichs Bahnrat Prasch, appeared to give a report. He said now that military transport had come to an end, traffic from the west was going on well. Also trains to Cracow went through Kattowitz. The number of locomotives taken over was fairly satisfactory, the major part, however, had gone to Russia where they possibly would not even be needed because of the change in the railway gauge, which had already been started to great extent. Trains were already going to Lublin, also. Today, two railroad bridges were in operation. Reichsminister S.I. pointed out that, above all, the tracks to Cracow which do not go through Kattowitz, had to be restored in order that the necessary gasoline and petroleum could be brought from the oil field region to Warsaw. Admittedly, an increased amount of suitable freight cars was still necessary, but that could be accomplished by repairing the existing damaged tank cars.

The director of the "Trade Economy" Department, Regierungsrat Dr. von Coelln now came forward to give a report. He stated that, in the district of Warsaw, almost all branches of industry were represented. French and Dutch capital was invested in the oil field enterprises. Dr. von Coelln then said that in the district of Warsaw still considerable supplies of raw materials were stored in soap factories. These soap factories should again be put into operation. The produced soap was made of a higher solution of fat acid than was at present stipulated in the Reich. Reichminister Dr. S. I. said the Order of the Governor General according to which the factories were permitted to produce one-third of their pre-war production, must be amended and the soap should be confiscated. Furthermore, it was agreed that war economic works, car factories, the chemical and optical industries, etc., should be put quickly into operation. Dr. von Coelln then also raised the question of how the import and export between the Reich and the

“Government” should be arranged, if the coal region with Sosnowic, Dabrowa, and Trzebinia also becomes German territory and, after the 20th the control of foreign currencies and customs will be carried out. He then reported that the electrical plants in Warsaw were in working order. In spite of an order to the contrary, there were about 30 night clubs in Warsaw.

Of primary importance was the question of safeguarding the still existing supplies of soap, tea, etc. The control of such goods as petroleum, light, salt, fertilizers, etc., by some method of monopoly, could best be accomplished through consumer cooperatives.

Now appeared State Farmer Leader Koerner. He reported that the supplying of Warsaw with food from Lublin and Radom must be made to operate better. Up to now, Warsaw had been supplied in that respect by Posen. Five thousand tons of grain were now going to be supplied to Warsaw, 15,000 of which were already on the way. 20% of the grain in the “Government” was destroyed through military action. There was also a shortage of meat and similar commodities. In this case, however, as a matter of principle, nothing should be sent in from the Reich. Until the next harvest, the Polish population should be principally provided with sufficient amounts of grain and potatoes only. It would take about from 3 to 4 years to build up the stock of cattle again. The prices of grain should be kept on a level of from 25 to 30% above those of 1 September 1939. Such prices were sufficient for the farmers.

At 8.00 P. M. supper with the commanding officer of the city garrison.

18. 11. 8 o'clock departure from Hotel Europejski in Warsaw for a drive of inspection within the Warsaw district accompanied by the Governor Dr. Fischer. Survey of the destroyed bridges over the Bug at Wyszki, and then on via Lochow to Ostrow.

At Ostrow visit to the Sub-Prefect [Landrat] von Boehnau, who reports on his work to Reichsminister Dr. Seyss-Inquart. Boehnau sees a special difficulty in the fact that the administrative services of the Wehrmacht will be recalled in the very near future. The Sub-Prefects [Landraete] have relied mainly on these units. After they have gone away they will be very short of labor.

In the Ostrow district there are also special food difficulties to be noted, since the district on whose agricultural authorities Ostrow's supplies depended was said to have come under the Russians. There was some talk that the Russians here would withdraw 5 kilometers.

A particular nuisance also was the badly guarded frontier, due to the shortage of police, which made possible a continuous uncontrolled running backwards and forwards, and a considerable removal of property, particularly by the Jews.

After Ostrow the refugee camp at Malkinia was visited in which there were no refugees at the time. It was reported that up to now about 10,000 German nationals had crossed over the frontier there. Frequently displaced Germans from Posen and West Prussia were concerned. Near the frontier we saw the countless Jews and similar rabble that were on the 200 meters or so of no man's land between the German and the Russian frontier posts waiting to cross over into Russian Territory in the darkness. Frequently it is said the Russians themselves bring such refugees back again after a few days. Recently 150 Tax collectors have arrived who will be installed in this section. Above all it is essential that when the administrative services of the Wehrmacht leave, replacements should be put in in good time.

The police officer reported that when settling the frontier zone of interests the Russian officers made an excellent impression and were distinctly better informed than the Germans were.

After lunch at the Landrat von Boehnau's in Ostrow we set out at 1400 hours on the drive via Siedlce, Sokolow to Biala-Podlaska, where we spent the night at the operations command of the Security Service there.

On 19.11. At 7.30 A. M. departure in the direction of Brest-Litovsk to the Bug frontier. We drove past the airdrome of Terespol where we could see numbers of airplanes destroyed by German bombers. The land there is partly marshy, the villages produce a distinctly Russian impression. In the afternoon we drove on from Biala via Radzyn, Lubartow to Lublin. On the way, lunch at Major General von Courbiere's the commander of the 213th Division.

1900 hours, arrival in Lublin, received by the Governor, SS. Brigadefuehrer Schmidt, at the town council building where the Sub-Prefects, the divisional

leaders and the police leaders attached to the District chief were gathered together.

SS. Brigadefuehrer Schmidt welcomed the Reich Minister "in the easternmost corner of the territory of German interests." Dr. Seyss-Inquart, after having had the collaborators of the Governor's introduced, conveyed the good wishes of the Governor General whose forthcoming visit to Lublin he announced. He then expounded the Principles in accordance with which the administration in the "Government" must be conducted. This administration would require above all the ability to pull through on its own strength without being a burden to the Reich. This could be attained especially by the firm comradeship of the men stationed there. The resources and inhabitants of this country would have to be made of service to the Reich, and only within these Limits could they prosper. Independent political thought should no longer be allowed to develop. The Vistula area might perhaps be still more important to German destiny than the Rhine. The Minister then gave us a guiding theme to the District Leaders: We will further everything which is of service to the Reich and will put an end to everything which may harm the Reich. Dr. Seyss-Inquart then added, that the General Governor wished that those men who were fulfilling a task for the Reich here should receive a material post in keeping with their responsibility and achievements.

Reichsminister Seyss-Inquart then touched on the question of Ukrainians, who could be allowed a certain cultural life of their own, which must never, however, be allowed to lead to a national movement. In conclusion Dr. Seyss-Inquart invited the District Leaders to bring their troubles and questions at any time to the Governor, so that he can find the best solution in cooperation with them.

District Chef Schmidt replied that these political directives should also be worked out in the course of the present conference. Personality was more necessary for the tasks before them than the knowledge required for a usual administration. The area embracing the district of Lublin required special consideration, for on account of the resettlement it was a collecting point for Germans, who were no longer allowed to live in Germany, and for other destructive elements. Here iron firmness must be brought to bear. It would be a good idea if the General Governor were personally to gain an insight into the particular conditions existing in this region. Here also, a guard of

collaborators was being trained, who would carry out the most valuable work in German Eastern Politics.

We had dinner with SS. Sturmbannfuehrer Hasselberger where we also spent the night (until the arrival of Brigadefuehrer Globocznik, police Assistant to the District Chief).

Hasselberger is of the opinion, in answering to questions by Minister Dr. Seyss-Inquart, that the (racial German) individual protection is an encumbrance. He did not deem it possible to organize the Ukrainians as an auxiliary Police Force.

Nov. 20, 1939. 08.30 Sight-seeing tour of Lublin, University, Cracow Gate and the part of the city, built by the Germans—Old Lublin—as well as the prison. Then a conference with the District Chief. At first questions were discussed concerning the division into districts and the supplying with personnel of the offices of the District Leaders. Here also the lack of staff again stood first. Especially after the withdrawal of the construction battalion the Sub-Prefects be left without police and without any office help. Here also Dr. Seyss-Inquart raised the question, as to what tasks should belong to the sphere of the German administration. On the question of the setting up of the councils of the District leaders, many District Leaders thought it necessary, to have a legal representative. Furthermore clerical staff and interpreters would be required. In the administrative services of the Wehrmacht were some people who, in case of need, were willing to remain on there as employees. Also the Wehrmacht might be willing to transfer certain people, for instance as trustees for agricultural estates, and so on. Also individual teachers badly needed for schools could be obtained in this way. After the departure of the administrative troops, there might also be a lack of motor vehicles, as they had very often brought their own vehicles with them.

Governor Schmidt had learned that the petrol of the Government was to be included in the Reich Syndicate. Petrol here costs 8 Pfg. more than in the Reich. Therefore 8 Pfg. more will have to be paid to the German Petrol accounts for which the Government will be charged. Then questions were discussed concerning the general construction of the office of the District Chief in Lublin. As to taxes, it was to be confirmed, that the revenue offices had re-employed 80% of the Polish revenue officials, many of whom were

to be in sole charge of the tax administration out in the country. Now inspectors are to be appointed for the supervision of these posts. The District Chief should handle the supervision of the revenue offices.

The office work of the District Chief is much delayed by the lack of expert workers. Partly also there was no control over the work of the people who had already arrived. Thus Mr. Ziere, the veterinary surgeon, had gone to Cracow, and said he had to look after the wolhynian cattle there.

Reich Minister Seyss-Inquart suggested that Junkers from Ordensburg should be asked for as assistants for the administration of the General Government. This would be excellent training for them. Besides higher officials, the District Chief is still in need of a magistrate, four inspectors, and a larger number of clerical staff and typewriters.

Of petrol the office of the District Chief would need 10,000 litres per month, and each Sub-Prefect's Office would need 2,000 litres. But one of the greatest nuisances was the poor communications. One hardly could get any connection with Cracow by telephone, also the mail service was very poor. Till now no replies have been received to letters or orders sent to Cracow. The installation of a teleprinter was urgently needed. But above all, the telephone or police communication from Lublin to the frontier district should function.

With regard to the necessary force of the police, that should be at the disposal of the Sub-Prefects. Governor Schmidt said, that 25 for each District Chief did not seem sufficient.

In the afternoon, a sight-seeing tour was made to Wlodawa, Cycow. Cycow is a German village. About 300,000 German nationals, who made a very poor impression were gathered in the streets, and they sang national songs conducted by the German Travelling Teacher [Wanderlehrer] Lindner who is leader of the German nationals there. Reich Minister Dr. Seyss-Inquart made a speech, on which he pointed out that the fidelity of these Germans to their nationality now found its justification and reward through strength of Adolf Hitler. This district with its very marshy character could, according to District Governor Schmidt's deliberations, serve as a reservation for the Jews, a measure which might possibly lead to heavy mortality among the Jews.

35,000 German nationals are said to be living in the Lublin government district. As to the problem which concerns schools, the Landrat Kalmus in Oyew said he held the view that no salaries should be paid to the Polish teachers at all, as the Poles in his district represented a minority in comparison with the Jews.

In the evening dinner with the Commissar of the city, Mr. Hagerer, in Cholm, where we spent the night.

21.11.1939. 8 A.M. Sight-seeing tour of the city and visit to the camp for German refugees. For this purpose a big, newly-built house belonging to the Polish railways was reserved, which however is not ready yet to be occupied, as the heating especially cannot be brought into working order on account of the lack of parts, which cannot be procured in Lublin.

Then followed a drive to the famous cathedral of Cholm that used to have a golden dome. After that, we drove off to Hrubieszow, where we found Ukrainian settlements, which are fine compared to the poor Polish huts. The soil also is better. Here also we visited the frontier of the Bug at Uszilug. The Jews are said to have removed much property here, also owing to the poor guarding of the frontier. In this vicinity too is the best soil for wheat in Poland. From this section, some time ago 4,000 refugees were taken over from the Russian side. But still thousands are beyond on the border, and many of them are dying, as they cannot be housed or fed. Dr. Seyss-Inquart pointed out the refugees could be allowed to enter if they, themselves, took measures to guarantee that only German nationals entered the district of the Government.

According to the report of the District Chief the Ukrainians attempted to form a self-administration against or without the German administration. Further the District Chief criticized the Reich-Credit-Bank for not granting a credit, which is necessary for the starting of a sugar refinery, to make use of the harvested sugar beets. Then we continued our journey via Zamost, Tomaszow to the border near Belzek. Then there is a refugee camp with Jews. The staff-Surgeon there fears that an epidemic may break out in the camp, which then would endanger the whole neighborhood.

These Jewish refugees who have crossed the frontier secretly, are often sent back again by the Russians days after.

Also there is much concern in this district at the mustering of horses by the Wehrmacht. This mustering would affect the cultivation of the fields.

Governor Schmidt also reported that, in his district, collaboration with the Wehrmacht was poor. Lieutenant General Buechs, Lublin, was giving the "Government"—administration and police all possible trouble.

In the evening, supper, and night spent at Sturmbannfuehrer Hasselberger's house.

22.11.1939.

Departure for Radom

In Radom, reception by District Chief Dr. Lasch. The latter reported, that on his arrival in Radom, he had found a very unpleasant situation there. His predecessor, Regierungspraesident Ruediger, had *put himself into* strongly opposed the Wehrmacht, and Dr. Lasch had first to bring about a better understanding. Dr. Lasch introduced SS-Oberfuehrer Katzmann to the Reichsminister as Senior SS and Police Chief attached to the District Chief of Radom. Brigadefuehrer Globocznik who had been nominated to that position in Lublin and was just travelling through, also reported to Dr. Seyss-Inquart.

Dr. Seyss-Inquart and Dr. Lasch now discussed the plan to establish a messenger center in Radom in order to remedy the bad communication system between Cracow and Lublin and between Cracow and Warsaw. According to this plan, mail for all the three northern districts of Cracow should be taken in 5 hours to Radom by train and from there, according to the weather, to the respective places of destination either by NSKK [Nationalsozialistisches Kraftfahrer (Motorists) Korps] messenger or otherwise. The same procedure should be used for the return journey. The agency should be called, perhaps: "Messenger agency of the Governor General in Radom".

Next, Dr. Lasch gave a report on the work which had already been done and on that which should still have to be done in the work of reconstruction and improvement. Here also, lack of personnel and difficulties in transportation were particularly prominent. Furthermore, in the district of Radom, the Polish Squadron was said to be still roving about. The people in question were said to be men who, during the day, attend to their occupations in

civilian clothes and, at night, commit excesses in uniform. An encounter with the Wehrmacht was said to have had no success. With the help of a map given the Reichsminister, Dr. Lasch then explained the consolidation of the existing 16 districts into 10. Dr. Lasch will not comply with Governor Dr. Fischer's expressed wishes to hand over a few communities on the border of the northern district, as those were the most fertile ones of the district which, as a whole, was a shortage area.

Regarding the economic question, it was reported that the gun and iron works in Stachachowitsche had already been taken over by the "Hermann-Goering-Werke". Provision should also be made for the restarting of the whole economy, not only the war economy. In order to do that, it was particularly necessary that unemployment pay should no longer be at the rate of 7 Zloty per day or wages at the rate of 3 Zloty. Such a margin offered insufficient incentive to earn one's livelihood through work.

The Governor urgently needed experts and other personnel. A medical officer was especially urgently needed. There was no German physician in the entire district. Individual cases of epidemics such as typhus and dysentery had occurred.

Furthermore, a man for the press and propaganda was necessary. There were eight Polish newspapers in the district who were being attended to by the District Leaders, but with such a procedure a thorough check was not possible. The District Chief then stated his intention to submit to Cracow in the near future a detailed list of the personnel required.

After that, the Governor reported on the set-up of his office which had several Departments:

1. the Department of Internal Affairs: Supervision over the District Leaders, Supreme Supervision over the Polish Administration, Justice, School Affairs, Veterinary Affairs, Medical Affairs, and General Matters.
2. Department of Forestry and Game Preservation: Preservation of Forests and Game, Control of the Entire Timber Industry which was here of particular importance.
3. Department of Economic Affairs: Industry, Commerce, Handicrafts, Price Control, industrial Market Regulations, Collaboration with the Agencies of

the Four-Year-Plan and the War Economy Inspection [Wehrwirtschaftsinspektion].

4. Traffic Department: Highway System, Railroad System, Postal System, Waterways (shall the river Vistula be controlled), Control of the Bilięcza, the boundary between the districts of Radom and Warsaw, which could have a favorable result upon agricultural productiveness.

5. Department of Food and Agriculture: The district is an agricultural shortage area. Cultivation must therefore be intensified. For this purpose a good agricultural organization is necessary. The avoidance of difficulties in the food supply this winter is mainly a question of transport. In some areas there is still corn but it must be threshed. There is no coal for the working of the threshing machines. The salt mine at Wiliczka delivers salt only in compensation against natural products.

6. Finance Department: Revenue and expenditure. Concerning “justice” the governor remarked that too many are being condemned to gaol and penal servitude, which hereby burdens the district with costs. The criminals found in the convict prisons were shot. The shootings, however, were no longer carried out in public but in isolated wooded regions.

The majority of the intelligentsia have been imprisoned, one must be careful, however, because the cooperation of these people cannot be dispensed with, especially the doctors, as they are needed for the health of the people and as they also must treat the Germans in many instances. He asks that the governor general issue an order that caution and reserve be exercised when arresting doctors. Concerning the Polish jurisdiction the District Chief suggested an “organisation” in three legal administrative branches:

1. Baronial court [Burggericht]
2. District court [Bezirksgericht]
3. Court of appeals [Kassationsgericht]

The question was then discussed as to in whose name sentences were to be pronounced and if the Polish authorities were to have some kind of official seal.

In regard to the communal administration the appointment of Polish governors (Staros) to administer parts of the district as deputies of the

District Chief with headquarters at his office was discussed. There are Polish majors in Radom and Czenstochau, and they would also be appointed to the towns subordinate to the districts. Reichsminister Dr. Seyss-Inquart pointed out that delegates of the District Chief must be associated with them. Dr. Lasch added, furthermore, that he intended to make the communities pay something towards the repair of roads and other work, executed by means of compulsory labour service or of forced labour, as expense was caused to districts by such work. The wages also for free work must be established uniformly for the whole General Government, as otherwise undesirable movement of workers seeking the highest salaries would result.

At this point the question of the monopoly of important exchange goods for the acquiring of agricultural products was discussed. Dr. Lasch then declared that it was not possible to transport all scrap metal to the Reich. In the Government there was also a need of scrap metal for the existing foundries.

Dr. Lasch stated furthermore that he had received a petition to send 5,000 specialists to the Reich.

Regarding the Polish police the opinion was expressed that arming in a modest way could be carried out and was necessary. The foresters needed at least a fowling piece to defend themselves against wood thieves and peasants.

In the case of the founding of an "individual protection" (Selbstschutz) unit of racial Germans a careful selection and military training of those selected must take place. According to information given by Dr. Lasch the Ukrainians are said to be specially qualified to be policemen.

Dr. Lasch brought up the question as to what should be done with the destroyed villages.

The tax system could consist mainly of indirect taxes and contributions, which were to be borne by the communities. A contribution of 6 Million Zloty must be borne by the Jews in the district of Radom. In the district of Radom a cooperative buying and selling society will be founded in order to eliminate the entire Jewish Commission business.

Reichsminister Dr. Seyss-Inquart then spoke of the regulation provided, according to which the government should not receive any more motor fuel from the Reich, but must be dependent on the production of Jaslo and Kresno the utilization of which, however, was to be determined in accordance with the principles of the Reich. In this connection the formation of a trading organization was also discussed.

Dr. Lasch and Brigade-Leader Schmidt then spoke of the intention of the Wehrmacht to confiscate 54,000 horses. Two studs in the district he declared district studs. Dr. Seyss-Inquart pointed out that the possessions of the Polish government were confiscated by decree and therefore are out of the reach of the Wehrmacht. Finally Dr. Seyss-Inquart spoke of the plan to publish a general administration decree for the General Government after a period of development and elucidation.

Cracow, 22nd November 1939.

TRANSLATION OF DOCUMENT 2280-PS

The Reich Commissioner for the Ostland [Baltic countries and White Russia]

Dept. III Labor policy and social Administration

Riga, 3 May 1943

Labor Group Labor Mobilization 2 F 1/4 b. 1 (O) Kue Ty

To the Commissioner General in Riga

[stamp] Commissioner General Dept. Social Administration

8 May 1943 in Riga 2

Re: Recruiting of Manpower in the Baltic Countries for the Reich territories; here: New quotas agreed upon with GBA Gauleiter Sauckel on 21 April 1943.

In reference to the basic statements of the Plenipotentiary General for manpower, Gauleiter Sauckel, on the occasion of his visit to Riga on 21 April 1943, and in view of the critical situation and in disregard of all contrary considerations, it was decided that a total of 183,000 workers have to be supplied from the Ostland for the Reich territory. This task must

absolutely be accomplished within the next four months and at the latest must be completed by the end of August. The following sub-quotas have been established:

White Ruthenia: 30,000 youthful workers and 100,000 workers including families.

Of the families only members capable of productive work will be counted. All persons 10 years old and up are considered as productive manpower.

Lithuania: 15,000 female workers.

15,000 male workers.

10,000 productive workers from about 2 to 3,000 families

Latvia: 10,000 female workers, no male workers

Estonia: 3,000 female workers, no male workers

For the benefit of volunteers [Hilfswilligen] no male manpower will be recruited in Latvia and Estonia. For Estonia also in favor of the Legion.

All permissible means shall be used to obtain the manpower from *White Ruthenia*. Do not hesitate to apply unusual measures.

In Lithuania the 15,000 men shall be taken from the current recruitment of the year groups 19 to 24. The placement of the manpower for the Reich, excluding volunteers should be one half for the Baltic countries' own requirements and one half for Reich requirements. In case the number of 15,000 workers cannot be thus obtained, the year groups 12 to 18 shall be recruited until this number has been reached.

The 15,000 female workers shall be obtained from the year groups of 20 to 25. For this purpose the release of 10% of the women from factories suitable for this purpose, even outside of the age limits set, has been contemplated. The recruitment of females of the year groups 20 to 25 will follow the examination of males of the year groups 19 to 24.

Furthermore, the recruitment of about 2 to 3,000 families from Lithuania is contemplated, which should contain a total of 10,000 productive workers.

In consideration of local requirements and the already accomplished recruiting for the Legion and volunteers and of those volunteers still to be

provided by means of re-examining the year groups 19 to 24, the recruitment of male manpower in Latvia has been dispensed with.

The 10,000 female workers will be recruited from the year groups 20 to 25. Here also a release of 10% from factories is provided for, should the age limits fail to provide sufficient workers.

Estonia will provide 3,000 women, also to be recruited from the year groups 20 to 25, or by release from factories. Otherwise the same applies as for Latvia.

To these workers I have promised the following special social advantages:

1. Limited engagement, generally 2 years' duration.
2. Granting of furloughs and return of families according to the general regulations for foreigners in the Reich.
3. Appointment of special trustees of the same nationality for the female workers.
4. Granting of special diplomas for services rendered in war work in the Reich.

In order to accomplish these measures I have sent a decree, of which a copy is enclosed, to the President of the employment offices. Furthermore, I have asked the Labor Mobilization Office of the German Labor Front, in a letter of which a copy is also enclosed, to arrange for the appointment of special trustees of the same nationality.

Please take notice of this, inform my special purpose staffs (Einsatzstaebe) accordingly, and take care of the immediate placing of the manpower.

On this occasion I shall like to point out that in the past year the enclosed leaflet was used in hiring Lithuanian manpower. Since this pamphlet contains inaccuracies, please see to it that it is no longer used for recruiting purposes. In view of the explanations in my enclosed decree to the Presidents of provincial labor offices, I do not believe it necessary to provide a special leaflet for Plant-Managers. I refer to your report of 25 March 1943 and to my letter of 14 April 1943—5783. 28/148—about which I should like to have your opinion soon. By reason of a suggestion of the German Labor Front, I should furthermore like to know whether you consider it necessary to conclude individual work—contracts for the

workers from the districts (Generalbezirke) of Lithuania, Latvia, and Estonia.

Copy sent to take notice with reference to the oral consultations in Riga.

Signed: Sauckel
[seal] Certified: Mueller
Clerk

Certified:

(sig:) Reinkmann

19 June 1943

PARTIAL TRANSLATION OF DOCUMENT 2283-PS

VOELKISCHER BEOBACHTER

The Munich (Southern German) Edition Nr. 258, 14 September 1936, page 11.

**THE 5TH DAY OF THE PARTY CONGRESS ADOLF HITLER HAS
CARRIED OUT THE TRUE SOCIALISM REICH ORGANIZATION
LEADER DR. LEY RENDERS AN ACCOUNT OF THE
ACHIEVEMENTS OF THE GERMAN LABOR FRONT**

Nurnberg, 13 September.

Again 20,000 stirred people filled the big hall in the Luitpold Park on Saturday for the penultimate session of the Party Congress.

At this session, too, the Fuehrer was present from the beginning. Again enthusiastic shouts of exultation lasting for minutes roared around the Fuehrer when he strode through the long-stretched hall with his deputy, his constant retinue and several Reich Leaders and District Leaders.

On this evening Congress participants listened to grandly-conceived accounts by Reich Organization Leader Dr. Ley about the accomplishments of the German Labor Front, by Reich Leader Hierl about the Labor Service, and by Plenary Inspector for German Highways, Dr. Todt, about progress in building the highways of Adolf Hitler.

After the parade of the Blood Banner and of the Party Standards the solemn prelude was the overture to “Oberon”, played by the Reich Symphony Orchestra. The Congress was opened by the Fuehrer’s Deputy, Rudolf Hess, who immediately introduced Reich Agency Leader [Reichsamtsleiter] Dressler-Andress for reading of the account of Reich Organization Leader Dr. Ley.

My Fuehrer!

When you, my Fuehrer, ordered me in mid-April 1933 to take over the trade unions I could not understand why you gave this order to me, since I could not see any connection between my task as Organizational Leader of the Party and my new task. Very soon, however, your decision, my Fuehrer, became clear to me and I recognized that the organizational measures of the Party could only come to full fruition when supplemented by the organization of the people, that is to say by the mobilization of the energies of the people and by their concentration and alignment. If the *Party* represents the *concentration of the political leaders* of the people—as you, my Fuehrer, have taught us again and again—then the *people* in the *retinue* [Gefolgschaft] must be organized and trained according to the same principles. *Leader and retinue, elite and community at large* [Fuehrer und Gefolgschaft, Orden und Gemeinde]—those words the clear directives for my work. These were the consequences:

1. *My tasks as Organizational Leader of the Party and as Leader of the German Labor Front were a completely homogeneous task, in other words, in everything I did I acted as Reich Organization Leader of the NSDAP.*
2. *The German Labor Front was an institution of the Party and was led by it.*
3. *The German Labor Front had to be organized regionally and professionally according to the same principles as the Party.*

That is why trade union and employer associations had to be smashed unrelentingly, and the *basis of construction* was formed, as in the Party, by the *cell* and the *local section*.

* * *

The idea of the *Factory Troops* [Werkschar] is making good progress in the plants, and I am able to report to you, my Fuehrer, that security and peace in

the factories has been guaranteed, not only in normal times, but that also in times of the most serious crises, disturbances, such as the munition strikes of the traitors Ebert and his confederates, are out of the question. *National Socialism has conquered the factories. Factory troops [Die Werkschar] are the Nationalist Socialist shock troops within the factory, and their motto is:*

THE FUEHRER IS ALWAYS RIGHT!

TRANSLATION OF DOCUMENT 2284-PS

WRITINGS OF THE HOCHSCHULE FOR POLITICS

Edited by Paul Meier-Benneckenstein

II. The Organizational structure of the Third Reich

Brochure 33

The SS

History, Mission, and Organization of the Schutzstaffeln of the NSDAP

Compiled on the Commission of the Reichsfuehrer-SS by SS-
Standartenfuehrer Gunter d'Alquen

1939

Junker and Duennhaupt Press, Berlin

1. History and Structure of the SS

Path of Proof

The great National Socialist Movement, as a party, did not step into German or even world history as a complete framework at the time of its formal founding.

Originating from the rebellion against the downfall, from a fervent belief in the German people, which was born in the trenches of the battle-fields in the whole world, Adolf Hitler began to conquer the new Reich, both in thought and through deeds, with a few comrades, upon the simple, strong fundamentals of his firm belief and to form it anew, stone upon stone.

Decisive actions, like the outbreak of 9 November 1923 for which we today, in all its great tragedy and in all its pain, nevertheless have to thank a forcible fate, impressed the inner and external features into the power and into the structure of the Third Reich. Parts and powers of this living marching growing movement, components and men in it, acquired in proof faith, and reliability which was daily the positions, missions and powers which then determined in the powerful structural branch their course toward victory over external power.

Therefore, he who wants to understand the growing mission and living essence of the SS must first glance over its history and pursue therein how it quite consequentially grew out of the smallest beginnings through tough, clear work into an ever-enlarging mission. Therefore the growth of the SS, as a firmly rooted member of the great Movement is in many respects symbolic of the development of National Socialism, as well as of a spiritual position and of the consequent practical application of this unmistakably clear position in the life of the folk and of its state.

Not the chance incidents of the fighting years and also not the tactical eventualities rounded out the form and brought about the individual developments of this Black Corps, but from the beginning on, the National Socialist of this organization, man upon man, was quite consciously raised again and again above every day affairs which are often petty and full of compromise; thereby raised above his own weaknesses into the consciousness which is always new and living, that he serves a powerful mission which is quite unique in the lengthy annals of German history.

The SS originated in the quite early time of the National Socialist Movement in the year 1923. Then later, as the "Stosstrupp Hitler [Shock Troop Hitler]" on the 8th of November 1923 it was forbidden and dissolved automatically along with the entire movement.

When the Party was again set up in the year 1925, the SA, as the protective organization of the Movement, still remained forbidden. Furthermore, besides these limiting coercive measures, there still existed a prohibition against speeches as well as assemblies for the Fuehrer in Prussia and also in Bavaria. The National Socialist assemblies were at that time only allowed in Saxony and Thuringia which were at that time fully Red. And now in order at least here to hold the necessary assemblies with success, in order to gain a foothold, it was necessary to protect them under all circumstances from explosive missiles and premature disbandment.

The Protective Echelons

[Die Schutzstaffeln]

For this reason, the Fuehrer ordered in January 1925 that a small mobile organization be constructed for the protection of these meetings: The Protective Echelons. They were in the best sense of the word at this time, therefore, echelons, which means, quite small formations, most of them only in strength of one leader and ten men, which had been set up in single places which at that time already were important for the first forward march of the Movement. Even such a large city as Berlin had only one "Schutzstaffel" of two leaders and twenty men in those days. With these Schutzstaffeln then in the years 1925 and 1926, the Movement had held the assemblies of the Fuehrer and also of other champions of the Party in Saxony and Thuringia, and always held fast against each oppositional attempt in every case.

The year 1926 brought the renewed permission to organize the SA and for this reason, the Schutzstaffeln stepped more into the background in the following years.

This year 1926, however, is of great significance for the SS which at that time consisted of about 200 men in its entire strength, when namely Adolf Hitler gave the most sacred symbol of the Movement, the Blood Banner [Blutfahne] of 9 November 1923 into faithful hands at the Party Congress [Parteitag] in Weimar, the second Reichsparteitag of the NSDAP.

On the 6th of January 1929, Adolf Hitler appointed his tested comrade of long standing, Heinrich Himmler, as Reichsfuehrer-SS. Heinrich Himmler assumed charge therewith, of the entire Schutzstaffeln, totaling at the time 280 men, with the express and particular commission of the Fuehrer to form of this organization an elite troop of the Party, a troop dependable in every circumstance.

The New Division

With this day, the real history of the SS begins as it stands before us today in all its deeper essential features, firmly anchored into the National Socialistic Movement. For the SS and its Reichsfuehrer, Heinrich Himmler, its first SS man, have both become inseparable in the course of these battle-filled years. When the command of the Fuehrer had been given for the

organization on a greater scale of this component of the movement, it had to be clear from the beginning that this mission could only then be solved in the real significance of its occasion if, in pursuit of the last essentials, the directives given by Adolf Hitler to the movement were grasped and carried out.

The Selection

We National Socialists are firmly convinced of the ideology that in the final over-all objective only good blood, as seen in the long run, produces the best accomplishments. Sustained by this conviction, the Reichsfuehrer SS went at that time, beginning with this basic criterion of the National Socialist, into the execution of the command of the Fuehrer of the 6th of January 1929.

One of the last soldiers of the old army and, at the same time, also one of the oldest co-champions of the Fuehrer began, as a tough and energetic organizer, to collect a troop, a troop of the best, not only the best physically, but also most dependable, most faithful, in the last analysis the most characteristically worthwhile men from all parts of the movement, in order in the first place to satisfy the fundamental demand made of this formation, namely: the greatest good of the movement, to protect the Fuehrer himself.

It remains as one of the greatest and decisive services of the Reichsfuehrer SS that he inserted the theoretical concepts of the National Socialist ideology, courageously and consequentially especially in this field, into this, his own organizational mission of the construction of the SS and then clearly carried them out even at a time when the racial question was a negative concept deriving from a self-evident anti-semitism.

The Marriage Law [Heiratsbefehl]

It would naturally be meaningless and also, after a short time be worthless, to undertake the experiment to assemble a male racial elite and while so doing to by-pass present or, indeed, the future families of the men. Corresponding to this quite simple and clear perception, for which, moreover, German history affords sufficient menacing lessons in all of its periods, the SS has given itself its own appropriate fundamental laws. As the first and most important of these basic requirements, the Reichsfuehrer-

SS in the year 1931 gave to the Schutzstaffeln the law which prescribes an engagement and marriage certificate for SS men.

This order has the following wording:

Munich, 31 December 1931

“Reichsfuehrer-SS

SS Command-A-No. 65

1. The SS is a band of definitely Nordic German men chosen according to certain viewpoints.
2. Corresponding to the National Socialist ideology and to the perception that the future of our folk rests in the selectiveness and preservation of the race and of the healthy inheritance of good blood, I install with effectiveness from the 1st of January 1932 the ‘Marriage Certificate’ for all unmarried members of the SS.
3. The aim striven for is the hereditarily healthy clan of a definitely Nordic German sort.
4. The marriage certificate will be distributed or denied solely and alone from a racial and hereditarily healthy viewpoint.
5. Every SS man who has the object of getting married has to procure for this purpose the marriage certificate of the Reichsfuehrer-SS.
6. SS members who though denied marriage certificates marry in spite of it, will be stricken from the SS; they will be given the choice of withdrawing.
7. The working out of the details of marriage petitions is the task of the ‘Race Office’ of the SS.
8. The Race Office of the SS directs the ‘Clan Book of the SS’ in which the families of SS members will be entered after distribution of the marriage certificate or acquiescence to the petition to enter into marriage.
9. The Reichsfuehrer-SS, the manager of the Race Office, and the specialists (Referenten) of this office are duty bound on their word of honor to secrecy.
10. It is clear to the SS that with this command it has taken a step of great significance. Derision, scorn, and failure to understand do not move us; the

future belongs to us!

The Reichsfuehrer-SS
H. Himmler”

This incisive command and the self-evidence of its execution demonstrate, even in the difficult years before the first victory, the self-confidence of this voluntary partnership for a determination which even at the time in which it was ordered must mean an eternal, inconceivable, encroachment on the so-called personal freedom of the individual.

The Instrument of the Fuehrer

Inside and outside of the movement, in these years, the SS had to intervene, repeatedly called upon for the protection of the National Socialist fundamental principles. From disunity over the attempt at a schism to the betrayal of the Fuehrer himself, under immeasurable difficulties and grave human sacrifices, the SS fulfilled its various missions as the instrument for unconditional preparedness for intervention for the Fuehrer. It earned for itself at this time the slogan of Adolf Hitler: “SS-man, your honor is faithfulness”.

In the whole broad Reich, in village and city, the SS, in good and self-evident comradeship with the SA in the fighting years, broke the Red and Black Terror. Long and stirring is the list of all those brave soldiers of the Black Corps who gave their lives as a pledge of their faithfulness.

They did not die in open battle, eye to eye with the opponent; they fell singly and deserted, pursued, hunted; harrassed, beaten, trampled to death, in dark alleys and courtyards, shot in the back, murdered by hostile superior forces; they gave their mortal life, and their names shine forth today, from banners and standards, their earthly immortality as a symbol of a great example which they fulfilled, completely and purely, everywhere, including those unforgettable heroes who fought against the choking gallows of an inhuman system, until even Austria returned home into the greater Reich through their sacrifice.

Responsibility for the Future

But not only the revolutionary fighting and sacrificial spirit of this National Socialist formation, its daily application and by this means the best and clear cut selectiveness, determined its existence and its ever clearer course.

Far and beyond this, it was the penetrating feeling of responsibility of its leadership for a distant future which decisively determined its course.

Here, in that difficult moment, those solutions were found for all necessary questions which, indeed in the first place must be justified for the day, far and above that, however, without compromise, bore complete responsibility at the same time in itself for the way of future development.

Apart from the green table, not for the sake of momentary results, distinct from all dogma, a great eternal view of German history and a chaste consciousness of the inheritance of ancestry and the genesis of the future at the decisive point of the fighting period, and of the selectiveness of this partnership, have the peculiar and deep meaning for all missions and their execution.

When the day of the grasping of power had finally come, there were 52,000 SS men who in this spirit, bore the revolution in the van, marched into the new State which they began to help form, everywhere: in their stations and positions, in profession and in service, and in all their essential tasks.

The firm, devout ties to this great blood stream of the nation [Volk], the perception of the fulfillment of the deepest German longing for service to the nation, this welding to the firm internal unity of the exclusiveness which the SS was able to achieve, in the course of hard and full years, was the presupposition for the succeeding further greater task of the Black Corps. Only the absolute understanding of the emptiness of all personnel objectives and the final recognition of this valuelessness of smaller interests gave this formation the right to be the protective corps in State and Party as the strong arm of the Fuehrer for the internal security of the Reich in all good and evil times.

Protective Corps of Party and State

The prerequisites for this mighty mission were severe discipline and the highest sort of self-confidence as the result of continuous selection within its own ranks, but were, as well, a fanatical and convinced consciousness of duty to coming generations. Here, the hardiness of the best soldierly traditions met a new and harmonious formation with the keenness of a crystal-clear political consciousness as well as the pure, devout heart of a revolutionary of the living German Movement.

The missions which were given to the SS in the present day National Socialist State can be understood only in the knowledge of this evolution.

The protective organization of the Movement became the internal protective organization of the State after the seizure of power and after the Schutzstaffel, by renewed proof of its essentiality and the testing of its dependability on the 20th of July 1934, was elevated to be an independent component of the Party directly subordinate to the Fuehrer.

Out of the above evolution, all the latter events could fashion themselves in apparent self-evidence along these principles. With the acquisition of power within the Reich, the protective organization of the Party became, feature by feature, as a consequence of the broadening of its mission, the protective organization of the National Socialist State. In this capacity, it took over step by step the remaining usable and valuable parts of the old police. Out of the 16 state police forces, a large and strong Reich police came into existence; and, that which even the old National Socialists themselves had hardly thought to expect: out of the jailer of the rubber cudgel regime there came in existence in the new police, an active friend of the people; and even more than that, in this slow and qualitative evolution the police itself has become, in the completion of National Socialism and in the leadership of National Socialism, through this Black Corps, a part of the proud formations of the Movement.

Reichsfuehrer-SS and Chief of the German Police

The Reichsfuehrer-SS became Chief of the German Police and united its mission, as elastic as operative, with its formations into a comprehensive line of defense for fighting political as well as criminal enemies of the Nation; a line of defense in which State and Party, civil servant and political soldier labor in a complete and, therefore, for the first time in a positive manner hand in hand.

For the first time the newly attained meaning of the Police, as representative, protector, and helper of the community of the people, and thereby as real soldiers of that community of the people and of the National Socialist ideology, impressed the new features of this clear, sober countenance. For out of this original police, employed with a negative aim, an active friend and helper of the people has come into being, a rejuvenated people's troop, whose successors are provided from the SS, so that the civil

servant, both within and outside of his service, is and remains an SS-man, a champion and protector of the new State, of the community of the people and of the movement.

The Troops in Barracks

The conceivable danger, that an organization destined only for internal employment sees itself hampered in the fulfilling of the large, all-embracing missions in difficult times which demand the employment of the whole nation toward the outside. The Fuehrer met this by the creation of an active troop of the SS lodged in barracks and chosen from the SS members of long military service and politically of the best training.

Early in the year 1933 the Body Guard Regiment [Leibstandarte] of the SS, "Adolf Hitler", arose and in the further enlargement of this SS Military Service Troop [SS-Verfuegungstruppe] there were added the active SS regiments: SS 1, "Deutschland", in Munich; SS 2, "Germania", in Hamburg; Aroken, Radolfszell. As well as these, there were the Technical Storm Unit [Sturmabanne], the SS Pioneer Storm Unit in Dresden and the SS Signal Corps Unit [Nachrichtensturmbanne] in Unna. The SS Junker schools in Toelz and Braunschweig provided for the training of those to become leaders of these SS Military Service Troops.

In March 1938, after the return of Austria home into the Reich, the Fuehrer gave the order to establish a fourth active SS regiment of SS General Service Troops, SS 3, "The Fuehrer", with its stations in Vienna, Graz, and Klagenfurt. All these troops have received the finest reward for their labor: they are allowed to cooperate prominently in the creation and protection of the Greater Germany.

This chosen SS-Troop, trained during four years service under the severest conditions, offers, equally, the best rising generation for future leaders and subordinate leaders of the General SS, the Police, and the Security Service.

II. Organization

In addition to the General SS, so to speak the mother of all the other SS formations, there are the SS-militarized forces, the SS-Death Head regiments, and further, the Security Service and the Race and Settlement organizations.

The supreme headquarters of the Reichsfuehrer SS for the General SS is the SS Main Office in Berlin.

The supreme headquarters for the Security Service is the SS-Main Security Office in Berlin.

The supreme headquarters for the Race and Settlement organization is the Main Race and Settlement agency SS in Berlin.

Aside from these main offices there are the following offices which likewise are directly under the Reichsfuehrer SS and which have the same characteristics of a main office:

- Personal Staff of the Reichsfuehrer SS.

- Administration Chief of the SS.

- Personnel Chief of the SS (these three in Berlin).

- Head of the SS courts, Munich.

- Chief of the Constabulary, SS-Lt. Gen. of the police Daluge, with the rank of a Chief of a Main Office [Hauptamtschef].

The SS Main Office

The SS Main Office consists of the following 13 offices which have to fulfill the following missions:

The central chancellery [ZK] is the headquarters of the Chief of the SS Main Office. It provides for the cooperation among all of its subordinate offices and examines the whole direction of management within the SS Main Office.

The management office [Fuehrungsamt] (I) deals with all affairs which pertain to the training, organization, and deployment of units of the General SS.

The personnel office (II) deals with the personnel affairs for all SS fuehrers of the General SS from SS-Second Lieutenants to SS-Captains inclusive.

The SS Administrative Office (IV) handles all the administrative affairs of the SS Main Office. It is of the same level as the Administrative Office Security Service (SD) and the Administrative Office Race and Settlement

(R and S) and just as these, it is subordinate to the SS Administrative Chief as the highest administrative court of the SS.

The medical office (V) deals with all things concerned with hygienic conditions and accommodations for the SS.

The SS-Recruiting Office (VI) handles the preliminary and final acceptance of SS applicants and SS candidates into the SS. Here also, the conviction and discharge of men and non-commissioned officers is regulated as well as re-enlistment measures among other things. Its missions further include the planning and execution of all recruiting methods, the systematic comprehension and compiling of personal data of all SS members as well as the compilation of the total strength of the SS and of corresponding statistics.

The office for Security Missions (VII) handles the employment of SS units in special instances for example, at Fuehrer appearances and for visits of leading foreign government officials. In addition it is responsible for the mobilization preparations for the SS which it completes in collaboration with the Supreme Command of the Wehrmacht. Among these also come the taking in of reserves of the SS Death Head regiments for special practices in peace and the liability of military service of SS members.

The Reserve Office (VIII) is, as the name implies, responsible for the Reserve of all the SS units.

The Procurement Office (IX) provides for the procurement of articles of equipment for the whole SS.

The Office for Recreation (X) directs all measures for sport participation of the SS in all forms of sports and supervises the athletic training of the SS.

The Office of Communication (XI), the Supply Office and the Public Welfare Office (XII) and also the Educational Office (XIII) fulfill their missions which are expressed by their title.

Aside from the above named 13 offices, the following are also placed under the Chief of the SS Main Office.

- The Inspector of the SS Militarized force.

- The Fuehrer of the SS Death Head regiment.

- The Inspector of the SS Border and Patrol units.

The Inspector of the SS Cavalry.
The Inspector of the SS Cavalry schools.

In addition, the following are under the appropriate inspectors.

The Auxiliary Work Camp Schleissheim.
The SS-VT professional school St. George.
The SS-Training Camp Dachau.
The SS-Rest Home, Sasbachwalden.
The SS-Motor School Berne.
The SS-Main Cavalry school Munich.
The SS-Cavalry supply institution Hamburg.

Formation structure of the General SS

The strength of the General SS, 240,000 men, is subdivided today into 14 corps, 38 divisions, 104 infantry regiments, 19 mounted regiments, 14 communication battalions, and 9 Engineer battalions as well as motorized and medical units. This General SS stands fully and wholly on call as in the fighting years except for one small part of chief Fuehrers and men.

The Corps which are presently lead by a Lt. Gen. or Maj. Gen. are subdivided into Divisions, Regiments, Battalions and Companies.

The steps in becoming an SS-man

The steps in becoming an SS man are the following:

After confirming his SS suitability and SS worthiness, the Hitler Youth upon reaching 18 becomes an SS applicant. Then he is taken over into the SS as an SS candidate on the Reichsparteitag of the same year upon presentation of the SS certificate. Then after a short period of probation he is administered the Fuehrer oath on the 9th November.

As SS candidate he earns his Army sport badge and the bronze Reich sport badge. Then he goes into the Labor service [Arbeitsdienst] and finally to the Wehrmacht either at the age of 19 or 19½—according to whichever way his age group is absorbed.

After two years, he returns from the Wehrmacht in as far as he does not want to remain as non-commissioned candidate or reenlistee. Whoever returns to the SS is still, however, a candidate. In the following period up until his coming final acceptance he will be schooled again specially and

ideologically at which time he will be thoroughly taught and instructed in the fundamentals of the SS, especially regarding the marriage law and the honor laws of the SS. The SS candidate will be recognized as SS man upon fulfillment of other requirements on the 9th of November following his return from the armed forces and thereby will be finally taken into the SS.

At the same time, on this 9th of November, he has the right to wear the SS dagger and solemnly promises upon this occasion that he and his pin will always hold to the basic laws of the SS. From this day on he assumes the right and duty to defend his honor according to the honor laws of the Black Corps as is specified in the SS code.

He then remains in the active General SS as SS man until he is 35. Upon request, he then will enter the SS Reserve and upon reaching 45 he will transfer into the SS inactive Corps.

The SS Militarized forces [Verfuegungstruppen, VT]

Out of the General SS, the foundation of all SS, after the seizing of power the SS militarized forces appeared, on account of considerations which are indicated in another reference, in a slow and organizational development.

Its garrison and construction are also described in another place.

The militarized forces are constructed after the experiences of the SS upon the fundamental basis of National Socialist perception of selection, direction and education.

The SS militarized forces, in their present day form which is clearly delineated, are an active garrisoned and armed part of the SS. Those men selected and tested according to the standards of the SS have obligated themselves to a period of service of at least four years. In addition to the indoctrination for the SS man, these troops receive a full military education. The service in the militarized force counts toward the fulfillment of military service.

After termination of their obligations in the militarized forces, the SS men naturally go back into the General SS from which they came.

The SS Death Head Units

The SS Death Head units form one part of the garrisoned SS. They arose from volunteers of the General SS who were recruited for the guarding of

concentration camps in 1933.

Their mission, aside from the indoctrination of the armed political soldier, is the guarding of enemies of the State who are held in concentration camps.

The SS Death Head units obligate their members to 12 years (service). It is composed mainly of men who already have fulfilled their duty to serve in the Wehrmacht. This time of service is counted completely.

The Death Head units are fundamentally similar to the SS militarized forces in construction and equipment. They consist of four regiments.

Personnel Chief of the SS

The Office of the personnel Chief of the SS is the SS-Personnel Chancellery. It handles all personnel affairs of the Fuehrer Corps of the whole SS.

Further, the Personnel Chief is Inspector of the SS Junker schools in Braunschweig and Toelz. He is responsible for the continuation of education of the forthcoming young Fuehrers from these schools.

The Fuehrer school of the General SS Munich-Dachau is also placed under the Personnel Chief.

Chief of the SS Courts

The SS-Courts, directly under the Reichsfuehrer SS, is the highest office of the SS in all cases of disciplinary or honorary jurisdiction. Its activity therefore consists, above all, in the handling of disciplinary actions; in cases of less severe nature it acts as court of appeal.

Further, the SS-Court is solely competent for the handling of cases of clemency as well as of disciplinary and also of punitive nature.

As the highest office of disciplinary penal affairs of the SS, at the same time the SS-Court is the liaison office for all offices of the Party and Reich which are essentially connected with its area of jurisdiction.

A penal jurisdiction will be introduced for the members of the SS militarized forces, the SS Death Head units, the main offices of the Security Service of the SS and for these main official members of the General SS who are placed over these units. Its construction is undertaken at present.

The Security Service

During the fighting years, the scope of jurisdiction of the SS had experienced an expansion in the course of time to such an extent that more and more the necessity for discovering and knowing of opposing tendencies developed as an absolute requirement for their operational campaign. Originally, the SS served as the personal protection for the Fuehrer and for leading personalities of the National Socialistic Movement.

Beyond the steady growth of the Party, the original relatively simple mission of the protection of persons has further developed to a problem of the Security of the Party and its manifold functions. For this purpose, intelligence services were installed in the Party and all of its components with the mission: to counter the significance of the opposing aggressive and destructive intentions through exploration and judging of the threatening menaces.

However, there was no uniform planning, and a central collaboration of intelligence services was hardly attempted.

The SS had also acquired an intelligence service at this time for the fulfillment of its missions. Contrary to the rest of the intelligence services of the Party, a far-reaching systematic political intelligence service grew out of the so-called I.C. Service, the later P.I. Service [Press and Information] of the Reichsfuehrer SS.

This intelligence service developed upon the fundamentals of racial selection and ideological rearing in conformity with the general fundamentals of the SS in deviation from all limitations of scope, of momentary or personal nature in connection with an all embracing positive setting of a goal, toward a true Security Service at first for the SS and the Party and later thereby, for the people and the Reich.

This became clear after the taking over of power, as the "Security Service of the Reichsfuehrer SS" proved that it had seized all opponents and living provinces which were or could become significant for the new National Socialist State. This was done by a planned construction of the organization, which kept itself free from personal dependency.

From this development, in the field of Party intelligence service, the Deputy of the Fuehrer drew the deduction which he made in his decree of 9 June

1934 that “no intelligence or counterintelligence service of the Party may exist outside of the Security Service of the Reichsfuehrer SS.” From the promulgation of this decree on, the Security Service of the Reichsfuehrer SS is the only political intelligence service of the National Socialist German Workers’ Party.

Since the Security Service of the Reichsfuehrer SS delivered information on the situation and its connection through constant observation of the open and secret enemies of the National Socialistic ideology, it more and more became an organ for protection of the State and of the people which stood in closest cooperation with the Secret State Police.

The head of the organization of the Security Service Reichsfuehrer SS is the Main Security Office which stands next to the main offices of the Reichsfuehrer SS. The Chief of the Main Security Office is the present SS-Maj. Gen. Heydrich, who is at the same time Chief of the Security Police, and who was entrusted at that time with the construction of the I.C., as well as, the P.I. Service.

The regional construction of the Security Service Reichsfuehrer SS is close to that of the General SS in its subdivision into Corps and sectors.

The constant observation of the course of working methods of the opponent, and his technique in the alternate forms of appearance, his ideologies and methods of work compulsorily lead thereto, that the work of the Security Service Reichsfuehrer SS cannot only be intended for the hour but must be expansive and far-reaching.

The Race and Settlement Affairs

After the Main Security Office comes the Main Race and Settlement Agency as the next pillar of the Reichsfuehrer SS.

In this Race and Settlement Agency the marriage applications of the SS men are handled in the Relations Office, because no SS man can openly marry without the permission of the Reichsfuehrer SS under the stipulations of the marriage law of 1931. For this, a medical examination is required for man and wife. Guarantees for ideological and personal rearing are to be brought for the bride. Further, the family tree is now required of man and wife—by officers [Fuehrers] back to 1750 and by non-coms [Unterruehrer]

back to 1800. A copy of the hereditary health certificate is likewise required.

In order to make possible a rapid gathering of the necessary requirements, Relation Officers are established and provided in the infantry battalions of the General SS. They, like the Main Race and Settlement Agency, are to help the SS man in the gathering of all required papers.

This naturally entails a gigantic work and extensive organizational preparations in order to meet quickly the requests which today are very pressing since people are being married in greater numbers.

The Settlements Office within the Main Race and Settlement Agency handles and brings about the idea of blood and earth [Blut und Boden] by settling valuable SS families in connection with the new creation of German peasantry and homestead settlement.

Further, the Race office in the Main Race and Settlement Agency watches over the uniformity of the racial acceptance examinations and over the schooling of these specialists who are to be employed for these acceptance examinations within SS units.

Personal Staff Reichsfuehrer SS

The "Personal Staff Reichsfuehrer SS" was formed as a central headquarters for the Reichsfuehrer SS and at the same time, as an essential main office.

This office developed out of the Adjutants Office of the Reichsfuehrer SS in the course of increased missions. Today it is placed under the Chief Adjutants' Office and the Police Adjutant's Office of the Reichsfuehrer SS. The Personal Staff, through its business experts, handles the normal traffic, it administers the press section of the Reichsfuehrer SS as well as the cultural section. Among others, it also has the porcelain manufacture in Allach under its jurisdiction.

In addition, the SS barracks, that is the summation of all SS men in the higher institutes of learning, are placed under the Personal Staff Reichsfuehrer SS.

In addition, the following working areas are combined in the following divisions in the Personal Staff.

The section of Economic Aid (it handles encumbrance problems which developed out of the fighting years).

The section for cultural Research (prehistoric works, expeditions with the support of the Reichsfuehrer SS, excavations as well as foundations).

The society "The Ancestral heritage" [Das Ahnenerbe].

The society "The Well of Life" [Lebensborn]. This consists mainly of members of the SS. It makes possible to women with many children the best possible care in ideal homes before, during and after child birth. Furthermore, it makes possible the painless delivery for good racial, unmarried, and about-to-be married mothers.

At present, several homes in Steinhoeing Polzen, Klosterheide (Mark), Hoheharst bei Bremen and in Wiener Wald belong to the society "Well of Life."

The office "Four Year Plan" fulfills the mission of regulation of the labor employment which was assigned by the Director of the Four Year Plan.

Finally, the liaison officers to the Ministries and Offices of the Party are assembled under the Personal Staff.

The Motto [Kernsatz] of the SS

There is no mission for its own sake. How can there, therefore, be missions for the sake of an organization. There is only one mission which everything in Germany serves and that is the life of this people through Adolf Hitler.

"So we fell in and are marching, according to unchangeable laws as a national socialistic, soldierly order of men designated as Nordic and as an avowed association of their kindred, along the way into a distant future. We wish and believe that we should not only be the descendants, who have fought it out better, but especially the ancestors of those later generations necessary for the perpetual life of the German Teutonic people."

This motto of the SS which was given to it by the Reichsfuehrer SS Heinrich Himmler, is the direction for this troop within the framework of the movement. This is the sense by which everything which concerns the SS consequent, steadfast, and thrifty, today, maintains a happy and positive appearance.

If the individual tasks in the framework of this great Protective Corps—often limited in nature by the tasks themselves—may occasionally be heavy and represent the harshest human requirements then the filling of all necessities with this consciousness of a great duty and a clean and concrete association of this concept gives every duty the gleam and happiness which the National Socialist heart needs and is continuously needing.

III. The Inner Security

After the outward conclusion of the revolution of our ideology, in possession of power and thereby in the continuous, unlimited responsibility for the fundamentals of the idea, there began the greater, although externally less heroic, phase of the penetration.

All divisional fields in inner or outer positions of the State concept or of State presentation had now to be convincingly and continually filled with our new philosophy or newly indoctrinated by it. We had to carry the revolution, the vivaciousness of an extensive movement, into the stark hardened institutions and concepts with all means, with and against the law. We had to overthrow that which did not seem fit to live according to this process; we had to fill anew with a living spirit that which seemed to be useful and employable.

Few divisional fields of the conquered State had to face from the beginning so much opposition in relation to the life and expression of the new Power as the Police.

All our hate and all our rebellion had opposed it as the most outspoken symbol of the night of the system for us.

Rubber hoses, house searchings, imprisonment, terror, persecutions, all the counter concepts of the harshness and gruesomeness of the period behind us seem to crystallize and assemble themselves under the term “Police.” Entirely necessarily the term “Police” was already at that time a term of the things hated and cursed. Therefore, at the beginning it seemed almost impossible to actuate the thought of reaching the identical presentation of National Socialist law, of National Socialist community authority with the term and institution “Police.” Also within the movement itself, it naturally necessitated considerable authority in order to allow the forceful wish to become an act.

The SS as formation, the association made up of leader, men, and kindred of consequent National Socialists, possessed this authority in the course of the history and development of the Party. Out of its original mission within the Party it now obtained the same broadened mission within the whole people and State: the inner security, the inner protection of the National Socialist people, the consequent repulsion of its inner enemies in all phases of public life.

Viewed from this standpoint, it seemed as if unsurmountable obstacles arose as the Reichsfuehrer SS, upon command of the Fuehrer, obtained the task, in addition to the SS, of concentrating the whole German Police into his hand and thereby into the real special meaning of the SS.

This transfer proceeded under the sole valid law, the living right of the German Volk, not only against old ideas but often enough against still existing regulations.

In few fields of State and People the solution of the big problem of Party and State has been so revolutionary and extensively thoroughly undertaken, and scarcely anywhere except for just this difficult ground was it demonstrated so successfully that, according to the Fuehrer's will, it is the idea which must determine the State.

The personal authority of the Reichsfuehrer SS and that of his men, who were of a single mind, carried the beginning of this new construction, while the success of the National Socialist measures taken guaranteed the further course.

From the traditional concept of Police has arisen the new concept of a protective Corps of the German people. And just as the old idea was typically personified in the bailiff, the new idea also demands a new man.

We do not need a mere official, just as we do not consider the unpolitical soldier suitable here. The new type shall be representative of the SS man, who grows out of the Principle of the indoctrination and out of the way of the SS and who already today has clearly developed himself before the people. Just in this post the people want and must possess a political soldier in the best meaning of this National Socialist conception.

Instead of the duplicity of a liberal Police law the man of the Police was given the powerful living authority of clear fundamentals and removed

from the hatred and mistrust of the best part of our people by means of the National Socialist authority of the SS. Thereby, the Police again was carried into the midst of the people as an important member for the protection and defense of the community.

It is clear and naturally necessary that completely new judgment of the concept of enemy of the State would come from the new type of its (Police) man and its youthful clear idea. Out of the limitation in the general defense, a far-reaching prevention had to ensue from the clear grasping of the State concepts, a clarification of the concept of State enemies, a setting up of tasks which thereby assigns to the National Socialist Protective Corps a historical mission of unheard of proportions in the sound development of the people.

The spirit of discipline and of companionship, the knowledge of the source of our being and its single teaching, this vast train of thought of the SS as expression of the developing factors of an inner National Socialist securing and safeguarding of all possibilities of coming events—all this is more and more the meaning and spirit of all great new formations in this section of inner security.

To guarantee the intensive security of this new Reich, that is the great duty of the SS and with it, and within its scope, also of the Police in all its categories. That is the comprehensive mission the Fuehrer gave to the SS. It will attack this job anew every day, with the utmost seriousness, fully conscious that this is an immense National Socialist task and firmly convinced that only the ideologically best education of its men and its selection of members will enable it to solve this task completely.

TRANSLATION OF DOCUMENT 2285-PS

Before me, Lieutenant Colonel Henry H. Mize, JAGD, personally appeared Lieutenant Colonel Guivante de Saint Gast and Lieutenant Jean Veith, both of the French army, who were made known to me, and who, being by me first duly sworn, made the following statement in the handwriting of Lieutenant Veith under oath:

The undersigned:

Guivante de Saint Gast, Lt. Colonel, Chef de Mission de 1^{ère} Classe, Carte d'identité militaire BCRA MCPA Promontain No. 510, Immatricule FFC Londres RUI. Carte de Repatrie No. 72352 delivered in Annecy (France). Order of Mission of the Provisional Government of the French Republic, Ministry of Prisoners and Deportees dated May 4th, 1945, No. 16772. Detained in the Concentration Camp of Mauthausen from March 18th, 1944, till April 22nd, 1945, No. 57876, having been employed at the offices of distribution of work [Arbeitseinsatz] from August 16th, 1944, till April 22nd, 1945, as auxiliary and as titular.

Veith, Jean, Lieutenant, Charge de Mission de 2^e Classe, Carte d'identité Repatrie No. 403927 delivered at Annecy. Order of Mission of the provisional government of the French Republic, Ministry of Prisoners and Deportees, dated May 4th, No. 16774. Detained in Mauthausen from April 22nd, 1943, till April 22nd, 1945, No. 28645, having been employed at the Politische Abteilung from June 2nd, 1943, to June 25th, 1943; at the Arbeitseinsatz from June 26th, 1943, to August 15th, 1944; as foreman of the cartography and meausgraphy Hollerith services till their dissolution in February 1945; and from then on until his liberation at the Lagerschreibstube (night shift)—both residing in Paris (17a) 20, Rue de Sanssuse, relate and certify under oath the following facts:

In Mauthausen existed several treatments of prisoners, among them the "Action K or Kugel" (Bullet Action). Upon the arrival of transports, prisoners marked "K" were not registered, got no numbers, and their names remained unknown except to the officials of the Politische Abteilung. (Lt. Veith had the opportunity of hearing, upon the arrival of a transport, the following conversation between the Untersturmfuehrer Streitwieser and the chief of the convoy: "How many prisoners?" "15, but two K." "Well, that makes 13.")

The prisoners were taken directly to the prison where they were undressed and taken to the "Bathrooms." This bathroom in the cellars of the prison building near the crematory was specially designed for execution (shooting and gassing).

The shooting took place by means of a measuring apparatus. The prisoners were backed against a metric scale with an automatic contraption releasing

a bullet in their neck as soon as the moving board determining their height touched the top of their heads.

If a transport consisted of too many “K” prisoners, instead of wasting time on the measurements they were exterminated by gas which was sent into the bathrooms instead of water.

During his time as foreman at the Hollerith section, Dr. Veith frequently received transfer sheets from other camps mentioning prisoners who did not appear on the entry list of Mauthausen. In such cases the Politische Abteilung very reluctantly used to give the information that the camp services had not to take into consideration such missing prisoners because they had been transferred “In geheimer Reichssache” (Secret affair of the Reich) and insisted upon the complete disappearance of all traces of the names. In many cases due to transmission errors, the fatal “K” indication was not immediately given with the transfer and followed several days or several weeks later. Lt. Col. de Saint Gast certifies having received in this service cancellation orders from the Politische Abteilung concerning such prisoners. As upon their arrival such “K” prisoners had, by mistake, received a camp number, they had to disappear in the numbers register of the camp, and from this unification order was made in the following hypocritical form: prisoner X Nr.... birth place, birth date is actually called [heisst richtig] prisoner Y, Nr...., different birth place and date.

Such identification orders should be found in the documents of the Arbeitseinsatz as far as they have not been destroyed.

This statement has been made voluntarily in the handwriting of Lt. Veith, who understands English and who has truly translated the same to Lt. Col. de Saint Gast prior to his signing the same.

/s/ Pf. de Saint Gast

/s/ Jean Veith

Subscribed and sworn to before me this 13th day of May 1945.

/s/ Henry H. MIZE
HENRY H. MIZE
Lt. Col. JAGD

PARTIAL TRANSLATION OF DOCUMENT 2288-PS

ADOLF HITLER'S GREAT SPEECH BEFORE THE REICHSTAG.

Berlin, 21 May 1935

Voelkischer Beobachter, Southern Germany Special Edition No. 142 a. of
22 May 1935. [Pages 1, 3, 4]

Deputies! Members of the German Reichstag!

* * * * *

Leaving these general conclusions now and arriving at a precise fixation of the present current problems for me the

Position of the German Reich Government results as follows:

1. The German Reich Government refuses to adhere to the Geneva Resolutions of 17 March.

The treaty of Versailles was not broken by Germany unilaterally, but the well known paragraphs of the dictate of Versailles were violated and consequently invalidated by those Powers who could not make up their mind to follow the disarmament requested of Germany with their own disarmament as agreed upon by the treaty.

2. Because the other powers did not live up to their obligations under the disarmament program, the Government of the German Reich no longer considers itself bound to those articles which are nothing but a discrimination against the German Nation for an unlimited period of time, since through them Germany is being nailed down in a unilateral manner, contrary to the spirit of the agreement.

But it solemnly declares that this measure is being taken only with regard to those well known paragraphs which are discriminating against the German people in a moral and factual way.

Therefore, the Government of the German Reich shall absolutely respect all other articles pertaining to the cooperation [Zusammenleben] of the various nations including territorial agreements; revision which will be unavoidable as time goes by, it will carry out by way of a friendly understanding only.

3. The Government of the German Reich has the intention not to sign any treaty which it believes not to be able to fulfill. However, it will live up to every treaty signed voluntarily even if it was composed before this Government took over. Therefore, it will in particular adhere to all the allegations under the Locarno pact as long as the other partners of the pact also adhere to it.

The Government of the German Reich regards the fact that it has to respect the demilitarized zone, as an extremely difficult contribution by a sovereign power, to the pacification, and it believes to be compelled to call attention to the fact that the constant increase in the number of troops on the other side may not just be regarded to be of great comfort to these efforts.

PARTIAL TRANSLATION OF DOCUMENT 2289-PS

VOELKISCHER BEOBACHTER

Berlin edition No. 68

Berlin, Sunday, 8 March 1936

The important speech of the Fuehrer in the Reichstag on 7 March reads as follows:

Men of the German Reichstag! France has replied to the repeated friendly offers and peaceful assurances made by Germany by infringing on the Rhine Pact through a military alliance with the Soviet Union, exclusively directed against Germany. In this manner, however, the Locarno Rhine Pact has lost its inner meaning and ceased in practice to exist. Consequently, Germany regards herself for her part as no longer bound by this dissolved treaty. The German Government are now constrained to face the new situation created by this alliance, a situation which is rendered more acute

by the fact that the Franco-Soviet Treaty has been supplemented by a Treaty of Alliance between Czechoslovakia and the Soviet Union, exactly parallel in form. In accordance with the fundamental right of a nation to secure its frontiers and insure its possibilities of defense, the German Government have today restored the full and unrestricted sovereignty of Germany in the demilitarized zone of the Rhineland.

* * * * *

After a hard inner struggle I have, therefore, decided in the name of the German Reich Cabinet [Reichsregierung] to submit the following memorandum to the French Government and the other signatory powers of the Locarno Pact today.

* * * * *

We have no territorial claims to make in Europe. We know above all that all the tensions resulting either from false territorial settlements or from the disproportion of the numbers of inhabitants to their living spaces cannot, in Europe, be solved by war.

TRANSLATION OF DOCUMENT 2292-PS

THE ARCHIVE [Das Archiv], March 1935, Page 1830.

The German Air Force

The Reich Minister for Aviation [Luftfahrt], General of the Airmen, Goering, in his talk with the special correspondent of the Daily Mail, Ward Price, expressed himself on the subject of the German Air-Force.

10.3.

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General Goering said:

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In the extension of our national defense, [Sicherheit] it was necessary, as we repeatedly told the world, to take care of defense in the air. As far as that is concerned I restricted myself to those measures absolutely necessary. The guiding line of my actions was, not the creation of an aggressive force which would threaten other nations, but merely the completion of a military aviation [Luftfahrt] which would be strong enough to repel, at any time, attacks on Germany.

Until the present moment, this has been accomplished on a general basis, as so far we have been discussing airmen in general only without making any definite distinction from the military point of view. The British government, among other proposals, asked Germany to join an Air-Pact, whose object is to take joint action in the air against an aggressor who disturbs the peace, i.e. to put our own Air Force at the disposal of the threatened country. This is the British demand. Germany, trying to do everything and trying to collaborate everywhere where peace can be ensured, replied by a Note expressing her agreement with such an effective protection as is represented by the air-convention.

In this Note Germany expressed to Britain the view that Germany would be prepared to send her Air Force to the help of the threatened country.

After the German government expressed willingness to help, it became necessary to make a clear demarcation within German aviation, namely in this respect: which air force will be able to be made available? This situation brought about the decision as to those of the German aviation who will in future belong to the Air Force and those who will in future remain in civil aviation or in sport aviation. It was necessary to mark this separation also outwardly, so that the members of the German Air Force became soldiers according to the law and their leaders became officers. This involves only a part of the persons who up to the present moment have worked in the common German aviation. Therefore the difference between our Air Force and our civilian aviation shows itself clearly and distinctly in the various badges of rank and in the designation of rank.

I sum up: Our willingness to share in the effective defense of world peace, our assent to hasten with help to the hard pressed country, made the creation of a military aviation imperative, if our assent should not remain merely an empty phrase.

Answering the correspondent's question about the hierarchy in the new Air Force, its uniforms and its ranks the general said: "The Air Force is under the orders of the Reich Minister for Aviation who controls also civil aviation. His military rank is General of the Airmen [General der Flieger]. The uniform remains similar to the uniform of the sport aviation organization but outwardly it will be marked clearly by military badges of rank. Similarly the names of rank correspond with the military designation

of rank from Lieutenant upwards to General of the Airmen.” To the question concerning the nomination of German Air-attaches in foreign missions General Goering replied that the preparations for it were pending. Also about the numerical strength of the Air Force he said that he could not yet give final figures. As far as the percentage ratio to the Air Forces of other powers is concerned, every sensible and decent man ought to realize that Germany, being particularly threatened, needed such figures as would guarantee the absolute safety of the German people. Asked about the role of the Air Force within the Armed Forces, General Goering stated that at the present moment, it was impossible to make a clear appreciation of the situation. But that it was definite that the Air Force must be an integral part of any defense and that without an Air Force the Army and Navy, no matter how strong, were useless.

In conclusion, the correspondent asked whether the German Air Force will be capable of repelling attacks on Germany. General Goering replied to that exactly as follows: “The German Air Force is just as passionately permeated with the will to defend the Fatherland to the last as it is convinced, on the other hand, that it will never be employed to threaten the peace of other nations.”

PARTIAL TRANSLATION OF DOCUMENT 2306-PS

REVOLUTION OF EDUCATION

Baldur von Schirach

[Page 51]

The struggle for the unification of the German youth is finished. I considered it as my duty to conduct it in a hard and uncompromising manner. Many might not have realized why we went through so much trouble for the sake of our youth. And yet: The National Socialist German Workers' Party, whose trustee I felt I always was and always will be, this party considered the struggle for the youth as the decisive element for the future of the German nation.

[Page 52]

And I promise the German public that the youth of the German Reich, the youth of Adolf Hitler will accomplish its duty in the spirit of the man to

whom alone their lives belong.

[Page 63]

I am responsible to the Reich that the entire youth of Germany will be educated physically, morally, and spiritually in the spirit of the National Socialist Idea of the State.

TRANSLATION OF DOCUMENT 2307-PS

1938 REICHSGESETZBLATT, PART I, PAGE 237

Law concerning the Reunion of Austria with the German Reich, March 13,
1938

The Reich Government has ordained the following law, which is hereby proclaimed:

ARTICLE I. The Federal Constitutional Law of March 13, 1938, ordained by the Austrian Federal Government, concerning the reunion of Austria with the German Reich, hereby becomes a law of the German Reich. It has the following text:

By virtue of Article 3, Section 2, of the Federal Constitutional Law concerning extraordinary measures in the constitutional field (R.G. Blatt, I, No. 255, 1934), the Federal Government has ordained:

Article 1. Austria is a province of the German Reich.

Article 2. On Sunday, April 10, 1938, a free and secret plebiscite shall be held for German men and women of Austria over twenty years of age on the question of reunion with the German Reich.

Article 3. In the plebiscite the majority of the votes cast shall decide the issue.

Article 4. The necessary regulations for the implementation and supplementing of this Federal Constitutional Law shall be provided by decree.

Article 5. This Federal Constitutional Law shall enter into force on the day of its proclamation.

The Federal Government is entrusted with the execution of this Federal Constitutional Law.

Vienna, March 13, 1938.

ARTICLE II. The laws at present in force in Austria shall remain in force until further notice. The introduction of Reich law into Austria will be effected by the Fuehrer and Reich Chancellor or by the Reich Minister to whom he may delegate this power.

ARTICLE III. The Reich Minister of the Interior, in consultation with the other Reich Ministers concerned, is empowered to issue the legal and administrative regulations necessary for the implementation and supplementing of this law.

ARTICLE IV. This law shall enter into force on the day of its proclamation.

Linz, March 13, 1938.

ADOLF HITLER, Fuehrer and Reich Chancellor; GOERING,
General Field Marshal, Reich Minister of Aviation;
FRICK, Reich Minister of the Interior; VON
RIBBENTROP, Reich Minister of Foreign Affairs; R.
HESS, Deputy Fuehrer.

COPY OF DOCUMENT 2309-PS

HEADQUARTERS

THIRD UNITED STATES ARMY

JUDGE ADVOCATE SECTION

WAR CRIMES BRANCH

APO 403

3 JA 122

21 June 1945

SUBJECT: Report of Investigation of War Crimes.

TO: Commanding General, Third United States Army, APO 403.

I. AUTHORITY

1. This investigation was conducted in conformity with letter, Headquarters European Theater of Operations, file AG 000.5, OpJA. Subject: Establishment of War Crimes Branches, 24 February 1945, by 2d Lt. John J. Reid, AUS, Investigator-Examiner, from 25 April 1945 to 2 May 1945 inclusive and pursuant to directive of Commanding General, Third United States Army, a copy of the order which is attached hereto as Exhibit A.

II. *MATTERS INVESTIGATED—FLOSSENBURG CONC. CAMP (P-3338)*

2. *a.* Killing of interned Allied National Civil population and Allied National PWs by various cruel and inhuman methods such as neck-shooting, hanging, poison injections, forced suicides, lack of medical treatment, starvation, beatings, and other numerous inhuman methods purposely inflicted to result in death, (Violation of Geneva Prisoners of War Convention, Rules of Land Warfare and the customary law as observed by Civilized Nations).

b. Living and working conditions of internees which were beyond physical endurance and resulted in a systematic elimination of prisoners.

c. Starvation rations of internees which resulted in death and permanent physical impairment of prisoners.

d. Cruel and inhuman treatment and methods used by members of the German Armed Forces and/or persons under their immediate command against Allied National Civilians and Allied National Prisoners of War. (Violation of Article 2 of the Geneva Convention. Paragraphs 73, 80, 82, 83, 84, 85, 86, 87, 88, 89, 102, 105, 119, 127, 129, 132, 172, FM 27-10 Rules of Land Warfare and in violation of the customary law observed by Civilized Nations).

e. Unlawful killing by shooting, hanging and other methods, of Allied National Civil population who had been interned and/or otherwise arrested by members of the German Armed Forces (Violation of the customary laws observed by civilized nations).

III. *PROCEEDINGS*

3. *a.* The testimony of all witnesses examined in the course of this investigation was secured through the use of an interpreter after the witness had been sworn under authority of Article of War 114, in the following form: "You swear that the evidence you shall give in this investigation now

being conducted shall be the truth, the whole truth, and nothing but the truth. So help you God.” The examination of each such witness where practical was conducted in my presence.

In the case at hand, it being impracticable to use a stenographic-reporter, the witness after having first been duly sworn was questioned regarding his knowledge of the matters under investigation. The witness then propounded his testimony in a narrative statement in his own handwriting, where practicable, and in his own native language. The witnesses then after being sworn signed the statement. The interpreter was also sworn in the following form: “You swear that you will truly interpret in this investigation now being conducted. So help you God.”

b. The transcribed sworn testimony of each such witness whose name is listed below is hereto attached as an exhibit, the number of which is indicated in the lower right-hand corner of the paper preceded by the letter “B.”

SWORN STATEMENTS OF WITNESSES: See Appendix (1) for index and exhibits.

UNSWORN STATEMENTS, LETTERS, REPORTS, ETC.: See Appendix (2) for index and exhibits.

c. PHOTOGRAPHS:

1. Photographs of some of the SS personnel of Camp Flossenbug. See Appendix (3) for index and photographs.
2. Atrocity scenes. See Appendix (4) for index and photographs.

IV. *SUMMARY OF FACTS*

4. Concentration Camp Flossenbug (Coord. P-3338), was founded in 1938 as a camp for political prisoners. Construction was commenced on the camp in 1938 and it was not until April 1940 that the first transport of prisoners was received. From this time on the prisoners began to flow steadily into the camp (Exh. B-1). Flossenbug was the mother camp and under its direct control and jurisdiction were 47 satellite camps or outer-commandos for male prisoners and 27 camps for female workers. To these outer-commandos were supplied the necessary prisoners for the various work projects undertaken.

Of all these outer-commandos Hersbruck and Leitmeritz (in Czechoslovakia), Oberstaubling, Mulsen and Sall, located on the Danube, were considered to be the worst. The work at these camps mainly consisted of underground labor, the purpose being the construction of large underground factories, storage rooms, etc. This labor was performed completely underground and as a result of the brutal treatment, working and living conditions, a daily average of 100 prisoners died. To the one camp Oberstaubling, 700 prisoners were transported in February 1945 and on the 15th of April 1945 only 405 of these men were living (Exh. B-1). During the 12 months preceding the liberation, Flossenburg and the branch camps under its control accounted for the death of 14,739 male inmates and 1,300 women. These figures represent the deaths as they were obtained from the available records in the camp, however, they are in no way complete as many secret mass executions and deaths took place. In 1941 an additional stockade was added to the Flossenburg Camp, to hold 2,000 Russian prisoners. From these 2,000 prisoners only 102 survived. (Exh. B-1)

Flossenburg Concentration Camp can best be described as a factory dealing in death. Although this camp had in view the primary object of putting to work the mass slave labor, another of its primary objectives was the elimination of human lives by the methods employed in handling the prisoners. (Exh. B-2)

Hunger and starvation rations, sadism, housing facilities, inadequate clothing, medical neglect, disease, beatings, hangings, freezing, hand hanging, forced suicides, shooting, etc., all played a major role in obtaining their objective. Prisoners were murdered at random, spite killings against Jews were common. Injections of poison and shooting in the neck were everyday occurrences. Epidemics of typhus and spotted fever were permitted to run rampant as a means of eliminating prisoners. Life in this camp meant nothing. Killing became a common thing, so common that a quick death was welcomed by the unfortunate ones.

(See following List of Exhibits as References)

Hunger and Starvation	Exh. B-1, B-2, B-3, B-4
Freezing	Exh. B-11
Medical Neglect	Exh. B-1, B-12

Torturous Beatings and Floggings	Exh. B-1, B-2, B-6, B-12, B-3, B-11, B-13, C-2
Forced Suicides	Exh. B-2, B-13
Hangings	Exh. B-1, B-2, B-4, B-5, B-6, B-7, B-12, C-2
Hand Hangings	Exh. B-11
Poison Injections	Exh. B-1, B-8, C-1, C-2
Typhus and Spotted Fever	Exh. B-1, B-2, B-9, C-1, C-3
Shooting	Exh. B-6, B-2, B-3, B-13, B-15

The system set up at this camp seemed to be one of mass elimination of the prisoners caused by devious means. Starvation diets wilfully designed to produce death within a few months played a major role. Typhus and spotted fever were encouraged as a means of disposing of many. There were innumerable executions, mistreatments, beatings, flogging to death, which continued up until the time this camp was overrun by our forces. Mass hanging took place. Generally, the persons hanged were stripped naked. Oftimes they were beaten before hanging till the unfortunate victims begged for immediate hanging to ease the pain. At first the SS men in charge of the hangings were given extra rations for each hanging. Later on the hangings became so numerous that the extra rations were stopped. Hanging a person by his wrists with a heavy barrel suspended from his ankles was another method of execution. This caused the person's insides to be torn up and he died. (Exh. B-11) On Christmas 1944 a number of prisoners were hung at one time. The prisoners were forced to view this hanging. By the side of the gallows was a decorated Christmas tree and as expressed by one prisoner "it was a terrible sight, that combination of prisoners hanging in the air with the glistening Christmas tree." (Exh. B-12)

In March or April, 13 American or British parachutists were hung. They had been delivered to this camp sometime before and had been captured while trying to blow up bridges. (Exh. B-7, B-8a&b)

Many thousands were tortured and killed by every known method. New methods of brutal punishment and torture killing were devised by certain

members of the camp who became particularly known for their sadistic methods.

On April 20, 1945, approximately 15,000 prisoners were assembled to make a forced march in the direction of Concentration Camp Dachau. The evacuation of these prisoners was caused by the impending capture of the camp by the Allies. These 15,000 prisoners were lined up in three groups and started on this march. Only those prisoners who could walk were taken and before leaving Flossenburg, many were executed, as also were those who collapsed in rank awaiting the movement to start the trek. No provision was made for the feeding of these prisoners or sleeping on this trip. They marched in long columns guarded by SS guards. (Exh. C-2)

Thousands were killed on the way and the paths which they took were littered with the dead. Groups of from 5 to 50 were taken out and forced to dig pits and then were shot. (Exh. B-14, B-15, C-4, C-5). Many graves were not even covered. As the already starved and weakened prisoners fell from exhaustion, a group of SS guards bringing up the rear would kill them by a shot in the back of the head. All who fell out of line were immediately executed in this manner. Death was also caused by beatings or bashings in the skulls. (Exh. B-1, B-3, B-13, E-17)

The prisoners marched from Friday till Monday during which time they received only 100 grams of bread. They marched in the rain and slept in the fields in the mud and water. Many died from exhaustion. On the 23rd day of April 1945, between the towns of Cham (U-5850) and Roding (U-4868), they were liberated by the American Troops. (Exh. B-3, B-13) (Photographs taken near Wetterfield (U-5070) of one of the graves on this march.) (Exh. E-1 to E-17)

5. The victims of Flossenburg included among them, Russian civilians and prisoners of war, German nationals, Italians, Belgians, Poles, Czechs, Hungarians, British, and American prisoners of war. No practical means was available to complete a list of victims at this camp, however, since the foundation of the Camp in 1938 until the day of liberation it is estimated that more than 29,000 inmates died. (Exh. B-1)

6. *PERPETRATORS*

This camp was controlled and run by one class of people, SS troops. The list of perpetrators includes a few civilian prisoners, who managed to gain favor with the SS by carrying out orders of execution and beatings upon their fellow inmates. These prisoners who obtained their immunity and privilege at the cost of other men's lives are deemed equally as guilty.

The citations referred to in the list of perpetrators is by no means complete nor is the list of guilty persons complete. (See Appendix (5) for index and exhibits.)

V. CONCLUSIONS

7. That the exploitation, killing and atrocities committed upon prisoners was a part of a well regulated scheme or plan of the Nazi SS Group, is clearly indicated by the evidence presented here and resulted in the death of thousands.

Flossenbug Concentration Camp, Germany, was the scene of every type and form of Nazi brutality and atrocity committed upon the unfortunate individuals who happened to be sent to this camp. Practically every nationality of Europe was at sometime or another represented in this camp. The majority of prisoners, however, were Russians and Poles. No line of demarkation was made between sexes. Men, women and children were executed in the most brutal fashions.

The responsibility for this camp must be placed upon all personnel who held an active part as a member of the organizational set-up. Whether these persons were ones who actually inflicted the mortal punishment is of little consequence. They all at the least failed to lift a restraining hand in the punishments and atrocities committed upon the inmates therein.

JOHN J. REID
2d Lt, AUS

TRANSLATION OF DOCUMENT 2310-PS

1938 REICHSGESETZBLATT, PART I, PAGE 247

First Decree of the Fuehrer and Reich Chancellor concerning the
Introduction of German Reich Law in Austria, March 15, 1938.

By virtue of Article II of the law of March 13, 1938, concerning the reunion of Austria with the German Reich (RGBl I, p. 237), I order:

SECTION 1. (1) The sphere of validity of the official gazettes of the Reich shall be extended to the province of Austria.

(2) Reich laws which are proclaimed after the effective date of the law of March 13, 1938, concerning the reunion of Austria with the German Reich (RGBl I, p. 237), shall be valid for the province of Austria unless their application to the province of Austria is expressly held in abeyance.

SECTION 2. From the effective date of this decree, the following shall be applied in substance in the province of Austria:

1. The Reich flag law of September 15, 1935 (RGBl I, p. 1145), with the provision that Jews shall be forbidden to raise the Reich and National Flag and to display the Reich colors;
2. The law against formation of new parties of July 14, 1933 (RGBl I, p. 479);
3. The law for the preservation of unity of party and state of December 1, 1933 (RGBl I, p. 1016), as amended by the law of July 3, 1934 (RGBl I, p. 529);
4. The law concerning Reich governors of January 30, 1935 (RGBl I, p. 65) with the provision that instructions of Reich ministers to the Reich Governor in Austria shall require, until further notice, the approval of the Reich Minister of the Interior;
5. The order for implementation of the Four-Year Plan of October 18, 1936 (RGBl I, p. 887);
6. The Reich law concerning the compulsory registration of members of the German State abroad of February 3, 1938 (RGBl I, p. 113).

SECTION 3. (1) Regulations for effecting the transition shall be issued by the Reich Minister of the Interior or by the Reich Governor in Austria with the approval of the Reich Minister of the Interior.

2. By this means regulations of the Reich and regulations of the province of Austria can be assimilated in one another.

3. Incompatible regulations of the province of Austria shall be invalidated.

SECTION 4. This decree shall enter into force on the day of its proclamation.

Vienna, March 15, 1938.

ADOLF HITLER, Fuehrer and Reich Chancellor
FRICK, Reich Minister of the Interior

TRANSLATION OF DOCUMENT 2311-PS

1938 REICHSGESETZBLATT, PART I, PAGE 245

Decree of the Fuehrer and Reich Chancellor concerning the Administration of the Oath to the Officials of the Province of Austria, March 15, 1938.

By virtue of Article II of the law of March 13, 1938, concerning the reunion of Austria with the German Reich (RGBl I, p. 237), I issue the following order:

SECTION 1. Public officials of the province of Austria shall take an oath of office upon entrance into service.

SECTION 2. The oath of office of public officials reads: "I swear that I shall be loyal and obedient to Adolf Hitler, the Fuehrer of the German Reich and People, and that I shall observe the laws and conscientiously fulfill the duties of my office, so help me God."

SECTION 3. The officials at present in office shall be sworn in forthwith in accordance with Section 2.

Jewish officials shall not be sworn in.

SECTION 4. A person is Jewish if he is descended from at least three racially full-blooded Jewish grandparents. A grandparent is automatically considered a full-blooded Jew if he belonged to the Jewish congregation.

A Jewish half-breed descended from two full-blooded Jewish grandparents is considered a Jew:

- a. If he belonged to the Jewish congregation on September 16, 1935, or became a member of it thereafter.
- b. If he was married to a Jew on September 16, 1935, or entered into marriage with one thereafter.

SECTION 5. Anyone who refuses to take this oath shall be removed from office.

SECTION 6. The legal and administrative regulations necessary for the implementation of this law shall be issued by the Reich Governor (Austrian Provincial Government).

SECTION 7. This decree shall enter into force on the day of its proclamation.

Vienna, March 15, 1938.

ADOLF HITLER, Fuehrer and Reich Chancellor.

TRANSLATION OF DOCUMENT 2313-PS

1938 REICHSGESETZBLATT, PART I, PAGE 254

Order for the Transfer of the Austrian National Bank to the Reichsbank,
March 17, 1938

By virtue of Article II of the law of March 13, 1938, concerning the reunion of Austria with the German Reich (RGBl I, p. 237), I order:

Section 1. The administration of the Austrian National Bank shall be transferred to the Reichsbank.

Section 2. The Austrian National Bank shall be liquidated, and its assets placed by the Reichsbank to the Account of the Reich.

Section 3. In taking over operations, the Reichsbank shall transfer to its staff the entire personnel of the Austrian National Bank, with due regard for legal and contractual rights.

Section 4. This order shall enter into force upon its proclamation.

Berlin, March 17, 1938.

ADOLF HITLER, Fuehrer and Reich Chancellor

FRICK, Reich Minister of the Interior.

Count SCHWERIN VON KROSIGK,
Reich Minister of Finance.

Dr. HJALMAR SCHACHT, Reich Minister
and President of the Reichsbank

PARTIAL TRANSLATION OF DOCUMENT 2315-PS

THE LAW OF THE REICH CHAMBER OF CULTURE

[Das Recht der Reichskulturkammer]

Edited by Karl Fr. Schrieber,
Publ. by Junkor und Duennhaupt, Berlin. Vol. 2
(1 Jan. to 30 June 1935).

Order concerning the Supervision of District Leaders of the Work of the
Reich Chamber of Culture [Page 25].

Dated 12 Nov. 1934 (Published in the daily press).

In the process of unification of Party and State, it must be put into effect that, in general, the same tasks of the Party and of the State will also be administered by the same people. The Gau propaganda chiefs of the Party are, according to that, also the district leaders [Landesstellenleiter] of the Reich Ministry for National Enlightenment and Propaganda. In compliance with this regulation, the Reich Chamber of Culture must also be incorporated in the union of the Party and State. Therefore, I order that the district leaders and the Gau propaganda chiefs [Gaupropagandaleiter], as district administrators of culture, exercise from now on supervision over the work of the Reich Chamber of Culture in their districts. The individual chambers and their district associations are instructed to adjust and to subordinate their district formations and organizations in the Reich to those of the district and of the Gau propaganda offices. The Gau leaders have the privilege to suggest and to reject the appointment of personnel for these offices. The appointment is then effected by the president of the chamber. Guiding rules for the execution of this order will soon be published in detail.

Heil Hitler!
Signed: Dr. Goebbels

Order Concerning Closure of Newspaper Publications for the Purpose of
Eliminating Unsound Competitive Conditions

[Pages 121-122]

Dated 24 April 1935 (V.B. 35/25.4)

On the basis of paragraph 25 of the first decree concerning the execution of the law on the Reich Chamber of Culture, dated 1 November 1933 (RGBl, I/1933, page 797ff), I decree the following:

I. If a great number of newspaper publications exists in one locality, whose operation depends on the sale of a higher circulation than can altogether be disposed of according to local conditions and sound principles of publication, individual publications can be discontinued for the establishment of sound economic conditions.

In order to obtain evidence, the publications may be subjected to an examination; all inside information is to be given to the agencies which I assign to undertake these examinations.

II. For the execution of this order, the Reich Union of German Newspaper Publishers is instructed to report to me those localities in which, because of numerical overproduction, acute competitive conditions exist, and to name the publication which ought to be subjected to an examination. This union has, hereby, to act according to the principles laid down in my announcement concerning "The press in the second year of the National Socialistic State." It is further instructed to ascertain whether the closing of establishments can be avoided by voluntary unifications. It will report to me until the 31st of July 1935.

Berlin, 24 April 1935.

The President of the Reich Chamber of the Press

AMANN

The article of the President of the Reich Chamber of the Press in regard to "The Press in the second year of the National Socialistic State" is concerned, among other things, with the numerical overproduction that exists in newspaper publications. He demanded the removal of this condition. Proceeding from the fact that already before the 30th of January 1933, under the multiparty system at that time, there was an excess of newspapers at hand, he states that this fact stands out today even more strongly in the face of the subjugation of parties and other special interests. He emphasized further that, insofar as overproduction had been increased by the strong growth of the official Party Press, the affected publications of competitors would have to fall back behind the official Party Press. This point of view will be brought into effect in the execution of the order for the closing of newspaper publications for the purpose of eliminating unsound competitive conditions. In particular, the unsound competitive conditions are to be eliminated under which, newspapers with high circulation in the course of the developments fought each other as competitors. Considering the fact that in probably all these cases there were fewer newspapers with high circulation on 30 January 1933 than at present, then the result, without doubt, is that the publications concerned require such circulations, in order to be profitable in relation to the size of their business, as cannot be attained or maintained by means of sound advertising and competitive measures under the competitive conditions prevailing at present. The order thus serves the elimination of economically poor conditions which, seen from a long-range view, must cause prejudice, far beyond the small circle of the publications immediately concerned, to the German Press and to its cultural missions. This order promotes the conciliation and the organic development of the entire German Press. In this way, the order assures the press the opportunity to fulfill its noble task which it has to accomplish for the benefit of the nation and the people. Of course, the execution of this order, as is already indicated by its purpose, will be guided by the endeavor to utilize the existing economical values in the future to the greatest possible degree. The President of the Reich Chamber of the Press will therefore endeavor at first in every individual case to effect agreements which will relieve him of the necessity to issue orders for the closing of establishments. In this sense, the instructions, given at the end of Number II of the regulation, to the Reich Union of the German Newspaper Publishers, are of special importance.

PARTIAL TRANSLATION OF DOCUMENT 2319-PS

ORGANIZATION BOOK OF THE NSDAP

Edited by The Reichsorganisationsleiter of the NSDAP (4th edition, 1937).

Published by the Central Publishing House of the NSDAP, Franz Eher's
Successor.

[Pages 143-144]

The Organization of the NSDAP in Foreign Countries

The organization of the NSDAP in foreign countries (AO) is regulated from the standpoint of organization along district lines. The Director of the AO (with the rank of Gauleiter) is immediately subordinated to the Fuehrer's Deputy. The AO has its headquarters in Berlin. The Director of the organization in foreign countries is at the same time Chief of the Foreign Service Organization in the Foreign Office and directs the unified supervision of German nationals in foreign countries.

Duties and Authority

The duty of the AO is to win over the German nationals in foreign lands and in the shipping world to the National Socialist point of view and to keep alive the idea of a racial community over all classes, professions, and confessions in every single German, living in a foreign country.

The AO will keep itself aloof from all non-German issues.

The AO is the only competent party office for all Party Organizations abroad (with the exception of Danzig and Memel) and on board German ships. The Director of the AO is responsible for all measures, principles, and directives given in this sphere of activity. He is further responsible for seeing that the Special directives issued by all the competent offices of the Reich government are modified in such a way that they are suitable for conditions abroad in order that German interests are not under any circumstances endangered or damaged.

All party members domiciled abroad, who take up permanent residence there or who are employed in seagoing ships, are subordinate to the AO and are not to be considered party members of districts within the Reich. Party members engaged in shipping, who leave their work afloat and are without

work for at least six months, are to be transferred to the appropriate Gau within Germany, also party members abroad who return and take-up permanent residence in the fatherland.

Members of the families of German seamen, residing at home and who belong to the NS Women's Organization are administered by the NS Women's group—shipping—of the organization of the NSDAP in foreign countries. This pertains to all districts in which the AO—shipping has divisions, subdivisions, and branches.

Organization

The Staff of the AO carries the designation "Supervision of the Organization of the NSDAP in Foreign Countries."

The AO of the NSDAP is subdivided into national groups, national districts, districts, local groups, and branches. The term "national group" is to be used only for those countries which are particularly important as far as German nationals abroad are concerned. To all other countries the term "national district" applies.

The Party functionaries of the AO are:

1. The Director with the rank of Gauleiter.
2. The Deputy Director with the rank of Deputy Gauleiter.
3. The heads of the national groups (on account of different conditions in all of the different countries of the world in which the organization is to be found) with the rank of a district office leader.
4. The heads of national districts with the rank of a district leader.
5. The district leaders.
6. The leaders of local groups.
7. The leaders of branches.

The Office Chiefs in the Head Office of the AO, the commissioners for foreign countries, under whom are several national groups and national districts (partly in our part of the earth), and the leaders of the national groups have the rank of a Gauamtsleiter. Subordinate to the Director of the Office of AO Shipping Section of the NSDAP are:

1. The divisional leaders in Bremen, Hamburg, Luebeck, and Stettin with the rank of a Gauhaupt Stellenleiter.
2. Local group and branch leaders on board German ships.

In order to identify the political leaders and party members of the AO, the leader has permitted the members of the AO to wear a special badge. (See picture.) It portrays a black diamond which, set up on its point, is worn on the left arm (lower end 2 centimeters above the cuff). Within the black diamond are the two letters AO, for the Party Functionaries in gold and for all others in silver. Party members wear the badge *on the brown shirt*. The badge may only be worn, as long as the party member in question belongs to the AO. It is to be discarded as soon as he returns home and is transferred to a local group.

The graphical plan of organization serves to illustrate the organization in detail.

The entire business of all party offices with the organizations of the NSDAP abroad and in the shipping service must be carried out through the Director of the AO. The associations belonging to the party, who in the course of their operations endeavor to enlist German nationals abroad may only do this within the framework of the AO.

[Pages 295-312]

The Reichpropaganda Leader of the NSDAP and Propaganda Leader

The propaganda of the NSDAP, its organizations and associate groups is the responsibility of the Reichpropaganda leader of the Reich:

Duties

1. He determines the entire propaganda aspect of the movement including its organizations and associate groups.
2. He lays down the directions to be followed by the party including the organizations and associate groups as far as realizing the Fuehrer's wishes as regards culture are concerned.
3. He exercises control over the entire German radio system in regard to its interior organizational, cultural, and economic development.

4. The saturating of the German nation with national socialist ideology is his concern.

5. He enlightens the people concerning the Fuehrer's accomplishments both as regards party and State.

For propaganda purposes, the press, the radio, and films are put into use.

The Chief of Staff and adjutant are subordinate to the Reich propaganda leader.

The sphere of activity of the Reich propaganda leader can be divided into five groups, and each group is under the control of an office of its own.

1. Active propaganda.

2. Films.

3. Radio.

4. Culture.

5. Liaison Office.

Chief of Staff

Directly subordinate to the Chief of Staff are:

1. The "Reich ring for national socialist propaganda and national enlightenment."

2. The "Reichsautozug Deutschland" and the "Hilfszug" Bavaria.

3. The business center of the Reichpropaganda office.

4. The main office of press propaganda.

5. The main office for exhibitions and fairs.

The duty of the Reich ring for National Socialist Propaganda and national enlightenment is to insure the uniform direction of the propaganda of all organizations and associated groups, through the party. Through the duly qualified party functionaries one representative from the propaganda offices of all organizations and groups is allotted to the Reich ring. To these representatives are added representatives of certain offices of the Reich government, etc.

Office of press propaganda. The duty of the central office of the press propaganda is to revise, on the basis of newspaper technique, propaganda measures resulting from the general work of all offices of the Reichpropaganda leader and to submit them to the competent authorities of the national socialist party press as well as the rest of the press.

Central office for exhibitions and fairs. The duty of the central office for exhibitions and fairs is to supervise all exhibitions in which the party intends to participate, from a propaganda point of view.

1. *The Office of active propaganda.* The duty of active propaganda is to effect the uniform execution of all active propaganda measures from the large scale organizations of gigantic size with their architectural-like structure down to the organizations of local groups, and branches.

This means that the whole propaganda organization of the movement, its organizations and associated groups are combined.

Parallel with the daily handling of current political questions, there is the supplying of the entire speakers' staff with information and the provision of all propagandists of the Reich with the monthly magazine "Our Will and Way."

As a supplement to speaking, there must be the designing and distribution of appropriate placards and pamphlets as well as the careful examination of convention reports on the part of the speakers and the directors of propaganda.

A complete picture of the propaganda can be seen from the statistical survey of all reports coming from districts and Gaus (in regard to propaganda).

Central office of speaker's organization. The central office of speaker's organization comprises by way of its subordinate office "Speakers' organization" all Reich, Gau, and district speakers of the NSDAP as well as all Specialist Speakers of the organizations and associated groups. This staff of speakers for the whole movement is constantly furnished with material by the office of "Speakers' information," which counts as the only material for speeches and the only material for information by the party.

The "Speakers' Agency" of Reich speakers, shock troop speakers of the Reich propaganda Directorate and cadets for the Shock troops operates

through the office of “Speakers’ Agency.” The “Speakers School” subordinate to the central office does not only provide for a further supply of political and specialized speakers but also for constantly enriching the knowledge of all actively engaged speakers. For this purpose a special “Reich School for Speakers” has been installed.

The Party Speakers

Speakers are classified as follows:

1. Reich speaker.
2. Speaker for the Shock troops and cadets.
3. Gau speaker.
4. District speaker.
5. Specialized speaker.

(When announcing meetings, the speakers designations as they appear above are to be strictly adhered to).

Their employment is decided as follows:

- a. The principle of capability.
- b. The merits of the veteran fighter.

On principle, it is to be differentiated between political and technical speakers.

2. *Central office of the film industry.* The duty of the central office of the film industry is to exhibit such films regularly as adequately serve to enlighten and educate the masses and strengthen national socialist ideology. Associated with the film division is the office of photography.

The central office of the film industry is divided into:

- Organization
- Finance administration
- Production and technique
- Dramatic theory
- Cultural films
- Newsfilms
- Photography

3. *Central Radio office.* The radio organization of the NSDAP must exercise a constant control over the entire German radio system in order to synchronize the internal organization, cultural, technical, and economic development of the radio system with national socialist principles.

The effects of radio propaganda are assured through the organization of radio technicians with the assistance of all technical possibilities as regards transmission, for the coordinating of the entire nation in every corner of the Reich—whether listening in at home, in a community, to a national broadcast.

Central bureau of Cultural Political Radio Activities and Radio Organization: Transmitting and receiving system, cultural productions on the radio, broadcasts to schools, scientific radio work, radio for youth.

Organization of the broadcasting personnel (Reich radio association, individual association of the Reich Kultur Association, associations of people interested in radio) radio exhibitions.

Central office of radio technique, technical transmission service (loud speaker system), technical training in radio, short wave and amateur transmission, telegraphy and ultra-short wave system, technical production questions.

Central office of radio propaganda. Propaganda operations by radio, the recruiting of listeners, radio news system, political Reichtransmissions.

4. *Central office for culture.* The duty of the central office for culture is to stimulate, to preserve, to supervise artistic creation in the sense of the formal expression of the national socialist ideology and to incorporate into the Party Propaganda its organizations, and associate groups. The following serve this purpose among other things:

Central office of Architecture. The issuing of general directions and regulations concerning questions as regards the architectural structure of monuments and such edifices which serve the public activity of the national socialist movement.

Central office for artistic designs. The issuing of general directions and orders in regard to all other questions of the artistic designing of symbols, objects, etc., which are used in the public activities of the national socialist movement.

The issuing of general directions and rules for the artistic setting for demonstration and the organizing of National Socialist celebrations making use of cultural means.

Central office of selection. Part of the duties in this sphere of activity are the screening and selecting of musical and poetical works with the aim in view of using them at national socialist demonstrations and celebrations.

Central office of program organization. The drawing up of model programs for celebrations of the national socialist movement and for organizing settings for national socialist demonstrations on the basis of the type of tradition formed in the fighting days [Kampfzeit].

Elimination of unsuitable settings which may find their way into the movement through unauthorized agencies. War against trash, preservation of definite national socialist aspect in the settings for celebrations, the prevention of mystic and pseudoreligious falsification of our ideology, as a result of prodigious constructions by misguided cult devotees. Professional artists to be put to work following above-mentioned directives. Suitable persons will be chosen by the Reichpropaganda leader in the central office of culture, as permanent co-workers, especially for the purpose of operating in specialized fields. Practical courses for cultivation of folk songs for the purpose of finding the proper personnel for the planning of activities in all organizations of the movement. The "Proposals for the Planning of National Socialist Celebrations" issued monthly by the Central Office for Culture will furnish the leaders of propaganda and central offices for culture, with the necessary material. Therein are also found appropriate instructions for the planning of discussion evenings, membership meetings, evening meetings of the Hitler Youth, evening gatherings of SA and SS comrades, in a manner befitting our creed and to avoid monotony. The unity of the Party and legitimate cohesion within the cultural sphere is guaranteed through the coordination of the important offices. The Reich propaganda leader of the NSDAP is also president of the cultural association.

The Director of the office for culture of the Reich propaganda Directorate is also the director of Reich culture in the Reich Cultural Association.

5. *Liaison officer.* The duty of the liaison officer is to centralize all business with Reichministries, officials, and public bodies, etc. Thus it is assured that the general principles of propaganda are brought to the knowledge of the

appropriate Reich officials. In reverse, the liaison office brings all problems and instructions, that emanate from the Reich propaganda ministry to the knowledge of the Reich propaganda Directorate.

In order to coordinate the propaganda of both the party and the state, it is the duty of the liaison office to bring the general principles of the Reich propaganda directorate to the knowledge of the bodies subordinate to the Reichministry for national enlightenment and propaganda which are also associated with and administered by this Ministry.

The Gau, Office of Propaganda, as commissioner of the Gauleiter for the entire propaganda aspect of the national socialist movement, the Gauleiter Propaganda takes precedence over the Gau Propaganda Office.

For the purpose of carrying out the work of the district, the following leaders are under his jurisdiction as is the case with the Reich propaganda Directorate.

1. Director of active propaganda.
2. Director of films.
3. Director of radio.
4. Director of culture.
5. Director of The Gauring for national socialist propaganda and popular enlightenment.
6. Liaison officer.

The duties technically correspond to those of the Reichpropaganda Directorate.

The Gauleiter Propaganda is also director of national culture of the Reich cultural association. In this way it is assured that the cultural will of the national socialist movement is carried out even in the most insignificant parts of the Reich Cultural association (Reich Music Association, Reich Association of Fine Arts, Reich Literary Association, Reich Press Association, Reich Film Association, Reich Radio Association).

The Gauleiter Propaganda is also, in most instances, Director of the National Office for enlightenment of the people and propaganda.

The District Propaganda Office.

The Director of District propaganda is the commissioner of the Kreisleiter for the entire propaganda aspect of the party within this district.

The following are the responsibility of the Director:

1. Active propaganda.
2. Films.
3. Radio.
4. Culture.
5. Kreisring for national socialist propaganda and popular enlightenment.
6. Liaison office.

The liaison office maintains the connection between the Landrats and Regional [Bezirk] offices.

The duties technically correspond to those of the Gau Propaganda Office (according to need).

The Director of the Local Group Propaganda.

The Director of the Local Group Propaganda is responsible to the Party Functionary of the local group for the entire propaganda aspect of the movement.

In order to execute his duties, specialists on culture, films and radio are subordinate to him. He solves all problems of active propaganda direct, and he must also remain in constant communication with the appropriate mayor and chairman of the district council, respectively. In addition to that he maintains contact with the organizations and associate groups.

The duties technically correspond to those of the office of district propaganda as may be needed.

The Leader of the Branch [Stuetzpunkt] Propaganda

His sphere of activity corresponds with that of the leader of the local group propaganda.

The Chief of the Reich press of the NSDAP Offices of the Press and
Commissioners

In his decree of February 28, 1934, the Fuehrer formulated the sphere of activity reserved for the Chief of the Reich press of the NSDAP, the decree of the Fuehrer is as follows:

I. The Chief of the Reich press of the NSDAP is vested with the following powers:

1. He determines on my behalf the general policy of the entire editorial work within the party press. Moreover, he is as my Chief of press the final authority for all press releases of the party and all offices.

2. The editorial Staff of the Party Press as well as Gau journalists of the NSDAP are subordinate to the Chief of the Reich press as far as work is concerned. He has the right to interfere in all personal questions.

3. All existing press divisions, press bureaus, etc., existing within the party or within its subsidiary or subordinate organizations (political organization, SA and SS, Hitler Youth, German labor front), regardless of the particular organizational status of their work in the field of publishing, are subordinate to the Chief of the Reich press of the NSDAP and responsible to him.

4. The Chief of the Reich press of the NSDAP approves all news services and correspondence, which are issued by one of the offices of the NSDAP or regarded as national socialist.

The Chief of the Reich press of the NSDAP can take all necessary measures for the execution of his duties.

Berlin, February 28, 1934.

Signed: Adolf Hitler.

Corresponding with this order of the Fuehrer, the Office of the Chief of the Reich press of the NSDAP is the central office for all the political publishing activity of the party.

II. The technical authorities directly subordinate are:

1. *The Chief editors of the party press.* They are the responsible editorial leaders of the National Socialist party papers owned by the party and are directly responsible to the Chief of the Reich press as regards their editorial work. They have to be confirmed by the Chief of the Reich press and they can have the rank of a leader of a district office.

2. *The press representatives of the individual offices of the Reich Government.* They take care of the press interests of the larger organizations and party offices within the framework of the editorial and political principles of the Chief of the Reich press.

3. *The journalistic-political organ of the NSDAP.*

a. Editor-in-Chief of the Office of the District Press: The office of the district press is that office of the district which with the help of the party offices of the district, subordinate to it and associated with it as regards problems of journalism, represents the interests of the party through the medium of the papers and periodicals published in this district. This representation of interests involves particularly the progressive cooperation of the whole journalistic life of the district.

The office of the district press has the following functions to perform:

News and Information Service

The office of the district press furnishes the newspapers, by means of the regularly appearing National Socialist Gau Service, with all the news material in regard to all Party arrangements and events in the district. Moreover, its news information service, based on records is at the disposal of all papers for dealing with all questions, concerning the party.

The Personal News Service

The office of the district press makes information accessible to editors through press conferences, receptions with functionaries of the individual party offices, etc. It informs the editorial boards of the district of the special journalist political wishes of the Gauleitungen.

Information given to the party press:

The office of the district press, on the basis of reports of the political press organ, informs the editorial boards of the party press about the wishes of the readers in regard to newspaper technique. Moreover, it is in charge of local reporting of party affairs and educates the editorial board and press officials as regards newspaper technique.

b. The editor of the district press and the head of the local group:

The editor of the district press and the head of the local group respectively, have duties that are technically derived from those of the Head of the Office of the district press. Permission to publish must, however, in all cases be granted through the head of the office of the district press. Press representatives of the organizations and offices can also be requested here. In the hands of the press chiefs of the local groups, who can have the rank of a head of the office of a local group, there lies, above all, the reporting of local party news, namely, the journalistic evaluation of the entire social service work of the local group, formulated in accord with the directives of the political journalistic service.

III. In order to carry out his duties, the Chief of the Reich press has established the following bureaus in Berlin, as well as in Munich:

1. *The press personnel bureau with the office in Munich.* The press personnel bureau works out all personal questions, especially that concerning the conferring of the “party press armband” upon proved national socialist editors. (The armband is to be worn on the left forearm only on special occasions). Moreover in a special department the official gazette of the Reich Government is being prepared.

2. *The political press bureau with its office in Berlin.* The political press bureau concerns itself with the general principles regarding the work of the party press as well as the entire use of the political press organ of the party.

The head of the political press bureau has also been chosen by the chief of the Reich press as his commissioner for the entire press service system of the party and exercises the right of controlling and vetoing all press releases, which are issued by party bureaus or those which are regarded as national socialist.

The head of the political press bureau is editor-in-chief of the national socialist party press service [N.S.K.] The NSK is the only official press service of the NSDAP and it alone is empowered to publish in the name of the party, for all Reich Government offices, including their subsidiary and subordinate organizations. The NSK as press service is at the disposal of all the editorial staffs of the whole German press.

The political press bureau has its headquarters in the NS press House in Berlin. In the NS Press House all party papers are represented by their own

Berlin editors.

[Pages 307-310].

The Reich Director of the Press

Duty

The Reich Director of the Press has to perform the duties of a publisher and politician [verlagspolitische Aufgaben].

He is commissioned to furnish the German people with a press, which owes allegiance to them and is responsible to them and which is to reflect the life and the experiences of the German community. Furthermore, the Reich Director of the Press has the duty of taking the necessary measures to enforce the demands made on him as publisher and politician which are laid down in the program of the NSDAP under point 23 and to see that they are carried out. The latter applies especially to the decree of April 25, 1935 relative to “the preservation of the independence of the newspaper publishing business” and to the “closing of newspaper publishing houses for the purpose of eliminating unhealthy conditions of competition.” Finally he is commissioned to publish all the standard literature for the national socialist movement.

Authority

The Reich Director of the Press is authorized by the Fuehrer to take all necessary measures for the execution of his duty and he has the following powers:

1. The recognition of periodic publications as official party organs.
2. The decision concerning the founding and the appearance of periodic publications, which are published by party members, even when they do not aspire to recognition as official party organs.
3. *a.* The issue of general regulations for the whole publishing business to the entire press published by party members. The regulations are valid as orders, as long as nothing else is laid down by the Reich Director of the Press.
- b.* The decision over all questions of publication whose significance is a matter of principle and extends beyond the individual publication, when he

takes this decision upon himself. The publications in these instances are obliged to submit these questions to the final decision of the Reich Director of the Press.

c. The inspection at any time of all official party publications and their economic organization and direction, as well as the right and power of exercising influence.

The responsibility of the individual publishers for the direction of the publishing business is not affected thereby.

4. The employment of responsible directors and their deputies only takes place by the Reich Director of the press, who has to decide the person and the contract. The Reich Director of the Press decides whether the existing contract is to be continued or dissolved. The Reich Director of the Press is also empowered to appoint commissioners for directing publication, and their directives are to be followed by the publishers' staffs and by the entire firm. The right of appointing commissioners over the publishers' staffs is reserved for the Reich Director.

Subordination

The following are subordinate to the Reich Director of the Press:

1. The governing board of the Reich Director of the Press. The governing board sponsors and inspects the NS district publications. These are the ones recognized as party organs and as party newspapers which are exclusively party property. The directors of the NS district publications are political leaders on the staff of the district leader and are personally and officially subordinate to him. From a professional point of view the directors of the NS district publications are exclusively subordinate to the Reich Director of the Press. His approval is necessary for changes of personnel. Lower classifications in districts, etc., do not exist.

2. The central publishing house of the NSDAP with its publications: Voelkischer Beobachter, Der Angriff, Illustrierter Beobachter, Der S.A.—Mann, das Schwarze Korps, N.S.—Funk und Bewegung, Funktechnischer Vorwaerts, Der Arbeitsmann, Die H.J., Die Bewegung, Die Brennessel, N.S.—Monatshefte, Die N.S.—Gemeinde, Der Schulungsbrief, Unser Wille und Weg, Aufklaerungs und Rednerinformationen—Material, Reichsplanung, Deutsche Presse, Verordnungsblatt der Reichsleitung der NSDAP, Der

Parteirichter, Mitteilungsblatt der Kommission fuer Wirtschaftspolitik, Das Parteiarchiv, Der S.A.—Fuehrer (as well as the entire literature of the movement.)

The Reich director of the press is at the same time President of the Reich Press Association. In the following organizations, which are not party bureaus, the Reich Director of the Press is represented by a commissioner who has to direct the supervision of and the liaison with these organizations:

Reichassociation of German Newspaper Publishers.

Reichassociation of German Publishers of Periodicals.

Professional Association of the Radio-Press.

Professional Group of Student Publications.

Professional Group of the Youth Press.

Professional Staff of the Catholic Church Press.

Reich Association of the Evangelical Press.

Reich Association of the German Press and Information Bureau,
Incorporated.

Association of German Newspaper and Periodical Wholesalers.

Reich Association for the Recruiting of Periodical Trade.

Reich Professional Staff of the German Newspaper and
Periodical Trade.

Reich Association of German Railway Station Booksellers.

Reich Association of German Reading Circle Proprietors.

Reich Association of German Newspaper Stenographers.

Reich Association of the German Press.

Professional Staff of Publishing House Employees.

German Book Publishers. (Organized Brokers' Association and
League of Reich German Book Publishers).

Recruiting Office of German Economy.

The Chief of the Foreign Press

I. The Chief of the Foreign Press of the NSDAP is the highest party functionary for all matters affecting the foreign press. He is subordinate to the Fuehrer and his deputy. He is in charge of the governing body of all foreign Party Press Bureaus.

II. The offices of the chief of the foreign press are at the disposal of all party offices, organizations, and associated groups in all matters affecting the foreign press. (For example, instruction concerning German and foreign papers and periodicals abroad as well as foreign press correspondents in Germany.)

III. The Chief of the foreign press has offices in Berlin, corresponding to the office of the Fuehrer and his deputy in Berlin (with Referat: United States of North America) and Munich. The main office is in Berlin.

Foreign Political Office of the NSDAP

I. 1. The foreign political office (APA) of the NSDAP includes two different fields of operation: one domestic, the other foreign, in character.

2. In the domestic field, the APA is entrusted with the task of introducing the foreign political aims and endeavors of the National Socialist State into all offices and organizations of the party.

3. In the foreign field, the APA is entrusted with the task of enlightening those in foreign lands and especially the foreigners who visit Germany or remain there as foreign correspondents, of the nature and aims of National Socialism in order to arouse thereby the understanding of other people for the fundamental needs of the German people and to convince foreign nations that National Socialism in Germany desires peace for progress and peace with other nations without at the same time rejecting the defence of their right to existence.

II. 1. The APA is divided into three main offices:

A. Office for Foreign Referats with the Main Offices.

a. England and Far East.

b. Near East.

c. South East.

d. North.

e. Old Orient.

f. Controls, personnel questions, etc.

B. Office of the German Academic Exchange Service.

In order to effect as close cooperation as possible between the German academic exchange service and the party, the president of the German academic exchange service is chief official in the APA.

C. Office of Foreign Commerce.

2. Moreover, there is in the APA a main office for the press service and an educational office.

[Page 312]

The Commissioner of the Fuehrer for the Surveillance of the Whole Spiritual and Ideological Education of the NSDAP.

In order to effect the surveillance of the whole spiritual and ideological education of the NSDAP the Commissioner makes use of the following offices:

1. Chief of Staff.
2. Office of artistic development.
3. Philosophy and pedagogy.
4. Central office of national and ancient history.
5. Historical Referat.
6. Referat for Aryan ideology.
7. Referat for Nordic questions.
8. Central office for educational questions.
9. Referat for collection of material and curriculum (surveillance).
10. Referat Organizations.
11. Central office for the cultivation of literature.

12. Referat ideological information.
13. Organization and business administration.
14. Press Office.
15. Association for the Education of the whole movement.

For the purpose of promulgating an ideological train of thought, the Commissioner publishes the periodical “NS Monthly Magazine.”

* * * * *

[Page 327]

Colonialpolitical Office

For the treatment of all colonialpolitical and colonial economic questions within the national socialist movement and its press, the colonialpolitical office only issues general principles and instructions (see point 2 of the decree of the Fuehrer’s Deputy 17/34, series 71).

The colonialpolitical office is operated only as an office in the Reich Government of the NSDAP.

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[Page 337]

Official Party Board of Examiners for the Protection of NS Literature

I. The official Party Board of Examiners is not a censorship office, but an office for the protection and defense against pseudo-national socialist literature and it insures that the National Socialist ideology is not misused by an unqualified man and commercially exploited in a way that deceives the public:

II. The official Party Board of Examiners gives an opinion on:

1. The NS literature in a narrower sense.

To this belongs the NS literature that has come into existence by its immediate identification with the movement. This literature, corresponding with national socialist ideology, is exclusively political.

2. Literature related to national socialism.

From the point of view of time, this covers a very broad field and includes the literature dealing with political thoughts and demands that lie within the line of national socialist development.

III. A reliable staff of lecturers is at the disposal of the official examining Party Board of Examiners in an advisory capacity. Writings which have been considered satisfactory by the examiners will be added to the NS Library [NSB]. The chairman of the PPK leaves the publishing to the decision of the report by the lecturers. It is stated in this:

1. The work is unobjectionable from the standpoint of the political will represented by the party. The work will be marked unobjectionable in this case, i.e. the following sentence may be printed in the work. No objections are raised by the NSDAP against the publication of this writing.

2. Against the contents of a work no objections are offered. However, it cannot be classified as belonging to national socialist literature in a more narrow sense.

Here however, there is the possibility that the work will be added to the NSB under the category of literature related to national socialism. Such a work embodies in its text no notice that it has been examined.

3. The work does not agree with the principles of the NSDAP; hence it is rejected. Here there are the following possibilities:

a. The work may be put on sale but not brought into relationship with national socialism.

b. The writing may no longer be distributed. More detailed instructions are given by the president of the Reich Chamber of Literature.

4. Construction & Organization of PPK see Plan of Organization.

PARTIAL TRANSLATION OF DOCUMENT 2320-B-PS

ORGANIZATION BOOK OF THE NSDAP (1940)

“The young driver who has received his training in the six-week courses of the NSKK will be well prepared in body and spirit when the time comes for his military service, and will wear with pride the dress of the Armed Forces of the Nation.” [Page 394].

TRANSLATION OF DOCUMENT 2322-PS

HITLER'S SPEECH BEFORE THE REICHSTAG

1 SEPTEMBER 1939

Members of the German Reichstag:

For months we have been tormented by a problem once imposed upon us by the Dictate of Versailles and which, in its deterioration and corruption, had now become utterly intolerable. Danzig is a German City. The Corridor was and is German. All these territories owe their cultural development exclusively to the German people, without whom absolute barbarism would reign in these Eastern territories. Danzig was separated from us. The Corridor was annexed by Poland. The German minorities living there were mistreated in the most appalling manner. Already during the years 1919/20 more than one million people of German blood were driven from their homes. As usual, I have tried to change this intolerable state of affairs through proposals for a peaceful revision. It is a lie if it is claimed throughout the world that we insure all our revisions only by applying pressure. There was ample opportunity for fifteen years before National Socialism assumed power to carry through revisions by means of a peaceful understanding. This was not done. In every single case did I then take the initiative, not once but many times, to bring forward proposals for the revision of absolutely intolerable conditions.

As you know, all these proposals were rejected. I need not enumerate them in detail: proposals for a limitation of armaments, if necessary even for the abolition of armaments, proposals for restrictions on methods of warfare, proposals for eliminating methods of modern warfare which, in my opinion, are scarcely compatible with international law. You know my proposals for the necessity of the restoration of German sovereign rights over the territories of the German Reich, the countless attempts for a peaceful solution of the Austrian problem which I have made, and later, on the problem of the Sudetenland, Bohemia, and Moravia. It was all in vain. One thing, however, is impossible: to demand that a peaceful revision should be made of an intolerable state of affairs, and then obstinately refuse such a peaceful revision. It is equally impossible to assert that in such a situation to act on one's own initiative in making a revision is to violate a law. For us

Germans the Dictate of Versailles is not a law. It does not work to force somebody at the point of a pistol and by threatening to starve millions of people into signing a document and afterwards proclaim that this document with its forced signature was a solemn law.

In the case of Danzig and the Corridor I have again tried to solve the problems by proposing peaceful discussions. It was obvious that they had to be solved! That the deadline for this solution may perhaps be of little interest to the Western Powers is conceivable. But for us this deadline is not a matter of indifference! First and foremost, it was not and could not be a matter of indifference to the suffering victims. In Conferences with Polish diplomats I have discussed the ideas which you have heard me express here in my last speech before the Reichstag. No one can say that this was an improper procedure or even unreasonable pressure.

I then had the German proposals clearly stated and I feel bound to repeat once more that nothing could be fairer or more modest than those proposals submitted by me. And now I want to tell the world that only I could afford to make such proposals. Because I know very well that at that time I placed myself in a position contrary to the conception of millions of Germans by acting the way I did.

Those proposals were rejected. But not only that! They were answered by mobilization, by increased terrorism, by intensified pressure on the people of German blood living in these territories, and by a gradual economic, political and, during the past few weeks, even military strangulation and blockade of the Free City of Danzig. Furthermore, Poland virtually began the war against the Free City of Danzig. Furthermore, she was not prepared to settle the problems of the Corridor in a fair manner satisfying the interests of both parties. And lastly, she did not even dream of fulfilling her obligations with regard to the minorities. I have to state here that Germany has fulfilled her obligations in this respect!

Minorities living in Germany are not subject to persecution. Let any Frenchman get up and declare that French citizens living in the Saar territory are being oppressed, ill-treated, or deprived of their rights. No one can make such an assertion.

For four months I have watched these developments without taking action but not without issuing repeated warnings. Recently I have made these

warnings more and more emphatic. Over three weeks ago, the Polish ambassador was, at my request informed that if Poland persisted in sending further notes in the nature of an ultimatum to Danzig and in further oppressing the people of German blood, or if she should attempt to ruin Danzig economically through customs measures, Germany could no longer look on without taking action. I have left no room for doubt that in this respect the Germany of today is not to be confused with the Germany that existed before.

Attempts have been made to justify the action against the German minorities by declaring that they had provoked them. I am wondering in what the “provocation” through the women and children who are being mistreated and deported, consisted, or the “provocations” of those who were tortured in the most beastly and most sadistic manner and finally killed! One thing, however, I do know: there is not one single great power with any honor who would tolerate such conditions for any length of time.

In spite of it all I have made one last attempt. Although I am deeply convinced that the Polish Government—perhaps also because of its being dependent on an unrestraint, wild military rabble—is not seriously interested in a real understanding, I have nevertheless accepted a proposal by the British Government for mediation. The latter proposed that it would not carry on any negotiations but assured me that it would establish a direct contact between Poland and Germany in order to get the discussion going once more.

I must here state the following: I accepted that proposal. For these discussions I had drawn up the fundamentals which are known to you. And then I and my Government were sitting for two whole days waiting for the Polish Government to make up its mind whether to finally dispatch a plenipotentiary or not! Until last night it had not sent any plenipotentiary but informed us through its ambassador that at present it was considering the question whether and to what extent it might be able to accept the British proposals; it would inform England of its decision.

Members of the Reichstag! If such treatment is meted out to the German Reich and its Chief, and the German Reich and its Chief were to submit to such treatment, then the German Nation would deserve no better than to disappear from the political scene. My love of Peace and my endless

patience must not be mistaken for weakness, much less for cowardice. Therefore, I have last night informed the British Government that things being as they are, I have found it impossible to detect any inclination on the part of the Polish Government to enter into a really serious discussion with us.

Thus, these proposals for mediation are wrecked, for in the meantime the answer to these offers had been, firstly, the order for Polish general mobilization, and secondly new grave atrocities. Repetitions of the latter incidents occurred last night. Only recently twenty-one frontier incidents had occurred, there were fourteen last night. Three of them were very grave.

For that reason, I have now decided to talk to Poland in the same language Poland has been using toward us for months.

If there are statesmen in the West who declare that their interests are involved, I can only regret such a declaration; however, not for one single minute could that persuade me to deviate from the execution of my duties. I have solemnly declared and repeat once more that we have no claims at all on these Western powers, and shall never demand anything from them. I repeatedly offered Britain our friendship, and if necessary closest cooperation. Love, however, is not to be offered by one partner only; it'll have to find response from the other. Germany has no interests in the West, our fortifications in the West shall be the frontiers of the Reich for all times. We have no other aims in the future, and this attitude of the Reich will remain unchanged.

Some of the other European powers understand our attitude. First of all I'd like to thank Italy for having supported us all this time. But you'll also understand that we do not want to make an appeal for any foreign help in this struggle. This task of ours we shall solve ourselves.

The neutral powers have assured us of their neutrality just like we have previously guaranteed their neutrality. This assurance we consider a sacred obligation, and as long as nobody breaks their neutrality, we, too, shall observe it painstakingly. What could we desire or want from them?

I am happy to be able to inform you here of an event of special importance. You are aware of it that Russia and Germany are governed by two different doctrines. There was only one single question to be cleared up: Germany

has no intention of exporting her doctrine, and the minute Russia does not intend to export her own doctrine to Germany, I no longer see any reason why we should ever be opponents again. Both of us agreed on this one point: any struggle between our two people would only result in benefits for others. We have therefore resolved to enter into an agreement which will exclude any application of force between us in the future, which compels us to consult each other in certain European questions, which makes economic cooperation possible and above all makes sure that these two great powers don't exhaust their energies in fighting each other.

Any attempt on the part of the Western Powers to alter these facts will prove futile, and in that connection I should like to state one thing: this political decision signifies an enormous change for the future and is absolutely final.

I believe that the whole German people will welcome this political attitude. In the World War, Russia and Germany fought each other and up to the end they both suffered. That shall not happen a second time! The non-aggression and consultation pact was yesterday finally ratified in Moscow and in Berlin.

In Moscow, the pact was acclaimed just as you have acclaimed it here. I approve of every word in the speech made by Mr. Molotov, the Russian Commissar for Foreign Affairs.

Our aims I am determined to solve:

Firstly, the question of Danzig;

Secondly, the question of the Corridor;

Thirdly, to see to it that a change shall take place in Germany's relations to Poland, which will insure a peaceful coexistence of the two powers.

I am determined to fight until either the present Polish Government is willing to effect this change or another Poland Government is prepared to do so.

I am determined to eliminate from the German frontiers the element of insecurity, the atmosphere which permanently resembles civil war. I shall see to it that peace on the Eastern frontier shall be the same as it is on our other frontiers.

I shall carry out all necessary actions in such a manner that they shall not contradict the proposals which I have made known to you here, members of the Reichstag, as my proposals to the rest of the world.

That is, I will not wage war against women and children! I have instructed my air force to limit their attacks to military objectives. However, if the enemy should conclude from this that he might get away with waging war in a different manner he will receive an answer that he'll be knocked out of his wits!

Last night for the first time regular soldiers of the Polish Army fired shots on our territory. Since 5.45 a.m. we have been returning their fire. From now on, every bomb will be answered by another bomb. Whoever fights with poison gas will be fought with poison gas. Whoever disregards the rules of human warfare can but expect us to do the same.

I will carry on this fight, no matter against whom, until such time as the safety of the Reich and its rights are secured!

For more than 6 years now I have been engaged in building up the German armed forces. During this period more than 90 billion Reichsmark were spent building up the Wehrmacht. Today, ours are the best equipped armed forces in the world and they are far superior to those of 1914. My confidence in them can never be shaken.

If I call upon the Wehrmacht and if I ask sacrifices of the German people and, if necessary, unlimited sacrifices, then I am in the right to do so, for I myself am just as ready today as I was in the past to make every personal sacrifice. I don't ask anything of any German which I myself was not prepared to do at any moment for more than four years. There shall not be any deprivations for Germans in which I myself shall not immediately share. From this moment on my whole life shall belong more than ever to my people. I now want to be nothing but the first soldier of the German Reich.

Thus I have put on once again the coat which has always been the most sacred and dearest to me. I shall not put it aside until after victory—or I shall not live to see the end.

Should anything happen to me in this war, my first successor shall be Party member Goering. Should anything happen to Party member Goering, his

successor shall be Party member Hess. To these men as your leaders you would then owe the same absolute loyalty and obedience that you owe to me. In the event that something fatal should happen to Party Member Hess, I am about to make legal provisions for the convocation of a senate appointed by me, who shall then elect the worthiest, that is to say the most valiant among themselves.

As a National Socialist and a German soldier I enter upon this fight with a stout heart! My whole life has been but one continuous struggle for my people, for its resurrection, for Germany, and this whole struggle has been inspired by one single conviction: faith in this people!

One word I have never known: capitulation. And if there was anybody who'd think that hard times are ahead of us I'd like him not to forget the fact that at one time a Prussian king with a ridiculously small staff confronted one of the greatest coalitions ever known and came forth victoriously after three campaigns because he possessed that strong and firm faith which is required of us in these times.

As for the rest of the world, I can only assure them that a November 1918 shall never occur again in German history.

I ask of every German what I myself am prepared to do at any moment: to be ready to pay with his life for his people and for his country.

Whoever believes to have a chance to evade this patriotic duty directly or indirectly, shall perish. We will have nothing to do with traitors. We all are acting only in accordance with our old principle: our own life matters nothing, all that matters is that our people, that Germany shall live.

I expect of you, as deputies of the Reich, that you will do your duty in whatever position you are called upon to fill. You must carry the banner of resistance, cost what may. Let no one report to me at any time that in his province, in his district or in his group or in his cell the morale is low. Bearers, responsible bearers of the morale are you! I am responsible for the province your district! None has the right to shun this responsibility. The sacrifice that is demanded of us is not greater than the sacrifice which has been made by many generations in the past. All those men who before us have traveled the most bitter and hardest road did nothing different from what we are called upon to do; the sacrifice they made was no less costly,

no less painful, and therefore no easier than the sacrifice that may be demanded of us.

I also expect every German woman to take her place with unflinching discipline in this great fighting community.

German youth, needless to say, will do with heart and soul what is expected and demanded of it by the nation and by the National Socialist State.

If we form this community, forged together, ready for everything, determined never to capitulate, then our strong will shall master every emergency.

I conclude with the words with which I once started my fight for power in the Reich. At that time I said: "If our will is so strong that it cannot be broken through any distress, then our will and our German state will be able to master and subjugate distress."

Germany—Sieg Heil!

PARTIAL TRANSLATION OF DOCUMENT 2324-PS

RECONSTRUCTION OF A NATION

Hermann Goering, *Aufbau Einer Nation* (1934)

[Pages 86-87]

I declared at that time before thousands of fellow Germans, each bullet which leaves the barrel of a police pistol now, is my bullet. If one calls this murder, then I have murdered; I ordered all this, I back it up; I assume the responsibility, and I am not afraid to do so.

Through a network of outer offices converging into the headquarters in Berlin, I am daily, one could almost say hourly, informed about everything that happens in widespread Prussia.

[Page 89]

We had to deal ruthlessly with these enemies of the state. It must not be forgotten that at the moment of our seizure of power over 6 million people officially voted for communism and about 8 million for marxism in the Reichstag elections in March.

Thus the concentration camps were created, to which we had to send first all the thousands of functionaries of the Communist and Social Democratic parties.

[Page 92]

The Gestapo deserves a great deal of credit for the success of the revolution and for the consolidation of its achievements. Right in the middle of this constructive work, occurred the blaze that destroyed the high cupola and the auditorium of the Reichstag. Criminal hands had set this fire, had put the German Reichstag in flames, in order to give a last beacon to dying Communism, so that it could make one last desperate thrust before the Hitler government was consolidated. The blaze was to be the signal for the Communist party for general terror, for a general uprising and for civil war. That it did not have these consequences, Germany and the world owe not to the noble motives of Communism, but solely to the iron resolution and the hard fist of Adolf Hitler and his closest collaborators, who struck more quickly than the enemy had expected, and harder than he could imagine, and with the first blow suppressed Communism once and for all.

That night, when I ordered the arrest of 4,000 Communist functionaries, I knew that by dawn Communism had lost a great battle.

PARTIAL TRANSLATION OF DOCUMENT 2325-PS

1935 REICHSGESETZBLATT, PART I, PAGE 470

Decree on the Execution of Article 118 of the German Municipal Order, 26
March 1935.

On the basis of Article 118 of the German municipal order of 30 January, 1935 (Reichsgesetzblatt I, p. 49) I decree:

Article 1

The Fuehrer and Reich Chancellor reserves for himself the duties of the commissioner for the NSDAP for the city of Munich.

Article 2

1. The gauleiter appoints as commissioner for the NSDAP:

- a.* The Kreisleiter for communities belonging to a Kreis ["Kreis," an administrative district].
- b.* The Kreisleiter for Stadtkreise [city districts] or, one of the Kreisleiters, in case there are several party districts within one city district.

* * * * *

Munich, 26 March 1935

The Deputy of the Fuehrer
R. HESS
Reich Minister without Portfolio.

PARTIAL TRANSLATION OF DOCUMENT 2326-PS

1936 REICHSGESETZBLATT, PART I, PAGE 893

Reich Principles Regarding Recruiting, Appointment, and promotion of
Reich and Provincial Officials, October 14, 1936.

* * *

PROMOTION

Article 8

Only that official can be promoted who, besides absolutely fulfilling his general duties;

- a.* In consideration of his former political attitude offers absolute guarantee therefor, and has proved since January 30, 1933, that he takes the part of the National Socialist State at all times and represents it effectively.
- b.* Has given documentary proof that he and his spouse are of German or related blood (Article 1 a. paragraph 3 of the Reich officials law).
- c.* In his official achievements and abilities, completely fulfills the demands of the higher office. Length of service alone does not justify promotion in any case.

* * * * *

Berchtesgaden, 14 October 1936.

The Fuehrer and Reich Chancellor
ADOLF HITLER

The Reich Minister of Interior
FRICK

For the Reich Minister of Finance
REINHARDT

The Deputy of the Fuehrer
R. HESS
Minister without Portfolio

TRANSLATION OF DOCUMENT 2327-PS

TOP SECRET

Third Army Group
Ia Nr. 150/39 g.K. Chiefs
Re: Fall Weiss
Top Secret (Chefsache)
“Only by officer”

Dresden 6.14.1939

20 Copies

Control No. 8

1. The commander-in-chief of the army has ordered the working out of a *plan of deployment against Poland* which takes in account the demands of the political leadership for the opening of war by surprise and for quick success.
2. The order of deployment by the High Command, “Fall Weiss” authorizes the Third Army Group (in Fall Weiss 8th Army Headquarters) to give necessary directions and orders to all commands subordinated to it for “Fall Weiss.”
3. Enclosed are sent:

- a. Aims of the operation (Enclosure 1).
- b. Organization of the forces (Enclosure 2).
- c. Survey of arrival (Enclosure 3).
- d. Signal Communication (Enclosure 4).
- e. Regulations for the supply (Enclosure 5 will follow).
- f. Enemy situation (Enclosure 6).
- g. Directions for execution (Enclosure 7).

4. The order of deployment “Fall Weiss” will be put into operation on 20 August 1939; all preparations have to be concluded by this date.

The former deployments “Case West” and “Case East” are valid until 19 August 1939.

5. For the instruction on the tasks due to this order for deployment, the principles of order OKH Genstb d.H.—1 Division (Ib Nr. 2000/36 top secret of 12.19.36) are to be applied.

The instruction can be carried down to the responsible officers of the corps commands to the Division Commanders (G-3 (Ia) and G-4 (Ib)) of the divisions and the commandants and staff officers of the Garrison Headquarters. Permission to inform further persons must be requested by names. Communication with the SS-Leibstandarte Adolf Hitler must be instituted only by special order. The order for their commitment is to be prepared.

6. Tenth Corps Command (Gen KdX) and XIII Corps and 10. Div. can perform the necessary reconnaissance in Silesia while observing the appropriate precautionary measures (civilian clothes, motor vehicle, with civilian license number).

7. The whole correspondence on “Fall Weiss” has to be conducted under the classification Top Secret [Chefsache]. This is to be disregarded only if the content of a document, in the judgment of the chief of the responsible command is harmless in every way—even in connection with other documents.

8. For the middle of July a conference is planned where details on the execution will be discussed. Time and place will be ordered later on. Special requests are to be communicated to Third Army Group before 10 July.

9. I declare it the duty of the Commanding Generals, the divisional commanders and the commandants to limit as much as possible the number of persons who will be informed, and to limit the extent of the information, and ask that all suitable measures be taken to prevent persons not concerned from getting information.

Commander-in-Chief of Army Group 3
Signed F. Blaskowitz.

TOP SECRET

Enclosure 1 to 3rd Army Group
Ia Nr. 150/39
g-Kdo. Chfs of 14 June 1939

TOP SECRET [GKdos]
“Only by officer”
Top Secret [Chefsache]

20 Copies

Control No. 8

Aims of Operation “Fall Weiss”

1. *a.* The operation, in order to forestall an orderly Polish mobilization and concentration, is to be opened by surprise with forces which are for the most part armored and motorized, placed on alert in the neighborhood of the border. The initial superiority over the Polish frontier-guards and surprise that can be expected with certainty are to be maintained by quickly bringing up other parts of the army as well to counteract the marching up of the Polish Army.

Accordingly all units have to keep the initiative against the foe by quick acting and ruthless attacks.

b. If the development of the Political situation should show that a surprise at the beginning of the war is out of question, because of well advanced defense preparations on the part of the Polish Army, the Commander-in-

Chief of the army will order the opening of the hostilities only after the assembling of sufficient additional forces. The basis of all preparations will be to surprise the enemy.

Case b—is to be prepared in theory by the High Command only so that necessary changes can be quickly carried out.

TRANSLATION OF DOCUMENT 2329-PS

SECRET

[Stamp]

Top Secret

Through officers only

The Commander in Chief of the Army

Operations Section (Ia)

General Staff of the Army

HQ, Army High Command

No. 4402/39 Secret

7, October 1939.

11 copies,

2nd copy

General von Beck takes over command of the newly formed Army Group B on 10th October 1939 at 12.00 hours.

Task of Army Group B is the protection of the German boundary from the mouth of the Ems to the line of demarcation with Army Group C. For this task Army Group B holds the western fortifications; the resistance begins on the border.

The Dutch border between Ems and Rhine is to be observed only.

At the same time, Army Group B has to make all preparations according to special orders, for immediate invasion of Dutch and Belgian territory if the political situation so demands.

The order for the occupation is given by the Army High Command; until then, any border isolation of Dutch or Belgian territory must be avoided most carefully.

signed von Brauchitsch
certified Hensinger.
[signature] Jaiymyer

Distribution

Army Group B} by telegraph
Army Group C}

[Handwritten notes]
Chief J. N. W
8-10-39

Supreme Hq
Chief of Army Signal Corps
Chief of Quartermaster IV
Org Department
Gen of Air Force with Commander in Chief of the Army operation
Insp F 9/10 Me 10002/39 g. K.

Department (1a, 11, 111)

Ju 8-10

[Hand written notes]
Archives of the Army.
21st Army Group 6623 (9) F A LIL

TRANSLATION OF DOCUMENT 2330-PS

COPY

Nurnberg
August 29, 1935

Police Headquarters; Nurnberg-Fuerth
Re: Protective Custody.

Order for Protective Custody

On the basis of Article 1 of the VI of the Reich President for the protection of people and state, of 28 Feb., 1933 (RGBl I, p. 83) the ministerial decree of May 2, 1934, No. 2186 a 39, herewith is taken into protective custody:

Effective as of 3 August 35:

First and last name: Josef Simon

Place and date of birth: May 23, 1865 in Schnepfenbach, B. A. Alzenan.

Marital Status and Profession: Widowed, former Trade Union Secretary.

Citizenship: Subject of the German Reich.

Religion: Free thinker.

Place of residence: Nurnberg-N. Ziegelsteinstr. 106

The arrestee has no right to appeal against the decreed protective custody.

Reasons:

Simon was for many years a member of the Socialist Party and temporarily a member of the Union Socialiste Populaire. From 1907 to 1918 he was Landtag deputy of the Socialist Party; from 1908 to 1930 Social Democratic City Counsellor [Stadtrat] in Nurnberg. In view of the decisive role which Simon played in the international trade unions and in regard to his connection with international Marxist leaders and central agencies, which he continued after the national recovery, he was placed under protective custody on 3 May, 1933, and was kept, until 25 January 1934, in the Dachau Concentration Camp. Simon is under the urgent suspicion that even after this date he played an active part in the illegal continuation of the Socialist Party. He took part in meetings which aimed at the illegal continuation of the Socialist Party and propagation of illegal marxist printed matter in Germany.

Through this radical attitude which is hostile to the State, Simon directly endangers public security and order.

TRANSLATION OF DOCUMENT 2331-PS

Bavarian Political Police

Nurnberg, 20 December 1935

Declaration

I have been informed that I shall be released from protective custody, and that I have to expect to be taken into protective custody again in case that I should behave in a manner inimical to the State, or if I should be active in this sense.

I have been informed that, for my physical protection I may return into protective custody upon my own request.

I have been informed that I have to report in person at the Gend. Station Ziegelstein, competent for my residence, on every second day of the week at the same hour.

[signed] Josef Simon

Simon Josef, residing Nurnberg-N, Ziegelstein St. 106, widower, trade union secretary; born 23 May 1865 at Schneppenbach.

TRANSLATION OF DOCUMENT 2332-PS

Concentration Camp Flossenbuerg

Az II. Political Department/Sch.

Flossenbuerg, 22 December 1941.

To Frau Grete Staimer, Nurnberg.

In reply to your letter of 12 December 1941, enclosed please find the desired death certificate. At the same time I certify that the cremation has taken place in the crematorium of Flossenbuerg.

After the submission of a burial certificate from the competent cemetery officials the urn with the ashes can be sent to you free of charge.

The Camp Commander

By order of

(Signed) Fassbinder

Official Secretary.

TRANSLATION OF DOCUMENT 2333-PS

Police Presidium, Nurnberg-Fuerth
Protective Police [Schutzpolizei]
3rd Police District

Nurnberg, 29 Dec. 1941

To Frau Elise Herrmann, Nurnberg, Juvenllestr. No. 26

Your husband, Paul Herrmann, died of an infection in the concentration camp, Flossenbuerg, on December 28, 1941.

The corpse cannot be inspected because of the danger of infection.

The cremation will take place in the crematory of Flossenbuerg.

The Secret State Police Office
Nurnberg-Fuerth
/s/ Mueller

Authenticated
[illegible]
District Police Lt.

* * *

Death-Certificate

No. 7/1942

The baker Karl Herrmann, Lutheran Religion

Residence:

Flossenbuerg Concentration Camp
died on 28 December 1941 at 1400 hours
in Flossenbuerg Concentration Camp

The deceased was born 24 November 1873 in Wassertruedingen.

The deceased was married to Elise, nee Steiner, Nurnberg.

Flossenbuerg, 2 January 1942

[Stamp of Registrar, Flossenbuerg/Oberpfalz]

The Registrar:
/s/ Jaum

TRANSLATION OF DOCUMENT 2334-PS

Statement of Lorenz Hagen

During the night of 17th to 18th March 1933, the offices of the ADGB [Allgemeiner Deutscher Gewerkschaftsbund; German Trade Unions], which are located in Nurnberg, Breite Gasse 25/27, as well as the offices of the Builders' Union and the Unions of the Bookbinders, Bookprinters, Lithographers, Textile Workers and Carpenters were completely destroyed by the SA under the leadership of SA-Brigadier General [SA-Oberfuehrer] Wurzbacher. All the office furniture was smashed and thrown into the courtyard, the safes overturned, forced open from the back and robbed. The typewriters, adding machines, mimeograph machines, etc., were stolen.

The ADGB possessed a huge library of about 10,000 volumes for the use of its members. Every single book was torn and thrown into the courtyard.

The Workers' Secretariat, which was joined to the ADGB, had an extensive professional library of about 500 volumes, among them valuable works on literature of social security and labor legislation. These were also thrown out and torn to pieces. A similar fate met about 750 to 800 files covering the cases of beneficiaries of pensions (social, war and accident cases) whose claims for pensions were being worked on.

The SA posted continuous guards in the office building and nobody was permitted to enter. When I made the attempt to enter in spite of it, Wurzbacher said: "The Red rascal will get in but will not come out alive." When I got in later in spite of him, the SA tried to catch me, but I escaped.

In order to guarantee the continued function of the trade union, which was most urgently needed at that time, I set up an emergency office in Nurnberg, Hummelsteinerweg. This was occupied on 2 May 1933 by SA, led by Pessler who was the District-leader [Gauobmann] of the NSBO [National Socialist Factory Cell Organization; Nationalsozialistische Betriebszellen Organisation later DAF; the German Labor Front]. Erhardt Kupfer, the district secretary of the ADGB, was arrested at that time, kicked with rifle butts and led away by the SA in shackles. As the deputy of NSBO, a certain Mueller was appointed. Three SA men guarded the office day and night. Upon seizure, Pessler's first question to me was: "Where do you have your cars? I know you have three cars." When I answered that I never had a

personal car, he threatened to put me in jail until I would confess. When he finally realized that I did not have a car, he asked me what funds the Nurnberg local committee of the ADGB possessed. I said truthfully: "235,000 RM minus the sum stolen by the SA from the safes when they broke into the offices on the Breite Gasse and which amounted to about 4,000 RM." Whereupon he threatened again to have me arrested but he did not do so, probably on the basis of the general order not to arrest the chairmen of the local committees [Ortsausschussvorsitzende]. I learned about this order only a few days ago.

On 1 June 1933, the deputy Mueller came into the office and asked me whether I had not been arrested yet. I said no and indicated that the night before I had been in the apartment of my mother-in-law who was severely ill. I left the office without being noticed, hurried home, packed the most necessary things, and left by bicycle with my wife. We stayed away for about five weeks, traveling from one place to another.

After returning, I was arrested towards the end of August 1933, under the charge that I had agitated against the National Government and had conducted illegal recruiting for the forbidden ADGB and the Socialdemocratic Party. When no proof could be produced, I was released, but arrested again after 3 days. This time I was accused of having had knowledge of the arsenal of the Reichsbanner (Militant Organization of German Social democrats), and that I had organized the arming of the members of the Trade Union Offices. In cross-examinations conducted over many weeks, they tried to force a confession out of me. When I did not confess anything, I was to go to the concentration camp in Dachau. However, my wife succeeded in preventing this. After 3½ months, I was released again. After this release I tried to start a business, no matter of what kind. It was in vain. Similarly, it was impossible for me to find work in my former line as engine-builder. Reason: political unreliability. Thus I lived on a weekly unemployment benefit of 14.40 marks, with my wife, until my further arrest in August 1935. At this time I was charged with participation in the so-called middle-German insurrection of 1934, and with the smuggling of illegal writings from abroad. In spite of the greatest efforts and the application of the foulest methods, such as the poorest and most inadequate food, depriving me of fresh air, threatening me with being shot and beaten, again the Gestapo did not succeed in proving anything against

me. I was again set free after 12½ weeks. During this period of confinement, Kriminalrat Otto, the Gestapo-chief, tried to persuade my wife to convert me to National Socialism. He told her: "If your husband comes to us, this will be of greater value for us than the adherence of 1,000 other people. Your husband would get a position in which he would earn 3 times as much as ever before." My wife refused consistently.

The same story as before: unemployment, occasional meagre earnings, until the next arrest on 26 January 1938. This time they did a full-sized job and arrested my wife too. We were accused of preparing high treason against the country [Hoch- und Landesverrat] as well as maintaining connections abroad. The interrogations lasted until the middle of April. The Gestapo agent Beetz had a predilection for interrogations at night. Five searchlights illuminated the spot where you were sitting. Behind and before me, and on both sides, four men sat a distance of a few meters, pointing their revolvers at me and clicking the triggers. The interrogations, which were of course always fruitless, were repeated sometimes two or three times in one night. Terms like "Greatest scoundrel," "most common criminal," and others were used. One morning at five o'clock, Beetz called me and said: "You know your wife has been arrested too. She had a complete breakdown and struggles with death in her cell. She expressed the wish to see you once more before her death. I am willing to grant her wish, but only if you make a full confession." When I refused he had me taken back into my cell and in an indescribable psychic condition. Beetz asserted several times that the material at hand condemning me was sufficient for 5 years in the penitentiary. I then demanded to be taken before the investigating judge. This, however, was refused, and on 20 April 1938, I was shipped to Dachau Concentration Camp. There I came immediately into solitary confinement and had to undergo 32 days of severe bunker (strenger Bunker)-punishment. During this time I had to sleep on a wooden board without blankets, and received warm food only every 4th day. On 9 July, I was released from the bunker and taken into the camp. There I had to perform the heaviest work, in spite of my greatly weakened physical condition. One day I received from an SS guard a kick in the back which threw me against a lorry which was just passing by, and thus I broke my lower right rib. Once when a prisoner had escaped from the camp, all of the camp-inmates had to fall out after work and stand at attention in ranks throughout the night. There were 17 dead next morning. On 13 July 1939, on order of the Nurnberg-Gestapo,

I was taken off work and again put into the bunker and received again 64 days of rigid bunker-arrest until 28 September 1939, and was then shipped to Buchenwald Concentration Camp. There I came into the bunker again and stayed there until my release. During the whole time in Buchenwald I had to sleep on a board without a blanket. The food in the Buchenwald camp was so inadequate and inferior that at the time of my release I was a skeleton with skin over it. I wish to add that during my transfer to Camp Buchenwald, I suffered an inguinal rupture on the left side when jumping from a railroad car.

The release from the camp was accompanied by the express warning not to reveal anything about happenings in the camp. Otherwise, I would be returned there and never would have a chance to get out again. After my return to Nurnberg, I had to report daily at 10 o'clock sharp at the main office of the Gestapo. From July 1941, I had to report twice weekly to the police station in my district. After I was completely bombed out, on 9 March 1943, the order to report was rescinded.

After this release from Camp Buchenwald, I again could not find a job anywhere, although the Gestapo had told me that if I could not show that I had a job within 6 weeks, I would be returned to the camp, since my release was tentative only. It was only due to the kindness of a textile shop owner who employed me in spite of the warnings of the Gestapo that I was not taken into protective custody again.

On 22 August 1944, I was again taken to Dachau Concentration Camp because of the attempt against Hitler's life, and I remained there for six weeks.

I may add that I had to undergo 6 house-searches during which everything in my apartment was upset. In these instances, all books which seemed to be dangerous, magazines, pamphlets, etc., were taken away.

I was chairman of the A.D.G.B., Local Committee of Nurnberg, 1930-33.

(signed) Lorenz Hagen
Chairman of ADGB,
Local Committee of Nurnberg
formerly: Karthaeusergassergasse

Residence: Furth, Ritter v.
Aldebertstr. 3.

Today on the 17th of November 1945, I have reread each single page of the statement given by me on 19 October 1945 and I have signed it. I declare hereby under oath that this statement is true.

Signed: Lorenz Hagen

Sworn to before me this 17th day of November 1945 at the Justice Building, Nurnberg, Germany.

Signed: D. A. Sprecher, O2055516
Captain, AUS

Appendix to the Statement of the Chairman of the ADGB, Local Committee of Nurnberg

When I arrived at the concentration camp at Dachau, the manager of the Stokers and Machinists Union, Josef Staimer, who had been active in the above organization until 1933, was still in the Dachau camp. He had been arrested in March 1933 and shipped to Dachau. He was released from there near the end of 1938 or the beginning of 1939.

Karl Hermann, manager of the Union of Factory Workers, pay office [Zahlstelle] of Nurnberg, was for several weeks imprisoned in the same cell with me when I was taken into protective custody in 1935 in the prison of Nurnberg. The total period of his imprisonment was about 7 weeks at that time. The reason for his arrest was to force him to give his approval of the notarial transfer of the house of the Factory Union to the DAF. As private owner of the house, Hermann had been appointed together with another colleague of his organization to be the trustee of this house by the organization. In 1943 the two above mentioned men were taken to the Concentration Camp Flensburg. In 1944 they died in the camp.

During my stay in Dachau, we had Brigadier-General [Oberfuehrer] Loritz, who was the commander of the SS-Death Head-Unit [Totenkopfstandarte]

and chief camp commandant. He was a violent, brutal man. Here is only one example for this:

For a while I was occupied in an SS clothing camp with a prisoner-detachment. An SS 1st Lt. who was in the tailoring section, whose name I unfortunately do not recall, sent a prisoner to the gate of the building on which there was a clock to find out what time it was. Loritz caught sight of the man, struck at him with his riding-whip and had his name taken. When the detachment returned at noon, the man was led away and without being allowed to defend himself, he received 25 lashings [stockhiebe] and 3 days arrest with water and bread. The rest of the detachment had to stand at attention during the noon recess and return to work without eating. The camp commander of Dachau at that time was Captain Koegel, who was transferred in September 1938 to the concentration camp for women in Lichtenburg, near Prettin, where my wife was at the time of this transfer.

Captain Gruenewald followed him as camp commander. Gruenewald was transport commander when we were shipped to Buchenwald. I myself saw, during the unloading of the train at Weimar, how Gruenewald hit Czech arrestees, older people, in the face and neck with his fist. One of the men fell to the ground and could rise only with difficulty.

In my time, the SS-First Sergeants [Rapportfuehrer; work detail-leaders] were Hofmann from Bamberg and Luedtkemeyer, from Northern Germany. These two were also very brutal fellows, with whom beating and smacking on the pettiest grounds were the order of the day for satisfying their sadistic inclinations.

[signed] Lorenz Hagen
Residence: Furth, Ritter v.
Aldebertstr. 3.
Office: Nurnberg, formerly
Krathausergasse 12.

Today, on the 17th of November 1945, I have reread a duplicate copy of the appendix, which is an exact copy of the appendix to my statement of 19 October 1945. I have found that this statement is true. I declare this hereby under oath.

[signed] Lorenz Hagen
Lorenz Hagen

Sworn to before me this 17th day of November 1945 at the Justice Building, Nurnberg, Germany.

D. A. Sprecher, O2055516
Captain, AUS

TRANSLATION OF DOCUMENT 2335-PS

Josef Simon, born May 23, 1865

Since 1900, first chairman of the German shoemakers Union, located in Nurnberg.

In April, 1933, Georg Pessler, Nurnberg, Guntherstr. 33/I, the deputy assigned by the Nazis for the trade unions, came into our office, Essenweinstrasse 1 and declared that trade union dues were embezzled there. When we asserted that no embezzlements had occurred in our office, he asked for the cash book which we submitted to him. After turning the pages for a short while, he declared: "25,000 Marks are missing". He put the cash book into the safe, closed the safe and gave the key to the policeman, who had come with him.

We asked for an official public accountant to examine the books. A few days later the accountant, who had been assigned by Pessler, arrived and after checking he ascertained that with a cash amount of 4¼ millions there was a surplus of 13 pfennigs in the safe. In spite of this testimony, Pessler did not return the keys of the safe to us, closed our bank and checking accounts and asserted in meetings of factories that we had embezzled union dues. Only 3 weeks later could we get the keys of the safe again with the aid of the police.

On 2 May 1933, our office in Nurnberg was occupied; I myself had gone to Berlin on 1 May, because a meeting of the ADGB [Allgemeiner Deutscher Gewerkschaftsbund: German Trade Unions] was to take place there on 2 May. The trade union building there was occupied and the majority of the officials were arrested.

I was arrested on 3 May at 6 a. m., in my apartment in Berlin at the request of the Criminal Police of Nurnberg. After being kept in police custody in Berlin until 9 May, I was taken to the prison in Nurnberg and was shipped to the Dachau concentration camp on 30 June together with other arrested people (the social-democratic City Counsellors [Stadtraete] of Nurnberg). In Dachau the SS Guards had stirred up the Communists who had been imprisoned there for quite some time with these words: "Today your tormentors [Bonzen] will arrive, give them a nice welcome". It was only due to the insight of a few reasonable Communists that they kept their comrades from violent acts; nevertheless, we were greeted in the camp with the vilest invectives. If it had come to acts of violence, we would of course have defended ourselves and then the SS would have shot at the people, fighting with each other. That was the intention of the SS as we learned later.

The Communist Scheberle from Roothenbach near Lauf was Camp Senior and was in charge of assigning work details. He made us who had come in on 30 June fall out early on 1 July; we had to form ranks and then he shouted: "Reichstag deputy Simon step forward!" In this way a considerable number, particularly those who had had some responsible job, were called up and then we were led by the SS to work. I was ordered to collect horse dung which was lying on the roads of the camp with my bare hands, without shovel or broom and to carry it to a nearby container. Since I did not bend down fast enough in the opinion of my guard, an SS man about 19-20 years, he yelled at me and demanded faster work. I answered: "When you will be 68 years old and have sciatica, you will not bend down so fast either". By collecting the partly wet horse dung, my hands were soiled very much. When the work was finished, I asked the guard whether I could wash my hands at the water hydrant. He refused with the words: "No, you can go and eat with them". In the afternoon we had to fall out again and were assigned for work. I was ordered together with 19 other prisoners (among them, the meanwhile deceased "Kupfer", district leader of the ADGB) for work in the kitchen. There we had to clean the still very hot food-kettles. Since the circumference of the kettle was so big that we could not reach the other end, we had to crawl into the hot kettles which almost burnt our shoes. Bathed in sweat, we had to perform the work. When this was over, we had to line up in a group to have our photographs taken. I was in the center and a ready-made sign was hung around my neck which bore

the inscription: "I am a class conscious Socialdemocratic tormentor [Bonze]." Twice I tore the sign off and left it hanging only after having been threatened with beatings. After the pictures were taken, the younger ones had to fall in line and after the command "Attention" was given, the commander went to the rear and commanded "Forward march", then "halt", and said: "Repeat the following words: Fuehrer, we thank you that today for the first time we were able to perform some honest work". Then I was to go with the penal company to the gravel-pit. My son who was also in Dachau asked to go to the penal company instead of me. That was granted. Gradually, I was no longer assigned to work details. Anyhow there was a regulation that people over 65 should not be assigned to work any longer. In spite of this regulation, I, with my 68 years, was treated as mentioned above.

I was not mistreated, but at each and every opportunity abused with vile invectives. After almost 9 months of protective custody, among them 7 months in Dachau, I was released on 25 January 1934. Though I had to report every other day in Nurnberg to the police and was watched by the Gestapo.

At the beginning of August 1935, I was rearrested on the following grounds: "Simon was for many years a member of the Socialdemocratic Party and for a while of the Independent Socialdemocratic Party. From 1907 to 1918 he was Landtagdeputy of the Socialdemocratic Party and from 1908 to 1930 Social Democratic City Counsellor [Stadtrat] in Nurnberg. In view of the decisive role which Simon played in international trade unionism and in regard to his connections to international Marxist leaders and central agencies which he continued after the National Revolution, he was placed under protective custody on 3 May 1933 and was kept until 25 January 1934 in the Dachau Concentration Camp. Simon is under the grave suspicion that even after this date he worked for the illegal continuation of the Socialdemocratic. He took part in meetings which aimed at the illegal continuation of the Socialdemocratic Party and at the propagation of illegal Marxist printed matter in Germany.

Through this radical attitude, hostile to the State, Simon directly endangers public order and safety."

I was released from this protective custody on 20 December 1935. But it was this protective custody which caused much psychic suffering to me and undermined my health.

When in 1934 we were released from Dachau, the commander "Eicke" delivered an address, at the end of which he said: "Remember this, whoever returns here does not get out any more." Now I was afraid every day to get to Dachau again, and I was repeatedly threatened with it. Therefore, I suffered strongly in body and soul. My heart and nerves were particularly affected and there was in addition the bad food. When I was released on 20 December, I was already sick. Nevertheless, I had to report to the police every other day. When on 27 December I wanted to fulfill again my obligation to report there, I collapsed and lost consciousness in the garden of the police building. The ambulance took me home and I was unconscious for almost 3 hours. I recovered only gradually but since that time I suffer from a weak heart.

[signed] Josef Simon
Nurnberg, 18 October 1945

I hereby declare under oath the correctness of the above statement which oath is given by me on this thirteenth day of November 1945 at Nurnberg, Justice Building, before Captain D. A. Sprecher, AUS.

[signed] Josef Simon
Josef Simon

Sworn to before me, this 13th day of November 1945 in the Justice Building, in Nurnberg, Germany.

[signed] D. A. Sprecher
D. A. Sprecher, O2055516, Capt., AUS

Josef Simon, Nurnberg, Ziegelsteinstr. 106

As above already stated in my report on my arrest, my son Willi was also arrested on 29 June and taken to Dachau Concentration Camp. Nothing could be proved against him, except that he was my son. My son "Josef"

was to be arrested also and taken to Dachau. He avoided being arrested by fleeing and going via Schleswig-Holstein to Denmark, where he lives and works at present as a refugee.

My son Willi was asked by the SS guards in Dachau what sort of post he held. When he answered that he had had none, he was slapped in the face and ordered to confess, and at each declaration that he had no post he was slapped in the face again and again. Then the SS men poured water out in the basement of the washhouse and while my son had to wipe it off with a little rag he was beaten several times. After he had wiped up the water, the basement was drenched again with water and under further beatings he again had to wipe up the water.

During bathings in the winter of 1933 the prisoners who in the opinion of the SS did not get ready soon enough in the cold washroom were sprayed with a hose while half-dressed and chased outside. Because of the wet clothing my son contracted a severe cold in the form of an arthritis of the hip. He came into the dispensary. The pains became worse all the time and finally he was taken to a clinic in Munich for examination. The physician declared that my son had to remain in the clinic for treatment. This, however, was refused by the accompanying SS and he was taken to Dachau again, where he was again taken to the dispensary. I visited him in the dispensary and asked the medic to put his bed near the stove, a request that was granted. Only after several weeks did the condition of my son improve, and on 18 January 1934 he was released from Dachau.

For the truth of the above statements vouches.

[signed] Josef Simon
Nurnberg, 23 October 1945

I have again read carefully the report submitted by me on 23 October 1945 and I hereby declare under oath that the content is true. This statement is herewith made by me today, the 13 November 1945 at Nurnberg, in the Justice Building before Captain D. A. Sprecher, AUS.

[signed] Josef Simon
Josef Simon

Sworn to before me, this 13th day of November 1945 in the Justice Building, Nurnberg, Germany.

[signed] D. A. Sprecher
D. A. Sprecher O2055516
Captain, Army of the United States

Josef Simon, Nurnberg, Ziegelsteinstr. 106.

Karl Hermann, official of the Union of the Factory Workers, was arrested together with Staimer, on the denunciation by his nephew that he had together with Staimer, listened to foreign radio stations; they were shipped to the concentration camp Flossenbuerg in the Oberpfalz. There he was slain and the ashes were sent to his family.

I cannot name witnesses for this deed, but I attach a death certificate sent to his family. [See Document 2333-PS]

I vouch for the truth of the above statements.

[signed] Josef Simon
Nurnberg, 23 October 1945

Josef Simon

Nurnberg

Ziegelsteinstr. 106

When I was shipped on 30 June 1933 to the Dachau Concentration Camp, I met there Josef Staimer, an official of the Unions of Stokers and Machinists, who had already been arrested in April and sent to Dachau. As far as I remember, he was not released from Dachau until 1938.

In 1940, Staimer together with Hermann was arrested again on the basis of a denunciation and came to Flossenbuerg Concentration Camp in the Oberpfalz. He was slain there after a few months and burned in the Crematorium. The ashes were sent to his family.

I cannot name witnesses for this deed, but I attach a death certificate sent to his family. [See Document 2332-PS]

For the truth of the above statements vouches.

[signed] Josef Simon

Nurnberg, 23 October 1945

I have reread carefully both reports, as submitted by me on 23 October 1945, and declare herewith under oath, that the content is true. This statement is herewith made by me today, the 13th of November 1945 at Nurnberg, in the Justice Building before Captain D. A. Sprecher, AUS.

[signed] Josef Simon
Josef Simon

Sworn to before me, this 13th day of November 1945 in the Justice Building in Nurnberg, Germany.

[signed] D. A. Sprecher
D. A. Sprecher, O2055516, Captain, AUS.

TRANSLATION OF DOCUMENT 2336-PS

GERMAN LABOR FRONT

Organization Office

Chief Directorate of the Political Organization [P.O.] National Socialist
Factory Cells Organization

Berlin W., 27 June 1933
Luetzowufer 18, II

SPECIAL CIRCULAR

on the Securing of the Associations of the German Labor Front [DAF]
Against Hidden Marxist Sabotage.

To all:

Leaders of Worker and Employee Associations of the DAF Regional
[Bezirke],

District [Kreis] and Local Chapter Directorate [Ortsgruppenleitungen] of
the Worker and Employee Associations of the DAF,
Regional Leaders of the DAF,
Regional Leaders of German industry
and
National Socialist Works Organization [N.S.B.O.] of
“Landes” Representatives of the NSDAP
“Gau” Factory Cell Leaders of the NSDAP
District Factory Cell Leaders of the NSDAP
Local Chapter Factory Workers [Ortsgruppenbetriebswarte] of the NSDAP
in Berlin and the Reich.

[Stamp]

Main Archives
of the NSDAP
No.——

[Stamp]
Entered in the index of books
3 A/C current No. A-202.

Dear Party comrades.

The Situation

Today the third SA-man from Berlin has died, following on the burial yesterday, with the greatest ceremony, of his two comrades. The murderer was a *Marxist trade union member*.—A few days ago SA-men were fired at by *Marxists* in two other cities of the Reich.—Enemy aircraft dropped revolutionary *Marxist* leaflets over Berlin.—Shortly before the final edition of today’s local newspapers came out, it became known that a gigantic new scandal of corruption has been discovered in a land settlement society. The former *Marxist* “Gau” chairman of the Textile Workers’ Union

[Textilarbeiter-Verbandes] has been arrested as the chief swine and money maker. In Silesia signs have been discovered of a secret *Marxist* organization (Communist Party).

This is a small selection of daily events, chosen at random. *Marxists as murderers, Marxists as inciters to corruption, Marxists as foreign agents, Marxists as conspirators against the state and its institutions.* The notorious enemies of the state are opposed by the great mass of honest German workers who fight for work and bread. For fourteen years the “labor leaders” of Prague, Paris, Amsterdam, Warsaw gave to the millions of German workers *stones* instead of bread, *servitude to a foreign political system* instead of liberty. The 30th January, 5th March, 2nd May, 22nd June finally struck one weapon after the other out of the hands of this “Fuehrer” mob [gesindel]. The force and thoroughness of the National Socialist coups [Aktionen] made those who did not disappear into concentration camps creep into every dark corner.

They Played Dead.

However, now the generosity of National Socialism towards its adversaries, which was rightly mentioned by party comrade Dr. Ley in one of the last decrees of the DAF leaders, seems to have encouraged them to new treasonable activities from the darkness. There is much to indicate this. Here is just a small sample from a report submitted by the Gestapo, Berlin:

The functionaries of the free trade unions have received instructions to dismiss the assertions of the National Socialist Works Organization regarding the former embezzlement of union funds as slanderous. What is aimed at is permanent agitation on a considerable scale, particularly with the cooperation of the treasurers of the Social Democrat Party. All trade union members who have joined the National Socialist Works Organization so as not to lose their jobs are registered with full details and then visited by functionaries in their homes. An attempt is being made to group together all “class-conscious” workers who reject Fascism. The aim is to keep the trade unions as fighting organs in spite of National Socialist leadership. The old trade union leaders are convinced even today that there is no suitable soil in Germany for the plant of Fascism; nevertheless every effort should be made to shorten its existence.

These new working methods are contrived on the instructions of the international association of trade unions with which the leading German trade unionists are, as ever, in close contact. In short, the activity of the functionaries of the Marxist parties and Trades Unions is becoming more and more effective [aktiv].

They want again, although of course considerably weakened, to use as a spring board the countless millions of German workers who long for work and bread. They shoot their arrows from ambush, try to organize themselves illegally, and now and then even assume a cynical and impertinent attitude. *But they must have got a totally wrong idea of us! We are awake!* As new and qualified leaders of the workers and employees of the DAF and as political officials [Amtswalter] of the victorious National Socialist Works Organization, the sword of the DAF, and finally also the old, confirmed National Socialists who are accustomed to persecution, in all the leading and authoritative positions of the DAF, are, thank God, guarantees that the doings of our enemies come to nought.

Since we know that, we act accordingly. Our aim is:

1. *Expulsion of the last leading Marxist from all units of the associations of the "German Labour Front";*
2. *Therefore no softness, no false belief that we can "convert" them, since they hate us from the very bottom of their hearts and because Marxist big-wigs [Bonzen] can never be converted;*
3. *No more financial settlements, no respecting of all their dishonestly made agreements;*
4. *Close observation and a close check on their private activities, for they carry on propaganda against the state under the cloak of honest citizens;*
5. *See to it that they are regarded by the people as outlaws who really deserved to be hanged;*
6. *Have close observation instituted in the factories;*
7. *Finally do everything that helps the German workers and the German employees but cuts off the deposed Marxist big-wigs from every type of activity hostile to the state.*

We have one aim only; to unite the whole of German labour in a mighty block of workers for the blessing of the people and state. *Adolf Hitler* is the protector [Schirmheer] of the DAF—*that explains everything*.

The *Marxists*, at home and abroad, have also one aim only; to annihilate National Socialism and thus create chaos in Germany, nay, in Europe. The fronts are thus clear. The law of the National Socialist revolution demands therefore not only unceasing toil, but *fast* work at this very moment. Therefore the following orders are issued.

A

For the “General Association [Gesamtverband] of German Workers” of the DAF

1. *The organization office of the DAF is drawing up a “List of Outlaws” [Geeachteten]*

which is valid for the entire Reich and in which the names of all those Marxist trade union “big-wigs” [Bonze] will be included, who have carried on in the past and are still carrying on the most furious struggle against National Socialism and are continuing it in secret. Anyone on the “List of Outlaws”, will not be given work in the future. All organizations which have any vital connection with German industry are being sent this printed list, in order to prevent any of these traitors to the workers from returning to the factories by crooked means and possibly continuing their mutinous activity there.

In this connection, the Association leaders [Verbandsleiter] of the “General union [Gesamtverband] of German Workers” of the DAF will issue detailed executive instructions.

2. *No treasurer (or person holding similar office) in the associations may be a Marxist because these persons have the greatest opportunity of forming illegal nucleus groups. It goes without saying that suspicious treasurers, who can of course continue their former activities in spite of the fact that they no longer have the right to collect subscriptions, should be constantly watched.*

3. *The local group associations [Verbandsortssgruppe] are to be filled up as soon as possible with the members of other associations or groups who have been brought into line (Christian, former yellow, Evangelic, and*

Catholic workers unions, etc.) so that the block of “free” association members which has up to now been a closed community, may be split up. Public places known to have been frequented by the Social Democrat, Reichsbanner, or Communist Party, may no longer be used as meeting places of the local group association [Verbandsortsgruppen].

B

For the General Association [Gesamtverband] of German employees of the DAF.

It is above all the Catholic party leaders whom the Trade Unions have taken over who should be removed from the associations, those men who, it has been ascertained, are maintaining their connections with political Catholicism just as they always have. They are dangerous because they simulate submission and cheerful cooperation while in reality they wantonly hold up our work of reconstruction and make no secret of it among themselves. For example, here is one of many reports from our intelligence service:

“On Sunday, 23 April, at 11 A. M. in the Vincent-House at Breslau a meeting of the Christian trade unions was held to which all the representatives of the authorities were invited. The report was given by the Chief Editor of the “Deutsche”, Wiedfeld of Berlin. The meeting came to an end about 1:00 p. m. and closed with the National Anthem. In the afternoon the delegates from the province assembled to discuss the report in the absence of the representatives of the various authorities. No comment was permitted on Herr Wiedfeld’s report in the morning, in order to appear in a good light in the eyes of the representatives of the authorities, and this was expressly stated by the chairman of the afternoon meeting. The lively discussion showed immediately the methods followed and the goal aimed at by the Christian Trades Union. Violent attacks were launched against the present Reich Cabinet [Reichsregierung]. A representative of the Christian Trade Union attacked the Reich Chancellor, asserting that Adolf Hitler would never allow the leaders of the Christian Trade Unions to voice their opinions.

Then they spoke of the National Socialist Works Organization and pulled it to pieces. Citing a number of examples they went on to make further attacks on the Reich Cabinet and the National Socialist Works Organization. First

the Government was attacked; they said, for instance, that cars were left free of tax, while a great tax was levied on margarine and thus the standard of living of the poor was lowered. There had never been so much holiday work in upper Silesia as under the present Government. They declared that the NSDAP will have the surprise of its life in Autumn, when the people will have nothing to eat, they will then take to open fighting and destroy National Socialism in the same way as the Socialist Party has been destroyed today. We dealt with 1918 (i.e. Christian trade union) and will deal with the Nazis too. One must be on one's guard against Minister Goering, for this fellow is heading straight for Dictatorship. It is important to keep a good watch on the National Socialist Works Organization, inform the people of every mistake and explain to the people that the Nazis are completely unable to carry out what they say."

This "Christian", sabotage applies of course also to the Workers' Associations.

C

For the branches [Gliederungen] of the National Socialist Works Organizations

1. The National Socialist Works Organization is above all the security organ of the entire German Labour Front, i.e. it has to protect day and night the great work of our slowly progressing unification of all German workers and prevent any kind of sabotage. This is carried out in two ways:

a. Through the already National Socialist Works Organization officials [Amtswalter] in the associations themselves and

b. By keeping a watch on factories, houses and public places which appear suspicious to us, by means of NS B. O. patrols drawn from the "Gau" and District [Kreis] factory cell-divisions [Betriebszellenabteilung] and the local group factory wardens [Ortsgruppenbetriebswarte] detailed instructions will be issued later to the Gau factory cell divisions direct.

2. However, the branches of the National Socialist Works Organization must themselves be subjected to a thorough purge of members because their rapid growth has brought us many unreliable elements.

It is only the man who pledges his life-time unreservedly, unselfishly, and devotedly to the fight for the rise of German labour (brain and manual

workers), and thus for the whole people, who should be a member of the National Socialist Works Organization. But any man who has joined the National Socialist Works Organization on the chance of amassing wealth, or has regarded his membership as a safeguard against losing his job, etc., in short, any man who has joined this fighting body [Kampftruppe] for material reasons, must leave it. The man who was a Marxist only yesterday and fought openly against us, but today will have nothing more to do with it, must also leave. These are nothing but dangerous disruptive elements [Spaltpilze] who poison morale when it comes to tests of endurance.

It would be a definite benefit for the National Socialist Works Organization if quite 100,000 of our most recent members leave our ranks. The Gau factory cell leaders [Gau-Betriebszellenleiter] must therefore issue orders to this effect.

3. Herewith an order is issued effective until further notice, prohibiting National Socialist Works Organization officials [Amtswalter] and/or ordinary members beyond the N.S.W.O. membership number 450,000, from holding any positions whatever in the associations of the German Labour Front. The new members do not yet possess that degree of suitability for leadership which we must demand for the great tasks which have to be accomplished in these associations.

Care has been taken that those “freshmen” who are not needed as officials [Amtswalter] in the National Socialist Works Organization or in the associations, are thoroughly familiarized by rapid courses with National socialist ideas, so that they can then be employed.

4. All positions on factory and employee counselors' councils in Germany must be filled by National Socialists. There must no longer be any factory in which Marxists or “Christians” hold the leading positions. Orders should therefore be given immediately that Communist and Catholic factory or employee councils who are still holding office should be dismissed. To prevent this being carried out in a wild and undisciplined manner, it is laid down that the responsible Regional leader of the German Labour Front, in conjunction with the Gau Director of factory cells should from time to time, decide on the necessary orders (in agreement with the Regional leader of German industry).

The above schemes [Ausfuehrungen] and orders are *to be put into effect immediately* with proven National Socialist thoroughness. No pardon to the enemy but stake all for the victory of the National Socialistic revolution.

Signed Muchow

Director of the Office of the Organization of the German Labour Front and
Deputy Director of the National Socialist Works Organization of the
Political Organization of the N.S.D.A.P.

PARTIAL TRANSLATION OF DOCUMENT 2340-PS

1937 REICHSGESETZBLATT, PART I, PAGE 41

German Public Officials Law of 27 January 1937

A career as a public official, rooted in the German people and permeated by National Socialist ideology and loyalty bound to the Fuehrer of the German Reich and people, forms a foundation pillar of the National Socialist State. Therefore the Reich Government has enacted the following law, which is hereby promulgated.

CHAPTER I

Official Relationship [Beamtenverhaeltnis]

ARTICLE 1.

(1) The German official stands in a public service and trust relationship to the Fuehrer and to the Reich.

(2) He carries out the will of the state, which is based on the National Socialist German Labor Party.

(3) The state demands of the official absolute obedience and complete fulfillment of duty; in return it guarantees him a position for life.

* * * * *

CHAPTER II

Duties of Officials

1. General

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ARTICLE 3.

(1) A position in the public service is proof of confidence on the part of the state leadership, which the official must justify by being constantly aware of the increased duties which his position imposes upon him. Fuehrer and Reich demand of him true patriotism, a spirit of self-sacrifice, and complete dedication of his efforts, obedience to his superiors, and comradeship toward his colleagues. He must be a model of loyal fulfillment of duty to all his fellow citizens. He must be faithful to the death to the Fuehrer, who assures him his special protection.

(2) The official must at all times support without reservation the National Socialist State and in all his behavior must be guided by the fact that the National Socialist German Labor Party, in indissoluble union with the people, is the basis of the German state concept. He must report to his superiors occurrences which might endanger the existence of the Reich or of the National Socialist German Labor Party, even when he has not learned of them in the course of his official duties.

(3) The public official is responsible for conscientious fulfillment of his official duties. By his conduct, on or off duty, he must prove himself worthy of the respect and confidence which his profession enjoys. He must not permit any member of his household to engage in any dishonorable activity.

2. Oath of Allegiance.

* * * * *

ARTICLE 4.

(1) The official confirms his special unity with the Fuehrer and the Reich with the following oath, which he must take upon entering upon his first duty:

“I swear: I will be loyal and obedient to the Fuehrer of the German Reich and people, Adolf Hitler, obey the law, and conscientiously perform my official duties, so help me God.”

(2) If a law permits members of a religious affiliation to use other forms of affirmation instead of the oath, the official who is a member of such a religious affiliation may use such form of affirmation.

(3) If the official declares that he has objections to taking the oath in religious form, he can take it without the final words.

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CHAPTER IV

Appointments and Transfers

1. Appointments

* * * * *

ARTICLE 25.

(1) Only a person who is of German or related blood and who, if he is married, has a spouse of German or related blood can become an official. If the spouse is a mixed-blood second degree, an exception may be made.

(2) An official may marry only a person of German or related blood. If the betrothed is a mixed-blood, second degree the marriage may be approved.

(3) For the admission of an exception under subdivision 1, 2nd sentence, and the approval under subdivision 2, 2nd sentence, the supreme office authority in agreement with the Reich Minister of the Interior and the Deputy of the Fuehrer are the competent authorities. The same authorities may also permit exceptions to subdivision 1, 1st sentence and subdivision 2, 1st sentence, in individual cases.

ARTICLE 26.

(1) Furthermore, only such person may assume public office, who—

1. is a citizen of the Reich or is not a citizen yet only because he does not yet fulfill the requirements therefore because of his age,

2. has the preliminary training prescribed for his career or, in the absence of such regulations, the customary preliminary training or other special requirements for the office to be entrusted to him, and

3. offers guarantee that he will at all times support the National Socialist State without reservation.

(2) Exceptions to subdivision 1, No. 1 require the approval of the Reich Minister of the Interior in agreement with the Deputy of the Fuehrer or the

authorities appointed by them.

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CHAPTER VII

Termination of Official Relationship

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2. Dismissal from Office

(a) Refusal to take the oath

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ARTICLE 57.

Whoever refuses to take the oath of allegiance prescribed by law is to be dismissed.

3. Retirement

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(d) Political Reasons

(1) The Fuehrer and Reich Chancellor may retire a life-time or temporary official on the request of the supreme office authority in agreement with the Reich Minister of the Interior, if the official no longer offers guarantee that he will at all times support the National Socialist State.

(2) The facts justifying this request are to be ascertained in an investigation in which the questioning of witnesses and excerpts on oath is permissible and in which the official is to be heard.

Berlin, 26 Jan. 1937

The Fuehrer and Reichs Chancellor
Adolf Hitler

The Reichs Minister of the Interior
Frick

The Reich Minister of Finance
Count Schwerin von Krosigk

PARTIAL TRANSLATION OF DOCUMENT 2341-PS

1939 REICHSGESETZBLATT, No. 38, 2 MARCH 1939, PAGE 371

Decree on the education and careers of German officials of 28 February
1939

* * * * *

Par. 2.

The applicants must belong or have belonged to the party or one of its formations. In the selection the personal aptitude and character are decisive. Honorably discharged workers and soldiers (cf. par. 16 (1) and par. 17 of the decree on the care for soldiers and workers in the form of 29 Dec 1937 —RGBl I, p. 1417) and children of child-rich families have preference. For pension applicants the special decrees apply.

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TRANSLATION OF DOCUMENT 2342-PS

1936 REICHSGESETZBLATT, PART I, PAGE 369

Law on the People's Court and on the 25th amendment to the Salary Law of
18 April 1936

The Reich Cabinet [Reichsregierung] has passed the following law which is hereby promulgated:

CHAPTER I

ARTICLE 1.

The People's Court is a regular Court in the sense of the law on judicial organizations.

ARTICLE 2.

The People's Court is comprised of one president and the necessary numbers of presidents of the senate and councillors as main official members [hauptamtliche Mitglieder].

ARTICLE 3.

The president, the presidents of the senate and the councillors are appointed for life-time. They have to be qualified for the judge's office and must have completed their 35th year of age.

ARTICLE 4.

The honorary members of the People's Court are appointed by the Fuehrer and Reichs Chancellor for the duration of 5 years upon recommendation of the Reichsminister of Justice.

ARTICLE 5.

Senates are formed at the People's Court, the number of which is determined by the Reichsminister of Justice.

ARTICLE 6.

If it is necessary for lawful course of affairs, permanently employed judges may be called in temporarily as assistant judges to the People's Court in case of an accumulation of business. The delegation of an assistant judge may be called off before the end of the time, for which the assistant judge has been called in, only if the emergency, by which it was caused, does no longer exist.

ARTICLE 7.

The office of the public prosecutor at the People's Court is filled by one or several Reich prosecutors or State prosecutors. They are nonjudicial officials, must however be qualified for the judge's office.

ARTICLE 8.

At the People's Court an office will be established which will be filled with the necessary number of recording officials.

CHAPTER II

ARTICLE 9.

The Reich pay law of 10 December 1927 (RGBl I, p. 349) will be changed as follows:

1. To the pay class A will be added:

- a. in pay group Ib after “directors of law courts”: “Chief State Prosecutors at the People’s Court”;
- b. in pay group 10a after “Sergeant of the German Supreme Court” [Reichsgerichtswachtmeister];
- 2. To the pay class B will be added:
 - a. in pay group 3b under Section “Reichministry of Justice” before “president of the highest court of Justice” [Kammergerichtspräsident]: “President of the People’s Court”;
 - b. in pay group e under section “Reichministry of Justice” after “Senate President at the German Supreme Court,”: “Senate president at the People’s Court, Reich Prosecutor as head of the State Prosecutor’s office at the People’s Court” and in note I after “German Supreme Court”: “and at the People’s Court as well as the Reich Prosecutor as head of the State Prosecutor’s office at the People’s Court”;
 - c. in pay group 8 under Section “Reichministry of Justice” before “Presidents of District Courts at Courts with 30 or more organic [planmaessig] judges in the district”: “Councillors at People’s Courts”.

ARTICLE 10.

Of the positions printed in the budget of the Reichministry of Justice for the financial year of 1935 (individual plan IX) at Chapter 2 (German Supreme Court) the following positions are transferred to Chapter 2a (People’s Court):

Group B 7: 1 Reich Prosecutor.

Group A 2b: 2 Chief State Prosecutors.

Group A 2d: 4 senior judges in law courts of justice (6 of whom to be transformed in future).

Group A 4b: 6 Chief inspectors of the Government.

Group A 4c: 2 inspectors of the Government.

Group A 7: 6 Secretaries.

Group A10: 6 Sergeants of the German Supreme Court [Reichsgerichtswachtmeister].

(2) In the budget of the Reichministry of Justice (Individual Plan IX) the following organic positions will be newly created in Chapter 2a (People's Court):

Group B 3b: President of the People's Court.

Group B 6: 2 Senate presidents at the People's Court, 1 Reich Prosecutor (under transformation of the Reich Prosecutor's position of Group B 7 transferred from the German Supreme Court). They receive an irrevocable extra pay of 1000 RM which can be added to the base pay, for purpose of pension [pensionsfaehig].

Group B 8: 6 Councillors at the People's Court.

Group A 1b: 2 Chief State Prosecutors at the People's Court.

Group A 2b: 2 Chief State Prosecutors.

Group A 10a: 1 Chief Messenger's supervisor.

He receives extra pay for this position of 300 RM which can be added to the base pay for the purpose of pension [pensionsfaehig] and is irrevocable.

5 Sergeants of the People's Court under transformation of 5 positions of sergeants of the German Supreme Court taken over from the German Supreme Court.

CHAPTER III

In as far as laws or other regulations refer to the Chief Reich Prosecutor as authority of indictment at the People's Court, his place will be taken by the Reich Prosecutor at the People's Court.

CHAPTER IV

The Reichministry of justice will issue the legal and administrative regulations necessary for the execution of this law.

CHAPTER V

(1) This law shall take effect as of 1st April 1936.

(2) The honorary members of the People's Court appointed on the basis the former regulations continue to remain in office according to their appointment hitherto. The same holds good with regard to members who have to be qualified for the judge's office. On 31st October 1936 however those are being eliminated who will not have been appointed up to this date to main official members of the People's Court.

(3) If members of the German Supreme Court and Reich Prosecutors are being transferred to the People's Court up to 1st April 1937, they will receive in case of their being retired at least the pension to which they would have been entitled if they had remained in their former positions at the German Supreme Court.

Berlin, 18. April 1936

The Fuehrer and Reich Chancellor
Adolf Hitler

The Reichministry of Justice
Dr. Guertner

The Reichministry of Finances
Count Schwerin von Krosigk

The Reich War Ministry and Supreme
Commander of the Armed Forces
von Blomberg

TRANSLATION OF DOCUMENT 2344-PS

RECONSTRUCTION OF A NATION

[Aufbau Einer Nation]

by Hermann Goering, 2nd Edition, Published by E. S. Mittler & Son, Berlin
1934, [Page 89].

* * * * *

Against the enemies of the State, we must proceed ruthlessly. It cannot be forgotten that at the moment of our rise to power, according to the official

election figures of March 1933, six million people still confess their sympathy for Communism and eight million for Marxism.... *Therefore, the concentration camps have been created, where we have first confined thousands of Communists and Social Democrat functionaries.*

* * * * *

PARTIAL TRANSLATION OF DOCUMENT 2347-PS

1935 REICHsverwaltungsblatt, Vol. 56, No. 29, Pages 577-578,
dated 20 July 1935

(Editorial Board: A. Mirow, *Dr. H. H. Lammers*, H. Pfundtner, Dr. O.
Koellreutter, Dr. F. A. Medicus)

II. COURT DECISIONS

Survey of decisions of the Supreme Administrative Court
[Oberverwaltungsgericht]

Police in General

(Rush-reprint)

Since the Law on the Secret State Police [Geheime Staatspolizei] of 30 November 1933 (GS.S. 419) became effective, decisions of the Office of the Secret State Police [Geheimes Staats Polizeiamt] can no longer be contested according to the provisions of the Law on the Administration of Police. The only remedy against them is a complaint to the superior authority.

Legal status of the Bureau of the Secret State Police according to the Law on the Secret State Police of 30 November 33.

On September 4 1934 the Association Secretary filed a suit against the Secret State-Police at the District-Administrative Court in Berlin. The association asserted that on 23 August 1934 their president had been informed by two officials of the office of the Secret State-Police that the assets of the association would be sequestrated for the purpose of an eventual confiscation.

With the decision of 1 November 1934 the District-Administrative Court decided to dismiss the suit.

The appeal of the plaintiff against this decision could not have any success.

The District-Administrative Court in this case dismissed the suit on the ground of the inadmissibility of such an action to this court. According to the principle of enumeration quoted by the judge of first instance a suit can be filed with the administrative courts only if legal provisions expressly rule to that effect. The right of legal redress as provided by the law relating to the Police-Administration applies according to the wording of this law only to the police orders issued by the ordinary police-authorities, i.e. the police-authorities of the community, the district, or the province. The sequestration order in question has not been issued by an ordinary police-authority; on the contrary it had been issued by the Office of Secret State-Police, the legal status of which has been provided by the Law of 30 November 1933.

With this law an authoritative status was given to the Secret State-Police which was basically different from the one at the time it was created, based on the Law of 26 April 1933. By virtue of this last-mentioned law, the Office of the Secret State-Police should act in political matters “at the side of or in the place of the ordinary police-authorities” and “should have the status of a Province-Police-Authority”....

This legal status was changed, as the District-Administrative-Court properly recognized, when the “Secret State-Police” was created. An authoritative organization was created thus, the status of which is expressly determined by law to be exempt from the sphere of the Minister of Interior, otherwise competent in all Police matters.

Section 1, subsection 1, sentence 1 and 2 of the Law of 30 November 1933 quotes:

“The Secret State Police is forming an independent branch of the interior administration. Its chief is the Prime Minister”. The conception “interior administration” here is not used in the usual meaning of today according to which this word designates the specified affairs within the sphere of the Minister of the Interior—as for instance in comparison with the administration of commerce or public instruction, etc....

That the Secret State Police became an independent organization is clearly shown on one side by the fact that it is subordinated as a whole to the Prime

Minister, and then by the creation of special authorities designated with specific names.

Concluding from all this the legal status of the Office of the Secret State Police since the Law of 30 November 1933 became effective is the following: The office is part of a special authoritative organization, the "Secret State Police" which forms an independent branch of the Administration of the Prussian State. It has, like the Secret State Police as a whole, its special field as to the nature of its tasks: the management of affairs of the political police. Therewith the characteristic signs are given of a "Special Police Authority" within the purview of Section 2, subsection 2 and section 8 of the Law relating to the Administration of the Police, an authority detached from the organization of the ordinary police-authorities entrusted with a special police task. It cannot be considered part of the limited circle of police authorities, i.e. State [Landes] authorities, Kreis or local authorities, pursuant to Section 2, subsection 1 of the Law relating to Police-Administration, as in relation to them it figures rather as a central authority pursuant to the mentioned provisions of Section 3, subsection 2 of the law of 30 November 1933.

From the thus signified character of the Office of the Secret State Police, which therefore doubtlessly forms a special-police-authority it can be concluded that its orders as mentioned before, are not subject to the provisions of the law relating to the Police-Administration in regard to means of redress. Neither does the Law of 30 November 1933 provide for the contesting of a decision by a suit (filing an appeal) at the administrative court. Therefore the party affected by such orders has only the general legal remedy of a complaint to the supervisory authority.

Decree of 2 May 1935 III. C. 43/35

TRANSLATION OF DOCUMENT 2348-PS

Statement of Standarten Fuehrer Walther Rauff made on 19 October 1945:

I hereby acknowledge the attached letters, written by Dr. Becker (Lieut.) on 16 May 1942 and received by me on 29 May 1942, as a genuine letter.

I did on 18 October 1945 write on the side of this letter a statement to the effect that it was genuine.

I do not know the number of death vans being operated and cannot even give an approximate figure.

The vans were built by the Saurer Works, Germany, located, I believe, in Berlin. Some other firms built these vans also.

In so far as I am aware these vans only operated in Russia.

In so far as I can state these vans were probably operating in 1941, and I personally feel that they were operating up to the termination of the war.

I do not personally know the number of persons killed in the death vans.

I would like to state that the reason why Dr. Becker wrote this letter to me was due to the fact that I was the chief of the Section under which were included such divisions as

- (1) Ammunition
- (2) Telephone
- (3) Telegraph
- (4) Radio
- (5) All Trucks.

This group was known as II D.

When this letter was received, I referred it to a Captain Pradl for appropriate action. The letter was discussed by Captain Pradl and myself, and I believe that Pradl was instructed by me to have the technical matters, of which the letters complained, remedied. I only saw Dr. Becker once or twice and had no part in the actual appointing of Dr. Becker to this position. I was never present when the death vans were operating with persons in them being killed, however I did see a death van as a sample and was interested merely from a technical viewpoint. I was chief of this technical section from February 1940 until March 1940.

From May 1940 to May 1941 I was in the German navy. From September 1941 to May 1942 I was in Prague. I then became chief of the section again from May 1942 to June 1942.

I wish to point out that my specific interest in these death vans was the lower part where the motor was located.

I wish to state that my immediate superior was an individual of ministerial grade by the name of Standarten Fuehrer Siegert. He was chief of AMT II RSHA, and Siegert gave me orders to supply the chassis of these death vans. Insofar as I can recall I only supplied 5 or 6.

The immediate superior of Standarten Fuehrer Siegert was Obergruppen Fuehrer Reinhardt Heydrich, chief of S. D.

The immediate successor of Siegert was an individual by the name of Spacil who succeeded Siegert around July or August of 1942, taking over the same duties and same responsibilities as Siegert and remaining chief of the section until the termination of the war. I believe that Siegert returned to a position in the Ministry of Finance on being relieved by Spacil.

I understand that this statement was made under oath and I hereby swear that all statements contained in this affidavit are the truth, the whole truth, and nothing but the truth, so help me God.

Standarten Fuehrer Rauff

Witnessed by the following:—

Captain J. F. C. Bagshaw,

Captain G. K. Heller,

Captain C. A. Crowther.

PARTIAL TRANSLATION OF DOCUMENT 2349-PS

THE MYTH OF THE 20TH CENTURY

by Alfred Rosenberg

Published by Hoheneichen Publishing House, Muenchen 1941.

[Page 215]

We recognize today that the central maximum values of the Roman and the Protestant Church as negative Christianity do not correspond to our soul, that they are in the way of the organic forces of the Nordic racially determined peoples, must give way to them (these forces), and must let themselves be re-evaluated in the sense of a Germanic Christianity. That is the thought behind today's religious searching.

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[Page 514]

The idea of honor—national honor—is for us the beginning and end of our entire thinking and doing. It does not admit of any equal-valued center of force alongside of it, no matter of what kind, neither Christian love, nor the Free-Masonic humanity, nor the Roman philosophy.

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[Page 608]

A German religious movement which would like to develop into a folk-church will have to declare that the idea of neighborly love is unconditionally to be subordinated to the idea of national honor, that no act of a German church may be approved which does not primarily serve the safeguarding of the folkdom.

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[Page 616]

A German religion will, bit by bit, present in the churches transferred to it, in place of the crucifixion the spirit of fire—the heroic—in the highest sense.

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TRANSLATION OF DOCUMENT 2351-PS

THE ARCHIVE, Vol. 34-36, Page 1716

compiled by Ernst Jaenicke, Berlin.

Edited by Alfred-Ingomar Berndt.

Published by Otto Stollberg, publishers, Berlin, March 1937.

[Rosenberg in a speech on 7 March 1937 stated:]

The education of youth can only be carried out by those who have rescued Germany from disaster. It is therefore impossible to demand one Fuehrer, one Reich and one firmly united people as long as education is carried out by forces which are mutually exclusive of each other.

TRANSLATION OF DOCUMENT 2352-PS

THE ARCHIVE, Vol. 43-45, Page 1029

compiled by Ernst Jaenicke, Berlin,

Edited by Alfred-Ingomar Berndt.

Published by Otto Stollberg, publishers, Berlin, November 1937

[Kerrl said in a speech at Fulda, 27 November 1937:]

We cannot recognize that the Church has a right to insure that the individual should be educated in all respects in the way in which it holds to be right; but we must leave it to the National Socialist State to educate the child in the way it regards as right.

PARTIAL TRANSLATION OF DOCUMENT 2353-PS

BASIC FACTS FOR A HISTORY OF GERMAN WAR AND ARMAMENTS ECONOMY

[Page 35]

IV

The influence of central organization on development and activities of the war economy organization

Centralization of the Supreme Reich authorities, ordered in case of war, has influenced the development and the activities of the war economy organization to such an extent, that it is necessary to discuss this matter in detail.

The foundations had already been laid for the central organization of the Supreme Reich authorities in the event of a war, prior to 1933 in many discussions and decrees, but it was radically altered when the national socialists came into power and especially by the decease of Reichpresident von Hindenburg. The latest orders were decreed in the Reich Defense law of May 21, 1935, supposed to be published only in case of war, but already declared valid for carrying out war preparations. As this law (see Appendix IV, 1) fixed the duties of the Armed Forces and the other Reich authorities in case of war, it was also the fundamental ruling for the development and activity of the war economy organization.

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[Page 135]

War and Armament Economic Measures from entry into Austria (1938 till mobilization 1939)

The discussion between the Fuehrer and the Austrian Chancellor of State Schuschnigg on February 12, led to the military-political measures against Austria, which concluded with the entry into Austria on March 13. This action against Austria, disguised under the code name "Action Otto" prepared in a short time, has resulted in a wealth of experience of utmost importance, for the preparation of mobilization and especially for the economic preparations, and has in the course of the year led to changes in the regulations regarding mobilization.

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[Page 136]

The action was prepared and started without the cooperation of the WStb. The result was, that the military measures created great confusion in the economic sphere leading to unpleasant conditions for the army and also for the economy for the time being.

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[Page 141]

The experience gained during the action in Austria caused the OKW to issue new regulations, preparing the separating of the mobilization of the Armed Forces from the mobilization of the civilian elements. Mobilization of the Armed Forces without public announcement (X-case) was prepared; nevertheless there should be the possibility of proceeding at any time from the mobilization of the Armed Forces only, to a general mobilization of State, Nation and Economy. The basic idea is, that all actions and regulations in case-X are based on Civil law, a state of defense has not been declared and martial law has not been proclaimed. The appropriate measures were ordered on July 5 by the OKW. WStb and GBW expressed justifiable misgivings regarding these new regulations, as mobilization of the Armed Forces before mobilization of economy would create considerable confusion and endanger the smooth running of the economic

mobilization. On the demand for a divided mobilization was necessary from a military-political point of view, it was accepted in spite of the objections of the WStb and GBW.

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[Pages 142-143]

The first *planned* action of the war economy organization during an actual operation was at the time of the entry into the Sudeten territory. Liaison officers of the OKW [WStb] were attached to the corps commandos, they were in charge of technical war economy units and finally, War Economy Offices for special missions were created to take over definite Economic departments. The military-political developments during the occupation of the Sudeten German territory evolved in such a manner, that the liaison officers as well as the technical war economy units and the offices of WWi were rarely in action. The planned preparation for action by these administrative units and their activities in the Sudeten German territory nevertheless provided experience which was also very valuable for the later Mob-preparations. Primarily it was admitted by all departments, that the installation of the liaison officers of the OKW [WStb] at the corps commandos is of great value not only to the troops but also for OKW, and is a necessity in modern warfare. This proved especially valuable insofar as the chiefs of the Civil government were as a rule not instructed in their duties and authority, and the offices for special missions, first had to give them the necessary directives for their task.

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[Page 146]

At the beginning of the year 1939 a new level was reached as regards the military-political situation—the occupation of Bohemia and Moravia by the German army and the abrogation of the sovereignty of Czechoslovakia. These operations also were prepared “war economically” by the creation of war economy units, who had, as in the case Sudetenland, a very small scope for action. Immediately after the occupation, a war economy inspectorate for special missions was set up, which took over all the duties of the Czechoslovak secretaryship general for National Defense and which was

transformed into the Inspectorate of War Economy Prague on March 30, 1939 already. The main duties of the Inspectorate are:

Utilization of the total industrial economy of the Protectorate for the purpose of Reichdefense;

Control of manufacture of war material for at home and abroad and

Effect synchronization of demands to be made by military and civilian Reich authorities and the industrial economy of the Protectorate.

Furthermore they are assigned:

The instruction of the Reichprotector on the economic demands to be made in the interest of Reichdefense and to advise him concerning legislation resulting therefrom;

Air raid precautions in industry and guarding of factories and the Defence Measures [Abwehrmassnahmen] in the factories.

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XVIII

[Pages 181-184]

Execution of the economic mobilization

Before discussing the actual process of the economic mobilization I regard it as my duty, to give my opinion on the possibility of successful warfare as regards war economy, from my experience as Chief of the WStb gained during August 1939. During this time many conferences were held with the then Generaloberst Keitel discussing our readiness for war and conditions in regard to armaments as compared with that of the prospective enemy states. During all these discussions I maintained the point of view, that a war with Poland would present no problem for us, but that for a great world war of long duration, our economic structure would be too weak and that, in the case of a world war, decisive measures, conforming to a total war, would have to be carried out immediately. These objections and the resulting demands were nevertheless ignored.

The process of German mobilization in 1939 was most intensively influenced by the progress of the military-political situation and was carried out with the idea of surprising the enemy, at the right moment. The experience gained during the operations against Austria, Sudetenland and Czechoslovakia, which led to separate and camouflaged mobilization, formed the basis for the measures to be taken. The tension, existing between Germany and Poland since July, was used to take all the measures, necessary for a surprise attack on Poland. Some of these preparations as far as war economy was concerned were the acceleration of the delivery of armaments, which in particular was carried out by the branches of the Armed Forces and, for the organization of War-economy, the forming of war economy units to be attached to the attacking armies.

After August 1, the formation and distribution of VO of WStb took place, they were attached to the AOK; on August 24, formation of war economy units for the attacking armies concerned. On August 25, orders for the camouflaged mobilization were released, with Aug. 26, ordered as the first X-day. (see Appendix XVIII, 1 and Appendix XVIII, 2). In this manner the form of mobilization was ordered, which represented the most unfavorable form for the mobilization of war economy. Reiterated objections against divided mobilization, submitted by WStb as late as August 24, were overridden by the Chief of OKW, while the Supreme Command was of the opinion, that a war with Poland did not necessitate a General mobilization, and any other form of mobilization was out of question for political reasons.

On August 25 18.30 a copy of case X was remitted to the inspectorates of War economy (copy, see Appendix XVIII, 3).

The decree of August 25 orders expressly that case X shall not be extended in its entirety to civilian matters. Even though it was ordered that future proposed mob measures must not be endangered by unplanned demands, requisitions and commandeerings, there was still considerable danger in the mobilization being divided and carried out at different times. This was especially applicable as far as economy was concerned insofar as regulations for economy read that with the utmost consideration of economy in general only the most important war factories should be maintained at their former level and that only isolated war factories should be immediately speeded up to produce a large output. These regulations, in consideration of the Economic Policy which was to oppose every

unnecessary change, and also of the kind of propaganda adopted were bound to endanger the planned process of economic mobilization.

The preparations, covering many years of work, for the mobilization of Economy were consequently, for the most part, invalid. This regulation was unfortunately to become an inconvenience later on when starting up the Armaments Industry and the economy of war and was even noticeable for the first four years of the war up to the declaration of total war in 1943. A large number of the measures, contained in the preparation for mobilization of the WStb and invalidated by the above regulation, were not executed until 1943 as a result of demands by the Reichminister for Armaments and ammunition.

On August 27, 1939, the regulation on the administration of economy was issued, whereby the Oberpraesidenten were charged with executing and directing all economic measures of the GBW. Included in this was the official founding of the District Economy offices, the Provincial Food offices [Landesernaehrungsaemter], Offices of forestry and economy of timber [Holzwirtschaftsaemter] forming finally the organization, that should have been in force long ago as a result of the mobilization order by GBW.

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[Pages 273-275]

B. War Economy

The year 1940 was the first acid test for the value and necessity of the War Economy organization. After it had proved its value at home by the measures taken to strengthen the war economy of Germany especially in reestablishing the German war industry and reconstructing the armament industry and had earned the constant appreciation of Field Marshal Goering and the Reichminister for War, it now remained to prove that the organization was also able to support the combat troops, to administer the economy of occupied countries and put it into operation again, and that there was an absolute necessity for such an organization in the present war. That this point of view is correct, is proved by the fact, that all allied as well as enemy states constructed similar organizations, imitating the German pattern.

The operations against Denmark and Norway and the western campaign against Holland, Belgium and France brought full proof; the year 1942 has more than confirmed this point of view.

1. War Economy Measures during the occupation of Denmark and Norway

The occupation of Denmark and Norway brought for the German War Economy organization a gratifying and manifold task. The office Wi Rue was informed of the planned execution of these operations at the end of February, and thereupon ordered the preparation of the measures to be taken as regards war economy. It was decided, that a small staff under the direction of Major Neef (Group leader in the dept. of raw materials Wi Rue) should carry out the appropriate, preliminary preparations, for the organization which were to be carried out in accordance with the directives of OKW-WFA and the Oberquartiermeisters of group XXI charged with the operational preparations. Commander in chief of Group XXI was von Falkenhorst, General in the infantry; Colonel of General staff Baentsch, Oberquartiermeister. The war economy specialists, coordinated under Major Neef, was assimilated into the staff of group XXI on March 20, under the title "Group War Economy" and VO of OKW/Wi Rue office.

The first performance of the group was the compilation of material on the economic structure of Denmark and Norway. Then it worked on the war economy and armament part of the "Demands of OKW to the political plenipotentiaries of the Fuehrer in the Danish and Norwegian Governments", and the economic measures in the "Special instructions on conduct during occupation of Denmark and Norway".

Furthermore, special tasks were given to the war economy officers concerned and their first duties defined as follows:

- a. Support of the military commanders in the utilization of the economy of the country in the interest of the armed forces;
- b. Identification and safeguarding of supplies against unauthorized seizure or transport;
- c. Starting or restarting of production plants; any further war economy and armament tasks should be undertaken only by special order of OKW.

The working staff was able, during the four weeks available, to compile detailed material, providing the respective war economy departments with

valuable material for their duties. All necessary orders, directives and so forth were issued in a special calendar in order of mobilization.

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[Pages 276-282]

On April 2 it was decided to select April 9 as the day on which the operation should be carried out.

The execution of the operation was on the whole carried out according to plan. Provision was made that the WO should reach their posts together with their respective staffs, namely, Major Neef by air, the WO Osbjerg and Aarhus over-land, the remaining gentlemen in the warships in which the staffs were transported, while all WO, though partly under heavy fighting, reached their objective on April 9, Major Neef was not able to reach Oslo until April 12, because of the opposition near Oslo.

The unified War Economy Organization which had been prepared for Norway and Denmark depended upon the regulation that the Senior Command for special missions XXXI in Denmark was subordinate to group XXI in Norway. When it soon became evident that this arrangement did not work because of distances and because of the conflicting behavior of the Norwegian and Danish governments, it was decided on April 10 to make the Senior Command for Denmark directly subordinate to the Commander in Chief of the Army, while group XXI together with the forces operating in Norway was to remain subordinate to the OKW. As a result of this change it also became necessary to divide the War Economy organization. The War Economy Liaison Office Denmark was placed under the supervision of the administrator of Danish economy, on the staff of the political plenipotentiary of the Fuehrer in Copenhagen; the organization Norway under Major Neef remained attached to group XXI.

In Norway as well as in Denmark the assignment of War Economy Offices to the military detachments has proved successful. The War Economy Offices were burdened with so many problems that their small staff barely sufficed; they were very quickly maids of all work.

As soon as the offices were well established in their new districts and the most important military problems had been settled, they quickly attended to the construction of the War Economy Organization.

In Norway for the first few days after the occupation, the German Ambassador Dr. Braeuer, remained the political plenipotentiary of the

Fuehrer. As Foreign Office commissioner, dealing with economic problems, Min. Direktor Sarnow of the Reich Wi. M. was attached to him. Major Neef immediately tried to secure a definition of the fields of work. However, when this did not meet with any success, for the sake of the work, he arranged with Min. Dir. Sarnow that the office of WO Norway as should be incorporated into the Staff of the commissioner dealing with economic problems, as Main Division II. This measure, however, was never carried out, because both Dr. Braeuer and Min. Dir. Sarnow were recalled on April 22 and the Gauleiter of the NSDAP Terboven was named by the Fuehrer as Reichcommissioner of the occupied Norwegian territories. All attempts by Major Neef to clarify the status and spheres of activity with the 2nd in Command of the Reich Commissar Gauwirtschaftsberater Otte, were for the time being unsuccessful. On April 27 the former Liaison Office was changed to the War Economy Staff Norway. The WO as a branch office was subordinate to the latter.

In Denmark, Commander Dr. Forstmann quickly succeeded in coming to an understanding with the German Ambassador von Renthe-Fink and his commercial attaché Dr. Krueger in regard to the spheres of activity. On May 27 the office was renamed "War Economy Staff Denmark."

The details concerning the establishing of the War Economy offices, their growth, and their manifold tasks have been thoroughly described in the accounts of the WStb Denmark and Norway. Hence, within the scope of this report the details will not come under discussion. In short, attention should only be drawn to the tasks as a whole, and the most important experiences during this first large-scale operation of the War Economy Organization.

The problems which faced the war economy officers during the occupation of Denmark and Norway were very extensive and embraced both military as well as economic problems in all fields of economy. The military leaders were glad that officers trained in war economy were at their disposal, who were qualified to solve questions of an economic-organizational character and, as authorities, could negotiate with Danish and Norwegian Officials. At this moment the manner in which the War Economy Organization had been formed, proved its worth in that there was personnel trained in military as well as industrial and commercial fields. Thus it happened that problems were entrusted to the WO which really lay beyond the scope of their activities. The following may be named:

Supplying troops with food, Motor vehicles and fuel,
Procuring billeting possibilities for the troops,
Securing money and regulating the currency problem,
Procuring material (cement, wood, etc.),
Providing coal,
Regulating transportation,
Loading troops onto ships,
Procuring raw materials and finished products,
Putting the fishing industry into operation,
Rationing food for the armed forces and the civilian population,
Rationing of fuel,
Cooperating with the sailings of ships putting in and out,
Administering the loading of ships,
Checking over claims for compensation for war damage and
requisitions,
Utilization of fish garbage and the manufacture of fish flour,
Price regulations for the purchase and renting of real estate for
the armed forces,
The loaning of horses and seed for agriculture.

These and similar problems had to be taken over by the WO, because the competent offices of the Armed Forces Departments were not there or were not in the position to solve these problems.

Only after these problems had been solved, was it possible for the WO to cope with the real problems affecting war economy, which dealt immediately with the seizing and securing of the most important agricultural supplies and the reestablishing of the means of subsistence.

Then the problems in Denmark and Norway shaped themselves in different ways as a result of the war situation (see appendix XX, 6). As early as June 15 the order could be issued regarding Denmark that the country be treated

as being in the domestic theatre of operations; and therefore it was possible to quickly begin to make full use of the Danish defense and armament industry. The exploitation of the armament industry in Norway could only follow at a slower pace and at a later period, because it was regarded as being enemy territory. The utilization of the Danish and Norwegian economy followed within the framework of the "Proposals by the armed forces for the regulating of the general questions in regard to war and armament economy." (see appendix XX, 7).

Very soon it was necessary for the Wi Rue department and the War Economy offices in Denmark and Norway to take sharp measures in order to avoid duplication of work and the overlapping of the WT in Danish and Norwegian concerns. Above all, it was important for the sake of currency stabilization to keep a firm hand over the buyers of the WT, because they were causing danger to the currencies of the countries by flooding them with fiduciary monetary tender. It very soon became finally necessary to adopt measures to make the raw material available for those orders placed with Denmark and Norway, because, in part, the raw materials needed for the purpose of filling these orders were not to be had there.

In order to hasten the process of getting Norwegian industry into operation again, the Wi Rue Amt. sent German industrial and economic personnel to Norway, who, as middlemen, were to quickly establish confidential relationships and who on account of their expert knowledge were to accelerate the revival of Norwegian Economy.

The experiences of the first months of the occupation show that it is absolutely necessary to provide units operating independently with War Economy Offices, since in a modern war economic problems are submitted to the commanders which can only be solved by trained personnel. It is self evident that, later on, a major portion of the problems must be transferred to the civilian Economic departments, which will be set up, and that the soldier confines himself to the solution of economic problems that serve the troops, as long as no solution is found, as later proved to be the case, in the Netherlands.

The staffing of the WO for Denmark and Norway was in most cases too small, because the problems were too complex and the fields of operation allotted to them were too large.

Yet it is an established fact that the War Economy Offices, in Denmark and Norway especially, rendered invaluable services to the troops during the first months and that an organization for the reopening of industrial operations and to carry out the commissions of the WT was an absolute necessity.

Moreover, the outstanding work of the War Economy offices in Denmark and Norway was the main reason for the fact that, in 1941, it was possible to carry out, according to plan, the enormous work for the defense of the country, which was required of the Economies of Denmark and Norway by the Supreme Command.

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[Pages 283-284]

2. Campaign in the West

The operations against France, Holland and Belgium brought about the first real use of the war economy organization in enemy territory. It was accomplished in close cooperation with General Qu. of the Army.

At the start of the war, the Armed Forces operating in the West were, by reason of the experience gained during the campaign in Poland, supplied with Army Economic Officers [Armeewirtschaftsfuehrer-A Wi Fue] who simultaneously were the liaison with the armament offices in the border territory.

The primary duties of the A Wi Fue attached to the Western armies were the tasks of economic evacuation and immobilization and only at the end of 1939 did the preparations for the entry into Holland, Belgium and France come to the foreground. The process of economic evacuation in the homeland rested mainly with the competent Rue commandos of the homeland, who had arranged the necessary preparations by way of mobilization, in accordance with the clearance measures already prepared during peacetime.

Especially in the Saar territory the VO had a complicated task to perform, and was able to demonstrate the value of its existence for defense also.

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[Pages 313-315]

Negotiations with friendly and neutral states on war economy and also delivery of war material.

The year 1940 brought special problems for the office of Wi Rue as far as trade in war material was concerned as a result of the deliveries, necessitated by the military political situation, to Russia, Finland, Roumania and Italy.

As previously reported in 1939, according to the German-Russo treaty of August 19, 1939, the German deliveries on credit were to attain in the next two years the sum of 200 millions RM, 120 millions RM, thereof during the first year. It was indicated that German deliveries of material to the value of 500 millions RM were desired during the first year alone. As such quantities of machines, vehicles, apparatus, etc., could not be obtained from the production point of view in such a short time, and as the Russians had also included war material in their request, the preponderant desire, from the beginning, at the Foreign office and the Reichministry of economy was, to put at the disposal of the Russians as much finished war material as possible.

As reported previously, the Russians had made ready for their first reciprocal delivery valuable foods and raw material (1 million tons cereals, 500,000 tons wheat, 900,000 tons of oil by-products, 100,000 tons of cotton, 500,000 tons phosphates, 80 millions RM of timber, 10,000 tons of flax, manganese, platinum, and the transit for 1 million tons of Soybeans), and in consideration of the importance of these quantities to the German war economy and the importance which the Supreme Command attached to the maintaining of pleasant relations with Soviet Russia, the question of immediate reciprocal deliveries became steadily more pressing.

The desire to produce war material became stronger from week to week, so strong that OKW created a special Referat at Wi Rue charged with working on the Russian demands and arranging them in accordance with the German production program. Appendix XX, 21 and XX, 22 gives an idea of the progress of the arrangements.

As the Russians delivered quickly and well, it was imperative to accelerate German deliveries. Consequently the German High Command decided to offer the Russians even more war material, that was already manufactured or under construction, and whose monetary value was great. The great

cruiser Luetzow especially came into this category, other ordnance installations for ships, patterns for heavy artillery and tanks and important patents [lizenzen] for war material. As these contracts for this material did not satisfy the Russian requests, the Fuehrer ordered, on March 30, that—as far as necessary—the delivery of war material to the Russians should have priority over the delivery to the German Armed Forces.

This order put some of the Army departments in a difficult position, as the High command also wanted production for the German requirements stepped up and demanded punctual delivery.

On August 14, the Chief of Wi Rue, during a conference with Reichmarshal Goering, was informed, that the Fuehrer desired punctual delivery to the Russians only till spring 1941. Later on we would have no further interest in completely satisfying the Russian demands. This allusion moved the Chief of Wi Rue to give priority to matters concerning Russian War Economy.

By the end of October 1940, Reichmarshal Goering insisted once more, on pressure being exerted for accelerated deliveries to the Russians according to plan, (file notice from Oct. 5, see Appendix XX, 23).

Later on the urgency of the Russian deliveries diminished, as preparations for the campaign in the East were already under way.

The Russians carried out their deliveries as planned, right up to the start of the attack; even during the last few days, transports of India-rubber from the Far East were completed by Express transit trains.

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[Pages 323-324]

The production program ordered by decree of the Fuehrer on Aug. 20, and instituted by reason of urgency, on Sept. 20, was stepped up again on Sept. 27, and amended insofar as the equipment under the code word “Achse” (African campaign) was to be given priority over all other equipment, including the ones in the special category.

As both the Army and Minister Todt were urging the high priority of the Panzer-and Achse-program, the Navy demanded its “Seeloewe”-measures accelerated and aerial armaments were being even more intensified, the

Chief of Wi Rue office, at a conference of Chiefs of departments, presided over by Fieldmarshal Keitel, pointed to the difficulties of accelerating everything at the same time, with the bad situation as regards manpower. He demanded once more a clarification of the organization, which was really the most important thing. Resulting from this the following decision was made by the WFSt on Dec. 3.40, enclosed as Appendix XX, 35.

This decision affected future measures as follows:

1. there is no longer any mention of an Invasion of England but only of a siege of England.
2. aerial defence of the homeland was placed at the top of the list for the first time.
3. the prospective big action (Russia) mentioned for the first time, and its postponement to some later date admitted as possible.

Shortly before—on Nov. 6, 1940—Reichmarshal Goering, for the first time made a statement to the effect, that we should prepare ourselves for a long war, and therefore planning of raw material should be considered in this perspective, (see file on Report at Beauvais on Nov. 6.40, Appendix XX, 36).

At the beginning of December, instructions were received, that for the time being there was no question of an Invasion of England, and that the “Seelowe”-preparations should merely be concluded.

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[Pages 368-373]

War Economy

The year 1941 was, as far as war economy was concerned, mostly dominated by the preparations, respectively the execution of the action in the Balkans, the war in the East and the war in Africa.

The respective preparations go back to the year 1940. The development of the Italo-Albanian-Greco war, the establishing of a German military mission in Roumania and the possibility of German participation in the Italian war in Africa had led as early as August 1940 to a War Economy Staff Roumania and in October a War Economy Staff Africa being created

by the office of Wi Rue to deal with the problems connected with these theatres of war and charged with working out all the questions appertaining thereto. By the middle of November 1940 Colonel Gen. staff Spalcke was delegated to Roumania as member of the German military mission, and charged with the representation for war economy in the Balkan countries and in Africa and the completion of the necessary basis as regards war economy for an operation were intensively processed in the office of the Wi. Rue.

In November 1940, the Chief of Wi Rue together with Secretaries of state Koerner, Neumann, Backe and General von Hanneken were informed by the Reichmarshal of the action planned in the East.

By reason of these directives the preliminary preparations for the action in the East were commenced by the office of Wi Rue at the end of 1940.

The preliminary preparations for the action in the East included first of all the following tasks:

1. Obtaining of a detailed survey of the Russian Armament industry, its location, its capacity and its associate industries.
2. Investigation of the capacity of the different big armament centers and their dependency one on the other.
3. Determine the power and transport system for the industry of the Soviet Union.
4. Investigation of sources of raw materials and Petroleum (crude oil).
5. Preparation of a survey of industries other than armament industries in the Soviet Union.

These points were concentrated in one big compilation, "War Economy of the Soviet Union" and illustrated with detailed maps, etc.

Furthermore a card index was made, containing all the important factories in Soviet-Russia, and a lexicon of economy in the German-Russian language for the use of the German War Economy Organization.

For the processing of these problems a task staff, Russia, was created, first in charge of Lieutenant Colonel Luther and later on in charge of Brigadier General Schuberth. The work was carried out according to the directives

from the Chief of the Office resp. the group of depts. for foreign territories with the cooperation of all departments, economy offices and any other persons, possessing information on Russia. Through these intensive preparative activities an excellent collection of material was made, which proved of the utmost value later on for carrying out the operations and for administering the territory.

Simultaneously detailed investigations were made of the situation as regards fuel and rubber in the case of a major action in the East, on the basis of the demands made by the Chief of General Staff of the Armed Forces and the Gen. Qu. of the Airforce, which will be discussed later on.

Included in the processing of the Russian problem were matters of war economic nature connected with the Balkans and Africa.

Balkans

While the preparations for the Russian Campaign could be completed as planned, the measures for the action in the Balkans had to be improvised on account of the unsuccessful revolutionary outbreak in Yugoslavia. Only Colonel Wendt, as VO was sent to AOK—12 in Roumania at the beginning of January as planned, and given charge of T. B. 13. The preparations were arranged for an entry into Greece only. When the revolt in Yugoslavia started, the preparations had to be altered. Department IV of VO AOK—12 was divided, the one half under Colonel Wendt to follow the assault of AOK—12, direction Belgrade, the other half under Captain v. Illberg to accompany the forces attacking towards Greece. Half a battalion each of T.B. 13 was put at the disposal of Colonel Wendt and Capt. v. Illberg, respectively.

With the arrival of the second army Col. Fach was installed VO in charge of T. B. 6 and 8. Furthermore he had specialists at his disposal, familiar with the economy of Yugoslavia and Greece. Dr. Pook of the Wi Rue Office was dispatched to manage copper mines at Bor.

Details of operations and results of the war economy units during the action in the Balkans; (see report of OKW (Wi Rue Bureau) No. 27438/41 secret, of June 4, 1941, Appendix XXI, 10).

Even during the operations, organization of a War Economy Staff Serbia with a Wi. Commando at Belgrade was ordered, the staff was closely

connected with Consul General Neuhausen charged with the Economic Administration of Serbia, by the Reichmarshal.

Also

- a. a war economy officer Agram for the territory of Croatia and
- b. a Rue-commando Klagerfurt for the Yugoslavian territories turned over to the Reich, were appointed (see Appendix XXI, 11).

The war economy staff Serbia quickly became of great importance for supplying the troops operating in the Balkans, and later on deserved much credit for the utilization and securing of the Yugoslavian raw materials, important for German armaments and by organizing the transport of these raw materials. The seizing of the still usable factories in Serbia and Croatia for assimilation into the German Armament Industry had already been started in April (s. Wi Rue Bureau No. 22-261/62 of April 29, 41. Appendix XXI, 12 and XXI, 13) and represented useful support for the W. T. especially for repair work but also for the manufacture of material of all kinds. The concerns processing raw material could be built up in the course of time to form a valuable support for the German war economy, the deliveries of copper, bauxite, tin, chromium, asbestos and mica were of considerable importance.

As the territory of Greece, by order of the Fuehrer (see appendix, Wi Rue Bureau No. 22-263/41 2 of May 29, Appendix XXI, 14) was ceded to the Italians for economic exploitation, war economy offices were only installed in Greece where needed by the Army or for the security of transportation.

There was one Wi Kdo each established in Salonica and Athens. At the same time the confiscation and utilization was ordered of the factories, in the areas of Salonica and Athens occupied by German troops, necessary for war economy and armament (see Wi Rue Bureau, No. 22-263/41 s. file XXI, 15). The factories in Athens were especially important as repair plants for the airforce. But also by the delivery of oil and tobacco to the army and to the homeland the war economy offices rendered considerable service.

* * * * *

The compilation was the result of the deliberations concerning the planned operation in the East, ordered by the Reich Marshall in November 1940. The Office of Economy and Armament [Wi Rue Amt] had taken pains to give a completely objective picture of the situation regarding Defense and armament economy [wehr—und Ruestungswirtschaftliche Lage] of the USSR and had held it necessary, to refer to the points which might cause difficulties for a military operation.

The result of this work compiled carefully on the basis of safely proved facts is summed up at the end as follows:

“Any operation leading to the occupation of the European part of USSR (without the Ural territory), will bring the following results:

I. During the first months Germany will be relieved in the field of nutrition and raw materials, if a quick seizure should succeed in

- a. *preventing the destruction of stocks*
- b. *capturing the mineral oilfields of the Caucasus undestroyed and*
- c. *solving the problem of transportation.*

II. *For longer duration of the war an effective relief is dependent on the following prerequisites:*

a. *in all fields:*

- 1. *on the solution of the transportation problem,*
- 2. *On the staying [verblieb; translator’s note: may also mean: “whereabouts”] of the people (population) and winning them over to collaborate.*

b. *in the field of agriculture:*

- 1. *on preventing destruction of the “M.T.S.” and the possibility of replacing their pool of tractors and machines by taking up production again in the USSR.*
- 2. *on the possibility of fuel supply.*

c. *in the industrial field:*

1. *on the capture of powerworks undestroyed or on their fast restoration.*

2. *on securing the delivery of raw materials not existing in the European part of the USSR to the industry.*

III. *The supplying of Germany with India-rubber, tungsten, copper, platinum, tin, asbestos and manila hemp remains unsolved until communication with the Far East will be established.*

IV. *The territory south of the mouth of Volga and Don inclusive of the Caucasus must be included in the operation. The Caucasian fuel supply is indispensable for the exploitation of the occupied territories.*

V. *In the field of just the armament-industry it will lead to taking possession of about 75% of the total Russian armament industry and almost 100% of the precision tool-manufacturing and optical industry.*

The USSR will keep about 25% of the mere armament and scarcely 1% of the precision tool-manufacturing and optical industry.”

* * * * *

[Pages 404-406]

In addition to the Italian negotiations, until June 1941 the negotiations with Russia were accorded a great deal of attention. The Fuehrer issued the directive that, in order to camouflage German troop movements, the orders Russia has placed in Germany must be filled as promptly as possible. Since the Russians only made grain deliveries, when the Germans delivered orders placed by the Russians, and since in the case of individual firms these deliveries to Russia made it impossible for them to fill orders for the German armed forces, it was necessary for the Wi Rue office to enter into numerous individual negotiations with German firms in order to coordinate Russian orders with those of the German from the standpoint of priority. In accordance with the wishes of the Foreign Office, German industry was instructed to accept all Russian orders, even if it were impossible to fill them within the limits of the time set for manufacture and delivery. Since, in May especially, large deliveries had to be made to the Navy, the firms were instructed to allow the equipment to go through the Russian Acceptance Commission, then, however, to make such a detour during its

transportation as to make it impossible for it to be delivered over the frontier prior to the beginning of the German attack.

As a result of the visit of the Hungarian Minister, Excellence Bartha, the trade in war material with Hungary came once more into the foreground. Above all, the Hungarians demanded German help in equipping their air force, as well as anti-aircraft guns, searchlights, and listening devices, tanks, artillery and communications equipment, and heavy guns. For this they offered free facilities for the manufacture of gauges and fuses, artillery equipment, trucks and tank trucks. The Hungarians were promised help in almost all fields, however, not until the summer of 1942, because it was thought that by this time the campaign in the East would have come to an end. Technical help for the saving of raw material with the issuing of licenses was offered them immediately. The shifting of German orders to Hungary was put into effect.

The negotiations with Roumania and Finland covered more ground, because both states made considerable demands for the improvement of the equipment of their units designed to fight against Russia. First of all, the Roumanians asked for anti-aircraft equipment, prime movers, and trucks for the motorization and artillery equipment of all kind; moreover, they asked that the artillery and munition orders placed in France and with the Boehler works be executed. The Finns demanded long-range guns, anti-aircraft guns, fuses, airplanes and help in carrying out motorization. In accordance with the directive from the Fuehrer, the Roumanians were promised help as much as possible, while the Finns were to be put off until later.

When the operations opened in the East, the demands became greater and more urgent; the Finns, especially, called for raw materials and fuel. These demands were met in the case of both these countries as much as possible.

Bulgarian wishes lay, particularly, in the field of motorization and communications and in the delivery of armoured reconnaissance cars and tanks. Only small deliveries could be made; in general the Bulgarians were instructed that these states, which were actually in the battle, must receive first delivery.

Moreover, the negotiations with Turkey were of special importance. The office of Wi Rue was instructed to specially cultivate these negotiations, and to offer as much war material to the Turks as possible, on the one hand

for military-political reasons, on the other hand, in order to force the Turks to make deliveries of chromium. Since the Foreign Office wanted in full to assure the treaty for deliveries of Turkish chromium for the year 1942/43, more deliveries of war material, which partly constituted former Turkish orders, were promised for 1942.

* * * * *

[Page 479] History will know only a few examples of cases where a country has directed even in peacetime all its economic forces so deliberately and systematically towards the requirements of war as Germany was compelled to do in the period between the two world wars.

* * * * *

[Page 38] In the (Reich Defense) Law the appointment of a General Plenipotentiary for the Economy was provided for, a post for which Reichsbank President Dr. Schacht was contemplated. He was to have the right to give directions on economic questions to all ministries concerned with economic problems. He was charged with the preparation of all economic war measures with the exception of the armament industry which was to be handled by the Army High Command.

* * * * *

[Page 59] If it is said for example, that “not the economy, but politics represents fate”, this principle should be recognized only with the reservation that politics may receive its decisive impulse from the economic necessities of a nation. The fundamental urge to expand a nation which does not find the basis for its food production in its own soil, is an imperative for the shaping of policy.

* * * * *

[Page 84] If it was possible in a few years to develop the thirty-two monopoly factories of the Treaty of Versailles into an armament industry sufficient for our large army, this is due very largely to the work of the offices of the Military Economy Organization.

* * * * *

[Page 127] In spite of the limitations in rearmament ordered by the Minister of War in 1937, the demands of the Army for steel remained so high that the

Minister of Economics announced his misgivings regarding the economy as a whole. The War Minister stated that, in view of the existing foreign exchange situation, the condition of the whole economy, and thereby of rearmament, was jeopardized by a continuous fall of exports, and consequently he requested the introduction of raw material quotas, by means of which the management of rearmament and of other important programs was to be accomplished.

* * * * *

[Page 145] Complaints about excessive loads of work at factories and about continuous modifications of order schedules were received all the time from industry. By means of the spreading of orders and the admission of new firms, the Military Economy Organization and the armament offices succeeded in carrying out the armament programs more or less according to plan and to fulfill the demands of the leaders.

* * * * *

[Pages 173-174] The enlargement of gunpowder and explosives production was started as a large scale action. At the suggestion of the Economy Staff, Field Marshal Goering ordered the drafting of a plan for the manufacture of gunpowder and explosives in 1938 and charged General-Director Krauch of I. G. Farben with the execution of this plan. The plan was set up on July 12th, 1938, as the so-called "Karinhall" plan and scheduled the creation of a capacity of 12,000 tons of gunpowder per month, 19,000 tons of explosives, and 4,000 tons of poison gas until October 1st, 1940. By October 1st the capacity was to be

Gunpowder	18,000 tons,
Explosives	24,000 tons,
Poison gas	8,000 tons, per month.

In view of numerous difficulties, particularly due to the lack of foreign exchange for the purchase of machines, due further to a smaller allocation of raw materials and shortage of workers, the speed of production contemplated by Dr. Krauch could not be maintained; consequently the scheduled figures could not be reached by the time of the outbreak of war.

* * * * *

[Pages 181-182] The course of German mobilization in 1939 was greatly influenced by the development of the military-political situation and was guided by the idea of a surprise of the enemy. The experiences made during the operations against Austria, Sudetenland, and Czechoslovakia, which led to a partial and camouflaged mobilization, formed the basis of the measures to be taken. The tension existing between Germany and Poland since July was used in order to prepare all measures necessary for a surprise attack against Poland.

PARTIAL TRANSLATION OF DOCUMENT 2354-PS

ORGANIZATION BOOK OF THE NSDAP

[Organisationsbuch der NSDAP] 5th, 6th and 7th Edition, Central NSDAP Press, 1938, Munich

[Fifth Edition, Pages 367-371a]

Training of the S.A.

In order to obtain uniform training, a systematical arrangement of three major groups is provided:

a ideological education and training

b general training

c active service

These groups comprise essentially the following individual fields:

Group a:

1. Education and training according to the doctrines and aims of the Fuehrer as they are set forth in the "Kampf" and in the party program for all phases of our lives and our National Socialist ideology.

2. The teachings of the history of the German people for the tasks of our time.

3. Exercise of the National Socialist doctrine of duty.

Group b:

1. Security police service,

2. Physical exercises,
3. Marching exercises,
4. Terrain service,
5. Small-caliber shooting practice,
6. Gas and air-raid protection,
7. Service of special units, (Maritime, Communications, Engineers, and Cavalry units).

Group c:

1. Assemblies and demonstrations
2. Contests and performance examinations for S.A. sport insignia
3. Security service
4. Home service (catastrophe service, etc.)

The training of leaders is the prerequisite for the total training. The suitability of the SA leaders for their positions was first established through examinations.

Leaders designated as suitable will be educated and trained step by step according to the previously mentioned points of view and according to the special educational guidance of the Office of the Chief of Storm Troops [Oberste SA-Fuehrung].

The SA Sport Insignia [Page 369]

The new state demands a resistant, hardened generation. In addition to the ideological education of the mind, a fighting training of the body must be required by means of simple, useful, and natural body exercises.

In order to create increased incentive and aims for the endeavors of youth, I reestablish the

SA Sport Insignia

for the entire SA and for all its former branches, which is earned by means of a performance test after a conscientiously executed period of training.

In order to give conscious expression to the fostering of a valiant spirit in all parts of the German people, I further decide that this SA Sport Insignia can also be earned and worn by persons who are not members of the movement, inasfar as they comply racially and ideologically with the National Socialist requirements.

Enforcement regulations are decreed by the Chief of Staff.

Berlin, 15 February 1935.

Chief of Storm Troops [Der Oberste SA-Fuehrer]
Signed: Adolf Hitler

* * * * *

The performance test includes three groups of exercises:

Body exercises,
Military sports,
Topographical (naval) services.

Group I Body exercises:

100-meter race,
Broad jump,
Shot-put,
Throwing of hand grenades,
3000-meter race.

Group II Military sports:

25-Kilometer march with pack,
Firing of small-caliber arms,
Aimed throwing of hand grenades,
200-meter cross-country race with gas masks over 4 obstacles,
Swimming or bicycle riding,
Basic knowledge of first aid in case of accidents.

Group III Terrain service:

Orientation,
Terrain observation,
Estimate of terrain,
Estimate of distance,
Camouflage,
Observing and reporting,
Utilization of terrain and general behavior in terrain service.

Special regulations for SA naval units:

Group I Body exercises:

unchanged

Group II Military sports:

15-kilometer march with pack instead of 25-kilometer.

Group III Naval service:

25 minutes of long-distance rowing in cutter seamanship
in and on the boat, throwing of lines,
knotting and splicing,
signaling and transmitting of Morse code messages,
compass, designation of navigable water,
navigation lights, rules on turning aside,
general seamanlike behavior while in naval service.

* * *

[Sixth Edition, Pages 359, 364a, 364b, 365]

Structure of the S. A.

1. S.A. Units

The S.A. extends over the whole Reich territory.

It is organized according to political and local [Landsmannschaftlich] viewpoints into S.A. groups as follows:

S.A. Group—Alpenland

S.A. Group—Bavarian Ostmark (Govt. Dist. lower Bavaria, upper Palatinate and upper Franconia)

S.A. Group—Berlin-Brandenburg (Province Mark Brandenburg and Greater Berlin)

S.A. Group—Danube

S.A. Group—Franconia (Govt. Dist. central and lower Franconia)

S.A. Group—Hansa (Free City of Hamburg and Mecklenburg)

S.A. Group—Hesse (Parts of the Free State of Hesse, upper Hesse, the Province of Hesse, and Hesse-Nassau)

S.A. Group—Highland (Hochland) (Govt. Dist. upper Bavaria and Swabia)

S.A. Group—Palatinate (Govt. Dist. Rhenish Palatinate, Saar, and Rhenish Hesse)

S.A. Group—Middle (Province of Saxony and Free State of Anhalt)

S.A. Group—Lower Rhine (Parts of Rhine Province and the Ruhr District)

S.A. Group—Lower Saxony (Parts of Province of Hannover and Free State of Brunswick)

S.A. Group—Nordmark (Province of Schleswig-Holstein, Free City of Luebeck)

S.A. Group—North Sea (parts of Province of Hannover and Westphalia, Free State of Oldenburg, Free City of Bremen)

S.A. Group—Ostland (Province of East Prussia and Free State of Danzig)

S.A. Group—Ostmark (Province of Grenzmark)

S.A. Group—Pomerania (Province of Pomerania and parts of Grenzmark)

S.A. Group—Saxony (Free State of Saxony)

S.A. Group—Silesia (Province of upper and lower Silesia)

S.A. Group—Sudeten

S.A. Group—Suedmark

S.A. Group—Southwest (Free State of Baden and Wurttemberg)

S.A. Group—Thuringia (Free State of Thuringia)

S.A. Group—Warthe

S.A. Group—Vistula

S.A. Group—Westphalia (Province of Westphalia)

S.A. Group—Westmark (Rhine Province and part of the Province of Hesse-Nassau)

2. Special Units [Identical with corresponding passage in 5th and 7th editions]

In order to comply with the manifold demands on the services of the S.A. during demonstrations, assemblies, catastrophes, and accidents, as well as to preserve the efficiency of S.A. men, S.A. members have been organized into special and technical units. There are: Marine, Mounted, Communications, Engineer and Medical units.

Their organization into companies, battalions, and so forth, and their subordination are variously regulated according to location and the given circumstances.

a. Marine S.A.: The Marine S.A. includes all S.A. men who by occupation are or have been sailors of the merchant marine, the navy, or interior

shipping, as well as men who are connected with shipping in any way or particularly interested in it.

The seagoing S.A. men, who come into contact with the population of other countries, should represent National Socialist will and thought [Wollen and Denken].

For this reason their ideological education and professional training is a main mission of the marine S.A.

This schooling and training is given aboard ship in the board troops [Bordtruppen] and on land in the marine S.A. units.

Further tasks are service in catastrophes and accidents, especially those caused by water. For this purpose thorough training in seamanship is given each marine S.A. man.

b. Mounted S.A.: As the mainstay of the national socialist riding corps [NSRK], the S.A. cavalry is responsible for the training of German youth in riding and driving, before military service, as well as additional training in riding for men already in the service (compare discussion on Page 373 “National Socialist Riding Corps”). The S.A. cavalry further cultivates riding and driving activities within the S.A.

c. Communications S.A.: The task of the Communications S.A. is to enable the responsible leader during assemblies and other demonstrations and in the catastrophe service to exercise control over subordinated or employed units. The training therefore extends primarily to telephone service. Beyond that, however, the communications S.A. men are also trained in sending and receiving Morse Code signals. The “Communications Certificate of the S.A.” is a certificate of merit for those S.A. men who wish to enlist in the signal corps of the armed forces.

d. Engineers S.A.: The tasks of the S.A. engineers include catastrophe protective service during incidents capable of damaging the German national property.

Every S.A. engineer has to prove in thorough technical examinations his degree of training and his initiative [Einsatzbereitschaft].

The examinations are entered in a performance book, which also contains the “S.A. Engineers Certificate” as certificate of merit.

e. Medical S.A.: The S.A. doctors and S.A. medical personnel organized into medical units will supervise and care for the bodily health and efficiency of the individual S.A. man as well as units under their jurisdiction.

Schools of the S.A. for special units

a. Marine S.A. Schools: The following schools are available for training the marine S.A.: Marine S.A. school "DUSTERNBROCK" and the training sailing ship "DUHNEN." The school "DUSTERNBROCK" has to accomplish above all practical and theoretical training in boat service, in row, sail and power boat, according to the regulations of the navy.

The continuation of seamanship training takes place on the seagoing training ship "DUHNEN." Here one gets used to the ship and learns to know and serve it in all its parts and equipment, and here also knowledge of weather and steering is taught and applied.

b. Reich Riding Leadership School. (See under REICHSREITERFUEHRERSCHULE on page 373).

c. Reich Communications School of the S.A.: Here the S.A. leaders of communications units are trained in all particulars of communications. Here they also become eligible through examinations for the "S.A. Communications Certificate."

THE S.A. REGIMENT "FELDHERRNHALLE"

The S.A. Regiment "Feldherrnhalle" has its seat in Berlin, Voss-Strasse 1. It consists of six garrisoned battalions stationed in: Berlin, Munich, Hattingen, Krefeld, Stettin, and Stuttgart.

S.A. General [Obergruppenfuehrer] Hermann Goering was appointed by the Fuehrer on 12 January, 1937, as Chief of the S.A. Regiment "Feldherrnhalle". The S. A. regiment is directly subordinated to the chief of staff. Its mission, beyond regular S.A. service, is to supervise bureaus of the S.A., the party, and the state. It is to be ready at all times for any and all purposes.

[Seventh Edition, page 359, 367]

BRANCHES OF THE S.A.

1. S.A. Units

The S.A. embraces the entire territory of the Reich. It is divided according to political and local (LANDSMANNNSCHAFTLICH) points of view into the following groups:

- S.A. Group—Alpenland (District /Gau/ Upper Danube, Salzburg, Tyrol-Vorarlberg)
- S.A. Group—Bayernwald (Govt. Dist. Lower Bavaria, Upper Palatinate and Upper Franconia)
- S.A. Group—Berlin-Brandenburg (Province Mark Brandenburg and Greater Berlin)
- S.A. Group—Danube (Gau Lower Danube, Vienna)
- S.A. Group—Elbe (Province of Saxony and Free State of Anhalt)
- S.A. Group—Franconia (Govt. Dist. Central and Lower Franconia)
- S.A. Group—Hansa (Free City of Hamburg and Mecklenburg)
- S.A. Group—Hesse (Parts of the Free State of Hesse /Upper Hesse/, the Province of Hesse, and Hesse-Nassau)
- S.A. Group—Highland (Hochland) (Govt. Dist. Upper Bavaria and Swabia)
- S.A. Group—Palatinate (Govt. Dist. Rhenish Palatinate, Saar District, Rhenish Hesse, Lorraine)
- S.A. Group—Central Rhine (Rhine Province, Part of the Province of Hesse-Nassau, Luxemburg)
- S.A. Group—Neckar (Part of the Free State of Baden and Wuerttemberg)
- S.A. Group—Lower Rhine (Parts of the Rhine Province and of the Ruhr District)
- S.A. Group—Lower Saxony (Part of the Province of Hannover and Free State of Brunswick)

- S.A. Group—Nordmark (Province of Schleswig-Holstein, Free City of Luebeck)
- S.A. Group—North Sea (Parts of the Province of Hannover and Westphalia, Free State of Oldenburg, Free City of Bremen)
- S.A. Group—Upper Rhine (Parts of the Free State of Baden and Alsace)
- S.A. Group—Oder (Province of Grenzmark)
- S.A. Group—Pomerania (Province of Pomerania and parts of Granzmark)
- S.A. Group—Saxony (Free State of Saxony)
- S.A. Group—Silesia (Province of Upper and Lower Silesia)
- S.A. Group—Sudeten (Reich Gau Sudetenland)
- S.A. Group—Suedmark (Gau Styria and Carinthia)
- S.A. Group—Tannenberg—(Province of East Prussia)
- S.A. Group—Thuringia (Free State of Thuringia)
- S.A. Group—Warthe (Reich Gau Wartheland)
- S.A. Group—Vistula (Reich Gau Danzig—West Prussia)
- S.A. Group—Westphalia (Province of Westphalia) * * *

WITHDRAWAL FROM THE S.A.

Service with the S.A. is and remains voluntary. As in recruitment for the S.A. no advantages may be promised and no pressure whatsoever may be exerted, the S.A. man should have the possibility to withdraw from the S.A. if he believes that he can no longer agree with S.A. views or if he is not in a position to fulfill completely the duties imposed on him as a member of the S.A. On presentation of honorable reasons in a corresponding written petition, the S.A. member can be “released from the S.A. by own request.” However, if he shows no interest or if he has joined the ranks of the S.A. merely because of a whim or for the sake of a good opportunity, there ensues a “discharge from the S.A. according to number 127*b* of the SADV/1” (official measures for insuitability for service in the S.A.). If he is

guilty of any disciplinary or political or possibly criminal offenses, the competent disciplinary officer can declare him as “punished with permanent discharge from the S.A.” In serious cases “exclusion from the S.A.” can be declared.

TRANSLATION OF DOCUMENT 2355-PS

1938 REICHSGESETZBLATT, PART I, PAGE 258

Second Law on the Right to Vote for the Reichstag, 18 March 1938.

The government of the Reich has decided to pass the following law which is proclaimed herewith:

Article 1

The electoral list for the Reich shall replace the electoral list for the Kreise.

Article 2

One or more candidates may be nominated on the electoral list for the Reich.

Article 3

For the elections to the Reichstag in Austria, the same general rules which are valid for the elections to the Reichstag apply, inasmuch as the requirements of the plebiscite in Austria of 10 April 1938 do not necessitate different regulations.

Article 4

The Reich Minister of the Interior is authorized to change the orders on the procedure of the elections as much as may be necessary, in order to simplify this procedure.

Berlin, 18 March 1938.

The Fuehrer and Reich Chancellor
ADOLF HITLER

The Reich Minister of the Interior
FRICK

PARTIAL TRANSLATION OF DOCUMENT 2357-PS

SPEECH BY HITLER BEFORE REICHSTAG, 20 February 1938

DOCUMENTS OF GERMAN POLITICS [Dokumente der deutschen Politik] Part VI, 1, Pages 50-52.

In the fifth year following the first great foreign political agreement of the Reich, it fills us with sincere gratification to be able to state that in our relations with the State with which we had had perhaps the greatest differences, not only has there been a detente, but in the course of these years there has been a constant improvement in relations, * * * This good work, which was regarded with suspicion by so many at the time, has stood the test, and I may say that, since the League of Nations finally gave up its continual attempts to unsettle Danzig and appointed a man of great personal attainments as the new commissioner, the most dangerous spot from the point of view of European peace has entirely lost its menacing character. The Polish State respects the national conditions by this State, and both the city of Danzig and Germany respect Polish rights. And so the way to a friendly understanding has been successfully paved, an understanding which, beginning with Danzig, has today, in spite of the attempts of certain mischief-makers, succeeded in finally taking the poison out of the relations between Germany and Poland and transforming them into a sincere, friendly cooperation.

Relying on her friendships, Germany will not leave a stone unturned to save that ideal which provides the foundation for the task which is ahead of us—peace.

PARTIAL TRANSLATION OF DOCUMENT 2358-PS

SPEECH DELIVERED BY HITLER IN THE SPORTSPALAST IN
BERLIN ON 26 SEPTEMBER 1938

[Quoted from the Voelkischer Beobachter, Munich Edition, special edition for Tuesday, 27 September 1938.]

“I have conducted really a practical peace-policy during these years.

“I approached all apparently impossible problems with the firm determination to solve them in a peaceful manner even at the cost of more

or less heavy German concessions. I am a front-line soldier myself and I know the hardships of a war. *I wanted to spare the German people from it.* I approached therefore problem after problem with the solid determination to try everything for a peaceful solution.

“The most difficult problem with which I was confronted was that of our relations with Poland. There was a danger that Poles and Germans would regard each other as hereditary enemies. I wanted to prevent this. I know well enough that I would not have been successful if Poland had had a democratic Constitution. For these democracies which indulge in phrases about peace are the most blood-thirsty war agitators. In Poland there ruled not a democracy but *a man*; and with him I succeeded, in precisely one year, in coming to an agreement which, for 10 years to begin with, entirely removed the danger of conflict. We are all convinced that this agreement will bring lasting pacification. We realize that there are two peoples which must live together, and neither of which can do away with the other. A people of 33 millions will always strive for an outlet to the sea. A way to understanding, then, had to be found. * * *”

“And now we are confronted with the last problem which must be solved and which will be solved. It is the last territorial claim which I have to make in Europe, but it is a claim from which I will not swerve, and which I will satisfy, God willing.”

* * *

“I have little to explain. I am grateful to Mr. Chamberlain for all his efforts. I have assured him that the German people want nothing but peace; but I have also told him that I cannot go back beyond the limits of our patience.

“I assured him, moreover, and I repeat it here, that when this problem is solved there will be no more territorial problems for Germany in Europe. And I further assured him that from the moment when Czechoslovakia solves its other problems, that is to say, when the Czechs have come to an arrangement with their other minorities, peacefully and without oppression, I will no longer be interested in the Czech State. And that, as far as I am concerned, I will guarantee. We don’t want any Czechs at all. But I must also declare before the German people that in the Sudeten German problem my patience is now at an end. I made an offer to Herr Benes which was no more than the realisation of what he had already promised. He now has

peace or war in his hands. Either he will accept this offer and at length give the Germans their freedom, or we will get this freedom for ourselves.”

PARTIAL TRANSLATION OF DOCUMENT 2360-PS

SPEECH BY HITLER BEFORE THE REICHSTAG, 30 January 1939

[Quoted from the Voelkischer Beobachter, Munich Edition, Tuesday, 31 Jan. 1939.]

“On account of this intolerable provocation which had been aggravated by a truly infamous persecution and terrorization of our Germans there I had resolved to solve once and for all, and this time radically, the Sudetan German question. On May 28 I ordered (1) that preparations should be made for military action against this state by October 2. I ordered (2) the immense and accelerated expansion of our defensive front in the West.”

PARTIAL TRANSLATION OF DOCUMENT 2367-PS

Voelkischer Beobachter, South German Edition

Nr. 123/124 Saturday and Sunday 2 and 3 May 1936

The Fuehrer begins speaking now amid the cheers of the whole of Germany:

“The lies that Germany will pounce upon Austria tomorrow or the day after are being spread again (jeers and laughter of the crowd). I ask myself: Who are these elements who do not want peace and mutual understanding, who must stir up and sow distrust continuously, who are they in reality?”

TRANSLATION OF DOCUMENT 2368-PS

EXTRACTS FROM SPEECH BY HITLER BEFORE REICHSTAG

30 January 1937

DOCUMENTS OF GERMAN POLITICS [Dokumente der deutschen Politik] Part VI, 2, Page 42.

“By a series of agreements we have eliminated existing tensions and thereby contributed considerably to an improvement in the European

atmosphere. I merely recall an agreement with Poland, which has worked out to the advantage of both sides. * * *

“True statesmanship will not overlook realities, but consider them. The Italian nation and the new Italian State are realities. The German nation and the German Reich are equally realities. And to my own fellow-citizens, I would say that the Polish nation and the Polish State have also become a reality. * * *

“The German Reich with its strong Army will protect her own security and her own honor. But, fully convinced that there is for Europe no greater good than peace, the German Reich will always be a responsible and conscious promoter of the European peace idea. * * *”

PARTIAL TRANSLATION OF DOCUMENT 2371-PS

1933 MINISTERIAL GAZETTE FOR THE PRUSSIAN INTERNAL ADMINISTRATION

[Ministerialblatt fuer die Preussische Innere Verwaltung] Page 503

Execution of ordinance for security of people and state (national security)

Dated: 28 Feb. 1933 (RGBl I, Page 83)

Rd. Erl. d. M.d. J. (KDR) 3.3.1933—II—1121 (Circular)

As a defense against the criminal, communist activities and a means of ruthless suppression of this source of peril, whose extremely dangerous scope has been revealed at the last minute, the Reich president decided on 28 Feb. 1933 to proclaim the decree for the protection of the people and the state. Reichsgesetzblatt, Part I, page 83.

For the actual application of the measures authorized in this decree, I give the following directions:

1. Sect. 1 of the decree not only suspends temporarily articles 114, 115, 117, 118, 123, 124 and 153 of the constitution; it rather eliminates all other Reich and state limitations in this matter, as far as this is necessary or practical in order to reach the aims of this decree. Within this framework police officials thus may go beyond the restrictions laid down by the provisions of sections 14 and 41 of the Prussian police code, their orders

still remain police ordinances of police warrants and thus as far as form is concerned remain subject to the applicable regulations. However, violations are punished according to sect. 4 of the decree which in this respect prevails, according to p. 4 of the preceding decree. Conforming to the aim and purpose of the decree, the additional permissible actions will be directed primarily against the communists, but also against all those working with the communists or even indirectly supporting or promoting their criminal aims. To avoid any blunder, I remind you that the decree for the protection of the people and state, dated 28 Feb. 1933, should be used against members or institutions other than communist, anarchist or social democratic parties or organizations, when such measures serve for the defense against such communist tendencies in their broadest meaning. In other cases the decree of 2 April 1933 shall be applied. Labor unions shall not be put on the same level with social-democratic organizations.

2. The local police has principal jurisdiction for all those police measures, which are permissible after the legal limitations mentioned under 1. have been removed. The jurisdiction has been changed by my decree of 3 Feb. 1933, (G.S. page 33) based on section 3 par. 5 of the Prussian police Code. Consequently all regulations dealing with the suspension of a periodical or the restriction of property have to be issued from the state police offices. Regulations concerning personal liberty, the right to assemble and congregate, or restrictions concerning the secrecy of mails, communications, telegraph and cable may be ordered by the district police only, (Section 3, part 2, P.V.G.).

3. All orders under Section 1 of the decree of 28 Feb. 1933 must be in writing and signed by the competent chief of police or his general appointed deputies or a deputy appointed for such a measure. In cases of restriction of personal liberty, freedom of speech including freedom of press and property rights the involved person is to be served at the latest at the beginning of the procedure with a certified copy of such an order statement. In cases of interferences with the secrecy of mail, postal service, telegraph and cable one certified copy of the order is to be sent immediately to the post office concerned, as well as to the regional postal office. This order does not affect the existing formal requirements and prerequisites under which restrictions of personal liberty, of free speech incl. free press, of the right to organize and assemble, interference in the secrecy of postal, telegraph, and cable

services, orders of search and seizure, and limitations upon property rights, could be carried out in accordance with prevailing legal provisions.

4. The state police departments have to keep themselves informed on all measures taken in their districts in accordance with sect. 1, of the decree of 28 Feb. 1933, and they have to report to me on the 5th and 20th of each month on measures taken in the second, resp. first half of the preceding month. Unless specially ordered, individual measures, including the suspension of periodicals in accordance with section 1 of this decree need not be reported unless it concerns a very important case.

5. If on principle (see figure 1, par. 2 of this circular) or for some special reason the application of the decree for the protection of the people and state (RGI I, Page 83) dated 28 Feb., 1933, seems out of question or not advisable, the provisions of the decree for the protection of the German people (RGI I, page 35) dated 4 February 1933, and the applicable executive directions remain in effect unchanged.

To all police dept.

M Bli v. 1, page 233.

Reorganization of the political police Circular decree of the Ministry for the Interior of 26 April 1933—II 1000/53

In order to guarantee effective counter-measures against all activities endangering the existence and security of the state, the state government has decided to reform the organization of the political police more severely than before and to create the necessary conditions for speedy and successful operations. For this purpose and for the benefit of a uniform supreme management of the political police the Office of Secret State Police (which is) directly subordinated to myself has been established in Berlin SW 11, Prinz Albrechtstrasse 8 by the law of 26 April 1933 printed in annex 1 (Gesetz-Sammlung, Seite 122) (collection of laws, page 122). Its duty is to investigate all political activities endangering the state by special executors with the assistance of outside bureaus for the individual provincial police districts (State-Police-Bureaus) and with the support of the ordinary police authorities within the entire territory of the state, to collect and exploit the

results of these investigations, to keep myself, the Minister for the Interior, permanently informed, to prepare and provide at all times the necessary proofs for my decisions, and finally to report all politically important observations and statements also to other police authorities and provide them with suggestions. Furthermore the Office of the Secret State Police is authorized within the sphere of its activity to request political measures from other police-authorities and to give them instructions.

TRANSLATION OF DOCUMENT 2372-PS

1936 REICH MINISTERIAL GAZETTE [RMBI]—Part V, Pages 1344-5

Unified designation of the Offices of the Secret State Police in the Reich
(Decree of RF-SS and Chief of German Police in the Reich Ministry of
Interior 28 August 36)

After the Reichsfuehrer SS was installed as Chief of the German Police, the unified direction of all branches of the police and also the designation of the offices must become pronounced.

The greatest differences existed previously among the individual states [Laender] in the field of the political police. At present there are 17 different designations. The unified form of the credentials of the officials of the political police calls for a unified designation of their offices in order to eliminate confusion and misunderstanding among outsiders. Also the simplification of the business transactions calls for assimilation.

1. Therefore the political police of the German states will carry the designation of Secret State Police [Geheime Staatspolizei] from 1 October 1936 on.

2. The state central authorities of the Secret State Police carry the designation

a. in Prussia:

Secret State Police Bureau [Geheime Staatspolizeiamt]

b. in the rest of the state:

State police main office [Staatspolizeileitstelle] or State police
office (Staatspolizeistelle)

and so

in Baden State police main office Karlsruhe

in Bayern State police main office Munich

in Wuerttemberg State police main office Stuttgart

in Sachsen State police main office Dresden

in Anhalt State police office Dessau

in Braunschweig State police office Braunschweig

in Bremen State police office Bremen

in Hamburg State police office, Hamburg

in Hessen State police office Darmstadt

in Luebeck State police office Luebeck

in Mecklenburg State police office Schwerin

in Oldenburg State police office Oldenburg

in Thueringen State police office Weimar

The state police directive offices have the tasks of a state police office for the area of their jurisdiction, a final regulation hereon is withheld. * * *

To the Prussian secret state police office in Berlin, the political police of the exterior Prussian states.—For information to the Prussian Ministry President as chief of the Prussian secret state police, the state cabinet of exterior Prussia, the main office Ordnungs-Police, the Prussian state criminal police office in Berlin, the Prussian Supreme and Government President.

TRANSLATION OF DOCUMENT 2373-PS

EXCERPTS FROM GERMAN PUBLICATIONS

1. “The first chairman is responsible for the entire leadership of the movement. He divides the work among the committeemen, subordinated to him, as well as among the otherwise necessary collaborators. Each of these gentlemen is therefore fully responsible for the tasks that have been allotted

to him. He is subordinate only to the first chairman, who has to concern himself with the cooperation of everyone responsible. Through selection of persons and issuance of general directives he must bring about this collaboration himself.

“This law of essential responsibility has gradually become a matter of course within the movement, at least insofar as it concerned the party leadership.”

(MEIN KAMPF, Adolf Hitler, Munich, 1933, page 661)

2. “How shall I give expression, my Fuehrer, to what is in our hearts? How shall I find words for your deeds? Has there ever been a mortal as beloved as you, my Fuehrer? Was there ever belief as strong as the belief in your mission? God sent you to us for Germany.”

(Goering, Speeches and Writing, [Reden und Aufsaetze]
Munich, 1938, page 326)

3. “Above all was God’s hand which has visibly guided the Fuehrer and his Movement. Only those who have no faith, claim that chance has persecuted us. In reality Moltke’s word was proven to be true in regard to the Fuehrer and the Party; namely, that in the long run only the strong will have good luck. What had been prepared quietly and had grown organically during ten years, swept over all of Germany like a torrent on 30 January 1933 and during the time which followed. There was nobody in the country and in the world who could have escaped the powerful, resounding rhythm of these events. It was as if a whole people awoke from its sleep, threw off in one quick move the chains which oppressed it and rose like a Phenix out of the ashes of a fallen system. And out of the flame and enthusiasm with which the masses of millions of people yielded to Hitler and his idea, the cry which once before at the time of the crusades had made Germany rise, seemed to come again: ‘It is God’s will!’

“And as he gave us his blessing, he denied it to the others. Although they called for him loudly from their pulpits and party-seats, their work was not his work, their faith was not his faith and their will not his will.

“It is not mere chance that millions in Germany are of the holy conviction that National Socialism is more than politics, that in it the word and the will of God proclaim itself, that the bulwark it has created against Bolshevism

was conceived on higher inspiration as the last salvation of Occidental culture before the threat of Asiatic atheism.”

(Joseph Goebbels, *From Kaiserhof to Reich Chancellery*,
[*Vom Kaiserhof zur Reichskanzlei*], 1934, page 12.)

4. “It is with pride that we see that one man is kept above all criticism—that is the Fuehrer.

“The reason is that everyone feels and knows: he was always right and will always be right. The National Socialism of us all is anchored in the uncritical loyalty, in the devotion to the Fuehrer that does not ask for the wherefore in the individual case, in the tacit performance of his commands. We believe that the Fuehrer is fulfilling a divine mission to German destiny! This belief is beyond challenge.”

(Hess, *Speeches [Reden]* Munich, 1928, page 25;
Radio speech at Cologne, 25 June 1934)

5. *The Technique of the State*—“Therefore the Fuehrer principle in administration means; instead of the results of a majority vote, to entrust in each case the decision to a definite person with clear-cut authority who will be solely responsible toward above and who will carry out the execution of the decision toward below.”

(Hans Frank, *German Law, [Deutsches Recht]*
V. 11, Berlin, 1941, p. 2626;

also Otto Koellreutter, *German Administrative Law*,
[*Deutsches Verwaltungsrecht*], Berlin, 1938, p.8.)

* U. S. GOVERNMENT PRINTING OFFICE: 1946—693257

Transcriber's note

Punctuation and spelling has been maintained except where obvious printer errors have occurred. Since these documents were written by different individuals there can be variants in spelling and capitalization between them.

This volume has no German diacritics, only French diacritics. As a result, Goering and Fuehrer are spelled without umlauts throughout.

Use of asterisks in text denote missing/illegible words.

A fact was corrected on Page 626: "I separated this service already in 1941 from the troops." It was changed to 1931.

A couple of sentences had missing words. The following missing words were added:

Page 399: "Jeschonnek shares the opinion we should to Bardufoss" "Jeschonnek shares the opinion we should **go** to Bardufoss"

Page 433: "would then have a compartment all themselves" "would then have a compartment all **to** themselves"

One sentence had an unclear adjective and was changed:

Page 851: "laws and cabinet decisions are repeated effective immediately" "laws and cabinet decisions are **reputed** effective immediately"

*** END OF THE PROJECT GUTENBERG EBOOK NAZI
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